

Ohio Eviction and Landlord-Tenant Law

Sixth Edition

Peter M. Iskin, Esq.

This publication was produced to provide accurate and authoritative information on Ohio eviction and landlord-tenant law, and related subject-matters. It is not intended as a substitute for the advice of an attorney who is familiar with your case and circumstances. If you need legal or other expert advice, you should contact an attorney or other professional.

Iskin, Peter M.
Ohio Eviction and Landlord-Tenant Law
Sixth Edition

Copyright © 2022 The Legal Aid Society of Cleveland
1223 West Sixth Street
Cleveland, OH 44113
216-861-5500
www.lasclev.org

All rights reserved

ISBN 978-0-9740584-4-3
Library of Congress Control Number: 2022910325

**Visit www.lasclev.org/landlordtenantbook
to order additional copies of this book.**

Preface

Ohio Eviction and Landlord-Tenant Law (6th ed.) is a practitioner's manual. It is a manual principally for attorneys (and advocates) who represent or counsel tenants or landlords, and for judges and magistrates who hear eviction actions or other residential landlord-tenant cases. Of course, it is a manual for tenants and landlords as well.

The sixth edition updates and expands the book's overviews and analyses of: (1) Ohio statutes and case law on eviction actions, residential tenancies, manufactured home parks, and land installment contracts; and (2) Ohio case law and federal statutes and regulations on HUD-assisted rental housing programs, relative to eviction actions and terminations of participation in the Housing Choice Voucher program. These overviews and analyses address procedure and practice issues, as well as potential claims, defenses, and remedies.

The author thanks the practitioners who provided him with copies of unpublished state court decisions, many of which are cited in the sixth edition.

Peter M. Iskin
Cleveland, Ohio
June 2022

Website: Unpublished Decisions

The companion website for the sixth edition (as it was for prior editions) is www.lasclev.org/landlordtenantbook. The website contains a PDF version of each unpublished state court decision that is cited in the sixth edition. Its linked table of the cases enables the reader to access quickly any relevant decision. The website also contains information for purchasing additional copies of this book.

About the Author

Peter M. Iskin is a 1973 graduate of the University of Pennsylvania School of Law.

He was an attorney at the Legal Aid Society of Cleveland from 1973 to January 2015, at which time he retired. He served Legal Aid in various capacities: a staff attorney in the Law Reform Unit from 1974 to 1986; Director of the Law Reform Unit from 1987 to 2004; and Managing Attorney of the Housing Unit from 2005 to January 2015.

He also served on the Board of Commissioners of the Cuyahoga Metropolitan Housing Authority from 1980 to 1985, where he was chair from 1981 to 1985.

He argued numerous landlord-tenant cases in appellate courts. He litigated numerous federal housing cases in federal and state courts. And he was a frequent lecturer on landlord-tenant law and federal housing programs at seminars sponsored by legal services organizations, bar associations, and judicial conferences.

About the Contributor

Abigail C. Staudt is a contributor to Ohio Eviction and Landlord-Tenant Law (6th ed.). She was the lead researcher and co-writer of the new Section XXII.J, Municipal Ordinances and Court Rules: Six Examples of Local Tenant Rights. And she was the lead researcher and co-writer of the sixth edition updates to Section XXI, Landlord-Tenant Law for Manufactured Home Parks, and Section XXIII, Land Installment Contracts, R.C. Chapter 5313.

Ms. Staudt is a 2006 graduate of the Chicago-Kent College of Law. She joined the Legal Aid Society of Cleveland in 2006 and became a member of its housing practice group in 2007. She has been a staff attorney, a supervising attorney, and a managing attorney.

Ms. Staudt has dedicated her legal career to advocacy for tenants. Her work has ranged from representation of tenants facing eviction, to systemic solutions for the elimination of lead paint hazards in rental units, to appellate work. She served on the Office of Homeless Services Advisory Board from 2015 to 2021, where she was co-chair from 2017 to 2021. She also served on the Board of Directors of Cogswell Hall from 2011 to 2016, where she was president from 2012 to 2016.

Summary Contents

I.	Eviction Action, Procedures	1
II.	Eviction Action, Common Defenses	120
III.	Eviction Action, Additional Defenses, Assisted Housing.....	199
IV.	Eviction Action, Additional Defenses, Manufactured Home.....	284
V.	Ohio Landlord-Tenant Act, General Background	291
VI.	Ohio Landlord-Tenant Act, Applicable Tenancies	295
VII.	Rental Agreement Provisions.....	309
VIII.	Rent Depositing and Related Remedies, R.C. 5321.07-.10.....	384
IX.	Tenant Claims for Defective Condition at the Premises	398
X.	Tenant Claims for Improper Entry, R.C. 5321.04,.05	457
XI.	Tenant Claims for Retaliation, R.C. 5321.02,.03	461
XII.	Tenant Claims for Lockout or Utility Termination, R.C. 5321.15.....	465
XIII.	Tenant Claims for Seizure of Personal Property, R.C. 5321.15.....	475
XIV.	Tenant Claims for Wrongful Eviction, Common Law	478
XV.	Tenant Claims for Wrongful Eviction, 42 U.S.C. § 1983	483
XVI.	Security Deposit	486
XVII.	Landlord Claim for Rent	511
XVIII.	Landlord Claim for Property Damage, R.C. 5321.05(C)	529
XIX.	Attorney's Fees	542
XX.	Jurisdiction	558
XXI.	Landlord-Tenant Law for Manufactured Home Parks	566
XXII.	Miscellaneous Landlord-Tenant Issues	594
XXIII.	Land Installment Contracts, R.C. Chapter 5313.....	630

XXIV.	HUD-Assisted Rental Housing Programs	648
XXV.	Table of Cases	673
XXVI.	Index.....	839

Detailed Contents

I. Eviction Action, Procedures.....	1
A. General Background.....	1
1. Statutory Remedy	1
2. Purpose of an Eviction Action	1
3. Parties in an Eviction Action – Not Limited to Landlord Claims Against Tenants	2
a. Overview	2
b. Applicability to Housing Cooperatives	4
4. Action at Law.....	4
B. Application of the Ohio Rules of Civil Procedure.....	5
C. Notice to Vacate, R.C. 1923.04	10
1. General Background	10
a. Notice for Commencing Eviction Action	10
b. Jurisdictional Requirement.....	11
c. Service of a Second Notice to Vacate.....	12
2. Content.....	13
a. Written Notice	13
b. Name of the Prospective FED Plaintiff.....	13
c. Statement to Leave – Statutory Language	14
d. Reason for the Eviction	16
e. Vacation Date	17
3. Time of Service.....	17
a. Three-Day Rule	17
b. Computation of the Three-Day Period	17
c. Additional Time – Specified Vacation Date in the Notice	19

d. Additional Time – Landlord Delay	19
e. Expiration of Tenancy Prerequisite	20
4. Method of Service.....	23
a. General Rule	23
b. Deceased Resident of Manufactured Home Park	24
5. Time and Method of Service, Drug-Related R.C. 1923.02(A)(6) Eviction.....	24
D. Notices of Termination, R.C. 5321.11, 5321.17.....	26
1. Introduction.....	26
2. R.C. 5321.11 Notice of Termination.....	27
a. Materially Affects Health and Safety, Effect of the Limitation.....	27
b. Written Notice	28
c. Statement of the Violation with Specificity.....	28
d. Statement of a Termination Date, and the Thirty-Day Requirement	29
e. Timely Remedy of the Violation	29
f. Applicability to Written Leases	31
g. Jurisdictional Requirement.....	32
3. R.C. 5321.17 Notice of Termination.....	33
a. Written or Oral Notice.....	33
b. Content Requirements	34
c. Time of Service, and the Thirty-Day Requirement	34
4. Rent Payment After Service of the Notice of Termination.....	36
5. Second Notice of Termination After Voluntary Dismissal.....	37
E. Content of the Complaint.....	37
1. R.C. 1923.05	37
2. Ohio Rules of Civil Procedure.....	38
a. Civil Rule 8(A) – Ground for Eviction Limited by Complaint	38

b. Civil Rule 10(D) – Attachment of Lease.....	38
c. Civil Rule 11 – Signature of Pro Se Landlord	39
d. Civil Rule 12(E) – More Definite Statement.....	39
e. Civil Rule 15(B) – Amendment to Allege New Ground for Eviction	40
f. Civil Rule 18(A) – Joinder of Claims	40
F. Content of the Summons	42
1. R.C. 1923.06	42
2. Civil Rule 4(B).....	42
G. Service of the Summons and Complaint	43
1. Introduction.....	43
2. Time of Service.....	43
3. Method of Service.....	44
a. R.C. 1923.06 Rules.....	44
b. Conflict Between R.C. 1923.06 Rules and Civil Rules 4.1 and 4.6 – Eviction Claim.....	46
c. Conflict Between R.C. 1923.06 Rules and Civil Rules 4.1 and 4.6 – Non-Eviction Claim	48
d. R.C. 1923.06 Additional Rules – Deceased Resident of Manufactured Home Park	52
4. Time and Method of Service, Drug-Related R.C. 1923.02(A)(6) Eviction.....	52
H. Answer.....	52
I. Counterclaims	53
1. Permissive Counterclaims.....	53
2. Compulsory Counterclaims	53
3. Compulsory Joinder – Counterclaims of Tenant’s Non-Party Child.....	55
4. Practice Issues.....	55

J. Jury Demand.....	56
1. Party's Right to a Trial by Jury.....	56
2. Time Period for Filing a Jury Demand	57
3. Advance Deposit Requirements for Filing a Jury Demand	59
a. Introduction	59
b. R.C. 1901.26(A)(3) Deposit Requirement	60
c. Rent Deposit Requirement.....	61
4. Waiver of the Right to a Trial by Jury	62
5. Withdrawal of a Jury Demand	65
K. Continuance and Bond.....	65
L. Jurisdictional Issues	68
1. Certification to a Court of Common Pleas.....	68
2. Jurisdictional-Priority Rule – Two Pending Cases	71
3. Title Issues	73
4. Domestic Relations Court	75
a. Marital Residence	75
b. Civil Protection Order	76
5. Probate Court	77
M. FED Trial Issues	77
1. Consolidated or Separate Trials	77
2. Magistrate, Bench, or Jury Trial	79
3. Court Reporter	80
4. Witness Testimony Requirement.....	80
5. Hearsay Evidence.....	80
6. Trial – Tenant Not Present.....	82
7. Trial – Unrepresented Party	83

8. Collateral Estoppel and Res Judicata	84
a. Collateral Estoppel	84
b. Res Judicata.....	85
9. Burden of Proof Issues, Assisted Housing.....	87
10. Miscellaneous Evidence and Proof Issues	87
N. Magistrate’s Decision and a Party’s Objections.....	88
1. Content of a Magistrate’s Decision.....	88
2. Court Review of a Magistrate’s Decision, Absent Objections	89
3. Objections to a Magistrate’s Decision	89
4. Stay Pending a Ruling on Objections	92
O. Judgment and Writ of Restitution.....	93
1. Introduction.....	93
2. Writ of Restitution	94
3. Persons Against Whom an Eviction Judgment May Be Enforced.....	95
4. Manufactured Home Park, Summary Process for Judicial Sale of the Home.....	97
a. Introduction	97
b. Procedural Requirements for the Sale	98
5. R.C. 1923.15 Remedial Order.....	100
P. Post-Judgment Motions.....	101
1. Civil Rule 59 Motion	101
2. Civil Rule 60(B) Motion.....	102
3. Motion to Vacate Judgment	105
4. Motion to Amend Agreed Judgment.....	106
Q. Appeal	107
1. Introduction.....	107
2. Final Appealable Order.....	107
3. Stay and Supersedeas Bond	108

4. Mootness	113
5. Appeal Time Period, If Post-Judgment Motion or Objection Filed.....	119

II. Eviction Action, Common Defenses120

A. Deficient Content/Service of Notice to Vacate or Notice of Termination	120
1. R.C. 1923.04 Notice to Vacate	120
2. Notice of Termination, R.C. 5321.11.....	120
3. Notice of Termination, R.C. 5321.17(B)	121
B. Deficient Service of Process	121
C. Waiver of the R.C. 1923.04 Notice to Vacate	122
1. General Rule	122
2. Assisted Housing Tenancies	127
D. Waiver of the R.C. 5321.11 or 5321.17 Notice of Termination	131
E. Waiver of the Breach	133
1. Overview.....	133
2. Waiver of the Breach by Acceptance of Rent.....	134
a. Nonpayment of Rent Breach	134
b. Other Breach.....	134
3. Waiver of the Breach by Execution of New Lease.....	135
F. Remedy of the Condition Specified in the R.C. 5321.11 Notice of Termination	137
G. Timely Surrender of Possession	138
H. Course of Conduct of Accepting Late Rent Payment.....	138
I. Renewal of Periodic Tenancy Due To Partial Payment of Rent	143
J. Timely Tender of Rent Refused.....	143
K. Tender of Rent Excused	144
1. Vain Act.....	144
2. Landlord's Instructions	145

L. Absence of Timely Demand – Rent Collection at the Premises	146
M. Payment of Rent that Accrued During a Prior Eviction Action.....	146
N. Accord and Satisfaction.....	148
O. Rent Abatement, R.C. 1923.061(B)	149
1. Overview.....	149
2. Deposit of Rent with the Court	150
3. Net Judgment	154
4. Written Counterclaim	155
5. Notice.....	155
6. Payment of Deficiency.....	155
P. Implied Warranty of Habitability, Common Law	157
Q. Set-Off Against Rent, Common Law	158
R. Tenant Repairs in Lieu of Rent, Agreement	159
S. Rent Adjustment – Tenant on Active Duty, R.C. 1923.062.....	160
T. Retaliation, R.C. 5321.02,.03.....	160
1. Scope of the Retaliation Defense	160
2. Proof Issues.....	161
3. R.C. 5321.03 Exceptions	164
4. Dual Motive Issue.....	167
U. Discrimination	168
1. Federal and Ohio Statutes	168
2. Reasonable Accommodation Requirements	170
V. Lease, Procedures for Termination.....	173
W. Lease, Non-Material Breach.....	174
X. Lease, Ambiguous Forfeiture Provision.....	175
Y. Lease, Unconscionable Provision, R.C. 5321.14.....	176
Z. Lease, Landlord Prevents Performance	176
AA. Repayment Agreement, Contract of Adhesion	177

BB. Equity	178
1. Overview	178
2. Project-Based Assisted Housing	182
3. Manufactured Home Park	186
CC. Real Party in Interest	186
DD. Fictitious Name Registration	189
EE. Unauthorized Practice of Law	191
1. Corporation Without Counsel	191
2. Limited Liability Company Without Counsel	192
3. Partnership Without Counsel	193
4. Non-Attorney Practicing Law, R.C. 4705.01	194
a. General Rule	194
b. Picklo Rule	195
c. Power of Attorney Rule	196
FF. Co-Tenant Versus Co-Tenant	196
GG. Statute of Limitations, R.C. 1923.01(B)	196
HH. Defense for Drug-Related R.C. 1923.02(A)(6) Eviction	197

III. Eviction Action, Additional Defenses, Assisted Housing199

A. Introduction, Federal Notice of Termination and Good Cause	199
B. Strict Compliance with Federal Notice Rules, Ohio Case Law	201
C. Federal Notice of Termination (Content), Ohio Case Law	203
1. Omission or Misstatement of a Required Element	203
2. Statement of Reason with Specificity	206
3. Eviction Solely for Reason(s) in the Notice	213
4. Consolidation of Federal Notice of Termination and State Notice to Vacate	214

D. Federal Notice of Termination (Service), Ohio Case Law	215
1. Time of Service.....	215
a. Public Housing	215
b. Project-Based Subsidized Housing.....	217
c. HCVP	218
2. Method of Service.....	219
3. Service of a Second Notice of Termination	220
E. Federal Notice of Termination, Opportunity to Cure the Breach	220
F. Administrative Hearing/Meeting, Ohio Case Law	223
G. Good Cause, Ohio Case Law.....	227
1. Nonpayment of Rent.....	227
a. Circumstances Beyond Tenant’s Control	227
b. Improperly Calculated Rent	228
c. Improper Rent Deposit	229
d. Rent Refused Due to Unpaid Charge	230
2. Late Tender of Rent	231
3. Nonpayment of a Charge	232
4. Recertification – Failure to Furnish Information	233
a. Project-Based Assisted Housing – Termination or Market Rent.....	233
b. Housing Choice Voucher Program.....	235
5. Unauthorized Occupant/Authorized Guest	236
6. Non-Criminal Conduct of Tenant’s Child	236
7. Non-Criminal Conduct of Guest.....	238
8. Criminal Conduct of Tenant, Household Member, or Guest.....	240
a. HUD Regulations	240
b. On or Near the Premises.....	242
c. Threat to Health, Safety, or Peaceful Enjoyment of Premises.....	243
d. Innocent Tenant Issue, Public Housing	243

e. Innocent Tenant Issue, Project-Based Subsidized Housing.....	248
f. Drug-Related Criminal Activity.....	249
g. Misdemeanor	250
h. Conduct of Minor, Juvenile Court.....	250
i. Violation of Condition of Probation or Parole	250
j. Absence of Criminal Conviction.....	251
k. Self-Defense	251
l. Pre-Admission Criminal Conduct	251
m. Ohio Case Law Finding Good Cause.....	252
9. Violence Against Women Act	253
10. Conduct of Uninvited Person.....	254
11. Forbearance Agreement to Vacate, Breach.....	255
12. Minor Violation of Lease.....	256
13. Other Grounds.....	258
H. Housing Choice Voucher Program Issues	261
1. Service of Notice to Vacate on the PHA.....	261
2. Abatement/Termination of Payments Based on Landlord's Failure to Make Repairs	262
3. Excess Tenant Rent Demanded by Landlord.....	265
4. Sale of the Premises During the Tenancy	266
5. Foreclosure of a Mortgage on the Premises During the Tenancy – Preemption	267
I. Additional Retaliation Defenses	268
1. First and Fourteenth Amendments.....	268
2. HUD Regulations.....	269
J. Bankruptcy.....	269
1. Overview.....	269
2. Stoltz Analysis of Chapter 7, § 525(a) Issue.....	271

3. Unexpired Lease Term, Chapters 13 and 7	273
4. Prompt Cure, Chapter 13	275
5. Automatic Stay	275
K. Public Housing Turnkey III (Homeownership)	277
L. Low Income Housing Tax Credit Program	278
1. Introduction	278
2. Set-Aside of Low-Income Units	278
3. Rent for Low-Income Units	279
4. Eviction Rules for Low-Income Units	280
a. Notice of Termination	280
b. Good Cause	282
IV. Eviction Action, Additional Defenses, Manufactured Home	284
A. Introduction	284
B. Conventional Defenses	285
C. Additional Defenses	286
1. Cause Requirement	286
2. Unlawful Rent Increase	288
3. Nondisclosure of Fees	289
4. Sale/Purchase of the Home	289
V. Ohio Landlord-Tenant Act, General Background	291
A. Remedial	291
B. Purpose	291
C. Effect on Common Law	292
D. Effect on Local Ordinances	293

VI. Ohio Landlord-Tenant Act, Applicable Tenancies295

A. Overview	295
B. Rental Agreement	295
C. Tenant	296
D. Landlord	299
E. Residential Premises	299
F. Transient Occupancy, for Residential Premises Exclusions	301
1. Introduction.....	301
2. Application of the Rule of Statutory Construction for the Use of Identical Words in the Same Statute	301
3. Transient Occupancy Means up to Thirty Days.....	303
G. Employee Tenant.....	306

VII. Rental Agreement Provisions.....309

A. Contract Law Governs Leases.....	309
B. Incorporation of R.C. Chapter 5321 Provisions.....	310
C. Landlord Duty to Maintain and Provide Services for the Premises.....	311
1. Scope of the R.C. 5321.04 Duty	311
a. Summary of the Statutory Requirements.....	311
b. Duty to a Tenant's Social Guest.....	312
c. Prohibition Against Waiver	313
2. Comply with the Building, Housing, Health, and Safety Codes, R.C. 5321.04(A)(1)	314
3. Put and Keep the Premises in Fit and Habitable Condition, R.C. 5321.04(A)(2)	315
a. Introduction	315
b. General Factors for Determining Whether a Defective Condition Violates the Duty.....	316

c. Court Decisions on Whether Particular Structural Defects Violate the Duty	317
d. Bed Bugs – Duty and Liability Issues	319
4. Keep the Common Areas in Safe and Sanitary Condition, R.C. 5321.04(A)(3)	321
a. Introduction	321
b. Open and Obvious Doctrine Inapplicable	322
c. Removal of Ice/Snow from Common Areas	323
d. Other Court Decisions	325
5. Maintain Fixtures/Appliances in Good and Safe Working Order, R.C. 5321.04(A)(4)	327
6. Supply Water, Hot Water, and Heat, R.C. 5321.04(A)(6), PUCO Rule, and Other Sources	328
a. R.C. 5321.04(A)(6)	328
b. PUCO Rule	329
c. Other Sources of Landlord Duty to Provide Water Service	330
7. No Affirmative Duty Under R.C. 5321.04(A) to Inspect the Premises	330
8. Reasonable Security Measures Against Criminal Activity	331
9. Implied Covenant of Quiet Enjoyment, Common Law	332
10. Additional Terms of Rental Agreement	335
D. Tenant Duty to Maintain and Properly Use the Premises	336
1. Summary of the R.C. 5321.05(A) Duties	336
2. Keep the Dwelling Safe and Sanitary, R.C. 5321.05(A)(1)	337
3. Duty Relative to Damage to the Premises, R.C. 5321.05(A)(6)	337
a. General Background	337
b. Damage by Third-Party	338
4. Do Not Disturb Neighbors’ Peaceful Enjoyment, R.C. 5321.05(A)(8)	340

5. Non-R.C. 5321.05(A) Duties Under the Rental Agreement	341
a. Introduction	341
b. Exterior Maintenance for Single-Family Dwellings	341
c. Other Provisions	342
E. Landlord Access to the Premises	343
F. Rent	345
1. Definition	345
2. Form of Payment.....	347
3. Prerequisite to Landlord-Tenant Relationship	347
4. Amount of Obligation, Initial or Increase	348
5. Place for Payment	349
6. Acceptance of Payment.....	350
a. Payment by Check or Money Order	350
b. Payment by Third Party.....	352
c. Payment by Bank Deposit	352
d. Payment by Mail	353
7. Month to Which Payment Applies.....	353
8. Due Date of Payment.....	354
9. Late Payment Fee.....	355
a. Written Authorization Prerequisite.....	355
b. Liquidated Damages or Penalty.....	355
c. Unconscionability, R.C. 5321.14.....	358
d. Actual Damages, Absent Late Payment Fee	360
e. Discount Rent or Late Payment Fee	360
f. Nonpayment of a Late Payment Fee	360
10. Sale of Rental Premises, Rent Payments	361
11. Pending Eviction Action, Rent Payments	362

G. Guests	363
1. Tenant's Right to Invite Guests	363
2. Registration/Approval of Overnight Guests	364
3. Guest or Unauthorized Occupant.....	364
4. Ban Lists and Trespass Policies	366
H. Spouse, Not Named on Lease.....	368
I. Landlord, Name and Address.....	369
J. Renewal Provisions.....	369
K. Prohibited Provisions.....	372
1. Unconscionable Provisions, R.C. 5321.14.....	372
2. Other Prohibited Provisions, R.C. 5321.06, 5321.13, and 5321.131	378
L. Prohibited Occupancy – Sex Offenders, R.C. 2950.034, 5321.051	383
VIII. Rent Depositing and Related Remedies, R.C.	
5321.07-.10	384
A. Requirements and Procedures for Rent Depositing.....	384
B. Release of the Rent Deposits to the Landlord, R.C. 5321.09,.10	387
C. Release of the Rent Deposits to the Tenant	390
D. Fee of Clerk of Court on Release of Rent Deposits, R.C. 5321.08(D).....	391
E. Bad Faith Rent Depositing, R.C. 5321.09(D)	392
F. Interplay Between Improper Rent Depositing and an Eviction Action.....	392
G. Constitutionality of the Rent Deposit Procedure	393
H. Tenant Claim for Repair, Reduced Rent, and Rent Release, R.C.	
5321.07(B)(2)	394
I. Tenant Termination of the Rental Agreement, R.C. 5321.07(B)(3)	396

IX. Tenant Claims for Defective Condition at the Premises398

A. R.C. 5321.04 Contract Claim	398
1. Introduction.....	398
2. Notice Requirement	399
3. Reasonable Time to Remedy Issue	400
4. Landlord Fault Issues.....	401
5. Subtenant Issues.....	402
6. Tenant Cooperation Issues.....	402
7. Injunctive Relief, and Contempt Enforcement	403
8. Monetary Relief	404
a. General Damages – General Rule.....	404
b. General Damages – Assisted Housing	406
c. General Damages – Amounts Awarded	408
d. Special Damages	418
e. Punitive Damages, Unavailable.....	420
9. Attorney’s Fees, Unavailable.....	421
10. Waiver Issues	421
11. Proof Issues – Tenant Testimony.....	422
a. Introduction	422
b. Owner Opinion Rule	422
c. Rental Value Testimony Not Required.....	424
d. Use of a Diary.....	424
e. Use of Photographs.....	424
f. Corroboration Via a Viewing of the Premises	425

12. Proof Issues – R.C. 5321.04(A)(1) Code Violation.....	425
a. No Requirement for Code Violation Citation.....	425
b. Code Inspector Testimony.....	425
B. R.C. 5321.04 Negligence Per Se Claim.....	427
1. Overview.....	427
2. Notice.....	428
a. General Rule.....	428
b. Constructive Notice.....	429
c. Specificity of the Notice – General Rule.....	433
d. Specificity of the Notice – Lead Paint.....	434
e. Rule for the R.C. 5321.04(A)(4) Duty to Maintain, Latent Defects.....	435
f. Rule for the R.C. 5321.04(A)(1) Duty to Comply With Applicable Codes	437
g. Social Guest of Tenant	438
3. Proximate Cause	438
4. Types of Damages	440
a. Compensatory Damages.....	440
b. Punitive Damages.....	441
5. Independent Contractor.....	442
6. Sale of Property, Seller’s Liability for Existing Defective Conditions.....	442
7. Defense Issues.....	443
a. Open and Obvious Doctrine	443
b. Comparative Negligence	444
c. Implied Assumption of Risk.....	444
d. Primary Assumption of Risk	444

C. Common Law Negligence, Premises Liability	445
1. Overview.....	445
2. Open and Obvious Doctrine.....	446
3. Supplement to R.C. 5321.04 Negligence Per Se Claim.....	447
D. Common Law Negligence, Criminal Activity of Third Party	448
E. R.C. 5321.04 Emotional Distress Claims	450
F. R.C. 5321.12 Claim.....	452
G. Receivership Claims.....	452
1. Receiver to Abate Public Nuisance, R.C. 3767.41 – General Rule	452
2. Receiver to Abate Public Nuisance, R.C. 3767.41 – Subsidized Housing.....	454
3. Receiver to Manage Premises Due to Landlord’s Noncompliance with Court Order, R.C. 2735.01.....	455
H. Restitution, Housing Code Cases	456
X. Tenant Claims for Improper Entry, R.C. 5321.04,.05.....	457
A. Rights and Duties Relative to any Landlord Entry Upon the Premises.....	457
B. R.C. 5321.04(B) Remedies	457
C. Common Law Remedies.....	459
XI. Tenant Claims for Retaliation, R.C. 5321.02,.03	461
A. Types of Retaliation Prohibited.....	461
B. R.C. 5321.02(B) Remedies	461
C. R.C. 5321.03 Exceptions	463
D. Common Law Remedies	464
XII. Tenant Claims for Lockout or Utility Termination R.C. 5321.15.....	465
A. Type of Conduct Prohibited	465

B. R.C. 5321.15(C) Remedies	466
1. Monetary Relief	466
2. Attorney's Fees	471
3. Injunctive Relief	472
C. Additional Remedies	474
XIII. Tenant Claims for Seizure of Personal Property, R.C. 5321.15.....	475
A. Type of Conduct Prohibited	475
B. R.C. 5321.15(C) Remedies	475
C. Additional Remedies	476
XIV. Tenant Claims for Wrongful Eviction, Common Law.....	478
A. Introduction	478
B. Contract Claim, Landlord Removal of Tenant Forcibly or by Demand	478
C. Contract Claim, Constructive Eviction.....	479
D. Tort Claim, Fraud and Deceit.....	481
E. Tort Claim, Malicious Prosecution	482
XV. Tenant Claims for Wrongful Eviction, 42 U.S.C. § 1983	483
A. Police Assisting Landlord.....	483
B. City Code Enforcement	484
XVI. Security Deposit.....	486
A. Definition and Legal Status of Security Deposits.....	486

B. Distinction Between a Security Deposit and Other Deposits/Fees	486
1. Pet Deposits and Pet Fees	486
2. Advance Payment of Last Month's Rent	487
3. Application Payments	487
4. Non-Refundable Redecorating or General Maintenance Fee	489
5. Non-Refundable Premium for Surety Bond.....	489
6. Deposit for Option to Purchase.....	490
C. Tenant Cancels Agreement Before Occupancy, Security Deposit Rights.....	490
D. Amount of the Security Deposit	492
E. Interest on the Security Deposit Payable to the Tenant	492
F. Maintenance/Use of the Security Deposit, During the Tenancy	493
G. Use/Return of the Security Deposit, After the Tenancy	493
1. General Rule	493
2. Landlord Option on Applying the Deposit	494
3. Written Itemization	494
4. Thirty-Day Period	496
5. Forwarding Address.....	496
H. Tenant Claim for the Security Deposit and Related Relief	500
1. Overview.....	500
2. Wrongful Withholding.....	501
3. Statutory Damages	502
4. Reasonable Attorney's Fees.....	503
5. Practice Issues	507
a. Compulsory Counterclaims	507
b. Burden of Proof.....	507
c. Accord and Satisfaction.....	508
d. Improper Parties, R.C. 5321.16(C).....	508

e. R.C. 5321.07 Deposits Constitute Rent Paid	509
f. Agreements Between Tenants Cannot Waive Landlord's Duty	509
6. Third-Party Purchaser of the Premises	509
7. Conflict Between R.C. 5321.16 and the Rental Agreement	510
XVII. Landlord Claim for Rent	511
A. End Date of Rental Obligation	511
1. Month-to-Month Tenant	511
2. Remainder of Lease Term, Post-Service of the Notice to Vacate.....	513
3. Remainder of Lease Term, Post-Death of the Tenant.....	514
4. Holdover Tenant	514
5. Rent Accrual During an Eviction Action.....	517
6. Landlord Divested of Ownership.....	518
B. Landlord Duty to Mitigate	518
C. Defense Issues	521
1. Collateral Estoppel.....	521
2. Compulsory Counterclaim/Res Judicata.....	521
3. Security Deposit as Set-Off	522
4. Untimely Rent Refused.....	522
5. Unaccrued Rent.....	522
6. Preclusion of Additional Claim for Unpaid Security Deposit	523
7. Preclusion of Additional Claim for Late Payment Fee	523
8. Noncompliance with R.C. 5321.16(B) Itemization Rule.....	524
9. Preclusion of Award of Both Liquidated and Actual Damages	525
10. Fictitious Name (Landlord).....	525

D. Practice and Procedure Issues.....	525
1. Default Judgment, Complaint for Eviction Claim and Monetary Claim.....	525
a. Application of Civil Rule 55	525
b. Application of Civil Rule 54(C).....	526
2. Joinder of Parties, Civil Rule 19(A).....	527
a. Co-Tenant Owners.....	527
b. Guarantor of Lease	527
3. Interest Award on Judgments.....	528
XVIII. Landlord Claim for Property Damage, R.C. 5321.05(C)	529
A. Introduction	529
B. Normal Wear and Tear	529
C. Measure of Damages	533
1. Real Property	533
2. Personal Property	534
D. Reasonable Attorney's Fees	535
E. Defense Issues.....	536
1. Collateral Estoppel.....	536
2. Required Link Between the Damage and an R.C. 5321.05(A) Violation	537
3. Proof of Damage Amount.....	538
4. Damage Claim Less Than the Security Deposit	539
5. Preclusion of Additional Claim for Unpaid Security Deposit	539
6. Noncompliance with R.C. 5321.16(B) Itemization Rule.....	539
7. Joint and Several Liability	539

F. Practice and Procedure Issues	540
1. Default Judgment, Complaint for Eviction Claim and Monetary Claim.....	540
a. Application of Civil Rule 55	540
b. Application of Civil Rule 54(C).....	540
2. Joinder of Parties, Civil Rule 19(A)	540
3. Owner Opinion Rule.....	540
4. Admissibility of Estimates.....	541
5. Admissibility of Photographs	541
XIX. Attorney's Fees	542
A. Authority Under R.C. Chapter 5321.....	542
B. Authority Under Common Law.....	542
C. Attorney's Fees Taxed as Costs.....	544
D. Absence of Attorney Fee Demand in the Pleadings	545
E. Time Period for Filing a Motion for Attorney's Fees	546
F. Standards for Computing the Amount of an Attorney Fee Award.....	547
1. General Standard.....	547
2. Inclusion of Time Spent Litigating the Attorney Fee Award	549
3. Inclusion of Time of Legal Intern.....	549
4. Exclusion of Time Spent on Other Claims	549
5. Limitation Based on the Amount of the Underlying Judgment	549
6. Limitation Based on the Absence of Difficulty	551
7. No Limitation Based on Contingency Agreement.....	552
8. No Limitation Based on Free Legal Services	552
G. Evidence in Support of the Motion for Attorney's Fees.....	553
1. Time for Presenting the Evidence.....	553
2. Presentation of the Evidence Via Affidavits or a Hearing.....	553

3. Burden of Proof.....	554
H. Attorney's Fees for Time Spent Litigating an Appeal.....	556
I. Jury Trial.....	557
XX. Jurisdiction	558
A. Introduction	558
B. Monetary Jurisdiction	558
1. County Court.....	558
2. Municipal Court.....	558
3. Court of Common Pleas.....	559
C. Equity Jurisdiction	559
1. County Court.....	559
2. Municipal Court.....	560
3. Court of Common Pleas.....	561
D. Subject-Matter Jurisdiction.....	561
1. County Court.....	561
2. Municipal Court.....	562
3. Court of Common Pleas.....	562
E. Housing Division, Cleveland and Toledo Municipal Courts	563
XXI. Landlord-Tenant Law for Manufactured Home Parks.....	566
A. Introduction	566
B. Parallel Provisions – R.C. Chapters 4781, Former 3733, and 5321	567
C. Additional Rights and Obligations, and Court Decisions, R.C. Chapter 4781	568
1. Introduction.....	568
2. Definitions of Relevant Parties	568
3. Summary of R.C. 4781.40 Rights and Obligations.....	569

4. Summary of Court Decisions, R.C. 4781.36-.52 (Former R.C. 3733.09-.17).....	570
a. R.C. 4781.36 (Former R.C. 3733.09)	570
b. R.C. 4781.37 (Former R.C. 3733.091).....	571
c. R.C. 4781.38 (Former R.C. 3733.10)	572
d. R.C. 4781.40 (Former R.C. 3733.11).....	577
e. R.C. 4781.41-.43 (Former R.C. 3733.12-.122).....	586
f. R.C. 4781.45 (Former R.C. 3733.13).....	588
g. R.C. 4781.46 (Former R.C. 3733.14).....	591
h. R.C. 4781.47 (Former R.C. 3733.15).....	591
i. R.C. 4781.48 (Former R.C. 3733.16).....	592
j. R.C. 4781.49 (Former R.C. 3733.17).....	592

XXII. Miscellaneous Landlord-Tenant Issues 594

A. Statute of Conveyances, Statute of Frauds, and Related Matters	594
1. Statute of Conveyances – Defectively Executed Leases	594
2. Statute of Frauds – Oral Rental Agreements	596
3. Partial Performance Exception	597
4. Oral Condition Precedent, Written Rental Agreement	599
5. Oral Modification, Written Rental Agreement	599
B. Purchase of Premises Subject to Existing Tenancy	600
C. Foreclosure of a Mortgage on Tenant- Occupied Property	600
1. Introduction.....	600
2. Ohio Common Law	601
a. Pending Foreclosure Action, Effect on Tenancy	601
b. Foreclosure Sale, Effect on Tenancy.....	602

3. Protecting Tenants at Foreclosure Act	603
a. Preemption of Ohio Common Law.....	603
b. Applicable Tenancies	604
c. PTFA – General Requirements.....	604
d. PTFA – Rent Payment Issues	605
e. PTFA – Eviction Issues	605
f. PTFA – Deed-in-Lieu of Foreclosure	606
g. PTFA – Sale by Initial Successor-in-Interest to Third Party	606
4. FHA-Insured Mortgages – PTFA and the Occupied Conveyance Rule	607
D. Utility Termination for Landlord Nonpayment, Tenant Rights.....	607
1. PUCO Regulated Utility Company.....	607
2. Governmental Utility Supplier – Equal Protection and Due Process	608
E. Utility Submeter Issues	612
F. Ohio Consumer Sales Practices Act.....	614
G. Statute of Limitations, R.C. Chapter 5321 Claims	615
H. Recoupment, R.C. Chapter 5321 Claims.....	617
I. PHA Sovereign Immunity, R.C. Chapter 2744.....	617
1. Overview.....	617
2. Negligence Per Se Claims.....	619
3. Contract Claims	620
4. Practice Issues.....	621
J. Municipal Ordinances and Court Rules: Six Examples of Local Tenant Rights.....	622
1. Introduction.....	622
2. Pay to Stay Defense in Eviction Actions	622
3. Limit on Late Payment Fees	624
4. Right to Counsel in Eviction Actions	624

5. Sealing Records of an Eviction Action	625
a. Introduction	625
b. Rule 45(E) of the Rules of Superintendence for the Courts of Ohio	625
c. Local Court Rules	626
d. Court's Inherent Authority	627
6. Source of Income Protection	627
7. Lead Safe Rental Housing	628

XXIII. Land Installment Contracts, R.C. Chapter 5313 630

A. Introduction	630
1. Definition of Land Installment Contract	630
2. Purpose and Scope of R.C. Chapter 5313	630
3. Distinction Between a Land Installment Contract and a Lease with Option to Purchase	631
B. Contract Requirements and Related Matters	634
1. Statutory Requirements	634
2. Substantial Compliance	635
3. Recording of the Contract	636
4. Oral Agreement, Partial Performance	637
5. Enforcement of R.C. 5313.02(A) Requirements	637
6. Prepayment of Contract	638
C. Vendee Rights Against Third-Party Purchaser	638
D. Vendor Breach of the Land Installment Contract	639
E. Vendee Breach of the Land Installment Contract	639
1. Introduction	639
2. Vendor Action for Possession	639
a. Standard for Selection Between Eviction and Foreclosure	639
b. Eviction Action – Notices, Right to Cure, and Equity	641

c. Vendee Claim for Payments in Excess of Fair Rental Value	644
3. Vendor Action for Damages	644
a. Overview	644
b. Fair Rental Value Claim	646
c. Practice Issues.....	646
d. Bar on a Deficiency Judgment – Applicability Issues.....	646
4. Vendor Action for Specific Performance for the Purchase Price	647

XXIV. HUD-Assisted Rental Housing Programs648

A. Introduction	648
B. Index of HUD Regulations	648
1. Overall Program Rules.....	648
2. Selection of Tenants.....	649
3. Leases.....	650
4. Rent Formula	650
5. Interim Rent Reduction.....	651
6. Termination of Tenancy and Eviction	652
C. Appeal from PHA Decision Terminating HCVP Participation, R.C. Chapter 2506	653
1. Jurisdiction.....	653
2. Notice of Appeal.....	654
a. Method for Perfecting the Appeal	654
b. Time Period for Perfecting the Appeal.....	655
3. Bond and Stay Issues	656
a. R.C. 2505.06 Bond to Perfect Appeal, Inapplicable.....	656
b. Stay Without R.C. 2505.09 Bond.....	657

4. Appeal Record	658
a. Administrative Hearing Record	658
b. Additional Evidentiary Hearing, R.C. 2506.03	659
5. Standard of Review	660
6. Evidentiary Issues	661
a. Burden of Proof	661
b. Hearsay Evidence	662
c. Criminal Conviction or Arrest Evidence	663
d. Evidence Outside the Hearing	664
7. Ohio Rules of Civil Procedure, Applicability	665
8. Summary of HCVP Court Decisions, R.C. Chapter 2506 Appeals	665
a. PHA Termination Decision Reversed, Substantive Grounds	665
b. PHA Termination Decision Reversed, Procedural Grounds	670
c. PHA Termination Decision Upheld, Substantive Grounds	671
9. Federal Court Action	671
Table of Cases	673
Index.....	839

I. Eviction Action, Procedures

A. General Background

1. Statutory Remedy

R.C. Chapter 1923 establishes Ohio's forcible entry and detainer ("FED") action, which is also known as an eviction action. "A forcible entry and detainer action is a statutory remedy...." *CS/RW Westlake Indoor Storage, L.L.C. v. Kesi, L.L.C.*, No. 102535, 2015 WL 6819281, ¶ 13 (Ohio App., 8th Dist., Nov. 5, 2015). *Accord Egner v. Egner*, 24 Ohio App.3d 171, 172, 493 N.E.2d 999 (11th Dist. 1985). It is a remedy unknown at common law and thus purely statutory. *Fodor v. First Nat'l Supermarkets, Inc.*, 63 Ohio St.3d 489, 494, 589 N.E.2d 17 (1992).

2. Purpose of an Eviction Action

"The purpose of the forcible entry and detainer statute is to provide a summary, extraordinary, and speedy method for the recovery of the possession of real estate" *Cuyahoga Metro. Hous. Auth. v. Jackson*, 67 Ohio St.2d 129, 131, 423 N.E.2d 177 (1981) (quoting 24 Ohio Jur.2d Forcible Entry and Detainer § 2, at 455 (1957)). *Accord State ex rel. Weiss v. Hoover*, 84 Ohio St.3d 530, 533, 705 N.E.2d 1227 (1999); *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 45 Ohio St.3d 51, 55, 543 N.E.2d 483 (1989).

An FED action "determines the right to immediate possession of the property and nothing else." *Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.*, 67 Ohio St.2d 19, 25 n.11, 423 N.E.2d 1070 (1981). *Accord Hussain v. Sheppard*, No. 14AP-686, 2015 WL 915467, ¶ 6 (Ohio App., 10th Dist., Feb. 24, 2015); *Miami Valley Hous. v. Jackson*, No. 25020, 2012 WL 5382834, ¶ 5 (Ohio App., 2nd Dist., Nov. 2, 2012); *Long v. MacDonald*, No. 3-02-10, 2002 WL 31007937, ¶ 8 (Ohio App., 3rd Dist., Sept. 9, 2002).

The ultimate issue in any FED action is solely whether the party who commenced the action has a present right to possession of the real property. *Fodor v. First Nat'l Supermarkets, Inc.*, 63 Ohio St.3d 489, 494, 589 N.E.2d 17 (1982); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *9 (Ohio App., 2nd Dist., June 4, 1999); *Fenner v. Parkinson*, 69 Ohio App.3d 210, 213, 590 N.E.2d 339 (10th Dist. 1990); *Cent. Park Place v. McDowell*, 38 Ohio App.2d 29, 31, 311 N.E.2d 533

(8th Dist. 1974).

A party's right to present possession is not necessarily based on ownership of the title to the property. For example, a lessor, as defined in R.C. 1923.01(C)(2), may bring an FED action even though the lessor is not the owner of the title to the property. *KDI Mgmt. Servs., Inc. v. Enerchem, Inc.*, No. C-960587, 1997 WL 119898 (Ohio App., 1st Dist., Mar. 19, 1997). For a discussion on the real party in interest standard in an FED action, see Section II.CC, below.

An FED action "is not an action to determine ownership of the title to the property." *Behrle v. Beam*, 6 Ohio St.3d 41, 44, 451 N.E.2d 237 (1983). *Accord Tucker v. Pfirsch*, No. 2014-CA-0036, 2014 WL 3540883, ¶ 24 (Ohio App., 5th Dist., July 16, 2014). "Forcible entry and detainer actions determine neither legal nor equitable title." *Brainard v. Cardwell*, Nos. 75870,75896, 2000 WL 897793, at *2 (Ohio App., 8th Dist., July 6, 2000). When the right to present possession is based on ownership of the title and a dispute exists as to which party holds present record title, it may create jurisdictional issues in the FED action. See Section I.L.3, below.

3. Parties in an Eviction Action – Not Limited to Landlord Claims Against Tenants

a. Overview

"[T]he [FED] statute ... does not on its face limit the class of defendants to 'tenants' and the class of plaintiffs to 'landlords'...." *Bio Energy (Ohio), LLC v. Phoenix Golf Links, Ltd.*, No. 12AP-171, 2012 WL 4470638, ¶ 11 (Ohio App., 10th Dist., Sept. 27, 2012).

"Applying basic principles of statutory construction, there is no restriction in R.C. 1923.01(A) upon who may bring an FED action, while under R.C. 1923.02 there is a defined class of defendants against whom it may be brought." *Id.*, ¶ 13. *Accord CS/RW Westlake Indoor Storage, L.L.C. v. Kesi, L.L.C.*, No. 102535, 2015 WL 6819281, ¶ 15 (Ohio App., 8th Dist., Nov. 5, 2015).

A tenant may bring an FED action against "a landlord who is otherwise one of the permissible defendants defined in R.C. 1923.02(A)," against a competing co-tenant, against a squatter, or against others. *Bio Energy*, 2012 WL 4470638, ¶ 15.

A property owner may bring an FED action against any non-tenant occupier of the property who is "without color of title." R.C. 1923.02(A)(5). *E.g., Hardin v. Hardin*, No. E-18-001, 2019 WL 259092 (Ohio App., 6th Dist., Jan. 18, 2019) (occupancy by

permission of the owner); *Deutsche Bank Nat'l Trust Co. v. Lovette*, No. 106546, 2018 WL 6266863 (Ohio App., 8th Dist., Nov. 29, 2018) (tenancy at sufferance extinguished by judicial foreclosure sale); *White v. Bergman*, No. 15-COA-010, 2015 WL 5783088 (Ohio App., 5th Dist., Oct. 2, 2015) (guest); *Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328 (8th Dist. 2010) (live-in caregiver, without rent or exclusive use); *Executive Bus. Ctrs., Inc. v. TransPacific Mfg., Ltd.*, No. L-08-1060, 2009 WL 282383 (Ohio App., 6th Dist., Feb. 6, 2009) (office service agreement); *Estate of Wos v. Wos*, No. L-05-1408, 2006 WL 2383966 (Ohio App., 6th Dist., Aug. 18, 2006) (temporary occupancy, with decedent's permission but without rent).

However, the property owner in these circumstances is not required to use an FED action to recover possession of the property. *Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328 (Cuyahoga Cty. 2010). *Cf. Northfield Park Assocs. v. Northeast Ohio Harness*, 36 Ohio App.3d 14, 521 N.E.2d 466 (8th Dist. 1987) (commercial tenancy).

In addition, by express statutory authority: a unit owners association may bring an FED action against a tenant of a unit owner, for a violation of the deed restrictions or condominium rules, R.C. 5311.19(B)(1);¹ and, with respect to land installment contracts, the vendor may bring an FED action against the vendee in certain circumstances (R.C. 5313.07,.08), which are discussed in Section XXIII.E.2, below.

Also, R.C. 1923.02(A)(6) permits an FED action “[i]n any other case of the unlawful and forcible detention of lands or tenements.”

One court has held that R.C. 1923.02(A)(6) is not authority for a long-term acute care hospital to bring an FED action against a patient who is ready for discharge. *Regency Hosp. of Columbus v. Thomas*, No. 2016-CVG-004483 (Ohio Mun., Franklin Cty., Mar. 8, 2016).

In any FED action, a court may, pursuant to the plaintiff's request, enter an order evicting one (or more) but not all of the occupiers of the premises. *White v. Bergman*, No. 15-COA-010, 2015 WL 5783088 (Ohio App., 5th Dist., Oct. 2, 2015). *See also Sanders v. Favors*, No. C-950304, 1995 WL 763681 (Ohio App., 1st Dist., Dec. 29, 1995). In *Bergman*, the owner evicted his daughter's guest but not his daughter.

¹ In these FED actions, the unit owners association must bring the action in the name of the unit owner, and as the unit owner's agent. *Homeowners Ass'n at Arrow-Head Bay v. Fidoe*, No. 12-MA-136, 2014 WL 1384577 (Ohio App., 7th Dist., Mar. 31, 2014).

b. Applicability to Housing Cooperatives

An FED action may be used to evict a member of a housing cooperative, notwithstanding the member's ownership interest.² *Gvozdanovic v. Woodford Corp.*, 139 Ohio App.3d 11, 742 N.E.2d 1145 (1st Dist. 2000). *See also* *Murphy v. Brooklyn Acres Mut. Homes, Inc.*, No. 68593, 1996 WL 284856 (Ohio App., 8th Dist., May 30, 1996); *Cent. Park Place v. McDowell*, 38 Ohio App.2d 29, 311 N.E.2d 533 (8th Dist. 1974).

"A [cooperative] member is both a landlord by virtue of being an owner of the cooperative and a tenant by virtue of the proprietary lease." *Gvozdanovic*, 139 Ohio App.3d at 23. *See also* *Kohler v. Snow Vill., Inc.*, 16 Ohio App.3d 350, 352-53, 475 N.E.2d 1298 (8th Dist. 1984).

However, the member's right of possession depends entirely upon the terms of the proprietary lease. *Gvozdanovic*, 139 Ohio App.3d at 28.

Therefore, if the member breaches the proprietary lease, the cooperative may bring an FED action against the member under R.C. 1923.02(A)(6), which permits an FED action "[i]n any other case of the unlawful and forcible detention of lands or tenements." *Gvozdanovic*, 139 Ohio App.3d at 28.

4. Action at Law

An FED action "is one at law based upon contract." *Behrle v. Beam*, 6 Ohio St.3d 41, 44, 451 N.E.2d 237 (1983). Consequently, a municipal court has jurisdiction under R.C. 1901.18(C) to hear an equity defense in an FED action. *Id.*; *Terra Mgmt. Co. v. Bishop*, No. CA-9919, 1987 WL 5312, at *1 (Ohio App., 2nd Dist., Jan. 2, 1987); *Lauch v. Monning*, 15 Ohio App.2d 112, 114, 239 N.E.2d 675 (1st Dist. 1968). If the FED action "is based upon a written lease, the municipal court has jurisdiction pursuant to R.C. 1901.18(C) to hear and determine all legal and equitable remedies necessary for a complete determination of the rights of the parties to the contract." *Brown v. Brown*, No. 04-CA-000018, 2005 WL 914490, ¶ 21 (Ohio App., 5th Dist., Apr. 14, 2005). For additional discussion on the equity defense in FED actions, see Sections II.BB and XX.C.2, below.

² Alternatively, an ejectment action under R.C. 5303.03 may be used to evict a member of a housing cooperative. *Gvozdanovic v. Woodford Corp.*, 139 Ohio App.3d 11, 742 N.E.2d 1145 (1st Dist. 2000).

B. Application of the Ohio Rules of Civil Procedure

Civil Rule 1(C) establishes, for forcible entry and detainer (“FED”) actions and other special statutory proceedings, two alternative standards for determining which provisions of the Ohio Rules of Civil Procedure apply to the proceeding.³

The first standard is that the Civil Rules apply to FED actions (and other special statutory proceedings) except “to the extent that they would by their nature be clearly inapplicable.” Ohio R. Civ. P. 1(C). A Civil Rule, or a provision of a Civil Rule, is clearly inapplicable only “when [its] use will alter the basic statutory purpose for which

³ When a complaint includes an FED claim and a monetary claim, Civil Rule 1(C) applies to the FED claim, but generally not to the monetary claim. See *Glazier v. Hall*, No. CA-1076, 1994 WL 477994, at *2 (Ohio App., 5th Dist., Aug. 18, 1994); *Borges v. Everdry Waterproofing of Wapakoneta, Inc.*, 95 Ohio App.3d 175, 177-78, 642 N.E.2d 16 (3rd Dist. 1994). All of the Civil Rules should apply to these monetary claims. But, as a result of a few court decisions, an issue now exists on whether Civil Rules 4.1 and 4.6 apply to these monetary claims. For a discussion on this issue, see Section I.G.3.c, below.

the special procedure was originally provided.”⁴ *Woodman v. Tubbs Jones*, 103 Ohio App.3d 577, 583, 660 N.E.2d 520 (8th Dist. 1995). *Accord Robinson v. B.O.C. Group, Gen. Motors Corp.*, 81 Ohio St.3d 361, 370, 691 N.E.2d 667 (1998); *Tower City Props. v. Cuyahoga County Bd. of Revisions*, 49 Ohio St.3d 67, 69, 551 N.E.2d 122 (1990); *Price v. Westinghouse Elec. Corp.*, 70 Ohio St.2d 131, 133, 435 N.E.2d 1114 (1982).

The clearly inapplicable standard is “a rule of inclusion rather than exclusion.” *Price*, 70 Ohio St.2d at 132. *Accord Robinson*, 81 Ohio St.3d at 370; *Tower City Props.*, 49 Ohio St.3d at 69. “[T]he Civil Rules [are] applicable to special statutory proceedings adversary in nature, unless there is good and sufficient reason not to apply the rules.” Ohio R. Civ. P. 1, Staff Notes. *See also Ramsdell v. Ohio Civil Rights*

⁴ Some court decisions erroneously hold that a conflict between a statutory provision and a Civil Rule provision per se makes the Civil Rule provision clearly inapplicable under Civil Rule 1(C). *See, e.g., State ex rel. Fowler v. Smith*, 68 Ohio St.3d 357, 360, 626 N.E.2d 950 (1993); *Alex-Bell Oxford Ltd. P'ship v. Woods*, No. 16038, 1998 WL 289028, at *3 (Ohio App., 2nd Dist., June 5, 1998); *In re Foreclosure of Liens for Delinquent Land Taxes v. Parcels of Land, Etc.*, No. 96-APE02-160, 1996 WL 421862, at *3 (Ohio App., 10th Dist., July 25, 1996). When such a conflict exists, the court is obligated under Civil Rule 1(C) to determine whether application of the Civil Rule provision would alter or frustrate the purpose of the special statutory proceeding. *See, e.g., State ex rel. Yeagley v. Harris*, 68 Ohio St.3d 136, 137, 624 N.E.2d 702 (1993); *State ex rel. Millington v. Weir*, 60 Ohio App.2d 348, 349, 397 N.E.2d 770 (10th Dist. 1978); *Talley v. Warner*, 99 Ohio Misc.2d 42, 715 N.E.2d 635 (Ohio Mun., Cleveland, Hous. Div., 1999). In this determination, the conflict is a relevant, but not determinative, factor. *Id.* If the Civil Rule provision does not alter or frustrate the purpose of the special statutory proceeding, the Civil Rule provision applies, notwithstanding the conflicting statutory provision. *Id.*

Likewise, some statutes purport to override certain Civil Rules for their special statutory proceedings. *E.g.*, R.C. 1925.16 (“Except as inconsistent procedures are provided in this chapter ..., all proceedings in the small claims division of a municipal court are subject to the Rules of Civil Procedure”); R.C. 3111.08(A) (parentage actions “brought pursuant to sections 3111.01 to 3111.18 of the Revised Code ... shall be governed by the Rules of Civil Procedure unless a different procedure is specifically provided by those sections”). If a Civil Rule applies to a special statutory proceeding under the Civil Rule 1(C) standards, any provision in the statute purporting to establish a procedure that is in conflict with the Civil Rule is a violation of the Supreme Court’s rule making authority under Article IV, Section 5(B) of the Ohio Constitution. *See Hiatt v. S. Health Facilities, Inc.*, 68 Ohio St.3d 236, 237, 626 N.E.2d 71 (1994). However, if a Civil Rule does not apply to a special statutory proceeding under the Civil Rule 1(C) standards, any provision in the statute purporting to establish a procedure that is in conflict with the Civil Rule is valid because, in such cases, the Supreme Court has acceded its constitutional rulemaking authority to the General Assembly. *George Shima Buick, Inc. v. Ferencak*, No. 98-L-202, 1999 WL 1313675, at *2 (Ohio App., 11th Dist., Dec. 17, 1999).

Comm'n, 56 Ohio St.3d 24, 27, 563 N.E.2d 285 (1990); *Miller v. Strausbaugh*, No. 4-2000-28, 2001 WL 475332, at *1 (Ohio App., 3rd Dist., May 4, 2001); *Skiles v. Dearth*, No. 2000-CA-30, 2000 WL 1838747, at *2 (Ohio App., 2nd Dist., Dec. 15, 2000).

The determination as to which provisions of the Civil Rules apply under the clearly inapplicable standard is made on a rule-by-rule basis. *Robinson*, 81 Ohio St.3d at 370; *Tower City Props.*, 49 Ohio St.3d at 69; *Price*, 70 Ohio St.2d at 132.

With respect to FED actions, this determination is generally based on whether application of the Civil Rule would frustrate the summary nature of FED actions. *E.g.*, *Miele v. Ribovich*, 90 Ohio St.3d 439, 441-44, 739 N.E.2d 333 (2000); *Colonial Am. Dev. Co. v. Griffith*, 48 Ohio St.3d 72, 73, 549 N.E.2d 513 (1990); *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 45 Ohio St.3d 51, 54, 543 N.E.2d 483 (1989); *Cuyahoga Metro. Hous. Auth. v. Jackson*, 67 Ohio St.2d 129, 130-32, 423 N.E.2d 177 (1981). The focus of the courts in these cases has been whether the application of a procedural rule “would delay the ultimate resolution of an action.” *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 30 (Ohio App., 10th Dist., 2020).

Generally, the civil rules that govern the conduct of the trial apply to FED actions. *Id.*, ¶¶ 29-32. The reason is that, “while a forcible entry and detainer action is designed to provide an expedited outcome, nothing in the law provides for or suggests an abbreviated or summary trial.” *Id.*, ¶ 29.

The second standard is that a Civil Rule, or a provision of a Civil Rule, applies to FED actions (and other special statutory proceedings) whenever the statute “provides for procedure by a general or specific reference to the statutes governing procedure in civil actions.” Ohio R. Civ. P. 1(C). For example, under this general or specific reference standard, Civil Rules 4.1 and 4.6 apply to FED actions filed under R.C. 1923.02(A)(6)(a),(b), because R.C. 1923.051(A)(1) requires “the service and return of the summons in the action in accordance with the Rules of Civil Procedure.”

Court decisions on the applicability of specific Civil Rules to FED actions are set forth below and in the sections referenced in the Civil Rule headings below.

Civil Rules 4.1(A) and 4.6: see Section I.G.3.b, below.⁵

Civil Rule 6(A) (R.C. 1923.04 notice to vacate): see Section I.C.3.b, below.⁶

Civil Rule 9(A): applicable

GMS Mgmt. v. Axe, 5 Ohio Misc.2d 1, 449 N.E.2d 43 (Ohio Mun., Cleveland Heights, 1982)

Civil Rule 10(C): applicable:

Siegler v. Batdorff, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979)

Civil Rule 10(D): see Section I.E.2.b, below.

Civil Rule 13(A) (FED claim and monetary claim): see Section I.I.2, below.

Civil Rule 13(A) (FED claim only): see Section I.I.2, below.

Civil Rule 13(B): see Section I.I.1, below.

5 As revised effective March 30, 1999, and September 29, 1999, R.C. 1923.06 purports to establish procedures for service of process in FED actions, some of which are in conflict with the Civil Rules. The court decisions that are discussed in Section I.G.3.b., below, address this revised R.C. 1923.06.

Between 1987 and 1999, R.C. 1923.06(A) provided that service of process in FED actions shall be “as in the Rules of Civil Procedure.” Prior to 1987, R.C. 1923.06(A) provided that such service shall be “as in other cases.” Pursuant to the “general or specific reference” standard in Civil Rule 1(C), both of these former R.C. 1923.06(A) provisions made Civil Rules 4.1(A) and 4.6 applicable to FED actions. *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292 (Ohio App., 8th Dist., Jan. 18, 1996); *Akron Metro. Hous. Auth. v. Thompson*, No. 14428, 1990 WL 106217 (Ohio App., 9th Dist., July 25, 1990); *Tucker v. Grigsby*, No. CA-3154, 1985 WL 4492 (Ohio App., 5th Dist., Dec. 13, 1985); *Real Estate Servs., Inc. v. Leigh*, No. 77AP-130, 1977 Ohio App. LEXIS 8899 (Ohio App., 10th Dist., June 2, 1977); *Burton v. Murry*, 8 Ohio Op.3d 179 (Ohio App., 8th Dist., 1973); *Cotterman v. Fahrig*, 55 Ohio App.2d 15, 378 N.E.2d 742 (2nd Dist. 1972).

⁶ The revisions of R.C. 1923.06(A), effective March 30, 1999, and September 29, 1999, increased to seven days the minimum time period between service of process and trial. Therefore, the Civil Rule 6(A) provision for computing time periods of less than seven days is no longer relevant to this R.C. 1923.06(A) time period.

Prior to these 1999 revisions, this R.C. 1923.06(A) time period was five days, the computation of which was subject to the Civil Rule 6(A) provision for time periods of less than seven days. *Stewart v. Hughes*, No. 88-CVG-265 (Ohio Mun., Jackson Cty., July 20, 1988); *Yozwiak v. McCabe*, No. 87-CVG-630 (Ohio Mun., Girard, Aug. 19, 1987).

Civil Rule 13(J): see Section I.L.1, below.

Civil Rule 17(A) see Section II.CC, below.

Civil Rule 18(A): applicable:

Cuyahoga Metro. Hous. Auth. v. Jackson, 67 Ohio St.2d 129, 423 N.E.2d 177 (1981) (dicta)

Marvin v. Stemen, 68 Ohio App.2d 26, 426 N.E.2d 205 (6th Dist. 1980)

Civil Rule 19(A): applicable:

Siegler v. Batdorff, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979)

Civil Rule 38(B) (time for filing a jury demand): see Section I.J.2, below.

Civil Rule 41(A): applicable:

Graham v. Pavarini, 9 Ohio App.3d 89, 458 N.E.2d 421 (8th Dist. 1983)

Civil Rule 42(B): applicable:

Siegler v. Batdorff, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979)

Swenson's Ice Cream v. Swenson's, Inc., 1 Ohio B. 324 (Ohio C.P., Cuyahoga Cty., 1982)

Civil Rule 43: applicable:

T&R Props., Inc. v. Wimberly, 158 N.E.3d 137, 2020-Ohio-4279 (Ohio App., 10th Dist., 2020)

Civil Rule 52: see Section I.N.1., below.

Civil Rule 53(D) (content of magistrate's decision): see Section I.N.1, below.

Civil Rule 53(D) (objections to magistrate's decision): see Section I.N.3, below.⁷

Civil Rule 53(D) (objection as appeal prerequisite): see Section I.N.3., below.

Civil Rule 53(D) (automatic stay): see Section I.N.4, below.

⁷ The July 1, 2006, amendments transferred Civil Rule 53(E) provisions to Civil Rule 53(D). For the Civil Rule 53(D) court decisions listed in the text: the term "pre-2006 Civil Rule 53(E)" means Civil Rule 53(E) immediately before the July 1, 2006, amendments to Civil Rule 53; and the term "pre-1995 Civil Rule 53(E)" means Civil Rule 53(E) immediately before the July 1, 1995, amendments to Civil Rule 53(E).

Civil Rule 54(B): see Section I.Q.2, below.

Civil Rule 55: see Section I.M.6, below.

Civil Rule 56: applicable:

Burdge v. Welsh, No. 82AP-846, 1983 WL 3367 (Ohio App., 10th Dist., Feb. 22, 1983)

Siegler v. Batdorff, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979)

Caserta v. Caserta, No. CA-4550, 1977 WL 200955 (Ohio App., 5th Dist., May 18, 1977)

Civil Rule 59: see Section I.P.1, below.

Civil Rule 60(B): see Section I.P.2, below.

C. Notice to Vacate, R.C. 1923.04

1. General Background

a. Notice for Commencing Eviction Action

Proper service of an R.C. 1923.04 notice to vacate the premises (“notice to vacate”) is a condition precedent to the commencement of any eviction action. *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168, ¶ 11 (Ohio App., 6th Dist., May 15, 2015); *Ebbing v. Mathis*, No. CA2012-10-201, 2013 WL 2423702, ¶ 11 (Ohio App., 12th Dist., June 3, 2013); *Eberly v. Irons*, No. 2006AP-01-0004, 2007 WL 2351644, ¶ 36 (Ohio App., 5th Dist., Aug. 9, 2007); *Classic A Props. v. Brown*, No. 02-CA-2868, 2003 WL 22461816, ¶ 24 (Ohio App., 4th Dist., Sept. 30, 2003); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169, ¶ 6 (Ohio App., 8th Dist., June 19, 2003); *Gvozdanovic v. Woodford Corp.*, 139 Ohio App.3d 11, 30, 742 N.E.2d 1145 (1st Dist. 2000); *Shimko v. Marks*, 91 Ohio App.3d 458, 463, 632 N.E.2d 990 (5th Dist. 1993); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 9, 492 N.E.2d 841 (8th Dist. 1985); *Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 290, 444 N.E.2d 1337 (2nd Dist. 1982); *Dayton Metro. Hous. Auth. v. Russell*, 16 Ohio Op.3d 94, 95-96 (Ohio App., 2nd Dist., 1980); *Sternberg v. Washington*, 113 Ohio App. 216, 221, 177 N.E.2d

525 (9th Dist. 1960).⁸

This notice requirement is in addition to whatever notice may be necessary to effect a termination of the lease or tenancy. *Gvozdanovic v. Woodford Corp.*, 139 Ohio App.3d 11, 29, 742 N.E.2d 1145 (1st Dist. 2000); *Cincinnati Metro. Hous. Auth. v. McCollum*, 45 Ohio App.2d 197, 200, 341 N.E.2d 857 (1st Dist. 1975).

b. Jurisdictional Requirement

If a landlord fails to serve a notice to vacate or serves a notice to vacate but its content or the service fails to comply with R.C. 1923.04, the trial court lacks subject-matter jurisdiction over the eviction action. *Riley v. Parker*, No. 109600, 2021 WL 2012263, ¶ 12 (Ohio App., 8th Dist., May 20, 2021); *UMH OH Buckeye II, L.L.C. v. DeCarlo*, No. 108912, 2019 WL 6606376, ¶ 6 (Ohio App., 8th Dist., Dec. 5, 2019); *Deutsche Bank Nat'l Trust Co. v. Lovette*, No. 106546, 2018 WL 6266863, ¶ 27 (Ohio App., 8th Dist., Nov. 29, 2018); *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168, ¶¶ 11, 17 (Ohio App., 6th Dist., May 15, 2015); *Ebbing v. Mathis*, No. CA2012-10-201, 2013 WL 2423702, ¶ 11 (Ohio App., 12th Dist., June 3, 2013); *Chinnock v. Kokinda*, No. 10-CA-009863, 2011 WL 860417, ¶ 8 (Ohio App., 9th Dist., Mar. 14, 2011); *Mularcik v. Adams*, No. 03-JE-17, 2004 WL 549489, ¶ 21 (Ohio App., 7th Dist., Mar. 18, 2004); *Classic A Props. v. Brown*, No. 02-CA-2868, 2003 WL 22461816, ¶ 24 (Ohio App., 4th Dist., Sept. 30, 2003); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169, ¶ 5 (Ohio App., 8th Dist., June 19, 2003); *Youngstown Metro. Hous. Auth. v. Higgins*, No. 99-CA-81, 2000 WL 1159418, at *2 (Ohio App., 7th Dist., Aug. 4, 2000); *Godbelt v. McClain*, No. 94-CA-0066, 1995 WL 768531, at *1 (Ohio App., 5th Dist., Nov. 20, 1995); *MLR Props., Inc. v. Hemmelgarn*, No. L-94-349, 1995 WL 504629, at *3 (Ohio App., 6th Dist., Aug. 25, 1995); *Gallia Metro. Hous. Auth. v. Fry*, No. 93-CA-22, 1994 WL 412403, at *2 (Ohio App., 4th Dist., Aug. 2, 1994); *Lucas Metro. Hous. Auth. v. M. Shouman Supermarkets, Inc.*, No. L-93-244,

⁸ See also *Simco Mgmt. Corp. v. Snyder*, No. 98-CA-210, 2000 WL 309396, at *1 (Ohio App., 7th Dist., Mar. 20, 2000); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *6 (Ohio App., 2nd Dist., June 4, 1999); *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456, at *2 (Ohio App., 2nd Dist., Feb. 19, 1999); *Godbelt v. McClain*, No. 94-CA-0066, 1995 WL 768531, at *1 (Ohio App., 5th Dist., Nov. 20, 1995); *Gallia Metro. Hous. Auth. v. Fry*, No. 93-CA-22, 1994 WL 412403, at *2 (Ohio App., 4th Dist., Aug. 2, 1994); *Sheridan Manor Apts. v. Carter*, No. 92-CA-4, 1992 WL 388539, at *1 (Ohio App., 4th Dist., Dec. 22, 1992); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118, at *5 (Ohio App., 4th Dist., June 28, 1988).

1994 WL 110844, at *2 (Ohio App., 6th Dist., Mar. 31, 1994); *Crigger v. Shaw*, No. E-93-62, 1994 WL 68499, at *2 (Ohio App., 6th Dist., Feb. 25, 1994); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118, at *5 (Ohio App., 4th Dist., June 28, 1988); *Gibbes v. Freeman*, No. 52745, 1987 WL 16530, at *2 (Ohio App., 8th Dist., Sept. 3, 1987); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 8-9, 492 N.E.2d 841 (8th Dist. 1985); *Sternberg v. Washington*, 113 Ohio App. 216, 221, 177 N.E.2d 525, (9th Dist. 1960).⁹ *But see Sharrock v. Bond*, No. 2003-CA-0102, 2004 WL 2035242 (Ohio App., 5th Dist., Sept. 9, 2004) (2-1 decision) (a proper notice to vacate is an essential element of landlord's claim, but not a requirement for subject-matter jurisdiction); *Schlenk v. Cornette*, No. 12416, 1991 WL 108703 (Ohio App., 2nd Dist., June 21, 1991) (a defective notice to vacate is grounds to dismiss the eviction action but does not deprive the trial court of subject-matter jurisdiction); *J & M Trailer Court v. Dissette*, No. 1556, 1987 WL 16917 (Ohio App., 9th Dist., Sept. 9, 1987) (the requirement to serve the notice to vacate is a jurisdictional requirement; the requirement not to file the complaint until at least three days thereafter is not a jurisdictional requirement).

c. Service of a Second Notice to Vacate

When a landlord serves two notices to vacate before filing an eviction complaint, the second notice to vacate waives and supersedes the first notice to vacate. *See Andrus v. Dunbar*, 178 Vt. 554, 878 A.2d 245 (2005); *28 Mott St. Co. v. Summit Import Corp.*, 64 Misc.2d 860, 316 N.Y.S.2d 259 (Civ. Ct. 1970). Therefore, the second notice to vacate renders moot any service or content defect and any waiver (via future rent acceptance) of the first notice to vacate.

When a landlord voluntarily dismisses without prejudice a first eviction action, the landlord must serve a new notice to vacate before filing a second eviction action against

⁹ *See also McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021); *Kaseman v. Maddux*, No. 21-CVG-02194 (Ohio Mun., Licking Cty., Nov. 1, 2021); *Dte/Earthscape Land & Constr. LLC v. Marbury*, Ohio Mun., Garfield Heights, July 14, 2020); *Powers v. Arnold*, No. 03-CVG-01890 (Ohio Mun., Lancaster, Aug. 26, 2003); *Barnebey v. Oliver*, No. 99-CVG-00026 (Ohio Mun., Lancaster, Jan. 27, 1999); *Labaki v. Carter*, No. 96-CVG-00558 (Ohio Mun., Zanesville, July 1, 1996); *Williams v. Mentzer*, No. 94-CVG-238 (Ohio Mun., Marietta, May 17, 1994); *Oliver v. Montgomery*, No. 94-CVG-0049 (Ohio Mun., Cleveland Heights, Feb. 24, 1994); *Cuyahoga Metro. Hous. Auth. v. Mallett*, No. 93-CVG-09659 (Ohio Mun., Cleveland, Hous. Div., Jan. 7, 1994); *Tompkins v. Goins*, No. 93-CVG-01097 (Ohio Mun., Zanesville, Dec. 13, 1993).

the tenant. *Apt. Mgmt., Inc. v. Woods*, No. 05-CVG-650 (Ohio Mun., Lorain, June 1, 2005). The new notice to vacate renders moot any service or content defect and any waiver (via rent acceptance) of the notice to vacate served for the first eviction action. *Morrow v. Gates*, No. CA91-11-021, 1992 WL 156116, at *2 (Ohio App., 12th Dist., June 29, 1992).

Likewise, when a court dismisses a first eviction action due to the landlord's waiver (via future rent acceptance) of the notice to vacate, the landlord must serve a new notice to vacate before filing a second eviction action against the tenant. See *N. Face Props., Inc. v. Lin*, No. CA2010-09-083, 2013 WL 2423802, ¶ 17 (Ohio App., 12th Dist., June 3, 2013).

Also, when a landlord serves the tenant with a second notice to vacate and the service of the second notice is subsequent to the landlord's filing of the eviction complaint, the second notice to vacate waives the first notice to vacate. *RLJ Mgmt. Co. Inc. v. Lewis*, No. 2020-CVG-33669 (Ohio Mun., Franklin Cty., June 2, 2021). As a result, in these circumstances: (1) the landlord is attempting to rely on a notice to vacate that was not served prior the filing of the complaint; and (2) therefore, the court lacks subject-matter jurisdiction over the eviction action. *Id.*; *DePalmo v. George*, No. 88-CVG-0572 (Ohio Mun., Licking Cty., Aug. 23, 1988). The proper disposition of the eviction action is a dismissal either by the landlord or the court, with the landlord retaining the option to file a second eviction action. *Id.*

2. Content

a. Written Notice

The notice to vacate must be in writing. R.C. 1923.04(A).

b. Name of the Prospective FED Plaintiff

Under R.C. 1923.04(A), the notice to vacate must be signed by or otherwise contain the name of the party who will be the plaintiff in the complaint, if an eviction action is thereafter commenced. *Riley v. Parker*, No. 109600, 2021 WL 2012263 (Ohio App., 8th Dist., May 20, 2021); *UMH OH Buckeye II, L.L.C. v. DeCarlo*, No. 108912, 2019 WL 6606376 (Ohio App., 8th Dist., Dec. 5, 2019); *Gabriel v. Lakeside Tavern of Dayton, Inc.*, No. 6578, 1980 Ohio App. LEXIS 12894, at *5-7 (Ohio App., 2nd Dist., May 22, 1980); *Furr v. Patterson*, No. 2021-CVG-004661 (Ohio Mun., Cleveland, Hous. Div., June 22, 2021); *Flipping Lake County, Ltd. v. Egan*, No. 21-CVG-0305 (Ohio Mun., Euclid, May 12, 2021); *128 Fleek Newark LLC v. Hassett*,

No. 20-CVG-02022 (Ohio Mun., Licking Cty., Oct. 21, 2020); *KMW III Ltd. v. Falacienski*, No. 2020-CVG-01333R (Ohio Mun., Portage Cty., Sept. 14, 2020); *Tr. of Kokosing Valley Trust v. Myers*, No. 13-CVG-00428 (Ohio Mun., Mt. Vernon, Aug. 19, 2013). See also *Shurtz Mgmt., Inc. v. Perry*, No. 93-CA-04, 1993 WL 290001 (Ohio App., 5th Dist., July 26, 1993) (valid notice where the notice to vacate is signed in the name of the plaintiff corporation, without the name of an officer or agent of the plaintiff corporation); *Morrow v. Gates*, No. CA91-11-021, 1992 WL 156116 (Ohio App., 12th Dist., June 29, 1992) (valid notice where the notice to vacate is signed only by plaintiff husband but it includes the names of plaintiff husband and plaintiff wife).

If the notice to vacate does not meet this requirement, it is an invalid notice and, therefore, the court is without subject-matter jurisdiction over the eviction action. *Id.* For a discussion on the persons who may be the plaintiff in an eviction action, see Section II.CC, below.

c. Statement to Leave – Statutory Language

The notice to vacate must “notify the adverse party to leave the premises.” R.C. 1923.04(A).

R.C. 1923.04(A) prescribes certain language¹⁰ for so notifying the tenant, when a landlord seeks to recover residential premises.¹¹ The notice to vacate may not paraphrase the statutory language. *Mularcik v. Adams*, No. 03-JE-17, 2004 WL 549489 (Ohio App., 7th Dist., Mar. 18, 2004). Rather, it must include the statutory language verbatim. *Id.*

The notice to vacate must contain the statutory language in a conspicuous manner. This “conspicuous manner” requirement is not defined in R.C. 1923.04(A).

Two appellate districts have relied on the Uniform Commercial Code (R.C.

¹⁰ The language required by R.C. 1923.04(A) is: “You are being asked to leave the premises. If you do not leave, an eviction action may be initiated against you. If you are in doubt regarding your legal rights and obligations as a tenant, it is recommended that you seek legal assistance.” R.C. 1923.04(A).

¹¹ If the prospective FED plaintiff is not seeking to recover residential premises, R.C. 1923.04(A) does not require any particular language for notifying the adverse party to leave. For example, “[a]lthough the words ‘leave the premises’ appear in R.C. 1923.04(A), the General Assembly has not indicated that these are the *only* words that a commercial landlord can use to instruct the tenant to vacate the property; rather, R.C. 1923.04 merely requires that a landlord ‘notify the adverse party to leave the premises ***.’” *Maggiore v. Kovach*, 101 Ohio St.3d 184, 803 N.E.2d 790, ¶ 26 (2004).

1301.01(J)) definition of “conspicuous,” namely: “a term or clause ... written [so] that a reasonable person against whom it is to operate ought to have noticed it.” *Chinnock v. Kokinda*, No. 10-CA-009863, 2011 WL 860417, ¶ 6 (Ohio App., 9th Dist., Mar. 14, 2011); *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456, at *3 (Ohio App., 2nd Dist., Feb. 19, 1999); *Adm’r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 276, 535 N.E.2d 369 (9th Dist. 1987). See also *Dayton Metro. Hous. Auth. v. Russell*, 16 Ohio Op.3d 94 (Ohio App., 2nd Dist., 1980).

Court decisions provide additional guidance for determining whether a notice to vacate contains the statutory language in a conspicuous manner.

Where the entire notice to vacate, including the statutory language, is in the same type, color, and font, the statutory language is not conspicuous. *Chinnock v. Kokinda*, No. 10-CA-009863, 2011 WL 860417 (Ohio App., 9th Dist., Mar. 14, 2011); *Dayton Metro. Hous. Auth. v. Russell*, 16 Ohio Op.3d 94 (Ohio App., 2nd Dist., 1980); *Cherry Lee Apts. v. Walcott*, No. 03-CVG-00510 (Ohio Mun., Licking Cty., Apr. 25, 2003).

Where the entire notice to vacate, including the statutory language, is in upper case, generally the statutory language is not conspicuous. *Sahara Apts. v. Brown-Austin*, No. CA-9028, 1993 WL 221253 (Ohio App., 5th Dist., June 7, 1993); *Owner’s Mgmt. Co. v. Willis*, No. WD-87-59, 1988 WL 13214 (Ohio App., 6th Dist., Feb. 12, 1988) (dicta); *Queen v. Blakeman*, No. 07-CVG-00808 (Ohio Mun., Gallipolis, Dec. 13, 2007); *Neighbors Organized for Action in Hous. v. Smith*, No. 91-CVG-11983 (Ohio Mun., Cleveland, Hous. Div., July 26, 1991), *aff’d on other grounds*, No. 62219, 1992 WL 25305 (Ohio App., 8th Dist., Feb. 13, 1992); *Cody v. Bettinger*, No. 96-CVG-00965 (Ohio Mun., Marietta, Jan. 3, 1997).

Where the entire notice to vacate, including the statutory language, is in upper case type, but the statutory language is set off from the body of the notice by two lines of asterisks, the statutory language is conspicuous. *Owner’s Mgmt. Co. v. Willis*, No. WD-87-59, 1988 WL 13214 (Ohio App., 6th Dist., Feb. 12, 1988). See also *Dayton Metro. Hous. Auth. v. Westfall*, No. 79-CVG-7932 (Ohio Mun., Dayton, Oct. 15, 1979) (statutory language enclosed in bright border and starred).

Where the statutory language is in smaller print than the other print on the notice, but is in bold faced print and is framed with red lines forming a rectangle around it and is placed in the corner of the notice, the statutory language is conspicuous. Cf. *Shewman v. Coons*, No. 89-CA-46, 1990 WL 34814, at *5-7 (Ohio App., 2nd Dist., Mar. 29, 1990) (construing the R.C. 1923.06(B) provision that requires the summons in an eviction action to include certain statutory language in a conspicuous manner).

Where the statutory language is in upper case, and the remainder of the notice is in “letter form” upper and lower case, generally the statutory language is conspicuous. *Sahara Apts. v. Brown-Austin*, No. CA-9028, 1993 WL 221253 (Ohio App., 5th Dist., June 7, 1993); *Adm’r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 535 N.E.2d 369 (9th Dist. 1987).

Where the statutory language is in upper case, and the remainder of the notice is in “letter form,” but the statutory language is not set off by a border and is in smaller print than and is in the same color as the remainder of the notice, the statutory language is not conspicuous. *Detroit Hous. Ltd. P’ship v. Spurlock*, No. 03-CVG-08908 (Ohio Mun., Cleveland, Hous. Div., Sept. 23, 2003).

Where the statutory language is in upper case, and the remainder of the notice is a mix of “letter form” and all upper case, the statutory language is not conspicuous. *Scioto Woods Apts. v. Ferko*, No. 08-CVG-1860 (Ohio Mun., Chillicothe, Oct. 21, 2008).

A notice that meets the “conspicuous manner” requirement “for sighted persons is not adequate to provide notice to an individual known to be sight-impaired.” *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456, at *3 (Ohio App., 2nd Dist., Feb. 19, 1999). In these circumstances, any statutory language in a written notice is not conspicuous, if the notice is simply posted on the tenant’s door. “A landlord, knowing that a tenant is blind, cannot claim that the tenant has been properly served with statutory notice when she cannot even see the notice posted on her door.” *Id.*

d. Reason for the Eviction

A notice to vacate is not required to state the reason for the eviction. *Snyder v. Wylie*, No. L-17-1019, 2017 WL 4334189 (Ohio App., 6th Dist., Sept. 29, 2017); *Venetta v. Battle*, No. 88AP-1044, 1990 WL 157344 (Ohio App., 10th Dist., Oct. 18, 1990); *N.W. Ohio Food Marts, Inc. v. Mugg*, No. L-86-115, 1987 WL 7791 (Ohio App., 6th Dist., Mar. 13, 1987); *Gerber v. Bistor*, No. 1795, 1982 WL 2806 (Ohio App., 9th Dist., Oct. 27, 1982); *McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021); *Hawkins v. Collier*, No. 87-CVG-884 (Ohio Mun., Portsmouth, Sept. 10, 1987). *But see DePalmo v. George*, No. 88-CVG-0572 (Ohio Mun., Licking Cty., Aug. 23, 1988) (“although there is authority to the contrary, this court finds that due process mandates that a landlord, at least in general terms which would put the tenant on notice of the acts complained of, specify the grounds

for the eviction in the three-day notice”).

However, if the notice to vacate includes a statement of the reason for the eviction, it may preclude the landlord from asserting any other reasons in the eviction action. *Merriweather v. Wilcox*, No. 2021-CVG-011765 (Ohio Mun., Cleveland, Hous. Div., Jan. 26, 2022); *McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021); *Venetta v. Staples*, No. M88-CVG-12477 (Ohio Mun., Franklin Cty., May 13, 1988). *Cf. Milbourn v. Aska*, 81 Ohio App. 79, 82, 77 N.E.2d 619 (3rd Dist. 1946) (notice declaring forfeiture of lease).

Also, if the notice to vacate states more than one reason for the eviction and the complaint alleges some but not all of those reasons, the landlord may rely on only those reasons alleged in the complaint. *M.L.R. Props., Inc. v. Baer*, No. L-85-330, 1986 WL 6703 (Ohio App., 6th Dist., June 13, 1986).

For further discussion on eviction complaints, see Section I.E, below.

e. Vacation Date

A notice to vacate is not required to state a specific date by which the tenant is to vacate the premises. *Andrews Sch. v. Brown*, No. 10-109, 1984 WL 7259 (Ohio App., 11th Dist., Sept. 21, 1984); *Brandy v. Fontroy*, No. 77-CVG-9209 (Ohio Mun., Dayton, Dec. 14, 1977).

A notice to vacate is also not required to reference the three-day period that must elapse before the landlord may file the eviction action. *Andrews Sch. v. Brown*, No. 10-109, 1984 WL 7259 (Ohio App., 11th Dist., Sept. 21, 1984).

3. Time of Service

a. Three-Day Rule

The notice to vacate must be served at least three days before the eviction action is commenced. R.C. 1923.04(A). The case law on the computation of this three-day period is discussed in Section I.C.3.b, below.

b. Computation of the Three-Day Period

The three-day period is not a seventy-two-hour period. *Cooper v. Aberts*, No. 98-CVG-384 (Ohio Mun., Mansfield, Feb. 25, 1998).

The case law is split on whether the three-day period is to be computed in accordance with Civil Rule 6(A).

Court decisions holding that Civil Rule 6(A) is applicable to the computation of

this three-day period include: *Ebbing v. Mathis*, No. CA2012-10-201, 2013 WL 2423702 (Ohio App., 12th Dist., June 3, 2013); *Hudgins v. Campbell*, No. 2013-CVG-00086 (Ohio Mun., Elyria, Mar. 11, 2013); *Midtown Apts. v. Davis*, 20 Ohio B. 128, 1985 WL 6044 (Ohio App., 10th Dist., 1985); *GMS Mgmt. Co., Inc. v. Alnazer*, No. 11-CVG-02425 (Ohio Mun., Berea, Nov. 4, 2011); *Phillips v. Derringer*, No. 05-CVG-000657 (Ohio Mun., Licking Cty., Apr. 12, 2005); *Vogt v. Riley*, No. 04-CVG-00829 (Ohio Mun., Athens Cty., Nov. 17, 2004); *Powers v. Arnold*, No. 03-CVG-01890 (Ohio Mun., Fairfield, Aug. 26, 2003); *McCallister v. Pickrel*, No. 02-CVG-00268 (Ohio Mun., Licking Cty., Mar. 12, 2002); *Labaki v. Carter*, No. 96-CVG-00558 (Ohio Mun., Zanesville, July 1, 1996); *Will v. Siller*, No. 90-CVG-1248 (Ohio Mun., Painesville, Sept. 19, 1990); *Bezon v. James*, No. 89-CV-G&F-1957 (Ohio Mun., Alliance, Feb. 5, 1990); *Spero v. Killeen*, No. 7-89-CVG-302 (Ohio Mun., New Philadelphia, Aug. 31, 1989); *Wintrow v. Smith*, 32 Ohio Misc.2d 12, 513 N.E.2d 363 (Ohio Mun., Akron, 1987); *Bowers v. Starcher*, No. 87-CL-254686 (Ohio Mun., Springfield, July 11, 1987); *Northpointe Apts. v. Dooley*, No. M85-CVG-3909 (Ohio Mun., Franklin Cty., Apr. 8, 1985).

Court decisions holding that Civil Rule 6(A) is not applicable to the computation of this three-day period include: *Faqi v. Patti*, Nos. L-19-1038,1107, 2020 WL 6375793 (Ohio App., 6th Dist., Oct. 30, 2020); *Wodzisz v. Bayes*, No. 96-APE07-891, 1997 WL 142715 (Ohio App., 10th Dist., Mar. 25, 1997); *Fed. Prop. Mgmt. v. Daugherty*, No. 12591, 1991 WL 116640 (Ohio App., 2nd Dist., June 28, 1991); *Willis v. Thibault*, No. 9-87-47, 1989 WL 83816 (Ohio App., 3rd Dist., July 31, 1989); *Pleasant View Mobile Home Court, Inc. v. Prichard*, No. 82-CVG-1881 (Ohio Mun., Canton, May 28, 1982). *See also State ex rel GMS Mgmt. Co., Inc. v. Lazzaro*, No. 97875, 2012 WL 3765055 (Ohio App., 8th Dist., Aug. 24, 2012) (court finds petitioner made a “strong argument” for the inapplicability of Civil Rule 6(A) but denies a writ of prohibition on two grounds: an appeal is an adequate remedy at law; and petitioner is essentially seeking a declaratory judgment via the writ).

If Civil Rule 6(A) is not applicable to the computation of this three-day period, the computation is nonetheless governed by R.C. 1.14. *Midtown Apts. v. Davis*, 20 Ohio B. 128, 1985 WL 6044 (Ohio App., 10th Dist., 1985); *Wayland v. Plymire*, No. 03-CVG-987 (Ohio Mun., Barberton, July 9, 2003). *Cf. Dennis v. Coble*, 18 Ohio App. 62 (6th Dist. 1923) (applying General Code § 10216). Under R.C. 1.14, this three-day period is computed by excluding the first day, including the last day, and excluding any Sunday or holiday that would otherwise be the last day.

Consequently, for this computation, the only significant difference between R.C. 1.14 and Civil Rule 6(A) is that, unlike Civil Rule 6(A), R.C. 1.14 does not exclude every Saturday and Sunday.

c. Additional Time – Specified Vacation Date in the Notice

If the notice to vacate states a date by which the tenant is to vacate the premises and it affords the tenant more time than the minimum three-day period under R.C. 1923.04(A), the landlord may not file the eviction action until after the vacation date specified in the notice. *Wodzisz v. Bayes*, No. 96-APE07-891, 1997 WL 142715, at *5 (Ohio App., 10th Dist., Mar. 25, 1997). *But see Crawford v. Norman*, 46 Ohio Law Abs. 404, 66 N.E.2d 559 (Ohio App., 2nd Dist., 1946); *Mack v. Eckerlin*, 2 Ohio L.R. 441 (Ohio App., 1st Dist., 1905), *aff'd*, 75 Ohio St. 627 (1907).

d. Additional Time – Landlord Delay

Generally, R.C. 1923.04(A) does not impose any limit on the amount of time beyond three days that a landlord may delay between serving the notice to vacate and filing the eviction complaint. *See, e.g., Reese v. Webb*, No. L-04-1257, 2005 WL 1009889 (Ohio App., 6th Dist., Apr. 29, 2005) (76 days between service of the notice to vacate and filing of the complaint); *Adm'r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 535 N.E.2d 369 (9th Dist. 1987) (five months between service of the notice to vacate and filing of the complaint, although landlord delayed filing the complaint at tenant's request to allow tenant to present a purchase proposal); *Owner's Mgmt. Co. v. Johnson*, No. 61691, 1992 WL 309362 (Ohio App., 8th Dist., Oct. 22, 1992) (45 days between service of the notice to vacate and filing of the complaint).

One exception to this general rule applies when the eviction action is for a tenant's violation of R.C. 5321.05(A)(9). In those cases, the landlord is required to commence the eviction action "promptly" after the service of the notice to vacate. R.C. 5321.05(C)(2), 5321.17(C).

The courts are split on whether a second exception to this general rule exists. They are split on whether a landlord's delay, between serving the notice to vacate and filing the FED action, may constitute a waiver of the notice to vacate.

One appellate court has held: "If the tenant does not vacate the premises by the end of the three-day period, the landlord may then file the FED action as long as the action is filed within two years of the date on which the tenant was in default of the terms of

the rental agreement.” *Reese v. Webb*, No. L-04-1257, 2005 WL 1009889, ¶ 4 (Ohio App., 6th Dist., Apr. 29, 2005).

In contrast, one municipal court has held: “A landlord who, ... after its service of a notice to vacate, can waive its right to pursue an eviction action if it acts inconsistently with its pursuit of the eviction....[An] action that can be inconsistent is a delay in taking action ... between the service of a notice to vacate and the filing of an eviction.” *CMHA v. Hawthorne*, No. 2012-CVG-007158, slip op. at 1 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, objections overruled Nov. 30, 2012).

Irrespective of the general rule and the exceptions, in most cases, the landlord’s inability to accept future rent without waiving the notice to vacate (see Section II.C, below) prompts the landlord to file the eviction action promptly upon the expiration of the three-day period.

e. Expiration of Tenancy Prerequisite

Generally, the notice to vacate may not be served until after the expiration of the tenancy.¹² *Crigger v. Shaw*, No. E-93-62, 1994 WL 68499, at *2 (Ohio App., 6th Dist., Feb. 25, 1994); *FMJ Props. v. Hinton*, No. 50314, 1986 WL 4396, at *2 (Ohio App., 8th Dist., Apr. 10, 1986); *Cuyahoga Metro. Hous. Auth. v. Owens*, No. 92-CVG-5159 (Ohio Mun., Cleveland, Hous. Div., Apr. 21, 1992); *Lincoln Mgmt. Co. v. Ashiegbu*, No. M9312-CVG-037858 (Ohio Mun., Franklin Cty., Jan. 26, 1994); *Polster v. Lewis*, No. 91-CVG-29002 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991); *Phipps v. Cable*, No. CVG-91-0099 (Ohio Mun., Portsmouth, Mar. 14, 1991); *Cassidy v. Vaccariello*, No. M8907-CVG-026434 (Ohio Mun., Franklin Cty., Aug. 28, 1989). *But see* *Leutzey v. Hershelrode*, 20 Ohio St. 334 (1870); *Hile v. Besecker*, 82 Ohio App. 301, 79 N.E.2d 582 (2nd Dist. 1947); *Crawford v. Norman*, 46 Ohio Law Abs. 404, 66 N.E.2d 559 (Ohio App., 2nd Dist., 1946).

Therefore, when a month-to-month tenancy is terminated under R.C. 5321.17(B), the notice to vacate may not be served until after the expiration of the R.C. 5321.17(B)

¹² When a tenancy is terminated during a period for which rent has been prepaid, the expiration of tenancy requirement does not require the expiration of that rent period. *1994-N1 Ohio Assocs., L.P. v. Planet Earth Entm’t, Inc.*, No. 15338, 1995 WL 738416 (Ohio App., 2nd Dist., Dec. 15, 1995). *But see* *Summit Mgmt. Servs. v. Gough*, No. 19714, 2000 WL 1226605 (Ohio App., 9th Dist., Aug. 30, 2000); *Forest City Mgmt., Inc. v. McDonald*, No. 2001-CVG-2806 (Ohio Mun., Akron, May 24, 2001). As to whether the landlord’s failure to return the prepaid rent for the post-termination period may waive the notice to vacate, see Section II.C, below.

thirty-day period.¹³ *Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist. 2008) (dicta); *Mockensturm v. Razeq*, No. L-85-149, 1986 WL 1692 (Ohio App., 6th Dist., Feb. 7, 1986); *Knights Ctr. Corp. v. Thomas*, No. 49636, 1985 WL 9039 (Ohio App., 8th Dist., May 23, 1985); *Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 444 N.E.2d 1337 (2nd Dist. 1982); *Siegler v. Batdorff*, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979); *McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021); *Kaseman v. Maddux*, No. 21-CVG-02194 (Ohio Mun., Licking Cty., Nov. 1, 2021); *Lincoln Mgmt. Co. v. Ashiegbu*, No. M9312-CVG-037858 (Ohio Mun., Franklin Cty., Jan. 26, 1994); *Ewert v. Basinger*, 59 Ohio Misc. 43, 392 N.E.2d 911 (Ohio Mun., Toledo, 1978). *Cf. Lucas Metro. Hous. Auth. v. M. Shouman Supermarkets, Inc.*, No. L-93-244, 1994 WL 110844 (Ohio App., 6th Dist., Mar. 31, 1994) (commercial month-to-month tenancy); *Sterling Health Care Group, Inc. v. Laughlin*, No. 92-WD-051, 1993 WL 179509 (Ohio App., 6th Dist., May 28, 1993) (commercial month-to-month tenancy).

Likewise, when a tenancy is terminated for nonpayment of rent, the notice to vacate may not be served until after the expiration of any grace period. *Colonial Oaks Props. LLC v. Hurst*, No. 2021-CVG-00455 (Ohio Mun., Elyria, Dec. 9, 2020); *Hayes Colony, Ltd. v. Woods*, No. 08-CV-2030 (Ohio Mun., Delaware, Sept. 3, 2008); *Myszka v. Bledsoe*, No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000); *Williams v. Mentzer*, No. 94-CVG-238 (Ohio Mun., Marietta, May 17, 1994). A grace period before imposing a late payment fee is a grace period for payment of the rent, unless the lease unambiguously provides otherwise. *Reinhard v. Lorek*, No. 95-L-028, 1995 WL 787378 (Ohio App., 11th Dist., Sept. 8, 1995); *Colonial Oaks Props. LLC v. Hurst*, No. 2021-CVG-00455 (Ohio Mun., Elyria, Dec. 9, 2020); *Hayes Colony, Ltd. v. Woods*, No. 08-CV-2030 (Ohio Mun., Delaware, Sept. 3, 2008).

And, when a tenancy is terminated under R.C. 5321.11,¹⁴ the notice to vacate may not be served until after the expiration of the R.C. 5321.11 thirty-day period. *Gibbes v. Freeman*, No. 52745, 1987 WL 16530 (Ohio App., 8th Dist., Sept. 3, 1987); *McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021); *Owner's Mgmt. Co. v. Brent*, No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, Aug. 1, 2001); *Avondale Hous. Action Program v. Butler*, No. 88-CV-42805 (Ohio Mun.,

¹³ R.C. 5321.17(B) is discussed in Section I.D, below.

¹⁴ R.C. 5321.11 is discussed in Section I.D, below.

Hamilton Cty., Mar. 23, 1989). *See also* *Crigger v. Shaw*, No. E-93-62, 1994 WL 68499 (Ohio App., 6th Dist., Feb. 25, 1994). *But see* *Label & Co. v. Hyde*, No. 85-C-63, 1986 WL 9120 (Ohio App., 7th Dist., Aug. 20, 1986).

For assisted housing tenancies, which require the landlord to serve a federal notice of termination, the case law is split on whether the notice to vacate may be served prior to the expiration of the tenancy.¹⁵

Court decisions holding that, in the termination of these tenancies, the notice to vacate may not be served until after the expiration of the federal notice of termination include: *Owner's Mgmt. v. Weems*, No. 97-CVG-07486 (Ohio Mun., Cleveland, Hous. Div., July 28, 1997); *Wills Creek Valley Apts. v. Marlatt*, No. 93-CVG-00066 (Ohio Mun., Cambridge, Apr. 27, 1993); *McConnellsville Assocs. v. Gladden*, No. 92-CVG-56 (Ohio County Ct., Morgan Cty., Sept. 28, 1992); *Lakeview Terrace v. Smith*, No. 92-CVG-8034 (Ohio Mun., Cleveland, Hous. Div., May 21, 1992); *Cuyahoga Metro. Hous. Auth. v. Owens*, No. 92-CVG-5159 (Ohio Mun., Cleveland, Hous. Div., Apr. 21, 1992); *Polster v. Lewis*, No. 91-CVG-29002 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991); *Oppmann Props. v. Jackson*, No. 90-CVG-9118 (Ohio Mun., Cleveland, Hous. Div., May 29, 1990); *Avondale Hous. Action Program v. Butler*, No. 88-CV-42805 (Ohio Mun., Hamilton Cty., Mar. 23, 1989); *Knoll Group Mgmt. v. Brown*, No. 83-CVG-9624 (Ohio Mun., Dayton, Feb. 8, 1984).¹⁶

Court decisions holding that the notice to vacate and the federal notice of termination may be consolidated into one notice and, consequently upholding the service of a notice to vacate prior to the expiration of the federal notice of termination include: *Vistula Mgmt. Co. v. Armstrong*, No. L-93-168, 1994 WL 262571 (Ohio App., 6th Dist., June 10, 1994); *Pataskala Green II v. Strickler*, No. CA-3581, 1991 WL 122358 (Ohio App., 5th Dist., June 25, 1991); *Arlington Square ABC Mgmt. v. Clevenger*, No. 88-CA-004447, 1989 WL 52620 (Ohio App., 9th Dist., May 17, 1989);

¹⁵ The federal rules permit the federal notice of termination to run concurrently with the state notice to vacate. *See* Section III.C.4, below. But those rules do not eliminate state requirements on when the state notice to vacate may be served. 56 Fed. Reg. 51559, 51565 (1991) ("Federal law does not affect the time when the State notice may be given"); *Kennedy v. Andover Place Apts.*, 203 S.W.3d. 495, 498 (Tex. App. 2006) (the federally subsidized lease (*see* note 174, above) "does not say that a HUD notice can eliminate the state statutory [notice] requirement").

¹⁶ Also, in *Crossroads Somerset Ltd. v. Newland*, 73 Ohio App.3d 20, 531 N.E.2d 327 (10th Dist. 1987), the court held that the consolidated federal notice of termination and state notice to vacate rendered the federal notice invalid. This holding is discussed in Section III.C.4, above.

Sandefur Co. v. Jones, 9 Ohio App.3d 85, 458 N.E.2d 390 (10th Dist. 1982);¹⁷ *Bella Vista Apts. v. Herzner*, 125 Ohio Misc.2d 1, 796 N.E.2d 593 (Ohio Mun., Clermont Cty., 2003). See also *Knoll Group Mgmt. Co. v. Wolfe*, Nos. 93-CA-553,554, 1994 WL 326347 (Ohio App., 4th Dist., June 28, 1994) (permitting service of federal notice of termination during pendency of eviction action); *New Boston Kiwanis Hous., Etc. v. Sparks*, No. 1957, 1992 WL 79561 (Ohio App., 4th Dist., Apr. 14, 1992) (permitting a second notice of termination to cure the content defect of the first notice of termination, if the second notice is served “timely” before the case comes to trial).

4. Method of Service

a. General Rule

R.C. 1923.04(A) specifies three alternative methods for serving a notice to vacate: (1) certified mail, return receipt requested; (2) personal service; and (3) leaving it at the tenant’s usual place of abode or at the premises.

The third method – leaving the notice at the premises – permits the landlord to leave the notice at the premises without physical delivery to a person. *Atwood v. Bare*, No. 1854, 1988 WL 117999 (Ohio App., 11th Dist., Oct. 28, 1988).

Under the third method, a landlord may serve the notice by posting it on the outside of the exterior door. *Cincinnati Metro. Hous. Auth. v. Morgan*, 104 Ohio St.3d 445, 820 N.E.2d 315 (2004); *Hauke v. Harris*, No. 2005-CA-000003, 2005 WL 3316338 (Ohio App., 5th Dist., Dec. 8, 2005); *Hall v. Kottha*, No. 64965, 1994 WL 110963 (Ohio App., 8th Dist., Mar. 31, 1994); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988). Posting means properly securing the notice to the door – thumbtack, adhesive tape, glue, etc. – and not simply leaving it in the crack of the door. *Oakwood Mgmt. Co. v. Bryant*, No. 04-CVG-0057 (Ohio Mun., Licking Cty., Mar. 17, 2004).

The service by posting does not, on its face, violate due process. *Cincinnati Metro. Hous. Auth. v. Morgan*, 104 Ohio St.3d 445, 820 N.E.2d 315 (2004). But, if the rental unit is located in a neighborhood where notices frequently are removed from exterior doors, an “as applied” due process claim may exist. *Id.*

Under the third method, a landlord also may serve the notice by inserting it through

¹⁷ In *ABC Mgmt. Co. v. Gamble*, No. 83AP-788, 1983 Ohio App. LEXIS 16070 (Ohio App., 10th Dist., Dec. 15, 1983), the court declined a request to overrule *Sandefur Co. v. Jones*.

the mail slot of the exterior door. *Sanders v. Favors*, No. C-950304, 1995 WL 763681 (Ohio App., 1st Dist., Dec. 29, 1995); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988).

“Service of [the R.C. 1923.04] notice in a manner not specified in the statute is not proper [service].” *Youngstown Metro. Hous. Auth. v. Higgins*, No. 99-CA-81, 2000 WL 1159418, at *2 (Ohio App., 7th Dist., Aug. 4, 2000). See *Manifold v. Schuster*, 67 Ohio App.3d 251, 586 N.E.2d 1142 (4th Dist. 1990).

For example, regular mail service is not a permissible method of service because it is not expressly authorized under R.C. 1923.04(A). *Higgins*, 2001 WL 1159418, at *2; *Tompkins v. Goins*, No. 93-CVG-01097 (Ohio Mun., Zanesville, Dec. 13, 1993). Nonetheless, one appellate court permitted regular mail service where the landlord first attempted certified mail service and it was refused, there was no evidence that the tenant failed to receive the notice to vacate via the regular mail service, and, based on the date of the regular mail service, there was sufficient time for that service to deliver the notice timely. *Aultman Home for Aged Women v. Ott*, No. CA-7688, 1989 WL 64055 (Ohio App., 5th Dist., June 5, 1989).

b. Deceased Resident of Manufactured Home Park

When the adverse party in an eviction action is a deceased resident of a manufactured home park, the R.C. 1923.04(A) notice to vacate “shall be left at the premises from which the defendant is sought to be evicted and shall also be sent by ordinary mail to the following persons if their names and addresses are known to the park operator:” (1) any executor or administrator appointed by the probate court for any estate of the adverse party; and (2) “the deceased resident’s spouse and any other members of the deceased resident’s immediate family.” R.C. 1923.04(C).

5. Time and Method of Service, Drug-Related R.C. 1923.02(A)(6) Eviction

In an eviction action filed under R.C. 1923.02(A)(6)(a), the R.C. 5321.17(C) notice of termination also constitutes the notice to vacate for R.C. 1923.04 purposes. R.C. 1923.04(B).

An R.C. 1923.02(A)(6)(a) eviction action is based on a tenant’s alleged violation of R.C. 5321.05(A)(9). Under R.C. 5321.05(A)(9), a tenant and the tenant’s guests are required to conduct themselves, in connection with the premises, so as not to violate the prohibitions against drug-related activities contained in R.C. Chapters 2925 and

3719 (or in any municipal ordinances that are substantially similar to any section in either of those chapters).

R.C. 5321.17(C) provides that, if the landlord has actual knowledge of or reasonable cause to believe that the tenant (or tenant's guest) has violated R.C. 5321.05(A)(9), the landlord shall terminate the tenancy by giving the tenant a notice of termination that "shall specify that the tenancy or other rental agreement is terminated three days after the giving of the notice." In these circumstances, the landlord is obligated to "promptly" commence an FED action, after service of the R.C. 5321.17(C) notice to vacate. R.C. 5321.04(A)(9), 5321.17(C). *See also Reese v. Webb*, No. L-04-1257, 2005 WL 1009889, ¶ 5 (Ohio App., 6th Dist., Apr. 29, 2005).

For R.C. 5321.17(C) purposes, the landlord has actual knowledge of or reasonable cause to believe that the tenant (or tenant's guest) has violated R.C. 5321.05(A)(9) only if:

a search warrant was issued pursuant to Criminal Rule 41 or Chapter 2933. of the Revised Code; the affidavit presented to obtain the warrant named or described the tenant or person as the individual to be searched and particularly described the tenant's premises as the place to be searched, named or described one or more controlled substances to be searched for and seized, stated substantially the offense under Chapter 2925. or 3719. of the Revised Code or the substantially similar municipal ordinance that occurred in, is occurring in, or otherwise was or is connected with the tenant's premises, and states the factual basis for the affiant's belief that the controlled substances are located on the tenant's premises; the warrant was properly executed by a law enforcement officer and any controlled substance described in the affidavit was found by that officer during the search and seizure; and, subsequent to the search and seizure, the landlord was informed by that or another law enforcement officer of the fact that the tenant or person has or presently is engaged in a violation as described in this Division and it occurred in, is occurring in, or otherwise was or is connected with the tenant's premises.

R.C. 1923.02(A)(6)(a)(i).

If a search warrant has not been issued, R.C. 1923.02(A)(6)(a)(i) does not apply. *Buckeye Mgmt. Co. v. Mason*, No. 2002-CO-68, 2003 WL 22120673 (Ohio App., 7th Dist., Sept. 11, 2003).

But R.C. 1923.02(A)(6)(a)(i) is not the exclusive grounds for an eviction action for drug-related criminal activity. *Buckeye Mgmt. Co. v. Mason*, No. 2002-CO-68,

2003 WL 22120673 (Ohio App., 7th Dist., Sept. 11, 2003). The R.C. 1923.02(A)(9) grounds for an eviction action – breach of a written lease – permits an eviction action for breach of a lease provision that prohibits any drug-related criminal activity on the premises. *Id.*

D. Notices of Termination, R.C. 5321.11, 5321.17

1. Introduction

In two circumstances, R.C. Chapter 5321 requires a residential landlord to serve the tenant with a notice of termination, if the landlord seeks to terminate the tenancy.¹⁸

The first is where a landlord seeks to terminate a tenancy on the ground that the tenant has violated an R.C. 5321.05 duty (other than R.C. 5321.05(A)(9)) and the violation materially affects health and safety. R.C. 1923.02(A)(8), 5321.11.

The second is where a landlord seeks to terminate a month-to-month (or week-to-week) tenancy and the tenant has not violated the rental agreement or any R.C. Chapter 5321 obligation. R.C. 5321.17(A),(B). *See also Drake Townhouses, LLC v. Woodberry*, No. C-160632, 2017 WL 3168981, ¶ 16 (Ohio App., 1st Dist., July 26, 2017); *Eberly v. Irons*, No. 2006AP-01-0004, 2007 WL 2351644, ¶ 34 (Ohio App., 5th Dist., Aug. 9, 2007). If the tenant has violated the rental agreement (*e.g.*, failed to pay rent) or an R.C. Chapter 5321 obligation, this notice of termination requirement is not applicable. R.C. 5321.17(D). *See also Drake Townhouses, LLC v. Woodberry*, No. C-160632, 2017 WL 3168981, ¶¶ 18-20 (Ohio App., 1st Dist., July 26, 2017); *Denney v. Carroll*, No. 15-14-10, 2015 WL 1966227 (Ohio App., 3rd Dist., May 4, 2015); *Georgetown Park Apts. v. Woernley*, 112 Ohio App.3d 428, 679 N.E.2d 16 (8th Dist. 1996); *Gerber v. Bistor*, No. 1795, 1982 WL 2806 (Ohio App., 9th Dist., Oct. 27, 1982).

These notices of termination are a different type of notice than the R.C. 1923.04(A) notice to vacate, which is discussed in Section I.C, above. The notice of termination terminates or proposes to terminate the tenancy, whereas the R.C. 1923.04(A) notice to vacate is a prerequisite to the filing of an eviction action. *See Gvozdanovic v.*

¹⁸ In an assisted housing tenancy, the federal regulations require the landlord to serve a notice of termination, if the landlord seeks to terminate the tenancy. For a discussion on the federal notices of termination, see Sections III.A-E and Section XXIV.B.6, below.

Woodford Corp., 139 Ohio App.3d 11, 30, 742 N.E.2d 1145 (1st Dist. 2000); *Cincinnati Metro. Hous. Auth. v. McCollum*, 45 Ohio App.2d 197, 199, 341 N.E.2d 857 (1st Dist. 1975). A landlord's termination or proposal to terminate a tenancy is an action separate and distinct from the landlord's filing of an eviction action. *Id.*

2. R.C. 5321.11 Notice of Termination

a. Materially Affects Health and Safety, Effect of the Limitation

R.C. 5321.11, together with R.C. 1923.02(A)(8), permit a landlord to terminate a tenancy for a tenant's violation of R.C. 5321.05, but only if the R.C. 5321.05 violation materially affects health and safety. They also make any such termination of tenancy subject to the notice and right to cure requirements that are discussed in Sections I.D.2.b-g, below.

A resulting issue is whether, despite the inapplicability of R.C. 5321.11, a landlord may terminate a tenancy for a tenant's violation of R.C. 5321.05 if the violation does not materially affect health and safety. The case law is split. *Compare Jones v. Burns*, No. R90-CVG-2008 (Ohio Mun., Portage Cty., Oct. 10, 1990) (termination not permitted) with *Starr v. Kaderly*, No. 96-APG03-293, 1996 WL 465256 (Ohio App., 10th Dist., Aug. 15, 1996) (termination permitted), *Berkeley Park, LLC v. Pile*, No. 2005-CVG-046214 (Ohio Mun., Franklin Cty., Apr. 11, 2007), and *Klepetko v. Bettis*, No. 06-CVG-09092 (Ohio Mun., Cleveland, Hous. Div., May 11, 2006).

The better reasoned conclusion is that the landlord may not terminate the tenancy for such violations. Three factors support this conclusion.

First, R.C. 5321.11 is the only provision in R.C. Chapter 5321 that authorizes a landlord to terminate a tenancy for a tenant's violation of R.C. 5321.05. This evidences the legislature's intent to permit a termination of tenancy for an R.C. 5321.05 violation only if the violation materially affects health and safety.

Second, a construction of the statute that would permit a landlord to terminate a tenancy for an R.C. 5321.04 violation that does not materially affect health and safety would grant a tenant more rights – a 30-day notice and right to cure – when the violation materially affects health and safety than when the violation does not materially affect health and safety. It is unlikely that the legislature intended the illogical consequence of granting tenants more rights for engaging in more harmful behavior. When a statute is ambiguous, as in this matter, the courts are to consider

“the consequences of a particular construction” (R.C. 1.49(E)) and “to presume that [a] just and reasonable result is intended” (R.C. 1.47(C)).

Third, prohibiting a termination of tenancy for R.C. 5321.05 violations that do not materially affect health and safety is consistent with the legal maxim “de minimis not curat lex,” which is discussed, with respect to residential leases, in Section II.W, below.

A relevant sub-issue is whether R.C. 1923.02(A)(9) is authority for terminating a tenancy for tenant conduct that violates R.C. 5321.05 and a rental agreement provision but does not materially affect health and safety. R.C. 1923.02(A)(9) authorizes eviction actions for breach of an obligation under a written rental agreement.

For oral periodic rental agreements, R.C. 1923.02(A)(9) is simply inapplicable and, therefore, cannot be a basis for terminating the tenancy for an R.C. 5321.05 violation that does not materially affect health and safety.

For written rental agreements, because R.C. Chapter 5321 does not permit a termination of tenancy for an R.C. 5321.05 violation that does not materially affect health and safety, R.C. 1923.02(A)(9) cannot be a basis for terminating the tenancy for such violations. R.C. 5321.06 and 5321.13(A) prohibit lease provisions that are inconsistent with R.C. Chapter 5321. As discussed in Section I.D.2.f, below, this restriction applies to terminations of tenancies for a tenant’s violation of R.C. 5321.05.

b. Written Notice

The R.C. 5321.11 notice of termination (“R.C. 5321.11 notice”) must be a “written notice.” R.C. 5321.11.

c. Statement of the Violation with Specificity

“Inherent in the opportunity to cure a default is knowledge of what is in default. Absent knowledge of what must be corrected in order to avoid the specified penalty, the right to cure the default becomes a meaningless guessing game.” *Gallagher v. Borden, Inc.*, 84 Ohio App.3d 185, 188, 616 N.E.2d 577 (10th Dist. 1992) (lease provision notice requirement similar to the R.C. 5321.11 notice).

The R.C. 5321.11 notice must describe with specificity the acts and omissions of the tenant that constitute the alleged R.C. 5321.05 violation. R.C. 5321.11.

Examples of statements that failed to state the tenant’s acts and omissions with the requisite specificity are set forth below.

- (1) “[D]ue to your interference with the right of your neighbors to the peaceful enjoyment of their premises.” *Hood v. Kusior*, No. 97-CVG-

3823 (Ohio Mun., Akron, July 23, 1997).

- (2) “[N]umerous violations of conditions of lease, specifically #30.” *Avondale Hous. Action Program v. Butler*, No. 88-CV-42805 (Ohio Mun., Hamilton Cty., Mar. 23, 1989).
- (3) The statement that the tenant performed acts that disturbed her neighbors and that the tenant created physical hazards. *Burney View Apts. v. Zeisler*, No. 87-CV-17778 (Ohio Mun., Hamilton Cty., Feb. 3, 1988).

d. Statement of a Termination Date, and the Thirty-Day Requirement

The R.C. 5321.11 notice must advise the tenant that the tenancy will terminate upon a date specified in the notice. *Lovett v. Brown*, No. 97-CVG-5586 (Ohio Mun., Akron, Aug. 20, 1997); *Hood v. Kusior*, No. 97-CVG-3823 (Ohio Mun., Akron, July 23, 1997). *Cf. M.L.R. Props., Inc. v. Baer*, No. L-85-330, 1986 WL 6703 (Ohio App., 6th Dist., June 13, 1986) (construing R.C. 3733.13 (now R.C. 4781.45) – the manufactured home park provision for a notice of termination that is essentially the same as R.C. 5321.11).

This requirement is not met if the notice uses conditional language such as “may lead to,” “may result in,” or “could result in” your eviction if you fail to comply in the future. *Green v. Sephus*, No. 90-CVG-1768-38, slip op. at 3 (Ohio Mun., East Cleveland, Jan. 8, 1991).

The termination date specified in the R.C. 5321.11 notice may not be less than thirty days after the date on which the notice has been served. R.C. 5321.11.

For example, if an R.C. 5321.11 notice specifies that the tenancy will be terminated on November 30th, the notice must be served on or before October 31st. If the notice is served on November 2nd, it provides the tenant with only twenty-eight days advance notice and thus fails to comply with R.C. 5321.11. *Willowood Apts. v. Page*, No. 96-L-003, 1996 WL 535235, at *3 (Ohio App., 11th Dist., Sept. 6, 1996).

e. Timely Remedy of the Violation

If the tenant remedies the R.C. 5321.05 violation before the termination date specified in the R.C. 5321.11 notice, the rental agreement is not terminated pursuant to the notice and the tenant’s conduct that violated R.C. 5321.05 cannot be the basis

for an eviction action.¹⁹ R.C. 5321.11. *See also* *Columbiana Metro. Hous. Auth. v. Parker*, No. 03-CO-46, 2004 WL 1533250 (Ohio App., 7th Dist., June 28, 2004); *Woodrose Ltd. Belmont Dev. Co. v. Debolt*, No. CA-403, 1991 WL 115990 (Ohio App., 5th Dist., June 20, 1991); *Hampshire House Apts. v. Henderson*, No. 3791, 1987 WL 31705 (Ohio App., 11th Dist., Dec. 24, 1987) (dicta). *Cf. Leichtman v. Fike*, No. 1106, 1984 WL 7338 (Ohio App., 11th Dist., Apr. 27, 1984) (construing R.C. 3733.13 (now R.C. 4781.45) – the manufactured home park provision for a notice of termination that is essentially the same as R.C. 5321.11).

R.C. 5321.11 does not expressly require a statement of the right to cure in the R.C. 5321.11 notice. One trial court has held that no such requirement exists and, thereupon, rejected the magistrate's conclusion to the contrary. *Akron Metro. Hous. Auth. v. Mayson*, No. 97-CVG-1293 (Ohio Mun., Cuyahoga Falls, magistrate's decision and judgment entry filed Sept. 8, 1997, order nunc pro tunc filed Sept. 29, 1997, and order filed Mar. 19, 1998).

However, the R.C. 5321.11 notice may not include language that suggests that the right to cure does not exist. *Owner's Mgmt. Co. v. Brent*, No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, Aug. 1, 2001). For example, the R.C. 5321.11 notice may not include the language required for an R.C. 1923.04 notice to vacate and state categorically that, if the tenant fails to vacate as of the specified termination date, an eviction action will be commenced.²⁰ *Id.*

When the R.C. 5321.05 violation specified in the R.C. 5321.11 notice is damage to the premises, the tenant may cure the violation by paying to the landlord the amount of the landlord's cost to repair the damage. *M.L. Gabriel Commons v. King*, No. 13159, 1992 WL 288781 (Ohio App., 2nd Dist., Oct. 14, 1992); *Akron Metro. Hous. Auth. v. Mayson*, No. 97-CVG-1293 (Ohio Mun., Cuyahoga Falls, May 5, 1998).

A landlord's refusal to accept such payment is a violation of the landlord's obligations under R.C. 5321.11. *Akron Metro. Hous. Auth. v. Mayson*, No. 97-CVG-

¹⁹ In an eviction action, if the landlord claims that the tenancy has been terminated pursuant to an R.C. 5321.11 notice, an element of the landlord's claim is that the tenant failed to remedy timely the R.C. 5321.05 violation. *See* Section II.F, below.

²⁰ A related issue, discussed in Section I.C.3.e, above, is whether a consolidation of the R.C. 1923.04 notice to vacate and the R.C. 5321.11 notice of termination constitutes improper service of the R.C. 1923.04 notice to vacate because it is served prior to the expiration of the tenancy.

1293 (Ohio Mun., Cuyahoga Falls, May 5, 1998).

A tenant's failure to make such payment may be a failure to cure the violation. *M.L. Gabriel Commons v. King*, No. 13159, 1992 WL 288781 (Ohio App., 2nd Dist., Oct. 14, 1992).

When the R.C. 5321.05 violation specified in the R.C. 5321.11 notice is an ongoing activity of the tenant, the tenant may cure the violation by no longer engaging in the improper activity.

For example, the R.C. 5321.05 violation may be the tenant causing excessive noise in her dwelling unit that disturbs the neighbors' peaceful enjoyment. *E.g.*, *Parker v. Fisher*, 17 Ohio App.3d 103, 477 N.E.2d 654 (9th Dist. 1984). In that case, the tenant may cure the R.C. 5321.11 violation by no longer causing such noise.²¹ *Id.*

For another example, the R.C. 5321.05 violation may be continuing to put trash bags on the yard. *E.g.*, *Columbiana Metro. Hous. Auth. v. Parker*, No. 03-CO-46, 2004 WL 1533250 (Ohio App., 7th Dist., June 28, 2004). In that case, the tenant may cure the R.C. 5321.05 violation by ceasing to put trash bags on the yard. *Id.*

f. Applicability to Written Leases

The R.C. 5321.11 notice and right to cure are applicable to the termination of a written lease, if the termination is based on conduct of the tenant that violates both the lease and R.C. 5321.05. *Columbiana Metro. Hous. Auth. v. Parker*, No. 03-CO-46, 2004 WL 1533250 (Ohio App., 7th Dist., June 28, 2004); *Woodrose Ltd. Belmont Dev. Co. v. Debolt*, No. CA-403, 1991 WL 115990 (Ohio App., 5th Dist., June 20, 1991); *Portage Metro. Hous. Auth. v. Brown*, 66 Ohio App.3d 737, 586 N.E.2d 168 (11th Dist. 1990); *Vandalia Apts., Ltd. v. Leonard*, No. 10277, 1987 WL 15725 (Ohio App., 2nd Dist., Aug. 13, 1987); *Northland Vill. Apts. v. Harris*, No. 10156, 1987 WL 14276 (Ohio App., 2nd Dist., July 6, 1987); *Shreve Ltd. v. Seevers*, No. 2026, 1987 WL 10766

²¹ However, one court found that the cessation did not constitute a timely cure where the tenant's children had engaged in the improper conduct and, prior to the service of the R.C. 5321.11 notice, the landlord and tenant had had several meetings and agreements to prevent the children from continuing to cause the disturbances, which had become increasingly more serious. *Fed. Prop. Mgmt. v. Brown*, No. 17424, 1999 WL 961275 (Ohio App., 2nd Dist., June 25, 1999). *But cf. Columbiana Metro. Hous. Auth. v. Parker*, No. 03-CO-46, 2004 WL 1533250, ¶ 27 (Ohio App., 7th Dist., June 28, 2004) (distinguishes *Brown*: "In this case, the situation complained of (garbage bags in the yard) was completely under appellant's control whereas in *Brown*, the situation complained of (Brown's children, disturbing neighbors and breaking the rules) seemed out of Brown's control....Brown could not control her children").

(Ohio App., 9th Dist., May 22, 1985); *Sandefur Mgmt. Co. v. Wilson*, 21 Ohio App.3d 160, 486 N.E.2d 1267 (10th Dist. 1985); *Parker v. Fisher*, 17 Ohio App.3d 103, 477 N.E.2d 654 (9th Dist. 1984); *Odneal v. Wolfe*, No. L-79-346, 1980 Ohio App. LEXIS 9841 (Ohio App., 6th Dist., June 13, 1980).²² But see *Colonial Am. Dev. Corp., Etc. v. Walters*, No. CA-87-8, 1987 WL 25252 (Ohio App., 5th Dist., Nov. 17, 1987).

The R.C. 5321.11 notice and right to cure are not applicable to the termination of a written lease, if the termination is based on conduct of the tenant that violates the lease but not R.C. 5321.05. *Carkhuff v. Corpening*, No. 2017-A-0090, 2018 WL 4693341 (Ohio App., 11th Dist., Sept. 28, 2018); *Denney v. Carroll*, No. 15-14-10, 2015 WL 1966227 (Ohio App., 3rd Dist., May 4, 2015); *Lorain Metro. Hous. Auth. v. Fonseca*, 110 Ohio App.3d 292, 673 N.E.2d 1019 (9th Dist. 1996); *Georgetown Park Apts. v. Woernley*, 112 Ohio App.3d 428, 679 N.E.2d 16 (8th Dist. 1996); *Portage Metro. Hous. Auth. v. Brown*, 66 Ohio App.3d 737, 586 N.E.2d 168 (11th Dist. 1990); *Akron Metro. Hous. Auth. v. Sistrunk*, No. 12253, 1986 WL 2214 (Ohio App., 9th Dist., Feb. 12, 1986); *Parker v. Fisher*, 17 Ohio App.3d 103, 477 N.E.2d 654 (9th Dist. 1984). See also *Denhart v. Whaley*, No. 88-CV-16092 (Ohio Mun., Hamilton Cty., Nov. 2, 1988) (R.C. 5321.11 does not apply to an eviction based upon a criminal conviction because the criminal act cannot conceivably be cured).

g. Jurisdictional Requirement

When the ground for an eviction action is a tenant's violation of an R.C. 5321.05(A) obligation that materially affects health and safety, R.C. 1923.02(A)(8) is the source of the court's subject-matter jurisdiction.

R.C. 1923.02(A)(8) imposes a requirement on any landlord who seeks to invoke this subject-matter jurisdiction: "Prior to the commencement of an action under this division, notice shall be given to the tenant and compliance secured with section 5321.11 of the Revised Code."

Therefore, in such eviction actions, the landlord's compliance with the R.C. 5321.11 notice and cure rules is a jurisdictional requirement. See *Woodrose Ltd.*

²² See also *Owner's Mgmt. Co. v. Brent*, No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, Aug. 1, 2001); *Hood v. Kusior*, No. 97-CVG-3823 (Ohio Mun., Akron, July 23, 1997); *Williams v. Wilson*, No. 89-CVG-2173 (Ohio Mun., Dayton, Apr. 10, 1989); *Yutzy v. Huebner*, 14 Ohio Op.3d 440 (Ohio Mun., Franklin Cty., 1979); *Denhart v. Cooper*, No. 78-CV-35878 (Ohio Mun., Hamilton Cty., Jan. 10, 1979); *Fitzpatrick Realty v. Wilkey*, No. 78-CVG-8102 (Ohio Mun., Dayton, Nov. 17, 1978).

Belmont Dev. Co. v. Debolt, No. CA-403, 1991 WL 115990 (Ohio App., 5th Dist., June 20, 1991); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988); *Filinger v. Harris*, No. 07-CVG-01188 (Ohio Mun., Shaker Heights, Aug. 10, 2007); *Walnut Hills Apts. v. Costner*, 108 Ohio Misc.2d 43, 739 N.E.2d 416 (Ohio Mun., Hamilton Cty., 1999); *Yutzy v. Huebner*, 14 Ohio Op.3d 440 (Ohio Mun., Franklin Cty., 1979).

3. R.C. 5321.17 Notice of Termination

a. Written or Oral Notice

The R.C. 5321.17 notice of termination (“R.C. 5321.17 notice”) may be a written notice or an oral notice. *Shewman v. Coons*, No. 89-CA-46, 1990 WL 34814 (Ohio App., 2nd Dist., Mar. 29, 1990). *See also Feldmann v. Ponziani*, No. 14857, 1995 WL 232476 (Ohio App., 2nd Dist., Apr. 21, 1995).

If a month-to-month tenancy is created pursuant to a written lease agreement and the lease requires a written thirty-day notice of termination, the requirement for a written notice is not per se enforceable. See Section VII.K.1, below, for the longstanding line of cases that “concern oral notification of termination of the lease which occurred before the written notification was required. In those cases, the tenant failed to provide written notification.” *Claypool v. Dews*, No. 18-CA-0925, 2018 WL 6930496, ¶ 19 (Ohio App., 7th Dist., Dec. 31, 2018). The courts hold that, in these circumstances, to require written notification would be unconscionable under R.C. 5321.14.

Likewise, if a written lease for a fixed term (*e.g.*, one year) requires a written thirty-day notice to prevent commencement of a month-to-month tenancy at the end of the fixed term, the requirement for a written thirty-day notice is not per se unenforceable. *Knipp v. Sadler*, No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009); *Meadowbrook Dev. Corp. v. Roberts*, No. 79747, 2001 WL 1654540 (Ohio App., 8th Dist., Dec. 27, 2001); *Ballard v. KMG Investors, Ltd. P’ship*, No. 14-93-5, 1993 WL 293944 (Ohio App., 3rd Dist., Aug. 3, 1993); *McGowan v. DM Group IX*, 7 Ohio App.3d 349, 455 N.E.2d 1052 (10th Dist. 1982).

However, in either of these circumstances, if the tenant provides the landlord with a timely oral notice of termination but not a written notice, enforcement of the written notice requirement would be both hypertechnical and unconscionable. *Id.*; *Seginak v. ABC Mgmt. Co.*, No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987).

R.C. 5321.17 does not specify the permissible methods of service for the R.C. 5321.17 notice. When a landlord elects to serve the tenant with a written R.C. 5321.17 notice, the courts are likely to permit service by any of the methods that R.C. 1923.04 permits for the notice to vacate. *See, e.g., DePalmo v. George*, No. 88-CVG-0572 (Ohio Mun., Licking Cty., Aug. 23, 1988) (written R.C. 5321.17 notices are not required to be served personally upon the tenant and may be served by leaving them at the premises).

b. Content Requirements

The only content requirement for an R.C. 5321.17 notice is that it must inform the tenant of the termination of the tenancy. The notice is not required to include any particular language.

However, it must “unequivocally inform” the tenant that the tenancy will be terminated as of a certain date. *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797, at *5 (Ohio App., 2nd Dist., Feb. 2, 2001); *Reith v. Skruck*, 71 Ohio Misc.2d 1, 2, 653 N.E.2d 755 (Ohio Mun., Wadsworth, 1995).

c. Time of Service, and the Thirty-Day Requirement

The R.C. 5321.17(B) notice must be given at least thirty days before the periodic rental date. R.C. 5321.17(B). *See also Risch v. Samuel*, No. C-190159, 2020 WL 1488724 (Ohio App., 1st Dist., Mar. 25, 2020); *Detweiler v. Galt*, No. 01-CA-34, 2001 WL 1682822 (Ohio App., 4th Dist., Dec. 26, 2001); *DeBenedictus v. Gialamas*, No. 96-L-006, 1997 WL 51453 (Ohio App., 11th Dist., Jan. 24, 1997); *M. Friedman Mgmt. Co. v. Malek*, No. 93-L-022, 1993 WL 548091 (Ohio App., 11th Dist., Dec. 3, 1993); *Dunning v. Green*, No. F-82-12, 1983 WL 13825 (Ohio App., 6th Dist., Feb. 4, 1983); *Siegler v. Batdorff*, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979).

This differs from a thirty-day period before the termination date (*Detweiler*, 2001 WL 1682822, at *1), and the difference is often significant.

The court decisions set forth below illustrate the R.C. 5321.17(B) notice period (*i.e.*, thirty days before the periodic rental date). Each of these court decisions concerned a tenancy with a periodic rental date of the first day of the month, unless another date is specified.

- (1) Notice served October 9, 2000, tenancy terminated November 30, 2000. *Detweiler v. Galt*, No. 01-CA-34, 2001 WL 1682822 (Ohio App., 4th Dist., Dec. 26, 2001).

- (2) Notice served May 2, 1994, tenancy terminated May 31, 1994. *Feldmann v. Ponziani*, No. 14857, 1995 WL 232476 (Ohio App., 2nd Dist., Apr. 21, 1995).
- (3) Notice served December 14, 1991, tenancy terminated January 31, 1992. *M. Friedman Mgmt. Co. v. Malek*, No. 93-L-022, 1993 WL 548091 (Ohio App., 11th Dist., Dec. 3, 1993).
- (4) Notice served January 2, 1990, tenancy terminated January 31, 1990. *Wiltsie v. Teamor*, 89 Ohio App.3d 380, 624 N.E.2d 772 (8th Dist. 1993).
- (5) Notice served January 31, 1985, tenancy terminated March 31, 1985. *Mockensturm v. Razeq*, No. L-85-149, 1986 WL 1692 (Ohio App., 6th Dist., Feb. 7, 1986).
- (6) Notice served November 15, 1976, tenancy terminated December 31, 1976. *Cavucci v. Simco Mgmt. Corp.*, No. 77-CA-40, 1978 Ohio App. LEXIS 9669 (Ohio App., 7th Dist., Apr. 4, 1978).
- (7) Periodic rental date 7th day of month, notice served February 14, 2008, tenancy terminated April 6, 2008. *Smith v. Donaldson*, No. CVG-0800217 (Ohio Mun., Hocking Cty., Apr. 4, 2008).
- (8) Notice served November 7, 2001, tenancy terminated January 1, 2002. *Tipper v. Recklaw*, No. 2001-CVG-11482 (Ohio Mun., Akron, Feb. 1, 2002).
- (9) Notice served October 21, 1993, tenancy terminated November 30, 1993. *Lincoln Mgmt. Co. v. Ashiegbu*, No. M9312-CVG-037858 (Ohio Mun., Franklin Cty., Jan. 26, 1994).
- (10) Notice served October 10, 1988, tenancy terminated November 30, 1988. *Superior Mobile Homes, Inc. v. Russell*, No. 7-89-CVG-100 (Ohio Mun., New Philadelphia, Apr. 5, 1989).

When the month-to-month tenancy is created by a written lease, a tenant's substantial compliance with the thirty-day requirement may be sufficient to terminate the tenancy. *E.g.*, *Claypool v. Dews*, No. 18-CA-0925, 2018 WL 6930496, (Ohio App., 7th Dist., Dec. 31, 2018) (written notice delivered two days late). The *Claypool* decision relied on the line of cases that hold that "'hypertechnical construction' of a residential lease provision should not be required where a party has substantially complied with a notice provision." *Id.*, ¶ 13.

In determining the periodic rental date for R.C. 5321.17(B) purposes, the court should consider any established practice between the parties that allows the tenant to

pay rent late. *Smith v. Mallory*, No. 52982, 1987 WL 20215 (Ohio App., 8th Dist., Nov. 19, 1987).

The parties to a month-to-month tenancy may not enter into or enforce any agreement, oral or written, that shortens the time period for an R.C. 5321.17(B) notice of termination. *Detweiler v. Galt*, No. 01-CA-34, 2001 WL 1682822, at *3 (Ohio App., 4th Dist., Dec. 26, 2001) (invalid oral agreement for thirty-day notice requirement irrespective of periodic rental date); *DeBenedictus v. Gialamas*, No. 96-L-006, 1997 WL 51453, at *3 (Ohio App., 11th Dist., Jan. 24, 1997) (invalid written agreement for twenty-day notice requirement). Any such agreement would violate the R.C. 5321.06 prohibition against rental agreement provisions that are inconsistent with or prohibited by R.C. Chapter 5321. *Id.*

However, the R.C. 5321.06 prohibition does not preclude the parties, at any time, from mutually agreeing to terminate a month-to-month tenancy as of a specified date. *E.g.*, *Tuttle v. Smith*, No. 93AP-1078, 1993 WL 538309 (Ohio App., 10th Dist., Dec. 23, 1993).

4. Rent Payment After Service of the Notice of Termination

For the thirty-day period of an R.C. 5321.11 notice or an R.C. 5321.17(B) notice, the tenant is obligated to pay the rent. A failure to do so would expose the tenant to an eviction action for nonpayment of rent, which would eliminate the notice of termination requirement (see Section I.D.1, above) and thereby accelerate the eviction process.

The landlord has a corresponding obligation to accept any tender of such rent. A landlord may not circumvent R.C. 5321.11 or R.C. 5321.17(B) by refusing to accept rent that has been tendered timely and in full and then evicting for nonpayment of rent. See Section II.J, below.

The landlord's acceptance of the rent for the thirty-day period (and thus before the termination of the tenancy) does not waive the R.C. 5321.11 or 5321.17(B) notice. *Cf. Edgbarton Inv., Inc. v. Target Expediting, Inc.*, No. L-99-1410, 2000 WL 1713816, at *3-4 (Ohio App., 6th Dist., Nov. 17, 2000) (commercial month-to-month tenancy).

However, the landlord's acceptance of future rent for any period after the thirty-day period may waive the R.C. 5321.11 or 5321.17(B) notice. See Section II.D, below.

5. Second Notice of Termination After Voluntary Dismissal

The case law is split on whether a landlord, who served an R.C. 5321.17(B) notice and thereafter filed and dismissed voluntarily an eviction action, may rely on that R.C. 5321.17(B) notice in a second eviction action. *Compare Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 293-94, 444 N.E.2d 1337 (2nd Dist. 1982) (“The fact that notice made in compliance with R.C. 5321.17(B) was involved in litigation which was dismissed is of no consequence”) with *Apt. Mgmt., Inc. v. Woods*, No. 05-CVG-650 (Ohio Mun., Lorain, June 1, 2005) (“[T]his court holds as a matter of law that where an action in forcible entry and detainer is dismissed, prior to refiling a subsequent action in forcible entry and detainer, any and all notices required by either statute or the contract at issue must be re-served by the Plaintiff upon the Defendant”).

E. Content of the Complaint

1. R.C. 1923.05

Content requirements for an FED complaint are established in R.C. 1923.05, which states in relevant part:

The complaint shall particularly describe the premises so entered upon and detained, and set forth either an unlawful and forcible entry and detention, or an unlawful and forcible detention after a peaceable or lawful entry of the described premises.

R.C. 1923.05 does not require a landlord to allege in the FED complaint the existence or terms of the lease between the landlord and tenant. *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991).

R.C. 1923.05 also does not require a landlord to request in the FED complaint the issuance of a writ of restitution in order for the landlord to secure the writ upon the entry of the FED judgment. *Marysville Estates v. Bruce*, No. 14-13-12, 2013 WL 5347438, ¶ 8 (Ohio App., 3rd Dist., Sept. 23, 2013). For further discussion on the writ of restitution, see Section I.O.2, below.

2. Ohio Rules of Civil Procedure

a. Civil Rule 8(A) – Ground for Eviction Limited by Complaint

The ground for the eviction action that the landlord alleges in the complaint is the only ground on which the landlord may rely. *M.L.R. Props., Inc. v. Baer*, No. L-85-330, 1986 WL 6703, at *3 (Ohio App., 6th Dist., June 13, 1986); *Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007); *Jackson v. Hammond*, No. 2006-CVG-31171 (Ohio Mun., Cleveland, Hous. Div., Feb. 15, 2007); *Cmty. Gardens Park & Sales, Inc. v. Roe*, No. M8109-CVG-027176 (Ohio Mun., Franklin Cty., Nov. 6, 1981); *Inner City Hous. v. Sebastian*, No. 81-CV-15029 (Ohio Mun., Hamilton Cty., June 29, 1981).

Consequently, if a notice to vacate or a notice of termination states more than one reason for the eviction and the FED complaint alleges some but not all of those reasons, the landlord may rely on only those reasons alleged in the complaint. *M.L.R. Props., Inc. v. Baer*, No. L-85-330, 1986 WL 6703, at *1,3 (Ohio App., 6th Dist., June 13, 1986) (notice to vacate); *Inner City Hous. v. Sebastian*, No. 81-CV-15029 (Ohio Mun., Hamilton Cty., June 29, 1981) (notice of termination).

b. Civil Rule 10(D) – Attachment of Lease

An FED complaint must conform with the requirements of Civil Rule 10(D). *Small v. Williams*, No. 44418, 1982 WL 5247 (Ohio App., 8th Dist., Mar. 25, 1982) (dicta); *Point Rental Co. v. Posani*, 52 Ohio App.2d 183, 368 N.E.2d 1267 (10th Dist. 1976); *Dayton Metro. Hous. Auth. v. Westfall*, No. 79-CVG-7932 (Ohio Mun., Dayton, Oct. 15, 1979).

Therefore, if the tenancy and thus the eviction action is founded on a written lease, a copy of the lease must be attached to the complaint or the reason for the omission must be stated in the complaint. *Id. Cf. Cincinnati Metro. Hous. Auth. v. Morgan*, 155 Ohio App.3d 189, 194, 800 N.E.2d 64 (1st Dist. 2003), *rev'd on other grounds*, 104 Ohio St.3d 445, 820 N.E.2d 315 (2004) (“when a landlord such as CMHA seeks to evict a tenant based on the terms of a lease agreement, the landlord should at the very least provide the trial court with a copy of the lease”).

If only part of the lease (instead of the entire lease) is attached to the complaint, this Civil Rule 10(D) requirement is not met. *Green v. Smith*, No. 2014-CVG-025805 (Ohio Mun., Franklin Cty., Nov. 12, 2014).

Also, the landlord's belief that the tenant has a copy of the lease is an insufficient reason for failing to attach it. *Point Rental Co. v. Posani*, 52 Ohio App.2d 183, 185, 368 N.E.2d 1267 (10th Dist. 1976).

"The proper procedure in attacking the failure of a plaintiff to attach a copy of a written instrument [in this case, a written lease] or to state a valid reason for his failure to attach same is to serve a motion for a definite statement, pursuant to Civ.R. 12(E)." *Id.* at 186. *Accord Fletcher v. Univ. Hosp. of Cleveland*, 120 Ohio St.3d 167, 897 N.E.2d 147 (2008); *Trabuco Homes, L.L.C. v. Brewer*, No. 109595, 2021 WL 2375962 (Ohio App., 8th Dist., June 10, 2021); *Asset Acquisitions Group, L.L.C. v. Gettis*, 186 Ohio App.3d 586, 929 N.E.2d 506 (2nd Dist. 2010); *Landskroner v. Landskroner*, 154 Ohio App.3d 471, 797 N.E.2d 1002 (8th Dist. 2003).

Nonetheless, some trial courts have dismissed eviction actions for a landlord's failure to attach a copy of the lease to the complaint. *E.g., Davis v. Risten*, No. 2010-CVG-951 (Ohio Mun., Canton, Mar. 1, 2010).

c. Civil Rule 11 – Signature of Pro Se Landlord

When a pro se landlord files an FED complaint, the landlord is required under Civil Rule 11 to sign the complaint. The failure of a pro se landlord to sign the complaint is grounds for the court to dismiss the complaint. *E.g., Bennett v. Reynolds*, No. CVG-2100164 (Ohio Mun., Perry Cty., May 19, 2021).

d. Civil Rule 12(E) – More Definite Statement

Civil Rule 12(E) establishes the degree of specificity that is required for the allegations in an FED complaint.²³ It permits a motion for more definite statement if the allegations are so vague and ambiguous that the tenant cannot reasonably be required to frame a responsive pleading.

Landlords often use form FED complaints that fail to comport with the specificity requirement of Civil Rule 12(E). These form complaints typically allege, with respect to the landlord's right to possession, only that the tenant is unlawfully and forcibly detaining possession of the premises.

A tenant cannot reasonably be required to frame an answer to an FED complaint

²³ Civil Rule 1(C) establishes the standard for determining whether Civil Rule 12(E) applies to eviction actions. See Section I.B, above. Like Civil Rule 10(D) (see Section I.E.2.b, above), Civil Rule 12(E) applies to eviction actions because it does not frustrate the summary nature of eviction proceedings.

that fails to specify the ground (*e.g.*, nonpayment of rent, violation of lease, violation of R.C. 5321.05, termination of periodic tenancy) upon which the allegation of unlawful and forcible detention is based. Absent specification of that ground, the tenant cannot reasonably determine the elements of the landlord's claim for possession or the potential defenses to the claim.

However, one municipal court has held that a landlord is not required to identify in the complaint the specific assisted housing program under which the landlord is subsidized. *Fed. Prop. Mgmt. Corp. v. Jackson*, No. 79-CVG-8820 (Ohio Mun., Dayton, Nov. 1, 1979). The same municipal court also has held that, where an eviction action is for criminal activity, the landlord is not required to identify in the complaint the specific criminal statute or criminal offense on which the criminal activity claim is based. *DMHA v. Walker*, No. 07-CVG-8591 (Ohio Mun., Dayton, Nov. 30, 2007).

e. Civil Rule 15(B) – Amendment to Allege New Ground for Eviction

At trial, a landlord may be permitted to amend the FED complaint under Civil Rule 15(B) so as to add a new ground. *See, e.g., N.W. Ohio Food Marts, Inc. v. Mugg*, No. L-86-115, 1987 WL 7791 (Ohio App., 6th Dist., Mar. 13, 1987).

But, if the tenant would be prejudiced by the amendment, Civil Rule 15(B) requires the court to deny the motion to amend or to grant a continuance to enable the tenant to prepare a defense for the new ground. *Id.*, 1987 WL 7791, at *2 (“Furthermore, once appellee was given leave to amend his complaint pursuant to Civ. R. 15(B), the case was continued, giving appellant ample time to prepare a rebuttal argument”).

f. Civil Rule 18(A) – Joinder of Claims

Under Civil Rule 18(A), a landlord may allege in a complaint both an eviction claim and additional, non-eviction claims that the landlord has against the tenant. *Cuyahoga Metro. Hous. Auth. v. Jackson*, 67 Ohio St.2d 129, 132 n.6, 423 N.E.2d 177 (1981); *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 76 (Ohio App., 8th Dist., Aug. 12, 2021); *Bard Props. LLC v. Dalton*, No. 24521, 2009 WL 2033078, ¶¶ 12,13 (Ohio App., 9th Dist., July 15, 2009); *Marvin v. Stemen*, 68 Ohio App.2d 26, 29, 426 N.E.2d 205 (6th Dist. 1980). The additional claims often are monetary claims for nonpayment of rent and/or damage to the premises. *Jackson*, 67 Ohio St.2d at 132; *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 76 (Ohio App., 8th Dist., Aug. 12, 2021); *Maduka v. Parries*, 14 Ohio App.3d 191, 470 N.E.2d 464 (8th Dist. 1984).

This joinder of claims is permissive, not mandatory. *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 76 (Ohio App., 8th Dist., Aug. 12, 2021); *Marvin v. Stemen*, 68 Ohio App.2d at 29; *Stewart v. McWilliams*, No. 34694 (Ohio App., 8th Dist., Nov. 20, 1975). Consequently, a landlord may file a complaint alleging an FED claim only and secure an FED judgment, and thereafter file a complaint alleging a monetary claim against the tenant for nonpayment of rent and/or damage to the premises. *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 76 (Ohio App., 8th Dist., Aug. 12, 2021); *Stewart v. McWilliams*, No. 34694, 1975 WL 183103 (Ohio App., 8th Dist., Nov. 20, 1975). See also *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000).

For eviction actions against a deceased resident of a manufactured home park, the legislature purports to prohibit joinder of claims for past due rent and other damage claims under the rental agreement. R.C. 1923.081; Sub. H.B. No. 56, 127th General Assembly, Legislative Service Commission, Bill Analysis at 7 (“The act provides that a park operator may not seek a judgment for past due rent and other damages under a rental agreement against a deceased manufactured home park resident in an FE and D action but must proceed in a separate civil action for damages (R.C. 1923.081)”).

Notwithstanding this legislative intent, the unambiguous language of R.C. 1923.081 addresses consolidation of trials, and not joinder of claims.²⁴ R.C. 1923.081 presumes that the claims have been consolidated. It permits a consolidation of the trial on these claims, unless good cause is shown. For this purpose, it specifies that good cause includes a defendant’s request to file an answer, to file a counterclaim, or to conduct discovery.

Construing R.C. 1923.081 as a joinder of claims provision renders its good cause exception illogical. A plaintiff decides whether to join claims when preparing the complaint. At that stage, the plaintiff does not know whether the defendant will file an answer or counterclaim or conduct discovery and thus whether the relevant good cause exception exists.

²⁴ When an eviction claim and a monetary claim are joined, the court may (and often does) bifurcate the trials on the respective claims under Civil Rule 42. See Section I.M.1, below.

F. Content of the Summons

1. R.C. 1923.06

R.C. 1923.06(B) requires the summons to contain, in a conspicuous manner, certain language,²⁵ if a landlord is seeking to recover residential premises in the eviction action.

Court decisions provide some guidance for determining whether a summons contains the R.C. 1923.06(B) language in a conspicuous manner. One court found the statutory language in a summons to be sufficiently conspicuous where it was “placed in the bottom left-hand corner of the page, was in small bold faced print, and was framed with red lines forming a rectangle around the language.” *Shewman v. Coons*, No. 89-CA-46, 1990 WL 34814, at *6 (Ohio App., 2nd Dist., Mar. 29, 1990). Because “the language was in bold print and was outlined in red,” the court found the conspicuous manner requirement to be met “despite the fact that the [statutory] language was in smaller print than the rest of the print on the summons.” *Id.*

Several other court decisions have determined the analogous issue of whether an R.C. 1923.04 notice to vacate contains, in a conspicuous manner, certain statutory language that is required for that notice. See Section I.C.2.c, above.

R.C. 1923.06(A) states that the summons “shall be ... in the form specified ... in this section.”²⁶ But R.C. 1923.06 does not specify any form, other than the foregoing advisory language required by R.C. 1923.06(B).

2. Civil Rule 4(B)

Civil Rule 4(B) is applicable to eviction actions because its application does not

²⁵ The language required by R.C. 1923.06(B) is:

A complaint to evict you has been filed with this court. No person shall be evicted unless his right to possession has ended and no person shall be evicted in retaliation for the exercise of his lawful rights. If you are depositing rent with the clerk of this court you shall continue to deposit such rent until the time of the court hearing. The failure to continue to deposit such rent may result in your eviction. You may request a trial by jury. You have the right to seek legal assistance. If you cannot afford a lawyer, you may contact your local legal aid or legal service office. If none is available, you may contact your local bar association.

²⁶ The revisions of R.C. 1923.06(A), effective March 30, 1999, and September 29, 1999, deleted the provision stating that the summons in an FED action “shall be ... in the form specified ... in the Rules of Civil Procedure.”

interfere with the summary nature of eviction proceedings.²⁷ Moreover, its requirements are not inconsistent with R.C. 1923.06.

In an eviction action, since the time for the tenant “to appear and defend” may be the time of trial (see Section I.H, below), Civil Rule 4(B) requires the summons to contain a statement of the date and time of trial. *See Costantino v. Lyons*, No. 3774, 1987 WL 31096, at *4 (Ohio App., 11th Dist., Dec. 18, 1987).

G. Service of the Summons and Complaint

1. Introduction

R.C. 1923.06 establishes the time period by which service of process in an eviction action must be completed. This requirement is discussed in Section I.G.2, below.

R.C. 1923.06 purports to establish service of process rules for complaints that allege either an eviction claim only or both eviction and non-eviction claims.²⁸ Some of these R.C. 1923.06 rules conflict with Civil Rules 4.1 and 4.6. These rules and conflicts are discussed in Section I.G.3, below.

R.C. 1923.051 establishes service of process rules for drug-related R.C. 1923.02(A)(6) eviction actions. These rules are discussed in Section I.G.4, below.

2. Time of Service

In an eviction action, the summons and complaint must be served at least seven days before the trial date for the eviction claim. R.C. 1923.06(A).²⁹ Under R.C. 1.14, this seven-day time period is computed by excluding the first day and including the last day, and excluding any Sunday or holiday that would otherwise be the last day.

To ensure that there is adequate time to effect timely service of process, some courts have a policy of scheduling the trial date for the eviction claim on a specified number of days (often between 14 and 21 days) from the date on which the complaint is filed.

²⁷ Civil Rule 1(C) establishes this standard for determining whether Civil Rule 4(B) applies to eviction actions. See Section I.B, above.

²⁸ These R.C. 1923.06 service of process rules became effective March 30, 1999, and September 29, 1999. They supplanted the R.C. 1923.06 provision that had required service to be made “as in the Rules of Civil Procedure.” See note 6, above.

²⁹ See note 6, above.

3. Method of Service

a. R.C. 1923.06 Rules

The R.C. 1923.06 service of process rules purport to apply to any complaint that alleges an eviction claim. *See* R.C. 1923.06(A). This includes any complaint that alleges both an eviction claim and one or more non-eviction claims. *See* R.C. 1923.06(H)(2). The non-eviction claim is typically a monetary claim for nonpayment of rent and/or damage to the premises. *See* Section I.E.2.f, above.

The R.C. 1923.06 service of process rules establish a two-fold process. The rules require ordinary mail service and, at the landlord's option, either bailiff service or certified mail, return receipt requested service.

Under the bailiff service, the bailiff makes one trip to the premises – (1) the bailiff tenders the summons and complaint to the tenant, or (2) if the bailiff cannot find the tenant, the bailiff leaves the summons and complaint with “a person of suitable age and discretion found at the premises,” or (3) if the bailiff cannot find the tenant or a person of suitable age and discretion at the premises, the bailiff posts the summons and complaint “in a conspicuous place on the subject premises.”³⁰

R.C. 1923.06 service is deemed complete on the date that any of the following occurs: (1) bailiff service is made on the tenant, (2) bailiff service is made on another person at the premises, (3) bailiff service is made by posting, after ordinary mail service has been made, (4) ordinary mail service is made, after bailiff service has been made by posting, (5) certified mail service is mailed, if, as of the trial date for the eviction claim, the certified mail has not been returned for any reason other than refused or unclaimed, or (6) certified mail service is mailed, if, as of the trial date for the eviction claim, the certified mail has not been endorsed but the ordinary mail service has been mailed and has not been returned. R.C. 1923.06(G).

“Regarding [R.C. 1923.06(C)] service by regular mail, service is ‘presumed complete when a certificate of mailing is entered in the record, provided that the ordinary mail envelope is not returned for failure of delivery.’” *Timber Top Apts. v. Klinkiewicz*, No. 28860, 2018 WL 1957849, ¶ 8 (Ohio App., 9th Dist., Apr. 25, 2018)

³⁰ Generally, a bailiff makes this “bailiff service” if the eviction action is commenced in a municipal court, and a sheriff makes this “bailiff service” if the eviction action is commenced in a court of common pleas or a county court. *See* R.C. 1923.06(D)(1)(a),(b). However, in any of these courts, the court may designate certain other persons to make this “bailiff service.” *See* R.C. 1923.06(D)(1)(c).

(quoting *Don Ash Props. v. Dunno*, No. 03AP-375, 2003 WL 22480323, ¶ 11 (Ohio App., 10th Dist., Nov. 4, 2003)).

When the R.C. 1923.06(C) ordinary mail envelope is returned to the clerk of court due to failure of delivery, the question arises whether this ordinary mail service is subject to the Civil Rule 4.6(D) provisions on perfecting ordinary mail service. At least three court decisions have addressed this issue: *Don Ash Props. v. Dunno*, No. 03AP-375, 2003 WL 22480323 (Ohio App., 10th Dist., Nov. 4, 2003), *Showe Mgmt. Corp. v. Cunningham*, 191 Ohio App.3d 123, 944 N.E.2d 1234 (10th Dist. 2011); and *G.K.G. Builders, Inc. v. Burgess*, 13 N.E.2d 745, 2014-Ohio-2431 (Ohio App., 6th Dist., June 6, 2014).

In *Dunno*, the monetary claim, but not the eviction claim, was before the court of appeals. The court of appeals assumed *arguendo*, without deciding, that the R.C. 1923.06 service of process rules applied to the monetary claim. It held that the R.C. 1923.06(C) ordinary mail service is subject to the rules in Civil Rule 4.6(D) on perfecting ordinary mail service. Thereupon, it held that, because the R.C. 1923.06(C) ordinary mail service was returned to the clerk of court due to failure of delivery, it had not been perfected.

In *Cunningham*, both the eviction claim and the monetary claim were before the court of appeals. The court of appeals held that, with respect to the eviction claim, the R.C. 1923.06(C) ordinary mail service is not subject to the rules in Civil Rule 4.6(D) on perfecting ordinary mail service. Thereupon, it held that R.C. 1923.06(C) ordinary mail service is perfected for the eviction claim when the summons and complaint are placed in the mail, notwithstanding any return of this mail service to the clerk of court due to failure of delivery (as in that case).³¹ It distinguished *Dunno* as a ruling on a monetary claim, with dicta on the eviction claim, and held that the *Dunno* ruling remains good law for the monetary claim.³²

In *Burgess*, the complaint alleged only an eviction claim. The court of appeals

³¹ This holding raises a due process issue. See *War Eagle Vill. Apts. v. Plummer*, 775 N.W.2d 714 (Iowa 2009) (due process violation where FED service of process by mail deemed received by tenant when mailed). Cf. *Jones v. Flowers*, 547 U.S. 220 (2006) (when certified mail letter returned unclaimed, due process requires additional reasonable steps to attempt to notify owner before selling owner's home in tax sale).

³² Consequently, the court of appeals in *Cunningham*, like in *Dunno*, did not decide whether R.C. 1923.06 service of process rules apply to the monetary claim.

held that, under Civil Rule 1(C), service of process for an eviction claim is exempt from Civil Rules 4.1 and 4.6. Relying on *Cunningham*, it then held that ordinary mail service was “made,” for purposes of R.C. 1923.06(G)(2), “when the clerk placed a copy of the summons and complaint in the mail and the fact of the mailing is placed on the record.” 13 N.E.2d 745, ¶ 15. Like the court in *Cunningham*, it held that the return of the ordinary mail service (which occurred in this case) was immaterial.

b. Conflict Between R.C. 1923.06 Rules and Civil Rules 4.1 and 4.6 – Eviction Claim

The R.C. 1923.06 provisions that permit service of process by a combination of ordinary mail and posting conflict with Civil Rules 4.1 and 4.6. Civil Rules 4.1 and 4.6 permit service of process by ordinary mail, but only after service of process by certified or express mail has been attempted. See *Akron Metro. Hous. Auth. v. Thompson*, No. 14428, 1990 WL 106217 (Ohio App., 9th Dist., July 25, 1990). Civil Rules 4.1 and 4.6 do not permit service of process by posting in any circumstances. See Ohio R. Civ. P. 4.1, Staff Notes (Civil Rule 4.1 “eliminate[d] the possibility of doorknob service”).

Also, the R.C. 1923.06 provisions that permit service of process by serving “a person of suitable age and discretion found at the premises” conflict with Civil Rule 4.1(C). Civil Rule 4.1(C) permits such residence service only if the person is “then residing therein.”

One issue that arises from these conflicts is whether Civil Rules 4.1 and 4.6 apply to an eviction action, notwithstanding R.C. 1923.06. If they apply to an eviction action, the R.C. 1923.06 service of process provisions that are in conflict with these Civil Rules are invalid and of no force and effect by virtue of Article IV, Section 5(B) of the Ohio Constitution. See *Hiatt v. S. Health Facilities, Inc.*, 68 Ohio St.3d 236, 626 N.E.2d 71 (1994). “The Ohio Rules of Civil Procedure ... must control over subsequently enacted statutes purporting to govern procedural matters.” *Id.* at 237.

Civil Rules 4.1 and 4.6 apply to an eviction action unless their application would interfere with the summary nature of eviction proceedings. See Section I.B, above.

After an initial split in the early municipal court decisions,³³ the appellate courts have determined that Civil Rules 4.1 and 4.6 do not apply to eviction actions. They have done so with little (if any) analysis in their decisions on whether Civil Rules 4.1 and 4.6 interfere with the summary nature of eviction proceedings.³⁴

The appellate court decisions holding that Civil Rules 4.1 and 4.6 do not apply to an eviction action include: *Vargyas v. Brasher*, No. L-14-1193, 2015 WL 502854 (Ohio App., 6th Dist., Feb. 6, 2015); *G.K.G. Builders, Inc. v. Burgess*, 13 N.E.2d 745, 2014-Ohio-2431 (Ohio App., 6th Dist., June 6, 2014); *Machshonba v. Cleveland Metro. Hous. Auth.*, No. 96811, 2011 WL 6920728 (Ohio App., 8th Dist., Dec. 29, 2011); *Oak Park Mgmt. Corp. v. Via*, No. 07-CA-0022, 2008 WL 2168505 (Ohio App., 9th Dist., May 27, 2008); *Dobbins v. Kalson*, No. 07AP-831, 2008 WL 307724 (Ohio App., 10th Dist., Feb. 5, 2008); *Amherst Vill. Mgmt. v. Vestal*, No. WD-99-075, 2000 WL 1595719 (Ohio App., 6th Dist., Oct. 27, 2000).

If the Supreme Court (or other appellate districts) in the future hold that Civil Rules 4.1 and 4.6 apply to an eviction action notwithstanding R.C. 1923.06, the case law on service of process in eviction actions includes the following examples of service that fail to comply with the Civil Rules.³⁵

³³ Compare *McKown v. Johnson*, No. 99-CVG-7561 (Ohio Mun., Akron, Nov. 1, 1999) (Civil Rules 4.1 and 4.6 apply), *Boyle v. Hernandez*, No. CVG-99-11252 (Ohio Mun., Toledo, Hous. Div., Sept. 3, 1999), and *Talley v. Warner*, 99 Ohio Misc.2d 42, 715 N.E.2d 635 (Ohio Mun., Cleveland, Hous. Div., 1999) (except provision on time for ordinary mail service) with *Harris v. Hampton*, No. 2005-CVG-43533 (Ohio Mun., Franklin Cty., Mar. 24, 2006) (Civil Rules 4.1 and 4.6 do not apply), *Owner's Mgmt. Co. v. Brent*, No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, July 24, 2001), *Columbus Metro. Hous. Auth. v. Curry*, No. M1999-CVG-035067 (Ohio Mun., Franklin Cty., Jan. 21, 2000), *Chubb v. Bueno-Crespo*, No. 99-CVG-01635 (Ohio Mun., Marion, Dec. 13, 1999), and *Anderson v. Champer*, No. 99-CVG-00424 (Ohio Mun., Marion, May 13, 1999).

³⁴ Absent personal service or residence service, due process requires that service of process in an eviction action include mail service. See *Greene v. Lindsey*, 456 U.S. 444 (1982). Therefore, the issue here is whether the incremental delay, resulting from the use of certified mail instead of ordinary mail, frustrates the summary nature of an eviction action. The length of time that a post office holds undeliverable certified mail is “15 days ... unless the sender specifies fewer days on the piece.” U.S. Postal Service, Domestic Mail Manual Chapter D042, Conditions of Delivery, § 1.7 (incorporated by reference in 39 C.F.R. § 111.4).

³⁵ The case law listed in the text here was decided under the former versions of R.C. 1923.06 that provided that service of process in an eviction action shall be “as in the Rules of Civil Procedure” and “as in other cases.” See note 5, above.

- (1) Regular mail service is invalid when regular mail service and certified mail service of the summons and complaint are served simultaneously. *Akron Metro. Hous. Auth. v. Thompson*, No. 14428, 1990 WL 106217 (Ohio App., 9th Dist., July 25, 1990).
- (2) Regular mail service is invalid when certified mail service is returned unclaimed and, after the court has entered judgment against the tenant and the writ of restitution has been executed, the regular mail service is returned “moved left no address.” *Castle Apts., Inc. v. Allgood*, 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988).
- (3) Residence service is invalid when the summons and complaint are not left at the residence with a person of suitable age and discretion then residing therein. *Tucker v. Grigsby*, No. CA-3154, 1985 WL 4492 (Ohio App., 5th Dist., Dec. 13, 1985); *Real Estate Servs., Inc. v. Leigh*, No. 77AP-130, 1977 Ohio App. LEXIS 8899 (Ohio App., 10th Dist., June 2, 1977); *Burton v. Murry*, 8 Ohio Op.3d 179 (Ohio App., 8th Dist., 1973); *Cotterman v. Fahrig*, 55 Ohio App.2d 15, 378 N.E.2d 742 (2nd Dist. 1972); *Szabo v. Humphrey*, 66 Ohio Misc.2d 55, 642 N.E.2d 1173 (Ohio Mun., Wadsworth, 1993); *Tompkins v. Goins*, No. 93-CVG-01097 (Ohio Mun., Zanesville, Dec. 13, 1993).
- (4) Personal service is invalid when the plaintiff (landlord) is the person who served the summons and complaint. *Lyon v. Wymer*, No. 81-CVG-10 (Ohio Mun., Findlay, Feb. 9, 1981).

c. Conflict Between R.C. 1923.06 Rules and Civil Rules 4.1 and 4.6 – Non-Eviction Claim

The conflicts between R.C. 1923.06 and Civil Rules 4.1 and 4.6 (see Section I.G.3.b, above) create an additional issue for complaints that contain an FED claim and a monetary claim. The issue is whether Civil Rules 4.1 and 4.6 apply to the monetary claim, irrespective of whether they apply to the FED claim. If Civil Rules 4.1 and 4.6 apply to these monetary claims, the R.C. 1923.06 service of process rules are invalid insofar as they are in conflict with these Civil Rules and apply to these monetary claims. See *Hiatt v. S. Health Facilities, Inc.*, 68 Ohio St.3d 236, 626 N.E.2d 71 (1994).

Civil Rule 1(C) is the sole authority for exempting a claim from the service of process requirements of Civil Rules 4.1 and 4.6. See Ohio R. Civ. P. 1(A) and 1(C). The Civil Rule 1(C) exemption applies to “forcible entry and detainer” claims.

For a four-fold reason, the Civil Rule 1(C) term “forcible entry and detainer” does not encompass the monetary claim, when a landlord elects to join in a complaint an

FED claim and a monetary claim for unpaid rent and/or damage to the premises. First, the term “forcible entry and detainer” is an unambiguous and well-established term under Ohio law. See Section I.A.2, above. Second, its plain meaning under Ohio law is an FED claim under R.C. Chapter 1923, which is a claim for, and only for, obtaining restitution of possession of real property, based on a party’s present right to possession of the property. See Section I.A.2, above. Third, this plain meaning does not include the landlord’s monetary claim, which is a breach of contract claim for money damages (see *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000)) and/or a statutory claim under R.C. 5321.05(C) for money damages (see *Sherwin v. Cabana Club Apts.*, 70 Ohio App.2d 11, 18, 433 N.E.2d 932 (8th Dist. 1980)). Fourth, when a term in a civil rule (or a statute) is unambiguous, courts are required to apply its plain meaning, without any further assistance of the rules of construction. *State ex rel. Dunbar v. Ham*, 45 Ohio St.2d 112, 114, 341 N.E.2d 594 (1976) (civil rule); *Cheap Escape Co., Inc. v. Haddox, L.L.C.*, 120 Ohio St.3d 493, 900 N.E.2d 601, ¶ 9 (2008) (statute).

When a landlord elects to join in a complaint an FED claim and a monetary claim for unpaid rent and/or damage to the premises, the claims are joined under Civil Rule 18(A). See Section I.E.2.f, above.

When a plaintiff elects under Civil Rule 18(A) to join in a complaint two separate claims, each claim must be treated independently and ruled upon in accordance with the laws governing that claim. See *Carter v. Bernard*, No. 06-MA-54, 2006 WL 3849855, ¶¶ 55,56 (Ohio App., 7th Dist., Dec. 28, 2006) (fraud and breach of contract actions, each seeking money damages and rescission); *Raskow v. Fortner*, No. 18399, 1998 WL 178570, at *2-3 (Ohio App., 9th Dist., Apr. 15, 1998) (action for damages for flooding and action for injunction to remove dam to prevent future flooding); *Peed v. Moore*, No. 857, 1981 WL 5165, at *3-4 (Ohio App., 12th Dist., July 22, 1981) (multiple causes of action, seeking various forms of relief). See also 4 Moore’s Federal Practice, § 18.23 (Matthew Bender 3d ed. 2012) (the judgment on each claim “must be given according to the respective rights and liabilities of the parties”).³⁶

Accordingly, the court’s jurisdiction with respect to each claim joined under Civil Rule 18(A) must be determined independently. *Sommer v. Mount Carmel Health*, No. 94-APE07-1087, 1995 WL 141354, at *4 (Ohio App., 10th Dist., Mar. 28, 1995) (court

³⁶ Ohio “Rule 18 is the same as Federal Rule 18.” Ohio R. Civ. P. 18, Staff Notes (1970).

had subject-matter jurisdiction in the action for an injunction, but not in the action for money damages). If a court lacks jurisdiction to hear one of two claims joined under Civil Rule 18(A), the court must dismiss the claim for which it lacks jurisdiction, notwithstanding the court's jurisdiction to hear the other claim. *Id.*

Therefore, when a landlord elects under Civil Rule 18(A) to join in a complaint the FED claim and the monetary claim, the FED claim and the monetary claim remain independent claims. Ohio R. Civ. P. 18(A) ("may join, as independent or alternative claims"). *See, e.g., Tolle v. Morris*, No. 90AP-040034, 1990 WL 163807, at *1 (Ohio App., 5th Dist., Oct. 18, 1990) ("A claim for back rent or damages may be joined with a complaint in forcible entry and detainer....Appellee's second cause of action for back rent and damages is separate from the forcible entry and detainer action"). The FED claim is still a claim for "the right to possession and nothing else." *Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.*, 67 Ohio St.2d 19, 25 n.11, 423 N.E.2d 1070 (1981). The monetary claim is still a breach of contract claim for money damages and/or a statutory claim under R.C. 5321.05(C) for money damages.

In short, the monetary claim does not become an FED claim simply because it has been alleged in a complaint that also alleges an FED claim. The monetary claim, alone, is not a claim or proceeding within the purview of Civil Rule 1(C), and its joinder with the FED claim does not alter this conclusion. In these circumstances, the "forcible entry and detainer is a summary proceeding and [the] suit for damages is a regular civil proceeding..." *Smith v. Wright*, 65 Ohio App.2d 101, 103, 416 N.E.2d 655 (8th Dist. 1979).

Because the monetary claim is "a regular civil proceeding" to which Civil Rule 1(C) does not apply, perforce, Civil Rules 4.1 and 4.6 (and all other provisions of the Ohio Rules of Civil Procedure) apply to the monetary claim.

Nonetheless, the R.C. 1923.06 case law is split on whether Civil Rules 4.1 and 4.6 apply to the monetary claim.

Court decisions (and court rules) holding that Civil Rules 4.1 and 4.6 apply to these monetary claims include: *Pisani v. Wright*, No. 2005-CVG-1233 (Ohio Mun., Marietta, Apr. 7, 2008); *Amherst Vill. Mgmt. v. Vestal*, No. 99-CVG-00936 (Ohio Mun., Bowling Green, Sept. 29, 1999) (magistrate's decision) ("Service in the action by posting and regular mail ... would be imperfect for the second cause of action [monetary claim] as clearly violative of the Civil Rules"), *objection overruled*, (Ohio Mun., Bowling Green, Oct. 19, 1999), *aff'd on other grounds*, No. WD-99-075, 2000 WL 1595719 (Ohio App., 6th Dist., Oct. 27, 2000); Mount Vernon Municipal Court,

Local Rules of Practice, Rule 304 (eff. May 6, 2013); Licking County Municipal Court, Notice (2012) (if eviction and monetary claims, “[p]osting of the summons does not meet the legal requirement for seeking monetary damages”); Memorandum from David C. Stockdale, Administrative/Presiding Judge Elect, Hamilton County Municipal Court, to Magistrates and Chief Deputy Clerk Deters (Sept. 27, 1999) (Joint Session consensus: R.C. 1923.06 provisions that allow “service of process of the second and third causes of action for back rent and other damages in forcible entry and detainer actions in a manner other than as prescribed in Civil Rules 4 through 4.6 ... are unconstitutional”).

Court decisions holding that Civil Rules 4.1 and 4.6 do not apply to these monetary claims include: *Vargyas v. Brasher*, No. L-14-1193, 2015 WL 502854 (Ohio App., 6th Dist., Feb. 6, 2015),³⁷ *Harris v. Hampton*, No. 2005-CVG-43533 (Ohio Mun., Franklin Cty., Mar. 24, 2006).

In addition, two appellate court decisions assume *arguendo*, without deciding, that R.C. 1923.06 applies to the monetary claim, and then hold that due process prohibits service of process by ordinary mail and posting for the monetary claim if the landlord knew or reasonably should have known that the tenant did not reside in the property when the service was executed. *Romp v. Jean-Pierre*, No. L-15-1123, 2016 WL 4035605 (Ohio App., 6th Dist., July 22, 2016); *C & W Inv. Co. v. Midwest Vending Inc.*, No. 03AP-40, 2003 WL 22054062 (Ohio App., 10th Dist., Sept. 4, 2003). *See also Hous. Auth. of City of Atlanta v. Hudson*, 250 Ga. 109, 296 S.E.2d 558 (1982) (complaint alleging eviction claim and monetary claim for unpaid rent; due process prohibits a default judgment on the monetary claim, where service of process is by ordinary mail and posting and the tenant does not answer the complaint or appear at a hearing on either claim).

³⁷ The *Vargyas* court relies heavily on the decision in *G.K.G. Builders, Inc. v. Burgess*, 13 N.E.2d 745, 2014-Ohio-2431 (Ohio App., 6th Dist., 2014). This reliance on *Burgess* is misplaced because the complaint in *Burgess* alleged only an FED claim and the decision in *Burgess* addressed only the application of the Civil Rules to an FED claim. The reasoning in the *Vargyas* decision is also flawed by the court’s failure to acknowledge (let alone address) the distinction between the FED claim and the monetary claim, which results in the court holding only implicitly that the monetary claim is an FED claim for Civil Rule 1(C) purposes.

d. R.C. 1923.06 Additional Rules – Deceased Resident of Manufactured Home Park

When the adverse party in an eviction action is a deceased resident of a manufactured home park, the plaintiff must provide the clerk of court with certain information from the probate court (where applicable) or certain information on the deceased resident's spouse and any other members of the deceased resident's immediate family, if known to the plaintiff. R.C. 1923.06(F),(I).

If the plaintiff provides the information from the probate court, the clerk of court is required to serve the executor or administrator with a copy of the summons and complaint by certified mail, return receipt requested. *Id.*

If the plaintiff provides the information on the spouse or other immediate family members, the clerk of court is required to serve them with a copy of the summons and complaint by certified mail, return receipt requested, by ordinary mail, and by publication in a newspaper of general circulation. *Id.*

4. Time and Method of Service, Drug-Related R.C. 1923.02(A)(6) Eviction

In an eviction action filed under R.C. 1923.02(A)(6)(a) (see Section I.C.5, above), the complaint and summons must be served in accordance with Civil Rules 4.1 and 4.6. R.C. 1923.051(A)(1).³⁸ Furthermore, the service and return of the summons shall be made, if possible, within three working days after the filing of the complaint. R.C. 1923.051(A)(1).

In these eviction actions, the court must schedule a trial date for the eviction claim that is not later than the thirtieth calendar day after the date on which the tenant is properly served with the summons. R.C. 1923.051(A)(2).

H. Answer

In an eviction action, any defense may be asserted at trial, irrespective of whether a written answer has been filed with the court. R.C. 1923.061(A); *Marysville Estates v. Bruce*, No. 14-13-12, 2013 WL 5347438, ¶ 16 n.3 (Ohio App., 3rd Dist., Sept. 23, 2013); *Schmidt v. Hummell*, 81 Ohio App. 167, 73 N.E.2d 806 (10th Dist. 1947). *See*

³⁸ When the legislature amended R.C. 1923.06 in 1999 (see note 5, above), it did not make any corresponding amendment to R.C. 1923.051(A)(1).

also *Shaffer v. Mease*, 66 Ohio App.3d 400, 408, 584 N.E.2d 77 (4th Dist. 1991). A tenant is not required to file a written answer in order to assert a defense at trial. *Id.* If a tenant files a written answer, the tenant may assert additional defenses at trial. *Marysville Estates v. Bruce*, 2013 WL 5347438, ¶ 16 n.3; *Schmidt v. Hummell*, 81 Ohio App. 167, 73 N.E.2d 806 (10th Dist. 1947).

When a complaint includes an eviction claim and one or more non-eviction claims, the tenant has at least twenty-eight days to file an answer to the non-eviction claims. *Wodzisz v. Bayes*, No. 96-APE07-891, 1997 WL 142715, at *4 (Ohio App., 10th Dist., Mar. 25, 1997); *Smith v. Wright*, 65 Ohio App.2d 101, 103, 416 N.E.2d 655 (8th Dist. 1979). For a discussion on consolidation of the trials on these claims, see Section I.M.1, below.

I. Counterclaims

1. Permissive Counterclaims

In an eviction action, the tenant may file a permissive counterclaim under Civil Rule 13(B). *Jemo Assocs. v. Garman*, 70 Ohio St.2d 267, 436 N.E.2d 1353 (1982). See also *Swaney v. Syndicate Mgmt., Inc.*, No. 71422, 1997 WL 209223 (Ohio App., 8th Dist., Apr. 24, 1997).

2. Compulsory Counterclaims

If the eviction complaint alleges only a claim for possession, Civil Rule 13(A) (compulsory counterclaim rule) does not apply to the eviction action. *Soliel Tans, L.L.C. v. Timber Bentley Coe, L.L.C.*, No. 108125, 2019 WL 6358476 (Ohio App., 8th Dist., Nov. 27, 2019); *Forney v. Climbing Higher Enters., Inc.*, 158 Ohio App.3d 338, 815 N.E.2d 722 (9th Dist. 2004); *Carter v. Russo Realtors*, No. 99AP-585, 2000 WL 249137 (Ohio App., 10th Dist., Mar. 7, 2000); *Haney v. Roberts*, 130 Ohio App.3d 293, 720 N.E.2d 101 (4th Dist. 1998); *Chef Italiano Corp. v. Crucible Dev. Corp.*, No. CV-2003-12-7277, 2004 WL 5491217 (Ohio C.P., Summit Cty., Oct. 28, 2004).

If the eviction complaint alleges both a claim for possession and one or more non-eviction claims, Civil Rule 13(A) applies to the non-eviction claims. *Soliel Tans, L.L.C. v. Timber Bentley Coe, L.L.C.*, No. 108125, 2019 WL 6358476 (Ohio App., 8th Dist., Nov. 27, 2019); *Adams v. Romine*, 130 N.E.3d 1050, 2019-Ohio-482 (Ohio App., 5th Dist., 2019); *Forney v. Climbing Higher Enters., Inc.*, 158 Ohio App.3d 338, 815 N.E.2d 722 (9th Dist. 2004); *Sherman v. Pearson*, 110 Ohio App.3d 70, 673 N.E.2d

643 (1st Dist. 1996); *Lable & Co. v. Flowers*, 104 Ohio App.3d 227, 661 N.E.2d 782 (9th Dist. 1995); *McCord v. Costy*, No. CA87-05-036, 1987 WL 27190 (Ohio App., 12th Dist., Dec. 7, 1987); *Salyer v. Chapman*, No. 1771, 1986 WL 11594 (Ohio App., 4th Dist., Oct. 21, 1986); *Maduka v. Parries*, 14 Ohio App.3d 191, 470 N.E.2d 464 (8th Dist. 1984); *Chef Italiano Corp. v. Crucible Dev. Corp.*, No. CV-2003-12-7277, 2004 WL 5491217 (Ohio C.P., Summit Cty., Oct. 28, 2004).

In these cases, Civil Rule 13(A) may apply to the non-eviction claim even if the non-eviction claim is dismissed under Civil Rule 41(A)(1)(a), provided the dismissal occurs after the time period for filing an answer and counterclaims. *Soliel Tans, L.L.C. v. Timber Bentley Coe, L.L.C.*, No. 108125, 2019 WL 6358476 (Ohio App., 8th Dist., Nov. 27, 2019).

Absent evidence that the landlord's monetary claim reached a judgment, Civil Rule 13(A) does not bar a tenant's subsequent action against the landlord for money damages. *Douglas v. Lewis*, No. C-180201, 2019 WL 1474214, ¶ 11 (Ohio App., 1st Dist., Apr. 3, 2019).

In these eviction actions, the determination on whether a counterclaim is a compulsory counterclaim is based on the "logical relations test" set forth in *Rettig Enters. v. Koehler*, 68 Ohio St.3d 274, 626 N.E.2d 99 (1994). *Soliel Tans, L.L.C. v. Timber Bentley Coe, L.L.C.*, No. 108125, 2019 WL 6358476 (Ohio App., 8th Dist., Nov. 27, 2019); *McAlpine v. Patrick*, No. 86453, 2006 WL 562191 (Ohio App., 8th Dist., Mar. 9, 2006); *Forney v. Climbing Higher Enters., Inc.*, 158 Ohio App.3d 338, 815 N.E.2d 722 (9th Dist. 2004); *Sherman v. Pearson*, 110 Ohio App.3d 70, 673 N.E.2d 643 (1st Dist. 1996).

When the claim (potential counterclaim) arises from the landlord-tenant relationship, it meets the *Rettig* logical relations test. *Id.*

Whether the counterclaim is a contract claim or a tort claim is irrelevant to this determination. *Sherman v. Pearson*, 110 Ohio App.3d 70, 673 N.E.2d 643 (1st Dist. 1996). Likewise, whether the counterclaim is a claim for personal injury is irrelevant to this determination. *Id.*

The case law illustrates the range of claims that may be compulsory counterclaims in these eviction actions.

A compulsory counterclaim may be an R.C. 5321.02, 5321.04, 5321.15, invasion of privacy, trespass, or emotional distress claim. *McCord v. Costy*, No. CA87-05-036, 1987 WL 27190 (Ohio App., 12th Dist., Dec. 7, 1987); *Maduka v. Parries*, 14 Ohio App.3d 191, 470 N.E.2d 464 (8th Dist. 1984). *Cf. Salyer v. Chapman*, No. 1771, 1986

WL 11594 (Ohio App., 4th Dist., Oct. 21, 1986) (commercial tenant's monetary claim for landlord's failure to repair roof and heating/cooling system was compulsory counterclaim to landlord's eviction and monetary claims for nonpayment of rent).

A compulsory counterclaim may be an R.C. 5321.04 negligence per se claim.³⁹ *Adams v. Romine*, 130 N.E.3d 1050, 2019-Ohio-482 (Ohio App., 5th Dist., 2019); *Sherman v. Pearson*, 110 Ohio App.3d 70, 673 N.E.2d 643 (1st Dist. 1996); *Derrera v. Hamlin*, No. 02-CV-4851, 2003 WL 25500203 (Ohio C.P., Montgomery Cty., July 11, 2003).

A compulsory counterclaim may be a race discrimination claim. *Lable & Co. v. Flowers*, 104 Ohio App.3d 227, 661 N.E.2d 782 (9th Dist. 1995). *Cf. Turner v. Crawford Square Apts. III, L.P.*, 449 F.3d 542 (3d Cir. 2006) (Pennsylvania res judicata law barred the FHA claim in federal court).

But a tenant's personal injury claim sustained in a storeroom that is not a common area for tenants is not a compulsory counterclaim. *Kerr v. Lakewood Shore Towers, Inc.*, No. 93462, 2010 WL 323424 (Ohio App., 8th Dist., Jan. 28, 2010). It is a common law negligence claim based on a breach of a common law duty that does not arise under the landlord-tenant relationship. *Id.*

3. Compulsory Joinder – Counterclaims of Tenant's Non-Party Child

If a tenant's child is a member of the tenant's household but not named as a party in the eviction action, the child's claims against the landlord relative to the tenancy are not compulsory counterclaims. *McCord v. Costy*, No. CA87-05-036, 1987 WL 27190, at *3-4 (Ohio App., 12th Dist., Dec. 7, 1987).

However, in these circumstances, if the tenant asserts a counterclaim against the landlord based on the personal injury of the tenant's minor child (e.g., the elevated levels of lead in the blood of the tenant's minor child), the claim of the tenant's minor child against the landlord for these personal injuries falls under the Civil Rule 19.1(A)(3) compulsory joinder rule. *Mason v. Douglas*, No. 12-CA-000011, 2012 WL 5984906 (Ohio App., 5th Dist., Nov. 26, 2012).

4. Practice Issues

Any counterclaim in an eviction action must be filed in writing. *Northgate Apts. v.*

³⁹ For a discussion on R.C. 5321.04 negligence per se claims, see Section IX.B, below.

Gonzalez, No. CA80-34, 1981 WL 6340 (Ohio App., 5th Dist., June 26, 1981); *Clark Props. v. Hawk*, No. 76AP-490, 1976 Ohio App. LEXIS 8193 (Ohio App., 10th Dist., Dec. 21, 1976). R.C. 1923.061(A), which permits a tenant to assert any eviction defense at trial without filing a written answer (see Section I.H, above), does not apply to counterclaims in an eviction action. *Id.*

If an eviction complaint alleges only a claim for possession, any counterclaim filed after the court has entered a judgment for the plaintiff, but before the court has ruled on timely objections, may be dismissed under Civil Rule 12(B)(6) on the ground that the counterclaims cannot “be filed at that point in the litigation.” *Phillips v. Thompson*, No. 29803, 2021 WL 6068489, ¶ 16 (Ohio App., 9th Dist., Dec. 22, 2021).

A counterclaim in an eviction action may be determinative of whether the landlord or tenant is entitled to possession of the premises. *E.g.*, R.C. 1923.061(B);⁴⁰ *Behrle v. Beam*, 6 Ohio St.3d 41, 451 N.E.2d 237 (1983) (counterclaim for specific performance of a purchase option in a lease). However, it also may be unrelated to the possession issue. *E.g.*, *Smith v. Wright*, 65 Ohio App.2d 101, 416 N.E.2d 655 (8th Dist. 1979). *See also* Ohio R. Civ. P. 13(B).

J. Jury Demand

1. Party’s Right to a Trial by Jury

Any party in an eviction action has a right to a trial by jury, provided the jury demand is filed timely, the requisite advance deposits are paid timely or waived, and the tenant has not waived the right to a trial by jury.

The right to a trial by jury in an eviction action is established in R.C. 1923.10. *Fodor v. First Nat’l Supermarkets, Inc.*, 63 Ohio St.3d 489, 589 N.E.2d 17 (1992); *Showe Mgmt. Corp. v. Mountjoy*, 154 N.E.3d 141, 2020-Ohio-2772 (Ohio App., 12th Dist., 2020); *Martin v. Rogers*, 42 Ohio App.3d 110, 536 N.E.2d 665 (8th Dist. 1987);

⁴⁰ For a discussion on R.C. 1923.061(B), see Section II.O, below.

Pernell v. Southall Realty, 416 U.S. 363, 384-85 & n.34 (1974).⁴¹ The summons in an eviction action provides notice of this right with the statement that “[y]ou may request a trial by jury.” R.C. 1923.06(B).

The right to a trial by jury in an eviction action is also established in the Ohio Constitution. *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998). Article I, Section 5 of the Ohio Constitution “preserves the right of trial by jury in cases where under the principles of the common law it existed previously to the adoption of the Ohio Constitution.” *Belding v. State ex rel. Heifner*, 121 Ohio St. 393, 396, 169 N.E. 301 (1929). *Accord Hoops v. United Tel. Co. of Ohio*, 50 Ohio St.3d 97, 98-99, 553 N.E.2d 252 (1990); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416, at *2 (Ohio App., 4th Dist., Mar. 5, 1998). The right to a trial by jury in actions to recover land, including summary eviction actions, existed under the principles of the common law in 1791 and thus prior to the adoption of the Ohio Constitution. See *Pernell v. Southall Realty*, 416 U.S. 363 (1974); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998); *Lorain Metro. Hous. Auth. v. Lewis*, No. 06-CVG-01137 (Ohio Mun., Elyria, June 27, 2006).

2. Time Period for Filing a Jury Demand

The time period in which a jury demand may be filed, absent a local court rule, is unclear.

R.C. 1923.09 provides that, in an action under R.C. Chapter 1923, “if neither party demands a jury on the return day of the summons, a judge of the court shall try the case.”⁴²

However, the return day of the summons, under R.C. 1923.09, is not a timeframe

⁴¹ See also *Bennington v. Robinson*, No. 1999-CA-00212, 2000 WL 222156 (Ohio App., 5th Dist., Feb. 7, 2000); *Oakwood Mgmt. Co. v. Richards*, No. 99AP-627, 1999 WL 1124692 (Ohio App., 10th Dist., Dec. 9, 1999); *Long v. Abele*, No. CT98-0018, 1998 WL 752040 (Ohio App., 5th Dist., Oct. 9, 1998); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998); *Nenadal v. Landerwood Co.*, No. 65428, 1994 WL 189375 (Ohio App., 8th Dist., May 12, 1994); *Stacy v. Carr*, No. CA-519, 1992 WL 37783 (Ohio App., 4th Dist., Feb. 20, 1992); *Lable & Co. v. Francis*, No. 89-J-39, 1991 WL 24982 (Ohio App., 7th Dist., Feb. 22, 1991).

⁴² A revision of R.C. 1923.09 in 1987 made this provision applicable to any court that is hearing an eviction action. Before then, R.C. 1923.09 applied only to county courts. Ohio Rev. Code Ann. § 1923.09 (Anderson 1983).

for the filing of a jury demand. *Bonham v. Mills*, 39 Ohio St. 534 (1883) (construing statutory provision that is now R.C. 1923.09); *Lorain Metro. Hous. Auth. v. Lewis*, No. 06-CVG-01137 (Ohio Mun., Elyria, June 27, 2006); *Miller v. Schmidt*, 5 Ohio Dec. 4, 1894 WL 687 (Ohio C.P., Hamilton Cty., 1894); *Hill v. Hollister*, 8 Ohio Dec. Reprint 116, 1880 WL 5818 (Ohio C.P., Huron Cty., Nov. 1880). See also *Savage v. Wright*, No. L-75-123, 1975 Ohio App. LEXIS 8370 (Ohio App., 6th Dist., Nov. 21, 1975) (R.C. 1923.09 timeframe too restrictive for jury demand filing; in interest of justice, filing is permissible up to three days before date set for trial). But see *Showe Mgmt. Corp. v. Mountjoy*, 154 N.E.3d 141, 2020-Ohio-2772 (Ohio App., 12th Dist., 2020) (applied the R.C. 1923.09 time period for the filing of a jury demand).

Until 1987, R.C. 1901.24 included a time period for filing a jury demand in municipal court that could be used in an eviction action. See, e.g., *Adm'r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 276-77, 535 N.E.2d 369 (9th Dist. 1987); *Savage v. Wright*, No. L-75-123, 1975 Ohio App. LEXIS 8370 (Ohio App., 6th Dist., Nov. 21, 1975). It provided that the time period for filing a jury demand in municipal court is the time period established in the local court rule or, absent a local court rule, not less than three days before the date set for trial. Ohio Rev. Code Ann. § 1901.24 (Anderson 1983). See *Lorain Metro. Hous. Auth. v. Lewis*, No. 06-CVG-01137 (Ohio Mun., Elyria, June 27, 2006).

But, when R.C. 1901.24 was revised in 1987, the three-day rule was supplanted by a general cross-reference to the Ohio Rules of Civil Procedure. See *Lorain Metro. Hous. Auth. v. Lewis*, No. 06-CVG-01137 (Ohio Mun., Elyria, June 27, 2006). R.C. 1901.24 now reads, in relevant part: “A jury trial in a municipal court shall be demanded in the manner prescribed in the Rules of Civil Procedure”

Civil Rule 38(B) provides that the time period for filing a jury demand is “at any time after the commencement of the action and not later than fourteen days after the service of the last pleading directed to such issue.”⁴³ However, by filing a written answer in an eviction action, a tenant could extend this time period up to (and beyond) the trial date. Consequently, at least two court decisions have held that Civil Rule 38(B) does not apply to eviction actions. *Showe Mgmt. Corp. v. Mountjoy*, 154 N.E.3d 141, 2020-Ohio-2772 (Ohio App., 12th Dist., 2020); *Litoff v. D. H. Overmyer Co., Inc.*,

⁴³ Civil Rule 38(B) does not preclude a more restrictive time period for filing a jury demand under a local court rule, provided the time period is reasonable. *Hocking Metro. Hous. Auth. v. Martin*, 97-CA-9, 1998 WL 100416, at *2 (Ohio App., 4th Dist., Mar. 5, 1998).

No. 32989 (Ohio App., 8th Dist., Mar. 21, 1974).

Whatever statutory, Civil Rule, or local court rule requirement is applicable, it must establish a time period for filing a jury demand that is reasonable so as to comply with the Ohio Constitution. “[T]here may not constitutionally be any impairment or denial of the right of trial by jury [guaranteed by Article I, Section 5 of the Ohio Constitution].” *Walters v. Griffith*, 38 Ohio St.2d 132, 133, 311 N.E.2d 14 (1974). This means that “that right may be subject to moderate and reasonable regulation” only. *Id.* *Accord Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416, at *2 (Ohio App., 4th Dist., Mar. 5, 1998); *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292, at *6 (Ohio App., 8th Dist., Jan. 18, 1996); *Kelly v. Abu-Aun*, No. 64869, 1994 WL 86215, at *1-2 (Ohio App., 8th Dist., Mar. 17, 1994).

While no court decision directly addresses this issue, the case law provides some guidance on what constitutes a reasonable time period for filing a jury demand, relative to the requirements of Article I, Section 5 of the Ohio Constitution. The decision most directly on point is *Savage v. Wright*, No. L-75-123, 1975 Ohio App. LEXIS 8370 (Ohio App., 6th Dist., Nov. 21, 1975). It struck down a local court rule that incorporated the R.C. 1923.09 time period for filing a jury demand (*i.e.*, by the return day of the summons). It used an “interest of justice” standard, which is analogous to the “reasonable time” standard of Article I, Section 5 of the Ohio Constitution. Under this standard, it held that the time period for filing a jury demand in an eviction action is up to three days before the trial date. *But cf. Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416, at *2 (Ohio App., 4th Dist., Mar. 5, 1998) (upheld constitutionality of a local court rule that provided that, if a tenant in an eviction action fails to post a \$175 deposit within three days of the service of the summons, the tenant waives the right to a trial by jury).

3. Advance Deposit Requirements for Filing a Jury Demand

a. Introduction

Two types of advance deposits may be required of a tenant who requests a trial by jury in an eviction action. The first is the advance deposit that a municipal court may require under R.C. 1901.26(A)(3). This deposit is discussed in Section I.J.3.b, below. The second is an advance deposit of current rent that a court may require, together with an order to deposit subsequent rent as it becomes due, under the court’s inherent power

or R.C. 1923.08. This deposit is discussed in Section I.J.3.c, below.

b. R.C. 1901.26(A)(3) Deposit Requirement

R.C. 1901.26(A)(3) provides that the rules of a municipal court may require a party who demands a trial by jury in a civil action “to make an advance deposit as fixed by rule of court, unless, upon affidavit or other evidence, the court concludes that the party is unable to make the required deposit.” It also provides that the fees of a jury shall be taxed as costs.

Because Article I, Section 5 of the Ohio Constitution establishes the right to a trial by jury in an eviction action (see Section I.J.1, above), and because this constitutional right may be subject only to moderate and reasonable regulation (*see Walters v. Griffith*, 38 Ohio St.2d 132, 311 N.E.2d 14 (1974)), the amount of any R.C. 1901.26(A)(3) advance deposit requirement may not exceed the amount that constitutes moderate and reasonable regulation of this constitutional right. *See Walters v. Griffith*, 38 Ohio St.2d 132, 311 N.E.2d 14 (1974); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998); *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292 (Ohio App., 8th Dist., Jan. 18, 1996); *Kelly v. Abu-Aun*, No. 64869, 1994 WL 86215 (Ohio App., 8th Dist., Mar. 17, 1994).

The case law provides some guidance on the advance deposit amounts that meet this moderate and reasonable regulation standard. The Ohio Supreme Court has held that “requiring the cost of summoning jurors and the fees of jurors to be secured in advance by the party demanding the jury ... is ... a moderate and reasonable restriction upon the enjoyment of the right of a trial by jury and is not an impairment of that right.” *Miller v. Eagle*, 96 Ohio St. 106, 110, 117 N.E. 23 (1917). *Accord Walters v. Griffith*, 38 Ohio St.2d 132, 133, 311 N.E.2d 14 (1974).

Also, courts have held that advance deposit requirements in the amounts of ten dollars, one hundred fifty dollars, and one hundred seventy-five dollars, respectively, do not constitute a violation of Article I, Section 5 of the Ohio Constitution. *Walters v. Griffith*, 38 Ohio St.2d 132, 311 N.E.2d 14 (1974) (\$10 advance deposit); *Dondorfer v. Wolf*, No. 13-010, 1988 WL 105568 (Ohio App., 11th Dist., Oct. 7, 1988) (\$150 advance deposit); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998) (\$175 advance deposit).

In contrast, an appellate court judge, in a concurring opinion, found that a requirement “of an advance deposit of \$300.00 to \$400.00 is not a moderate and

reasonable restriction of the right of a jury trial and constitutes an unconstitutional abridgement and impairment of the right of trial by jury.” *Lewis Furniture Co. v. Dunkin*, No. 1175, 1979 Ohio App. LEXIS 12447, at *3 (Ohio App., 4th Dist., Mar. 26, 1979) (Stephenson, J., concurring).

When a party is unable to make the R.C. 1901.26(A)(3) advance deposit because of the party’s indigency, the court is required to waive this deposit requirement. R.C. 1901.26(A)(3) exempts from its advance deposit requirement those parties that the court concludes are unable to make the required deposit. If the party’s affidavit or other evidence demonstrates the party’s inability to make this advance deposit, under R.C. 1901.26(A)(3), the court is required to determine whether in fact the party is indigent and, if the determination is affirmative, the court is required to waive the R.C. 1901.26(A)(3) advance deposit. *Cf. Lable & Co. v. Francis*, No. 89-J-39, 1991 WL 24982 (Ohio App., 7th Dist., Feb. 22, 1991) (construing analogous provision of R.C. 1907.24(A) on waiver of advance deposits for jury demands in county courts).⁴⁴

Furthermore, because the Ohio Constitution establishes the right to a trial by jury in an eviction action (see Section I.J.1, above), the Due Process Clause of the Fourteenth Amendment to the U.S. Constitution requires a waiver of the R.C. 1901.26(A)(3) advance deposit requirement for indigent parties. *See Lecates v. Justice of Peace Court No. 4, Etc.*, 637 F.2d 898 (3d Cir. 1980).

c. Rent Deposit Requirement

When the tenant’s filing of a jury demand requires the court to continue the trial date of the eviction action, as a condition precedent to the jury trial, the court may, in the exercise of its discretion, order the tenant to deposit with the court the rent for the current month and, thereafter, to deposit the rent as it becomes due.⁴⁵ *E.g., State ex rel. Dooley v. Riley*, No. 14447, 1994 WL 53838 (Ohio App., 2nd Dist., Feb. 24, 1994);

⁴⁴ A county court is required to waive for indigent parties any advance deposit requirement for filing a jury demand in an eviction action notwithstanding R.C. 1923.101, which provides that in such actions “a party demanding a jury shall first deposit money with the court sufficient to pay the jury fee.” *Lable & Co. v. Francis*, No. 89-J-39, 1991 WL 24982 (Ohio App., 7th Dist., Feb. 22, 1991).

⁴⁵ These rent deposit orders are not final appealable orders. *See McCarty v. Evans*, No. 02-CA-17, 2003 WL 1563771 (Ohio App., 4th Dist., Mar. 19, 2003) (bond order not final appealable order, where tenant’s jury request on landlord’s money claim is conditioned on posting a bond in the amount of landlord’s rent claim).

Gem Mgmt. Co. v. Walker, No. 60139, 1991 WL 26635 (Ohio App., 8th Dist., Feb. 28, 1991); *Martin v. Rogers*, 42 Ohio App.3d 110, 536 N.E.2d 665 (8th Dist. 1987). See also *Cuyahoga River Assocs. Ltd. P'ship v. MJK Corp.*, No. 68673, 1996 WL 17292 (Ohio App., 8th Dist., Jan. 18, 1996); *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 65 Ohio App.3d 335, 583 N.E.2d 1339 (11th Dist. 1989).

The authority on which some courts rely for these rent deposit orders is R.C. 1923.08. *Id.* This reliance on R.C. 1923.08 seems misplaced. R.C. 1923.08 applies only when the tenant requests a continuance for a period of longer than eight days, and the court grants it. See Section I.K, below. Since a request for a trial by jury is not a request for a continuance, it seems to fall outside the purview of R.C. 1923.08.

These rent deposit orders are more appropriately issued under the court's inherent authority. "[A] court has inherent power to order the escrow of funds likely to be the subject of the final judgment." *Meyer v. Chieffo*, Nos. 08AP-867,877, 2009 WL 1653561, ¶ 22 (Ohio App., 10th Dist., June 11, 2009). Therefore, a trial court has inherent authority to order a tenant to deposit with the court the tenant's monthly rent while an eviction action is pending. *Id.*, ¶ 23 (monthly land installment payments); *PK Mgmt. LLC v. Hayes*, No. 2011-CVG-008188 (Ohio Mun., Cleveland, Hous. Div., July 7, 2011) (monthly rental payments). See also *Cunningham v. Phoenix Mgmt., Inc.*, 540 A.2d 1099 (D.C. App. 1988); *Bell v. Tsintolas Realty Co.*, 430 F.2d 474 (D.C. Cir. 1970).

A requirement to pay rent as the rent becomes due during the pendency of the eviction action is a reasonable limitation on the tenant's right to a trial by jury. See *Kargman v. Dustin*, 5 Mass. App. Ct. 101, 110, 359 N.E.2d 971 (1977); *Bell v. Tsintolas Realty Co.*, 430 F.2d 474, 482 (D.C. Cir. 1970). Therefore, it does not violate the tenant's constitutional right to a trial by jury. See Section I.J.3.b, above.

4. Waiver of the Right to a Trial by Jury

Ohio law prohibits any residential rental agreement provision that purports to waive the right of the parties to a trial by jury in an eviction action. *Herman and Kettle Props., Inc. v. Klenk*, No. 18-CVG-02895 (Ohio Mun., Hamilton, Mar. 15, 2019). This prohibition arises from R.C. 5321.06, which prohibits any provision in a rental agreement that is inconsistent with or prohibited by R.C. Chapter 5321 or any other rule of law. *Id.* A jury waiver provision is inconsistent with R.C. 1923.10, which is a statutory rule of law that established the right to a trial by jury in eviction actions. *Id.* A jury waiver provision is also inconsistent with the Ohio Constitution, which includes

a constitutional rule of law that, for the reasons discussed in Section I.J.1, above, establishes the right to a trial by jury in eviction actions.

The Eleventh Appellate District, in two decisions, has held that these jury waiver provisions are not unconscionable under R.C. 5321.14 and thereupon has enforced them. *Mentor Lagoons, Inc. v. Mayor*, No. 10-180, 1985 WL 7807 (Ohio App., 11th Dist., Mar. 1, 1985); *Mentor Lagoons, Inc. v. Geldart*, No. 6-265, 1979 WL 208017 (Ohio App., 11th Dist., Jan. 29, 1979). But, in these decisions, the courts did not rule on (or even consider) whether these jury waiver provisions are prohibited under R.C. 5321.06. Since these jury waiver provisions are prohibited under R.C. 5321.06, whether they are unconscionable under R.C. 5321.14 is immaterial.

However, a party may waive the right to a trial by jury on other grounds. The waiver may result from, among other things: (1) a failure to file timely a jury demand, (2) a failure to pay a required advance deposit or rent deposit, (3) a failure to file jury instructions in accordance with a local court rule, or (4) a failure to object at trial to the lack of a jury, when a jury has been demanded timely.

In an eviction action, like any other action, the failure of a party to demand timely a trial by jury constitutes a waiver of the party's right to a trial by jury. *Preston v. Thornton*, No. 29771, 2021 WL 1293724 (Ohio App., 9th Dist., Apr. 7, 2021); *Oakwood Mgmt. Co. v. Richards*, No. 99AP-627, 1999 WL 1124692 (Ohio App., 10th Dist., Dec. 9, 1999); *Long v. Abele*, No. CT98-0018, 1998 WL 752040 (Ohio App., 5th Dist., Oct. 9, 1998); *Cuyahoga River Assocs. Ltd. P'ship v. MJK Corp.*, No. 68673, 1996 WL 17292 (Ohio App., 8th Dist., Jan. 18, 1996); *Knoll Group Mgmt. Co. v. Wolfe*, Nos. 93-CA-553,554, 1994 WL 326347 (Ohio App., 4th Dist., June 28, 1994); *Adm'r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 535 N.E.2d 369 (9th Dist. 1987).

The local court rules determine whether a non-indigent party's failure to pay an R.C. 1901.26(A)(3) advance deposit constitutes a waiver of the right to a trial by jury. If the local court rule states that nonpayment of the advance deposit constitutes a waiver of the right to a trial by jury, nonpayment of the deposit will constitute a waiver

of that right.⁴⁶ *Walters v. Griffith*, 38 Ohio St.2d 132, 311 N.E.2d 14 (1974); *Arlington Natural Gas Co. v. Martens*, 173 Ohio App.3d 450, 456, 878 N.E.2d 1088 (3rd Dist. 2007); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416, at *3 (Ohio App., 4th Dist., Mar. 5, 1998). If the local court rule fails to state that nonpayment of the advance deposit constitutes a waiver of the right to a trial by jury, nonpayment of the deposit cannot constitute a waiver of that right. *Warrick v. Gaudynski*, No. L-86-358, 1987 WL 18442, at *2 (Ohio App., 6th Dist., Oct. 16, 1987).

When a court orders a tenant to make an advance deposit with the court in connection with the tenant's jury demand, the tenant's failure to make the deposit constitutes a waiver of the right to a trial by jury. *Burton Carol Mgmt., LLC v. Tessmer*, No. 2015-L-035, 2015 WL 6126186, ¶ 11 (Ohio App., 11th Dist., Oct. 19, 2015); *Gem Mgmt. Co. v. Walker*, No. 60139, 1991 WL 26635, at *1 (Ohio App., 8th Dist., Feb. 28, 1991); *Martin v. Rogers*, 42 Ohio App.3d 110, 111, 536 N.E.2d 665 (8th Dist. 1987).

When a court rule requires any party who demands a trial by jury in an eviction action to file timely jury instructions with the court, a party's failure to comply with that requirement constitutes a waiver of the party's right to a trial by jury. *Cotofan v. Cully*, No. 58285, 1991 WL 76028 (Ohio App., 8th Dist., May 9, 1991).

When a party has demanded timely a trial by jury but the court nonetheless conducts a bench trial to which no objection is made, the case law is split on whether the failure to object to the lack of a trial by jury constitutes a waiver of the right to a trial by jury. *Compare Bennington v. Robinson*, No. 1999-CA-00212, 2000 WL 222156 (Ohio App., 5th Dist., Feb. 7, 2000) (waiver), *Nenadal v. Landerwood Co.*, No. 65428, 1994 WL 189375 (Ohio App., 8th Dist., May 12, 1994), and *Henning v. Steiner*, No. 2725, 1992 WL 281326 (Ohio App., 9th Dist., Oct. 7, 1992) with *Carl Sectional Home, Inc. v. Key Corp.*, 1 Ohio App.3d 101, 439 N.E.2d 915 (10th Dist. 1981) (no waiver).

⁴⁶ Nonpayment of an R.C. 1901.26(A)(3) advance deposit can constitute a waiver of the right to a trial by jury even in the absence of notice to the party of the local court rule. *Burfitt v. Stewart*, Nos. 55530,55531, 1989 WL 113079, at *1 (Ohio App., 8th Dist., Sept. 28, 1989); *Dondorfer v. Wolf*, No. 13-010, 1988 WL 105568, at *1-2 (Ohio App., 11th Dist., Oct. 7, 1988). The clerk of court does not have a duty to notify a party of the local court rule requiring an advance deposit for filing a jury demand. *Dondorfer*, 1988 WL 105568, at *1-2. A party is required to know the local court rules. *Burfitt*, 1989 WL 113079, at *1.

5. Withdrawal of a Jury Demand

When a party has filed a jury demand, the party may withdraw the jury demand only if the opposing party consents to the withdrawal. Ohio R. Civ. P. 38(D).

K. Continuance and Bond

Courts have authority to grant continuances under their general supervisory power over their docket. “Independent of statute, as an incident to their authority to hear and determine cases, courts have power to grant continuances.” *State ex rel. Buck v. McCabe*, 140 Ohio St. 535, 537, 45 N.E.2d 763 (1942). *Accord Kidd v. Cincinnati Transit Co.*, 24 Ohio App.2d 101, 102, 265 N.E.2d 297 (1st Dist. 1970).

This authority to grant continuances of the trial date is generally applicable to an eviction action. *See See v. Sabau*, No. 62047, 1992 WL 30951, at *2-4 (Ohio App., 8th Dist., Feb. 20, 1992); *Swartz v. Schutte*, No. 14717, 1991 WL 2022, at *2 (Ohio App., 9th Dist., Jan. 9, 1991); *Bar Hotel Co. v. Lloyd MacKeown Buick Co.*, 104 Ohio App. 69, 74, 146 N.E.2d 879 (3rd Dist. 1957). The only eviction actions in which the court may not continue the trial date are drug-related eviction actions that have been filed under R.C. 1923.02(A)(6)(a). *See* R.C. 1923.051(C).

In an eviction action, the decision whether to grant a continuance of the trial date is committed to the discretion of the trial court. *Krantz v. Pahnke*, No. 2021-CA-0043, 2022 WL 39486, ¶ 37 (Ohio App., 5th Dist., Jan. 5, 2022); *Oakwood Mgmt. Co. v. Richards*, No. 99AP-627, 1999 WL 1124692, at *2 (Ohio App., 10th Dist., Dec. 9, 1999); *Youngstown Metro. Hous. Auth. v. Barry*, No. 94-CA-147, 1996 WL 734017, at *2 (Ohio App., 7th Dist., Dec. 16, 1996); *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292, at *2 (Ohio App., 8th Dist., Jan. 18, 1996); *Swartz v. Schutte*, No. 14717, 1991 WL 2022, at *2 (Ohio App., 9th Dist., Jan. 9, 1991).

Likewise, the decision on the length of any such continuance is generally committed to the discretion of the trial court. *Bar Hotel Co. v. Lloyd MacKeown Buick Co.*, 104 Ohio App. 69, 146 N.E.2d 879 (3rd Dist. 1957).

However, R.C. 1923.08 establishes certain constraints on the court’s authority to grant a continuance in excess of eight days on an eviction claim, when the landlord or the tenant has requested the continuance.

When a landlord requests a continuance in excess of eight days on an eviction claim, R.C. 1923.08 prohibits the court from granting the continuance unless the tenant consents to it.

When a tenant requests and is granted a continuance in excess of eight days on an eviction claim, R.C. 1923.08 requires the tenant to post a bond.

The amount of the R.C. 1923.08 bond is the amount of rent that may accrue during the period of the continuance. *State ex rel. Dooley v. Riley*, No. 14447, 1994 WL 53838 (Ohio App., 2nd Dist., Feb. 24, 1994); *Gem Mgmt. Co. v. Walker*, No. 60139, 1991 WL 26635 (Ohio App., 8th Dist., Feb. 28, 1991); *Brown v. Fay Apts.*, 62 Ohio Misc.2d 188, 594 N.E.2d 190 (Ohio Mun., Hamilton Cty., 1991). E.g., *Fair Acres MHC LLC v. Arrington*, No. 2020-CVG-0003R (Ohio Mun., Portage Cty., Jan. 28, 2020) (for two-week continuance, bond set at the rent amount prorated for two weeks). See also *Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.*, 67 Ohio St.2d 19, 30, 423 N.E.2d 1070 (1981).

R.C. 1923.08 does not require the tenant to deposit with the court alleged past due rent. *Riley*, 1994 WL 53838, at *1; *Walker*, 1991 WL 26635, at *1; *Brown*, 62 Ohio Misc.2d at 189.

This R.C. 1923.08 bond requirement is mandatory, not discretionary. *Cuyahoga River Assocs. Ltd. P'ship v. MJK Corp.*, No. 68673, 1996 WL 17292, at *3 (Ohio App., 8th Dist., Jan. 18, 1996); *State ex rel. Dooley v. Riley*, No. 14447, 1994 WL 53838, at *1 (Ohio App., 2nd Dist., Feb. 24, 1994); *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 65 Ohio App.3d 335, 338-39, 583 N.E.2d 1339 (11th Dist. 1989).

Because this bond requirement is mandatory, the court may not grant a tenant a continuance of indefinite duration on an eviction claim. *Callahan*, 65 Ohio App.3d at 339. “The exact duration is needed not only to determine whether the bond must be posted before the continuance is granted, but it is also needed to determine whether the posted bond is sufficient to cover the possible loss the landlord could sustain.” *Id.*

The purpose of the bond is to insure that, “if the defendant [is] ... granted a continuance, the delay will not ... [be] monetarily prejudicial to the plaintiff.” *Hilltop Vill. v. West*, No. L-88-120, 1989 WL 10277, at *5 (Ohio App., 6th Dist., Feb. 10, 1989). Accord *State ex rel. Dooley v. Riley*, No. 14447, 1994 WL 53838, at *1 (Ohio App., 2nd Dist., Feb. 24, 1994); *Brown v. Fay Apts.*, 62 Ohio Misc.2d 188, 189, 594 N.E.2d 190 (Ohio Mun., Hamilton Cty., 1991).

Accordingly, if the landlord prevails on the eviction claim, the rent deposited with the court under R.C. 1923.08 may be released to the landlord. *West*, 1989 WL 10277, at *5; *Talbot v. Resler*, 64 Ohio Law Abs. 461, 462, 113 N.E.2d 21, 22 (Ohio App., 2nd Dist., 1952).

When a tenant is required to post a bond under R.C. 1923.08 and fails to do so, the

tenant is not entitled to a continuance, irrespective of the tenant's reason for requesting the continuance. *Alex-Bell Oxford Ltd. P'ship v. Woods*, No. 16038, 1998 WL 289028, at *4 (Ohio App., 2nd Dist., June 5, 1998). However, such tenants are still entitled to a hearing on the eviction claim. *Bester v. Owens*, No. 17388, 1999 WL 179261, at *3 (Ohio App., 2nd Dist., Mar. 31, 1999).

When a continuance in excess of eight days is granted on an eviction claim, but it is not granted pursuant to a request by the tenant, R.C. 1923.08 does not require the tenant to post a bond.⁴⁷ *Ambrosia Coal & Constr. Co. v. C.B.G., Inc.*, No. 94-CA-199, 1996 WL 242915, at *3 (Ohio App., 7th Dist., May 9, 1996); *Talbot v. Resler*, 64 Ohio Law Abs. 461, 462, 113 N.E.2d 21 (Ohio App., 2nd Dist., 1952).

For example, R.C. 1923.08 does not require the tenant to post a bond when the landlord has requested and the tenant has consented to the continuance. *Talbot*, 64 Ohio Law Abs. at 462. See also *Bester v. Owens*, No. 17388, 1999 WL 179261, at *3 (Ohio App., 2nd Dist., Mar. 31, 1999).

Likewise, R.C. 1923.08 does not require the tenant to post a bond when the court, on its own, continues the eviction hearing. *Galilee Missionary Baptist Church v. Bibby*, No. 25746, 2011 WL 4059951, ¶ 16 (Ohio App., 9th Dist., Sept. 14, 2011); *Ambrosia Coal & Constr. Co.*, 1996 WL 242915, at *3.

Without any apparent support in the language of R.C. 1923.081,⁴⁸ a few court decisions in the 1970s seemed to construe R.C. 1923.081 as additional authority to grant a continuance of the trial date on an eviction claim, at least where the ground for the continuance was one of the R.C. 1923.081 examples of "good cause."⁴⁹ E.g., *Weiss v. Roberts*, No. 38363, 1978 Ohio App. LEXIS 9956 (Ohio App., 8th Dist., Mar. 16,

⁴⁷ When the R.C. 1923.08 bond requirement is inapplicable, the court still has inherent authority to order a tenant to deposit with the court rent that accrues during the pendency of the continuance. See *Meyer v. Chieffo*, Nos. 08AP-867,877, 2009 WL 1653561, ¶¶ 22,23 (Ohio App., 10th Dist., June 11, 2009); *PK Mgmt. LLC v. Hayes*, No. 2011-CVG-008188 (Ohio Mun., Cleveland, Hous. Div., July 7, 2011). See also *Cunningham v. Phoenix Mgmt., Inc.*, 540 A.2d 1099 (D.C. App. 1988); *Bell v. Tsintolas Realty Co.*, 430 F.2d 474 (D.C. Cir. 1970).

⁴⁸ R.C. 1923.081 provides that, when a complaint alleges a claim for possession and a claim for past due rent and other damages under the rental agreement, the court may consolidate the trials on these claims or continue the trial on the monetary claim for good cause shown. See Section I.M.1, below.

⁴⁹ The R.C. 1923.081 definition of good cause includes three examples: a tenant's request to file an answer, a tenant's request to file a counterclaim, and a tenant's request to conduct discovery.

1978); *Clark Props. v. Hawk*, No. 76AP-490, 1976 Ohio App. LEXIS 8193 (Ohio App., 10th Dist., Dec. 21, 1976); *Lobo v. Hoelscher*, 44 Ohio Misc. 46, 336 N.E.2d 475 (Ohio Mun., Dayton, 1975).

These courts further held that the decision on whether to grant this R.C. 1923.081 continuance is committed to the discretion of the trial court. *Weiss v. Roberts*, No. 38363, 1978 Ohio App. LEXIS 9956 (Ohio App., 8th Dist., Mar. 16, 1978).

L. Jurisdictional Issues

1. Certification to a Court of Common Pleas

Municipal courts, county courts, and courts of common pleas have concurrent original jurisdiction in eviction actions. *Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.*, 67 Ohio St.2d 19, 423 N.E.2d 1070 (1981). Nonetheless, eviction actions usually are filed in a municipal or county court.

In such cases, because municipal and county courts are courts of limited monetary jurisdiction,⁵⁰ the filing of a counterclaim may require the proceeding to be certified to the court of common pleas under Civil Rule 13(J). This certification is mandatory when a properly filed counterclaim requests monetary relief in excess of the court's monetary jurisdiction. *Widder & Widder v. Kutnick*, 113 Ohio App.3d 616, 626, 681 N.E.2d 977 (8th Dist. 1996) (municipal court); *O'Hara Realty v. Lloyd*, 116 Ohio App.3d 439, 440, 688 N.E.2d 544 (7th Dist. 1996) (county court).

If a municipal or county court is without jurisdiction to hear a properly filed counterclaim in an eviction action because the counterclaim's monetary claim exceeds the court's monetary jurisdiction, the court is required to certify the entire case, including the claim for possession, to the court of common pleas.⁵¹ *Scott v. Scott*, __ N.E.3d __, 2022-Ohio-1052 (Ohio App., 7th Dist., 2022); *O'Hara Realty v. Lloyd*, 116 Ohio App.3d 439, 688 N.E.2d 544 (7th Dist. 1996); *Marino v. Grewell*, No. 93AP-020012, 1993 WL 364937 (Ohio App., 5th Dist., Aug. 5, 1993); *Pete's Grill, Inc. v.*

⁵⁰ For a discussion on the monetary jurisdiction of municipal and county courts, see Section XX.B, below.

⁵¹ In an eviction action filed in a housing division of a municipal court, the amount of the monetary relief sought in a counterclaim does not affect the jurisdiction of the housing division to hear the eviction action and the counterclaim. See Section XX.E, below. A housing division currently exists in two municipal courts in Ohio, the Cleveland Municipal Court and the Toledo Municipal Court. R.C. 1901.011.

EnterCorp, No. 61547, 1992 WL 369301 (Ohio App., 8th Dist., Dec. 10, 1992); *Morrow v. Gates*, No. CA91-11-021, 1992 WL 156116 (Ohio App., 12th Dist., June 29, 1992); *Carter v. Bayes*, No. 1889, 1990 WL 71862 (Ohio App., 4th Dist., May 1, 1990); *Bohinc v. Stafford*, No. 52335, 1987 WL 8138 (Ohio App., 8th Dist., Mar. 19, 1987);⁵² *State ex rel. Penn v. Swain*, 21 Ohio App.3d 119, 486 N.E.2d 1187 (11th Dist. 1984); *Richmond Homes, Inc. v. Brown*, 3 Ohio App.3d 204, 444 N.E.2d 463 (10th Dist. 1981). See also *Crossings Dev. Ltd. P'ship v. H.O.T., Inc.*, 96 Ohio App.3d 475, 478, 645 N.E.2d 159 (9th Dist. 1994).

A few appellate court decisions, based on an erroneous conclusion of law, have imposed a qualification to this certification requirement. E.g., *Lyons v. Link*, No. 03-CA-000006, 2003 WL 21213656, (Ohio App., 5th Dist., May 27, 2003), *Isaiah's Wings, LLC v. McCourt*, No. 2005-CA-39, 2006 WL 1901015 (Ohio App., 5th Dist., July 7, 2006) (follows *Lyons*); *New Asian Super Market v. Weng*, 110 N.E.3d 131, 2018-Ohio-1248 (Ohio App., 10th Dist., 2018) (follows *Isaiah's Wings*).⁵³ Their erroneous conclusion of law is their conclusion that Civil Rule 13(J) does not apply to FED actions. Since a transfer of an eviction claim under Civil Rule 13(J) simply substitutes judges, it does not interfere with the summary nature of eviction actions and therefore applies to eviction claims (as held by the court decisions cited in the immediately preceding paragraph). E.g., *Batavia Woods LLC v. Wainwright*, No. 2013-CVG-0218 (Ohio Mun., Clermont Cty., Aug. 7, 2013) (in certifying the FED claim along with the fair housing and defective condition counterclaims, court rejects landlord's argument that certification of the FED claim would delay the FED hearing and thereby prejudice the landlord). See generally Section I.B., above.

The qualification that *Lyons*, *Isaiah's Wings*, and *Weng* impose, in lieu of Civil

⁵² The Eighth Appellate District decisions in *Pete's Grill* and *Bohinc* effectively overrule the contrary rulings in *J & E Mgmt., Inc. v. Wolf*, No. 35563, 1977 Ohio App. LEXIS 7324 (Ohio App., 8th Dist., Feb. 10, 1977), and *Swenson's Ice Cream v. Swenson's, Inc.*, 1 Ohio B. 324 (Ohio C.P., Cuyahoga Cty., 1982).

⁵³ In *Lyons*, the court held that the eviction for nonpayment of rent was not directly related to the R.C. 5321.04 violation counterclaim on the erroneous theory that R.C. 5321.07 rent depositing is the exclusive remedy for such violations. In *Isaiah's Wings*, the court held that the requisite direct relationship existed where the eviction was for nonpayment of rent and the counterclaim alleged an agreement for reduced rent. In *Weng*, the court held that the requisite direct relationship existed where the commercial eviction was for nonpayment of rent and the counterclaim alleged agreements for waiver of certain rent in exchange for a 25% partnership interest and lack of certain repairs.

Rule 13(J), is their limitation of the certification requirement to cases where a direct relationship exists between the eviction claim and the counterclaim. These court decisions thus permit the municipal court (or county court) to retain jurisdiction of the eviction claim and to certify only the counterclaim to the common pleas court, if the eviction claim is not directly related to the counterclaim.

If the municipal court (or county court) is without jurisdiction to hear the counterclaim in an eviction action for reasons other than the court's limited monetary jurisdiction, the court is not permitted to certify the case to the court of common pleas. *Bowshier v. Bowshier*, No. 2013-CA-33, 2013 WL 5314565 (Ohio App., 2nd Dist., Sept. 20, 2013); *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993); *Wells v. Cunningham*, 56 Ohio Misc.2d 9, 564 N.E.2d 758 (Ohio Mun., Lakewood, 1990). Instead, it must dismiss the counterclaim without prejudice and retain jurisdiction of the claim for possession.⁵⁴ *Id.*

"Despite the mandatory wording of Civ.R. 13(J), Ohio courts have found that certification is not automatic." *Adams Robinson Enters. v. Enviroligix Corp.*, 111 Ohio App.3d 426, 432, 676 N.E.2d 560 (2nd Dist. 1996). *Accord Colombo Enters., Inc. v. Fegan*, 142 Ohio App.3d 551, 555, 756 N.E.2d 211 (8th Dist. 2001); *Widder & Widder v. Kutnick*, 113 Ohio App.3d 616, 626, 681 N.E.2d 977 (8th Dist. 1996).

"The court must first determine if the counterclaim satisfies the formalities of the civil rules and states a claim demonstrating that the party is entitled to relief." *Adams Robinson Enters.*, 111 Ohio App.3d at 432. *Accord Rickard v. Solley*, 188 Ohio App.3d 205, 211, 935 N.E.2d 64 (7th Dist. 2010); *Crisalli v. Mearini*, No. 84245, 2004 WL 2578868, ¶ 2 (Ohio App., 8th Dist., Nov. 10, 2004); *Hersch v. Debreczeni*, 33 Ohio App.2d 235, 238-39, 294 N.E.2d 918 (8th Dist. 1973).

"The counterclaim must, on its face, set forth a short and plain statement that the counterclaimant is entitled to relief." *Widder & Widder*, 113 Ohio App.3d at 626. *Accord Hersch*, 33 Ohio App.2d at 238-39. "Merely making a demand for judgment in excess of the municipal court's jurisdiction is insufficient." *Id.*

If a motion to strike the counterclaim has been filed pursuant to Civil Rule 12(F),

⁵⁴ Similarly, when a plaintiff files a supplemental complaint requesting monetary relief in excess of the municipal court's monetary jurisdiction, the municipal court is not permitted to certify the case to the court of common pleas under Civil Rule 13(J). *State ex rel. Nat'l Employee Benefit Servs., Inc. v. Court of Common Pleas of Cuyahoga County*, 49 Ohio St.3d 49, 550 N.E.2d 941 (1990). Instead, the municipal court must dismiss the action without prejudice. *Id.*

the municipal court (or county court) may rule on the motion before it rules on the certification issue. *Swenson's Ice Cream v. Swenson's, Inc.*, 1 Ohio B. 324 (Ohio C.P., Cuyahoga Cty., 1982).

If a motion to dismiss the counterclaim for failure to state a claim for lack of standing is filed, the municipal court (or county court) may rule on the motion before it rules on the certification issue. *Crisalli v. Mearini*, No. 84245, 2004 WL 2578868 (Ohio App., 8th Dist., Nov. 10, 2004).

However, if the counterclaim includes the requisite short and plain statement of the claim and otherwise satisfies the formalities of the Civil Rules, the municipal court (or county court) is required to certify the case to the court of common pleas without holding a hearing on the merits of the counterclaim.⁵⁵ *Gravill v. Parkhurst*, 27 Ohio App.3d 100, 103-04, 499 N.E.2d 913 (8th Dist. 1985); *Hersch v. Debreczeni*, 33 Ohio App.2d 235, 239, 294 N.E.2d 918 (8th Dist. 1973).

2. Jurisdictional-Priority Rule – Two Pending Cases

When two cases involving the same parties and the same causes of action are pending in different courts and those courts have concurrent jurisdiction, the court first acquiring jurisdiction of the claim retains it to the exclusion of the other court. *State ex rel. Dunlap v. Sarko*, 135 Ohio St.3d 171, 985 N.E.2d 450 (2013); *State ex rel. Brady v. Pianka*, 106 Ohio St.3d 147, 832 N.E.2d 1202 (2005); *State ex rel. Sellers v. Gerken*, 72 Ohio St.3d 115, 647 N.E.2d 807 (1995); *State ex rel. Judson v. Spahr*, 33 Ohio St.3d 111, 515 N.E.2d 911 (1987); *State ex rel. Phillips v. Polcar*, 50 Ohio St.2d 279, 364 N.E.2d 33 (1977); *Lewis v. Harding*, 182 Ohio App.3d 588, 913 N.E.2d 1048 (8th Dist. 2009).

“[T]he jurisdictional-priority rule can apply even when the causes of action and relief requested are not exactly the same, as long as the actions present part of the same ‘whole issue.’” *State ex rel. Dunlap v. Sarko*, 135 Ohio St.3d 171, 985 N.E.2d 450, ¶ 10 (2013).

However, the jurisdictional-priority rule “does not apply when the court first securing *in personam* jurisdiction is unable to afford the plaintiff all the relief that he

⁵⁵ However, if “the counterclaim [does] not coherently state sufficient facts to ascertain the basis for the claim or the monetary relief requested,” a municipal court (or county court) might not abuse its discretion by receiving “evidence relating to defendant’s counterclaim prior to making any determination concerning certification in the case.” *Lewallen v. Mentor Lagoons, Inc.*, 85 Ohio App.3d 91, 96, 619 N.E.2d 98 (8th Dist. 1993).

or she is legally or equitably entitled because its powers are limited or defective.” *Adams Robinson Enters. v. Envirologix Corp.*, 111 Ohio App.3d 426, 430, 676 N.E.2d 560 (2nd Dist. 1996). *Accord Scott v. Dohse*, 194 Ohio App.3d 364, 956 N.E.2d 363 (2nd Dist. 2011).

For purposes of the jurisdictional-priority rule, the determination of which court first acquired jurisdiction is based on the date of completion of proper service, not the date of filing of the complaint. *State ex rel. Balson v. Harnishfeger*, 55 Ohio St.2d 38, 377 N.E.2d 750 (1978); *Adams Robinson Enters. v. Envirologix Corp.*, 111 Ohio App.3d 426, 676 N.E.2d 560 (2nd Dist. 1996); *State ex rel. Cook v. Court of Common Pleas of Marion County*, 28 Ohio App.3d 82, 502 N.E.2d 245 (3rd Dist. 1986). *But see* Mark I. Wallach & Anthony J. LaCerva, Instant Replay of the Race to the Courthouse: Ohio’s Rule of Priority of Jurisdiction Confronts the Civil Rules, 2 Ohio Civil Practice Journal 61 (1991) (contending that *Balson* is incorrectly decided and that, under the Civil Rules, this determination should be based on the date of filing of the complaint).

The jurisdictional-priority rule applies to eviction actions. For example, when a defendant in a declaratory judgment action pending in a court of common pleas files an eviction counterclaim and thereafter files an eviction action in a municipal court, involving the same parties and subject matter, the court of common pleas acquires the right to adjudicate the eviction action to the exclusion of the municipal court. *C & C Invs. v. Mackie*, No. 87AP-183, 1987 WL 31262 (Ohio App., 10th Dist., Dec. 21, 1987).

Likewise, if the vendor of a land installment contract brings an action in a court of common pleas seeking forfeiture of the contract, during the pendency of that action, the vendor cannot maintain a subsequent eviction action against the vendee in a municipal court. *Stratton v. Robey*, 70 Ohio App.2d 4, 433 N.E.2d 938 (10th Dist. 1980).

Also, when a tenant commences an action in a court of common pleas seeking declaratory and injunctive relief with respect to the tenant’s entitlement to continued occupancy of the premises, during the pendency of that action, the landlord arguably cannot commence an eviction action in a municipal court. *Compare Lacheta v. Hall*, No. 8-90-CVG-494 (Ohio Mun., New Philadelphia, Oct. 22, 1990) (municipal court without jurisdiction in this circumstance) *with State ex rel. Charron-Kofta v. Corrigan*, No. 69434, 1995 WL 603157 (Ohio App., 8th Dist., Oct. 12, 1995) (writ of prohibition denied because whether municipal court has jurisdiction in this circumstance is

unclear).

However, an action to quiet title in a court of common pleas does not deprive a municipal court of jurisdiction to hear an eviction action involving the same parties and property because the two causes of action involve different subject matters. *Haas v. Gerski*, 175 Ohio St. 327, 194 N.E.2d 765 (1963); *Hicks v. Holland*, No. 53363, 1987 WL 17217 (Ohio App., 8th Dist., Sept. 17, 1987). *See also State ex rel. Carpenter v. Warren Mun. Court*, 61 Ohio St.2d 208, 400 N.E.2d 391 (1980). An eviction action only determines which of the parties has a present right to possession (see Section I.A.2, above), whereas an action to quiet title determines which of the parties has a present right to title. *Haas*, 175 Ohio St. at 330. *Cf. Disher v. Bannick*, No. 28903, 2021 WL 1499975 (Ohio App., 2nd Dist., Apr. 16, 2021) (a judgment in an eviction action cannot, under res judicata, bar an action to quiet title).

Similarly, a collateral action bringing title to real property into question – a declaratory judgment action as to an alleged settlement agreement – is not the same cause of action as an eviction claim and, therefore, the jurisdictional-priority rule does not apply. *State ex rel. Brady v. Pianka*, 106 Ohio St.3d 147, 832 N.E.2d 1202 (2005).

3. Title Issues

In an eviction action, the right to present possession⁵⁶ may depend on present ownership of record title to the premises. *See Haas v. Gerski*, 175 Ohio St. 327, 330, 197 N.E.2d 765 (1963); *Hallmark Mgmt. v. Tartt*, No. 49014, 1985 WL 9036, at *4 (Ohio App., 8th Dist., May 23, 1985) (“an occupant can properly deny any interest derived from the purported landowner and assert the occupant’s own ownership to defeat an eviction action”).

“In Ohio, a deed does not have to be recorded to pass title. Whether or not recorded, a deed in Ohio passes title upon its proper execution and delivery, so far as the grantor is able to convey it.” *Wayne Bldg. & Loan Co. of Wooster v. Yarborough*, 11 Ohio St.2d 195, 212, 228 N.E.2d 841 (1967). *Accord In re Estate Ault*, 80 Ohio App.3d 399, 402, 609 N.E.2d 568 (12th Dist. 1992).

Therefore, when a right to possession depends on when title has transferred to a new owner, the new owner has standing to bring the eviction action as of the date that the deed is executed and delivered, irrespective of whether the deed has been recorded.

⁵⁶ The right to present possession is the ultimate issue in any eviction action. See Section I.A.2, above.

Delli-Gatti v. Kokolari, No. 23469, 2007 WL 3356900 (Ohio App., 9th Dist., Nov. 14, 2007).

When the right to present possession depends on present ownership of record title and there is no dispute as to which party holds present record title, municipal and county courts have jurisdiction to hear the eviction action. *Estate of Allen v. Allen*, No. 91-T-4580, 1992 WL 188346, at *2 (Ohio App., 11th Dist., June 12, 1992). *See also Eckart v. Newman*, No. WM-18-006, 2019 WL 3765412, ¶ 13 (Ohio App., 6th Dist., Aug. 9, 2019). In such cases, a municipal or county court “as an incident to determining the right to possession may determine in whom the present title rests”⁵⁷ *Haas*, 175 Ohio St. at 130.

In such cases, present record title conclusively establishes the right to present possession. *Haas v. Gerski*, 175 Ohio St. 327, 330-31, 197 N.E.2d 765 (1963); *First Bank Nat’l Ass’n v. Willis*, Nos. 56263, 56763, 1989 WL 69409, at *2 (Ohio App., 8th Dist., June 22, 1989); *Fredricks v. Stromberg*, No. 42601, 1981 Ohio App. LEXIS 10469, at *4-5 (Ohio App., 8th Dist., Apr. 2, 1981). A party cannot raise invalidity of the present record title as a defense to the eviction action. *Willis*, 1989 WL 69409, at *2; *Fredricks*, 1981 Ohio App. LEXIS 10469, at *4-5.

In such cases, if the validity of the present record title is the subject of a pending action in a court of common pleas, the pendency of that action is not a permissible ground for granting a stay of the eviction action. *State ex rel. Carpenter v. Warren Mun. Court*, 61 Ohio St.2d 208, 210, 400 N.E.2d 391 (1980). *See also State ex rel. Weiss v. Hoover*, 84 Ohio St.3d 530, 705 N.E.2d 1227 (1999); *Dvorak v. Habeeb*, No. 60971, 1991 WL 106059 (Ohio App., 8th Dist., June 13, 1991). *Cf. CS/RW Westlake Indoor Storage, L.L.C. v. Kesi, L.L.C.*, No. 102535, 2015 WL 6819281, ¶¶ 6,7,17 (Ohio App., 8th Dist., Nov. 5, 2015) (pending action on disputed purchase price of business); *Clark v. Reynolds*, No. 77749, 2000 WL 1714927 (Ohio App., 8th Dist., Nov. 16, 2000) (pending action on life interest in the property).

However, when the right to present possession depends on present ownership of record title and there is a dispute as to which party holds present record title, municipal

⁵⁷ In making this determination, a municipal court has jurisdiction to determine whether the deed on which a party relies to claim present ownership of record title and right to present possession is defective on its face, and thus did not convey valid legal title to the property. *See Hallmark Mgmt. v. Tartt*, No. 49014, 1985 WL 9036 (Ohio App., 8th Dist., May 23, 1985) (deed defective because it was acknowledged before the grantee as a notary).

and county courts are without jurisdiction to hear the eviction action. *Fenner v. Parkinson*, 69 Ohio App.3d 210, 590 N.E.2d 339 (10th Dist. 1990) (both parties claimed title under separate deeds). See also *Hardy v. Hardy*, No. 89905, 2008 WL 1822394, at *1 n.1 (Ohio App., 8th Dist., Apr. 24, 2008) (in FED defense based on defendant's color of title, "the defendant must show that there is a bona fide controversy as to title"). Municipal courts are without jurisdiction to hear such actions because R.C. 1901.18 does not grant municipal courts jurisdiction over quiet title actions. *Id.* Likewise, county courts are without jurisdiction to hear such actions because R.C. Chapter 1907 does not grant county courts jurisdiction over quiet title actions. See R.C. 1907.05 (county court jurisdiction "in civil actions in which the title to real estate may be drawn in question" established for two types of actions, neither of which is an eviction action).

When the eviction claim is based on present ownership of record title and the defense does not dispute that ownership but rather asserts an equitable defense based on equitable title, municipal and county courts have jurisdiction to hear the action. *Behrle v. Beam*, 6 Ohio St.3d 41, 451 N.E.2d 237 (1983) (municipal court); *Bowshier v. Bowshier*, No. 2013-CA-33, 2013 WL 5314565 (Ohio App., 2nd Dist., Sept. 20, 2013) (county court); *Atwood v. Bare*, No. 1854, 1988 WL 117999 (Ohio App., 11th Dist., Oct. 28, 1988) (municipal court); *Sears v. Fechuck*, No. 1999AP-080048, 2000 WL 874727 (Ohio App., 5th Dist., June 6, 2000) (county court). See also *Brainard v. Cardwell*, Nos. 75870,75896, 2000 WL 897793 (Ohio App., 8th Dist., July 6, 2000). Cf. *Williams v. Bjork*, 112 Ohio Misc.2d 57, 753 N.E.2d 995 (Ohio County Ct., Ashtabula Cty., 2001) (county court has jurisdiction in an eviction action to enter a judgment that declares a cancellation and forfeiture of a land installment contract). But see *Ryan v. Kenley*, No.19534, 2003 WL 1949795 (Ohio App., 2nd Dist., Apr. 25, 2003) (held that the equitable title defense brought the matter of the plaintiff's legal title into question and thus deprived the county court of jurisdiction to hear the FED action).

4. Domestic Relations Court

a. Marital Residence

When an eviction action concerns a marital residence and is filed before the issuance of a final decree of divorce and division of property, municipal courts and county courts are without subject-matter jurisdiction to hear the eviction action.

Yergan v. Yergan, No. 2901-M, 1999 WL 493942 (Ohio App., 9th Dist., July 14, 1999); *Slansky v. Slansky*, 33 Ohio App.2d 127, 293 N.E.2d 302 (8th Dist. 1973); *Blevins v. Gosa*, No. 2003-CVG-4465 (Ohio Mun., Cleveland, Hous. Div., Sept. 22, 2003) (common law marriage); *Humphrey v. Heine*, No. M9201-CVG-004176 (Ohio Mun., Franklin Cty., Mar. 3, 1992) (common law marriage).

However, municipal courts and county courts have subject-matter jurisdiction to hear an eviction action concerning a marital residence when the eviction action is filed after the final decree of divorce and division of property.⁵⁸ *Baker v. Revels*, No. 03AP-410, 2004 WL 453273 (Ohio App., 10th Dist., Mar. 11, 2004); *Eisler v. Rudy*, No. 1466, 1989 WL 70066 (Ohio App., 11th Dist., June 23, 1989); *Talbott v. Talbott*, Nos. 86AP-248,342,370, 1986 WL 13924 (Ohio App., 10th Dist., Nov. 13, 1986).

When an issue in a pending divorce proceeding is whether the property is a marital residence, and a third party brings an eviction action against the wife (or husband) to secure possession of the property, the municipal court may stay the eviction action until there is a final order in the divorce proceeding. *Amick v. Sickels*, No. 2006-CVG-01277 (Ohio Mun., Athens Cty., Feb. 12, 2007), *aff'd on other grounds*, 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist., 2008). In *Amick*, the husband and wife lived for six years in a property owned by the husband's mother, with the expectation that she would give the property to them. When they began a divorce proceeding, the husband's mother sold the property to a third-party.

b. Civil Protection Order

In domestic violence cases, a court of common pleas may file a Consent Agreement and Domestic Violence Civil Protection Order, which grants possession of real property to one party for a specified time period.

During that time period, if the other party files an eviction action against the party granted possession under the Civil Protection Order, the municipal court (or county court) is without subject-matter jurisdiction to hear the eviction action. *Mims v. DuBose*, No. 04-CVG-0779 (Ohio Mun., Akron, Sept. 8, 2004).

After that time period, if the other party files an eviction action against the party

⁵⁸ A rental agreement does not exist, and R.C. Chapter 5321 does not apply, where an occupancy under a divorce decree provides that one party shall retain, for a specified period of time, an exclusive right to possession of a house that both parties owned prior to the marriage dissolution. *Steiger v. Mack*, No. 1-81-25, 1981 WL 6743 (Ohio App., 3rd Dist., Dec. 17, 1981) (ex-husband not liable for self-help eviction under R.C. 5321.15).

granted possession under the Civil Protection Order, the municipal court (or county court) has subject-matter jurisdiction to hear the eviction action. *E.g.*, *Zipfel v. Reimonenque*, No. L-19-1083, 2019 WL 6817411 (Ohio App., 6th Dist., Dec. 13, 2019).

5. Probate Court

With respect to real property in a probate proceeding, R.C. 2101.24 does not provide the court of common pleas, probate division, with exclusive jurisdiction over an executor's claim for possession against an occupant of the property. *Estate of Wos v. Wos*, No. L-05-1408, 2006 WL 2383966 (Ohio App., 6th Dist., Aug. 18, 2006).

The executor may bring an eviction action against the occupant under R.C. Chapter 1923. *Id.* If the occupant is not a tenant, the executor may bring the eviction action under R.C. 1923.02(A)(5), which permits eviction actions against occupiers of land who are without color of title. *Id.*

M. FED Trial Issues

1. Consolidated or Separate Trials

In an eviction action, the parties may assert non-eviction claims. The complaint often alleges an eviction claim and a monetary claim. See Section I.E.2.f, above. The tenant may file counterclaims. See Section I.I, above.

The court may consolidate the trials on these claims and counterclaims. R.C. 1923.081; Ohio R. Civ. P. 42. R.C. 1923.081 "permits joinder of causes of action for possession, past due rent, damages, and counterclaims, in one trial." *Forney v. Climbing Higher Enters., Inc.*, 158 Ohio App.3d 338, 345, 815 N.E.2d 722 (9th Dist. 2004). *Accord Brown v. Brown*, No. 04-CA-000018, 2005 WL 914490, ¶ 23 (Ohio App., 5th Dist., Apr. 14, 2005).

The trial on the eviction claim and the trial on the landlord's monetary claim may be consolidated. *Smith v. Wright*, 65 Ohio App. 2d 101, 103, 104 n.2, 416 N.E.2d 655 (8th Dist. 1979). The trial on the eviction claim and the trial on the tenant's counterclaims may be consolidated. *See, e.g., Behrle v. Beam*, 6 Ohio St.3d 41, 451 N.E.2d 237 (1983). The trial on the landlord's monetary claim and the trial on the tenant's counterclaims may be consolidated. *See* Ohio R. Civ. P. 42(A).

Alternatively, the court may hold separate trials on any of these claims and counterclaims. *Hamdan v. Traish*, No. 14-MA-14, 2015 WL 6697330, ¶ 19 (Ohio

App., 7th Dist., Oct. 26, 2015); *Oakwood Mgmt. Co. v. Richards*, No. 99AP-627, 1999 WL 1124692, at *1 (Ohio App., 10th Dist., Dec. 9, 1999); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *9 (Ohio App., 2nd Dist., June 4, 1999); *Smith v. Wright*, 65 Ohio App. 2d 101, 103, 104 n.2, 416 N.E.2d 655 (8th Dist. 1979); *Siegler v. Batdorff*, 63 Ohio App.2d 76, 84-85, 408 N.E.2d 1383 (8th Dist. 1979); *Gibraltar Constr. Corp. v. Fortune*, No. 396, 1979 Ohio App. LEXIS 9223 (Ohio App., 12th Dist., Nov. 28, 1979). *See generally* Ohio R. Civ. P. 42(B).

The decision on whether to hold consolidated or separate trials on these claims and counterclaims generally is committed to the discretion of the trial court. *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898 (Ohio App., 2nd Dist., June 4, 1999); *Siegler v. Batdorff*, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979). *See also* *Palombo v. Hayes*, Nos. 65781,66714, 1995 WL 229120 (Ohio App., 8th Dist., Apr. 13, 1995) (R.C. 1923.081 consolidation is discretionary).

“Where an action for forcible entry and detainer is joined with an action for unpaid rent or other damages, the matter is typically divided into two separate hearings. In the first hearing on the claim for forcible entry and detainer (the ‘first cause’), the court determines whether the plaintiff, typically a landlord or property owner, is entitled to possession of the premises. If the plaintiff prevails on the first cause and the occupant is evicted, a second hearing will be held on the ‘second cause’ for unpaid rent or damages. Often, until an occupant has been evicted and has vacated the premises, a plaintiff cannot know the full extent of his or her damages in the second cause.” *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 77 (Ohio App., 8th Dist., Aug. 12, 2021).

However, the decision on whether to consolidate the trial on the eviction claim and the trial on the landlord’s monetary claim is subject to the requirements of R.C. 1923.081 and Civil Rule 12(A)(1).

R.C. 1923.081 provides that the trials on these landlord claims may be consolidated unless there is good cause not to do so. R.C. 1923.081 specifies three examples of good cause not to consolidate the trials: a tenant’s request to file an answer, a tenant’s request to file a counterclaim, and a tenant’s request to conduct discovery. R.C. 1923.081 also provides that the trials on these landlord claims cannot be consolidated if the adverse party in the eviction action is a deceased resident of a manufactured

home park.⁵⁹

Civil Rule 12(A)(1) bars consolidation of the trials on these landlord claims if the date of the consolidated trial precedes the expiration of the Civil Rule 12(A)(1) time period for filing an answer to the landlord's monetary claim and, as of the trial date, the tenant has not filed an answer. *Wodzisz v. Bayes*, No. 96-APE07-891, 1997 WL 142715, at *4 (Ohio App., 10th Dist., Mar. 25, 1997); *Smith v. Wright*, 65 Ohio App.2d 101, 103, 416 N.E.2d 655 (8th Dist. 1979). See also *Ruminski v. Matulis*, No. 1219, 1985 WL 4235 (Ohio App., 11th Dist., Dec. 6, 1985).

When a tenant files a counterclaim under R.C. 1923.061(B),⁶⁰ the court is required to consolidate the trial on the eviction claim and the trial on the tenant's counterclaims. *Studer v. Roark*, No. 94-CA-38, 1995 WL 347963 (Ohio App., 5th Dist., Mar. 21, 1995); *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 486 N.E.2d 1234 (10th Dist. 1985). In these cases, the court cannot determine the eviction claim without an adjudication of the tenant's counterclaims. *Id.*

2. Magistrate, Bench, or Jury Trial

In an eviction action in a municipal court, the trial may be heard by a magistrate, a judge, or a jury. The right to a trial by jury is discussed in Section I.J.1., above. If a municipal court has more than two judges, one or more magistrates must be appointed to hear the eviction actions in which the right to a trial by jury is waived or not demanded. Rules of Superintendence for the Courts of Ohio, Rule 19.1. If a municipal court has two or fewer judges, one or more magistrates may be appointed to hear the eviction actions in which the right to a trial by jury is waived or not demanded. *Id.*

Typically, eviction actions are tried to a judge ("bench trial") in one of two circumstances. The first is where the municipal court has two or fewer judges, the court decides not to appoint a magistrate, and the right to a trial by jury is waived or not demanded. The second is where the tenant files a jury demand, the judge is

⁵⁹ For a discussion on whether R.C. 1923.081 also prohibits a joinder of these claims, where the adverse party in the eviction action is a deceased resident of a manufactured home park, see Section I.E.2.f, above.

⁶⁰ For a discussion on R.C. 1923.061(B), see Section II.O, below.

scheduled to conduct the jury trial,⁶¹ and the tenant withdraws the jury demand.⁶²

3. Court Reporter

For the trial in an eviction action, the court is required to provide an official court reporter to record the evidence, if a party to the action properly requests those services. *State ex rel. Brady v. Youngstown Mun. Court*, No. 88-CA-162, 1990 WL 18139 (Ohio App., 7th Dist., Feb. 26, 1990).

The local court rules may permit a party to retain the services of a private reporter who the court may then designate as the official court reporter for the trial.

4. Witness Testimony Requirement

Civil Rule 43 applies to FED trials. *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279 (Ohio App., 10th Dist., 2020). Therefore, at the FED trial, generally the testimony of witnesses must be taken in open court, and not via affidavits. *Id.*⁶³

5. Hearsay Evidence

“The Rules of Evidence apply in trials of forcible entry and detainer actions.” *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 38 (Ohio App., 10th Dist., 2020). Therefore, in an eviction action, as in other cases, generally hearsay evidence is not admissible. *Id.*

A landlord’s affidavit of facts in support of an eviction claim is hearsay. *Id.*, ¶¶ 38,39. Upon a timely objection, a court is required to deny the admission of the affidavit into evidence. *Carl Edward Miller Trust v. Jones*, No. 2018-CVG-15385 (Ohio Mun., Franklin Cty., June 13, 2018). Absent a timely objection, the court may admit the affidavit, but only if it meets the requisite particularized guarantees of

⁶¹ Civil Rule 53(C)(1)(c) permits a magistrate to conduct a jury trial, but only if the parties consent to it.

⁶² The tenant may withdraw the jury demand only if the landlord consents to the withdrawal. *See* Ohio R. Civ. P. 38(D).

⁶³ In *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 46 (Ohio App., 10th Dist., 2020), the court overrules *Oakbrook Realty Corp. v. Blout*, 48 Ohio App.3d 69, 548 N.E.2d 305 (10th Dist. 1988), “to the extent that it has been interpreted as permitting the municipal court to grant judgment on a forcible entry and detainer claim relying solely on statements contained in an affidavit without any testimony being offered in open court.”

trustworthiness. *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶¶ 40,41 (Ohio App., 10th Dist., 2020).

The case law has addressed some of the common examples of hearsay evidence in an eviction action.

The hearsay rule may preclude a manager from testifying on the substance of complaints that the manager has received from other tenants. *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985).

The hearsay rule may preclude a manager from testifying on the substance of complaints that the manager has received from the manager's employees. *Trail W. Apts. v. Zigan*, No. 05-CVG-01267 (Ohio Mun., Licking Cty., June 23, 2005). *Cf. First Merit Venture v. Stringer*, No. C-050238, slip op. at 3 (Ohio App., 1st Dist., Dec. 14, 2005) (failure to prove drug activity where "manager conceded that she had no knowledge of drug activity at Stringer's apartment other than what the police had told her").

The hearsay rule may preclude a manager from introducing into evidence the written complaints that the manager has received from other tenants. *Norwalk N. Apts. v. Mackey*, No. H-93-38, 1994 WL 262508 (Ohio App., 6th Dist., June 10, 1994); *Norwalk N. Apts. v. Holiday*, No. H-93-37, 1994 WL 262509 (Ohio App., 6th Dist., June 10, 1994).

The hearsay rule may preclude a landlord from introducing a police report or a lab report on contraband, when the landlord fails to present a witness to authenticate the report, which is not self-authenticating. *Detroit Terrace Ltd. v. Bender*, No. 11-CVG-19350 (Ohio Mun., Cleveland, Hous. Div., Dec. 5, 2011) (police report); *CMHA v. Johnson*, No. 2004-CVG-10962 (Ohio Mun., Cleveland, Hous. Div., Aug. 11, 2004) (lab report).

The hearsay rule may preclude a police officer from testifying as to statements made to the officer by a non-tenant concerning the residency of the non-tenant and another non-tenant in the tenant's unit. *Geauga Metro. Hous. Auth. v. Biggs*, No. 98-G-2207, 2000 WL 665567 (Ohio App., 11th Dist., May 19, 2000).

The hearsay rule may preclude a police officer from testifying as to statements made to the officer by a confidential informant concerning unlawful property (guns) in a tenant's apartment, where the testimony is sought as circumstantial evidence of the tenant's knowledge of the existence of the property in the apartment. *See Chicago Hous. Auth. v. Rose*, 203 Ill. App.3d 208, 217-18, 560 N.E.2d 1131 (1990). *Cf. Camco, Inc. v. Lowery*, 362 Ill. App.3d 421, 434, 839 N.E.2d 655 (2005) (arrest and police

reports inadmissible since they generally contain hearsay evidence).

6. Trial – Tenant Not Present

In an eviction action, the tenant is not required to attend the trial, and the tenant may be represented at the trial even if the tenant is not present. *Forman v. Macias*, No. 79AP-122, 1979 Ohio App. LEXIS 11693 (Ohio App., 10th Dist., June 26, 1979); *CMHA v. Miller*, No. 2003-CVG-09190 (Ohio Mun., Cleveland, Hous. Div., Dec. 3, 2003). See generally *Schaedler v. Shinkle*, No. CA99-09-025, 2000 WL 1283776, at *1 (Ohio App., 12th Dist., Sept. 11, 2000) (“nothing requires a defendant to appear at trial where he is represented by counsel”).

If a landlord wants the tenant to be present at the trial, the landlord may subpoena the tenant. *Forman v. Macias*, No. 79AP-122, 1979 Ohio App. LEXIS 11693 (Ohio App., 10th Dist., June 26, 1979).

If a tenant does not make an appearance in the eviction action, does not attend the trial, and is not represented by counsel at the trial, R.C. 1923.07 requires the court to try the case as though the tenant were present. “Thus, under R.C. 1923.07, even when a tenant fails to appear after being properly served, the municipal court must conduct a formal judicial examination of the evidence and reach a determination on a complaint for forcible entry and detainer.” *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 20 (Ohio App., 10th Dist., 2020).

Therefore, the landlord is still obligated to introduce competent evidence that proves the elements of the landlord’s eviction claim. *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279 (Ohio App., 10th Dist., 2020); *Aultman Home for Aged Women v. Ott*, No. CA-7688, 1989 WL 64055 (Ohio App., 5th Dist., June 5, 1989); *Fields v. Travis*, No. 87AP-578, 1987 WL 873892 (Ohio App., 10th Dist., Oct. 22, 1987); *Hampshire Heights, Inc. v. Van Wormer*, 17 Ohio Op.3d 287 (Ohio App., 6th Dist., 1980).

Civil Rule 55 is not applicable to FED actions. *Hampshire Heights, Inc. v. Van Wormer*, 17 Ohio Op.3d 287 (Ohio App., 6th Dist., 1980); *Siegler v. Batdorff*, 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979) (dicta).

If the landlord (or landlord’s attorney) has not been sworn in, the landlord’s (or landlord’s attorney’s) statements at trial are not competent evidence to prove the elements of the eviction claim. *Aultman Home for Aged Women v. Ott*, No. CA-7688, 1989 WL 64055 (Ohio App., 5th Dist., June 5, 1989) (attorney’s statements); *Fields v. Travis*, No. 87AP-578, 1987 WL 873892 (Ohio App., 10th Dist., Oct. 22, 1987)

(landlord's statements); *Hampshire Heights, Inc. v. Van Wormer*, 17 Ohio Op.3d 287 (Ohio App., 6th Dist., 1980) (attorney's statements).

7. Trial – Unrepresented Party

“It is well established that *pro se* litigants are presumed to have knowledge of the law and legal procedures and that they are held to the same standard as litigants who are represented by counsel.” *State ex rel. Fuller v. Mengel*, 100 Ohio St.3d 352, 354, 800 N.E.2d 25 (2003) (quoting *Sabouri v. Ohio Dep’t of Job & Family Serv.*, 145 Ohio App.3d 651, 654, 763 N.E.2d 1238 (2001)). *Accord OH Seven LLC v. Lee*, No. 2020-CA-00057, 2021 WL 286534, ¶ 11 (Ohio App., 5th Dist., Jan. 28, 2021); *Landings at Beckett Ridge v. Holmes*, No. CA2020-04-050, 2020 WL 7690283, ¶ 32 (Ohio App., 12th Dist., Dec. 28, 2020); *Di Fiore v. Booker*, No. 108946, 2020 WL 2992105, ¶ 15 (Ohio App., 8th Dist., June 4, 2020); *Eckart v. Newman*, No. WM-18-006, 2019 WL 3765412, ¶ 20 (Ohio App., 6th Dist., Aug. 9, 2019); *Holmes v. Cobblestone Grove*, No. CA2016-04-075, 2017 WL 74986, ¶ 21 (Ohio App., 12th Dist., Jan. 9, 2017); *Raspberry v. Taylor*, No. 26510, 2013 WL 2327020, ¶ 6 (Ohio App., 9th Dist., May 29, 2013); *Cook v. Criminger*, No. 22313, 2005 WL 957023, ¶ 7 (Ohio App., 9th Dist., Apr. 27, 2005); *Holman v. Keegan*, 139 Ohio App.3d 911, 918, 746 N.E.2d 209 (6th Dist. 2000); *Meyers v. First Nat’l Bank of Cincinnati*, 3 Ohio App.3d 209, 210, 444 N.E.2d 412 (1st Dist. 1981); *Liggins v. Westminster Arms, Inc.*, Nos. 98AP-377,378, 1998 WL 894613, at *3 (Ohio App., 10th Dist., Dec. 22, 1998).

“A *pro se* litigant cannot expect or demand special treatment from the judge, who must be impartial.” *Frew v. Frew*, No. 2007-CA-17, 2008 WL 3856300 (Ohio App., 5th Dist., Aug. 19, 2008). *Accord Raspberry v. Taylor*, No. 26510, 2013 WL 2327020, ¶ 6 (Ohio App., 9th Dist., May 29, 2013); *Kilroy v. B.H. Lakeshore Co.*, 111 Ohio App.3d 357, 363, 676 N.E.2d 171 (8th Dist. 1996).

“A *pro se* litigant ... must accept the results of his or her own errors or mistakes.” *Holman v. Keegan*, 139 Ohio App.3d 911, 918, 746 N.E.2d 209 (6th Dist. 2000). *Accord OH Seven LLC v. Lee*, No. 2020-CA-00057, 2021 WL 286534, ¶ 11 (Ohio App., 5th Dist., Jan. 28, 2021); *Landings at Beckett Ridge v. Holmes*, No. CA2020-04-050, 2020 WL 7690283, ¶ 32 (Ohio App., 12th Dist., Dec. 28, 2020); *Eckart v. Newman*, No. WM-18-006, 2019 WL 3765412, ¶ 20 (Ohio App., 6th Dist., Aug. 9, 2019); *Holmes v. Cobblestone Grove*, No. CA2016-04-075, 2017 WL 74986, ¶ 21 (Ohio App., 12th Dist., Jan. 9, 2017); *Cook v. Criminger*, No. 22313, 2005 WL 957023, ¶ 7 (Ohio App., 9th Dist., Apr. 27, 2005); *Liggins v. Westminster Arms, Inc.*, Nos.

98AP-377,378, 1998 WL 894613, at *3 (Ohio App., 10th Dist., Dec. 22, 1998); *Meyers v. First Nat'l Bank of Cincinnati*, 3 Ohio App.3d 209, 210, 444 N.E.2d 412 (1st Dist. 1981).

However, to “insure self-represented litigants the opportunity to have their matters fairly heard, a judge may make reasonable accommodation to a self-represented litigant consistent with the law.” Ohio Code of Judicial Conduct, Rule 2.2, Comment [4]. For example, the judge may provide “brief information about the proceeding and evidentiary and foundational requirements.” *Id.*, Rule 2.6, Comment [1A]. *E.g.*, *Henry v. Richardson*, 193 Ohio App.3d 375, 382, 951 N.E.2d 1123 (12th Dist. 2011); *Cincinnati Metro. Hous. Auth. v. Morgan*, 155 Ohio App.3d 189, 194, 800 N.E.2d 64 (1st Dist. 2003), *rev'd on other grounds*, 104 Ohio St.3d 445, 820 N.E.2d 315 (2004).

In an eviction action, the court is obligated under this law to treat unrepresented landlords the same as if they had retained counsel. *Milano v. Jones*, No. M8906-CVG-20458 (Ohio Mun., Franklin Cty., July 10, 1989). *But see Wright v. Miller*, No. 752, 1991 WL 37926 (Ohio App., 4th Dist., Mar. 11, 1991).

The court may assist the unrepresented landlord in basic procedural matters, but not in the presentation of the case to the detriment of the tenant. *Milano v. Jones*, No. M8906-CVG-20458 (Ohio Mun., Franklin Cty., July 10, 1989). If an unrepresented landlord fails to prove the landlord's case because of ignorance of the law, the case should be judged on the evidence that has been produced. *Id.* Absent a request by the landlord, the court should not offer a continuance to the landlord to enable the landlord to prove the eviction claim at a subsequent hearing. *Id.*

8. Collateral Estoppel and Res Judicata

a. Collateral Estoppel

The doctrine of collateral estoppel applies to an eviction action.⁶⁴ *Hamdan v. Traish*, No. 14-MA-14, 2015 WL 6697330, ¶ 40 (Ohio App., 7th Dist., Oct. 26, 2015); *Great Lakes Mall, Inc. v. Deli Table, Inc.*, No. 93-L-154, 1994 WL 587559 (Ohio App., 11th Dist., Sept. 16, 1994). *E.g.*, *Palombo v. Hayes*, Nos. 65781,66714, 1995 WL 229120 (Ohio App., 8th Dist., Apr. 13, 1995); *Chan v. Birch*, No. 15249, 1992 WL 64190 (Ohio App., 9th Dist., Mar. 25, 1992); *Harrison v. Webb*, 62 Ohio Law Abs.

⁶⁴ For an article advocating the position that, in Ohio, the doctrine of collateral estoppel should not apply to an eviction action, see Kimberly E. O'Leary, The Inadvisability of Applying Preclusive Doctrines to Summary Evictions, 30 U. Tol. L. Rev. 49 (1999).

273, 100 N.E.2d 728 (Ohio C.P., Cuyahoga Cty., 1951).

“[C]ollateral estoppel ... precludes the relitigation, in a second action of *an issue* that has been actually and necessarily litigated and determined in a prior action which was based on a different cause of action.” *Whitehead v. Gen. Tel. Co. of Ohio*, 20 Ohio St.2d 108, 112, 254 N.E.2d 10 (1969). *Accord Namenyi v. Tomasello*, No. 2013-CA-75, 2014 WL 5089113 (Ohio App., 2nd Dist., Oct. 10, 2014); *McAlpine v. Patrick*, No. 86453, 2006 WL 562191 (Ohio App., 8th Dist. Cty., Mar. 9, 2006).

Therefore, the court’s determination of an issue, when it rules on the eviction claim, is binding on the parties when the court later rules on other claims or counterclaims in that action or in a second action. The case law below is illustrative.

If the court finds nonpayment of rent when ruling on the eviction claim, this finding is binding on the parties when the court later rules on the landlord’s monetary claim for nonpayment of rent. *Great Lakes Mall, Inc. v. Deli Table, Inc.*, No. 93-L-154, 1994 WL 587559, at *1-3 (Ohio App., 11th Dist., Sept. 16, 1994); *Chan v. Birch*, No. 15249, 1992 WL 64190, at *2 (Ohio App., 9th Dist., Mar. 25, 1992).

If the court finds in a first eviction action that a tenant overpaid her rent and, as a result, does not owe any rent for certain future months, this finding is binding on the parties when the court rules in a second eviction action for nonpayment of rent for one (or more) of those specified months. *Boyd v. Williams*, Nos. 07-CVG-11772, 14908 (Ohio Mun., Akron, Jan. 18, 2008).

If the court finds no racial discrimination in the nonrenewal of the lease when it rules on the eviction claim, this finding is binding on the parties when the court later rules on the tenant’s counterclaim for racial discrimination. *Palombo v. Hayes*, Nos. 65781, 66714, 1995 WL 229120, at *7-8 (Ohio App., 8th Dist., Apr. 13, 1995).

If an eviction judgment is based on the existence of an oral lease, this finding is binding on the parties when the court later rules on the tenant’s counterclaim for breach of an alleged land installment contract. *Tillimon v. Rideout*, No. L-00-1388, 2001 WL 1518111, at *2 (Ohio App., 6th Dist., Nov. 30, 2001).

b. Res Judicata

The doctrine of *res judicata* (i.e., claim preclusion) does not apply to an eviction action, relative to any non-eviction claims between the parties.⁶⁵ R.C. 1923.03

⁶⁵ For a discussion on permissive joinder of eviction and non-eviction claims, see Section I.E.2.f, above.

provides that “[j]udgments under this chapter are not a bar to a later action brought by either party.” Consequently, “a judgment in a forcible entry and detainer action does not bar a later action between the same parties arising out of the same subject matter.” *Marous/Church, LLC v. Stanich*, No. 2000-L-188, 2001 WL 1561107, at *2 (Ohio App., 11th Dist., Dec. 7, 2001). *Accord N.T.I. Enters., Ltd. v. Dental Prods. & Servs., Inc.* No. 2018-T-0018, 2019 WL 117829 (Ohio App., 11th Dist., Jan. 7, 2019); *McAlpine v. Patrick*, No. 86453, 2006 WL 562191 (Ohio App., 8th Dist., Mar. 9, 2006); *Great Lakes Mall, Inc. v. Deli Table, Inc.*, No. 93-L-154, 1994 WL 587559 (Ohio App., 11th Dist., Sept. 16, 1994). *See also Hamilton Brownfields Redevelopment, LLC v. Duro Tire & Wheel*, 156 Ohio App.3d 525, 806 N.E.2d 1039 (12th Dist. 2004); *Haney v. Roberts*, 130 Ohio App.3d 293, 720 N.E.2d 101 (4th Dist. 1998); *Reck v. Whalen*, 114 Ohio App.3d 16, 682 N.E.2d 721 (2nd Dist. 1996); *Chef Italiano Corp. v. Crucible Dev. Corp.*, No. CV-2003-12-7277, 2004 WL 5491217 (Ohio C.P., Summit Cty., Oct. 28, 2004).

Courts are split on whether a final eviction judgment on the merits⁶⁶ precludes relitigation of the propriety of the eviction judgment. *Compare Tillimon v. Rideout*, No. L-00-1388, 2001 WL 1518111, at *2 (Ohio App., 6th Dist., Nov. 30, 2001) (precluded) with *Machshonba v. Cleveland Metro. Hous. Auth.*, No. 96811, 2011 WL 6920728, ¶¶ 11-13 (Ohio App., 8th Dist., Dec. 29, 2011) (not precluded).

But *res judicata* does not preclude a second eviction action for new grounds, which arise after the first eviction action. *Showe Mgmt. Corp. v. Hazelbaker*, No. CA2006-01-004, 2006 WL 3479856 (Ohio App., 12th Dist., Dec. 4, 2006). The second eviction action may be filed even during a pending appeal in the first eviction action, where the appeal is from a judgment entered in favor of the landlord but stayed pending the appeal. *Id.*

A related issue, which the courts have not yet addressed directly, is whether *res judicata* bars a second eviction action for grounds that existed before the filing of the first eviction action but were not raised in the first eviction action. While general *res judicata* law would bar a second eviction action for these grounds, R.C. 1923.03 may require a different result.

⁶⁶ An eviction judgment declaring the eviction claim to be moot because of the tenant’s vacation of the premises is not a judgment rendered on the merits. *Haney v. Roberts*, 130 Ohio App.3d 293, 301, 720 N.E.2d 101 (4th Dist. 1998).

9. Burden of Proof Issues, Assisted Housing

In an eviction action for nonpayment of rent against an assisted housing tenant,⁶⁷ when the tenant's defense is that the nonpayment of rent is due to circumstances beyond the tenant's control (see Section III.G.1.a, below), the tenant has the burden of proving that the tenant did not pay the rent for reasons beyond the tenant's control. *Stark Metro. Hous. Auth. v. Harris*, No. CA-8687, 1992 WL 90131 (Ohio App., 5th Dist., Apr. 20, 1992).

In any eviction action against an assisted housing tenant, the landlord has the burden of proving that it served the tenant with the applicable federal notice of termination (see Sections III.A-E, below). *Nat'l Church Residences of Worthington v. Timson*, 78 Ohio App.3d 798, 605 N.E.2d 1346 (10th Dist. 1992).

However, if a tenant asserts as a defense the failure of a landlord to serve the applicable federal notice of termination, the tenant has the burden of proving the type of assisted housing in which the tenant resides. See *Akron Metro. Hous. Auth. v. Konich*, No. 17177, 1995 WL 553250 (Ohio App., 9th Dist., Sept. 20, 1995); *Conifers Ltd. P'ship v. McWilliams*, No. 13721, 1993 WL 224755 (Ohio App., 2nd Dist., June 23, 1993). But see *Normar Corp. v. Richardson*, No. 93-CVG-9922 (Ohio Mun., Dayton, Mar. 3, 1994) (eviction claim dismissed because "Plaintiff has failed to present evidence showing which federal regulations in regard to Section 8 housing apply to the rental premises....Without such information the Court is prevented from making a crucial determination on whether Plaintiff or Defendant complied with the appropriate federal regulations").

10. Miscellaneous Evidence and Proof Issues

"Before trying the cause in an action for forcible entry and detainer in the absence of the defendant, the court or referee [now magistrate] must first determine whether the summons was properly served." *Vistula Mgmt. Co. v. Stuckey*, No. L-92-102, 1993 WL 315626, at *3 (Ohio App., 6th Dist., Aug. 13, 1993).

In an eviction action for disturbing the neighbors, the testimony of neighbors may not be required to show that the tenant's conduct disturbed the neighbors. E.g., *Label & Co. v. Taylor*, No. 86-C-26, 1987 WL 12887 (Ohio App., 7th Dist., June 17, 1987) (security guard's testimony as to the noise at the premises deemed sufficient).

⁶⁷ For the definition of "assisted housing," see note 163, below.

In an eviction action for repeated damage to the premises, the landlord may submit evidence of past incidents of damage to the premises. *Stark Metro. Hous. Auth. v. Kirksey*, No. CA-9116, 1993 WL 135735 (Ohio App., 5th Dist., Apr. 19, 1993). In such cases, the landlord has not waived those prior lease violations. *Id.*

In an eviction action for an unauthorized occupant, the determination as to whether a person is a guest or an occupant of the premises is a question of fact. *New Boston Kiwanis Hous., Etc. v. Sparks*, No. 1957, 1992 WL 79561 (Ohio App., 4th Dist., Apr. 14, 1992).

When a local court rule requires a trial statement that identifies the witnesses who will be testifying and the documents that will be introduced, a landlord's failure to file a trial statement is a potential ground for excluding the testimony of witnesses and the introduction of documents in the eviction action. *See, e.g., Cuyahoga Metro. Hous. Auth. v. Moon*, No. 2006-CVG-10893 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2006).

N. Magistrate's Decision and a Party's Objections

1. Content of a Magistrate's Decision

When an eviction action is tried to a magistrate, the magistrate is required to prepare and file a magistrate's decision. Ohio R. Civ. P. 53(D)(3)(a).

In eviction actions, a magistrate's decision may be devoid of both findings of fact and conclusions of law. *Miele v. Ribovich*, 90 Ohio St.3d 439, 443-44, 739 N.E.2d 333 (2000);⁶⁸ *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 45 Ohio St.3d 51, 55, 543 N.E.2d 483 (1989).

However, a magistrate may *sua sponte*, or in response to a party's motion under Civil Rule 53(D)(3)(a)(ii), include findings of fact and/or conclusions of law in the magistrate's decision. *State ex rel. GMS Mgmt. Co., Inc. v. Callahan*, 45 Ohio St.3d 51, 55, 543 N.E.2d 483 (1989).

Whenever a magistrate includes findings and fact and/or conclusions of law in the magistrate's decision (or amended decision), the decision (or amended decision) must

⁶⁸ *Miele* implicitly overruled *Cresthaven Dev., Inc. v. Franklin*, No. 76079, 2000 WL 336525 (Ohio App., 8th Dist., Mar. 30, 2000), and *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898 (Ohio App., 2nd Dist., June 4, 1999).

be filed within seven working days after the trial on the eviction claim. The *Callahan* decision held that, in an eviction action, Civil Rule 52 does not apply but a court may prepare findings of fact and conclusions of law, provided they are filed within seven working days after the trial.⁶⁹ The *Miele* decision does not affect this *Callahan* holding. *Miele*, 90 Ohio St.3d at 444 n.5.

2. Court Review of a Magistrate's Decision, Absent Objections

In an eviction action, absent objections to the magistrate's decision (see Section I.N.3, below), the court may adopt the magistrate's decision without making an independent analysis of the issues. *Miele v. Ribovich*, 90 Ohio St.3d 439, 443, 739 N.E.2d 333 (2000). Under Civil Rule 53(D)(4)(c), the court is only required to determine whether there is "an error of law or other defect on the face of the magistrate's decision." *Miele*, 90 Ohio St.3d at 443.⁷⁰

3. Objections to a Magistrate's Decision

In an eviction action, a party may file objections to the magistrate's decision under Civil Rule 53(D)(3)(b).⁷¹ See *Sears v. Fechuck*, No. 1999AP-080048, 2000 WL 874727, at *1-2 (Ohio App., 5th Dist., June 6, 2000); *Woodruff Vill. Apts. v. Jones*, No. L-90-145, 1991 WL 35165, at *4 (Ohio App., 6th Dist., Mar. 15, 1991).⁷² Cf. *Lewis v. Powers*, No. 15461, 1997 WL 335563, at *7 (Ohio App., 2nd Dist., June 13, 1997). But see *Summit Mgmt. Servs. v. Gough*, No. 19714, 2000 WL 1226605, at *2,4 (Ohio

⁶⁹ Post-*Callahan*, appellate court decisions holding that Civil Rule 52 is not applicable to FED actions include: *Oneida Props., Inc. v. Pickett*, No. 24626, 2009 WL 3119647 (Ohio App., 9th Dist., Sept. 30, 2009); *Davis v. Reed*, Nos. 68699,68700, 1996 WL 347814 (Ohio App., 8th Dist., June 20, 1996); *Owner's Mgmt. Co. v. Osborne*, No. 16208 (Ohio App., 9th Dist., Aug. 20, 1993); *City of Cleveland v. Sundorph Aeronautical Corp.*, No. 59739, 1991 WL 34719 (Ohio App., 8th Dist., Mar. 14, 1991).

⁷⁰ The *Miele* decision quotes the corresponding pre-2006 Civil Rule 53(E)(4)(a) provision (see note 7, above).

⁷¹ For further support for (and a general discussion of) this proposition, see note 74, below.

⁷² These pre-2006 court decisions cite to the corresponding pre-2006 Civil Rule 53(E)(3) (see note 7, above).

App., 9th Dist., Aug. 30, 2000).⁷³

Moreover, to preserve the right to appeal from the trial court's decision (on legal conclusions or factual findings) in an eviction action tried to a magistrate, a party generally must file objections under Civil Rule 53(D)(3)(b)(iv).⁷⁴ *DMHA v. Sacksteder*, No. 19253, 2005 WL 78547 (Ohio App., 2nd Dist., Jan. 14, 2005); *Akron Metro. Hous. Auth. v. Jacobs*, No. 20671, 2002 WL 432035 (Ohio App., 9th Dist., Mar. 20, 2002); *Bennington v. Robinson*, No. 1999-CA-00212, 2000 WL 222156 (Ohio App., 5th Dist., Feb. 7, 2000); *Fed. Prop. Mgmt. v. Brown*, No. 17424, 1999 WL 961275 (Ohio App., 2nd Dist., June 25, 1999); *Timbercreek Vill. Apts. v. Myles*, No. 17422, 1999 WL 335307 (Ohio App., 2nd Dist., May 28, 1999); *U.S. Sec'y of Hous. & Urban Dev. v. Chancellor*, No. 73970, 1999 WL 126170 (Ohio App., 8th Dist., Feb. 25, 1999);

⁷³ This appellate district arguably overruled this decision on the right to file objections when it later held, in *Akron Metro. Hous. Auth. v. Jacobs*, No. 20671, 2002 WL 432035 (Ohio App., 9th Dist., Mar. 20, 2002), that, under Civil Rule 53(E)(3)(b), the failure to file objections to a magistrate's finding or conclusion in an FED action waives the right to challenge either the finding or the conclusion on appeal.

⁷⁴ The pre-2006 court decisions cited in this paragraph cite to the corresponding pre-2006 Civil Rule 53(E)(3)(b) (see note 7, above).

The court decisions cited in this paragraph also implicitly hold that a party has a right to file objections to a magistrate's decision in an eviction action. Their holding that a party must file such objections in order to preserve the right to appeal from the trial court's FED judgment is necessarily premised on (and thus recognizes) the tenant's right to file the objections.

But query whether this Civil Rule 53(D)(3)(b)(iv) provision should apply to eviction actions. The purpose of the provision is to disallow appellate review where the alleged error was not called to the attention of the trial court at a time when the trial court could have corrected the error. See *Proctor v. Proctor*, 48 Ohio App.3d 55, 58, 548 N.E.2d 287 (3rd Dist. 1988). In an eviction action, timely objections do not automatically stay execution of the judgment (see Section I.N.4, below) and, therefore, do not necessarily call the error to the attention of the trial court at a time when it can take meaningful corrective action, e.g., prevent the tenant's eviction. Compare Civil Rule 53(D)(3)(b)(i) (objections to be filed within fourteen days of the filing of the magistrate's decision) with R.C. 1923.14 (writ of restitution to be executed within ten days after its issuance, which often occurs within a day of the filing of the magistrate's decision). In *Kettering Square Apts. v. Crawford*, Nos. 27504,27545,27548, 2017 WL 6398837, ¶ 10 (Ohio App., 2nd Dist., Dec. 15, 2017), the court summarizes well why "[t]he objection provisions in Civ.R. 53 create a procedural quagmire when applied in a forcible entry and detainer proceeding...." But the court opts not to decide whether they apply to FED actions because, in the context of that case, the error would be harmless. See also *Gold Key Realty v. Collins*, No. 2013-CA-57, 2014 WL 5409159, ¶¶ 18-20 (Ohio App., 2nd Dist., Oct. 24, 2014) (discusses this issue without ruling on it; cites to this footnote, as set forth in the third edition).

Summit Mobile Home Park v. Brode, No. 97-P-0080, 1998 WL 34002598 (Ohio App., 11th Dist., Oct. 16, 1998). See also *Rescue Temple Church of God v. Jones*, No. 1509, 1993 WL 175538 (Ohio App., 9th Dist., May 26, 1993); *Kelly Midway Supply, Inc. v. Cotter*, No. 91-L-001, 1991 WL 233823 (Ohio App., 11th Dist., Nov. 8, 1991); *Atwood v. Bare*, No. 1854, 1988 WL 117999 (Ohio App., 11th Dist., Oct. 28, 1988).

“However, a party is not prohibited from assigning error on appeal related to the court’s adoption of a magistrate’s factual findings if the required language of Civ.R.53(D)(3)(a)(iii) is not included in the magistrate’s decision.” *Kramanak v. Myers*, No. 2013-CA-00010, 2013 WL 3477269, ¶ 13 (Ohio App., 5th Dist., July 8, 2013). *Accord Marble Builder Direct Int’l, Inc. v. Hauxhurst*, No. 2011-L-040, 2012 WL 1288722, ¶ 17 (Ohio App., 11th Dist., Apr. 16, 2012).

Given that the requirement to file objections applies to FED actions, the Civil Rule 53(D)(3)(b)(i) time period for filing objections – “[w]ithin fourteen days of the filing of the magistrate’s decision” – must likewise apply to eviction actions.

Furthermore, this fourteen-day period does not interfere with the summary nature of eviction proceedings. See generally *Miele v. Ribovich*, 90 Ohio St.3d 439, 443-44, 739 N.E.2d 333 (2000). Under Civil Rule 53(D)(4)(e)(i), the court may enter a judgment during this fourteen-day period.⁷⁵ And, in eviction actions, the automatic stay provision of Civil Rule 53(D)(4)(e)(i) does not apply. See Section I.N.4, below.

“An objection to a factual finding, whether or not specifically designated as a finding of fact under Civ.R. 53(D)(3)(a)(ii), shall be supported by a transcript of all the evidence submitted to the magistrate relevant to that finding or an affidavit of that evidence if a transcript is not available.” Civil Rule 53(D)(3)(b)(iii). “If an affidavit is employed, it must purport to comprise all the relevant evidence submitted to the referee [now magistrate] on the issue, instead of just the evidence the objecting party believes was disregarded.” *Pappenhagen v. Payne*, 48 Ohio App.3d 176, 178, 549 N.E.2d 208 (8th Dist. 1988).

Under Civil Rule 53(D)(3)(b)(iii), the objecting party is required to “file the transcript or affidavit within thirty days after filing objections, unless the court extends

⁷⁵ The pre-1995 Civil Rule 53 (see note 7, above) required courts to wait for timely objections or the expiration of the fourteen-day period before entering a judgment. Because of this delay, under pre-1995 Civil Rule 53(E), the fourteen-day period for filing objections did not apply to eviction actions. *Cuyahoga Metro. Hous. Auth. v. Jackson*, 67 Ohio St.2d 129, 423 N.E.2d 177 (1981). The *Jackson* ruling on this issue should no longer be controlling since the delay that it relied on no longer exists.

the time in writing for preparation of the transcript or other good cause.” This thirty-day provision applies to eviction actions. *Grant-Ross v. Dunsmore*, No. L-20-1203, 2021 WL 4480900 (Ohio App., 6th Dist., Sept. 30, 2021); *Bowshier v. Bowshier*, No. 2012-CA-40, 2013 WL 425813 (Ohio App., 2nd Dist., Feb. 1, 2013). If a trial court denies an objection before the filing of the transcript (or affidavit) and before the expiration of this thirty-day period, it constitutes: noncompliance with Civil Rule 53(D)(3)(b)(iii); plain error; and grounds to reverse the trial court’s ruling on appeal. *Id.*

Absent the filing of the required transcript or affidavit, the court will accept as true the magistrate’s factual findings. *Stewart v. Hickory Hills Apts.*, 52 N.E.3d 259, 2015-Ohio-5046, ¶¶ 11,12 (Ohio App., 9th Dist., 2015); *Pappenhagen v. Payne*, 48 Ohio App.3d 176, 178, 549 N.E.2d 208 (8th Dist. 1988).⁷⁶

When ruling on objections under Civil Rule 53(D), “the [trial] court shall undertake an independent review as to the objected matters” Ohio R. Civ. P. 53(D)(4)(d). “[T]he trial court must conduct an independent review of the facts and conclusions contained in the magistrate’s report and enter its own judgment.” *Liggett v. Shitaker Props.*, No. 23425, 2010 WL 1410758, ¶ 6 (Ohio App., 2nd Dist., Apr. 9, 2010). *Accord Aban v. Schaeffer*, 185 Ohio App.3d 250, 923 N.E.2d 1168, ¶ 24 (5th Dist. 2009). “Civ.R. 53 obligates the trial court to make its own determination, without deference to the the magistrate” *Aban*, 185 Ohio App.3d at 255. “Thus, the trial court’s standard of review of a magistrate’s decision is de novo.” *Liggett v. Shitaker Props.*, No. 23425, 2010 WL 1410758, ¶ 6 (Ohio App., 2nd Dist., Apr. 9, 2010). *Accord Aban*, 185 Ohio App.3d at 255.

If the court sustains the objections before it has entered a judgment, the court may reject the magistrate’s decision, in whole or in part. Civil Rule 53(D)(4)(b). If the court sustains the objections after it has entered a judgment, the court may vacate the judgment. Civil Rule 53(D)(4)(e)(i).

4. Stay Pending a Ruling on Objections

The tenant’s filing of objections to a magistrate’s decision on an eviction claim does not operate as an automatic stay under Civil Rule 53(D)(4)(e)(i). *Miele v. Ribovich*, 90 Ohio St.3d 439, 739 N.E.2d 333 (2000); *Colonial Am. Dev. Co. v. Griffith*,

⁷⁶ Because *Pappenhagen* is a pre-2006 court decision, it cites to the corresponding pre-2006 Civil Rule 53(E)(3)(b) (see note 7, above).

48 Ohio St.3d 72, 549 N.E.2d 513 (1990);⁷⁷ *Oneida Props., Inc. v. Pickett*, No. 24626, 2009 WL 3119647 (Ohio App., 9th Dist., Sept. 30, 2009) (applies *Miele* and *Griffith* to Civil Rule 53(D)(4)(e)(i)); *Lewis v. Powers*, No. 15461, 1997 WL 335563 (Ohio App. 2nd Dist., June 13, 1997).

Nevertheless, “the court retains its discretion to grant a stay while it reviews objections.” *Calhoun v. Ivey*, No. 2006-CVG-27001, slip op. at 1 (Ohio Mun., Cleveland, Hous. Div., Mar. 28, 2007). “The court can protect a plaintiff’s interest in prompt execution of judgment by ruling promptly on objections when it has granted a discretionary stay.” *Id.*, slip op. at 2.

Therefore, it is often necessary and appropriate for a tenant to move for a stay of execution pending the court’s ruling on the tenant’s objections. The customary time period between the filing of a magistrate’s decision and the execution of the writ of restitution (see Section I.O.2, below) varies significantly among jurisdictions, but it may be as short as a few days.

If a tenant does not secure a stay pending a ruling on the tenant’s objections and is consequently evicted under a writ of restitution, the eviction action may be subject to a dismissal as moot, without any ruling on the merits of the objections. *See, e.g., Gold Key Realty v. Collins*, No. 2013-CA-57, 2014 WL 5409159 (Ohio App., 2nd Dist., Oct. 24, 2014).

O. Judgment and Writ of Restitution

1. Introduction

In an eviction action, the court must determine whether to enter a judgment for the landlord or for the tenant and, if the judgment is for the landlord, when and against whom to issue the writ of restitution (also known as the writ of execution). The writ of restitution is discussed in Section I.O.2, below. Issues concerning the persons against whom an eviction judgment may be enforced are discussed in Section I.O.3, below.

When a court enters an eviction judgment against a manufactured home park resident, the judgment will provide the park operator with additional rights for

⁷⁷ The *Griffith* decision cites to the corresponding pre-1995 Civil Rule 53(E)(7) (see note 7, above). The *Miele* decision retains the *Griffith* holding. *Miele v. Ribovich*, 90 Ohio St.3d 439, 444 n.5, 739 N.E.2d 333 (2000).

removing the manufactured or mobile home from the manufactured home park. In these eviction actions, the park operator also has additional duties with respect to any personal property that remains on the residential premises. These additional rights and duties are discussed in Section I.O.4, below.

If the court makes an R.C. 1923.15 finding that the premises are not in compliance with R.C. 5321.04 or R.C. 4781.38 (former R.C. 3733.10), the eviction judgment may also include a remedial order under R.C. 1923.15. These remedial orders are discussed in Section I.O.5, below.

2. Writ of Restitution

A writ of restitution instructs the bailiff's (or sheriff's) office to enforce an eviction judgment that has been entered in favor of the landlord. R.C. 1923.13. It instructs the bailiff's office to remove the tenant's person and property from the premises.⁷⁸ *Id.*

A writ of restitution is not final and may not be issued until the judge signs it.⁷⁹ *Del Manor v. Peterson*, No. 93-P-0039, 1994 WL 45269 (Ohio App., 11th Dist., Feb. 11, 1994). Therefore, a writ of restitution signed only by the clerk of courts may not be issued. *Id.*

The courts usually issue the writ of restitution on or shortly after the date on which they have filed the judgment for the landlord. However, a court may delay its issuance of the writ of restitution when advised that time is necessary to find another dwelling unit, particularly if there are hardship factors related to elderly persons, persons with disabilities, or children in the household.⁸⁰ *E.g., Cincinnati Metro. Hous. Auth. v. Foster*, No. 88-CV-05432 (Ohio Mun., Hamilton Cty., Aug. 31, 1988). *See generally Zeid v. Brown*, No. 12-259, 1988 WL 59831, at *1 (Ohio App., 11th Dist., June 3, 1988).

The court may make enforcement of the writ contingent on the landlord's payment

⁷⁸ If necessary, a landlord may be granted a writ of mandamus to secure enforcement of the writ of restitution. *State ex rel. Marsol Apt. Co. v. Vannuci*, 68 Ohio App.2d 181, 428 N.E.2d 468 (8th Dist. 1980).

⁷⁹ If a writ of restitution is issued without the judge's signature, the court may vacate the writ under the court's inherent powers, independent of Civil Rule 60(B). *Del Manor v. Peterson*, No. 93-P-0039, 1994 WL 45269 (Ohio App., 11th Dist., Feb. 11, 1994).

⁸⁰ A moratorium on the issuance of writs of restitution due to the Christmas season, if for a significant period of time (*e.g.*, 18 days), may violate the landlord's due process and First Amendment rights. *See Morrison v. Lipscomb*, 877 F.2d 463 (6th Cir. 1989).

of a deposit that covers the cost of execution. *State ex rel. Marsol Apt. Co. v. Vannuci*, 68 Ohio App.2d 181, 428 N.E.2d 468 (8th Dist. 1980).

R.C. 1923.14 requires the bailiff's office to execute the writ of restitution within ten days of receiving it. *State ex rel. GMS Mgmt. Co., Inc. v. Wellington*, No. 03-MA-232, 2004 WL 47164, ¶ 6 (Ohio App., 7th Dist., Jan. 7, 2004). "There is no provision in the statute to allow the sheriff [or bailiff] to establish a grace period within which the tenant may have an opportunity to vacate the premises." *Id.*

The tenant may not obtain a writ of prohibition to prevent enforcement of the writ of restitution. *State ex rel. Cully v. Flanagan*, 50 Ohio St.3d 180, 553 N.E.2d 655 (1990). There are two reasons for this conclusion: (1) the bailiff's enforcement of a writ of restitution is not an exercise of judicial or quasi-judicial power; and (2) an appeal of the eviction judgment is an adequate remedy at law. *Id.*

When the bailiff removes the tenant's property from the premises, generally, the bailiff places the property either outside by an adjacent curb or in storage. *E.g., Riolo v. Navin*, No. 79809, 2002 WL 502408 (Ohio App., 8th Dist., Apr. 4, 2002) (curb); *Castle Apts., Inc. v. Allgood*, 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988) (curb); *Ringler v. Sias*, 68 Ohio App.2d 230, 428 N.E.2d 869 (10th Dist. 1980) (curb); *State ex rel. Marsol Apt. Co. v. Vannuci*, 68 Ohio App.2d 181, 428 N.E.2d 468 (8th Dist. 1980) (storage). The practice varies among jurisdictions.

After the bailiff has removed the property from the premises, the landlord does not have an affirmative duty to protect it, even if the property has been placed on the landlord's land. *Ringler v. Sias*, 68 Ohio App.2d 230, 428 N.E.2d 869 (10th Dist. 1980).

If the property is placed in storage, the tenant will be required to pay the storage fee in order to recover the property. *E.g., State ex rel. Marsol Apt. Co. v. Vannuci*, 68 Ohio App.2d 181, 428 N.E.2d 468 (8th Dist. 1980).

3. Persons Against Whom an Eviction Judgment May Be Enforced

When a court enters a judgment for the landlord in an eviction action, the persons against whom the judgment may be enforced are, in some circumstances, limited to the persons who have been named as defendants in the eviction complaint.

For example, if a subtenant resides in the premises and the landlord brings an eviction action against the tenant and fails to name the subtenant as a party defendant,

generally the judgment cannot be enforced against the subtenant.⁸¹ *Hooper v. Seventh Urban, Inc.*, 70 Ohio App.2d 101, 434 N.E.2d 1367 (8th Dist. 1980).

However, one municipal court has held that, in these circumstances, the judgment may be enforced against the subtenant if: (1) the eviction complaint names as defendants the tenant “and all other occupants,” (2) the eviction complaint is served by residential service in accordance with Civil Rule 4.1, (3) the landlord has no knowledge of the subtenant’s occupancy or that anyone other than the tenant is occupying the premises, and (4) the landlord took all reasonable steps available to prohibit and prevent the subtenancy, *e.g.*, inclusion of a provision in the lease that prohibited subleasing without the landlord’s prior written consent. *Mar-Lis Props. v. Ratliff*, No. M8502-CVG-04841 (Ohio Mun., Franklin Cty., May 2, 1985).

If a husband and wife reside in the premises and one of them is not named as a defendant in the eviction complaint, whether the eviction judgment may be enforced against the non-party spouse depends on whether the non-party spouse is a tenant under the rental agreement. If the non-party spouse is not a tenant under the rental agreement, the eviction judgment may be enforced against the non-party spouse. *Studer v. Roark*, No. 94-CA-38, 1995 WL 347963 (Ohio App., 5th Dist., Mar. 21, 1995); *Dondorfer v. Wolf*, No. 13-010, 1988 WL 105568 (Ohio App., 11th Dist., Oct. 7, 1988). *But cf. Arrieta v. Mahon*, 31 Cal.3d 381, 182 Cal. Rptr. 770 (1982) (due process bars the eviction of adults who are not named in the writ of restitution, unless they are afforded certain post-judgment notice and hearing opportunities). If the non-party spouse is a tenant under the rental agreement, the eviction judgment may not be enforced against the non-party spouse. *Milano v. Jones*, No. M8906-CVG-20458 (Ohio Mun., Franklin Cty., July 10, 1989).

Based on *Studer* and *Dondorfer*, it appears that the eviction judgment may also be enforced against children of the tenant who are not named as defendants in the eviction complaint. *See also New York County Dist. Attorney’s Office v. Oquendo*, 147 Misc.2d 125, 553 N.Y.S.2d 973 (Civ. Ct. 1990). The children, like the non-party spouse in *Studer* and *Dondorfer*, are not tenants under the rental agreement. The children of the tenant reside in the premises only “as an incident to the family relationship.” *Id.* at

⁸¹ When an owner maintains an eviction action against a subtenant in possession of the premises, the tenant who is not in possession is not an indispensable party to the action. *Baughman v. Semaan*, 29 Ohio App.3d 365, 505 N.E.2d 643 (9th Dist. 1986). The reason for this conclusion is that the eviction action relates solely to the right of present possession. *Id.*

127.

If a bailiff attempts to enforce a writ of restitution against a non-party occupant who is not subject to the eviction judgment, the non-party occupant may need to intervene and file a counterclaim in the eviction action, or file a new complaint, seeking injunctive relief against the enforcement. The non-party occupant may not obtain a writ of prohibition to prevent the improper enforcement of the writ of restitution. See Section I.O.2, above. If the writ of restitution is enforced improperly against a non-party occupant, the non-party occupant may have a damage claim against the landlord, but not against the bailiffs. See *Castle Apts., Inc. v. Allgood*, 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988).

4. Manufactured Home Park, Summary Process for Judicial Sale of the Home

a. Introduction

When a court enters an eviction judgment against a manufactured home park resident, R.C. 1923.09(B) and R.C. 1923.11(B) require that the judgment entry include the authority of the park operator to remove the manufactured (or mobile) home and to exercise the right of sale, destruction, or transfer of ownership of the home under R.C. 1923.12, 1923.13(B), and 1923.14(B) (“summary sales process”). *Oak Park Mgmt. Corp. v. Via*, No. 07-CA-0022, 2008 WL 2168505 (Ohio App., 9th Dist., May 27, 2008).

However, the failure of a trial court to include this right of sale, destruction, or transfer of ownership in the judgment entry does not deprive the park operator of this right and, therefore, constitutes harmless error. *Id.*

A manufactured home park operator may not invoke this right of summary sale after: (1) it has failed to inform the court that it may elect to proceed under R.C. 1923.13(B); (2) it has executed a writ of restitution and thereby has assumed dominion and control over both the land and any personal property; and (3) thereupon, the court has closed the eviction action. *Colonial Oaks Prop., LLC v. Kilby*, No. 2018-CVG-03281 (Ohio Mun., Elyria, Dec. 9, 2020).

A manufactured home park operator also may not invoke this right of summary sale if it has not complied with the procedural requirements for the sale (see Section I.O.4.b, below). *Id.*

b. Procedural Requirements for the Sale

The summary sales process has sixteen basic provisions.⁸²

First, the home must be unoccupied for a period of three days following the entry of the eviction judgment. R.C. 1923.12(A).

Second, the park operator may then provide the titled owner of the home with a written notice to remove the home from the park within fourteen days from the date of the delivery of the notice. *Id.* The required content of the notice is specified in R.C. 1923.12(B). The notice may be served by personal delivery or by ordinary mail sent to the last known address of the owner. R.C. 1923.12(A).

Third, if the owner does not remove the home during the fourteen-day period, the park operator may request the court to use the summary sales process. R.C. 1923.12(A), 1923.13(B).

Fourth, the park operator must conduct a search of the appropriate public records and make reasonably diligent inquiries to identify any and all persons who have an outstanding right, title, or interest in the home. R.C. 1923.12(C).

Fifth, if the park operator requests the court to use the summary sales process, the request must include: (1) the park operator's certification of service of the fourteen-day notice, and (2) based on the park operator's searches and inquiries, the name and last known address of each person who has an outstanding right, title, or interest in the home ("identified interested person"). R.C. 1923.12(C).

Sixth, if personal property has been abandoned on the residential premises and the park operator has knowledge of any person who has an outstanding right, title, or interest in any of the personal property, the park operator must list those items of personal property, and the name and last known address of those persons, on its request for the writ of execution. R.C. 1923.12(C), 1923.13(B), 1923.14(B)(2),(7).

Seventh, the clerk of court may require the park operator to pay an advance deposit sufficient to secure payment of the appraisal of the manufactured home and the advertisement of the sale of the home. R.C. 1923.12(C).

Eighth, upon the park operator's request, the court shall issue a writ of execution that authorizes the use of the summary sales process, provided the requirements of R.C. 1923.12 have been satisfied. R.C. 1923.13(B).

⁸² Additional requirements are specified in R.C. 1923.12(D),(E) for cases in which the titled owner of the home is deceased.

Ninth, the clerk of court shall send the writ of execution by regular mail to the last known address of the titled owner of the home and each identified interested person. R.C. 1923.14(B)(1). When R.C. 1923.14(B)(1) requires notice to the county treasurer and auditor, it does not make them necessary parties to the FED action under Civil Rule 19. *Marysville Estates v. Bruce*, No. 14-13-12, 2013 WL 5347438, ¶¶ 10-13 (Ohio App., 3rd Dist., Sept. 23, 2013).

Tenth, within sixty days after receiving the writ of execution, if the manufactured home is abandoned, the bailiff (or sheriff) shall commence proceedings for the sale of the home in accordance with the procedures for the sale of goods on execution under R.C. Chapter 2329. R.C. 1923.14(B)(3). In addition to all notices required under R.C. 2923.13, the bailiff shall serve the identified interested persons with a written notice of the date, time, and place of the sale. *Id.* Notwithstanding any statutory provision to the contrary, the titled owner of the home may not secure a stay of execution relative to the sale. *Id.*

Eleventh, if the manufactured home is sold under the summary sales process, the park operator may deny the purchaser of the home the right to maintain the home in the manufactured home park. R.C. 1923.14(B)(3).

Twelfth, if the manufactured home cannot be sold on two occasions “due to a want of bidders,” the clerk of court shall issue a certificate of title of the home to the park operator, free and clear of all security interests, liens, and encumbrances. *Id.* The clerk shall issue the certificate of title in the manner prescribed in R.C. 4505.10. *Id.*

Thirteenth, if the manufactured home is abandoned and has a value of less than three thousand dollars and if there is no identified interested person, after serving the notices required under R.C. 2923.13, the bailiff may cause the destruction of the home or the clerk of court may issue a certificate of title of the home to the park operator, free and clear of all security interests, liens, and encumbrances. R.C. 1923.14(B)(4). The clerk shall issue the certificate of title in the manner prescribed in R.C. 4505.10. *Id.*

Fourteenth, at any time prior to the issuance of the writ of execution, the titled owner of the manufactured home may remove the home from the park (or other place of storage) upon payment of all outstanding tax liens on the home and, unless the owner is indigent, all unpaid court costs in the eviction action. R.C. 1923.14(B)(5).

Fifteenth, after the issuance of the writ of execution, the titled owner of the manufactured home may remove the home from the park (or other place of storage) at any time up to the day before the scheduled sale, destruction, or transfer of ownership,

upon payment of all moving and storage costs, all outstanding tax liens on the home, and, unless the owner is indigent, all unpaid court costs in the eviction action. *Id.*

Sixteenth, at any time after the issuance of the writ of execution, the holder of any outstanding lien, right, title, or interest in the manufactured home may stop the summary sales process by: (1) commencing a proceeding to repossess the home under R.C. Chapters 1309 and 1317, and (2) then paying all outstanding monthly rent due the park operator, for the period between the issuance of the writ and the sale of the property under R.C. Chapters 1309 and 1317. R.C. 1923.14(B)(2),(6).

5. R.C. 1923.15 Remedial Order

R.C. 1923.15 authorizes the court, during an eviction action, to order an appropriate governmental agency (*e.g.*, local housing department, county general health district) to inspect the premises and determine whether they are in compliance with the requirements of R.C. 5321.04 or R.C. 4781.38 (former R.C. 3733.10). *E.g.*, *Superior Mobile Homes, Inc. v. Russell*, No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Aug. 18, 1989); *Marino v. Smart*, No. 7-88-CVG-510 (Ohio Mun., New Philadelphia, Dec. 13, 1988).

The court may order this inspection at any time during the eviction action. For example, in *Marino*, the court held that it had jurisdiction to order, and then ordered, an R.C. 1923.15 inspection at the same time that it granted a motion to dismiss the complaint. The *Marino* court dismissed the eviction claim as moot because the tenant had vacated the premises; it dismissed the monetary claim because of the landlord's failure to amend the complaint to cure its noncompliance with Civil Rule 10(D).

If the governmental agency determines and the court finds that the premises are not in compliance with those requirements, R.C. 1923.15 authorizes the court to issue certain remedial orders in the eviction action. The court may issue these remedial orders even if the tenant has not filed a counterclaim. *Saddoris v. Sterling*, No. L-89-062, 1989 WL 135301, at *3 (Ohio App., 6th Dist., Nov. 9, 1989).

An R.C. 1923.15 remedial order may forbid the landlord from re-renting the premises after the tenant has vacated, unless and until the R.C. 5321.04 or R.C. 4781.38 (former R.C. 3733.10) violations are corrected. *E.g.*, *Kerrigan v. Campbell*, No. 21-CVH-01039 (Ohio Mun., Akron, May 18, 2021); *Fisher v. Bly*, No. 03-CVG-19705 (Ohio Mun., Cleveland, Hous. Div., Nov. 14, 2003); *Wilburn v. Watson*, No. 81-CVG-64993 (Ohio Mun., Cleveland, Hous. Div., Sept. 15, 1981); *Irvin v. Carson*, No. 79-CV-471 (Ohio Mun., Akron, Feb. 21, 1979).

This remedial order may be entered in cases in which the tenant already has vacated the premises and in cases in which, on the landlord's eviction claim, the court enters a judgment for the landlord. R.C. 1923.15. *See also Papadelis v. French*, No. 89-CVG-3932 (Ohio Mun., Canton, Sept. 11, 1989).

This remedial order also may be entered on a conditional basis in cases in which, on the landlord's eviction claim, the court enters a judgment for the tenant. *Saddoris v. Sterling*, No. L-89-062, 1989 WL 135301, at *3 (Ohio App., 6th Dist., Nov. 9, 1989). In such cases, the remedial order becomes effective if the tenant decides to vacate the premises, notwithstanding the tenant's right to remain in possession. *Id.*

When a court enters this remedial order, if the landlord re-rents the premises in violation of the order, the former tenant may file a contempt motion against the landlord. *E.g., Papadelis v. French*, No. 89-CVG-3932 (Ohio Mun., Canton, Sept. 11, 1989).

An R.C. 1923.15 remedial order also may require the landlord to correct the R.C. 5321.04 or R.C.4781.38 (former R.C. 3733.10) violations. *E.g., Kerrigan v. Campbell*, No. 21-CVH-01039 (Ohio Mun., Akron, May 18, 2021). This remedial order may be issued in cases in which, on the landlord's eviction claim, the court enters a judgment for the tenant. R.C. 1923.15. *E.g., Saddoris v. Sterling*, No. L-89-062, 1989 WL 135301, at *3 (Ohio App., 6th Dist., Nov. 9, 1989). When a court issues this remedial order, it also may appoint a housing specialist to monitor the landlord's compliance with the order. *Saddoris*, 1989 WL 135301, at *3.

In conjunction with any R.C. 1923.15 remedial order, if the court finds that the tenant caused the R.C. 5321.04 or R.C. 4781.38 (former R.C. 3733.10) violations, "the court may award damages to the landlord equal to the reasonable cost of correcting such conditions." R.C. 1923.15.

P. Post-Judgment Motions

1. Civil Rule 59 Motion

Civil Rule 59 applies to eviction actions. *Witkowski v. Arditi*, 123 Ohio App.3d 26, 702 N.E.2d 1231 (7th Dist. 1997) (ruling on time for filing the motion in an eviction action); *Agler Green Coop. v. Rivers*, No. 87AP-915, 1988 WL 37063 (Ohio App., 10th Dist., Mar. 29, 1988); *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994); *Greenfield Meadows v. Malone*, No. M9111-CVG-040019 (Ohio Mun., Franklin Cty., Apr. 17, 1992). *But see Summit Mgmt. Servs.*

v. Gough, No. 19714, 2000 WL 1226605 (Ohio App., 9th Dist., Aug. 30, 2000);⁸³ *Zellner v. Turner*, No. 92-CA-41, 1993 WL 15640 (Ohio App., 2nd Dist., Jan. 26, 1993).⁸⁴

In eviction actions, a Civil Rule 59 motion is often used to contest the court's conclusions of law, similar to a Civil Rule 53(D)(3)(b) objection to a magistrate's decision. However, to preserve the right to appeal the trial court's decision in an eviction action tried to a magistrate, a party must file a Civil Rule 53(D)(3)(b) objection regarding the relevant conclusion of law (or finding of fact). See Section I.N.3, above.

2. Civil Rule 60(B) Motion

Civil Rule 60(B) applies to eviction actions when its application is consistent with the summary nature of eviction proceedings. *Consol. Mgmt., Inc. v. R.C.T., Inc.*, Nos. 2001-L-153,156, 2002 WL 31862650 (Ohio App., 11th Dist., Dec. 20, 2002); *Lewis v. Powers*, No. 15461, 1997 WL 335563 (Ohio App., 2nd Dist., June 13, 1997); *Owners Mgmt. Co. v. Osborne*, No. 15398, 1992 WL 174640 (Ohio App., 9th Dist., July 22, 1992); *Norris v. Red Barn Rests., Inc.*, No. 13652, 1989 WL 1655 (Ohio App., 9th Dist., Jan. 11, 1989); *Agler Green Coop. v. Rivers*, No. 87AP-915, 1988 WL 37063 (Ohio App., 10th Dist., Mar. 29, 1988); *Larson v. Umoh*, 33 Ohio App.3d 14, 514 N.E.2d 145 (8th Dist. 1986). See also *Mitchell v. Walker*, No. C-050546 (Ohio App., 1st Dist., Dec. 6, 2006); *Urban Hollow Apts. v. Dunning*, No. 93AP-830, 1994 WL 55522 (Ohio App., 10th Dist., Feb. 22, 1994); *Hampshire Heights, Inc. v. Van Wormer*, 17 Ohio Op.3d 287 (Ohio App., 6th Dist., 1980).

When a Civil Rule 60(B) motion is filed before the execution of the writ of restitution, generally the application of Civil Rule 60(B) is consistent with the summary nature of eviction proceedings. *E.g.*, *Norris*, 1989 WL 1655, at *2; *Rivers*, 1988 WL 37063, at *1; *CMHA v. Holliman*, No. 2003-CVG-019864 (Ohio Mun.,

⁸³ The *Gough* decision relied solely on *Zellner v. Turner*, No. 92-CA-41, 1993 WL 15640 (Ohio App., 2nd Dist., Jan. 26, 1993), which is a decision that may have been overruled for the reason stated in note 84, below. Also, the *Gough* decision is inconsistent with the court's earlier decisions that applied Civil Rule 60(B) to eviction actions. See *Owners Mgmt. Co. v. Osborne*, No. 15398, 1992 WL 174640 (Ohio App., 9th Dist., July 22, 1992); *Norris v. Red Barn Rests., Inc.*, No. 13652, 1989 WL 1655 (Ohio App., 9th Dist., Jan. 11, 1989).

⁸⁴ This appellate district arguably overruled this Civil Rule 59 decision when it later held, in *Lewis v. Powers*, No. 15461, 1997 WL 335563 (Ohio App., 2nd Dist., June 13, 1997), that Civil Rule 60(B) applies to FED actions.

Cleveland, Hous. Div., Nov. 12, 2003); *Akron Metro. Hous. Auth. v. Mitchell*, No. 91-CVG-840 (Ohio Mun., Cuyahoga Falls, June 4, 1991). See also *Osborne*, 1992 WL 174640, at *1-2; *Dunning*, 1994 WL 55522, at *1-3.

When a Civil Rule 60(B) motion is filed after the execution of the writ of restitution, generally the application of Civil Rule 60(B) is not consistent with the summary nature of eviction proceedings. *Larson v. Umoh*, 33 Ohio App.3d 14, 17, 514 N.E.2d 145 (8th Dist. 1986). E.g., *Consol. Mgmt., Inc. v. R.C.T., Inc.*, Nos. 2001-L-153,156, 2002 WL 31862650 (Ohio App., 11th Dist., Dec. 20, 2002) (one and one-half years after judgment and tenant's vacation, and one year after building had been razed).

The execution of the writ of restitution is not an absolute bar to a Civil Rule 60(B) motion. *Larson*, 33 Ohio App.3d at 17. E.g., *Mitchell v. Walker*, No. C-050546 (Ohio App., 1st Dist., Dec. 6, 2006) (reversed denial and remanded for hearing, where motion filed five months after tenant was "physically evicted"); *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994).

But "the trial court should weigh such delay heavily against granting relief from an eviction judgment." *Larson*, 33 Ohio App.3d at 17. Two of the factors that courts consider in determining whether to grant a Civil Rule 60(B) motion after the execution of the writ of restitution are the length of the delay and any justification for the delay. *Id.*

As a condition for granting the tenant's Civil Rule 60(B) motion, the court may require the tenant to deposit with the court all rent then due and owing and to deposit with the court, as it becomes due, the rent that becomes due pending the court's decision on the motion. *Deerwood Mgmt. Co. v. Bernsdorf*, No. 78AP-470, 1978 Ohio App. LEXIS 10021 (Ohio App., 10th Dist., Nov. 28, 1978). The authority for imposing this rent deposit condition is the Civil Rule 60(B) provision that permits a court to relieve a party from a final judgment "upon such terms as are just." *Id.*

When a rent deposit condition has been imposed and the tenant fails to deposit rent with the court as ordered, the tenant's noncompliance with the rent deposit condition is a permissible ground for denying the Civil Rule 60(B) motion and thereupon issuing a writ of restitution. *Id.*

In an eviction action, one common reason for a tenant's Civil Rule 60(B) motion is the tenant's failure to appear at trial because of transportation problems. E.g., *Urban Hollow Apts. v. Dunning*, No. 93AP-830, 1994 WL 55522 (Ohio App., 10th Dist., Feb. 22, 1994); *Akron Metro. Hous. Auth. v. Mitchell*, No. 91-CVG-840 (Ohio Mun.,

Cuyahoga Falls, June 4, 1991).

The *Dunning* court found excusable neglect where the tenant failed to appear at trial because: (1) she did not own a car, (2) she had arranged to obtain a ride to the trial but that person failed to appear, (3) she made other transportation arrangements, (4) she called the court and left a message explaining why she was late and that she was on her way, and (5) she arrived one hour late.

The *Mitchell* court found that relief was appropriate under Civil Rule 60(B)(5) where the tenant failed to appear at trial because: (1) she did not own a car, (2) she had difficulty arranging transportation, (3) she was ten minutes late for the trial, (4) she sat in the courtroom to which she was directed and forty minutes later, when asked the reason for her presence, she first learned that the trial had proceeded in her absence.⁸⁵

Another common reason for a tenant's Civil Rule 60(B) motion is the tenant's tender and the landlord's acceptance of one or more future monthly rent payments after the entry of the eviction judgment and, thereafter, the landlord's attempt to enforce the eviction judgment.

In these circumstances, the landlord's acceptance of the future monthly rent payment(s) creates a new month-to-month tenancy between the landlord and tenant. *Showe Mgmt. v. Malone*, No. 07-CVG-02191, slip op. at 4 (Ohio Mun., Licking Cty., Oct. 23, 2007) ("the fact that Plaintiff continued to allow her to live there and accepted future payments created a new tenancy"). See also *Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.*, 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998) (landlord's acceptance of rent from holdover tenant creates a new tenancy); *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991) (same); *Craig Wrecking Co. v. Loewendick & Sons, Inc.*, 38 Ohio App.3d 79, 526 N.E.2d 321 (10th Dist. 1987) (same). See generally *FMJ Props. v. Hinton*, No. 50314, 1986 WL 4396, at *3 (Ohio App., 8th Dist., Apr. 10, 1986) (landlord's acceptance of rent from month-to-month tenant renews the month-to-month tenancy).

The new tenancy confers upon the tenant the right to remain in possession of the premises notwithstanding the outstanding eviction judgment. If the landlord attempts to enforce the eviction judgment and thereby deprive the tenant of this newly created

⁸⁵ The *Mitchell* court found that these circumstances do not constitute inadvertence or excusable neglect because, "knowing of a transportation problem, it was her responsibility to take steps to insure her prompt arrival." *Mitchell*, slip op. at 3.

possessory right, the court should grant the tenant's Civil Rule 60(B)(4) or 60(B)(5) motion. *E.g., Showe Mgmt. v. Malone*, No. 07-CVG-02191 (Ohio Mun., Licking Cty., Oct. 23, 2007).

3. Motion to Vacate Judgment

A judgment rendered by a court lacking subject-matter jurisdiction or personal jurisdiction is void *ab initio*. *State ex rel. Ballard v. O'Donnell*, 50 Ohio St.3d 182, 183, 553 N.E.2d 650 (1990) (personal jurisdiction); *Patton v. Diemer*, 35 Ohio St.3d 68, 70, 518 N.E.2d 941 (1988) (subject-matter jurisdiction). “[T]he authority to vacate a void judgment is not derived from Civ.R. 60(B), but rather constitutes an inherent power possessed by Ohio courts.” *Patton v. Diemer*, 35 Ohio St.3d 68, 70, 518 N.E.2d 941 (1988).

Therefore, a motion to vacate the eviction judgment is the appropriate remedy when the court lacked personal jurisdiction over the tenant because of the court's failure to serve the summons and complaint in conformity with the applicable law.⁸⁶ *G.K.G. Builders, Inc. v. Burgess*, 13 N.E.2d 745, 2014-Ohio-2431, ¶ 7 (Ohio App., 6th Dist., June 6, 2014). *E.g., Vistula Mgmt. Co. v. Stuckey*, No. L-92-102, 1993 WL 315626 (Ohio App., 6th Dist., Aug. 13, 1993). *Cf. Corley v. Sullivan-Busman*, No. 99420, 2013 WL 4976381, ¶ 15 (Ohio App., 8th Dist., Sept. 23, 2013) (“Where a defendant seeking a motion to vacate (a void judgment) makes an uncontradicted sworn statement that he never received service of the complaint, he is entitled to have the judgement against [him] vacated”).

Likewise, a motion to vacate the eviction judgment is the appropriate remedy when the court lacked subject-matter jurisdiction because of the landlord's failure to serve properly an R.C. 1923.04 notice to vacate (see Section I.C.1.b, above). *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168, ¶ 18 (Ohio App., 6th Dist., May 15, 2015). *See also MLR Props., Inc. v. Hemmelgarn*, No. L-94-349, 1995 WL 504629 (Ohio App., 6th Dist., Aug. 25, 1995); *Oda v. Davis*, No. 13985, 1994 WL 444758 (Ohio App., 2nd Dist., Aug. 17, 1994).

When the court lacked subject-matter jurisdiction, a motion to vacate the eviction judgment should be granted even if the eviction judgment is a consent entry. “[T]he issue of subject matter jurisdiction cannot be waived.” *State ex rel. Wilson-Simmons*

⁸⁶ For a discussion on the applicable law on service of process in an FED action, see Section I.G.3, above.

v. Lake County Sheriff's Dep't, 82 Ohio St.3d 37, 40, 693 N.E.2d 789 (1998). "The parties may not, by stipulation or agreement, confer subject-matter jurisdiction on a court, where subject-matter jurisdiction is otherwise lacking." *Fox v. Eaton*, 48 Ohio St.2d 236, 238, 358 N.E.2d 536 (1976), *overruled on other grounds*, *Manning v. Ohio State Library Bd.*, 62 Ohio St.3d 24, 577 N.E.2d 650 (1991). *Accord Bernard Group v. New Hope Alternative Therapy Research*, 153 Ohio App.3d 393, 396, 794 N.E.2d 141 (8th Dist. 2003); *Myers v. Clinebell*, No. S-98-048, 1999 WL 300620, at *2 (Ohio App., 6th Dist., May 14, 1999); *State ex rel. Richard v. Cuyahoga County Bd. of Comm'rs*, 100 Ohio App.3d 592, 595, 654 N.E.2d 443 (8th Dist. 1995).

4. Motion to Amend Agreed Judgment

Judgments by consent are permissible. *Wallick Props. Midwest, LLC v. Jama*, No. 20AP-299, 2021 WL 3629962, ¶ 10 (Ohio App., 10th Dist., Aug. 17, 2021). An agreed judgment entry is a contract. *Id.* Therefore, an agreed judgment entry is subject to the same rules of construction as a contract. *Id.*

"The court's inherent power to modify a consent decree or other injunction is now encompassed in Rule 60(b)(5) of the Federal Rules of Civil Procedure," *Thompson v. U.S. Dep't of Hous. & Urban Dev.*, 404 F.3d 821, 826 (4th Cir. 2005), and thus in Rule 60(B)(4) of the Ohio Rules of Civil Procedure. Ohio Civil Rule 60(B)(4) is virtually the same as Federal Civil Rule 60(b)(5).

The standard for determining whether to modify a consent decree because of a change in circumstances is set forth in *Rufo v. Inmates of Suffolk County Jail*, 502 U.S. 367 (1992). *Cnty. Dev. Props. Cleveland, Inc. v. Griffin*, No. 87954, 2007 WL 613956, ¶¶ 19-24 (Ohio App., 8th Dist., Mar. 1, 2007). The party seeking the modification bears the initial burden of establishing that a significant change in circumstances, in the facts or the law, warrants a modification of the decree. *Id.* A significant change in facts warrants a modification of the decree if the change was unforeseen and, as a result of the change, the decree proves to be unworkable. *Id.* If the moving party meets this initial burden, the court must then determine whether the proposed modification is suitably tailored to the changed circumstances. *Id.*

An example of a court applying the *Rufo* standard in granting a motion to amend a consent decree in an eviction action is *CMHA v. Matthew*, No. 2007-CVG-16146 (Ohio Mun., Cleveland, Hous. Div., Apr. 30, 2008). The court modified a consent decree so as to extend the time period for the tenant to tender unpaid rent. The court relied on a significant change in facts, namely: as a result of a recent strain on social service

agencies due to the foreclosure crisis, the tenant was unable to foresee that she would be unable to get an appointment and receive financial assistance from a social service agency within the agreed upon time period for tendering the unpaid rent.

Q. Appeal

1. Introduction

An appeal from an eviction judgment generally is subject to the same requirements and restrictions as an appeal in other civil actions. Matters of particular significance in a tenant's appeal from an eviction judgment include the final appealable order requirement (see Section I.Q.2, below), the stay and bond requirements (see Section I.Q.3, below), the mootness restriction (see Section I.Q.4, below), and the appeal time period, if a post-judgment motion or objection is filed (see Section I.Q.5, below).

The tenant's decision on whether to appeal from an eviction judgment must be made on the merits of the appeal and not solely to provide the tenant with more time to reside in the premises. If a court finds that a notice of appeal is filed solely to provide the tenant with more time to reside in the premises, the filing of the notice of appeal may constitute bad faith conduct in violation of R.C. 2323.51, even if there is a legal foundation to the appeal. *E.g., Hildreth v. Mims*, 70 Ohio App.3d 282, 590 N.E.2d 1353 (8th Dist. 1990). *Cf. 217 Williams, LLC v. Worthen*, No. C-180101, 2019 WL 2613331 (Ohio App., 1st Dist., June 26, 2019) (filed objections in FED action in order to delay the eviction of the tenant).

2. Final Appealable Order

An eviction action often includes an eviction claim and one or more non-eviction claims. The complaint may allege an eviction claim and a monetary claim. See Section I.E.2.f, above. The tenant may file counterclaims. See Section I.I, above.

Furthermore, the court may decide the eviction claim separate from the non-eviction claims, and the court may enter an eviction judgment before it enters a judgment on the non-eviction claims. See Section I.M.1, above.

In such cases: (1) the eviction judgment is a final appealable order, *Witkowski v. Arditi*, 123 Ohio App.3d 26, 702 N.E.2d 1231 (7th Dist. 1997); *Skillman v. Browne*,

68 Ohio App.3d 615, 589 N.E.2d 407 (6th Dist. 1990),⁸⁷ and (2) Civil Rule 54(B) does not apply, *Cuyahoga Metro. Hous. Auth. v. Jackson*, 67 Ohio St.2d 129, 423 N.E.2d 177 (1981).⁸⁸

Consequently, in any eviction action, the parties are permitted to appeal immediately from the eviction judgment, even if one or more non-eviction claims are still pending in the case.

At least one appellate court has held that, in these cases, the appeal from the eviction judgment may be filed either within thirty days from the eviction judgment or within thirty days from the order that disposes of the remaining claims. *Knop v. Davet*, No. 2016-G-0074, 2017 WL 1404477, ¶ 10 (Ohio App., 11th Dist., Apr. 17, 2017).

3. Stay and Supersedeas Bond

When a tenant appeals from an eviction judgment, if the tenant seeks to stay enforcement of the judgment pending the appeal, the tenant is required to post a supersedeas bond. Ohio R. Civ. P. 62(B); R.C. 2505.09, 2505.14. *See also Miami Inv. Corp. v. Baker*, 109 Ohio App. 334, 165 N.E.2d 690 (2nd Dist. 1959) (land installment contract eviction). *Cf. Winton Sav. & Loan Co. v. Eastfork Trace, Inc.*, 119 Ohio Misc.2d 83, 774 N.E.2d 355 (Ohio C.P., Clermont Cty., 2001) (foreclosure).

If a supersedeas bond is not posted, the landlord and the trial court are permitted

⁸⁷ *See also Knop v. Davet*, No. 2016-G-0074, 2017 WL 1404477 (Ohio App., 11th Dist., Apr. 17, 2017); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169, ¶ 1 n.1 (Ohio App., 8th Dist., June 19, 2003); *Cleveland Metro. Hous. Auth. v. Crowder*, No. 79355, 2002 WL 192083, at *3 n.2 (Ohio App., 8th Dist., Feb. 7, 2002); *Blosser v. Bowman*, No. 00AP-1140, 2001 WL 436088, at *1 (Ohio App., 10th Dist., May 1, 2001); *Oakwood Mgmt. Co. v. Richards*, No. 99AP-627, 1999 WL 1124692, at *1 (Ohio App., 10th Dist., Dec. 9, 1999); *Allman v. Simmers*, No. 1999-AP-030014, 1999 WL 1072200, at *1 (Ohio App., 5th Dist., Nov. 16, 1999); *Bryant v. Dale*, No. 98-CA-36, 1999 WL 731824, at *2 (Ohio App., 4th Dist., Sept. 10, 1999); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *8 (Ohio App., 2nd Dist., June 4, 1999); *Swaney v. Syndicate Mgmt., Inc.*, No. 71422, 1997 WL 209223, at *2 (Ohio App., 8th Dist., Apr. 24, 1997); *Dayton Inv. Group-7 v. Lathern*, No. 15866, 1996 WL 741822, at *1 (Ohio App., 2nd Dist., Dec. 13, 1996).

⁸⁸ *See also Oneida Props., Inc. v. Pickett*, No. 24626, 2009 WL 3119647 (Ohio App., 9th Dist., Sept. 30, 2009); *Bryant v. Dale*, No. 98-CA-36, 1999 WL 731824 (Ohio App., 4th Dist., Sept. 10, 1999); *Crossings Dev. Ltd. P'ship v. H.O.T., Inc.*, 96 Ohio App.3d 475, 645 N.E.2d 159 (9th Dist. 1994); *Chautauqua Park Apts. v. McMullen*, No. 791, 1992 WL 303139 (Ohio App., 4th Dist., Oct. 14, 1992).

to execute the writ of restitution, notwithstanding the pending appeal.⁸⁹ *First Bank Nat'l Ass'n v. Willis*, Nos. 56263,56763, 1989 WL 69409, at *1 (Ohio App., 8th Dist., June 22, 1989); *Miami Inv. Corp. v. Baker*, 109 Ohio App. 334, 336, 165 N.E.2d 690 (2nd Dist. 1959). See also *Coshocton Metro. Hous. Auth. v. Dockery*, No. 99-CA-24, 2000 WL 968691, at *1 (Ohio App., 5th Dist., July 5, 2000); *Reese Invs. v. Tucker*, No. 89AP-1189, 1990 WL 26119, at *1 (Ohio App., 10th Dist., Mar. 13, 1990).

Under Civil Rule 62(B), the posting of an adequate supersedeas bond is the only requirement for obtaining a stay of execution pending appeal. *State ex rel. Ocasek v. Riley*, 54 Ohio St.2d 488, 490, 377 N.E.2d 792 (1978).

When a stay of execution is granted and the supersedeas bond is posted, the judge “shall issue his [stay] order to the sheriff, police officer, constable, or bailiff commanding him to delay all further proceedings upon the execution.” R.C. 1923.14. Furthermore, where the premises have been restored to the landlord before the stay is granted and the supersedeas bond is posted, “the sheriff, police officer, constable, or bailiff shall forthwith place the defendant [tenant] in possession of them” *Id.* See *Bowling Green Manor Ltd. P'ship v. Kirk*, No. 94-WD-125 (Ohio App., 6th Dist., Jan. 12, 1995); *Crossings Dev. Ltd. P'ship v. H.O.T., Inc.*, 96 Ohio App.3d 475, 645 N.E.2d 159 (9th Dist. 1994).

The supersedeas bond must initially be sought from the trial court. Ohio R. App. P. 7(A). See *Mathews v. Cooper*, No. 109974, 2021 WL 3560200, ¶ 9 (Ohio App., 8th Dist., Aug. 12, 2021); *Bibb v. Home Sav. & Loan Co.*, 63 Ohio App.3d 751, 752, 580 N.E.2d 52 (6th Dist. 1989). The trial court is required to rule on a tenant's timely request for a supersedeas bond before the writ of restitution has been executed. *Martin v. Mohler*, No. 89-CA-1859, 1991 WL 28306, at *1 n.2 (Ohio App., 4th Dist., Feb. 12, 1991).

If the trial court denies the tenant's request for a supersedeas bond altogether, or fails to order the type of bond (*i.e.*, amount or method of payment) that the tenant has requested, the tenant may then seek a stay and a supersedeas bond from the court of appeals. Ohio R. App. P. 7(A). See *Eagle View Apts. v. Pride*, No. CT06-0050 (Ohio App., 5th Dist., Aug. 10, 2006); *Clayton Jaycee Hous. v. Salmon*, No. 2006AP-060032 (Ohio App., 5th Dist., June 26, 2006). However, “[d]etermining the need for the bond and its amount are discretionary matters which will not be overturned by the appellate

⁸⁹ The execution of the writ of restitution, in turn, may cause the appeal to become moot. See Section I.Q.4, below.

court absent a showing of an abuse of discretion.” *Bibb v. Home Sav. & Loan Co.*, 63 Ohio App.3d 751, 752, 580 N.E.2d 52 (6th Dist. 1989). *Accord Bowling Green Manor Ltd. P’ship v. Kirk*, No. 94-WD-125 (Ohio App., 6th Dist., Jan. 12, 1995); *Bowling Green Manor v. LaChance*, No. 94-WD-117 (Ohio App., 6th Dist. Dec. 7, 1994). *Cf. Gold Key Realty v. Collins*, No. 2013-CA-12, 2013 WL 4041173, ¶ 15 (Ohio App., 2nd Dist., Aug. 9, 2013) (bond for stay pending ruling on objections). Because of the deference accorded a trial court’s exercise of discretionary authority, the court of appeals may be more likely to grant a tenant’s motion for a stay and supersedeas bond when the trial court has simply denied the tenant’s motion, than when the trial court has ordered a supersedeas bond but it is not the type of bond that the tenant sought.

Notwithstanding this abuse of discretion standard, in several cases in which the trial court ordered a supersedeas bond in the amount of \$2,000 or \$3,000, the court of appeals reduced the amount of the supersedeas bond to a use and occupancy bond.⁹⁰ *E.g., Bowling Green Manor Ltd. P’ship v. Kirk*, No. 94-WD-125 (Ohio App., 6th Dist., Jan. 12, 1995) (\$3,000 supersedeas bond reduced to a use and occupancy bond); *Gorsuch Homes v. Wooten*, No. 2856 (Ohio App., 2nd Dist., Nov. 14, 1991) (\$2,000 supersedeas bond reduced to a use and occupancy bond); *Forest City Mgmt., Inc. v. Lauderback*, No. 91-CA-1972 (Ohio App., 4th Dist., Mar. 15, 1991) (\$2,000 supersedeas bond reduced to a use and occupancy bond). *See also Portage Metro. Hous. Auth. v. Brumley*, No. 2008-P-0019 (Ohio App., 11th Dist., Mar. 11, 2008) (\$4,902 supersedeas bond reduced to \$100 per month). *But see Bowling Green Manor Ltd. P’ship v. LaChance*, No. 94-WD-117 (Ohio App., 6th Dist., Dec. 7, 1994) (upheld \$4,250 supersedeas bond and denied request for use and occupancy bond); *Alpha Phi Alpha Home, Inc. v. Marshall*, No. 96-CA-200, 1999 WL 148365, at *1 (Ohio App., 7th Dist., Mar. 4, 1999) (upheld supersedeas bond of \$1,524, which was rental arrearage, plus all future rent as it becomes due).

The supersedeas bond must be sufficient to pay “all money costs and damages” that the appellee may be awarded in the appeal. R.C. 2505.14.

When a tenant appeals from an eviction judgment, the “landlord may recover on such an appeal bond only those damages occasioned by the delay in enforcing the eviction order.” *Langford v. Danolfo*, No. 43917, 1982 WL 5265, at *1 (Ohio App., 8th Dist., Apr. 1, 1982). Ordinarily, these potential damages to the landlord (and thus

⁹⁰ A use and occupancy bond requires a tenant to pay to the court or the landlord each month, during the pendency of the appeal, the amount of rent that is due for the month.

the proper amount of the supersedeas bond) are solely the loss of rent during the appeal.

The amount of these supersedeas bonds is not limited to the loss of rent during the pendency of the appeal in all cases. *Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d 122, 127, 255 N.E.2d 284 (8th Dist. 1970). “Consideration of additional expenses or burdens caused by the delay in returning possession is a legitimate item in the computation of [these] damages.” *Id.* at 130. But the amount of any alleged rental arrearage generally is not covered by the supersedeas bond because it is not related to the landlord’s potential damages resulting solely from the delay due to the appeal. *T&R Props. Inc. v. Wimberly*, No. 2019-CVG-029217 (Ohio Mun., Franklin Cty., May 4, 2021). And lost profits from a prospective purchase, and interest that would have been received on the prospective purchase price, are not covered by the supersedeas bond. *Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d at 130.

For an assisted housing landlord,⁹¹ this potential loss of rent is generally the tenant’s portion of the contract rent, not the full contract rent. *See Forest City Mgmt., Inc. v. Lauderback*, No. 91-CA-1972 (Ohio App., 4th Dist., Mar. 15, 1991). *See also Lovejoy v. Intervest Corp.*, 794 So.2d 1205 (Ala. App. 2001); *Tullahoma Vill. Apts. v. Cyree*, No. 85-206-II, 1986 WL 1664 (Tenn. App. Feb. 7, 1986). *Cf. Brown v. Fay Apts.*, 62 Ohio Misc.2d 188, 594 N.E.2d 190 (Ohio Mun., Hamilton Cty., 1991) (R.C. 1923.08 bond).

After the court has determined the amount of the landlord’s potential damages from the granting of a stay of execution, it must determine the form of the bond to be imposed. Courts have discretion to tailor the requisites and conditions of the bond to the needs of the litigation. *T&R Props. Inc. v. Wimberly*, No. 2019-CVG-029217 (Ohio Mun., Franklin Cty., May 4, 2021) (cites this book’s fifth edition discussion on this issue); 4 Ohio Jur. 3d Appellate Review § 229 (2011).

In an eviction action, generally the court will demand one of two basic types of bonds. *T&R Props. Inc. v. Wimberly*, No. 2019-CVG-029217 (Ohio Mun., Franklin Cty., May 4, 2021) (cites this book’s fifth edition discussion on this issue). One is a use and occupancy bond, whereby the tenant is required to pay to the court or the landlord each month, during the pendency of the appeal, the amount of rent that is due for the month. *Id.* The other is a lump sum bond in the amount of the rent that is likely to become due during the pendency of the appeal. *Id.*

⁹¹ For the definition of “assisted housing,” see note 163, below.

In most eviction cases, especially those involving low-income tenants, the use and occupancy bond has been deemed the appropriate type of supersedeas bond. *E.g.*, *J&V Props. Mgmt. v. Link*, No. 19-CA-6, 2019 WL 5173790, ¶ 10 (Ohio App., 5th Dist., Oct. 11, 2019); *Kettering Square Apts. v. Crawford*, Nos. 27504,27545,27548, 2017 WL 6398837, ¶ 3 (Ohio App., 2nd Dist., Dec. 15, 2017); *Showe Mgmt. Corp. v. Hazelbaker*, No. CA2006-01-004, 2006 WL 3479856, ¶3 (Ohio App., 12th Dist., Dec. 4, 2006); *Classic A Props. v. Brown*, No. 02-CA-2868 (Ohio App., 4th Dist., Dec. 18, 2002); *Cipolla v. McCloskey*, No. 97-CA-006866, 1998 WL 852810, at *1 (Ohio App., 9th Dist., Dec. 9, 1998); *Julian Invs., Inc. v. Dudley*, No. 98-CA-85, 1999 WL 64227, at *1 (Ohio App., 2nd Dist., Feb. 12, 1999); *Reck v. Whalen*, No. 95-CA-66 (Ohio App., 2nd Dist., Nov. 17, 1995); *Bowling Green Manor Ltd. P'ship v. Kirk*, No. 94-WD-125 (Ohio App., 6th Dist., Jan. 12, 1995); *Gorsuch Homes v. Wooten*, No. 2856 (Ohio App., 2nd Dist., Nov. 14, 1991); *Forest City Mgmt., Inc. v. Lauderback*, No. 91-CA-1972 (Ohio App., 4th Dist., Mar. 15, 1991); *BancPlus Mortgage Corp. v. Smith*, No. 57641 (Ohio App., 8th Dist., May 9, 1989); *Aultman Home for Aged Women v. Ott*, No. CA-7688 (Ohio App., 5th Dist., Nov. 21, 1988); *Novak v. Jackson*, No. 38654 (Ohio App., 8th Dist., Nov. 1, 1977); *Terrell v. Randall*, No. 38341 (Ohio App., 8th Dist., Aug. 11, 1977); *Cent. Park Place v. McDowell*, No. 33242 (Ohio App., 8th Dist., Nov. 29, 1973); *Burton v. Murry*, No. 33011 (Ohio App., 8th Dist., Sept. 5, 1973). *But see Coshocton Metro. Hous. Auth. v. Dockery*, No. 99-CA-24, 2000 WL 968691 (Ohio App., 5th Dist., July 5, 2000) (\$2,000 bond, assisted housing); *Reese Invs. v. Tucker*, No. 89AP-1181, 1990 WL 26119 (Ohio App., 10th Dist., Mar. 13, 1990) (\$1,112 bond, assisted housing). *But cf. Gold Key Realty v. Collins*, No. 2013-CA-12, 2013 WL 4041173, ¶ 15 (Ohio App., 2nd Dist., Aug. 9, 2013) (bond for stay pending ruling on objections; \$637 per month (market rent), assisted housing).

The obvious merit and inherent fairness of the use and occupancy bond is that it allows any tenant, regardless of the tenant's financial means, to pursue an appeal without jeopardizing the protection due the landlord. A use and occupancy bond adequately protects the landlord because, if the tenant misses a monthly rent payment, the court may vacate the stay of execution.

In contrast, if a court refuses to permit a use and occupancy bond and, instead, requires a low-income tenant to post a lump sum bond in the amount of several months' rent, the tenant is effectively denied the right to appeal. Most low-income tenants cannot acquire that amount of money at one time.

A court's refusal to permit a use and occupancy bond may violate a low-income

tenant's due process and/or equal protection rights. See *Usher v. Waters Ins. & Realty Co., Inc.*, 438 F. Supp. 1215 (W.D.N.C. 1977); *Jack Spring, Inc. v. Little*, 50 Ill.2d 351, 280 N.E.2d 208 (1972); *Harrington v. Harrington*, 269 A.2d 310 (Me. 1970). See generally *Lindsey v. Normet*, 405 U.S. 56 (1972). Cf. *M.L.B. v. S.L.J.*, 519 U.S. 102 (1996). But see *Letendre v. Fugate*, 701 F.2d 1093 (4th Cir. 1983). But cf. *Bankers Life & Cas. Co. v. Crenshaw*, 486 U.S. 71 (1988).

Because “the purpose of the supersedeas bond is [to] ensure an appellee can be made whole if the appellant is not successful with the appeal,” when the appellant is successful on the appeal, the appellee does “not have a legal basis to recover against the deposited bond money.” *T&R Props. Inc. v. Wimberly*, No. 2019-CVG-029217, slip op. at 3 (Ohio Mun., Franklin Cty., May 4, 2021). In these cases, “[l]ogically, the appeal did not delay plaintiff’s enforcement of the eviction judgment, since the judgment was reversed.” *Id.*

4. Mootness

In an eviction action, when the tenant appeals from the eviction judgment, a common issue is whether the tenant’s vacation of the premises during the pendency of the appeal makes the appeal moot.

The tenant’s vacation of the premises may be voluntary. *E.g.*, *Blosser v. Bowman*, No. 00AP-1140, 2001 WL 436088, at *1 (Ohio App., 10th Dist., May 1, 2001). Cf. *Showe Mgmt. Corp. v. Moore*, No. 2007-CA-00102, 2009 WL 1372988 (Ohio App., 5th Dist., May 14, 2009) (tenant vacated pending landlord’s appeal).

Alternatively, the tenant’s vacation of the premises may be involuntary. An involuntary vacation usually is the result of one of four circumstances:

- (1) the tenant’s failure to request a stay of execution, *e.g.*, *Art Paradise, Inc. v. Washington*, No. 29230, 2021 WL 6136347, ¶¶ 2,6 (Ohio App., 2nd Dist., Dec. 29, 2021); *Tiefenbacher v. Shorter*, No. L-20-1186, 2021 WL 3239856, ¶ 22 (Ohio App., 6th Dist., July 30, 2021); *Kell v. Little*, No. 2018-CA-00064, 2019 WL 192788, ¶ 8 (Ohio App., 5th Dist., Jan. 14, 2019); *Hussain v. Sheppard*, No. 14AP-686, 2015 WL 915467, ¶¶ 3,6-10 (Ohio App., 10th Dist., Feb. 24, 2015); *Millennia Hous. Mgmt., Ltd. v. Withrow*, No. 12-CA-2, 2013 WL 398944, ¶¶ 2,7,8 (Ohio App., 4th Dist., Jan. 28, 2013); *Miami Valley Hous. v. Jackson*, No. 25020, 2012 WL 5382834, ¶¶ 4-7 (Ohio App., 2nd Dist., Nov. 2, 2012); *AVB Props., LLC v. Chesler*, No. 05-CA-008702, 2006 WL 2390243, ¶¶ 14-16 (Ohio App., 9th Dist., Aug. 21, 2006).

- (2) the court's denial of the tenant's request for a stay of execution, *e.g.*, *Miller v. Johnson*, No. 109453, 2021 WL 631242, ¶ 8 (Ohio App., 8th Dist., Feb. 18, 2021); *Lake Metro. Hous. Auth. v. McFadden*, No. 2016-L-105, 2017 WL 1683178, ¶¶ 6-8 (Ohio App., 11th Dist., May 1, 2017); *Gara v. Gara*, No. 26671, 2015 WL 6410285, ¶ 17 (Ohio App., 2nd Dist., Oct. 23, 2015); *Riolo v. Navin*, No. 79809, 2002 WL 502408, at *1 (Ohio App., 8th Dist., Apr. 4, 2002); *Witkowski v. Arditi*, 123 Ohio App.3d 26, 28-30, 702 N.E.2d 1231 (7th Dist. 1997).
- (3) the tenant's failure to post the supersedeas bond on which the stay of execution is contingent, *e.g.*, *OIG Homes, LLC v. Stricklen*, No. L-21-1029, 2021 WL 4935720, ¶¶ 4-6 (Ohio App., 6th Dist., Oct. 22, 2021); *AKP Props., LLC v. Rutledge*, No. 2018-CA-00058, 2018 WL 6822573, ¶ 17 (Ohio App., 5th Dist., Dec. 21, 2018); *Rithy Props., Inc. v. Cheeseman*, 63 N.E.3d 752, 2016-Ohio-1602, ¶¶ 9,10 (Ohio App., 10th Dist., 2016); *Gromek v. Lepisto*, No. 2015-L-099, 2015 WL 5781653, ¶ 5 (Ohio App., 11th Dist., Oct. 5, 2015); *Valente v. Johnson*, Nos. 06-CA-31,38, 2007 WL 1574769, ¶¶ 20,22 (Ohio App., 4th Dist., May 29, 2007); *Long v. MacDonald*, No. 3-02-10, 2002 WL 31007937, ¶ 9 (Ohio App., 3rd Dist., Sept. 9, 2002); *Coshocton Metro. Hous. Auth. v. Dockery*, No. 99-CA-24, 2000 WL 968691, at *1 (Ohio App., 5th Dist., July 5, 2000); *U.S. Sec'y of Hous. & Urban Dev. v. Chancellor*, No. 73970, 1999 WL 126170, at *1-2 (Ohio App., 8th Dist., Feb. 25, 1999); *Reese Invs. v. Tucker*, No. 89AP-1181, 1990 WL 26119, at *1 (Ohio App., 10th Dist., Mar. 13, 1990).
- (4) during a pending appeal, the landlord files a second eviction action against the same tenant, secures an eviction judgment, and enforces it, *e.g.*, *Park Lane Apts. v. Parks*, No. L-20-1208, 2021 WL 4480879, ¶¶ 5-7 (Ohio App., 6th Dist., Sept. 30, 2021); *Weikart v. Abbe*, No. 02-CO-32, 2003 WL 21377489 (Ohio App., 7th Dist., June 5, 2003); *Reck v. Whalen*, 114 Ohio App.3d 16, 682 N.E.2d 721 (2nd Dist. 1996); *see also Showe Mgmt. Corp. v. Hazelbaker*, No. CA2006-01-004, 2006 WL 3479856 (Ohio App., 12th Dist., Dec. 4, 2006).

The general rule is that, if the tenant vacates the premises (voluntarily or involuntarily), the tenant's appeal from the eviction judgment is moot. *Farla LLC v. Pretlow*, No. 21-CA-011731, 2021 WL 6050713, ¶ 5 (Ohio App., 9th Dist., Dec. 20, 2021); *OIG Homes, LLC v. Stricklen*, No. L-21-1029, 2021 WL 4935720, ¶¶ 2,3 (Ohio App., 6th Dist., Oct. 22, 2021); *Rithy Props., Inc. v. Cheeseman*, 63 N.E.3d 752, 2016-Ohio-1602, ¶ 15 (Ohio App., 10th Dist., 2016). *Gromek v. Lepisto*, No. 2015-L-099, 2015 WL 5781653, ¶ 3 (Ohio App., 11th Dist., Oct. 5, 2015); *Hussain v. Sheppard*,

No. 14AP-686, 2015 WL 915467, ¶¶ 6-10 (Ohio App., 10th Dist., Feb. 24, 2015); *Millennia Hous. Mgmt., Ltd. v. Withrow*, No. 12-CA-2, 2013 WL 398944, ¶¶ 2,7,8 (Ohio App., 4th Dist., Jan. 28, 2013); *Miami Valley Hous. v. Jackson*, No. 25020, 2012 WL 5382834, ¶ 5 (Ohio App., 2nd Dist., Nov. 2, 2012); *Cherry v. Morgan*, Nos. 2012-CA-11,21, 2012 WL 3253220, ¶ 4 (Ohio App., 2nd Dist., Aug. 10, 2012); *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986, ¶ 36 (Ohio App., 5th Dist., May 14, 2009); *Valente v. Johnson*, Nos. 06-CA-31,38, 2007 WL 1574769, ¶¶ 20,22 (Ohio App., 4th Dist., May 29, 2007); *Schwab v. Lattimore*, 166 Ohio App.3d 12, 15, 848 N.E.2d 912 (1st Dist. 2006); *AVB Props., LLC v. Chesler*, No. 05-CA-008702, 2006 WL 2390243, ¶¶ 14-16 (Ohio App., 9th Dist., Aug. 21, 2006); *Goldstein v. Patel*, Nos. 02-CA-008183,008199, 2003 WL 21976103, ¶¶ 4-6 (Ohio App., 9th Dist., Aug. 20, 2003); *Tripp v. French*, No. 02CA-0044-M, 2002 WL 31828886, ¶¶ 7-9 (Ohio App., 9th Dist., Dec. 18, 2002); *Long v. MacDonald*, No. 3-02-10, 2002 WL 31007937, ¶¶ 8,9 (Ohio App., 3rd Dist., Sept. 9, 2002); *Riolo v. Navin*, No. 79809, 2002 WL 502408, at *1-2 (Ohio App., 8th Dist., Apr. 4, 2002); *Blosser v. Bowman*, No. 00AP-1140, 2001 WL 436088, at *1 (Ohio App., 10th Dist., May 1, 2001); *U.S. Sec’y of Hous. & Urban Dev. v. Chancellor*, No. 73970, 1999 WL 126170, at *1-2 (Ohio App., 8th Dist., Feb. 25, 1999); *Alex-Bell Oxford Ltd. P’ship v. Woods*, No. 16038, 1998 WL 289028, at *2 (Ohio App., 2nd Dist., June 5, 1998); *Stacy v. Carr*, No. CA-519, 1992 WL 37783, at *2 (Ohio App., 4th Dist., Feb. 20, 1992). *But see Huber Inv. Corp. v. Chapman*, No. 14593, 1995 WL 127896, at *1 (Ohio App., 2nd Dist., Mar. 22, 1995) (appeal not moot because tenant “left the premises only in response to an official court ordered eviction notice”).

When a tenant’s appeal from an eviction judgment is moot under the general rule, the court of appeals generally will overrule the assignment(s) of error, dismiss the appeal, and/or affirm the trial court’s decision. *Id.*

There are six circumstances in which, notwithstanding the tenant’s vacation of the premises, appellate courts have permitted the tenant to prosecute the appeal from the eviction judgment. They are discussed below. Four of them – the first, second, third, and fourth, below – are circumstances in which the appeal is not moot, notwithstanding the tenant’s vacation of the premises. Two of them – the fifth and sixth, below – are circumstances in which the appeal is moot because of the tenant’s vacation of the premises, but the courts make an exception to the general mootness rule for certain reasons.

The first circumstance is when the tenant’s vacation of the premises was

involuntary, the tenant has not permanently relocated to another residence, and the premises remain vacant. *Agler Green Coop. v. Rivers*, No. 87AP-915, 1987 WL 31282 (Ohio App., 10th Dist., Dec. 23, 1987).

The second circumstance is when the premises from which the tenant has vacated is project-based assisted housing.⁹² *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986, ¶ 39 (Ohio App., 5th Dist., May 14, 2009); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406 (Ohio App., 4th Dist., July 18, 1987); *Sandefur Mgmt. Co. v. Minor*, No. 84AP-220, 1985 WL 10250, at *2 (Ohio App., 10th Dist., Apr. 18, 1985). *But see Millennia Hous. Mgmt., Ltd. v. Withrow*, No. 12-CA-2, 2013 WL 398944, ¶¶ 12,13 (Ohio App., 4th Dist., Jan. 28, 2013).

If the tenant prevails in the appeal, it can affect the tenant's continuing eligibility for project-based assisted housing in three ways. First, it should provide the tenant with the right to lease the rental unit from which the tenant vacated, if it is available. *See Rivers*, 1987 WL 31282, at *1. Second, if that rental unit has been re-rented, it should provide the tenant with the right to lease a comparable rental unit in the same assisted housing project as soon as a comparable unit becomes available. *See New York City Hous. Auth., etc. v. Sullivan*, 4 Misc.3d 131(A), 791 N.Y.S.2d 871 (Sup. App. Term 2004). Third, "an unfavorable court proceeding could affect [the tenant's] eligibility for future federal housing assistance." *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986, ¶ 39 (Ohio App., 5th Dist., May 14, 2009). *See also Hous. Auth. of City of Stamford v. Lamothe*, 225 Conn. 757, 765, 627 A.2d 367 (1993).

The third circumstance is when the tenant occupied the premises from which the tenant has vacated under a Housing Choice Voucher (aka section 8 voucher) program⁹³ tenancy. An eviction judgment, if based on an alleged lease violation, is grounds for terminating the family's participation in the Housing Choice Voucher program. 24 C.F.R. §§ 982.551(e), 982.552(c)(i). Because the eviction judgment carries these additional adverse legal consequences, the tenant's vacation of the premises does not make the eviction appeal moot. *Richmond's Enter., Inc. v. Anderson*, No. 26674, 2016 WL 685398 (Ohio App., 2nd Dist., Feb. 19, 2016); *Olympic Realty v. Zaleski*, No. 11AP-668 (Ohio App., 10th Dist., June 29, 2012) (memorandum decision on application for reconsideration). *See also Goff v. Brown*, 715 N.W.2d 769, 2006 WL

⁹² For the definition of "project-based assisted housing," see note 165, below.

⁹³ For a summary of the Housing Choice Voucher program, see 24 C.F.R. § 982.1.

779904, at *2 (Iowa App. 2006).

The fourth circumstance is when the issue on appeal is capable of repetition yet evades review. *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶¶ 10-13 (Ohio App., 10th Dist., 2020); *Millennia Hous. Mgmt., Ltd. v. Withrow*, No. 12-CA-2, 2013 WL 398944, ¶¶ 9-11 (Ohio App., 4th Dist., Jan. 28, 2013); *Schwab v. Lattimore*, 166 Ohio App.3d 12, 848 N.E.2d 912, ¶¶ 12-14 (1st Dist. 2006); *Showe Mgmt. Corp. v. Hazelbaker*, No. CA2006-01-004, 2006 WL 3479856, ¶ 7 (Ohio App., 12th Dist., Dec. 4, 2006); *Hocking Metro. Hous. Auth. v. Martin*, No. 1998 WL 100416, at *2 (Ohio App., 4th Dist., Mar. 5, 1998).

Two critical questions arise in connection with this mootness exception. The first is whether, in accordance with this exception's requirements, there is a reasonable expectation that the tenant will be subject to the same action again. See *Schwab v. Lattimore*, 166 Ohio App.3d 12, 848 N.E.2d 912, ¶ 13 (1st Dist. 2006). The second is whether the eviction proceeding fails to meet the "evades review" requirement because of the opportunity to secure a supersedeas bond and stay (see Section I.Q.3, above).

Some court decisions have held that the "evades review" requirement is not met because of the bond and stay provisions. E.g., *Landings at Beckett Ridge v. Holmes*, No. CA2020-04-050, 2020 WL 7690283, ¶ 17 (Ohio App., 12th Dist., Dec. 28, 2020); *AKP Props., LLC v. Rutledge*, No. 2018-CA-00058, 2018 WL 6822573, ¶ 19 (Ohio App., 5th Dist., Dec. 21, 2018); *Rithy Props., Inc. v. Cheeseman*, 63 N.E.3d 752, 2016-Ohio-1602, ¶¶ 22,23 (Ohio App., 10th Dist., 2016).

Other court decisions have rejected this position on two alternative grounds. One is that "[t]enants faced with eviction due to failure to pay their rent will be unlikely to have the means to post a bond to obtain a stay of execution." *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 12 (Ohio App., 10th Dist., 2020). See also *Olympic Realty v. Zaleski*, No. 11AP-668 (Ohio App., 10th Dist., June 29, 2012) (memorandum decision on application for reconsideration). The second is that "the natural term of a tenant's lease may expire during the pendency of an appeal, requiring the tenant to vacate the premises and allowing the landlord to assert the appeal is moot." *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 12 (Ohio App., 10th Dist., 2020).

The *Wimberly* court found the exception applicable. It found the requisite capable of repetition based on the reasonable expectation that low-income tenants may be subject to an FED action again (and thus subject to the challenged affidavit practice again).

The *Hazelbaker* court, in holding the exception applicable, did not rely on (or reference) any expectation that the complaining tenant might be subject in the future to the issue on appeal. Rather, it seemed to rely solely on its finding that the issue is “capable of repetition, yet will continue to evade review,” in other cases with other litigants. *Hazelbaker*, 2006 WL 3479856, ¶ 7. The issue was whether, during the period that a first eviction judgment for a landlord is stayed pending an appeal, the landlord may file a second eviction action against the same tenant on new grounds, which arose after the filing of the first eviction action.

The *Martin* court, in holding the exception applicable, likewise relied solely on its finding that the issue on appeal is capable of repetition, yet will continue to evade review, in other cases with other litigants. *Martin*, 1998 WL 100416, at *2. The issue concerned rules governing the tenant’s right to a jury trial in an eviction action.

The *Withrow* court found the exception inapplicable because the tenant “ha[d] not shown that a reasonable likelihood exists that she will be subject to the same action again, *i.e.*, having her lease terminated due to the presence of unauthorized persons.” *Withrow*, 2013 WL 398944, ¶ 11

The *Schwab* majority found the exception inapplicable because the tenant had not shown a reasonable expectation that the tenant would be subject to the same action again – a trial court’s failure to consider her counterclaim under R.C. 1923.061(B). The *Schwab* dissent concluded that this factor is not an element of the exception and that the exception applies “when a situation is likely to occur repeatedly, albeit with different litigants.” *Schwab*, 166 Ohio App.3d at 18.

The fifth circumstance is when “there are other persons similarly situated who would benefit from the resolution of the issue on appeal.” *Sandefur Mgmt. Co. v. Minor*, No. 84AP-220, 1985 WL 10250, at *1 (Ohio App., 10th Dist., Apr. 18, 1985). *Accord Bowling Green Manor Ltd. P’ship v. LaChance*, No. WD-94-117, 1995 WL 386496, at *3 (Ohio App., 6th Dist., June 30, 1995); *Stacy v. Carr*, No. CA-519, 1992 WL 37783, at *2 (Ohio App., 4th Dist., Feb. 20, 1992).

This exception was applicable in *Minor* where the issue on appeal was whether, under the section 8 substantial rehabilitation program regulations, the tenant’s obligation to pay rent was contingent upon the landlord’s prompt recalculation of the tenant’s share of the rent. It was applicable in *LaChance* where the issue on appeal was whether good cause is required to terminate a tenancy under the Low Income Housing Tax Credit program. It was applicable in *Carr* where the issue on appeal concerned the right to a trial by jury in an eviction action.

The sixth circumstance is when the issue on appeal is one of great public importance. *T&R Props., Inc. v. Wimberly*, 158 N.E.3d 137, 2020-Ohio-4279, ¶ 15 (Ohio App., 10th Dist., 2020); *Hocking Metro. Hous. Auth. v. Martin*, No. 97-CA-9, 1998 WL 100416, at *1-2 (Ohio App., 4th Dist., Mar. 5, 1998); *LaChance*, 1995 WL 386496, at *3; *Stacy*, 1992 WL 37783, at *2; *Portage Metro. Hous. Auth. v. Brown*, 66 Ohio App.3d 737, 740-41, 586 N.E.2d 168 (11th Dist. 1990); *Minor*, 1985 WL 10250, at *1. See generally *Franchise Developers, Inc. v. City of Cincinnati*, 30 Ohio St.3d 28, 505 N.E.2d 966 (1987).

This exception was applicable in *Wimberly* where the issue on appeal concerned the practice of the Franklin County Municipal Court to enter FED judgments in which the only evidence in the case was an affidavit. It was applicable in *Martin* where the issue on appeal concerned the right to a trial by jury in an eviction action. It was applicable in *Brown* where the issue on appeal was whether the R.C. 5321.11 thirty-day notice requirement applied to a termination of a rental agreement that was based on the tenant's illegal possession and sale of crack cocaine.

5. Appeal Time Period, If Post-Judgment Motion or Objection Filed

Under Rule 4(B)(2) of the Ohio Rules of Appellate Procedure, if a party timely files a request for findings of fact and conclusions of law under Civil Rule 52, a motion for a new trial under Civil Rule 59, or objections to a magistrate's decision under Civil Rule 53(D), "the time for filing a notice of appeal begins to run as to all parties when the order disposing of the motion is entered."

In eviction actions, this tolling rule should apply when: (1) a party files a motion for a new trial under Civil Rule 59 because Civil Rule 59 applies to eviction actions (see Section I.P.1, above); or (2) a party files an objection to the magistrate's decision under Civil Rule 53(D) because Civil Rule 53(D) applies to eviction actions (see Section I.N.3, above).

However, in eviction actions, this tolling rule does not apply when a party files a request for findings of fact and conclusions of law because, even though such findings and conclusions may be issued within seven working days of the trial, Civil Rule 52 does not apply to eviction actions. See Section I.N.1, above.

II. Eviction Action, Common Defenses

A. Deficient Content/Service of Notice to Vacate or Notice of Termination

1. R.C. 1923.04 Notice to Vacate

Proper service of an R.C. 1923.04 notice to vacate is an essential element of the landlord's case in chief. *Sternberg v. Washington*, 113 Ohio App. 216, 221, 177 N.E.2d 525 (9th Dist. 1960).

If a landlord fails to serve a notice to vacate or serves a notice to vacate but its content or the service fails to comply with R.C. 1923.04,⁹⁴ the trial court lacks subject-matter jurisdiction over the eviction action. See Section I.C.1.b, above. In such cases, if the court enters an eviction judgment for the landlord, the judgment is void *ab initio*.⁹⁵ See *Patton v. Diemer*, 35 Ohio St.3d 68, 518 N.E.2d 941 (1988).

2. Notice of Termination, R.C. 5321.11

When service of an R.C. 5321.11 notice of termination is required to terminate a tenancy, proper service of a proper notice is an essential element of the landlord's case in chief. For a discussion on when this notice is required to terminate a tenancy, and on the content and service requirements for this notice, see Section I.D, above.

In such cases, if a landlord does not properly serve a proper R.C. 5321.11 notice, it is a complete defense to the eviction action. *E.g.*, *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988); *Sandefur Mgmt. Co. v. Wilson*, 21 Ohio App.3d 160, 486 N.E.2d 1267 (10th Dist. 1985).

Also, the court is without subject-matter jurisdiction over the eviction action for two separate reasons: (i) it constitutes noncompliance with R.C. 1923.02(A)(8) (see Section I.D.2.g, above); and (ii) absent compliance with the R.C. 5321.11 notice

⁹⁴ For a discussion on the content and service requirements for an R.C. 1923.04 notice to vacate, see Section I.C, above.

⁹⁵ “[E]ven when not raised by either party, the issue of subject matter jurisdiction may be raised *sua sponte* by the court at any stage of the proceedings, including for the first time on appeal.” *Youngstown Metro. Hous. Auth. v. Higgins*, No. 99-CA-81, 2000 WL 1159418, at *2 (Ohio App., 7th Dist., Aug. 4, 2000). *Accord Cheap Escape Co. v. Haddox, L.L.C.*, 120 Ohio St.3d 493, 494 n.1, 900 N.E.2d 601 (2008).

requirements, the tenancy has not been terminated (see Section I.D, above) and, consequently, the R.C. 1923.04 notice to vacate has been served before the termination of the tenancy and thus prematurely (see Section I.C.3.e, above).

3. Notice of Termination, R.C. 5321.17(B)

When service of an R.C. 5321.17(B) notice of termination is required to terminate a tenancy, proper service of a proper notice is an element of the landlord's case in chief. For a discussion on when this notice is required to terminate a tenancy, and on the content and service requirements for this notice, see Section I.D, above.

In such cases, if a landlord does not properly serve a proper R.C. 5321.17(B) notice, it is a complete defense to the eviction action. *E.g., Mockensturm v. Razeq*, No. L-85-149, 1986 WL 1692 (Ohio App., 6th Dist., Feb. 7, 1986).

Also, the trial court lacks subject-matter jurisdiction over the eviction action because, absent compliance with the R.C. 5321.17(B) notice requirements, the tenancy has not been terminated (see Section I.D, above) and, consequently, the R.C. 1923.04 notice to vacate has been served before the termination of the tenancy and thus prematurely (see Section I.C.3.e, above).

B. Deficient Service of Process

The service of process requirements in an eviction action are discussed in Section I.G, above. Under Civil Rule 3(A), the landlord has one year from the filing of the complaint to obtain proper service. Under Civil Rule 4(A), if service is not obtained within six months from the filing of the complaint, the court may dismiss the complaint without prejudice, unless good cause exists for the lack of service.

Therefore, in an eviction action, when the content or service of the summons is deficient, the appropriate response is a motion to quash service, if the response is filed before the expiration of the one-year period (or six-month period, if applicable) and before an eviction judgment has been entered. *Cf. Thomas v. Corrigan*, 135 Ohio App.3d 340, 733 N.E.2d 1213 (11th Dist. 1999) (improper to dismiss security deposit claim because the one-year period had not expired). *But see Szabo v. Humphrey*, 66 Ohio Misc.2d 55, 642 N.E.2d 1173 (Ohio Mun., Wadsworth, 1993) (granting motion to dismiss); *Jackson View Ltd. v. Sturgill*, No. 91-CVG-110 (Ohio Mun., Jackson Cty., Mar. 21, 1991) (same).

The requirement to obtain proper service of process is a jurisdictional requirement. *State ex rel. Ballard v. O'Donnell*, 50 Ohio St.3d 182, 553 N.E.2d 650 (1990); *Lincoln*

Tavern, Inc. v. Snader, 165 Ohio St. 61, 133 N.E.2d 606 (1956); *O.B. Corp. v. Cordell*, 47 Ohio App.3d 170, 547 N.E.2d 1201 (10th Dist. 1988).

Therefore, in an eviction action, absent proper service of process, the eviction judgment and the writ of restitution (if any) are void *ab initio*. *Fourth & Plum Apts. v. Tuzzolino*, No. C-990568, 2000 WL 799379 (Ohio App., 1st Dist., June 23, 2000); *Castle Apts., Inc. v. Allgood*, 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988); *Vistula Mgmt. Co. v. Stuckey*, No. L-92-102, 1993 WL 315626 (Ohio App., 6th Dist., Aug. 13, 1993); *Owners Mgmt. Co. v. Eslinger*, No. 01-CVG-1136 (Ohio Mun., Cuyahoga Falls, June 19, 2001). See generally *State ex rel. Ballard v. O'Donnell*, 50 Ohio St.3d 182, 553 N.E.2d 650 (1990); *Thomas v. Corrigan*, 135 Ohio App.3d 340, 733 N.E.2d 1213 (11th Dist. 1999).⁹⁶

Furthermore, “when the affirmative defense of insufficiency of process is properly raised and properly preserved, a party’s active participation in litigation of a case does not constitute a waiver of that defense.” *Glozzo v. Univ. Urologists of Cleveland*, 114 Ohio St.3d 141, 144, 870 N.E.2d 714 (2007). *Accord LaNeve v. Atlas Recycling, Inc.*, 119 Ohio St.3d 324, 329, 894 N.E.2d 25 (2008). See also *Szabo v. Humphrey*, 66 Ohio Misc.2d 55, 642 N.E.2d 1173 (Ohio Mun., Wadsworth, 1993) (no waiver where tenant did not file pre-trial motion or answer, tenant appeared in court for the eviction hearing, and the court continued the hearing).

C. Waiver of the R.C. 1923.04 Notice to Vacate

1. General Rule

A landlord’s acceptance of future rent,⁹⁷ after the landlord has served the tenant with an R.C. 1923.04 notice to vacate, waives the notice to vacate. *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985); *Nat’l Corp. for*

⁹⁶ However, one appellate court has held that the R.C. 1923.06(B) requirement to include certain language in the summons is not a jurisdictional requirement. *Northland Vill. Apts. v. Hamp*, No. 12407, 1991 WL 108717 (Ohio App., 2nd Dist., June 20, 1991). It held that the “[f]ailure to include the language renders any judgment voidable, but only upon timely objection by the party prejudiced thereby.” *Id.*

⁹⁷ For a discussion on whether and when a landlord has accepted the rent, under various methods of payment, see Section VII.F.6, below.

Housing P'ships v. Chapman, 18 Ohio App.3d 104, 481 N.E.2d 654 (9th Dist. 1984); *Graham v. Pavarini*, 9 Ohio App.3d 89, 458 N.E.2d 421 (8th Dist. 1983); *Presidential Park Apts. v. Colston*, 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980); *Cornerstone Cos. v. Zipkin*, 60 Ohio Misc.2d 14, 573 N.E.2d 228 (Ohio Mun., Akron, 1989); *Marchioni v. Wilson*, 20 Ohio Misc.2d 10, 485 N.E.2d 1073 (Ohio Mun., Hamilton Cty., 1984).⁹⁸ Cf. *Shimko v. Marks*, 91 Ohio App.3d 458, 632 N.E.2d 990 (5th Dist. 1993) (land installment contract).

This waiver of the notice is a waiver as a matter of law. *Urban P'ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346 (Ohio App., 8th Dist., Aug. 28, 2014); *Mitchell v. Walker*, No. C-050546 (Ohio App., 1st Dist., Dec. 6, 2006); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169 (Ohio App., 8th Dist., June 19, 2003); *Presidential Park Apts. v. Colston*, 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980).

This waiver rule remains in effect until the court issues a final judgment in response to any objections because, until that time, the eviction action is still pending. *N. Face Props., Inc. v. Lin*, No. CA2012-09-083, 2013 WL 2423802, ¶ 14 (Ohio App., 12th Dist., June 3, 2013).

⁹⁸ See also *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015); *Urban P'ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346 (Ohio App., 8th Dist., Aug. 28, 2014); *N. Face Props., Inc. v. Lin*, No. CA2010-09-083, 2013 WL 2423802 (Ohio App., 12th Dist., June 3, 2013); *IDC Brunswick Crossroads, LLC v. Gack, Inc.*, No. 10CA-0088-M, 2012 WL 177997 (Ohio App., 9th Dist., Jan. 23, 2012); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169 (Ohio App., 8th Dist., June 19, 2003); *King v. Dolton*, No. 02-CA-0041, 2003 WL 21078088 (Ohio App., 9th Dist., May 14, 2003); *Bryant v. Dale*, No. 98-CA-36, 1999 WL 731824 (Ohio App., 4th Dist., Sept. 10, 1999); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898 (Ohio App., 2nd Dist., June 4, 1999); *MLR Props., Inc. v. Hemmelgarn*, No. L-94-349, 1995 WL 504629 (Ohio App., 6th Dist., Aug. 25, 1995); *Bristol Court v. Jones*, No. 93-CA-520, 1994 WL 534920 (Ohio App., 4th Dist., Sept. 29, 1994); *Walter v. Savanich*, No. 93-AP-120086, 1994 WL 369483 (Ohio App., 5th Dist., June 24, 1994); *Dundon v. Balluck*, No. 93-CA-123, 1994 WL 55755 (Ohio App., 7th Dist., Feb. 23, 1994); *Sterling Health Care Group, Inc. v. Laughlin*, No. 92-WD-051, 1993 WL 179509 (Ohio App., 6th Dist., May 28, 1993); *Wurzelbacher v. Johnson*, No. CA92-03-048, 1993 WL 19538 (Ohio App., 12th Dist., Feb. 1, 1993); *Sheridan Manor Apts. v. Carter*, No. 92-CA-4, 1992 WL 388539 (Ohio App., 4th Dist., Dec. 22, 1992); *Stacy v. Carr*, No. CA-519, 1992 WL 37783 (Ohio App., 4th Dist., Feb. 20, 1992); *Shelter Mgmt. Group, Inc. v. Fawcett*, No. 91-CA-000009, 1991 WL 160829 (Ohio App., 5th Dist., Aug. 14, 1991); *Andrews Sch. v. Brown*, No. 11-040, 1986 WL 3204 (Ohio App., 11th Dist., Mar. 14, 1986); *Knights Ctr. Corp. v. Thomas*, No. 49636, 1985 WL 9039 (Ohio App., 8th Dist., May 23, 1985).

This waiver rule applies irrespective of whether the eviction action is for nonpayment of rent or for any other breach of the lease. *N. Face Props., Inc. v. Lin*, No. CA2012-09-083, 2013 WL 2423802, ¶¶ 16,17 (Ohio App., 12th Dist., June 3, 2013); *Rogers v. Jones*, No. 2014-CVG-028113 (Ohio Mun., Franklin Cty., Oct. 30, 2014) (follows *N. Face Props.*). E.g., *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015) (other breach); *IDC Brunswick Crossroads, LLC v. Gack, Inc.*, No. 10CA-0088-M, 2012 WL 177997 (Ohio App., 9th Dist., Jan. 23, 2012) (nonpayment of rent); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169 (Ohio App., 8th Dist., June 19, 2003) (other breach). But see *Day v. Baker*, No. CA2003-06-140, 2004 WL 2340656 (Ohio App., 12th Dist., Oct. 18, 2004) (waiver only in eviction actions for nonpayment of rent).

“The only difference created by eviction based upon [another] breach instead of nonpayment of rent essentially is that [the landlord] has waived its three-day notice but may re-file its FED action after providing [the tenant] with another three-day notice....” *N. Face Props., Inc. v. Lin*, 2013 WL 2423802, ¶ 17.⁹⁹ See also *Cornerstone Cos. v. Zipkin*, 60 Ohio Misc.2d 14, 16, 573 N.E.2d 228 (Ohio Mun., Akron, 1989). When the eviction action is based on nonpayment of rent, the landlord’s acceptance of future rent usually eliminates the tenant’s rent arrearage and thus the basis for re-filing the eviction action.

A lease provision cannot waive this waiver rule. *IDC Brunswick Crossroads, LLC v. Gack, Inc.*, No. 10CA-0088-M, 2012 WL 177997 (Ohio App., 9th Dist., Jan. 23, 2012).

When the landlord’s acceptance of future rent waives the notice to vacate, the trial court lacks subject-matter jurisdiction over the eviction action. See Section I.C.1.b, above.

A landlord’s acceptance of past due rent, after the landlord has served the tenant with an R.C. 1923.04 notice to vacate, does not waive the notice to vacate. *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898 (Ohio App., 2nd Dist., June 4, 1999); *Marks v. Young*, No. 2456-M, 1996 WL 63033 (Ohio App., 9th Dist., Feb. 14, 1996); *Owner’s Mgmt. Co. v. Johnson*, No. 61691, 1992 WL 309362 (Ohio App., 8th Dist., Oct. 22, 1992); *Damko v. Ryncarz*, No. 1906, 1988 WL 81291 (Ohio App., 11th Dist., July 29, 1988); *Graham v. Pavarini*, 9 Ohio App.3d 89, 458 N.E.2d

⁹⁹ One exception to this right to re-file the FED action arises when the landlord’s acceptance of future rent constitutes a waiver of the underlying breach of the lease. See Section II.E, below.

421 (8th Dist. 1983); *Presidential Park Apts. v. Colston*, 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980).

But the landlord's acceptance of future rent may occur as a result of the landlord's acceptance of a rent payment that is partially for a past liability and partially for a future obligation. *IDC Brunswick Crossroads, LLC v. Gack, Inc.*, No. 10CA-0088-M, 2012 WL 177997 (Ohio App., 9th Dist., Jan. 23, 2012).

"Appellate courts in this state are split on the meaning of the term 'future rent,' as used in this context." *Ebbing v. Mathis*, No. CA2013-01-014, 2013 WL 4806940, ¶ 19 (Ohio App., 12th Dist., Sept. 9, 2013). *Accord Urban P'ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346, ¶ 15 n.5 (Ohio App., 8th Dist., Aug. 28, 2014).

Some courts have held that future rent means a rent payment for any period of occupancy that is "after the date of the landlord's acceptance of the payment" ("*Carter* standard"). *Sheridan Manor Apts. v. Carter*, No. 92-CA-4, 1992 WL 388539, at *2 (Ohio App., 4th Dist., Dec. 22, 1992). *Accord Urban P'ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346, ¶ 15 (Ohio App., 8th Dist., Aug. 28, 2014); *IDC Brunswick Crossroads, LLC v. Gack, Inc.*, No. 10CA-0088-M, 2012 WL 177997, ¶ 11 (Ohio App., 9th Dist., Jan. 23, 2012); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *7 (Ohio App., 2nd Dist., June 4, 1999).

Other courts have held that, "[i]n this context, 'future' [rent] payments includes payment for any period subsequent to the three-day [R.C. 1923.04(A)] eviction notice" ("*Thomas* standard"). *Knights Ctr. Corp. v. Thomas*, No. 49636, 1985 WL 9039, at *1 (Ohio App., 8th Dist., May 23, 1985). *Accord Ondrick v. Courim*, No. 98-CVG-00063 (Ohio County Ct., Belmont Cty., July 8, 1998). *See also Colbert v. McLemore*, No. 81961, 2003 WL 21434169, ¶ 9 (Ohio App., 8th Dist., June 19, 2003).

The following three examples illustrate these standards. First, if a landlord serves a tenant with a notice to vacate on February 6 and the landlord accepts the tenant's tender of January and February rent on February 10, the landlord has accepted future rent under either standard. Under the *Carter* standard, the landlord has accepted future rent for the period February 11 to 28. Under the *Thomas* standard, the landlord has accepted future rent for the period February 7 to 28.

Second, if a landlord serves a tenant with a notice to vacate on February 6 and the landlord accepts the tenant's tender of January rent on February 10, the landlord has not accepted future rent under either standard. The January rent is neither rent for a period after February 10 (*Carter* standard) nor rent for a period after February 6 (*Thomas* standard).

Third, if a landlord serves a tenant with a notice to vacate on February 6 and the landlord accepts the tenant's tender of January and February rent on March 1, the landlord has accepted future rent under one of the two standards. Under the *Thomas* standard, the landlord has accepted future rent for the period February 7 to 28. Under the *Carter* standard, the landlord has not accepted future rent because the landlord has not accepted rent for any period after March 1.

Under either standard, the determination on whether the landlord has accepted future rent is generally a question of fact. *Mitchell v. Walker*, No. C-050546 (Ohio App., 1st Dist., Dec. 6, 2006); *Colbert v. McLemore*, No. 81961, 2003 WL 21434169 (Ohio App., 8th Dist., June 19, 2003); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985); *Presidential Park Apts. v. Colston*, 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980).

When a tenant has been depositing rent with the court during the pendency of an eviction action, and the court dismisses the eviction action without prejudice and orders the release of the rent to the landlord without prejudice to the right of the landlord to pursue another eviction action, the landlord's acceptance of those rent deposits does not constitute acceptance of future rent, relative to the notice to vacate. *Wurzelbacher v. Johnson*, No. CA92-03-048, 1993 WL 19538 (Ohio App., 12th Dist., Feb. 1, 1993).

When a tenancy is terminated during a period for which rent has been prepaid, the landlord's failure to return the prepaid rent for the post-termination period may waive the notice to vacate. *1994-NI Ohio Assocs., L.P. v. Planet Earth Entm't, Inc.*, No. 15338, 1995 WL 738416, at *5 (Ohio App., 2nd Dist., Dec. 15, 1995). In such cases, the relevant issue is whether the landlord's action of failing to return the prepaid rent "was so inconsistent with the notice to vacate as to amount to a waiver of the notice." *Id.* The finding on this issue is a question of fact. *Id.*

In *1994-NI Ohio Assocs., L.P.*, the tenant prepaid rent in the amount of \$50,000 for one year, the landlord terminated the tenancy approximately four months into that year, and the landlord did not tender repayment of the prepaid rent for the post-termination period. *Id.*, 1995 WL 738416, at *1,5. The court also considered the time required for completion of the eviction process and the landlord's related damage claims against the tenant. *Id.*, 1995 WL 738416, at *5. The court held that, "[a]lthough it is a close call, in our view, the trial court could have reasonably concluded that Ohio Associates [landlord] did not take any action, including the retention of the Planet Earth's [tenant's] prepaid rent, which was so inconsistent with the notice to vacate as to amount to a waiver of that notice." *Id.*

The decision in *Summit Mgmt. Servs. v. Gough*, No. 19714, 2000 WL 1226605, at *2 (Ohio App., 9th Dist., Aug. 30, 2000), erroneously holds that a notice to vacate always “must specify a [vacation] date after the expiration of the term for which rent is already paid.” The *Gough* decision is erroneous because it fails to distinguish between a failure to terminate the tenancy, which always precludes service of the notice to vacate, and a prepayment of rent, which precludes service of the notice to vacate only when it precludes a termination of the tenancy.

The *Gough* decision’s reliance on *Hile v. Besecker*, 82 Ohio App. 301, 79 N.E.2d 582 (2nd Dist. 1947), and *Schmidt v. Hummell*, 81 Ohio App. 167, 73 N.E.2d 806 (10th Dist. 1947), is misplaced for this reason. Both *Hile* and *Schmidt* concerned a payment of rent in a month-to-month tenancy that renewed the tenancy for another month. In those cases, the prepayment of rent invalidated the notice to vacate only because the prepayment of rent precluded the termination of the month-to-month tenancy. In other cases, especially those concerning a lease with a fixed term, a prepayment of rent does not preclude a termination of the tenancy. *E.g.*, *1994-NI Ohio Assocs., L.P. v. Planet Earth Entm’t, Inc.*, No. 15338, 1995 WL 738416 (Ohio App., 2nd Dist., Dec. 15, 1995).

The *Gough* decision’s reliance on *Bristol Court v. Jones*, No. 93-CA-520, 1994 WL 534920 (Ohio App., 4th Dist., Sept. 29, 1994), is misplaced because *Bristol Court* concerns acceptance of future rent after service of the notice to vacate, which waives the notice to vacate for the reasons discussed in this Section II.C.1.

2. Assisted Housing Tenancies

For assisted housing tenants,¹⁰⁰ an issue exists as to whether the landlord’s acceptance of the rent subsidy payment that is made on behalf of the tenant constitutes the acceptance of rent, for purposes of the waiver rule that is discussed in Section II.C.1., above. There are two basic types of rental assistance programs.

One type of program is tenant-based rental assistance, such as the Housing Choice Voucher program (“HCVP”). 24 C.F.R. part 982. Under the HCVP, the family selects a dwelling unit in the private market at which it will use the rent subsidy. 24 C.F.R. § 982.1(a)(2). “The PHA contracts with the owner to make rent subsidy payments on behalf of the family.” *Id.* The contract “only covers a single unit and a specified assisted family.” 24 C.F.R. § 982.1(b)(2). The family generally may move with the rent subsidy from one dwelling unit to another dwelling unit, at the end of any lease

¹⁰⁰ For the definition of “assisted housing,” see note 163, below.

term. 24 C.F.R. §§ 982.1(b)(2), 982.354. The rent subsidy is tied to the family, not to the dwelling unit.

Under the HCVP, the contract rent is known as the “rent to owner,” and is defined as “the total monthly rent payable to the owner under the lease for the unit.” 24 C.F.R. § 982.4. The portion of the rent to owner that is paid by the family is known as the “family rent to owner.” *Id.* The portion of the rent to owner that is paid by the public housing authority (“PHA”) is known as a “housing assistance payment.” *Id.* The housing assistance payment is a “payment to the owner for rent to the owner under the family’s lease.” *Id.*

The second type of program is project-based assisted housing rental assistance,¹⁰¹ in which rental assistance is paid for families who live in specified housing developments or units. The subsidy is tied to particular dwelling units at a particular development. Families who live in one of those dwelling units receive the benefit of the rental assistance. If the family vacates its dwelling unit, either voluntarily or involuntarily, the family no longer receives the benefit of the rental assistance.

Numerous Ohio courts, throughout the State, consistently and properly hold that a tenant-based rent subsidy (*e.g.*, HCVP subsidy) is rent, for purposes of the waiver rule. Those courts (and decisions) include: *Rogers v. Jones*, No. 2014-CVG-028113 (Ohio Mun., Franklin Cty., Oct. 30, 2014); *Deegan Mgmt. Inc. v. Moss*, No. 14-CVG-00417 (Ohio Mun., Euclid, Mar. 4, 2014); *Walton v. Gooden*, No. 2008-CVG-7298 (Ohio Mun., Cleveland, Hous. Div., Aug. 26, 2008); *Showe Mgmt. Corp. v. Sendykar*, No. 07-CVG-02733 (Ohio Mun., Licking Cty., Nov. 1, 2007); *Crawley v. Brown*, No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005); *Nat’l Church Residences v. Neal*, No. 04-CVG-1264 (Ohio Mun., Euclid, Sept. 1, 2004); *Burke v. Wilson*, No. CVG-0300781 (Ohio Mun., Washington Court House, Jan. 20, 2004); *Am. Prop. Serv. v. Henshaw*, No. 03-CVG-02766 (Ohio Mun., Fairfield Cty., Dec. 22, 2003); *Wayland v. Plymire*, No. 03-CVG-987 (Ohio Mun., Barberton, July 9, 1997); *Baker v. Wade*, No. 2002-CVG-15892 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2002); *Tolle v. Hill*, No. CVG-9600580 (Ohio Mun., New Philadelphia, Mar. 13, 1997); *Orlosky v. Adams*, No. 95-CVG-981 (Ohio Mun., Painesville, Sept. 21, 1995); *Wright v. Rash*, No. 93-CVG-10748 (Ohio Mun., Cleveland, Hous. Div., June 29, 1993); *Lipford v. Ward*, No. 92-CVG-0727 (Ohio Mun., Canton, Mar. 24, 1992);

¹⁰¹ For the definition of “project-based assisted housing,” see note 165, below.

Green v. Sephus, No. 90-CVG-1768-38 (Ohio Mun., East Cleveland, Jan. 8, 1991); *Schaefer v. Robertson*, No. K86-CVG-1104 (Ohio Mun., Portage Cty., Nov. 10, 1986). *Cf. Cheney v. Mitchell*, No. 09-CVG-01707 (Ohio Mun., Shaker Heights, Nov. 25, 2009) (30-day notice of termination waiver).

Given the definition of the HCVP housing assistance payment and the structure of the HCVP, these holdings are the only reasonable interpretation of the waiver rule, for the HCVP. The housing assistance payment is solely a rent payment under a lease made by a third-party (the PHA) directly on behalf of the tenant, for all or part of the contract rent.

These holdings are also consistent with the definition of rent: “compensation rendered for use of lands by a person permitted to hold or enjoy them.” *Dayton Metro. Hous. Auth. v. McKee*, 37 Ohio App.3d 102, 104, 524 N.E.2d 180 (2nd Dist. 1987) (citing *Sutliff v. Atwood*, 15 Ohio St. 186, 193 (1864)). The housing assistance payment is simply the full or partial compensation to the owner for permitting the tenant to reside in the dwelling unit and is thus rent.

The only exceptions to these holdings are two court decisions concerning landlords who received a single HCVP rent subsidy check for multiple units. The decisions are *Premier Mgmt., LLC v. Nutt*, No. 6-09-15, 2010 WL 1175201 (Ohio App., 3rd Dist., Mar. 29, 2010), and *Vienna Forest Apts. v. Passmore*, No. CA2004-05-104, 2005 WL 1131742 (Ohio App., 12th Dist., May 16, 2005). In these circumstances, these courts held that the landlord’s cashing of the HCVP check did not constitute a waiver of the notice to vacate.

The problem and a reasonable solution for a landlord receiving a multi-unit rent subsidy check is well described in *Macleay Woods Hous. Co. v. Franks*, 16 Misc.3d 1136(A), 2007 WL 2597918 (N.Y. City Ct. 2007). “To require a landlord so situated to reject such an omnibus check would potentially jeopardize its financial health and thereby its ability to provide shelter for its other low income tenants.” *Id.*, 2007 WL 25977918, at *4. The court thereupon held that the landlord had not accepted the HCVP rent subsidy, for waiver purposes, when it cashed the multi-unit HCVP rent subsidy check and then returned (within fourteen days) the HCVP subsidy for the tenant’s dwelling unit only. *See also Woodbridge Homes Ltd. P’ship v. Gregory*, 697 S.E.2d 370 (N.C. App. 2010) (project-based rental assistance).

This procedure – cashing the HCVP check and immediately returning the amount of the subsidy payment for the relevant tenancy – is consistent with the service of the notice to vacate. The landlord cashes the check to receive the subsidy payments for

the other HCVP tenancies but does not retain the subsidy payment for the relevant tenancy. Therefore, courts should find that a landlord's use of this procedure does not waive the notice to vacate.

When a HCVP landlord receives a rent-subsidy check solely for the relevant tenancy, the landlord may request the PHA to hold the subsidy payments pending the eviction action. Most (if not all) PHAs will honor this request and, at the conclusion of the eviction action, tender the withheld subsidy payments to the landlord.

While the *Nutt* decision is distinguishable because of the multi-unit rent subsidy check, it is also significantly flawed in two aspects.

First, the *Nutt* decision relies on the erroneous underlying premise that the HCVP rent subsidy is not rent because the payment is made by a third party. The definition of rent, as set forth in *McKee* and elsewhere (see Section VII.F.1, below), does not exclude payments made by a third party on behalf of a tenant. Indeed, "there are many examples of third parties making rental payments on behalf of actual occupants of rented premises (such as parents making rental payments for premises occupied by their children)." *Woodbridge Homes Ltd. P'ship v. Gregory*, 697 S.E.2d 370, 379 (N.C. App. 2010).

Second, the above analysis of rent under the HCVP contracts and regulations undermines the *Nutt* finding that the HCVP rent subsidy is not rent. The *Nutt* decision ignores the HCVP contracts and regulations and, instead, relies on two project-based rent subsidy cases – *Chapman* and *Helgason*.

With respect to the project-based rent subsidy programs, in Ohio and among the states, the case law is split on whether the rent subsidy constitutes rent, for purposes of the waiver rule.

Court decisions holding that the project-based rent subsidy is rent, for purposes of the waiver rule, include: *Classic A Props. v. Brown*, No. 02-CA-2868, 2003 WL 22461816 (Ohio App., 4th Dist., Sept. 30, 2003); *White Rose Props. v. Babb*, No. 00-CVF-1355 (Ohio Mun., Marietta, Jan. 23, 2001); *Bella Vista Apts. v. Ragland*, No. 91-CVG-54-471 (Ohio County Ct., Clermont Cty., May 31, 1991). See also *Woodbridge Homes Ltd. P'ship v. Gregory*, 697 S.E.2d 370 (N.C. App. 2010); *Royal Am. Mgmt., Inc. v. Godfrey*, 14 Fla. Supp.2d 56 (County Ct. 1985); *Greenwich Gardens Assocs. v. Pitt*, 126 Misc.2d 947, 484 N.Y.S.2d 439 (Civ. Ct. 1984); *Cent. Brooklyn Urban Dev. Corp. v. Copeland*, 122 Misc.2d 726, 471 N.Y.S.2d 989 (Dist. Ct. 1984).

Court decisions holding that the project-based rent subsidy is not rent, for purposes of the waiver rule, include: *Nat'l Corp. for Hous. P'ships v. Chapman*, 18 Ohio App.3d

104, 481 N.E.2d 654 (9th Dist. 1984). *See also* *Midland Mgmt. Co. v. Helgason*, 158 Ill.2d 98, 630 N.E.2d 836 (1994); *E. Lake Mgmt. & Dev. Corp. v. Irvin*, 195 Ill. App.3d 196, 551 N.E.2d 272 (1990).

The better reasoned view is that the project-based rent subsidy is rent, for purposes of the waiver rule, since it is a payment under the lease of a portion of the tenant's contract rent. When the dwelling unit is vacant, the owner of a project-based development no longer receives a rent subsidy payment for the unit. Rather, the owner may receive vacancy payments for certain periods of time. *E.g.*, 24 C.F.R. §§ 880.611(c),(d), 886.109(c).

The only difference between the HCVP rent subsidy and the project-based rent subsidy, for purposes of the waiver rule, is that the HCVP rent subsidy is tied to the family and the project-based rent subsidy is tied to the dwelling unit. The relevance of this difference, if any, would be that the HCVP rent subsidy more clearly is only a rent payment made on behalf of a particular tenant, whereas the project-based rent subsidy might also be considered a subsidy for maintaining the entire subsidized development. For this reason, the project-based rent subsidy decisions are an improper basis on which to rely in HCVP rent subsidy cases.

D. Waiver of the R.C. 5321.11 or 5321.17 Notice of Termination

If a landlord accepts future rent after the expiration of the thirty-day period of an R.C. 5321.11 or 5321.17(B) notice of termination (and thus after the termination of the tenancy), it may constitute a waiver of the notice.¹⁰² *Springboro Commons Ret. Villa, Inc. v. Feltner*, 168 N.E.3d 573, 2021-Ohio-544 (Ohio App., 12th Dist., 2021) (waiver of R.C. 5321.11 notice); *CMHA v. Hawthorne*, No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012) (dicta); *Cheney v. Mitchell*, No. 09-CVG-01707 (Ohio Mun., Shaker Heights, Nov. 25, 2009); *Citizens Sav. Corp. v. Bukoffsky*, No. 90-CVG-1851 (Ohio Mun., Massillon, Aug. 30, 1990). *See also* *Crawley v. Brown*, No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005) (30-day notice under lease); *Rababy v. City of Cleveland*, No. 93-CVG-11745

¹⁰² The landlord's acceptance of the rent for the thirty-day period (and thus before the termination of the tenancy) does not waive the R.C. 5321.11 or 5321.17(B) notice. See Section I.D.4, above.

(Ohio Mun., Cleveland, Hous. Div., June 16, 1993) (commercial month-to-month tenancy).

The rationale for this waiver is that the landlord's acceptance of future rent is inconsistent with the notice's purported termination of the tenancy. *CMHA v. Hawthorne*, No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012); *Rababy v. City of Cleveland*, No. 93-CVG-11745 (Ohio Mun., Cleveland, Hous. Div., June 16, 1993). *Cf. Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985) (acceptance of future rent waives R.C. 1923.04 notice to vacate);¹⁰³ *Quinn v. Cardinal Foods, Inc.*, 20 Ohio App.3d 194, 485 N.E.2d 741 (3rd Dist. 1984) (acceptance of future rent waives known breach of rental agreement).¹⁰⁴

Also, if a landlord's actions (or inactions) cause a significant delay between the expiration of the thirty-day period of an R.C. 5321.11 or 5321.17(B) notice of termination and the service of the R.C. 1923.04 notice to vacate, it may constitute a waiver of the notice. *CMHA v. Hawthorne*, No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012). *See also Vistula Mgmt. Co. v. Newson*, 120 Ohio App.3d 500, 698 N.E.2d 467 (6th Dist. 1997) (federal notice of termination); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988) (same). However, during such delays, usually the landlord will accept future rent and thereby waive the notice of termination, irrespective of whether the delay alone waives it.

With respect to the landlord's acceptance of future rent after the expiration of the thirty-day period, an alternative argument (in lieu of waiver) is a new tenancy argument. Its basic premise is that the landlord's acceptance of future rent creates a new periodic tenancy, which gives the tenant the right to remain in possession of the premises notwithstanding the termination of the prior tenancy. *See Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.*, 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998) (landlord's acceptance of rent from holdover tenant creates a new tenancy); *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991) (same); *Craig Wrecking Co. v. Loewendick & Sons, Inc.*, 38 Ohio App.3d 79, 526 N.E.2d 321

¹⁰³ For additional case law on waiver of an R.C. 1923.04 notice to vacate, and for a discussion of the term future rent in that context, see Section II.C, above.

¹⁰⁴ For additional case law on waiver of a breach of the rental agreement, see Section II.E, below.

(10th Dist. 1987) (same). *Cf. FMJ Props. v. Hinton*, No. 50314, 1986 WL 4396, at *3 (Ohio App., 8th Dist., Apr. 10, 1986) (landlord's acceptance of rent from month-to-month tenant renews the month-to-month tenancy).

E. Waiver of the Breach

1. Overview

When a landlord has knowledge of a tenant's breach of the rental agreement, the landlord must decide whether to terminate the tenancy or to waive the breach and continue the tenancy. *Petropoulos v. Clinical Pathology Facility, Inc.*, No. 87AP-685, 1988 WL 24397, at *4 (Ohio App., 10th Dist., Feb. 18, 1988); *Quinn v. Cardinal Foods, Inc.*, 20 Ohio App.3d 194, 196, 485 N.E.2d 741 (3rd Dist. 1984); *Brokamp v. Linneman*, 20 Ohio App. 199, 202, 153 N.E. 130 (1st Dist. 1923).

A landlord waives the breach if, with knowledge of the breach, the landlord takes action that is inconsistent with a termination of the tenancy. *Id.*

A landlord may waive the right to terminate a tenancy irrespective of whether that right is premised on the tenant's failure to pay rent or the tenant's breach of another obligation under the rental agreement.

'The forfeiture of a lease by breach of any other condition may be waived, in the same manner as a forfeiture for non-payment of rent, or a notice to quit; for if the landlord subsequently does any act, with knowledge of the breach, which can be considered as an acknowledgment of a tenancy, still subsisting, he will be held to have waived the forfeiture.'

Quinn v. Cardinal Foods, Inc., 20 Ohio App.3d 194, 196, 485 N.E.2d 741 (3rd Dist. 1984) (quoting 1 Taylor on Landlord and Tenant § 287). *Accord Millennia Hous. Mgmt., Ltd. v. Williams*, No. 101627, 2015 WL 1276464, ¶ 9 (Ohio App., 8th Dist., Mar. 19, 2015); *Petropoulos v. Clinical Pathology Facility, Inc.*, No. 87AP-685, 1988 WL 24397, at *4 (Ohio App., 10th Dist., Feb. 18, 1988).

A waiver of the right to evict is an equitable defense. *Northfield Park Assocs. v. Northeast Ohio Harness*, 36 Ohio App.3d 14, 22, 521 N.E.2d 466 (8th Dist. 1987). Therefore, in ruling on this defense, the trial court is "required to weigh and consider all equitable considerations before it." *Id.*

2. Waiver of the Breach by Acceptance of Rent

a. Nonpayment of Rent Breach

A waiver of the right to terminate a tenancy for nonpayment of rent may occur as a result of the landlord's acceptance of rent, where:

- (1) the landlord accepts future rent payments, with knowledge of the rent arrearage, *e.g.*, *Navicky v. Copas*, No. 97-CVG-00295 (Ohio Mun., Cambridge, July 3, 1997); *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994); *Owner's Mgmt. Co. v. Osborne*, No. 91-CVG-774 (Ohio Mun., Barberton, Mar. 2, 1993);
- (2) the landlord has a customary practice of accepting late rent payments, with which the tenant has complied (see Section II.H, below); or
- (3) the landlord accepts a partial payment of rent,¹⁰⁵ *e.g.*, *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991); *S. Heights Apts. v. Davis*, No. 3737, 1985 WL 10685 (Ohio App., 9th Dist., Apr. 17, 1985).

b. Other Breach

A waiver of the right to terminate a tenancy for a breach other than nonpayment of rent may occur as a result of the landlord's acceptance of rent with knowledge of the breach. *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015); *Lorain Metro. Hous. Auth. v. Noel*, No. 06-CA-009006, 2007 WL 1661854 (Ohio App., 9th Dist., June 11, 2007) (dicta); *Quinn v. Cardinal Foods, Inc.*, 20 Ohio App.3d 194, 485 N.E.2d 741 (3rd Dist. 1984); *Heller v. Murphy Hotel Corp.*, 5 Ohio Law Abs. 54 (Ohio App., 8th Dist., 1926); *Brokamp v. Linneman*, 20 Ohio App. 199, 153 N.E. 130 (1st Dist. 1923); *Pabst v. Fischer*, 13 Ohio App. 302 (12th Dist. 1920); *CMHA v. Hawthorne*, No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012); *Cuyahoga Metro. Hous. Auth. v. Hairston*, 124 Ohio Misc.2d 1, 790 N.E.2d 828 (Ohio Mun., Cleveland, Hous. Div., 2003); *Stark Metro. Hous. Auth. v. Hawkins*, No. 2002-CVG-0039 (Ohio

¹⁰⁵ While acceptance of partial payment of rent may waive the landlord's right to terminate the tenancy for nonpayment of rent, the tenant is still obligated to pay and remains liable for the unpaid rent. See *Pros Corporate Mgmt. Servs., Inc. v. Ashley S. Rose, Ltd.*, 228 Ill. App.3d 573, 582, 592 N.E.2d 609 (1992).

Mun., Alliance, Mar. 18, 2002). *See also* *Petropoulos v. Clinical Pathology Facility, Inc.*, No. 87AP-685, 1988 WL 24397, at *4-5 (Ohio App., 10th Dist., Feb. 18, 1988). *But see* *Lucas Metro. Hous. Auth. v. Carmony*, No. L-00-1296, 2001 WL 672150, at *2 (Ohio App., 6th Dist., June 15, 2001).¹⁰⁶

A waiver of the right to terminate a tenancy for a breach other than nonpayment of rent may occur even if the alleged breach of lease is an assisted housing¹⁰⁷ tenant's alleged criminal activity. *Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015) (project-based subsidized housing);¹⁰⁸ *CMHA v. Hawthorne*, No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012) (Public Housing); *Cuyahoga Metro. Hous. Auth. v. Hairston*, 124 Ohio Misc.2d 1, 790 N.E.2d 828 (Ohio Mun., Cleveland, Hous. Div., 2003) (Public Housing). In such cases, the waiver is consistent with federal law because federal law gives PHAs discretion in deciding whether to terminate a lease for criminal conduct. *Id.*

3. Waiver of the Breach by Execution of New Lease

A waiver of the right to terminate a tenancy for nonpayment of rent may occur as a result of the landlord's execution of a new lease with the tenant. *E.g.*, *Dayton Inv. Group-7 v. Lathern*, No. 15866, 1996 WL 741822 (Ohio App., 2nd Dist., Dec. 13, 1996); *Green v. Sephus*, No. 90-CVG-1768-38 (Ohio Mun., East Cleveland, Jan. 8, 1991). *See also* *Nyack Plaza v. Parker*, 18 Misc.3d 126(A), 2007 WL 4355300 (N.Y. Sup. App. Term 2007); *Joseph v. Beaumont Hous. Auth.*, 99 S.W.3d 765 (Tex. App. 2003); *Montgomery Gateway East I v. Herrera*, 261 N.J. Super. 235, 618 A.2d 865 (1992).

Likewise, a waiver of the right to terminate a tenancy for a breach other than nonpayment of rent may occur as a result of the landlord's execution of a new lease

¹⁰⁶ In *Carmony*, the court held that the significant delay between the breach of the lease and the service of the notice of termination did not constitute a waiver of the breach because the lease stated that a delay in exercising a right under the lease did not waive the right. *Lucas Metro. Hous. Auth. v. Carmony*, No. L-00-1296, 2001 WL 672150, at *2 (Ohio App., 6th Dist., June 15, 2001). It then held that the landlord did not waive the breach even though, during this delay, the landlord accepted future rent with knowledge of the breach. *Id.*

¹⁰⁷ For the definition of "assisted housing," see note 163, below.

¹⁰⁸ For the definition of "project-based subsidized housing," see note 165, below.

with the tenant.¹⁰⁹ *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118, at *10 (Ohio App., 4th Dist., June 28, 1988); *Sugarcreek L.T.D. v. Tedrick*, No. 9900554 (Ohio Mun., New Philadelphia, Feb. 4, 2000); *Smith v. Johnson*, No. 85-CVG-6928 (Ohio Mun., Dayton, Sept. 23, 1985).

When the waiver of the breach is premised on the landlord's execution of a new lease, the right to possession is based on the new lease. See *Stepping Stones Assoc. v. Seymour*, 48 A.D.3d 581, 583-84, 853 N.Y.S.2d 562 (2008).

In these circumstances, the landlord may prevent a waiver of the breach by inserting an express provision in the new lease that reserves a right to terminate for any breach of the superseded lease. *Millennia Hous. Mgmt., Ltd. v. Williams*, No. 101627, 2015 WL 1276464 (Ohio App., 8th Dist., Mar. 19, 2015); *Lorain Metro. Hous. Auth. v. Manago*, No. 96-CA-006628, 1998 WL 46743 (Ohio App., 9th Dist., Jan. 21, 1998).

This waiver issue often arises in the context of a new or amended assisted housing lease.¹¹⁰

When a new assisted housing lease is executed to comply with new federal requirements, and the new lease does not expressly reserve the right to terminate for a breach of the superseded lease, the new lease may waive any breach of the superseded lease. *Millennia Hous. Mgmt., Ltd. v. Williams*, No. 101627, 2015 WL 1276464, ¶ 14 (Ohio App., 8th Dist., Mar. 19, 2015). See also *Gallatin Hous. Auth. v. Montesillo*, No. M2001-02260-COA-R3-CV, 2002 WL 1800968 (Tenn. App. Aug. 7, 2002); *Superior Hous. Auth. v. Foote*, No. 90-1121, 1990 WL 198173 (Wis. App. Oct. 9, 1990). Cf. *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118, at *2,10 (Ohio App., 4th Dist., June 28, 1988) (waiver where landlord failed to prove that it executed the new lease solely to comply with a federal requirement).

When a new lease is executed to transfer an assisted housing tenant to another unit to permit renovation of the tenant's prior unit, the landlord may expressly reserve in the new lease (and thus preserve) the right to terminate the new lease for a breach of the superseded lease. *Lorain Metro. Hous. Auth. v. Manago*, No. 96-CA-006628, 1998

¹⁰⁹ One court has held that a waiver of the right to terminate a tenancy for a breach also may occur as a result of amendments of house rules executed by the landlord and tenant, if the amendments are incorporated into the lease and the tenant's execution of the amendments is a condition of continued occupancy. *Retiree Hous. Mgmt. Inc. v. Lynch*, No. 12-CVG-02402 (Ohio Mun., Miamisburg, July 30, 2013).

¹¹⁰ For the definition of "assisted housing," see note 163, below.

WL 46743 (Ohio App., 9th Dist., Jan. 21, 1998). *See also Thornton v. Dist. of Columbia*, 647 A.2d 385 (D.C. App. 1994).

Assisted housing leases are often revised, by amendment or by execution of a new lease, solely to change the rent amount and/or the household composition. The revision, when effected by a lease amendment, does not waive the right to terminate the amended lease for a pre-amendment breach of the lease. *See Millennia Hous. Mgmt., Ltd. v. Williams*, No. 101627, 2015 WL 1276464, (Ohio App., 8th Dist., Mar. 19, 2015). The appellate districts are split on whether the revision, when effected by executing a new lease, waives the right to terminate the new lease for a breach of the superseded lease, absent an express reservation of this right in the new lease. *Compare Millennia Hous. Mgmt., Ltd. v. Williams*, No. 101627, 2015 WL 1276464, (Ohio App., 8th Dist., Mar. 19, 2015) (waiver) *with Owner's Mgmt. Co. v. Madden*, No. L-98-1371, 1999 WL 375526 (Ohio App., 6th Dist., June 11, 1999) (2-1 decision) (no waiver). *See also Dist. of Columbia v. Suydam*, 591 A.2d 856 (D.C. App. 1991) (no waiver). *Cf. Hous. Resource Group v. Price*, No. 38962-9-I, 1998 WL 251768 (Wash. App. May 18, 1998) (revision only in rent did not constitute a new lease for a federal 60-day notice requirement).

F. Remedy of the Condition Specified in the R.C. 5321.11 Notice of Termination

When a landlord seeks to terminate a tenancy on the ground that the tenant has violated an R.C. 5321.05 duty (other than R.C. 5321.05(A)(9)) and the violation materially affects health and safety, the landlord is required to serve the tenant with an R.C. 5321.11 notice of termination. See Section I.D, above. The R.C. 5321.11 notice of termination must describe with specificity the acts and omissions of the tenant that constitute the R.C. 5321.05 violation. See Section I.D.2.c, above.

If the tenant remedies the R.C. 5321.05 violation prior to the termination date specified in the R.C. 5321.11 notice of termination, the rental agreement is not terminated under the notice and the tenant's conduct that violated R.C. 5321.05 cannot be the basis for an eviction action. See Section I.D.2.e, above. For a discussion on the tenant's right to remedy an R.C. 5321.05 violation by paying to the landlord the cost of repairing the damages, see Section I.D.2.e, above.

When a landlord's eviction claim is based on an R.C. 5321.11 notice of termination, an element of the claim is that the tenant failed to remedy timely the R.C.

5321.05 violation. See *Meredith v. Nash*, No. 93-CVG-2334 (Ohio Mun., Massillon, Oct. 20, 1993); *Stark Metro. Hous. Auth. v. Gwin*, No. 91-CVG-5767 (Ohio Mun., Canton, Nov. 15, 1991); *Stark Metro. Hous. Auth. v. Moore*, No. 89-CVG-9248 (Ohio Mun., Canton, Feb. 9, 1990). Cf. *Vesta Cleveland LLC v. Swann*, No. 2003-CVG-5468 (Ohio Mun., Cleveland, Hous. Div., May 20, 2003) (notice of termination under lease provision).

Consequently, the landlord is required to prove that, as of the termination date specified in the R.C. 5321.11 notice of termination, the tenant did not remedy the R.C. 5321.05 violation. *Id.*

G. Timely Surrender of Possession

The R.C. 1923.04 notice to vacate is a condition precedent to the commencement of any eviction action. See Section I.C.1.a, above. It informs the residential tenant that, “[i]f you do not leave, an eviction action may be initiated against you.” R.C. 1923.04(A). For residential landlords, the purpose of an eviction action is to recover possession of the rental premises, if the tenant does not timely vacate the rental premises in response to the R.C. 1923.04 notice to vacate. See Section I.A, above.

When a tenant timely surrenders possession of the rental premises in response (or prior) to the service of the R.C. 1923.04 notice to vacate, it is a defense to the landlord’s claim for an eviction judgment. Rejection of the eviction claim is justified because the tenant has complied with the R.C. 1923.04 notice to vacate (*i.e.*, surrendered possession) and no longer resides in the rental premises. See *Castlebrook Apts. v. Ballard*, No. 22421, 2008 WL 4183980, ¶ 22 (Ohio App., 2nd Dist., Sept. 12, 2008). In these circumstances, the landlord has filed an eviction complaint without any factual basis, since the landlord already has possession.

If a tenant vacates the premises and returns the keys for the premises before the eviction hearing, the only issue in the eviction action (*i.e.*, right to immediate possession) is moot. *Richmond’s Enter., Inc. v. Anderson*, No. 26674, 2016 WL 685398 (Ohio App., 2nd Dist., Feb. 19, 2016). Therefore, in these cases, the trial court is required to grant a motion to dismiss on mootness grounds. *Id.*

H. Course of Conduct of Accepting Late Rent Payment

A landlord’s repeated acceptance of late rent payments may establish a course of

conduct between the parties that waives the tenant's obligation to pay rent by the due date specified in the rental agreement.¹¹¹ *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991); *Crossroads Somerset Ltd. v. Newland*, 40 Ohio App.3d 20, 531 N.E.2d 327 (10th Dist. 1987); *Finkbeiner v. Lutz*, 44 Ohio App.2d 223, 337 N.E.2d 655 (1st Dist. 1975); *Lauch v. Monning*, 15 Ohio App.2d 112, 239 N.E.2d 675 (1st Dist. 1968); *Bates & Springer, Inc. v. Nay*, 91 Ohio Law Abs. 425, 187 N.E.2d 415 (Ohio App., 8th Dist., 1963); *Milbourn v. Aska*, 81 Ohio App. 79, 77 N.E.2d 619 (3rd Dist. 1946). *But see Woda Mgmt. & Real Estate v. Grant*, No. 15-16-43, 2017 WL 3382166 (Ohio App., 3rd Dist., Aug. 7, 2017) (held that the lease granted the landlord the right to select between accepting late rent payments with a late payment fee or terminating the lease, and thus any pattern of accepting late rent payments and the fee is consistent with the lease, not a waiver of the lease).

When a waiver occurs, the due date for the tenant's rent payments is established by the course of conduct between the parties. *Id.* If the tenant tenders rent in compliance with that course of conduct, the landlord is estopped from refusing the rent and from evicting the tenant for nonpayment or late payment of the rent.¹¹² *Id.*

For example, if a rental agreement requires the tenant to pay rent by the fifth day of the month and, under an established course of conduct, the tenant has been permitted to pay rent by the tenth day of the month, the landlord may not refuse the tenant's tender of the January rent on January 10 and may not evict the tenant for nonpayment or late payment of the January rent. However, if the same tenant tenders the January rent on January 12, the landlord may refuse the tenant's tender of the January rent and may evict the tenant for nonpayment of the January rent. *See Byrneport Apts. II v. Williams*, No. L-19-1277, 2020 WL 3485726 (Ohio App., 6th Dist., June 26, 2020); *Southgate Woods Apts. v. Lanier*, No. L-83-189, 1983 WL 7006 (Ohio App., 6th Dist., Nov. 25, 1983).

¹¹¹ In these eviction actions, since the frequency of the tenant's late rent payments that the landlord has accepted determines whether a course of conduct has been established, a trial court's refusal to admit evidence of those payments is reversible error. *J & M Trailer Court v. Dissette*, No. 1556, 1987 WL 16917 (Ohio App., 9th Dist., Sept. 9, 1987).

¹¹² One court has held that this estoppel doctrine does not apply to a landlord's course of conduct of accepting late rent payments after service of the R.C. 1923.04 notice to vacate. *Greenbriar, Inc. v. Chadwick*, No. WD-00-057, 2001 WL 127301 (Ohio App., 6th Dist., Feb. 16, 2001).

For this waiver, the scope of the course of conduct of accepting late rent payments may be tied to a notice period, instead of a particular date of the month. For example, in *Schroeder Co. v. Coates*, 172 Ohio App.3d 254, 874 N.E.2d 832 (6th Dist. 2007), the court found a course of conduct of rent payments up to the expiration of the ten-day notices of termination. The court held that the landlord properly rejected the tenant's tender of rent because the tenant had tendered it after the expiration of the ten-day notice period.

There is no fixed standard for determining whether a course of conduct of accepting late rent payments has been established. However, the case law provides some guidance for this determination.

Court decisions finding that a course of conduct had been established include: *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991) (five late payments in two years); *Finkbeiner v. Lutz*, 44 Ohio App.2d 223, 337 N.E.2d 655 (1st Dist. 1975) (thirty late payments in fifteen years); *McKoy v. Bell*, No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021) (month-to-month tenancy, following a two-year lease; initial two months of the month-to-month tenancy, rent collected at the premises during the first week of the next month, creating course of conduct for purposes of the third month); *GMS Mgmt. Co., Inc. v. Skowroski*, No. CVG-2001087 (Ohio Mun., Barberton, Aug. 26, 2020) (after a twenty-year tenancy, the current twelve-month written lease required rent payment by the first day of the month, but, in April, May, and June 2020, the tenant paid half the rent by the 15th and half the rent by the 30th of the month, creating a course of conduct for rent payment for July 2020); *Husein v. Payne*, No. 2020-CVG-005042 (Ohio Mun., Cleveland, Hous. Div., July 28, 2020) (during five-year tenancy, tenant consistently paid the rent out of her second paycheck of the month and would generally pay the rent by the last Friday of the month); *Dayton Metro. Hous. Auth. v. Jeffrey*, No. 09-CVG-7378 (Ohio Mun., Dayton, Jan. 4, 2010) (eight late payments in eighteen months, including "multiple occasions the payment was more than one month late"); *Tolliver v. Warren*, No. 99-CVG-13123 (Ohio Mun., Cleveland, Hous. Div., Dec. 28, 1999) (five late payments in fourteen months); *Cleveland Hous. Network Ltd. P'ship X v. Salgado*, No. 96-CVG-10871 (Ohio Mun., Cleveland, Hous. Div., July 16, 1996) (eleven late payments in eleven months, including two bulk payments); *Insignia Mgmt. Group v. Tate*, No. 94-CVG-6277 (Ohio Mun., Canton, Jan. 20, 1995) (five late payments in one year); *Vistula Mgmt. Co. v. Scott*, No. 91-CVG-205 (Ohio Mun., Fremont, May 23, 1991) (four late payments in eleven months); *Selnick v. Baker*, No.

86-CV-21282 (Ohio Mun., Hamilton Cty., Nov. 30, 1987) (five or six late payments in eighteen months).

Court decisions finding that a course of conduct had not been established include: *Simco Mgmt. Corp. v. Snyder*, No. 98-CA-210, 2000 WL 309396 (Ohio App., 7th Dist., Mar. 20, 2000) (two late payments in ten months); *Simoudis v. Diehl*, 116 Ohio App.3d 296, 688 N.E.2d 16 (11th Dist. 1996) (initial three months of tenancy is too soon to establish a course of conduct, even with a late payment in each month); *BWS Props. v. LaSalle, Inc.*, No. 51119, 1986 WL 9110 (Ohio App., 8th Dist., Aug. 21, 1986) (three or four late payments in thirteen years).

An established course of conduct of accepting late rent payments remains in effect unless and until the landlord provides the tenant with advance notice that the course of conduct will no longer be permitted. *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962, at *3 (Ohio App., 2nd Dist., Jan. 31, 1991); *Cincinnati Metro. Hous. Auth. v. Fambro*, No. C-790556, 1980 Ohio App. LEXIS 10243, at *7-8 (Ohio App., 1st Dist., Oct. 22, 1980); *Finkbeiner v. Lutz*, 44 Ohio App.2d 223, 226, 337 N.E.2d 655 (1st Dist. 1975); *Bates & Springer, Inc. v. Nay*, 91 Ohio Law Abs. 425, 427, 187 N.E.2d 415 (Ohio App., 8th Dist., 1963); *GMS Mgmt. Co., Inc. v. Skowroski*, No. CVG-2001087 (Ohio Mun., Barberton, Aug. 26, 2020); *Husein v. Payne*, No. 2020-CVG-005042 (Ohio Mun., Cleveland, Hous. Div., July 28, 2020); *Dayton Metro. Hous. Auth. v. Jeffrey*, No. 09-CVG-7378 (Ohio Mun., Dayton, Jan. 4, 2010); *Eastcare III v. Shockley*, No. 2009-CV-5424 (Ohio C.P., Montgomery Cty., Oct. 28, 2009, and Dec. 7, 2009); *Myszka v. Bledsoe*, No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000); *Cleveland Hous. Network Ltd. P'ship X v. Salgado*, No. 96-CVG-10871 (Ohio Mun., Cleveland, Hous. Div., July 16, 1996).

The advance notice must be given to the tenant a reasonable time in advance of the rent due date. *Cincinnati Metro. Hous. Auth. v. Fambro*, No. C-790556, 1980 Ohio App. LEXIS 10243 (Ohio App., 1st Dist., Oct. 22, 1980); *Myszka v. Bledsoe*, No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000); *Vistula Mgmt. Co. v. Scott*, No. 91-CVG-205 (Ohio Mun., Fremont, May 23, 1991); *Evergreen Terrace Props. v. Stephenson*, No. 011775 (Ohio Mun., Franklin Cty., Apr. 22, 1988).

Since the enactment of R.C. Chapter 5321, court decisions on the number of days

that meet this reasonable advance notice requirement include:¹¹³ *Cincinnati Metro. Hous. Auth. v. Fambro*, No. C-790556, 1980 Ohio App. LEXIS 10243 (Ohio App., 1st Dist., Oct. 22, 1980) (20 days is reasonable); *Cornerstone of Kettering v. Hood*, No. 05-CVG-2546 (Ohio Mun., Kettering, June 24, 2005) (8 days is not reasonable); *Classic Real Estate v. Bowen*, No. M79-CVG-01404 (Ohio Mun., Franklin Cty., Mar. 12, 1979) (30 days is reasonable; 20 days is not reasonable); *Evergreen Terrace Props. v. Stephenson*, No. 011775 (Ohio Mun., Franklin Cty., Apr. 22, 1988) (7 days is reasonable, in week-to-week tenancy).

The advance notice must be in writing. *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962, at *3 (Ohio App., 2nd Dist., Jan. 31, 1991); *Bates & Springer, Inc. v. Nay*, 91 Ohio Law Abs. 425, 427, 187 N.E.2d 415 (Ohio App., 8th Dist., 1963); *GMS Mgmt. Co., Inc. v. Skowroski*, No. CVG-2001087 (Ohio Mun., Barberton, Aug. 26, 2020); *Dayton Metro. Hous. Auth. v. Jeffrey*, No. 09-CVG-7378 (Ohio Mun., Dayton, Jan. 4, 2010); *Cornerstone of Kettering v. Hood*, No. 05-CVG-2546 (Ohio Mun., Kettering, June 24, 2005); *Maxwell v. Parker*, No. CVG-951631 (Ohio Mun., Cleveland Heights, Jan. 23, 1996); *Evergreen Terrace Props. v. Stephenson*, No. 011775 (Ohio Mun., Franklin Cty., Apr. 22, 1988); *Selnick v. Baker*, No. 86-CV-21282 (Ohio Mun., Hamilton Cty., Nov. 30, 1987). *But see Associated Estates Corp. v. Smith*, No. 46054, 1984 WL 5227 (Ohio App., 8th Dist., Oct. 4, 1984) (oral notice permitted where tenant admitted that she had received it).

The advance notice must reasonably advise the tenant that the course of conduct will no longer be permitted. *Myszka v. Bledsoe*, No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000). A notice merely stating that the landlord does not want to carry any balance forward fails to meet this standard. *Id.*

The advance notice will not rescind an established course of conduct if, after initially serving the notice, the landlord continues to accept late rent payments and, on each such occasion, re-serves a similar advance notice. *Crossroads Somerset Ltd. v. Newland*, 40 Ohio App.3d 20, 531 N.E.2d 327 (10th Dist. 1987).

¹¹³ Prior to the enactment of R.C. Chapter 5321, one court held that three days advance notice was reasonable, relative to a tenant who pays rent monthly. *Bates & Springer, Inc. v. Nay*, 91 Ohio Law Abs. 425, 427, 187 N.E.2d 415 (Ohio App., 8th Dist., 1963).

I. Renewal of Periodic Tenancy Due To Partial Payment of Rent

In a month-to-month tenancy, the landlord's acceptance of a partial payment of the monthly rent renews the tenancy. *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962, at *4 (Ohio App., 2nd Dist., Jan. 31, 1991); *FMJ Props. v. Hinton*, No. 50314, 1986 WL 4396, at *3 (Ohio App., 8th Dist., Apr. 10, 1986).¹¹⁴

This renewal occurs even if the partial payment of rent is tendered and accepted after the rent due date. *See, e.g., Phipps v. Cable*, No. CVG-91-0099 (Ohio Mun., Portsmouth, Mar. 14, 1991).

This renewal also occurs even if the month-to-month tenancy is established in a written lease that requires good cause for termination or nonrenewal. *See, e.g., Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991).

When a landlord's acceptance of a partial payment of rent renews a month-to-month tenancy, the landlord may not evict the tenant for nonpayment of rent for that month.¹¹⁵ *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962, at *4 (Ohio App., 2nd Dist., Jan. 31, 1991); *FMJ Props. v. Hinton*, No. 50314, 1986 WL 4396, at *3 (Ohio App., 8th Dist., Apr. 10, 1986).

J. Timely Tender of Rent Refused

A landlord may not refuse a timely and full payment of the rent and then evict for nonpayment of that rent. *Pinewood Gardens Apts. v. Whiteside*, No. 25989, 2014 WL 2169720 (Ohio App., 2nd Dist., May 23, 2014); *Prof'l Invs. of Am., Inc. v. Ross*, No. 44540, 1982 WL 2579 (Ohio App., 8th Dist., Dec. 9, 1982); *Caringi v. 2819 Harvard, Inc.*, No. 42834, 1981 Ohio App. LEXIS 13998 (Ohio App., 8th Dist., Mar. 12, 1981);

¹¹⁴ *See also Nutter v. Rhoades*, No. 07-CVG-02622 (Ohio Mun., Licking Cty., Oct. 15, 2007); *Tolle v. Hostetter*, No. CVG-930632 (Ohio Mun., New Philadelphia, Jan. 18, 1994); *Jones v. Ranzy*, No. 93-CVG-00904 (Ohio Mun., Shaker Heights, June 16, 1993) (follows *Hinton*); *Moore v. Shumaker*, No. 91-CVG-1659 (Ohio Mun., Lancaster, Jan. 2, 1992) (follows *Hinton*); *Phipps v. Cable*, No. CVG-91-0099 (Ohio Mun., Portsmouth, Mar. 14, 1991); *Williams v. Terry*, No. 78-CVG-24893 (Ohio Mun., Cleveland, Oct. 20, 1978).

¹¹⁵ While acceptance of partial payment of rent renews the month-to-month tenancy, the tenant is still obligated to pay and remains liable for the unpaid rent. *See Pros Corporate Mgmt. Servs., Inc. v. Ashley S. Rose, Ltd.*, 228 Ill. App.3d 573, 582, 592 N.E.2d 609 (1992).

Real Prop. Servs. Corp. v. Bonen, No. 93-CVG-7804 (Ohio Mun., Marion Cty., May 26, 1993); *Ragan v. Sitzler*, No. 92-CVG-7027 (Ohio Mun., Akron, Aug. 13, 1992). The basis for this rule is a general contract principle – the failure on the part of one party to perform in accordance with a lease will be excused when performance is prevented by the other party to the lease – which is discussed in Section II.Z, below.

“Timely tender of rent is a defense to an eviction for non-payment of rent.” *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292, at *4 (Ohio App., 8th Dist., Jan. 18, 1996).

For this defense, a timely tender of rent includes a tender of rent during any grace period. *E.g.*, *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986 (Ohio App., 5th Dist., May 14, 2009) (ten-day grace period); *Columbus Metro. Hous. Auth. v. Jackson*, No. 81AP-802, 1982 WL 4010 (Ohio App., 10th Dist., Mar. 4, 1982) (ten-day grace period).

A landlord may refuse a timely but partial payment of the rent and then evict for nonpayment of rent. *Cuyahoga River Assocs. Ltd. P’ship v. MJK Corp.*, No. 68673, 1996 WL 17292, at *4-5 (Ohio App., 8th Dist., Jan. 18, 1996). *Cf. Julian Invs., Inc. v. Dudley*, No. 98-CA-85, 1999 WL 64227, at *7 (Ohio App., 2nd Dist., Feb. 12, 1999) (tender of partial payment of past due rent).

As a general rule, a landlord also may refuse a full but untimely payment of the rent and then evict for nonpayment of rent. *See Pinewood Gardens Apts. v. Whiteside*, No. 25989, 2014 WL 2169720, ¶ 17 (Ohio App., 2nd Dist., May 23, 2014); *Simco Mgmt. Corp. v. Snyder*, No. 98-CA-210, 2000 WL 309396, at *5 (Ohio App., 7th Dist., Mar. 20, 2000). But, in some circumstance, a landlord’s refusal to accept a full but untimely payment of the rent may give rise to an eviction defense. Three of those circumstances are discussed in Section II.H, above (course of conduct), Section II.BB, below (equity), and Section III.E, below (right to cure, assisted housing).

K. Tender of Rent Excused

1. Vain Act

Generally, the law does not require a party to engage in a vain act. *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986, ¶ 42 (Ohio App., 5th Dist., May 14, 2009).

This general principle of law applies to a tenant’s obligation to pay rent. *Id.* “[A] tenant’s obligation under a rental agreement to pay or tender rent can be excused where

the landlord, through its conduct, renders the requirement to tender meaningless, vain, or useless.” *Id.* *Accord Pinewood Gardens Apts. v. Whiteside*, No. 25989, 2014 WL 2169720, ¶ 17 (Ohio App., 2nd Dist., May 23, 2014); *Greenbriar Estates v. Eberle*, 130 Ohio Misc.2d 11, 14-15, 824 N.E.2d 172 (Ohio Mun., Clermont Cty., 2005). *E.g.*, *Century Pacific Hous. P’ship v. Jeffries*, No. 21-CVG-4124 (Ohio Mun., Dayton, Oct.19, 2021).

In *Moore*, applying this principle, the court held that the tenant’s failure to tender rent in Dec. 2007 was excused, based on the landlord’s refusal to accept the tenant’s tender of rent during the grace period (but after the due date) each month from June to November 2007.

In *Whiteside*, applying this principle, the court held that the tenant’s failure to tender rent for August 2013 was excused because of the owner’s policy of not accepting rent payments during the pendency of their security deposit litigation, “which would have made Whiteside’s tender of payment a vain act.” 2014 WL 2169720, ¶ 17.

In *Eberle*, applying this principle, the court held that the tenant’s failure to tender rent for August 2004 was excused, based on: (1) the tenant’s visit to the management office with a check book and an intent to pay rent for August; (2) the manager’s statement at that time that the tenant’s rent payment for August would not be accepted until the tenant coated the roof of his mobile home; (3) the tenant’s decision not to tender the August rent as a result of that statement; and (4) the absence of authority for the landlord to condition the tenant’s rent payment on whether the tenant coated the roof.

2. Landlord’s Instructions

When a tenant retains (instead of tendering) a rent payment pursuant to the landlord’s instructions, the tenant is excused from the obligation to tender the rent subject to the terms of those instructions. *E.g.*, *Waterford Glen LLC v. Dowell*, No. 05-CVG-1055 (Ohio Mun., Crawford Cty., Apr. 7, 2006).

In *Dowell*, the landlord instructed the tenant to hold onto the rent until the landlord resolved a water leak problem. Thereupon, the landlord commenced an eviction action against the tenant for nonpayment of the rent. The court held that the landlord’s instructions excused the tenant’s obligation to tender the rent and thus denied the landlord’s claim for possession.

L. Absence of Timely Demand – Rent Collection at the Premises

“In the absence of an agreement to the contrary, the general rule in Ohio is that payment of rent is to be made at the leased premises and that it is the landlord’s duty to go to the premises to collect rent from the tenant.” *Davis v. Scullark*, No. 57456, 1990 WL 145642, at *2 (Ohio App., 8th Dist., Oct. 4, 1990). *See also Slothower v. Lally*, 74 N.E.2d 654 (Ohio Mun., Dayton, 1947).

Also, a rental agreement (expressly or via custom) may require the landlord to collect the rent at the premises. *E.g., Romine v. Winters*, No. 98-CVG-00907 (Ohio Mun., Licking Cty., Sept. 3, 1998); *Foster v. Jones*, No. 93-CV-G&F-185 (Ohio Mun., Alliance, Mar. 9, 1993); *Douglas v. Talley*, No. 91-CVG-19274 (Ohio Mun., Cleveland, Hous. Div., Sept. 19, 1991); *Kaylor v. Cunningham*, No. M85-CVG-26535 (Ohio Mun., Franklin Cty., Oct. 25, 1985).

When a landlord is required to collect the rent at the premises, the landlord’s failure to appear at the premises to collect the rent bars the landlord from evicting the tenant for nonpayment of that rent. *Id.*

Furthermore, if a landlord is required to collect the rent at the premises on a certain day (or days) of the month, the landlord must appear at the premises and demand payment of rent from the tenant on the required day(s), in order to evict the tenant for nonpayment of that rent. *Douglas v. Talley*, No. 91-CVG-19274 (Ohio Mun., Cleveland, Hous. Div., Sept. 19, 1991); *Kaylor v. Cunningham*, No. M85-CVG-26535 (Ohio Mun., Franklin Cty., Oct. 25, 1985).

For example, if the landlord is required to collect the rent at the premises on the second or third day of the month, “he cannot evict for non-payment of rent by merely making an unplanned, unannounced visit to the property after the third of the month and finding the defendants [tenants] absent.” *Kaylor v. Cunningham*, No. M85-CVG-26535, slip op. at 2 (Ohio Mun., Franklin Cty., Oct. 25, 1985).

M. Payment of Rent that Accrued During a Prior Eviction Action

When an eviction action is dismissed or an eviction judgment is entered in favor of the tenant, the landlord must provide the tenant with a reasonable opportunity to pay the rent that accrued during the eviction action. *Mazzarella v. McGinnes*, No. 91-

CVG-30291 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 1991). *Accord Belch v. Witts*, No. 96-CVG-5839 (Ohio Mun., Canton, Dec. 31, 1996); *Spreading Oaks Vill. v. Scruggs*, No. 93-CVG-4-22 (Ohio Mun., Athens Cty., May 21, 1993). *See also Conway v. Nissley*, No. 68536, 1995 WL 723298, at *2 (Ohio App., 8th Dist., Dec. 7, 1995); *Waterside Estate Apts., Etc. v. Keen*, No. 94-CVG-2296 (Ohio Mun., Massillon, Dec. 13, 1994). *But see Julian Invs., Inc. v. Dudley*, No. 98-CA-85, 1999 WL 64227, at *2,5 (Ohio App., 2nd Dist., Feb. 12, 1999) (dicta).

Absent this reasonable opportunity, “any dismissal of a complaint in forcible entry and detainer and any judgment entered for a tenant in such a case is rendered meaningless, as immediately following the dismissal or entry of judgment in the favor of the tenant, virtually every landlord could serve the tenant a new Revised Code 1923.04 notice to vacate based upon nonpayment of rent for the month in which the action was commenced.”¹¹⁶ *Mazzarella v. McGinnes*, No. 91-CVG-30291, slip op. at 4 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 1991).

A reasonable opportunity to pay the accrued rent may be five or six days from the conclusion of the eviction action. *Julian Invs., Inc. v. Dudley*, No. 98-CA-85, 1999 WL 64227, at *2,5 (Ohio App., 2nd Dist., Feb. 12, 1999) (five days was reasonable); *Belch v. Witts*, No. 96-CVG-5839 (Ohio Mun., Canton, Dec. 31, 1996) (six days was reasonable).

This reasonable opportunity to pay rent, relative to rent that accrued during the eviction action, does not apply to any rent that accrued prior to the eviction action. *Conway v. Nissley*, No. 68536, 1995 WL 723298, at *2 (Ohio App., 8th Dist., Dec. 7, 1995).

Likewise, it does not apply to any rent that became due after the eviction action. *Bishop Park Towers v. Sefcik*, No. 2001-L-137, 2002 WL 1173498, at *2-3 (Ohio App., 11th Dist., May 31, 2002).

N. Accord and Satisfaction

When a landlord claims nonpayment of rent or a charge as the basis for an eviction

¹¹⁶ Generally, a landlord will accept payment of the rent that accrues during an eviction action only after the conclusion of the action. *Conway v. Nissley*, No. 68536, 1995 WL 723298, at *2 (Ohio App., 8th Dist., Dec. 7, 1995); *Mazzarella v. McGinnes*, No. 91-CVG-30291 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 1991). A landlord’s earlier acceptance of such rent may constitute an acceptance of future rent that waives the R.C. 1923.04 notice to vacate. See Section II.C, above.

action, an accord and satisfaction may be a defense if two conditions are met: (1) the alleged nonpayment is an unliquidated debt or the tenant in good faith disputes the amount due; and (2) the tenant has tendered a payment to the landlord in an amount less than the amount that the landlord demanded, on the express condition that it shall be payment in full settlement of the landlord's claim. *Seeds, Grain & Hay Co. v. Conger*, 83 Ohio St. 169, 93 N.E. 892 (1910); *Inger Interiors v. Peralta*, 30 Ohio App.3d 94, 506 N.E.2d 1199 (8th Dist. 1986); *First Nat'l Bank & Trust Co. v. Fireproof Warehouse & Storage*, 8 Ohio App.3d 253, 456 N.E.2d 1336 (10th Dist. 1983).

The condition of full settlement may be stated either on the check, *Inger Interiors*, 30 Ohio App.3d at 95, or in a letter accompanying the payment, *First Nat'l Bank & Trust Co.*, 8 Ohio App.3d at 255.¹¹⁷

In these circumstances, the landlord has two alternative courses of action. The landlord may reject or return the entire payment to the tenant or the landlord may accept and retain the payment upon the terms of the tenant's condition. *Conger*, 83 Ohio St. at 174-75; *First Nat'l Bank & Trust Co.*, 8 Ohio App. 3d at 255. "He cannot accept the tender in such case and recover the balance which he claims" *Conger*, 83 Ohio St. at 174-75.¹¹⁸

If the landlord accepts and retains the payment, the landlord takes the payment subject to the terms of the tenant's condition, regardless of any protest that the landlord may make to the contrary. *Inger Interiors*, 30 Ohio App.3d at 95-96; *First Nat'l Bank & Trust Co.*, 8 Ohio App.3d at 255. For example, the landlord may not prevent an accord and satisfaction by crossing out the paid in full notation and writing partial payment on the check before cashing it. *Inger Interiors*, 30 Ohio App.3d at 95-96.

¹¹⁷ "Two essential safeguards built into the doctrine of accord and satisfaction protect creditors from overreaching debtors: '[1] there must be a good faith dispute about the debt and [2] the creditor must have reasonable notice that the check is intended to be in full satisfaction of the debt.'" *Allen v. R.G. Indus. Supply*, 66 Ohio St.3d 229, 232, 611 N.E.2d 794 (1993).

¹¹⁸ For the period 1962 to 1994, R.C. 1301.13 established a procedure by which the creditor could accept such payments as partial payment on the debt. See *Lightbody v. Rust*, No. 80927, 2003 WL 21710601 (Ohio App., 8th Dist., July 24, 2003).

O. Rent Abatement, R.C. 1923.061(B)

1. Overview

In an eviction action for nonpayment of rent, a landlord's violation of the rental agreement, R.C. Chapter 5321, or R.C. Chapter 4781 (former R.C. Chapter 3733) may be the basis for a defense under R.C. 1923.061(B).

The R.C. 1923.061(B) defense is essentially a set-off procedure. The tenant's counterclaim under the rental agreement, R.C. Chapter 5321, or R.C. Chapter 4781 (former R.C. Chapter 3733),¹¹⁹ and the tenant's rent deposit under R.C. 1923.061(B),¹²⁰ are set-off against the landlord's rent claim.

When a tenant asserts the R.C. 1923.061(B) defense, the court issues a judgment on the landlord's rent claim and on the tenant's counterclaim and, based on those judgments, determines to whom a net judgment is owed. R.C. 1923.061(B). *See also Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 486 N.E.2d 1234 (10th Dist. 1985). The rent deposited with the court, if any, is used to satisfy any net judgment owed the landlord and the remainder, if any, is returned to the tenant.¹²¹ *Id.* Finally, if no rent remains due after the netting of the judgments and the disbursement of the rent deposited with the court, the eviction judgment is entered in favor of the tenant. *Id.*

Therefore, when a tenant asserts an R.C. 1923.061(B) defense, the court must hear and issue a judgment on the landlord's rent claim and the tenant's counterclaim before it issues a judgment on the eviction claim. *Studor v. Roark*, No. 94-CA-38, 1995 WL 347963, at *2 (Ohio App., 5th Dist., Mar. 21, 1995); *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 149, 486 N.E.2d 1234 (10th Dist. 1985). *Accord Schwab v. Lattimore*, 166 Ohio App.3d 12, 848 N.E.2d 912 (1st Dist. 2006) (dissent). *See, e.g., Heritage Hills, Ltd. v. Bragg*, No. 1379, 1987 WL 16079 (Ohio App., 4th Dist., Aug. 27, 1987).

The R.C. 1923.061(B) defense is independent of any common law set-off defense

¹¹⁹ For a discussion on the tenant's right to assert a counterclaim in an eviction action, see Section I.I, above. For a discussion on some of the tenant's potential claims under R.C. Chapter 5321, see Chapters IX-XIII, below.

¹²⁰ For a discussion on rent deposits under R.C. 1923.061(B), see Section II.O.2, below.

¹²¹ This distribution of the escrowed rent is mandatory, upon the entry of a final judgment on the landlord's rent claim and the tenant's counterclaim. *Meyer v. Chieffo*, 193 Ohio App.3d 51, 950 N.E.2d 1027, ¶ 19 (10th Dist. 2011).

(see Section II.Q., below).

2. Deposit of Rent with the Court

A court may order a tenant, who asserts the R.C. 1923.061(B) defense, to deposit with the court all or part of the past due rent and, as it becomes due, the rent that becomes due during the pendency of the action. R.C. 1923.061(B).

The court's authority to order these R.C. 1923.061(B) rent deposits is discretionary. *Bester v. Owens*, No. 17388, 1999 WL 179261, at *2 (Ohio App., 2nd Dist., Mar. 31, 1999); *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 148, 486 N.E.2d 1234 (10th Dist. 1985); *Smith v. Wright*, 65 Ohio App.2d 101, 107, 416 N.E.2d 655 (8th Dist. 1979). The court may, but is not required, to order them. *Wright*, 65 Ohio App.2d at 107.

When a court orders a tenant to deposit rent with the court under R.C. 1923.061(B), if the tenant fails to deposit the rent, the tenant forfeits the right to assert the R.C. 1923.061(B) defense. *Bester v. Owens*, No. 17388, 1999 WL 179261, at *2 (Ohio App., 2nd Dist., Mar. 31, 1999); *Conway v. Nissley*, No. 68536, 1995 WL 723298, at *3 (Ohio App., 8th Dist., Dec. 7, 1995) (implied term of R.C. 1923.061(B)). *See also* *Napolski v. Champney*, 295 Or. 408, 419-20, 667 P.2d 1013 (1983) (construing a provision of the Oregon Landlord and Tenant Act that is nearly identical to R.C. 1923.061(B)). *Cf. Deerwood Mgmt. Co. v. Bernsdorf*, No. 78AP-470, 1978 Ohio App. LEXIS 10021, at *4 (Ohio App., 10th Dist., Nov. 28, 1978) (order to deposit rent issued as condition for granting Civil Rule 60(B) motion for relief from eviction judgment).

These tenants still may assert any other relevant defense in the eviction action. *Bester v. Owens*, No. 17388, 1999 WL 179261, at *2 (Ohio App., 2nd Dist., Mar. 31, 1999). And these tenants still may maintain their counterclaims separate and apart from the landlord's claim for possession. *See* Section I.I, above.

Several appellate districts have adopted the position that a tenant may maintain the R.C. 1923.061(B) defense only if the trial court, in the exercise of its discretionary authority, decides to order the tenant to deposit rent with the court.

Under one line of cases, the tenant's right to maintain the R.C. 1923.061(B) defense exists only if the court orders the tenant to deposit with the court all of the past due rent. *Martins Ferry Jaycee Hous., Inc. v. Pawlaczyk*, 4 Ohio App.3d 302, 304, 448 N.E.2d 512 (7th Dist. 1982); *Smith v. Wright*, 65 Ohio App.2d 101, 109, 416 N.E.2d 655 (8th Dist. 1979). *See also* *Shelton v. Huff*, No. 2012-T-0101, 2014 WL 1352663, ¶ 24 (Ohio App., 11th Dist., Mar. 31, 2014) (2-1 decision); *Dayton Tool*

Rental v. Ealy, No. 21849, 2007 WL 2897807 (Ohio App., 2nd Dist., Oct. 5, 2007) (absence of R.C. 5321.07 rent deposit).

Under a second line of cases, it appears that the tenant's right to maintain the R.C. 1923.061(B) defense exists only if the court orders the tenant to deposit with the court all or part of the past due rent. *Heritage Hills, Ltd. v. Bragg*, No. 1379, 1987 WL 16079, at *1-2 (Ohio App., 4th Dist., Aug. 27, 1987); *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 149, 486 N.E.2d 1234 (10th Dist. 1985).

The position of these appellate courts has no basis in R.C. 1923.061(B). No provision in R.C. 1923.061(B) can reasonably be construed to state that a tenant may assert the R.C. 1923.061(B) defense only if the court exercises its discretionary authority to order a rent deposit.

Furthermore, the position of these appellate districts is untenable. Its premise is that, in R.C. 1923.061(B), the legislature granted courts the discretionary authority to determine, on a case-by-case basis, whether a tenant may assert the R.C. 1923.061(B) defense. Yet, none of these courts identifies any standard, let alone a rational one, pursuant to which the courts are to make this determination.

The position of the first line of cases is also untenable because it renders meaningless the R.C. 1923.061(B) provision that states that a court may order a tenant to deposit with the court "part of the past due rent."¹²² Under the first line of cases, whenever a court issues a rent deposit order pursuant to this provision, the tenant is barred from asserting the R.C. 1923.061(B) defense, regardless of whether the tenant complies with the order. If the tenant complies with the rent deposit order, the tenant is still barred from asserting the R.C. 1923.061(B) defense because the tenant has not deposited all of the past due rent.

The Oregon Supreme Court has addressed this issue and correctly adopted a position contrary to the position of these Ohio appellate districts. *Napolski v. Champney*, 295 Or. 408, 667 P.2d 1013 (1983). The Oregon Supreme Court had an opportunity to address this issue because Or. Rev. Stat. § 91.810(1) is nearly identical to R.C. 1923.061(B); both were patterned after the Uniform Residential Landlord and Tenant Act § 4.105. The Oregon Supreme Court recognized that tenants are permitted to assert the Or. Rev. Stat. § 91.810(1) defense even if the court decides not to order a

¹²² In construing R.C. 1923.061(B), a court is obligated to consider the consequences of its construction and the presumption that the legislature intended each provision in R.C. 1923.061(B) to be effective. R.C. 1.47(B) and 1.49(E).

rent deposit. *Napolski*, 295 Or. at 420 n.15. See also *Kohner Props., Inc. v. Johnson*, 553 S.W.3d 280 (Mo. 2018) (en banc) (under the implied warranty of habitability defense, courts exercise their discretion, on a case-by-case basis, in determining whether to require the tenant, as a condition for asserting the defense, to deposit future rent (in whole or in part) during the pendency of the action).¹²³

If a tenant has sufficient funds to deposit with the court all past due rent, an order requiring the tenant to deposit all past due rent is immensely helpful to the tenant's effort to establish an R.C. 1923.061(B) defense. If a tenant deposits with the court all past due rent, no rent will remain due after the court disburses the rent deposit, irrespective of the judgments on the rent claim and the counterclaim. Therefore, the rent deposit order, together with the rent deposits, insure that the R.C. 1923.061(B) defense will be successful, so long as there is a counterclaim judgment in favor of the tenant for any amount. *E.g.*, *Dees v. Abrams*, No. 91-CVG-24751 (Ohio Mun., Cleveland, Hous. Div., Dec. 4, 1991) (eviction judgment in favor of the tenant as a result of a \$1,210 rent deposit under R.C. 1923.061(B), a \$100 judgment for the tenant on a counterclaim, and a \$1,240 judgment for the landlord on the rent claim). The requirement for a counterclaim judgment in favor of the tenant is discussed in Section II.O.3, below.

If a tenant has insufficient funds to deposit with the court all past due rent, the tenant may request a rent deposit order requiring the tenant to deposit "part of the past due rent," such as an amount that the court reasonably anticipates will be due after application of R.C. 1923.061(B).¹²⁴ The tenant can reasonably argue that a rent deposit of part of the past due rent is consistent with the purpose, as well as the express language, of the R.C. 1923.061(B) rent deposit provision.

The purpose of the R.C. 1923.061(B) rent deposit is to protect the interests of the parties. See Uniform Residential Landlord and Tenant Act § 4.105, Comment.¹²⁵ Cf. *Teller v. McCoy*, 162 W. Va. 367, 393-94, 253 S.E.2d 114 (1978) (implied warranty

¹²³ For further discussion on this issue, see Greg Tasker, Comment, The Crippled Reform: Retention of Possession by Rent-Withholding Tenants in Ohio Under Section 1923.061(B), 54 U. Cin. L. Rev. 1035 (1986).

¹²⁴ This discussion assumes that a tenant may maintain the R.C. 1923.061(B) defense when the court orders the tenant to deposit with the court part of the past due rent.

¹²⁵ R.C. 1923.061(B) is based on and nearly identical to the Uniform Residential Landlord and Tenant Act § 4.105.

of habitability). The interest of the landlord is to receive any rent due after application of R.C. 1923.061(B). The interest of the tenant is not to pay rent for services and facilities mandated by law but not received.

Both interests are reasonably protected if the tenant deposits with the court an amount of past due rent that the court reasonably anticipates will be due after application of R.C. 1923.061(B). See *Napolski v. Champney*, 295 Or. 408, 420 n.15, 667 P.2d 1013 (1983). Cf. *Teller v. McCoy*, 162 W. Va. 367, 394, 253 S.E.2d 114 (1978) (implied warranty of habitability); *Pugh v. Holmes*, 486 Pa. 272, 292, 405 A.2d 897 (1979) (same).

An order to deposit part of the alleged past due rent is particularly appropriate in two circumstances. One is where the tenant claims a financial inability to deposit all alleged past due rent due to the tenant's use of all or part of those funds to remedy the landlord's R.C. 5321.04 violations.¹²⁶ The other is where the tenant claims a financial inability to deposit all alleged past due rent due to the tenant's prior payment of part of that rent to the landlord, notwithstanding the landlord's allegation to the contrary. See, e.g., *Bester v. Owens*, No. 17388, 1999 WL 179261 (Ohio App., 2nd Dist., Mar. 31, 1999).

With respect to a Housing Choice Voucher program ("HCVP") tenancy (see Section III.H.2, below), the court should determine the amount of any R.C. 1923.061(B) rent deposit in light of the respective obligations of the landlord, the tenant, and the public housing authority ("PHA"). Under a HCVP lease, the tenant is liable for a portion of the contract rent and the PHA is liable for the remainder of the contract rent. See 24 C.F.R. part 982, subpart K; 24 C.F.R. §§ 5.628-5.634.

When the PHA has not terminated the housing assistance payments ("HAP") contract,¹²⁷ any R.C. 1923.061(B) rent deposit order should only require the tenant to deposit with the court all or part of the tenant's portion of the contract rent. In these cases, the tenant is not liable for the PHA's portion of the contract rent (see 24 C.F.R. § 982.310(b)) and, during the eviction action, the PHA is obligated to continue to pay

¹²⁶ If the tenant remedied the landlord's R.C. 5321.04 violations, the tenant may have a set-off defense, independent of R.C. 1923.061(B). See Section II.Q., below.

¹²⁷ In the HCVP, the HAP contract is the contract under which the PHA makes the HCVP rent subsidy payments to the landlord on behalf of the tenant. See 24 C.F.R. § 982.451.

the PHA's portion of the contract rent¹²⁸ (see 24 C.F.R. § 982.311(b)).¹²⁹

Likewise, when the PHA has terminated the HAP contract (and thus the HCVP lease)¹³⁰ because of the landlord's failure to maintain the premises, any R.C. 1923.061(B) rent deposit order should only require the tenant to deposit with the court all or part of the tenant's portion of the contract rent under the terminated HCVP lease. There are at least two alternative reasons for this conclusion.

First, in these circumstances, "even though the [PHA] terminated the HAP contract with the landlord and ceased making HAP payments, the tenants never assumed the responsibility of paying the entire contract rent and cannot be forced to do so now." *Curtis v. Surrette*, 49 Mass. App. Ct. 99, 103, 726 N.E.2d 967 (2000). "The tenants may be held liable only for that portion of the contract rent that they assumed and agreed to pay." *Id.* at 104. For Ohio case law holding that, in these circumstances, the tenant is not liable for the housing assistance payment portion of the contract rent, see Section III.H.2, below. See also *Livecchi v. Pyatt*, No. 2002-CV-9073, 2003 WL 21246096 (N.Y. City Ct. May 15, 2003). Therefore, under the R.C. 1923.061(B) rent deposit provision, the rent due or becoming due is the tenant's portion of the contract rent under the terminated HCVP lease.

Second, in these circumstances, even if a court finds that the rent due or becoming due is the full contract rent under the terminated HCVP lease, an order to deposit only part of that rent (*i.e.*, the tenant's portion of the contract rent under the terminated lease) is the fairest and most appropriate rent deposit order. The landlord's breach of the lease (*i.e.*, failure to maintain the premises) caused the nonpayment of the PHA's portion of the contract rent. The tenant's counterclaim for the loss of this HCVP rent subsidy is likely to succeed. And R.C. 1923.061(B) states that a court may order a deposit of part (and not all) of the relevant rent.

3. Net Judgment

R.C. 1923.061(B) uses the term "net judgment" in describing the procedure for

¹²⁸ For a discussion on whether these payments may waive the R.C. 1923.04 notice to vacate and, if so, how to avoid the waiver, see Section II.C, above.

¹²⁹ For case law on the analogous matter of a supersedeas bond for an assisted housing tenant, see Section I.Q.3, above.

¹³⁰ A PHA's termination of a HAP contract automatically terminates the HCVP lease. See HUD Tenancy Addendum, form HUD-52641-A (July 2019), ¶ 13.

disbursing rent that has been deposited with the court. “The party to whom a net judgment is owed shall be paid first from the money paid into court” R.C. 1923.061(B).

Based on this “net judgment” provision, courts have held that a requirement of the R.C. 1923.061(B) defense is a judgment in favor of the tenant on the counterclaim. *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 149, 486 N.E.2d 1234 (10th Dist. 1985). See also *Conway v. Nissley*, No. 68536, 1995 WL 723298, at *3 (Ohio App., 8th Dist., Dec. 7, 1995); *Heritage Hills, Ltd. v. Bragg*, No. 1379, 1987 WL 16079 (Ohio App., 4th Dist., Aug. 27, 1987).

Their reasoning is that “there can be no net judgment unless both parties are entitled to judgment, the landlord, for past due rent or rent becoming due during the pendency of the action, and the tenant, upon his counterclaim” *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 149, 486 N.E.2d 1234 (10th Dist. 1985).

4. Written Counterclaim

The counterclaim required by R.C. 1923.061(B) must be filed in accordance with the Ohio Rules of Civil Procedure and, therefore, must be filed in writing. *Northgate Apts. v. Gonzalez*, No. CA80-34, 1981 WL 6340 (Ohio App., 5th Dist., June 26, 1981); *Clark Props. v. Hawk*, No. 76AP-490, 1976 Ohio App. LEXIS 8193 (Ohio App., 10th Dist., Dec. 21, 1976).

5. Notice

Prior notice to the landlord is not a requirement for asserting a claim as a counterclaim under R.C. 1923.061(B). *Lobo v. Hoelscher*, 44 Ohio Misc. 46, 336 N.E.2d 475 (Ohio Mun., Dayton, 1975). However, prior notice to the landlord may be an element of the underlying claim. See Sections IX.A.2 and IX.B.2, below.

6. Payment of Deficiency

R.C. 1923.061(B) provides that, “[i]f no rent remains due after application of this division, judgment shall be entered for the tenant in the action for possession.”

Clearly, this provision requires an eviction judgment in favor of the tenant if the sum of the counterclaim judgment (in favor of the tenant) and the R.C. 1923.061(B) rent deposit equals or exceeds the amount of the rent claim judgment (in favor of the landlord). E.g., *Heritage Hills, Ltd. v. Bragg*, No. 1379, 1987 WL 16079 (Ohio App., 4th Dist., Aug. 27, 1987); *Sandefur Mgmt. Co. v. Smith*, 21 Ohio App.3d 145, 486

N.E.2d 1234 (10th Dist. 1985). *See also Napolski v. Champney*, 295 Or. 408, 417, 667 P.2d 1013 (1983) (construing a provision of the Oregon Landlord and Tenant Act that is nearly identical to R.C. 1923.061(B)). *But see Lee v. Douglas*, No. 80-CA29, 1981 WL 6083 (Ohio App., 4th Dist., Nov. 24, 1981); *Rains v. Temple*, No. 88-CVG-74 (Ohio Mun., Hillsboro, May 22, 1988).

Less clear is whether there are any circumstances in which R.C. 1923.061(B) requires an eviction judgment in favor of the tenant even though rent remains due after application of R.C. 1923.061(B). One such circumstance may be where: (1) the court orders the tenant to deposit with the court part of the past due rent, (2) the tenant deposits that amount with the court, (3) the court enters a judgment in favor of the tenant on the counterclaim, (4) the court enters a judgment in favor of the landlord on the rent claim, (5) the sum of the counterclaim judgment and the rent deposit is slightly less than the amount of the rent claim judgment, and (6) the tenant then tenders the net rent due the landlord.

Both the implied warranty of habitability case law¹³¹ and equity support the position that, in this circumstance, the tenant has a right to tender the net rent due the landlord and thereby obtain an eviction judgment in favor of the tenant.

Under the implied warranty of habitability case law, when a breach of the warranty results in a partial reduction in rent, the tenant has the right to maintain possession of the premises by tendering the amount of rent that the court determines is due and owing. *E.g., Pugh v. Holmes*, 486 Pa. 272, 292, 405 A.2d 897 (1979); *Teller v. McCoy*, 162 W. Va. 367, 392, 253 S.E.2d 114 (1978); *Green v. Superior Court of City & County of San Francisco*, 10 Cal.3d 616, 639, 517 P.2d 1168 (1974) (en banc); *Curtis v. Surrette*, 49 Mass. App. Ct. 99, 100, 726 N.E.2d 967 (2000); *Javins v. First Nat'l Realty Corp.*, 428 F.2d 1071, 1083 (D.C. Cir. 1970); *Acad. Spires, Inc. v. Brown*, 111 N.J. Super. 477, 488, 268 A.2d 556 (1970).

Likewise, equity requires that tenants in this circumstance be given an opportunity to tender the net rent due the landlord and thereby obtain an eviction judgment in favor of the tenant. It would surely be an inequitable result if a tenant were evicted, for example, because the sum of the tenant's counterclaim judgment and rent deposit was one dollar or ten dollars less than the amount of the landlord's rent claim judgment.

¹³¹ The implied warranty of habitability case law is relevant because R.C. 1923.061(B) is essentially a codification of that case law. *See* Uniform Residential Landlord and Tenant Act § 2.104, Comment.

P. Implied Warranty of Habitability, Common Law

The early common law in Ohio, as in other jurisdictions, did not recognize an implied covenant to make repairs in residential leases. *Holder v. Farmakis*, 66 Ohio Law Abs. 279, 117 N.E.2d 491 (Ohio App., 3rd Dist., 1951).

Ohio courts uniformly adhered to that position until a small number of courts, between 1972 and 1975, recognized a common law implied warranty of habitability in residential leases. *E.g.*, *Wymer v. Kimbaugh*, No. 74AP-547, 1975 Ohio App. LEXIS 7359 (Ohio App., 10th Dist., Mar. 13, 1975); *Smith v. Lewis*, Nos. B93544-47 (Ohio Mun., Cleveland, Sept. 30, 1974); *Lable & Co. v. Brooks*, Nos. B-89207,89208 (Ohio Mun., Cleveland, Aug. 16, 1974); *Glyco v. Schultz*, 35 Ohio Misc. 25, 289 N.E.2d 919 (Ohio Mun., Sylvania, 1972).

The Ohio Landlord-Tenant Act of 1974 (see Section V.A, below) did not explicitly address the status of this common law warranty. One court held that a warranty of habitability exists only insofar as the Act so provides. *Laster v. Bowman*, 52 Ohio App.2d 379, 370 N.E.2d 767 (8th Dist. 1977). It relied solely on its conclusion that the Act provides the exclusive remedies as to the rights and obligations contained in the Act. *Id.*

Thereafter, the Ohio Supreme Court overruled this conclusion of the *Laster* decision. *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 25, 427 N.E.2d 774 (1981). It held that “the new remedies given tenants in R.C. Chapter 5321 are intended to be preventive and supplemental to other remedial measures.” *Id.* Under *Shroades*, the common law may supplement the R.C. 1923.061(B) remedy.

However, a tenant still must establish that, under Ohio common law, a warranty of habitability exists. This may require the tenant to prove that the legislature, in enacting R.C. 1923.061(B), failed to redress adequately the deficiencies of the early common law and, for that reason, the courts should establish a common law warranty of habitability defense that is more expansive than R.C. 1923.061(B). It will, in all likelihood, be a difficult position on which to prevail. But a reasonable argument for this warranty defense can be made, based on a comprehensive analysis of the implied warranty of habitability theory and its reliance on contract law.

When the R.C. 1923.061(B) defense is available to a tenant, a common law warranty of habitability will afford the tenant no additional rights. Accordingly, the

prudent approach for a tenant would be not to rely upon a common law warranty of habitability defense in lieu of R.C. 1923.061(B), but rather to consider using it only if R.C. 1923.061(B) is unavailable.

Q. Set-Off Against Rent, Common Law

In an eviction action for nonpayment of rent, if the tenant has a monetary claim against the landlord, a common law set-off of the tenant's claim against the landlord's rent claim may be a defense to the eviction action. This defense is independent of the R.C. 1923.061(B) defense (see Section II.O., above).

The set-off defense may be asserted where a tenant has repaired a defective condition at the premises that the landlord was obligated but failed to repair. "In Ohio if, upon breach of a landlord's agreement to make repairs, the tenant himself makes the repairs, he may set off the cost of the repairs in an action by the landlord for rent." *Kuhn v. Griffin*, 3 Ohio App.2d 195, 205, 209 N.E.2d 824 (6th Dist. 1964). *Accord Story v. Jamison*, No. 92-CVG-22935 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 1993). See also *Smith v. Padgett*, 32 Ohio St.3d 344, 347 n.1, 513 N.E.2d 737 (1987).¹³²

Consequently, in an eviction action for nonpayment of rent, a tenant may treat the cost of the repairs as a set-off against the alleged unpaid rent. See *Padgett*, 32 Ohio St.3d at 347 n.1; *Kuhn*, 3 Ohio App.2d at 204-05; *Story v. Jamison*, No. 92-CVG-22935 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 1993). If the cost of the repairs equals or exceeds the amount of the alleged unpaid rent, the requirements of the set-off defense are met.

In these circumstances, the set-off defense may be more effective than the R.C. 1923.061(B) defense (see Section II.O, above) because it does not include a rent

¹³² In *Padgett*, 32 Ohio St. 3d at 347 n.1, the Ohio Supreme Court stated:

We do not decide whether a tenant, upon the landlord's breach of a promise to make repairs, may make the repairs himself or herself, and recover the cost of such repairs in an action for damages or treat the costs of repairs as a setoff against future rent. Nevertheless, the continuing validity of any indication in *Holder, supra*, that a tenant cannot do so would appear dubious.

See also *Lanier v. Ramsey*, No. 93-CVG-13802 (Ohio Mun., Cleveland, Hous. Div., Mar. 21, 1994) (under doctrine of unjust enrichment, tenant awarded \$2,400 to reimburse her for the funds that she spent repairing the premises to make them habitable).

deposit requirement. Under the R.C. 1923.061(B) defense, a court may order the tenant to deposit with the court all past due rent. See Section II.O.2, above. The tenant may have repaired the premises with funds that the tenant otherwise would have used to pay the rent. In such cases, often the tenant is unable to comply with the rent deposit order and, therefore, is denied the right to assert the R.C. 1923.061(B) defense.

The set-off defense also may be asserted where the landlord owes the tenant money for other reasons. *E.g., Milbourn v. Aska*, 81 Ohio App. 79, 77 N.E.2d 619 (3rd Dist. 1946) (set-off of reasonable value of storage of landlord's restaurant counter at the premises).

R. Tenant Repairs in Lieu of Rent, Agreement

In an eviction action for nonpayment of rent, if the rental agreement provides that the tenant is to make certain repairs to the premises in lieu of the obligation to pay certain rent ("repair agreement"),¹³³ the tenant's repairs to the premises may be a defense to the eviction action. To prevail on this defense, a tenant must prove that the repair agreement exists, that the tenant made the relevant repairs, and that the only unpaid rent is rent that has been forgiven by the repair agreement.

If the court finds that the amount of rent owed the landlord exceeds the amount of rent forgiven by the repair agreement, this defense will be unsuccessful. *E.g., Oakes v. Buffalohead*, No. 87-CVG-01011 (Ohio Mun., Medina, Feb. 9, 1988); *Hawkins v. Collier*, No. 87-CVG-884 (Ohio Mun., Portsmouth, Sept. 10, 1987).

When the repair agreement requires the tenant to repair R.C. 5321.04 violations, the repair agreement does not relieve the landlord of any R.C. 5321.04 duty or liability.¹³⁴ A landlord's R.C. 5321.04 duties may not be waived or modified. R.C. 5321.13. They are non-delegable. *Strayer v. Lindeman*, 68 Ohio St.2d 32, 427 N.E.2d 781 (1981). And any landlord liability under R.C. 5321.04 may not be waived or modified. R.C. 5321.13.

¹³³ As to whether this repair agreement may be an oral agreement, see Section XXII.A, below.

¹³⁴ For a discussion on the landlord's R.C. 5321.04 duties, see Section VII.C, below. For a discussion on the landlord's liability for a breach of the R.C. 5321.04 duties, see Chapter IX, below.

Nonetheless, the repair agreement is valid. While R.C. 5321.13 and *Strayer* bar such waiver, modification, or delegation, they do not bar a landlord from retaining a tenant (or another third party) to repair R.C. 5321.04 violations. “Nothing in Ohio’s Landlord Tenant Act prevents parties from agreeing to allow a tenant to perform services as a rent obligation in lieu of making financial payments.” *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,456, 2010 WL 3610931, ¶ 36 (Ohio App., 10th Dist., Sept. 16, 2010). See generally *Wade v. Smith*, No. 3-87-24, 1989 WL 36578 (Ohio App., 3rd Dist., Apr. 18, 1989).

S. Rent Adjustment – Tenant on Active Duty, R.C. 1923.062

When an eviction action is for nonpayment of rent against a tenant or a manufactured home park resident (or against any member of the tenant’s or resident’s immediate family), and the tenant or resident is deployed on active duty, the tenant or resident (or immediate family member) may have a defense or remedy under R.C. 1923.062.

In such cases, the defense or remedy is available if: (1) “the tenant’s or resident’s ability to pay the agreed rent is materially affected by the deployment on active duty” (R.C. 1923.062(A)) and (2) the landlord or park operator operates five or more residential premises (R.C. 1923.062(C)).

When these conditions are met, upon the tenant’s or resident’s motion, the court is required to take one of two actions. First, it may “[a]djust the obligation under the rental agreement to preserve the interest of all parties to it.” R.C. 1923.062(A)(2). Second, it may “[s]tay the proceedings for a period of ninety days, unless, in the opinion of the court, justice and equity require a shorter period of time.” R.C. 1923.062(A)(1). When a court selects the stay option, “the court may grant the landlord or park operator such relief as equity may require.” R.C. 1923.062(B).

Absent the tenant’s or resident’s motion, a court still may, on its own motion, grant one of these alternative defenses or remedies. R.C. 1923.062.

T. Retaliation, R.C. 5321.02,.03

1. Scope of the Retaliation Defense

Subject to the R.C. 5321.03 exceptions (see Section II.T.3, below), R.C.

5321.02(A) prohibits a landlord from bringing an eviction action against a tenant: (1) because the tenant complained to an appropriate governmental agency of a code violation at the premises that materially affects health and safety,¹³⁵ (2) because the tenant complained to the landlord of an R.C. 5321.04 violation, or (3) because the tenant joined a tenant organization.¹³⁶

A landlord's violation of this prohibition is a defense to the eviction action.¹³⁷ R.C. 5321.02(B)(1). The defense is known as the retaliation defense.¹³⁸

2. Proof Issues

"Retaliation is not often proved by direct evidence but the law, of course, recognizes no difference between circumstantial evidence and direct evidence." *Blue v. Castlerock Props., Inc.*, 77 Ohio Misc.2d 1, 3, 665 N.E.2d 295 (Ohio Mun., Hamilton Cty., 1996).

To establish the retaliation defense, a tenant must prove, by a preponderance of the

¹³⁵ R.C. 5321.02(A) does not apply if the tenant complained to an appropriate governmental agency of a code violation at the premises that does not materially affect health or safety. *Cf. Voyager Vill., Ltd. v. Sudduth*, No. 81-CA-63, 1982 Ohio App. LEXIS 15638 (Ohio App., 2nd Dist., Apr. 15, 1982) (construing R.C. 3733.09(A) (now R.C. 4781.36(A)), the manufactured home park anti-retaliation provision, which is essentially the same as R.C. 5321.02).

¹³⁶ R.C. 5321.02(A) does not prohibit a landlord from bringing an eviction action against a tenant because of a personal conflict between the landlord and tenant. *Cf. Troy v. Casale*, No. 2976, 1982 WL 5894 (Ohio App., 11th Dist., Mar. 31, 1982) (construing R.C. 3733.09(A)).

¹³⁷ If a landlord violates this prohibition, the tenant also may have monetary claims against the landlord under R.C. 5321.02(B) and common law. See Chapter XI, below. But a tenant is permitted to assert the retaliation defense in the eviction claim regardless of whether the tenant asserts a retaliation monetary counterclaim. *Kassem v. Barnes*, No. C-190539, 2020 WL 4673121, ¶ 9 (Ohio App., 1st Dist., Aug. 12, 2020).

¹³⁸ The decision in *Reck v. Whalen*, 114 Ohio App.3d 16, 20, 682 N.E.2d 721 (2nd Dist. 1996), erroneously holds that the retaliation defense is "in the nature of an equitable defense," which permits a court to "weigh all the other equitable circumstances in determining whether to issue a writ of restitution." The holding is erroneous because R.C. 5321.02(B)(1) categorically states that, if a landlord brings an eviction action in violation of R.C. 5321.02(A), "the tenant may use the retaliatory action of the landlord as a defense to the action." This categorical statement in R.C. 5321.02(B)(1) establishes a legal defense that is not subject to any weighing of the equities. The *Reck* decision's rationale for its holding is that it will preclude tenants who are delinquent in rent from asserting the retaliation defense. Its rationale is baseless since R.C. 5321.02(A) is subject to R.C. 5321.03, and R.C. 5321.03(A)(1) precludes tenants who are delinquent in rent from asserting the retaliation defense.

evidence, that the landlord's decision to evict was in response to an activity of the tenant that R.C. 5321.02(A) protects. *Karas v. Floyd*, 2 Ohio App.3d 4, 6, 440 N.E.2d 563 (2nd Dist. 1981). See also *Timbercreek Vill. Apts. v. Myles*, No. 17422, 1999 WL 335307, at *7 (Ohio App., 2nd Dist., May 28, 1999); *Davis v. Reed*, Nos. 68699, 68700, 1996 WL 347814, at *6 (Ohio App., 8th Dist., June 20, 1996); *Howard v. Simon*, 18 Ohio App.3d 14, 18, 480 N.E.2d 99 (8th Dist. 1984); *Tolle v. Cross*, No. CVG-1400181 (Ohio Mun., New Philadelphia, Dec. 12, 2014). Cf. *Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 299, 444 N.E.2d 1337 (2nd Dist. 1982) (construing R.C. 3733.09(A) (now R.C. 4781.36(A))).

This burden of proof requires a causal link between the tenant's complaint (or tenant organization activities) and the landlord's decision to terminate the tenancy ("required causal link"). It generally exists if, absent the tenant's complaint or tenant organization activities, "the eviction action would probably not have been commenced." *Karas*, 2 Ohio App.3d at 6. See generally *Higbee v. Starr*, 698 F.2d 945 (8th Cir. 1983).

An essential element of the required causal link is that, when the landlord decided to evict the tenant, the landlord knew of the tenant's engagement in the protected activity. Absent that knowledge, the required causal link cannot be shown. *E.g.*, *Felman v. Coleman*, No. 15686, 1996 WL 325501 (Ohio App., 2nd Dist., June 14, 1996) (failure to prove retaliatory motive because landlord served tenant with notice of termination before landlord knew of tenant's complaint to the city inspection department); *Braff Mobile Home Co. v. McFarland*, No. 8-265, 1982 WL 5815 (Ohio App., 11th Dist., July 23, 1982) (failure to prove retaliatory motive because no evidence that landlord knew of tenant's complaint about the water supply or the tenant's contacts with various governmental agencies regarding the water supply). See generally *Barber v. Am. Sec. Bank*, 655 F. Supp. 775, 779 (D.D.C. 1987) ("As a matter of law, there can obviously be no retaliation if the retaliator did not know about the protected activity"), *appeal dismissed*, 841 F.2d 1159 (D.C. Cir. 1988).

Other evidence that is needed to establish the required causal link varies from case to case, but often includes evidence that falls into one of two categories.

The first category is evidence that the landlord decided to evict the tenant soon after the tenant's engagement in a protected activity. Such evidence may be a substantial factor in determining whether the required causal link exists. *Cont'l Enters., Ltd. v. Franklin*, No. 102899, 2016 WL 1941209 (Ohio App., 8th Dist., May 19, 2016); *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,446, 2010 WL 3610931

(Ohio App., 10th Dist., Sept. 16, 2010); *Karas v. Floyd*, 2 Ohio App.3d 4, 440 N.E.2d 563 (2nd Dist. 1981).

However, it does not create a presumption of unlawful retaliation. *Howard v. Simon*, 18 Ohio App.3d 14, 480 N.E.2d 99 (8th Dist. 1984);¹³⁹ *Karas*, 2 Ohio App.3d at 6; *Polson v. Peterson*, No. 91-CVG-55 (Ohio Mun., Newton Falls, Mar. 19, 1991). “[T]he finder of fact must independently determine the reasons behind a landlord’s action.” *Weishaar v. Strimbu*, 76 Ohio App.3d 276, 286, 601 N.E.2d 587 (8th Dist. 1991).

The second category is evidence of the landlord treating the tenant in a different manner than the landlord has treated other tenants. For example, in *Belvoir Cliffs Apts. v. Bembry*, 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978), the tenant proved retaliation by, among other things, proving that the landlord refused to accept the tenant’s late rent payment even though the landlord customarily had accepted such payments from other tenants.

Other circumstantial evidence in support of the retaliation defense may include: (1) that the tenant paid rent timely and otherwise acted in accordance with the requirements of the rental agreement, (2) that the landlord never complained to the tenant about the conduct alleged in the complaint as the reason for the eviction, and/or (3) that the landlord is evasive in responding to inquiries about the reason for the eviction.

If a tenant proves that the landlord brought the eviction action in violation of R.C. 5321.02(A), the burden of proof shifts to the landlord. *Karas v. Floyd*, 2 Ohio App.3d 4, 6, 440 N.E.2d 563 (2nd Dist. 1981). See also *Timbercreek Vill. Apts. v. Myles*, No. 17422, 1999 WL 335307, at *7 (Ohio App., 2nd Dist., May 28, 1999). See generally *Meacham v. Knolls Atomic Power Lab.*, 554 U.S. 84, 91 (2008) (“[w]hen a proviso ... carves an exception out of the body of a statute or contract, those who set up such exception must prove it” (quoting *Javierre v. Cent. Altagracia*, 217 U.S. 502, 508 (1910))). At this point, the landlord may still defeat the retaliation defense by proving that one of the R.C. 5321.03 exceptions applies. *Id.*

¹³⁹ In *Howard*, the court found no unlawful retaliation where: “the tenant’s complaint was lodged in an obnoxious manner[;] [t]he landlord immediately told the tenant that he found this conduct unacceptable and dangerous; and the landlord had previously received 40-50 complaints from the tenant without retaliating.” 18 Ohio App.3d at 18.

3. R.C. 5321.03 Exceptions

R.C. 5321.03 bars the R.C. 5321.02 retaliation defense if any of the following four circumstances exists.

- (1) The tenant is in default in the payment of rent. R.C. 5321.03(A)(1). *See Di Fiore v. Booker*, No. 108946, 2020 WL 2992105 (Ohio App., 8th Dist., June 4, 2020); *Mushi v. Dietz Prop. Group*, No. 18-AP-774, 2019 WL 4450155 (Ohio App., 10th Dist., Sept. 17, 2019); *Timbercreek Vill. Apts. v. Myles*, No. 17422, 1999 WL 335307 (Ohio App., 2nd Dist., May 28, 1999); *Witkowski v. Arditi*, 123 Ohio App.3d 26, 702 N.E.2d 1231 (7th Dist. 1997); *Weldon Square Apts. v. Lyons*, No. 84AP-06, 1985 WL 9901 (Ohio App., 10th Dist., Mar. 19, 1985); *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984); *Gerber v. Bistor*, No. 1795, 1982 WL 2806 (Ohio App., 9th Dist., Oct. 27, 1982).
- (2) The condition about which the tenant complained was caused by the tenant or the tenant's guest. R.C. 5321.03(A)(2).
- (3) The performance of the repairs necessary to achieve code compliance would effectively deprive the tenant of the use of the premises. R.C. 5321.03(A)(3). *See Wagar v. Hatnavy*, No. 1433, 1985 WL 4734 (Ohio App., 9th Dist., Dec. 26, 1985).
- (4) The tenant is holding over the tenant's term. R.C. 5321.03(A)(4).

The R.C. 5321.03(A)(4) exception ("holdover exception") applies when the alleged retaliatory act is the landlord's refusal to renew a fixed-term lease. *E.g.*, *Krantz v. Pahnke*, No. 2021-CA-0043, 2022 WL 39486 (Ohio App., 5th Dist., Jan. 5, 2022) (nonrenewal of a lease upon the expiration of its one-year term); *Indian Hills Senior Cmty., Inc. v. Sanders*, No. 78780, 2001 WL 958055 (Ohio App., 8th Dist., Aug. 23, 2001) (nonrenewal of a lease upon the expiration of its two-year term); *Kaleda v. Whitehurst Co.*, No. L-00-1048, 2000 WL 1205420 (Ohio App., 6th Dist., Aug. 25, 2000) (nonrenewal of a lease upon the expiration of its one-year term). *See also McCarthy v. Caplan*, No. 79721, 2001 WL 1671422 (Ohio App., 8th Dist., Dec. 6, 2001) (dicta).

The holdover exception also applies to month-to-month tenancies when the alleged retaliatory act occurred after the tenant became a holdover tenant. *E.g.*, *Siegler v. Batdorff*, 63 Ohio App.2d 76, 83, 408 N.E.2d 1383 (8th Dist. 1979). In *Siegler*: (1) the thirty-day notice of termination was served on March 31, (2) the tenants engaged in a

protected activity (*i.e.*, complained of conditions) on April 13, (3) the tenancy was terminated as of May 1, and (4) the R.C. 1923.04 notice to vacate was served on May 2. The holdover exception applied in *Siegler* because the landlord's alleged retaliatory act – service of the R.C. 1923.04 notice to vacate – occurred on May 2, when the tenants were holdover tenants.

The holdover exception should not apply to month-to-month tenancies when the alleged retaliatory act is the service of the R.C. 5321.17(B) notice of termination (see Section I.D, above). But the appellate districts are split on this issue.

Three appellate districts have held that the holdover exception does not apply in these circumstances: *Ruble v. M & L Props., Ltd.*, No. 10-COA-006, 2010 WL 5452110 (Ohio App., 5th Dist., Dec. 20, 2010); *Reid v. Plainsboro Partners, III*, Nos. 09AP-332,446, 2010 WL 3610931 (Ohio App., 10th Dist., Sept. 16, 2010); *Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 444 N.E.2d 1337 (2nd Dist. 1982) (construing R.C. 3733.091(A)(3) (now R.C. 4781.37(A)(3)), the manufactured home park holdover provision that is essentially the same as R.C. 5321.03(A)(4)). *See also Tolle v. Cross*, No. CVG-1400181 (Ohio Mun., New Philadelphia, Dec. 12, 2014) (follows *Ruble*).

One appellate district has held that the holdover exception does apply in these circumstances: *Associated Estates Realty Corp. v. Samsa*, No. 84297, 2004 WL 2847838 (Ohio App., 8th Dist., Dec. 9, 2004).

In determining whether *Ruble*, *Reid*, and *Voyager Vill.* are correctly decided, or *Samsa* is correctly decided, a court is obligated to consider which decision(s) better advance the object sought to be obtained by the R.C. 5321.02,.03 prohibition against retaliation. *See* R.C. 1.49(A). In making this determination, a court is also obligated to consider the consequences of the statutory construction in each of these decisions (*see* R.C. 1.49(E)) and the presumption that the legislature intended each provision in R.C. 5321.02 to be effective (*see* R.C. 1.47(B)).¹⁴⁰

Under these criteria, *Ruble*, *Reid*, and *Voyager Vill.* are correctly decided because they, and not *Samsa*, advance the object sought to be obtained by the R.C. 5321.02,.03 prohibition against retaliation. The *Samsa* decision is also flawed because it renders meaningless the R.C. 5321.02(B) retaliation defense.

¹⁴⁰ Also, R.C. Chapter 5321 is a remedial statute. *See* Section V.A, above. Therefore, it must be liberally construed to promote its object and assist the parties in attaining justice. *See* R.C. 1.11.

The purpose of the R.C. 5321.02,.03 prohibition against a landlord's retaliatory termination of a tenancy and the related eviction action ("purpose of the retaliation prohibition") is as follows:

In order to protect the tenant in the exercise of his new statutory rights and to promote reporting of housing code violations, the new Act restricts the landlord's absolute right to terminate a periodic tenancy. Traditionally, some landlords would respond to a complaining tenant by terminating the lease. The effect of termination was to silence that particular tenant while setting an example for other tenants. Since retaliatory eviction on the part of the landlord has the potential to undermine the entire Landlord-Tenant Act, the legislature has prohibited such conduct.

Robert J. Croyle, Comment, Ohio Residential Landlord-Tenant Act, 8 Akron L. Rev. 519, 538-39 (1975). See also John E. Campion, Note, The Ohio Landlord and Tenant Reform Act of 1974, 25 Case W. Res. L. Rev. 876, 929-30 (1974-75).

The *Ruble*, *Reid*, and *Voyager Vill.* decisions correctly recognize that the purpose of the retaliation prohibition can be attained only if the R.C. 5321.02(A) prohibition encompasses a landlord's retaliatory service of an R.C. 5321.17(B) notice of termination. In retaliatory eviction actions against month-to-month tenants, the landlord invariably claims a right to possession under the landlord's service of an R.C. 5321.17(B) notice of termination. If R.C. 5321.02(A) does not encompass the landlord's retaliatory motive for serving the R.C. 5321.17(B) notice of termination, the landlord's eviction claim will never constitute a violation of R.C. 5321.02(A), notwithstanding the landlord's retaliatory motive.

As noted in *Voyager Vill.*, if the holdover exception were applicable to the landlord's service of the R.C. 5321.17(B) notice of termination, it would "vitate the protection afforded by the defense of retaliation as regards any periodic tenant, since it could be reasoned that a periodic tenant becomes a holdover after the landlord declares the tenancy terminated or declines to renew." *Voyager Vill.*, 3 Ohio App.3d at 295. Accord John E. Campion, Note, The Ohio Landlord and Tenant Reform Act of 1974, 25 Case W. Res. L. Rev. 876, 941 (1974-75). "Such an interpretation is circular, it makes a nullity of the retaliation defense because the label of 'holdover' summarily disposes of the entire issue, *i.e.*, whether the landlord had a right to evict in the first instance." *Id.*

Furthermore, if the holdover exception were applicable to the landlord's service of

the R.C. 5321.17(B) notice of termination, it would also directly conflict with the R.C. 1.47(B) presumption that “the entire statute is intended to be effective.” Since the R.C. 5321.02 retaliation defense would be unavailable to both month-to-month tenants and tenants with a fixed-term lease (*i.e.*, virtually all tenants), this construction of R.C. 5321.03(A)(4) would render meaningless the R.C. 5321.02 retaliation defense.

Ruble, Reid, and Voyager Vill. recognize that, relative to month-to-month tenancies, applying the holdover exception only to cases in which the landlord’s retaliatory act occurred after the tenant became a holdover tenant, as in *Siegler*, is consistent with the purpose of the retaliation prohibition. In those cases, the landlord’s retaliatory act did not cause the tenant to be without a possessory right. “Where the tenant no longer has possessory rights to protect he should not be protected from eviction.” *Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 295, 444 N.E.2d 1337 (2nd Dist. 1982). *Accord* John E. Campion, Note, The Ohio Landlord and Tenant Reform Act of 1974, 25 Case W. Res. L. Rev. 876, 941 (1974-75).

4. Dual Motive Issue

A common issue in retaliatory eviction cases is the “dual motive” issue. The issue arises when a landlord is evicting a tenant for two or more reasons and one of them is retaliation. The issue is, in such circumstances, to what extent, if any, may the landlord’s motivation be retaliation without violating the law.

An early Ohio decision on the dual motive issue is *Gateway Apts. v. Darrah*, Nos. 76-CVG-725,928 (Ohio Mun., Lyndhurst, Aug. 22, 1977). It held that R.C. 5321.02 is violated whenever the retaliation is a resultant factor in the decision to terminate the tenancy. *Id.*

Other jurisdictions provide a broad spectrum of responses to this issue. *See* Comment, Landlord-Tenant: Proving Motive in Retaliatory Eviction – Minnesota’s Solution, 61 Minn. L. Rev. 523 (1977); Comment, Prohibition of Retaliatory Eviction in Landlord-Tenant Relations: A Study of Practice and Proposals, 54 N.C.L. Rev. 861, 871-76 (1976). At one end, courts have held that retaliation must be the sole motive. *E.g.*, *Dickhut v. Norton*, 45 Wis.2d 389, 173 N.W.2d 297 (1970). At the other end, courts have held that any retaliatory motive is sufficient to establish the retaliation

defense. *E.g., Silberg v. Lipscomb*, 117 N.J. 491, 285 A.2d 86 (1971).¹⁴¹

An Oregon Supreme Court decision on this dual motive issue – *Elk Creek Mgmt. Co. v. Gilbert*, 353 Or. 565, 303 P.3d 929 (2013) – may be the most instructive decision for determining this issue for Ohio. Ohio and Oregon have similar retaliation provisions, and both are modeled on the Uniform Residential Landlord-Tenant Act (“URLTA”).

In *Gilbert*, the Court analyzed in detail the URLTA retaliation provision, relative to the dual motive issue, including the URLTA comments and the case law relied on in drafting the provision. It thereupon held that the proper test is a “but for” test. Under this test, a tenant “may prevail by proving that the tenant’s protected activity was a ‘material and substantial’ factor in the landlord’s decision. The tenant need not prove that the tenant’s protected activity was the ‘sole’ or ‘dominant’ reason for the landlord’s decision.” *Gilbert*, 353 Or. at 584-85.

U. Discrimination

1. Federal and Ohio Statutes

When a tenant’s race, color, religion, sex, handicap, familial status, or national origin is a significant factor in the landlord’s decision to terminate a tenancy, generally it is a defense to the eviction action under one (or more) of the following five statutes.

- (1) The federal Fair Housing Act. 42 U.S.C. § 3604.
- (2) Section 504 of the Rehabilitation Act of 1973 (“Section 504”), if disability discrimination is alleged and the landlord receives federal financial assistance.¹⁴² 29 U.S.C. § 794.
- (3) Title II of the Americans with Disabilities Act (“ADA”), if disability discrimination is alleged and the landlord receives state or local government financial assistance. 42 U.S.C. §§ 12131, 12132.
- (4) The Civil Rights Act of 1866, if race discrimination is alleged. 42

¹⁴¹ The U.S. Supreme Court is similarly split on the meaning of the term “because of” in the context of both the ADEA (*see Gross v. FBL Fin. Servs., Inc.*, 557 U.S. 167 (2009) (5-4 decision)) and Title VII retaliation (*see Univ. of Texas Southwestern Med. Ctr. v. Nassar*, 570 U.S. 338 (2013) (5-4 decision)).

¹⁴² Landlords who receive federal financial assistance include the landlords who participate in the assisted housing programs that are discussed in Chapters III and XXIV, below.

U.S.C. § 1982.

(5) The Ohio Civil Rights Act. R.C. 4112.02(H).

The federal Fair Housing Act does not apply to any tenancy in a building that contains four or fewer dwelling units, if the landlord resides in one of the units. 42 U.S.C. § 3603(b)(2). The other statutes do not contain this exception.

“[W]hen reviewing R.C. Chapter 4112 claims, Ohio courts may consider [analogous] federal statutes and case law.” *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,446, 2010 WL 3610931, ¶ 54 (Ohio App., 10th Dist., Sept. 16, 2010). *Accord K&D Mgmt., L.L.C. v. Masten*, No. 98894, 2013 WL 3422890, ¶ 16 n.1 (Ohio App., 8th Dist., July 3, 2013); *Carter v. Russo Realtors*, No. 00AP-797, 2001 WL 537019, at *1 (Ohio App., 10th Dist., May 22, 2001); *Strader v. Johnson*, No. 98AP-202, 1998 WL 894602, at *3 (Ohio App., 10th Dist., Dec. 22, 1998).

For a comprehensive review of the discrimination defense (including relevant case law) under these federal statutes, see the following resources.

- (1) Books: Robert G. Schwemm, *Housing Discrimination: Law and Litigation* (Thomson Reuters 2008-2021); John P. Relman, *Housing Discrimination Practice Manual* (Thomson Reuters 2009-2020).
- (2) Pamphlet: Bazelon Center for Mental Health Law, *What “Fair Housing” Means for People with Disabilities* (2018) (available at www.bazelon.org/our-work/mental-health-systems/housing).
- (3) Fair Housing Fact Sheets: Bazelon Center for Mental Health Law (available at www.bazelon.org/our-work/mental-health-systems/housing).
- (4) Joint Statement of the Department of Housing and Urban Development and the Department of Justice: *Reasonable Accommodations Under the Fair Housing Act* (May 17, 2004) (available at www.justice.gov/sites/default/files/crt/legacy/2010/12/14/joint_statement_ra.pdf).
- (5) Joint Statement of the Department of Housing and Urban Development and the Department of Justice: *Reasonable Modifications Under the Fair Housing Act* (Mar. 5, 2008) (available at www.hud.gov/sites/documents/reasonable_modifications_mar08.pdf).

- (6) HUD Handbook 4350.3 REV-1, ch.2.¹⁴³
- (7) Websites: National Fair Housing Alliance (www.nationalfairhousing.org/legal-resources); Bazelon Center for Mental Health Law (www.bazelon.org).

2. Reasonable Accommodation Requirements

The Fair Housing Act requires a landlord “to make reasonable accommodations in the rules, policies, practices, and services,” when it is necessary to accommodate the needs of a tenant with a disability. 42 U.S.C. § 3604(f)(3)(B). This requirement also exists under Section 504 and the ADA. *Roe v. Hous. Auth. of City of Boulder*, 909 F. Supp. 814, 821 (D. Colo. 1995). *See also Anast v. Commonwealth Apts.*, 956 F. Supp. 792, 800 (N.D. Ill. 1997).

In the eviction context, “a reasonable accommodation is required where there is a causal link between the disability for which the accommodation is requested and the misconduct that is the subject of the eviction or other challenged action.” *Boston Hous. Auth. v. Bridgewater*, 452 Mass. 833, 848, 898 N.E.2d 848 (2009).

Absent the requisite causal link, the tenant is not entitled to the reasonable accommodation. *See, e.g., Norwich Apts. II v. Sanders*, 159 N.E.3d 340, 2020-Ohio-4540 (Ohio App., 6th Dist., 2020) (insufficient evidence to find a causal link between the disability and the failure to pay rent); *Cincinnati Metro. Hous. Auth. v. Brown*, No. C-120580, 2013 WL 5432087, ¶ 18 (Ohio App., 1st Dist., Sept. 25, 2013) (insufficient evidence of the requisite link between the disability and the misconduct – threats and yelling at other tenants).

“Once a tenant shows that a disability is the reason for noncompliance with a lease, the tenant must show that an accommodation will allow the tenant to remain compliant with the lease.” Bazelon Center, Fair Housing Information Sheet #4, Using Reasonable Accommodation to Prevent Eviction (rev. Dec. 11, 2003), at 2.

The tenant’s initial request for the reasonable accommodation may be made during the eviction action. *Radecki v. Joura*, 114 F.3d 115 (8th Cir. 1997); *Roe v. Hous. Auth. of City of Boulder*, 909 F. Supp. 814 (D. Colo. 1995); *Roe v. Sugar River Mills Assocs.*, 820 F. Supp. 636 (D.N.H. 1993); *Boston Hous. Auth. v. Bridgewater*, 452 Mass. 833,

¹⁴³ The term “HUD Handbook 4350.3 REV-1” means U.S. Dep’t of Hous. & Urban Dev., Occupancy Requirements of Subsidized Multifamily Housing Programs Handbook, 4350.3 REV-1 (November 2013), as amended.

898 N.E.2d 848 (2009); *Lebanon County Hous. Auth. v. Landeck*, 967 A.2d 1009 (Pa. Super. 2009); *Douglas v. Kriegsfeld Corp.*, 849 A.2d 951 (D.C. App. 2004); *Cornwell & Taylor LLP v. Moore*, No. C8-00-1000, 2000 WL 1887528 (Minn. App. Dec. 22, 2000).

The reasonable accommodation requirement does not apply to any tenant whose tenancy would constitute a direct threat to the health or safety of other individuals. 42 U.S.C. § 3604(f)(9) (Fair Housing Act); 24 C.F.R. § 8.3 (qualified individual with handicaps) (Section 504); 56 Fed. Reg. 35693, 35701 (July 26, 1991) (refers to 28 C.F.R. § 36.208) (ADA). *See, e.g., Cincinnati Metro. Hous. Auth. v. Brown*, No. C-120580, 2013 WL 5432087 (Ohio App., 1st Dist., Sept. 25, 2013).

However, when determining whether such threat to health and safety exists, the court is required to consider the threat (if any) that would exist if the reasonable accommodation were granted. *Boston Hous. Auth. v. Bridgewater*, 452 Mass. 833, 841, 898 N.E.2d 848 (2009); *Douglas v. Kriegsfeld Corp.*, 849 A.2d 951, 960 (D.C. App. 2004); *Roe v. Sugar River Mills Assocs.*, 820 F. Supp. 636, 639-40 (D.N.H. 1993). The health and safety exception “does not come into play until *after* an effort for accommodation has been made and the court has determined, through a probing factual inquiry, that no reasonable accommodation could ameliorate the situation sufficiently to protect the health, safety, and property of others.” *Douglas v. Kriegsfeld Corp.*, 849 A.2d 951, 960 (D.C. App. 2004).

Also, the health and safety exception is an affirmative defense to the duty to provide a reasonable accommodation. *Twp. of W. Orange v. Whitman*, 8 F. Supp.2d 408 (D.N.J. 1998). The burden of proof is on the landlord to prove this defense. *Dadian v. Vill. of Wilmette*, 291 F.3d 831 (7th Cir. 2001). The landlord is required to prove that “no ‘reasonable accommodation’ will eliminate or acceptably minimize the risk that he [the tenant] poses to other residents” of the property. *Roe v. Sugar River Mills Assocs.*, 820 F. Supp. 636, 640 (D.N.H. 1993). *Accord Roe v. Hous. Auth. of City of Boulder*, 909 F. Supp. 814, 822-23 (D. Colo. 1995).

When a landlord has made a reasonable accommodation in the rules and the tenant violates the modified rules, the landlord may evict the tenant for noncompliance with the modified rules. *E.g., Parma Pub. Hous. v. Hoag*, No. 07-CVG-00695 (Ohio Mun., Parma, May 2, 2007) (accommodation permitted one cat for therapeutic purposes and tenant kept two or more cats, even after landlord’s notice of violation). *See also Woodside Vill. v. Hertzmark*, No. SPH9204-65092, 1993 WL 268293 (Conn. Super. June 22, 1993) (failing to walk dog in designated area and failing to clean up after it),

aff'd on other grounds, 36 Conn. App. 73, 647 A.2d 759 (1994).

For a summary of the reasonable accommodation requirement in the eviction context, see the Bazelon Center, Fair Housing Information Sheet #4, Using Reasonable Accommodation to Prevent Eviction (rev. Dec. 11, 2003). For articles on the reasonable accommodation requirement in the eviction context, see Liam Garland, Fairer Housing for People with Disabilities: Securing an In-Place Tenant's Right to Reasonable Accommodation, 40 Clearinghouse Rev. 503 (2007); Fred Fuchs, Using Reasonable-Accommodation Provision of the Fair Housing Act to Prevent the Eviction of a Tenant with Disabilities, 41 Clearinghouse Rev. 272 (2007).

Under the Supremacy Clause, state courts are required to consider Fair Housing Act defenses in eviction actions. *Rodriguez v. Westhab, Inc.*, 833 F. Supp. 425 (S.D.N.Y. 1993).

Ohio courts recognize the right of tenants to assert a Fair Housing Act defense in eviction actions. *E.g.*, *Cincinnati Metro. Hous. Auth. v. Brown*, No. C-120580, 2013 WL 5432087, ¶¶ 2-5, 11-19 (Ohio App., 1st Dist., Sept. 25, 2013); *K&D Mgmt., L.L.C. v. Masten*, No. 98894, 2013 WL 3422890, ¶¶ 15-17, 19 (Ohio App., 8th Dist., July 3, 2013); *Olympic Realty v. Zaleski*, No. 11AP-971, 2013 WL 1303777, ¶ 15 (Ohio App., 10th Dist., Mar. 29, 2013); *Palombo v. Hayes*, Nos. 65781, 66714, 1995 WL 229120, at *7-8 (Ohio App., 8th Dist., Apr. 13, 1995). *See also* *Lable & Co. v. Flowers*, 104 Ohio App.3d 227, 661 N.E.2d 782 (9th Dist. 1995) (fair housing counterclaim in FED action); *Gladden v. Walker*, No. 12-CV-29809 (Ohio Mun., Hamilton Cty., Aug. 15, 2014) (fair housing third-party complaint in FED action).

Ohio eviction actions in which the court ordered a reasonable accommodation and, for that reason, denied the landlord's eviction claim include: *Shiloh Grove Ltd. P'ship v. Ransom*, No. M9408-CVG-025818 (Ohio Mun., Franklin Cty., Oct. 12, 1994) (reasonable accommodation: accept rent three weeks late); *Showe Mgmt. Corp. v. Stover*, No. M9306-CVG-17876 (Ohio Mun., Franklin Cty., Aug. 23, 1993) (reasonable accommodation: permit temporary absence from the rental unit); *Cuyahoga Metro. Hous. Auth. v. Humphries*, No. 93-CVG-6480 (Ohio Mun., Cleveland, Hous. Div., June 29, 1993) (reasonable accommodation: provide periodic assistance from social worker, transportation to psychiatric assistance, and training to staff, before evicting for inappropriate tenant behavior). *Cf. LeGare v. Cypress Point, LLC*, No. 3:08-cv-01591-JGC (N.D. Ohio Oct. 22, 2008) (settlement agreement and order: where tenant's sole source of income is disability benefits, tenant permitted to pay rent by first business day after third day of the month, without incurring a late fee);

Manor Park Apts., LLC v. Garrison, No. 2004-L-029, 2005 WL 940871 (Ohio App., 11th Dist., Apr. 22, 2005) (reversed judgment for unpaid rent on ground that tenant was entitled to accommodation to vacate in middle of one year lease, where unit caused tenant to suffer claustrophobia and landlord denied transfer request). *See generally Reid v. Plainsboro Partners, III*, Nos. 09AP-442,446, 2010 WL 3610931 (Ohio App., 10th Dist., Sept. 16, 2010) (R.C. 4112(I) retaliation claim for rent increase and eviction).

V. Lease, Procedures for Termination

“[A] landlord must strictly comply with the [termination procedure] terms of a lease before instituting forfeiture proceedings.” *Holmes v. Convenient Food Mart, Inc.*, No. 98-L-272, 2000 WL 263736, at *2 (Ohio App., 11th Dist., Mar. 3, 2000).

A lease may include procedures for a termination of the lease based on the tenant’s breach of the lease. *E.g., Holmes v. Convenient Food Mart, Inc.*, No. 98-L-272, 2000 WL 263736 (Ohio App., 11th Dist., Mar. 3, 2000) (notice of default and opportunity to cure); *Gallagher v. Borden, Inc.*, 84 Ohio App.3d 185, 616 N.E.2d 577 (10th Dist. 1992) (notice of default and opportunity to cure); *Sandefur Co. v. Jones*, 9 Ohio App.3d 85, 458 N.E.2d 390 (10th Dist. 1982) (notice of termination).

The landlord’s failure to comply strictly with those procedures is a defense to the eviction action. *Id.*

A lease may include a provision for its automatic renewal unless and until the landlord or tenant provides the other party with certain notice. *E.g., Frank v. Flynn*, 120 Ohio App. 361, 197 N.E.2d 657 (8th Dist. 1964).

Such provisions generally are enforceable.¹⁴⁴ *Id.* *See also* Note, Residential Renewal Leases and the Ohio Statute of Conveyances: Invalidation and Subsequent Treatment, 27 Clev. St. L. Rev. 231 (1978) (review of Ohio case law on automatic renewal provisions and on the relationship between such provisions and the statute of conveyances).¹⁴⁵

A lease may include a tenant option to renew for a specified period of time. *In re Kindinger*, 219 B.R. 214, 216-17 (Bankr. N.D. Ohio 1998) (applying Ohio law). When

¹⁴⁴ For a discussion on renewal provisions in a lease, see Section VII.J, below.

¹⁴⁵ The relationship between automatic renewal provisions and the statute of conveyances is also discussed in Section XXII.A.1, below.

two or more tenants are parties to a lease that gives the tenants an option to renew, the option may not be exercised by only one of the tenants. *L & H Realty Co. v. Oberholtz*, 65 Ohio App.2d 279, 418 N.E.2d 401 (9th Dist. 1979).

However, if a lease with a fixed term includes neither a notice of default provision nor a renewal provision, the procedural requirements for the landlord to terminate the tenancy and commence an eviction action are limited. During the term of the lease, with one exception,¹⁴⁶ prior notice to the tenant is not required to effect a forfeiture of the lease. R.C. 1923.02(A)(9).¹⁴⁷ At the expiration of the term of the lease, the lease automatically terminates, without any notice. *Gladwell v. Holcomb*, 60 Ohio St. 427, 54 N.E. 473 (1899). Upon the forfeiture or expiration of the lease, the only notice requirement for commencing the eviction action is the R.C. 1923.04 notice to vacate (see Section I.C.1.a, above).

W. Lease, Non-Material Breach

A lease is a contract and, therefore, is subject to the traditional rules governing contract interpretation. See Section VII.A, below.

Under “common contract rules a party will not be found to have breached a contract so long as that party is in substantial compliance with the agreement.” *Moonlight Mobile Home Parks, Inc. v. Eichner*, No. L-93-028, 1993 WL 434584, at *5 n.2 (Ohio App., 6th Dist., Oct. 29, 1993). See also *Ohio Farmers Ins. Co. v. Cochran*, 104 Ohio St. 427, 427, 135 N.E. 537 (1922) (“merely nominal, trifling, or

¹⁴⁶ The exception arises when the forfeiture is based on conduct of the tenant that violates both a lease provision and an R.C. 5321.05 provision that materially affects health and safety. In such cases, the thirty-day notice and cure period of R.C. 5321.11 applies. When the forfeiture is based on conduct of the tenant that violates the lease but not an R.C. 5321.05 provision that materially affects health and safety, the thirty-day notice and cure period of R.C. 5321.11 does not apply. For a discussion on these R.C. 5321.05, 5321.11 issues, see Section I.D.2, above.

¹⁴⁷ “Pursuant to R.C. 1923.02(A)(9), a forcible entry and detainer proceeding can be had against ‘tenants who have breached an obligation imposed upon them by a written rental agreement.’ The statute empowers landlords to regain possession of their property upon a tenant’s breach of the rental agreement.” *Dennis v. Morgan*, 89 Ohio St.3d 417, 418, 732 N.E.2d 391 (2000). R.C. 1923.02(A)(9) seems to supplant the common law rule that permits forfeiture only if and to the extent that the lease so provides. But see *Berkacs v. Perkins*, 165 Ohio App.3d 576, 579, 847 N.E.2d 481 (6th Dist. 2006) (“Appellant’s life lease with appellee did not contain a provision for forfeiture as a remedy for breach of the terms of the lease. Therefore, we find that forfeiture was not an available remedy to appellant”).

technical departures are not sufficient to breach the contract”); *Kersh v. Montgomery Developmental Ctr., Etc.*, 35 Ohio App.3d 61, 62, 519 N.E.2d 665 (10th Dist. 1987) (“default by a party who has substantially performed does not relieve the other party from performance”).

This contract principle has long been applied to leases in Ohio. *E.g.*, *Denison W. Twenty-Fifth St. Improvement Co. v. Great Atl. & Pac. Tea Co.*, 46 Ohio Law Abs. 246, 69 N.E.2d 79 (Ohio App., 8th Dist., 1946).

A landlord may evict a tenant for a breach of a lease only if the breach is material. *Moonlight Mobile Home Parks, Inc. v. Eichner*, No. L-93-028, 1993 WL 434584, at *5 n.2 (Ohio App., 6th Dist., Oct. 29, 1993); *ACME Precision Bldg., Ltd. v. Dayton Forging & Heat Treating, Inc.*, 23 B.R. 79, 83-84 (Bankr. S.D. Ohio 1982) (applying Ohio law); *Fitzpatrick Realty v. Wilkey*, No. 78-CVG-8102 (Ohio Mun., Dayton, Nov. 17, 1978).

A landlord may not evict a tenant for an insignificant or a hypertechnical breach of the lease. *ACME Precision Bldg., Ltd. v. Dayton Forging & Heat Treating, Inc.*, 23 B.R. 79, 83-84 (Bankr. S.D. Ohio 1982) (applying Ohio law).

X. Lease, Ambiguous Forfeiture Provision

A lease is a contract and, therefore, is subject to the traditional rules governing contract interpretation. See Section VII.A, below.

When the language of a forfeiture provision in a lease is ambiguous, a court is required to construe it against the party who was responsible for drafting it. *Bevy's Dry Cleaners & Shirt Laundry, Inc. v. Streble*, 2 Ohio St.2d 250, 256, 208 N.E.2d 528 (1965); *Sholiton Indus., Inc. v. Royal Arms, Ltd.*, No. 17480, 1999 WL 355898, at *6 (Ohio App., 2nd Dist., June 4, 1999); *McCloy v. Hamilton County Bd. of Elections*, 130 Ohio App.3d 621, 625, 720 N.E.2d 954 (1st Dist. 1998); *GMS Mgmt. Co. v. Seminaro*, No. 63007, 1993 WL 277073, at *3 (Ohio App., 8th Dist., July 22, 1993); *Cincinnati Metro. Hous. Auth. v. McCollum*, 45 Ohio App.2d 197, 200, 341 N.E.2d 857 (1st Dist. 1975).

Likewise, when the punctuation of a forfeiture provision in a lease is ambiguous, a court is required to construe it against the party who was responsible for drafting it. *Farrell v. Deuble*, 175 Ohio App.3d 646, 651, 888 N.E.2d 514 (9th Dist. 2008); *Mandat v. Reinecker's Bakery*, No. 16241, 1993 WL 526653, at *3 (Ohio App., 9th Dist., Dec. 15, 1993); *Canady v. Cen. Benefits Mut. Ins. Co.*, 71 Ohio App.3d 363, 367, 594 N.E.2d 37 (10th Dist. 1991).

Therefore, with respect to most residential leases, any ambiguous forfeiture provision must be construed against the landlord, since the landlord typically is the party responsible for drafting it.

“Language [in a lease] is ambiguous if it is reasonably susceptible of two or more constructions.” *McClore v. Hamilton County Bd. of Elections*, 130 Ohio App.3d 621, 625, 720 N.E.2d 954 (1st Dist. 1998). *Accord Krantz v. Pahnke*, No. 2021-CA-0043, 2022 WL 39486, ¶ 50 (Ohio App., 5th Dist., Jan. 5, 2022).

Y. Lease, Unconscionable Provision, R.C. 5321.14

Under R.C. 5321.14, any unconscionable provision in a residential lease is unenforceable. See Section VII.K.1, below.

Therefore, a defense to an eviction action is that the lease provision on which the landlord relies to bring the action is unconscionable. *E.g., Hi-Land Terrace, Inc. v. Dinwiddie*, No. 546, 1985 WL 6560 (Ohio App., 4th Dist., Mar. 1, 1985) (lease provision requiring registration of and authorization for overnight guests); *Fitzpatrick Realty v. Wilkey*, No. 78-CVG-8102 (Ohio Mun., Dayton, Nov. 17, 1978) (lease provision granting landlord right to declare forfeiture of lease for any tenant breach of the lease, however slight); *Heritage Hills, Ltd. v. Smith*, No. 78-CVG-268 (Ohio Mun., Chillicothe, May 8, 1978) (lease provision requiring registration of overnight guests).

Z. Lease, Landlord Prevents Performance

“Non-performance of a promise or condition in a lease is excused where performance is prevented by the other party to the lease.”¹⁴⁸ *Prof'l Invs. of Am., Inc. v. Ross*, No. 44540, 1982 WL 2579, at *2 (Ohio App., 8th Dist., Dec. 9, 1982). *Accord Gary Crim, Inc. v. Rios*, 114 Ohio App.3d 433, 436, 683 N.E.2d 378 (7th Dist. 1996); *Ambrosia Coal & Constr. Co. v. C.B.G., Inc.*, No. 94-CA-199, 1996 WL 242915, at *3 (Ohio App., 7th Dist., May 9, 1996); *Greenbriar Estates v. Eberle*, 130 Ohio Misc.2d 11, 15, 824 N.E.2d 172 (Ohio Mun., Clermont Cty., 2005). See also *Barnes v.*

¹⁴⁸ This implements a general contract principle – Restatement (First) of Contracts, § 295 (1932) – to which Ohio adheres. *E.g. Mortgage Network, Inc. v. AmeriBanc Mortgage Lending, L.L.C.*, 177 Ohio App.3d 733, 741, 895 N.E.2d 917 (10th Dist. 2008); *Ruddock v. Cunningham*, 43 Ohio App.3d 146, 149, 539 N.E.2d 1141 (6th Dist. 1987).

Welborn, No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005) (counterclaim for unpaid rent, after wrongful eviction).

This rule has been a defense in eviction actions for nonpayment of rent. One example is where the landlord refuses a timely and full payment of rent. See Section II.J, above. Another example is where the landlord sets up a system for rent payments from a financial institution (using the tenant's direct deposit of benefit payments) but fails to inform the financial institution of the tenant's rent increase. *Gary Crim, Inc. v. Rios*, 114 Ohio App.3d 433, 683 N.E.2d 378 (7th Dist. 1996).

This rule should likewise be a defense in eviction actions for other grounds, if the landlord's action prevented the tenant from complying with the lease requirement.

AA. Repayment Agreement, Contract of Adhesion

A contract of adhesion is "a standardized form contract prepared by one party, and offered to the weaker party, usually a consumer, who has no realistic choice as to the contract terms. See Black's Law Dictionary (8th Ed. 2004) 342." *Taylor Bldg. Corp. of Am. v. Benfield*, 117 Ohio St.3d 352, 363, 884 N.E.2d 12 (2008). *Accord Worldwide Asset Purchasing, L.L.C. v. Easterling*, 186 Ohio App.3d 478, 481 n.1, 928 N.E.2d 1148 (10th Dist. 2009); *W.K. v. Farrell*, 167 Ohio App.3d 14, 25, 853 N.E.2d 728 (2nd Dist. 2006).

"[A] contract of adhesion is not in all instances unconscionable." *Taylor Bldg. Corp. of Am. v. Benfield*, 117 Ohio St.3d 352, 363, 884 N.E.2d 12 (2008). *Accord Bohl v. Hauke*, 180 Ohio App.3d 526, 532-33, 906 N.E.2d 450 (4th Dist. 2009).

A contract of adhesion is unenforceable if the party challenging it can prove "that the agreement is both procedurally and substantively unconscionable." *Taylor Bldg. Corp. of Am. v. Benfield*, 117 Ohio St.3d 352, 359, 884 N.E.2d 12 (2008). *Accord W.K. v. Farrell*, 167 Ohio App.3d 14, 25, 853 N.E.2d 728 (2nd Dist. 2006).

"Substantive unconscionability exists when the contract terms are determined to be commercially unfair and unreasonable." *W.K. v. Farrell*, 167 Ohio App.3d 14, 25, 853 N.E.2d 728 (2nd Dist. 2006).

"Procedural unconscionability, on the other hand, exists when it is determined that there was no voluntary meeting of the minds by the parties to the contract under circumstances particular to that contract. *Id.* at 25.

Therefore, a contract of adhesion may be unenforceable if the less advantaged

party proves: “(1) that the contract terms are one-sided or unreasonably favorable to the other party, (2) that disparity between the parties’ bargaining power denies the less advantaged party meaningful choice in accepting the terms of the contract, and (3) that the less advantaged party cannot obtain the desired product or service except by acquiescing in the contract.” *Id.* at 25.

When an eviction action is based on the tenant’s breach of a repayment agreement, and the repayment agreement is a contract of adhesion and unconscionable, a defense to the eviction action may be that the repayment agreement is unenforceable. *E.g.*, *Lorain Metro. Hous. Auth. v. Jennings*, No. 05-CVG-01669 (Ohio Mun., Lorain, Oct. 18, 2006).

In *Jennings*, the repayment agreement required the tenant to pay \$145.15 per month, for 24 months, for fire damage to the dwelling unit. The tenant’s total income was \$25 per month – a monthly gift from his brother to enable him to pay his \$8.00 per month rent. There was no evidence that the tenant had started the fire or was otherwise responsible for it. The court held that the repayment agreement was unenforceable as a contract of adhesion.

BB. Equity

1. Overview

It has long been the rule that “[e]quity abhors a forfeiture [of a leasehold] and will only decree it when such relief is clearly required.”¹⁴⁹ *Whitmore v. Meenach*, 33 Ohio Law Abs. 95, 99, 33 N.E.2d 408 (Ohio App., 2nd Dist., 1940). *Accord Erie Metroparks Bd. of Comm’rs v. Key Trust Co. of Ohio, N.A.*, 145 Ohio App.3d 782, 788, 764 N.E.2d 509 (6th Dist. 2001); *Galier v. Feder Pontiac, Inc.*, No. 56233, 1989 WL 142397, at *4 (Ohio App., 8th Dist., Nov. 22, 1989); *Zanetos v. Sparks*, 13 Ohio App.3d 242, 244, 468 N.E.2d 938 (10th Dist. 1984).

This rule applies to a forfeiture of a residential lease as well as a commercial lease. *Cincinnati Metro. Hous. Auth. v. Harris*, Nos. C-820540, 820541, 1983 WL 8893, at *2 n.3 (Ohio App., 1st Dist., June 15, 1983).

“The trial court, within its discretion, is entitled to weigh all equitable considerations in determining whether a forfeiture is to be declared.” *S. Hotel Co. v.*

¹⁴⁹ R.C. 1901.18(C) confers upon municipal courts jurisdiction to hear this equity defense. See Section I.A.4, above, and Section XX.C.2, below.

Miscott, 44 Ohio App.2d 217, 222, 337 N.E.2d 660 (10th Dist. 1975). *Accord Galier v. Feder Pontiac, Inc.*, No. 56233, 1989 WL 142397, at *3-4 (Ohio App., 8th Dist., Nov. 22, 1989); *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882, at *3 (Ohio App., 4th Dist., July 3, 1986).

“When a party raises an equitable defense, it is the responsibility of the court to weigh the equitable considerations before imposing a forfeiture.”¹⁵⁰ *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 436, 597 N.E.2d 554 (2nd Dist. 1992). *Accord Takis, L.L.C. v. C.D. Moreland Props., Inc.*, 180 Ohio App.3d 243, 250-51, 905 N.E.2d 204 (10th Dist. 2008); *David v. Edwood Dev. Co.*, No. 19252, 2000 WL 46107, at *2 (Ohio App., 9th Dist., Jan. 12, 2000); *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456, at *5 (Ohio App., 2nd Dist., Feb. 19, 1999); *Urban Hollow Apts. v. Johnson*, No. 93-APG10-1495, 1994 WL 232274, at *2-3 (Ohio App., 10th Dist., May 26, 1994).

“This is a fact specific analysis and ‘no one equitable maxim provides a complete answer’ to every case.” *Esho v. Shamoon, Inc.*, No. L-06-1189, 2007 WL 949756, ¶ 13 (Ohio App., 6th Dist., Mar. 30, 2007) (quoting *S. Hotel Co. v. Miscott, Inc.*, 44 Ohio App.2d 217, 222, 337 N.E.2d 660 (10th Dist. 1975)). *Accord Portage Metro. Hous. Auth. v. Brumley*, No. 2008-P-0019, 2008 WL 4693200, ¶ 93 (Ohio App., 11th Dist., Oct. 24, 2008).

If a trial court fails to consider a tenant’s equity defense, when entering a judgment for the landlord, the appellate court, as a matter of law, should reverse and remand the trial court decision. *E.g., Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 435-36, 597 N.E.2d 554 (2nd Dist. 1992).

“Once the trial court has weighed the equitable considerations and reached a decision on whether to declare a forfeiture, appellate review is limited to a determination of whether the lower court abused its discretion in its weighing of the equities.” *BWS Props. v. LaSalle, Inc.*, No. 51119, 1986 WL 9110, at *2 (Ohio App., 8th Dist., Aug. 21, 1986). *Accord Showe Mgmt. Corp. v. Hazelbaker*, No. CA2005-

¹⁵⁰ The equitable considerations may include, among other things: (1) the lack of evidence that the tenant acted maliciously or willfully, (2) where nonpayment of rent (or a charge) is at issue, the tenant’s tender of the unpaid rent (or charge) as of the time of trial, (3) the hardship on the tenant if an eviction is ordered, and, (4) where the tenant resides in assisted housing (see Section III.A, below), the tenant’s substantial interest in maintaining the rent subsidy. *Urban Hollow Apts. v. Johnson*, No. 93-APG10-1495, 1994 WL 232274 (Ohio App., 10th Dist., May 26, 1994); *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 597 N.E.2d 554 (2nd Dist. 1992).

11-031, 2006 WL 1976760, ¶ 25 (Ohio App., 12th Dist., July 17, 2006); *Chillicothe Metro. Hous. Auth. v. Anderson*, No. 1406, 1988 WL 69118, at *8 (Ohio App., 4th Dist., June 28, 1988); *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882, at *3 (Ohio App., 4th Dist., July 3, 1986).

“[A] reviewing court cannot substitute its view of the equities for that of the trial court when the determination of the trial court is supported by sufficient evidence.” *Galier v. Feder Pontiac, Inc.*, No. 56233, 1989 WL 142397, at *3 (Ohio App., 8th Dist., Nov. 22, 1989). *Accord Southgate Woods Apts. v. Lanier*, No. L-83-189, 1983 WL 7006 (Ohio App., 6th Dist., Nov. 25, 1983) (dissenting opinion).

Notwithstanding this standard of review, appellate courts have reversed trial court decisions on a tenant’s equity defense.

They have reversed trial court decisions denying the equity defense. *E.g.*, *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456 (Ohio App., 2nd Dist., Feb. 19, 1999) (blind tenant’s failure to recertify timely due to housing authority’s failure to provide notice in an accessible format and its refusal to provide tenant with any auxiliary aid); *Ward v. Washington Distribs., Inc.*, 67 Ohio App.2d 49, 425 N.E.2d 420 (6th Dist. 1980) (tenant’s failure to exercise timely an option to renew the lease, as a result of an honest, good faith mistake). *See also Urban Hollow Apts. v. Johnson*, No. 93-APG10-1495, 1994 WL 232274 (Ohio App., 10th Dist., May 26, 1994) (remand to reconsider equity defense, relative to nonpayment of \$239.66 repair charge, where trial court “made a conclusory assertion that defendant had not established grounds for equitable relief, [but] the findings of fact do not support that conclusion”).

They also have reversed trial court decisions granting the equity defense. *E.g.*, *Mecca Mgmt., Inc. v. Gouse*, No. L-97-1185, 1997 WL 728635 (Ohio, App., 6th Dist., Nov. 21, 1997); *Hilltop Vill. v. West*, No. L-88-120, 1989 WL 10277 (Ohio App., 6th Dist., Feb. 10, 1989).

The equity defense has been applied in virtually all types of eviction actions.¹⁵¹ Its application in eviction actions for nonpayment (or late payment) of rent is discussed below. Its application in eviction actions against project-based assisted housing tenants

¹⁵¹ Only one court decision has placed any limit on the category of eviction actions to which the equity defense may be applied. The decision is *Dayton Metro. Hous. Auth. v. Kilgore*, 194 Ohio App.3d 767, 958 N.E.2d 187 (2nd Dist. 2011) (2-1 decision). The *Kilgore* majority held that the equity defense does not apply in eviction actions when a “positive statute” is the basis for the eviction claim. The *Kilgore* decision, and related “innocent tenant” court decisions that rely on the equity defense, are discussed in Section III.G.8.d, below.

is discussed in Section II.BB.2, below. Its application in eviction actions against manufactured home park residents is discussed in Section II.BB.3, below.

It also has been applied in: (1) eviction actions for failing to maintain the premises, *e.g.*, *Galier v. Feder Pontiac, Inc.*, No. 56233, 1989 WL 142397 (Ohio App., 8th Dist., Nov. 22, 1989); *Newman Club of Columbus v. Higgy*, 13 Ohio App. 227 (10th Dist. 1920); and (2) eviction actions for failing to renew timely a lease, *e.g.*, *Ward v. Washington Distribs., Inc.*, 67 Ohio App.2d 49, 425 N.E.2d 420 (6th Dist. 1980).

The equity defense is often asserted in eviction actions for nonpayment (or late payment) of rent. “A lease will not be forfeited for mere non-payment of rent where the equities of the parties can be otherwise adjusted.” *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882, at *2 (Ohio App., 4th Dist., July 3, 1986). *Accord Zanetos v. Sparks*, 13 Ohio App.3d 242, 244, 468 N.E.2d 938 (10th Dist. 1984). “It is well established law in Ohio that a clause in a lease providing for a forfeiture for non-payment of rent is only for the purpose of securing payment of the rent” *Nusser*, 1986 WL 7882, at *2. *Accord Zanetos*, 13 Ohio App.3d at 244.

Therefore, a tenant’s tender of the unpaid rent, as of the time of trial, may enable the tenant to succeed on the equity defense.¹⁵² *E.g.*, *BWS Props. v. LaSalle, Inc.*, No. 51119, 1986 WL 9110 (Ohio App., 8th Dist., Aug. 21, 1986); *Zanetos v. Sparks*, 13 Ohio App.3d 242, 468 N.E.2d 938 (10th Dist. 1984); *S. Hotel Co. v. Miscott*, 44 Ohio App.2d 217, 337 N.E.2d 660 (10th Dist. 1975); *Peppe v. Knoepp*, 103 Ohio App. 223, 140 N.E.2d 26 (10th Dist. 1956); *Newman Club of Columbus v. Higgy*, 13 Ohio App. 227 (10th Dist. 1920).¹⁵³ *But see Winchester Station Coop., Inc. v. Walters*, No. 96-APG02-204, 1996 WL 465240 (Ohio App., 10th Dist., Aug. 13, 1996) (tendered rent, but not court costs and attorney’s fees, for which tenant was liable under the cooperative agreement); *Meyer v. Carmichael*, 29 Ohio App.2d 183, 279 N.E.2d 622 (1st Dist. 1971).

Likewise, if a landlord refuses to accept a third-party’s tender of the tenant’s full rental arrearage, before the time of trial, the tenant may prevail in the equity defense.

¹⁵² The list of court decisions in this paragraph are eviction actions against private housing or commercial tenants. For court decisions in eviction actions against project-based assisted housing tenants, see Section II.BB.2, below. For court decisions in eviction actions against manufactured home park residents, see Section II.BB.3, below.

¹⁵³ See also *Kamvouris v. Banks*, No. 00-CVG-1586 (Ohio Mun., Cuyahoga Falls, July 24, 2000); *DeVore v. Higgins*, No. 99-CVG-06094 (Ohio Mun., Akron, Aug. 24, 1999).

E.g., Liberty Rental Props. LLC v. Rohr, No. 21-CVG-00705 (Ohio Mun., Akron, May 3, 2021) (equity defense applied where landlord refused rental assistance funds from Summit County Cares program). *See also 16 Apts. Assocs., Inc. v. Lewis*, 24 Misc.3d 127A, 889 N.Y.S.2d 884 (N.Y. App. Div. 2009) (landlord did not have the right to refuse checks offered on tenant's behalf by the Department of Social Services and by a charitable organization – Westchester Residential Opportunities).

However, if the tenant's nonpayment (or late payment) of rent is willful or malicious, equity will not relieve a forfeiture. *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882, at *2 (Ohio App., 4th Dist., July 3, 1986); *Zanetos v. Sparks*, 13 Ohio App.3d 242, 244, 468 N.E.2d 938 (10th Dist. 1984). One court decision found "willful" late payment based on: (1) the tenant's knowledge of the relevant eviction policy (three late payments within any twelve-month period) and, (2) with respect to the third late payment, the tenant's negligent entrustment of a third party to deliver the payment, instead of placing it in the landlord's mailbox, when she attended a family funeral. *Winchester Station Coop., Inc. v. Walters*, No. 96-APG02-204, 1996 WL 465240 (Ohio App., 10th Dist., Aug. 13, 1996).

2. Project-Based Assisted Housing

The equity defense is often asserted by tenants who reside in project-based assisted housing.¹⁵⁴ A strong equitable consideration against a forfeiture of their tenancy is that, if a forfeiture is granted, the tenant loses a tenancy with a subsidized rent and with a lease term that the tenant may renew continually and the landlord must renew absent good cause to terminate the tenancy. *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882, at *3 (Ohio App., 4th Dist., July 3, 1986); *Cincinnati Metro. Hous. Auth. v. Harris*, Nos. C-820540, 820541, 1983 WL 8893, at *3 (Ohio App., 1st Dist., June 15, 1983). *See also Urban Hollow Apts. v. Johnson*, No. 93-APG10-1495, 1994 WL 232274, at *3 (Ohio App., 10th Dist., May 26, 1994); *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 436, 597 N.E.2d 554 (2nd Dist. 1992).

Under this defense, tenants who reside in project-based assisted housing have prevented a forfeiture of their tenancy in a variety of circumstances, including those set forth below.

¹⁵⁴ For the definition of "project-based assisted housing," see note 165, below.

- (1) Nonpayment or late tender of rent.¹⁵⁵ *E.g.*, *Cincinnati Metro. Hous. Auth. v. Brown*, No. C-010459 (Ohio App., 1st Dist., Feb. 27, 2002) (late tender of rent); *Heritage Hills, Ltd. v. Nusser*, No. 1183, 1986 WL 7882 (Ohio App., 4th Dist., July 3, 1986) (late tender of rent due to reduced income and effective date of rent recertification); *Stark Metro. Hous. Auth. v. Allen*, No. 2016-CVG-2468 (Ohio Mun., Canton, June 21, 2016) (PHA confusion as to the amount of rent due); *Ottawa Cove Apts. II v. Butts*, No. CVG-09-22798 (Ohio Mun., Toledo, Hous. Div., Feb. 11, 2010) (late tender of rent due to caring for ailing mother out of town); *Morning Star Towers v. Robinson*, No. 06-CVG-26743 (Ohio Mun., Cleveland, Hous. Div., Jan. 11, 2007) (tenant with disability and funds to pay rent arrearage at trial); *Insignia Mgmt. Group v. Tate*, No. 94-CVG-6277 (Ohio Mun., Canton, Jan. 20, 1995) (late tender of rent); *Columbus Metro. Hous. v. Wagner*, No. M9410-CVG-31661 (Ohio Mun., Franklin Cty., Dec. 5, 1994) (late tender of rent due to uncle's death); *Shiloh Grove Ltd. P'ship v. Ransom*, No. M9408-CVG-025818 (Ohio Mun., Franklin Cty., Oct. 12, 1994) (late tender of rent due to mental disability); *Columbus Metro. Hous. Corp. v. Crawley*, No. M9305-CVG-015704 (Ohio Mun., Franklin Cty., Aug. 2, 1993) (late tender of rent due to son's theft of the rent money); *Jenkins v. Rung*, No. 93-CVGT-601 (Ohio Mun., Miami Cty., July 5, 1993) (late tender of rent due to confusion over whom to pay); *M.T.I. Mgmt. v. Bell*, No. 89-CV-05464 (Ohio Mun., Hamilton Cty., July 18, 1991) (late tender of rent with late charge); *Heritage Hills, Ltd. v. Tyler*, No. 89-CVG-85 (Ohio Mun., Chillicothe, Mar. 17, 1989) (nonpayment of rent due to loss of employment); *Ecco Manor, Ltd. v. Pass*, No. M88-CVG-42788 (Ohio Mun., Franklin Cty., Feb. 8, 1989) (late tender of rent); *Indian Valley Apts. v. Kameroner*, No. R88-CVG-0978 (Ohio Mun., Portage Cty., Sept. 26, 1988) (late tender of rent); *Clinton Metro. Hous. Auth. v. Arrington*, No. 88-CVG-139 (Ohio Mun., Wilmington, May 19, 1988) (late tender of rent due to late receipt of ADC check, which was not tenant's fault); *Columbia-Athens, Ltd. v. Bagley*, No. CIG-87-2-23 (Ohio Mun., Athens Cty., July 1, 1987) (nonpayment of rent due to theft of cash from the rental unit). *But see Hilltop Vill. v. West*, No. L-88-120, 1989 WL 10277 (Ohio App., 6th Dist., Feb. 10, 1989); *Marshall Plaza v. Watkins*, No. 4161, 1987 WL 12113 (Ohio App., 9th Dist., June 3, 1987); *Southgate Woods Apts. v. Lanier*, No. L-83-189, 1983 WL 7006 (Ohio App., 6th

¹⁵⁵ When an assisted housing tenant's nonpayment or late tender of rent is due to circumstances beyond the tenant's control, the tenant also may have a legal defense, based on the absence of good cause for the landlord's termination of the tenancy. See Section III.G.1.a, below.

Dist., Nov. 25, 1983); *Capital Park Apts. v. Funderburke*, No. M90-CVG-18599 (Ohio Mun., Franklin Cty., July 20, 1990).

- (2) Nonpayment or late payment of charges. *E.g.*, *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 597 N.E.2d 554 (2nd Dist. 1992) (nonpayment of \$907 charge for removing graffiti painted by tenant's son, where tenant disputed the amount of the charge);¹⁵⁶ *Lovett v. Brown*, No. 97-CVG-5586 (Ohio Mun., Akron, Aug. 20, 1997) (late payment of utility charges); *ABC Mgmt. Co. v. Young*, No. M9410-CVG-030140 (Ohio Mun., Franklin Cty., Nov. 9, 1994) (nonpayment of \$36.34 repair charge); *Sumner v. McKinley*, No. M9306-CVG-17388 (Ohio Mun., Franklin Cty., July 30, 1993) (nonpayment of \$20 charge for changing lock). *See also* *Urban Hollow Apts. v. Johnson*, No. 93-APG10-1495, 1994 WL 232274 (Ohio App., 10th Dist., May 26, 1994) (remand to reconsider equity defense, relative to nonpayment of \$239.66 repair charge).
- (3) Criminal activity of the tenant's child or guest. See the court decisions and discussion on "innocent tenants" in Sections III.G.8.d and III.G.8.e, below.
- (4) Recertification of income. *E.g.*, *Greene Metro. Hous. Auth. v. Manning*, No. 98-CA-55, 1999 WL 76456, at *5 (Ohio App., 2nd Dist., Feb. 19, 1999) (blind tenant's failure to recertify timely due to housing authority's failure to provide notice in an accessible format and its refusal to provide tenant with any auxiliary aid).
- (5) Damage to the premises. *E.g.*, *Akron Metro. Hous. Auth. v. Mayson*, No. 97-CVG-1293 (Ohio Mun., Cuyahoga Falls, May 5, 1998) (fire caused by tenant's daughter's use of candles during power outage; tenant recovering from surgery, offered to pay cost of repair, and, along with daughter, took fire safety classes).
- (6) Unauthorized occupant. *E.g.*, *Bella Vista Apts. v. Herzner*, 125 Ohio Misc.2d 1, 796 N.E.2d 593 (Ohio Mun., Clermont Cty., 2003) (unauthorized occupancy by new wife and her three children); *Columbus Metro. Hous. Auth. v. Johnson*, No. M9201-CVG-00579 (Ohio Mun., Franklin Cty., Feb. 13, 1992) (unauthorized occupancy for

¹⁵⁶ "Generally, courts, in balancing the equities, will relieve a tenant from the harsh consequences of a forfeiture where the payment of money damages will adequately compensate the landlord." *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 436, 597 N.E.2d 554 (2nd Dist. 1992). "That is true even where the forfeiture is requested because of damages done by a tenant's children." *Id.*

fourteen days by friend escaping from domestic dispute).

Four appellate court decisions that upheld the denial (or denied) the equity defense of project-based subsidized housing tenants also provide some helpful guidance.

First, *Portage Metro. Hous. Auth. v. Brumley*, No. 2008-P-0012, 2008 WL 4693200 (Ohio App., 11th Dist., Oct. 24, 2008), upheld the trial court's denial of the equity defense where, at meetings before the trial, the PHA had offered to permit the tenant to stay, if she removed the offending household member (her son) from her lease. The tenant refused this offer consistently, and refused to cooperate with the PHA, until after the trial had commenced.

Second, *Schroeder Co. v. Coates*, 172 Ohio App.3d 254, 874 N.E.2d 832 (6th Dist. 2007), upheld the trial court's denial of the equity defense where the tenant did not tender the rent payment until eight days after the notice of termination period had expired and never offered an excuse for the nonpayment of rent.

Third, *Mecca Mgmt., Inc. v. Gouse*, No. L-97-1185, 1997 WL 728635 (Ohio, App., 6th Dist., Nov. 21, 1997), reversed a trial court decision granting the equity defense where the emergency assistance needs of the tenant's mother were only relevant to one of the three months of unpaid rent.

Fourth, *Hilltop Vill. v. West*, No. L-88-120, 1989 WL 10277 (Ohio App., 6th Dist., Feb. 10, 1989), reversed a trial court decision granting the equity defense where the tenant lacked the requisite "clean hands" because of her delay of 43 days in reporting an increase in income and because of her failure to pay any rent while she disputed the amount due.

In some eviction actions, especially those against project-based assisted housing tenants, the facts may give rise to an argument that there was no material breach of the lease or, in the alternative, that the court should exercise its equity power to relieve the tenant from forfeiture of the lease, even if a material breach occurred. If a jury is hearing the eviction action, the issue of whether a material breach occurred is a fact question for the jury to decide, whereas the issue of whether equity should relieve a forfeiture is a matter for the judge to decide. See *Ashmore v. Eversole*, No. 15672, 1996 WL 685568, at *4 (Ohio App., 2nd Dist., Nov. 29, 1996). See generally *Takis, L.L.C. v. C.D. Moreland Props., Inc.*, 180 Ohio App.3d 243, 905 N.E.2d 204 (10th Dist. 2008) (equity claim seeking rescission of lease).

A judge may be less inclined to allow the tenant to maintain possession on equity grounds following a jury finding of good cause for eviction. See, e.g., *Cincinnati*

Metro. Hous. Auth. v. Foster, No. 88-CV-05432 (Ohio Mun., Hamilton Cty. Aug. 31, 1988). Therefore, when a tenant intends to assert a legal defense and an equity defense, depending on the facts and judicial assignment of the case, it may be more advantageous for the tenant not to demand a jury or to waive the tenant's jury demand.

3. Manufactured Home Park

The equity defense is often asserted by residents of manufactured home parks. Two strong equity considerations against a forfeiture of their tenancies exist in virtually every case. One is that, if a forfeiture is granted, the resident loses the resident's manufactured home (if it cannot reasonably be moved) or incurs significant hardship and cost in moving the manufactured home. The other is that, if a forfeiture is granted, the resident loses a tenancy that the resident may renew continually and the park operator must renew absent good cause. See Section IV.C.1, below.

Eviction actions for nonpayment of rent in which a manufactured home park resident prevailed on the equity defense include: *Kason Manor Mobile Home Park v. Payne*, No. 09-CVG-01602 (Ohio Mun., Licking Cty., Aug. 18, 2009) (park resident for 27 years, and tendered all unpaid rent and late fees prior to the eviction hearing); *Pikewood Manor v. Bellamy*, 02-CVG-03259 (Ohio Mun., Elyria, Sept. 11, 2003) (left job to care for disabled child, Oct. rent unpaid due to utility payment, park operator refused Oct. 12 tender of full rent (voucher), widow's benefits began, rent deposited with court); *Westgate Vill. Mobile Home Park v. Fetro*, No. CVG-950312, 1995 WL 907587 (Ohio Mun., Fostoria, Sept. 27, 1995) (park resident for 11 years, history of timely rent payments, one month rent unpaid, court allows tenant to pay arrearage and late fee to stay); *Zane Vill. Mobile Home Park v. Hedrick*, No. 95-CVG-536 (Ohio Mun., Chillicothe, Sept. 21, 1995) (unpaid May rent, park operator refused May 15 tender of full rent, SSI and disability income, domestic violence, protective order, psychiatric care).

CC. Real Party in Interest

When the plaintiff in an eviction action is not the owner of the premises, the plaintiff may fail to meet the applicable real party in interest test.

Generally, the appellate courts have determined that, for eviction actions, the real party in interest test is the R.C. 1923.01(C)(2) definition of landlord. *Hardin v. Hardin*, No. E-18-001, 2019 WL 259092 (Ohio App., 6th Dist., Jan. 18, 2019); *Adlaka v. Quaranta*, No. 09-MA-134, 2010 WL 5550656 (Ohio App., 7th Dist., Dec. 16, 2010);

Alex-Bell Oxford Ltd. P'ship v. Woods, No. 16038, 1998 WL 289028 (Ohio App., 2nd Dist., June 5, 1998); *KDI Mgmt. Servs., Inc. v. Enerchem, Inc.*, No. C-960587, 1997 WL 119898 (Ohio App., 1st Dist., Mar. 19, 1997); *Stout v. Duvall*, No. 95-CA-0077, 1996 WL 409217 (Ohio App., 2nd Dist., June 28, 1996); *Shurtz Mgmt., Inc. v. Perry*, No. 93-CA-04, 1993 WL 290001 (Ohio App., 5th Dist., July 26, 1993); *Oakbrook Realty Corp. v. Harris*, No. 89AP-819, 1991 WL 70146 (Ohio App., 10th Dist., Apr. 30, 1991); *Prebcor, Inc. v. Fogel*, No. CA86-04-009, 1986 WL 12099 (Ohio App., 12th Dist., Oct. 27, 1986); *J & E Mgmt., Inc. v. Wolf*, No. 35563, 1977 Ohio App. LEXIS 7324 (Ohio App., 8th Dist., Feb. 10, 1977).¹⁵⁷

Applying this real party in interest test, “courts have held that it is *not* required that the record title owner commence [the] action for forcible entry and detainer.” *Tucker v. Pfirsch*, No. 2014-CA-0036, 2014 WL 3540883, ¶ 21 (Ohio App., 5th Dist., July 16, 2014). “The forcible-entry-and-detainer provisions allow a *landlord*, not just an owner, to file an action.” *Id.*, ¶ 25.

Four appellate court decisions expressly hold that Civil Rule 17(A) does not apply to eviction actions and that the R.C. 1923.01(C)(2) definition of landlord applies in lieu of Civil Rule 17(A). *Hardin v. Hardin*, No. E-18-001, 2019 WL 259092 (Ohio App., 6th Dist., Jan. 18, 2019); *Adlaka v. Quaranta*, No. 09-MA-134, 2010 WL 5550656 (Ohio App., 7th Dist., Dec. 16, 2010); *AlexBell Oxford Ltd. P'ship v. Woods*, No. 16038, 1998 WL 289028 (Ohio App., 2nd Dist., June 5, 1998); *Oakbrook Realty Corp. v. Harris*, No. 89AP-819, 1991 WL 70146 (Ohio App., 10th Dist., Apr. 30, 1991). *See also* *KDI Mgmt. Servs., Inc. v. Enerchem, Inc.*, No. C-960587, 1997 WL 119898, at *2 (Ohio App., 1st Dist., Mar. 19, 1997) (“applicability of Civ.R. 17 ... to actions in forcible entry and detainer is questionable, [but] we need not reach that question”). *Hardin*, *Adlaka*, *Woods*, and *Harris* hold that Civil Rule 17(A) does not apply to eviction actions solely because Civil Rule 17(A) is inconsistent with the R.C. 1923.01(C)(2) definition of landlord.

Four appellate court decisions apply the R.C. 1923.01(C)(2) definition of landlord without any discussion of Civil Rule 17(A). *Stout v. Duvall*, No. 95-CA-0077, 1996 WL 409217 (Ohio App., 2nd Dist., June 28, 1996); *Shurtz Mgmt., Inc. v. Perry*, No. 93-CA-04, 1993 WL 290001 (Ohio App., 5th Dist., July 26, 1993); *Prebcor, Inc. v.*

¹⁵⁷ *See also* *Croxton v. Freisner*, 62 Ohio Misc.2d 513, 603 N.E.2d 1162 (Ohio Mun., Canton, 1992); *Katchmer v. Bishop*, No. 90-CVG-34263 (Ohio Mun., Cleveland, Hous. Div., Oct. 3, 1991); *Botnick Realty Co. v. Brown*, No. 91-CVG-5445 (Ohio Mun., Akron, Aug. 13, 1991).

Fogel, No. CA86-04-009, 1986 WL 12099 (Ohio App., 12th Dist., Oct. 27, 1986); *J & E Mgmt., Inc. v. Wolf*, No. 35563, 1977 Ohio App. LEXIS 7324 (Ohio App., 8th Dist., Feb. 10, 1977).

One appellate district refused to apply the R.C. 1923.01(C)(2) definition of landlord where the tenant had entered into a written lease and the plaintiff (who met the definition of landlord) had not executed the lease. *Ebbing v. Lawhorn*, No. CA2011-07-125, 2012 WL 2877434 (Ohio App., 12th Dist., July 16, 2012).

These explicit and implicit holdings that Civil Rule 17(A) does not apply to eviction actions seem to be erroneous for a two-fold reason.

First, the four court decisions that reference Civil Rule 17(A) (*Hardin*, *Adlaka*, *Woods*, and *Harris*) use an erroneous standard for determining whether Civil Rule 17(A) applies to eviction actions. Their erroneous standard is, if any conflict exists between an R.C. Chapter 1923 provision and a Civil Rule provision, the Civil Rule provision per se does not apply. This standard is erroneous for the reasons discussed in Section I.B, above, including especially note 4, above. Under the correct standard, when such conflicts exist, the Civil Rule provision does not apply to eviction actions only if its application would frustrate the summary nature of eviction proceedings. See Section I.B, above.

Second, under the correct standard, Civil Rule 17(A) applies to eviction actions. Civil Rule 17(A) simply defines the parties who may bring eviction actions. It does not affect in any way the time required to prosecute an eviction action and thus does not interfere with the summary nature of eviction proceedings. See generally *Steiner v. Nadal*, No. 91-CVG-8356 (Ohio Mun., Canton, Apr. 2, 1992) (applies Civil Rule 17(A) to an eviction action without any analysis as to why it applies).

If Civil Rule 17(A) applies to eviction actions, some non-owner property managers will meet its real party in interest test. A real party in interest under Civil Rule 17(A) includes “a party with whom or in whose name a contract has been made for the benefit of another.” Therefore, when a non-owner property manager signs a lease, as managing agent for the owner, the property manager meets the Civil Rule 17(A) real party in interest test. *Tishman Midwest Mgmt. Corp. of Ohio v. Hunt*, No. CA-10519, 1987 WL 28181, at *2 (Ohio App., 2nd Dist., Dec. 10, 1987).

If the landlord is a partnership, generally the managing partner may bring an eviction action against the tenant in the managing partner’s name, provided the managing partner is acting in a representative capacity on behalf of the partnership and this representative capacity is expressly indicated on the complaint. *Oda v. Davis*, 81

Ohio App.3d 555, 611 N.E.2d 933 (2nd Dist. 1992). *See also Holloway v. Wilson*, No. 99-CA-76, 2000 WL 1062327 (Ohio App., 2nd Dist., Aug. 4, 2000); *Reed v. BDS Holdings*, No. 14-92-41, 1993 WL 195072 (Ohio App., 3rd Dist., June 4, 1993).

DD. Fictitious Name Registration

R.C. 1329.10 bars any person doing business under a fictitious (or trade) name from commencing or maintaining an action in that name, unless the fictitious name has been registered with the Secretary of State in compliance with R.C. 1329.01. *Buckeye Foods v. Cuyahoga County Bd. of Revision*, 78 Ohio St.3d 459, 678 N.E.2d 917 (1997).

Therefore, if a landlord is doing business under a fictitious name that has not been properly registered, the landlord is barred from commencing or maintaining an eviction action. *Fisco v. Chisholm*, Nos. 52111,52112, 1987 WL 11193 (Ohio App., 8th Dist., May 7, 1987); *Oxford Square Apts. v. Nicholson*, No. 07-CVG-657 (Ohio County Ct., Tuscarawas Cty., Dec. 19, 2007); *Wee v. Lawrence*, No. 01-CV-15817 (Ohio Mun., Hamilton Cty., Oct. 1, 2001); *Alwood Enters. v. Vance*, No. 87-CVG-32 (Ohio Mun., Hillsboro, Oct. 21, 1987). *Cf. Ebner v. Caudill*, 93 Ohio App.3d 785, 639 N.E.2d 1231 (10th Dist. 1994) (action for collection of rent).

When a landlord owns and operates a rental property under a properly registered fictitious name, the landlord may bring, in either the landlord's name or the fictitious name, an eviction action (and monetary claims) against the tenant. *Woods v. Marciano*, 122 N.E.3d 633, 2018-Ohio-4324 (Ohio App., 8th Dist., 2018).

Similarly, R.C. 1777.04 bars any partnership transacting business under a fictitious name from commencing or maintaining an action in the partnership name, unless the name has been registered with the county recorder in compliance with R.C. 1777.02.

Therefore, if a landlord is a partnership transacting business under a fictitious name that has not been properly registered, the landlord is barred from commencing or maintaining an eviction action.¹⁵⁸ *See generally Dayton Sec. Assocs. v. Avuta*, 105 Ohio App.3d 559, 664 N.E.2d 954 (2nd Dist. 1995).

An issue under this defense is whether the R.C. 1329.10(B) bar against commencement of an action is violated where the fictitious-name plaintiff registers with the secretary of state during the pendency of the action – after the filing of the

¹⁵⁸ When a landlord is a trust, and not a partnership, the R.C. 1777.02 registration requirement does not apply. *DPS Trust v. Sherman*, No. 2001-L-133, 2002 WL 1750868 (Ohio App., 11th Dist., July 26, 2002).

case but before the date of final judgment. The case law is split on this issue. For the reasons discussed below, the better reasoned view is that the plaintiff cannot cure the violation during the pendency of the action.

R.C. 1329.10(B) “provides that an action may not be commenced or maintained *until* the name is registered.” *Frate v. Al-Sol, Inc.*, 131 Ohio App.3d 283, 287, 722 N.E.2d 185 (8th Dist. 1999). “R.C. 1329.10(B) ... provides expressly that such action may not be commenced ... until first complying with the licensing [registration] requirements.” *Nat’l Crime Reporting, Inc. v. McCord & Akamine, L.L.P.*, 177 Ohio App.3d 551, 555-56, 895 N.E.2d 255 (10th Dist. 2008).

A failure to register a fictitious name in compliance with R.C. 1329.10 (or R.C. 1777.02) “denies the user of [the] fictitious name the *capacity* to sue.”¹⁵⁹ *Frate*, 131 Ohio App.3d at 287. *Accord Nat’l Crime Reporting, Inc.*, 177 Ohio App.3d at 555-56.

Since R.C. 1329.10(B) denies the user of a fictitious name the capacity to sue, the controlling facts are those at the time of the commencement of the action. “Capacity to sue ‘refers to the eligibility of a person to commence an action.’” *Wanamaker v. Davis*, No. 2005-CA-151, 2007 WL 2405708, ¶ 43 (Ohio App., 2nd Dist., Aug. 24, 2007). *See, e.g., Nat’l Crime Reporting, Inc.*, 177 Ohio App.3d at 554 (“the trial court’s rationale for granting the dismissal was that at the time of the filing of the complaint, the plaintiff lacked the capacity to maintain an action in Ohio due to its failure to obtain a license pursuant to R.C. 1703.29”).

Therefore, any registration with the secretary of state after the commencement of the action is immaterial to the plaintiff’s capacity to sue.

However, in conflict with the foregoing analysis, the Eighth Appellate District has held that registration up to the date of final judgment cures the noncompliance that existed at the commencement of the action. *Dodd v. Keybank*, No. 85949, 2006 WL 62432 (Ohio App., 8th Dist., Jan. 12, 2006); *MBA Realty v. Little G, Inc.*, 116 Ohio App.3d 334, 688 N.E.2d 39 (8th Dist. 1996). *See also LAMMB Mgmt. v. Perkins*, No.

¹⁵⁹ Lack of capacity to sue is an affirmative defense. “Civ.R. 9(A) governs capacity [to sue]....Thus, Civ.R. 9(A) places the pleading burden upon a defendant to deny, by specific negative averment or with particularity, a plaintiff’s capacity to sue.” *Wanamaker v. Davis*, No. 2005-CA-151, 2007 WL 2405708, ¶ 43 (Ohio App., 2nd Dist., Aug. 24, 2007).

“Failure to raise the plaintiff’s lack of capacity to sue in the answer waives the issue.” *Frate v. Al-Sol, Inc.*, 131 Ohio App.3d 283, 287, 722 N.E.2d 185 (8th Dist. 1999). “The defense of lack of capacity to sue is typically waived when an answer only contains a general denial and when the defense is not raised by specific averment.” *Wanamaker*, 2007 WL 2405708, ¶ 43.

2006-CVG-27727 (Ohio Mun., Cleveland, Hous. Div., Dec. 13, 2006) (follows *Dodd* in eviction action).

The *Dodd* and *MBA Realty* interpretation of R.C. 1329.10(B) violates a fundamental rule of statutory construction, namely: “The entire statute is intended to be effective.” R.C. 1.47(B). *Accord D.A.B.E., Inc. v. Toledo-Lucas County Bd. of Health*, 96 Ohio St.3d 250, 256, 773 N.E.2d 536 (2002). By effectively limiting the scope of the prohibition to maintenance of an action, it renders inoperative the statute’s prohibition against commencement of an action.

The *Dodd* and *MBA Realty* decisions misconstrue the R.C. 1329.10(B) phrase “but upon compliance, such an action may be commenced or maintained on any contracts or transactions entered into prior to compliance.” This phrase simply means that, when an action is dismissed under R.C. 1329.10(B), it shall be dismissed without prejudice. *Nat’l Crime Reporting, Inc. v. McCord & Akamine, L.L.P.*, 177 Ohio App.3d 551, 555-56, 895 N.E.2d 255 (10th Dist. 2008); *New Method Textiles, Inc. v. TGI Friday’s, Inc.*, No. 93-APG10-1360, 1994 WL 312915, at *3 (Ohio App., 10th Dist., June 28, 1994). Thereafter, “upon compliance with R.C. 1329.10(B), like R.C. 1703, such an action may be commenced.” *Nat’l Crime Reporting, Inc.*, 177 Ohio App.3d at 556. *Accord New Method Textiles, Inc.*, 1994 WL 312915, at *3.

EE. Unauthorized Practice of Law

1. Corporation Without Counsel

A corporation may not maintain litigation or appear in court except by and through an attorney. *Union Sav. Ass’n v. Home Owners Aid, Inc.*, 23 Ohio St.2d 60, 262 N.E.2d 558 (1970). *See also Bd. of Educ. of Worthington City Sch. Dist. v. Bd. of Revision of Franklin County*, 85 Ohio St.3d 156, 707 N.E.2d 499 (1999).

Therefore, a corporation may not file or maintain an eviction action without an attorney. *Sheridan Mobile Vill., Inc. v. Larsen*, 78 Ohio App.3d 203, 604 N.E.2d 217 (4th Dist. 1992); *Fone-X, Inc. v. Strohm*, No. CA-3653, 1991 WL 261824 (Ohio App., 5th Dist., Nov. 12, 1991); *YWCA of Canton, Inc. v. Hager*, No. CA-7351, 1988 WL 29658 (Ohio App., 5th Dist., Mar. 7, 1988); *Mentor Green Mobile Estates v. Shopak*, No. 15-CVG-761 (Ohio Mun., Mentor, Oct. 6, 2015); *Crabtree Invs., Inc. v. Clevinger*, No. 99-CVG-289 (Ohio Mun., Hocking, Aug. 26, 1999); *PGS Rentals, Inc. v. Hileman*, No. CVG91-0528 (Ohio Mun., Portsmouth, June 24, 1991); *Crystal Tower Apts. v. Adkins*, No. 83-CVG-223 (Ohio Mun., East Cleveland, Feb. 25, 1983); *Philnat Corp.*

v. *McCune*, No. R79-CVG-0725 (Ohio Mun., Portage Cty., June 28, 1979).

If a corporation files or maintains an eviction action without an attorney, it is grounds to dismiss the action.¹⁶⁰ *Id.* See *Nat'l Church Publ'ns v. Hiser*, No. CA-2388, 1986 WL 6988 (Ohio App., 5th Dist., June 12, 1986).

When a non-attorney files an eviction complaint on behalf of a corporation, the defect is not cured by either: (1) an attorney representing the corporation at the eviction hearing, *Larsen*, 78 Ohio App.3d at 205; *Tr. of Kokosing Valley Trust v. Myers*, No. 13-CVG-00428 (Ohio Mun., Mt. Vernon, Aug. 19, 2013) (trust); or (2) an amendment of the complaint to substitute an attorney's signature for the non-attorney's signature, *Fone-X, Inc. v. Strohm*, No. CA-3653, 1991 WL 261824 (Ohio App., 5th Dist., Nov. 12, 1991).

The case law is split on whether the defect deprives the court of subject-matter jurisdiction or is an affirmative defense that may be waived. Compare *Alliance Group, Inc. v. Rosenfield*, 115 Ohio App.3d 380, 685 N.E.2d 570 (1st Dist. 1996) (subject-matter jurisdiction), and *Iberia Cabinet Mfg. Co. v. Walston*, 121 Ohio Misc.2d 121, 782 N.E.2d 1259 (Ohio Mun., Marion, 2002) with *Rental Mgmt. v. Au*, No. 92-C-66, 1993 WL 307614 (Ohio App., 7th Dist., Aug. 10, 1993) (affirmative defense), and *Two-32 Enters., Inc. v. Taylor*, No. 91-CA-2917, 1992 WL 274731 (Ohio App., 5th Dist., Sept. 9, 1992).

If a counterclaim is served prior to the dismissal of a complaint under this defense, the counterclaim may survive the dismissal of the complaint. See *Alliance Group, Inc. v. Rosenfield*, 115 Ohio App.3d 380, 685 N.E.2d 570 (1st Dist. 1996).

2. Limited Liability Company Without Counsel

An R.C. Chapter 1705 limited liability company ("limited liability company"), like a corporation, may not commence or maintain a court action without an attorney. *In re ICLNDS Notes Acquisition, LLC*, 259 B.R. 289 (Bankr. N.D. Ohio 2001) (applying Ohio law).

Therefore, a limited liability company may not file or maintain an eviction action without an attorney. *Ohio State Bar Ass'n v. Ross*, 154 Ohio St.3d 328, 114 N.E.3d 179 (2018); *Kasapis v. Burnett*, No. 2011-CVG-330 (Ohio Mun., Stark Cty., Feb. 10,

¹⁶⁰ Unauthorized practice of law also gives rise to a civil action for actual damages. R.C. 4705.07(C)(2). See also *Greenspan v. Third Fed. Sav. & Loan Ass'n.*, 122 Ohio St.3d 455, 458, 912 N.E.2d 567 (2009).

2011, and Feb. 16, 2011); *GF Props., LLC v. Adams*, No. 2005-CVG-12616 (Ohio Mun., Cleveland, Hous. Div., July 18, 2005); *GF Props., LLC v. Shean*, No. 2004-CVG-29619 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 2004); *Markin Props. v. Gray*, No. 01-CVG-04904 (Ohio Mun., Clark Cty., Mar. 7, 2002); *Hoffman Arabians, LLC v. Estep*, No. 01-CVG-869 (Ohio Mun., Circleville, Nov. 9, 2001); *Wee v. Lawrence*, No. 01-CV-15817 (Ohio Mun., Hamilton Cty., Oct. 1, 2001); *Ritter Co. v. Clark*, No. 1999-CVG-30891 (Ohio Mun., Franklin Cty., Feb. 2, 2000); *DDM LLC v. Fiorentini*, No. 97-CVG-06455 (Ohio Mun., Cleveland, Hous. Div., Apr. 15, 1997).

If a limited liability company files or maintains an eviction action without an attorney, it is grounds to dismiss the action. *Id.* And, as with a corporation, the defective filing of an eviction complaint without an attorney is not cured by an attorney representing the corporation at the eviction hearing. *GF Props., LLC v. Shean*, No. 2004-CVG-29619 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 2004) (applies *Larsen*, discussed in Section II.EE.1, above).

If a counterclaim is filed and served prior to the dismissal of a complaint under this defense, the counterclaim may survive the dismissal of the complaint. *See Wee v. Lawrence*, No. 01-CV-15817 (Ohio Mun., Hamilton Cty., Oct. 1, 2001); *Ritter Co. v. Clark*, No. 1999-CVG-30891 (Ohio Mun., Franklin Cty., Feb. 2, 2000).

3. Partnership Without Counsel

A partnership, like a corporation, may not commence or maintain a court action without an attorney. *Rasberry v. Taylor*, No. 26510, 2013 WL 2327020, ¶ 11 (Ohio App., 9th Dist., May 29, 2013) (dicta).

A non-attorney limited partner of a partnership may not commence or maintain an eviction action on behalf of the partnership without an attorney. *See Lakeside Ave. Ltd. P'ship v. Cuyahoga County Bd. of Revision*, 85 Ohio St.3d 125, 707 N.E.2d 472 (1999); *Hicks Roofing Co. v. Shah, Shah & Patel Inv. Co.*, Nos. 88AP-100085,020025, 1989 WL 63323 (Ohio App., 5th Dist., May 16, 1989).

A non-attorney general or managing partner of a partnership may not commence or maintain an eviction action on behalf of the partnership without an attorney. *See Hicks Roofing Co. v. Shah, Shah & Patel Inv. Co.*, Nos. 88AP-100085,020025, 1989 WL 63323 (Ohio App., 5th Dist., May 16, 1989). *See also In re ICLNDS Notes Acquisition, LLC*, 259 B.R. 289 (Bankr. N.D. Ohio 2001). *But see Reed v. BDS Holdings*, No. 14-92-41, 1993 WL 195072 (Ohio App., 3rd Dist., June 4, 1993) (held partner permitted to appear on behalf of partnership; partner appeared pro se but court

did not address unauthorized practice of law issue).¹⁶¹

A non-attorney employee of a partnership may not commence or maintain an eviction action on behalf of the partnership without an attorney. *Johnson Props. v. Leasure*, No. R96-CVG-2566 (Ohio Mun., Portage Cty., Jan. 3, 1997); *Sawburg Apts. v. Magee*, No. 87-CV-GF-707 (Ohio Mun., Alliance, June 26, 1987).

A non-attorney spouse of a partner of a partnership may not commence or maintain an eviction action on behalf of the partnership without an attorney. *Bishop Kandel Realty v. Decker*, No. 89-CVG-1406 (Ohio Mun., Findlay, Apr. 2, 1990).

If a partnership files or maintains an eviction action without an attorney, it is grounds to dismiss the action. *See Lakeside Ave. Ltd. P'ship v. Cuyahoga County Bd. of Revision*, 85 Ohio St.3d 125, 707 N.E.2d 472 (1999); *Hicks Roofing Co. v. Shah, Shah & Patel Inv. Co.*, Nos. 88AP-100085,020025, 1989 WL 63323 (Ohio App., 5th Dist., May 16, 1989); *In re ICLNDS Notes Acquisition, LLC*, 259 B.R. 289 (Bankr. N.D. Ohio 2001).

4. Non-Attorney Practicing Law, R.C. 4705.01

a. General Rule

R.C. 4705.01 prohibits any person who is not an attorney from commencing or maintaining a court action on behalf of another. *See Otto v. Patterson*, 173 Ohio St. 174, 180 N.E.2d 575 (1962).

A non-attorney agent of a landlord may not sign an eviction complaint on behalf of the landlord. *Furr v. Patterson*, No. 2021-CVG-004661 (Ohio Mun., Cleveland, Hous. Div., June 22, 2021); *Wheeler v. Write*, No. 2020-CVG-082W (Ohio County Ct., Ashtabula, W. Div., Apr. 28, 2020); *Croxton v. Freisner*, 62 Ohio Misc.2d 513, 603 N.E.2d 1162 (Ohio Mun., Canton, 1992); *Steiner v. Nadal*, No. 91-CVG-8356 (Ohio Mun., Canton, Apr. 2, 1992); *Ogden v. Avery*, No. 91-CVG-18 (Ohio Mun., Mansfield, May 16, 1991); *Wright v. Phelps*, No. 89-CVGT-1086 (Ohio Mun., Miami Cty., Sept. 18, 1989); *Porter v. Gibbs*, No. 88-CVG-205 (Ohio Mun., Jackson Cty., May 31, 1988).

Likewise, if the plaintiffs are two individuals who own the property, one of the owners may not sign the complaint for the other owner, unless the signing party is an

¹⁶¹ Whether a partner may bring an action on behalf of the partnership is a real party in interest issue. Whether a partner may bring such action without an attorney is an unauthorized practice of law issue. For a discussion on the real party in interest issue, see Section II.CC, above.

attorney. *Rasberry v. Taylor*, No. 26510, 2013 WL 2327020 (Ohio App., 9th Dist., May 29, 2013).

A non-attorney trustee of a trust may not sign an eviction complaint on behalf of the trust. *Ohio State Bar Ass'n v. Ross*, 154 Ohio St.3d 328, 114 N.E.3d 179 (2018); *Tr. of Kokosing Valley Trust v. Myers*, No. 13-CVG-00428 (Ohio Mun., Mt. Vernon, Aug. 19, 2013); *Porter v. Mosher*, No. 01-CVG-3616 (Ohio Mun., Akron, June 13, 2001); *Porter v. Myles*, No. 01-CVG-3344 (Ohio Mun., Akron, June 7, 2001). See generally *Williams v. Global Constr. Co.*, 26 Ohio App.3d 119, 498 N.E.2d 500 (10th Dist. 1985).

If a non-attorney commences an eviction action in violation of R.C. 4705.01, it is grounds to dismiss the action. See *Washington County Dep't of Human Servs. v. Rutter*, 100 Ohio App.3d 32, 651 N.E.2d 1360 (4th Dist. 1995); *Williams v. Global Constr. Co.*, 26 Ohio App.3d 119, 498 N.E.2d 500 (10th Dist. 1985).

b. Picklo Rule

The Ohio Supreme Court has determined that R.C. 4705.01 applies to persons who meet the R.C. 1923.01(C)(2) definition of landlord but are not the owner of the premises. *Cleveland Bar Ass'n v. Picklo*, 96 Ohio St.3d 195, 772 N.E.2d 1187 (2002). It held that, when such persons – landlords who are agents of the owner – are plaintiffs in an eviction complaint, if they proceed pro se, they are engaging in the unauthorized practice of law. *Id.*

The First Appellate District has narrowed (or more clearly defined) the scope of the *Picklo* rule. It held that the *Picklo* prohibition does not apply to non-owner plaintiffs who are a party to the lease as the landlord. *Ebbing v. Bobbitt*, No. CA2012-03-061, 2012 WL 4862548 (Ohio App., 12th Dist., Oct. 15, 2012).

A violation of the *Picklo* rule is a defense to the eviction action. *Ebbing v. Lawhorn*, No. CA2011-07-125, 2012 WL 2877434 (Ohio App., 12th Dist., July 16, 2012); *Batt v. Nairebout*, No. L-03-1001, 2003 WL 21489414 (Ohio App., 6th Dist., June 30, 2003); *Begue v. Calloway*, No. 03-CVG-00286 (Ohio Mun., Akron, Feb. 4, 2003).

A violation of the *Picklo* rule is also grounds to vacate an FED judgment and to dismiss the case under the court's inherent authority to vacate void judgments. *Patterson v. Tegge*, No. 2019-CVG-025075 (Ohio Mun., Franklin Cty., Mar. 3, 2020). In such cases, the complaint is null and void ab initio. *Id.*

c. Power of Attorney Rule

“When a person not admitted to the bar attempts to represent another in court on the basis of a power of attorney assigning *pro se* rights, he is in violation of this statute [R.C. 4705.01].” *Office of Disciplinary Counsel v. Coleman*, 88 Ohio St.3d 155, 158, 724 N.E.2d 402 (2000). The representations that this rule prohibits include commencing, maintaining, or defending any action or proceeding. *Id.* at 157-58.

This prohibition applies to eviction actions. *Dabydeen v. Ortiz*, No. 2013-CVG-011770 (Ohio Mun., Cleveland, Hous. Div., Oct. 29, 2013). In *Ortiz*, only the person with the power of attorney appeared on behalf of the landlord at the eviction hearing. The court thereupon dismissed the eviction action for want of prosecution.

FF. Co-Tenant Versus Co-Tenant

“Under Ohio law a co-tenant may not terminate the lease rights of another co-tenant.” *Burpo v. Burpo*, No. 2009-CVG-7976 (Ohio Mun., Cleveland, Hous. Div., July 2, 2009). *Cf. Collins v. Jackson*, 34 Ohio App.3d 101, 517 N.E.2d 269 (8th Dist. 1986) (co-tenant owners of real property). Therefore, if one co-tenant brings an eviction action against the other co-tenant, a defense is the plaintiff co-tenant’s lack of authority to terminate the defendant co-tenant’s right of possession.

In *Burpo*, a mother and her adult daughter were co-tenants of a dwelling unit. The mother was the designated head of household, both the mother and the daughter had signed the lease, and the lease did not provide the mother with any occupancy right superior to the daughter. Therefore, on the mother’s eviction claim against the daughter, the court entered a judgment for the daughter.

GG. Statute of Limitations, R.C. 1923.01(B)

R.C. 1923.01(B) establishes a two-year statute of limitations for eviction actions. This two-year statute of limitations begins to run when the right to commence the eviction action (*i.e.*, the right to serve the R.C. 1923.04 notice to vacate) comes into existence. *Reese v. Webb*, No. L-04-1257, 2005 WL 1009889 (Ohio App., 6th Dist., Apr. 29, 2005); *Palmer v. O’Leary*, No. 7745, 1975 Ohio App. LEXIS 7945 (Ohio App., 9th Dist., Dec. 3, 1975).

For example, in an eviction action for nonpayment of rent, the two-year statute of limitations begins to run on the date that the tenant becomes delinquent in the tenant’s rental obligation, not on the date that the landlord serves the tenant with an R.C.

1923.04 notice to vacate. *Id.*

However, each month that a month-to-month tenant fails to pay rent, a new cause of action accrues. *Causey v. Causey*, No. 599, 1990 WL 138564 (Ohio App., 4th Dist., Sept. 25, 1990). Therefore, if a month-to-month tenant fails to pay rent for a period of more than two years, the two-year statute of limitation is not a bar to an eviction action for nonpayment of rent that became due during the two-year period immediately preceding the filing of the action. *Id.*

In an eviction action for the failure of an assisted housing tenant to report an increase in income (see Section III.G.4, below), the two-year statute of limitation begins to run on the date that the landlord first became aware of this alleged fraud, not the date of any criminal conviction for it. *Akron Metro. Hous. Auth. v. Sanders*, No. 02-CVG-2692 (Ohio Mun., Akron, July 12, 2002), *appeal dismissed*, No. 21259 (Ohio App., 9th Dist., Mar. 10, 2003).

If a tenant does not plead this statute of limitation defense or assert it at trial, the tenant waives the limitation. *Haas v. Gerski*, 175 Ohio St. 327, 331, 194 N.E.2d 765 (1963). A tenant may not assert this defense for the first time in a motion for a new trial. *Id.*

HH. Defense for Drug-Related R.C. 1923.02(A)(6) Eviction

Under R.C. 1923.02(A)(6)(a), a landlord may evict a tenant for certain drug-related activity at the premises, if the landlord has “actual knowledge or reasonable cause to believe” that the tenant or the tenant’s guest has engaged in such activity.

A landlord has this “actual knowledge or reasonable cause to believe” only if all of the elements of the R.C. 1923.02(A)(6)(a)(i) definition of that term are met. The definition is set forth in Section I.C.5, above.

A potential defense in these eviction actions is that one (or more) of the elements of the R.C. 1923.02(A)(6)(a)(i) definition of “actual knowledge or reasonable cause to believe” has not been met. The case law provides four examples of this defense.

First, if a search warrant has not been issued and executed for the drug-related

activity, the landlord may not evict the tenant under R.C. 1923.02(A)(6)(a).¹⁶² *Ezzard Charles Apts. v. Washington*, No. 98-CV-28786 (Ohio Mun., Hamilton Cty., June 22, 1999). *Cf. Liggins v. Westminster Arms, Inc.*, Nos. 98AP-377,378, 1998 WL 894613 (Ohio App., 10th Dist., Dec. 22, 1998) (in granting landlord's application for release of rent deposit, court held that landlord did not violate R.C. 5321.04(A)(9) because no search warrant had been executed at the neighbor's unit).

Second, if a search warrant is executed for and a controlled substance is found at another rental unit in the building, but not the tenant's rental unit, the landlord may not evict the tenant under R.C. 1923.02(A)(6)(a). *Gorsuch Mgmt. v. Cole*, No. 94-CVG-511 (Ohio Mun., Lancaster, Sept. 22, 1994).

Third, if the execution of the search warrant produces no evidence of a controlled substance at the premises, the landlord may not evict the tenant under R.C. 1923.02(A)(6)(a). *Maliga Props. v. Williams*, No. 92-CVG-2998 (Ohio Mun., Cleveland, Hous. Div., Mar. 3, 1992).

Fourth, if the landlord fails to introduce into evidence the affidavit for the search warrant and the search warrant, the landlord may not evict the tenant under R.C. 1923.02(A)(6)(a). *Vistula Mgmt. Co. v. Wells*, No. L-00-1224, 2001 WL 279773 (Ohio App., 6th Dist., Mar. 23, 2001). The requirement to introduce the affidavit and the warrant exists "[e]ven if the executing officer testified that the warrant complied with Crim.R. 41." *Id.*, 2001 WL 279773, at *4. Absent the introduction of the affidavit and the warrant, the court cannot determine whether the warrant complies with Criminal Rule 41, "given the fact that a warrant can be found to be so defective *on its face* that it is rendered invalid and therefore not in compliance with Crim.R. 41." *Id.*

¹⁶² However, in these circumstances, R.C. 1923.02(A)(6) does not preclude a landlord from relying on R.C. 1923.02(A)(9) to evict a tenant for breach of a lease provision that prohibits drug-related criminal activity on the premises. See Section I.C.5, above.

III. Eviction Action, Additional Defenses, Assisted Housing

A. Introduction, Federal Notice of Termination and Good Cause

To terminate the tenancy of a tenant who resides in Public Housing or subsidized housing (collectively referred to as assisted housing),¹⁶³ the landlord must serve the tenant with a notice of termination in accordance with federal requirements. The federal notice of termination is a notice that proposes to terminate the tenancy and informs the tenant of the reason for the proposed termination of tenancy.¹⁶⁴ If the tenant resides in project-based assisted housing,¹⁶⁵ the notice also informs the tenant of the tenant's right to attend an administrative hearing or meeting before an eviction action is commenced.

A landlord's termination of an assisted housing tenancy is also subject to a good cause requirement. A project-based assisted housing landlord may not terminate a lease during its term or refuse to renew a lease at the end of its term, except for good cause. A Housing Choice Voucher program ("HCVP") landlord may not terminate a lease during its term except for good cause. But a HCVP landlord may refuse to renew

¹⁶³ "Assisted housing" means rental housing that receives assistance under one or more of the HUD programs that are listed in Section XXIV.B, below. "Subsidized housing" means all assisted housing except rental housing that is assisted under the Public Housing program. The term "assisted housing" does not include rental housing that is assisted under the Low Income Housing Tax Credit ("LIHTC") program. The LIHTC program is rental housing that receives assistance for its below-market rents, but HUD does not provide that assistance. The LIHTC program is discussed separately in Section III.L, below.

¹⁶⁴ This is a different type of notice than the R.C. 1923.04 notice to vacate, which is a prerequisite to the filing of an eviction action. For a discussion on the time for serving an R.C. 1923.04 notice to vacate, when a tenancy has been terminated by service of a federal notice of termination, see Section I.C.3.e, above.

¹⁶⁵ "Project-based assisted housing" means all assisted housing except rental housing assisted under the Housing Choice Voucher (aka section 8 voucher) program or the Shelter Plus Care (tenant-based) program. "Project-based subsidized housing" means all assisted housing except rental housing assisted under the Public Housing, Housing Choice Voucher, or Shelter Plus Care (tenant-based) program.

a lease at the end of its term without good cause. 24 C.F.R. § 982.310. *See Nason v. Mike*, No. HDSP-123262, 2003 WL 21213707 (Conn. Super. May 19, 2003); *Carol Rickert & Assocs. v. Law*, 54 P.3d 91, 95 (N.M. App. 2002). The decision on whether good cause exists is generally made in a state court eviction action.

The notice and good cause requirements for assisted housing were originally established by due process litigation.¹⁶⁶ *E.g.*, *Jeffries v. Ga. Res. Fin. Auth.*, 503 F. Supp. 610 (N.D. Ga. 1980), *aff'd*, 678 F.2d 919 (11th Cir. 1982) (Section 8 Certificate); *Joy v. Daniels*, 479 F.2d 1236 (4th Cir. 1973) (Section 221(d)(3) and Rent Supplement); *Escalera v. New York City Hous. Auth.*, 425 F.2d 853 (2d Cir. 1970) (Public Housing).¹⁶⁷

They are now established by federal regulations.¹⁶⁸ The regulations state the required content, method of service, and time of service of the notice of termination. The regulations define good cause to be any material noncompliance with the rental agreement,¹⁶⁹ material failure to carry out obligations under any state landlord and tenant act,¹⁷⁰ certain criminal activity, certain alcohol abuse, or other good cause.

The regulations do not include an exclusive definition of other good cause. Some of the program regulations include examples of other good cause. *E.g.*, 24 C.F.R. § 982.310(d). Some of the program regulations require the landlord to provide the tenant with advance notice of any conduct that the landlord deems to be other good cause. *E.g.*, 24 C.F.R. § 247.3(b); HUD Handbook 4350.3 REV-1,¹⁷¹ ¶ 8-16. And

¹⁶⁶ For a discussion of this due process issue, see National Housing Law Project, HUD Housing Programs: Tenants' Rights ¶¶ 11.3.2.2 and 11.3.3.1 (5th ed. 2018).

¹⁶⁷ Ohio state court decisions recognizing a project-based assisted housing tenant's due process property interest in continued occupancy include: *Heritage Court, L.L.C. v. Merritt*, 187 Ohio App.3d 117, 931 N.E.2d 194 (3rd Dist. 2010); *Showe Mgmt. Corp. v. Hazelbaker*, No. CA2005-11-031, 2006 WL 1976760 (Ohio App., 12th Dist., July 17, 2006); *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 597 N.E.2d 554 (2nd Dist. 1992).

¹⁶⁸ The assisted housing program regulations on termination of tenancy and eviction are listed in Section XXIV.B.6, below.

¹⁶⁹ The Public Housing, Section 8 Moderate Rehabilitation, and HCVP regulations use the phrase serious or repeated violation of the terms of the lease, instead of material noncompliance with the rental agreement.

¹⁷⁰ The Section 8 Moderate Rehabilitation and HCVP regulations refer to violations of federal and local laws, as well as state laws, concerning the tenant's use of the premises.

¹⁷¹ For the full citation for this handbook, see note 143, above.

HUD has clarified that “other good cause” is subject to (and does not preempt) any state or local laws that restrict or prohibit a termination of the tenancy. HUD Notice PIH 2009-18 (HA) (issued June 22, 2009, expired June 30, 2010).

Ohio state court decisions on the obligation of assisted housing landlords to comply with these federal regulations are discussed in Section III.B, below. Ohio state court decisions on the content requirements for the federal notice of termination are discussed in Section III.C, below. Ohio state court decisions on the service requirements for the federal notice of termination are discussed in Section III.D, below. Ohio state court decisions on a tenant’s opportunity to cure a breach during the period of the federal notice of termination are discussed in Section III.E, below. Ohio state court decisions on the administrative hearing or meeting requirement are discussed in Section III.F, below. Ohio state court decisions on the good cause requirement are discussed in Section III.G, below.¹⁷²

A landlord’s failure to comply with the applicable federal notice of termination requirements is a complete defense to the eviction action. See Sections III.B-E, below. Two courts have held that a failure to comply with these requirements does not constitute a jurisdictional defect. *Geauga Metro. Hous. Auth. v. Biggs*, No. 98-G-2207, 2000 WL 665567 (Ohio App., 11th Dist., May 19, 2000); *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991). However, they did not address whether such noncompliance caused the R.C. 1923.04 notice to vacate to be served before the termination of the tenancy and thus prematurely (see Section I.C.3.e, above). *Id.*

B. Strict Compliance with Federal Notice Rules, Ohio Case Law

When an assisted housing landlord seeks to evict a tenant, the landlord must comply with the notice of termination and good cause requirements of the applicable federal regulations. *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 639 N.E.2d 1253 (8th Dist. 1994) (Public Housing); *Swartz v. Schutte*, No. 14717, 1991 WL 2022 (Ohio App., 9th Dist., Jan. 9, 1991) (Section 8 Moderate

¹⁷² For other court decisions on the federal notice of termination and good cause requirements, see National Housing Law Project, HUD Housing Programs, Tenants’ Rights ch. 11 (5th ed. 2018).

Rehabilitation); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985) (Section 8 New Construction); *Park Lane Apts. v. Rogers*, No. C-830006, 1983 WL 5322 (Ohio App., 1st Dist., Nov. 23, 1983) (project-based subsidized housing); *Sandefur Co. v. Jones*, 9 Ohio App.3d 85, 458 N.E.2d 390 (10th Dist. 1982) (Section 8 Substantial Rehabilitation); *Zanesville Metro. Hous. Auth. v. Callipare*, No. CA-81-13, 1981 WL 6582 (Ohio App., 5th Dist., Dec. 10, 1981) (Public Housing); *Cuyahoga Metro. Hous. Auth. v. Brown*, No. 43566, 1981 WL 4963 (Ohio App., 8th Dist., May 21, 1981) (Public Housing); *Ivywood Apts. v. Bennett*, 51 Ohio App.2d 209, 367 N.E.2d 1205 (10th Dist. 1976) (project-based subsidized housing); *Cincinnati Metro. Hous. Auth. v. McCollum*, 45 Ohio App.2d 197, 341 N.E.2d 857 (1st Dist. 1975) (Public Housing).

These landlords also must comply with the notice of termination and good cause requirements of the applicable HUD handbooks. *Hidden Meadows Townhomes v. Ross*, No. C-120045, 2012 WL 6674412 (Ohio App., 1st Dist., Dec. 21, 2012) (project-based subsidized housing). “As the operator of federally subsidized housing, Hidden Meadows had to comply with federal regulations governing the program, HUD’s multi-family occupancy handbook, and HUD’s model lease.” *Id.*, ¶ 37.

In addition, when an assisted housing lease includes (explicitly or by reference) the notice requirements of an inapplicable federal regulation, the landlord must comply with the notice requirements of the applicable federal regulations, as well as the inapplicable regulations that the lease incorporated. *Sandefur Co. v. Jones*, 9 Ohio App.3d 85, 87, 458 N.E.2d 390 (10th Dist. 1982).

The landlord must comply strictly, not merely substantially, with the federal notice of termination requirements. *Park Lane Apts. v. Rogers*, No. C-830006, 1983 WL 5322 (Ohio App., 1st Dist., Nov. 23, 1983) (project-based subsidized housing); *Chillicothe Metro. Hous. Auth. v. Lynch*, No. CVG-13-00642 (Ohio Mun., Chillicothe, Sept. 4, 2013) (Public Housing); *Detroit Terrace Ltd. v. Bender*, No. 11-CVG-19350 (Ohio Mun., Cleveland, Hous. Div., Dec. 5, 2011) (project-based subsidized housing); *Forest City Mgmt., Inc. v. McDonald*, No. 01-CVG-5026 (Ohio Mun., Akron, Sept. 5, 2001) (project-based subsidized housing); *Alpha Phi Alpha Homes, Inc. v. Smith*, No. 2001-CVG-2773 (Ohio Mun., Akron, June 12, 2001) (project-based subsidized housing); *Winchester Gardens v. Swickheimer*, No. M9410-CVG-031135 (Ohio Mun., Franklin Cty., Nov. 14, 1994) (project-based subsidized housing); *Wiseman v. Turner*, No. M9112-CVG-042342 (Ohio Mun., Franklin Cty., Jan. 3, 1992) (Section 8 Certificate); *Canal Park Tower v. Brown*, No. 91-CVG-3327 (Ohio Mun., Akron, May

31, 1991) (Section 8 Substantial Rehabilitation); *Plains Plaza, Ltd. v. McKinley*, No. CIG-90-5-34 (Ohio Mun., Athens Cty., Feb. 8, 1991) (Section 8 New Construction); *Countrybrook Apts. v. Forsythe*, No. M86-CVG-20896 (Ohio Mun., Franklin Cty., Aug. 28, 1986) (Section 236); *Green v. Brown*, No. 86-CV-00466 (Ohio Mun., Hamilton Cty., Mar. 25, 1986) (Section 8 Property Disposition); *Wildwood Vill. Apts. v. Eckard*, No. M84-CVG-28561 (Ohio Mun., Franklin Cty., Dec. 13, 1984) (project-based subsidized housing); *Sec'y of HUD v. Winchester*, No. 82-CV-10191 (Ohio Mun., Hamilton Cty., June 3, 1982) (HUD-owned). See also *Hedco, Ltd. v. Blanchette*, 763 A.2d 639, 643 (R.I. 2000). Cf. *Holmes v. Convenient Food Mart, Inc.*, No. 98-L-272, 2000 WL 263736, at *2 (Ohio App., 11th Dist., Mar. 3, 2000) (“In Ohio, the law abhors a forfeiture and a landlord must strictly comply with the terms of a lease before instituting forfeiture proceedings”). But see *Real Props. Servs. Mgmt. v. Harigle*, No. 3-96-21, 1997 WL 430773 (Ohio App., 3rd Dist., July 30, 1997) (2-1 decision).

C. Federal Notice of Termination (Content), Ohio Case Law

1. Omission or Misstatement of a Required Element

If the notice of termination omits or misstates any of the elements that the applicable federal regulations require, the defect in the notice is a defense to the eviction action.¹⁷³ The content of the notice must strictly comply with the requirements of the applicable federal regulations. See Section III.B, above.

Ohio state court decisions finding a notice invalid due to its omission or misstatement of a required element are set forth below, along with the relevant regulation (or lease or handbook provision) and the omission or misstatement.

- (1) 24 C.F.R. § 247.4(a)(3) (project-based subsidized housing): the notice failed to advise the tenant that the landlord may seek to enforce the termination of tenancy only by bringing a judicial action, at which time the tenant may present a defense. *Park Lane Apts. v. Rogers*, No. C-830006, 1983 WL 5322 (Ohio App., 1st Dist., Nov. 23, 1983); *Alpha*

¹⁷³ All of the required elements must be contained in the same document. *Cherry Lee Apts. v. Walcott*, No. 03-CVG-00510 (Ohio Mun., Licking Cty., Apr. 25, 2003); *Uptown Vill. Apts. Ltd. v. White*, No. M9203-CVG-008281 (Ohio Mun., Franklin Cty., May 22, 1992). The regulations do not permit an assisted housing landlord to serve two notices of termination that in combination but not individually contain all of the required elements. *Id.*

Phi Alpha Homes, Inc. v. Smith, No. 2001-CVG-2773 (Ohio Mun., Akron, June 12, 2001); *Countrybrook Apts. v. Forsythe*, No. M86-CVG-20896 (Ohio Mun., Franklin Cty., Aug. 28, 1986); *Eatondale Apts. v. Brown*, No. 85-CV-26859 (Ohio Mun., Hamilton Cty., Dec. 11, 1985); *Westover Vill. v. Dawson*, No. 85-CV-8331 (Ohio Mun., Hamilton Cty., Oct. 27, 1985); *Wildwood Vill. Apts. v. Eckard*, No. M84-CVG-28561 (Ohio Mun., Franklin Cty., Dec. 13, 1984); *Neighborhood Dev. Corp. v. Cook*, No. M79-CVG-30481 (Ohio Mun., Franklin Cty., Jan. 2, 1980).

- (2) 24 C.F.R. § 247.4(e) (project-based subsidized housing): the notice failed to state the amount of the alleged past due rent or the effective date of the computation. *Retiree Hous. Mgmt., Inc. v. Myers*, No. 09-CVG-00091 (Ohio Mun., Miamisburg, Feb. 17, 2009); *Kimberly W. Co. v. Smith*, No. M8710-CVG-33507 (Ohio Mun., Franklin Cty., Dec. 1, 1987); *Inner City Hous. v. Sebastian*, No. 81-CV-15029 (Ohio Mun., Hamilton Cty., June 29, 1981); *Neighborhood Dev. Corp. v. Cook*, No. M79-CVG-30481 (Ohio Mun., Franklin Cty., Jan. 2, 1980); *Fed. Prop. Mgmt. Corp. v. Jackson*, No. 79-CVG-8820 (Ohio Mun., Dayton, Nov. 1, 1979).
- (3) 24 C.F.R. § 247.4(e) (project-based subsidized housing): the notice misstated the amount of the unpaid rent. *Rockefeller Park Towers, Ltd. v. White*, No. 05-CVG-24239 (Ohio Mun., Cleveland, Hous. Div., Jan. 6, 2006).
- (4) 24 C.F.R. § 247.4(a)(1) (project-based subsidized housing): the notice failed to state the date on which the lease will be terminated. *Millennia Hous. Mgmt. Ltd. v. Williams*, No. 2018-CVG-015007 (Ohio Mun., Cleveland, Hous. Div., May 6, 2019); *Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244 (Ohio Mun., Elyria, July 18, 2014); *ABC Mgmt. Co. v. Vinson*, No. M8901-CVG-000935 (Ohio Mun., Franklin Cty., Mar. 8, 1989).
- (5) Subsidized housing lease, ¶ 23(e);¹⁷⁴ HUD Handbook 4350.3 REV-1,¹⁷⁵ ¶ 8-13(B) (project-based subsidized housing): the notice failed to advise the tenant that the tenant has ten days within which to discuss the proposed termination of tenancy with the landlord. *Skyline Terrace*

¹⁷⁴ “Subsidized housing lease” means the required lease for project-based subsidized housing (see note 165, above), excluding the Section 202/8, Section 202 PAC, Section 202 PRAC, Section 811 PRAC, and Section 8 Moderate Rehabilitation programs. It is set forth in HUD Handbook 4350.3 REV-1, App. 4-A (see note 143, above).

¹⁷⁵ For the full citation for this handbook, see note 143, above.

- Apts. v. White*, No. 2015-CVG-5930 (Ohio Mun., Stark Cty., Jan. 13, 2016); *Cherry Lee Apts. v. Walcott*, No. 03-CVG-00510 (Ohio Mun., Licking Cty., Apr. 25, 2003); *Botnick Realty Co. v. Brown*, No. 91-CVG-5445 (Ohio Mun., Akron, July 10, 1991); *Canal Park Tower v. Brown*, No. 91-CVG-3327 (Ohio Mun., Akron, May 31, 1991); *Shurtz Mgmt., Inc. v. Meyers*, No. 85-CVG-0703 (Ohio Mun., Licking Cty., Jan. 6, 1986); *Capital Park, Inc. v. Robinson*, No. M79-CVG-34117 (Ohio Mun., Franklin Cty., Jan. 30, 1980). *See also Sumner v. Ayers*, No. M89-CVG-18789 (Ohio Mun., Franklin Cty., June 29, 1989) (Section 8 Moderate Rehabilitation; lease required that notice of termination advise tenant of right to respond to landlord); *Lee v. Handel*, No. 85-CVG-6674 (Ohio Mun., Akron, Aug. 30, 1985) (same).
- (6) Subsidized housing lease, ¶ 23(e); HUD Handbook 4350.3 REV-1, ¶ 8-13(B) (project-based subsidized housing): the notice failed to advise the tenant that the tenant has the right to defend the action in court. *Summit Mgmt. Servs., Inc. v. Martin*, No. 90-CVI-12598 (Ohio Mun., Akron, Jan. 23, 1991); *Botnick Realty Co. v. Brown*, No. 91-CVG-5445 (Ohio Mun., Akron, July 10, 1991).
 - (7) 24 C.F.R. § 882.511(d)(2)(ii) (Section 8 Moderate Rehab): the notice failed to advise the tenant that, if a judicial proceeding for eviction is instituted, the tenant may present a defense in that proceeding. *Summit Mgmt. Servs., Inc. v. Sprinkle*, No. 91-CVG-1451 (Ohio Mun., Barberton, Jan. 2, 1992); *Polster v. Lewis*, No. 91-CVG-29002 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991).
 - (8) 24 C.F.R. § 966.4(l)(3)(ii) (Public Housing): the notice failed to inform the tenant of the tenant's right to examine housing authority documents that are directly related to the proposed termination. *Akron Metro. Hous. Auth. v. Hammonds*, No. 92-CVG-803 (Ohio Mun., Akron, Oct. 20, 1992); *Lakeview Terrace v. Smith*, No. 92-CVG-8034 (Ohio Mun., Cleveland, Hous. Div., May 21, 1992); *Akron Metro. Hous. Auth. v. Ellis*, No. 92-CVG-1392 (Ohio Mun., Akron, Mar. 3, 1992).
 - (9) 24 C.F.R. § 966.4(l)(3)(ii) (Public Housing): the notice failed to inform the tenant of the tenant's right to reply to the notice of termination or the tenant's right (if any) to request a grievance procedure hearing.¹⁷⁶

¹⁷⁶ Under 24 C.F.R. § 966.4(l)(3)(ii), the notice of termination must inform the tenant of the tenant's right to reply even if the tenant is not entitled to use the grievance procedure. *Columbus Metro. Hous. Auth. v. Horsley*, No. M9510-CVG-028670 (Ohio Mun., Franklin Cty., Feb. 2, 1996).

Columbus Metro. Hous. Auth. v. Horsley, No. M9510-CVG-028670 (Ohio Mun., Franklin Cty., Feb. 2, 1996); *Lakeview Terrace v. Smith*, No. 92-CVG-8034 (Ohio Mun., Cleveland, Hous. Div., May 21, 1992).

- (10) 24 C.F.R. § 966.4(l)(3)(ii) (Public Housing): the notice incorrectly stated the time period for requesting a hearing in accordance with the housing authority's grievance procedure. *Cuyahoga Metro. Hous. Auth. v. Mallet*, No. 93-CVG-09659 (Ohio Mun., Cleveland, Hous. Div., Jan. 7, 1993).
- (11) 24 C.F.R. § 982.310(e)(i) (HCVP): the notice failed to state the reason for the termination of tenancy. *Mosley & Mosley Props. Ltd. v. Graham*, No. 99-G-3616 (Ohio Mun., Akron, May 24, 1999).

2. Statement of Reason with Specificity

The regulations for the assisted housing programs require that the notice of termination state, with specificity, the reason for the proposed termination of tenancy.¹⁷⁷

The reason for this specificity requirement is “to insure that the tenant is adequately informed of the nature of the evidence against him so that he can effectively rebut that evidence.” *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 10, 492 N.E.2d 841 (8th Dist. 1985) (quoting *Escalera v. New York City Hous. Auth.*, 425 F.2d 853, 862 (2d Cir. 1970)). *Accord Lucas Metro. Hous. Auth. v. Kincade*, No. L-94-211, 1995 WL 112963, at *5 (Ohio App., 6th Dist., Mar. 17, 1995); *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 825, 639 N.E.2d 1253 (8th Dist. 1994). *Cf. Billington v. Underwood*, 613 F.2d 91, 94 (5th Cir. 1980) (denial of Public Housing application); *Edgecomb v. Hous. Auth. of Town of Vernon*, 824 F. Supp. 312, 314 (D. Conn. 1993) (termination of participation in Section 8 Certificate program).

To meet this specificity requirement, the notice of termination, in its statement of the reason for the proposed termination, must (1) “refer to specific instances of conduct,” *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 10, 492 N.E.2d 841 (8th Dist. 1985), and (2) specify the dates on which the alleged incidents occurred and the names of the individuals involved in the alleged incidents, *Owner's Mgmt. Co. v. Stern*, No. 67445, 1995 WL 23152, at *2 (Ohio App., 8th Dist., Jan. 19, 1995); *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 826, 639 N.E.2d 1253

¹⁷⁷ The assisted housing regulations on termination of tenancy and eviction, which include this notice requirement, are listed in Section XXIV.B.6, below.

(8th Dist. 1994). *But see Lable and Co. v. Francis*, No. 89-J-39, 1991 WL 24982 (Ohio App., 7th Dist., Feb. 22, 1991) (reference to lease provision met specificity requirement).

In short, “the notice should describe the specific instances of tenant misconduct on which the landlord is relying, and should, generally speaking, answer the questions, who, what, where, when, and how as to each of the specific instances.” *United Prop. Mgmt. Co. v. Mundell*, No. R86-CVG-0850, slip op. at 2 (Ohio Mun., Portage Cty., Oct. 22, 1986). *Accord Emerald Dev. & Economic Network, Inc. v. Foster*, No. 2014-CVG-003506 (Ohio Mun., Cleveland, Hous. Div., June 30, 2014); *Chillicothe Metro. Hous. Auth. v. Lynch*, No. CVG-13-00642 (Ohio Mun., Chillicothe, Sept. 4, 2013). *See also Rainbow Group Apts. v. Eatmon*, No. 2006-CVG-19273 (Ohio Mun., Cleveland, Hous. Div., Nov. 7, 2006); *Parma Pub. Hous. Agency v. Smiley*, No. 05-CVG-00759 (Ohio Mun., Parma, May 5, 2005); *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994).

A notice of termination fails to state the reason for the proposed termination of tenancy with the requisite specificity if “the notice is blanketed in broad language and does not refer to specific instances of conduct” or is “written in ‘vague and conclusory’ language, and fail[s] to set forth a factual statement of the reason for termination.” *Bartell*, 24 Ohio App.3d at 10. *Accord Kincade*, 1995 WL 112963, at *5; *Younger*, 93 Ohio App.3d at 825.

A notice of termination also fails to state the reason for the proposed termination of tenancy with the requisite specificity if it fails to notify the tenant of the dates of the alleged incidents or the individuals involved in the alleged incidents. *Owner’s Mgmt. Co. v. Stern*, No. 67445, 1995 WL 23152, at *2 (Ohio App., 8th Dist., Jan. 19, 1995); *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 826, 639 N.E.2d 1253 (8th Dist. 1994). *Cf. Edgecomb v. Hous. Auth. of Town of Vernon*, 824 F. Supp. 312, 315 (D. Conn. 1993).

In nonpayment of rent cases, a notice of termination fails to state the reason for the proposed termination of tenancy with the requisite specificity if it fails to specify “the amount due as of a certain date, and the months for which the rent was not paid.” *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858, slip op. at 8 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994). *Accord Kimberly W. Co. v. Smith*, No. M8710-CVG-33507 (Ohio Mun., Franklin Cty., Dec. 1, 1987); *Inner City Hous. v. Sebastian*, No. 81-CV-15029 (Ohio Mun., Hamilton Cty., June 29, 1981).

In nonpayment of market rent cases against project-based subsidized housing

tenants, “the two-step procedure of raising a tenant’s rent to market rent, then evicting for nonpayment of that rent, must allow a tenant to challenge in an eviction proceeding the basis for the landlord’s decision to raise the rent to market rent. It follows that the notice of termination for nonpayment of that rent must specifically state the reason the landlord raised the tenant’s rent to market rent. Otherwise, a tenant can never be prepared to defend against the landlord’s evidence of good cause for its decision to raise the rent.” *Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065, slip op. at 8 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007). *Accord Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244, slip op. at 3 (Ohio Mun., Elyria, July 18, 2014) (“The ten-day notice here did not specify why Defendant’s rent increased [to market rent] and, therefore, this case should be dismissed”).

Even if the tenant is aware of the reason for the proposed termination of tenancy, the written notice of termination must state the reason with the requisite specificity. *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 826, 639 N.E.2d 1253 (8th Dist. 1994) (“CMHA’s response that ... Younger knew full well what activities caused it to issue the notice of termination and, therefore, Younger was not precluded from adequately responding to the termination process does little to persuade this court that it complied with the federal regulations”); *Chillicothe Metro. Hous. Auth. v. Lynch*, No. CVG-13-00642, slip op. at 3 (Ohio Mun., Chillicothe, Sept. 4, 2013) (“Even if the tenant is aware of the reason for the proposed termination, the written notice of termination must state the reason with the requisite specificity. The question is whether or not the Public Housing Authority complied with the federal regulations, not whether the tenant was aware of the specific violations”);¹⁷⁸ *Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065, slip op. at 8 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007) (“A landlord may not cure the lack of specifics in a notice by explaining the specific reasons to the tenant in a later meeting”); *Parma Pub. Hous. Agency v. Smiley*, No. 05-CVG-00759, slip op. at 2 (Ohio Mun., Parma, May 5, 2005) (“Plaintiff’s contention that the Defendant ‘lived under these conditions and was fully aware of them’ is irrelevant. As Judge Harper noted in *Younger*, supra, the issue revolves around whether or not the public housing authority complied with federal regulations, not whether the tenant was aware of the specific violations”); *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858, slip op. at 8 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994)

¹⁷⁸ In *Lynch*, the court cites to this book’s fourth edition, page 223.

(“The notice, standing alone, must set forth [the requisite] factual statement;” explanations of the reasons at a meeting “is ineffective to correct the deficiency of the [written] notice”). *But see Forest City Mgmt., Inc. v. Tackett*, 148 Ohio App.3d 667, 775 N.E.2d 555 (11th Dist. 2002) (dicta) (after finding requisite specificity in notice standing alone, finds that tenant also “was made aware of the evidence against him” by other unspecified means); *Northland Vill. Apts. v. Hamp*, No. 12407, 1991 WL 108717 (Ohio App., 2nd Dist., June 20, 1991) (holds that a court may consider relevant facts and circumstances that are known to the family but not stated in the notice); *Kettering Square Apts. v. Crawford*, Nos. 27504,27545,27548, 2017 WL 6398837 (Ohio App., 2nd Dist., Dec. 15, 2017) (relying on *Hamp*, holds that a court may consider relevant facts and circumstances that are known to the family but not stated in the notice).

The decision in *Driver v. Hous. Auth. of Racine County*, Nos. 2005-AP-410,411, 2006 WL 288152 (Wis. App. Feb. 8, 2006), summarizes well the three primary reasons that the tenant’s actual knowledge is and should be immaterial to whether a notice of termination has met the specificity requirement. First, the HUD regulations require the landlord to provide the tenant with written notice of the reasons for the proposed termination of tenancy, with the requisite specificity. Second, due process places the burden of providing adequate notice on the landlord. With an “actual knowledge” exception, this burden often would be transferred to the tenant, relative to whether or not the tenant received an alleged oral notice or otherwise already knew. Third, an “actual knowledge” exception would invite landlord noncompliance with the regulation’s written notice requirement.

Ohio state court decisions finding inadequate specificity in the notice’s statement of the reason are set forth below.

- (1) Reason: “failure to comply with Item 13e of your lease by making noise and committing acts that disturb others which includes loud music, yelling, profanity, trash in hall, loud television and frightened others.” *Owner’s Mgmt. Co. v. Stern*, No. 67445, 1995 WL 23152, at *1 (Ohio

- App., 8th Dist., Jan. 19, 1995) (project-based subsidized housing).¹⁷⁹
- (2) Reason: “unauthorized occupants in your unit,” “possible illegal activities in your residence,” and “disturbance of your neighbors peaceful enjoyment.” *Cuyahoga Metro. Hous. Auth. v. Younger*, 93 Ohio App.3d 819, 821, 639 N.E.2d 1253, 1254 (8th Dist. 1994) (Public Housing).
 - (3) Reason: “serious, repeated damage to the unit” and “[r]epeated disturbance.” *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 10, 492 N.E.2d 841 (8th Dist. 1985) (Section 8 New Construction).
 - (4) Reason: “destruction of property.” *Emerald Dev. & Economic Network, Inc. v. Foster*, No. 2014-CVG-003506 (Ohio Mun., Cleveland, Hous. Div., June 30, 2014) (project-based subsidized housing).
 - (5) Reason: “Plaintiff’s Notice of Termination simply restated the lease provision allegedly violated. It contained no facts, no names, no dates.” *Chillicothe Metro. Hous. Auth. v. Lynch*, No. CVG-13-00642 (Ohio Mun., Chillicothe, Sept. 4, 2013) (Public Housing).
 - (6) Reason: statement that police were called because of “an incident on August 13, 2012 taking place by the elevator,” but does not specify what occurred that constituted a material breach of the lease. *Hamilton Place Assocs. LP v. Love*, No. 2012-CVG-016117 (Ohio Mun., Cleveland, Hous. Div., Feb. 22, 2013) (Section 8 New Construction).
 - (7) Reason: “DMHA has received several complain[t]s from other residents in the building regarding loud music and noise coming from your unit at all hours of the day and night.” *Greater Dayton Premier Mgmt. v. Phillips*, No. 12-CVG-1549 (Ohio Mun., Dayton, May 16, 2012) (Public Housing).
 - (8) Reason: “Drug activity and excessive traffic” with two attachments – a municipal court docket stating Defendant was charged with “trafficking in drugs” and a common pleas court case summary indicating charges of trafficking offenses, drug possession, and possessing criminal tools. *Detroit Terrace Ltd. v. Bender*, No. 11-CVG-19350 (Ohio Mun., Cleveland, Hous. Div., Dec. 5, 2011) (project-based subsidized

¹⁷⁹ But see *Forest City Mgmt., Inc. v. Tackett*, 148 Ohio App.3d 667, 775 N.E.2d 555 (11th Dist. 2002) (finds requisite specificity where the notice identifies the provisions of the lease that were violated, lists the dates of the incidents, and describes the tenant’s conduct on those dates to be “acts that disturbed the rights and comforts of other residents and staff and which were intimidating, alarming, abusive and obscene to residents and staff”).

housing).

- (9) Reason: “criminal activity.” *Cnty. Props. of Ohio Mgmt. Servs. v. Taylor*, No. 2009-CVG-001131 (Ohio Mun., Franklin Cty., May 11, 2009) (project-based subsidized housing).
- (10) Reason: tenant violated “the conditions and terms of the lease due to serious or repeated damage to the dwelling unit, creation of physical hazards in the unit, common ground or parking area of the unit.” *Parma Pub. Hous. Agency v. Smiley*, No. 05-CVG-00759 (Ohio Mun., Parma, May 5, 2005) (Public Housing).
- (11) Reason: “unit’s housekeeping was not up to HUD Standards.” *New Longwood Assocs. v. Robertson*, No. 02-CVG-8420 (Ohio Mun., Cleveland, Hous. Div., May 24, 2002) (project-based subsidized housing); *New Longwood Assocs. v. Williams*, No. 02-CVG-1431 (Ohio Mun., Cleveland, Hous. Div., Mar. 12, 2002) (same).
- (12) Reason: “lease termination.” *Lawami Corp. v. Briggs*, No. 2001-CVG-9454 (Ohio Mun., Akron, Dec. 5, 2001) (HCVP, eviction for other good cause, sale of property).
- (13) Reason: “[Y]ou continue to maintain your suite in a deplorable condition even after our written notice dated September 11, 1998 That you continue to maintain the suite in a deplorable condition is evidenced by our inspection of October 12, 1998. Your lack of housekeeping materially affects the health and safety of the residents in the apartment building in which you live.”¹⁸⁰ *S&F Mgmt. v. Horvath*, No. 98-CVG-25253 (Ohio Mun., Cleveland, Hous. Div., May 6, 1999) (project-based subsidized housing).
- (14) Reason: “failure to use your dwelling as your only residence” and “violating the peaceful enjoyment of neighbors/tenants.” *Vistula Mgmt. Co. v. Singleton*, No. CVG-94-12643 (Ohio Mun., Toledo, Hous. Div., Nov. 29, 1994) (project-based subsidized housing).
- (15) Reason: “bad housekeeping” and failing to keep the premises “safe, clean and decent.” *Winchester Gardens v. Swickheimer*, No. M9410-

¹⁸⁰ In response to the tenant’s motion for summary judgment, the landlord filed an affidavit that, according to the court, illustrated the required specificity. *S&F Mgmt. v. Horvath*, No. 98-CVG-25253, slip op. at 4 (Ohio Mun., Cleveland, Hous. Div., May 6, 1999). The affidavit stated: “the apartment was completely cluttered with property over the entire floor area of every room, including books, newspapers, clothing, boxes, small appliances, bags and the like” and “the stove was cluttered with debris creating an obvious fire hazard.” *Id.*

CVG-031135 (Ohio Mun., Franklin Cty., Nov. 14, 1994) (project-based subsidized housing).

- (16) Reason: “failure to comply with agreement to pay rental arrearages (nonpayment of rent).” *Mt. Olive-Metro Hous., Inc. v. Craft*, No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994) (project-based subsidized housing).
- (17) Reason: statement that tenant’s actions have continued to disturb the neighbors’ peaceful enjoyment of the premises. *Marchetta v. Wolfe*, No. 92-CVG-12931 (Ohio Mun., Akron, Mar. 4, 1993) (Section 8 Moderate Rehabilitation).
- (18) Reason: statements that “are blanketed in broad language and do not refer to specific instances or times or dates sufficient for the Defendant to prepare a meaningful rebuttal.” *McConnelsville Assocs. v. Gladden*, No. 92-CV-G-56 (Ohio County Ct., Morgan Cty., Sept. 28, 1992) (project-based subsidized housing).
- (19) Reason: statement that tenant was in violation of the lease obligation to refrain from destroying, defacing, damaging, or removing any part of the premises. *Lakeview Terrace v. Smith*, No. 92-CVG-8034 (Ohio Mun., Cleveland, Hous. Div., May 21, 1992) (Public Housing).
- (20) Reason: restatement of the lease language that prohibits unlawful activity in the unit or in the common areas, and a statement that the illegal activity related to drug activity. *Uptown Vill. Apts. Ltd. v. White*, No. M9112-CVG-043446 (Ohio Mun., Franklin Cty., Jan. 31, 1992) (project-based subsidized housing).
- (21) Reason: statement that “restate[d] the language in the lease agreement which describes in a very general sense the type of violations which the plaintiff alleges the defendant committed.” *Canterbury Way Apts. Rogers*, No. M9004-CVG-012282 (Ohio Mun., Franklin Cty., June 5, 1990) (project-based subsidized housing).
- (22) Reason: statement that is “merely a restatement of the lease language that defines material noncompliance as including ‘serious or repeated interference with the rights and quiet enjoyment of other tenants.’” *Uptown Vill. Apts. v. Stephens*, No. M8907-CVG-25518 (Ohio Mun., Franklin Cty., Aug. 4, 1989) (project-based subsidized housing).
- (23) Reason: “numerous violations of conditions of lease, specifically #30.” *Avondale Hous. Action Program v. Butler*, No. 88-CV-42805 (Ohio Mun., Hamilton Cty., Mar. 23, 1989) (Section 8 Property Disposition).

- (24) Reason: comprehensive list of general housekeeping violations that tenants might commit, but which has no relationship to the actual housekeeping violations noted in the landlord's inspection report. *Dayton Metro. Hous. Auth. v. Williams*, No. 88-CVG-1268 (Ohio Mun., Dayton, July 8, 1988) (Public Housing).
- (25) Reason: "As a result of your violations of the rental agreement which disrupt the livability of the project, adversely affect the health and safety of other tenants, prevent the quiet enjoyment of the leased premises by other tenants, interfere with the management of the project." *Associated Estates Corp. v. Lockhart*, No. 87-G-2605 (Ohio Mun., Cuyahoga Falls, Mar. 4, 1988) (project-based subsidized housing).
- (26) Reason: statement that tenant performed acts that disturbed her neighbors and that the tenant created physical hazards. *Burney View Apts. v. Zeisler*, No. 87-CV-17778 (Ohio Mun., Hamilton Cty., Feb. 3, 1988) (project-based subsidized housing).
- (27) Reason: conclusory language from the lease or regulations. *United Prop. Mgmt. Co. v. Mundell*, No. R86-CVG-0850 (Ohio Mun., Portage Cty., Oct. 22, 1986) (Section 8 New Construction).

3. Eviction Solely for Reason(s) in the Notice

Assisted housing landlords generally may not rely on any ground for eviction that is not stated in the notice of termination. *E.g.*, 24 C.F.R. §§ 247.6(b), 880.607(c)(3); subsidized housing lease,¹⁸¹ ¶ 23(f). *See Palmer Gardens v. Rodgers*, No. L-20-1003, 2020 WL 6256858 (Ohio App., 6th Dist., Oct. 23, 2020) (project-based subsidized housing); *Gold Key Realty/Senior Vill. Apts. v. Phillips*, No. 26450, 2015 WL 3932449 (Ohio App., 2nd Dist., June 26, 2015) (project-based subsidized housing); *Cincinnati Metro Hous. Auth. v. Patterson*, No. C-130161, 2013 WL 6409302 (Ohio App., 1st Dist., Dec. 6, 2013) (Public Housing); *Owners Mgmt. Co. v. Moore*, 111 Ohio App.3d 820, 677 N.E.2d 400 (6th Dist. 1996) (project-based subsidized housing); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985) (Section 8 New Construction); *Zanesville Metro. Hous. Auth. v. Callipare*, No. CA-81-13 (Ohio App., 5th Dist., Dec. 10, 1981) (Public Housing); *Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007) (project-based subsidized housing); *Jackson v. Hammond*, No. 2006-CVG-31171 (Ohio Mun.,

¹⁸¹ For the definition of "subsidized housing lease," see note 174, above.

Cleveland, Hous. Div., Feb. 15, 2007) (HCVP); *Warren Metro. Hous. Auth. v. Sizemore*, No. 2002-CVG-00593 (Ohio County Ct., Warren Cty., Nov. 6, 2002) (Public Housing); *Vistula Mgmt. Co. v. Singleton*, No. CVG-94-12643 (Ohio Mun., Toledo, Hous. Div., Nov. 29, 1994) (project-based subsidized housing); *Showe Mgmt. Corp. v. Stover*, No. M9306-CVG-17876 (Ohio Mun., Franklin Cty., Aug. 23, 1993) (project-based subsidized housing).

But, for project-based subsidized housing, there is an exception to this rule for grounds not known by the landlord when the notice was sent. 24 C.F.R. § 247.6(b).

4. Consolidation of Federal Notice of Termination and State Notice to Vacate

A recurring issue is whether a federal notice of termination complies with the federal regulations if the notice is consolidated with an R.C. 1923.04 notice to vacate.¹⁸²

The federal rules permit these notices to run concurrently. 24 C.F.R. § 966.4(l)(3)(iii) (Public Housing program); 24 C.F.R. § 982.310(e)(1)(ii) (Housing Choice Voucher program); the subsidized housing lease (see note 174, above) (most project-based subsidized housing programs).

Ohio case law generally permits consolidation of these notices for project-based subsidized housing tenancies. *E.g.*, *Vistula Mgmt. Co. v. Armstrong*, No. L-93-168, 1994 WL 262571 (Ohio App., 6th Dist., June 10, 1994); *Pataskala Green II v. Strickler*, No. CA-3581, 1991 WL 122358 (Ohio App., 5th Dist., June 25, 1991); *Arlington Square ABC Mgmt. v. Clevenger*, No. 88CA-004447, 1989 WL 52620 (Ohio App., 9th Dist., May 17, 1989); *ABC Mgmt. Co. v. Gamble*, No. 83AP-788, 1983 Ohio App. LEXIS 16070 (Ohio App., 10th Dist., Dec. 15, 1983); *Sandefur Co. v. Jones*, 9 Ohio App.3d 85, 458 N.E.2d 390 (10th Dist. 1982).

¹⁸² A consolidation of the federal notice of termination and the R.C. 1923.04 notice to vacate raises a second issue – whether, in consolidating these notices, the assisted housing landlord is serving the R.C. 1923.04 notice to vacate before the termination of the tenancy and thus prematurely. See Section I.C.3.e, above. A consolidated notice may comply with the federal regulations but still violate state law on the time for serving an R.C. 1923.04 notice to vacate. As HUD noted in its introductory comments to 24 C.F.R. § 966.4(l)(3)(iii): “Federal law does not affect the time when the State notice may be given, provided the State law notice procedure does not interfere with the Federally required notice of lease termination, or abridge the tenant’s Federal right to a grievance hearing.” 56 Fed. Reg. 51559, 51565 (1991).

However, one Ohio court held, relative to project-based subsidized housing, that consolidation of these notices is not permitted if the language of the consolidated notice fails to fulfill the purpose of the federal regulations. *Crossroads Somerset Ltd. v. Newland*, 40 Ohio App.3d 20, 24, 531 N.E.2d 327 (10th Dist. 1987). “[T]hat purpose envisions a meeting between landlord and tenant in which both parties attempt to resolve whatever problem gave rise to the ten-day notice.” *Id.* *Accord Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 434, 597 N.E.2d 554 (2nd Dist. 1992).

In *Newland*, the court held a consolidated notice to be invalid because it included the statement: “If you refuse to leave this unit within ten (10) days, Crossroads/Somerset may enforce this notice ONLY by bringing a judicial action.” *Newland*, 40 Ohio App. 3d at 24. The court held that this language was contrary to the intent of the federal regulations because it indicated that the administrative meeting would be useless and that the tenant would be required to vacate despite the tenant’s opportunity to request a meeting with the landlord. *Id.*

D. Federal Notice of Termination (Service), Ohio Case Law

1. Time of Service

a. Public Housing

In Public Housing, the time period for the notice depends on the grounds for the termination of tenancy.

For nonpayment of rent cases, under HUD rules, there are two alternative time periods.

One is a thirty-day period, which applies during national emergencies, when HUD determines that additional time is required for families to secure available funding. HUD interim final rule, 86 Fed. Reg. 55693 (Oct. 7, 2021); HUD Notice PIH 2021-29,

H 2021-06, issued Oct. 7, 2021.¹⁸³ On October 7, 2021, HUD made this determination and thereby invoked this thirty-day notice requirement. *Id.* HUD determined that this thirty-day notice requirement will remain in effect until a subsequent notice is issued rescinding the determination. *Id.*

Ohio courts have held that an assisted housing¹⁸⁴ landlord's failure to comply with this thirty-day notice requirement is grounds to grant a tenant's motion to dismiss. *E.g.*, *Neilan Park Apts. 2, LLC v. Carr*, Nos. 21-CVG-01273,01276,01278,01293 (Ohio Mun., Hamilton Cty., Nov. 4, 2021); *Beavers v. Patawaran*, No. 2020-CVG-009066 (Ohio Mun., Cleveland, Hous. Div., Dec. 23, 2020); *Adedapo v. Brown*, No. 2020-CVG-22643 (Ohio Mun., Franklin Cty., Oct. 2, 2020).

The other time period for nonpayment of rent cases, which applies when the thirty-day period is not invoked, is a fourteen-day period.¹⁸⁵ 24 C.F.R. § 966.4(l)(3)(i). This fourteen-day period also applies to: (1) eviction actions alleging a tenant's breach of an agreement to make periodic payments to satisfy a rent arrearage, *Dayton Metro. Hous. Auth. v. McKee*, 37 Ohio App.3d 102, 524 N.E.2d 180 (2nd Dist. 1987); and (2) eviction actions alleging payment of delinquent rent after the date specified for the payment in the notice of termination, *Akron Metro. Hous. Auth. v. Myers*, 30 Ohio App.3d 100, 506 N.E.2d 933 (9th Dist. 1986).

The time period is a "reasonable time considering the seriousness of the situation (but not to exceed 30 days)" in cases in which (1) the health or safety of other residents

¹⁸³ In all of the assisted housing programs (see note 163, above), for nonpayment of rent cases, a thirty-day notice of termination requirement was established in the CARES Act, Pub. L. 116-136, 134 Stat. 281, enacted Mar. 27, 2020, at § 4024(c) ("CARES Act provision"). The CARES Act provision, on its face, does not contain a sunset provision and, therefore, seems to be a permanent law. However, based on the HUD interim final rule, 86 Fed. Reg. 55693 (Oct. 7, 2021), HUD's position appears to be that the CARES Act provision has sunset. The reason for this conclusion is that the HUD interim final rule: (1) does not implement the CARES Act provision; (2) instead, establishes a temporary thirty-day notice of termination requirement, for the period that HUD determines a national emergency requires it; and (3) applies its thirty-day notice of termination only to Public Housing and project-based subsidized housing (and not to all assisted housing programs).

¹⁸⁴ For the definition of "assisted housing," see note 163, above.

¹⁸⁵ If the housing authority granted the tenant an extension of time to pay the rental arrearage, it may not serve the tenant with the fourteen-day notice of termination until after the extended date for payment. *Cuyahoga Metro. Hous. Auth. v. Bederman*, No. 96-CVG-02208 (Ohio Mun., Cleveland, Hous. Div., Feb. 28, 1996).

or housing authority employees is threatened, (2) any member of the household engaged in any drug-related or violent criminal activity, or (3) any member of the household has been convicted of a felony. 24 C.F.R. § 966.4(l)(3)(i).

For this notice rule, drug-related criminal activity is not per se a threat to the health and safety of other residents or housing authority employees. *Hous. Auth. of Jersey City v. Myers*, 295 N.J. Super. 544, 549, 685 A.2d 532 (1996). “Rather, some drug-related criminal activity constitutes such a threat to PHA tenants and employees ..., while other drug-related criminal activities are not such a threat.” *Id.*

For example, in *Cuyahoga Metro. Hous. Auth. v. Coley*, No. 2001-CVG-19335 (Ohio Mun., Cleveland, Hous. Div., May 2, 2003, and Jan. 29, 2004), the housing authority provided the tenant with a three-day (instead of thirty-day) notice of termination, based on the tenant’s drug-related criminal activity. The tenant had been charged with a minor misdemeanor for possession of one marijuana cigarette in her rental unit. The court held that this criminal activity did not constitute the requisite threat to health and safety for a time period of less than thirty days.

Lastly, in all other cases, the time period is thirty days. 24 C.F.R. § 966.4(l)(3)(i).

b. Project-Based Subsidized Housing

In project-based subsidized housing, the time period for the notice depends on the ground for the termination of tenancy.¹⁸⁶

For nonpayment of rent cases, under HUD rules, there are two alternative time periods.

One is a thirty-day period, which applies during national emergencies, when HUD determines that additional time is required for families to secure available funding. HUD interim final rule, 86 Fed. Reg. 55693 (Oct. 7, 2021); HUD Notice PIH 2021-29, H 2021-06, issued Oct. 7, 2021.¹⁸⁷ On October 7, 2021, HUD made this determination

¹⁸⁶ In the Section 8 Moderate Rehabilitation program, under the HUD rules, the time periods are different than those used in the other project-based subsidized housing programs. For nonpayment of rent cases, the time period is five working days. 24 C.F.R. § 882.511(d). In cases of violations of the lease or applicable federal, state, or local law, the time period is determined by state and local law. *Id.* In “other good cause” cases, the time period is thirty days. *Id.*

¹⁸⁷ For these nonpayment of rent cases, a thirty-day notice of termination requirement was established in the CARES Act, Pub. L. 116-136, 134 Stat. 281, enacted Mar. 27, 2020, at § 4024(c) (“CARES Act provision”). For a discussion on the terms and status of the CARES Act provision, see note 183, above.

and thereby invoked this thirty-day notice requirement. *Id.* HUD determined that this thirty-day notice requirement will remain in effect until a subsequent notice is issued rescinding the determination. *Id.*

Ohio courts have held that an assisted housing¹⁸⁸ landlord's failure to comply with this thirty-day notice requirement is grounds to grant a tenant's motion to dismiss. *E.g.*, *Neilan Park Apts. 2, LLC v. Carr*, Nos. 21-CVG-01273,01276,01278,01293 (Ohio Mun., Hamilton Cty., Nov. 4, 2021); *Beavers v. Patawaran*, No. 2020-CVG-009066 (Ohio Mun., Cleveland, Hous. Div., Dec. 23, 2020); *Adedapo v. Brown*, No. 2020-CVG-22643 (Ohio Mun., Franklin Cty., Oct. 2, 2020).

The other time period for nonpayment of rent cases, which applies when the thirty-day period is not invoked, is ten days. HUD Handbook 4350.3 REV-1,¹⁸⁹ ¶¶ 8-13(B), 8-16(B); subsidized housing lease,¹⁹⁰ ¶ 23(e).

For "other good cause" cases, the time period is thirty days. *Id.*

In all other cases, the time period is ten days. *Id.*

c. HCVP

In the Housing Choice Voucher program ("HCVP"), under HUD rules, a two-fold time period is used in all cases. First, the notice of termination may be served at or before the commencement of the eviction action. 24 C.F.R. § 982.310(e). Second, it must be served before the termination of the tenancy. 24 C.F.R. § 982.310(e) ("tenancy does not terminate before the owner has given this notice"). *See also* 64 Fed. Reg. 56893, 56904 (Oct. 21, 1999) ("Section 982.310(e) has been revised to specify that the tenancy does not terminate during the term of the lease before the owner has given notice to the tenant that specifies the grounds for termination"); 42 U.S.C. § 1437f(d)(1)(B)(iv) ("termination of tenancy shall be preceded by the owner's provision of written notice to the tenant specifying the grounds for such action").

Under Ohio law, the second part of the HCVP time period arguably requires service of the notice of termination before service of the R.C. 1923.04 notice to vacate. Ohio law bars service of the R.C. 1923.04 notice to vacate until after the termination of the tenancy (see Section I.C.3.e, above), whereas the HCVP notice of termination

¹⁸⁸ For the definition of "assisted housing," see note 163, above.

¹⁸⁹ For the full citation for this handbook, see note 143, above.

¹⁹⁰ For the definition of "subsidized housing lease," see note 174, above.

must be served before the termination of the tenancy. Since the HCVP notice of termination may terminate the tenancy upon its issuance, instead of a specified number of days thereafter, the R.C. 1923.04 notice to vacate may be served at any time after the service of the HCVP notice of termination.¹⁹¹

For nonpayment of rent cases, another potential HCVP notice of termination requirement is the thirty-day notice of termination requirement that was established in the CARES Act, Pub. L. 116-136, 134 Stat. 281, enacted Mar. 27, 2020, at § 4024(c) (“CARES Act provision”). For a discussion on the terms and status of the CARES Act provision, see note 183, above.

2. Method of Service

If the method by which the federal notice of termination is served fails to meet any of the requirements of the applicable federal regulations, it is a defense to the eviction action. The method of service must strictly comply with all of the requirements of the applicable federal regulations. See Section III.B, above.

Ohio state court decisions finding a method of service invalid are set forth below, along with the relevant regulation and the method of service.

- (1) 24 C.F.R. § 966.4(k)(1) (Public Housing): the notice of termination was served upon a child of eight to ten years of age. *Cuyahoga Metro. Hous. Auth. v. Brown*, No. 43566, 1981 WL 4963 (Ohio App., 8th Dist., May 21, 1981).
- (2) 24 C.F.R. § 247.4(b) (project-based subsidized housing): the notice of termination was served by personal service at the dwelling unit, but not also by mail service. *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991); *Biltmore Apts. v. Birdsong*, No. 11-CVG-5315 (Ohio Mun., Dayton, Oct. 5, 2011). *But see Marshall Plaza v. Watkins*, No. 4161, 1987 WL 12113 (Ohio App., 9th Dist., June 3, 1987) (personal service but no mail service; tenant does not deny receiving the notice; because absence of mail service did not prejudice the tenant, appellate court refused to reverse eviction judgment despite the violation of the regulation); *M.L. Gabriel Commons v. King*, No. 13159, 1992 WL 288781 (Ohio App., 2nd Dist., Oct. 14, 1992) (follows *Watkins*).

¹⁹¹ The Ohio case law is split on whether the date of service of the federal notice of termination must precede the date of service of the R.C. 1923.04 notice to vacate. For a discussion on that case law, see Section I.C.3.e, above.

3. Service of a Second Notice of Termination

One Ohio court has held, “as a matter of law[,] that where an action in forcible entry and detainer is dismissed, prior to filing a subsequent action in forcible entry and detainer, any and all notices required by either statute or the contract at issue must be re-served by the Plaintiff upon the Defendant.” *Apt. Mgmt., Inc. v. Woods*, No. 05-CVG-650, slip op. at 4 (Ohio Mun., Lorain, June 1, 2005). In *Woods*, the required notice was a federal notice of termination under a project-based subsidized housing program.

The court in *Woods* set forth a two-fold rationale for this holding. “It is axiomatic that where a notice is required to be served in one instance, it must be served in another. Moreover, when a complaint is dismissed, for whatever reason, it is logical to assume that the defendant will conclude that the matter is over and that the plaintiff, should he wish to ‘resurrect’ his allegations, must do so from scratch.” *Id.*, slip op. at 3-4. *But cf. Voyager Vill. Ltd. v. Williams*, 3 Ohio App.3d 288, 444 N.E.2d 1337 (2nd Dist. 1982) (R.C. 5321.17(B) notice of termination).

E. Federal Notice of Termination, Opportunity to Cure the Breach

The assisted housing regulations do not explicitly state that, during the period of the federal notice of termination,¹⁹² the tenant has a right to cure the breach of duty that is specified in the notice and thereby prevent a termination of the tenancy.¹⁹³

However, in affording the tenant a right to meet with the landlord in response to the federal notice of termination,¹⁹⁴ the regulations may implicitly afford the tenant that right to cure. National Housing Law Project, HUD Housing Programs: Tenants’ Rights ¶ 11.3.3.2.2 (5th ed. 2018). *See Hedco, Ltd. v. Blanchette*, 763 A.2d 639, 642 (R.I.

¹⁹² For a discussion on the various time periods of the federal notice of termination, see Section III.D.1, above.

¹⁹³ In contrast, under the Rural Housing Service rental programs, the regulations (7 C.F.R. § 3560.159(a)) expressly afford the tenant an opportunity to cure the violation that is specified in the notice. *E.g., Summertree Terrace v. Thatcher*, No. CVG-0600419 (Ohio Mun., Washington Court House, July 13, 2006); *Aspen Green/WODA v. Howard*, No. 04-CVG-00467 (Ohio Mun., Cambridge, Sept. 30, 2004).

¹⁹⁴ This right to meet with the landlord exists in the project-based assisted housing programs, but not the Housing Choice Voucher program. See Section III.F, below.

2000) (“the notice ... compl[ie]d with the ten-day time period, during which a tenant could cure the breach of nonpayment as required by section (sic) 4350.3 of the HUD Handbook and section 23(b) of the parties’ lease agreement”); *Vesta Cleveland LLC v. Swann*, No. 2003-CVG-5468, slip op. at 5 (Ohio Mun., Cleveland, Hous. Div., May 20, 2003) (“A notice [of termination] requirement like the one in the parties’ [project-based subsidized housing] lease offers a tenant an opportunity to correct a problem once the landlord has identified it”); *Cuyahoga Metro. Hous. Auth. v. Bederman*, No. 96-CVG-02208, slip op. at 2 (Ohio Mun., Cleveland, Hous. Div., Feb. 28, 1996) (“The purpose of the 14 Day Notice of Termination is to provide a resident of public housing an opportunity to avoid eviction by curing an alleged nonpayment of rent”). *Cf. Madtson v. Flick*, No. 94-CVG-224 (Ohio County Ct., Sandusky Cty., Jan. 17, 1995) (reason for eviction was tenant’s notice of vacation of premises; eviction denied because, among other things, during the ten-day period of the notice of termination, tenant rescinded his notice of vacation and tendered all rent due).

In the project-based subsidized housing program, the regulations require “a meeting between landlord and tenant in which both parties attempt to resolve whatever problems gave rise to the ten-day notice [of termination].” *Crossroads Somerset Ltd. v. Newland*, 40 Ohio App.3d 20, 24, 531 N.E.2d 327 (10th Dist. 1987). *Accord Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244, slip op. at 2 (Ohio Mun., Elyria, July 18, 2014) (held the notice of termination invalid because it “suggests that the decision to terminate Defendant’s tenancy already occurred” and thus “[i]t is not clear what benefit could be derived from the tenant’s ‘discussion’ of a matter already decided”).

The purpose of the meeting “is to attempt to resolve the controversy in a mutually satisfactory manner, that will, if possible, avoid the tenant’s loss of subsidized housing while protecting the rights of the landlord.” *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 434, 597 N.E.2d 554 (2nd Dist. 1992). *Accord Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244, slip op. at 2 (Ohio Mun., Elyria, July 18, 2014) (as to the meeting, “this is not a mere formality, but confers on Defendant, beneficiary of the federal subsidy, a first chance at procedural due process to meet with Plaintiff to try to avoid the potential termination”).

If a tenant cures the breach at or before the meeting with the landlord, generally the cure of the breach should resolve the controversy. In such circumstances, if the landlord still seeks to terminate the tenancy, the landlord arguably violates the landlord’s obligation to attempt in good faith to resolve the controversy at the meeting.

However, if a tenant repeatedly has breached a lease obligation, the tenant might not be entitled to another opportunity to cure the breach. *See, e.g., Vill. S. Apts. v. Jensen*, No. CA96-10-018, 1997 WL 148067, at *2 (Ohio App., 12th Dist., Mar. 31, 1997); *Vistula Mgmt. Co. v. Armstrong*, No. L-93-168, 1994 WL 262571, at *5 (Ohio App., 6th Dist., June 10, 1994). *Cf. Fed. Prop. Mgmt. v. Brown*, No. 17424, 1999 WL 961275, at *5-6 (Ohio App., 2nd Dist., June 25, 1999) (applying R.C. 5321.11 right to cure).

A landlord may include language in a federal notice of termination that creates an explicit right (in addition to the implicit right) to cure. When the notice informs the tenant to take or cease certain action or the lease will be terminated, and the tenant timely complies with the directive, the landlord may not terminate the tenancy for the underlying issue. *See Rockville Ctr. Hous. Auth. v. Boggen*, 20 Misc.3d 1126(A), 2008 WL 2927834 (N.Y. Dist. Ct. July 31, 2008) (tenant complied with directive: “Please have your guest vacate your apartment immediately or your lease will be terminated and you will be evicted”).

Also, if the reason for the proposed termination of tenancy is tenant conduct that breaches an R.C. 5321.05 obligation that materially affects health and safety, the tenant has a right to cure the breach and thereby avoid a termination of the tenancy under R.C. 5321.11. *See* Sections I.D.2.d and I.D.2.e, above.

In the Public Housing program, a tenant may not have a right to cure the breach during the pendency of a grievance procedure hearing, which generally is held after the expiration of the time period of the federal notice of termination. *See, e.g., Trumbull Metro. Hous. Auth. v. Reid*, No. 3673, 1987 WL 18019 (Ohio App., 11th Dist., Sept. 30, 1987) (reason for termination was tenant’s refusal to sign required releases; tenant contested the termination in the grievance procedure, and sought to cure the breach after the parties had submitted their evidence to the hearing panel but before the panel had rendered its decision; court held that the tenant did not have a right to cure the breach at that time).

F. Administrative Hearing/Meeting, Ohio Case Law

In project-based assisted housing, when a landlord proposes to terminate a tenancy, generally the tenant is entitled to an opportunity to contest the proposed termination in an administrative hearing or a meeting, before the commencement of an eviction action

against the tenant.

Subject to three exceptions, a Public Housing tenant is entitled to an opportunity to contest the proposed termination in an administrative hearing under the housing authority's grievance procedure. 24 C.F.R. §§ 966.4(l)(3), 966.4(n), 966.51(a). The three exceptions are cases in which the termination involves; (1) any criminal activity that threatens the health, safety, or right to peaceful enjoyment of the premises of other residents or housing authority employees, (2) any violent or drug-related criminal activity on or off the premises, or (3) any criminal activity that resulted in felony conviction of a household member. *Id.*

In addition, a Public Housing tenant may file an R.C. Chapter 2506 appeal (see Section XXIV.C, below) from a grievance procedure decision on a proposed termination of tenancy, even if an eviction action has been filed. *Perry v. Akron Metro. Hous. Auth.*, No. CV-05-01-0290 (Ohio C.P., Summit Cty., Feb. 28, 2005). However, pending the R.C. Chapter 2506 appeal, unless the eviction action is stayed, the eviction court will likely enter a final order and thereby determine the R.C. Chapter 2506 appeal under res judicata or collateral estoppel principles. In *Perry*, the court of common pleas entered an order that stayed the pending eviction action in the Cuyahoga Falls Municipal Court, "pending a final decision in the administrative appeal." *Perry v. Akron Metro. Hous. Auth.*, No. CV-05-01-0290 (Ohio C.P., Summit Cty., Mar. 1, 2005).

A project-based subsidized housing tenant is entitled to an opportunity to contest the proposed termination in a meeting with the landlord. 24 C.F.R. § 880.607(c)(1); HUD Handbook 4350.3 REV-1,¹⁹⁵ ¶ 8-13(B). Neither the federal regulations nor due process provide project-based subsidized housing tenants with a right to an administrative hearing. *Perry v. Royal Arms Apts.*, 729 F.2d 1081 (6th Cir. 1984) (no due process right to an administrative hearing). Nonetheless, at the meeting, the landlord is required to attempt to resolve the controversy and thereby avoid the tenant's loss of subsidized housing. *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 434, 597 N.E.2d 554 (2nd Dist. 1992); *Crossroads Somerset Ltd. v. Newland*, 40 Ohio App. 3d 20, 24, 531 N.E.2d 327 (10th Dist. 1987).

Ohio state court decisions on these administrative hearing and meeting rights are set forth below.

¹⁹⁵ For the full citation for this handbook, see note 143, above.

Fed. Prop. Mgmt. v. Brown, No. 17424, 1999 WL 961275 (Ohio App., 2nd Dist., June 25, 1999) (Section 8 New Construction)

The notice of termination stated that the tenant had ten days within which to discuss the proposed termination with the landlord. This satisfied the requirement to provide the tenant with an opportunity to meet with the landlord, notwithstanding the landlord's letter to the tenant, fourteen days earlier, stating that "it is unfortunate that that there is no need to request meetings or telephone to discuss this matter; the context is very clear." The earlier letter did not foreclose the possibility of a meeting between the landlord and tenant. The tenant did not request a meeting in response to the notice of termination.

Vill. S. Apts. v. Jensen, No. CA96-10-018, 1997 WL 148067 (Ohio App., 12th Dist., Mar. 31, 1997) (project-based subsidized housing)

During the required meeting, the landlord told the tenant that there was nothing that she could do to avert the termination of the tenancy because she repeatedly had breached the lease agreement despite numerous warnings. The landlord's position did not deny the tenant the required opportunity to meet with the landlord. The requirement to meet does not require "the landlord to resolve the dispute in a manner favorable to the tenant or to refrain from filing a forcible entry and detainer action simply because the tenant requests a meeting to discuss the termination."

Vistula Mgmt. Co. v. Armstrong, No. L-93-168, 1994 WL 262571 (Ohio App., 6th Dist., June 10, 1994) (Section 8 New Construction)

"While we recognize the purpose of the ten-day meeting required under the federal regulations and realize that a landlord should not enter into a meeting already having decided to evict the tenant, that does not mean that a landlord must absolutely let a tenant cure her breach."

Gorsuch Homes, Inc. v. Wooten, 73 Ohio App.3d 426, 597 N.E.2d 554 (2nd Dist. 1992) (Section 8 New Construction)

"The purpose of the requirement of the federal regulations and the lease agreement that a tenant must be afforded an opportunity to meet with the landlord to discuss a proposed termination of tenancy is to attempt to resolve the controversy in a mutually satisfactory manner, that will, if possible, avoid the tenant's loss of subsidized housing while protecting the rights of the landlord." The landlord's failure to give the tenant an opportunity to meet with the landlord to discuss the notice of proposed termination, after the tenant had requested timely such a meeting, was grounds to reverse the eviction judgment.

Chautauqua Park Apts. v. McMullen, No. 791, 1992 WL 303139 (Ohio App., 4th Dist., Oct. 14, 1992) (project-based subsidized housing)

The landlord met the requirement for a meeting even though the landlord's agent at the meeting did not have personal authority to halt the proposed termination of tenancy. The landlord's agent at the meeting "served as a conduit through which appellants [tenants] could reach the party who did have authority." Nothing in the record suggests that the tenant's arguments were not listened to and given due consideration.

Crossroads Somerset Ltd. v. Newland, 40 Ohio App.3d 20, 531 N.E.2d 327 (10th Dist. 1987) (project-based subsidized housing)

At the meeting between the landlord and tenant, the parties are required to attempt to resolve whatever problems gave rise to the notice of termination.

Trumbull Metro. Hous. Auth. v. Reid, No. 3673, 1987 WL 18019 (Ohio App., 11th Dist., Sept. 30, 1987) (Public Housing)

The tenant did not have a right to cure, during the pendency of her grievance procedure hearing, her prior refusal to furnish certain income verification information.

Fitzpatrick v. Wallick Props., Inc., No. L-83-036, 1983 WL 6817 (Ohio App., 6th Dist., June 3, 1983) (Section 8 New Construction)

The landlord's cancellation of an informal meeting, which had been scheduled pursuant to 24 C.F.R. § 880.607, and the landlord's failure to afford the tenant any other opportunity to meet with the landlord, did not prejudice the tenant and therefore were not grounds to reverse the eviction judgment.

Independent Mgmt. Servs. of Ohio, Inc. v. Davis, No. 2014-CVG-01244 (Ohio Mun., Elyria, July 18, 2014) (project-based subsidized housing)

The meeting "is not a mere formality, but confers on Defendant, beneficiary of the federal subsidy, a first chance at procedural due process to meet with Plaintiff to avoid the potential termination." Held the notice of termination invalid because it "suggests that the decision to terminate Defendant's tenancy already occurred" and thus "[i]t is not clear what benefit could be derived from the tenant's 'discussion' of a matter already decided."

Akron Metro. Hous. Auth. v. Wilkinson, No. 2001-CVG-110 (Ohio Mun., Akron, April 25, 2001) (Public Housing)

The housing authority asserted two grounds for termination of the tenancy. With respect to one (*i.e.*, unauthorized occupant), the tenant was entitled to an opportunity for a grievance procedure hearing. With respect to the other (*i.e.*, drug-related criminal activity), the tenant was not entitled to an opportunity for a grievance procedure hearing. In such circumstances, the housing authority may not serve the R.C. 1923.04 notice to vacate until after the tenant has been afforded an opportunity for a grievance procedure hearing on the relevant ground.

Plains Plaza Ltd. v. Rupe, No. 90-CVG-11-43 (Ohio Mun., Athens Cty., Mar. 11, 1991) (Section 8 New Construction)

Under 24 C.F.R. § 880.607 and HUD Handbook 4350.3, ¶ 4-20 (now HUD Handbook 4350.3 REV-1,¹⁹⁶ ¶ 8-13(B)), the landlord's failure to meet with the tenant and meaningfully discuss the proposed termination of tenancy prior to filing the eviction action deprived the court of jurisdiction to evict the tenant. Settlement discussions between counsel for the parties and discovery proceedings are not a substitute for the required informal meeting between the landlord and tenant. At the required informal meeting, the landlord's representative must be an impartial decision maker.

Plains Plaza, Ltd. v. McKinley, No. CIG-90-5-34 (Ohio Mun., Athens Cty., Feb. 8, 1991) (Section 8 New Construction)

The landlord failed to provide the tenant with an informal meeting that satisfied the requirements of HUD Handbook 4350.3 (now HUD Handbook 4350.3 REV-1, ¶ 8-13(B)) because the landlord's representative at the meeting had been involved with the gathering of the disputed information.

Lorain Metro. Hous. Auth. v. Lawson, 40 Ohio Misc.2d 25, 532 N.E.2d 1323 (Ohio Mun., Elyria, 1987) (Public Housing)

The housing authority's failure to comply with several grievance procedure requirements (24 C.F.R. §§ 966.54-.58) was a valid defense to the eviction action.

Deerwood Mgmt. Co. v. Flint, No. M85-CVG-24397 (Ohio Mun., Franklin Cty., Oct. 15, 1985) (Section 8 Additional Assistance)

24 C.F.R. § 886.128 required the landlord to give the tenant a meaningful opportunity to be heard at a meeting. The meeting is not a mere formality. The meeting must be conducted by an agent for the landlord who is at least willing to listen and consider the stated position of the tenant. This standard was not met because the landlord's agent had his mind made up before the meeting was commenced. [Note: the requirement in issue here has since been deleted from 24 C.F.R. § 886.128, but it still exists in HUD Handbook 4350.3 REV-1, ¶ 8-13(B).]

Dayton Metro. Hous. Auth. v. Westfall, No. 79-CVG-7932 (Ohio Mun., Dayton, Oct. 15, 1979) (Public Housing)

Where the tenant's alleged breach of the lease concerned a fight between the tenant's child and a neighbor's child, it was not unreasonable for the housing authority to consider the alleged breach to be a threat to health and safety as defined at 24 C.F.R. §§ 866.4(l)(2)(ii) and 866.51 (redesignated §§ 966.4(l)(2)(ii) and 966.51). Therefore, under 24 C.F.R. § 866.51, the housing authority was authorized to deny the tenant an

¹⁹⁶ For the full citation for this handbook, see note 143, above.

opportunity to contest the proposed eviction in the housing authority's grievance procedure.

G. Good Cause, Ohio Case Law

1. Nonpayment of Rent

a. Circumstances Beyond Tenant's Control

Nonpayment of rent is not good cause to terminate an assisted housing tenancy if: (1) it is due to circumstances beyond the tenant's control, (2) the tenant promptly informs the landlord of the circumstances, and (3) the tenant makes diligent efforts to pay the rent. *E.g.*, *Stark Metro. Hous. Auth. v. Ruffin*, No. CA-8751, 1992 WL 147443 (Ohio App., 5th Dist., June 15, 1992), *on remand*, No. 91-CVG-5463 (Ohio Mun., Canton, Oct. 2, 1992) (late welfare payment); *Fairborn Apts. v. Herman*, No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991) (purse stolen and non-receipt of child support payment); *Cincinnati Metro. Hous. Auth. v. Green*, 41 Ohio App.3d 365, 536 N.E.2d 1 (1st Dist. 1987) (money stolen); *Northlake Hills Coop., Inc. v. Barrett*, No. 9699, 1987 WL 14238 (Ohio App., 2nd Dist., Dec. 8, 1986) (money stolen); *Showe Mgmt. Corp. v. Bickmeyer*, No. 06-CVG-00631 (Ohio Mun., Licking Cty., Apr. 19, 2006) (Bureau of Child Support failed to forward child support payments); *Stark Metro. Hous. v. Short*, No. 96-CVG-1298 (Ohio Mun., Canton, July 9, 1996) (husband abandoned household); *Lima Towers v. Franklin*, No. 96-CVG-00191 (Ohio Mun., Lima, Apr. 8, 1996) (purse stolen); *New Prince Hall Hous. Auth. v. Thornton*, No. 91-CVG-1754 (Ohio Mun., Clark Cty., July 9, 1991) (Worker's Compensation benefits temporarily stopped); *Dayton Metro. Hous. Auth. v. Lawson*, No. 85-CVG-9998 (Ohio Mun., Dayton, Nov. 20, 1985) (late welfare payment); *Dayton Metro. Hous. Auth. v. Cantrell*, No. 85-CVG-7589 (Ohio Mun., Dayton, Oct. 10, 1985) (late welfare payment); *Dayton Metro. Hous. Auth. v. Thompson*, No. 80-CVG-9597 (Ohio Mun., Dayton, Dec. 3, 1980) (initial welfare payment delay); *Belvoir Cliffs Apts. v. Bembry*, 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978) (initial welfare payment delay). *See also Cincinnati Metro. Hous. Auth. v. Cockrell*, No. C-070647 (Ohio App., 1st Dist., Dec. 17, 2008) (recognizes the defense, but upholds the finding that the nonpayment was not due to circumstances beyond the tenant's control); *Stark Metro. Hous. Auth. v. McQueen*, No. CA-8422, 1991 WL 136099 (Ohio App., 5th Dist., July 15, 1991) (remand for factual findings on the cause for termination).

One Ohio appellate court held that, in the appeal, a ruling on the “beyond tenant’s control” issue was premature because the trial court had failed “to resolve the underlying issue of whether a single missed payment of rent is sufficient to warrant eviction from federally assisted public housing.” *CMHA v. Manns*, No. 107156, 2019 WL 1755414, ¶ 15 (Ohio App., 8th Dist., Apr. 18, 2019). The court remanded the case for further proceedings to resolve that issue. *Id.*

A deduction of child support payments is not a circumstance beyond the tenant’s control. See *Cincinnati Metro. Hous. Auth. v. Edwards*, 174 Ohio App.3d 174, 881 N.E.2d 325 (1st Dist. 2007) (child support payments deducted from Social Security disability payments).

b. Improperly Calculated Rent

Nonpayment of an improperly calculated rent is not good cause to terminate an assisted housing tenancy. “A landlord of federally subsidized housing has good cause to terminate a tenant for nonpayment of rent only if the landlord has properly determined the amount of rent that the tenant owes.” *New Longwood Assocs. v. Smith*, No. 2006-CVG-7635, slip op. at 3 (Ohio Mun. Cleveland, Hous. Div., May 1, 2006).

The improper rent computations for which courts have denied a landlord’s eviction claim for nonpayment of rent frequently have been a landlord’s failure to compute (or to compute properly) an interim rent revision. *E.g., Amherst Vill. Mgmt. v. Vestal*, No. WD-99-075, 2000 WL 1595719 (Ohio App., 6th Dist., Oct. 27, 2000) (failure to grant interim rent reduction for change in household composition); *Gold Key Realty v. Harris*, No. 03-CVG-00475 (Ohio Mun., Fairborn, Apr. 22, 2003) (improper effective date of interim rent decrease); *Cuyahoga Metro. Hous. Auth. v. Binion*, No. 2002-CVG-5589 (Ohio Mun., Cleveland, Hous. Div., Aug. 29, 2002) (failure to grant interim rent reduction for loss of employment); *Amherst Vill. Mgmt. v. Bock*, No. 99-CVG-00259 (Ohio Mun., Bowling Green, Mar. 30, 1999) (improper effective date of interim rent increase); *Skyline Terrace Apts. v. Brunner*, No. 97-CVG-6830 (Ohio Mun., Canton, Mar. 3, 1998) (failure to grant timely interim rent reduction for loss of employment); *Pendergrass v. Kelly*, No. M9110-CVG-036723 (Ohio Mun., Franklin Cty., Feb. 3, 1992) (failure to grant interim rent reduction for loss of employment); *Hiland Land Terrace v. Bartley*, No. 90-CVG-222 (Ohio Mun., Hillsboro, Nov. 14, 1990) (failure to grant interim rent reduction).

Other improper rent computations for which courts have denied a landlord’s eviction claim for nonpayment of rent include: *Boardwalk Glenville Apts. v. Cage*, No.

2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007) (improper rent increase to market rent); *New Longwood Assocs. v. Smith*, No. 2006-CVG-7635 (Ohio Mun. Cleveland, Hous. Div., May 1, 2006) (improper estimate of self-employed tenant's annual income); *Cuyahoga Metro. Hous. Auth. v. Binion*, No. 2002-CVG-5589 (Ohio Mun., Cleveland, Hous. Div., Aug. 29, 2002) (failure to disregard certain earned income); *Lorain Metro. Hous. Auth. v. Cajka*, No. 88-CVG-1065 (Ohio Mun., Lorain, Feb. 6, 1989) (improper computation of tenant's income by including monthly child support payments that were deducted from his pay by wage assignment);¹⁹⁷ *Agler Green Coop. v. Frost*, No. M88-CVG-13272 (Ohio Mun., Franklin Cty., May 20, 1988) (improper rent increase to market rent); *Hilltop Vill. v. West*, No. CVG-85-16250 (Ohio Mun., Toledo, Hous. Div., Jan. 27, 1986) (improper rent increase to market rent).¹⁹⁸ See also *Weldon Square Apts. v. Lyons*, No. 84AP-06, 1985 WL 9901 (Ohio App., 10th Dist., Mar. 19, 1985) (landlord estopped from evicting tenant for nonpayment of rent where tenant notified landlord of her loss of employment and landlord failed to advise her of verification procedure for obtaining federal rent subsidy that would have reduced her rental obligation); *Pauley v. Columbus Metro. Hous. Auth.*, No. 07-CVF-12-17104 (Ohio C.P., Franklin Cty., Nov. 5, 2008) (failure to grant hardship exemption from minimum rent; eviction action stayed to permit tenant to exercise this right).

c. Improper Rent Deposit

Nonpayment of rent is not good cause to terminate an assisted housing tenancy if the tenant timely deposited rent with the clerk of court under R.C. 5321.07 and, thereafter, the court released the deposited rent to the landlord because of the tenant's noncompliance with the R.C. 5321.07 written notice requirement. *Real Props. Servs. Mgmt. v. Anatra*, No. 3-96-22, 1997 WL 430778 (Ohio App., 3rd Dist., July 30, 1997); *Real Props. Servs. Mgmt. v. Harigle*, No. 3-96-21, 1997 WL 430773 (Ohio App., 3rd Dist., July 30, 1997).

¹⁹⁷ The *Cajka* conclusion on the underlying rent computation issue – deducted child support payments are not income for the rent computation – was thereafter rejected in HUD Handbook 4350.3 REV-1, ¶ 5-10(F) (see note 143, above) and *Cincinnati Metro. Hous. Auth. v. Edwards*, 174 Ohio App.3d 174, 881 N.E.2d 325 (1st Dist. 2007) (2-1 decision).

¹⁹⁸ One court has held that a landlord's improper rent increase to market rent is not a defense to an eviction action, if the tenant fails to tender the pre-rent increase amount. *Showe Mgmt. Corp. v. Hazelbaker*, No. CA2005-11-031, 2006 WL 1976760 (Ohio App., 12th Dist., July 17, 2006).

d. Rent Refused Due to Unpaid Charge

An assisted housing landlord may not refuse a tenant's tender of rent, on the basis of the tenant's nonpayment of a charge, and then evict the tenant for nonpayment of rent. *Lorain Metro. Hous. Auth. v. Noel*, No. 06-CA-009006, 2007 WL 1661854 (Ohio App., 9th Dist., June 11, 2007) (maintenance charge). *See also Seldin Co. v. Calabro*, 702 N.W.2d 504 (Iowa App. 2005) (late payment fee); *Watertown Hous. Auth. v. Kirkland*, 2 Misc.3d 280, 766 N.Y.S.2d 790 (City Ct. 2003) (utility and maintenance charges). *But see Wilmington Green III v. Rickman*, No. CA90-07-013, 1991 WL 81850 (Ohio App., 12th Dist., May 13, 1991) (late payment fee).¹⁹⁹

In *Noel*, the landlord assessed the tenant a \$50 maintenance charge, in addition to her \$32 per month rent, and refused to accept the tenant's tender of rent without payment of the maintenance charge as well. "By including the maintenance charge in the rent statement and demanding the payment of either all or none, then by suing to terminate appellee's [tenant's] tenancy solely on the basis of the non-payment of rent, appellant [landlord] has effectively expanded the definition of rent to encompass other charges." *Noel*, 2007 WL 1661854, at *3. The court held that this is impermissible and, thereupon, upheld the eviction judgment in favor of the tenant.

In these circumstances, a landlord may seek to terminate the tenancy for nonpayment of the maintenance charge. *Noel*, 2007 WL 1661854, at *3. A termination for nonpayment of a charge differs from a termination for nonpayment of rent in at least four respects. First, the nonpayment of the charge may be a minor violation of the lease and thus not good cause to terminate the tenancy. See Section III.G.3, below. Second, before an assisted housing landlord may terminate a tenancy for nonpayment of a disputed charge, there may be a requirement for an opportunity for a prior hearing before a neutral adjudicator. See Section III.G.3, below. Third, for Public Housing, the notice requirement for nonpayment of a charge differs from the notice requirement for nonpayment of rent. See 24 C.F.R. § 966.4(l)(3). Fourth, the charge may arise from a violation of R.C. 5321.05, which triggers the tenant's right to a notice and an opportunity to cure under R.C. 5321.11. See Section I.D.2, above.

An additional factor prohibits a landlord from refusing a tenant's tender of rent and then evicting for nonpayment of rent, if the refusal is based on the tenant's nonpayment

¹⁹⁹ Based on the sound reasoning in *Noel* and *Calabro*, the holding in *Rickman* is erroneous.

of a late payment fee. HUD Handbook 4350.3 REV-1,²⁰⁰ ¶ 6-23(F) expressly prohibits a subsidized housing landlord from evicting a tenant for nonpayment of a late payment fee. Therefore, a landlord's eviction action for nonpayment of rent in these circumstances is simply an attempt to do indirectly what it is prohibited from doing directly. *Seldin Co. v. Calabro*, 702 N.W.2d 504, 507 (Iowa App. 2005).

2. Late Tender of Rent

A late tender of rent, if tendered a few days late, is a minor violation of the lease and, for that reason, may fail to constitute good cause to terminate an assisted housing tenancy (see Section III.G.12, below). *E.g.*, *Sumac Real Estate Holding, LLC v. Mitchell*, No. 2014-CVG-00670 (Ohio Mun., Euclid, Apr. 18, 2014); *Jenkins v. Rung*, No. 93-CVGT-601 (Ohio Mun., Miami Cty., July 5, 1993) (five days late); *Columbus Metro. Hous. Auth. v. Baker*, No. 91-CVG-010490 (Ohio Mun., Franklin Cty., Apr. 19, 1991) (one day late). *See also Gersten Cos. v. Deloney*, 212 Cal. App.3d 1119, 261 Cal. Rptr. 431 (1989) (five days and seven days late). *Cf. Skyline Terrace Apts. v. Pease*, No. 95-CVG-2392 (Ohio Mun., Canton, July 17, 1995) (“in the interest of fair play, one should not be evicted from her residence for being a day or two late”); *Amherst Vill. Mgmt. Co. v. Martinez*, No. 97-CVG-00620 (Ohio Mun., Bowling Green, July 15, 1997) (two days late under repayment agreement for rent arrearage).

A late tender of rent, with a tender of the late payment fee, if tendered within the month that the rent is due, is not good cause to terminate an assisted housing tenancy “where the tardiness was not flagrant or for long periods of time.” *Park Forest of Blackman v. Smith*, 112 Mich. App. 421, 429, 316 N.W.2d 442 (1982). For subsidized housing tenancies, it is not good cause to terminate the tenancy even if the tenant repeatedly makes such payments, unless it has an adverse impact on the building, as defined in 24 C.F.R. § 247.3(c)(2). *Am. Nat’l Bank & Trust Co. v. Dominick*, 154 Ill. App.3d 275, 280 n.3, 507 N.E.2d 512 (1987).²⁰¹

Also, a lease provision imposing a late payment fee arguably “implies that the only penalty for a late rental payment is the late fee charge, not termination of the lease.” *Park Forest of Blackman v. Smith*, 112 Mich. App. 421, 428-29, 316 N.W.2d 442 (1982). *Accord Vistula Mgmt. Co. v. Armstrong*, No. L-93-168, 1994 WL 262571, at

²⁰⁰ For the full citation for this handbook, see note 143, above.

²⁰¹ In these circumstances, the tenant also may have a defense based on the landlord's course of conduct of accepting late rent payments. See Section II.H, above.

*6 (Ohio App., 6th Dist., June 10, 1994) (“While paragraph five of the lease [providing for a late payment fee if rent is paid after the fifth day of a month] may evidence an obligation to accept late rent, at least in an isolated incidence where a tenant tenders rent past the fifth business day of the month, this does not mean that a landlord must continually accept late rent since the lease itself provides for termination for material noncompliance, which is defined as ‘repeated late payment of rent’”); *Sumac Real Estate Holding, LLC v. Mitchell*, No. 2014-CVG-00670, slip op. at 5 (Ohio Mun., Euclid, Apr. 18, 2014) (“A lease provision in posing a late fee implies that the only penalty for a late rental payment is the late fee charge, not termination of the lease”).

An assisted housing landlord’s promise to accept rent by a certain date, which is after the lease due date, might not be enforceable. *See, e.g., Marshall Plaza v. Watkins*, No. 4161, 1987 WL 12113 (Ohio App., 9th Dist., June 3, 1987).

3. Nonpayment of a Charge

Nonpayment of a late payment fee is not good cause to terminate a project-based subsidized housing tenancy. HUD Handbook 4350.3 REV-1,²⁰² ¶ 6-23(F). *E.g., Waterside Estate Apts. v. Keen*, No. 94-CVG-2296 (Ohio Mun., Massillon, Dec. 13, 1994). *See also Seldin Co. v. Calabro*, 702 N.W.2d 504 (Iowa App. 2005).

Nonpayment of a small charge may be a minor violation of the lease and, for that reason, may fail to constitute good cause to terminate an assisted housing tenancy (see Section III.G.12, below). *E.g., Lorain Metro. Hous. Auth. v. Johnson*, No. 2021-CVG-01447 (Ohio Mun., Elyria, Aug. 13, 2021) (tenant without income unable to pay charge for locks installed for security concerns and annual fee (\$57.27) for seasonal use of PHA’s air conditioner in a high-rise unit); *Dayton Inv. Group-7 v. Lathern*, No. 15866, 1996 WL 741822 (Ohio App., 2nd Dist., Dec. 13, 1996) (\$10, \$11, and \$25 charges); *Jones v. Burns*, No. R90-CVG-2776 (Ohio Mun., Portage Cty., Nov. 29, 1990) (\$3 charge); *ABC Mgmt. Co. v. Williams*, No. M86-CVG-34323 (Ohio Mun., Franklin Cty., Nov. 19, 1986) (\$5 and \$10 charges). *Cf. Sumner v. McKinley*, No. M9306-CVG-17388 (Ohio Mun., Franklin Cty., July 30, 1993) (equity, \$20 charge).

Nonpayment of a disputed charge may be good cause to commence an eviction action against an assisted housing tenant, provided certain procedural requirements have been satisfied. One appellate court has held that, before an assisted housing landlord may commence an eviction action against a tenant for nonpayment of a

²⁰² For the full citation for this handbook, see note 143, above.

disputed charge, the tenant “must be afforded an opportunity to be heard before a neutral adjudicator,” before whom the tenant must be afforded “an opportunity to confront and to cross-examine adverse witnesses.” *Gorsuch Homes, Inc. v. Wooten*, 73 Ohio App.3d 426, 429, 597 N.E.2d 554 (2nd Dist. 1992). Since the reference to the right to confront and cross-examine adverse witnesses would be unnecessary if the neutral adjudication required a court action (and judgment), it suggests that the neutral adjudication may be an administrative hearing.

However, one municipal court has held that, before an assisted housing landlord may commence an eviction action against a tenant for nonpayment of a disputed charge, the landlord must obtain a court judgment that establishes both the existence and the amount of the tenant’s liability. *Wilmington Green Apts. v. Estep*, No. 88-CVG-64 (Ohio Mun., Wilmington, Apr. 7, 1988). *Cf. Hous. Auth. of City of Atlantic City v. Taylor*, 171 N.J. 580, 796 A.2d 193 (2002) (nonpayment of a charge cannot serve as basis for eviction for nonpayment of rent, but may serve as basis for action for monetary judgment). The *Estep* court further held that, if the landlord obtains a monetary judgment and the tenant fails to satisfy it, the landlord may then commence an eviction action against the tenant for nonpayment of the monetary judgment.

4. Recertification – Failure to Furnish Information

a. Project-Based Assisted Housing – Termination or Market Rent

If a project-based assisted housing tenant fails to furnish (or furnishes inaccurate) information at a recertification, the landlord is permitted, in some circumstances: (i) to terminate the tenancy, *e.g.*, *Trumbull Metro. Hous. Auth. v. Reid*, No. 3673, 1987 WL 18019 (Ohio App., 11th Dist., Sept. 30, 1987); *Cincinnati Metro. Hous. Auth. v. Cox*, No. 01-CV-24085 (Ohio Mun., Hamilton Cty., June 4, 2002); or (ii) alternatively, to terminate the tenant’s rent subsidy, increase the tenant’s rent to market rent, and, upon the tenant’s nonpayment of the market rent, evict the tenant for nonpayment of the market rent, *e.g.*, *Woodruff Vill. Apts. v. Jones*, No. L-90-145, 1991 WL 35165 (Ohio App., 6th Dist., Mar. 15, 1991); *Newark Green v. Hull*, No. CA-3532, 1990 WL 125477 (Ohio App., 5th Dist., Aug. 24, 1990); *Vesta Corp. v. Jones*, No. 2017-CVG-01908 (Ohio Mun., Elyria, Jan. 2, 2019). *See also* HUD Handbook 4350.3 REV-1,²⁰³

²⁰³ For the full citation for this handbook, see note 143, above.

¶¶ 8-3 to 8-7.

The landlord's right to terminate the tenancy or the rent subsidy in these circumstances is subject to at least three requirements.

First, the landlord may terminate the tenancy or the rent subsidy in these circumstances only if the tenant's omission or misrepresentation of information is fraudulent. HUD Handbook 4350.3 REV-1, ¶¶ 8-13(A), 8-17, and 8-18. To establish the requisite fraud in these cases, the landlord must prove each of the common law elements of fraud, including intent. *See Powell v. D.C. Hous. Auth.*, 818 A.2d 188 (D.C. App. 2003).

Unintentional omissions or errors do not constitute the requisite fraud. HUD Handbook 4350.3 REV-1, ¶¶ 8-13(A), 8-17, and 8-18. *See also Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007); *Chancellor Manor v. Thibodeaux*, 628 N.W.2d 193 (Minn. App. 2001).

Second, the landlord may terminate the tenancy or the rent subsidy in these circumstances only if the landlord has complied with the recertification notice requirements (relative to content and service). If the landlord fails to comply with those requirements, the termination of the rent subsidy and the rent increase to market rent is invalid and unenforceable. *Hidden Meadows Townhomes v. Ross*, No. C-120045, 2012 WL 6674412 (Ohio App., 1st Dist., Dec. 21, 2012); *Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244 (Ohio Mun., Elyria, July 18, 2014). *See also Somerset Homes v. Woodard*, 2014 WL 2574037 (N.J. Super., App. Div., 2014) (eviction action); *Lower E. Side I Assocs. LLC v. Estevez*, 9 Misc.3d 632, 787 N.Y.S.2d 636 (Civ. Ct. 2004) (money claim for market rent).

When the market rent is invalid and unenforceable for these or other reasons, the landlord is then barred from evicting the tenant for nonpayment of the market rent. *Hidden Meadows Townhomes v. Ross*, No. C-120045, 2012 WL 6674412 (Ohio App., 1st Dist., Dec. 21, 2012) (improper notices); *Independent Mgmt. Servs. of Ohio, Inc. v. Davis*, No. 2014-CVG-01244 (Ohio Mun., Elyria, July 18, 2014) (improper notices); *Boardwalk Glenville Apts. v. Cage*, No. 2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007) (absence of good cause). *See also Somerset Homes v. Woodard*, 2014 WL 2574037 (N.J. Super., App. Div., 2014) (improper notices). When an assisted housing landlord brings an eviction action for nonpayment of the market rent, the tenant has a right to challenge in the eviction action the basis for the landlord's decision to raise the rent to the market rent. *Id.*

Third, when a tenant does not report income because the tenant is unaware of its

existence, the tenant has not breached his recertification reporting requirements and is not liable for any rent increase based on the unknown income. *Ezzard Charles Apts. v. Collins*, No. 12-CV-22452 (Ohio Mun., Hamilton Cty., Dec. 5, 2013). In these circumstances, since any increase in the tenant's rent based on the unknown income is invalid, the landlord may not evict the tenant for nonpayment of the increased rent. *Id.*

b. Housing Choice Voucher Program

In the Housing Choice Voucher program ("HCVP"), if a family fails to furnish (or furnishes inaccurate) information at a recertification, the housing authority is permitted, in some circumstances, to terminate the family's participation in the HCVP and thereby terminate the family's HCVP lease.

One of the HCVP family obligations is to "supply any information requested by the PHA or HUD for use in a regularly scheduled reexamination or interim reexamination of family income or composition in accordance with HUD requirements." 24 C.F.R. § 982.551(b)(2). A violation of the HCVP family obligations is grounds for terminating the family's HCVP participation. 24 C.F.R. § 982.552(c)(1)(i). If the family's HCVP participation is terminated, the family's lease terminates automatically. HUD Tenancy Addendum, form HUD-52641-A (July 2019), ¶ 13.

However, if the family's failure to report full and accurate information is an unintentional error, and not fraud, it is not grounds for terminating the family's HCVP participation. *McClarty v. Greene Metro. Hous. Auth.*, No. 2011-CA-30, 2011 WL 3890295 (Ohio App., 2nd Dist., Sept. 2, 2011); *Smith v. Hamilton County, Ohio*, No. C-060315, 2007 WL 1095680 (Ohio App., 1st Dist., Apr. 13, 2007). See also *Sweeney v. Hous. Auth. of Chester County*, 215 B.R. 97 (Bankr. E.D. Pa. 1997); *Ellis v. Ritchie*, 803 F. Supp. 1097 (E.D. Va. 1992).

5. Unauthorized Occupant/Authorized Guest

Assisted housing tenants have a right to provide their guests with reasonable accommodations. *E.g.*, 24 C.F.R. § 966.4(d)(1). However, they may not permit a person to become an occupant of the premises without management authorization. *E.g.*, subsidized housing lease,²⁰⁴ ¶ 13.

The lease identifies the permissible occupants of the premises. Subsidized housing

²⁰⁴ For the definition of "subsidized housing lease," see note 174, above.

lease, ¶ 13 (project-based subsidized housing); 24 C.F.R. § 982.551(h) (HCVP); 24 C.F.R. § 966.4(d)(1) (Public Housing).

If an assisted housing tenant permits a person to become an unauthorized occupant of the premises, it is good cause to terminate the tenancy. *E.g.*, *Streetsboro Green Apts. v. Rundo*, No. 90-P-2145, 1990 WL 174140 (Ohio App., 11th Dist., Nov. 9, 1990).

However, HUD Handbook 4350.3 REV-1,²⁰⁵ ¶ 8-13(A)(4) categorizes an unauthorized occupant violation as a minor violation of the lease. Therefore, at least for project-based subsidized housing, an unauthorized occupant is grounds to terminate a tenancy only if it is a repeated violation (see Section III.G.12) and it adversely affects the development under one (or more) of the factors specified in 24 C.F.R. § 247.3(c)(2).

For a discussion on guest issues and the related law (including law that applies only to assisted housing), see Section VII.G, below. Those issues concern registration and/or prior approval policies for overnights guests or short-term visitors, the matter of when a short-term visitor becomes an unauthorized occupant, a tenant's right to invite guests, and the interplay between that right and a landlord's ban of certain persons.

6. Non-Criminal Conduct of Tenant's Child

"It is understandable that there is some level of noise coming from the normal day to day activity of a household with two small children." *New Longwood Assocs. v. Perry*, No. 09-CVG-12567, slip op. at 11 (Ohio Mun., Cleveland, Hous. Div., Apr. 22, 2010). The noise associated with a tenant's child is not good cause to terminate an assisted housing tenancy if the noise is "the normal, daily noises associated with children and the by-product of living with them and raising them." *Fairborn Apts. v. Walker*, No. 91-CVG-356 (Ohio Mun., Fairborn, July 24, 1991). *Accord New Longwood Assocs. v. Perry*, No. 09-CVG-12567 (Ohio Mun., Cleveland, Hous. Div., Apr. 22, 2010); *Vistula Mgmt. Co. v. Scott*, No. 92-CVG-76 (Ohio Mun., Fremont, May 6, 1992).

In some circumstances, the improper conduct of a tenant's child is not good cause to terminate an assisted housing tenancy if: (1) it is the first instance of such conduct, (2) the tenant had no knowledge of the child's conduct, and/or (3) the tenant could not

²⁰⁵ For the full citation for this handbook, see note 143, above.

reasonably have foreseen or prevented the child's conduct.

This standard has been applied when, based on the child's improper conduct, the landlord alleges a violation of a lease provision under which the tenant agrees not to permit certain conduct.²⁰⁶ *E.g.*, *Mid-Northern Mgmt., Inc. v. Heinzeroth*, 234 Ill. App.3d 240, 599 N.E.2d 568 (1992) ("not to make or permit noises or acts that will disturb the rights or comfort of neighbors," subsidized housing lease,²⁰⁷ ¶ 13(e)). *Cf.* *Investors Diversified Prop. Mgmt., Inc. v. Brown*, No. 87-360-II, 1988 WL 102781 (Tenn. App. Oct. 7, 1988) (applies this standard where an eleven-year-old son violated a lease provision barring violent acts by any household member).

The improper or unlawful conduct of a tenant's non-household member child is not good cause to terminate an assisted housing tenancy if the conduct occurs when the child is not a guest. *E.g.*, *Stark Metro. Hous. Auth. v. Marshall*, No. 95-CVG-0676 (Ohio Mun., Canton, May 15, 1995). *See also* *Hous. Auth. of City of Jersey City v. Thomas*, 318 N.J. Super. 191, 723 A.2d 119 (1999); *Charlotte Hous. Auth. v. Fleming*, 123 N.C. App. 511, 473 S.E.2d 373 (1996); *Edwards v. Christian*, 61 A.D.2d 1045, 403 N.Y.S.2d 119 (1978). For a discussion on conduct of uninvited guests generally, see Section III.G.10., below.

The improper or unlawful conduct of a tenant's non-household member child may be good cause to terminate an assisted housing tenancy if the conduct occurs when the child is a guest. *Chavez v. Hous. Auth. of City of El Paso*, 973 F.2d 1245 (5th Cir. 1992).

7. Non-Criminal Conduct of Guest

The improper conduct of a guest may be good cause to terminate an assisted housing tenancy. *E.g.*, *Agler Green Coop. v. Rivers*, No. 87AP-915, 1988 WL 37063 (Ohio App., 10th Dist., Mar. 29, 1988). *See also* *Chavez v. Hous. Auth. of City of El Paso*, 973 F.2d 1245 (5th Cir. 1992).

However, in some circumstances, the conduct of a guest is not good cause to terminate an assisted housing tenancy if: (1) the tenant neither knows nor has reason to know that the guest is inclined to engage in improper conduct, (2) the tenant had no knowledge of the guest's improper conduct, and/or (3) the tenant could not reasonably

²⁰⁶ For cases applying a similar standard relative to the conduct of the tenant's guest, see Section III.G.7, below.

²⁰⁷ For the definition of "subsidized housing lease," see note 174, above.

have foreseen or prevented the guest's improper conduct.

This standard has been applied when, based on the guest's improper conduct, the landlord alleges a violation of a lease provision under which the tenant agrees not to permit certain conduct.²⁰⁸ *E.g.*, *Akron Metro. Hous. Auth. v. Harris*, No. 92-CVG-3133 (Ohio Mun., Cuyahoga Falls, May 12, 1993) ("refrain from and cause other persons who are on the premises with the tenant's consent to refrain from illegal or other activity which impairs the physical or social environment of the development," housing authority lease). *See also Chicago Hous. Auth. v. Rose*, 203 Ill. App.3d 208, 560 N.E.2d 1131 (1990) (not to permit guns in the rental unit); *Henry v. Wild Pines Apts.*, 183 Ga. App. 491, 359 S.E.2d 237 (1987) ("not to make or permit noises or acts that will disturb the rights or comfort of neighbors" and "not to engage in or permit unlawful activities in the unit, in the common areas, or on the project grounds," subsidized housing lease,²⁰⁹ ¶¶ 13(c),(e)); *Peabody Props., Inc. v. Donnelly*, No. 18066 (Mass. Super., Bristol Cty., Apr. 26, 1985), *aff'd without opinion*, 22 Mass. App. Ct. 1101, 490 N.E.2d 817 (1986) ("not to make or permit noises or acts that will disturb the rights or comfort of neighbors" and "not to engage in or permit unlawful activities in the unit, in the common areas, or on the project grounds," subsidized housing lease, ¶¶ 13(c),(e)).

R.C. 5321.05(A)(6) establishes a similar standard for terminating a tenancy based on the improper conduct of a guest, and it may apply to assisted housing tenancies. It requires a tenant to "personally refrain and forbid any other person who is on the premises with his permission from intentionally or negligently destroying, defacing, damaging, or removing any fixture, appliance, or other part of the premises."

The R.C. 5321.05(A)(6) standard does not make the tenant strictly liable for a guest's improper conduct. *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d 66, 545 N.E.2d 920 (9th Dist. 1988). "R.C. 5321.05(A)(6) does not require the tenant to prevent damage to the leased premises, but rather personally to refrain from such activity and to forbid others from engaging in it." *DAK, PLL v. Borgerding*, No. 02AP-1051, 2003 WL 21469136, ¶ 18 (Ohio App., 10th Dist., June 26, 2003).

Therefore, a tenant is not liable under R.C. 5321.05(A)(6) for a guest's improper

²⁰⁸ For cases applying a similar standard relative to the conduct of the tenant's child, see Section III.G.6, above.

²⁰⁹ For the definition of "subsidized housing lease," see note 174, above.

conduct: (1) if the tenant was not in the rental unit when the guest engaged in the conduct, *Uptown Cmty. Partners, L.P. v. Killings*, No. C-110012, 2011 WL 5438652 (Ohio App., 1st Dist., Nov. 10, 2011); (2) if the tenant was unaware of the conduct, *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d at 67-68; *Ohio Cas. Ins. Co. v. Wills*, 29 Ohio App.3d 219, 504 N.E.2d 1164 (3rd Dist. 1985); (3) if, upon observing the conduct, the tenant verbally commands the guest to discontinue it, *Wills*, 29 Ohio App.3d at 221; or (4) if the damage to the leased premises is the result of the guest's assault of the tenant, *DAK, PLL v. Borgerding*, 2003 WL 21469136, ¶ 18. See Section VII.D.3, below.

R.C. 5321.06 bars any lease provision that is inconsistent with the R.C. 5321.05(A)(6) standard. *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d 66, 545 N.E.2d 920 (9th Dist. 1988).

Therefore, an assisted housing lease is subject to the R.C. 5321.05(A)(6) standard. This means that, with respect to the R.C. 5321.05(A)(6) requirements (and any similar assisted housing lease provisions), a guest's conduct may not constitute a violation of the lease (or good cause to terminate the lease) if it does not constitute a violation of R.C. 5321.05(A)(6).

Any conflict between the R.C. 5321.05(A)(6) standard and an assisted housing lease provision that federal law requires may raise a federal preemption issue.²¹⁰ However, because "there is no federal law that requires that a tenant be held liable for the negligence of others," federal law does not preempt R.C. 5321.05(A)(6). *Uptown Cmty. Partners, L.P. v. Killings*, No. C-110012, 2011 WL 5438652, ¶ 8 (Ohio App., 1st Dist., Nov. 10, 2011). *Cf. Hous. Auth. of City of Everett v. Terry*, 114 Wash.2d 558, 566, 789 P.2d 745 (1990) (Public Housing notice of termination rules did not preempt state landlord-tenant law on ten-day notice and opportunity to cure).

²¹⁰ Federal law may preempt state law when the state law actually conflicts with the federal law. *Hillsborough County, Fla. v. Automated Med. Labs., Inc.*, 471 U.S. 707, 713 (1985). "Such conflict occurs when compliance with both federal and state law is impossible, ...or when the state law 'stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress.'" *Hillman v. Maretta*, 569 U.S. 483, 490 (2013).

8. Criminal Conduct of Tenant, Household Member, or Guest

a. HUD Regulations

HUD regulations specify the criminal activities that are grounds for terminating an assisted housing tenancy. With one exception, HUD regulations provide that any termination of an assisted housing tenancy based on these criminal activities is within the discretion of the landlord. The one exception is that, if the tenant or a household member is convicted for manufacture of methamphetamine on the premises of assisted housing, termination of the assisted housing tenancy is mandatory.

A description of each of the specified criminal activities is set forth below, along with a statement as to whether it applies to the conduct of the tenant, household members, or guests,²¹¹ the assisted housing program(s) to which it applies, and the relevant HUD regulation(s).

- (1) Conviction for manufacture of methamphetamine on the premises of assisted housing (tenant or household member).

Public Housing: 24 C.F.R. § 966.4(l)(5)(i)(A).

- (2) Currently engaging in illegal use of a drug (tenant or household member).

Public Housing: 24 C.F.R. § 966.4(l)(5)(i)(B).

Project-based subsidized housing: 24 C.F.R. § 5.858.

HCVP: 24 C.F.R. § 982.310(c)(1).

- (3) A pattern of illegal use of a drug that interferes with the health, safety, or right to peaceful enjoyment of premises of other residents (tenant or household member).

Public Housing: 24 C.F.R. § 966.4(l)(5)(i)(B).

Project-based subsidized housing: 24 C.F.R. § 5.858.

HCVP: 24 C.F.R. § 982.310(c)(1).

- (4) Drug-related criminal activity engaged in on or off the premises (tenant,

²¹¹ It does not violate substantive due process to evict an entire household for the criminal conduct of a household member or a guest. *Dep't of Hous. & Urban Dev. v. Rucker*, 535 U.S. 125 (2002). See also *Chavez v. Hous. Auth. of City of El Paso*, 973 F.2d 1245 (5th Cir. 1992); *Spence v. Gormley*, 387 Mass. 258, 439 N.E.2d 741 (1982).

household member, or guest).

Public Housing: 24 C.F.R. § 966.4(l)(5)(i)(B).

- (5) Drug-related criminal activity engaged in on or near the premises (tenant, household member, or guest).

Project-based subsidized housing: 24 C.F.R. §§ 5.858, 247.3(a)(3), 880.607(b)(1)(iii).

HCVP: 24 C.F.R. § 982.310(c)(1).

- (6) Violent criminal activity engaged in on or near the premises (tenant, household member, or guest).

HCVP: 24 C.F.R. § 982.310(c)(2)(i)(C).

- (7) Criminal activity that threatens the health, safety, or right to peaceful enjoyment of premises of other residents (tenant, household member, or guest).

Public Housing: 24 C.F.R. § 966.4(l)(5)(ii)(A).

Project-based subsidized housing: 24 C.F.R. §§ 5.859(a), 247.3(a)(3), 880.607(b)(1)(iii).

HCVP: 24 C.F.R. § 982.310(c)(2)(i).

- (8) Fleeing to avoid prosecution, or custody or confinement after conviction, for a felony (tenant).

Public Housing: 24 C.F.R. § 966.4(l)(5)(ii)(B).

Project-based subsidized housing: 24 C.F.R. § 5.859(b)(1).

HCVP: 24 C.F.R. § 982.310(c)(2)(ii)(A).

- (9) Violating a condition of probation or parole (tenant).

Public Housing: 24 C.F.R. § 966.4(l)(5)(ii)(B).

Project-based subsidized housing: 24 C.F.R. § 5.859(b)(2).

HCVP: 24 C.F.R. § 982.310(c)(2)(ii)(B).

b. On or Near the Premises

Among the categories of criminal activity that are described in Section III.G.8.a, above, two establish a standard under which the criminal activity must occur on or near the premises. One is the standard for drug related criminal activity relative to a project-based subsidized housing tenancy or a HCVP tenancy. See Section III.G.8.a.(5), above. The second is the standard for violent criminal activity relative to a HCVP

tenancy. See Section III.G.8.a.(6), above.

HUD regulations do not define the “near the premises” element of the standard. However, HUD provides some guidance in its preamble:

HUD tracks the statutory standard, and does not attempt to further define when a crime location is considered ‘near’ the assisted project or building. In general, this standard would cover drug crime in a street or other right of way that adjoins the project or building where a Section 8 unit is located. A landlord-tenant court can apply the statutory standard to the circumstances of a particular case.

60 Fed. Reg. 34660, 34673 (July 3, 1995) (HCVP rule).

For example, criminal activity “in front of the housing building” is near the premises. *Stark Metro. Hous. Auth. v. Wheaton*, No. 1998-CA-00128, 1999 WL 34696 (Ohio App., 5th Dist., Jan. 25, 1999). But criminal activity more than one mile from the premises is not near the premises. *Lake Metro. Hous. Auth. v. Journigan*, No. CVG-940539 (Ohio Mun., Painesville, June 21, 1994). *Cf. Jones v. Cincinnati Metro. Hous. Auth.*, No. A-0709492 (Ohio C.P., Hamilton Cty., Apr. 15, 2008) (HCVP termination, 2/3 of mile did not meet the “immediate vicinity” test under 24 C.F.R. § 982.551(l)).²¹²

The “on the premises” element requires a landlord to prove that the criminal activity, and not simply the arrest of the guest for the criminal activity, occurred on the premises. *First Merit Venture v. Stringer*, No. C-050238 (Ohio App., 1st Dist., Dec. 14, 2005); *Warren Heights Apts. v. Bristol*, No. 96-CVG-19 (Ohio Mun., Warren, Jan. 10, 1996). *See also Detroit Terrace Ltd. v. Bender*, No. 11-CVG-19350 (Ohio Mun., Cleveland, Hous. Div., Dec. 5, 2011) (a court journal entry proved that the court accepted the tenant’s guilty plea on drug-related criminal activity, but it did not prove that this criminal activity occurred on or near the premises).

c. Threat to Health, Safety, or Peaceful Enjoyment of Premises

Among the categories of criminal activity that are described in Section III.G.8.a, above, two establish a standard under which the criminal activity must threaten the

²¹² Likewise, in *Powell v. Hous. Auth. of City of Pittsburgh*, 760 A.2d 473 (Pa. Commw. 2000), *rev’d on other grounds*, 812 A.2d 1201 (Pa. 2002), the court held that .8 miles did not meet the § 982.551(l) “immediate vicinity” test in this HCVP termination case.

health, safety, or peaceful enjoyment of the premises of other residents. One is the standard for a pattern of illegal use of a drug. See Section III.G.8.a.(3), above. The second is the standard for criminal activity that is not otherwise specified in the HUD regulations. See Section III.G.8.a.(7), above. The second does not require multiple criminal activities by a tenant or household member. *Portage Metro Hous. Auth. v. Brumley*, No. 2008-P-0019, 2008 WL 4693200, ¶ 91 (Ohio App., 11th Dist., Oct. 24, 2008).

Three Ohio court decisions that found that the requisite threat to other residents was not met are summarized below.

- (1) *Akron Metro. Hous. Auth. v. Wheeler*, No. 16973, 1995 WL 338538 (Ohio App., 9th Dist., June 7, 1995) (tenant's son threatened and assaulted a housing authority officer on housing authority property and resisted arrest, but no evidence that this conduct occurred in proximity to other residents or disturbed other residents' peaceful enjoyment of their homes or impaired the physical or social environment of the development).
- (2) *Heritage Place Apts. v. Ely*, No. 08-CVG-791 (Ohio Mun., Steubenville, Aug. 29, 2008) (baby-sitter, with whom tenant had dating relationship, placed tenant's child into scalding water, causing severe burns; the crime – child endangerment – was directed solely toward the minor child; the tenant was not present and had no control over the babysitter's criminal activity).
- (3) *Akron Metro. Hous. Auth. v. Jones*, No. 94-CVG-10415 (Ohio Mun., Akron, Jan. 19, 1995) (altercation and arrest in ball field across the street from the housing development, but no evidence that it was viewed by anyone at the development or in any way affected the development).

d. Innocent Tenant Issue, Public Housing

The term “innocent tenant” is used in cases in which the termination of an assisted housing tenancy is based on the criminal activity (usually, drug-related criminal activity) of a household member or a guest. In this context, innocent tenant means a tenant who did not participate in, and neither knew nor reasonably should have known of, the criminal activity.

The U.S. Supreme Court has ruled that 42 U.S.C. §1437d(l)(6) does not bar a housing authority from terminating the Public Housing tenancy of an innocent tenant, even when the criminal activity occurred outside the rental unit. *Dep't of Hous. & Urban Dev. v. Rucker*, 535 U.S. 125 (2002). However, it also held that a housing

authority has discretionary authority not to terminate the tenancy of an innocent tenant.²¹³ *Id.*

HUD provided housing authorities with two guidance letters relative to the *Rucker* decision. Letter from Mel Martinez, Secretary, U.S. Dep't of Hous. & Urban Dev., to Public Housing Directors (Apr. 16, 2002); Letter from Michael M. Liu, Ass't Secretary, U.S. Dep't of Hous. & Urban Dev., to Public Housing Directors (June 6, 2002).

In his April 16 letter, Secretary Martinez urged housing authorities “to be guided by compassion and common sense in responding to cases involving illegal use of drugs.” He stated that “[e]viction should be the last option explored, after all others have been exhausted.”

In his June 6 letter, Assistant Secretary Liu noted that “the *Rucker* decision upholds HUD regulations that, since 1999, have made it clear that ... PHAs are not required to evict an entire household - or, for that matter, anyone, - every time a violation of the lease clause occurs.” He urged the housing authorities to consider and balance a variety

²¹³ A related issue is whether 42 U.S.C. § 1437d(l)(6) or 24 C.F.R. § 966.4(l)(5)(i) requires a housing authority to consider mitigating circumstances, including those listed in § 966.4(l)(5)(i), in determining whether to terminate a tenancy for drug-related criminal activity. The case law on this issue is split.

Court decisions holding that it is required include: *E. Carolina Reg'l Hous. Auth. v. Lofton*, 369 N.C. 8, 789 S.E.2d 449 (2016); *Carter v. Lynn Hous. Auth.*, 450 Mass. 626, 880 N.E.2d 778 (2008); *Jersey City Hous. Auth. v. Ford*, No. A-5657-08T3, 2010 WL 5395806 (N.J. Super. Dec. 28, 2010); *Hassan v. Dakota County Cmty. Dev. Agency*, No. A08-0373, 2009 WL 437775 (Minn. App. Feb. 24, 2009); *Hicks v. Dakota County Cmty. Dev. Agency*, No. A06-1302, 2007 WL 2416872 (Minn. App. Aug. 28, 2007); *Gaston v. CHAC, Inc.*, 375 Ill. App.3d 16, 872 N.E.2d 38 (2007); *Oakwood Plaza Apts. v. Smith*, 352 N.J. Super. 467, 800 A.2d 265 (2002); *Housing Auth. for Prince George's County v. Williams*, 784 A.2d 621 (Md. App. 2001); *Allegheny County Hous. Auth. v. Hibbler*, 748 A.2d 786 (Pa. Commw. 2000); *Brooks v. Lee*, No. 96-CS-02424 (Cal. Super., Sacramento Cty., Jan. 12, 1999); *Lucas Metro. Hous. Auth. v. Correa*, No. CVG-0501010 (Ohio Mun., Sylvania, Nov. 9, 2005); *City of Jacksonville v. Byrd*, No. 95-0025-AP, 4 Fla. L. Weekly 497a (Cir. Ct. Nov. 21, 1995).

Court decisions holding that it is not required include: *Stevens v. Hous. Auth. of S. Bend*, 720 F. Supp.2d 1013 (N.D. Ind. 2010), *aff'd on other grounds*, 663 F.3d 300 (7th Cir. 2011); *Robinson v. Dist. of Columbia Hous. Auth.*, 606 F. Supp.2d 6 (D.D.C. 2009); *Peterson v. Washington County Hous. & Redevelopment Auth.*, No. A10-2053, 2011 WL 3557818 (Minn. App. Aug. 15, 2011); *Syracuse Hous. Auth. v. Boule*, 265 A.D.2d 832, 701 N.Y.S.2d 541 (1999); *Allegheny County Hous. Auth. v. Liddell*, 722 A.2d 750 (Pa. Commw. 1998); *Hous. Auth. of City of York v. Dickerson*, 715 A.2d 525 (Pa. Commw. 1998).

of relevant factors in deciding whether to evict the entire household of an innocent tenant.

Notwithstanding the *Rucker* decision, Ohio law recognizes an equity defense in eviction actions (see Section II.BB, above), which innocent tenants of Public Housing have used successfully, before and after the *Rucker* decision.

Those pre-*Rucker* decisions include: *Cincinnati Metro. Hous. Auth. v. Harris*, Nos. C-820540,820541, 1983 WL 8893 (Ohio App., 1st Dist., June 15, 1983) (minor children of tenant engaged in certain criminal conduct); *Trumbull Metro. Hous. Auth. v. Edmonds*, No. 00-CVG-0030801 (Ohio Mun., Warren, Aug. 10, 2000) (when babysitting, brother of tenant sold drugs in the rental unit; tenant did not participate in or know of the drug activity); *Trumbull Metro. Hous. Auth. v. Redd*, No. 00-CVG-614 (Ohio Mun., Warren, July 19, 2000) (guest of tenant sold drugs in the rental unit; tenant did not participate in or know of the drug activity); *Cincinnati Metro. Hous. Auth. v. Foster*, No. 97-CV-06298 (Ohio Mun., Hamilton Cty., Nov. 18, 1997) (tenant's son engaged in one drug sale; tenant neither knew nor had any reason to know it would occur). Cf. *Akron Metro. Hous. Auth. v. Rice*, No. 88-CV-04013 (Ohio Mun., Akron, June 22, 1988) (conviction and incarceration of tenant for stabbing a person was not just cause to evict tenant's wife and children).

Those post-*Rucker* decisions include: *CMHA v. Ramsey*, No. 2018-CVG-01334 (Ohio Mun., Cleveland, Hous. Div., Oct. 12, 2018) (tenant believed her daughter had overcome her drug problem at a drug rehab facility; she picked her up there after a six-month stay, took her to the rental unit for a short visit, after a few hours left her alone for ten minutes, during which she had a fatal drug overdose); *Cuyahoga Metro. Hous. Auth. v. Mundy*, No. 2007-CVG-25841 (Ohio Mun., Cleveland, Hous. Div., Dec. 17, 2007) (remains of guest's handrolled cigarette contained marijuana and tenant did not know or have any reason to know that the cigarette contained marijuana); *CMHA v. Taylor*, No. 2007-CVG-3787 (Ohio Mun., Cleveland, Hous. Div., July 5, 2007) (two percoset pills and drug paraphernalia in guest's pocket, and tenant did not know or have any reason to know of the content of the guest's pocket); *Cuyahoga Metro. Hous. Auth. v. Harris*, 139 Ohio Misc.2d 96, 861 N.E.2d 179 (Ohio Mun., Cleveland, Hous. Div., 2006) (guest arrested on federal warrant, crack cocaine in guest's pocket, and tenant did not know or have any reason to know of the content of the guest's pocket).

In addition, three post-*Rucker* Ohio appellate court decisions address the authority of a trial court to apply the equity defense in 42 U.S.C. § 1437d(l)(6) eviction actions against innocent tenants.

In *Portage Metro. Hous. Auth. v. Brumley*, No. 2008-P-0019, 2008 WL 4693200, ¶¶ 93-97 (Ohio App., 11th Dist., Oct. 24, 2008), the court held that a trial court may apply the equity defense in such cases. The trial court had considered the equity defense and had denied it based on the totality of the relevant circumstances. The Court of Appeals affirmed the trial court's decision on the ground that the trial court had not abused its discretion.

In *Dayton Metro. Hous. Auth. v. Kilgore*, 194 Ohio App.3d 767, 958 N.E.2d 187 (2nd Dist. 2011) (2-1 decision), the court held that the trial court erred on two grounds in sustaining the innocent tenant equity defense. First, it held that equity does not apply to “positive statutes” and, according to the Court, 42 U.S.C. § 1437d(l)(6) is a “positive statute.” Second, it found and relied on a distinction between Ms. Kilgore's case and *Cuyahoga Metro. Hous. Auth. v. Harris*, 139 Ohio Misc.2d 96, 861 N.E.2d 179 (Ohio Mun., Cleveland, Hous. Div., 2006). Unlike the *Harris* tenant, Ms. Kilgore was not an innocent tenant because she had “furthered her guests' criminal purposes” by leaving them alone in her apartment and thereby “making her apartment open and available” for them to engage in the illegal drug activity. *Kilgore*, 194 Ohio App.3d 767, ¶ 29. The court did not address whether 42 U.S.C. § 1437d(l)(6) preempts the equity jurisdiction of a trial court in eviction actions. And the court did not reject the *Harris* holding.

In *Cuyahoga Metro. Hous. Auth. v. Davis*, 197 Ohio App.3d 411, 967 N.E.2d 1244 (8th Dist. 2011), the court held (at least implicitly) that a trial court may apply the equity defense in such cases. The court: (1) briefly reviewed *Harris* and *Kilgore*, (2) noted that *Kilgore* distinguished *Harris* on the facts, and (3) thereupon ruled “[w]e find the facts in the present case more akin to *Kilgore* than *Harris*” (*id.*, ¶ 33). The court, reviewing the facts under the competent, credible evidence standard, found sufficient evidence to support the trial court's finding that the tenant was not an innocent tenant and, thereupon, upheld the trial court's denial of the innocent tenant equity defense.

Only one Ohio court has addressed whether the federal law on innocent tenants, as construed in *Rucker*, preempts²¹⁴ the equity jurisdiction of Ohio municipal courts in eviction actions. In *Cuyahoga Metro. Hous. Auth. v. Harris*, 139 Ohio Misc.2d 96, 861 N.E.2d 179 (Ohio Mun., Cleveland, Hous. Div., 2006), the court held that the federal law does not preempt its equity jurisdiction in innocent tenant cases. It relied

²¹⁴ See note 210, above.

on a HUD guidance that explained that the “rule does not ... preempt State law.” *Harris*, 139 Ohio Misc. 2d at 99, quoting 66 Fed. Reg. 28776, 28791 (2001) (rule on eviction for criminal activity). It thereupon held that “*Rucker* does not alter this conclusion [of HUD] and does not provide a basis for preemption or limiting this court’s equity powers.” *Id.* *Accord Cuyahoga Metro. Hous. Auth. v. Mundy*, No. 2007-CVG-25841 (Ohio Mun., Cleveland, Hous. Div., Dec. 17, 2007). *See also Chateau Foghorn LP v. Hosford*, 455 Md. 462, 168 A.2d 824 (2017) (42 U.S.C. § 1437d(l)(6) does not preempt the state law requirement that, for an eviction, the tenant’s breach of the lease must be substantial and warrant eviction); *Hous. Auth. of Covington v. Turner*, 295 S.W.3d 1123 (Ky. App. 2009) (42 U.S.C. § 1437d(l)(6) does not preempt the state law right to cure); *Newport Hous. Auth. v. Reynolds*, No. ND2002-0290 (R.I. Super., Newport Cty., Aug. 26, 2002) (“*Rucker* ... has not preempted state law on this subject”); *Maryland Park Apts. v. Robinson*, No. CX-02-4044 (Minn. Dist. Ct., Ramsey Cty., June 17, 2002) (“*Rucker* do[es] not preempt ... applicable Minnesota eviction laws [which bar eviction of an innocent tenant]”). *Cf. Cuyahoga Metro. Hous. Auth. v. Hairston*, 124 Ohio Misc.2d 1, 790 N.E.2d 828 (Ohio Mun., Cleveland, Hous. Div., 2003) (Ohio law on waiver of a breach – applied here to alleged criminal conduct – is consistent with federal law that gives a PHA discretion in deciding whether to terminate the tenancy for the criminal conduct).²¹⁵ *But cf. Milwaukee City Hous. Auth. v. Cobb*, 361 Wis.2d 359, 860 N.W.2d 267 (2015) (42 U.S.C. § 1437d(l)(6) preempts the state statutory right to cure); *Boston Hous. Auth. v. Garcia*, 449 Mass. 727, 871 N.E.2d 1073 (2007) (42 U.S.C. § 1437d(l)(6) preempts the state statutory innocent tenant defense); *Scarborough v. Winn Residential L.L.P.*, 890 A.2d 249 (D.C. App. 2006) (42 U.S.C. § 1437d(l)(6) preempts the state statutory right to cure).

The *Rucker* decision did not address the preemption issue. For further discussion of the preemption issue, see Lawrence R. McDonough & Mac McCreight, Wait a Minute: Slowing Down Criminal-Activity Eviction Cases to Find the Truth, 41 Clearinghouse Rev. 55, 76-77 (2007). *See also Hous. Auth. of City of Everett v. Terry*, 114 Wash.2d 558, 566, 789 P.2d 745 (1990) (in establishing rules for terminating a tenancy but leaving any eviction action to the available state court proceedings, Congress and HUD opted to rely on the state’s procedural and substantive eviction laws).

²¹⁵ For a discussion on Ohio law on waiver of a breach of a lease, see Section II.E, above.

In summary, two post-*Rucker* appellate court decisions (*Davis* and *Brumley*), along with *Harris* and other trial court decisions, establish that Ohio trial courts have equity jurisdiction to consider and, where appropriate, apply the innocent tenant equity defense. Insofar as *Kilgore* relied on the positive statute theory, it remains an isolated view, inconsistent with well-established Ohio eviction law.

e. Innocent Tenant Issue, Project-Based Subsidized Housing

The term “innocent tenant” is defined in the first paragraph of Section III.G.8.d, above.

Some courts have held that, in certain circumstances, landlords of project-based subsidized housing may not evict an innocent tenant. These holdings have relied on one of two grounds.

One ground is based on the subsidized housing lease,²¹⁶ ¶ 13(c), which provides that the tenant shall not engage in or permit certain unlawful activity. In eviction actions based on ¶ 13(c) violations, courts have held that the innocent tenant did not engage in or permit the unlawful activity and, therefore, did not violate ¶ 13(c).²¹⁷ *E.g.*, *Owners Mgmt. Co. v. Moore*, 111 Ohio App.3d 820, 677 N.E.2d 400 (6th Dist. 1996); *Schroeder Co. v. Oviedo*, No. CVG-93-01124 (Ohio Mun., Toledo, Hous. Div., Feb. 11, 1993). *See also* *Kimball Hill Mgmt. Co. v. Roper*, 314 Ill. App.3d 975, 733 N.E.2d 458 (2000); *Henry v. Wild Pines Apts.*, 183 Ga. App. 491, 359 S.E.2d 237 (1987); *Cf. Hous. Opportunities Comm’n of Montgomery County v. Lacey*, 322 Md. 56, 585 A.2d 219 (1991) (Public Housing lease provision); *Hodess v. Bonefont*, 401 Mass. 693, 519 N.E.2d 258 (1988) (state assisted housing lease provision).

A second ground is based on the material noncompliance and “other good cause” provisions of the subsidized housing lease,²¹⁸ ¶ 23. Courts have held that, as a matter of contract law, these provisions preclude the eviction of an innocent tenant. *E.g.*, *Kimball Hill Mgmt. Co. v. Roper*, 314 Ill. App.3d 975, 733 N.E.2d 458 (2000); *Diversified Realty Group, Inc. v. Davis*, 257 Ill. App.3d 417, 628 N.E.2d 1081 (1993). *Cf. Spence v. Gormley*, 387 Mass. 258, 439 N.E.2d 741 (1982) (good cause

²¹⁶ For the definition of “subsidized housing lease,” see note 174, above.

²¹⁷ For analogous case law, relative to non-criminal conduct of a tenant’s child or guest, see Sections III.G.6,7, above.

²¹⁸ For the definition of “subsidized housing lease,” see note 174 above.

requirement under state law, applied in a Public Housing eviction); *Boston Hous. Auth. v. Bell*, 428 Mass. 108, 697 N.E.2d 130 (1998) (follows *Spence*).

In addition to these lease grounds, Ohio law recognizes an equity defense in eviction actions (see Section II.BB, above), which innocent tenants of assisted housing have used successfully. See Section III.G.8.d, above.

f. Drug-Related Criminal Activity

A category of criminal activity that is referenced in Sections III.G.8.a.(4),(5), above, is “drug-related criminal activity.”

For these purposes, “*Drug-related criminal activity* means the illegal manufacture, sale, distribution, or use of a drug, or the possession of a drug with intent to manufacture, sell, distribute or use the drug.” 24 C.F.R. § 5.100.

Four Ohio court decisions, in concluding that the tenant did not violate the prohibition against drug-related criminal activity, provide helpful guidance on this prohibition.

One Ohio court held that, if an assisted housing tenant is convicted for possession of marijuana under a criminal law that does not explicitly include the element of intent to use, it is not “drug-related criminal activity,” which means that it is not grounds to terminate the tenancy. *Lucas Metro. Hous. Auth. v. Correa*, No. CVG-0501010 (Ohio Mun., Sylvania, Nov. 9, 2005).

A second Ohio court held that the tenant’s alleged conduct – overdosing on an unknown drug – is not criminal conduct and thus not drug-related criminal activity, and thereupon entered the eviction judgment for the tenant. *Stark Metro. Hous. Auth. v. Minocchi*, No. 2021-CVG-3485 (Ohio Mun., Stark Cty., Aug. 26, 2021).

A third Ohio court, in a case in which it found that the juveniles had smoked marijuana during the course of the evening, held: “The Court believes that law requires proof by a preponderance of the evidence that drugs (marijuana) were located or used in the apartment or found on the juveniles’ persons.” *PK Mgmt., LLC v. McGee*, No. 2014-CVG-282, slip op. at 3 (Ohio County Ct., Jefferson Cty., Dist. No. 1, Jan. 27, 2015). Since the police did not find drugs in the apartment or on the juveniles, the court entered the eviction judgment for the tenant. *Id.*, slip op. at 4.

A fourth Ohio court held that the PHA did not prove the requisite drug-related criminal activity where its only evidence was the testimony of a witness that “he could smell marijuana in the hallway and that he sniffed defendant’s doorway.” *Stark Metro. Hous. Auth. v. Sanders*, No. 2015-CVG-2490, slip op. at 2 (Ohio Mun., Massillon, Jan.

22, 2016).

g. Misdemeanor

If the criminal activity is a misdemeanor, it may be a minor violation of the lease. *E.g., Denhart v. Whaley*, No. 88-CV-16092 (Ohio Mun., Hamilton Cty., Nov. 2, 1988) (attempted promotion of prostitution). *See also Hous. Auth. of Decatur v. Brown*, 180 Ga. App. 483, 349 S.E.2d 501 (1986) (possession of less than one ounce of marijuana).

A minor violation of an assisted housing lease is not good cause to terminate the lease, unless there are repeated minor violations. *See* Section III.G.12, below.

h. Conduct of Minor, Juvenile Court

The activity of a minor, for which a juvenile court has jurisdiction, may constitute criminal activity for purposes of an assisted housing lease and HUD regulations. *Cincinnati Metro. Hous. Auth. v. Browning*, No. C-010055, 2002 WL 63491 (Ohio App., 1st Dist., Jan. 18, 2002). *See also CMJ Mgmt. Co. v. Wilkerson*, 91 Mass. App. Ct. 276, 75 N.E.3d 605 (2017); *Hous. Auth. for Prince George's County v. Williams*, 784 A.2d 621 (Md. App. 2001).

i. Violation of Condition of Probation or Parole

A category of criminal activity that is referenced in Section III.G.8.a.(9), above, is “violating a condition of probation or parole.”

A tenant’s violation of an Intervention in Lieu of Conviction does not constitute a violation of probation or parole. *Retiree Hous. Mgmt. Inc. v. Lynch*, No. 12-CVG-02402 (Ohio Mun., Miamisburg, July 30, 2013). “Intervention in Lieu of Conviction (ILC) is a type of diversion, as set forth in the Ohio Revised Code. It is not a criminal conviction, unless and until a defendant fails to complete the Court imposed conditions of ILC.” *Id.*, slip op. at 4.

j. Absence of Criminal Conviction

The criminal conduct of a tenant, a household member, or a guest may be good cause to terminate an assisted housing tenancy, regardless of whether the person has been arrested or convicted for the conduct. 24 C.F.R. § 966.4(l)(5)(iii) (Public Housing); 24 C.F.R. § 982.310(c)(3) (HCVP); 24 C.F.R. § 5.861 (project-based subsidized housing), which applies to criminal conduct under 24 C.F.R. §§ 5.859 and 5.860 and is thereby incorporated into 24 C.F.R. § 247.3(a). *See New Longwood Assocs. v. Perry*, No. 09-CVG-12567 (Ohio Mun., Cleveland, Hous. Div., Apr. 22,

2010) (subsidized housing lease,²¹⁹ ¶ 23(c)(6)). *Cf. Woodruff Vill. v. Bowers*, No. L-95-248, 1996 WL 339912 (Ohio App., 6th Dist., June 21, 1996) (criminal conviction not required by the lease); *Cuyahoga Metro. Hous. Auth. v. Blake*, No. 98-CVG-05998 (Ohio Mun., Cleveland, Hous. Div., Aug. 19, 1999) (criminal conviction not required under former 24 C.F.R. § 966.4).

The eviction action may proceed even if a criminal action is pending and awaiting the commencement of trial. *New Longwood Assocs. v. Perry*, No. 09-CVG-12567, slip op. at 10 (Ohio Mun., Cleveland, Hous. Div., Apr. 22, 2010). In the eviction action, the court concludes whether the landlord “has established by a preponderance of the evidence that the defendant [tenant] has engaged in criminal activity ..., for the limited purpose of being in breach of the terms of the Lease. This conclusion is not intended to indicate that the defendant has been found guilty of having committed a crime; clearly in a criminal matter, the law requires the prosecution to prove its case beyond a reasonable doubt. These issues remain to be tried in another case, in another court.” *Id.*, slip op. at 9.

k. Self-Defense

In eviction actions for alleged criminal activity, if the tenant’s conduct falls within the privilege of self-defense, the tenant’s conduct does not constitute unlawful activity for the eviction claim. *Millennia Hous. Mgmt. Ltd. v. Mitchell*, No. 2013-CVG-008410 (Ohio Mun., Cleveland, Hous. Div., Nov. 19, 2013).

l. Pre-Admission Criminal Conduct

Absent a tenant’s fraud or misrepresentation in the application process, an assisted housing landlord is not permitted to terminate a tenancy based on a tenant’s pre-admission criminal conduct. *See Bennington Hous. Auth. v. Bush*, 182 Vt. 133, 933 A.2d 207 (2007); *Wellstone Hous. Auth. v. Murphy*, 131 S.W.3d 378 (Mo. App. 2004). *See also* 66 Fed. Reg. 28776, 28781 (May 24, 2001) (HUD preamble on criminal activity grounds for terminating a tenancy: “Activity occurring only prior to the time the leaseholder signed the lease, or the household member or guest joined the household or became a guest, would not be a basis for termination of tenancy”).

This is true even if the pre-admission criminal conduct constituted a mandatory ground for denying admission (*e.g.*, tenant subject to a lifetime registration requirement

²¹⁹ For the definition of “subsidized housing lease,” see note 174, above.

for a sex offense) and the application approval was the result of a landlord mistake. *E.g.*, *CMHA v. Gauntt*, No. 2014-CVG-001938 (Ohio Mun., Cleveland, Hous. Div., Dec. 4, 2014) (granting tenant's motion for partial summary judgment); *CMHA v. Stewart*, No. 12-CVG-20068 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 2013); *CMHA v. Stewart*, No. 06-3698 (Ohio Mun., Cleveland, Hous. Div., Mar. 1, 2006). *See also Perkins-Bey v. Hous. Auth. of St. Louis County*, No. 4:11CV310 JCH, 2011 WL 939292 (E.D. Mo. Mar. 14, 2011); *Miller v. McCormick*, 605 F. Supp.2d 296 (D. Me. 2009). *Cf. Alicia Holding LLC v. Cutri*, No. 08-CVG-00531 (Ohio Mun., Steubenville, July 24, 2008) (non-elderly person admitted to elderly only project).

m. Ohio Case Law Finding Good Cause

Ohio appellate court decisions finding good cause to terminate an assisted housing tenancy, based on the criminal conduct of the tenant, a household member, or a guest, include those set forth below.

- (1) *Sandusky Metro. Hous. Auth. v. Jackson*, No. S-19-046, 2020 WL 6377003 (Ohio App., 6th Dist., Oct. 30, 2020) (Public Housing, tenant placed on community control for five years and, during that period, tested positive for marijuana on three occasions).
- (2) *Gorsuch Homes Inc. v. LeMaster*, No. 10-15-18, 2016 WL 3057971 (Ohio App., 3rd Dist., May 31, 2016) (project-based subsidized housing, tenant assisted the trespass entry upon the premises by her husband).
- (3) *Cincinnati Metro. Hous. Auth. v. Patterson*, No. C-130161, 2013 WL 6409302 (Ohio App., 1st Dist., Dec. 6, 2013) (Public Housing, guest (tenant's grandson), on two occasions, engaged in criminal conduct in the immediate vicinity of the premises – first, burglary of a neighbor's unit; second, upon leaving tenant's apartment, possession of marijuana in his pocket).
- (4) *Youngstown Metro. Hous. Auth. v. Scott*, No. 99-CA-238, 2001 WL 744496 (Ohio App., 7th Dist., June 26, 2001) (Public Housing, guest possessed drugs in the unit, without tenant's knowledge).
- (5) *Lucas Metro. Hous. Auth. v. Carmony*, No. L-00-1296, 2001 WL 672150 (Ohio App., 6th Dist., June 15, 2001) (Public Housing, guest possessed drugs in the unit, with tenant's knowledge).
- (6) *Stark Metro. Hous. Auth. v. Wheaton*, No. 1998-CA-00128, 1999 WL 34696 (Ohio App., 5th Dist., Jan. 25, 1999) (Public Housing, guest (tenant's son) engaged in drug activity near the unit).

- (7) *Skyline Terrace Apts. v. Woodson*, No. 1996-CA-00107, 1996 WL 753199 (Ohio App., 5th Dist., Dec. 9, 1996) (project-based subsidized housing, guest discharged firearm on project property and thereafter hid in the unit, and tenant lied to security officer about guest's presence in the unit).
- (8) *Woodruff Vill. v. Bowers*, No. L-95-248, 1996 WL 339912 (Ohio App., 6th Dist., June 21, 1996) (project-based subsidized housing, household member used drugs in the unit).

9. Violence Against Women Act

The federal Violence Against Women Act of 2013, Pub. L. 113-4, 127 Stat. 54, together with the federal Violence Against Women Reauthorization Act of 2005, Pub. L. 109-162, 119 Stat. 2960 (collectively, “VAWA”), provide certain rights to assisted housing tenants who are victims of domestic violence, dating violence, or stalking. 24 C.F.R. §§ 5.2001-5.2011. *See also* 24 C.F.R. §§ 880.504(f), 880.607(c)(5), 882.407, 882.511(g), 882.514(c), 883.605, 884.216(c), 884.223(f), 886.128, 886.132, 886.328, 886.329(f) (Section 8 project-based subsidized housing); 24 C.F.R. §§ 891.575(f), 891.610(c), 891.630 (Sections 202 and 811 PRAC); 24 C.F.R. §§ 960.103(d), 960.200(b)(8), 960.203(c)(4), 966.4(a)(1)(vi), 966.4(e)(9) (Public Housing); 24 C.F.R. §§ 982.53(e), 982.201(a), 982.202(d), 982.307(b)(4), 982.310(h)(4), 982.315(a)(2), 982.315(b)(4), 982.353(b), 982.452(b)(1), 982.551(e), 982.551(l), 982.552(c)(2)(v) (Housing Choice Voucher program).

With respect to assisted housing eviction actions, VAWA provides tenants with two general protections. The first is that an incident (or incidents) of actual or threatened domestic violence, dating violence, or stalking is not a serious or repeated lease violation by the victim and is not good cause to terminate the tenancy of the victim. 24 C.F.R. § 5.2005(c). The second is that criminal activity directly related to domestic violence, dating violence, or stalking, engaged in by a member of a tenant's household or any guest or other persons under the tenant's control, shall not be cause for termination of the tenancy of the victim, if the victim is the tenant or an immediate family member of the tenant. 24 C.F.R. § 5.2005(b)(2).

In short, “[if] a tenant violates the terms of the lease and that violation directly resulted from domestic violence, the tenant cannot be evicted from their housing.” *Norwich Apts. II v. Ingram*, No. L-19-1239, 2020 WL 3032860, ¶ 9 (Ohio App., 6th Dist., June 5, 2020).

Two Ohio court decisions that rely on VAWA in entering the eviction judgment

for the tenant are: *Norwich Apts. II v. Ingram*, No. L-19-1239, 2020 WL 3032860 (Ohio App., 6th Dist., June 5, 2020); *New Longwood Assocs. v. Wells*, No. 09-CVG-12569 (Ohio Mun., Cleveland, Hous. Div., Sept. 16, 2009).

10. Conduct of Uninvited Person

The improper conduct of an uninvited person, who is neither a household member nor a guest, is not good cause to terminate an assisted housing tenancy, regardless of the person's relationship with the tenant. *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985); *ABC Mgmt. Co. v. Gamble*, No. 83AP-788, 1983 Ohio App. LEXIS 16070 (Ohio App., 10th Dist., Dec. 15, 1983); *Shiloh Grove Ltd. P'ship v. Odom*, No. M9404-CVG-010436 (Ohio Mun., Franklin Cty., June 2, 1994); *Urban Hollow Apts. v. Lewis*, No. M9403-CVG-007533 (Ohio Mun., Franklin Cty., May 25, 1994); *Vistula Mgmt. Co. v. Singleton*, No. CVG-9412643 (Ohio Mun., Toledo, Hous. Div., Nov. 29, 1994); *Lakeview Terrace, Etc. v. Overton*, No. 91-CVG-25457 (Ohio Mun., Cleveland, Hous. Div., Nov. 18, 1991). *See also Stark Metro. Hous. Auth. v. Curtis*, No. CA-9462, 1994 WL 45875 (Ohio App., 5th Dist., Feb. 14, 1994); *Countrybrook Apts. v. Forsythe*, No. M86-CVG-20896 (Ohio Mun., Franklin Cty., Aug. 28, 1986).

The improper conduct of such persons is not good cause to terminate an assisted housing tenancy even if the conduct is criminal activity, provided the tenant did not have advance knowledge of or participate in the criminal activity. *E.g., Stark Metro. Hous. Auth. v. Dorsey*, No. 2001-CA-00057, 2001 WL 1699 (Ohio App., 5th Dist., Aug. 20, 2001) (tenant instructed babysitter not to allow a specified person to enter the unit and sought housing authority's assistance, but babysitter let the person enter the unit, at which time he smoked marijuana; the barred person was not tenant's guest or invitee and his conduct did not constitute a violation of the lease); *Stark Metro. Hous. Auth. v. Marshall*, No. 95-CVG-0676 (Ohio Mun., Canton, May 15, 1995) (tenant did not know of her non-household member son's criminal plans, and the criminal activity did not occur when the son was the tenant's guest); *Insignia Mgmt. Group v. McCrae*, No. 94-CVG-4696 (Ohio Mun., Stark Cty., Oct. 20, 1994) (tenant not responsible for her non-household member daughter's drug activity in the unit, where daughter entered the unit without tenant's knowledge or permission, when tenant was out of town). *See also Hous. Auth. of City of Jersey City v. Thomas*, 318 N.J. Super. 191, 723 A.2d 119 (1999) (tenant unaware that her non-household member son "had surreptitiously entered the apartment" before his drug arrest; federal statute does not require "eviction

of tenant whose apartment is invaded by a transgressor against his or her will”); *Charlotte Hous. Auth. v. Fleming*, 123 N.C. App. 511, 473 S.E.2d 373 (1996) (tenant not responsible for the acts of her non-household member son, who engaged in drug-related criminal activity on project property, but not in tenant’s apartment and not when he was tenant’s guest); *Edwards v. Christian*, 61 A.D.2d 1045, 403 N.Y.S.2d 119 (1978) (“no showing that the petitioner [tenant] knew of, or in any way condoned, her son’s conduct” or that “the robbery occurred on an occasion when Ronald [son] was visiting his mother”). *Cf. Tyson v. New York City Hous. Auth.*, 369 F. Supp. 513 (S.D.N.Y. 1974) (based on constitutional claims, held tenant not responsible for acts of non-household member son, who engaged in criminal activity on project property, but not in tenant’s apartment and not when he was tenant’s guest).

One Ohio appellate court has held that, when a non-household member is arrested in the rental unit, the burden is on the tenant “to present evidence that the person who was arrested in her apartment was not there with the consent of a household member.” *Youngstown Metro. Hous. Auth. v. Scott*, No. 99-CA-238, 2001 WL 744496, at *3 (Ohio App., 7th Dist., June 26, 2001).

11. Forbearance Agreement to Vacate, Breach

The good cause grounds for terminating an assisted housing tenancy are limited to those set forth in the HUD regulations. *Cnty. Props. of Ohio Mgmt. Servs. v. Taylor*, No. 2009-CVG-001131 (Ohio Mun., Franklin Cty., May 11, 2009).

A tenant’s breach of a forbearance agreement, under which the landlord agrees not to file an eviction action and the tenant agrees to vacate the rental unit by a specified date, is not one of the permissible grounds for terminating an assisted housing tenancy under the HUD regulations. *Id.* Therefore, it is not a good cause ground to terminate an assisted housing tenancy. *Id.* See also *Dakota County HRA v. Blackwell*, 602 N.W.2d 243 (Minn. 1999). *Cf. Hous. Auth. of Portland v. Asana*, 165 Or. App. 531, 1 P.3d 1025 (2000) (stipulated judgment from earlier eviction for nonpayment of rent; tenant complied with rent payment requirement, but allegedly breached requirement to work with intervention specialist; the breach is subject to the federal statute’s good cause requirement; reversal and remand to consider whether the breach constituted good cause).

Because HUD approval is required for any lease amendment, the forbearance agreement may not be construed as an amendment to the lease, absent HUD approval. *Cnty. Props. of Ohio Mgmt. Servs. v. Taylor*, No. 2009-CVG-001131 (Ohio Mun.,

Franklin Cty., May 11, 2009). Therefore, absent HUD approval, the breach of the forbearance agreement is not grounds to terminate the lease as a lease violation. *Id.*

In these circumstances, the landlord's options are: (1) to bring an eviction action for the underlying breach of the rental agreement that prompted the forbearance agreement, or (2) to bring an action to enforce the forbearance agreement. *Id.*

Also, when an agreed judgment entry (in contrast to a forbearance agreement) requires a tenant to vacate the rental unit if certain conditions occur, the court may enforce its entry. *Id.*

12. Minor Violation of Lease

One minor violation of a lease is not good cause to terminate an assisted housing tenancy. 24 C.F.R. §§ 247.3(c)(2), 880.607(b)(3)(ii), 966.4(l)(2)(i), 982.310(a)(1).

Generally, repeated minor violations of a lease are good cause to terminate an assisted housing tenancy. *Id.* However, for project-based subsidized housing, repeated minor violations of the lease are good cause to terminate the tenancy only if they: (1) disrupt the livability of the project, (2) adversely affect the health or safety of another person, (3) adversely affect another tenant's right to the quiet enjoyment of the premises, (4) interfere with management of the project, or (5) have an adverse financial effect on the project. 24 C.F.R. §§ 247.3(c), 880.607(b)(3).

Repeated violations, for these purposes, means: more than one violation, *Label & Co. v. Taylor*, No. 86-C-26, 1987 WL 12887 (Ohio App., 7th Dist., June 17, 1987) (two violations constituted repeated violations); and may requires a pattern of violations, not isolated incidents, *see Mid-Northern Mgmt., Inc. v. Heinzeroth*, 234 Ill. App.3d 240, 599 N.E.2d 568 (1992); *N. Shore Plaza Assocs. v. Guida*, 117 Misc.2d 778, 459 N.Y.S.2d 685 (Civ. Ct. 1983).

HUD Handbook 4350.3 REV-1,²²⁰ ¶ 8-13(A)(4) sets forth examples of minor violations of an assisted housing lease. They are: "Tenant keeps unauthorized occupants[:]; Tenant fails to pay utilities[:]; Tenant behaves or acts in a manner that continually disrupts the right of other residents to enjoy the property[:]; Tenant damages, destroys, or defaces the unit or property[:]; Tenant fails to pay the cost of all repairs caused by carelessness or neglect on the part of the tenant."

Ohio court decisions provide additional examples of minor violations of an assisted housing lease. The decisions (and examples) include those set forth below.

²²⁰ For the full citation for this handbook, see note 143, above.

- (1) Conviction for misdemeanor. *Denhart v. Whaley*, No. 88-CV-16092 (Ohio Mun., Hamilton Cty., Nov. 2, 1988) (attempted promotion of prostitution).
- (2) Poor housekeeping. *Dayton Metro. Hous. Auth. v. Williams*, No. 88-CVG-1268 (Ohio Mun., Dayton, July 8, 1988).
- (3) Loud noise. *Label & Co. v. Taylor*, No. 86-C-26, 1987 WL 12887 (Ohio App., 7th Dist., June 17, 1987).
- (4) Child involved in one fight. *Dayton Metro. Hous. Auth. v. Westfall*, No. 79-CVG-7932 (Ohio Mun., Dayton, Oct. 15, 1979).
- (5) Late payment of rent. *Jenkins v. Rung*, No. 93-CVGT-601 (Ohio Mun., Miami Cty., July 5, 1993) (five days late); *Columbus Metro. Hous. Auth. v. Baker*, No. 91-CVG-010490 (Ohio Mun., Franklin Cty., Apr. 19, 1991) (one day late).
- (6) Nonpayment of a small charge. *Dayton Inv. Group-7 v. Lathern*, No. 15866, 1996 WL 741822 (Ohio App., 2nd Dist., Dec. 13, 1996) (\$10, \$11, and \$25 charges); *Jones v. Burns*, No. R90-CVG-2776 (Ohio Mun., Portage Cty., Nov. 29, 1990) (\$3.00 charge); *ABC Mgmt. Co. v. Williams*, No. M86-CVG-34323 (Ohio Mun., Franklin Cty., Nov. 19, 1986) (\$5 and \$10 charges).
- (7) Oral notice (instead of written notice) of change in household composition. *Gorsuch Mgmt. v. Shaver*, No. 97-CA-1, 1997 WL 33471179 (Ohio App., 5th Dist., Oct. 31, 1997).
- (8) Water bill not in tenant's name. *Sumac Real Estate Holding, LLC v. Mitchell*, No. 2014-CVG-00670 (Ohio Mun., Euclid, Apr. 18, 2014).

Generally, a conviction for a felony is a substantial, not a minor, violation of the lease. *E.g., Zonner v. Heritage Hills, Ltd.*, 44 Ohio App.3d 214, 542 N.E.2d 697 (4th Dist. 1988) (felony, cultivation of marijuana in the rental unit).

13. Other Grounds

Ohio court decisions that address other potential grounds for terminating an assisted housing tenancy are summarized below.

Poor housekeeping:

Cincinnati Metro. Hous. Auth. v. Cox, No. 01-CV-24085 (Ohio Mun., Hamilton Cty., June 4, 2002)

Tenant's repeated failure to maintain the rental unit in compliance with the

housing authority's housekeeping standards was a material breach of the lease and constituted a threat to the health and safety of other tenants. Court found sufficient cause to evict, and rejected an equity defense, because of tenant's repeated failures to comply, tenant's refusal to attend classes offered to improve her housekeeping, and the threat to health and safety.

Dayton Metro. Hous. Auth. v. Williams, No. 88-CVG-1268 (Ohio Mun., Dayton, July 8, 1988)

One instance of poor housekeeping was not grounds to evict the tenant because it was neither a serious nor repeated violation of the lease. Poor housekeeping that is not a threat to health or safety is a minor violation of the lease.

Madston Corp. v. Ahrens, No. 87-CVG-815 (Ohio Mun., Port Clinton, Feb. 5, 1988)

The poor housekeeping of a mentally ill tenant, who had a local counseling agency assisting him with housekeeping matters and where the poor housekeeping was not a hazard or danger to other tenants, was not good cause to evict the tenant.

Large Appliances Prohibited by Lease:

Taylor v. Marshall Plaza II, No. 88-CA-004372, 1989 WL 10309 (Ohio App., 9th Dist., Feb. 8, 1989)

The landlord's rule that banned washers and dryers in the dwelling units was enforceable only if the rule was reasonable. The basis for the reasonableness requirement is the subsidized housing lease,²²¹ ¶ 14(a). Because there was a genuine issue as to whether the rule was reasonable, the granting of summary judgment was improper.

Mt. Moriah Dev. Corp. v. Smith, No. 83-CV-36104 (Ohio Mun., Hamilton Cty., Sept. 17, 1984)

The tenant's refusal to remove a compact freezer from her apartment was not a material breach of the rental agreement justifying termination of the tenancy. Because the lease provision in issue prohibited all freezers, it was overly broad on its face and thus unenforceable. A rational rule regulating size or load limit would be enforceable.

²²¹ For the definition of "subsidized housing lease," see note 174, above.

Repair of Premises:

Wagar v. Hatnavy, No. 1433, 1985 WL 4734 (Ohio App., 9th Dist., Dec. 26, 1985)

Good cause to evict the tenant existed because the repairs of the premises that were necessary to comply with orders of the county health department required vacation of the premises.

Colonial Am. Dev. v. Morey, No. M88-CVG-42042 (Ohio Mun., Franklin Cty., Feb. 15, 1989)

Because the number of repairs that the landlord made to the premises due to the tenant's negligence was not unreasonable, and the tenant paid all of the charges associated with those repairs, the repairs and charges were not sufficient grounds to evict the tenant.

Fire:

Neal v. Manor, No. L-07-1055, 2008 WL 203648 (Ohio App., 6th Dist., Jan. 25, 2008)

A fire at the tenant's rental unit rendered it uninhabitable, but the landlord completed the rehab of the rental unit by the time of the preliminary injunction hearing. In these circumstances, the tenant was a valid leaseholder of the rental unit and entitled to reoccupy the rental unit because there had not been any termination of the tenancy by a court proceeding.

Canterbury Way Apts. v. Barnes, No. 87AP-1106, 1988 WL 44529 (Ohio App., 10th Dist., May 5, 1988)

A tenant's refusal to reimburse the landlord for repair costs arising from a fire at the premises, which was started by an electric motor on the tenant's bed, was good cause to evict the tenant.

Martin v. Grandview Apts., No. 91-CV-1215 (Ohio C.P., Clermont Cty., Mar. 9, 1992)

Under the subsidized housing lease,²²² ¶ 24, when a fire damages a rental unit to the extent that it is unlivable, the tenant's lease is not terminated and, upon completion of the repair of the unit, the tenant has the right to recommence the tenant's occupancy of the unit. To terminate a tenancy in these circumstances, the landlord must comply with 24 C.F.R. part 247

²²² For the definition of "subsidized housing lease," see note 174, above.

and the subsidized housing lease, ¶ 23.

Mayes v. Grandview Apts., No. 91-CV-000871 (Ohio C.P., Clermont Cty., Sept. 25, 1991) (preliminary injunction)

Where a fire damaged a rental unit to the extent that it was not habitable, the landlord was required to place the tenant on a waiting list for the next available rental unit. If the landlord seeks to evict the tenant, it may pursue its legal remedies under R.C. Chapter 1923.

Mandatory transfers:

Dayton Metro. Hous. Auth. v. Pitsinger, No. 21126 (Ohio App., 2nd Dist., Apr. 28, 2006)

A Public Housing tenant and her family resided in a three-bedroom wheelchair-accessible unit, which accommodated her husband who was paraplegic. After her husband died and her two daughters moved from the unit, the PHA notified the tenant that she was required to move to a one-bedroom unit, so that the wheelchair-accessible unit would be available for a family requiring it. The tenant's refusal to move constituted good cause to terminate the tenancy.

Altercation:

Dayton Metro. Hous. Auth. v. Cantrell, No. 85-CVG-7589 (Ohio Mun., Dayton, Oct. 10, 1985)

The tenant's involvement in an altercation not as the aggressor, but as the victim who attempted to defend herself, was not sufficient grounds to evict the tenant.

H. Housing Choice Voucher Program Issues

1. Service of Notice to Vacate on the PHA

In the Housing Choice Voucher program ("HCVP"), a landlord who seeks to evict a tenant is required to serve the public housing authority ("PHA") with a copy of the R.C. 1923.04 notice to vacate that the landlord serves on the tenant. 24 C.F.R. § 982.310(e)(2)(ii). "The owner must give the PHA a copy of any owner eviction notice at the same time the owner notifies the tenant." HUD Tenancy Addendum, form HUD-52641-A (July 2019), ¶ 11(b).

"It is essential that the PHA be given timely notice of the commencement of the proceedings to terminate the tenancy, not only so that it does not continue to make

housing subsidy payments on behalf of a tenant who is no longer in possession, but also to enable it to monitor the actions of the landlord and to afford it the opportunity to intervene if it deems it necessary to protect the interest of the Section 8 tenant.” *Lamlon Dev. Corp. v. Owens*, 141 Misc.2d 287, 294, 533 N.Y.S.2d 186 (Dist. Ct. 1988). *Accord Sultanik v. Byrd*, 15 Misc.3d 1141(A), 841 N.Y.S.2d 823 (Just. Ct. 2007); *Homestead Equities, Inc. v. Washington*, 176 Misc.2d 459, 672 N.Y.S.2d 980 (Civ. Ct. 1998).

A landlord’s failure to serve timely the PHA with a copy of the notice to vacate is a defense to the eviction action.²²³ *Asbury Apts. v. Hibbler*, No. 13932, 1994 WL 579845 (Ohio App., 2nd Dist., Oct. 19, 1994); *Nittskoff v. Sanford*, No. 2010-CVG-183 (Ohio Mun., South Euclid, May 12, 2010); *Cotton v. McQueen*, No. CVG-0700796 (Ohio Mun., Cleveland Heights, July 10, 2007); *Kosak v. Sadler*, No. 04-CVG-5145 (Ohio Mun., Dayton, Sept. 18, 2004); *Am. Hous. Foundation v. Bridge*, No. 02-CVG-01157 (Ohio Mun., Middletown, June 20, 2002); *Green v. Sephus*, No. 90-CVG-1768-38 (Ohio Mun., East Cleveland, Jan. 8, 1991). *See also Winns v. Rosado*, 440 N.J. Super. 98, 111 A.3d 155 (2014); *Santouse v. Scott*, No. HDSP137470, 2006 WL 1600385 (Conn. Super. May 31, 2006); *Zeoli v. Vargas*, No. CV-040287703S, 2004 WL 2361544 (Conn. Super. Aug. 19, 2004); *Fenelon v. Jones*, No. LT-000174/11, 2011 WL 2022631 (N.Y. Dist. Ct. May 24, 2011); *Sultanik v. Byrd*, 15 Misc.3d 1141(A), 841 N.Y.S.2d 823 (Just. Ct. 2007); *Homestead Equities, Inc. v. Washington*, 176 Misc.2d 459, 672 N.Y.S.2d 980 (Civ. Ct. 1998). *Cf. Lee v. Handel*, No. 85-CVG-6674 (Ohio Mun., Akron, Aug. 30, 1985) (Section 8 Moderate Rehabilitation, lease requirement).

2. Abatement/Termination of Payments Based on Landlord’s Failure to Make Repairs

In the Housing Choice Voucher program (“HCVP”), the public housing authority (“PHA”) makes rent subsidy payments to a private landlord on behalf of a tenant pursuant to a housing assistance payments (“HAP”) contract. 24 C.F.R. § 982.451. One of the landlord’s obligations under the HAP contract is to maintain the premises

²²³ Some courts have held that a failure to serve the PHA with a copy of this notice deprives the court of subject-matter jurisdiction. *E.g., Nittskoff v. Sanford*, No. 2010-CVG-183 (Ohio Mun., South Euclid, May 12, 2010); *Cotton v. McQueen*, No. CVG-0700796 (Ohio Mun., Cleveland Heights, July 10, 2007). *See also Winns v. Rosado*, 440 N.J. Super. 98, 111 A.3d 155 (2014).

in compliance with HUD's housing quality standards ("HQS"). See 24 C.F.R. § 982.404(a).

If a landlord fails to maintain the premises in compliance with the HQS, the PHA may: (1) abate the rent subsidy payments, while maintaining the HAP contract in full force and effect, and/or (2) terminate the HAP contract. Typically, a PHA abates the rent subsidy payments for a specified period of time (*e.g.*, thirty days) and, if the landlord fails to remedy the HQS violation during the abatement period, the PHA then terminates the HAP contract.

When a PHA abates the rent subsidy payments, the tenant's payment of the tenant's portion of the contract rent,²²⁴ during the period of the abatement, precludes an eviction for nonpayment of rent. 24 C.F.R. §§ 982.310(b), 982.451(b)(4)(iii). *E.g.*, *Weintraub v. Moore*, No. 00G-9521 (Ohio Mun., Akron, Dec. 5, 2000); *Lessem v. Wellman*, No. 91-CVG-11375 (Ohio Mun., Akron, Oct. 31, 1991). See also *Sunflower Park Apts. v. Johnson*, 23 Kan. App.2d 862, 937 P.2d 21 (1997); *Soliman v. Cepeda*, 269 N.J. Super. 151, 634 A.2d 1057 (1993). Cf. *Denning v. Swanstrom*, No. A-97-761, 1998 WL 867250 (Neb. App. Nov. 3, 1998) (money claim).

When a PHA terminates the HAP contract, typically, the landlord will demand rent payments in an amount equal to the full contract rent, the tenant will be unable to make those rent payments, and the landlord will then file an eviction action for nonpayment of rent.²²⁵

In these circumstances, there are at least three potential eviction defenses.

The first potential defense is the R.C. 1923.061(B) defense, which is discussed in Section II.O, above. The landlord's failure to maintain the premises in compliance with the HQS is a violation of the rental agreement (and probably R.C. 5321.04) for which the tenant may assert a counterclaim. *E.g.*, *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991). The damages that the tenant suffers as a direct result of the landlord's violation of the rental agreement

²²⁴ The HUD term used to describe the tenant's portion of the contract rent is "family rent to owner." 24 C.F.R. § 982.515.

²²⁵ If the tenant vacates the property by the effective date of the HAP contract cancellation, the tenant still may bring a money claim against the landlord for the tenant's damages resulting from the landlord's failure to make the required repairs, the HAP contract cancellation, and the tenant's move. *Watson v. Chapman-Bowen*, No. 101295, 2014 WL 6679591 (Ohio App., 8th Dist., Nov. 26, 2014) (\$4,224 damages).

include the loss of the HCVP rent subsidy payments that the PHA would have paid to the landlord on behalf of the tenant, if the landlord had maintained the premises in compliance with the HQS.²²⁶ *Id.* They also include the damages that a tenant may recover, under contract and negligence per se claims, for defective conditions at the rental premises.²²⁷ See Sections IX.A.,B, below.

When asserting the R.C. 1923.061(B) defense, the tenant may be required to address the matter of an R.C. 1923.061(B) rent deposit order. For a discussion on the appropriate rent deposit order for these HCVP tenants, see Section II.O.2, above.

The second potential defense is that the tenant should not be liable for, and thus should not be evicted for nonpayment of, the subsidy portion of the rent (*i.e.*, the amount of HCVP rent subsidy not paid due to the termination of the HAP contract). The tenant should not be liable for the subsidy portion of the rent for two reasons.

One reason is that the landlord, through the landlord's action or inaction, caused the termination of the HCVP rent subsidy payments. *See Crawley v. Brown*, No. 2005-CVG-16627, ¶¶ 42,43 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005) ("where a subsidy is abated or cancelled due to a landlord's failure to repair or maintain, courts have declined to enforce rent liability against subsidized tenants beyond their obligation under the HAP contract....In the present matter, plaintiff's own actions, or lack thereof, caused the termination of the subsidy. As such defendant cannot be held responsible for more than her agreed-upon portion"); *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991) ("It was the Plaintiff's own actions, or lack thereof, that caused it to lose the rental subsidy. The Defendants cannot therefore be held responsible for more than their family contribution of \$30.00."); *Wallpe v. McCurdy*, No. 84-CV-36081 (Ohio Mun., Hamilton Cty., Oct. 15, 1985) ("Plaintiff, by his own actions, precluded Section 8 certification on and after October 1, 1984 and can make no claim for the difference between defendant's portion of the monthly rent and the previously agreed rental price"); *ATKM Mgmt. Group LLC v. Talley*, No. 2018-CVG-018737, ¶ 30 ((Ohio

²²⁶ Absent the HQS violations, the HCVP rent subsidy payments would have continued at least until the expiration of the current lease term. This time period generally is the remainder of a one-year lease term (*see* 24 C.F.R. § 982.309(a)) or the time required to terminate a month-to-month tenancy under R.C. 5321.17(B).

²²⁷ For a discussion on the measure of general damages under a HCVP tenant's contract claim, see Section IX.A.8.b, below.

Mun., Cleveland, Hous. Div., Dec. 30, 2019) (“However, defendant’s liability for rent is limited to the tenant portion for these months and defendant is not responsible for the housing assistance payment portion that EDEN stopped paying in November 2018 when the contract was terminated”). *Cf. Rosier v. Brown*, 158 Misc.2d 748, 601 N.Y.S.2d 554 (City Ct. 1993) (implied warranty of habitability reduced rent by amount of lost subsidy).

A second reason the tenant should not be liable for the subsidy portion of the rent is that the tenant never agreed to pay it. *Curtis v. Surrette*, 49 Mass. App. Ct. 99, 103, 726 N.E.2d 967, 970-71 (2000); *New Hempstead Terrace LLC v. Reeves*, 18 Misc.3d 1113(A), 856 N.Y.S.2d 500 (Dist. Ct. 2008); *Livecchi v. Pyatt*, No. 2002-CV-9073, 2003 WL 21246096 (N.Y. City Ct. May 15, 2003). “[E]ven though the WHA [the PHA] terminated the HAP contract with the landlord and ceased making HAP payments, the tenants never assumed the responsibility of paying the entire contract rent and cannot be forced to do so now.” *Curtis v. Surrette*, 49 Mass. App. Ct. at 103. “The tenants may be held liable only for that portion of the contract rent that they assumed and agreed to pay.” *Id.*

The third potential defense is equity. The landlord is not receiving the HCVP rent subsidy solely because of the landlord’s wrongful action – the landlord’s breach of the HQS obligations and thus the HAP contract and the lease. In these circumstances, it is not equitable to declare a forfeiture during the reasonable time that the tenant needs to transfer the HCVP subsidy to another rental unit, provided the tenant continues to pay the tenant’s HCVP portion of the rent. *Cf. H-1 Mgmt. LLC v. Perryman*, No. 2006-CVG-28200 (Ohio Mun., Cleveland, Hous. Div., July 10, 2007) (denial of landlord’s unjust enrichment claim for rent). The PHA determines this reasonable time when it sets the term of the voucher for the move. Generally, the term is between 60 and 120 days.

3. Excess Tenant Rent Demanded by Landlord

In the Housing Choice Voucher program (“HCVP”), a landlord may not demand or accept any rent payment from a tenant in excess of the tenant’s portion of the contract rent²²⁸ (“excess tenant rent”). HUD Tenancy Addendum, form HUD-52641-A (July 2019), ¶ 5(e).

Therefore, a landlord may not evict a tenant for nonpayment of excess tenant rent,

²²⁸ See note 224, above.

even if the tenant agreed to pay it. *E.g.*, *Jackson v. Hammond*, No. 2006-CVG-31171 (Ohio Mun., Cleveland, Hous. Div., Feb. 15, 2007); *Greene v. Edwards*, No. CVG-0301061 (Ohio Mun., Cleveland Heights, Sept. 10, 2003); *McCuller v. Taylor*, No. 00-CVG-13529 (Ohio Mun., Cleveland, Hous. Div., July 28, 2000).

If a tenant has paid excess tenant rent, and then fails to pay the tenant's portion of the contract rent for one or more months, the excess tenant rent may be set-off against the unpaid rent. *E.g.*, *Evans v. Washington*, No. 98-CVI-4274 (Ohio Mun., Akron, Aug. 20, 1998).

A tenant who has paid excess tenant rent also may recover a money judgment against the landlord in the amount of those payments. *E.g.*, *Powells v. Radey*, No. 96898, 2012 WL 170891 (Ohio App., 8th Dist., Jan. 19, 2012); *Pinkney v. Strahorn*, No. 2006-CV-08394 (Ohio C.P., Montgomery Cty., Apr. 23, 2008); *Gonzalez v. Gonzalez*, No. 2010-CVG-9940 (Ohio Mun., Cleveland, Hous. Div., Aug. 22, 2011); *Thompson v. Womack*, No. 2007-CVG-26006 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 2008, revised Apr. 24, 2008); *Camp v. Thomas*, No. 06-CVF-9711 (Ohio Mun., Dayton, June 21, 2007) (partial summary judgment); *Greene v. Edwards*, No. CVG-0301061 (Ohio Mun., Cleveland Heights, Mar. 18, 2004); *Dennis v. Dudley*, No. 2002-CVG-12760 (Ohio Mun., Cleveland, Hous. Div., Jan. 28, 2003); *Fletcher v. Shell*, No. 1998-CVG-23988 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2000). *See also Ray v. Thirty LLC*, No. A-08-1020, 2009 WL 1819288 (Neb. App., June 23, 2009); *Crutchley v. Costa*, No. SP5270/01, 2001 WL 1666007 (N.Y. Dist. Ct. Dec. 6, 2001), *adhered to on reargument*, 2002 WL 452200 (N.Y. Dist. Ct. Feb. 13, 2002).

In these circumstances, HCVP participants also have succeeded on a claim against the landlord under the federal False Claim Act ("FCA"). *E.g.*, *United States, ex rel. Carmichael v. Gregory*, 270 F. Supp.3d 67 (D.D.C. 2017); *United States v. Baran*, No. CV 14-02639 RGK (AJWx), 2015 WL 5446833 (C.D. Cal. Aug. 28, 2015); *Coleman v. Hernandez*, 490 F. Supp. 2d 278 (D. Conn. 2007); *U.S. ex rel. Smith v. Gilbert Realty Co.*, 840 F. Supp. 71 (E.D. Mich. 1993). *See Cummings v. Hale*, No. 15-cv-04723-JCS, 2017 WL 3669622 (N.D. Cal. May 17, 2017) (utility payments); *United States ex rel. Holmes v. Win Win Real Estate, Inc.* No. 2:13-cv-02149-APG-GWF, 2015 WL 6150594 (D. Nev. Oct. 19, 2015) (homeowner's association and management fees). *See also Kelly v. Denault*, 374 F. Supp.3d 884 (N.D. Cal. 2018) (motion to dismiss denied); *U.S. ex rel. Sutton v. Reynolds*, 564 F. Supp.2d 1183 (D. Ore. 2007) (recognizes the tenant's FCA claim; denies summary judgment due to factual disputes).

The FCA provides for treble damages and civil penalties between \$5,500 and

\$11,000 per violation. 28 C.F.R. § 85.3(9).

If the tenant initiated the fraud, the court may refuse to award any amount to the tenant under the FCA. *E.g., Sterns v. Lane*, No. 2:08-cv-175, 2010 U.S. Dist. LEXIS 96981 (D. Vt. Sept. 15, 2010). In addition, some PHAs may find it grounds to terminate the family's HCVP participation under 24 C.F.R. § 982.552(c)(1)(iv).

If the tenant agreed to the "side payments" under duress and/or coercion, the tenant has not committed a fraud and, therefore, should not be subject to a termination of participation under 24 C.F.R. § 982.552(c)(1)(iv). *See* 73 Fed. Reg. 39712 (July 10, 2008) (OIG, HUD fraud alert on landlords improperly requiring HCVP tenants to pay rent in excess of the amount authorized by the HAP contract).

4. Sale of the Premises During the Tenancy

Under Ohio law, a purchaser of real estate, which is in the actual possession of a tenant, acquires title subject to the tenant's rights under the existing tenancy. *See* Section XXII.B, below.

This state law applies to a Housing Choice Voucher program ("HCVP") lease. Letter from Howard M. Schmeltzer, Special Assistant to the HUD Associate General Counsel for Litigation, to Edward G. Weil, Esq. (1985). *See also EMC Mortgage Corp. v. Smith*, No. 95-04794, slip op. at 7 (Mass. Hous. Ct., Boston Div., Jan. 5, 1996) ("A new owner can seek to terminate the existing HAP contract and lease, but only in accordance with the procedures set forth in the federal statute and regulations").

Therefore, the purchaser of a rental unit, which is occupied by a HCVP tenant, acquires the rental unit subject to the notice and good cause requirements for termination of the HCVP lease. *Id. E.g., Twin Lawn Props., Ltd. v. Adams*, No. CVG-970506 (Ohio Mun., Fostoria, Mar. 16, 1998). The purchase of the rental unit, alone, is not good cause to terminate the HCVP lease. *Id.*

However, a termination of a HCVP lease in order to facilitate a subsequent sale of the rental unit is good cause to terminate the lease, provided the termination occurs after the first year of the tenancy. 24 C.F.R. § 982.310(d).

5. Foreclosure of a Mortgage on the Premises During the Tenancy – Preemption

Under Ohio common law, when a foreclosure action concerns tenant-occupied property and the tenant is a party to the foreclosure action, the foreclosure sale may terminate the tenancy. *See* Section XXII.C.2, below. If the tenant is not a party to the

foreclosure action, and the tenant seeks to affirm the tenancy, Ohio case law is split on whether the foreclosure sale may terminate the tenancy. *Id.*

The federal law on termination of a HCVP lease arguably preempts²²⁹ this Ohio common law. Federal law requires good cause for any termination of a HCVP lease, during a lease term. 42 U.S.C. § 1437f(o)(7)(C); 24 C.F.R. § 982.310; HUD Tenancy Addendum, form HUD-52641-A (July 2019), ¶ 8.

The objective of this federal law is “to provide participating [HCVP] families with security of tenancy and reasonable assurance that, unless they breach a material term of their lease or the landlord has ‘good cause’ to terminate the tenancy, they can continue to reside in their homes.” *Webster Bank v. Occhipinti*, No. CV-970059147S, 1998 WL 846105, at *4 (Conn. Super. Nov. 20, 1998) (quoting *EMC Mortgage Corp. v. Smith*, No. 95-04794, slip op. at 17 (Mass. Hous. Ct., Boston Div., Jan. 5, 1996)). *Accord German v. Fed. Home Loan Mortgage Corp.*, 899 F. Supp. 1155 (S.D.N.Y. 1995).

Court decisions in other jurisdictions,²³⁰ addressing this precise preemption issue, have held that this federal law preempts any state foreclosure law that would terminate a HCVP lease, during a lease term, without good cause.²³¹ *E.g.*, *German v. Fed. Home Loan Mortgage Corp.*, 899 F. Supp. 1155, 1164 (S.D.N.Y. 1995); *Webster Bank v. Occhipinti*, No. CV-970059147S, 1998 WL 846105 (Conn. Super. Nov. 20, 1998); *Bristol Sav. Bank v. Savinelli*, No. CV-950377478S, 1996 WL 166396 (Conn. Super. Mar. 21, 1996); *EMC Mortgage Corp. v. Smith*, No. 95-04794 (Mass. Housing Ct., Boston Div., Jan. 5, 1996); *Fed. Home Loan Mortgage Corp. v. Surzhukov*, No. 95-SP-1487 (Mass. Hous. Ct., Hampden Div., Aug. 9, 1995). *But see Atlantic Mortgage & Inv. Corp. v. Pervis*, No. SPNH-970651076, 1997 WL 866672 (Conn. Super. Dec. 3, 1997).

Federal law does not require good cause for nonrenewal of a HCVP lease at the expiration of a lease term. See Section III.A., above. Therefore, federal law does not conflict with or preempt any state foreclosure law that terminates a HCVP lease, without good cause, at the expiration of a lease term.

²²⁹ See note 210, above.

²³⁰ Ohio court decisions have not addressed this preemption issue.

²³¹ Under the federal law, a sale of the premises, alone, is not good cause to terminate a HCVP lease during a lease term. See Section III.H.4, above.

For the additional rights that are afforded these HCVP tenants under the Protecting Tenants at Foreclosure Act, see Section XXII.C.3, below.

I. Additional Retaliation Defenses

1. First and Fourteenth Amendments

The constraints of the First and/or Fourteenth Amendments of the U.S. Constitution apply to Public Housing and to certain project-based subsidized housing developments. See National Housing Law Project, HUD Housing Programs: Tenants' Rights ¶ 14.9.2.2.2 (5th ed. 2018). The determination as to whether the First and/or Fourteenth Amendments apply to any particular project-based subsidized housing development will depend on whether there is sufficient government action. *Id.*

The First Amendment and the Fourteenth Amendment, when applicable, prohibit a landlord from evicting a tenant in retaliation for tenant association or tenant organizing activity. *Davis v. Vill. Park II Realty*, 578 F.2d 461 (2d Cir. 1978); *Herring v. Chicago Hous. Auth.*, No. 90-C-3797, 1993 WL 489767 (N.D. Ill. Apr. 22, 1993); *Walton v. Darby Town Houses, Inc.*, 395 F. Supp. 553 (E.D. Pa. 1975); *McQueen v. Druker*, 317 F. Supp. 1122 (D. Mass. 1970), *aff'd on other grounds*, 438 F.2d 781 (1st Cir. 1971); *Belvoir Cliffs Apts. v. Bembry*, 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978). See generally *Thorpe v. Hous. Auth. of City of Durham*, 393 U.S. 268 (1969). Cf. *Carriage Hill Tenants' Union v. Wallick Props., Inc.*, No. CI-827-44 (Ohio Mun., Athens Cty., Sept. 29, 1983) (landlord enjoined from interfering with the publication, distribution, or delivery of the tenant organization's newsletter).

One benefit of this retaliation defense is that it applies to circumstances to which the R.C. 5321.02 retaliation defense (see Section II.T, above) does not apply. For example, it applies to an eviction action commenced in retaliation for tenant association activity even if the tenant is in default in rent payments. *E.g., Belvoir Cliffs Apts. v. Bembry*, 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978).

2. HUD Regulations

For project-based subsidized housing, HUD regulations establish the right of a tenant to engage in a wide range of tenant organization activities and require the landlord to allow the tenant to engage in these activities. 24 C.F.R. part 245, subpart

B. Furthermore, the subsidized housing lease,²³² ¶ 28 requires the landlord to allow the tenant to engage in these activities.

If a landlord of project-based subsidized housing commences an eviction action against a tenant because the tenant engaged in one (or more) of these activities, the landlord is not allowing the tenant to engage in the activity. Therefore, in such cases, the landlord has violated HUD regulations and the lease.

These violations of the HUD regulations and the lease constitute a retaliation defense to the eviction action. And, unlike the retaliation defense under the First and/or Fourteenth Amendments (see Section III.I.1., above), tenants may invoke this retaliation defense irrespective of whether the landlord's conduct constitutes government action.

J. Bankruptcy

1. Overview

Under the bankruptcy laws, an assisted housing tenant²³³ can prevent an eviction for nonpayment of rent and reinstate the lease, provided the tenant otherwise qualifies for bankruptcy relief.

A project-based assisted housing tenant²³⁴ may secure this relief in a chapter 13 bankruptcy. A Housing Choice Voucher program ("HCVP") tenant also may secure this relief in a chapter 13 bankruptcy, but generally there is little benefit in reinstating a HCVP lease because it does not require good cause for nonrenewal (see Section III.A, above).²³⁵ See, e.g., *In re Burch*, 401 B.R. 153 (Bankr. E.D. Pa. 2008) (due to the landlord's nonrenewal of the HCVP lease, there did not exist an unexpired lease term for the tenant to assume in the chapter 13 bankruptcy).

In some jurisdictions, a Public Housing tenant may also secure this relief in a chapter 7 bankruptcy. When a Public Housing tenant files a chapter 7 bankruptcy, a primary issue is whether the anti-discrimination provision (11 U.S.C. § 525(a))

²³² For the definition of "subsidized housing lease," see note 174, above.

²³³ For the definition of "assisted housing," see note 163, above.

²³⁴ For the definition of "project-based assisted housing," see note 165, above.

²³⁵ However, when the eviction is for nonpayment of rent, a bankruptcy may prevent the public housing authority from terminating the family's HCVP participation.

precludes a public housing authority (“PHA”) from evicting a tenant on the basis of nonpayment of discharged, prepetition rent. The case law on this issue is split.

The better-reasoned view is that the PHA is precluded from evicting the tenant. The reasoning for this view, in *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80 (2d Cir. 2002), is discussed in Section III.J.2, below.

Court decisions holding that the PHA is precluded from evicting the tenant include: *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80 (2d Cir. 2002); *In re Aikens*, 503 B.R. 603 (Bankr. S.D.N.Y. 2014); *Biggs v. Hous. Auth. of City of Pittsburgh*, No. 07-CV-0007, 2007 WL 654247 (W.D. Pa. Feb. 28, 2007);²³⁶ *Couture v. Burlington Hous. Auth.*, 225 B.R. 58 (D. Vt. 1998); *In re Curry*, 148 B.R. 966 (S.D. Fla. 1992); *In re Bain*, No. 10-11316-RAM (Bankr. S.D. Fla. Apr. 20, 2010); *In re Kelly*, 356 B.R. 899 (Bankr. S.D. Fla. 2006); *In re Batista*, No. 05-11033-BKC-RAM, 2005 WL 2451736 (Bankr. S.D. Fla. June 2, 2005); *Johnson v. Chester Hous. Auth.*, 250 B.R. 521 (Bankr. E.D. Pa. 2000); *In re Jackson*, No. 94-18512 DWS (Bankr. E.D. Pa. May 4, 1995); *In re Szymecki*, 87 B.R. 14 (Bankr. W.D. Pa. 1988); *Sudler v. Chester Hous. Auth.*, 71 B.R. 780 (Bankr. E.D. Pa. 1987); *Gibbes v. Hous. Auth. of New Haven*, 9 B.R. 758 (Bankr. D. Conn. 1981), *supplemented*, 12 B.R. 737 (D. Conn. 1981), *aff’d in relevant part & remanded in part on other grounds*, 76 B.R. 257 (D. Conn. 1983).

Court decisions holding that the PHA is not precluded from evicting the tenant include: *Hous. Auth. of City of Pittsburgh v. Smith*, No. 2:14-cv-00976 (W.D. Pa. 2014); *Hous. Auth. of New Orleans v. Eason*, 12 So.3d 970 (La. 2009); *In re Valentin*, No. 03-24290T, 2004 WL 1064227 (Bankr. E.D. Pa. May 10, 2004); *In re Hobbs*, 221 B.R. 892 (Bankr. M.D. Fla. 1997); *In re Bacon*, 212 B.R. 66 (Bankr. E.D. Pa. 1997); *In re Collins*, 199 B.R. 561 (Bankr. W.D. Pa. 1996); *In re James*, 198 B.R. 885 (Bankr. W.D. Pa. 1996).

Generally, project-based subsidized housing tenants²³⁷ cannot secure this relief in a chapter 7 bankruptcy because 11 U.S.C. § 525(a), on which Public Housing tenants rely, “protects debtors from discrimination by governmental units with regard to certain grants.” *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80, 83 (2d Cir. 2002).

Project-based subsidized housing that is not owned by a governmental unit is not

²³⁶ The court in *Hous. Auth. of City of Pittsburgh v. Smith*, No. 2:14-cv-00976 (W.D. Pa. 2014), determined that the *Biggs* decision on this point is informational but not a holding.

²³⁷ For the definition of “project-based subsidized housing,” see note 165, above.

a governmental unit for § 525(a) purposes. *Stoltz*, 315 F.3d at 90 n.5; *In re Marcano*, 288 B.R. 324 (Bankr. S.D.N.Y. 2003); *In re Rosemond*, 105 B.R. 8, 9 (Bankr. W.D. Pa. 1989); *In re Lutz*, 82 B.R. 699, 702-03 (Bankr. M.D. Pa. 1988). *But see In re Okentowicz*, 314 B.R. 638 (Bankr. E.D. Mich. 2004) (applicant, Section 8 project-based assisted housing).

However, project-based subsidized housing that is owned by a governmental unit is a governmental unit for § 525(a) purposes. *In re Bain*, No. 10-11316-RAM (Bankr. S.D. Fla. Apr. 20, 2010) (county-owned Section 8 project-based housing); *In re Marcano*, 288 B.R. 324 (Bankr. S.D.N.Y. 2003) (city-owned property).

2. Stoltz Analysis of Chapter 7, § 525(a) Issue

11 U.S.C. § 525(a) prohibits governmental units from, among other things, refusing to renew a person's grant because of the person's debt, if the grant is protected under § 525(a) and the debt has been discharged in a bankruptcy proceeding.

Congress enacted § 525(a) to codify the decision in *Perez v. Campbell*, 402 U.S. 637 (1971). S. Rep. No. 95-989, at 81, reprinted in 1978 U.S.C.C.A.N. 5787, 5867. In *Perez*, the Supreme Court invalidated, under the Supremacy Clause, a state law that suspended the drivers' licenses of debtors who failed to satisfy motor-vehicle-related tort judgments. The Supreme Court held that the state statute was in conflict with the Bankruptcy Act because it frustrated the "fresh start" policy of the Bankruptcy Code.

"Notably, the text of Section 525(a) does not limit its scope to the facts presented in *Perez*. Section 525(a) applies to any governmental unit, not just a State agency or department; it covers not only licenses, but also permits, charters, franchises, and other similar grants" *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80, 87 (2d Cir. 2002).

As noted in Section III.J.1, above, when a Public Housing tenant files a chapter 7 bankruptcy, a primary issue, on which the case law is split,²³⁸ is whether § 525(a) precludes a public housing authority ("PHA") from evicting a tenant on the basis of nonpayment of discharged, prepetition rent.

The answer to this issue depends on four sub-issues: (1) whether a PHA is a governmental unit for § 525(a) purposes; (2) whether the Public Housing lease – the tenant's right to continue to participate in the Public Housing program – falls within the § 525(a) "other similar grants" provision; (3) whether the alleged unpaid rent that has been discharged is the proximate cause of the eviction – the "solely because"

²³⁸ The court decisions are listed in Section III.J.1, above.

requirement;²³⁹ and (4) whether the § 525(a) protection trumps the PHA's general right under 11 U.S.C. § 362(b)(22)²⁴⁰ to pursue state law remedies, including eviction, for a prepetition breach of the lease, when the trustee rejects the lease.

The only federal appellate court to rule on this issue is the Second Circuit, in *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80 (2d Cir. 2002). It analyzed each of the four sub-issues and thereupon held that § 525(a) prohibits the PHA from evicting a Public Housing tenant for nonpayment of discharged prepetition rent.

First, the Court found that a PHA is a governmental unit for § 525(a) purposes. *Stoltz*, 315 F.3d at 88. The PHA did not dispute this finding. *Id.*

Second, the Court held that “other similar grants” include the Public Housing lease and the right to continue to participate in the Public Housing program. *Stoltz*, 315 F.3d at 89-91. The Court rejected the PHA's argument “that a public housing tenant's future right to participate in the public housing program is the only protected public housing grant under section 525(a).” *Id.* at 89.

Third, the Court held that, in these circumstances, the eviction claim is solely because of the unpaid rent that has been discharged in a chapter 7 bankruptcy. *Stoltz*, 315 F.3d at 91. The Court rejected the PHA's argument “that it desires to evict *Stoltz* only because she breached her public housing lease, not because she failed to pay prepetition rent that was discharged in bankruptcy. *Id.* The Court noted that “this unpersuasive argument [of the PHA] is premised on an ‘illusory distinction’ between the breach of the lease and the nonpayment of the discharged prepetition rent.” *Id.*

Fourth, the Court held that, in this context, § 525(a) and 11 U.S.C. § 365 (now

²³⁹ For § 525(a) purposes, a governmental unit's action is “solely because” of the failure to pay a discharged debt if the nonpayment is “the proximate cause of the cancellation – the act or event that triggers the agency's decision to cancel, whatever the agency's ultimate motive in pulling the trigger may be.” *FCC v. NextWave Personal Commc'ns Inc.*, 537 U.S. 293, 301-02 (2003). As the Supreme Court explained: “When the statute refers to failure to pay a debt as the sole cause of cancellation (‘solely because’), it cannot reasonably be understood to include, among the other causes whose presence can preclude application of the prohibition, the governmental unit's *motive* in effecting the cancellation. Such a reading would deprive § 525 of all force. It is hard to imagine a situation in which a governmental unit would not have some further motive behind the cancellation” *Id.*, at 301.

²⁴⁰ The corresponding provision to 11 U.S.C. § 362(b)(22), before the 2005 BAPCPA amendments, was 11 U.S.C. § 365. The same type of conflict exists between 11 U.S.C. § 362(b)(22) and § 525(a) as existed between 11 U.S.C. § 365 and § 525(a), and the same principles apply to this conflict. *In re Aikens*, 503 B.R. 603, 607 (Bankr. S.D.N.Y. 2014).

§ 362(b)(22))²⁴¹ are in conflict, and that § 525(a) controls because it is the more specific provision. *Stoltz*, 315 F.3d at 92-95.

In *Stoltz*, the Court also analyzed and then rejected the conclusions and holdings in: *In re Bacon*, 212 B.R. 66 (Bankr. E.D. Pa. 1997);²⁴² *In re Collins*, 199 B.R. 561 (Bankr. W.D. Pa. 1996); and *In re James*, 198 B.R. 885 (Bankr. W.D. Pa. 1996).

The holding in *Bacon* primarily relies on its conclusion that the § 525(a) protection does not encompass continued participation in a program (e.g., the Public Housing program), but rather prohibits discrimination only in any future application to participate in a program (e.g., a future application for admission to the Public Housing program). Under this view, no conflict exists between § 525(a) and § 365.

The holdings in *Collins* and *James* primarily relied on their conclusion that § 365 is more specific than and thus trumps § 525(a).²⁴³

3. Unexpired Lease Term, Chapters 13 and 7

In the bankruptcy proceeding, an issue may arise as to whether the lease is “unexpired” as of the filing of the bankruptcy petition. In a chapter 13 bankruptcy, the tenant may assume and reinstate the assisted housing lease only if it is an “unexpired lease.” See 11 U.S.C. §§ 365(a), 1322(b)(7). In a chapter 7 bankruptcy, the right (if any) of the tenant to retain the Public Housing lease under 11 U.S.C. § 525(a) exists only if it is an unexpired lease. See *Stoltz*, 315 F.3d at 86; *Couture v. Burlington Hous. Auth.*, 225 B.R. 58, 61-63 (D. Vt. 1998); *In re Bacon*, 212 B.R. 66, 70 (Bankr. E.D.

²⁴¹ See note 240, above.

²⁴² The decisions in *In re Valentin*, 309 B.R. 715 (Bankr. E.D. Pa. 2004), and *In re Hobbs*, 221 B.R. 892 (Bankr. M.D. Fla. 1997), follow the *Bacon* decision. Therefore, the *Stoltz* analysis of *Bacon* applies with equal force to *Valentin* and *Hobbs*.

²⁴³ The *James* decision also relies on its erroneous holding that, because the trustee by operation of law rejected the lease, the lease was no longer in effect, which constituted a valid ground (aside from nonpayment of the discharged rent) for the eviction. This holding is erroneous because “the automatic rejection of a lease pursuant to § 365(d)(1) affects an abandonment of the lease to the debtor.” *In re Bacon*, 212 B.R. 66, 68 (Bankr. E.D. Pa. 1997). Accord *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80, 85 n.1 (2d Cir. 2002); *In re Collins*, 199 B.R. 561, 565 (Bankr. W.D. Pa. 1996). It does not terminate the lease. *Id.*

Pa. 1997); *Sudler v. Chester Hous. Auth.*, 71 B.R. 780, 785 (Bankr. E.D. Pa. 1987).²⁴⁴ The term “unexpired” is not defined in the Bankruptcy Code. *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80, 86 (2d Cir. 2002); *In re Williams*, 144 F.3d 544, 546 (7th Cir. 1998). In defining this term:

Some courts have concluded that a residential lease may be in default or may have been terminated under state law and may still be assumable in bankruptcy as an unexpired lease. These courts have looked to state law, not to determine the point at which the tenant’s leasehold interest is considered to be terminated, but to determine the point at which the tenant’s leasehold interest, including actual possessory interest, is finally and conclusively extinguished, so that there is nothing to assume at the time the petition is filed.

In re DiCamillo, 206 B.R. 64, 68 (Bankr. D.N.J. 1997). *E.g.*, *Stoltz*, 315 F.3d at 86 (Vermont, expires not sooner than issuance of writ of possession); *In re Parker*, 269 B.R. 522 (D. Vt. 2001) (Vermont, expires upon execution of writ of possession); *In re Ross*, 142 B.R. 1013 (S.D. Fla. 1992) (Florida, expires upon execution of writ of possession); *In re DiCamillo*, 206 B.R. 64 (Bankr. D.N.J. 1997) (New Jersey, expires later than entry of eviction judgment); *In re Whitsett*, 163 B.R. 752 (Bankr. E.D. Pa. 1994) (Pennsylvania, expires upon execution of writ of possession); *In re Talley*, 69 B.R. 219 (Bankr. M.D. Tenn. 1986) (Tennessee, expires upon execution of writ of possession). *But see In re Williams*, 144 F.3d 544, 546 (7th Cir. 1998) (Illinois, expires when notice of termination expires, unless tenant has valid defense to eviction);²⁴⁵ *In re Moore*, 290 B.R. 851 (Bankr. N.D. Ala. 2003) (Alabama, expires when notice of

²⁴⁴ In a chapter 7 bankruptcy, the tenant cannot assume the lease. *Stoltz v. Brattleboro Hous. Auth.*, 315 F.3d 80, 85 n.1 (2d Cir. 2002); *In re Marciano*, 288 B.R. 324, 329 (Bankr. S.D.N.Y. 2003); *In re Bacon*, 212 B.R. 66, 69 n.4 (Bankr. E.D. Pa. 1997). While the trustee may assume the lease, the trustee will rarely if ever assume an assisted housing lease. *Stoltz*, 315 F.3d at 85 n.1; *In re Marciano*, 288 B.R. at 329; *In re Day*, 208 B.R. 358, 365 (Bankr. E.D. Pa. 1997). When the trustee rejects the lease, it “effects an abandonment of the lease to the debtor [tenant].” *In re Bacon*, 212 B.R. at 68. *Accord Stoltz*, 315 F.3d at 85 n.1; *In re Marciano*, 288 B.R. at 329; *In re Day*, 208 B.R. at 365.

²⁴⁵ The Seventh Circuit held that the bankruptcy court did not abuse its discretion in “modifying the automatic stay to permit the forcible entry action to proceed so that the state court could determine the merits of Williams’ defenses, and, more to the point, whether the lease had any value that could be assumed under her plan.” 144 F.3d at 550. *Accord In re Bennett*, 165 F.3d 31 (table), 1998 WL 756838 (7th Cir. 1998).

termination expires).

With respect to Ohio law, one bankruptcy court has held that a residential lease expires for § 365(a) purposes not later than the entry of the eviction judgment. *In re Collier*, 163 B.R. 118 (Bankr. S.D. Ohio 1993). Because the *Collier* tenant filed her bankruptcy petition post-entry of the eviction judgment and pre-execution of the writ of possession, the court did not need to determine, and opted not to determine, the precise stage in the eviction process that the lease expired. *Id.* at 121 n.2.

4. Prompt Cure, Chapter 13

If a tenant files a chapter 13 bankruptcy, another issue that may arise is whether, under the tenant's plan, the tenant will promptly pay the unpaid rent. The tenant may assume the unexpired lease only if the tenant provides adequate assurance that the tenant will "promptly cure" the unpaid rent. *See* 11 U.S.C. § 365(b)(1)(A). *E.g.*, *In re Whitsett*, 163 B.R. 752 (Bankr. E.D. Pa. 1994) (slightly less than two years, \$1,800 – prompt cure); *In re Ross*, 142 B.R. 1013 (S.D. Fla. 1992) (five months – prompt cure); *In re Liggins*, 145 B.R. 227 (Bankr. E.D. Va. 1992) (48 to 60 months, \$8,769 – not prompt cure); *In re Yokley*, 99 B.R. 394 (Bankr. M.D. Tenn. 1989) (approximately two years, \$1,076.50 – not prompt cure). *See also In re DiCamillo*, 206 B.R. 64, 66 (Bankr. D.N.J. 1997) ("The courts have consistently held that a proposed cure over a period of two years or more was not 'prompt' for purposes of § 365(b)(1)").

5. Automatic Stay

If an eviction action against the tenant is pending and an eviction judgment has not been entered against the tenant as of the date that the tenant files the bankruptcy petition, the bankruptcy filing generally operates as an automatic stay of the eviction proceeding. 11 U.S.C. § 362. *See, e.g., Hayes v. Kelly*, No. L-14-1153, 2015 WL 995446 (Ohio App., 6th Dist., Mar. 6, 2015).

The one exception to this general rule is that, under 11 U.S.C. §§ 365(b)(23), 365(m), the automatic stay may not apply to the pending eviction action if the landlord files with the bankruptcy court, and serves on the tenant, a certification that: (1) the tenant is endangering the real property or is using (or is allowing to be used) controlled substances on the property; and (2) the pending eviction action is based on these grounds. Within 15 days of the filing of the certification, the tenant may file objections to the landlord's claim under this exception, on the ground that the alleged underlying facts giving rise to the landlord's claim did not exist or have been remedied. If the

tenant demonstrates either of these grounds, the automatic stay will continue to apply to the pending eviction action.

If an eviction action against the tenant is pending and an eviction judgment against the tenant has been entered as of the date that the tenant files the bankruptcy petition, generally the bankruptcy filing does not operate as an automatic stay of the eviction proceeding. 11 U.S.C. §§ 362(b)(22), 362(l)(a)(3).

The one exception to this general rule is that the bankruptcy filing operates as an automatic stay of the eviction proceeding for thirty days, if the tenant files with the bankruptcy petition and serves upon the landlord a certification that: (1) under applicable non-bankruptcy law, “there are circumstances under which the debtor [tenant] would be permitted to cure the entire monetary default that gave rise to the judgment for possession, after that judgment for possession was entered;” and (2) the tenant “has deposited with the clerk of the court, any rent that would become due during the 30-day period after the filing of the bankruptcy petition.”²⁴⁶ *Id.* If, during the 30-day period, the tenant cures the entire monetary default that gave rise to the eviction judgment, the automatic stay will continue to apply to the eviction proceeding. *Id.* However, “§ 525(a) eliminates the need for a Public Housing debtor to cure a prepetition default as a condition to rendering the stay exception in § 362(b)(22) inapplicable.” *In re Kelly*, 356 B.R. 899, 901 (Bankr. S.D. Fla.2006).

Since Ohio law does not provide a tenant with a right to cure a monetary default after the entry of an eviction judgment, this exception to the general rule appears to be inapplicable to Ohio tenants.

If an eviction judgment is subject to de novo review, it is not an eviction judgment for § 362(b)(22) purposes. *In re Alberts*, 381 B.R. 171 (Bankr. W.D. Pa. 2008) (under Pennsylvania law, a district magistrate court’s eviction judgment is subject to de novo review in the court of common pleas and, therefore, is not an eviction judgment for § 362(b)(22) purposes). For Ohio tenants, this means that a magistrate’s eviction decision, which is subject to de novo review by a judge (*see* Ohio R. Civ. P. 53(D)), is not an eviction judgment for § 362(b)(22) purposes.

²⁴⁶ *See, e.g., In re Harris*, 424 B.R. 44 (Bankr. E.D.N.Y. 2010) (landlord permitted to enforce pre-filing eviction judgment because tenant failed to file the §§ 362(b)(22), 362(l)(a)(3) certification with the filing of the bankruptcy petition).

K. Public Housing Turnkey III (Homeownership)

Some public housing authorities (“PHAs”) administer a homeownership program known as the Turnkey III program. *See* 24 C.F.R. part 904.

Under the program, a family enters into an agreement (“Homebuyers Ownership Opportunity Agreement”) that provides the family with an opportunity to reside in and eventually purchase a PHA dwelling unit. 24 C.F.R. § 904.103(c)(2). If the family violates its obligations under the agreement or no longer meets the homeownership potential requirements, the PHA may terminate the agreement. 24 C.F.R. §§ 904.107(m),(o).

In an eviction action against such families, a potential issue is whether the agreement is a land installment contract (and thus subject to R.C. 5313.07) or a lease with an option to purchase. If the agreement is a land installment contract, and if the agreement has been in effect for at least five years or the family has paid at least twenty percent of the purchase price, the PHA may not enforce its right of possession (if any) through an eviction action. *See* Section XXIII.E.2., below. In these circumstances, the PHA may enforce its right of possession (if any), and terminate the family’s interest in the property, only through a foreclosure action. *Id.*

One Ohio appellate court has held that the agreement is a land installment contract (and thus subject to R.C. 5313.07). *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984).

The case law from other states is split on this issue. *Compare Hous. Auth. of City of Spartanburg v. Elmore*, No. 94-CP-42-832 (S.C.C.P., Spartanburg Cty., Nov. 30, 1994) (follows *Watkins*) with *Philadelphia Hous. Auth. v. Barbour*, 592 A.2d 47 (Pa. Super. 1991) (the agreement is a lease with an option to purchase, not a long-term sales contract). *See also Ayers v. Philadelphia Hous. Auth.*, 908 F.2d 1184 (3d Cir. 1990) (HUD Turnkey III regulations preempt state foreclosure law notice and opportunity to cure requirements; reserved for the state court the matter of whether Turnkey III homebuyers are tenants subject to an eviction action or sufficiently similar to mortgagors to require ejectment in the court of common pleas). *Cf. Kopanuk v. AVCP Reg’l Hous. Auth.*, 902 P.2d 813 (Alaska 1995) (barred use of eviction action for breach of homeownership agreement under analogous Indian housing authority program).

L. Low Income Housing Tax Credit Program

1. Introduction

The federal Low Income Housing Tax Credit (“LIHTC”) program (*see* 26 U.S.C. § 42) uses income tax credits to fund construction, rehabilitation, and acquisition/rehabilitation of rental units for low-income families. For a general description of the LIHTC program, *see* National Housing Law Project, HUD Housing Programs: Tenants’ Rights, ¶ 1.11 (5th ed. 2018). The Ohio Housing Finance Agency (“OHFA”) administers the LIHTC program for the state of Ohio.

Sections III.L.2-4, below, provide a brief summary of the program’s set-aside of low-income units, rent structure, and eviction rules.

2. Set-Aside of Low-Income Units

The owner of a LIHTC project is required to set aside a certain percentage of units for low-income tenants (“low-income units”). 26 U.S.C. § 42(g).

Before 2018, generally, two options existed for the set-aside requirement: (1) 20% (or more) of the units for tenants whose income is at or below 50% of area medium income or (2) 40% (or more) of the units for tenants whose income is at or below 60% of area medium income. *Id.* The LIHTC program uses the HUD definition of area median income.

For LIHTC properties developed since 2018, a third set-aside option has been a standard known as income averaging. 26 U.S.C. § 42(g). It permits applicants with incomes up to 80% of area medium income, provided the average rent and income limit of the designated units does not exceed 60% of the area medium income. This income averaging standard permits a project to use rent/income levels for particular units at 20%, 30%, 40%, 50%, 60%, 70%, or 80% of area medium income.

These income limits apply only at the time of a tenant’s initial occupancy. *Id.* If the development is 100% low-income units, after initial occupancy, a tenant is not subject to any income limit. *Id.* If the development has both low-income units and market-rent units, after initial occupancy, if the income of a low-income unit tenant exceeds the initial income limit by more than 40%, the tenant is deemed to be a market-rent tenant and the next available unit at the development must be leased to a qualifying low income tenant. *Id.*

For the LIHTC program, “[t]enant income is calculated in a manner consistent with the determination of annual income under section 8 of the United States Housing Act of 1937 (‘Section 8’)” 26 C.F.R. § 1.42-5(b)(vii). Therefore, in computing tenant income, the LIHTC program relies on 24 C.F.R. § 5.609 and HUD Handbook 4350.3 REV-1.²⁴⁷ See IRS, Guide for Completing Form 8823, Low-Income Housing Credit Agencies Report of Noncompliance or Building Disposition (Rev. 01-2011), ch. 4 (available at www.irs.gov/Businesses/Small-Businesses-&Self-Employed/Guide-for-Completing-Form-8823-Low-Income-Housing-Credit-Agencies-Report-of-Noncompliance-or-Building-Disposition).

3. Rent for Low-Income Units

For LIHTC projects with post-1989 tax credit allocations, gross rent for a low-income unit may not exceed 30% of the initial income limit for the unit, based on an assumed household size of 1.5 persons per bedroom (or one person for an efficiency). 26 U.S.C. § 42(g). For example, the gross rent for a two-bedroom unit may not exceed 30% of the initial income limit for a three-person household.

For LIHTC projects with pre-1990 tax credit allocations, gross rent for a low-income unit may not exceed 30% of the initial income limit for the unit, based on the size of the actual household that occupies the unit.

All utilities, except telephone, cable television, and internet services, are included in the gross rent restriction. 26 C.F.R. § 1.42-10. If a tenant is required to pay for one of the utilities, either directly to the utility supplier or to the landlord under a submeter system, the tenant’s rent is reduced by the amount of the applicable utility allowance(s). 26 C.F.R. § 1.42-10; Internal Revenue Service, Notice 2009-44 (application of § 1.42-10 to submetered utilities) (available at www.irs.gov/pub/irs-drop/n-09-44.pdf).

The IRS regulations – 26 C.F.R. § 1.42-10 – permit several alternative methods for determining a development’s utility allowance(s). For Ohio LIHTC properties, OHFA will accept seven of those alternative methods: HUD’s utility allowance, for the properties it regulates; Rural Housing Service’s utility allowance, for the properties it assists; the relevant PHA’s utility allowance; the HUD utility schedule model; utility company estimates; and the OHFA consumption utility allowance model. OHFA, Utility Allowance Policies and Procedures (eff. Jan. 11, 2010, rev. Apr. 18, 2011).

²⁴⁷ For the full citation for this handbook, see note 143, above.

A HCVP family may reside at a LIHTC project and thereby pay only the tenant's portion of the HCVP rent. A LIHTC landlord cannot refuse to lease a unit to a HCVP family because of the family's participation in the HCVP. 26 U.S.C. § 42(h)(6)(B)(iv); 26 C.F.R. § 1.42-5(c)((1)(xi); HUD Notice PIH 2002-15 (June 7, 2002) (reinstates and extends indefinitely Notice PIH 2001-2 (issued Jan. 18, 2001, expired Jan. 31, 2002)). Also, for a HCVP tenancy at a LIHTC property, "the [contract] rent will be considered reasonable if it does not exceed the greater of (1) the rent for other LIHTC ... assisted units in the project not occupied by families with tenant-based assistance, or (2) the payment standard established by a PHA for a unit of the size involved." 73 Fed. Reg. 71037, 71039 (Nov. 24, 2008) (HUD Notice, 42 U.S.C. § 1437f(o)(10)(F)).

4. Eviction Rules for Low-Income Units

a. Notice of Termination

Every Ohio LIHTC project lease, in an OHFA mandated Lease Addendum, establishes a notice of termination requirement. The OHFA Lease Addendum became effective July 1, 2019.

The notice of termination requirement under the OHFA Lease Addendum is as follows: "Prior to terminating or refusing to renew the Lease for a Minor Violation, ...the Owner must first deliver written notice to the Tenant supplying sufficient details of the violation to adequately inform Tenant of its scope and provide a reasonable period of time, but in no case less than thirty (30) days from the date notice is delivered, for the Tenant to cure the violation." OHFA Lease Addendum, ¶ 2.a.

For purposes of the OHFA Lease Addendum, a Minor Violation includes: "those violations not related to health, safety, criminal activity, actions by the Tenant creating a hostile environment for other tenants of the Owner, inflicting damage to the Premises or property of Owner, or Program eligibility issues caused by Tenant's misrepresentation or failure to provide required information." *Id.*

The federal LIHTC statute and regulations do not establish a notice of termination requirement for an owner's nonrenewal (or termination) of a low-income unit tenancy.

When the development funds for a LIHTC project include HOME funds (*see* 42 U.S.C. §§ 12741-56; 24 C.F.R. part 92), in order to terminate or refuse to renew the tenancy, the owner must serve the tenant with a written notice of termination. 42 U.S.C. § 12755(b); 24 C.F.R. § 92.253(c). The owner must serve the notice at least thirty days before the termination or nonrenewal. *Id.* The notice must specify the

grounds for the termination or nonrenewal. *Id.*

Whether due process requires a notice of termination for the owner's nonrenewal (or termination) of the tenancy will depend primarily on whether the requisite government action exists.²⁴⁸ See *Bowling Green Manor Ltd. P'ship v. Kirk*, No. WD-94-125, 1995 WL 386476 (Ohio App., 6th Dist., June 30, 1995); *Bowling Green Manor Ltd. P'ship v. LaChance*, No. WD-94117, 1995 WL 386496 (Ohio App., 6th Dist., June 30, 1995). In most cases, the requisite government action will not exist.

Kirk and *LaChance* concluded that the requisite government action existed at a LIHTC property, but only with respect to a HCVP tenancy, and the continuing validity of this conclusion is unclear. At the time of these decisions, HUD regulations required good cause for an owner not to renew a HCVP tenancy. See former 24 C.F.R. §§ 882.215(c) and 887.213 (1995). Both decisions relied on this good cause requirement in concluding that the requisite government action existed. This HCVP good cause requirement no longer exists. See Section III.A, above.

If a due process notice of termination requirement exists, it will likely be the same as the notice required in the other assisted housing programs. See *Bowling Green Manor Ltd. P'ship v. Kirk*, No. WD-94-125, 1995 WL 386476 (Ohio App., 6th Dist., June 30, 1995); *Bowling Green Manor Ltd. P'ship v. LaChance*, No. WD-94-117, 1995 WL 386496 (Ohio App., 6th Dist., June 30, 1995). This means it will likely require an advance notice that proposes to terminate the tenancy and informs the tenant of the reason for the proposed termination of tenancy. *Id.* See Section III.A, above.

For nonpayment of rent cases, another potential LIHTC notice of termination requirement is the thirty-day notice of termination that was established in the CARES Act, Pub. L. 116-136, 134 Stat. 281, enacted Mar. 27, 2020, at § 4024(c) ("CARES Act provision"). The CARES Act provision applies to the LIHTC program in the same manner as it applies to the assisted housing programs. For a discussion on the terms and status of the CARES Act provision, see note 183, above.

b. Good Cause

Every Ohio LIHTC project lease, in an OHFA mandated Lease Addendum, establishes a good cause requirement for any owner termination or nonrenewal of the

²⁴⁸ Given the good cause requirement for termination or nonrenewal of the tenancy (see Section III.L.4.b, below), the tenant has a cognizable property interest in continued occupancy (see Section III.A, above).

lease. The OHFA Lease Addendum became effective July 1, 2019.

The good cause requirement under the OHFA Lease Addendum is as follows: “Owner may not terminate the tenancy or refuse to renew the Lease or rental agreement of Tenant except for good cause, which includes, but is not limited to, serious or repeated violations of the material terms and conditions of the Lease or house rules or a violation of applicable federal, state, or local law.” OHFA Lease Addendum, ¶ 2.

Also, under federal law, a LIHTC landlord may not terminate a LIHTC tenancy, or refuse to renew a LIHTC lease, except for good cause. 26 U.S.C. § 42(h)(6)(B)(i), based on its cross-reference to subclauses (I) and (II) of 26 U.S.C. § 42(h)(6)(E)(ii). For a comprehensive analysis of this statutory good cause requirement, see Marc Jolin, Good Cause Eviction and the Low Income Housing Tax Credit, 67 U. Chi. L. Rev. 521 (2000).

In 2004 and 2005, the IRS confirmed the existence of this good cause requirement in two issuances: IRS Revenue Ruling 2004-82, § C (available at www.irs.gov/irb/2004-35_IRB/ar09.html); and IRS Revenue Procedure 2005-37 (available at www.irs.gov/irb/2005-28_IRB/ar14.html).²⁴⁹

Court decisions relying on IRS Revenue Ruling 2004-82, § C, in holding that a good cause requirement exists for any nonrenewal of a LIHTC lease, include: *Galbraith Pointe Apts. v. Humphrey*, No. 03-CV-29876 (Ohio Mun., Hamilton Cty., Aug. 20, 2004). See also *Lend Lease Apt. Mgmt. v. Stribling*, No. HWA-30495, 2004 WL 2595805 (Conn. Super. Sept. 8, 2004).

Even prior to the IRS issuances, some courts had concluded that 26 U.S.C. § 42(h)(6) establishes a good cause requirement for nonrenewal of a LIHTC tenancy. E.g., *Carter v. Maryland Mgmt. Co.*, 377 Md. 596, 835 A.2d 158 (2003); *Cimarron Vill. v. Washington*, 659 N.W.2d 811 (Minn. App. 2003); *Fennelly v. Kimball Court Apts. Ltd. P’ship*, No. 0049041, 2001 WL 1524452 (Mass. Super. Sept. 25, 2001) (dicta).

When the development funds for a LIHTC project include HOME funds, a good

²⁴⁹ An IRS noncompliance guide provides misleading (if not erroneous) guidance on this good cause requirement for nonrenewal of a LIHTC lease. See IRS, Guide for Completing Form 8823, Low-Income Housing Credit Agencies Report of Noncompliance or Building Disposition (Rev. 01-2011), ch. 26 (available at www.irs.gov/Businesses/Small-Businesses-&Self-Employed/Guide-for-Completing-Form-8823-Low-Income-Housing-Credit-Agencies-Report-of-Noncompliance-or-Building-Disposition). It purports to limit this good cause requirement to an obligation to prove good cause in court, if and when someone raises the issue in court. *Id.*

cause requirement is also established by 42 U.S.C. § 12755(b) and 24 C.F.R. § 92.253(c).

When the requisite government action exists at a LIHTC project, the good cause requirement is arguably established by due process as well. *See Bowling Green Manor Ltd. P'ship v. Kirk*, No. WD-94-125, 1995 WL 386476 (Ohio App., 6th Dist., June 30, 1995); *Bowling Green Manor Ltd. P'ship v. LaChance*, No. WD-94-117, 1995 WL 386496 (Ohio App., 6th Dist., June 30, 1995). *But see Vienna Forest Apts. v. Passmore*, No. CA2004-05-104, 2005 WL 1131742 (Ohio App., 12th Dist., May 16, 2005).

In *Passmore*, a HCVP tenant relied solely on due process as the basis for a good cause requirement for nonrenewal of the lease. The court held that, unlike Section 8 project-based assisted housing, the HCVP does not have a good cause requirement for nonrenewal and, thereupon, rejected the tenant's good cause argument. The tenant did not argue, and the court did not address, the good cause requirement for nonrenewal under the LIHTC statute and the IRS implementing issuances.

IV. Eviction Action, Additional Defenses, Manufactured Home

A. Introduction

The Ohio landlord-tenant law for manufactured home parks (“mh parks”) – R.C. Chapter 4781 (former R.C. Chapter 3733) – is discussed in Chapter XXI, below. For eviction actions concerning a manufactured home, there are four types of tenancies relative to whether R.C. Chapter 5321 and/or R.C. Chapter 4781 applies.

The first is tenants (“mh park tenants”) who reside in and lease a manufactured home that is located in a mh park and who lease the home from the park operator. The mh park tenant is a “tenant” of the park operator under R.C. 5321.01(A) and R.C. 4781.01(T) (former R.C. 3733.01(D)). Therefore, the rights and responsibilities of these tenants include the tenant rights and responsibilities under R.C. Chapter 5321 and R.C. Chapter 4781. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 19 n.2, 488 N.E.2d 479 (1986); *Cooper v. Curtis*, No. CA-8378, 1991 WL 147797, at *2 (Ohio App., 5th Dist., July 22, 1991).

The second is tenants (“non-mh park tenants”) who reside in and lease a manufactured home, but who do not lease the home from a park operator. The non-mh park tenant is a “tenant” of the owner of the home under R.C. 5321.01(A) but not R.C. 4781.01(T). Therefore, the rights and responsibilities of these tenants include the tenant rights and responsibilities under R.C. Chapter 5321 but not R.C. Chapter 4781.²⁵⁰ *Schwartz*, 22 Ohio St.3d at 19 n.2; *Cooper*, 1991 WL 147797, at *2.

The third is tenants (“mh park owners”) who reside in and own a manufactured home that is located in a mh park and who lease the lot on which the home is located from the park operator. With respect to the park operator, the mh park owner is an “owner” under R.C. 4781.01(U) (former R.C. 3733.01(E)), but not a “tenant” under R.C. 5321.01(A) or R.C. 4781.01(T). Therefore, the rights and responsibilities of these owners include the owner rights and responsibilities under R.C. Chapter 4781, but not the tenant rights and responsibilities under R.C. Chapter 5321 or R.C. Chapter 4781.

²⁵⁰ Because the park operator is not the landlord of the non-mh park tenant, the park operator may not serve the non-mh park tenant with an R.C. 5321.17(B) notice of termination. *Cooper v. Curtis*, No. CA-8378, 1991 WL 147797 (Ohio App., 5th Dist., July 22, 1991).

Schwartz, 22 Ohio St.3d at 19; *May v. Sampsel*, No. 06-CA-000034, 2007 WL 1651851, ¶ 18 (Ohio App., 5th Dist., June 4, 2007).

The fourth is tenants (“non-mh park owners”) who reside in and own a manufactured home that is not located in a mh park and who lease the lot on which the home is located. With respect to the owner of the lot, the non-mh park owner is not an “owner” under R.C. 4781.01(U) and is not a “tenant” under R.C. 5321.01(A) or R.C. 4781.01(T). Therefore, the rights and responsibilities of these owners include none of the tenant rights and responsibilities under R.C. Chapter 5321 or R.C. Chapter 4781 and none of the owner rights and responsibilities under R.C. Chapter 4781.

Eviction actions filed against tenants who fall within any of the above four categories are brought pursuant to R.C. Chapter 1923. R.C. 1923.01(C)(10),(11), as revised in 2007, clarifies the application of R.C. Chapter 1923 to manufactured homes that are not located in mh parks.

Under some agreements for the purchase of a manufactured home, the title to the home transfers at the end of a series of payments. When the buyer occupies the home pursuant to the agreement and before title transfers, the occupancy is not a landlord-tenant relationship and, upon the buyer’s breach of the agreement, the seller is not permitted to file an eviction action against the buyer. *Costantino v. Lyons*, No. 3774, 1987 WL 31096 (Ohio App., 11th Dist., Dec. 18, 1987); *Lunsford v. Hurt*, No. CVG-0500914 (Ohio Mun., Jackson Cty., May 26, 2005). These agreements are installment contracts “governed by Title XIII of the Revised Code, Commercial Transactions.” *Costantino*, 1987 WL 31096, at *3. Upon the buyer’s breach of the agreement, the seller may commence a replevin action to repossess the home. *Id.*

B. Conventional Defenses

In an eviction action filed against a mh park tenant or a non-mh park tenant, the potential defenses include all of the defenses that are discussed in Chapter II, above. Insofar as those defenses are based on R.C. Chapter 5321, they are potential defenses because these tenants are “tenants” under R.C. 5321.01(A).

In an eviction action filed against a mh park owner, the potential defenses include all of the defenses that are discussed in Chapter II, above, except the defenses based on R.C. 5321.17(B). Insofar as these defenses are based on R.C. Chapter 5321, they are potential defenses because R.C. Chapter 4781 includes a corresponding provision to the relevant R.C. Chapter 5321 provision.

A chart of the corresponding provisions between R.C. Chapter 4781, former R.C.

Chapter 3733, and R.C. Chapter 5321 is set forth in Section XXI.B, below. Summaries of court decisions under R.C. Chapter 4781 (and former R.C. Chapter 3733) are set forth in Section XXI.C.4, below.

The defenses based on R.C. 5321.17(B) do not apply to a mh park owner because R.C. Chapter 4781 does not contain a provision similar to R.C. 5321.17(B). *Schwartz v. McAtee*, 22 Ohio St.3d 14, 488 N.E.2d 479 (1986); *May v. Sampsel*, No. 06-CA-000034, 2007 WL 1651851 (Ohio App., 5th Dist., June 4, 2007); *Cooper v. Curtis*, No. CA-8378, 1991 WL 147797 (Ohio App., 5th Dist., July 22, 1991).

As a result, a park operator may not terminate a month-to-month tenancy without cause. *Id.*; *Blue Water Manor v. Reynolds*, No. CVG-2100003 (Ohio Mun., Newton Falls, Mar. 11, 2021); *Oldaker v. Warsaw Park Place, LLC*, No. 2020-CI-0289 (Ohio C.P., Coshocton Cty., Feb. 26, 2021); *Oak Park Estates LLC v. Burnley*, No. 2015-CVG-001007 (Ohio Mun., Wayne Cty., June 29, 2015); *GS Holdings Brookside Ltd. v. Rutherford*, No. 13-CVG-1535 (Ohio Mun., Clark Cty., July 10, 2013); *Daniels v. Decker*, No. 08-CVG-00042, 2008 WL 5537151 (Ohio County Ct., Harrison Cty., June 10, 2008); *Stillberger v. Springman*, No. 90-CVG-1644, 1990 WL 692200 (Ohio Mun., Findlay, Oct. 23, 1990); *Superior Mobile Homes, Inc. v. Russell*, No. 7-89-CVG-336, 1989 WL 572090 (Ohio Mun., New Philadelphia, Sept. 6, 1989).

For a discussion of the cause requirement for any termination of a mh park tenancy, see Section IV.C.1, below.

C. Additional Defenses

1. Cause Requirement

The grounds on which a park operator may evict a mh park owner are limited to those set forth in R.C. 1923.02(A)(1),(2),(10),(11),(12). See *Schwartz v. McAtee*, 22 Ohio St.3d 14, 488 N.E.2d 479 (1986).²⁵¹ This establishes a cause requirement for such evictions.

R.C. 1923.02(A)(1) permits a park operator to evict a mh park owner for holding over the term of the rental agreement. R.C. Chapter 4781 (former R.C. Chapter 3733) establishes the standard for determining whether a mh park owner is a holdover tenant. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 19, 488 N.E.2d 479 (1986). Under R.C. Chapter

²⁵¹ The *Schwartz* decision does not refer to R.C. 1923.02(A)(11) because the *Schwartz* decision preceded the legislature's enactment of that provision.

4781, a mh park owner is not a holdover tenant unless: (1) the owner commits a material violation of an R.C. 4781.45 (former R.C. 3733.13) obligation,²⁵² (2) the park operator gives the owner written notice of the violation in accordance with R.C. 4781.45, and (3) the owner fails to remedy the violation by the date specified in the notice. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 19, 488 N.E.2d 479 (1986); *Thompson v. KMV II, Ltd.*, No. 2001-P-0125, 2003 WL 943871, ¶ 13 (Ohio App., 11th Dist., Mar. 7, 2003); *Moonlight Mobile Home Parks, Inc. v. Eichner*, No. L-93-028, 1993 WL 434584, at *4 (Ohio App., 6th Dist., Oct. 29, 1993); *M.L.R. Props., Inc. v. Baer*, No. L-85-330, 1986 WL 6703, at *6 (Ohio App., 6th Dist., June 13, 1986).

R.C. 1923.02(A)(2) permits a park operator to evict a mh park owner for nonpayment of rent, if the owner is leasing the lot under an oral tenancy.

R.C. 1923.02(A)(10) permits a park operator to evict a mh park owner for nonpayment of rent or for breach of the terms of the rental agreement. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 20, 488 N.E.2d 479 (1986).

R.C. 1923.02(A)(11) permits a park operator to evict a mh park owner who has committed two material violations of the mh park rules (or certain health and safety codes) and has been notified of the violations in accordance with R.C. 4781.45. *Hamlet Mobile Home Park v. Sigmund*, 118 Ohio App.3d 29, 691 N.E.2d 1081 (11th Dist. 1997); *W. Ridge Green Co. v. Ortiz*, No. 94CA-005819, 1994 WL 432162 (Ohio App., 9th Dist., Aug. 10, 1994).

If the violation of a park rule is not a material violation (but rather is de minimis), it is not grounds to evict a mh park owner. *Buckeye Lake Estates Mobile Home Park v. Abel*, No. 01-CVG-01777, 2002 WL 32001271 (Ohio Mun., Licking Cty., 2002). See also *MHC5, LLC v. Martin*, No. 2011-CVG-03184 (Ohio Mun., Clermont Cty., Oct. 26, 2011). For this purpose, “[m]aterial means something of real importance or great consequence.” *Abel*, 2002 WL 32001271, at *1.

R.C. 1923.02(A)(12) permits a park operator to evict a mh park owner for a combination of nonpayment of rent and an unoccupied home (without notice to the park operator) for thirty consecutive days. See Section I.O.4, above.

²⁵² The legislature enacted the material violation standard in place of a materially affects health and safety standard, when it revised R.C. 3733.13, effective February 25, 1987. See *Hamlet Mobile Home Park v. Sigmund*, 118 Ohio App.3d 29, 691 N.E.2d 1081 (11th Dist. 1997). Because the *Schwartz* decision pre-dates this 1987 revision, it refers to the materially affects health and safety standard. *Id.*

R.C. 1923.02(A) does not permit a park operator, who has entered into a month-to-month rental agreement with a mh park owner, to terminate the rental agreement without cause and thereupon evict the owner.²⁵³ See Section IV.B, above.

This cause requirement is summarized in *Freyermuth v. Navarre Vill. Homes Austin Square, Inc.*, No. 1999-CA-00187, 2000 WL 94048, at *2 (Ohio App., 5th Dist., Jan. 24, 2000):

In particular, R.C. 3733.11(A)(2) [now R.C. 4781.40(A)(2)] explains in detail how rental agreements are to be renewed and terminated. Explicit in the statutory section is the right of an owner to have continuous renewal of the lease. Said section provides that the one to reject the continuance of the lease in the first part is the owner, thereby expressing a legislative philosophy that an owner can remain at his/her will if all other obligations of the owner are fulfilled. See, R.C. 3733.101 and R.C. 3733.091 [now R.C. 4781.39 and 4781.37].

2. Unlawful Rent Increase

R.C. 4781.40(A) (former R.C. 3733.11(A)) requires a park operator to offer a mh park owner a written rental agreement that has an initial term of one year (or more).²⁵⁴ If the park operator fails to comply with this requirement, the owner's rental agreement is deemed to have an initial term of one year. *Reck v. Lucas*, No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006); *Superior Mobile Homes, Inc. v. Russell*, No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Jan. 12, 1990).

R.C. 4781.40(B) (former R.C. 3733.11(B)) bars any increase in the rental fee during the term of the rental agreement. *E.g.*, *Reck v. Lucas*, No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006); *Superior Mobile Homes, Inc. v. Russell*, No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Jan. 12,

²⁵³ When the term of the rental agreement of an mh park owner is a month-to-month tenancy, it can be due to the absence of a mutually agreed upon lease term, after the expiration of a one-year (or longer) lease term. See R.C. 4781.40(A)(2). *E.g.*, *Gitler v. Gerity*, No. L-94-260, 1995 WL 458690 (Ohio App., 6th Dist., Aug. 4, 1995); *Cooper v. Curtis*, No. CA-8378, 1991 WL 147797 (Ohio App., 5th Dist., July 22, 1991); *Blue Water Manor v. Reynolds*, No. CVG-2100003 (Ohio Mun., Newton Falls, Mar. 11, 2021).

²⁵⁴ R.C. 4781.40(A) (former R.C. 3733.11(A)) requires a one-year lease only for the first year of the tenancy. *Gitler v. Gerity*, No. L-94-260, 1995 WL 458690 (Ohio App., 6th Dist., Aug. 4, 1995).

1990).

If a park operator purports to increase the rent fee during the term of a rental agreement and brings an eviction action for nonpayment of the alleged rent increase, a defense to the eviction action is that the rent increase is unlawful. *Id.*

3. Nondisclosure of Fees

A park operator is required to disclose, in writing, to each mh park owner and to each mh park tenant, all of the fees, including rental fees, that the park operator proposes to charge the owner or tenant. R.C. 4781.40(B) (former R.C. 3733.11(B)). The park operator is required to make this disclosure before the owner (or tenant) executes a rental agreement and before the owner (or tenant) assumes occupancy in the mh park. *Id.*

The park operator is also required to provide each mh park owner and each mh park tenant with at least thirty days advance written notice of any change in these fees. *Id.*

A park operator's noncompliance with these disclosure requirements bars the park operator from assessing or collecting any fee not so disclosed (*see* R.C. 4781.40(B),(H)(4) (former R.C. 3733.11(B),(H)(4)) and from evicting the owner or tenant for nonpayment of any fee not so disclosed (*see* R.C. 4781.40(B)). *E.g.*, *May v. Petrick*, No. 2009-CA-00031, 2010 WL 1452604 (Ohio App., 5th Dist., Apr. 8, 2010); *Callahan v. Croxford*, No. 2006-CVF-00621, 2007 WL 4359907 (Ohio Mun., Athens Cty., July 31, 2007); *Reck v. Lucas*, No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006); *Bennett v. Croxford*, No. 96-CVH-000488, 1997 WL 810044 (Ohio Mun., Athens Cty., Apr. 18, 1997); *Evangelinos v. Nixon*, No. 95-CVG-00076, 1997 WL 810049 (Ohio County Ct., Belmont Cty., Jan. 11, 1997). For additional court decisions on this issue, see Section XXI.C.4.d (disclosure of fee/rent), below.

In an eviction action, any alleged failure to meet this disclosure requirement is an affirmative defense for which the mh park owner or mh park tenant has the burden of proof. *Harrison Parks, Inc. v. Bozarth*, No. 20147, 2004 WL 917333 (Ohio App., 2nd Dist., Apr. 30, 2004); *Dearwester's Gem City Estates v. Nelson*, No. 14320, 1994 WL 681104 (Ohio App., 2nd Dist., Dec. 7, 1994).

4. Sale/Purchase of the Home

A park operator may not evict a mh park owner based on a sale of the manufactured

home. R.C. 4781.40(H)(2) (former R.C. 3733.11(H)(2)). *E.g.*, *Freyermuth v. Navarre Vill. Homes Austin Square, Inc.*, No. 1999-CA-00187, 2000 WL 94048 (Ohio App., 5th Dist., Jan. 24, 2000); *Cnty. Gardens Park & Sales, Inc. v. Roe*, No. M8109-CVG-027176 (Ohio Mun., Franklin Cty., Nov. 6, 1981); *Mentor Trailer Park, Inc. v. Clark*, No. 79-CVG-492 (Ohio Mun., Mentor, June 7, 1979).

A park operator may not evict a purchaser of a manufactured home, located in the mh park, based on the seller's refusal to hire the park operator as the agent for the sale. R.C. 4781.40(F),(K) (former R.C. 3733.11(F),(K)). *E.g.*, *Jameson v. Sommer's Mobile Home Sales, Inc.*, No. 83769 (Ohio C.P., Lorain Cty., May 13, 1980).

A park operator may not unreasonably refuse to enter into a rental agreement with a purchaser of a manufactured home, located within the mh park. R.C. 4781.40(H)(3) (former R.C. 3733.11(H)(3)). *E.g.*, *Kantner v. Gibson*, No. 2-07-17, 2007 WL 414177 (Ohio App., 3rd Dist., Nov. 26, 2007); *Czerwonko v. Sahara Mobile Home Park & Sales, Inc.*, 137 Ohio App.3d 266, 738 N.E.2d 461 (11th Dist. 2000); *White v. Superior Mobile Homes, Inc.*, No. 98-T-0011, 1999 WL 1320188 (Ohio App., 11th Dist., Dec. 10, 1999); *Santilla v. Sahara Mobile Home Park & Sales*, No. 93-L-028, 1993 WL 407233 (Ohio App., 11th Dist., Sept. 30, 1993). For additional court decisions on this issue, see Section XXI.C.4.d (sale of home), below.

V. Ohio Landlord-Tenant Act, General Background

A. Remedial

“In 1974, the General Assembly enacted R.C. Chapter 5321, which embodies what is commonly known as the Ohio Landlord-Tenant Act.” *Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 26, 476 N.E.2d 1038 (1985). The Act is Ohio’s adaptation of the Uniform Residential Landlord and Tenant Act. *Ricciardo v. Weber*, No. CA-3452, 1989 WL 155719, at *5 (Ohio App., 5th Dist., Dec. 22, 1989).

R.C. Chapter 5321 is a remedial statute. *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685, ¶ 39 (Ohio App., 6th Dist., Aug. 20, 2010); *Howard v. Simon*, 18 Ohio App.3d 14, 15-16, 480 N.E.2d 99 (8th Dist. 1984); *Reith v. Skruck*, 71 Ohio Misc.2d 1, 2, 653 N.E.2d 755 (Ohio Mun., Wadsworth, 1995). *See also Klein v. Moutz*, 118 Ohio St.3d 256, 258, 888 N.E.2d 404 (2008) (R.C. 5321.16 is remedial).

Therefore, it must be liberally construed in order to promote its object and assist the parties in attaining justice. *See* R.C. 1.11. This means that “the Act should be read liberally in favor of tenants’ rights.” *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 212, 503 N.E.2d 159 (1986).

B. Purpose

R.C. Chapter 5321 is the legislature’s response to “the greater power traditionally held by the landlord.” *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 270, 736 N.E.2d 507 (1st Dist. 1999). *Accord Ricciardo v. Weber*, No. CA-3452, 1989 WL 155719, at *5 (Ohio App., 5th Dist., Dec. 22, 1989).

“[T]he Act was an attempt to balance the competing interests of landlords and tenants.” *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 25, 427 N.E.2d 774 (1981). *Accord Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 10 (2014); *Showe Mgmt. Corp. v. Mountjoy*, 154 N.E.3d 141, 2020-Ohio-2772, ¶ 24 (Ohio App., 12th Dist., 2020); *Cont’l Enters., Ltd. v. Franklin*, No. 102899, 2016 WL 2941209, ¶ 30 (Ohio App., 8th Dist., May 19, 2016); *Ricciardo v. Weber*, No. CA-3452, 1989 WL 155719, at *5 (Ohio App., 5th Dist., Dec. 22, 1989); *King v. Neufeld*, No. WD-85-14, 1986 WL 1296, at *4 (Ohio App., 6th Dist., Jan. 31, 1986).

“The intent behind the Landlord-Tenant Act was to ensure equitable dealings

between landlords and tenants.” *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 270, 736 N.E.2d 507 (1st Dist. 1999).

To achieve this balance and equity, the legislature “intended ... to afford greater protection and remedies to tenants.” *King v. Neufeld*, No. WD-85-14, 1986 WL 1296, at *4 (Ohio App., 6th Dist., Jan. 31, 1986). *Accord Conner v. Conner*, 114 N.E.3d 281, 2018-Ohio-2698, ¶ 10 (Ohio App., 4th Dist., June 20, 2018) (“enacted R.C. Chapter 5321 ... to clarify and broaden tenants’ common-law rights”); *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685, ¶ 39 (Ohio App., 6th Dist., Aug. 20, 2010) (“intended to provide tenants with greater rights than existed for their protection at common law”); *Mullins v. Grosz*, No. 10AP-23, 2010 WL 3244139, ¶ 23 (Ohio App., 10th Dist., Aug. 17, 2010) (“attempt to clarify and broaden tenants’ rights”); *Brady v. Koehnke*, No. C-930240, 1994 WL 481758, at *2 (Ohio App., 1st Dist., Sept. 7, 1994) (“attempt to clarify and broaden tenants’ rights”); *Ricciardo v. Weber*, No. CA-3452, 1989 WL 155719, at *5 (Ohio App., 5th Dist., Dec. 22, 1989) (“overall thrust of the act is to define and establish remedies for a tenant”); *Howard v. Simon*, 18 Ohio App.3d 14, 15-16, 480 N.E.2d 99 (8th Dist. 1984) (“intended to provide tenants with greater rights”).

C. Effect on Common Law

“The thrust of the new act [R.C. Chapter 5321] is to abrogate the Ohio common law of *caveat emptor* and independent covenants and interpret residential leases in light of modern contract law.” *Ricciardo v. Weber*, No. CA-3452, 1989 WL 155719, at *5 (Ohio App., 5th Dist., Dec. 22, 1989) (quoting Comments, Ohio Residential Landlord Tenant Act, 8 Akron L. Rev. 519, 520-21 (1975)).

“Ohio’s Landlords and Tenants Act imposes duties on landlords which were absent at common law.” *Miller v. Ritchie*, 45 Ohio St.3d 222, 224, 543 N.E.2d 1265 (1989). *Accord Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 21-22, 427 N.E.2d 774 (1981).

It also provides tenants with remedies that were absent at common law. *Shroades*, 68 Ohio St.2d at 21-25.

However, “neither R.C. Chapter 5321 nor *Shroades* eliminated a tenant’s right to seek common law remedies.” *Winston v. Wolery*, No. 96-CA-2442, 1997 WL 28535, at *2 (Ohio App., 4th Dist., Jan. 14, 1997).

“[T]he new remedies given tenants in R.C. Chapter 5321 are intended to be preventive and supplemental to other remedial measures.” *Shroades v. Rental Homes*,

Inc., 68 Ohio St.2d 20, 25, 427 N.E.2d 774 (1981). *Accord Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993) (implied covenant of quiet enjoyment under common law); *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992) (tort claims under common law); *Cent. Mut. Ins. Co. v. Faller*, 71 Ohio Misc.2d 58, 654 N.E.2d 213 (Ohio C.P., Licking Cty., 1995) (contract claim for damages).

To find that the Act abrogates a longstanding rule of common law, a court must find an intent to do so “expressly declared by the legislature or necessarily implied in the language of the statute.” *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 212, 503 N.E.2d 159 (1986). Applying this standard, court decisions have found that the Act does not abrogate certain rules of common law under which a landlord is relieved of a duty. *E.g.*, *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 212, 503 N.E.2d 159 (1986) (landlord is not obligated to keep common areas clear of natural accumulations of ice and snow); *Plush v. Nat’l Church Residences*, No. L-89-293, 1990 WL 106437 (Ohio App., 6th Dist., July 27, 1990) (landlord is not obligated to remove natural accumulations of leaves from common areas). See Section VII.C.4, below.

D. Effect on Local Ordinances

Municipalities are not permitted to enact any ordinance that is in conflict with R.C. Chapter 5321. R.C. 5321.19.²⁵⁵ Three court decisions finding ordinances not to be in conflict with R.C. Chapter 5321 are summarized below.

- (1) *Hiznay v. Boardman Twp.*, No. 2015-MA-0122, 2017 WL 1193839 (Ohio App., 7th Dist., Mar. 29, 2017) (township resolution: landlord rental unit registration and annual fee; minimum property maintenance standards for unit interior, for landlords and tenants, with enforcement

²⁵⁵ Insofar as R.C. 5321.19 purports to prohibit any ordinance “that regulates the rights and obligations of parties to a rental agreement that are regulated by this chapter,” regardless of whether the ordinance conflicts with R.C. Chapter 5321, R.C. 5321.19 seems to violate Article XVIII, Section 3 of the Ohio Constitution (home rule provision). See *State ex rel. Morrison v. Beck Energy Corp.*, 143 Ohio St.3d 271, 37 N.E.3d 128, ¶ 15 (2015) (“a municipal ordinance must yield to a state statute if (1) the ordinance is an exercise of the police power, rather than local self-government, (2) the statute is a general law, and (3) the ordinance is in conflict with the statute”); *City of Cleveland v. State*, 138 Ohio St.3d 232, 5 N.E.3d 644, ¶ 16 (2014) (in striking down a statutory provision, held that the provision “violates the third prong of the *Canton* test by purporting to limit legislative power of a municipal corporation to set police, sanitary, or similar regulations”).

by civil fines).

- (2) *Mariemont Apt. Ass'n v. Vill. of Mariemont*, No. C-050986, 2007 WL 120727 (Ohio App., 1st Dist., Jan. 19, 2007) (ordinance: landlord registration and fee, along with inspection for compliance with Village's building and zoning codes; and submission of names of tenants).
- (3) *Cotrell v. City of Piqua*, No. 2000-CA-44, 2001 WL 62811 (Ohio App., 2nd Dist., Jan. 26, 2001) (ordinance: city may order landlords to abate nuisances, even those caused by tenants, and if a landlord fails to abate timely the city may abate and assess the costs to the landlord).
- (4) *Prof'l Invs. of Am. v. McCormick*, 14 Ohio Misc.2d 1, 469 N.E.2d 1357 (Ohio C.P., Cuyahoga Cty., 1984) (ordinance: for buildings converted to condominiums, certain tenants may terminate their lease without penalty or charge, upon forty-five days written notice).

VI. Ohio Landlord-Tenant Act, Applicable Tenancies

A. Overview

R.C. Chapter 5321 applies to residential tenancies. R.C. 5321.01. *See also Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 8 (2014); *Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 26, 476 N.E.2d 1038 (1985); *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 21-22, 427 N.E.2d 774 (1981).

It does not apply to commercial tenancies. *Maggiore v. Kovach*, 101 Ohio St.3d 184, 187-88, 803 N.E.2d 790 (2004); *Hendrix v. Eighth & Walnut Corp.*, 1 Ohio St.3d 205, 208, 438 N.E.2d 1149 (1982).

It establishes rights and responsibilities of landlords and tenants who are parties to a rental agreement for residential premises. R.C. 5321.01. *See also Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 8 (2014); *Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 26, 476 N.E.2d 1038 (1985); *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 21-22, 427 N.E.2d 774 (1981).

The definition and scope of the terms rental agreement, tenant, landlord, and residential premises are discussed, in turn, in Sections VI.B-F, below.

B. Rental Agreement

A rental agreement is any agreement, written or oral, that establishes or modifies the terms concerning the use and occupancy of residential premises by one of the parties. R.C. 5321.01(D).

For discussions on construing written rental agreements and on the rent prerequisite, see Sections VII.A and VII.F.3, below, respectively.

Four common residential occupancies that are not occupancies under a rental agreement are:

- (1) An occupancy agreement in a cooperative. *Kohler v. Snow Vill., Inc.*, 16 Ohio App.3d 350, 475 N.E.2d 1298 (8th Dist. 1984).
- (2) An occupancy under a divorce decree that provides that one party shall retain, for a specified time, exclusive right to possession of a house that

both parties owned prior to the marriage dissolution.²⁵⁶ *Steiger v. Mack*, No. 1-81-25, 1981 WL 6743 (Ohio App., 3rd Dist., Dec. 17, 1981) (ex-husband not liable under R.C. 5321.15).

- (3) An occupancy of a former mortgagor who remains in possession after a foreclosure action, without establishing a landlord-tenant relationship with the new title holder.²⁵⁷ *Adm'r of Veterans Affairs v. Jackson*, 41 Ohio App.3d 274, 535 N.E.2d 369 (9th Dist. 1987).
- (4) A life estate, even if it is designated a life lease. *Evans v. Willis*, No. 13-CA-120, 2014 WL 1759190 (Ohio App., 5th Dist., Apr. 22, 2014).

Also, an option to purchase agreement is not a rental agreement, even if the option to purchase is an addendum to a rental agreement. *Delker v. Kerr*, No. L-96-110, 1996 WL 532319 (Ohio App., 6th Dist., Sept. 20, 1996). *See also Stacy v. Zupp*, No. CA-9566, 1994 WL 369899 (Ohio App., 5th Dist., June 20, 1994).

Likewise, in some circumstances, an addendum to a purchase agreement that permits the purchasers to take possession of the premises prior to closing is not a rental agreement. *E.g., Kott Enters., Ltd. v. McClain*, No. L-15-1086, 2016 WL 530886 (Ohio App., 6th Dist., Jan. 29, 2016).

C. Tenant

The definition of tenant under Ohio law is comprised of four elements, three established by R.C. 5321.01(A) and one established by common law.

R.C. 5321.01(A) defines a tenant as “a person entitled under a rental agreement to the use and occupancy of residential premises to the exclusion of others.” Under this statutory definition, an occupant is a tenant only if:

²⁵⁶ Nonetheless, if an ex-husband (or ex-wife) is entitled to possession of a house under the terms of a final divorce decree and the ex-wife (or ex-husband) wrongfully retains possession of the house, the ex-husband (or ex-wife) may file an eviction action against the ex-wife (or ex-husband) under R.C. 1923.02(A)(5). *Eisler v. Rudy*, No. 1466, 1989 WL 70066 (Ohio App., 11th Dist., June 23, 1989).

But, prior to the entry of a final divorce decree, a municipal court lacks jurisdiction to hear an eviction action in which a husband (or wife) seeks to evict his wife (or her husband) from marital property. See Section I.L.4, above.

²⁵⁷ For a discussion on the occupancy of a tenant who remains in possession after a foreclosure sale, see Section XXII.C, below.

- (1) The occupancy is under a rental agreement (see Section VI.B, above);
- (2) The occupancy is of residential premises (see Section VI.E, below);
- (3) The occupant has exclusive use of the dwelling unit.

The fourth element of the definition of tenant, established by common law, is: the occupant must pay rent in consideration for the right to occupy the dwelling unit.²⁵⁸ See Section VII.F.3, below.

“An individual who lives in a residence with another without a rental agreement and without the payment of rent is not a tenant ...” *Stone v. Cazeau*, No. 07-CA-009164, 2007 WL 4146777, ¶ 6 (Ohio App., 9th Dist., Nov. 26, 2007). *Accord Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328 (8th Dist. 2010); *Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist. 2008).

The exclusive use requirement reflects the common law on lease agreements for real property. *Cuvier Press Club v. Fourth & Race St. Assocs., Ltd.*, 1 Ohio App.3d 30, 34, 439 N.E.2d 443 (1st Dist. 1981). The indispensable elements of such agreements are the rights to exclusive possession of a certain quantity of land for a term certain. *Id.*

The exclusive use requirement also reflects the common law distinction between tenant and lodger: “The tenant is put into the exclusive possession of his rooms, while the boarder or lodger has merely the use of them without the actual or exclusive possession” *Linwood Park Co. v. Van Dusen*, 63 Ohio St. 183, 200, 58 N.E. 576 (1900) (quoting 1 McAdam, Landlord and Tenant 621). *Accord Branham v. Fordyce*, 103 Ohio App. 379, 145 N.E.2d 471 (2nd Dist. 1957) (finding the occupant to be a tenant, not a lodger, and that the landlord’s right to make weekly inspections was not inconsistent with a landlord-tenant relationship); *Jamieson v. Harris*, No. 85-CV-39131 (Ohio Mun., Hamilton Cty., Apr. 14, 1986).

The exclusive use requirement has been a significant factor in determining whether an occupancy at any particular transitional housing facility is a landlord-tenant relationship. Three courts that found (and relied on) the absence of the requisite exclusive use, in determining that the occupants of particular transitional housing facilities were not tenants, are: *Parker v. Salvation Army*, 971 N.E.2d 995, 2012-Ohio-2069 (Ohio App., 8th Dist., 2012); *Coyne v. YWCA of Greater Toledo*, No. CVG-06-15975 (Ohio Mun., Toledo, Hous. Div., Nov. 7, 2006) (preliminary injunction denied);

²⁵⁸ For a discussion on what constitutes rent, see Sections VII.F.1,2, below.

Coleman v. Faith Mission, No. 01-CVH-10988 (Ohio C.P., Franklin Cty., June 17, 2002) (preliminary injunction denied). Each of these courts based its finding on the right of the owner, under the occupancy agreement, to inspect the dwelling unit at any time.²⁵⁹ Another reasonable interpretation of such provisions is that, in granting an unlimited right of entry (without notice): the provision does not convert what otherwise would be a rental agreement into a non-landlord-tenant occupancy agreement; rather, it constitutes a provision in a rental agreement that is an unlawful waiver (*see* R.C. 5321.13) of the R.C. 5321.04(A)(8),(B) requirements that govern a landlord's entry into the dwelling unit.

A roommate's occupancy status generally falls under one of three categories. First, a roommate may be a co-tenant, based on a rental agreement among the tenant, the roommate, and the landlord. Second, a roommate may be a subtenant of the tenant, based on a rental agreement between the tenant and the subtenant for the roommate's exclusive use of a bedroom (and any additional specified portion) of the residential premises. Third, a roommate may be a guest or licensee of the tenant, based on the absence of the roommate's obligation to pay rent (or right to the exclusive use of the bedroom).

When a roommate is a co-tenant, the exclusive use requirement refers to a tenant's rights in relation to the public, not in relation to the roommate. *See Torbeck v. Chamberlain*, 138 Or. App. 446, 452, 910 P.2d 389 (1996).

Whether a live-in caretaker meets the definition of tenant depends on the particular facts. *Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328 (8th Dist. 2010). In *Lee*, the live-in caretaker, who occupied a room at the residential premises, was not a tenant because she: (1) did not pay rent (in money or services); (2) did not execute a rental agreement; (3) did not have exclusive use of the room; (4) did not identify the room's address as her residence on any account or license; and (5) maintained another residential room elsewhere.

When an initial lease is not terminated (even though the tenant has vacated) and the landlord purports to execute a second lease with a third party for the remainder of the term of the initial lease, the occupant under the purported second lease is not a tenant under R.C. 5321.01(A). *Tillimon v. Timmons*, 72 N.E.3d 1153, 2016-Ohio-7424

²⁵⁹ The *Coyne* and *Coleman* decisions also based their determinations on the conclusory statements in the occupancy agreements that declared that the agreement is not a lease or a landlord-tenant agreement.

(Ohio App., 6th Dist., Oct. 21, 2016) (not a tenant and thus no R.C. 5321.05 liability). Under the initial lease, the landlord has granted exclusive use of the dwelling unit to the tenant. *Id.* Therefore, during the term of the initial lease, the landlord has no right of possession to grant to a third party. *Id.*

A potential purchaser under a land contract with an option to purchase was not a tenant, where the option required the potential purchaser to make monthly payments, secure financing, and repair the uninhabitable property. *Bond v. Sharrock*, No. 07-CA-65, 2008 WL 3132929 (Ohio App., 5th Dist., Aug. 6, 2008).

D. Landlord

A landlord is the owner, lessor or sublessor of residential premises, or any person that the owner, lessor or sublessor authorizes to manage the premises or to receive rent from a tenant under a rental agreement. R.C. 5321.01(B).

When an owner (or lessor or sublessor), for a fee, authorizes a person to manage the residential premises, the person is a real estate broker under R.C. 4735.01. As real estate brokers, such persons are permitted to manage the residential premises only if they are licensed real estate brokers. R.C. 4735.02.

When a vendee of a land installment contract (see Chapter XXIII, below) leases the property to a third-party, the vendor is not a landlord of the vendee's tenant. *Baraby v. Swords*, 166 Ohio App.3d 527, 851 N.E.2d 559 (3rd Dist. 2006). The vendor retains only bare legal title and reserves only those rights of entry and control as necessary to preserve the integrity of the building. *Id.*

E. Residential Premises

Residential premises are “a dwelling unit for residential use and occupancy and the structure of which it is a part, the facilities and appurtenances therein, and the grounds, areas, and facilities for the use of tenants generally or the use of which is promised the tenant.” R.C. 5321.01(C).

A dwelling unit is “a structure or the part of a structure that is used as a home, residence, or sleeping place by one person who maintains a household or by two or more persons who maintain a common household.” R.C. 5321.01(D).

“The yard of a single-family home is considered to be part of the tenant's property to possess and control.” *Good v. Murd*, No. L-13-1235, 2014 WL 2170302, ¶ 10 (Ohio App., 6th Dist., May 23, 2014). *Accord Brown v. Terrell*, 114 N.E.3d 783, 2018-Ohio-2503, ¶ 13 (Ohio App., 9th Dist., 2018).

The common areas of residential premises “generally include areas such as sidewalks, parking lots, foyers, hallways ... which [are] reasonably necessary to the use and enjoyment of the leased property.” *Hau v. Gill*, No. 98-CA-007061, 1999 WL 492633, at *5 (Ohio App., 9th Dist., July 14, 1999). *Accord Burrell v. Iwenofu*, No. 81230, 2003 WL 1090635, ¶¶ 15,16 (Ohio App., 8th Dist., Mar. 13, 2003). They do not include “public sidewalks abutting the property.” *Ryder v. McGlone’s Rentals*, No. 3-09-02, 2009 WL 1664777, ¶ 21 (Ohio App., 3rd Dist., June 15, 2009).

Residential premises include only those portions of the premises that are for the use of tenants. For example, residential premises do not include grounds that are left in a wild and natural state to serve as a privacy screen. *Kueber v. Haas*, 47 Ohio App.3d 62, 546 N.E.2d 1351 (1st Dist. 1988). Likewise, residential premises do not include a space that is under renovation and behind a door marked “Danger-Keep Out.” *Lukehart v. W. Ninth St. Partners*, 137 Ohio App.3d 361, 738 N.E.2d 839 (8th Dist. 2000).

Residential premises include dwelling units that a college owns or operates, but student tenants who occupy those dwelling units are denied two basic tenant rights under R.C. Chapter 5321. R.C. 5321.01(H), 5321.031, 5321.07(D). First, these student tenants may not rent deposit or use the other R.C. 5321.07 tenant remedies (see Chapter VIII, below). R.C. 5321.07(D). Second, a college may terminate the rental agreement of a student tenant and, without filing an eviction action, require the student tenant to vacate the dwelling unit, so long as the college follows its notice and hearing procedures. R.C. 5321.031. *See also* R.C. 1923.02(D).

R.C. 5321.01(C) specifies ten types of properties or occupancies that are not residential premises for R.C. Chapter 5321 purposes. They are prisons, hospitals, transient occupancies in hotels and other similar facilities, certain elementary and secondary boarding schools, orphanages, certain farm residences, certain agriculture labor camps, occupancies by an owner of a condominium unit, certain occupancies in certain licensed SRO facilities, and transient occupancies in non-profit emergency shelters. R.C. 5321.01(C)(1)-(10).

Under the R.C. 5321.01(C)(3) exception, residential premises do not include the rental of a vacation house in a recreational area for a short-term, such as four days. *Tomasko v. Sohnly*, No. 15CAE-10-0078, 2016 WL 1643036 (Ohio App., 5th Dist., Apr. 21, 2016).

The R.C. 5321.01(C)(9)(a)(ii) exception, relative to shelters for homeless persons, is not limited to facilities that only take persons literally from the streets. *Coyne v.*

YWCA of Greater Toledo, No. CVG-06-15975 (Ohio Mun., Toledo, Hous. Div., Nov. 7, 2006) (preliminary injunction denied).

For a discussion on the term “transient occupancy,” for R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10) purposes, see Section VI.F., below.

F. Transient Occupancy, for Residential Premises Exclusions

1. Introduction

Both R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10) use the term “transient occupancy” in their respective exclusions from the definition of residential premises.

R.C. 5321.01(C)(3) provides that “residential premises” do not include “tourist homes, hotels, motels, recreational vehicle parks, recreational camps, combined park-camps, and other similar facilities where circumstances indicate a transient occupancy.”

R.C. 5321.01(C)(10) provides that “residential premises” do not include “emergency shelters ... for persons whose circumstances indicate a transient occupancy, including homeless people, victims of domestic violence, and juvenile runaways.”

However, R.C. Chapter 5321 does not define or establish criteria for determining the meaning of the term transient occupancy, for purposes of R.C. 5321.01(C)(3) or R.C. 5321.01(C)(10). This Section VI.F analyzes the relevant law (including existing case law) for making that determination.

2. Application of the Rule of Statutory Construction for the Use of Identical Words in Same Statute

A well-established general rule of statutory construction is that identical words used in different parts of the same statute are presumed to have the same meaning (“the general presumption”). *Nijhawan v. Holder*, 557 U. S. 29, 38-39 (2009); *Merrill Lynch, Pierce, Fenner & Smith v. Dabit*, 547 U.S. 71, 86 (2006); *Henry v. Trs. of Perry Twp.*, 48 Ohio St. 671, 30 N.E.2d 1122 (1891).

The general presumption yields only when there is “such variation in the connection in which the words are used as reasonably to warrant the conclusion that they were employed in different parts of the act with different intent.” *Envtl. Defense*

v. Duke Energy Corp., 549 U.S. 561, 574 (2007). *Accord Gen. Dynamics Land Sys., Inc. v. Cline*, 540 U.S. 581, 595 (2004). *See also Henry v. Trs. of Perry Twp.*, 48 Ohio St. 671, 30 N.E. 1122 (1891).

In both R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10), the legislature used the exact same phrase – “circumstances indicate a transient occupancy;” and the shared phrase is used for precisely the same purpose – to establish a short-term occupancy requirement for exclusions from the definition of residential premises.

Given the common purpose of the shared “transient occupancy” phrase, the general presumption should apply to its use in R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10). *Higdon v. Sign of the Cross*, 126 Ohio Misc.2d 84, 803 N.E.2d 876, ¶ 14 (Ohio Mun., Hamilton Cty., 2003). There is no reasonable basis for concluding that the legislature employed the shared “transient occupancy” phrase with a different intent in these subsections. *Id.*

Therefore, under the general presumption, the definition of the term “transient occupancy” should be the same for R.C. 5321.01(C)(10) purposes as it is for R.C. 5321.01(C)(3) purposes. *Id.*

The decision in *Parker v. Salvation Army*, 971 N.E.2d 995, 2012-Ohio-2069 (Ohio App., 8th Dist., 2012), erroneously rejects the foregoing analysis and conclusion. It recognizes the general presumption, but erroneously determines that the exception to the general presumption applies.

The *Parker* court presents two grounds for its determination, each of which is without merit. The first ground is that, in determining the meaning of transient occupancy for R.C. 5321.01(C)(3) purposes, courts have relied on code sections related to certain hotel taxes and those code sections are not relevant to R.C. 5321.01(C)(10). The first ground is without merit because the guidance of these other code sections, relative to the legislature’s intent in using the phrase “transient occupancy,” does not indicate in any fashion that the legislature intended the phrase to have a different meaning in R.C. 5321.01(C)(10) than in R.C. 5321.01(C)(3). The second ground is that the *Higdon* decision’s ruling on this issue is not applicable to the *Parker* case because of differences between the *Higdon* program and the *Parker* program. This second ground is without merit because these program differences are irrelevant to the determination of the legislature’s intent in using (and hence the meaning of) the term “transient occupancy,” which is a length of time irrespective of the program and is a standard to be applied to the program.

3. Transient Occupancy Means up to Thirty Days

Since R.C. Chapter 5321 does not define or establish criteria for determining the meaning of the term transient occupancy in R.C. 5321.01(C)(3) or R.C. 5321.01(C)(10), courts are required to consider other relevant factors for that determination.

Five relevant factors, which are summarized below, support the conclusion that, for both R.C. 5321.01(C)(3) and 5321.01(C)(10), the term transient occupancy means up to one month.

Whether any of these five factors relates more directly to R.C. 5321.01(C)(3) than to R.C. 5321.01(C)(10) is immaterial. The general presumption of statutory construction, relative to the legislature's use of identical words in different parts of the same statute ("the general presumption"), applies to the term transient occupancy in R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10). See Section VI.F.2, above. The general presumption compels the conclusion that, if the term transient occupancy in R.C. 5321.01(C)(3) means an occupancy up to thirty days, the term transient occupancy in R.C. 5321.01(C)(10) also means an occupancy up to thirty days. *Higdon v. Sign of the Cross*, 126 Ohio Misc.2d 84, 803 N.E.2d 876, ¶ 14 (Ohio Mun., Hamilton Cty., 2003).

The first factor is, with respect to the hotels and motels to which the R.C. 5321.01(C)(3) exclusion applies, the "common understanding of the length of occupancy in such facilities is that it is measured in days or weeks." *Higdon v. Sign of the Cross*, 126 Ohio Misc.2d 84, 803 N.E.2d 876, ¶ 14 (Ohio Mun., Hamilton Cty., 2003). *Accord Alter v. Tucker Lake of the Woods of Farmersville, Inc.*, No. 04-CV-00259, 2004 WL 5255401 (Ohio C.P., Montgomery Cty., Oct. 8, 2004).

The second factor is two Ohio hotel tax provisions that are consistent with this common understanding. One is the R.C. 5739.01(N) sales tax definition of transient guests: "persons occupying a room or rooms for sleeping accommodations for less than thirty consecutive days."²⁶⁰ The other is the R.C. 3731.01(A)(2) definition of transient hotel: certain hotels and motels that "are offered for pay to transient guests for a period of thirty days or less."

Since the R.C. 5321.01(C)(3) exclusion applies to transient occupancies in a hotel,

²⁶⁰ The R.C. 5739.01(N) definition of transient guest is used in connection with the sales tax that is levied on all transactions in which lodging by a hotel is furnished to transient guests. R.C. 5739.01(B)(2).

it is reasonable to infer that the legislature intended the R.C. 5321.01(C)(3) definition of transient occupancy to be consistent with the R.C. 5739.01(N) definition of transient guests in a hotel and the R.C. 3731.01(A)(2) definition of a transient hotel. Therefore, an occupancy of a dwelling unit for more than thirty consecutive days is a significant factor for finding a non-transient occupancy under R.C. 5321.01(C)(3). *But cf. Franklinton Coalition v. Open-Shelter, Inc.*, 13 Ohio App.3d 399, 469 N.E.2d 861 (10th Dist. 1983).

The third factor is the length of a typical residential rental agreement. R.C. 5321.01(C)(3) and R.C. 5321.01(C)(10) rely on the transient nature of the occupancy to exclude it from the definition of residential premises and thus residential rental agreements. Therefore, it is reasonable to construe the term transient occupancy, in these statutory provisions, as a time period significantly less than the length of a typical residential rental agreement.

The length of a typical residential rental agreement is one year or less. David Genesove, The Nominal Rigidity of Apartment Rents, 85 Rev. Econ. & Statistics 844, 849 (Nov. 2003) (length of residential leases in the United States: 15.4% – no lease/month- to-month; 40% – less than one year; 43% – one year; 2.3% – more than one year).

The fourth factor, which courts in other jurisdictions have relied on when construing transient occupancy provisions in their residential landlord tenant law, is the definition of transient guests in 42 U.S.C. § 2000a(b)(1). *E.g., Lyons v. Kamhoot*, 281 Or. 615, 620, 575 P.2d 1389 (1978) (transient occupancy where one-month stay and then returning to home, after fire repair); *City of Evanston v. O'Leary*, 244 Ill. App.3d 190, 194-96, 614 N.E.2d 114 (1993) (not transient occupancy where three-month stay and resident without alternative housing). *Lyons* and *City of Evanston* consider the resident's intent for relatively permanent housing, based on the length of the stay and whether the resident will be returning to an existing home. They rely on the § 2000a(b)(1) transient occupancy definition, for the length of stay criterion, and court decisions have "generally accepted [it] as meaning short-term guests who stay from one day to a few weeks but who do not reside permanently in the establishment." *Lyons v. Kamhoot*, 281 Or. 615, 620, 575 P.2d 1389 (1978). *Cf. Woods v. Foster*, 884 F. Supp. 1169, 1173-74 (N.D. Ill. 1995) (a shelter for otherwise homeless families meets the definition of dwelling unit under the federal Fair Housing Act ("FHA"), even though their occupancies are limited to 120 days); *Intermountain Fair Hous. Counsel v. Boise Rescue Mission Ministries*, 717 F. Supp.2d 1101, 1109-12 (D. Idaho 2010) (a

shelter for otherwise homeless persons does not meet the FHA definition of dwelling unit because, unlike Woods, the occupancies are limited to 17 consecutive nights).

The fifth factor is the common law criteria for distinguishing among a tenant, a lodger, and a guest. *See, e.g., Baker v. Doubletree, Inc.*, No. 81-CA-38, 1982 WL 4867 (Ohio App., 2nd Dist., Feb. 19, 1982).

Under common law, this distinction is determined by a consideration of all the surrounding facts and circumstances. *Baker*, 1982 WL 4867, at *2. The factors supporting a tenancy include: (1) the occupant pays a fixed sum at weekly or monthly intervals (in contrast to daily intervals),²⁶¹ (2) the occupancy is for a specified time (in contrast to a day-to-day indefinite basis), (3) the dwelling unit is the occupant's sole place of occupancy, (4) the occupant has exclusive use of the dwelling unit, (5) the occupant is responsible for cleaning the dwelling unit, (6) there are facilities within the dwelling unit to prepare meals (*e.g.*, stove, refrigerator), (7) the owner is not responsible for providing any meals to the occupant, (8) there are extensive residential furnishings within the dwelling unit, and (9) there are numerous possessions of the occupant within the dwelling unit. *Baker v. Doubletree, Inc.*, No. 81-CA-38, 1982 WL 4867 (Ohio App., 2nd Dist., Feb. 19, 1982); *Gen'l Motors Acceptance Corp. v. Kehmert*, 30 Ohio Law Abs. 270, 72 N.E.2d 793 (Ohio App., 8th Dist., 1939).

In *Howard v. Shangri-La Inn*, No. 48219, 1984 WL 195551 (Ohio App., 8th Dist., Nov. 29, 1984), the court applied these factors in reviewing the R.C. 5321.01(C)(3) transient occupancy issue in an R.C. 5321.15 claim. It reversed the summary judgment for the owner because reasonable minds could reach different conclusions on the issue. The support for a transient occupancy was the evidence that the occupant signed the equivalent of a hotel register and paid hotel taxes. The support for a non-transient occupancy was the evidence that: (1) the occupant paid rent monthly, paid a damage deposit, and paid Ohio Bell directly for the telephone service in the room, (2) the occupant partially furnished the room, and (3) the occupant (and other seventh and eighth floor occupants) did not receive a myriad of hotel type services (*e.g.*, linens and maid service) provided all other occupants of the hotel.

The decision in *Parker v. Salvation Army*, 971 N.E.2d 995, 2012-Ohio-2069 (Ohio

²⁶¹ The rate and terms for payment will not, per se, determine whether the relationship is a tenancy. *Baker v. Doubletree, Inc.*, No. 81-CA-38, 1982 WL 4867 (Ohio App., 2nd Dist., Feb. 19, 1982); *New S. Hotel Co. v. Kingston*, 23 Ohio Law Abs. 115, 72 N.E.2d 782 (Ohio App., 10th Dist., 1939).

App., 8th Dist., 2012), erroneously rejects the foregoing analysis and conclusion. It erroneously determines that the general presumption does not apply (see Section VI.F.2, above) and then erroneously determines that the nine-month occupancies at the “Project Share” transitional housing facility meet the R.C. 5321.01(C)(10) “transient occupancy” requirement.

The *Parker* court presents two basic grounds in support of its transient occupancy determination, each of which is without merit. The first ground is that the nature of the facility suggests a transient occupancy. The second ground is that the expectation of the occupants is that the stay is temporary.

Neither ground has merit for the reasons discussed in detail in the Reply Brief of Appellant, in the *Parker* appeal. Three examples of those reasons are as follows. First, the court’s reliance on the dwelling unit being furnished and without cooking facilities is misplaced because tenants often lease furnished dwelling units and a dwelling unit may be (and, in this case, was) simply a “sleeping place” (see R.C. 5321.01(F)). Second, the court’s reliance on the occupant’s understanding that his nine-month stay “was temporary” is misplaced because (1) every tenant understands that the tenant’s stay is limited to the lease term, (2) virtually all residential leases are month-to-month or one-year terms, and (3) therefore, the nine-month occupancy at the Project Share facility is no more temporary than the typical residential tenancy. Third, the court’s reliance on the social service requirements for the occupants is misplaced because rental agreement provisions that require the tenant to participate in certain social service programs are not unusual (see, e.g., 24 C.F.R. § 582.315(b) (Shelter Plus Care rental subsidy program)).

G. Employee Tenant

An employee may lease and reside in residential premises pursuant to a contract of employment (“employee tenant”).²⁶² R.C. Chapter 5321 has modified the common law rules regarding employee tenants.

Under common law, an employee tenant is either a servant or a tenant. The

²⁶² A related but different circumstance is a tenant who, during the tenancy, accepts an employment position (e.g., janitor) with the landlord, the compensation for which is a reduction or elimination of the tenant’s rental obligation. E.g., *Kearny Court Assocs. v. Spence*, 262 N.J. Super. 241, 620 A.2d 1056 (1993); *Mayer v. Norton*, 62 Misc.2d 887, 310 N.Y.S.2d 576 (Civ. Ct. 1970). In this circumstance, the employment and the tenancy are a dual relationship, which means that a termination of the employment does not terminate the tenancy. *Id.*

employee tenant is a servant, and thus not a tenant, where the occupancy is connected with, or is required for the necessary or better performance of, the employment services. Annotation, Nature of Occupancy of Person Occupying Premises of Employer as Part of Compensation, 39 A.L.R. 1145, 1145-46 (1925).

Under common law, an employee tenant's (servant's or tenant's) right to possession of the premises terminates as soon as the employment contract is terminated, even if the employer wrongfully terminated the contract. *McKibben v. Rosselot*, 4 Ohio App. 331 (12th Dist. 1915). See also Annotation, Right After Termination of Employment to Continue Occupancy of House Owned by Former Employer, 35 A.L.R. 576, 577 (1925).

R.C. Chapter 5321 has modified this common law distinction between servant and tenant. Whenever a person resides in residential premises pursuant to an employment contract, the R.C. 5321.01 definitions of rental agreement, tenant, and landlord supersede the common law.

These employment contracts are rental agreements under R.C. 5321.01(D) because they establish rules and conditions concerning the use and occupancy of residential premises. They meet the R.C. 5321.01(D) definition of rental agreement irrespective of whether the employee's occupancy is related to the performance of the employment services.

Likewise, the employee is a tenant under R.C. 5321.01(A) and, if the employer owns or manages the residential premises, the employer is a landlord under R.C. 5321.01(B). See *Grant v. Detroit Ass'n of Women's Clubs*, 443 Mich. 596, 505 N.W.2d 254 (1993) (when the essential characteristics of a landlord-tenant relationship are present, an employment contract may create a tenancy).

The status of tenant for employee tenants means that they are protected by the R.C. Chapter 5321 tenant rights. For example, upon termination of the employment contract, the employer landlord may not seek to recover possession of the premises by terminating the utilities or changing the locks. See Chapter XII, below. Also, a month-to-month or week-to-week employment contract/rental agreement²⁶³ may be a periodic tenancy whose termination is subject to the R.C. 5321.17 notice requirements. However, to preserve this right, the employee tenant may be required to tender the fair

²⁶³ The term "employment contract/rental agreement" is used in this Section VI.G to mean an employment contract that establishes rules and conditions concerning the employee's use and occupancy of residential premises.

market rent each month after the employment has been terminated and the tenancy arguably continues. Otherwise, the employer landlord may simply evict the employee for nonpayment of rent.

R.C. Chapter 5321 also expands the substantive rights of employee tenants to remain in possession of the premises. For example, if the employer landlord is terminating the employment contract/rental agreement because the employee tenant complained to the employer landlord about R.C. 5321.04 violations, the R.C. 5321.02 prohibition against retaliation may apply. See Section II.T, above. And, if the employer landlord is terminating the employment contract/rental agreement due to employee tenant conduct that violates both R.C. 5321.05 and the employment contract/rental agreement, the R.C. 5321.11 notice and right to cure may apply. See Section I.D.2.e, above.

VII. Rental Agreement Provisions

A. Contract Law Governs Leases

“It is well established that leases are contracts and, as such, are subject to traditional rules governing contract interpretation.” *Heritage Court, L.L.C. v. Merritt*, 187 Ohio App.3d 117, 931 N.E. 2d 194, ¶ 14 (3rd Dist. 2010). *Accord Krantz v. Pahnke*, No. 2021-CA-0043, 2022 WL 39486, ¶ 42 (Ohio App., 5th Dist., Jan. 5, 2022); *Langfan v. Carlton Gardens Co.*, 183 Ohio App.3d 260, 916 N.E.2d 1079, ¶ 9 (3rd Dist. 2009); *Brown v. Spitzer Chevrolet Co.*, 181 Ohio App.3d 642, 910 N.E.2d 490, ¶ 36 (5th Dist. 2009); *Stauffer v. TGM Camelot, Inc.*, No. CA2005-12-508, 2006 WL 1974612, ¶ 12 (Ohio App., 12th Dist., July 17, 2006); *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 270, 736 N.E.2d 507 (1st Dist. 1999); *Christe v. GMS Mgmt. Co.*, 124 Ohio App.3d 84, 88, 705 N.E.2d 691 (9th Dist. 1997); *Russell Realty Co. v. Feghali*, 121 Ohio App.3d 291, 294, 699 N.E.2d 976 (8th Dist. 1997); *Delker v. Kerr*, No. L-96-110, 1996 WL 532319, at *2 (Ohio App., 6th Dist., Sept. 20, 1996). *See also U.S. Corrections Corp. v. Ohio Dep’t of Indus. Relations*, 73 Ohio St.3d 210, 216, 652 N.E.2d 766 (1995) (“a lease is a contract”).

The purpose of lease construction is to discover and effectuate the intent of the parties. *Krantz v. Pahnke*, No. 2021-CA-0043, 2022 WL 39486, ¶ 42 (Ohio App., 5th Dist., Jan. 5, 2022); *Heritage Court, L.L.C. v. Merritt*, 187 Ohio App.3d 117, 931 N.E. 2d 194, ¶ 14 (3rd Dist. 2010); *Stauffer v. TGM Camelot, Inc.*, No. CA2005-12-508, 2006 WL 1974612, ¶ 13 (Ohio App., 12th Dist., July 17, 2006); *Local Marketing Corp. v. Prudential Ins. Co. of Am.*, 159 Ohio App.3d 410, 824 N.E.2d 122, ¶ 8 (1st Dist. 2004); *Wauseon Plaza Ltd. P’ship v. Wauseon Hardware Co.*, 156 Ohio App.3d 575, 807 N.E.2d 953, ¶ 26 (6th Dist. 2004); *Buckeye Union Ins. Co. v. Consol. Stores Corp.*, 68 Ohio App.3d 19, 24, 587 N.E.2d 391 (10th Dist. 1990).

The intent of the parties is presumed to reside in the language that the parties chose to use in their lease agreement. *Id.*

When the language of a lease is clear and unambiguous, the court must follow and enforce the plain language of the lease as written, and not look beyond the plain language of the lease to determine intent. *Langfan v. Carlton Gardens Co.*, 183 Ohio App.3d 260, 916 N.E.2d 1079, ¶ 18 (3rd Dist. 2009); *Brown v. Spitzer Chevrolet Co.*, 181 Ohio App.3d 642, 910 N.E.2d 490, ¶ 36 (5th Dist. 2009); *Stauffer v. TGM Camelot, Inc.*, No. CA2005-12-508, 2006 WL 1974612, ¶ 13 (Ohio App., 12th Dist., July 17,

2006); *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 270, 736 N.E.2d 507 (1st Dist. 1999); *Russell Realty Co. v. Feghali*, 121 Ohio App.3d 291, 294, 699 N.E.2d 976 (8th Dist. 1997); *Delker v. Kerr*, No. L-96-110, 1996 WL 532319, at *2 (Ohio App., 6th Dist., Sept. 20, 1996).

When the language of a lease provision is ambiguous, the court may consider parole evidence in its determination of the meaning of the provision. *Altman v. Kardous Bayard Props.*, No. C-200406, 2021 WL 4269933 (Ohio App., 1st Dist., Sept. 15, 2021). For a discussion on contract construction rules, relative to an ambiguous lease forfeiture provision, see Section II.X, above.

“In interpreting the language of a lease agreement, common words are presumed to hold their ordinary meaning, unless ‘(1) manifest absurdity results, or (2) some other meaning is clearly evidenced from the instrument.’” *Heritage Court, L.L.C. v. Merritt*, 187 Ohio App.3d 117, 931 N.E. 2d 194, ¶ 14 (3rd Dist. 2010). *Accord Alexander v. Buckeye Pipe Line Co.*, 53 Ohio St.2d 241, 245-46, 374 N.E.2d 146 (1997).

B. Incorporation of R.C. Chapter 5321 Provisions

Every residential rental agreement incorporates by operation of law the rights and duties that are established in R.C. Chapter 5321. *Shoemaker v. Whitt*, 129 Ohio App.3d 591, 595, 718 N.E.2d 932 (2nd Dist. 1998); *Delker v. Kerr*, No. L-96-110, 1996 WL 532319, at *3 (Ohio App., 6th Dist., Sept. 20, 1996); *Rand v. Washington*, No. 7822, 1983 WL 2448, at *1 (Ohio App., 2nd Dist., May 26, 1983); *Laster v. Bowman*, 52 Ohio App.2d 379, 382, 370 N.E.2d 767 (8th Dist. 1977); *Craver v. Doogan*, No. 2003-CVC-00982, 2005 WL 4985282 (Ohio C.P., Clermont Cty., May 27, 2005).

Therefore, every residential rental agreement includes the:

- (1) R.C. 5321.02,.03 prohibition against retaliation (see Section II.T, above, and Chapter XI, below);
- (2) R.C. 5321.04 landlord duty to maintain and provide services for the premises (see Section VII.C, below);
- (3) R.C. 5321.05 tenant duty to maintain and properly use the premises (see Section VII.D, below);
- (4) R.C. 5321.04 and 5321.05 rights and duties regarding landlord entry upon the premises (see Section VII.E and Chapter X, below);

- (5) R.C. 5321.11 requirement for terminating a rental agreement for tenant conduct that violates R.C. 5321.05 (see Section I.D.2, above);
- (6) R.C. 5321.15 prohibition against self-help eviction and distraint of rent (see Chapters XII and XIII, below);
- (7) R.C. 5321.16 rights and duties regarding security deposits (see Chapter XVI, below);
- (8) R.C. 5321.17 requirement for terminating a periodic tenancy (see Section I.D.3, above); and
- (9) R.C. 5321.18 landlord duty to provide the tenant with written notice of the owner's (and owner's agent's) name and address.

Residential rental agreements also may incorporate the contract remedies that R.C. Chapter 5321 establishes. *See, e.g., Kelly v. Chillicothe Metro. Hous. Auth.*, No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011). In *Kelly*, a Public Housing tenant asserted R.C. 5321.04, 5321.15, and common law tort claims against a public housing authority ("PHA"). The court held that the PHA's immunity under R.C. Chapter 2744 (see Section XXII.I, below) did not bar the R.C. 5321.04 contract claim or the portion of the R.C. 5321.15 claim that is a contract claim. It then held that this contract claim included the tenant's right under R.C. 5321.15 to recover reasonable attorney's fees.

C. Landlord Duty to Maintain and Provide Services for the Premises

1. Scope of the R.C. 5321.04 Duty

a. Summary of the Statutory Requirements

"R.C. 5321.04(A) sets forth the obligations of a landlord who is a party to a rental agreement." *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 9 (2014).

An obligation of all residential landlords, including those who lease single family homes, is to maintain and provide services for the premises in compliance with the requirements of R.C. 5321.04(A). *Murray v. Bargo*, No. CA86-11-080, 1987 WL 15440, at *2 (Ohio App., 12th Dist., Aug. 10, 1987) (single family homes are not exempt).

The R.C. 5321.04(A) requirements are to:

- (1) comply with the requirements of applicable building, housing, health and safety codes that materially affect health and safety, R.C. 5321.04(A)(1) (see Section VII.C.2, below);
- (2) make all repairs and do whatever is reasonably necessary to put and keep the premises in a fit and habitable condition, R.C. 5321.04(A)(2) (see Section VII.C.3, below);
- (3) keep all common areas of the premises in a safe and sanitary condition, R.C. 5321.04(A)(3) (see Section VII.C.4, below);
- (4) maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating, and air conditioning fixtures and appliances, and elevators, supplied or required to be supplied by the landlord, R.C. 5321.04(A)(4) (see Section VII.C.5, below);
- (5) provide garbage cans and provide for garbage removal if there are four or more rental units in the building, R.C. 5321.04(A)(5); and
- (6) supply running water, reasonable amounts of hot water, and reasonable heat at all times, subject to certain exceptions, R.C. 5321.04(A)(6) (see Section VII.C.6, below).

b. Duty to a Tenant's Social Guest

“[A] landlord owes to a tenant's guest the same duty that the landlord owes a tenant.”²⁶⁴ *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 33 (2014). *Accord Shump v. First Cont'l-Robinwood Assocs.*, 71 Ohio St.3d 414, 644 N.E.2d 291 (1994).

Therefore, all of the duties that a landlord owes a tenant under R.C. 5321.04(A) extend to a tenant's guest, where applicable. *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594 (2014); *Shump v. First Cont'l-Robinwood Assocs.*, 71 Ohio St.3d 414, 644 N.E.2d 291 (1994). It is irrelevant whether the duty concerns the common areas or the tenant's dwelling unit. *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 23 (2014).

The *Mann* decision, in holding that the landlord's R.C. 5321.04(A)(3) common area duty extends to a tenant's guest, resolved a conflict among the appellate districts. *Compare Mann v. Northgate Investors LLC*, No. 11AP-684, 2012 WL 2393945 (Ohio

²⁶⁴ The landlord's R.C. 5321.04 obligations do not extend to a landlord's social guest. *Carlton v. Williams*, No. 77853, 2000 WL 1807230 (Ohio App., 8th Dist., Dec. 7, 2000) (landlord resided in one of two apartments in a duplex).

App., 10th Dist., June 26, 2012) (common area duty extends to tenant's guest)²⁶⁵ with *Shumaker v. Park Lane Manor of Akron*, No. 25212, 2011 WL 809492 (Ohio App., 9th Dist., Mar. 9, 2011) (common area duty does not extend to tenant's guest).²⁶⁶

Also, the *Mann* decision, in holding that a landlord owes to a tenant's guest the same duty that the landlord owes a tenant, seems to overrule implicitly the decision in *Owens v. French Vill. Co.*, No. 99-CA0058, 2000 WL 1026690 (Ohio App., 9th Dist., July 26, 2000). In *Owens*, the court refused to extend to a tenant's guest the landlord's duty, under an implied agreement arising from a course of conduct, to remove natural accumulations of ice and snow from the sidewalks.²⁶⁷

c. Prohibition Against Waiver

R.C. 5321.13 and R.C. 5321.06 prohibit any agreement between a landlord and tenant that purports to waive any of the landlord's R.C. 5321.04 obligations to maintain and provide services for the premises. *Miller v. Ritchie*, 45 Ohio St.3d 222, 225, 543 N.E.2d 1265 (1989). E.g., *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685, ¶ 39 (Ohio App., 6th Dist., Aug. 20, 2010) ("Pursuant to R.C. 5321.13(A), this obligation [to maintain the premises in a habitable condition under R.C. 5321.04(A)(2)] may not be modified or waived by agreement"). But see *Marcum v. Young*, No. CA9004-037, 1990 WL 160371 (Ohio App., 12th Dist., Oct. 22, 1990) (holding that, by the terms of the lease, the tenant assumed the landlord's R.C. 5321.04 duty to repair the water heater).

Also, a "tenant's occupancy of defective rental premises over a lengthy period of time does not constitute a waiver of the landlord's duty to maintain the premises as required by R.C. 5321.04" *Miller*, 45 Ohio St.3d at 222, syllabus no. 2.

²⁶⁵ See also *Wiles v. Miller*, 3 N.E.3d 226, 2013-Ohio-3625 (Ohio App., 10th Dist., 2013); *Bierl v. BGZ Assocs. II, LLC*, No. 9-12-42, 2013 WL 684707 (Ohio App., 3rd Dist., Feb. 25, 2013); *Smith v. Finn*, No. L-04-1244, 2005 WL 736669 (Ohio App., 6th Dist., Mar. 31, 2005); *Mowery v. Shoaf*, 148 Ohio App.3d 403, 773 N.E.2d 1053 (7th Dist. 2002); *Hodges v. Gates Mills Towers Apt. Co.*, No. 77278, 2000 WL 1429421 (Ohio App., 8th Dist., Sept. 28, 2000).

²⁶⁶ See also *Rios v. Shauck*, No. 97-CA-006753, 1998 WL 289692 (Ohio App., 9th Dist., June 3, 1998); *Sanders v. Bellevue Manor Apts.*, No. 95-CA-006067, 1996 WL 1768 (Ohio App., 9th Dist., Jan. 3, 1996).

²⁶⁷ For a discussion on the landlord duty to the tenants to keep the common areas of the premises clear of natural accumulations of ice and snow, based on an implied agreement arising from a course of conduct, see Section VII.C.4.c, below.

However, a tenant may contract with a landlord to make certain repairs to the premises in lieu of the tenant's obligation to pay a certain portion of the rent. See Section II.R, above. Likewise, a tenant may contract with a landlord to make certain repairs to the premises in lieu of the tenant's obligation to make certain cash payments for an option to purchase. In either case, the repair agreement would not relieve the landlord of any R.C. 5321.04 duty or liability. See *Strayer v. Lindeman*, 68 Ohio St.2d 32, 427 N.E.2d 781 (1981) (R.C. 5321.04 obligations are non-delegable). But, if the tenant fails to make the repairs properly and it results in a violation of R.C. 5321.04, the tenant would be liable for a breach of the repair agreement.

With respect to the option to purchase agreement, at least two limits exist for the repair agreement. First, if the repair agreement does not reduce the cost of the option, the repair agreement would be without consideration and, therefore, invalid. Second, the total cost of the option – the sum of the reasonable value of the repair work plus the tenant's remaining cash payment obligation – is subject to an unconscionability prohibition. See Section XVI.B.6, below.

2. Comply with the Building, Housing, Health, and Safety Codes, R.C. 5321.04(A)(1)

R.C. 5321.04(A)(1) requires landlords “to comply with the requirements of all applicable building, housing, health, and safety codes that materially affect health and safety.” *E.g.*, *McHugh v. Zataar*, No. 14-CA-010591, 2015 WL 7273177 (Ohio App., 9th Dist., Jan. 20, 2015) (city code, duty to install handrail on basement stairway); *Burdick v. Nevel*, No. 98AP-697, 1999 WL 235435 (Ohio App., 10th Dist., Apr. 20, 1999) (city code, duty to install and inspect smoke detectors); *Primes v. Milbry*, No. 18236, 1997 WL 760698 (Ohio App., 9th Dist., Nov. 19, 1997) (building code, width and handrail requirements for stairways).

If the alleged defect does not violate an applicable building, housing, health, or safety code, it cannot constitute a violation of R.C. 5321.04(A)(1). *McDaniels v. Petrosky*, No. 97-APE08-1027, 1998 WL 54363 (Ohio App., 10th Dist., Feb. 5, 1998) (tree stump in backyard did not violate any applicable code); *Taylor v. Alexander*, No. 3550, 1986 WL 7800 (Ohio App., 11th Dist., July 11, 1986) (absence of handrail within interior of apartment did not violate any applicable code).

Also, if the alleged code violation does not materially affect health and safety, it cannot constitute a violation of R.C. 5321.04(A)(1). *Pedra Props., L.L.C. v. Justmann*, No. 102909, 2015 WL 9438446 (Ohio App., 8th Dist., Dec. 24, 2015) (code violation

– roof leak in laundry room located within the dwelling unit – did not constitute a violation of R.C. 5321.04(A)(1) because trial court found it did not materially affect health and safety and appellate record did not include a transcript or an appropriate substitute); *Wenzke v. Baird*, No. L-13-1244, 2014 WL 3408590 (Ohio App., 6th Dist., July 11, 2014) (code violation – six inoperable windows – did not constitute a violation of R.C. 5321.04(A)(1) because the trial court failed to find the code violations materially affected health and safety).

3. Put and Keep the Premises in Fit and Habitable Condition, R.C. 5321.04(A)(2)

a. Introduction

R.C. 5321.04(A)(2) requires a landlord to “make all repairs and do whatever is reasonably necessary to put and keep the premises in a fit and habitable condition.”

This requirement is similar to the common law implied warranty of habitability,²⁶⁸ which other jurisdictions recognize and some Ohio courts recognized before the enactment of R.C. Chapter 5321 (see Section II.P, above).

However, R.C. 5321.04(A)(2) requires a landlord to maintain the premises in both a fit condition and a habitable condition. A defective condition in the premises may cause the premises to be less than fit, in violation of R.C. 5321.04(A)(2), even though it does not render the premises uninhabitable. *Tellema v. Liette*, No. 92-CA-14, 1993 WL 79270, at *2 (Ohio App., 2nd Dist., Mar. 11, 1993). *Cf. Walling v. Holman*, 858 F.2d 79, 83 (2d Cir. 1998) (New York law: rejects landlord’s contention that “the warranty [of habitability] is limited to conditions that endanger life, health, and safety, because the warranty extends to maintenance of the premises ‘in accord with the uses reasonably intended by the parties’”). *But see V.R. v. Cincinnati-Hamilton County Cmty. Action Agency*, No. C-140230, 2014 WL 6090396, ¶ 12 (Ohio App., 1st Dist., Nov. 14, 2014).

²⁶⁸ See *Pagoda Co. v. Smith*, No. 37936, 1979 Ohio App. LEXIS 11691, at *12 (Ohio App., 8th Dist., Feb. 8, 1979) (finding that the implied warranty of habitability in *Glyco v. Schultz*, 35 Ohio Misc. 25, 289 N.E.2d 919 (Ohio Mun., Sylvania, 1972), “sought to develop the same remedies through case law that the legislature later enacted through the statute”).

b. General Factors for Determining Whether a Defective Condition Violates the Duty

Factors for determining whether a defective condition violates R.C. 5321.04(A)(2) include: (1) whether the alleged defect violates housing laws, regulations, or ordinances, (2) the seriousness of the defect, (3) the extent of inconvenience suffered by the tenant as a result of the defect, and (4) the length of time the defect has persisted. *Pagoda Co. v. Smith*, No. 76-CVG-1548, slip op. at 5 (Ohio Mun., Cleveland Heights, Feb. 25, 1977), *aff'd*, No. 37936, 1979 Ohio App. LEXIS 11691, at *11 (Ohio App., 8th Dist., Feb. 8, 1979); *Weingarden v. Eagle Ridge Condos.*, 71 Ohio Misc.2d 7, 13, 653 N.E.2d 759 (Ohio Mun., Toledo, Hous. Div., 1995).²⁶⁹

Whether the defect violates an applicable housing, building, health, or safety code is not a dispositive factor. R.C. 5321.04(A)(2) imposes an obligation to maintain the premises in a fit and habitable condition irrespective of whether there are any such codes, and in addition to any such codes. *Lloyd v. Roosevelt Props.*, No. 105721, 2018 WL 3814972, ¶ 21 (Ohio App., 8th Dist., Aug. 9, 2018).

The basis for this conclusion is two-fold. First, it is evident from the legislature's decision to establish a "fit and habitable" standard in R.C. 5321.04(A)(2) that is separate from the R.C. 5321.04(A)(1) obligation to comply with such codes.

Second, it is consistent with the implied warranty of habitability case law in other jurisdictions, which holds that a breach of the warranty may occur regardless of whether a municipal code violation exists. *E.g.*, *Glasoe v. Trinkle*, 107 Ill.2d 1, 10-12, 479 N.E.2d 915 (1985); *Hilder v. St. Peter*, 144 Vt. 150, 160, 478 A.2d 202 (1984); *Pugh v. Holmes*, 486 Pa. 272, 290, 405 A.2d 897 (1979); *Park W. Mgmt. Corp. v. Mitchell*, 47 N.Y.2d 316, 328, 418 N.Y.S.2d 310 (1979); *Boston Hous. Auth. v. Hemingway*, 363 Mass. 184, 200 n.16, 293 N.E.2d 831 (1973). It recognizes that "not all towns and municipalities have housing codes; where there are codes, the particular problem complained of may not be addressed." *Hilder*, 144 Vt. at 160.

"The concept of fitness and habitability is concerned with defects that force a tenant to endure serious deprivations of basic needs or threat to the tenant's health or safety" *Wilmoth v. Akron Metro. Hous. Auth.*, No. 27746, 2016 WL 3322551, ¶ 21

²⁶⁹ See also *Glasoe v. Trinkle*, 107 Ill.2d 1, 14, 479 N.E.2d 915 (1985) (implied warranty of habitability); *Detling v. Edelbrock*, 671 S.W.2d 265, 270 (Mo. 1984) (same); *Teller v. McCoy*, 162 W. Va. 367, 391-92, 253 S.E.2d 114 (1978) (same); *Mease v. Fox*, 200 N.W.2d 791, 796-97 (Iowa 1972) (same).

(Ohio App., 9th Dist., June 15, 2016). It is not a warranty against all discomfort and inconvenience. *Id.*

The R.C. 5321.04(A)(2) “[f]itness and habitability entails such defects as lack of water or heat, faulty wiring, or vermin infestation.” *Aldridge v. Englewood Vill., Ltd.*, No. 10251, 1987 WL 15015, at *3 (Ohio App., 2nd Dist., July 22, 1987). *Accord Goodman v. Dan Rich, LLC*, No. 109581, 2021 WL 927001, ¶ 31 (Ohio App., 8th Dist., Mar. 11, 2021); *Gress v. Wechter*, No. H-12-023, 2013 WL 1092731, ¶¶ 20,21 (Ohio App., 6th Dist., Mar. 15, 2013); *St. Germain v. Newell*, No. 9-15-14, 2015 WL 5319833, ¶ 28 (Ohio App., 3rd Dist., Sept. 14, 2015).

It also entails other significant interference with a tenant’s use and enjoyment of the premises. *E.g.*, *Holmes v. Cobblestone Grove*, No. CA20-04-075, 2017 WL 74986 (Ohio App., 12th Dist., Jan. 9, 2017) (after repair of massive plumbing leak, mold and mildew in the unit and repeated and ongoing intrusion from remediation efforts (*e.g.*, drywall debris everywhere, large fans and dehumidifiers running for weeks, large holes in drywall, and inaccessibility to tenant’s furnishings) that deprived tenant of reasonable use and enjoyment of the kitchen and living areas); *McNelly v. Conde*, 166 N.E.3d 697, 2021-Ohio-146, ¶ 8 (Ohio App., 2nd Dist., 2021) (upon arriving to move in, “apartment was filthy, with water behind the walls, leakage, mold all over, and exposed wires in the kitchen and attic, which were a safety hazard”).

c. Court Decisions on Whether Particular Structural Defects Violate the Duty

Court decisions that illustrate the types of structural deficiency that violate (or do not violate) R.C. 5321.04(A)(2) are set forth below.

- (1) *Miller v. Ritchie*, 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989) (violation – faulty and dangerous electrical wiring, holes in the floors, inadequate plumbing, and no heating system).
- (2) *McKinney v. Hartz & Restle Realtors, Inc.*, 31 Ohio St.3d 244, 510 N.E.2d 386 (1987) (no violation – absence of fence along portion of the premises that abuts a railroad right-of-way).
- (3) *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 427 N.E.2d 774 (1981) (violation – defective exterior stairs leading to dwelling unit).
- (4) *Goodman v. Dan Rich, LLC*, No. 109581, 2021 WL 927001 (Ohio App., 8th Dist., Mar. 11, 2021) (no violation – patio contained loose pavers).
- (5) *Lloyd v. Roosevelt Props.*, No. 105721, 2018 WL 3814972 (Ohio App.,

- 8th Dist., Aug. 9, 2018) (violation – inadequate heat, lack of drinkable water, constant exposure to cigarette smoke (in building advertised as smoke-free), and rodent infestation in common area).
- (6) *Tillimon v. Richardson-Long*, No. L-16-1055, 2017 WL 169267 (Ohio App., 6th Dist., Jan. 13, 2017) (violation – failing to install heating tape on pipes and/or to close crawlspace vents needed to prevent waterline in crawlspace from bursting in winter).
 - (7) *Arnett v. Mong*, 65 N.E.3d 72, 2016-Ohio-2893 (Ohio App., 12th Dist., 2016) (no violation – hole in the gutter and/or gutter sagging).
 - (8) *St. Germain v. Newell*, No. 9-15-14, 2015 WL 5319833 (Ohio App., 3rd Dist., Sept. 14, 2015) (no violation – loose handrail).
 - (9) *Wenzke v. Baird*, No. L-13-1244, 2014 WL 3408590 (Ohio App., 6th Dist., July 11, 2014) (no violation – six inoperable or ill-functioning windows).
 - (10) *Gress v. Wechter*, No. H-12-023, 2013 WL 1092731 (Ohio App., 6th Dist., Mar. 15, 2013) (no violation – lack of gutters).
 - (11) *Mullins v. Grosz*, No. 10AP-23, 2010 WL 3244139 (Ohio App., 10th Dist., Aug. 17, 2010) (no violation – lack of a handrail or gating in the porch/step/walkway area of the premises).
 - (12) *January Inv., LLC v. Ingram*, No. CA2009-09-127, 2010 WL 1757940 (Ohio App., 12th Dist., May 3, 2010) (no violation – tenant’s expenses on exterior light fixtures, landscaping, vertical blinds, and chimney sweep).
 - (13) *Mounts v. Ravotti*, No. 07-MA-182, 2008 WL 4415819 (Ohio App., 7th Dist., Sept. 26, 2008) (violation – defective steps that provided the sole means of ingress to the rental unit).
 - (14) *Cipollone v. Hoffmeier*, No. C-060482, 2007 WL 2141578 (Ohio App., 1st Dist., July 27, 2007) (no violation – absence of window latches).
 - (15) *Heck v. Whitehurst Co.*, No. L-03-1134, 2004 WL 1857131 (Ohio App., 6th Dist., Aug. 20, 2004) (violation – cigarette smoke from neighbor’s apartment prevented tenant from using bedroom and caused clothes in closet to smell of smoke).
 - (16) *McGuire v. K & G Mgmt. Co.*, No. 98-CA-35, 1998 WL 666756 (Ohio App., 5th Dist., Aug. 27, 1998) (no violation – loose fitting screen, which served its purpose of providing ventilation and keeping out insects and birds, but did not prevent tenant’s child from exiting through

the window).

- (17) *McDaniels v. Petrosky*, No. 97-APE08-1027, 1998 WL 54363 (Ohio App., 10th Dist., Feb. 5, 1998) (no violation – tree stump in the backyard).
- (18) *McKenzie v. Marlowe*, No. 70714, 1996 WL 715502 (Ohio App., 8th Dist., Dec. 12, 1996) (violation – faulty electrical wiring).
- (19) *Paul v. Pulskamp*, No. CA96-06-049, 1996 WL 707132 (Ohio App., 12th Dist., Dec. 9, 1996) (no violation – hole, one foot deep and two feet in diameter, in the concrete near the edge of the driveway).
- (20) *Roberson v. Insignia Mgmt. Group, L.P.*, No. C-940968, 1995 WL 757831 (Ohio App., 1st Dist., Dec. 20, 1995) (no violation – loose fitting screen, which served its purpose of providing ventilation and keeping out insects and birds, but did not prevent tenant’s child from exiting through the window).
- (21) *Pease v. Croxton Realty*, No. CA-8779, 1992 WL 362463 (Ohio App., 5th Dist., Dec. 7, 1992) (no violation – “a three to four inch ‘defect’ [that] existed by the driveway and cement slab and the carport”).
- (22) *Glover v. Massey*, Nos. 56351, 56802, 1990 WL 1328 (Ohio App., 8th Dist., Jan. 11, 1990) (violation – open drain in the basement floor that regularly backed up, causing the floor area near the drain to flood).
- (23) *Aldridge v. Englewood Vill., Ltd.*, No. 10251, 1987 WL 15015 (Ohio App., 2nd Dist., July 22, 1987) (no violation – threshold, leading from a back door to a patio, was three-quarters of an inch too high).
- (24) *Simpson v. Delta Prop. Mgmt., Inc.*, Nos. C-850562, 850575, 1986 WL 7136 (Ohio App., 1st Dist., June 25, 1986) (violation – defective fixtures such as kitchen cabinets that may fall and cause injury).
- (25) *Taylor v. Alexander*, No. 3550, 1986 WL 7800 (Ohio App., 11th Dist., July 11, 1986) (no violation – lack of handrail).
- (26) *Hershberger v. Shelmar Realty, Inc.*, No. CV2014-07-3154 (Ohio C.P., Summit Cty., Jan. 13, 2016), *aff’d on other grounds*, No. 28110, 2017 WL 420698 (Ohio App., 9th Dist., Jan. 31, 2017) (no violation – no gutters or awning over front steps, which allowed water to accumulate and then freeze).

d. Bed Bugs – Duty and Liability Issues

A bed bug infestation at rental premises may constitute a violation of R.C. 5321.04(A)(2). *E.g., Bynum v. Cotterman*, No. 26222, 2015 WL 751720 (Ohio App.,

2nd Dist., Feb. 20, 2015); *Showe Mgmt. Corp. v. Wright*, No. 12-CVG-00724 (Ohio Mun., Clinton Cty., Oct. 26, 2012). See also *Kolb v. DeVille I Props., LLC*, 326 S.W.3d 896 (Mo. App. 2010) (implied warranty of habitability violation – bed bugs); *Ludlow Props., LLC v. Young*, 4 Misc.3d 515, 780 N.Y.S.2d 853 (Civ. Ct. 2004) (implied warranty of habitability violation – bed bugs). Cf. *Morel v. Marks Group, LLC*, Nos. HCH-598, H-1532, 2011 WL 2712996 (Conn. Super. June 21, 2011) (implied warranty of habitability violation – bed bugs and cockroaches).

When a landlord is aware of a bed bug infestation at the rental premises (and thus is aware of the R.C. 5321.04(A)(2) violation), the landlord is obligated to remedy the infestation (like any other R.C. 5321.04(A) violation).

If the landlord fails to remedy timely the bed bug infestation (*i.e.*, the R.C. 5321.04(A)(2) violation), the tenant's remedies are the remedies that are available for any R.C. 5321.04(A) violation (see Chapters VIII and IX, below), including a claim for money damages. *E.g.*, *Bynum v. Cotterman*, No. 26222, 2015 WL 751720 (Ohio App., 2nd Dist., Feb. 20, 2015) (damage award of \$200 per month for eleven months, for total of \$2,200); *Sanders v. McGee*, No. 13-CV-003983 (Ohio C.P., Franklin Cty., Apr. 3, 2014) (compensatory damage award included \$4,000 for personal property damage and \$5,000 for incidental expenses).

A tenant generally is not liable for the landlord's costs for remediating the infestation (*i.e.*, the R.C. 5321.04(A)(2) violation), unless the landlord can establish that the infestation is the result of the tenant's violation of an R.C. 5321.05 duty. *E.g.*, *Showe Mgmt. Corp. v. Mountjoy*, 154 N.E.3d 141, 2020-Ohio-2772 (Ohio App., 12th Dist., 2020) (tenant liable for cost of bed bug extermination where the bed bugs were the result of tenant's carelessness/misuse/neglect); *Spring Hill Town Homes v. Pounds*, 972 N.E.2d 1121, 2012-Ohio-2800, ¶¶ 27-32 (Ohio App., 2nd Dist., 2012) (tenant not liable for cost of bed bug extermination because trial court did not find tenant failed to keep the premises safe and sanitary); *Showe Mgmt. Corp. v. Wright*, No. 12-CVG-00724 (Ohio Mun., Clinton Cty., Oct. 26, 2012) (tenant not liable for cost of extermination because landlord did not establish at trial the source of the bed bugs).

The tenant has a duty to cooperate in the landlord's efforts to remediate the infestation. See Section IX.A.6, below. If a tenant violates this duty, it may be a defense to the tenant's claim for the R.C. 5321.04(A)(2) violation. *E.g.*, *Kenwood Gardens Ass'n, LLC v. Shorter*, No. L-10-1315, 2011 WL 3654493 (Ohio App., 6th Dist., Aug. 19, 2011).

The duties relative to a tenant's personal property, when a bed bug infestation of

the rental premises causes an infestation of the personal property, raise two issues.

The first issue is whether the landlord has a duty to remediate (or compensate the tenant for) the infestation of the tenant's personal property. If the landlord's action or inaction caused the infestation of the rental premises and thereby the personal property, the landlord is liable for any damages resulting from this R.C. 5321.04(A)(2) violation (see Chapter IX, below), including the personal property remediation (or compensation). If the landlord's action or inaction did not cause the infestation of the rental premises and thereby the personal property, the landlord has not violated R.C. 5321.04(A)(2) and thus is not liable for the personal property remediation (or compensation). See *Chesterfield LLC v. Mackow*, No. 08-CVG-16093 (Ohio Mun., Cleveland, Hous. Div., Mar. 5, 2009).

The second issue concerns the duty and rights of the tenant relative to the remediation or disposition of the tenant's personal property. A landlord may elect not to remediate the infestation of the tenant's personal property²⁷⁰ if the landlord's action or inaction did not cause the infestation. In such cases, the landlord may ask the tenant either to remediate the infestation of the tenant's personal property or to remove the personal property from the dwelling unit, within a reasonable period of time.

If the tenant fails to take either course of action, the issue is whether the landlord may then remove the tenant's personal property from the rental premises in order to remediate fully the infestation of the premises. R.C. Chapter 1923 provides the landlord with an expeditious process for a court to remove forcibly the tenant and the tenant's personal property. If the landlord elects instead to remove the property unilaterally (*i.e.*, via a "self-help" approach), it might constitute unlawful conversion.

4. Keep the Common Areas in Safe and Sanitary Condition, R.C. 5321.04(A)(3)

a. Introduction

R.C. 5321.04(A)(3) requires a landlord to keep all common areas of the premises in a safe and sanitary condition.

This requirement is similar to the landlord's common law duty concerning

²⁷⁰ According to many experts, the best practice is for the landlord to remediate, at the same time, the infestation of the dwelling unit and the infestation of the tenant's personal property. The experts state that this approach is both effective and prevents the spread of the infestation (which disposition of the personal property may cause).

common areas. “At common law, a landlord was charged with a general duty to exercise reasonable care to keep the premises retained in his control for the common use of his tenants in a reasonably safe condition.” *Brady v. Koehnke*, No. C-930240, 1994 WL 481758, at *2 (Ohio App., 1st Dist., Sept. 7, 1994). *Accord Wiggans v. Glock*, No. 15967, 1997 WL 111745 (Ohio App., 2nd Dist., Mar. 14, 1997).

Likewise, “the landlord’s duty to keep all common areas in a safe and sanitary condition [under R.C. 5321.04(A)(3)] is analogous to a premises owner’s duty to a business invitee.” *Howson v. Amorose*, No. 00AP-8, 2000 WL 1753112, at *3 (Ohio App., 10th Dist., Nov. 30, 2000). *Accord McDaniels v. Petrosky*, No. 97-APE08-1027, 1998 WL 54363, at *4 (Ohio App., 10th Dist., Feb. 5, 1998).

Generally, the court decisions seem to view the R.C. 5321.04(A)(3) obligation as a codification, not an expansion, of this common law.

However, one court decision upheld an R.C. 5321.04(A)(3) violation that was based on repeated vandalism of a tenant’s car, a burglary of a tenant’s apartment, garbage spread on the lawn, and drug-dealing in the complex. *Turski v. Loesch*, No. L-05-1273, 2006 WL 3378415 (Ohio App., 6th Dist., Nov. 22, 2006).

b. Open and Obvious Doctrine Inapplicable

“A violation of R.C. 5321.04(A)(3) constitutes negligence per se and obviates the open-and-obvious doctrine.” *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶ 33 (2014).

In *Mann*, and in the corresponding R.C. 5321.04(A)(1) decision in *Robinson v. Bates*, 112 Ohio St.3d 17, 857 N.E.2d 1195 (2006), the Supreme Court is applying well-established Ohio law: “[W]hen the General Assembly has enacted statutes the violation of which constitute negligence per se, the open-and-obvious doctrine will not protect a defendant from liability.” *Lang v. Holly Hill Motel, Inc.*, 122 Ohio St.3d 120, 909 N.E.2d 120, ¶ 15 (2009).

These Supreme Court decisions overrule the earlier appellate court decisions that relied on common law and the analysis in *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 503 N.E.2d 159 (1986), to justify their use of the open and obvious doctrine to define the

scope of the R.C. 5321.04(A)(3) obligation.²⁷¹ Those earlier decisions include: *Mowery v. Shoaf*, 148 Ohio App.3d 403, 773 N.E.2d 1053 (7th Dist. 2002) (no duty – lack of exterior lighting in the common area); *Howson v. Amorose*, No. 00AP-8, 2000 WL 1753112, at *3 (Ohio App., 10th Dist., Nov. 30, 2000) (no duty – water-filled pothole in the parking lot); *McDaniels v. Petrosky*, No. 97-APE08-1027, 1998 WL 54363, at *4 (Ohio App., 10th Dist., Feb. 5, 1998) (no duty – tree stump in the backyard); *Wiggans v. Glock*, No. 15967, 1997 WL 111745 (Ohio App., 2nd Dist., Mar. 14, 1997) (no duty – excessive grass clippings resulting from lawn mowing); *Hayes v. Murtha*, No. 96-APE04-512, 1996 WL 589268 (Ohio App., 10th Dist., Oct. 10, 1996) (no duty – wet grass).

For discussions on the open and obvious doctrine in negligence claims, see Section IX.B.7.a, below (R.C. 5321.04 negligence per se claims) and Section IX.C.2, below (common law premises liability claims).

c. Removal of Ice/Snow from Common Areas

R.C. 5321.04(A)(3) requires a landlord to keep the common areas of the premises clear of unnatural accumulations of ice and snow, if the accumulation results in a condition that is substantially more dangerous than would have resulted naturally. *Burress v. Associated Land Group*, No. 2008-10-096, 2009 WL 1459699 (Ohio App., 12th Dist., May 26, 2009); *Saunders v. Greenwood Colony*, No. 14-2000-40, 2001 WL 196498 (Ohio App., 3rd Dist., Feb. 28, 2001); *Rampersaud v. Madison Dev. Co.*, No. 97-CA-006768, 1998 WL 332956 (Ohio App., 9th Dist., June 24, 1998).

“[A]n unnatural accumulation is ‘man-made,’ and created by a person doing something that would cause ice and snow to accumulate in an unexpected place or way.” *Au v. Waldman*, No. 2010-CA-112, 2011 WL 1832719, ¶ 34 (Ohio App., 5th Dist., May 9, 2011). *Accord Burress v. Associated Land Group*, No. 2008-10-096, 2009 WL 1459699 (Ohio App., 12th Dist., May 26, 2009); *Martin v. Edgewater Props.*, No. 92-CA-005307, 1992 WL 357321 (Ohio App., 9th Dist., Nov. 25, 1992);

²⁷¹ The *LaCourse* decision refers to the open and obvious doctrine in describing the longstanding rule of common law that a landlord has no duty to keep common areas clear of natural accumulations of ice and snow. It holds that R.C. 5321.04(A)(3) does not modify this rule of common law. The basis for its holding is a principle of statutory construction: in order to find legislative intent to abrogate a rule of common law, “[s]uch an intention must be expressly declared by the legislature or necessarily implied in the language of the statute.” 28 Ohio St.3d at 212.

Klein v. Ryan's Family Steak House, No. 20683, 2002 WL 1022974 (Ohio App., 9th Dist., May 15, 2002). See also *Morgan v. Mamone*, No. 87612, 2006 WL 3804527 (Ohio App., 8th Dist., Dec. 21, 2006).

R.C. 5321.04(A)(3) does not require a landlord to keep the common areas of the premises clear of natural accumulations of ice and snow. *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 503 N.E.2d 159 (1986). See also *Walker v. 24570 Lakeshore Prop. L.L.C.*, No.105017, 2017 WL 1055294 (Ohio App., 8th Dist., May 11, 2017); *Burress v. Associated Land Group*, No. 2008-10-096, 2009 WL 1459699 (Ohio App., 12th Dist., May 26, 2009); *Barner v. Continent Apt. Homes*, No. 04AP-774, 2005 WL 1022909 (Ohio App., 10th Dist., May 3, 2005); *Worthan v. Bryan Hous. Ltd.*, No. WM-97-028, 1998 WL 230583 (Ohio App., 6th Dist., May 1, 1998); *McCornell v. Bridges*, 124 Ohio App.3d 610, 707 N.E.2d 8 (8th Dist. 1997); *Moore v. Lupica Towers*, No. 71551, 1997 WL 711295 (Ohio App., 8th Dist., Nov. 13, 1997); *Burns v. Barrington Group, Inc.*, No. 2-CA-92, 1992 WL 319152 (Ohio App., 5th Dist., Nov. 2, 1992); *Rivera v. Associated Estates Corp.*, No. 53502, 1987 WL 13044 (Ohio App., 8th Dist., June 18, 1987).

However, where a landlord has superior knowledge of a particular danger caused by a natural accumulation of snow and ice, the landlord may have a duty to the tenant to remedy the danger. *Barner v. Continent Apt. Homes*, No. 04AP-774, 2005 WL 1022909 (Ohio App., 10th Dist., May 3, 2005); *Garden Woods Apts. v. Gee*, No. 13962, 1993 WL 385818 (Ohio App., 2nd Dist., Sept. 27, 1993); *Martin v. Edgewater Props.*, No. 92-CA-005307, 1992 WL 357321 (Ohio App., 9th Dist., Nov. 25, 1992). See also *Klein v. Ryan's Family Steak House*, No. 20683, 2002 WL 1022974 (Ohio App., 9th Dist., May 15, 2002).

A landlord may assume the obligation to keep the common areas of the premises clear of natural accumulations of ice and snow by an express agreement. *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 211, 503 N.E.2d 159 (1986); *Barner v. Continent Apt. Homes*, No. 04AP-774, 2005 WL 1022909, ¶ 16 (Ohio App., 10th Dist., May 3, 2005); *Garden Woods Apts. v. Gee*, No. 13962, 1993 WL 385818, at *3 (Ohio App., 2nd Dist., Sept. 27, 1993).

The traditional view has been that a landlord also may assume the obligation to keep the common areas of the premises clear of natural accumulations of ice and snow

by an implied agreement arising from the landlord's course of conduct.²⁷² *Oswald v. Jeraj*, 146 Ohio St. 676, 67 N.E.2d 779 (1946); *Espurvoa v. Calhoun Inv. Co.*, No. 91AP-406, 1992 WL 15260 (Ohio App., 10th Dist., Jan. 23, 1992); *Rogers v. Ayjay Dev., Inc.*, No. 2-91-1, 1991 WL 240046 (Ohio App., 3rd Dist., Nov. 14, 1991); *Hammond v. Moon*, 8 Ohio App.3d 66, 455 N.E.2d 1301 (10th Dist. 1982).

But several appellate districts have rejected or questioned the continued validity of this traditional view. See, e.g., *Brewton v. Monnette*, No. L-13-1068, 2013 WL 5210514 (Ohio App., 6th Dist., Sept. 13, 2013); *Thatcher v. Lauffer Ravines, LLC*, No. 11AP-851, 2013 WL 816428 (Ohio App., 10th Dist., Mar. 5, 2013); *Hill v. Monday Villas Prop. Owners Ass'n*, No. 24714, 2012 WL 690316 (Ohio App., 2nd Dist., Mar. 2, 2012); *Sanfilippo v. Vill. Green Mgmt. Co.*, No. CA2010-04-027, 2010 WL 3481981 (Ohio App., 12th Dist., Sept. 7, 2010); *Strazinsky v. Tri-County Props., Inc.*, No. 71015, 1997 WL 253169 (Ohio App., 8th Dist., May 15, 1997); *Brooks v. Lee*, No. CA95-05-091, 1995 WL 708227 (Ohio App., 12th Dist., Dec. 4, 1995); *Yanda v. Consol. Mgmt. Inc.*, No. 57268, 1990 WL 118703 (Ohio App., 8th Dist., Aug. 16, 1990).

Also, if the language of a lease provision is substantially the same as the language of R.C. 5321.04(A)(3), the lease provision does not require the landlord to keep the common areas of the premises clear of natural accumulations of ice and snow. *Lewis v. Byram*, No. L-92-286, 1993 WL 57293 (Ohio App., 6th Dist., Mar. 5, 1993). But cf. *Rogers v. Ayjay Dev., Inc.*, No. 2-91-1, 1991 WL 240046 (Ohio App., 3rd Dist., Nov. 14, 1991) (landlord construed the lease provision as imposing the obligation and the court so enforced it, as an express agreement or, in the alternative, an implied agreement arising from the landlord's course of conduct).

d. Other Court Decisions

Court decisions on the R.C. 5321.04(A)(3) obligation, excluding those on removing ice/snow (see Section VII.C.4.c, above), are summarized below.

- (1) Obligation to provide temporary lighting for an internal staircase when a power outage is caused by the actions of a third party. *Mayhew v.*

²⁷² Some courts have held that this obligation cannot be implied from a course of conduct if the written lease states that it is the "entire agreement." E.g., *Garden Woods Apts. v. Gee*, No. 13962, 1993 WL 385818 (Ohio App., 2nd Dist., Sept. 27, 1993); *Sheaffer v. Terrace Assocs.*, No. 12483, 1991 WL 227701 (Ohio App., 2nd Dist., July 18, 1991).

Massey, 86 N.E.3d 758, 2017-Ohio-1016 (Ohio App., 7th Dist., 2017).

- (2) Obligation to keep the dumpster area in a safe and sanitary condition. *Bierl v. BGZ Assocs. II, LLC*, No. 9-12-42, 2013 WL 684707 (Ohio App., 3rd Dist., Feb. 25, 2013).
- (3) Obligation to repair leaking exterior faucet and to repair potholes in the parking lot. *Walker v. RLI Enters., Inc.*, No. 89325, 2007 WL 4442725 (Ohio App., 8th Dist., Dec. 20, 2007).
- (4) Obligation to clean grease spill met, where landlord commenced the process to remove the hazard and placed precaution signs around the area of spill. *Williams v. Associated Estates Corp.*, 119 Ohio App.3d 558, 695 N.E.2d 1172 (8th Dist. 1997).
- (5) Obligation to remove wrecked autos from the common area parking lots. *Walker v. Cincinnati Metro. Hous. Auth.*, No. C-840007, 1984 WL 7128 (Ohio App., 1st Dist., Dec. 19, 1984).
- (6) No obligation to repair trivial imperfections in common area carpet, such as slight rip or tear. *Pine v. Hall*, No. C-040653, 2005 WL 1593929 (Ohio App., 1st Dist., July 8, 2005).
- (7) No obligation to light common areas. *Mowery v. Shoaf*, 148 Ohio App.3d 403, 773 N.E.2d 1053 (7th Dist. 2002); *Riley v. FDMA Props.*, No. 92-CA-22, 1992 WL 316356 (Ohio App., 5th Dist., Oct. 7, 1992). *See also Smith v. Whitaker*, No. 10448, 1987 WL 17615 (Ohio App., 2nd Dist., Sept. 23, 1987).
- (8) No obligations relative to a sidewalk of a single-family dwelling because it is not a common area of the premises. *Parks v. Menyhart Plumbing & Heating Supply Co.*, No. 75424, 1999 WL 1129591 (Ohio App., 8th Dist., Dec. 9, 1999).
- (9) No obligation to remove a tree stump from the backyard. *McDaniels v. Petrosky*, No. 97-APE08-1027, 1998 WL 54363 (Ohio App., 10th Dist., Feb. 5, 1998). *Cf. Kueber v. Haas*, 47 Ohio App.3d 62, 546 N.E.2d 1351 (1st Dist. 1988) (dicta) (R.C. 5321.04(A)(2), dead trees in wooded area left in wild and natural state to serve as privacy screen).
- (10) No obligation to install speed bumps or warning signs in the common area parking lots. *Washington v. Arbor Crest Land Co.*, No. 66307, 1994 WL 245640 (Ohio App., 8th Dist., June 2, 1994).
- (11) No obligation to construct a playground for children in the common area. *Washington v. Arbor Crest Land Co.*, No. 66307, 1994 WL 245640 (Ohio App., 8th Dist., June 2, 1994).

- (12) No obligation to keep common area stairs free from moisture accumulation. *Riley v. FDMA Props.*, No. 92-CA-22, 1992 WL 316356 (Ohio App., 5th Dist., Oct. 7, 1992).
- (13) No obligation to remove natural accumulation of leaves from the common areas. *Plush v. Nat'l Church Residences*, No. L-89-293, 1990 WL 106437 (Ohio App., 6th Dist., July 27, 1990).
- (14) No obligation to restrain or control an inebriated tenant who is observed staggering in the common area, where the inebriated tenant has not violated any provision of law or any term of the tenant's lease to justify the tenant's removal from the common area. *Barber v. Mid-Towne Assoc.*, 62 Ohio App.3d 384, 575 N.E.2d 879 (1st Dist. 1990).

5. Maintain Fixtures/Appliances in Good and Safe Working Order, R.C. 5321.04(A)(4)

R.C. 5321.04(A)(4) requires a landlord to maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating, and air conditioning fixtures and appliances, and elevators, that the landlord has supplied or is required to supply. *E.g.*, *CMB P'ship v. Baker*, No. 18159, 2000 WL 706824, at *3 (Ohio App., 2nd Dist., June 2, 2000) (duty to repair a leaking faucet that resulted in a wet dining room carpet).

With respect to elevators, this “statutory ‘good and safe working order’ standard requires more than code compliance.” *Cnty. Dev. Props. Cleveland, Inc. v. Griffin*, No. 87954, 2007 WL 613956, ¶ 15 (Ohio App., 8th Dist., Mar. 1, 2007). The standard requires a landlord, in addition to achieving code compliance, “to ensure the proper functioning of the elevators and to prevent sudden stops upon the shifting of weight in the elevator, and excessive breakdowns/malfunctions.” *Id.*, ¶¶ 4-6, 15.

“R.C. 5321.04(A)(4) requires a landlord to keep air conditioning in good working order without regard to the season.” *CMB P'ship v. Baker*, No. 18159, 2000 WL 706824, at *3 (Ohio App., 2nd Dist., June 2, 2000). “R.C. 5321.04(A)(4) requires an air conditioner to perform when needed, regardless of outside temperature.” *Id.* See also *Howard v. Simon*, 18 Ohio App.3d 14, 16, 480 N.E.2d 99 (8th Dist. 1984).

The R.C. 5321.04(A)(4) duty to maintain an air conditioner includes the duty to turn on the air conditioning system. “An air conditioner which is turned off results in the same uninhabitable conditions as one which is broken.” *Howard v. Simon*, 18 Ohio App.3d 14, 16, 480 N.E.2d 99 (8th Dist. 1984).

6. Supply Water, Hot Water, and Heat, R.C. 5321.04(A)(6), PUCO Rule, and Other Sources

a. R.C. 5321.04(A)(6)

Subject to two exceptions, R.C. 5321.04(A)(6) requires the landlord to supply the dwelling unit with running water, reasonable amounts of hot water, and reasonable heat at all times.

The first exception is that the R.C. 5321.04(A)(6) obligation does not apply if the building that includes the dwelling unit is not required by law to be equipped with those services.

The second exception is that the R.C. 5321.04(A)(6) obligation to supply hot water and heat does not apply if the utility meter, for the utility that furnishes hot water or heat to the dwelling unit, is an individual meter that serves and measures consumption at only the tenant's dwelling unit. The R.C. 5321.04(A)(6) obligation to supply running water is not subject to this second exception.

R.C. 5321.04(A)(6) does not require a landlord to prevent an interruption (or reduction) of the flow of water from a municipal water system to the premises, unless it is the result of a defective condition at the premises that the landlord is obligated to remedy. *Stewart v. Kalman*, No. 1109, 1982 WL 3509 (Ohio App., 4th Dist., Aug. 13, 1982).

Likewise, R.C. 5321.04 does not require a landlord to prevent a storm sewer overflow or a sanitary sewer back-up at the premises, unless it is the result of a defective condition at the premises that the landlord is obligated to remedy. *Conway v. Liddell*, No. 79799, 2002 WL 398687 (Ohio App., 8th Dist., Mar. 14, 2002); *Paul v. Semirale*, No. 70438, 1996 WL 502143 (Ohio App., 8th Dist., Sept. 5, 1996). "It is settled law that municipalities have the duty to maintain their public sewer systems." *Paul*, 1996 WL 502143, at *1.

An issue on which the case law is split is whether the R.C. 5321.04(A)(6) obligation to supply running water, hot water, and heat requires the landlord to pay for the utility services that furnish the running water, hot water, and heat.

The initial appellate court to address this issue concluded that the R.C. 5321.04(A)(6) obligation requires the landlord to pay for the water service. *Griffin v. Holston*, No. L-83-261, 1983 WL 2328, at *1 (Ohio App., 6th Dist., Dec. 16, 1983) ("the term 'supply,' as used in R.C. 5321.04(A)(6), means to pay for the utility charges"). Cf. *Woodrow v. McGuire*, No. 1740, 1989 WL 72799, at *3 (Ohio App.,

4th Dist., June 27, 1989) (“even if appellee [landlord] did not agree to that term [landlord to pay for the water service], R.C. 5321.04(A)(6) specifically requires the landlord to ‘supply running water ...’” and thus, in failing to secure the reinstatement of the water service, “appellee did fail in his duty to provide water”).

Thereafter, two appellate courts and at least one municipal court have concluded that the R.C. 5321.04(A)(6) obligation does not require the landlord to pay for the water service. *Jenkins v. Roger C. Perry & Co.*, 83 Ohio App.3d 234, 236, 614 N.E.2d 850 (10th Dist. 1992) (“the word ‘supply’ in R.C. 5321.04(A)(6) means to provide water or make it available in the physical sense and without the added burden of paying for such service”); *Hodgson v. Hodgson*, No. 89-L-14-074, 1990 WL 128267, at *2 (Ohio App., 11th Dist., Sept. 7, 1990) (“Subsection (A)(6) does not require payment for the water by the landlord”); *Bess v. McBride*, No. 96-CVH-1586, slip op. at 3 (Ohio Mun., Cleveland, Hous. Div., May 6, 1997) (“The Court notes that there is nothing in the Landlord-Tenant Act which prohibits a landlord and tenant, as between themselves, from entering into a contractual arrangement such that the tenant agrees to pay for the water”).²⁷³

The *Jenkins*, *Hodgson*, and *Bess* conclusion that the R.C. 5321.04(A)(6) obligation only requires a landlord to make the water available in a physical sense causes the second exception in R.C. 5321.04(A)(6) to be nonsensical. Their conclusion means that, when the dwelling unit’s relevant utility meter is an individual meter (which triggers the second exception), the R.C. 5321.04(A)(6) obligation does not apply and thus the landlord is not required to make hot water and heat available in a physical sense. None of these court decisions discusses the meaning of the second exception under its conclusion.

b. PUCO Rule

When the water is supplied through a mastermeter that is subject to PUCO regulation, Ohio Admin. Code § 4901:1-18-08(H) (“the PUCO rule”) may require the landlord to pay for the water service, irrespective of whether R.C. 5321.04(A)(6) requires it. The PUCO rule requires the landlord to be designated as the customer on all applications for utility service to residential mastermetered premises.

²⁷³ In 2001, the city of Cleveland enacted an ordinance that supersedes the *Bess* decision. Cleveland, OH, Code pt. 3C, tit. IX, ch. 375, § 375.05. The ordinance requires a residential landlord to pay for the water, electric, and gas services unless certain conditions are met.

It reasonably follows that, in requiring the landlord to be the customer, the PUCO rule requires the landlord to pay for the utility service. Therefore, where the PUCO Rule applies, if the landlord requires the tenant to pay for the water service, the requirement would violate the PUCO Rule and thus R.C. 5321.06. R.C. 5321.06 prohibits any lease provision that is inconsistent with or prohibited by R.C. Chapter 5321 or any other rule of law (*e.g.*, the PUCO Rule).

c. Other Sources of Landlord Duty to Provide Water Service

If a landlord is not required to pay for the water service under R.C. 5321.04(A)(6) or the PUCO rule, and if the rental agreement requires the tenant to pay for the water service and the tenant fails to do so, R.C. 5321.04(A)(1) may still require the landlord to pay for the water service. *See Bess v. McBride*, No. 96-CVH-1586 (Ohio Mun., Cleveland, Hous. Div., May 6, 1997) (“Whether the tenant has paid for the water or not,” City of Cleveland ordinances, together with R.C. 5321.04(A)(1), make the landlord “primarily liable for assuring that the water remains flowing”).

Also, if a landlord is not required to pay for the water service under R.C. 5321.04(A)(6) or the PUCO rule, and if two or more dwelling units receive the water service through a mastermeter, the landlord might require one of the tenants to contract for the water service and the other tenant(s) to reimburse that tenant for their share of the water bill. If a landlord imposes such requirements and one tenant fails to pay the tenant’s share of the water bill, the landlord may be liable for a breach of the implied covenant of quiet enjoyment. *See Roger Colton & Janet Labella, Landlord Failure to Resolve Shared Meter Problem Breaches Tenant’s Right to Quiet Enjoyment, 29 Clearinghouse Rev. 536 (1995).*

7. No Affirmative Duty Under R.C. 5321.04(A) to Inspect the Premises

R.C. 5321.04(A) does not impose an affirmative duty on a landlord to inspect the premises to discover defective conditions. *Person-Thomas v. Quilliams-Noble Apts., L.L.C.*, 45 N.E.3d 654, 2015-Ohio-4277, ¶ 27 (Ohio App., 8th Dist., 2015); *Mandelbaum v. Smith*, No. 101888, 2015 WL 1276573, ¶ 17 (Ohio App., 8th Dist., Mar. 19, 2015); *Cook v. Crossings, LLC*, No. 13-CA-010463, 2015 WL 1137860, ¶ 12 (Ohio App., 9th Dist., Mar. 16, 2015); *Hollowell v. Aplis*, No. 100275, 2014 WL 1327957, ¶ 11 (Ohio App., 8th Dist., Mar. 20, 2014); *Renzi v. Hillyer*, No. 2012-L-

041, 2012 WL 5995055, ¶ 20 (Ohio App., 11th Dist., Dec. 3, 2012); *Butler v. Wyndtree Hous. Ltd. P'ship*, No. CA2011-03-056, 2012 WL 37535, ¶ 42 (Ohio App., 12th Dist., Jan. 9, 2012); *Avila v. Gerdenich Realty Co.*, No. L-07-1098, 2007 WL 4216972 (Ohio App., 6th Dist., Nov. 30, 2007); *Lilly v. Bradford Inv. Co.*, No. 06AP-1227, 2007 WL 1640850, ¶ 29 (Ohio App., 10th Dist., June 7, 2007); *Boyd v. Hariani*, No. 22500, 2005 WL 2087824, ¶ 31 (Ohio App., 9th Dist., Aug. 31, 2005).

For a discussion on the related issue of the landlord's constructive notice of defective conditions at the residential premises, see Section IX.B.2.b, below.

8. Reasonable Security Measures Against Criminal Activity

R.C. 5321.04 does not require a landlord to protect the tenant against criminal activity of a third person. *Carmichael v. Colonial Square Apts.*, 38 Ohio App.3d 131, 528 N.E.2d 585 (10th Dist. 1987); *Cherkiss v. Thomas*, No. L-83-416, 1984 WL 7829 (Ohio App., 6th Dist., Apr. 13, 1984). *See also Brown v. Campbell*, Nos. 85698, 85702, 2005 WL 1793519 (Ohio App., 8th Dist., July 28, 2005); *Johnson v. Spectrum of Supportive Servs.*, No. 82267, 2003 WL 21982915 (Ohio App., 8th Dist., Aug. 21, 2003); *Sayles v. SB-92 Ltd. P'ship*, 138 Ohio App.3d 476, 741 N.E.2d 613 (8th Dist. 2000); *Doe v. Beach House Dev. Co.*, 136 Ohio App.3d 573, 737 N.E.2d 141 (8th Dist. 2000); *Doe v. Flair Corp.*, 129 Ohio App.3d 739, 719 N.E.2d 34 (8th Dist. 1998); *Meier v. Vistula Heritage Vill.*, 62 Ohio Misc.2d 632, 609 N.E.2d 1360 (Ohio C.P., Lucas Cty., 1992); *Pamer v. Pritchard Bros.*, 61 Ohio Misc.2d 150, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990).

However, a landlord does have a duty to provide in the common area reasonable security measures against criminal activity. *Carmichael v. Colonial Square Apts.*, 38 Ohio App.3d 131, 528 N.E.2d 585 (10th Dist. 1987); *Sciascia v. Riverpark Apts.*, 3 Ohio App.3d 164, 444 N.E.2d 40 (10th Dist. 1981). *See also Pieper v. Williams*, No. L-05-1065, 2006 WL 964725 (Ohio App., 6th Dist., Apr. 14, 2006); *Johnson v. Spectrum of Supportive Services*, No. 82267, 2003 WL 21982915 (Ohio App., 8th Dist., Aug. 21, 2003); *Sayles v. SB-92 Ltd. P'ship*, 138 Ohio App.3d 476, 741 N.E.2d 613 (8th Dist. 2000); *Doe v. Beach House Dev. Co.*, 136 Ohio App.3d 573, 737 N.E.2d 141 (8th Dist. 2000); *Kelly v. Bear Creek Inv. Co.*, No. 58011, 1991 WL 19152 (Ohio App., 8th Dist., Feb. 14, 1991); *Flowers v. City of Cincinnati*, No. C-880809, 1990 WL 27176 (Ohio App., 1st Dist., Mar. 14, 1990); *Hawk v. Fairmeadows Apts.*, No. CA86-12-180, 1987 WL 13707 (Ohio App., 12th Dist., June 29, 1987); *Pamer v. Pritchard*

Bros., 61 Ohio Misc.2d 150, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990).

Sciascia held that this duty arises from the implied covenant of quiet enjoyment. 3 Ohio App. 3d at 166. *See also Doe v. New Bedford Hous. Auth.*, 417 Mass. 273, 630 N.E.2d 248 (1994). *Carmichael* relied on *Sciascia* for its holding and thus presumably for the source of the duty. *Pieper, Johnson, Sayles, Doe, Kelly, Flowers, Hawk*, and *Pamer* rely on *Sciascia* and/or *Carmichael* for their holdings and thus presumably rely on *Sciascia* for the source of the duty as well.

Also, a “landlord may contractually [in a lease provision] create a duty to provide security to his tenants.” *Brown v. Campbell*, Nos. 85698,85702, 2005 WL 1793519, ¶ 23 (Ohio App., 8th Dist., July 28, 2005). *Accord Pamer v. Pritchard Bros.*, 61 Ohio Misc.2d 150, 153, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990). For example, two courts have held that, where a landlord promises to provide window locks, it may create a contractual obligation to do so and, if the breach of that obligation is the proximate cause of criminal activity, the landlord may be liable for injury resulting from the criminal activity. *Blair v. Prop. Mgmt. Consultants*, 40 Ohio App.3d 103, 531 N.E.2d 752 (1st Dist. 1987); *Buncy v. Daniels*, No. CA-6059, 1983 WL 6486 (Ohio App., 5th Dist., June 13, 1983). *See also Brown v. Campbell*, Nos. 85698, 85702, 2005 WL 1793519 (Ohio App., 8th Dist., July 28, 2005) (accepts the *Blair* rule, but finds no firm offer to install the new doors and thus no contractual duty).

But a lease provision that “states that ‘disorderly conduct of any nature will result in an eviction’ does not create a duty on the part of [the landlord] to protect tenants from the criminal actions of other tenants.” *Flowers v. City of Cincinnati*, No. C-880809, 1990 WL 27176, at *2 (Ohio App., 1st Dist., Mar. 14, 1990).

If a landlord provides security services to protect tenants against criminal activity, the landlord is obligated to exercise reasonable care in providing those services. *Pamer v. Pritchard Bros.*, 61 Ohio Misc.2d 150, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990).

9. Implied Covenant of Quiet Enjoyment, Common Law

A residential landlord is required to maintain the premises in compliance with the requirements of the common law implied covenant of quiet enjoyment. *Cincinnati Ins. Co. v. Evans*, No. WD-09-012, 2010 WL 2334795 (Ohio App., 6th Dist., June 11, 2010); *Liggins v. Westminster Arms, Inc.*, Nos. 98AP-377,378, 1998 WL 894613 (Ohio App., 10th Dist., Dec. 22, 1998); *Dworkin v. Paley*, 93 Ohio App.3d 383, 638 N.E.2d

636 (8th Dist. 1994); *Howard v. Simon*, 18 Ohio App.3d 14, 480 N.E.2d 99 (8th Dist. 1984). See also *Davis v. Sean M. Holley Agency, Inc.*, No. 23891, 2010 WL 4311683 (Ohio App., 2nd Dist., Oct. 29, 2010) (commercial lease; covenant of quiet enjoyment implied in every lease for realty); *Hamilton Brownfields Redevelopment, LLC v. Duro Tire & Wheel*, 156 Ohio App.3d 525, 806 N.E.2d 1039 (12th Dist. 2004) (same).

The landlord's obligations under the implied covenant of quiet enjoyment are in addition to the R.C. Chapter 5321 obligations. *Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993).

"The covenant [of quiet enjoyment] is breached when the landlord '... obstruct[s], interfere[s] with, or take[s] away from the ... [tenant] in a substantial degree the beneficial use ...' of the leasehold." *Howard v. Simon*, 18 Ohio App.3d 14, 16, 480 N.E.2d 99 (8th Dist. 1984) (quoting *Frankel v. Steman*, 92 Ohio St. 197, 200, 110 N.E. 747 (1915)). Accord *Davis v. Sean M. Holley Agency, Inc.*, No. 23891, 2010 WL 4311683 (Ohio App., 2nd Dist., Oct. 29, 2010); *Cincinnati Ins. Co. v. Evans*, No. WD-09-012, 2010 WL 2334795 (Ohio App., 6th Dist., June 11, 2010); *Hamilton Brownfields Redevelopment, LLC v. Duro Tire & Wheel*, 156 Ohio App.3d 525, 806 N.E.2d 1039 (12th Dist. 2004); *Liggins v. Westminster Arms, Inc.*, Nos. 98AP-377,378, 1998 WL 894613 (Ohio App., 10th Dist., Dec. 22, 1998); *Dworkin v. Paley*, 93 Ohio App.3d 383, 638 N.E.2d 636 (8th Dist. 1994); *Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993).

"The degree of impairment required [to constitute a breach] is a question for the finder of fact." *Dworkin*, 93 Ohio App.3d at 386. Accord *Cincinnati Ins. Co. v. Evans*, No. WD-09-012, 2010 WL 2334795 (Ohio App., 6th Dist., June 11, 2010); *Liggins v. Westminster Arms, Inc.*, Nos. 98AP-377,378, 1998 WL 894613 (Ohio App., 10th Dist., Dec. 22, 1998).

In *Howard*, the court held that "there was sufficient evidence for the finder of fact to determine that the frequent absence of air conditioning over a two-summer period breached the covenant." 18 Ohio App. 3d at 16.

In *Evans*, the court upheld the trial court's breach of covenant finding, based on the owner's placement of a lock box on the front door and grant of permission to prospective purchasers to enter the house unannounced, for a three-month period. 2010 WL 2334795, ¶¶ 12,25,31,54.

In *Dworkin*, the court held that material issues of fact existed as to whether the amount of cigarette smoke being transmitted into the tenant's upper rental unit from a lower rental unit was sufficient to constitute a violation of the covenant of quiet

enjoyment, and thus reversed a summary judgment for the landlord. 93 Ohio App.3d at 388.

In *Liggins*, the trial court found no breach of the covenant of quiet enjoyment, based on its finding that no witness at trial other than the tenant noticed an odor of marijuana in her apartment. 1998 WL 894613, at *4. The court of appeals held that the trial court did not abuse its discretion in making this finding and therefore upheld the finding. *Id.*

Generally, a landlord is not liable under the covenant of quiet enjoyment for the improper conduct of a third party such as a neighboring tenant.²⁷⁴ *E.g.*, *Scarnati v. Owners of Georgetown of Columbus*, 96-APE01-52, 1996 WL 339963 (Ohio App., 10th Dist., June 18, 1996) (conduct of neighboring tenant); *Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993) (conduct of non-tenant third party). *See also* Robert S. Schoshinski, *American Law of Landlord and Tenant* § 3:7 (1980 & Supp. 2015); 65 Ohio Jur.3d Landlord and Tenant § 180 (2006); 49 Am. Jur.2d Landlord and Tenant §§ 486, 487 (2006).

However, if a landlord expressly or impliedly authorizes the improper conduct of a third party, the landlord may be liable under the covenant of quiet enjoyment for the third party's conduct. Robert S. Schoshinski, *American Law of Landlord and Tenant* § 3:7 (1980 & Supp. 2015); 65 Ohio Jur.3d Landlord and Tenant § 180 (2006); 49 Am. Jur.2d Landlord and Tenant §§ 486, 487 (2006).

For example, if a neighboring tenant continually makes excessive noise of which the landlord is on notice, the landlord's failure to exercise the landlord's legal authority to abate it (including the commencement of an eviction action if necessary) may

²⁷⁴ Similarly, when a third-party tenant's conduct is racial harassment that creates a hostile housing environment, and the landlord fails to take corrective action, the landlord is not liable to the tenant under R.C. 4112.02(H)(4). *Ohio Civil Rights Comm'n v. Akron Metro. Hous. Auth.*, 119 Ohio St.3d 77, 892 N.E.2d 415 (2008). However, in these circumstances, the landlord may be liable under the federal Fair Housing Act. *See* 24 C.F.R. § 100.7(a)(1)(iii). *E.g.*, *Wetzel v. Glen St. Andrew Living Cmty., LLC*, 901 F.3d 856 (7th Cir. 2018). *But see Francis v. Kirk Manor, Inc.*, 992 F.3d 67 (2nd Cir. 2021) (en banc). And a tenant's neighbor may be held liable under R.C. 4112.02(H)(12) for conduct that interferes with the tenant's exercise or enjoyment of any other R.C. 4112.02(H) fair housing right. *Ohio Civil Right Comm'n v. Myers*, No. 25752, 2014 WL 201674 (Ohio App., 2nd Dist., Jan. 17, 2014).

constitute a breach of the covenant of quiet enjoyment.²⁷⁵ Robert S. Schoshinski, *American Law of Landlord and Tenant* § 3:7 (1980 & Supp. 2015) (and cases cited therein). *See also Wiesman v. Hill*, 620 F. Supp.2d 106, 114 (D. Mass. 2009) (Mass. Law). *Cf. Dworkin v. Paley*, 93 Ohio App.3d 383, 386, 638 N.E.2d 636 (8th Dist. 1994). *But see Scarnati v. Owners of Georgetown of Columbus*, No. 96-APE01-52, 1996 WL 339963 (Ohio App., 10th Dist., June 18, 1996).

Also, if a landlord breaches the covenant of quiet enjoyment by failing to provide in the common area reasonable security measures against criminal activity, the landlord may be liable for the criminal activity of a third party. *See* Section VII.C.8, above.

Ohio law on the measure of damages for a breach of the implied covenant of quiet enjoyment is somewhat unsettled. *Cincinnati Ins. Co. v. Evans*, No. WD-09-012, 2010 WL 2334795, ¶ 52 (Ohio App., 6th Dist. June 11, 2010). The conflict is essentially between whether a breach of the covenant relieves the tenant of the obligation to pay any rent or reduces the tenant's rental obligation to the rental value received (in light of the breach). *Id.*, ¶¶ 52,53. "The latter approach is substantially [actually, precisely] the same as the measure for either a breach of duty set forth in a lease or a statutory duty." *Id.*, ¶ 53. For a discussion on that measure of damages, see Section IX.A.8.a, below.

Since the implied covenant of quiet enjoyment is an implied term of the lease, the latter approach is the better reasoned view. Furthermore, it will properly relieve the tenant of the obligation to pay any rent when the tenant is constructively evicted from the premises.

10. Additional Terms of Rental Agreement

In the express terms of a rental agreement, a landlord may agree to assume additional duties to maintain the premises, provided they are consistent with R.C. Chapter 5321. *See* R.C. 5321.06. For example, R.C. 5321.13(F) permits a rental agreement provision under which the landlord assumes responsibility for fulfilling one

²⁷⁵ In these circumstances, the landlord may also be in violation of the R.C. 5321.04(A)(2) obligation to "do whatever is reasonably necessary to put and keep the premises in a fit and habitable condition." *See Scarnati v. Owners of Georgetown of Columbus*, No. 96-APE01-52, 1996 WL 339963 (Ohio App., 10th Dist., June 18, 1996) (applies R.C. 5321.04(A)(2) to complaint that neighboring tenant made excessive noise, but, based on landlord's reasonable investigation, finds no excessive noise and thus no violation). *See also Cohen v. Werner*, 82 Misc.2d 295, 368 N.Y.S.2d 1005 (Civ. Ct. 1975) (breach of implied warranty of habitability).

or more of the tenant's R.C. 5321.05 obligations, which are discussed in Section VII.D, below.

D. Tenant Duty to Maintain and Properly Use the Premises

1. Summary of the R.C. 5321.05(A) Duties

A duty of all residential tenants is to maintain and use the premises in compliance with the requirements of R.C. 5321.05(A).

The R.C. 5321.05(A) requirements are to:

- (1) keep the dwelling unit safe and sanitary, R.C. 5321.05(A)(1) (see Section VII.D.2, below);
- (2) dispose of garbage in a clean, safe, and sanitary manner, R.C.5321.05(A)(2);
- (3) keep all plumbing fixtures in the dwelling unit as clean as their condition permits, R.C. 5321.05(A)(3);
- (4) use and operate properly all electrical and plumbing fixtures, R.C. 5321.05(A)(4);
- (5) comply with all applicable housing, health and safety codes, R.C. 5321.05(A)(5);
- (6) refrain personally and to forbid guests from intentionally or negligently damaging or removing any fixture, appliance, or other part of the premises, R.C. 5321.05(A)(6) (see Section VII.D.3, below);
- (7) maintain in good working order and condition any range, refrigerator, washer, dryer, dishwasher, or other appliance that the landlord has supplied and that the tenant is required to maintain by the terms of a written rental agreement, R.C. 5321.05(A)(7);
- (8) conduct him/herself and to require guests to conduct themselves in a manner that will not disturb the neighbors' peaceful enjoyment of the premises, R.C. 5321.05(A)(8) (see Section VII.D.4, below); and
- (9) conduct him/herself and to require guests to conduct themselves, relative to the premises, so as not to violate the prohibitions in R.C. Chapters 2925 and 3719, or in municipal ordinances that are similar to any section of those chapters, relative to controlled substances.

2. Keep the Dwelling Safe and Sanitary, R.C. 5321.05(A)(1)

R.C. 5321.05(A)(1) generally requires a tenant to keep the dwelling unit safe and sanitary. Sanitary means clean; it does not mean free of mess. *Vesta Cleveland LLC v. Swann*, No. 2003-CVG-5468 (Ohio Mun., Cleveland, Hous. Div., May 20, 2003). For example, piles of clothing are messy, not unclean. *Id.*

Also, “R.C. 5321.05(A)(1) applies only to those situations in which the tenant is occupying and using the leased premises.” *Cent. Mut. Ins. Co. v. Faller*, 71 Ohio Misc.2d 58, 61, 654 N.E.2d 213 (Ohio C.P., Licking Cty., 1995). Therefore, it does not apply to a co-tenant who is not in possession or control of the premises. *Id.*

3. Duty Relative to Damage to the Premises, R.C. 5321.05(A)(6)

a. General Background

R.C. 5321.05(A)(6) requires a tenant to refrain personally and to forbid any other person who is on the premises with the tenant’s permission from intentionally or negligently damaging the premises.

“R.C. 5321.05(A)(6) does not require the tenant to prevent damage to the leased premises, but rather personally to refrain from such activity and to forbid others from engaging in it.” *DAK, PLL v. Borgerding*, No. 02AP-1051, 2003 WL 21469136, ¶ 18 (Ohio App., 10th Dist., June 26, 2003).

To constitute a violation of R.C. 5321.05(A)(6), the property damage must be beyond normal wear and tear. *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299, ¶ 27 (Ohio App., 10th Dist., Jan. 23, 2007).

For a discussion on normal wear and tear, see Section XVIII.B, below.

A tenant’s failure to report defective conditions that are causing damage to the rental unit may constitute negligent destruction of the property under R.C. 5321.05(A)(6). *Bailey v. Fairchild*, No. 10-CA-10, 2010 WL 4867532 (Ohio App., 2nd Dist., Nov. 24, 2010) (damage resulting from water leaking from a shower where tiles had fallen off and water entering the basement through a sewer).

Damage to the premises by a child under seven years of age cannot, by itself, constitute an R.C. 5321.05(A)(6) violation. As a matter of law, these children are incapable of the requisite negligence or intent. *See DeLuca v. Bowden*, 42 Ohio St.2d 392, 329 N.E.2d 109 (1975). However, in such circumstances, the tenant’s negligent

supervision of the child may be the basis for the R.C. 5321.05(A)(6) violation.

b. Damage by Third-Party

R.C. 5321.05(A)(6) does not make the tenant strictly liable for a guest's improper conduct. *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d 66, 545 N.E.2d 920 (9th Dist. 1988).

R.C. 5321.05(A)(6) does not make the tenant liable for the negligent acts of a guest. *Uptown Cmty. Partners, L.P. v. Killings*, No. C-110012, 2011 WL 5438652 (Ohio App., 1st Dist., Nov. 10, 2011); *Ohio Cas. Ins. Co. v. Wills*, 29 Ohio App.3d 219, 504 N.E.2d 1164 (3rd Dist. 1985); *Vesta Corp. v. Harris*, No. 2021-CVG-004702 (Ohio Mun., Cleveland, Hous. Div., Jan. 20, 2022). See also *Auto Owners Ins. Co. v. Hansford*, No. 1-86-38, 1987 WL 17881 (Ohio App., 3rd Dist., Sept. 29, 1987).

The R.C. 5321.05(A)(6) obligation, relative to a guest's conduct, applies only if the tenant is cognizant of the guest's presence, intentions, and conduct. *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d 66, 545 N.E.2d 920 (9th Dist. 1988).²⁷⁶

Upon observing a guest's intentional or negligent conduct that may damage the premises, the tenant's R.C. 5321.05(A)(6) obligation is to give a verbal command to the guest to discontinue the conduct. *Ohio Cas. Ins. Co. v. Wills*, 29 Ohio App.3d 219, 504 N.E.2d 1164 (3rd Dist. 1985).

Therefore, a tenant is not liable under R.C. 5321.05(A)(6) for a guest's improper conduct: (1) if the tenant was not in the rental unit when the guest engaged in the conduct, *Uptown Cmty. Partners, L.P. v. Killings*, No. C-110012, 2011 WL 5438652 (Ohio App., 1st Dist., Nov. 10, 2011); (2) if the tenant was unaware of the conduct, *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d at 67-68; *Ohio Cas. Ins. Co. v. Wills*, 29 Ohio App.3d 219, 504 N.E.2d 1164 (3rd Dist. 1985); (3) if, upon observing the conduct, the tenant verbally commands the guest to discontinue it, *Wills*, 29 Ohio App.3d at 221; or (4) if the damage to the leased premises is the result of the guest's

²⁷⁶ One appellate court held that a lease provision that prohibited "repeated damage to the unit" was consistent with the *Dorsey* rule, even though it permitted the landlord to "evict a tenant whose unit is repeatedly damaged without presenting evidence that the tenant had knowledge of the intentions of the person who caused the damage." *Stark Metro. Hous. Auth. v. Kirksey*, No. CA-9116, 1993 WL 135735, at *2 (Ohio App., 5th Dist., Apr. 19, 1993). The court reasoned that "the prohibition against repeated damage recognizes a logical inference that when damage occurs repeatedly over a period of time, the tenant was aware of the actions of others on the property and failed to prohibit further damage to the property." *Id.*

assault of the tenant, *DAK, PLL v. Borgerding*, No. 02AP-1051, 2003 WL 21469136, ¶ 18 (Ohio App., 10th Dist., June 26, 2003).

In *Wills*, the court held that the tenants did not violate the R.C. 5321.05(A)(6) obligation, relative to a guest's conduct, notwithstanding the guest's role in a fire that damaged the premises. The fire started in the kitchen from grease that became overheated, while the tenants' daughter (age twenty) was cooking. The daughter was a permissive user but not a tenant of the premises. The tenants were not present in the kitchen at the time of the fire.

In *Dorsey*, on facts nearly identical to those in *Wills*, the court likewise held that the tenants did not violate the R.C. 5321.05(A)(6) obligation. The *Dorsey* tenants were asleep in the premises at the time of the fire.

In *Killings*, the tenant was shopping when a babysitter started a fire in the kitchen, while preparing food. The court, relying on *Wills* and *Dorsey*, held that the tenant could not be liable under R.C. 5321.04(A)(6) because the tenant was not in the rental unit at the time of the fire.

Whether the *Wills/Dorsey* rule, relative to a guest's conduct, applies to the conduct of a co-tenant may depend on whether the lease contains a joint and several liability provision. See *Wayne Mut. Ins. Co. v. Parks*, No. 20945, 2002 WL 1800377 (Ohio App., 9th Dist., Aug. 7, 2002); *Kinn v. Showe Mgmt. Corp.*, No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002); *Young v. McCleese*, No. 97-CA-2351, 1998 WL 399861 (Ohio App., 4th Dist., July 13, 1998); *Cent. Mut. Ins. Co. v. Faller*, 71 Ohio Misc.2d 58, 654 N.E.2d 213 (Ohio C.P., Licking Cty., 1995).

Young held that the *Wills/Dorsey* rule does not apply to a co-tenant. *Kinn* rejected the *Young* position and held that the *Wills/Dorsey* rule does apply to a co-tenant. *Wayne Mutual* distinguished *Kinn* on the ground that the *Kinn* lease did not contain, and the *Young* lease did contain, a joint and several liability provision. *Wayne Mutual* held that a joint and several liability provision is consistent with R.C. 5321.05(A)(6) and that, if the lease contains a joint and several liability provision, the *Wills/Dorsey* rule does not apply to a co-tenant. *Faller* held that the *Wills/Dorsey* rule applied to the co-tenant, but then held the non-negligent co-tenant liable under the lease, without any reference to a joint and several liability provision.

A tenant is not liable under R.C. 5321.05(A)(6) for the conduct of an unknown or non-guest third party. *Wilhelm v. Ison*, No. 92-CA-97, 1993 WL 76961 (Ohio App., 2nd Dist., Mar. 15, 1993) (when delivering a refrigerator for the landlord, store personnel damaged the floor of the premises); *Jenkins v. Boyce*, 94 Ohio Misc.2d 98,

703 N.E.2d 392 (Ohio Mun., Akron, 1998) (the criminal conduct of trespassers damaged the premises); *Aetna Cas. & Surety Co. v. Neff*, 30 F. Supp.2d 990 (S.D. Ohio 1998) (applying Ohio law) (the intentional acts of a third party, who was on the premises without the tenant's permission, damaged the premises).

For a discussion on the application of R.C. 5321.05(A)(6) to assisted housing leases, see Section III.G.7, above.

4. Do Not Disturb Neighbors' Peaceful Enjoyment, R.C. 5321.05(A)(8)

R.C. 5321.05(A)(8) requires a tenant and the tenant's guests to conduct themselves in a manner that will not disturb the neighbors' peaceful enjoyment of the premises.

If the conduct does not disturb the neighbors' peaceful enjoyment of the premises, it does not constitute an R.C. 5321.05(A)(8) violation. *Walnut Hills Apts. v. Costner*, 108 Ohio Misc.2d 43, 739 N.E.2d 416 (Ohio Mun., Hamilton Cty., 1999) (when the tenant threatened a security guard with a gun, it did not disturb the neighbors' peaceful enjoyment of the premises).

Some courts have excluded criminal conduct from the R.C. 5321.05(A)(8) obligation, even if the criminal conduct disturbs the neighbors' peaceful enjoyment of the premises. *E.g., Lorain Metro. Hous. Auth. v. Fonseca*, 110 Ohio App.3d 292, 673 N.E.2d 1019 (9th Dist. 1996) (assaulted neighbor with steak knife); *Akron Metro. Hous. Auth. v. Sistrunk*, No. 12253, 1986 WL 2214 (Ohio App., 9th Dist., Feb. 12, 1986) (shot gun at neighbor); *Walnut Hills Apts. v. Costner*, 108 Ohio Misc.2d 43, 739 N.E.2d 416 (Ohio Mun., Hamilton Cty., 1999) (threatened security guard with gun); *D.C. Hughes Mgmt. Co. v. Webster*, No. B101,837 (Ohio Mun., Cleveland, Dec. 20, 1974) (discharged gun into the air).

In these cases, the courts are excluding criminal conduct from the R.C. 5321.05(A)(8) obligation in order to avoid application of the R.C. 5321.11 notice and right to cure requirements (see Section I.D.2, above). The unintended consequence of this position is that, absent a written lease with a provision that prohibits the criminal conduct, the criminal conduct is not grounds for terminating the tenancy.

At least one court has held that criminal conduct is not excluded from the R.C. 5321.05(A)(8) obligation. *College Hills Apts. v. McLaughlin*, No. 2010-CVG-04025 (Ohio Mun., Clermont Cty., Mar. 10, 2011). In *McLaughlin*, the tenant's daughter assaulted another resident of the apartment complex. The court held that this criminal conduct constituted an R.C. 5321.05(A)(8) violation and, therefore, the tenant was

entitled to an R.C. 5321.11 notice of termination.

Two reasonable arguments support the position that criminal conduct is not excluded from the R.C. 5321.05(A)(8) obligation.

First, in 1990, the legislature revised R.C. 5321.05 and 5321.11 so as to add an R.C. 5321.05 obligation relative to certain criminal conduct (*i.e.*, R.C. 5321.05(A)(9)) and to expressly exclude that criminal conduct from the R.C. 5321.11 requirements. In failing to exclude any other criminal conduct from the R.C. 5321.11 requirements, the legislature evidenced an intent not to exclude any other criminal conduct from the R.C. 5321.11 requirements.

Second, R.C. 5321.05(A) does not expressly exclude criminal conduct from its list of obligations. Indeed, some of its obligations (in addition to those in R.C. 5321.05(A)(9)), on their face, constitute criminal conduct – for example, the R.C. 5321.05(A)(5) code obligations. Since the R.C. 5321.05(A) obligations, including those in R.C. 5321.05(A)(8), are not ambiguous, courts are obligated to enforce them as written, and not infer a criminal conduct exclusion. *See Cheap Escape Co. v. Haddox, L.L.C.*, 120 Ohio St.3d 493, 900 N.E.2d 601, ¶ 9 (2008).

5. Non-R.C. 5321.05(A) Duties Under the Rental Agreement

a. Introduction

A rental agreement may impose tenant obligations regarding maintenance or use of the premises, in addition to the R.C. 5321.05(A) obligations. R.C. 5321.06. However, those obligations may not be “inconsistent with or prohibited by Chapter 5321 of the Revised Code or any other rule of law. *Id.*”

b. Exterior Maintenance for Single-Family Dwellings

“The yard of a single-family home is considered to be part of the tenant’s property to possess and control.” *Good v. Murd*, No. L-13-1235, 2014 WL 2170302, ¶ 10 (Ohio App., 6th Dist., May 23, 2014). As a result, these premises typically do not contain a common area.

With the absence of a common area, some exterior maintenance work for these premises fall outside the R.C. 5321.04(A) obligations. A rental agreement provision that requires the tenant to perform that work would generally not violate R.C. 5321.06.

A typical example of those work items is a lease provision that requires the tenant to perform lawn care. *E.g., Douglas v. Campost Props., LLC*, No. 2016-CV-102094

(Ohio Mun., Elyria, July 21, 2020). While that lease provision may require the tenant to mow the lawn on a regular basis, it “does not remotely imply a duty by [the tenant] to care for the beds in any respect, including pulling weeds.” *Id.*, slip op. at 4.

In large part, R.C. 5321.04(A)(1) and R.C. 5321.04(A)(2) define the limits of these exterior maintenance work items. R.C. 5321.04(A)(1) excludes any exterior maintenance work item that falls within the landlord’s obligation under an applicable code that materially affects health and safety. R.C. 5321.04(A)(2) excludes any exterior maintenance work item that falls within the landlord’s obligation to put and keep the premises in a fit and habitable condition. For these excluded items, the rental agreement may require the tenant to perform the work, but only if the landlord provides the tenant with reasonable compensation for it. See Section II.R., above.

Conversely, with the absence of a common area, some exterior maintenance work for these premises fall within the tenant’s obligation under R.C. 5321.05(A)(1) – “to keep that part of the premises that he occupies and uses safe and sanitary.” See Section VI.D.2, above. For those exterior maintenance work items, the landlord may assume responsibility for them under a rental agreement provision. See R.C. 5321.13(F). But absence that assumption of responsibility, those items are the tenant’s obligation, even if the rental agreement is silent on this matter.

c. Other Provisions

Court decisions provide some guidance on other types of rental agreement provisions. They include the following court decisions.

A rental agreement may restrict occupancy of the premises to the persons specified in the rental agreement. *E.g.*, *Parker v. Fisher*, 17 Ohio App.3d 103, 477 N.E.2d 654 (9th Dist. 1984).

A rental agreement may prohibit pets. *Douglas v. Campost Props., LLC*, No. 2016-CV-102094, slip op. at 3 (Ohio Mun., Elyria, July 21, 2020). But any such prohibition is subject to the reasonable accommodation requirements of the federal and state laws on discrimination that are listed in Section II.U.1, above.

One court found a lease provision that made the tenant liable for any damage to the premises “caused by the tenant” to be consistent with R.C. 5321.05(A)(6). *Donegal Cos. v. White*, No. 98-CO-1, 1999 WL 159222, at *5 (Ohio App., 7th Dist., Mar. 18, 1999). However, it did so only upon finding that the provision did not impose strict liability because “[t]he words ‘caused by’ imply that proof of negligence is a threshold to her [tenant’s] liability.” *Id.*

With respect to guest conduct, a rental agreement provision may not expand the R.C. 5321.05(A)(6) requirements. *Allstate Ins. Co. v. Dorsey*, 46 Ohio App.3d 66, 68, 545 N.E.2d 920 (9th Dist. 1988); *Aetna Cas. & Surety Co. v. Neff*, 30 F. Supp.2d 990, 997 (S.D. Ohio 1998) (applying Ohio law).

Likewise, a rental agreement may not establish any right to terminate the tenancy that is inconsistent with R.C. 5321.11. See R.C. 5321.06. Therefore, a rental agreement may not authorize a termination of the tenancy for tenant conduct that violates an R.C. 5321.05(A) obligation (or a corresponding rental agreement provision) but does not materially affect health and safety.²⁷⁷ See Section I.D.2.a, above.

E. Landlord Access to the Premises

Generally, a landlord may enter the premises for any of the purposes enumerated in R.C. 5321.05(B), and a tenant may not unreasonably withhold consent for the entry, provided the landlord gives the tenant reasonable advance notice of the entry and the landlord enters the premises at a reasonable time. R.C. 5321.04(A)(8), 5321.05(B). E.g., *T.K.D. Enters. v. Zimmermann*, No. 97-CA-44, 1998 WL 380496 (Ohio App., 4th Dist., July 2, 1998) (unlawful entry, lack of notice); *Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993) (lawful entry).

The purposes for which a landlord may enter the premises under R.C. 5321.05(B) are: (1) to inspect the premises; (2) to make ordinary, necessary, or agreed repairs, decorations, alterations, or improvements to the premises; (3) to deliver parcels that are too large for the tenant's mail facilities; (4) to supply necessary or agreed services; and (5) to exhibit the premises to prospective or actual purchasers, mortgagees, tenants, workmen, or contractors.

Generally, twenty-four hours advance notice is presumed to be reasonable advance notice of the landlord's entry, in the absence of evidence to the contrary. R.C. 5321.04(A)(8). See also *T.K.D. Enters. v. Zimmermann*, No. 97-CA-44, 1998 WL 380496 (Ohio App., 4th Dist., July 2, 1998); *Ayres v. Simmons*, No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993); *Spencer v. Blackmon*, 22 Ohio Misc.2d 52, 490 N.E.2d 943 (Ohio Mun., Hamilton Cty., 1985).

The landlord's obligation to "give the tenant reasonable advance notice of his intent to enter" is met only if the tenant receives "some sort of notice." *Limage v.*

²⁷⁷ For a discussion on the related rule that a non-material breach of a lease is not grounds to terminate the tenancy, see Section II.W, above.

Citiscene Props., No. 92AP-190, 1992 WL 131840, at *2 (Ohio App., 10th Dist., June 9, 1992). For example, this notice requirement is not met if the landlord's only attempts to provide the tenant with notice of the entry are an unanswered telephone call on the day of entry and an unanswered knock on the door of the dwelling unit at the time of entry. *Limage v. Citiscene Props.*, No. 92AP-190, 1992 WL 131840 (Ohio App., 10th Dist., June 9, 1992).

However, a landlord's entry to perform repairs does not violate this notice requirement, notwithstanding the absence of an advance notice, if the tenant voluntarily permits the landlord to enter and the landlord's entry is in response to the tenant's repair request. *Wayne Metro. Hous. Auth. v. Jackson*, Nos. 2369,2403, 1988 WL 107026 (Ohio App., 9th Dist., Oct. 12, 1988).

The twenty-four-hour advance notice requirement does not apply "in the case of emergency or if it is impracticable to do so." R.C. 5321.04(A)(8). Generally, "[a]n emergency means an unforeseen occurrence or combination of circumstances which calls for immediate action leaving no time for deliberation." *Helvich v. George A. Rutherford Co.*, 96 Ohio App. 367, 371, 114 N.E.2d 514 (8th Dist. 1953).

One court has construed the R.C. 5321.04(A)(8) emergency provision consistent with this *Helvich* definition. *Spencer v. Blackmon*, 22 Ohio Misc.2d 52, 490 N.E.2d 943 (Ohio Mun., Hamilton Cty., 1985). The *Spencer* decision rejected a landlord's claim that the emergency provision authorized his attempted entry. The landlord attempted to enter the premises without advance notice in order to install smoke detectors. The purported emergency was that an ordinance deadline for installing the smoke detectors had expired. But the landlord had received advance notice of the deadline.

Two courts have held that: (1) a tenant's storage locker, by itself, does not meet the R.C. 5321.01(F) definition of dwelling unit; (2) therefore, the tenant's storage locker is not part of the tenant's dwelling unit under R.C. 5321.01(F); and (3) as a result, a landlord's unreasonable entry into the tenant's storage locker does not violate R.C. 5321.04(A)(7) or R.C. 5321.04(A)(8). *Gibson v. Shephard*, 87 N.E.3d 846, 2017-Ohio-1157, ¶ 40 (Ohio App., 8th Dist., 2017); *Smith v. CBert Props., LLC*, No. 28058, 2019 WL 102081 (Ohio App., 2nd Dist., Jan. 4, 2019) (follows *Gibson*).

A better-reasoned position for this issue is that the tenant's storage locker is one component of (and thus part of) the tenant's dwelling unit under R.C. 5321.01(F) and, therefore, a landlord's entry into the tenant's storage locker is governed by R.C. 5321.04(A)(7) and R.C. 5321.04(A)(8). The components of "residential premises"

under R.C. 5321.01(C) fall into two general categories – those solely for the use and occupancy of the tenant and those for the use of all tenants (*i.e.*, common areas and common facilities). The main purpose for restricting a landlord’s entry into a tenant’s dwelling unit – protection of the tenant’s privacy interests – is best advanced if the term dwelling unit includes all properties and facilities to which the tenant has sole use and occupancy (and excludes all common areas and common facilities). Under this construction, the term dwelling unit includes a tenant’s storage locker (which is akin to an attic or a closet) because the tenant has sole use and occupancy of that area.

Irrespective of whether the purpose and the advance notice of the entry meet the requirements of R.C. 5321.05(B) and R.C. 5321.04(A)(8), a landlord may not enter the premises “in an unreasonable manner” and a landlord may not make “repeated demands for entry that are otherwise lawful but have the effect of harassing the tenant.” R.C. 5321.04(B).

Also, a landlord may “[n]ot abuse the right of access conferred by division (B) of section 5321.05 of the Revised Code.” R.C. 5321.04(A)(7).

These R.C. 5321.04(A)(7),(8), R.C. 5321.04(B), and R.C. 5321.05(B) rights and duties, on landlord access to the premises, cannot be waived or modified by a rental agreement. R.C. 5321.06, 5321.13(A). *See also T.K.D. Enters. v. Zimmermann*, No. 97-CA-44, 1998 WL 380496, at *3 (Ohio App., 4th Dist., July 2, 1998).

Notwithstanding these rights and duties, neither R.C. Chapter 5321 nor common law requires a tenant, who has installed a lock on an exterior door of the tenant’s dwelling unit, to provide the landlord with a key to the lock. *Spencer v. Blackmon*, 22 Ohio Misc.2d 52, 490 N.E.2d 943 (Ohio Mun., Hamilton Cty., 1985). However, a lease provision may require the tenant to do so and such provisions are valid and enforceable.

F. Rent

1. Definition

Common law generally defines rent as consideration for the use and occupancy of real property for a specified term. *Dayton Metro. Hous. Auth. v. McKee*, 37 Ohio App.3d 102, 104, 524 N.E.2d 180 (2nd Dist. 1987) (“The ordinary meaning of the term ‘rent’ implies an amount paid as consideration for use or occupancy of property”); *Loveless v. Erie R.R.*, 2 Ohio App. 404 (11th Dist. 1914) (“Rent may be defined to be the consideration agreed to be paid by one party for the use and occupancy of the real

estate of another”). *See also M.E. Blatt Co. v. United States*, 305 U.S. 267, 277 (1938) (“Rent is a fixed sum ... to be paid at stated times for the use of property”); *Velez v. Cuyahoga Metro. Hous. Auth.*, 795 F.3d 578, 585 (6th Cir. 2015) (“The definition of rent plainly includes the tenant’s total expense for the use of land during the term of occupancy”); *Aujero v. CDA TODCO, Inc.*, 756 F.2d 1374, 1376 (9th Cir. 1985) (“Rent normally connotes ‘consideration paid for use or occupation of property’”).

The specified term element of the definition of rent is well-established in the case law that also defines a lease. “A lease is a conveyance of an estate in real property for a limited term, with conditions attached, in consideration for rent.” *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 9 (Ohio App., 10th Dist., Mar. 21, 2013). *Accord Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733, ¶ 19 (4th Dist. 2008); *Fadelsak v. Hagley*, No. 02-CA-41, 2003 WL 21489613, ¶ 11 (Ohio App., 4th Dist., June 25, 2003); *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 23, 491 N.E.2d 701 (8th Dist. 1984). *See also State Nat’l Bank of El Paso v. United States*, 509 F.2d 832, 835 (5th Cir. 1975) (“In black letter law, a lease is a transfer of an interest in and possession of property for a prescribed period of time in exchange for an agreed consideration, called ‘rent’”).

Under common law, when the consideration due from a tenant to a landlord is not for the use and occupancy of the real property for a specified term, it is a “miscellaneous charge.” Miscellaneous charges are charges for lease violations, for security deposits, and for special services. *See Dayton Metro. Hous. Auth. v. McKee*, 37 Ohio App.3d 102, 103, 524 N.E.2d 180 (2nd Dist. 1987) (unreasonable wear and tear penalties, late charges, and security deposits are miscellaneous charges, not rent); *Aujero v. CDA TODCO, Inc.*, 756 F.2d 1374, 1376 (9th Cir. 1985) (mandatory meal plan charges (*i.e.*, special services) are miscellaneous charges, not rent).

Generally, miscellaneous charges are not part of the rent. *See Dayton Metro. Hous. Auth. v. McKee*, 37 Ohio App.3d 102, 103, 524 N.E.2d 180 (2nd Dist. 1987) (“we must determine if the retroactive payments [for past due rent] are to be considered rent or miscellaneous charges”).

A miscellaneous charge is part of the rent only if the lease so designates it. *E.g., Strip Del., L.L.C. v. Landry’s Rests., Inc.*, 191 Ohio App.3d 822, 947 N.E.2d 1233, ¶ 28 (5th Dist. 2010) (attorney’s fees part of the rent because the lease defined rent to include all charges under the lease). *See also In re Carol Janet, Inc.*, 49 B.R. 847 (Bankr. E.D. Wis. 1985) (late payment charges and certain costs part of the rent because the lease defined rent to include all charges under the lease).

2. Form of Payment

The form of a rent payment is usually a monetary payment. *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,456, 2010 WL 3610931 (Ohio App., 10th Dist., Sept. 16, 2010).

But the form of a rent payment also may be an agreement to perform or pay for specified services. *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,456, 2010 WL 3610931, ¶ 36 (Ohio App., 10th Dist., Sept. 16, 2010). “Given its contractual basis, we see no reason to limit the term rent to financial payments. Nothing in Ohio’s Landlord Tenant Act prevents parties from agreeing to allow a tenant to perform services as a rent obligation in lieu of making financial payments.” *Id.* See also *Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328, ¶ 27 (8th Dist. 2010).

Examples of court decisions that have upheld such agreements include: *Scott v. Schuster*, No. 29253, 2019 WL 5607918, ¶ 6 (Ohio App., 9th Dist., Oct. 30, 2019) (tenant required to pay the electric bills); *Ramsdell v. Ramsdell*, No. L-12-1113, 2013 WL 494019, ¶ 14 (Ohio App., 6th Dist., Feb. 8, 2013) (tenant required to pay the utilities and property tax, and to make certain repairs to the property); *Reid v. Plainsboro Partners, III*, Nos. 09AP442,456, 2010 WL 3610931, ¶ 37 (Ohio App., 10th Dist., Sept. 16, 2010) (tenant “performed ministerial duties and permitted her apartment to be used as a sample unit for prospective tenants to tour”); *Tucker v. Kanzios*, No. 08-CA-009429, 2009 WL 1655029 (Ohio App., 9th Dist., June 15, 2009) (tenant required to perform cooking, cleaning, and driving services); *Quigg v. Mullins*, No. L-89-314, 1991 WL 59886 (Ohio App., 6th Dist., Apr. 19, 1991) (tenant required to make certain improvements to the garage, make repairs to the landlord’s cars, and pay half of the landlord’s electric bill); *Elder v. Elder*, No. 06-CVG-00752 (Ohio Mun., Bowling Green, June 15, 2006) (tenant required to pay the property tax, the insurance, and the utilities). But see *Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist. 2008) (tenant’s payment of the utilities, alone, did not constitute rent).

3. Prerequisite to Landlord-Tenant Relationship

An obligation to pay rent, in one of the recognized forms (see Section VII.F.2, above), is a prerequisite to the existence of a landlord-tenant relationship. *Mercer v. Halmbacher*, 44 N.E.3d 1011, 2015-Ohio-4167 (Ohio App., 9th Dist., 2015); *Lee v. Wallace*, 186 Ohio App.3d 18, 926 N.E.2d 328 (8th Dist. 2010); *Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist. 2008); *Stone v. Cazeau*, No. 07-CA-009164, 2007 WL 4146777 (Ohio App., 9th Dist., Nov. 26, 2007); *Quigg v. Mullins*,

No. L-89-314, 1991 WL 59886 (Ohio App., 6th Dist., Apr. 19, 1991).

4. Amount of Obligation, Initial or Increase

Ohio law does not contain rent control provisions for residential tenancies. *See Mesnick v. De Ville Apts.*, No. 71517, 1997 WL 599376, at *1 (Ohio App., 8th Dist., Sept. 25, 1997) (“Ohio law does not place property owners under an obligation to limit their rental prices to any standard of reasonableness”).

Therefore, a tenant’s rental obligation generally may be whatever amount the landlord and tenant agree upon, unless the tenant resides in assisted housing.²⁷⁸

A landlord’s right to demand a rent increase to any particular amount is subject to three limitations, which are summarized below.

One limitation to the landlord’s right to demand a rent increase is the term of the tenancy, even if it is a month-to-month tenancy.

To effect a rent increase in a month-to-month tenancy (or any other periodic tenancy), the landlord must terminate the existing tenancy, and the landlord and tenant must enter into a new tenancy with the increased rental obligation. *See Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991).

If the landlord terminates the existing month-to-month tenancy and proposes the new month-to-month tenancy with the increased rental obligation, and the tenant objects to the proposed rent increase but remains in possession of the premises, the tenant then becomes a holdover tenant. *Id.* *See also Fredricks v. Stromberg*, No. 42601, 1981 Ohio App. LEXIS 10469, at *8-15 (Ohio App., 8th Dist., Apr. 2, 1981). In these circumstances, the tenant’s rental obligation is not the increased rental obligation that the landlord proposed. *Id.* Rather, it is the reasonable value of the tenant’s use and occupancy of the premises. *Id.*

Since R.C. 5321.17(B) requires a thirty-day notice to terminate a month-to-month tenancy, a month-to-month tenant is generally entitled to thirty days advance notice of any proposed rent increase. *Schwenkel v. Daley*, No. 92-CVG-2825 (Ohio Mun., Lakewood, Jan. 19, 1993). *But cf. McMahon v. Warner*, No. 1711, 1984 WL 5695 (Ohio App., 4th Dist., Dec. 17, 1984) (thirty days advance notice is not required to increase the rent of a month-to-month tenant if the tenant does not timely object to the

²⁷⁸ For the rent formulas for assisted housing tenancies, see the HUD regulations that are listed in Section XXIV.B.4, below. For a discussion on these rent formulas, see National Housing Law Project, HUD Housing Programs: Tenants’ Rights ch. 4 (5th ed. 2018).

rent increase).

A second limitation to the landlord's right to demand a rent increase is the R.C. 5321.02 prohibition against retaliation. R.C. 5321.02 prohibits a landlord from demanding a rent increase because the tenant: (1) complained to an appropriate governmental agency regarding code violations that materially affect health and safety; (2) complained to the landlord regarding violations of R.C. 5321.04; or (3) joined a tenant organization. *E.g.*, *Bland v. Kovein*, No. 16179, 1993 WL 473837 (Ohio App., 9th Dist., Nov. 10, 1993) (rent increase in retaliation for tenant's complaint to health department). For further discussion on the R.C. 5321.02 prohibition against retaliation, see Section II.T, above, and Chapter XI, below.

A third limitation to the landlord's right to demand a rent increase is the R.C. 5321.14 prohibition against unconscionable lease provisions. When an alleged unconscionable provision is an increased rent, the relevant issue is whether the amount of the new rent (and not the amount of the rent increase) is unconscionable. *Pojman v. Columbia-Brookpark Mgmt., LLC*, No. 88666, 2007 WL 2269682 (Ohio App., 8th Dist., Aug. 9, 2007). Given the *Pojman* holding, an earlier trial court decision, which was vacated on jurisdictional grounds, also erred in holding that the analogous R.C. 3733.16 (now R.C. 4781.48) prohibition against unconscionable lease provisions is inapplicable to rent charges. *Columbia-Brook Park Mgmt., LLC v. Schindler*, No. 01-CVJ-02061 (Ohio Mun., Berea, Mar. 1, 2002), *vacated and dismissed*, No. 81092, 2003 WL 1090620 (Ohio App., 8th Dist., Mar. 13, 2003).

5. Place for Payment

The place at which a tenant is required to pay the rent is generally established in the rental agreement. For example, the rental agreement may require the tenant to deposit the rent payments into the landlord's bank account (see Section VII.F.6.c, below) or to mail the rent payments to a specified address (see Section VII.F.6.d, below).

"In the absence of an agreement to the contrary, the general rule in Ohio is that payment of rent is to be made at the leased premises and that it is the landlord's duty to go to the premises to collect rent from the tenant." *Davis v. Scullark*, No. 57456, 1990 WL 145642, at *2 (Ohio App., 8th Dist., Oct. 4, 1990). *See also Slothower v. Lally*, 74 N.E.2d 654 (Ohio Mun., Dayton, 1947). For a discussion on rent collection at the premises, see Section II.L, above.

6. Acceptance of Payment

a. Payment by Check or Money Order

When a tenant tenders a check (or money order) to a landlord for a rent payment, “the act of cashing [the] check constitutes acceptance” of the rent payment. *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 9, 492 N.E.2d 841 (8th Dist. 1985). *Accord Miami Valley United Methodist Mission Soc’y v. White-Dawson*, No. 17873, 2000 WL 234712, at *3 (Ohio App., 2nd Dist., Mar. 3, 2000). *See generally First Nat’l Bank & Trust Co. v. Fireproof Warehouse & Storage*, 8 Ohio App.3d 253, 456 N.E.2d 1336 (10th Dist. 1983).

A landlord may not negate such acceptance of the check (or money order) by tendering back to the tenant a subsequent check in the amount of the rent payment. *Bartell*, 24 Ohio App.3d at 9.

An exception to this rule applies when a landlord inadvertently cashes one check, out of many checks that are offered and promptly returned to the tenant, and the money for the cashed check is returned as soon as the landlord discovers the mistake. *Associated Estates Corp. v. Smith*, No. 46054, 1984 WL 5227 (Ohio App., 8th Dist., Oct. 4, 1984). The inadvertent element was not met in a case where the landlord accepted rent payments for April and May and then returned the payments at the end of May. *Woodson v. Howard*, No. 2008-CVG-9709 (Ohio Mun., Cleveland, Hous. Div., June 30, 2008).

If the landlord does not cash the check or otherwise convert the check to the landlord’s use, but nevertheless retains the check, there may be acceptance of the rent payment. The landlord’s retention of the check constitutes acceptance of the rent payment, unless the landlord: (1) notifies the tenant, upon receipt of the check, that it is not being accepted or that it is being held only for evidentiary purposes; and (2) returns the check to the tenant on or before the day of trial. *Pace v. Buck*, 86 Ohio App. 25, 85 N.E.2d 401 (10th Dist. 1949). *Accord Eureka Multifamily Group v. Terrell*, No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015); *Urban P’ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346 (Ohio App., 8th Dist., Aug. 28, 2014); *N. Face Props., Inc. v. Lin*, No. CA2010-09-083, 2013 WL 2423802 (Ohio App., 12th Dist., June 3, 2013); *Wingate at Belle Meadows v. Higgenbotham*, 179 Ohio App.3d 645, 903 N.E.2d 349 (2nd Dist. 2008); *King v. Dolton*, No. 02-CA-0041, 2003 WL 21078088 (Ohio App., 9th Dist., May 14, 2003); *Simco Mgmt. Corp. v. Snyder*, No. 98-CA-210, 2000 WL 309396 (Ohio App., 7th Dist.,

Mar. 20, 2000); *Cipolla v. McCloskey*, No. 97-CA-006866, 1998 WL 852810 (Ohio App., 9th Dist., Dec. 9, 1998); *Dundon v. Balluck*, No. 93-CA-123, 1994 WL 55755 (Ohio App., 7th Dist., Feb. 23, 1994); *Stacy v. Carr*, No. CA-519, 1992 WL 37783 (Ohio App., 4th Dist., Feb. 20, 1992); *Rapid Response W. Real Estate P'ship v. Rapid Response W., Inc.*, No. 13212, 1988 WL 21287 (Ohio App., 9th Dist., Feb. 17, 1988); *Andrews Sch. v. Brown*, No. 11-040, 1986 WL 3204 (Ohio App., 11th Dist., Mar. 14, 1986).²⁷⁹

Under the *Pace* standard, if a landlord fails to provide the tenant with timely notification of the landlord's nonacceptance of the check, the landlord has accepted the tenant's rent payment, even if the landlord tenders the check to the tenant (or to the court) on the day of trial. *E.g., Royer, Kohr & Griffith v. Hobbs*, No. M88-CVG-24901 (Ohio Mun., Franklin Cty., Aug. 24, 1988); *Sunbury Gardens v. Pizza*, No. M85-CVG-36063 (Ohio Mun., Franklin Cty., Feb. 6, 1986). *See also King v. Dolton*, No. 02-CA-0041, 2003 WL 21078088 (Ohio App., 9th Dist., May 14, 2003); *Dundon v. Balluck*, No. 93-CA-123, 1994 WL 55755 (Ohio App., 7th Dist., Feb. 23, 1994).

Four examples of court decisions finding timely landlord notice of nonacceptance under the *Pace* standard are summarized below.

- (1) *Juergens v. Strileckyj*, No. 2010-CA-36, 2010 WL 4158508 (Ohio App., 2nd Dist., Oct. 22, 2010) (tenant tendered rent checks monthly March to June 2009; in June 2009, landlord notified tenant that she did not deposit or accept the checks, because of their incorrect amount, and an eviction notice would be sent if tenant did not tender the correct amount; thereafter, on June 30, 2009, landlord served a notice to vacate; and on July 17, 2009, landlord filed an FED complaint).
- (2) *Wingate at Belle Meadows v. Higgenbotham*, 179 Ohio App.3d 645, 903 N.E.2d 349 (2nd Dist. 2008) (landlord returned the money order one day after landlord had received it).
- (3) *Simco Mgmt. Corp. v. Snyder*, No. 98-CA-210, 2000 WL 309396 (Ohio App., 7th Dist., Mar. 20, 2000) (landlord provided the notice of

²⁷⁹ *See also Rogers v. Jones*, No. 2014-CVG-028113 (Ohio Mun., Franklin Cty., Oct. 30, 2014); *Woodson v. Howard*, No. 2008-CVG-9709 (Ohio Mun., Cleveland, Hous. Div., June 30, 2008); *Geyer v. Wilcots*, No. CVG-0200482 (Ohio County Ct., Butler Cty., Area II, Nov. 22, 2002); *Cleveland Hous. Network Ltd. P'ship X v. Salgado*, No. 96-CVG-10871 (Ohio Mun., Cleveland, Hous. Div., July 16, 1996); *Royer, Kohr & Griffith v. Hobbs*, No. M88-CVG-24901 (Ohio Mun., Franklin Cty., Aug. 24, 1988); *Marchioni v. Wilson*, 20 Ohio Misc.2d 10, 485 N.E.2d 1073 (Ohio Mun., Hamilton Cty., 1984).

nonacceptance of two rent checks almost three weeks before trial, when landlord returned the checks after retaining them for approximately two weeks and four weeks, respectively).

- (4) *Stacy v. Carr*, No. CA-519, 1992 WL 37783 (Ohio App., 4th Dist., Feb. 20, 1992) (tenant tendered the rent check six days before trial, and landlord provided the notice of nonacceptance at the commencement of trial).

b. Payment by Third Party

When a tenant tenders a Salvation Army rent voucher to a landlord for a payment of rent, the landlord's acceptance of the voucher constitutes an acceptance of rent. *W. Alex Vill. v. Goodwin*, No. 88-CVG-179 (Ohio Mun., Eaton, Oct. 19, 1988).

When a landlord accepts a partial rent payment from the Red Cross on behalf of a tenant, the landlord is bound by the non-eviction provision in the Red Cross application that the landlord signs. *Brumbaugh v. Epperley*, No. 95-CVGT-728 (Ohio Mun., Miami Cty., May 19, 1995) (the application stated that the \$100 payment from Red Cross would result in the tenant not being evicted at that time). If a landlord commences an eviction action in violation of the non-eviction provision, the tenant may enforce the provision as a defense to the eviction action. *Id.*

When a landlord indicates a willingness to accept a rent payment from a county department of human services ("CDHS") on behalf of a tenant and, as a result, the tenant does not seek the rent money from other sources, the landlord is estopped from refusing the rent payment from CDHS. *Kamvouris v. Banks*, No. 00-CVG-1586 (Ohio Mun., Cuyahoga Falls, July 24, 2000).

c. Payment by Bank Deposit

"It has long been settled in this state that when a rental agreement provides that the tenant is to pay rent by depositing the payments into the landlord's bank account, the tenant's depositing of the rent into the landlord's bank account constitutes acceptance of the rent by the landlord unless the landlord has given the bank contrary instructions." *Ebbing v. Mathis*, No. CA2013-01-014, 4806940, ¶ 22 (Ohio App., 12th Dist., Sept. 9, 2013). *Accord Kachelmacher v. Laird*, 92 Ohio St. 324, 110 N.E. 933 (1915); *Urban P'ship Bank v. Mosezit Acad., Inc.*, No. 100712, 2014 WL 4244346 (Ohio App., 8th Dist., Aug. 28, 2014); *N. Face Props., Inc. v. Lin*, No. CA2010-09-083, 2013 WL 2423802 (Ohio App., 12th Dist., June 3, 2013); *Associated Estates Corp. v. Bartell*, 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985); *Rogers v. Jones*, No. 2014-CVG-

028113 (Ohio Mun., Franklin Cty., Oct. 30, 2014); *Woodson v. Howard*, No. 2008-CVG-9709 (Ohio Mun., Cleveland, Hous. Div., June 30, 2008) (electronic deposit); *McConnelsville Assocs. v. Gladden*, No. 92-CVG-56 (Ohio County Ct., Morgan Cty., Sept. 28, 1992).

d. Payment by Mail

When a rental agreement provides that the tenant is to pay rent by mailing the payments to the landlord, the tenant's timely mailing of a rent payment to the landlord, in an envelope properly addressed and stamped, constitutes acceptance of the rent by the landlord. *Townhomes Mgmt. v. Carter*, No. 84AP-851, 1985 WL 9874 (Ohio App., 10th Dist., Feb. 19, 1985); *Vistula Mgmt. Co. v. Riley*, No. CVG-93-19379 (Ohio Mun., Toledo, Hous. Div., Jan. 20, 1994), *aff'd*, No. L-94-069, 1994 WL 590503 (Ohio App., 6th Dist., Oct. 28, 1994); *Edwards v. Smith*, No. M'8711-CVG-37183 (Ohio Mun., Franklin Cty., Dec. 8, 1987); *Norskog v. Atha*, 61 Ohio Law Abs. 604, 102 N.E.2d 907 (Ohio Mun., Dayton, 1951).

In such circumstances, the tenant's responsibility does not include proper delivery of the mail by the Postal Service. *Id.*

When a lease permits rent payment by mail, the tenant's rent payment is timely if the envelope containing the rent payment is postmarked by the due date, unless the lease expressly requires landlord receipt by the due date. *Crossings, LLC v. Coinmach Corp.*, No. 2008-CVG-01528 (Ohio Mun., Elyria, June 12, 2008).

7. Month to Which Payment Applies

When past and current rent are due, and the landlord accepts a rent payment that is less than the total amount due,²⁸⁰ an issue may arise as to which month(s) the rent payment applies.

The rental agreement may specify a method for making this determination. For example, it may specify that the rent payment shall be applied chronologically, beginning with earliest month of unpaid rent.

Absent a rental agreement provision on this issue, the determination is made as follows.

The tenant may determine the month(s) to which the rent shall be applied, provided

²⁸⁰ Generally, a landlord is not required to accept a partial payment of rent. See Section II.J, above.

the tenant so informs the landlord at the time of the rent payment and the landlord accepts the rent payment. *Shields v. Barner-Mead Lumber Co.*, 7 Ohio Law Abs. 638, 638 (Ohio App., 8th Dist., 1929) (“the law is universal that a debtor may direct the money to be paid upon a particular debt that he owes and, in the absence of such direction, the creditor may apply the payment to any item he desires”). *See also Cent. W. Cas. Co. v. W.E. Wright Co.*, 21 Ohio Law Abs. 355, 356 (Ohio App., 9th Dist., 1936) (“It is conceded that as between a debtor and his creditor, the debtor has a right, when payments are made, to direct their application and that if he fails to do so, the creditor may apply the payments as he sees fit”). *See generally Sotir v. United States*, 978 F.2d 29, 30 (1st Cir. 1992). *But see Marks v. Young*, No. 2456-M, 1996 WL 63033 (Ohio App., 9th Dist., Feb. 14, 1996) (dicta).

The tenant’s determination, on the month(s) to which the rent payment(s) shall apply, may be evidenced by circumstances as well as words. *See L & T East 22 Realty Co. v. Earle*, 192 Misc.2d 75, 745 N.Y.S.2d 369 (App. Term 2002). In *Earle*, the court held that it was clear to the landlord that the tenant intended to apply the payment to the current month, since the parties were awaiting a one-time payment by the Department of Social Services for the full arrearage.

If the tenant does not make a determination timely, the landlord may determine the months to which the rent payments shall be applied. *Shields*, 7 Ohio Law Abs. at 638; *Cent. W. Cas. Co.*, 21 Ohio Law Abs. at 356. *See also Westgate Vill. Mobile Home Park v. Fetro*, No. CVG-950312, 1995 WL 907587 (Ohio Mun., Fostoria, Sept. 27, 1995).

If neither the tenant nor the landlord makes this determination timely, the court may determine the month(s) to which the rent payment shall be applied, based on the equities of the case. *Cent. W. Cas. Co.*, 21 Ohio Law Abs. at 356. *See generally In re Wines*, 997 F.2d 852, 855 (11th Cir. 1993) (“if a creditor fails to designate within a reasonable time how payment is to be applied, the court may allocate the payment in an equitable manner”).

8. Due Date of Payment

The date by which a tenant is required to pay the rent (“rent due date”) is generally established by a written rental agreement or by a periodic tenancy.

When a written rental agreement specifies the rent due date, at least four circumstances may modify it.

First, when a written lease contains a grace period for the payment of rent, the

grace period becomes the rent due date. *Showe Mgmt. Corp. v. Moore*, No. 08-CA-10, 2009 WL 1372986 (Ohio App., 5th Dist., May 14, 2009) (ten-day grace period); *Columbus Metro. Hous. Authority v. Jackson*, No. 81AP-802, 1982 WL 4010 (Ohio App., 10th Dist., Mar. 4, 1982) (ten-day grace period).

Second, when the rent due date is a Sunday, R.C. 1.14 extends the time for payment to the following Monday. *E.g.*, *Myszka v. Bledsoe*, No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000).

Third, when an eviction action is dismissed or an eviction judgment is entered in favor of the tenant, with respect to the rent that accrued during the eviction action, the rent due date is a reasonable time after the conclusion of the eviction action. See Section II.M, above.

Fourth, a landlord's course of conduct of accepting late rent payments from the tenant may change the rent due date to the latest date on which the landlord customarily accepts the rent payments. See Section II.H, above.

When a written rental agreement requires monthly rental payments, but fails to specify a rent due date, the rent due date is the last day of the month. *Costanzo v. Gross*, No. 2008-CVG-4234 (Ohio Mun., Cuyahoga Falls, Nov. 21, 2008); *Crossings, LLC v. Coinmach Corp.*, No. 2008-CVG-01528 (Ohio Mun., Elyria, June 12, 2008).

9. Late Payment Fee

a. Written Authorization Prerequisite

A landlord may not assess a tenant a fee for late payment of rent without a written agreement between the parties that expressly permits the assessment of the fee. *Neubauer v. Patzkowsky*, No. 91AP-1236, 1992 WL 125269 (Ohio App., 10th Dist., June 2, 1992); *Moran v. Foster*, No. 97-CVG-300 (Ohio Mun., Lakewood, Dec. 30, 1997).

b. Liquidated Damages or Penalty

Late payment fees are subject to the contract law on liquidated damages and penalties. The rule for distinguishing between contract terms that are enforceable liquidated damages and contract terms that are unenforceable penalties is:

Where the parties have agreed on the amount of damages, ascertained by estimation and adjustment, and have expressed this agreement in clear and unambiguous terms, the amount so fixed should be treated as liquidated damages and not as a penalty, if the damages would be

(1) uncertain as to amount and difficult of proof, and if (2) the contract as a whole is not so manifestly unconscionable, unreasonable, and disproportionate in amount as to justify the conclusion that it does not express the true intentions of the parties, and if (3) the contract is consistent with the conclusion that it was the intention of the parties that damages in the amount stated should follow the breach thereof.

Samson Sales, Inc. v. Honeywell, Inc., 12 Ohio St.3d 27, 465 N.E.2d 392, syllabus (1984). *Accord Lake Ridge Acad. v. Carney*, 66 Ohio St.3d 376, 613 N.E.2d 183 (1993); *Mark-It Place Foods, Inc. v. New Plan Excel Realty Trust, Inc.*, 156 Ohio App.3d 65, 804 N.E.2d 979 (4th Dist. 2004).

The principal elements of the *Honeywell* test, for determining whether a late payment fee is a penalty, are (1) whether the damages are uncertain as to amount and difficult of proof and (2) whether the amount of the fee is reasonably related to the landlord's actual damages.

The Eighth Appellate District applied these factors in two late payment fee cases: *Siara Mgmt. v. Nedley*, No. 61433, 1992 WL 292248 (Ohio App., 8th Dist., Oct. 15, 1992), and *200 W. Apts. v. Foreman*, No. 66107, 1994 WL 505271 (Ohio App., 8th Dist., Sept. 15, 1994).

In *Nedley*, the court held that "the damages flowing from a breach of a lease are not uncertain as to amount and difficult of proof." 1992 WL 292248, at *1. Based on this holding and the *Honeywell* test, the court held that the late payment fee was a penalty and thus unenforceable. *See also Beatley v. Schwartz*, No. 03AP-911, 2004 WL 1244360, ¶ 26 (Ohio App., 10th Dist., June 8, 2004) ("Clearly damages resulting from the breach of a residential lease are not difficult to prove or uncertain as to amount. Thus, plaintiff's argument that he is entitled to the security deposit because of the 'liquidated damage fee' provision in the lease is without merit").

In *Foreman*, the court held that the late payment fee was not reasonably related to the landlord's actual damages because the landlord failed to adduce any evidence that it had sustained actual damages. The court held that the tenant's failure to pay rent for two months did not constitute actual damages because the landlord was awarded a money judgment for the unpaid rent.²⁸¹ Based on these holdings, the court held that the late payment fee was a penalty and thus unenforceable. *See also ATKM Mgmt.*

²⁸¹ For further discussion on late payment fees, when a judgment has been entered for nonpayment of rent, see Section XVII.C.7, below.

Group LLC v. Talley, No. 2018-CVG-018737, ¶ 33 ((Ohio Mun., Cleveland, Hous. Div., Dec. 30 2019) (“Plaintiff is not entitled to recovery [of] any late fees as plaintiff presented no evidence as to how plaintiff suffered any damages because of defendant’s late payments”).

The *Nedley* and *Foreman* rulings may support the conclusion that, with respect to any late payment fee under a residential lease, the fee is a penalty and thus unenforceable. See *Calabria v. Greene*, No. 95-T-5181, 1995 WL 787360, at *1-2 (Ohio App., 11th Dist., Sept. 8, 1995). E.g., *Hall v. Leonard*, No. 94-CG-667 (Ohio Mun., Marietta, Mar. 7, 1995).

In *Calabria*, 1995 WL 787360, at *2, the Eleventh Appellate District expressly refused to follow the *Nedley* and *Foreman* rulings and, instead, “concluded that an agreed upon, one-time late fee, that is reasonable in proportion to the rental rate, and that has a rational basis supporting the imposition of the charge, is proper.”

In *Drake Townhouses, LLC v. Woodberry*, No. C-160632, 2017 WL 3168981, ¶ 25 (Ohio App., 1st Dist., July 26, 2017), the First Appellate District held: “This court has not squarely addressed the issue, but we can discern nothing in Ohio’s Landlord-Tenant Act that forbids the use of a valid liquidated-damages clause with respect to late fees in residential leases.”

Court decisions finding a late payment fee to be unreasonable and thus a penalty and unenforceable include:²⁸²

- (1) *Wadsworth v. Starcher*, No. 97-A-0054, 1998 WL 553160 (Ohio App., 11th Dist., June 26, 1998) (monthly rent of \$450; late payment fee of \$5 per day (\$305 for June 1997 and \$155 for July 1997)).
- (2) *Calabria v. Greene*, No. 95-T-5181, 1995 WL 787360 (Ohio App., 11th Dist., Sept. 8, 1995) (monthly rent of \$265; late payment fee of \$10 per day (\$300 for October 1994, and \$80 for November 1994).
- (3) *Neubauer v. Patzkowsky*, No. 91AP-1236, 1992 WL 125269 (Ohio App., 10th Dist., June 2, 1992) (monthly rent of \$400; late payment fee

²⁸² Like any other landlord, public housing authorities (“PHAs”) are subject to this state law. See *Hous. & Redevelopment Auth. of Duluth v. Lee*, 852 N.W.2d 683 (Minn. 2014) (court rejected the PHA’s preemption argument, relative to the state’s 8% cap on late fees). Similarly, the Supreme Court of Vermont affirmed a trial court’s ruling that the late payment fee of \$5 on the sixth day of the month and \$1 per day thereafter – contained in the model lease for project-based subsidized housing – was a penalty and thus unenforceable under state law. *Highgate Assocs., Ltd. v. Merryfield*, 597 A.2d 1280 (Vt. 1991).

of \$1 per day, starting on the fifth day of the month and continuing until the rent is paid).

- (4) *Obrin v. Hicks*, No. 96-CVG-22876 (Ohio Mun., Cleveland, Hous. Div., Aug. 13, 1997) (monthly rent of \$550; late payment fee of \$45 per month; court reduced the fee to \$25 per month because “[t]his Court has limited late fees to \$25 per month finding fees in excess of that amount unrelated to landlord’s actual damages”).
- (5) *ABC Mgmt. Co. v. Young*, No. M9410-CVG-030140 (Ohio Mun., Franklin Cty., Nov. 9, 1994) (monthly rent of \$11 (assisted housing);²⁸³ late payment fee of \$30 for one month).
- (6) *Respiratory & Clinical Supply Corp. v. Freshour*, No. 88-CV-F-128 (Ohio Mun., Hillsboro, Dec. 23, 1988) (monthly rent of \$220; late payment fee of \$3 per day up to ten days and \$5 per day thereafter).
- (7) *Schwenkel v. Daley*, No. 92-CVG-2825 (Ohio Mun., Lakewood, Jan. 19, 1993) (monthly rent of \$300; late payment fee of \$5 per day).

Court decisions finding a late payment fee to be reasonable and thus enforceable include:

- (1) *Milburn v. Henness*, No. 03-CVH-208 (Ohio Mun., Chillicothe, Jan. 29, 2004) (monthly rent of \$615; late payment fee of \$50 per month).
- (2) *Xenia Co. v. Cline*, No. M9005-CVG-015839 (Ohio Mun., Franklin Cty., June 25, 1990) (late payment fee of \$12 on the third day of the month and \$2 per day thereafter).

c. Unconscionability, R.C. 5321.14

Late payment fees are subject to R.C. 5321.14, which prohibits and makes unenforceable any late payment fee that is unconscionable. This prohibition against unconscionable fees does not supplant the penalty/liquidated damages restriction, but rather supplements it. *Wadsworth v. Starcher*, No. 97-A-0054, 1998 WL 553160 (Ohio App., 11th Dist., June 26, 1998).

Court decisions finding a late payment fee to be unconscionable and thus unenforceable under R.C. 5321.14 include:

- (1) *Drake Townhouses, LLC v. Woodberry*, No. C-160632, 2017 WL 3168981 (Ohio App., 1st Dist., July 26, 2017) (monthly rent of \$710;

²⁸³ For the definition of “assisted housing,” see note 163, above.

late payment fee of \$10 per day, with a maximum of \$150 per month, is unconscionable; late fee of \$10 per day, with a maximum of \$50, would not be unconscionable).

- (2) *Campus Vill. Toledo Univ. Park, LLC v. Mowrer*, 68 N.E.3d 219, 2016-Ohio-4754 (Ohio App., 6th Dist., 2016) (late payment fee of \$5 per day is unconscionable; one-time late payment fee of \$40 would not be unconscionable).
- (3) *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685 (Ohio App., 6th Dist., Aug. 20, 2010) (monthly rent of \$400; late payment fee of \$55 if one day late).
- (4) *Miller v. Hamm*, No. 15-CV-0580 (Ohio C.P., Marion Cty., June 22, 2016) (monthly lot rent of \$250; late payment fee of \$5 per day).
- (5) *N. River Place Apts. v. Hucks*, No. CVG-01-00240 (Ohio Mun., Chillicothe, Nov. 20, 2001) (monthly rent of \$500; late payment fee of \$35 on the sixth day of the month and \$5 per day thereafter; the \$5 per day provision is unconscionable and unenforceable).
- (6) *Gentil v. Williams*, No. 96-CVG-1095 (Ohio Mun., Chillicothe, Nov. 12, 1996) (monthly rent of \$450; late payment fee of \$15 per day (\$405 for August 1996 and \$105 for September 1996)).
- (7) *Respiratory & Clinical Supply Corp. v. Freshour*, No. 88-CV-F-128 (Ohio Mun., Hillsboro, Dec. 23, 1988) (monthly rent of \$220; late payment fee of \$3 per day up to ten days and \$5 per day thereafter).
- (8) *Schwenkel v. Daley*, No. 92-CVG-2825 (Ohio Mun., Lakewood, Jan. 19, 1993) (monthly rent of \$300; late payment fee of \$5 per day (\$280 for September 1992 and \$130 for October 1992)).

One court found that any award of late payment fees for a specified month was unconscionable, given the circumstances in the case. The circumstances were: (1) the landlord's prior indication that it would not accept rent for that month (due to its service of the notice to vacate); and (2) the tenant's move-out prior to that month, on the mistaken understanding that, by so moving, she would not owe any rent for that month. *Drake Townhouses, LLC v. Woodberry*, No. C-160632, 2017 WL 3168981 (Ohio App., 1st Dist., July 26, 2017).

One court found a late payment fee to be enforceable because the fee was not procedurally unconscionable as a matter of law. *Good Knight Props., LLC v. Adam*, No. L-13-1231, 2014 WL 4656870 (Ohio App., 6th Dist., Sept. 19, 2014).

d. Actual Damages, Absent Late Payment Fee

In the absence of a valid late payment fee, a landlord is still entitled to recover “the monetary equivalent of the actual damages” that the landlord incurred as a result of the tenant’s breach of the lease. *Berlinger v. Suburban Apt. Mgmt. Co.*, 7 Ohio App.3d 122, 125, 454 N.E.2d 1367 (8th Dist. 1982).

Therefore, in such cases, a court may find that the landlord’s loss of interest on the unpaid rent constitutes the monetary equivalent of the landlord’s actual damages, and award a judgment for that amount. *E.g., Schwenkel v. Daley*, No. 92-CVG-2825 (Ohio Mun., Lakewood, Jan. 19, 1993) (held that the late payment fee provision in the lease was a penalty; awarded the landlord the actual damages that the tenant caused in failing to pay rent timely; held that the actual damages were lost interest, and then computed the interest at the R.C. 1343.03(A) rate of 10% per annum).

Similarly, in *Allman v. Thorne*, No. 2006-CVI-000629 (Ohio Mun., Franklin Cty., Aug. 10, 2006), the court found that “[l]ate fees are designed to compensate landlords for loss of use of the rent that they were due for whatever period they were deprived of it.” It then concluded that “the recovery of the full amount [of rent] due, plus interest from the date it was due, will adequately accomplish those ends. The court does not, therefore, separately award a judgment for late fees.”

e. Discount Rent or Late Payment Fee

A late payment fee issue arises when a lease purports to establish both a rental amount and a so-called discount amount for payment by a particular date. The issue is whether the discount amount is actually the base rent and, therefore, the difference between the discount amount and the rental amount is a late fee. For a discussion on this issue, see *Friedman v. Krupp Corp.*, 282 Ill. App.3d 436, 668 N.E.2d 142 (1996).

f. Nonpayment of a Late Payment Fee

In non-assisted housing,²⁸⁴ a landlord may evict a tenant for nonpayment of a late payment fee. *Mercer Island Partners II v. Simakis*, No. 81AP-91, 1981 WL 3316 (Ohio App., 10th Dist., June 30, 1981).

In project-based subsidized housing,²⁸⁵ a landlord may not evict a tenant for

²⁸⁴ For the definition of “assisted housing,” see note 163, above.

²⁸⁵ For the definition of “project-based subsidized housing,” see note 165, above.

nonpayment of a late payment fee. HUD Handbook 4350.3 REV-1,²⁸⁶ ¶ 6-23(F).

10. Sale of Rental Premises, Rent Payments

After a sale (including a foreclosure sale) of occupied rental premises, the tenant is obligated to pay the future rent to the new owner. See *Commercial Bank & Sav. Co. v. Woodville Sav. Bank Co.*, 126 Ohio St. 587, 186 N.E. 444 (1933); *Heifner v. Heifner*, No. 1-88-32, 1989 WL 145162 (Ohio App., 3rd Dist., Nov. 28, 1989). Cf. *Ucker v. HER Realtors*, No. 89AP-520, 1989 WL 110993 (Ohio App., 10th Dist., Sept. 26, 1989).

The tenant is obligated to pay to the former landlord (and not to the new owner) any rent that has accrued and remained unpaid as of the time of the sale. See *Commercial Bank & Sav. Co. v. Woodville Sav. Bank Co.*, 126 Ohio St. 587, 186 N.E. 444 (1933); *Mintz v. Tannous*, 74 Ohio App.3d 636, 600 N.E.2d 269 (8th Dist. 1991); *Williams v. Martin*, 83 Ohio App. 130, 82 N.E.2d 547 (1st Dist. 1948); *Varnau v. Scanlon*, 17 Ohio Law Abs. 246 (Ohio App., 1st Dist., 1934). Accord *Ginsberg v. Austin*, 968 F.2d 1198 (Fed. Cir. 1992).

Therefore, the new owner is obligated to timely inform the tenant: (1) of the new owner's purchase of the property, and (2) as to whom and where rent payments are to be made. In cases where the new owner failed to do so and then filed an eviction action for nonpayment of rent, courts have entered the eviction judgment in favor of the tenant on equity grounds. E.g., *Zanetos v. Sparks*, 13 Ohio App.3d 242, 244, 468 N.E.2d 938 (10th Dist. 1984) (among the equity factors was "plaintiff's failure to timely notify Bolin [tenant] of the sale and advise him to whom payment should be made"); *Clark v. Mills*, No. 20-CVG-01530 (Ohio Mun., Akron, June 10, 2020) (cites *Zanetos*; after the sale of the property, tenant "was uncertain who he should pay rent to and he wanted to meet the new owner before he made payment").

Until the new owner provides the tenant with rent payment instructions, a reasonable approach for the tenant is to hold the rent money for later payment. This would be consistent with Ohio law: "In the absence of an agreement to the contrary, the general rule in Ohio is that payment of rent is to be made at the leased premises and that it is the landlord's duty to go to the premise to collect rent from the tenant." *Davis v. Scullark*, No. 57456, 1990 WL 145642, at *2 (Ohio App., 8th Dist., Oct. 4, 1990).

²⁸⁶ For the full citation for this handbook, see note 143, above.

If the new owner fails to provide a tenant with timely notice of the sale, it may be a direct cause of the tenant making a monthly rental payment to the former landlord, instead of the new owner. When this occurs, either: (1) the payment satisfies the tenant's rental obligation for that month, or (2) the inaction of the new owner (*i.e.*, failure to notify the tenant) prevented the tenant from complying with the tenant's rental obligation, and thus excuses the noncompliance. "Non-performance of a promise or condition in a lease is excused where performance is prevented by the other party to the lease." *Prof'l Invs. of Am., Inc. v. Ross*, No. 44540, 1982 WL 2579, at *2 (Ohio App., 8th Dist., Dec. 9, 1982). For additional discussion and case law on this issue, see Section II.Z, above.

Any claim of the new owner for prepaid rent is against the former landlord, not the tenant. See *Loveless v. Erie R.R.*, 2 Ohio App. 404 (11th Dist. 1914).

For a discussion on the respective liability of the former landlord and the new owner, when a landlord sells rental property and, as of the time of the sale, the landlord has failed to remedy a defective condition at the rental premises in violation of R.C. 5321.04(A), see Section IX.B.6, below.

11. Pending Eviction Action, Rent Payments

During an eviction action, a court may order the tenant to deposit rent with the court for a variety of reasons, including: a continuance (see Section I.K, above), a delay resulting from a jury demand (see Section I.J.3.c, above), an R.C. 1923.061(B) defense (see Section II.O.2, above), a stay pending a ruling on objections (see Section I.N.4, above), a stay pending a ruling on a Civil Rule 60(B) motion (see Section I.P.2, above), or a stay pending an appeal (see Section I.Q.3, above).

While statutory or Civil Rule authority exists for a rent deposit order in many of these circumstances, the court also has inherent power to order a rent deposit during an eviction action. See Section I.J.3.c, above. Courts often use this inherent power to order the tenant to deposit with the court current rent and future rent, as it becomes due, when the length of the eviction proceeding will exceed one month. See *PK Mgmt. LLC v. Hayes*, No. 2011-CVG-008188 (Ohio Mun., Cleveland, Hous. Div., July 7, 2011).

Landlords often refuse to accept a tenant's tender of rent immediately preceding the commencement of (and pending) an eviction action in order to avoid a waiver of the R.C. 1923.04 notice to vacate. See Section II.C, above.

When a landlord refuses a tenant's tender of rent on the ground that an eviction

action is pending, the tenant is excused from tendering rent for the next month, provided the eviction action is still pending and the court has not issued an order for the payment or deposit of rent. *Cont'l Inv. P'ship v. Hukill*, No. 06-CV-131 (Ohio Mun., Delaware, Mar. 8, 2006). In these circumstances, the landlord may not evict the tenant for failing to tender the rent for the next month. *Id.*

G. Guests

1. Tenant's Right to Invite Guests

Tenants have a right to invite guests to their rental unit, based on two principles of Ohio common law and, in some cases, an express provision in a lease.²⁸⁷

One common law basis for this right is the tenant's common law possessory rights under the lease (or tenancy). *Cooper v. Roose*, 151 Ohio St. 316, 323, 85 N.E.2d 545 (1949). A lease (or tenancy) gives the tenant a right to possession and control of the premises. *Id.* This possessory right includes "the right to admit people to the premises and exclude them from the premises." *Id.*

A second common law basis for this right is the common law implied covenant of quiet enjoyment. See Section VII.C.9, above. "In Ohio, a covenant of quiet enjoyment is implied in every lease contract for realty." *Hamilton Brownfields Redevelopment, LLC v. Duro Tire & Wheel*, 156 Ohio App.3d 525, 806 N.E.2d 1039, ¶ 23 (12th Dist. 2004). "The covenant is breached when the landlord obstructs, interferes with, or takes away from the tenant in a substantial degree the beneficial use of the leasehold." *Id.* The right of a tenant to invite guests is a beneficial use of the leasehold that this covenant protects. See *State v. DeCoster*, 653 A.2d 891, 894 (Me. 1995); *Branish v. NHP Prop. Mgmt.*, 694 A.2d 1106, 1107 (Pa. Super. 1997); *L.D.L. v. State of Florida*, 569 So.2d 1310, 1312-13 (Fla. App. 1990).

The common law right to invite guests includes the right to use the common areas for travel to and from the rental unit. *State v. Hites*, No. 1-2000-22, 2000 WL 1114809 (Ohio App., 3rd Dist., Aug. 8, 2000); *City of Kent v. Hermann*, No. 95-P-0042, 1996 WL 210780 (Ohio App., 11th Dist., Mar. 8, 1996). The portions and facilities of the common area not required for this travel purpose may be excluded from the right to invite guests. *Id.*

²⁸⁷ For example, public housing leases expressly grant the tenant the right to provide reasonable accommodations to their guests. 24 C.F.R. § 966.4(d)(1).

2. Registration/Approval of Overnight Guests

Some landlords require registration and/or landlord approval for any overnight guests.

Court decisions have held such policies to be unconscionable and thus unenforceable under R.C. 5321.14. *Hi-Land Terrace, Inc. v. Dinwiddie*, No. 546, 1985 WL 6560 (Ohio App., 4th Dist., Mar. 1, 1985); *Heritage Hills, Ltd. v. Smith*, No. 78-CVG-268 (Ohio Mun., Chillicothe, May 8, 1978).

For Public Housing, court decisions have struck down such policies on two additional grounds. One is that the policy violates the tenant's right to invite guests under 24 C.F.R. § 966.4(d)(1). *Lancor v. Lebanon Hous. Auth.*, 760 F.2d 361 (1st Cir. 1985); *Wells v. Hous. Auth. of Wheeling*, No. 90-0131-W(S) (N.D. W. Va. Jan. 27, 1993). The other is that the policy violates the tenant's First Amendment rights of association and privacy. *McKenna v. Peekskill Hous. Auth.*, 647 F.2d 332 (2d Cir. 1981).

3. Guest or Unauthorized Occupant

A lease may identify the authorized occupants under the tenancy and prohibit any other persons from occupying the premises, absent prior landlord approval. For example, see Section III.G.5, above, for a discussion on the authorized occupant rules in assisted housing leases.²⁸⁸

As a result, an issue often arises as to when a guest becomes an unauthorized occupant. The case law provides some guidance.

An occupancy does not exist without overnight stays. *See Lucas Metro. Hous. Auth. v. Wood*, No. CVG-0900329 (Ohio Mun., Sylvania, June 23, 2009) (the guest was often at the rental unit visiting with his children, but he stayed overnight only one time in six years).

Generally, a person who stays overnight up to two (and sometimes three) times a week is not an occupant of the premises. *E.g., Sumac Real Estate Holding, LLC v. Mitchell*, No. 2014-CVG-00670 (Ohio Mun., Euclid, Apr. 18, 2014) (two/three nights per week); *Countrybrook Apts. v. Forsythe*, No. M86-CVG-20896 (Ohio Mun., Franklin Cty., Aug. 28, 1986) (weekends); *Andrews Place Assoc. v. Loeb sack*, No. 84-CVG-1222 (Ohio Mun., Mentor, Jan. 3, 1985) (three nights per week). *See also*

²⁸⁸ For the definition of "assisted housing," see note 163, above.

Gallatin Hous. Auth. v. Gifford, No. 89-25-II, 1989 WL 100268 (Tenn. App. Aug. 30, 1989) (two/three nights per week); *Messiah Baptist Hous. Dev. Fund Co. v. Rosser*, 92 Misc.2d 383, 400 N.Y.S.2d 306 (City Ct. 1977) (two/three nights per week). Cf. *Vistula Mgmt. Co. v. Scott*, No. 92-CVG-76 (Ohio Mun., Fremont, May 6, 1992) (babysitting 5:30 A.M. to 7:00 or 8:00 P.M. daily, plus overnight irregularly); *Perrysburg Ecumenical Hous. v. Leu*, No. 87-CVG-977 (Ohio Mun., Perrysburg, Feb. 17, 1988) (son of tenant frequently visited and, on several occasions, stayed overnight).

Generally, a person who stays up to two consecutive weeks is not an occupant of the premises. *Wilmington Green Apts. v. Estep*, No. 88-CVG-64 (Ohio Mun., Wilmington, Apr. 7, 1988) (two consecutive weeks). See also *Mihil Co. v. Paradiso*, 107 Misc.2d 867, 436 N.Y.S.2d 115 (Civ. Ct. 1980) (seven consecutive weeks); *Ritter v. Cecil County Office of Hous. & Cmty. Dev.*, 33 F.3d 323 (4th Cir. 1994) (upholding public housing agency's two-week rule in the Section 8 Certificate program).

Factors to consider in distinguishing between an occupant and a guest include: (1) the number of days per week or length of stay, (2) any use of another residence, (3) where clothes and other personal belongings are maintained, (4) where meals are eaten, (5) where mail is received, (6) address used for driver's license and other documents, and (7) other indicia of residency. *Juarovisech v. Portage Metro. Hous. Auth.*, No. C83-4961 (N.D. Ohio Jan. 12, 1984). See *Urban Hollow Apts. v. Lewis*, No. M9403-CVG-007533 (Ohio Mun., Franklin Cty., May 25, 1994); *Vistula Mgmt. Co. v. Scott*, No. 92-CVG-76 (Ohio Mun., Fremont, May 6, 1992). See also *Gallatin Hous. Auth. v. Gifford*, No. 89-25-II, 1989 WL 100268 (Tenn. App. Aug. 30, 1989).

The lease may establish standards for this determination, which may be given deference by the courts. However, the standards may not unreasonably interfere with the tenant's right to invite guests, which is discussed in Section VII.G.1, above. See *Ashley Court Enters. v. Whittaker*, 249 N.J. Super. 552, 592 A.2d 1228 (1991) (seven days per month limit was an unreasonable interference with the covenant of quiet enjoyment).

For Public Housing and project-based subsidized housing, any lease standard must be reasonable because federal law prohibits unreasonable lease terms. 42 U.S.C. § 1437d(l)(2) (Public Housing); 12 U.S.C. § 1715z-1b(b)(3) (project-based subsidized housing). However, in construing these guest provisions, some courts have found relatively short time periods to be reasonable, if the time period can be extended by prior landlord approval. E.g., *Heritage Court L.L.C. v. Merritt*, 187 Ohio App.3d 117, 931 N.E.2d 194 (3rd Dist. 2010) (one-week visitation period for each six months);

Norwich Hous. Auth. v. Majewski, No. CV-219883, 2000 WL 73034 (Conn. Super. Jan. 13, 2000) (seven days per month).

A natural child of a tenant, who becomes a member of the household after the commencement of the tenancy, cannot be considered a guest or an unauthorized occupant. See *Hicks v. Hubert*, No. 96-CVG-34 (Ohio County Ct., Sandusky Cty., June 4, 1996).

4. Ban Lists and Trespass Policies

A common issue is whether a landlord may ban specific persons (who are not tenants) from entering the landlord's rental property and, if so, in what circumstances. The issue arises in two contexts.

One context is a trespass action against the banned person under R.C. 2911.21(A)(1). One element of this trespass charge is that the person is on the land or premises "without privilege." "'Privilege' for purposes of criminal trespass includes permission to enter the premises given by a resident of the premises." *State v. Clelland*, 83 Ohio App.3d 474, 490, 615 N.E.2d 276 (4th Dist. 1992).

A second context is an eviction action against the tenant for a lease violation.

The typical landlord practice on ban lists is comprised of four elements: (1) the landlord maintains a list of persons who are banned from the property; (2) the landlord (and police) furnish names to place on the list; (3) the landlord (or police, acting as landlord's agent per an agreement) serve the banned person with a trespass notice; and (4) the police enforce the ban by bringing criminal trespass charges for violations.

For entries not pursuant to a tenant's invitation, generally the ban is permissible and, in those cases, a violation may give rise to a criminal trespass charge. See *State v. Wood*, No. 03-CA-2901, 2004 WL 1631468 (Ohio App., 4th Dist., July 15, 2004).

For entries pursuant to a tenant's invitation, where a lease provision authorizes the ban, the court decisions are split on whether the lease provision (and thus the ban) is permissible.

The rationale of the court decisions holding that the ban is not permissible in these circumstances is: "Under applicable property law, the owner sacrifices his possessory interests in the property, and he cannot prohibit a tenant from inviting guests into the tenant's abode." *City of Kent v. Hermann*, No. 95-P-0042, 1996 WL 210780, at *2 (Ohio App., 11th Dist., Mar. 8, 1996). Accord *City of Columbus v. Parks*, No. 10AP-574, 2011 WL 1781911 (Ohio App., 10th Dist., May 5, 2011); *State v. Hites*, No. 1-2000-22, 2000 WL 1114809 (Ohio App., 3rd Dist., Aug. 8, 2000).

The rationale of the court decisions holding that the ban is permissible in these circumstances is: “[T]he tenant derived her rights as a tenant from DMHA [landlord] and, consequently, her rights to invite guests were subject to DMHA’s right to preclude certain guests by means of the criminal trespass policy,” which is part of the lease and thus qualifies the lease right to accommodate guests. *State v. Scott*, No. 19902, 2004 WL 103175, ¶ 18 (Ohio App., 2nd Dist., Jan. 23, 2004). See, e.g., *State v. Blackford*, No. 2012-CA-00146, 2013 WL 1737858 (Ohio App., 5th Dist., Apr. 22, 2013). See also *Williams v. Nagel*, 162 Ill. App.2d 542, 643 N.E.2d 816 (1994).

For entries pursuant to a tenant’s invitation, where the tenant’s lease does not authorize the ban, the ban is impermissible and invalid. Absent any restriction in the lease, the ban would violate the tenant’s common law right to invite guests, which is an implied provision in every lease or tenancy. See Section VII.G.1, above.

In some cases, the determination on whether an entry is pursuant to a tenant’s invitation will depend on whether a tenant may grant a person a standing invitation for any date and time, in lieu of an explicit invitation for each entry.

Some ban policies exempt tenants’ guests, and thereby avoid any interference with the right of tenants to invite guests.

One court held, where a Public Housing ban policy encompassed tenants’ guests and the manager had unfettered discretion, that the ban policy was an unreasonable interference with the right of tenants, under 24 C.F.R. § 966.4(d)(1), to invite guests. *Diggs v. Hous. Auth. of City of Frederick*, 67 F. Supp.2d 522 (D. Md. 1999) (enjoined the policy, except for the persons on the ban list due to violent or drug-related criminal activity on the PHA’s property).

Conflicting case law exists on whether a Public Housing ban policy may violate the First Amendment right of banned persons, especially relative to child rearing. Compare *Ash v. City of Clarksville*, No. 3:03-0380, 2004 WL 5913273 (M.D. Tenn. Sept. 3, 2004) (violated) with *Brown v. Dayton Metro. Hous. Auth.*, No. C-3-93-037, 1993 WL 1367433 (S.D. Ohio Aug. 26, 1993) (not violated), *Commonwealth of Virginia v. Hicks*, 267 Va. 573, 596 S.E.2d 74 (2004), and *State v. Hites*, No. 1-2000-22, 2000 WL 1114809 (Ohio App., 3rd Dist., Aug. 8, 2000). See also *Johnson v. City of Cincinnati*, 310 F.3d 484 (6th Cir. 2002) (held that the right of a grandmother to participate in the upbringing of her grandchildren is constitutionally protected and, to the extent that *Thompson v. Ashe*, 250 F.3d 399 (6th Cir. 2001), can be read to proclaim the absence of this right, it conflicts with Supreme Court precedent and therefore is not binding on the court).

Other issues concerning Public Housing ban policies include:

- (1) Potential due process procedural issues relative to unclear standards, unclear notices as to the scope, basis, or appeal rights, lack of notice to tenants, appeal procedures, etc.; and
- (2) A potential Fourth Amendment unreasonable search issue, as illustrated by the facts and decision in *State v. Hayes*, 188 S.W.2d 505 (Tenn. 2006).

For further discussion on Public Housing trespass policies, see: (1) No Trespass Policies – Hicks and Its Aftermath, 34 Hous. L. Bull. 129 (National Housing Law Project July 2004); (2) Gregory A. Beck, Ban Lists: Can Public Housing Authorities Have Unwanted Visitors Arrested, 2004 U. Ill. L. Rev. 1223 (2004); and (3) Elena Goldstein, Kept Out: Responding to Public Housing No-Trespass Policies, 38 Harv. C.R.-C.L. L. Rev. 215 (2003).

H. Spouse, Not Named on Lease

When a married couple resides in a rental unit, whether a spouse is named on the lease effects the spouse's rights under the lease.

“When only one spouse is named on a lease, the other spouse has no rights under the lease.” *Mlynek v. Mlynek*, No. WD-07-056, 2008 WL 307449, ¶ 12 (Ohio App., 6th Dist., Feb. 1, 2008). *Accord Smith v. McCain*, 66 Ohio Law Abs. 561, 118 N.E.2d 238 (Ohio App., 2nd Dist., 1952).

A non-tenant-spouse resides in the rental unit solely as a member of the spouse's household. *Mlynek v. Mlynek*, No. WD-07-056, 2008 WL 307449, ¶ 13 (Ohio App., 6th Dist., Feb. 1, 2008). Absent the consent of the tenant-spouse, the non-tenant-spouse does not have a right of possession. *State v. O'Neal*, No. C-980247, 1999 WL 162158, at *2 (Ohio App., 1st Dist., Mar. 26, 1999).

If the right of possession of the tenant-spouse ends either voluntarily or involuntarily, the right of possession of the non-tenant-spouse also ends, since that right accrues only through the tenant-spouse. *Smith v. McCain*, 66 Ohio Law Abs. 561, 118 N.E.2d 238 (Ohio App., 2nd Dist., 1952).

As to actions between spouses, R.C. 3103.04 states, in relevant part: “Neither can be excluded from the other's dwelling, except upon decree or order of injunction made by a court of competent jurisdiction.” However, “R.C. 3103.04 is inapplicable to criminal cases.” *State v. Lilly*, 87 Ohio St.3d 97, 100, 717 N.E.2d 322 (1999).

Therefore, “a spouse may be criminally liable for trespass ... in the dwelling of the other spouse who is exercising custody or control over that dwelling.” *Id.*

I. Landlord, Name and Address

R.C. 5321.18 requires the owner of residential rental properties to provide the tenant with the name and address of the owner and the owner’s agent (if any). If the parties executed a written rental agreement, the information must be contained in the agreement. If the parties did not execute a written rental agreement, “the landlord, at the commencement of the term of occupancy, shall deliver to tenant a written notice containing the information.” R.C. 5321.18(B).

A landlord’s noncompliance with this requirement may result in a waiver of the landlord’s right, under R.C. 5321.07(A), to receive the tenant’s pre-rent deposit notice of landlord violations (and thus the opportunity to cure). R.C. 5321.18(C). This waiver is discussed in Section VIII.A, below. The noncompliance also may result in a waiver of the landlord’s right, under R.C. 5321.08(A), to receive the clerk of court notice of the rent deposit. R.C. 5321.18(C).

The owners of residential rental properties that are located in counties that have a population of more than 200,000 are also required to file, with the county auditor of the county in which the rental property is located: (1) the owner’s name, address, and telephone number; (2) the street address and permanent parcel number of the residential rental property; and (3) certain other information. R.C. 5323.02. For these purposes, residential rental property includes residential premises under R.C. 5321.01(C) and R.C. 4781.01(W) (former R.C. 3733.01(J)).

A landlord’s noncompliance with this requirement may subject the landlord to a special assessment, imposed by the county auditor, in the amount of not less than \$50 or more than \$150. R.C. 5323.99.

J. Renewal Provisions

“[T]he law of Ohio, as a general rule, does not mandate a landlord to renew or extend a lease for a definite period of time unless provided for within the lease agreement.” *Mesnick v. De Ville Apts.*, No. 71517, 1997 WL 599376, at *1 (Ohio App., 8th Dist., Sept. 25, 1997).

A provision for renewal of a lease, upon certain acts or omissions of the landlord or tenant, is enforceable. *Frank v. Flynn*, 120 Ohio App. 361, 197 N.E.2d 657 (8th

Dist. 1964).²⁸⁹

For example, a lease may include an option to renew that requires a party to give a specified notice in order to exercise the option. *In re Kindinger*, 219 B.R. 214 (Bankr. N.D. Ohio 1998) (applying Ohio law).

Conversely, a lease may provide that its term shall automatically renew to a specified renewal term unless, by a specified number of days before the end of the term, the tenant provides the landlord with written notice of nonrenewal. The automatic renewal (and notice of nonrenewal) provision may be used with any type or combination of initial term and renewal term.

It may be a lease with an initial term of one year that renews for a one-year term. *E.g.*, *Hackman v. Szczygiel*, No. 06AP-187, 2006 WL 3199278 (Ohio App., 10th Dist., Nov. 7, 2006); *Angelo v. Parker*, No. 13140, 1987 WL 25776 (Ohio App., 9th Dist., Nov. 25, 1987). *But see Meadowbrook Dev. Corp. v. Roberts*, No. 79747, 2001 WL 1654540, at *4 (Ohio App., 8th Dist., Dec. 27, 2001) (the 60-day notice requirement for nonrenewal was unreasonable under the facts of this case).

It may be a lease for a fixed-term that renews to a month-to-month tenancy. *E.g.*, *Adair v. Landis Props., Inc.*, No. 08AP-139, 2008 WL 4174130 (Ohio App., 10th Dist., Sept. 11, 2008) (initial three-month term); *Cummings v. Getz*, No. CA84-09-105, 1985 WL 8164 (Ohio App., 12th Dist., Feb. 11, 1985) (initial one-year term); *McGowan v. DM Group IX*, 7 Ohio App.3d 349, 455 N.E.2d 1052 (10th Dist. 1982) (initial six-month term).

It may be a lease that is a written month-to-month tenancy. *E.g.*, *Knipp v. Sadler*, No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009); *Seginak v. ABC Mgmt. Co.*, No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987).

However, in these cases, if the tenant provides the landlord with timely oral notice, but not written notice, the courts frequently apply principles of substantial compliance, unconscionability, and/or equity to relieve the tenant from the renewal of the tenancy. *E.g.*, *Knipp v. Sadler*, No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009); *Hackman v. Szczygiel*, No. 06AP-187, 2006 WL 3199278 (Ohio App., 10th Dist., Nov. 7, 2006); *Meadowbrook Dev. Corp. v. Roberts*, No. 79747, 2001 WL

²⁸⁹ For a discussion on the relationship between an automatic renewal provision and the statute of conveyances, see Section XXII.A.1, below.

1654540 (Ohio App., 8th Dist., Dec. 27, 2001);²⁹⁰ *Cummings v. Getz*, No. CA84-09-105, 1985 WL 8164 (Ohio App., 12th Dist., Feb. 11, 1985); *McGowan v. DM Group IX*, 7 Ohio App.3d 349, 455 N.E.2d 1052 (10th Dist. 1982); *Seginak v. ABC Mgmt. Co.*, No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987). *See also Adair v. Landis Props., Inc.*, No. 08AP-139, 2008 WL 4174130 (Ohio App., 10th Dist., Sept. 11, 2008) (reversal of summary judgment – genuine issue on actual notice); *Ballard v. KMG Investors, Ltd. P’ship*, No. 14-93-5, 1993 WL 293944 (Ohio App., 3rd Dist., Aug. 3, 1993).

Likewise, when a tenant provides the landlord with a written notice of nonrenewal that is untimely because of the tenant’s mistaken reading of the lease, a court may use its equity power to relieve the tenant of the renewal. *E.g., Mentor Lagoons, Inc. v. Ventra*, No. 89-L-14-026, 1990 WL 128270 (Ohio App., 11th Dist., Sept. 7, 1990); *Mentor Lagoons, Inc. v. Velbeck*, No. 10-056, 1984 WL 6285 (Ohio App., 11th Dist., Mar. 23, 1984). *Cf. Ward v. Washington Distribs., Inc.*, 67 Ohio App.2d 49, 425 N.E.2d 420 (6th Dist. 1980) (equity used to permit tenant to renew lease where tenant failed to exercise timely the option to renew).

“Where the provision for an extension or renewal [of a lease] does not expressly require notice, Ohio law holds the mere holding over under the lease constitutes an election to exercise the option which binds both parties for the term designated in the option.” *In re Kindinger*, 219 B.R. 214, 217 (Bankr. N.D. Ohio 1998) (applying Ohio law).

When two or more tenants are parties to a lease agreement that gives the tenants an option to renew, the option may not be exercised by only one of the tenants. *L & H Realty Co. v. Oberholtz*, 65 Ohio App.2d 279, 418 N.E.2d 401 (9th Dist. 1979).

When the renewal provision concerns a month-to-month tenancy, it must be consistent with the requirements of R.C. 5321.17(B). R.C. 5321.06 and 5321.13(A). *See Detweiler v. Galt*, No. 01-CA-34, 2001 WL 1682822 (Ohio App., 4th Dist., Dec. 26, 2001); *DeBenedictus v. Gialamas*, No. 96-L-006, 1997 WL 51453 (Ohio App., 11th Dist., Jan. 24, 1997); *Cary v. Galbraith*, No. L-94-002, 1994 WL 476146 (Ohio App., 6th Dist., Sept. 2, 1994). *Cf. Seginak v. ABC Mgmt. Co.*, No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987) (held enforcement of written notice

²⁹⁰ The *Roberts* court acknowledges that its holding deviates from its earlier holding in *Goudreau Mgmt. Co. v. Lancaster*, No. 65015, 1994 WL 97697 (Ohio App., 8th Dist., Mar. 24, 1994).

requirement unconscionable where tenant's oral notice complied with R.C. 5321.17(B)).

However, one court has held that a sixty-day notice of nonrenewal requirement does not conflict with R.C. 5321.17(B). *Kenko Corp. v. Singer*, No. 81-03-0023, 1982 WL 3141 (Ohio App., 12th Dist., May 26, 1982).

The renewal option may establish a higher rent under the renewal. *Chorpenning v. Carmack*, No. 23933, 2008 WL 726553 (Ohio App., 9th Dist., Mar. 19, 2008); *Bohlmann v. Cox*, No. 17166, 1995 WL 641128 (Ohio App., 9th Dist., Nov. 1, 1995). In *Carmack*, a one-year lease had a monthly rent of \$1,275 and, upon the expiration of the one-year term, a renewal provision established a month-to-month tenancy with a monthly rent of \$2000.

However, where the lease does not contain the renewal option with the increased rent and, instead, it is contained in a separate notice, the notice is only an offer to rent at the increased rent amount. *Bohlmann v. Cox*, No. 17166, 1995 WL 641128 (Ohio App., 9th Dist., Nov. 1, 1995). In these circumstances, the tenant's tender of a lesser amount is a counteroffer. *Id.* The landlord's acceptance of the lesser amount is an acceptance of the counteroffer. *Id.*

Also, an automatic renewal provision may expressly provide that the renewal will not occur if the landlord timely notifies the tenant of a change in the monthly rent (or other terms of the lease). *E.g.*, *Ganios v. Ferrick*, No. 2005-CA-00239, 2006 WL 751508 (Ohio App., 5th Dist., Mar. 20, 2006). In *Ganios*, the lease contained this nonrenewal feature, in a year-to-year automatic renewal provision. Prior to the expiration of the second one-year term, the landlord notified the tenant of a rent increase. The Court held that this prevented the automatic renewal of the lease and, therefore, the tenancy became a month-to-month tenancy.

K. Prohibited Provisions

1. Unconscionable Provisions, R.C. 5321.14

If a rental agreement provision was unconscionable at the time that the parties executed the agreement, under R.C. 5321.14, a court may refuse to enforce the provision or may limit the application of the provision so as to avoid an unconscionable result.

A provision is unconscionable only if it is both substantively and procedurally unconscionable. *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App.,

8th Dist., 2016); *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685 (Ohio App., 6th Dist., Aug. 20, 2010). See also *Pojman v. Columbia-Brookpark Mgmt., LLC*, No. 88666, 2007 WL 2269682 (Ohio App., 8th Dist., Aug. 9, 2007) (construing R.C. 3733.16 (now R.C. 4781.48) – the manufactured home park provision that is identical to R.C. 5321.14). Cf. *Taylor Bldg. Corp. of Am. v. Benfield*, 117 Ohio St.3d 352, 884 N.E.2d 12 (2008) (arbitration clause); *Harbour Portfolio VII, LP v. Pulley*, Nos. C-150080,150090, 2015 WL 6438920 (Ohio App., 1st Dist., Oct. 23, 2015) (arbitration clause, land installment contract).

Substantive unconscionability focuses on the fairness of the terms. *Id.* Procedural unconscionability focuses on the relative bargaining position of the parties. *Id.*

Under R.C. 5321.14, a party may assert the unconscionability of a rental agreement provision as a defense to a claim, without asserting a counterclaim. *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685 (Ohio App., 6th Dist., Aug. 20, 2010).

When the alleged unconscionable provision is an increased rent, the relevant issue is whether the amount of the new rent (and not the amount of the rent increase) is unconscionable. *Pojman v. Columbia-Brookpark Mgmt., LLC*, No. 88666, 2007 WL 2269682 (Ohio App., 8th Dist., Aug. 9, 2007).

The “reasonable opportunity to present evidence” clause in R.C. 5321.14(B) does not preclude a summary judgment ruling, without a hearing, when the parties submit all of the relevant evidence and no genuine issue of material fact exists. *Id.*

The “determination of whether a written contract is unconscionable is an issue of law.” *Taylor Bldg. Corp. of Am. v. Benfield*, 117 Ohio St.3d 352,884 N.E.2d 12, ¶ 35 (2008). Hence, on appeal, the unconscionability determination is reviewed de novo, but the underlying factual determinations are reviewed with deference. *Id.*, ¶ 37,38.

The R.C. 5321.14 prohibition against unconscionable provisions does not apply to an option agreement to purchase real property. *Stacy v. Zupp*, No. CA-9566, 1994 WL 369899 (Ohio App., 5th Dist., June 20, 1994); *SMJ Growth Corp. v. Norman*, No. 96-CVG-02843 (Ohio Mun., Cleveland, Hous. Div., Aug. 29, 1996).

Court decisions on the R.C. 5321.14 prohibition against unconscionable provisions are summarized below and in Section VII.F.9.c., above (late payment fees).

Automatic Renewal:

Cont'l Enters., Ltd. v. Hunt, No. 102200, 2015 WL 9460300 (Ohio App., 8th Dist., Dec. 24, 2015)

Lease provision provided for automatic renewal of one-year lease term, unless tenant gave landlord 60 days (or more) advance written notice of nonrenewal. Based on the relevant communications, it would be hypertechnical and unconscionable to find that the lease extended for another year. Those communications included: tenant's ongoing complaints regarding a roof leak, the landlord's refusal to transfer tenant to another unit, tenant's 90-advance written notice of her relocation plans and request for a month-to-month arrangement (which landlord rejected), and tenant's 50-day advance written notice of nonrenewal.

Adair v. Landis Props., Inc., No. 08AP-139, 2008 WL 4174130 (Ohio App., 10th Dist., Sept. 11, 2008)

Three-month lease with provision for automatic conversion to month-to-month tenancy, unless the tenant gave the landlord 30 days (or more) advance written notice of nonrenewal. Remand because genuine issue on whether the tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent not to renew. If the tenant establishes that such oral notice was given, like *McGowan* (summarized below), in these circumstances, to require written notice would be unconscionable.

Hackman v. Szczygiel, No. 06AP-187, 2006 WL 3199278 (Ohio App., 10th Dist., Nov. 7, 2006)

The lease provision provided for the automatic renewal of a one-year term, unless the tenant gave the landlord 120 days (or more) advance written notice of nonrenewal by certified USPS mail. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent not to renew. Like *McGowan* (summarized below), in the circumstances of this case, to require written notice would be unconscionable.

Meadowbrook Dev. Corp. v. Roberts, No. 79747, 2001 WL 1654540 (Ohio App., 8th Dist., Dec. 27, 2001)²⁹¹

The lease provision provided for the automatic renewal of a one-year term, unless the tenant gave the landlord 60 days (or more) advance written notice of nonrenewal. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent not to renew. Like *McGowan* (summarized below), in the circumstances of this case, to

²⁹¹ See note 290, above.

require written notice would be unconscionable.

Ballard v. KMG Investors, Ltd. P'ship, No. 14-93-5, 1993 WL 293944 (Ohio App., 3rd Dist., Aug. 3, 1993)

The lease provision provided for the automatic commencement of a month-to-month tenancy at the end of an initial six-month term, unless the tenant gave the landlord 30 days (or more) advance written notice of intent to vacate. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent to vacate at the end of the initial six-month term. Like *McGowan* (summarized below), in the circumstances of this case, to require written notice would be unconscionable.

Angelo v. Parker, No. 13140, 1987 WL 25776 (Ohio App., 9th Dist., Nov. 25, 1987)

The lease provision provided for the automatic renewal of a one-year lease term, unless the tenant gave the landlord 120 days (or more) advance notice of nonrenewal. The lease provision was not unconscionable.

Seginak v. ABC Mgmt. Co., No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987)

The lease provision required the tenant to provide the landlord with 30 days (or more) advance written notice to terminate their month-to-month tenancy. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent to terminate the tenancy. Like *McGowan* (summarized below), in the circumstances of this case, to require written notice would be unconscionable.

Cummings v. Getz, No. CA84-09-105, 1985 WL 8164 (Ohio App., 12th Dist., Feb. 11, 1985)

The lease provision provided for the automatic renewal of a one-year lease term, unless the tenant gave the landlord 30 days (or more) advance written notice of nonrenewal. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent not to renew. Like *McGowan* (summarized below), in the circumstances of this case, to require written notice would be unconscionable.

McGowan v. DM Group IX, 7 Ohio App.3d 349, 455 N.E.2d 1052 (10th Dist. 1982)

The lease provision provided for the automatic commencement of a month-to-month tenancy at the end of an initial six-month term, unless the tenant gave the landlord 30 days (or more) advance written notice of intent

to vacate. The tenant provided the landlord with timely oral notice, but not written notice, of the tenant's intent to vacate at the end of the initial six-month term. The lease provision was not in itself unconscionable. But, in the circumstances of this case, to require written notice would be unconscionable.

Kenko Corp. v. Singer, No. 81-03-0023, 1982 WL 3141 (Ohio App., 12th Dist., May 26, 1982)

The lease provision required the tenant to provide the landlord with 60 days (or more) advance notice to terminate their month-to-month tenancy. The lease provision was not unconscionable.

Landlord Option to Terminate Lease Without Cause:

Hessenhauer Corp. v. Drinks, No. 2002-CVG-39464 (Ohio Mun., Franklin Cty., Nov. 7, 2002)

The lease provision permitted the landlord, but not the tenant, to terminate the lease, during its one-year term, with a 30-day notice of termination. The lease provision was unconscionable.

Charges:

Tillimon v. Dukes, No. L-91-343, 1992 WL 206878 (Ohio App., 6th Dist., Aug. 28, 1992)

The lease provision required the tenant to pay a non-refundable "application and move-in fee" in the amount of \$500. According to the lease provision, the fee was not a security deposit, but rather a charge for processing the credit application and coordinating the transfer of utilities and occupancy of the dwelling. The fee was unconscionable.

McIntyre v. Silver, No. 52116, 1987 WL 11397 (Ohio App., 8th Dist., May 21, 1987)

The lease provision assessed the tenants a surcharge for heat loss if the windows were opened when the heating system was on. The lease provision was unconscionable.

Berlinger v. Suburban Apt. Mgmt. Co., 7 Ohio App.3d 122, 454 N.E.2d 1367 (8th Dist. 1982)

The lease provision prohibited the tenant from bringing motorcycles onto the premises and imposed a charge of fifty dollars per day for every day that the tenant violated this prohibition. The prohibition was not unconscionable. The fifty dollars per day charge was unconscionable.

FDA Peachtree, LLC v. Crowder, No. 18-CVG-03298, (Ohio Mun., Licking Cty., Aug. 5, 2019)

Based on two lease provisions, the court held that “the manner in which late fees were calculated is unconscionable.” The first provision allocated the tenant’s payments “first to late fees and all other outstanding debts and bills, then to any past due rent, and lastly to the current month’s rent.” The second provision imposed a 10% late fee if rent is not paid on the first day of the month.

Overnight Guest Rule:

Hi-Land Terrace, Inc. v. Dinwiddie, No. 546, 1985 WL 6560 (Ohio App., 4th Dist., Mar. 1, 1985)

The lease provision or house rule required tenants to register and obtain management’s permission for overnight guests. The lease provision or house rule was unconscionable.

Heritage Hills, Ltd. v. Smith, No. 78-CVG-268 (Ohio Mun., Chillicothe, May 8, 1978)

The lease provision required the tenant to report overnight guests to management. The lease provision was unconscionable.

Jury Waiver:

Mentor Lagoons, Inc. v. Mayor, No. 10-180, 1985 WL 7807 (Ohio App., 11th Dist., Mar. 1, 1985)

The lease provision waived the tenant’s right to a jury trial. The lease provision was not unconscionable.

Mentor Lagoons, Inc. v. Geldart, No. 6-265, 1979 WL 208017 (Ohio App., 11th Dist., Jan. 29, 1979)

The lease provision waived the tenant’s right to a jury trial. The lease provision was not unconscionable.

Pets.²⁹²

Fitzpatrick Realty v. Wilkey, No. 78-CVG-8102 (Ohio Mun., Dayton, Nov.

²⁹² A lease provision that imposes restrictions on pets, but does not address “visiting or stray animals,” is not a prohibition against a tenant’s practice of feeding stray cats. *Miami Valley Hous. v. Williams*, No. 06-CVG-9358 (Ohio Mun., Dayton, Nov. 17, 2006).

17, 1978)

One lease provision prohibited pets and another lease provision permitted the landlord to evict the tenant for any breach, however slight, of any covenant or condition of the lease. The prohibition on pets was not unconscionable. The right to evict for any breach, however slight, was unconscionable.

Lien on Tenant's Property:

Rosace v. Hancock, No. 95-CVG-516 (Ohio Mun., Girard, Dec. 19, 1995)

The lease provision granted the landlord an express contract lien and security interest in the tenant's personal property so as to secure compliance with the lease. The lease provision was unconscionable.

2. Other Prohibited Provisions, R.C. 5321.06, 5321.13, and 5321.131

R.C. 5321.06 prohibits any rental agreement provision that is inconsistent with a right or duty that is established in either R.C. Chapter 5321 or any other rule of law. For example, a provision that constitutes a penalty (see Section VII.F.9.b, above) is inconsistent with with an “other rule of law” for R.C. 5321.06 purposes. *Berkeley Park, LLC v. Pile*, No. 2005-CVG-046214 (Ohio Mun., Franklin Cty., Apr. 11, 2007).

This statutory prohibition is consistent with Ohio common law that provides that a rental agreement may include any terms that are not inconsistent with or prohibited by law or against public policy. *Langfan v. Carlton Gardens Co.*, 183 Ohio App.3d 260, 916 N.E.2d 1079, ¶ 30 (3rd Dist. 2009).

R.C. 5321.13 prohibits any lease provision that:

- (1) modifies or waives any right or obligation that is established in R.C. Chapter 5321, except an agreement by the landlord to assume responsibility for any of the tenant's R.C. 5321.05 obligations (R.C. 5321.13(A),(F));
- (2) is a confession of judgment for the recovery of rent or damage to the premises (R.C. 5321.13(B));
- (3) provides for the payment of the landlord's or tenant's attorney's fees (R.C. 5321.13(C));
- (4) limits or provides for indemnification for the landlord's liability (R.C. 5321.13(D)); or

- (5) permits the receipt of rent free of the obligation to comply with R.C. 5321.04 (R.C. 5321.13(E)).

The R.C. 5321.13(C) prohibition on agreements to pay attorney's fees extends to "any other agreement between a landlord and tenant." One issue relative to this clause is whether "any other agreement" includes a settlement agreement. If so, any provision for payment of attorney's fees to the landlord or tenant, in a settlement agreement between a landlord and a tenant, would be unenforceable. However, similar to the ruling in *LaCourse v. Fleitz*, 28 Ohio St.3d 209, 503 N.E.2d 159 (1986) (discussed in Section V.C, above), courts may find that R.C. 5321.13(C) is not sufficiently explicit on this issue to abrogate the longstanding rule of common law that permits payments of attorney's fees in settlement agreements.

R.C. 5321.131 prohibits any provision in a rental agreement that restricts a tenant's right to display the flag of the United States or certain other specified flags, provided the flag is displayed in accordance with certain specified requirements.

Court decisions on these R.C. 5321.06 and 5321.13 prohibitions are summarized below.

Obligation to Maintain Premises in Habitable Condition:

Anderson v. Ballard, No. L-10-1007, 2010 WL 3292685 (Ohio App., 6th Dist., Aug. 20, 2010)

R.C. 5321.13(A) prohibits a landlord from modifying or waiving the landlord's R.C. 5321.04 obligation to maintain the rental premises in a habitable condition. The "as is" provision in the rental agreement was an unlawful attempt to waive this obligation.

Liability for Damage to Premises or Property:

Kinn v. Showe Mgmt. Corp., No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002)

The lease provision made the tenant liable for any damage to the premises caused by the negligence of other parties (e.g., guest) without any determination of tenant negligence. The lease provision was inconsistent with R.C. 5321.05(A)(6) and, therefore, invalid under R.C. 5321.06.

Smith v. Ohio Edison, Inc., No. 98-CA-37, 1999 WL 6444 (Ohio App., 2nd Dist., Jan. 8, 1999)

The lease provision provided that the landlord shall not be liable for any damage caused by a failure of the plumbing, heating, sewage, electrical,

water, or gas system at the premises or caused by a roof leak at the premises. The lease provision was inconsistent with the landlord's obligations under R.C. Chapter 5321 and, therefore, was invalid under R.C. 5321.06 and 5321.13(A),(D).

Kearney v. Crown, No. 93-T-4945, 1994 WL 587382 (Ohio App., 11th Dist., Aug. 12, 1994)

The lease provision made the tenant liable for any damage to the premises that the tenant's pet caused. The lease provision was consistent with R.C. 5321.05 and, therefore, was enforceable.

Wilmington Green III v. Rickman, No. CA90-07-013, 1991 WL 81850 (Ohio App., 12th Dist., May 13, 1991) (2-1 decision)

The tenant executed a payment agreement with the landlord to reimburse the landlord for damage to the premises that an uninvited visitor (former boyfriend) had caused. The payment agreement did not violate R.C. 5321.05 and, therefore, did not violate R.C. 5321.13.

Allstate Ins. Co. v. Dorsey, 46 Ohio App.3d 66, 545 N.E.2d 920 (9th Dist. 1988)

The lease provision provided that the tenant shall be liable for damage to property, appliances, or plumbing caused by carelessness. The lease provision, insofar as it made the tenant liable for all damages caused by anyone's carelessness, was inconsistent with R.C. 5321.05(A)(6) and, therefore, was unenforceable under R.C. 5321.06.

Smith v. W. Terrace, No. 50938, 1986 WL 11033 (Ohio App., 8th Dist., Sept. 18, 1986)

The lease provision provided that the landlord shall not be liable for any damage or injury caused by water, steam, or the breaking or leaking of pipes resulting from any cause whatsoever. The lease provision violated R.C. 5321.06 and 5321.13.

Towne Realty Co. v. Henson, No. 4696, 1977 Ohio App. LEXIS 10248 (Ohio App., 5th Dist., Dec. 14, 1977)

The lease provision provided that the landlord shall not be liable for any loss or damage to the tenant's property that is placed in the premises, regardless of the cause. The lease provision violated R.C. 5321.13(D) and, therefore, was unenforceable.

Vesta Corp. v. Harris, No. 2021-CVG-004702 (Ohio Mun., Cleveland, Hous. Div., Jan. 20, 2022)

The lease provision made the tenant liable for any damage to the premises caused by the negligence of other parties (*e.g.*, guests), without any determination of tenant negligence. The lease provision conflicts with R.C. 5321.05(A)(6) and, therefore, was unenforceable under R.C. 5321.06.

Weingarden v. Eagle Ridge Condos., 71 Ohio Misc.2d 7, 653 N.E.2d 759 (Ohio Mun., Toledo, Hous. Div., 1995)

The lease provision assessed the tenant a fee for carpet cleaning at the end of the tenancy. To the extent that the lease provision assessed this fee independent of any evidence of damage beyond normal wear and tear, the lease provision was inconsistent with R.C. 5321.16 and, therefore, was unenforceable.

Nonrenewal or Termination of Tenancy:

Oldendick v. Crocker, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016)

In a one-year lease, a provision permitted the tenant to effect an early termination of the lease if: (1) the tenant gave 60 days advance notice; (2) the landlord approved; (3) the tenant paid an early termination fee equal to one month's rent; and (4) the tenant paid the monthly rent until the landlord re-rented the property. The early termination fee operated as a penalty (and not liquidated damages) and thus was not enforceable. The early termination fee was also unenforceable because it conflicted with R.C. 5321.16.

Detweiler v. Galt, No. 01-CA-34, 2001 WL 1682822 (Ohio App., 4th Dist., Dec. 26, 2001)

An oral agreement permitted the tenant (or landlord) to provide the other party with 30 days (or more) advance notice to terminate their month-to-month tenancy, regardless of the periodic rental date. The oral agreement's disregard of the periodic rental date was inconsistent with R.C. 5321.17(B) and, therefore, was unenforceable under R.C. 5321.06.

Chesser v. Chesser, No. 01-CA-00009, 2001 WL 403162 (Ohio App., 5th Dist., Apr. 12, 2001)

The lease provision established a five-year term, but permitted either party to terminate the lease at any time by providing the other party with an advance one-month notice. The one-month notice provision did not conflict with R.C. Chapter 5321 and, therefore, was enforceable.

DeBenedictus v. Gialamas, No. 96-L-006, 1997 WL 51453 (Ohio App., 11th Dist., Jan. 24, 1997)

The lease provision permitted the tenant (or landlord) to provide the other party with 20 days (or more) advance written notice to terminate their month-to-month tenancy. The 20-day notice provision was inconsistent with R.C. 5321.17(B), and, therefore, was unenforceable.

Cary v. Galbraith, No. L-94-002, 1994 WL 476146 (Ohio App., 6th Dist., Sept. 2, 1994)

The lease provision required the tenant (or landlord) to provide the other party with 30 days advance written notice to terminate their month-to-month tenancy, regardless of the periodic rental date. The lease provision's disregard of the periodic rental date was inconsistent with R.C. 5321.17(B) and, therefore, was unenforceable under R.C. 5321.06.

Kenko Corp. v. Singer, No. 81-03-0023, 1982 WL 3141 (Ohio App., 12th Dist., May 26, 1982)

The lease provision required the tenant to provide the landlord with 60 days advance notice to terminate their month-to-month tenancy. The lease provision did not violate R.C. 5321.17(B) and, therefore, did not violate R.C. 5321.13.

Attorney's Fees:

KGM Capital, LLC v. Jackson, No. C-130438, 2014 WL 2566286 (Ohio App., 1st Dist., June 6, 2014)

The lease provision provided that the tenant would be liable for the landlord's attorney's fees that it incurred due to the tenant's breach of the lease. The lease provision violated R.C. 5321.13(C) and, therefore, was unenforceable.

Quinlan v. Lienesch, No. C-120716, 2013 WL 2456347 (Ohio App., 1st Dist., June 5, 2013)

The lease provision provided for the award of attorney's fees to the prevailing party, in the event of a legal dispute. The lease provision violated R.C. 5321.13(C) and, therefore, was unenforceable.

GMS Mgmt. Co. v. Ostrow, No. 88-L-13-138, 1989 WL 140157 (Ohio App., 11th Dist., Nov. 17, 1989) (dicta)

The lease provision provided that, if the landlord relet the premises as a result of the tenant's lease default, the tenant was liable for the reasonable attorney's fees that the landlord incurred by reason of the default. The

lease provision violated R.C. 5321.13(C) and, therefore, was unenforceable.

Storage of Tenant's Property:

Haddox v. Moreland, No. 95-CA-20, 1996 WL 451361 (Ohio App., 4th Dist., Aug. 5, 1996)

The lease provision permitted the landlord to remove and store the tenant's property, if the tenant abandoned the premises. The lease provision did not violate R.C. Chapter 5321 and, therefore, was enforceable.

L. Prohibited Occupancy – Sex Offenders, R.C. 2950.034, 5321.051

R.C. 2950.034 (former R.C. 2950.031) prohibits certain sex offenders from residing within 1,000 feet of any school premises or preschool or child day-care center. The relevant terms for this prohibition are defined in R.C. 2950.034(C).

R.C. 5321.051 obligates tenants not to permit any such sex offender to occupy the tenant's rental premises, if the premises are within 1,000 feet of any school premises or preschool or child day-care center. The relevant terms for this obligation are defined in R.C. 5321.01(L)-(N). A tenant's violation of this obligation is grounds for the landlord to terminate the rental agreement. R.C. 5321.051(A)(2). *See also* R.C. 1923.01(C)(7),(8), 1923.02(A)(15), 1923.02(C).

R.C. 2950.034 and R.C. 5321.051 apply only to rental agreements that were entered into on or after July 31, 2003. Am. Sub. S.B. No. 5, 125th General Assembly, § 8. *See Hyle v. Porter*, 117 Ohio St.3d 165, 882 N.E.2d 899 (2008) (R.C. 2950.034 (former R.C. 2950.031) applies prospectively only).

VIII. Rent Depositing and Related Remedies, R.C. 5321.07-.10

A. Requirements and Procedures for Rent Depositing

R.C. 5321.07 establishes the requirements and procedures for a tenant to deposit rent with the clerk of court of the municipal or county court. It also permits one category of landlords – those who lease three or fewer dwelling units – to become exempt from this rent deposit procedure. R.C. 5321.07(C). To perfect this exemption, the landlord must deliver to the tenant, at the time of the tenant’s initial occupancy, written notice of the fact that the landlord leases three or fewer dwelling units. *Id.*

The rent deposit procedure is comprised of five requirements.

First, one of three conditions must be met. The landlord must be in noncompliance with an obligation under the rental agreement or R.C. 5321.04 (see Section VII.C, above), other than R.C. 5321.04(A)(9). R.C. 5321.07(A). Or, based on the condition of the premises, the tenant must reasonably believe that the landlord is in noncompliance with one (or more) of those obligations. *Id.* Or a governmental agency must have found that the premises are in noncompliance with an applicable building, housing, health, or safety code and the noncompliance could materially affect the health and safety of an occupant. *Id.*

Second, the tenant must provide the landlord with a written notice that specifies the acts, omissions, or code violations that constitute the landlord’s noncompliance with R.C. 5321.04, the rental agreement, or the applicable code.²⁹³ R.C. 5321.07(A). The written notice is not required to state that, if the landlord fails to remedy the condition specified in the notice, the tenant may rent deposit. *See* R.C. 5321.07(A). *See also Swogger v. Merkel*, No. 4139, 1989 WL 572092 (Ohio County Ct., Carroll Cty., Nov. 14, 1989) (construing R.C. 3733.12(A) (now R.C. 4781.41(A)) – the manufactured home park rent deposit notice requirement that is essentially identical to

²⁹³ One court decision has held that the R.C. 5321.07(A) notice requirement can be met by a written notice of code violations that a city (and not the tenant) has served upon the landlord. *City of Lakewood v. Novak*, 111 Ohio Misc.2d 1, 7 n.1, 746 N.E.2d 719 (Ohio Mun., Lakewood, 2000).

R.C. 5321.07(A)). The tenant must send this written notice to the person or place where rent is normally paid. R.C. 5321.07(A).

Subject to one exception, the landlord waives this notice requirement if the landlord fails to provide the tenant, at the commencement of the tenancy, with written notice of the name and address of the landlord and the landlord's agent (if any). R.C. 5321.18(C). *E.g., Shoemaker v. Whitt*, 129 Ohio App.3d 591, 718 N.E.2d 932 (2nd Dist. 1998). The landlord's noncompliance with R.C. 5321.18 does not waive this notice requirement if the tenant has actual knowledge of the landlord's name and address. *Highland House Co. v. Gedos*, No. 47064, 1984 WL 14194 (Ohio App., 8th Dist., Feb. 16, 1984).

The landlord also may waive this notice requirement if the landlord suggests or consents to the rent deposit. *Liggett v. Shitaker Props.*, No. 23425, 2010 WL 1410758 (Ohio App., 2nd Dist., Apr. 9, 2010). In *Liggett*, during a November 5 discussion with new management, the tenant expressed reluctance to pay November rent because of defective conditions. In response, the new management suggested that the tenant deposit the rent with the clerk of court. The court held that, in these circumstances, the landlord "consented to Liggett's escrowing the November rent money with the court and has waived his right to object." *Id.*, 2010 WL 1410758, ¶ 44.

Third, the tenant must give the landlord a reasonable time up to thirty days to remedy the condition specified in the R.C. 5321.07 notice (or to respond otherwise, such as furnishing information to refute the alleged noncompliance). R.C. 5321.07(B).

The determination of what constitutes a reasonable amount of time is based on the "severity of the condition and the time necessary to remedy such condition" *Id.* *E.g., Chasteen v. Dix Road Prop. Mgmt. LLC*, Nos. CA2020-04-055,056, 2021 WL 669061, ¶ 40 (Ohio App., 12th Dist., Feb. 22, 2021) (three weeks met the reasonable time requirement for landlord to remedy damage from sewage flood); *Stiffler v. Canterbury Runn Apts.* No. 19308, 2002 WL 31243541, ¶ 3 (Ohio App., 2nd Dist., Oct. 4, 2002) (fourteen days met the reasonable time requirement for landlord to repair water leak in kitchen ceiling where "water was running down her cabinets and onto her dishes, and mold was growing on her walls and carpet, which was becoming flooded. In addition, the globes covering her light fixtures were filling with water").

In any case, "R.C. 5321.07(B)(3) gives a landlord thirty days, *at the most*, to remedy a condition that violates the obligations imposed by R.C. 5321.04 or that a tenant reasonably believes to violate those obligations." *CMB P'ship v. Baker*, No. 18159, 2000 WL 706824, at *3 (Ohio App., 2nd Dist., June 2, 2000) (*italics original*).

Accord Pedra Props., L.L.C. v. Justmann, No. 102909, 2015 WL 9438446, ¶ 18 (Ohio App., 8th Dist., Dec. 24, 2015).

Fourth, based on the landlord's response to the R.C. 5321.07 notice, the tenant must reassess whether there are still valid grounds to rent deposit. The tenant is not authorized to rent deposit if, within a reasonable time after service of the notice, the landlord remedies the condition specified in the notice or, in refuting the tenant's noncompliance claim, the landlord negates any reasonable basis for asserting the claim. R.C. 5321.07(A),(B).

Fifth, the tenant must be current in rent payments due under the rental agreement. R.C. 5321.07(B).

If these five requirements for rent depositing have been satisfied, and if the landlord is not exempt from the rent deposit procedure, the tenant may then deposit rent, as the rent becomes due, with the clerk of court.

When a tenant tenders a rent deposit, the "clerk of court ... is under a clear legal duty to accept ... [the tenant's] tendered rent monies under R.C. 5321.07" *State ex rel. Taynor v. Hysell*, 19 Ohio App.3d 120, 121, 483 N.E.2d 156, 158 (10th Dist. 1984). It is a "ministerial duty" of the clerk. *Id.*

Before accepting a rent deposit, the clerk of court may require the tenant "to sign an affidavit swearing that the statutory preconditions to rent escrow have been met." *Chernin v. Welchans*, 641 F. Supp. 1349, 1355 (N.D. Ohio 1986), *aff'd*, 844 F.2d 322, 324 (6th Cir. 1988). *See, e.g., Crease v. Woods of Centerville*, No. 14819, 1995 WL 632085, at *2 (Ohio App., 2nd Dist., Oct. 25, 1995).

However, the clerk of court may not require the tenant to pay a fee in advance of rent depositing. *State ex rel. Gudzinis v. Constantino*, 43 Ohio App.3d 52, 539 N.E.2d 173 (11th Dist. 1988). "[T]he statute clearly places the onus of paying the fee on the landlord after the procedure [of R.C. 5321.09] has been completed." *Id.* at 54.

Upon receiving a tenant's rent deposit, the clerk of court is required to provide the landlord with written notice of the rent deposit, to place the deposited rent in a separate rent escrow account, and to record the deposit in a separate docket. R.C. 5321.08. However, if the landlord failed to comply with the landlord's R.C. 5321.18 obligation (*i.e.*, written notice to the tenant of the landlord's name and address, at the commencement of the tenant's occupancy), the landlord waives the right to receive the clerk of court's R.C. 5321.08 notice of the rent deposit. R.C. 5321.18(C).

B. Release of the Rent Deposits to the Landlord, R.C. 5321.09,.10

R.C. 5321.09 establishes the requirements and procedures for a landlord to secure the release of the R.C. 5321.07 rent deposits to the landlord.

The landlord may apply directly to the clerk of court for the release of the rent deposits, if the tenant has provided the clerk of court with a written notice stating that the condition specified in the R.C. 5321.07 notice has been remedied. R.C. 5321.09(A)(1). In these circumstances, the clerk of court is required to “forthwith release the rent deposits, less costs, to the landlord.” *Id.* For a discussion on the costs, see Section VIII.D, below.

Alternatively, the landlord may file an application with the court for the release of the rent deposits if one (or more) of the R.C. 5321.09(A)(2),(3) grounds for release is applicable. Those grounds are:

- (1) the tenant did not comply with the notice requirement under R.C. 5321.07(A);
- (2) the tenant was not current in rent payments at the time that the tenant initiated the rent depositing;
- (3) when the tenant initiated the rent depositing, the landlord was not in violation of R.C. 5321.04, the rental agreement, or the applicable codes; or
- (4) the condition specified in the R.C. 5321.07 notice has been remedied.²⁹⁴

The R.C. 5321.09(A)(2),(3) application is a complaint under the Ohio Rules of Civil Procedure. *Anderson v. MRW II Prop.*, No. RE 541 (Ohio Mun., Hamilton Cty., Jan. 9, 1990). See also *Woodside Terrace Mobile Home Owners Ass’n v. Woodside Terrace Co. Ltd.*, 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988) (construing R.C. 3733.122 (now R.C. 4781.43) – the manufactured home park provision for rent deposit release that is essentially identical to R.C. 5321.09); *Stoots v. Huber Mobile Home Park*, No. 1180, 1981 WL 2863 (Ohio App., 2nd Dist., July 27, 1981) (same).

²⁹⁴ One court released the rent deposit to the landlord for a related but different ground, namely: the tenant’s refusal to allow the landlord access to the premises to make the repairs, when the landlord sought access for this purpose on the date on which the parties had agreed the landlord would commence the repairs. *Stoyer v. Fogelman*, No. 11AP-737, 2012 WL 1059677 (Ohio App., 10th Dist., Mar. 27, 2012).

The complaint must name the tenant as a party. R.C. 5321.09(B). And it must be served on the tenant in accordance with Civil Rules 4.1 and 4.6. *See Woodside Terrace Mobile Home Owners Ass'n v. Woodside Terrace Co. Ltd.*, 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988); *Stoots v. Huber Mobile Home Park*, No. 1180, 1981 WL 2863 (Ohio App., 2nd Dist., July 27, 1981).

In an R.C. 5321.09 action, the tenant may file an answer and counterclaims as in other civil actions. R.C. 5321.09(B). *See Ferrato v. Maurer Realty*, No. WD-86-28, 1986 WL 13815 (Ohio App., 6th Dist., Dec. 5, 1986). Typically, the tenant's counterclaims will include one or more claims that are based on the defective condition at the premises for which the tenant commenced the rent deposit procedure. For a discussion on some of those potential claims, see Chapter IX, below.

If an R.C. 5321.09 counterclaim exceeds the municipal court's monetary jurisdiction, an issue exists as to whether the municipal court has exclusive jurisdiction over the R.C. 5321.09 claim only, the R.C. 5321.09 claim and the counterclaim, or neither of them. In two such cases, without expressly addressing this issue, the courts certified the R.C. 5321.09 claim and the counterclaim to the court of common pleas. *Stoyer v. Fogelman*, No. 11AP-737, 2012 WL 1059677 (Ohio App., 10th Dist., Mar. 27, 2012); *Bright Roads Assocs. v. Homoelle*, No. 95-APE10-1361, 1996 WL 125551 (Ohio App., 10th Dist., Mar. 19, 1996).

The trial on the landlord's R.C. 5321.09 claim for full release of the rent deposits, and on the tenant's counterclaims (if any), must be held within sixty days of the filing of the landlord's R.C. 5321.09 complaint. R.C. 5321.09(B), as modified by *Chernin v. Welchans*, 844 F.2d 322 (6th Cir. 1988) (striking down as unconstitutional the portion of R.C. 5321.09(B) that permits the court to continue the hearing date beyond the 60-day period). *See also Ferrato v. Maurer Realty*, No. WD-86-28, 1986 WL 13815, at *2 (Ohio App., 6th Dist., Dec. 5, 1986).

The court may not order a release of the rent deposits under R.C. 5321.09 unless it specifically finds, after conducting a trial, that at least one of the R.C. 5321.09(A)(2),(3) grounds for release is met. *See Woodside Terrace Mobile Home Owners Ass'n v. Woodside Terrace Co. Ltd.*, 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988). This requirement is not met if the court merely finds the landlord's "application for release of rent deposits well-taken, without stating any ground therefor." *Id.* at 22.

In an R.C. 5321.09 action, costs may not be assessed against the tenant unless the court specifically finds that the tenant is liable for such costs under R.C. 5321.09(D)

(see Section VIII.E, below). See *Woodside Terrace Mobile Home Owners Ass'n v. Woodside Terrace Co. Ltd.*, 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988).

During the pendency of an R.C. 5321.09 action (including any appeal), the landlord may file an application under R.C. 5321.10 for a partial release of the rent deposits, in order to meet certain operating expenses. *Blum v. Pennington*, No. 42422, 1981 WL 10409 (Ohio App., 8th Dist., Feb. 5, 1981). Those expenses are “payment of the periodic interest on a mortgage on the premises, the periodic principal payments on a mortgage on the premises, the insurance premiums for the premises, real estate taxes on the premises, utility services, repairs, and other customary and usual costs of operating the premises as a rental unit.” R.C. 5321.10.

“The pendency of an R.C. 5321.09 action is a jurisdictional prerequisite for the filing of an R.C. 5321.10 proceeding.” *Blum v. Pennington*, No. 42422, 1981 WL 10409, at *2 (Ohio App., 8th Dist., Feb. 5, 1981).

Prior to ruling on a landlord’s R.C. 5321.10 application for partial release, the court must provide the tenant with an opportunity to be heard regarding the application. *Blum v. Pennington*, No. 42422, 1981 WL 10409 (Ohio App., 8th Dist., Feb. 5, 1981).

In determining whether to grant a landlord’s R.C. 5321.10 application for partial release, the court must consider, among other things, “the costs which may be required to remedy the condition contained in the [R.C. 5321.07] notice” R.C. 5321.10(B).

Generally, a trial court’s order granting a landlord’s R.C. 5321.10 application for partial release is not a final appealable order. *Pratt v. Dykema*, Nos. 44624, 44625, 44626, 1981 WL 4724 (Ohio App., 8th Dist., Dec. 31, 1981). However, if the trial court repeatedly issues orders granting a partial release of the tenant’s accumulated rent deposits, the trial court’s order granting another partial release may be a final appealable order. *Id.*

R.C. 5321.10 is the only provision for a partial release of the rent deposits to the landlord. *Stewart v. Kalman*, Nos. 43-57 (Ohio Mun., Athens, Aug. 12, 1981), *aff’d in part, rev’d in part on other grounds and remanded*, No. 1109, 1982 WL 3509 (Ohio App., 4th Dist., Aug. 13, 1982). Neither R.C. 5321.07 nor R.C. 5321.09 authorizes a partial release of the rent deposits to the landlord. *Id.*

C. Release of the Rent Deposits to the Tenant

A tenant may not file an application under R.C. 5321.09 for the release of the R.C.

5321.07 rent deposits to the tenant. *Robinson v. Meyer*, No. CA-7735, 1989 WL 94378 (Ohio App., 5th Dist., Aug. 14, 1989); *Weibling v. Rine*, No. 77AP-355, 1977 Ohio App. LEXIS 7537 (Ohio App., 10th Dist., Aug. 30, 1977).

However, a tenant may secure the release of the rent deposits to the tenant in at least five ways.

First, if the tenant is awarded a money judgment against the landlord on an R.C. 5321.09(B) counterclaim, the court may order the clerk of court to release to the tenant the portion of the rent deposits that is necessary to satisfy the judgment. *E.g.*, *Slovak v. Univ. Off-Campus Hous.*, No. 99-CA-50, 2000 WL 680479 (Ohio App., 4th Dist., May 19, 2000); *Hansgen v. Seigel*, No. 00-CVR-40822 (Ohio Mun., Franklin Cty., May 29, 2001); *Roundtree v. Valentine*, No. 98-CVR-23790 (Ohio Mun., Franklin Cty., Jan. 28, 1999); *Cummings v. Cortese*, No. R88-CVE-2278 (Ohio Mun., Portage Cty., Dec. 4, 1989); *Dicks v. Schmelzer*, Rent Escrow No. 14 (Ohio County Ct., Muskingum Cty., Aug. 15, 1986); *Gill v. Lewis Zipkin & Assocs.*, No. 78-LLT-88 (Ohio Mun., Cleveland Heights, Oct. 31, 1979). *Cf. Chasteen v. Dix Road Prop. Mgmt. LLC*, Nos. CA2020-04-055,056, 2021 WL 669061 (Ohio App., 12th Dist., Feb. 22, 2021) (R.C. 5321.09 action in which the entire rent deposit is released to a tenant who did file counterclaims and who, pending the action, terminated the tenancy).

In these cases, if the court does not issue a release order, the tenant should nonetheless be able to attach the rent deposits to satisfy the judgment.

Second, if the tenant is awarded a money judgment against the landlord on a claim asserted in a complaint, the court may order the clerk of court to release to the tenant the portion of the rent deposits that is necessary to satisfy the judgment. *E.g.*, *O'Connor v. Maynard*, No. 00-CVG-01 (Ohio Mun., Jackson Cty., Apr. 17, 2001); *Walton v. Washington*, No. 93-CVG-07401 (Ohio Mun., Cleveland, Hous. Div., Dec. 7, 1993). *See also Tolliver v. Warren*, No. 99-CVG-13123 (Ohio Mun., Cleveland, Hous. Div., Dec. 28, 1999) (tenant counterclaim to landlord complaint for eviction and money judgment for unpaid rent).

In these cases, if the court does not issue a release order, the tenant should nonetheless be able to attach the rent deposits to satisfy the judgment.

Third, when the rent has been deposited with the court in conjunction with an R.C. 5321.07(B) civil action, if the tenant vacates the premises and then files a motion to dismiss the action under Civil Rule 41(A)(2), the court may dismiss the action on “such terms and conditions as the court deems proper,” which may include a release of the rent deposits to the tenant. *E.g.*, *Brown v. Balliett Group*, No. 98-RE-6 (Ohio Mun.,

Mansfield, July 13, 1998) (tenant vacated as a result of the city's condemnation of the building). *Cf. Miller v. Miller*, No. CVH-971763R (Ohio Mun., Portsmouth, May 23, 1998) (tenant dismissed the action under Civil Rule 41(A)(1)).

Fourth, the tenant may enter into an agreement with the landlord under which: (1) the tenant agrees to give a written notice to the clerk of court stating that the condition specified in the R.C. 5321.07 notice has been remedied; and (2) the landlord agrees to give the tenant a specified portion of the rent deposits as soon as they are released. Upon receiving the tenant's written notice, the clerk of court is required to release the rent deposits to the landlord. See Section VIII.B, above.

Fifth, under R.C. 5321.07(B)(2), the tenant may file an application with the court for an order releasing all or some of the rent deposits to the tenant to enable the tenant to remedy the condition specified in the R.C. 5321.07 notice. See Section VIII.H, below.

D. Fee of Clerk of Court on Release of Rent Deposits, R.C. 5321.08(D)

When releasing rent deposits to the landlord or the tenant, the clerk of court may assess a fee for the clerk's costs relative to the rent deposits. R.C. 5321.08(D). The amount of this fee may be up to one per cent of the amount of the rent deposited. *Id.* See also *State ex rel. Gudzinis v. Constantino*, 43 Ohio App.3d 52, 539 N.E.2d 173 (11th Dist. 1988) (finding that a \$25 minimum fee violated R.C. 5321.08(D)).

The clerk deducts this fee from the rent deposits when the clerk releases the deposits, regardless of the basis for the release.

This fee is different than the costs that a court may assess under R.C. 5321.09(D) (see Section VIII.E, below). See *Smith v. Vilks*, No. 46759, 1983 WL 2902 (Ohio App., 8th Dist., Dec. 15, 1983) (construing R.C. 3733.121, 122 (now R.C. 4781.42, 43) – the manufactured home park provisions on the clerk's duties and on releasing rent deposits that are essentially identical to R.C. 5321.08, .09).

E. Bad Faith Rent Depositing, R.C. 5321.09(D)

In an R.C. 5321.09 action, if a court finds that the tenant caused the condition specified in the R.C. 5321.07 notice or the tenant intentionally acted in bad faith in rent

depositing, the tenant is liable for the landlord's damages and costs. R.C. 5321.09(D). See *Gill v. Lewis Zipkin & Assocs.*, No. 78-LLT-88 (Ohio Mun., Cleveland Heights, Oct. 31, 1979). If the tenant intentionally acted in bad faith in rent depositing, the tenant is also liable for the landlord's reasonable attorney's fees. *Id.*

For R.C. 5321.09(D) purposes, bad faith includes “a dishonest purpose, moral obliquity, conscious wrongdoing, breach of a known duty through some ulterior motive or ill will partaking of the nature of fraud. It also embraces actual intent to mislead or deceive another.” *Wenzke v. Baird*, No. L-13-1244, 2014 WL 3408590, ¶ 25 (Ohio App., 6th Dist., July 11, 2014) (no evidence that the tenant acted with the requisite degree of culpability).

When city inspections find code violations at the premises that constitute grounds for rent depositing, it precludes a finding of bad faith under R.C. 5321.09(D). *Houtsinger v. Renzelli*, No. RE 123 (Ohio Mun., Athens Cty., July 31, 1987).

When a tenant is liable for costs under R.C. 5321.09(D), the costs are computed in accordance with Civil Rule 54. See *Smith v. Vilk*, No. 46759, 1983 WL 2902 (Ohio App., 8th Dist., Dec. 15, 1983) (construing R.C. 3733.122 (now R.C. 4781.43) – the manufactured home park provision on releasing rent deposits that is essentially identical to R.C. 5321.09).

F. Interplay Between Improper Rent Deposit and an Eviction Action

When a tenant's R.C. 5321.07 rent depositing is (or allegedly is) improper, two issues may arise in any related eviction action.

One issue arises when a tenant is rent depositing, the landlord files an eviction action for nonpayment of rent, and the landlord attempts to challenge the validity of the rent depositing in the eviction action. Cf. *Maryland Apts. v. Crump*, No. 96-CVG-38691 (Ohio Mun., Franklin Cty., Jan. 14, 1997) (eviction judgment for tenant because “rent in escrow”).

The issue is whether R.C. 5321.09 is the exclusive remedy for the landlord to challenge the validity of the rent depositing. No court decision has addressed this issue.

If R.C. 5321.09 is the exclusive remedy, a landlord cannot challenge the validity of the rent depositing in the eviction action unless three prerequisites are met. First, the landlord must allege an R.C. 5321.09 claim in the eviction complaint. Second, under R.C. 5321.09(B), the tenant must be given an opportunity to file an answer and

counterclaims to the R.C. 5321.09 claim as in other civil actions (*e.g.*, twenty-eight days to file the answer and counterclaims). Third, the trials on the eviction claim and the R.C. 5321.09 claim must be consolidated.

If these three prerequisites are not met and the landlord is thereby barred from challenging the validity of the rent depositing in the eviction action, the tenant's rent depositing should be a defense to the eviction action, regardless of whether the tenant complied with the R.C. 5321.07 requirements.

A second issue arises when a court releases the rent deposits to the landlord under R.C. 5321.09 and the landlord then files an eviction action against the tenant for nonpayment or late payment of the released rent.

The issue is whether the landlord may evict the tenant for nonpayment or late payment of the released rent. Court decisions are split on this issue. *Compare Real Props. Servs. Mgmt. v. Harigle*, No. 3-96-21, 1997 WL 430773 (Ohio App., 3rd Dist., July 30, 1997) (eviction not permitted; rent deposits released due to noncompliance with written notice requirement), and *Real Props. Servs. Mgmt. v. Anatra*, No. 3-96-22, 1997 WL 430778 (Ohio App., 3rd Dist., July 30, 1997) with *Timbercreek Vill. Apts. v. Myles*, No. 17422, 1999 WL 335307 (Ohio App., 2nd Dist., May 28, 1999) (eviction permitted; rent deposits released due to noncompliance with reasonable time requirement).

G. Constitutionality of the Rent Deposit Procedure

The rent deposit procedure established in R.C. 5321.07-.10 comports with the requirements of due process. *Chernin v. Welchans*, 844 F.2d 322 (6th Cir. 1988). The *Chernin* decision struck down only a minor portion of R.C. 5321.09(B), namely: the provision that permitted a court, for good cause shown, to hold the trial on a landlord's R.C. 5321.09 claim more than sixty days after the filing of the R.C. 5321.09 complaint.

The *Chernin* decision renders inconsequential the two municipal court decisions that, prior to *Chernin*, found that the rent deposit procedure violated due process. Those decisions are *Morris Inv. v. Kettman*, No. 80-CV-10735 (Ohio Mun., Hamilton Cty., Mar. 20, 1981), and *Rallie Co. v. Pastor*, No. M76-CVG-463763 (Ohio Mun., Franklin Cty., Apr. 11, 1977).

H. Tenant Claim for Repair, Reduced Rent, and Rent Release, R.C. 5321.07(B)(2)

When a tenant has satisfied the requirements for rent depositing (see Section VIII.A, above), in addition to or instead of rent depositing, the tenant may file an action under R.C. 5321.07(B)(2). In such actions, the tenant may request: (1) an order directing the landlord to remedy the condition specified in the R.C. 5321.07 notice, (2) an order reducing the periodic rent due the landlord until such time as the landlord remedies the specified condition, and/or (3) an order releasing the rent deposits to the tenant to enable the tenant to remedy the specified condition. R.C. 5321.07(B)(2). *E.g.*, *Stewart v. Kalman*, Nos. 43-57 (Ohio Mun., Athens, Aug. 12, 1981) (repairs and rent reduction), *aff'd in part, rev'd in part and remanded*, No. 1109, 1982 WL 3509 (Ohio App., 4th Dist., Aug. 13, 1982) (reversed and remanded only as to one of the defective conditions); *Woods v. Berry*, No. 76-CVH-21607 (Ohio Mun., Cleveland, Sept. 1, 1976) (repairs); *Player v. Martin*, No. 75-CVH-16844 (Ohio Mun., Cleveland, Oct. 3, 1975) (repairs and release of rent deposits to the tenant).

With respect to repair orders in R.C. 5321.07(B)(2) actions, courts may order the landlord to remedy all code violations, including those which are not specified in the R.C. 5321.07 notice and those which do not materially affect health and safety. *Stewart v. Kalman*, No. 1109, 1982 WL 3509, at *1-2 (Ohio App., 4th Dist., Aug. 13, 1982).

With respect to rent reduction orders in R.C. 5321.07(B)(2) actions, courts typically reduce the rent to the rental value of the premises in their defective condition, similar to general damages in a tenant's R.C. 5321.04 contract claim (see Section IX.A.8, below). *E.g.*, *Gammarino v. Smith*, No. C-060636, 2007 WL 2284573, ¶¶ 14,22-25 (Ohio App., 1st Dist., Aug. 10, 2007).

A tenant may file an R.C. 5321.07(B)(2) action at the same time that the tenant initiates rent depositing or any time thereafter, provided the tenant still meets the requirements for rent depositing. *See* R.C. 5321.07(B)(2).

The R.C. 5321.07(B) provision stating that “the tenant may do one of the following” requires the tenant to select between the remedies under R.C. 5321.07(B)(1),(2) and the remedy under R.C. 5321.07(B)(3).²⁹⁵ It does not bar a tenant

²⁹⁵ One court decision has permitted a tenant to rent deposit under R.C. 5321.07(B)(1) for one month and then terminate the rental agreement under R.C. 5321.07(B)(3). *Trepka v. Schultz*, No. 75338, 2000 WL 263734 (Ohio App., 8th Dist., Mar. 9, 2000).

from rent depositing under R.C. 5321.07(B)(1) and subsequently filing an R.C. 5321.07(B)(2) action. The basis for this conclusion is threefold.

First, it is the only reasonable interpretation of the R.C. 5321.07(B) punctuation, which includes a semi-colon at the end of R.C. 5321.07(B)(1) and a period at the end of both R.C. 5321.07(B)(2) and 5321.07(B)(3). The legislature's distinction between semi-colons and periods must be interpreted in a manner that does not render it nugatory and without meaning. See *Schwartz v. McAtee*, 22 Ohio St.3d 14, 21, 488 N.E.2d 479 (1986). The legislature's distinction is meaningful only if the semi-colon between (B)(1) and (B)(2) combines these remedies, and the period between (B)(2) and (B)(3) separates the (B)(3) remedy from the (B)(1) and (B)(2) remedies. If (B)(1), (B)(2), and (B)(3) are construed to be three separate and independent remedies from which the tenant may select only one, it would negate any distinction between the semi-colons and the periods.

Second, it is the interpretation that best advances the object sought to be obtained by R.C. 5321.07(B), and thus is the proper interpretation under R.C. 1.49(A) and 1.11.²⁹⁶ "The General Assembly enacted R.C. 5321.07 to provide tenants with leverage to redress breaches of [the landlord's R.C. Chapter 5321] duties." *Miller v. Ritchie*, 45 Ohio St.3d 222, 224, 543 N.E.2d 1265 (1989). Accord *City of Lakewood v. Novak*, 111 Ohio Misc.2d 1, 6, 746 N.E.2d 719 (Ohio Mun., Lakewood, 2000) ("The purpose of the rent deposit is to coerce a landlord to correct the code violations"). This purpose is best advanced by an interpretation of R.C. 5321.07(B) that permits a tenant to commence rent depositing under R.C. 5321.07(B)(1) and to file subsequently an R.C. 5321.07(B)(2) action.

Third, it is a reasonable interpretation of R.C. 5321.07(B) because, in requiring the tenant to select between the R.C. 5321.07(B)(1),(2) remedies and the R.C. 5321.07(B)(3) remedy, it recognizes that, if a tenant elects to terminate the rental agreement and vacate the premises under R.C. 5321.07(B)(3), the tenant lacks standing relative to the R.C. 5321.07(B)(1),(2) remedies (*i.e.*, future rent depositing, future landlord repairs of the premises, future rent reductions, and future rent deposit releases to make repairs).

²⁹⁶ See note 140, above.

I. Tenant Termination of the Rental Agreement, R.C. 5321.07(B)(3)

When a tenant has satisfied the requirements for rent depositing (see Section VIII.A, above), instead of rent depositing and/or filing an R.C. 5321.07(B)(2) action (see Section VIII.H, above), the tenant may terminate the rental agreement. R.C. 5321.07(B)(3). *E.g.*, *Lloyd v. Roosevelt Props.*, No. 105721, 2018 WL 3814972 (Ohio App., 8th Dist., Aug. 9, 2018); *Holmes v. Cobblestone Grove*, No. CA2016-04-075, 2017 WL 74986 (Ohio App., 12th Dist., Jan. 9, 2017); *Cont'l Enters., Ltd. v. Franklin*, No. 102899, 2016 WL 2941209 (Ohio App., 8th Dist., May 19, 2016); *Cont'l Enters., Ltd. v. Hunt*, No. 102200, 2015 WL 9460300 (Ohio App., 8th Dist., Dec. 24, 2015); *Turski v. Loesch*, No. L-05-1273, 2006 WL 3378415 (Ohio App., 6th Dist., Nov. 22, 2006); *Stiffler v. Canterbury Runn Apts.*, No. 19308, 2002 WL 31243541 (Ohio App., 2nd Dist., Oct. 4, 2002); *CMB P'ship v. Baker*, No. 18159, 2000 WL 706824 (Ohio App., 2nd Dist., June 2, 2000); *Trepka v. Schultz*, No. 75338, 2000 WL 263734 (Ohio App., 8th Dist., Mar. 9, 2000); *Leszczynski v. Brewer*, No. 12523, 1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991); *Hald v. Beatley*, No. 87AP-43, 1988 WL 37456 (Ohio App., 10th Dist., Mar. 29, 1988); *Pearson v. Huber Inv. Corp.*, No. 84AP-526, 1985 WL 9913 (Ohio App., 10th Dist., Mar. 21, 1985). *See also Shannon Way Apts. v. Jackson*, No. 92AP-254, 1992 WL 225567 (Ohio App., 10th Dist., Sept. 15, 1992) (landlord's reasonable and prompt remedy of the defect precluded an R.C. 5321.07(B)(3) termination of the rental agreement).

The effective date of a termination of a rental agreement under R.C. 5321.07(B)(3) may be as early as the first day of the lease term, if the R.C. 5321.07 notice is waived or precedes the commencement of the rental agreement. *E.g.*, *Shoemaker v. Whitt*, 129 Ohio App.3d 591, 718 N.E.2d 932 (2nd Dist. 1998) (R.C. 5321.18 waiver of the R.C. 5321.07 notice requirement). *See also Harpel v. Pierce*, Nos. 17163, 17168, 1999 WL 55700, at *5 (Ohio App., 2nd Dist., Feb. 5, 1999).

With respect to the R.C. 5321.07(B)(3) remedy, appellate courts are split on whether the R.C. 5321.07 notice requirement is met where the tenant has not provided the landlord with written notice of the defective condition, but the landlord has actual notice of the condition. The Eighth Appellate District has held that, in these circumstances, the R.C. 5321.07 notice requirement is met. *Sabik v. Drake*, No. 53588, 1988 WL 32111 (Ohio App., 8th Dist., Mar. 17, 1988); *Katzin v. Murad*, No. 46553,

1984 WL 7150 (Ohio App., 8th Dist., Jan. 5, 1984). The Sixth Appellate District has upheld a tenant's termination of a rental agreement under R.C. 5321.07(B), in these circumstances, although the court did not explicitly address this issue. *Keener v. Ewert*, 67 Ohio App.2d 17, 425 N.E.2d 914 (6th Dist. 1979). The Seventh Appellate District has held that, in these circumstances, the R.C. 5321.07 notice requirement is not met. *Rental Mgmt. v. Au*, No. 92-C-66, 1993 WL 307614 (Ohio App., 7th Dist., Aug. 10, 1993).

When a tenant elects to terminate a rental agreement under R.C. 5321.07(B)(3), the tenant may be required to provide the landlord with oral or written notice of the election. *See Shoemaker v. Whitt*, 129 Ohio App.3d 591, 594, 718 N.E.2d 932 (2nd Dist. 1998).

A tenant is not required to rely on or comply with R.C. 5321.07 to assert a common law claim of constructive eviction. *Schutte v. Nicholson*, No. C-910261, 1992 WL 19396 (Ohio App., 1st Dist., Feb. 5, 1992) (constructive eviction based on lack of heat for five days). For a discussion on constructive eviction, see Section XIV.C, below.

IX. Tenant Claims for Defective Condition at the Premises

A. R.C. 5321.04 Contract Claim

1. Introduction

When a landlord's failure to maintain or repair the premises violates an R.C. 5321.04(A) obligation, the tenant may have a contract claim against the landlord ("R.C. 5321.04 contract claim"). *Miller v. Ritchie*, 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989); *Laster v. Bowman*, 52 Ohio App.2d 379, 370 N.E.2d 767 (8th Dist. 1977). See also R.C. 5321.12.

"A landlord who fails to maintain a rental premises as required by R.C. 5321.04 is liable ... for damages for breach of contract, as the rental contract necessarily incorporates the duties imposed by the revised code" *Foss v. Reddy*, No. 68836, 1995 WL 643811, at *2 (Ohio App., 8th Dist., Nov. 2, 1995). Accord *Bozeman v. Cleveland Metro. Hous. Auth.*, Nos. 92435,92436, 2009 WL 3321402, at *3 n.4 (Ohio App., 8th Dist., Oct. 15, 2009).

The R.C. 5321.04 contract claim has three elements: (1) the landlord's violation of an R.C. 5321.04(A) obligation (see Section VII.C, above), (2) the tenant's damages as a direct result of the violation,²⁹⁷ and (3) prior notice to the landlord of the violation. The elements of the claim and related matters are discussed in Sections IX.A.2-12, below.

When a landlord's failure to maintain or repair the premises violates an express provision of the rental agreement, the tenant's contract claim is essentially the same as the R.C. 5321.04 contract claim. See *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987) (oral provision); *Kuhn v. Griffin*, 3 Ohio App.2d 195, 209 N.E.2d 824 (6th Dist. 1964) (written provision). For Ohio case law that establishes that leases are contracts, see Section VII.A, above.

"The breach of a contract for the lease of property may give rise to ordinary contract remedies for the injured party." *U.S.A. Parking Sys., Inc. v. Penn-Lillis Corp.*,

²⁹⁷ In an R.C. 5321.04 contract claim, a tenant may seek injunctive relief, in addition to monetary relief. See Section IX.A.7., below. When a tenant seeks injunctive relief, the prerequisites for issuing an injunction are an additional element of the claim.

No. 66936, 1995 WL 601186, at *4 (Ohio App., 8th Dist., Oct. 12, 1995). *Accord Kostoglou v. Midkiff Enters., Inc.*, No. 01-CA-23, 2001 WL 1469161, at *6 (Ohio App., 7th Dist., Nov. 6, 2001). Therefore, “[g]eneral contract principles govern damages recoverable in a tenant’s action for breach of a lease.” *Williams v. Cotton*, No. 66312, 1994 WL 236219, at *1 (Ohio App., 8th Dist., May 26, 1994).

2. Notice Requirement

The R.C. 5321.04 contract claim includes a notice requirement. No court decision has clearly and fully addressed this issue. However, *Miller v. Ritchie*, 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989), and lower court decisions seem to indicate that there is a notice requirement and it is the notice requirement that the Supreme Court initially established in *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 427 N.E.2d 774 (1981), and then clarified in *Sikora v. Wenzel*, 88 Ohio St.3d 493, 727 N.E.2d 1277 (2000), for the R.C. 5321.04 negligence per se claim. For a discussion on that notice requirement (“*Shroades/Sikora* notice”), see Section IX.B.2, below.

Miller refers to a requirement that the landlord be placed on notice of the defective condition. *Miller*, 45 Ohio St.3d at 226. The notice requirement was met in *Miller* by the tenant’s oral requests to the landlord for repairs and by a written notice of code violations from a county building inspection department to the landlord.

One appellate court and one municipal court have held that, absent any notice to the landlord of the defective condition, the tenant may not bring an R.C. 5321.04 contract claim. *Murray v. Bargo*, No. CA86-11-080, 1987 WL 15440 (Ohio App., 12th Dist., Aug. 10, 1987); *Crawley v. Brown*, No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005).

Two appellate courts and one municipal court seem to hold that the notice requirement of the R.C. 5321.04 contract claim does not require notice in writing. *Hofer v. Cooper*, No. 1909, 1989 Ohio App. LEXIS 870 (Ohio App., 11th Dist., Mar. 17, 1989); *Doganiero v. Cox*, No. 9-292, 1984 WL 6297 (Ohio App., 11th Dist., Apr. 2, 1984); *Lobo v. Hoelscher*, 44 Ohio Misc. 46, 336 N.E.2d 475 (Ohio Mun., Dayton, 1975). *But see Higgins v. Roe*, No. 73-CA-3 (Ohio App., 5th Dist., Apr. 2, 1979).

Application of the *Shroades/Sikora* notice to the R.C. 5321.04 contract claim is reasonable. The *Shroades/Sikora* notice is essentially the same as the notice requirements of two analogous claims.

One is the claim for a breach of a lease covenant to make repairs. The notice requirement for this lease claim is notice from the tenant to the landlord of the need of

repairs, unless the landlord has knowledge of the need. 65 Ohio Jur.3d Landlord and Tenant § 365 (2006). *Accord Rittenberg v. Donohoe Constr. Co. Inc.*, 426 A.2d 338, 344 (D.C. App. 1981); *J.C. Penney Co. v. Teddam Realty Corp.*, 33 A.D.2d 1006, 1007, 307 N.Y.S.2d 750, 751 (1970); *Stool v. J.C. Penney Co.*, 404 F.2d 562, 566 (5th Cir. 1968).

The other is the claim for a breach of the implied warranty of habitability, which exists in other jurisdictions. The notice requirement for this implied warranty claim is notice from the tenant to the landlord of the defective condition, unless the landlord has knowledge of the defective condition. *E.g.*, *Detling v. Edelbrock*, 671 S.W.2d 265 (Mo. 1984); *Berman & Sons, Inc. v. Jefferson*, 379 Mass. 196, 396 N.E.2d 981 (1979).

3. Reasonable Time to Remedy Issue

In an R.C. 5321.04 contract claim, an issue exists as to whether the landlord is liable for an R.C. 5321.04 violation upon receiving notice of the defective condition or upon the landlord's failure (if any) to remedy the condition within a reasonable time after receiving such notice.

One appellate court has held that a landlord is not liable for an R.C. 5321.04 violation if the landlord remedies the defective condition within a reasonable time after receiving notice of the condition. *Pedraza v. Oster Invs., Inc.*, No. 7-87-10, 1989 WL 29215 (Ohio App., 3rd Dist., Mar. 21, 1989). It concluded that, "[w]hile the landlord may have a duty to maintain the stairway in good repair, a reasonable amount of time must be allowed to effect the repairs." *Id.*, 1989 WL 29215, at *2. *See also Stiffler v. Canterbury Runn Apts.*, No. 19308, 2002 WL 31243541 (Ohio App., 2nd Dist., Oct. 4, 2002) (failed to remedy within reasonable time); *Boice v. Emshoff*, No. 13-98-23, 1998 WL 833686 (Ohio App., 3rd Dist., Dec. 3, 1998).

The implied warranty of habitability case law in other jurisdictions is split on this issue. *Compare Berman & Sons, Inc. v. Jefferson*, 379 Mass. 196, 396 N.E.2d 981 (1979) (liability upon receiving notice), and *Knight v. Hallsthammer*, 29 Cal.3d 46, 171 Cal. Rptr. 707 (1981) with *Glasoe v. Trinkle*, 107 Ill.2d 1, 479 N.E.2d 915 (1985) (liability upon failure to remedy within a reasonable time after notice), and *Detling v. Edelbrock*, 671 S.W.2d 265 (Mo. 1984).

The reasoning of the court decisions holding that the landlord is liable upon receiving notice of the defective condition is summarized in *Jefferson*, 379 Mass. at 202-03 (alteration in original):

The landlord argues that the existence of a serious defect in an

apartment is a potential breach of the warranty; the breach becomes actual only after the landlord has been notified of the defect and has had a reasonable time to repair. In *Hemingway*, however, we set out a very different picture of the warranty: “[The warranty] means that at the inception of the rental there are no latent [or patent] defects in facilities vital to the use of the premises for residential purposes and that these essential facilities will remain during the entire term in a condition which makes the property livable.” *Boston Hous. Auth. v. Hemingway*, *supra* at 199, quoting from *Kline v. Burns*, 111 N.H. 87, 92 (1971). Neither at the inception nor during the term of the lease did we leave room for a reasonable time to repair. Admittedly a tenant must notify her landlord of defects as a prerequisite to a rent abatement, but the purpose of this requirement is not to assure the landlord a reasonable time to repair. The requirement is designed to minimize the time the landlord is in breach and hence mitigate the permissible period of abatement of rent. The rent abatement begins when notice is given, not at a reasonable time after notice. Time for repairs has no place in the calculus.

4. Landlord Fault Issues

If a landlord is at fault for the defective condition, the landlord’s attempts to remedy the defective condition does not relieve the landlord of liability if the attempts are unsuccessful. *Lawrence v. Triangle Capital Corp.*, 90 Ohio App.3d 105, 107, 628 N.E.2d 74 (2nd Dist. 1993) (landlord liable for roach infestation; “the fact that Triangle made an effort to eliminate the vermin from the Lawrence apartment did not make living conditions, such as they were, any more predictable”); *Williams v. Wright*, No. 2000-CVG-01040 (Ohio Mun., Marietta, Aug. 15, 2001) (landlord liable for roach infestation; “Plaintiff [landlord] attempted to correct the problem but his efforts were unsuccessful”).

However, there are circumstances where the premises are not in compliance with the R.C. 5321.04(A) standards, and it is not the result of any action or inaction by the landlord. For example, there may be defective conditions at the rental unit solely because of a deficiency in the municipal water or sewer system.

The issue then is whether a landlord may be liable in an R.C. 5321.04 contract claim if the landlord is not at fault for the defective condition.

Two appellate districts have held that a landlord is not liable in these circumstances. *Conway v. Liddell*, No. 79799, 2002 WL 398687 (Ohio App., 8th Dist., Mar. 14, 2002) (landlord not liable under R.C. 5321.04(A) for sewer back-up resulting

solely from a defect in the public sewer system); *Paul v. Semirale*, No. 70438, 1996 WL 502143 (Ohio App., 8th Dist., Sept. 5, 1996) (same); *Stewart v. Kalman*, No. 1109, 1982 WL 3509 (Ohio App., 4th Dist., Aug. 13, 1982) (landlord not liable under R.C. 5321.04(A) for the inadequate water supply resulting solely from a defect in the municipal water system).

The implied warranty of habitability case law in other jurisdictions is split on this issue. Compare *Park W. Mgmt. Corp. v. Mitchell*, 62 A.D. 291, 404 N.Y.S.2d 115 (1978) (fault irrelevant to liability), *aff'd*, 47 N.Y.2d 316, 418 N.Y.S.2d 310 (1979), and *Berman & Sons, Inc. v. Jefferson*, 379 Mass. 196, 396 N.E.2d 981 (1979) with *George Washington Univ. v. Weintraub*, 458 A.2d 43 (D.C. App. 1983) (fault relevant to liability).

Court decisions holding that fault is irrelevant to liability recognize that: (1) the claim is a contract claim, (2) consideration of fault is not incorporated into any analogous body of warranty law, and (3) the essential objective of the warranty is not to penalize the landlord for wrongdoing, but rather to make sure that the tenant receives the property and services for which the tenant is paying. *Jefferson*, 379 Mass. at 200-02.

5. Subtenant Issues

“There is no privity of contract between the original lessor and a subtenant.” *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 271, 624 N.E.2d 245 (8th Dist. 1993). *Accord Mark-It Place Foods, Inc. v. New Plan Excel Realty Trust, Inc.*, 156 Ohio App.3d 65, 804 N.E.2d 979, ¶ 19 (4th Dist. 2004). Consequently, “a subtenant cannot maintain an action against the lessor on the original lease.” *Id.*

Likewise, “the lessor may not sue the subtenant for breach of a covenant contained in the original lease.” *Id.* However, the lessor may maintain an eviction action against a subtenant. *Id.* See Section I.O.3, above.

6. Tenant Cooperation Issues

If a tenant denies the landlord entry to make the repairs and thereby violates R.C. 5321.05(B), the tenant waives the right to recover damages for the landlord’s failure to make the repairs. *E.g., A.C.S. Realty & Inv. Corp. v. Smith*, No. 48664, 1985 WL 9025 (Ohio App., 8th Dist., May 23, 1985). *Cf. Stoyer v. Fogelman*, No. 11AP-737, 2012 WL 1059677 (Ohio App., 10th Dist., Mar. 27, 2012) (R.C. 5321.07 rent deposit released to landlord because tenant denied landlord access to make repairs).

Also, there are circumstances where a landlord's ability to remedy the defective condition requires the tenant's cooperation beyond simply allowing the landlord access to the dwelling unit. For example, where the defective condition is a bed bug infestation, the landlord may require the tenant to prepare the dwelling unit for the extermination service. See *Kenwood Gardens Ass'n, LLC v. Shorter*, No. L-10-1315, 2011 WL 3654493 (Ohio App., 6th Dist., Aug. 19, 2011). In such cases, the tenant's lack of cooperation may be a defense to the tenant's R.C. 5321.04 contract claim.

7. Injunctive Relief, and Contempt Enforcement

In an R.C. 5321.04 contract claim, the tenant may secure injunctive relief under Civil Rule 65 to enjoin the landlord from failing to remedy the R.C. 5321.04 violation. *E.g., Medi Invs. LLC v. Mitchell*, No 2020-CVG-009347 (Ohio Mun., Cleveland, Hous. Div., Dec. 11, 2020) (landlord "ordered to make any and all necessary repairs to correct the mechanical failure causing a lack of heat, or to replace if necessary any and all heating elements designed to distribute the heat to the premises"); *Woods v. Coleman*, No. 01-CVG-444 (Ohio Mun., Jackson Cty., Apr. 26, 2001) (preliminary injunction enjoining landlord from refusing to make the repairs necessary to provide the premises with running water, hot water, and a working toilet).

The injunctive relief will be similar to an R.C. 5321.07(B)(2) order directing the landlord to remedy the defective condition. See Section VIII.H, above. However, unlike an R.C. 5321.07(B)(2) claim, when seeking injunctive relief, the tenant may be required to address irreparable harm and bond issues.

An injunction order (or settlement) is usually most effective if it designates with specificity the repairs and services that the landlord is required to perform, and the date by which each repair and service shall be completed. For examples of such orders (or settlements), see *Hardin v. Meyer*, No. CVJ-94-00160 (Ohio Mun., Toledo, Hous. Div., Feb. 14, 1997) (settlement); *Mullins v. Vonderhaar*, No. 87-CV-07154 (Ohio Mun., Hamilton Cty., May 27, 1987) (order).

For settlement agreements, the tenant's interests are best protected if the agreement is filed with the court as a stipulation or entry and signed by the judge. This will enable the tenant to enforce the terms of the agreement through civil contempt proceedings, if necessary. *E.g., Hardin v. Meyer*, No. CVJ-94-00160 (Ohio Mun., Toledo, Hous. Div., Feb. 14, 1997), *aff'd*, No. L-97-1060, 1998 WL 636774 (Ohio App., 6th Dist., Sept. 18, 1998); *Lakota v. McElrath*, No. 2014-CVG-003743 (Ohio Mun., Cleveland, Hous. Div., Dec. 9, 2014).

“A trial court may make a finding of contempt even if the party’s failure to comply with the order was not purposeful, willful, or intentional.” *Hardin v. Meyer*, No. L-97-1060, 1998 WL 636774, at *6 (Ohio App., 6th Dist., Sept. 18, 1998). “It is no defense to a finding of contempt that a party acted in good faith and not in intentional disregard of a court order.” *Id.*

“A court may punish disobedience of its order, pursuant to R.C. 2705.02(A) or the court’s inherent power to enforce its authority.” *Id.*

“[T]he power to punish for contempt is inherent in the courts.” *First Bank of Marietta v. Mascrete, Inc.*, 125 Ohio App.3d 257, 265, 708 N.E.2d 262 (4th Dist. 1998). “Compensation of the injured party has been a traditional function of civil contempt.” *Id.* *Accord Oak Hill Banks v. Ison*, No. 03-CA-5, 2003 WL 22386806 (Ohio App., 4th Dist., Oct. 15, 2003). “[A] trial court may award damages and attorney fees as compensation for losses which occurred as a direct result of the contempt.” *Hardin*, 1998 WL 636774, at *7. *Accord Ison*, 2003 WL 22386806, ¶ 29; *Mascrete*, 125 Ohio App.3d at 265.

If a court elects to award damages and attorney’s fees under its inherent authority, the limitation of R.C. 2705.05 does not apply. *Hardin*, 1998 WL 636774, at *7. The only limitation of R.C. 2705.05 is that, in civil contempt proceedings, it permits courts to impose fines in specified amounts.

8. Monetary Relief

a. General Damages – General Rule

The measure of general damages in an R.C. 5321.04 contract claim is the difference between the rental value of the premises in their defective condition and the rental value of the premises without the defective condition.²⁹⁸ *Miller v. Ritchie*, 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989); *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987).

The amount of rent that the tenant is obligated to pay under the rental agreement is presumptive, but not conclusive, evidence of the rental value of the premises without the defective condition. *Miller*, 45 Ohio St.3d at 227; *Padgett*, 32 Ohio St.3d at 347;

²⁹⁸ This is the same standard that some jurisdictions use in connection with their implied warranty of habitability. *E.g., Glasoe v. Trinkle*, 107 Ill.2d 1, 479 N.E.2d 915 (1985); *Hilder v. St. Peter*, 144 Vt. 150, 478 A.2d 202 (1984); *Boston Hous. Auth. v. Hemingway*, 363 Mass. 184, 293 N.E.2d 831 (1973); *Mease v. Fox*, 200 N.W.2d 791 (Iowa 1972).

Pleasant v. Greenfield Station Apts., No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995). *E.g.*, *Heck v. Whitehurst Co.*, No. L-03-1134, 2004 WL 1857131 (Ohio App., 6th Dist., Aug. 20, 2004) (rental value without defects is contract rent of \$639 per month).

The rental value of the premises without the defective condition may be an amount either higher or lower than the contract rent. *Cochran v. Widra*, 35 Ohio Law Abs. 608, 41 N.E.2d 875 (Ohio App., 9th Dist., 1931). Consequently, at least in theory, the amount of the general damages may exceed the amount of the contract rent. *See Whitehouse Estates, Inc. v. Thompson*, 87 Misc.2d 813, 386 N.Y.S.2d 733 (Civ. Ct. 1976).

For a discussion on proof issues, relative to the rental value of the premises in their defective condition, see Sections IX.A.11,12, below.

When determining the rental value of the premises in their defective condition, the tenant should be mindful of the Supreme Court's observation that "[r]arely, if ever, will a defective rental property have a value of zero." *Miller v. Ritchie*, 45 Ohio St.3d 222, 226, 543 N.E.2d 1265 (1989).

But, in egregious cases, post-*Miller* court decisions have found a rental value of zero. *E.g.*, *Liggett v. Shitaker Props.*, No. 23425, 2010 WL 1410758 (Ohio App., 2nd Dist., Apr. 9, 2010) (serious infestation – each day tenant killed 30 to 40 roaches and 2 or 3 mice); *Pleasant v. Greenfield Station Apts.*, No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995) (unbearable temperatures due to air conditioner defect); *Hansgen v. Seigel*, No. 00-CVR-40822 (Ohio Mun., Franklin Cty., May 29, 2001) (no water and no heat except for portable heater in one room); *Roundtree v. Valentine*, No. 98-CVR-23790 (Ohio Mun., Franklin Cty., Jan. 28, 1999) (no hot water, raw sewage/standing water in basement, and other code violations); *Proctor v. Frame*, 90 Ohio Misc.2d 11, 695 N.E.2d 357 (Ohio Mun., Akron, 1998) (no electricity and no heat); *Moody v. Brady*, No. 92-CVF-549 (Ohio Mun., Clinton Cty., Mar. 8, 1993) (defective furnace made premises unsafe).

In *Miller*, the Supreme Court expressly rejected the reduction-in-use measure of

general damages,²⁹⁹ which some jurisdictions use in connection with their implied warranty of habitability.³⁰⁰ 45 Ohio St.3d at 226. However, insofar as the defective condition causes a reduction-in-use, it may be relevant to the rental value of the premises in their defective condition. *Id.*

In an R.C. 5321.04 contract claim, a tenant may recover general damages retroactive to the date on which the landlord's R.C. 5321.04(A) violation began, subject only to statute of limitations, laches, and equitable estoppel defenses. *Miller*, 45 Ohio St.3d at 225-26. *See also Pagoda Co. v. Smith*, No. 37936, 1979 Ohio App. LEXIS 11691, at *11 (Ohio App., 8th Dist., Feb. 8, 1979). For a discussion on the statute of limitations for an R.C. 5321.04 contract claim, see Section XXII.G, below.

b. General Damages – Assisted Housing

Tenants who reside in assisted housing³⁰¹ have standing to bring an R.C. 5321.04 contract claim. *Foss v. Reddy*, No. 68836, 1995 WL 643811 (Ohio App., 8th Dist., Nov. 2, 1995). *See also Bozeman v. Cleveland Metro. Hous. Auth.*, Nos. 92435, 92436, 2009 WL 3321402, ¶ 11 (Ohio App., 8th Dist., Oct. 15, 2009); *Malcom v. Tate*, No. 99-CVH-21689, slip op. at 3 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001). *But cf. Budac v. Nahmi*, No. 14901, 1991 WL 115908 (Ohio App., 9th Dist., June 19, 1991) (ODHS payment for security deposit).

In their claims, the measure of general damages is not based on the tenant's share of the subsidized rent, but rather is based on the full market rental value of the premises in their defective and non-defective condition, like any other tenancy. *Sertich v.*

²⁹⁹ The *Miller* decision also implicitly rejected two other standards that Ohio courts previously had used for measuring general damages in contract claims alleging a landlord's failure to maintain or repair the premises. Under one, the measure of general damages was the difference between the rental value of the premises in their defective condition and the contract rent. *E.g., Howard v. Simon*, 18 Ohio App.3d 14, 480 N.E.2d 99 (8th Dist. 1984); *Woolworth Co. v. Russo*, 16 Ohio Law Abs. 307 (Ohio App., 2nd Dist., 1933); *Glyco v. Schultz*, 35 Ohio Misc. 25, 289 N.E.2d 919 (Ohio Mun., Sylvania, 1972). Under the other, the landlord's failure to maintain the premises in a habitable condition relieved the tenant of the duty to pay any rent. *E.g., Wymer v. Kimbaugh*, No. 74AP-547, 1975 Ohio App. LEXIS 7359 (Ohio App., 10th Dist., Mar. 13, 1975); *Rains v. Temple*, No. 88-CVG-74 (Ohio Mun., Hillsboro, May 22, 1988).

³⁰⁰ *E.g., Pugh v. Holmes*, 486 Pa. 272, 405 A.2d 897 (1979); *Green v. Superior Court of City & County of San Francisco*, 10 Cal.3d 616, 111 Cal. Rptr. 704 (1974) (en banc); *McKenna v. Begin*, 3 Mass. App. Ct. 168, 325 N.E.2d 587 (1975).

³⁰¹ For the definition of "assisted housing," see note 163, above.

Jackson, No. CVG-1801089 (Ohio Mun., Cleveland Heights, Dec. 30, 2019); *Ronny v. Bowman*, No. 2007-CVG-24072 (Ohio Mun., Cleveland, Hous. Div., June 27, 2008, and Mar. 9, 2010); *Crawley v. Brown*, No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005); *Harris v. Winston*, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005); *Malcom v. Tate*, No. 99-CVH-21689 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001); *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991).³⁰² See also *Rosier v. Newman*, No. CVE-0500771 (Ohio Mun., Washington Court House, Mar. 5, 2007). But see *Wallpe v. McCurdy*, No. 84-CV-36081 (Ohio Mun., Hamilton Cty., Oct. 15, 1985). But cf. *Brown v. August*, No. 01-CA-0024, 2002 WL 22877 (Ohio App., 9th Dist., Jan. 9, 2002) (VA payment for rent).

“Because the federal rent subsidy is intended to provide Defendant [tenant] with decent housing, Defendant is entitled to damages based on the contract rent, not her share of that rent.” *Harris v. Winston*, No. 2004-CVG-28660, slip op. at 3 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005). Accord *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043, slip op. at 4 (Ohio Mun., Portage Cty., Oct. 25, 1991).

This rationale is more fully summarized in *Cruz Mgmt. Co. v. Wideman*, 417 Mass. 771, 775-76, 633 N.E.2d 384 (1994):

“Damages for breach of the implied warranty of habitability are measured by ‘the difference between the value of the dwelling as warranted (the rent agreed on may be evidence of this value) and the value of the dwelling as it exists in its defective condition.’” This measure of damages is purely compensatory. It “gives a tenant ... the benefit of the bargain because the implied warranty of habitability is part of the bargain” the tenant makes with a landlord when the tenant agrees to pay rent.... Recovery on this basis is neither a windfall to the tenant nor an award of punitive damages. It is compensation for the infringement of a contractual right.... Whether or not the tenant is required to pay in rent the full value of the apartment as warranted, the tenant is nonetheless entitled to damages based on the value of the premises in a liveable condition.... It is, after all, the tenant who

³⁰² Other jurisdictions also use this approach in computing general damages for assisted housing tenants under their implied warranty of habitability. E.g., *Penny Point Park Apts. v. Barnes*, 2007 WL 3289133 (N.J. Super. Nov. 8, 2007); *Committed Cmty. Assocs. v. Crosswell*, 250 A.D.2d 845, 673 N.Y.S.2d 708 (1998); *Cruz Mgmt. Co. v. Wideman*, 417 Mass. 771, 633 N.E.2d 384 (1994).

suffers when conditions in an apartment violate the implied warranty of habitability.

Accord Ronny v. Bowman, No. 2007-CVG-24072 (Ohio Mun., Cleveland, Hous. Div., June 27, 2008, and Mar. 9, 2010).

The rental units in the assisted housing programs have a market-based contract rent. In the assisted housing programs other than Public Housing, the market-based contract rent is set forth in the lease. It is the sum of the tenant's portion of the rent and the rent subsidy paid on behalf of the tenant. In Public Housing, it is the flat rent (see 24 C.F.R. § 960.253(b)), which is a maximum rent for the rental unit. See *Walker v. Boston Hous. Auth.*, No. 00-H84-CV-000149, slip op. at 19 (Mass. Hous. Ct., Boston Div., June 9, 2009) ("the flat rents best approximate the fair market value of a public housing unit").

The market-based contract rent for an assisted housing rental unit, like the contract rent in private housing, is presumptive evidence of the rental value of the premises without the defective condition.

c. General Damages – Amounts Awarded

Court decisions awarding general damages in an R.C. 5321.04 contract claim are set forth below, along with the R.C. 5321.04 violation, the contract rent, and the amount of the general damages awarded.

Bynum v. Cotterman, No. 26222, 2015 WL 751720 (Ohio App., 2nd Dist., Feb. 20, 2015)

R.C. 5321.04 violation: bed bug infestation for 11 months; lack of use of bathtub (due to poor drainage) for two weeks. Contract rent: \$800 per month. Damage award: \$200 per month for 11 months (total of \$2,200) for bed bug infestation; \$200 for lack of use of bathtub for two weeks.

Liggett v. Shitaker Props., No. 23425, 2010 WL 1410758 (Ohio App., 2nd Dist., Apr. 9, 2010)

R.C. 5321.04 violation: infestation of roaches and mice – tenant "killing thirty to forty roaches a day, two to three mice a day" – causing "conditions in the unit [that] were intolerable and inexcusable." Contract rent: \$525 per month. Damage award: \$525 per month for two months, total of \$1,050 (released to tenant from rent deposit).

Heck v. Whitehurst Co., No. L-03-1134, 2004 WL 1857131 (Ohio App., 6th Dist., Aug. 20, 2004)

R.C. 5321.04 violation: cigarette smoke from neighbor's apartment precluded use of

master bedroom and closet. Contract rent: \$639 per month. Damage award: \$319.50 per month for 12 months, total of \$3,834.

Pleasant v. Greenfield Station Apts., No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995)

R.C. 5321.04 violation: Failure to repair air conditioner, which caused unbearable temperatures in the apartment. Contract rent: \$629 per month. Damage award: total of \$629 for seven weeks.

Houshour v. Pfisterer, No. 2021-CVG-350 (Ohio Mun., Canton, June 10, 2021)

R.C. 5321.04 violation: failure to provide adequate heat. Contract rent: \$375 per month. Damage award: \$2,675 (\$375 monthly rent amount for six months, plus \$425 security deposit for another rental unit).

Johnson v. Rahim, No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020)

R.C. 5321.04 violation: Lack of water service for 77 days. Contract rent: \$927 per month. Damage award: \$2,310.

ATKM Mgmt. Group LLC v. Talley, No. 2018-CVG-018737 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 2019)

R.C. 5321.04 violation: Mold for seven months; vermin infestation and furnace not working properly for five months. Contract rent: \$775 per month. Damage award (mold): \$350 (\$50 per month for seven months); Damage award (vermin and faulty furnace): \$250 (\$50 per month for five months).

Baer v. Maynard, No. LLT-18-5 (Ohio Mun., Marion Cty., Apr. 29, 2019)

R.C. 5321.04 violation: Frequent water and sewage backup in the basement, for five months. Contract rent: \$675 per month. Damage award: \$1,750 (\$350 per month, for five months).

Hamilton v. Dickerson, No. 2016-CVG-4233 (Ohio Mun., Franklin Cty., Jan. 2, 2018)

R.C. 5321.04 violation: Lack of water service for 13 days. Contract rent: \$450 per month. Damage award: \$200.

Brown v. Williams, No. 2012-CVG-17491 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 2014, and May 2, 2014)

R.C. 5321.04 violation: Lack of water service, the result of which tenant “lost almost all use of the property for the two weeks that the water was off.” Contract rent: \$641. Damage award: \$320 (the full contract rent for the two-week period).

Ronny v. Bowman, No. 2007-CVG-24072 (Ohio Mun., Cleveland, Hous. Div., June 27, 2008, and Mar. 9, 2010)

R.C. 5321.04 violation: “primarily cosmetic” – breaker box knockout caps, tub caulking, porch painting, motion detector bulb, yard debris, step handrails, carpet attachment on stairs, smoke detector, and floor support for weak areas. Contract rent: \$772 per month. Damage award: \$50 per month for six months, total of \$300.

H-1 Mgmt. LLC v. Perryman, No. 2006-CVG-28200 (Ohio Mun., Cleveland, Hous. Div., July 10, 2007)

R.C. 5321.04 violation: lack of heat for two weeks; water leak to basement from ducts; kitchen ceiling water damage, hole and major cracks, evidencing water leak; bedroom outlets not grounded; missing or broken cover plate to wires hanging by furnace; and defective paint on exterior. Contract rent: \$520 per month. Damage award (lack of heat for two weeks): \$195 (75% reduction of contract rent). Damage award (other defective conditions): \$50 per month for nine months, total of \$450.

Rosier v. Newman, No. CVE-0500771 (Ohio Mun., Washington Court House, Mar. 5, 2007)

R.C. 5321.04 violation: laundry room (roof leak, light fixture inoperative, paint chipping, washer drain backflow); kitchen (ceiling leak, pipes to upstairs apartment leak, sink feedline leak, cabinets defective); bathroom (tub drain clog, hot water without pressure); front porch (deck and handrail defects); backyard (debris of shingles and nails); basement (waste-water clean-up and defective pipes). Contract rent: \$425. Damage award: \$225 per month for 12 months, total of \$2,700.

Francis v. Peters, No. 05-CVG-1116 (Ohio Mun., Chillicothe, Sept. 21, 2006)

R.C. 5321.04 violation: basement flooding and electrical service problems, including the circuit breaker often kicking off, causing a loss of power to the house and, therefore, a loss of the furnace and hot water heater. Contract rent: \$425 per month. Damage award: \$125 per month for 20 months, total of \$2,500.

Clark v. Schiff, No. 05-CVG-1103 (Ohio Mun., Chillicothe, July 24, 2006)

R.C. 5321.04 violation: defective kitchen window, roof leak, and defective carpet. Contract rent: \$375 per month. Damage award: \$175 per month for 3.5 months, total of \$615.

Dickson v. Lancaster, No. 06-CVG-288 (Ohio Mun., Jackson Cty., May 18, 2006)

R.C. 5321.04 violation: roof leak, causing ceiling to fall in one room, making the room unusable. Contract rent: \$400 per month. Damage award: \$266.67 (pro-rated value of one of six rooms (\$66.66 per month) for four months).

Jackson v. George, No. 05-CVF-01761 (Ohio Mun., East Cleveland, Feb. 16, 2006)

R.C. 5321.04 violation: lack of water service, due to landlord's failure to pay water bill. Contract rent: \$811. Damage award: \$300 per month for four months, total of \$1,200.

Howard v. Reeves, No. 05-CVG-1910 (Ohio Mun., Chillicothe, Jan. 26, 2006)

R.C. 5321.04 violation: electrical service problems; exposed electrical wires; defective duct work, doors, and windows; and construction debris. Contract rent: \$500 per month. Damage award: \$164.26 per month for six months, total of \$985.58 (released to tenant from rent deposit).

Crawley v. Brown, No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005)

R.C. 5321.04 violation: inadequate heat, exposed electrical wiring, water damage, loose/broken/missing flooring in kitchen, hole in chimney opening into a room, holes in bathroom ceilings, kitchen sink leak, missing lock hardware on rear entrance door. Contract rent: \$507. Damage award: \$101 per month for seven months, total of \$707.

Caraballo v. Moreno, No. 2005-CVG-00330 (Ohio Mun., Cleveland, Hous. Div., Sept. 7, 2005)

R.C. 5321.04 violation: kitchen sink drain problem, requiring tenant to cart water between bathroom and kitchen and to wash dishes in bucket; bedroom electrical outlet and overhead light not functional, requiring use of extension cord from kitchen to bedroom; balcony unsafe. Contract rent: \$475 per month. Damage award: \$200 per month for 6.5 months, total of \$1,300.

Harris v. Winston, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005)

R.C. 5321.04 violation: Collapsed ceiling (preventing use of property for four months); water leak from upstairs toilet into the unit; kitchen sink back-up; windows not closing properly; insufficient heat due to furnace defects; and lead paint. Contract rent: \$555 per month. Damage award (collapsed ceiling): \$555 per month for four months, total of \$2,220. Damage award (other defective conditions): \$305 per month for 11 months plus five days, total of \$3,405.

Damron v. McKnight, No. 03-CVG-524 (Ohio Mun., Chillicothe, Dec. 12, 2003)

R.C. 5321.04 violation (manufactured home): windows (most did not open and algae growth around some); kitchen (sink leak and weakened flooring); living room (mold on carpet due to window leaks, and bare electrical wires hanging from ceiling); bedrooms (ceiling sinking, with evidence of mold growth, and floors weak and sinking); bathroom (flooring extremely weak and rotting due to bathtub and sink leaks,

and hole to exterior in closet). Contract rent: \$200 per month. Damage award (settlement): total of \$800 for 6.5 months (based on rent reduction from \$1,300 to \$500).

Pierson-Kalabins v. Shaw, No. CV2003-12-3449, 2003 WL 25780617 (Ohio C.P., Butler Cty., Feb. 11, 2003)

R.C. 5321.04 violation: lack of reasonable heat; “live wires coming from the ceiling in the kitchen, an unfinished wall between the kitchen and the living room, several unfinished electrical outlets throughout the home, unfinished insulation in the back patio, several windows that were unframed, and broken plumbing fixtures in the bathroom;” and “roof was unfinished, and, as a result, creatures were crawling up there all of the time.” Contract rent: \$1,000 per month. Damage award (lack of reasonable heat): \$200 per month for four months, total of \$800. Damage award (other defective conditions): \$300 per month for 16 months, total of \$4,800.

Parker v. Hiles, No. 02-CVH-362 (Ohio Mun., Chillicothe, Jan. 6, 2003)

R.C. 5321.04 violation: “the rental unit ... was in poor condition resulting in condemnation.” City inspector’s report found broken windows, exposed wiring, holes in walls and floors, bathroom sink unable to drain, bathtub sinking, basement full of trash and solid waste, electric or kerosene heaters due to lack of gas, and more. Contract rent: \$300 per month. Damage award: \$225 per month for seven months, total of \$1,575.

Williams v. Wright, No. 2000-CVG-01040 (Ohio Mun., Marietta, Aug. 15, 2001)

R.C. 5321.04 violation: roach infestation. Contract rent: \$375 per month. Damage award: \$225 per month for five months, total of \$1,125.

Woods v. Coleman, No. 01-CVG-444 (Ohio Mun., Jackson Cty., Aug. 6, 2001)

R.C. 5321.04 violation: no running water or working toilet. Contract rent: \$350 per month. Damage award: \$300 per month for six months, total of \$1,800.

Malcom v. Tate, No. 99-CVH-21689 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001)

R.C. 5321.04 violation: “electrical problems, backyard containing garbage and debris, window to the back door missing, lack of working stove, stains on the living room carpet, hole in the hallway floor, mildew on the bathroom wall and ceiling, part of the baseboard in the bathroom missing, several heat register covers missing, no locks on bedroom windows, doorknob on side entry door missing, doorknob on second bedroom door missing, inoperative ceiling fan in dining room, gutter on side of house missing, and living room windows which would not open.” Contract rent: \$369 per month. Damage award: \$100 per month for five months, total of \$500.

Hansgen v. Seigel, No. 00-CVR-40822 (Ohio Mun., Franklin Cty., May 29, 2001)

R.C. 5321.04 violation: no water or heat except for portable heater in one room. Contract rent: not specified. Damage award: the entire contract rent per month for five months.

O'Connor v. Maynard, No. 00-CVG-01 (Ohio Mun., Jackson Cty., Apr. 17, 2001)

R.C. 5321.04 violation: defective stove and refrigerator. Contract rent: \$275 per month. Damage award: \$50 per month for six months, total of \$300.

Tolliver v. Warren, No. 99-CVG-13123 (Ohio Mun., Cleveland, Hous. Div., Dec. 28, 1999)

R.C. 5321.04 violation: "bathroom floor was cracked, the toilet was not secured to floor, the tub was worn, the sink was not properly affixed to wall, and the ceiling had a hole in it," defective electrical outlets, a heating vent was not secured to the wall, a screen door was missing a bottom panel, and defect in window seat drawers. Contract rent: \$300 per month. Damage award: \$75 per month for 12 months, total of \$900.

Roundtree v. Valentine, No. 98-CVR-23790 (Ohio Mun., Franklin Cty., Jan. 28, 1999)

R.C. 5321.04 violation: 47 unspecified code violations and, during the last two months, no hot water and raw sewage/standing water in the basement. Contract rent: \$650 per month. Damage award: \$325 per month for four months and \$650 per month for the last two months.

Helm v. Peoples, No. 94-CVG-144 (Ohio Mun., Jackson Cty., Apr. 17, 1996)

R.C. 5321.04 violation: leaking water lines, improper venting of heaters, lack of heat in portion of house, and improper drainage from house. Contract rent: \$250 per month. Damage award: total of \$1,400 for seven months.

Weingarden v. Eagle Ridge Condos., 71 Ohio Misc.2d 7, 653 N.E.2d 759 (Ohio Mun., Toledo, Hous. Div., 1995)

R.C. 5321.04 violation: substantial leaking into carpeted basement, whenever rain or snow melting, caused soaked carpet and mildew and, thus, rendered basement (one-third of the apartment) uninhabitable. Contract rent: \$750 per month. Damage award: \$250 per month for three months, total of \$750.

Crooks v. Kingery, No. 94-CVG-495 (Ohio Mun., Chillicothe, June 14, 1995)

R.C. 5321.04 violation: "bathroom floor was noticeably wet and unsanitary, the shower failed to drain properly, the kitchen and bathroom sinks failed to drain properly, and a sewage pipe outside the house discharged sewage onto the ground resulting in an unsanitary condition and offensive smells." Contract rent: \$235 per month. Damage award: total of \$770 for seven months.

Myricks v. Reed, No. 93-CVG-05580 (Ohio Mun., Cleveland, Hous. Div., Apr. 14, 1994)

R.C. 5321.04 violation: “garage in need of repair, electric box deficiency, weak porch and interior floors, missing storm windows and wall cracks,” and “insufficient heat from faulty furnace for period of at least four months for the 1992-1993 season.” Contract rent: \$350 per month. Damage award: \$75 per month for nine months, total of \$675.

Walton v. Washington, No. 93-CVG-07401 (Ohio Mun., Cleveland, Hous. Div., Dec. 7, 1993)

R.C. 5321.04 violation: “electrical, structural, and plumbing violations,” and “infestation of roaches and mice.” Contract rent: \$475 per month. Damage award: \$225 per month for five months, total of \$1,125.

Bierman v. Maharidge, No. CVG-920275 (Ohio Mun., Vermilion, Mar. 31, 1993)

R.C. 5321.04 violation: no heat to second floor bedrooms, no running water, basement constantly flooded, and back door and porch defective. Contract rent: \$200 per month. Damage award: \$100 per month for 17 months, total of \$1,700.

Moody v. Brady, No. 92-CVF-549 (Ohio Mun., Clinton Cty., Mar. 8, 1993)

R.C. 5321.04 violation: defective furnace that made premises unsafe from January 15 to March 31, 1991, and caused the tenants, who paid rent through March 31, 1991, to vacate on January 31, 1991. Contract rent: \$325 per month. Damage award: \$325 per month for 2.5 months, total of \$822.50.

Corrin v. Gamboa, No. 91-CVG-7366 (Ohio Mun., Canton, June 17, 1992)

R.C. 5321.04 violation: “roach problem,” lack of timely repair of latch on back door, denial of access to basement area, failure to repair stove, failure to repair blower on furnace, and number of structural defects. Contract rent: not specified. Damage award: total of \$1,175 for 18 months.

Zeidman v. McCarty, No. R92-CVG-1036 (Ohio Mun., Portage Cty., June 16, 1992)

R.C. 5321.04 violation: “numerous electrical and plumbing problems,” and “water softener failed.” Contract rent: \$455 per month. Damage award: \$50 per month for eight months, total of \$400.

Kenwood Courts Apts. v. Williams, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991)

R.C. 5321.04 violation: repeated flooding, repeated sewage back-ups into the kitchen sink, plumbing problems, lack of screens and air conditioning, and many other miscellaneous problems. Contract rent: not specified. Damage award: \$100 per

month, total of \$2,784.

Miller v. Gage, No. 90-CVG-31902 (Ohio Mun., Cleveland, Hous. Div., Apr. 24, 1991)

R.C. 5321.04 violation: hanging electrical fixture in bedroom, broken smoke detector, infestation of roaches, leaking skylight, bullet holes in windows, flaking paint in dining room requiring family to eat in living room, opening in wall that led to unsecured vacant part of structure, littered front yard, unfinished paint application, and dry cold-water tap. Contract rent: \$240 per month. Damage award: \$75 per month for eight months, total of \$600.

Peterson v. Walker, No. 89-CVG-27148 (Ohio Mun., Cleveland, Hous. Div., July 23, 1990)

R.C. 5321.04 violation: drain or waste lines to lavatory deteriorated and leaking, exterior foundation in need of pointing, interior ceilings with loose or deteriorated materials, and interior wall cracks. Contract rent: \$385 per month. Damage award: \$100 per month for 26 months, total of \$2,600.

Cummings v. Cortese, No. R88-CVE-2278 (Ohio Mun., Portage Cty., Dec. 4, 1989)

R.C. 5321.04 violation (plaintiff Clark): not specified in judgment entry, but alleged in the complaint to be leaking roof, defective or missing downspouts, leaking shower, defective plumbing, ceilings and walls in disrepair, defective electrical wiring, missing covers for electrical outlets, back door that cannot be unlocked, and lack of handrail on porch. Contract rent (plaintiff Clark): not specified in judgment entry but alleged in the complaint to be \$158 per month. Damage award (plaintiff Clark): \$25 per month for 16 months, total of \$400.

Guaranteed Mgmt. Co. v. DeMaio, No. 88-CVG-01120 (Ohio Mun., Willoughby, Nov. 1, 1989)

R.C. 5321.04 violation: exposed electrical wiring, absence of smoke detectors, non-functioning lock on the front door, sagging bathroom floor, leaking roof, and leaking pipes. Contract rent: \$500 per month. Damage award: \$125 per month for nine months, total of \$1,125.

Gibson v. Suiter, No. 88-CVH-2, 1989 WL 572089 (Ohio Mun., Lawrence Cty., July 18, 1989)

R.C. 5321.04 violation: low water pressure, absence of water (five times), discoloration of water (once a month), weak floors, loose vent covers, holes in wall and in bedroom door and in bedroom floor, insufficient cooling by air conditioner, cold air around windows, defective bathroom door, potholes in driveway, loose metal stripping on edge of carpet, leaking toilet, leaking front door, and leaking kitchen sink. Contract rent: \$185 per month. Damage award (low water pressure): \$35 per month for five

months, total of \$165. Damage award (all violations): \$60 per month for three months, total of \$180.

Mentor Lagoons, Inc. v. Ventra, No. 88-CVF-875 (Ohio Mun., Mentor, Nov. 23, 1988), *aff'd*, No. 89-L-14-026, 1990 WL 128270 (Ohio App., 11th Dist., Sept. 7, 1990)

R.C. 5321.04 violation: defective air conditioners, which compelled the tenant and her fourteen-month-old baby to sleep at a relative's house. Contract rent: \$400 per month. Damage award: \$200 per month for two months, total of \$400.

James v. Campbell, No. 87-SC-I-2 (Ohio Mun., Ironton, July 13, 1987)

R.C. 5321.04 violation: bathroom facilities unusable due to malfunctioning sewage hook-ups. Contract rent: not specified. Damage award: total of \$495 for three months.

Cardwell v. Carmichael, No. 84-CVG-21049 (Ohio Mun., Cleveland, Hous. Div., Nov. 18, 1985), *rev'd in part on other grounds*, No. 51293, 1986 WL 13694 (Ohio App., 8th Dist., Dec. 4, 1986)

R.C. 5321.04 violation: attic and basement inaccessible due to landlord's failure to remove trash from those areas. Contract rent: \$300 per month. Damage award: \$100 per month for 2.5 months, total of \$250.

Heritage Hills, Ltd. v. Bragg, No. 86-CVG-169 (Ohio Mun., Chillicothe, Sept. 11, 1986), *aff'd in part, rev'd in part on other grounds*, No. 1379, 1987 WL 16079 (Ohio App., 4th Dist., Aug. 27, 1987)

R.C. 5321.04 violation: inoperable air conditioner. Contract rent: not specified. Damage award: total of \$180 for 10 months.

Hale v. Pease, No. 84-CIV-G-1128 (Ohio Mun., Painesville, Sept. 13, 1984)

R.C. 5321.04 violation: broken water lines. Contract rent: \$200 per month. Damage award: \$100 per month for eight months, total of \$800.

Tolle v. Foote, No. 5-84-CVG-30 (Ohio Mun., New Philadelphia, Apr. 26, 1984)

R.C. 5321.04 violation: failure to provide reasonable amounts of running water at all times. Contract rent: \$198 per month. Damage award: \$2 per day for 425 days, total of \$850.

Howard v. Simon, No. 82-CIG-10516 (Ohio Mun., Shaker Heights, Sept. 10, 1983), *aff'd as modified*, 18 Ohio App.3d 14, 480 N.E.2d 99 (8th Dist. 1984)

R.C. 5321.04 violation: defective air conditioning system. Contract rent: not specified. Damage award: \$90 per month for four months, total of \$360.

Donley v. Davis, No. 80-LT-20 (Ohio Mun., Youngstown, June 10, 1981)

R.C. 5321.04 violation: roach infestation, repeated incidents of electrical short circuits

and blown fuses in the kitchen, and plumbing problems. Contract rent: not specified in court's order but stated elsewhere to be \$150 per month. Damage award: \$25 per month for six months, total of \$150.

Faunce v. Miller, No. 80-CVI-1271 (Ohio Mun., Fremont, Apr. 2, 1981)

R.C. 5321.04 violation: improperly working stove and refrigerator, which caused tenant to install tenant's stove and refrigerator, and insufficient hot water and inadequate water supply. Contract rent: not specified. Damage award: \$100 for landlord's failure to provide a properly working stove and refrigerator, and \$10 per day for six days of the water problem, total of \$160.

Gill v. Lewis Zipkin & Assocs., No. 78-LLT-88 (Ohio Mun., Cleveland Heights, Oct. 31, 1979)

R.C. 5321.04 violation: broken windows and lack of weather-tight windows. Contract rent: \$295 per month. Damage award: monthly amounts of \$43.50, \$29, \$58, \$45.03, total of \$233.53.

Pagoda Co. v. Smith, No. 76-CVG-1548 (Ohio Mun., Cleveland Heights, Feb. 25, 1977), *aff'd*, No. 37936, 1979 Ohio App. LEXIS 11691 (Ohio App., 8th Dist., Feb. 8, 1979) (Defendant Smith)

R.C. 5321.04 violation: front door latch jammed intermittently, windows could not be opened or closed fully, hole in kitchen wall which provided access to the apartment for mice, improperly fitted connection for garbage disposal causing water seepage, and common area problems (*i.e.*, failure to repair properly the building's front entrance locks and basement door locks and basement windows, exposed and loose wiring and faulty plumbing and deteriorated ceiling in the basement of the building, defective stair and rail on building's fire escape, inappropriate and insufficient number of refuse receptacles for the building, and failure to repair brick walkway in the building's courtyard). Contract rent: \$300 per month. Damage award: total of \$350 for the period late 1974 to October 18, 1976.

Pagoda Co. v. Smith, No. 76-CVG-1548 (Ohio Mun., Cleveland Heights, Feb. 25, 1977), *aff'd*, No. 37936, 1979 Ohio App. LEXIS 11691 (Ohio App., 8th Dist., Feb. 8, 1979) (Defendant Beres)

R.C. 5321.04 violation: various windows could not be opened, bathtub drain did not operate properly, kitchen floor peeling, hole in the kitchen wall which provided access to the apartment for mice, improperly mounted or uncovered electrical outlets in the walls, bathroom wall tiles that intermittently fell out, and common area problems (*i.e.*, those discussed in *Pagoda Co. v. Smith* (Defendant Smith), above). Contract rent: \$300 per month. Damage award: total of \$645 for the period late 1974 to October 18, 1976.

d. Special Damages

In R.C. 5321.04 contract claims, a tenant may recover any special damages that naturally and directly result from the landlord's R.C. 5321.04(A) violation. *Vanderpool v. Waddell*, No. 1822, 1987 WL 19853, at *3 (Ohio App., 4th Dist., Nov. 12, 1987); *Allen v. Lee*, 43 Ohio App.3d 31, 33, 538 N.E.2d 1073 (8th Dist. 1987) (general contract principles apply). Cf. *F. Enters., Inc. v. Kentucky Fried Chicken*, 47 Ohio St.2d 154, 351 N.E.2d 121 (1976) (commercial tenancy); *Brown v. Spitzer Chevrolet Co.*, 181 Ohio App.3d 642, 910 N.E.2d 490 (5th Dist. 2009) (same).

Special damages include consequential damages if they result from the violation in the usual course of events or were otherwise foreseeable. *Foard v. Severcool*, 22 Ohio Law Abs. 650, 1 Ohio Op. 492 (Ohio C.P., Lucas Cty., 1933). See also *Detling v. Edelbrock*, 671 S.W.2d 265 (Mo. 1984) (implied warranty of habitability); *Mease v. Fox*, 200 N.W.2d 791 (Iowa 1972) (same). Cf. *R & H Trucking, Inc. v. Occidental Fire & Cas. Co.*, 2 Ohio App.3d 269, 441 N.E.2d 816 (10th Dist. 1981) (insurance contract); *Markowitz & Co. v. Toledo Metro. Hous. Auth.*, 608 F.2d 699 (6th Cir. 1979) (breach of agreement to lease, applying Ohio law).

One example of these consequential damages is damage to the tenant's personal property caused by the landlord's R.C. 5321.04(A) violation. E.g., *Marsh v. Lansing Gardens Apts.*, No. 07-BE-32, 2008 WL 2633467 (Ohio App., 7th Dist., July 2, 2008); *Stiffler v. Canterbury Runn Apts.*, No. 19308, 2002 WL 31243541 (Ohio App., 2nd Dist., Oct. 4, 2002); *Johnson v. Rahim*, No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020); *Leak v. Hale*, No. 2006-CVG-33367 (Ohio Mun., Cleveland, Hous. Div., Jan. 10, 2008); *Williams v. Wright*, No. 2000-CVG-01040 (Ohio Mun., Marietta, Aug. 15, 2001); *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991); *Glyco v. Schultz*, 35 Ohio Misc. 25, 289 N.E.2d 919 (Ohio Mun., Sylvania, 1972). See also *Hall v. Myers*, 49 Ohio Law Abs. 345, 77 N.E.2d 81 (Ohio Mun., Piqua, 1947) (breach of lease agreement); *Miller v. Christian*, 958 F.2d 1234 (3d Cir. 1992) (implied warranty of habitability); *Darmetko v. Boston Hous. Auth.*, 378 Mass. 758, 393 N.E.2d 395 (1979) (same); *Kipsborough Realty Corp. v. Goldbetter*, 81 Misc.2d 1054, 367 N.Y.S.2d 916 (Civ. Ct. 1975) (same).

For a discussion on the measure of damages for damage to personal property, see Section XVIII.C.2, below.

A second of these consequential damages is moving expenses, when the landlord's

R.C. 5321.04(A) violation has caused the tenant to move. *E.g.*, *Marsh v. Lansing Gardens Apts.*, No. 07-BE-32, 2008 WL 2633467 (Ohio App., 7th Dist., July 2, 2008); *Stiffler v. Canterbury Runn Apts.*, No. 19308, 2002 WL 31243541 (Ohio App., 2nd Dist., Oct. 4, 2002); *Allen v. Lee*, 43 Ohio App.3d 31, 538 N.E.2d 1073 (8th Dist. 1987); *Johnson v. Rahim*, No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020); *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991).

A tenant may not recover special damages for moving expenses if the moving costs are not the result of the landlord's R.C. 5321.04(A) violation. *Harris v. Winston*, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005).

A third example of these consequential damages is the tenant's cost in transferring and reconnecting phone service and cable television service, when the landlord's R.C. 5321.04(A) violation has caused the tenant to move. *E.g.*, *Marsh v. Lansing Gardens Apts.*, No. 07-BE-32, 2008 WL 2633467 (Ohio App., 7th Dist., July 2, 2008).

A fourth example of these consequential damages is excessive utility bills resulting from the defective condition at the premises. *E.g.*, *Householder v. Edgar*, No. 06-CVG-687 (Ohio County Ct., Tuscarawas, Mar. 6, 2007); *Waterford Glen LLC v. Dowell*, No. 05-CVG-1055 (Ohio Mun., Crawford Cty., Apr. 7, 2006) (R.C. Chapter 3733 (now R.C. Chapter 4781) action). *See also Fair v. Negley*, 257 Pa. Super. 50, 390 A.2d 240 (1978).

A fifth example of these consequential damages is the tenant's cost in remedying the R.C. 5321.04(A) violation. *E.g.*, *Householder v. Edgar*, No. 06-CVG-687 (Ohio County Ct., Tuscarawas, Mar. 6, 2007) (furnace repair); *Harris v. Winston*, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005) (furnace repair); *McClellan v. Hagerty*, No. 04-CV-008 (Ohio C.P., Meigs Cty., May 27, 2004) (heating fuel).

Special damages in an R.C. 5321.04 contract claim also include incidental damages caused by the landlord's R.C. 5321.04(A) violation, such as the cost of temporary housing, restaurant meals, or water purchases. *E.g.*, *Benson v. Oaks Mobile Home Park*, No. 1156, 1983 WL 6313 (Ohio App., 11th Dist., Mar. 15, 1983) (R.C. Chapter 3733 (now R.C. Chapter 4781) action, cost of living expenses at the another residence, as a result of sewer problem); *Waterford Glen LLC v. Dowell*, No. 05-CVG-1055 (Ohio Mun., Crawford Cty., Apr. 7, 2006) (R.C. Chapter 3733 (now R.C. Chapter 4781) action, cost of restaurant meals and purchase of water); *Woods v. Coleman*, No. 01-CVG-444 (Ohio Mun., Jackson Cty., Aug. 6, 2001) (cost of purchasing water and

using toilet facilities at other residences, as a result of no running water or working toilet); *Beard v. Smith*, No. 91-CVG-34340 (Ohio Mun., Cleveland, Hous. Div., Apr. 24, 1991) (cost of alternative housing, as a result of no heat). *See also Mease v. Fox*, 200 N.W.2d 791, 797 (Iowa 1972) (implied warranty of habitability).

However, a court may deny incidental damages for the cost of temporary housing, if the court makes the tenant whole by relieving the tenant of any rental obligation to the landlord for the relevant period. *Harris v. Winston*, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005).

Special damages in an R.C. 5321.04 contract claim may not include damages for inconvenience and discomfort caused by the landlord's R.C. 5321.04(A) violation. The traditional view in Ohio is that a tenant may not recover contract damages for inconvenience and discomfort caused by the landlord's breach of a covenant to repair.³⁰³ *Cochran v. Widra*, 35 Ohio Law Abs. 608, 41 N.E.2d 875 (Ohio App., 9th Dist., 1931). *But cf. Deitsch v. Music Co.*, 6 Ohio Misc.2d 6, 453 N.E.2d 1302 (Ohio Mun., Hamilton Cty., 1983).

Likewise, special damages in an R.C. 5321.04 contract claim may not include damages for personal injury caused by the landlord's R.C. 5321.04(A) violation. The traditional view in Ohio is that a tenant may not recover contract damages for personal injury caused by the landlord's breach of a covenant to repair. *See Cooper v. Roose*, 151 Ohio St. 316, 85 N.E.2d 545 (1949). *See also Auburn v. Amoco Oil Co.*, 106 Ill. App.3d 60, 435 N.E.2d 780 (1982) (implied warranty of habitability). *But see Boudreau v. Gen. Elec. Co.*, 2 Haw. App. 10, 625 P.2d 384 (1981).

However, it is insignificant whether special damages in an R.C. 5321.04 contract claim include damages for inconvenience and discomfort or damages for personal injury. A tenant can recover these damages under an R.C. 5321.04 negligence per se claim. *See* Section IX.B.4.a, below.

e. Punitive Damages, Unavailable

In an R.C. 5321.04 contract claim, a tenant may not recover punitive damages. Ohio law does not permit the recovery of punitive damages in an action for breach of

³⁰³ Under the implied warranty of habitability, a few jurisdictions permit contract damages for inconvenience and discomfort caused by the landlord's breach of the warranty. *E.g., Hilder v. St. Peter*, 144 Vt. 150, 478 A.2d 202 (1984); *Teller v. McCoy*, 162 W. Va. 367, 253 S.E.2d 114 (1978). *But see Cazares v. Ortiz*, 109 Cal. App.3d Supp. 23, 168 Cal. Rptr. 108 (1980); *Quevedo v. Braga*, 72 Cal. App.3d Supp. 1, 140 Cal. Rptr. 143 (1977).

contract, even if the alleged breach was willful, wanton, and malicious. *Ketcham v. Miller*, 104 Ohio St. 372, 136 N.E. 145 (1922); *Stern Enters. v. Plaza Theaters I & II, Inc.*, 105 Ohio App.3d 601, 664 N.E.2d 981 (11th Dist. 1995); *R & H Trucking, Inc. v. Occidental Fire & Cas. Co.*, 2 Ohio App.3d 269, 441 N.E.2d 816 (10th Dist. 1981); *Schell v. Kaiser-Frazer Sales Corp.*, 28 Ohio App.2d 16, 274 N.E.2d 315 (2nd Dist. 1971). See also R.C. 2315.21(A)(1).

For a discussion on a tenant claim for punitive damages under an R.C. 5321.04 negligence per se claim, see Section IX.B.4.b, below.

9. Attorney's Fees, Unavailable

In an R.C. 5321.04 contract claim, a tenant may not recover attorney's fees. *Iwenofu v. Consol. Mgmt., Inc.*, 49 Ohio App.3d 33, 550 N.E.2d 505 (8th Dist. 1988). See Section XIX.A, below.

The only R.C. 5321.04 claim in which attorney's fees are authorized is an R.C. 5321.04(B) claim, which is based on a landlord's unlawful entry upon the premises. *Iwenofu*, 49 Ohio App. 3d at 34-35. For a discussion on those claims, see Section X.B, below.

10. Waiver Issues

"The Landlords and Tenants Act prohibits ... any agreement that purports to waive the tenant's right or ability to bring an action for damages. R.C. 5321.13; 5321.06." *Miller v. Ritchie*, 45 Ohio St. 3d 222, 225, 543 N.E.2d 1265 (1989).

A tenant's knowledge of the defective condition before the tenant moves into the premises does not constitute a waiver of the tenant's right to bring an R.C. 5321.04 contract claim. *Brown v. August*, No. 01-CA-0024, 2002 WL 22877 (Ohio App., 9th Dist., Jan. 9, 2002); *Pierson-Kalabins v. Shaw*, No. CV2003-12-3449, 2003 WL 25780617 (Ohio C.P., Butler Cty., Feb. 11, 2003).

A tenant's occupancy of defective premises over a lengthy period of time does not constitute a waiver of the tenant's right to bring an R.C. 5321.04 contract claim. *Miller v. Ritchie*, 45 Ohio St.3d 222, 224-26, 543 N.E.2d 1265 (1989). See also *Brown v. August*, No. 01-CA-0024, 2002 WL 22877 (Ohio App., 9th Dist., Jan. 9, 2002) (applying *Miller*); *Kiser v. Stevens*, No. 92-CA-54, 1993 WL 35668 (Ohio App., 5th Dist., Feb. 1, 1993) (applying *Miller*); *Pierson-Kalabins v. Shaw*, No. CV2003-12-3449, 2003 WL 25780617 (Ohio C.P., Butler Cty., Feb. 11, 2003) (applying *Miller*).

A tenant's non-use of the R.C. 5321.07 rent deposit remedy does not constitute a

waiver of the tenant's right to bring an R.C. 5321.04 contract claim, irrespective of whether the tenant pays or fails to pay the rent to the landlord. *Miller v. Ritchie*, 45 Ohio St.3d 222, 224-26, 543 N.E.2d 1265 (1989). See also *Boice v. Emshoff*, No. 13-98-23, 1998 WL 833686 (Ohio App., 3rd Dist., Dec. 3, 1998) (applying *Miller*); *Reiter v. Fultz*, No. 92-CA-1555, 1993 WL 235522 (Ohio App., 4th Dist., June 30, 1993) (applying *Miller*). See also *Arndt v. P & M Ltd.*, 163 Ohio App.3d 179, 837 N.E. 398, ¶¶ 23,24 (11th Dist. 2005) (construing R.C. 3733.10,.12 (now R.C. 4781.38,.41) – manufactured home park provisions that are similar to R.C. 5321.04,.07).

11. Proof Issues – Tenant Testimony

a. Introduction

In support of an R.C. 5321.04 contract claim, the tenant may testify as to: (1) the existence of the defective condition, (2) the dates on which the defective condition has existed, (3) any tenant notifications to the landlord of the defective condition and the landlord's responses to those notifications, (4) exculpable conduct of the tenant in respect to the cause of the defective condition, (5) the effect of the defective condition on the tenant's use and enjoyment of the premises, (6) the tenant's opinion on the rental value of the premises in their defective condition (see Section IX.A.11.b, below), and (7) relevant facts and opinion testimony concerning any special damages.

b. Owner Opinion Rule

A tenant, by virtue of the tenancy, is competent to give opinion testimony as to the rental value of the premises in their defective condition. *Smith v. Padgett*, 32 Ohio St. 3d 344, 513 N.E.2d 737 (1987). See also *Miller v. Ritchie*, 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989); *Gammarino v. Smith*, No. C-060636, 2007 WL 2284573 (Ohio App., 1st Dist., Aug. 10, 2007) (applying *Padgett*); *Boice v. Emshoff*, No. 13-98-23, 1998 WL 833686 (Ohio App., 3rd Dist., Dec. 3, 1998) (applying *Padgett*); *Weingarden v. Eagle Ridge Condos.*, 71 Ohio Misc.2d 7, 653 N.E.2d 759 (Ohio Mun., Toledo, Hous. Div., 1995) (applying *Padgett*).

This tenant opinion testimony is admissible under the owner-opinion rule. *Padgett*, 32 Ohio St.3d at 347-48.

The weight that the judge or jury will give this tenant opinion testimony is within the sound discretion of the trier of fact. *Miller*, 45 Ohio St.3d at 227 n.7; *Padgett*, 32 Ohio St.3d at 348. See also *Pleasant v. Greenfield Station Apts.*, No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995) (applying *Miller*).

Three court decisions illustrate this discretion, when their court findings are compared to the tenant opinion testimony on the monthly rental value of rental premises in their defective condition: *Parker v. Hiles*, No. 02-CVH-362 (Ohio Mun., Chillicothe, Jan. 6, 2003) (court finding – \$75; tenant opinion testimony – \$25); *Grayson v. Farmer*, No. 2002-CVG-14619 (Ohio Mun., Cleveland, Hous. Div., Feb. 12, 2002) (court finding – \$250; tenant opinion testimony – \$250 to \$300); *Tolliver v. Warren*, No. 99-CVG-13123 (Ohio Mun., Cleveland, Hous. Div., Dec. 28, 1999) (court finding – \$225; tenant opinion testimony – \$175).

Under the owner opinion rule, a tenant may “testify as to the underlying factors which serve as the basis of his opinion in an effort to lend credibility to his testimony.” *Weir v. Miller*, No. 82-04-0044, 1983 WL 4336, at *2 (Ohio App., 12th Dist., Apr. 13, 1983).

The owner opinion rule is subject to the hearsay rule. *Id.*, 1983 WL 4336, at *2; *Hawkins v. Hawkins*, 11 Ohio Misc.2d 18, 464 N.E.2d 199 (Ohio C.P., Clermont Cty., 1984). Consequently, a tenant may not support the tenant’s opinion testimony by testifying as to rental amounts listed in advertisements for other premises. *Hawkins*, 11 Ohio Misc.2d at 19.

Under the owner opinion rule, a tenant is also competent to give opinion testimony as to the value of the tenant’s personal property, when the tenant’s special damages include damage to that property. *McCain v. Brewer*, No. 2014-CA-8, 2015 WL 302829 (Ohio App., 2nd Dist., Jan. 23, 2015); *Smith v. Seitz*, No. 97-CA-515, 1998 WL 393880 (Ohio App., 4th Dist., July 9, 1998); *Bynum v. Huffman*, No. 57730, 1990 WL 210225 (Ohio App., 8th Dist., Dec. 20, 1990); *Burfitt v. Stewart*, Nos. 55530,55531, 1989 WL 113079 (Ohio App., 8th Dist., Sept. 28, 1989). *See generally Tokles & Son, Inc. v. Midwestern Indem. Co.*, 65 Ohio St.3d 621, 605 N.E.2d 936 (1992); *Bishop v. East Ohio Gas Co.*, 143 Ohio St. 541, 56 N.E.2d 164 (1944).

Because the owner opinion rule is subject to the hearsay rule, a tenant may not simply identify a list that purports to establish the value of the personal property. *Smith v. Seitz*, No. 97-CA-515, 1998 WL 393880 (Ohio App., 4th Dist., July 9, 1998).

Like rental value testimony, the owner opinion testimony is some evidence, but not conclusive evidence, of the value of the personal property. *Bynum v. Huffman*, No. 57730, 1990 WL 210225, at *3 (Ohio App., 8th Dist., Dec. 20, 1990); *Burfitt v. Stewart*, Nos. 55530,55531, 1989 WL 113079, at *2 (Ohio App., 8th Dist., Sept. 28, 1989).

c. Rental Value Testimony Not Required

In an R.C. 5321.04 contract claim, a tenant may meet the tenant's burden of proof for general damages without any testimony on the rental value of the premises in their defective condition. *Miller v. Ritchie*, 45 Ohio St.3d 222, 227, 543 N.E.2d 1265 (1989).

The tenant may meet the tenant's burden of proof by simply proving the extent of the defective condition(s) at the premises. *Id.* Thereupon, "the finder of fact (judge or jury) must determine the monetary amount by which the defects and the reduction in use have lessened the value of the leasehold." *Id.* See also *Gammarino v. Smith*, No. C-060636, 2007 WL 2284573 (Ohio App., 1st Dist., Aug. 10, 2007) (applying *Miller*); *Heck v. Whitehurst Co.*, No. L-03-1134, 2004 WL 1857131 (Ohio App., 6th Dist., Aug. 20, 2004) (applying *Miller*); *Pleasant v. Greenfield Station Apts.*, No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995) (applying *Miller*); *Surrey Park Assocs. v. Kuhner*, No. 89-L-14-120, 1990 WL 222990 (Ohio App., 11th Dist., Dec. 28, 1990) (applying *Miller*).

d. Use of a Diary

A tenant's testimony may be strengthened through the use of a diary. While testifying, a tenant may be permitted to use a written diary to refresh the tenant's recollection. Ohio R. Evid. 612. *E.g.*, *Polk v. Gray*, No. 36896, 1978 Ohio App. LEXIS 9771, at *10-11 (Ohio App., 8th Dist., Feb. 9, 1978).

The extent to which a witness may use a written memorandum to help recollect past events is within the sound discretion of the trial court. *Polk*, 1978 Ohio App. LEXIS 9771, at *10-11; *Sroufe v. Guttman*, 65 Ohio App. 556, 32 N.E.2d 444 (1st Dist. 1940).

e. Use of Photographs

A tenant's testimony may be strengthened through the use of photographs of the premises. Photographs of the defective condition often relate the identity and severity of the defect far more vividly than oral testimony.

Therefore, where appropriate, the tenant or another person should take photographs of the defective condition for the purpose of introducing them into evidence. The tenant can testify that the photographs are fair and accurate images of the scene at a particular time even if another person took the photographs, and such testimony is an adequate foundation for their admission into evidence. *Hardy v. Miller*,

No. 98-CA-13, 1999 WL 1256347 (Ohio App., 4th Dist., Dec. 9, 1999); *Solomon v. Mote*, 38 Ohio Law Abs. 169, 49 N.E.2d 703 (Ohio App., 2nd Dist., 1942).

The acceptance of photographic evidence rests within the sound discretion of the trial court. *Glover v. Massey*, Nos. 56351,56802, 1990 WL 1328, at *2 (Ohio App., 8th Dist., Jan. 11, 1990).

For the landlord's analogous right to introduce into evidence relevant photographs in support of an R.C. 5321.05(C) claim, see Section XVIII.F.5, below.

f. Corroboration Via a Viewing of the Premises

A tenant may request a view of the premises by the jury or judge. R.C. 2315.02. "If the court is of the opinion that it is proper for the jurors to have a view of property which is the subject of litigation, or of a place where a material fact occurred, it may order them to be conducted in a body under the charge of an officer to such property or place, which shall be shown to them by a person appointed by the court for that purpose." *Id.*

"The allowance of a view of the property or scene at issue is within the sound discretion of the trial court." *Hardy v. Miller*, No. 98-CA-13, 1999 WL 1256347, at *7 (Ohio App., 4th Dist., Dec. 9, 1999).

12. Proof Issues – R.C. 5321.04(A)(1) Code Violation

a. No Requirement for Code Violation Citation

The issuance of a code violation citation by the applicable governmental entity is not a required element of an R.C. 5321.04(A)(1) contract claim (or negligence per se claim). *Wilcox v. Tabler*, No. 26530, 2013 WL 1324937 (Ohio App., 9th Dist., Apr. 3, 2013). The tenant is simply required to prove that, during the relevant time, the defective condition existed and it violated the applicable code. *Id.*

b. Code Inspector Testimony

While not required (see Section IX.A.12.a, above), when a tenant alleges an R.C. 5321.04(A)(1) violation, the best proof of the violation is the testimony of a governmental employee who is responsible for enforcing the code and who has inspected the premises ("code inspector").

The code inspector may testify as to: (1) the conditions that the code inspector observed at the premises, (2) whether the code inspector cited the landlord for any violation of the applicable codes as a result of those conditions, and (3) whether the

code inspector notified the landlord of those conditions and/or of any related citation. *E.g., Surrey Park Assocs. v. Kuhner*, No. 89-L-14-120, 1990 WL 222990 (Ohio App., 11th Dist., Dec. 28, 1990).

The code inspector usually will reduce to writing the code inspector's findings and citations ("inspector's report"). A stipulation or an admission as to the authenticity of the inspector's report and the landlord's receipt of the inspector's report may be sufficient to introduce it into evidence.

Otherwise, to introduce the inspector's report into evidence, the testimony of the governmental employee who is responsible for maintaining such reports (*i.e.*, the custodian of the records) may be necessary. The custodian of the records can testify as to the identity of the inspector's report and the manner in which such reports are maintained in the normal course of business. Based on that testimony, the inspector's report should be admissible. *See* Ohio R. Evid. 803(6),(8).

The inspector's report may contain hearsay information, such as assertions concerning the premises that the code inspector did not observe. For example, it may contain assertions by the landlord or tenant concerning conditions at the premises on a date prior to the code inspection.

However, such assertions in the inspector's report are not always hearsay. For example, if the assertion is a declaration by the tenant and the tenant's testimony at trial is consistent with that prior statement, and if such testimony has been impeached or attacked as a recent fabrication, the prior statement of the tenant recorded in the inspector's report is not hearsay. Ohio R. Evid. 801(D)(1). *See Polk v. Gray*, No. 36896, 1978 Ohio App. LEXIS 9771, at *5-6 (Ohio App., 8th Dist., Feb. 9, 1978); *Miller v. Piqua Transfer & Storage Co.*, 57 Ohio Law Abs. 325, 92 N.E.2d 452 (Ohio C.P., Butler Cty., 1950). And, if the assertion recorded in the inspector's report is a declaration by the landlord, it may be an admission by a party-opponent and therefore not hearsay. Ohio R. Evid. 801(D)(2). *See Polk*, 1978 Ohio App. LEXIS 9771, at *8,9.

When the inspector's report contains some information that is inadmissible and some information that is admissible, only the inadmissible portion of the report is subject to an objection and motion to exclude. *See Yuin v. Hilton*, 165 Ohio St. 164, 134 N.E.2d 719 (1956).

In these circumstances, an objection to the introduction of the whole report is insufficient and should be overruled. *Id.*; *Carson v. Metro. Life Ins. Co.*, 156 Ohio St. 104, 100 N.E.2d 197 (1951). The objecting party is obligated to identify and object to

the portion of the document that constitutes hearsay or is otherwise inadmissible and, thereupon, move for the exclusion of only the incompetent evidence. *Yuin v. Hilton*, 165 Ohio St. 164, 134 N.E.2d 719 (1956). The court may then excise the inadmissible portion of the document and admit the excised document into evidence or, in lieu thereof, permit an appropriate witness to recite the admissible and relevant portion of the document. *Sanders v. Hairston*, 51 Ohio App.3d 63, 554 N.E.2d 951 (8th Dist. 1988).

B. R.C. 5321.04 Negligence Per Se Claim

1. Overview

A landlord's failure to maintain or repair the premises, in violation of an R.C. 5321.04(A) obligation (see Section VII.C, above), constitutes negligence per se.³⁰⁴ *Sikora v. Wenzel*, 88 Ohio St.3d 493, 727 N.E.2d 1277 (2000); *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 427 N.E.2d 774 (1981). E.g., *Robinson v. Bates*, 112 Ohio St.3d 17, 857 N.E.2d 1195, ¶ 23 (2006) (R.C. 5321.04(A)(1) and R.C. 5321.04(A)(2) violations); *Mann v. Northgate Invs. L.L.C.*, 138 Ohio St.3d, 175, 5 N.E.3d 594, ¶ 33 (2014) (R.C. 5321.04(A)(3) violations); *Sabolik v. HGG Chestnut Lake Ltd. P'ship*, 180 Ohio App.3d 576, 906 N.E.2d 488, ¶ 13 (8th Dist. 2009) (R.C. 5321.04(A)(4) violations); *McKenzie v. FSF Beacon Hill Assocs., LLC*, No. 15AP-1194, 2006 WL 3775857, ¶ 11 (Ohio App., 10th Dist., Dec. 26, 2006) (R.C. 5321.04(A)(4) violations); *Trammell v. McDonald*, No. 4-04-15, 2004 WL 2026414, ¶ 12 (Ohio App., 3rd Dist., Sept. 13, 2004) (R.C. 5321.04(A)(4) violations).

R.C. 5321.04(A) serves as a legislative declaration of the standard of care of a reasonably prudent person applicable in negligence actions. *Sikora*, 88 Ohio St. 3d at 496; *Sabolik v. HGG Chestnut Lake Ltd. P'ship*, 180 Ohio App.3d 576, 906 N.E.2d 488 (8th Dist. 2009); *Allstate Ins. Co. v. Henry*, No. CA2006-07-168, 2007 WL 1531494 (Ohio App., 12th Dist., May 29, 2007); *Morgan v. Mamone*, No. 87612, 2006 WL 3804527 (Ohio App., 8th Dist., Dec. 21, 2006).

The R.C. 5321.04 negligence per se claim is comprised of three elements: (1) the

³⁰⁴ Likewise, a park owner's failure to maintain or repair the premises, in violation of an R.C. 4781.38 (former R.C. 3733.10) obligation (see Chapter XXI, below), constitutes negligence per se. *Lewis v. Wall*, No. 2007-A-0048, 2008 WL 2633473 (Ohio App., 11th Dist., July 3, 2008); *Sterling v. Stevens*, No. 02-JE-47, 2003 WL 22232008 (Ohio App., 7th Dist., Sept. 25, 2003).

landlord's violation of an R.C. 5321.04(A) obligation, (2) the tenant's injury that was proximately caused by the violation, and (3) prior notice to the landlord of the violation. *Sikora v. Wenzel*, 88 Ohio St.3d 493, 727 N.E.2d 1277 (2000); *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 427 N.E.2d 774 (1981).

The R.C. 5321.04 negligence per se claim does not extend to violations of administrative rules. *Chambers v. St. Mary's Sch.*, 82 Ohio St.3d 563, 697 N.E.2d 198 (1998). Nonetheless, it still applies to R.C. 5321.04(A)(1) code violations. *Sikora v. Wenzel*, 88 Ohio St.3d 493, 727 N.E.2d 1277 (2000).

The R.C. 5321.04 negligence per se claim also may not apply where the type of injury suffered does not fall within the type of injuries that the R.C. 5321.04(A)(1) code provision is intended to avoid. *Smith v. Heslop, Inc.*, No. 27465, 2015 WL 5043864 (Ohio App., 9th Dist., Aug. 26, 2015) (R.C. 5321.04 negligence per se claim did not apply because the window building code provision was intended to protect tenants from fire hazards, not from breaking glass during horseplay).

The elements of the R.C. 5321.04 negligence per se claim and related matters are discussed in Sections IX.B.2-7, below. The relationship between the R.C. 5321.04 negligence per se claim and a common law negligence claim is discussed in Section IX.C.3, below.

2. Notice

a. General Rule

The notice requirement for the R.C. 5321.04 negligence per se claim is three-fold: the landlord received notice of the defective conditions of the rental premises, the landlord knew of the defective conditions of the rental premises, or the landlord should have known of the defective conditions of the rental premises. *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 25-26, 427 N.E.2d 774 (1981), as clarified or modified by *Sikora v. Wenzel*, 88 Ohio St.3d 493, 498, 727 N.E.2d 1277 (2000). See also *DeFreeze v. Lynch*, No. 107090, 2019 WL 993334 (Ohio App., 8th Dist., Feb. 28, 2019); *Wiles v. Miller*, 3 N.E.3d 226, 2013-Ohio-3625 (Ohio App., 10th Dist., 2013); *Holloway v. McDaniel*, No. 91599, 2009 WL 2263608 (Ohio App., 8th Dist., July 30, 2009); *Avila v. Gerdenich Realty Co.*, No. L-07-1098, 2007 WL 4216972 (Ohio App., 6th Dist., Nov. 30, 2007); *Lilly v. Bradford Inv. Co.*, No. 06AP-1227, 2007 WL 1640850 (Ohio App., 10th Dist., June 7, 2007); *Boyd v. Hariani*, No. 22500, 2005 WL 2087824 (Ohio App., 9th Dist., Aug. 31, 2005); *Smith v. Finn*, No. L-04-1244, 2005

WL 736669 (Ohio App., 6th Dist., Mar. 31, 2005); *Walker v. Barnett Mgmt., Inc.*, Nos. 84188,84210, 2004 WL 2847810 (Ohio App., 8th Dist., Dec. 9, 2004).

Two significant aspects of this notice requirement are clear from the face of the requirement. First, if the landlord has personal knowledge of the defective condition or the landlord received notice of the defective condition from a source other than the tenant (e.g., a code inspector), the tenant is not required to provide the landlord with additional notice. Second, the notice requirement does not require notice in writing.

b. Constructive Notice

The notice requirement is met if the landlord had constructive notice of the defective condition. *Sikora v. Wenzel*, 88 Ohio St.3d 493, 495, 727 N.E.2d 1277 (2000). See also *Webster v. Shaw*, 63 N.E.3d 677, 2016 WL 1484, ¶ 13 (Ohio App., 3rd Dist., 2016); *Wiles v. Miller*, 3 N.E.3d 226, 2013-Ohio-3625, ¶ 8 (Ohio App., 10th Dist., 2013); *DeVore v. Franklin Manor Apts.*, No. 98AP-779, 1999 WL 236040, at *3 (Ohio App., 10th Dist., Apr. 22, 1999); *McKenzie v. Marlowe*, No. 70714, 1996 WL 715502, at *5 (Ohio App., 8th Dist., Dec. 12, 1996); *Bell v. Goldsmith*, No. 67893, 1995 WL 396352, at *5-6 (Ohio App., 8th Dist., July 6, 1995); *Straughter v. Stark Metro. Hous. Auth.*, No. CA-8696, 1992 WL 127098, at *2 (Ohio App., 5th Dist., June 1, 1992); *Rice v. Reid*, No. 3-91-34, 1992 WL 81424, at *1 (Ohio App., 3rd Dist., Apr. 23, 1992); *Klump v. Douglas*, No. C-910060, 1991 WL 278262, at *1 (Ohio App., 1st Dist., Dec. 31, 1991); *Parrish v. Fisco*, No. 58524, 1991 WL 81484, at *2 (Ohio App., 8th Dist., May 16, 1991); *Neff v. Knisely*, No. 87AP-666, 1988 WL 125687, at *3-4 (Ohio App., 10th Dist., Nov. 22, 1988); *Kishman v. Lakeside Six Cottages*, No. E-8324, 1983 WL 2339, at *2 (Ohio App., 6th Dist., Dec. 30, 1983).³⁰⁵

“Constructive notice can be imputed when it appears that a condition ‘existed in such a manner that it could or should have been discovered, that it existed for a sufficient length of time to have been discovered, and that if it had been discovered it would have created a reasonable apprehension of a potential danger or an invasion of private rights.’” *Webster v. Shaw*, 63 N.E.3d 677, 2016 WL 1484, ¶ 13 (Ohio App.,

³⁰⁵ Cf. *Wallenstein v. Marsol Towers*, No. 58822, 1991 WL 378192 (Ohio App., 8th Dist., Aug. 8, 1991) (landlord charged with constructive notice of dangerous condition of common area floors where the condition was caused by remodeling work for which landlord contracted); *Shetina v. Ohio Univ.*, 9 Ohio App.3d 240, 459 N.E.2d 587 (10th Dist. 1983) (state university charged with constructive notice of defective conditions in dormitory rooms, which would have been revealed by reasonable inspection, if made).

3rd Dist., 2016) (quoting *Beebe v. City of Toledo*, 168 Ohio St. 203, 151 N.E.2d 738, syllabus no. 2 (1958)).

“In order to show that a landlord had constructive notice, plaintiff [tenant] has the burden of showing that the defect in question must have existed for such a length of time that the landlord, by exercising reasonable care, should have discovered it.” *DeVore v. Franklin Manor Apts.*, No. 98AP-779, 1999 WL 236040, at *3 (Ohio App., 10th Dist., Apr. 22, 1999). *Accord Person-Thomas v. Quilliams-Noble Apts., L.L.C.*, 45 N.E.3d 654, 2015-Ohio-4277, ¶ 21 (Ohio App., 8th Dist., 2015); *Coeurvie v. McGonigal*, No. 27095, 2014 WL 4824449, ¶ 14 (Ohio App., 9th Dist., Sept. 30, 2014); *Albert v. Showe Mgmt. Corp.*, Nos. 99-CA-00016,00007, 1999 WL 547883, at *2 (Ohio App., 5th Dist., July 22, 1999).

If the constructive notice is based on the landlord’s (or landlord’s agent’s) visit to the dwelling unit, the tenant has the burden of showing that the defective condition existed at the time of the visit and was discernible upon a reasonable inspection at that time. *See, e.g., Johnston v. Filson*, No. CA2014-04-007, 2014 WL 5422214, ¶¶ 12,13,25,26 (Ohio App., 12th Dist., Oct. 27, 2014) (no discernible evidence of the tree’s decay before the top portion of the tree’s trunk broke off in a windstorm); *Swader v. Paramount Prop. Mgmt.*, No. CA2011-05-084, 2012 WL 1107722, ¶¶ 30-32 (Ohio App., 12th Dist., Apr. 2, 2012) (no evidence on when floorboard became defective); *Vorhees v. Jovingo*, No. 04-CA-18, 2005 WL 2292796, ¶ 33 (Ohio App., 4th Dist., Sept. 19, 2005) (expert testimony that the dangerous condition of the gas pipe should have been apparent to the landlord when he tightened the pipe); *Jones v. Greene Countrie Apts.*, No. 94-APE01-105, 1994 WL 265656, at *3 (Ohio App., 10th Dist., June 14, 1994) (no evidence on how long step had been shaky); *Abner v. Day*, No. CA92-09-173, 1993 WL 172347, at *1 (Ohio App., 12th Dist., May 24, 1993) (landlord’s “special knowledge” as a contractor did not provide him with constructive knowledge of the improper installation and thus dangerous condition of the cabinets, which he had not installed); *North v. Golden Leaf Baptist Church*, No. C-860310, 1987 WL 10038, at *1 (Ohio App., 1st Dist., Apr. 22, 1987) (no evidence that “a defect in the ceiling was discernible upon reasonable inspection at any time before this incident”).

“Where the landlord does not cause or know of the unsafe condition, the issue is whether ‘the landlord by the exercise of reasonable care could have discovered the condition and the unreasonable risk involved therein and could have made the condition safe.’” *Malagisi v. Marble Cliff Crossing Apts.*, No. 19AP-475, 2020 WL

1320712, ¶ 16 (Ohio App., 10th Dist., Mar. 19, 2020) (quoting *Mann v. Northgate Invs. L.L.C.*, 138 Ohio St.3d, 175, 5 N.E.3d 594, ¶ 21 (2014)).

R.C. 5321.04(A) does not generally set forth an affirmative duty on the landlord to inspect the premises. See Section VII.C.7, above. But “[i]nspections can serve to satisfy the landlord’s duty” relative to reasonable care. *Malagisi v. Marble Cliff Crossing Apts.*, No. 19AP-475, 2020 WL 1320712, ¶ 17 (Ohio App., 10th Dist., Mar. 19, 2020). And, depending on the circumstances, these inspections “need not always be undertaken by professional inspectors.” *Id.*

Also, for alleged violations of the R.C. 5321.04(A)(4) duty to maintain elevators, where the landlord did not know of any mechanical issues before the incident, the tenant is required “to come forward with evidence showing why the elevator malfunctioned and that [the landlord] ... should have known about the malfunction. That showing require[s] expert evidence because ‘an elevator, like an automobile, is a complicated mechanical device.’” *Mixon v. K&D Apt. Cmty. Owners and Managers*, No. 104338, 2017 WL 121770, ¶ 9 (Ohio App., 8th Dist., Jan. 12, 2017) (quoting *Sabolik v. HGG Chestnut Lake Ltd. P’ship*, 180 Ohio App.3d 576, 906 N.E.2d 488, ¶ 13 (8th Dist. 2009)). And elevators may malfunction for non-mechanical reasons such as overcrowding. *Id.*, ¶ 9.

Also, “general knowledge of the possibility of a defect does not rise to the level of either actual or constructive notice.” *Burnworth v. Harper*, 109 Ohio App.3d 401, 406, 672 N.E.2d 241 (4th Dist. 1996) (fumes from space heater not constructive notice of defect producing carbon monoxide). *Accord Avila v. Gerdenich Realty Co.*, No. L-07-1098, 2007 WL 4216972 (Ohio App., 6th Dist., Nov. 30, 2007) (manufacturer recommendation for regular maintenance check not constructive notice of garage door defect); *Parks v. Menyhart Plumbing & Heating Supply Co.*, No. 75424, 1999 WL 1129591 (Ohio App., 8th Dist., Dec. 9, 1999) (possibility that sandstone sidewalk could crack not constructive notice of latent defect in sidewalk); *Craver v. Doogan*, No. 2003-CVG-00982, 2005 WL 4985282 (Ohio C.P., Clermont Cty., May 27, 2005) (water intrusion not constructive notice of mold).

However, a “landlord has a duty to inquire about the existence of a harmful condition on the property when the circumstances suggest that the condition may exist.” *Walker v. Barnett Mgmt., Inc.*, Nos. 84188,84210, 2004 WL 2847810, at *5 (Ohio App., 8th Dist., Dec. 9, 2004). *Accord Coeurvie v. McGonigal*, No. 27095, 2014 WL 4824449, ¶ 14 (Ohio App., 9th Dist., Sept. 30, 2014) In *Walker*, the court held that the landlord had a duty to inquire whether lead paint had been exposed because

the landlord knew of flaking paint at the building, that the building existed prior to 1978, and of the common use of lead paint before 1978.³⁰⁶ In *Coeurvie*, the court held that the tenant's notice to the landlord's agent of mold in the closet "should have at least prompted some investigation in order to insure that the residence was in a habitable condition." 2014 WL 4824449, ¶ 14.

Three court decisions illustrate the manner in which constructive notice is applied in R.C. 5321.04 negligence per se claims: *Kishman v. Lakeside Six Cottages*, No. E-83-24, 1983 WL 2339 (Ohio App., 6th Dist., Dec. 30, 1983), *Klump v. Douglas*, No. C-910060, 1991 WL 278262 (Ohio App., 1st Dist., Dec. 31, 1991), and *Brinson v. Jenkins*, No. C-960120, 1996 WL 626726 (Ohio App., 1st Dist., Oct. 30, 1996).

Kishman concerned water leaks that caused a weak bathroom floor through which the tenant stepped. The court held that the landlord had constructive notice of the defective condition. The landlord's employees, who had inspected the premises ten days before leasing it, knew (or should have known if they had inspected properly) of the defective condition.

Klump concerned a toy on which the tenant tripped in the common area. The court held that the landlord did not have constructive notice of the defective condition. "[T]he record in this case does not contain evidence from which to infer that the landlord had knowledge of the toy on the lawn or that it was there long enough that he should have discovered the potential danger by reasonable inspection." 1991 WL 278262, at *2.

Brinson concerned a portion of a living room ceiling falling on the tenant. The court held that the landlord did not have constructive notice of the defective condition. Notice to the landlord of water leaking in the kitchen and bathroom ceilings did not provide constructive notice of the defective living room ceiling because "nothing in the record, testimonial or otherwise, indicates that whatever problem or defect caused the water to leak in the kitchen or bathroom would, could or did cause the living-room ceiling to fall. No water dripped from or collected on the living-room ceiling; the portion of the ceiling that fell was not wet or moist when it fell, and there is no indication that it had been wet or moist." 1996 WL 626716, at *4.

³⁰⁶ Where the landlord lacked knowledge of the chipping paint (unlike *Walker*), a court held that the landlord did not have notice of the lead paint danger. *Knox v. Clark*, No. 03-CA-95, 2004 WL 1888283 (Ohio App., 5th Dist., Aug. 23, 2004).

c. Specificity of the Notice – General Rule

The notice “need not specifically express the state of the defect with particularity beyond the scope of a layperson’s knowledge.” *McKenzie v. Marlowe*, No. 70714, 1996 WL 715502, at *5 (Ohio App., 8th Dist., Dec. 12, 1996). *Accord Wilhelm v. Heritage Mgmt. Co.*, No. CA97-07-144, 1998 WL 24342, at *3 (Ohio App., 12th Dist., Jan. 26, 1998); *Blakley v. Riley*, No. 91AP-597, 1992 WL 1163, at *2 (Ohio App., 10th Dist., Jan. 7, 1992).

However, the required specificity is not met where the notice informs the landlord in general terms that the premises are in defective condition but does not specify any particular defect. *Palazzi v. Donohue*, No. 92-CA-005319, 1992 WL 368874 (Ohio App., 9th Dist., Dec. 2, 1992).

Eight court decisions that illustrate the required specificity are: *Robinson v. Larchmont E. Apts., Inc.*, No. L-12-1323, 2014 WL 4049874 (Ohio App., 6th Dist., Aug. 15, 2014); *Walker v. RLI Enters., Inc.*, No. 89325, 2007 WL 4442725 (Ohio App., 8th Dist., Dec. 20, 2007); *Scott v. Kirby*, No. L-05-1287, 2006 WL 1047480 (Ohio App., 6th Dist., Apr. 21, 2006); *Wilhelm v. Heritage Mgmt. Co.*, No. CA97-07-144, 1998 WL 24342 (Ohio App., 12th Dist., Jan. 26, 1998); *Davis v. Burns*, No. 9-97-39, 1997 WL 638276 (Ohio App., 3rd Dist., Oct. 10, 1997); *Obermiller v. Tahya*, No. 91-CA-005092, 1992 WL 41275 (Ohio App., 9th Dist., Mar. 4, 1992); *Blakley v. Riley*, No. 91AP-597, 1992 WL 1163 (Ohio App., 10th Dist., Jan. 7, 1992); and *White v. Fuller*, No. CA-84-15, 1984 WL 7584 (Ohio App., 5th Dist., Nov. 27, 1984).

Robinson concerned damages resulting from a fire caused by defective wiring inside the wall of the utility room. The court held that the shock that the tenant received from the garbage disposal switch did not provide the landlord with constructive notice of the faulty wiring in the building.

Walker concerned damages resulting from a fall in a pothole in a parking lot, which was filled with potholes. The court held that, because the landlord was on notice that the parking lot was filled with potholes, the landlord was on notice of the specific pothole.

Scott concerned damages resulting from a fall, when a guest started to step off a porch that chipped away and onto stairs that had no handrail. The court held that, based on a discussion with the tenant regarding the poor appearance of the steps, the landlord should have known that the steps and porch were in need of repair.

Wilhelm concerned damages resulting from a fire caused by an alleged defect in

the electrical system. In reversing a summary judgment for the landlord, the court held that the tenants' notices met the specificity requirement and that material issues of fact existed as to proximate cause. One tenant complained that "her electricity would blink on and off repeatedly." 1998 WL 24342, at *3. A second tenant complained that she "had problems with an outlet near her balcony and that whenever she plugged in anything, sparks would fly out and if you turned on the light switch for the balcony, you would get a red flash of light." *Id.* A third tenant complained about problems with a ceiling fan going off and "lighting would flicker off and on quite a bit." *Id.*

Davis concerned damages resulting from a fall caused by a step breaking when the tenant stepped on it. The court held that the tenant's notice met the specificity requirement. The tenant notified the landlord that "the stairwell was defective as it swayed under a person's movement." 1997 WL 638276, at *2. "Although appellant [tenant] did not specifically complain about the condition of the step to appellee [landlord], he did complain about the general condition of the stairwell." *Id.*

Obermiller concerned damages resulting from a fall caused by a front step dislodging. The court reversed a summary judgment for the landlord, since reasonable minds could reach different results as to whether the landlord had sufficient knowledge of the defect. The landlord knew that the bricks were deteriorating, there were several cracks and gaps in the caulking, and it was loose around the boards.

Blakley concerned damages resulting from a fire caused by over-amperaged fuses. The court held that the tenant's notice met the specificity requirement. The tenant notified the landlord of light fixtures in several rooms failing to work with regularity and a first-floor outlet fire. These notices constituted notice to the landlord that the electrical system in the house was in a state of disrepair and thus notice of the over-amperaged fuses.

White concerned damages resulting from a carbon monoxide leak from a stove caused by a clogged chimney. The court held that the tenant's notices did not meet the specificity requirement. The tenant's notices and the landlord's repairs of the stove, relative to a small fire and a burned-out motor fan, were not notice to the landlord of any other problem with the stove, the stove pipe leading to the chimney, or the chimney.

d. Specificity of the Notice – Lead Paint

The specificity required for the notice's description of the defective condition has been a particularly important issue in lead-based paint cases.

In *Winston Props. v. Sanders*, 57 Ohio App.3d 28, 565 N.E.2d 1280 (1st Dist. 1989), the landlord did not know that the rental premises contained lead paint. The court held that the tenant's notice to the landlord about peeling paint and cracked plaster was not notice of the existence of lead-based paint. On similar facts, other courts have followed the decision in *Winston Props.* E.g., *Patterson v. Ahmed*, No. L-09-1222, 2010 WL 3449257 (Ohio App., 6th Dist., Sept. 3, 2010); *Lowery v. Ondrus*, No. L-08-1100, 2009 WL 50125 (Ohio App., 6th Dist., Jan. 9, 2009); *Murphy v. Leo Baur Realty, Inc.*, No. 63756, 1993 WL 425353 (Ohio App., 8th Dist., Oct. 21, 1993); *Rice v. Reid*, No. 3-91-34, 1992 WL 81424 (Ohio App., 3rd Dist., Apr. 23, 1992).

However, a landlord may have constructive notice of a lead-based paint hazard at the premises if the landlord has notice of peeling or chipping paint at the premises and the landlord is aware of the possibility of lead-based paint at the premises. See *Webster v. Shaw*, 63 N.E.3d 677, 2016 WL 1484 (Ohio App., 3rd Dist., 2016); *Richardson v. Boes*, 179 Ohio App.3d 418, 902 N.E.2d 77 (6th Dist. 2008); *Harris v. Tigner*, 108 Ohio App.3d 152, 670 N.E.2d 304 (8th Dist. 1995); *Walker v. Barnett Mgmt., Inc.*, Nos. 84188,84210, 2004 WL 2847810 (Ohio App., 8th Dist., Dec. 9, 2004); *Bell v. Goldsmith*, No. 67893, 1995 WL 396352 (Ohio App., 8th Dist., July 6, 1995); *Straughter v. Stark Metro. Hous. Auth.*, No. CA-8696, 1992 WL 127098 (Ohio App., 5th Dist., June 1, 1992).

If a landlord is not on notice of peeling or chipping paint, the landlord may not be on notice of a lead-based paint hazard at the premises. See *Knox v. Clark*, No. 03-CA-95, 2004 WL 1888283 (Ohio App., 5th Dist., Aug. 23, 2004).

e. Rule for the R.C. 5321.04(A)(4) Duty to Maintain, Latent Defects

Prior to November 1998, the appellate courts applied the *Shroades* notice to R.C. 5321.04(A)(4)³⁰⁷ cases the same as they applied it to other R.C. 5321.04(A) cases. E.g., *Patton v. Harper*, No. 95-CA-20, 1996 WL 96007 (Ohio App., 4th Dist., Mar. 4, 1996) (carbon monoxide emanating from heating system as a result of blockage in chimney); *Burnworth v. Harper*, 109 Ohio App.3d 401, 667 N.E.2d 987 (4th Dist. 1996) (same); *Lockhart v. Mayfield*, No. 14990, 1991 WL 184833 (Ohio App., 9th Dist., Sept. 18,

³⁰⁷ R.C. 5321.04(A)(4) requires a landlord to “maintain in good and safe working order and condition all electrical, plumbing, sanitary, heating, ventilating, and air conditioning fixtures and appliances, and elevators, supplied or required to be supplied by him.”

1991) (defect in chimney); *Murray v. Bargo*, No. CA86-11-080, 1987 WL 15440 (Ohio App., 12th Dist., Aug. 10, 1987) (defect in fireplace wall); *White v. Fuller*, No. CA-84-15, 1984 WL 7584 (Ohio App., 5th Dist., Nov. 27, 1984) (carbon monoxide emanating from heating stove as a result of a clogged chimney).

Since November 1998, the Second Appellate District has modified the *Shroadess* (now *Shroadess/Sikora*) notice for R.C. 5321.04(A)(4) cases. *Lansdale v. Dursch*, No. 16858, 1998 WL 769852 (Ohio App., 2nd Dist., Nov. 6, 1998) (carbon monoxide emanating from the furnace). See also *Hammaker v. Maxson*, No. 2003-CA-38, 2004 WL 869381 (Ohio App., 2nd Dist., Apr. 23, 2004) (grounding wire in stove not fastened properly); *Smith v. Ohio Edison, Inc.*, No. 98-CA-37, 1999 WL 6444 (Ohio App., 2nd Dist., Jan. 8, 1999) (defect in electrical wiring).

In R.C. 5321.04(A)(4) cases, the Second Appellate District generally does not require actual or constructive notice to the landlord of the defective condition. *Id.* Instead, it requires actual or constructive notice to the landlord of the improper maintenance of the appliance or fixture (“*Lansdale* notice rule”). *Id.*³⁰⁸

The *Lansdale* notice rule is premised on the difference between a duty to maintain and a duty to repair. *Id.* A duty to maintain requires a landlord to take preventative action before a defective condition occurs,³⁰⁹ whereas a duty to repair requires a landlord to remedy an existing defective condition. *Id.*

The notice required by the *Lansdale* notice rule “may be demonstrated by, *inter alia*, evidence regarding the procedures necessary to maintain the particular appliance; any inspection, testing, or lack of the same, of the appliance for defects; or the landlord’s schedule for regular maintenance or lack thereof.” *Lansdale*, 1998 WL 769852, at *4.

The Second Appellate District does not apply the *Lansdale* notice rule if the latent defect “would not be ... ordinarily discoverable by an inspection ordered by the landlord.” *Hammaker v. Maxson*, No. 2003-CA-38, 2004 WL 869381, ¶ 40 (Ohio

³⁰⁸ Cf. *Chambers v. Cuyahoga Metro. Hous. Auth.*, No. 78354, 2001 WL 1034661 (Ohio App., 8th Dist., Sept. 6, 2001) (applying the doctrine of *res ipsa loquitur*, held that water pipe in the wall would not have burst if landlord had exercised ordinary care to keep the pipe in good repair).

³⁰⁹ This duty to maintain and thereby prevent a defective condition is similar to the common law duty to inspect periodically and repair the common area of the premises. See Section IX.C.1, below.

App., 2nd Dist., Apr. 23, 2004).

Consistent with this limitation and in a decision that predates it, the Sixth Appellate District has held that the *Lansdale* notice rule, if valid at all, should be limited to defective conditions that are “readily available for inspection by a landlord.” *Abbott v. Haight Props., Inc.*, No. L-98-1413, 2000 WL 491731, at *5 (Ohio App., 6th Dist., Apr. 28, 2000). If an inspection of the fixture or appliance would require the landlord “to tear open the wall and the sound board,” it does not meet this readily available for inspection standard. *Id.* (electrical wiring in the wall was not readily available for inspection). See also *Robinson v. Larchmont E. Apts., Inc.*, No. L-12-1323, 2014 WL 4049874, ¶¶ 19,20 (Ohio App., 6th Dist., Aug. 15, 2014) (follows *Abbott*).

The Sixth Appellate District also has held that the *Lansdale* notice rule, if valid at all, should not apply to a defective condition that has existed from the time of construction, since it is “not a defect that developed due to a lack of preventative action.” *Abbott*, 2000 WL 491731, at *5

The Third Appellate District Court has followed the *Lansdale* notice rule. *Trammell v. McDonald*, No. 4-04-15, 2004 WL 2026414 (Ohio App., 3rd Dist., Sept. 13, 2004).

The Ninth Appellate District has rejected the *Lansdale* notice rule altogether and continues to require notice of the defective condition to the landlord in R.C. 5321.04(A)(4) cases. *Beere v. Timber Top Apts.*, No. 20843, 2002 WL 971896 (Ohio App., 9th Dist., May 1, 2002) (2-1 decision); *Robinson v. Akron Metro. Hous. Auth.*, No. 20405, 2001 WL 866275 (Ohio App., 9th Dist., Aug. 1, 2001).

f. Rule for the R.C. 5321.04(A)(1) Duty to Comply With Applicable Codes

The *Shroadess/Sikora* notice applies to R.C. 5321.04(A)(1)³¹⁰ cases. *Sikora v. Wenzel*, 88 Ohio St.3d 493, 495, 727 N.E.2d 1277 (2000). E.g., *Stancil v. K.S.B. Inv. & Mgmt. Co.*, 62 Ohio App.3d 765, 577 N.E.2d 452 (8th Dist. 1991).

In R.C. 5321.04(A)(1) cases, the notice is not required to state that the defective condition is a code violation. *Martin v. Edgewater Props.*, No. 92-CA-005307, 1992 WL 357321 (Ohio App., 9th Dist., Nov. 25, 1992).

Also, if the relevant code provision requires the landlord to install a particular

³¹⁰ R.C. 5321.04(A)(1) requires a landlord to “comply with the requirements of all applicable building, housing, health, and safety codes that materially affect health and safety.”

fixture at the premises (*e.g.*, a smoke detector) and the landlord fails to do so, the landlord has constructive notice of the code requirement and thus constructive notice of the defective condition (*i.e.*, the code violation). *Burdick v. Nevel*, No. 98AP-697, 1999 WL 235435 (Ohio App., 10th Dist., Apr. 20, 1999).

g. Social Guest of Tenant

The *Shroades/Sikora* notice applies to the R.C. 5321.04 negligence per se claim of a tenant's social guest. *E.g.*, *Patton v. Harper*, No. 95-CA-20, 1996 WL 96007 (Ohio App., 4th Dist., Mar. 4, 1996). *See also Primes v. Milbry*, No. 18236, 1997 WL 760698, at *2 n.2 (Ohio App., 9th Dist., Nov. 19, 1997) (acknowledges the *Patton* holding, but does not address the issue because it resolves the case on other grounds).

For a discussion on the landlord's R.C. 5321.04(A) obligations to a tenant's social guests, see Section VII.C.1.b, above.

3. Proximate Cause

"[I]n addition to negligence per se, proximate cause for the injuries sustained must be established." *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 25, 427 N.E.2d 774 (1981).

"'Proximate causation' is described as 'some reasonable connection between the act or omission of the defendant and the damage the plaintiff has suffered.'" *Stevens v. Aaron Rental Props., Inc.*, No. 2009-CA-131, 2010 WL 3639339, ¶ 24 (Ohio App., 5th Dist., Sept. 15, 2010). The act or omission need not be the initial or sole cause of the injury. *Id.*

"'The proximate cause of an event is that which in a natural and continuous sequence, unbroken by any new, independent cause, produces that event and without which that event would not have occurred.'" *Sabolik v. HGG Lake Ltd. P'ship*, 180 Ohio App.3d 576, 583, 906 N.E.2d 488 (8th Dist. 2009) (quoting *Atkins v. Indus. Comm'n*, 143 Ohio St. 113, 117, 53 N.E.2d 1018 (1944)).

"There may be more than one proximate cause of an injury. When the negligent act or failure to act continues and combines to produce the injury, both causes may be proximate to the injury." *Stevens*, 2010 WL 3639339, ¶ 24 (citations omitted).

"The issue of proximate cause is one of fact." *Mounts v. Ravotti*, No. 07-MA-182, 2008 WL 4415819, ¶ 38 (Ohio App., 7th Dist., Sept. 26, 2008). *Accord Scott v. Kirby*, No. L-05-1287, 2006 WL 1047480, ¶ 33 (Ohio App., 6th Dist., Apr. 21, 2006).

Appellate court decisions finding a genuine issue of fact on proximate cause and,

therefore, reversing a summary judgment for the landlord include:

- (1) *Stevens v. Aaron Rental Props., Inc.*, No. 2009-CA-131, 2010 WL 3639339 (Ohio App., 5th Dist., Sept. 15, 2010) (tenant fell on stairway without handrail);
- (2) *Lyle v. PK Mgmt., LLC*, No. 5-09-38, 2010 WL 1948360 (Ohio App., 3rd Dist., May 17, 2010) (tenant fell in hallway);
- (3) *Morgan v. Mamone*, No. 87612, 2006 WL 3804527 (Ohio App., 8th Dist., Dec. 21, 2006) (tenant fell on ice patch in common area);
- (4) *Scott v. Kirby*, No. L-05-1287, 2006 WL 1047480 (Ohio App., 6th Dist., Apr. 21, 2006) (guest fell on porch steps, without handrail).

Appellate court decisions finding that the tenant failed to establish the required proximate cause include:

- (1) *Bailey v. Ward*, No. 8-16-03, 2016 WL 5873893 (Ohio App., 3rd Dist., Oct. 3, 2016) (insufficient evidence – mostly speculation and conjecture – to support gutter run-off theory as cause for snow and ice on steps and thereupon tenant's fall);
- (2) *Arnett v. Mong*, 65 N.E.3d 72, 2016-Ohio-2893 (Ohio App., 12th Dist., 2016) (evidence failed to establish whether the guest slipped on a natural or unnatural accumulation of snow or ice);
- (3) *Dardy v. Thompson*, No. 2013-G-3157, 2014 WL 2883278 (Ohio App., 11th Dist., June 23, 2014) (failed to establish that any violation of R.C. 5321.04(A) was the proximate cause of the fire because the fire inspectors were unable to determine the cause of the fire);
- (4) *Sabolik v. HGG Lake Ltd. P'ship*, 180 Ohio App.3d 576, 906 N.E.2d 488 (8th Dist. 2009) (tenant scalded by hot water in bathtub due to tenant's actions – tenant accidentally turned the hot water to its highest setting, when he tried to turn the hot water off with his foot, while having a seizure);
- (5) *Bogner v. Titleist Club, LLC*, No. WD-06-039, 2006 WL 3825228 (Ohio App., 6th Dist., Dec. 29, 2006) (evidence did not establish a causal connection between the medical symptoms and the alleged exposure to mold);
- (6) *Mahmoud v. Dennis*, No. L-04-1183, 2005 WL 1661966 (Ohio App., 6th Dist., June 30, 2005) (insufficient evidence – only speculation and conjecture – as to the cause of the guest's fall on the steps);

- (7) *Smalley v. Pauly*, No. L-04-1106, 2004 WL 3200933 (Ohio App., 6th Dist., Dec. 17, 2004) (no evidence that the lack of a handrail caused tenant's fall on the steps);
- (8) *Turner v. Tiemeyer*, No. CA95-08-053, 1996 WL 56040 (Ohio App., 12th Dist., Feb. 12, 1996) (no evidence that the tenant's fall was due to the defective condition of the steps);
- (9) *Lilly v. Yee*, No. 94-APE06-830, 1995 WL 127886 (Ohio App., 10th Dist., Mar. 23, 1995) (no evidence that the bursting of the pipe was due to any failure to maintain the steam heating system);
- (10) *Brady v. Koehnke*, No. C-930240, 1994 WL 481758 (Ohio App., 1st Dist., Sept. 7, 1994) (no evidence that the tenant's fall from the front porch was due to code violations regarding the steps and handrail);
- (11) *Juresa v. Radan*, No. 64951, 1994 WL 173654 (Ohio App., 8th Dist., May 5, 1994) (the tenant's fall down the steps was due to the tenant's negligence, not the lack of a handrail);
- (12) *Riley v. FDMA Props.*, No. 92-CA-22, 1992 WL 316356 (Ohio App., 5th Dist., Oct. 7, 1992) (no evidence that the tenant's fall down the steps was due to code violations regarding the bottom step);
- (13) *Harmon v. Schroeder*, No. 4-85-17, 1986 WL 14411 (Ohio App., 3rd Dist., Dec. 17, 1986) (no evidence that the tenant's physical injuries were due to a gas leak that the landlord repaired on the date that it was discovered).

4. Types of Damages

a. Compensatory Damages

In an R.C. 5321.04 negligence per se claim, the types of compensatory damages that a tenant may recover include:

- (1) personal injury damages, *Anderson v. Ceccardi*, 6 Ohio St.3d 110, 114-15, 451 N.E.2d 780 (1983); *Allen v. Lee*, 43 Ohio App.3d 31, 34, 538 N.E.2d 1073 (8th Dist. 1987); e.g., *Sanders v. McGee*, No. 13-CV-003983 (Ohio C.P., Franklin Cty., Apr. 3, 2014).
- (2) personal property damages, e.g., *Ohio Specialized Invs., Ltd. v. Campbell*, No. 2016-CA-00176, 2017 WL 1231727 (Ohio App., 5th Dist., Mar. 31, 2017); *Sanders v. McGee*, No. 13-CV-003983 (Ohio C.P., Franklin Cty., Apr. 3, 2014); see also *Cooper v. Feeney*, 34 Ohio App.3d 282, 282-83, 518 N.E.2d 46 (12th Dist. 1986); and

- (3) inconvenience and discomfort damages, e.g., *Johnson v. Rahim*, No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020) (tenant awarded \$3,850 (\$50 per day) for the inconvenience and discomfort caused by the termination of water service to the dwelling unit); *Nobles v. Johns*, No. 91-CVG-28244 (Ohio Mun., Cleveland, Hous. Div., Mar. 25, 1992) (tenant awarded \$2,200 (\$100 per day) for the inconvenience of residing in a shelter for twenty-two days after her premises had been flooded and rendered unlivable by a rain-storm, as a result of a defect in the roof).

In an R.C. 5321.04 negligence per se claim, a tenant is not permitted to recover emotional distress damages. *Allen v. Lee*, 43 Ohio App.3d 31, 34, 538 N.E.2d 1073 (8th Dist. 1987). However, if the emotional distress is serious and disabling, the tenant may recover emotional distress damages in a claim for intentional, reckless, or negligent infliction of serious emotional distress. See Section IX.E, below.

b. Punitive Damages

An R.C. 5321.04 negligence per se claim is a tort action within the purview of R.C. 2315.21. *Sivit v. Vill. Green of Beachwood, L.P.*, 143 Ohio St.3d 168, 35 N.E.3d 508, ¶ 5 (2015).

Therefore, in an R.C. 5321.04 negligence per se claim, a tenant may recover punitive damages. *Sivit*, 2015-Ohio-1193, ¶¶ 5-7.

Under R.C. 2315.21, this right to recover punitive damages is subject to three requirements. First, “[a]n award of punitive damages requires that actual malice be proven” *Sivit*, 2015-Ohio-1193, ¶ 7. Second, “a plaintiff must be awarded some measure of compensatory damages to receive punitive damages.” *Niskanen v. Giant Eagle, Inc.*, 122 Ohio St.3d 486, 912 N.E.2d 595, ¶ 12 (2009). Third, the punitive damage award may not exceed two times the amount of the compensatory damage award. *Sivit*, 2015-Ohio-1193, ¶ 6.

One court awarded punitive damages for a landlord’s willful and malicious failure to restore water service to the premises for 77 days. *Johnson v. Rahim*, No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020) (\$7,103 compensatory damages; \$5,562 punitive damages).

Another court awarded punitive damages for a landlord’s willful and reckless failure to provide heat and hot water to the premises. *Monaco v. Schultz*, No. 1998-CV-100425, 2001 WL 1677087 (Ohio C.P., Tuscarawas Cty., Jan. 30, 2001) (\$5,000 compensatory damages; \$5,000 punitive damages).

If a tenant is awarded punitive damages in an R.C. 5321.04 negligence per se case, the tenant may also be entitled to an award of attorney's fees under Ohio common law. See Section XIX.B, below.

5. Independent Contractor

When a landlord employs an independent contractor to make repairs in compliance with R.C. 5321.04(A), the landlord is liable to the tenant for any negligent acts of the independent contractor in the performance of those repairs. *Strayer v. Lindeman*, 68 Ohio St.2d 32, 427 N.E.2d 781 (1981). See also *Wallenstein v. Marsol Towers*, No. 58822, 1991 WL 378192 (Ohio App., 8th Dist., Aug. 8, 1991); *Simpson v. Delta Prop. Mgmt., Inc.*, Nos. C-850562,850575, 1986 WL 7136 (Ohio App., 1st Dist., June 25, 1986).

"[N]otice [to the landlord] of the defect is not required to impute that liability to the landlord." *Kroeger v. East End Constr. Co.*, No. 14080, 1994 WL 100698, at *3 (Ohio App., 2nd Dist., Mar. 2, 1994). Accord *Wallace v. Golden Comb, Inc.*, 4 N.E.3d 445, 2013-Ohio-5320 (Ohio App., 8th Dist., 2013). But see *Hodge v. Lackey*, No. 93-T-4947, 1995 WL 378700 (Ohio App., 11th Dist., May 12, 1995).

The *Strayer* doctrine does not extend to an independent contractor's repair of cable equipment if the cable company hired the independent contractor. *Lee v. Babeli*, No. 2000-CA-00371, 2001 WL 705558 (Ohio App., 5th Dist., May 29, 2001).

6. Sale of Property, Seller's Liability for Existing Defective Conditions

Generally, "outside an agreement or law establishing a relationship to the contrary, the prior owners of a [rental] property are divested of all rights and obligations to the said property on the date the title to the property is transferred to the new owners." *Steele v. McNatt*, 102 Ohio App.3d 558, 562, 657 N.E.2d 575 (8th Dist. 1995). Accord *Wiles v. Miller*, 3 N.E.3d 226, 2013-Ohio-3625, ¶¶ 17-23 (Ohio App., 10th Dist., 2010).

However, when a landlord sells rental property and, as of the time of the sale, the landlord has failed to remedy defective conditions at the property in violation of R.C. 5321.04(A), an issue that may arise is: for what period of time (if any), after the transfer of title, does the seller remain liable for injuries directly and proximately

caused by those conditions.³¹¹

One appellate court applied sections 16.1 and 16.3 of the Restatement of Property 2d, Landlord and Tenant to decide this issue. *Robinson v. C & L Assocs., L.L.C.*, 188 Ohio App.3d 649, 936 N.E.2d 546 (2nd Dist. 2010).

It held that, under section 16.1(b), the seller remains liable for the tenant's personal injuries that were a direct and proximate cause of the seller's failure, before the transfer of title, to meet its obligations under R.C. 5321.04(A). *Id.*, ¶ 33. In support of this holding, it found: "The purpose of the Landlords and Tenants Act would be frustrated if a landlord could escape all potential liability for personal injuries directly and proximately caused by the landlord's failure to fulfill its obligations under R.C. 5321.04 simply because the injuries occurred a few days after the landlord's sale of the rental property." *Id.*, ¶ 34.

But "[a]s time passes and the transferee has had a reasonable opportunity to discover a defective condition, or it is reported by the tenant, the transferee landlord's failure to make repairs becomes an intervening cause that could or should have eliminated the hazard, creating a break in the chain of causation between the tenant's injuries and the transferor landlord's breach, relieving the transferor landlord of liability." *Id.*, ¶ 35.

In *Robinson*, five days after the sale of the rental property, the tenant suffered burns to her arms due to a defective stove door. Applying its statement of the relevant law, the court held the seller liable for these injuries.

7. Defense Issues

a. Open and Obvious Doctrine

The open-and-obvious doctrine does not apply to R.C. 5321.04 negligence per se claims. *Mann v. Northgate Investors, L.L.C.*, 138 Ohio St.3d 175, 5 N.E.3d 594, ¶¶ 24,33 (2014) (R.C. 5321.04(A)(3)); *Robinson v. Bates*, 112 Ohio St.3d 17, 857 N.E.2d 1195, ¶ 25 (2006) (R.C. 5321.04(A)(1)); *Lang v. Holly Hill Motel, Inc.*, 122 Ohio St.3d 120, 909 N.E.2d 120, ¶¶ 12-15 (2009) (R.C. 5321.04(A), dicta). *See also DeFreeze v. Lynch*, No. 107090, 2019 WL 993334, ¶ 15 (Ohio App., 8th Dist., Feb. 28, 2019); *Rawlings v. Springwoods Apts. of Columbus, Ltd.* 125 N.E.3d 312, 2008-

³¹¹ For a discussion on to whom the tenant has rental liabilities and for what periods, when the rental property is sold, see Section VII.F.10, above.

Ohio-4845, ¶ 41 (Ohio App., 10th Dist., 2018); *Arnett v. Mong*, 65 N.E.3d 72, 2016-Ohio-2893, ¶ 9 (Ohio App., 12th Dist., 2016); *McHugh v. Zaatar*, No. 14-CA-010591, 2015 WL 7273177, ¶ 15 (Ohio App., 9th Dist., Jan. 20, 2015); *Mounts v. Ravotti*, No. 07-MA-182, 2008 WL 4415819, ¶ 22 (Ohio App., 7th Dist., Sept. 26, 2008); *Walker v. RLI Enters., Inc.*, No. 89325, 2007 WL 4442725, ¶ 53 (Ohio App., 8th Dist., Dec. 20, 2007); *Scott v. Kirby*, No. L-05-1287, 2006 WL 1047480, ¶ 23 (Ohio App., 6th Dist., Apr. 21, 2006); *Crawford v. Wolfe*, No. 01-CA-2811, 2002 WL 31521593, ¶ 56 (Ohio App., 4th Dist., Sept. 26, 2002); *Schoefield v. Beulah Road, Inc.*, No. 98AP-1475, 1999 WL 645273, at *8 (Ohio App., 10th Dist., Aug. 26, 1999). *Cf. Base-Smith v. Lautrec, Ltd.*, No. CA2013-07-115, 2014 WL 408041, ¶¶ 20-22 (Ohio App., 12th Dist., Feb. 3, 2014) (R.C. 4781.38(A)(1)-(3) – manufactured home park provisions that are similar to R.C. 5321.04(A)(1)-(3)).

For a discussion on the open and obvious doctrine, see Section IX.C.2, below.

b. Comparative Negligence

The defense of comparative negligence may be asserted in an R.C. 5321.04 negligence per se claim. *Parker v. Vaughn*, No. 16939, 1998 WL 639305, at *4 (Ohio App., 2nd Dist., Aug. 7, 1998); *Hubbard v. Crutchfield*, No. CA96-06-050, 1997 WL 162397, at *2 (Ohio App., 12th Dist., Apr. 7, 1997); *Guthrie v. Jamison*, No. 94-APE10-1560, 1995 WL 238425, at *3 (Ohio App., 10th Dist., Apr. 20, 1995); *Brazen v. Brazzon*, No. 50293, 1986 WL 3233, at *4 (Ohio App., 8th Dist., Mar. 13, 1986). *See also Burdick v. Nevel*, No. 98AP-697, 1999 WL 235435, at *1 (Ohio App., 10th Dist., Apr. 20, 1999); *Martin v. Edgewater Props.*, No. 92-CA-005307, 1992 WL 357321, at *3-4 (Ohio App., 9th Dist., Nov. 25, 1992).

c. Implied Assumption of Risk

The defense of implied assumption of risk is not available as an absolute bar to an R.C. 5321.04 negligence per se claim. *Anderson v. Ceccardi*, 6 Ohio St.3d 110, 451 N.E.2d 780 (1983). *See also Crawford v. Wolfe*, No. 01-CA-2811, 2002 WL 31521593 (Ohio App., 4th Dist., Sept. 26, 2002). Under the comparative negligence statute (R.C. 2315.19), the defense of implied assumption of risk is merged with the defense of contributory negligence. *Id.*

d. Primary Assumption of Risk

The defense of primary assumption of the risk is not available as a defense in an R.C. 5321.04 negligence per se claim because the claim is based on the landlord's

violation of a statutory duty (R.C. 5321.04(A)). *Glover v. Massey*, Nos. 56351, 56802, 1990 WL 1328 (Ohio App., 8th Dist., Jan. 11, 1990).

C. Common Law Negligence, Premises Liability

1. Overview

“At early common law, a landlord generally was immune from tort liability for any injuries sustained by any person due to dangerous conditions on a leased-premises in the exclusive possession of a tenant, even if the dangerous condition existed at the commencement of the tenancy.” *Shump v. First Cont’l-Robinwood Assocs.*, 71 Ohio St.3d 414, 417, 644 N.E.2d 291 (1994). See also *Sabolik v. HGG Chestnut Lake Ltd. P’ship*, 180 Ohio App.3d 576, 906 N.E.2d 488, ¶ 11 (8th Dist. 2009).

But now, “[i]n point of fact, the exceptions have nearly swallowed up the general rule of landlord immunity.” *Shump*, 71 Ohio St.3d at 418.

“In order for a tenant to establish a landlord’s negligence under common law premises liability, the plaintiff must show: (1) the existence of a duty, (2) a breach of that duty, and (3) an injury proximately resulting from the breach.” *DeFreeze v. Lynch*, No. 107090, 2019 WL 993334, ¶ 13 (Ohio App., 8th Dist., Feb. 28, 2019). Accord *Thatcher v. Lauffer Ravines, LLC*, No. 11AP-851, 2013 WL 816428, ¶ 7 (Ohio App., 10th Dist., Mar. 5, 2013) *Lyle v. PK Mgmt., LLC*, No. 5-09-38, 2010 WL 1948360, ¶ 11 (Ohio App., 3rd Dist., May 17, 2010).

The legal duties that give rise to this common law negligence claim include the four that are summarized below.

First, “at common law, a ‘lessor [can] be held liable for the condition of premises if there were an agreement to repair” *Davis-Blunt v. Myatt*, 134 Ohio App.3d 213, 215, 730 N.E.2d 1003 (1st Dist. 1999). Accord *Shump v. First Cont’l-Robinwood Assocs.*, 71 Ohio St.3d 414, 418, 644 N.E.2d 291 (1994).

Second, “at common law, a ‘lessor [can] be held liable for the condition of premises if there were ... a violation of a duty imposed by statute.” *Myatt*, 134 Ohio App.3d at 215. Accord *Shump*, 71 Ohio St.3d at 418.

Third, “at common law it has always been the rule that a landlord who undertakes and negligently makes repairs to the premises incurs liability for injuries to tenants or their invitees that are proximately caused by the negligent repair.” *Myatt*, 134 Ohio

App.3d at 215. *Accord Shump*, 71 Ohio St.3d at 418. *Cf. Winston v. Wolery*, No. 96-CA-2442, 1997 WL 28535, at *2,3 (Ohio App., 4th Dist., Jan. 14, 1997) (landlord's negligent design and construction of a deck).

Fourth, a "landlord owes a duty to maintain the premises under its control [*e.g.*, common areas] in a reasonably safe condition and to warn of unreasonably dangerous latent conditions of which the landlord has or should have knowledge." *Sauter v. One Lytle Place*, No. C-040266, 2005 WL 627794, ¶ 7 (Ohio App., 1st Dist., Mar. 18, 2005). *Accord Shump*, 71 Ohio St.3d at 418. This includes "a duty to periodically inspect and repair the common ways of the leased premises." *Davis v. Burns*, No. 9-97-39, 1997 WL 638276, at *2 (Ohio App., 3rd Dist., Oct. 10, 1997).

This common law negligence claim also includes a notice requirement. "Where a dangerous condition exists which has not been created by the premises owner or his or her agents, one injured on the premises must show that the owner had, or in the exercise of ordinary care should have had, notice of the hazard within sufficient time to remove the condition or to warn invitees about it." *Smith v. Finn*, No. L-04-1244, 2005 WL 736669, ¶ 15 (Ohio App., 6th Dist., Mar. 31, 2005). *Accord Waugh v. Lynch*, No. 100432, 2014 WL 1340263, ¶ 10 (Ohio App., 8th Dist., Mar. 20, 2014); *Maynard v. Winters*, No. 2012AP-05-0035, 2012 WL 6765613, ¶ 36 (Ohio App., 5th Dist., Dec. 26, 2012); *Odom v. Davis*, No. 02-CA-43, 2003 WL 21458704, ¶ 17 (Ohio App., 4th Dist., June 20, 2003); *Davis v. Burns*, No. 9-97-39, 1997 WL 638276, at *2 (Ohio App., 3rd Dist., Oct. 10, 1997).

This notice requirement – the landlord knew or should have known – is the same as the notice requirement for an R.C. 5321.04 negligence per se claim (see Section IX.B.2, above). *Maynard v. Winters*, No. 2012AP-05-0035, 2012 WL 6765613, ¶ 25 (Ohio App., 5th Dist., Dec. 26, 2012); *Smith v. Finn*, No. L-04-1244, 2005 WL 736669, ¶ 16 (Ohio App., 6th Dist., Mar. 31, 2005).

2. Open and Obvious Doctrine

The open and obvious doctrine states that, "where a danger is open and obvious, a landowner owes no duty of care to individuals lawfully on the premises." *Lang v. Holly Hill Motel, Inc.*, 122 Ohio St.3d 120, 909 N.E.2d 120, ¶ 11 (2009). *Accord Robinson v. Bates*, 112 Ohio St.3d 17, 857 N.E.2d 1195, ¶ 21 (2006). This means "the owner has no duty to protect against dangers 'which are known to the invitee or are so obvious and apparent to such invitee that he may reasonably be expected to discover them and protect himself against them.'" *Howson v. Amorose*, No. 00AP-8, 2000 WL

1753112, at *3 (Ohio App., 10th Dist., Nov. 30, 2000) (quoting *Sidle v. Humphrey*, 13 Ohio St.2d 45, 233 N.E.2d 589, syllabus no. 1 (1968)).

“The question of whether a danger is open and obvious is an objective one.” *Canidate v. Cuyahoga Metro. Hous. Auth.*, No. 101753, 2015 WL 1121444, ¶ 15 (Ohio App., 8th Dist., Mar. 12, 2015). “When reasonable minds could differ with respect to whether a danger is open and obvious, the obviousness of the risk is an issue for the jury to determine.” *Id.*, ¶ 16.

“[T]he open and obvious doctrine remains viable in Ohio.” *Lang v. Holly Hill Motel, Inc.*, 122 Ohio St.3d 120, 909 N.E.2d 120, ¶ 11 (2009) (quoting *Armstrong v. Best Buy Co.*, 99 Ohio St.3d 79, 788 N.E.2d 1088, syllabus (2003)). *Accord Robinson v. Bates*, 112 Ohio St.3d 17, 857 N.E.2d 1195, ¶ 21 (2006).

“[T]he open-and-obvious doctrine can excuse a defendant’s breach of a common law duty of care.” *Lang v. Holly Hill Motel, Inc.*, 122 Ohio St.3d 120, 909 N.E.2d 120, ¶ 14 (2009).

As a result, “[t]he open and obvious doctrine ... applies to common law premises liability even when it involves claims against a landlord.” *Packman v. Barton*, No. CA2009-03-009, 2009 WL 3165605, ¶ 33 (Ohio App., 12th Dist., Oct. 5, 2009). *Accord Hatto v. McLaughlin*, No. 109307, 2020 WL 3283624, ¶ 24 (Ohio App., 8th Dist., June 18, 2020); *Hanson v. Knoppe*, No. 2019CAE-08-0046, 2019 WL 7290524, ¶ 24 (Ohio App., 5th Dist., Dec. 26, 2019); *Rawlings v. Springwoods Apts. of Columbus, Ltd.*, 125 N.E.3d 312, 2018-Ohio-4845, ¶ 24 (Ohio App., 10th Dist., 2018); *Levy v. Huener*, No. L-17-1081, 2018 WL 388406, ¶ 17 (Ohio App., 6th Dist., Jan. 12, 2018); *Callentine v. Mill Invs., LLC*, No. 2017-AP-06, 2017 WL 5565502, ¶ 39 (Ohio App., 5th Dist., Nov. 17, 2017); *Mayhew v. Massey*, 86 N.E.3d 758, 2017-Ohio-1016, ¶ 15 (Ohio App., 7th Dist., 2017); *Base-Smith v. Lautrec, Ltd.*, No. CA2013-07-115, 2014 WL 408041, ¶ 18 (Ohio App., 12th Dist., Feb. 3, 2014); *Bierl v. BGZ Assocs. II, LLC*, No. 9-12-42, 2013 WL 684707, ¶ 18 (Ohio App., 3rd Dist., Feb. 25, 2013).

For a discussion on the inapplicability of the open and obvious doctrine to R.C. 5321.04 negligence per se claims, see Section IX.B.7.a, above.

3. Supplement to R.C. 5321.04 Negligence Per Se Claim

Neither the R.C. 5321.04 negligence per se claim (see Section IX.B, above) nor R.C. Chapter 5321 supplants the tenant’s common law negligence claims against a landlord. *Sauter v. One Lytle Place*, No. C-040266, 2005 WL 627794, ¶ 6 (Ohio App.,

1st Dist., Mar. 18, 2005); *Davis-Blunt v. Myatt*, 134 Ohio App.3d 213, 215, 730 N.E.2d 1003 (1st Dist. 1999); *Winston v. Wolery*, No. 96-CA-2442, 1997 WL 28535, at *3 (Ohio App., 4th Dist., Jan. 14, 1997); *Hoover v. Elliott*, No. CA-9160, 1985 WL 4927, at *2 (Ohio App., 2nd Dist., Dec. 30, 1985). *See also Shump v. First Cont'l-Robinwood Assocs.*, 71 Ohio St.3d 414, 644 N.E.2d 291 (1994).

Therefore, when a landlord fails to maintain the premises, the tenant may have both a common law negligence claim and an R.C. 5321.04 negligence per se claim against the landlord.

D. Common Law Negligence, Criminal Activity of Third Party

A third party's intentional criminal acts at the premises may give rise to a negligence claim by the tenant against the landlord. The elements of this claim are: (1) the landlord's violation of an obligation to maintain the premises or to provide reasonable security (e.g., statutory or code obligation, implied covenant of quiet enjoyment, express lease provision), (2) a criminal intrusion, a proximate cause of which is the violation, (3) an injury to the tenant's person or property as a result of the criminal intrusion, and (4) the reasonable foreseeability of the criminal intrusion and the criminal act directed at the tenant (i.e., the tenant's injury), which may be based in part on the prior criminal activity in the neighborhood or building.

Under Ohio case law, there are at least three circumstances where a landlord's violation of an obligation and a resulting criminal intrusion may give rise to a negligence claim by the tenant against the landlord.

The first is where the landlord violates the landlord's obligation to provide in the common area reasonable security measures against criminal activity. See Section VII.C.8, above.

The second is where the landlord violates an express provision of the rental agreement that requires the landlord to provide a specified security measure, such as a window lock. *Blair v. Prop. Mgmt. Consultants*, 40 Ohio App.3d 103, 531 N.E.2d 752 (1st Dist. 1987); *Buncy v. Daniels*, No. CA-6059, 1983 WL 6486 (Ohio App., 5th Dist., June 13, 1983). *See also Cipollene v. Hoffmeier*, No. C-060482, 2007 WL 2141578, ¶ 20 (Ohio App., 1st Dist., July 27, 2007); *Brown v. Campbell*, Nos. 85698, 85702, 2005 WL 1793519, ¶ 23 (Ohio App., 8th Dist., July 28, 2005).

The third is where the landlord violates the landlord's obligation to exercise

reasonable care in providing the security services that the landlord does provide. *Pamer v. Pritchard Bros.*, 61 Ohio Misc.2d 150, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990).

Ohio courts generally have held that, except for the foregoing obligations, the common law does not impose an obligation on landlords to protect tenants against the criminal activity of a third party. *Thomas v. Hart Realty, Inc.*, 17 Ohio App.3d 83, 477 N.E.2d 668 (1st Dist. 1984). See also *Cowan v. Hidden Lake*, No. 17053, 1995 WL 523349 (Ohio App., 9th Dist., Sept. 6, 1995); *Johnson v. Monroe Realty Co.*, No. 67964, 1995 WL 322278 (Ohio App., 8th Dist., May 25, 1995); *Meier v. Vistula Heritage Vill.*, 62 Ohio Misc.2d 632, 609 N.E.2d 1360 (Ohio C.P., Lucas Cty., 1992).

Likewise, Ohio courts generally have held that R.C. 5321.04(A) does not, per se, impose an obligation on landlords to protect tenants against the criminal activity of a third party. See Section VII.C.8, above.

Even when a landlord's R.C. 5321.04(A) violation facilitates the criminal intrusion, courts seem reluctant to find that the R.C. 5321.04(A) violation is a proximate cause of the criminal act directed at the tenant. E.g., *Runge v. Rosewater*, Nos. 47650,47651, 1984 WL 5072 (Ohio App., 8th Dist., June 14, 1984) (insufficient evidence on whether entry occurred through door with defective lock); *Cherkiss v. Thomas*, No. L-83-416, 1984 WL 7829 (Ohio App., 6th Dist., Apr. 13, 1984) (entry through window with defective latch); *Emm v. Sheskey*, No. 79AP-632, 1980 WL 353284 (Ohio App., 10th Dist., Feb. 14, 1980) (entry through back door with defective lock). See also *Brown v. Campbell*, Nos. 85698,85702, 2005 WL 1793519 (Ohio App., 8th Dist., July 28, 2005) (entry through side door, which landlord promised to replace with more secure door).

"The foreseeability of criminal acts, that is, the defendant's knowledge, is determined from the totality of the circumstances." *Brown v. Campbell*, Nos. 85698, 85702, 2005 WL 1793519, ¶ 16 (Ohio App., 8th Dist., July 28, 2005). However, the courts are mindful that "criminal behavior of third persons is not predictable to any degree of certainty." *Johnson v. Spectrum of Supportive Servs.*, No. 82267, 2003 WL 21982915, ¶ 20 (Ohio App., 8th Dist., Aug. 21, 2003). As a result, they require "(1) specific knowledge of a potential future problem based on past occurrences along with (2) a substantial likelihood that such an incident would occur." *Id.*, 2003 WL 21982915, ¶ 21. "[E]vidence that the [housing] complex is in a particularly crime ridden location" may be a relevant factor. *Pieper v. Williams*, No. L-05-1065, 2006 WL 964725, ¶ 55 (Ohio App., 6th Dist., Apr. 14, 2006).

Courts seem reluctant to find this requisite foreseeability. *E.g.*, *Brown v. Campbell*, Nos. 85698,85702, 2005 WL 1793519 (Ohio App., 8th Dist., July 28, 2005) (murder by non-tenant husband, who was subject to anti-stalking order, not foreseeable); *Doe v. Beach House Dev. Co.*, 136 Ohio App.3d 573, 737 N.E.2d 141 (8th Dist. 2000) (notwithstanding a series of prior violent and aggressive acts of a third party (another tenant's child) toward plaintiff and other residents of the complex, which included holding a knife on two young girls, the third party's first degree felony sexual assault on plaintiff was not foreseeable); *Sayles v. SB-92 Ltd. P'ship*, 138 Ohio App.3d 476, 741 N.E.2d 613 (8th Dist. 2000) (it was not foreseeable that the tenant's stalker would enter the building as a result of the exterior door's defective lock and then start a fire at the tenant's dwelling unit door).

E. R.C. 5321.04 Emotional Distress Claims

When a landlord's failure to remedy an R.C. 5321.04(A) violation causes the tenant to suffer emotional distress that is both serious and disabling, the tenant may have a claim against the landlord for intentional, reckless, or negligent infliction of serious emotional distress. *E.g.*, *Allen v. Lee*, 43 Ohio App.3d 31, 538 N.E.2d 1073 (8th Dist. 1987); *Sanders v. McGee*, No. 13-CV-003983 (Ohio C.P., Franklin Cty., Apr. 3, 2014); *Woods v. Coleman*, No. 01-CVG-444 (Ohio Mun., Jackson Cty., Aug. 6, 2001); *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991). *See also Birkenhead v. Coombs*, 465 A.2d 244 (Vt. 1983); *Simon v. Solomon*, 385 Mass. 91, 431 N.E.2d 556 (1982); *Dorgan v. Loukas*, 19 Mass. App. Ct. 959, 473 N.E.2d 1151 (1985). *See generally Yeager v. Local Union 20, Etc.*, 6 Ohio St.3d 369, 453 N.E.2d 666 (1983) (intentional); *Schultz v. Barberton Glass Co.*, 4 Ohio St.3d 131, 447 N.E.2d 109 (1983) (negligent).

In *Allen*, the tenant, a fifty-eight-year-old woman who suffered from multiple physical disabilities, recovered emotional distress damages in the amount of \$5,000. The R.C. 5321.04(A) violations included an infestation of rats and roaches, broken windows, large holes in interior walls, holes to the basement in the bathroom floor, a corroded bathtub that would not drain, and stained and rusty sinks.

In *Sanders*, the tenant recovered \$30,000 for the physical and emotional pain and suffering of the tenant and her children. The R.C. 5321.04 violations included, for a period of seven months: (1) a severe bed bug infestation that caused physical injury and made the bedrooms unusable; and (2) a virtually unusable bathroom because of the strong urine scent and the rusted out condition of the tub.

In *Woods*, the tenant recovered emotional distress damages in the amount of \$5,000. The R.C. 5321.04(A) violations were the absence of running water and the absence of a working toilet for a period of six months.

In *Kenwood Courts Apts.*, the tenant recovered emotional distress damages in the amount of \$2,000. The R.C. 5321.04(A) violations included repeated flooding of the premises, plumbing problems, lack of screens and air conditioning, as well as many miscellaneous problems.

The elements of a tenant's claim against a landlord for serious emotional distress are: (1) the landlord either intended to cause the tenant to suffer emotional distress or knew or should have known that the landlord's actions or omissions would cause the tenant to suffer emotional distress, (2) the landlord's conduct was so extreme and outrageous as to go beyond the bounds of decency and could be considered as utterly intolerable in a civilized community, (3) the landlord's actions or omissions were the proximate cause of the tenant's emotional distress, and (4) the emotional distress that the tenant suffered was serious. See *Pyle v. Pyle*, 11 Ohio App.3d 31, 34, 463 N.E.2d 98 (8th Dist. 1983).

Contemporaneous physical injury is not necessary to succeed on a serious emotional distress claim. *Id.*

Also, a tenant does "not need expert medical testimony to establish that the landlord's conduct caused her emotional injury, if other evidence sufficiently demonstrate[s] its gravity and cause." *Allen v. Lee*, 43 Ohio App.3d 31, 34, 538 N.E.2d 1073 (8th Dist. 1987). Accord *Paugh v. Hanks*, 6 Ohio St.3d 72, 451 N.E.2d 759 (1983); *Uebelacker v. Cincom Sys., Inc.*, 48 Ohio App.3d 268, 549 N.E.2d 1210 (1st Dist. 1988); *Foster v. McDevitt*, 31 Ohio App.3d 237, 511 N.E.2d 403 (2nd Dist. 1986).

However, while expert medical testimony is not necessarily required, the *Paugh* "guarantee of genuineness" test requires the plaintiff to "present some evidence beyond the plaintiff's own testimony that he or she experienced emotional distress due to the defendant's actions." *Buckman-Pierson v. Brannon*, 159 Ohio App.3d 12, 822 N.E.2d 830, ¶ 56 (2nd Dist. 2004).

The importance of medical testimony is illustrated by the decisions in *Menges v. Superior Mobile Homes, Inc.*, No. 94AP-100068, 1995 WL 498820 (Ohio App., 5th Dist., July 12, 1995), and *Childers v. Russell*, Nos. 01-4142, 4145, 2002 WL 31950741 (Ohio C.P., Montgomery Cty., Feb. 7, 2002). The emotional distress claim in *Menges* concerned sewage back-ups into a manufactured home. The emotional distress claim in *Childers* concerned a wrongful termination of water service to a manufactured

home. In both cases, the claims were denied because of the absence of medical testimony relative to the alleged emotional distress.

For these claims, the tenant should also be mindful that “Ohio ... does not permit recovery for negligent infliction of emotional distress caused by witnessing the destruction of one’s property.” *Stechler v. Homyk*, 127 Ohio App.3d 396, 399, 713 N.E.2d 44 (8th Dist. 1998) (neighbor tenant negligently left water running, which overflowed into tenant’s apartment).

F. R.C. 5321.12 Claim

“Under R.C. 5321.12, a party has a statutory remedy for damages for the breach of any duty imposed under the Act [R.C. Chapter 5321].” *Sherman v. Pearson*, 110 Ohio App.3d 70, 74, 673 N.E.2d 643 (1st Dist. 1996).

However, with respect to R.C. 5321.04(A) violations, courts have not used R.C. 5321.12 as authority to provide tenants with any claim or remedy outside the R.C. 5321.04 contract claim (see Section IX.A, above) and the R.C. 5321.04 negligence per se claim (see Section IX.B, above).

G. Receivership Claims

1. Receiver to Abate Public Nuisance, R.C. 3767.41 – General Rule

When the condition of the premises is a public nuisance, R.C. 3767.41 permits the tenant to bring a civil action against the owner for an injunction that orders the owner to abate the nuisance. R.C. 3767.41(B),(C).

“A building may be the subject of a nuisance-abatement action under R.C. 3767.41 if it is a building or structure that is used or intended to be used for residential purposes. R.C. 3767.41(A)(1).” *Northeast Shores Dev. Corp. v. Euclid Beach L.P.*, No. 05-CVH-03844, 2005 WL 1131729, ¶ 7 (Ohio Mun., Cleveland, Hous. Div., Mar. 25, 2005). The R.C. 3767.41(A)(1) phrase “used or intended to be used” means that the property is occupied by residents or is suitable for residential purposes based upon the property’s design, construction, and location. *Id.*, 2005 WL 1131729, ¶ 17. R.C. 3767.41 does not apply to any building that is occupied by its owner and contains three or fewer dwelling units. R.C. 3767.41(A)(1).

A public nuisance means:

a building that is a menace to the public health, welfare or safety; that is structurally unsafe, unsanitary, or not provided with adequate safe egress; that constitutes a fire hazard, is otherwise dangerous to human life, or is otherwise no longer fit and habitable; or that, in relation to its existing use, constitutes a hazard to the public health, welfare, or safety by reason of inadequate maintenance, dilapidation, obsolescence, or abandonment.

R.C. 3767.41(A)(2)(a).

Under this definition, most residential rental premises that have significant code violations are a public nuisance.

When the condition of the premises is a public nuisance and the owner previously has been afforded a reasonable opportunity to abate the nuisance and has failed to do so, R.C. 3767.41 also permits the tenant to bring a civil action against the owner for the appointment of a receiver, who will be responsible for abating the nuisance. R.C. 3767.41(C).

Prior to appointing a receiver in these circumstances, the court must first determine whether any mortgagee, lienholder, or other interested party associated with the building is willing and able to undertake the work and to furnish the materials necessary to abate the nuisance. *Id.*

If a receiver is appointed, the receiver will be given control over the property to make repairs, collect rents, make loans against the property for rehabilitation, and otherwise manage the property. *E.g., Winters v. Valley Homes Mut. Hous. Corp.*, No. A0601318 (Ohio C.P., Hamilton Cty., Feb. 10, 2006) (nuisance – threatened termination of water, gas, electric, and trash services due to management nonpayment; receiver, for 90 days, to collect rent and charges, pay utility bills, and maintain the property).

In deciding whether to file an R.C. 3767.41 action for receivership, the tenant's considerations include whether the amount of equity in the property is adequate to support a rehabilitation loan (if a loan is needed) and whether the rent generated by the property is adequate to support the costs of operating the property, including a reasonable management fee.

When a tenant decides to file an R.C. 3767.41 action for receivership, before filing, a helpful next step for the tenant is to identify a qualified housing management company (or individual) which (who) is willing to be appointed as the receiver.

Civil actions under R.C. 3767.41 may be commenced in a court of common pleas,

a municipal court, a housing or an environmental division of a municipal court, or a county court. R.C. 1901.18(A)(12), 1901.181(A), 1907.031.

When an R.C. 3767.41 action can be filed in a housing division or an environmental division of a municipal court, the housing division or environmental division has exclusive jurisdiction over the action. *Cent. Residents Council v. Lucas Metro Hous. Auth.*, No. CI-200902483 (Ohio C.P., Lucas Cty., Apr. 27, 2009), *aff'd on other grounds*, No. L-09-1137, 2010 WL 497340 (Ohio App., 6th Dist., Feb. 12, 2010). Under R.C. 1901.181(A), “the housing or environmental division of a municipal court ... has exclusive jurisdiction within the territory of the court in any civil action as described in division (B)(1) of section 3767.41 of the Revised Code that relates to a public nuisance.”

2. Receiver to Abate Public Nuisance, R.C. 3767.41 – Subsidized Housing

For subsidized rental housing as defined in R.C. 3767.41(A)(7), the standards and procedures for using the R.C. 3767.41 remedy vary from those used for other residential rental properties.

The R.C. 3767.41(A)(7) definition includes: Section 8 project-based assisted housing,³¹² RHS project-based assisted housing, Section 202 PRAC, Section 811 PRAC, and Rent Supplement programs. It excludes: Public Housing, Section 236 (only), Section 221(d)(3) BMIR (only), Low Income Housing Tax Credit, and Housing Choice Voucher programs.

Assisted housing tenants who reside in these excluded rental units still may use the R.C. 3767.41 provisions that govern non-subsidized rental housing (see Section IX.G.1, above). *Cent. Residents Council v. Lucas Metro Hous. Auth.*, No. L-09-1137, 2010 WL 497340 (Ohio App., 6th Dist., Feb. 12, 2010) (Public Housing).

For subsidized rental housing, R.C. 3767.41(A)(2)(b) defines public nuisance. The definition is based on HUD’s physical condition standards for the project-based subsidized housing programs, 24 C.F.R. § 5.703. R.C. 3767.41(B)(2)(c) expressly requires that the definition be construed consistent with HUD and judicial interpretations of 24 C.F.R. § 5.703. R.C. 3767.41(B)(2)(c) also creates a 12-month safe harbor for properties that receive a HUD REAC score of 75 or higher and do not

³¹² For the definition of “project-based assisted housing,” see note 165, above.

thereafter deteriorate so as to create a health or safety threat to the tenants.

For subsidized rental housing, R.C. 3767.41(B)(1)(b) establishes the notice requirements. The notice must specify the nuisance condition and state that, if the condition is not remedied within 60 days, an R.C. 3767.41 claim may be brought. The tenant must make reasonable efforts to serve the landlord or landlord's agent with the notice, in accordance with the Civil Rules, at the management office or at the place that tenants normally pay or send rent. If the landlord is not the owner of record, the tenant must also make reasonable efforts to serve the owner with the notice. If the owner does not receive service of the notice, the tenant must file a certification of the tenant's attempts to serve the owner.

For subsidized rental housing, R.C. 3767.41(I)(2)(b) creates restrictions on any R.C. 3767.41 sale of the property. The sale must comply with applicable federal law and federal contracts. And the sale must be conditioned on the purchaser executing a contract with HUD (or RHS) to continue the rental subsidy program, unless HUD (or RHS) has terminated the subsidy contract.

An example of a court order appointing a receiver under R.C. 3767.41 to manage and repair subsidized housing is *City of Cincinnati v. PE Alms Realty LLC*, No. 1500883 (Ohio C.P., Hamilton Cty., Feb. 1, 2018). The receivership order covers seven section 8 project-based properties. These properties contain a total of 660 units.

3. Receiver to Manage Premises Due to Landlord's Noncompliance with Court Order, R.C. 2735.01

When a landlord is unwilling or unable to make repairs or provide services to the premises that a court has ordered, R.C. 2735.01 provides authority for the appointment of a receiver to manage, repair, and provide services to the premises. *E.g.*, *Avondale Cmty. Council v. Lentine*, No. C-110221, 2012 WL 171892 (Ohio App., 1st Dist., Jan. 20, 2012).

R.C. 2735.01 specifies circumstances where courts of common pleas may appoint a receiver as part of their equitable powers. R.C. 2735.01(A)(4) provides for the appointment of a receiver to carry a judgment into effect. R.C. 2735.01(A)(7) provides for the appointment of a receiver in "all other cases in which receivers have been appointed by the use of equity." The equity authority of courts has included the authority to appoint a receiver if necessary to secure the full effect of a judgment. 65 Am. Jur. 2d Receivers § 28 (1972).

This receivership authority is in addition to the R.C. 3767.41 receivership

authority, which is discussed in Sections IX.G.1,2, above.

The relevant court order to make repairs or provide services may be issued, for example, under an R.C. 5321.15(C) claim (see Section XII.B.3, below) or an R.C. 5321.04 contract claim (see Section IX.A.7, above). When a tenant obtains a court order for such repairs or services and the landlord fails to comply with the order, the tenant may request the court to appoint a receiver to carry out the judgment under R.C. 2735.01(A)(4) and/or 2735.01(A)(7).

When the appointment of a receiver is ancillary to final relief in equity, a receiver may be appointed only if there is no less stringent means for protecting the rights of the parties. *Hoiles v. Watkins*, 117 Ohio St. 165, 157 N.E. 557 (1927).

Therefore, to justify the request for a receiver under R.C. 2735.01(A)(4) and/or 2735.01(A)(7), the tenant may be required to show that: (1) the tenant obtained an order that requires the landlord to make repairs or provide services to the premises, (2) the tenant attempted to enforce the order through contempt proceedings, (3) despite contempt orders requiring the landlord to make the repairs or provide the services, the landlord continues to fail to comply with the order, and (4) the appointment of a receiver will make a difference, *i.e.*, the repairs or services will be made if a responsible person collects the rent and makes arrangements for the repairs or services.

When a tenant decides to file an R.C. 2735.01 request for a receiver, before filing, a helpful next step for the tenant is to identify a qualified housing management company (or individual) which (who) is willing to be appointed as the receiver.

H. Restitution, Housing Code Cases

In sentencing an offender for a misdemeanor, the court may require “restitution by the offender to the victim of the offender’s crime ... in an amount based on the victim’s economic loss.” R.C. 2929.28.

Therefore, in criminal housing code enforcement cases, the court may award restitution to the tenant for any relevant economic loss. *E.g.*, *State v. Fisher*, No. 203-2033 (Ohio C.P., Noble Cty., May 24, 2004).

X. Tenant Claims for Improper Entry, R.C. 5321.04,.05

A. Rights and Duties Relative to any Landlord Entry Upon the Premises

The rights and duties of landlords and tenants, relative to any landlord entry upon the premises, are primarily established in R.C. 5321.04(A)(7),(8), 5321.04(B), and 5321.05(B). Those rights and duties are discussed in Section VII.E, above.

B. R.C. 5321.04(B) Remedies

If a landlord enters upon the premises in violation of R.C. 5321.04(A)(8) or 5321.04(B), under R.C. 5321.04(B), the tenant may bring an action against the landlord for actual damages, injunctive relief, and reasonable attorney's fees, or the tenant may terminate the rental agreement.

R.C. 5321.04(B) expressly authorizes injunctive relief. “[W]hen a statute grants a specific injunctive remedy to an individual or to the state, the party requesting the injunction ‘need not aver and show, as under ordinary rules in equity, that great or irreparable injury is about to be done for which he has no adequate remedy at law.’” *Ackerman v. Tri-City Geriatric & Health Care, Inc.*, 55 Ohio St.2d 51, 56, 378 N.E.2d 145 (1978).

An implied requirement of the R.C. 5321.04(B) right to terminate the rental agreement is that, when exercised, the right must be exercised within a reasonable time. *Limage v. Citiscene Props.*, No. 92AP-190, 1992 WL 131840, at *2 (Ohio App., 10th Dist., June 9, 1992). See also *T.K.D. Enters. v. Zimmermann*, No. 97-CA-44, 1998 WL 380496, at *5 (Ohio App., 4th Dist., July 2, 1998).

One court has created two additional implied requirements for exercising this right to terminate the rental agreement. *T.K.D. Enters. v. Zimmermann*, No. 97-CA-44, 1998 WL 380496, at *4 (Ohio App., 4th Dist., July 2, 1998). They are: (1) tenant service upon the landlord of a written notice of the first unlawful entry, and (2) thereafter a second unlawful entry. *Id.*

Examples of court decisions awarding actual damages under R.C. 5321.04(B) for unlawful entries include: *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537 (Ohio

App., 5th Dist., June 27, 2007) (\$2,500 compensatory damages); *Fisher v. Barker*, 159 Ohio App.3d 745, 825 N.E.2d 244 (2nd Dist. 2005) (\$500 compensatory damages – not reviewed or modified on appeal); *Blausey v. Frase*, No. 06-CVG-00748 (Ohio Mun., Licking Cty., Feb. 28, 2007) (\$500 compensatory damages and \$5,000 punitive damages).

Where a landlord has violated R.C. 5321.04(A)(8) or 5321.04(B), and the tenant has not suffered actual damages as a result of the violation, the tenant is still entitled to recover nominal damages. *Woodrow v. McGuire*, No. 1740, 1989 WL 72799, at *5 (Ohio App., 4th Dist., June 27, 1989). See also *Meacham v. Miller*, 79 Ohio App.3d 35, 40, 606 N.E.2d 996 (4th Dist. 1992) (“A court will award nominal damages if a tenant cannot prove actual damages flowing from a landlord’s unlawful behavior”). Cf. *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797, at *6 (Ohio App., 2nd Dist., Feb. 2, 2001) (“‘Actual damages’ is a term ‘often used to denote either ‘compensatory damages’ or ‘nominal damages’”).

In an R.C. 5321.04(B) claim, the right of the tenant to recover reasonable attorney’s fees is contingent only on the entry of a judgment on the merits in favor of the tenant. See R.C. 5321.04(B). See also *Iwenofu v. Consol. Mgmt., Inc.*, 49 Ohio App.3d 33, 35, 550 N.E.2d 505 (8th Dist. 1988) (“R.C. 5321.04 will not justify an award of attorney fees unless the tenant ‘obtains a judgment’ for such conduct”). This prerequisite is met regardless of whether the judgment is for injunctive relief, actual damages, or nominal damages. E.g., *Woodrow v. McGuire*, No. 1740, 1989 WL 72799, at *5 (Ohio App., 4th Dist., June 27, 1989) (nominal damages only).

In *Woodrow*, the tenant proved an R.C. 5321.04(A)(8) violation, but not actual damages. The tenant’s vacation of the premises made injunctive relief unavailable. The court held that the tenant was “entitled to nominal damages and that portion of attorney’s fees which correspond to litigating the unauthorized entry.” *Woodrow*, 1989 WL 72799, at *5.

Three court decisions erroneously hold that a tenant may recover R.C. 5321.04(B) attorney’s fees only if the tenant has suffered actual damages as a result of the landlord’s unlawful entry. *DuJardin v. Owens*, No. 87-B-19, 1988 WL 109086 (Ohio App., 7th Dist., Sept. 22, 1988); *Geyer v. Frank*, No. CA84-06-074, 1985 WL 8144 (Ohio App., 12th Dist., Jan. 14, 1985); *Dyche Real Estate Fund v. Graves*, 55 Ohio App.2d 153, 380 N.E.2d 767 (10th Dist. 1978).

These holdings are erroneous because they ignore the fact that, on an R.C. 5321.04(B) claim, a court may enter a judgment on the merits in favor of the tenant

without finding or awarding actual damages. The judgment may grant only “injunctive relief to prevent the recurrence of the conduct.” R.C. 5321.04(B). Or the judgment may award only nominal damages. *E.g., Woodrow v. McGuire*, No. 1740, 1989 WL 72799, at *5 (Ohio App., 4th Dist., June 27, 1989). In either case, the landlord made an entry in violation of R.C. 5321.04(A)(8) or 5321.04(B) and, therefore, “the tenant may ... obtain a judgment for reasonable attorney’s fees.” R.C. 5321.04(B).

When an action includes an R.C. 5321.04(B) claim and one or more other claims, the computation of the R.C. 5321.04(B) attorney’s fees is based only on the time spent on the R.C. 5321.04(B) claim “or on claims interrelated thereto.” *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537, ¶ 73 (Ohio App., 5th Dist., June 27, 2007). *See also Iwenofu v. Consol. Mgmt., Inc.*, 49 Ohio App.3d 33, 550 N.E.2d 505 (8th Dist. 1988). The interrelated claims include common law privacy, trespass, and quiet enjoyment claims arising from the statutory notice violation. *Helfrich v. Mellon*, 2007 WL 1881537, ¶ 73.

C. Common Law Remedies

When a landlord violates R.C. 5321.04(A)(8) or 5321.04(B), the tenant may assert common law claims against the landlord, in addition to the R.C. 5321.04(B) claim. See Section V.C, above. For example, the tenant may have a claim for:

- (1) trespass, *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537 (Ohio App., 5th Dist., June 27, 2007); *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Baker v. Loudermilk*, No. 76AP-770, 1977 Ohio App. LEXIS 7427 (Ohio App., 10th Dist., Mar. 29, 1977); *Barnes v. Welborn*, No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005);
- (2) invasion of privacy, *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537 (Ohio App., 5th Dist., June 27, 2007); *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); and/or
- (3) implied covenant of quiet enjoyment violation, *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537 (Ohio App., 5th Dist., June 27, 2007).

Also, in connection with these common law claims, the tenant has a claim for punitive damages, if the landlord’s conduct is malicious. *See Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Baker v. Loudermilk*, No. 76AP-770, 1977 Ohio App. LEXIS 7427 (Ohio App., 10th Dist., Mar. 29, 1977).

If a tenant is awarded punitive damages in any of these common law claims, the

tenant may also be entitled to an award of attorney's fees under Ohio common law. See Section XIX.B, below.

XI. Tenant Claims for Retaliation, R.C. 5321.02,.03

A. Types of Retaliation Prohibited

R.C. 5321.02(A) prohibits certain types of landlord retaliation against a tenant. Subject to the exceptions established in R.C. 5321.03, it prohibits a landlord from increasing a tenant's rent, decreasing the services that a tenant is entitled to receive under a rental agreement, or bringing or threatening to bring an eviction action against a tenant because the tenant engaged in one (or more) of three protected activities. The protected activities are:

- (1) Making complaints to an appropriate governmental agency of a violation of a building, housing, health, or safety code that is applicable to the premises, where the violation materially affects health and safety;
- (2) Making complaints to the landlord of any violation of R.C. 5321.04; or
- (3) Joining with other tenants for the purpose of negotiating or dealing collectively with the landlord on any of the terms and conditions of a rental agreement.

R.C. 5321.02(A)(1)-(3).

The scope of this retaliation prohibition, and issues relative to proving such retaliation, are discussed in Section II.T, above.

B. R.C. 5321.02(B) Remedies

When a landlord violates the R.C. 5321.02(A) retaliation prohibition, under R.C. 5321.02(B), the tenant may bring an action against the landlord for actual damages and reasonable attorney's fees.³¹³ *See also Laster v. Bowman*, 52 Ohio App.2d 379, 370 N.E.2d 767 (8th Dist. 1977). *But see Stuckey v. Vistula Mgmt. Co.*, No. L-00-1257,

³¹³ For city of Cleveland tenants, the tenant may recover minimum statutory damages, between \$50 and \$500, in lieu of the R.C. 5321.02(B) actual damages. Cleveland, OH Code, pt. 3C, tit. IX, ch. 375, § 375.08. *E.g., Leak v. Hale*, No. 2006-CVG-33367 (Ohio Mun., Cleveland, Hous. Div., Jan. 10, 2008) (\$500 statutory minimum damage award).

2001 WL 477133 (Ohio App., 6th Dist., May 4, 2001).³¹⁴

Where the retaliation is the commencement of an eviction action, the tenant may also assert the retaliation as a defense to the eviction claim. See Section II.T, above. Where the retaliation is a rent increase, the tenant is not liable for the rent increase. *E.g.*, *Bland v. Kovein*, No. 16179, 1993 WL 473837 (Ohio App., 9th Dist., Nov. 10, 1993).

When a landlord commences an eviction action in violation of R.C. 5321.02(A), the tenant may bring an R.C. 5321.02(B) damage claim against the landlord even if the court lacks jurisdiction to hear the eviction action. See *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984) (occupancy under a land installment contract for which R.C. 5313.07 required a foreclosure action).

Actual damages under R.C. 5321.02(B) include, for example, the time and expense of looking for another dwelling unit, damage to credit, and the time and expense of defending an eviction action. *E.g.*, *Korb v. Doering*, No. 91-CVG-4948 (Ohio Mun., Cleveland, Hous. Div., Apr. 10, 1991) (damages awarded for lost wages).

One court decision holds that actual damages under R.C. 5321.02(B) include emotional distress damages suffered as a result of the retaliation. *Gateway Apts. v. Darrah*, Nos. 76-CVG-725,928 (Ohio Mun., Lyndhurst, Aug. 22, 1977). See also *Simon v. Solomon*, 385 Mass. 91, 431 N.E.2d 556 (1982) (construing Massachusetts Landlord and Tenant Act). But see *Ficker v. Diefenbach*, 34 Or. App. 241, 578 P.2d 467 (1978) (construing Oregon Landlord and Tenant Act). Irrespective of that holding, the tenant may have a common law claim for intentional or negligent infliction of serious emotional distress. See Section XI.D, below.

Actual damages under R.C. 5321.02(B) do not include punitive damages. *Davis v. Reed*, Nos. 68699,68700, 1996 WL 347814 (Ohio App., 8th Dist., June 20, 1996). However, the tenant has a common law claim for punitive damages, if the landlord's conduct is malicious, intentional, and wanton. See Section XI.D, below.

Attorney's fees may be awarded under R.C. 5321.02(B) only if the tenant has suffered actual damages. *Jemo Assocs. v. Garman*, 70 Ohio St.2d 267, 436 N.E.2d

³¹⁴ The *Stuckey* decision is wrong. It erroneously holds that R.C. 5321.02 "permits a retaliation claim to be asserted only as a defense in an eviction action" and that "no independent cause of action exists" under R.C. 5321.02(B). 2001 WL 477133, at *3. The holding and the decision completely ignore the R.C. 5321.02(B) provision that expressly permits a tenant to "recover from the landlord actual damages together with reasonable attorneys' fees."

1353 (1982). *See also* *Zamos v. Dunn*, No. 2000-P-0120, 2001 WL 1149844 (Ohio App., 11th Dist., Sept. 28, 2001); *Neff v. Manashian*, 104 Ohio App.3d 528, 662 N.E.2d 856 (8th Dist. 1995) (dicta); *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984).

Where appropriate, the tenant also may seek injunctive relief to enjoin the threat or continuation of the unlawful retaliation. R.C. 5321.02 does not expressly authorize injunctive relief. This contrasts with other sections of R.C. Chapter 5321 that do expressly authorize injunctive relief (*i.e.*, R.C. 5321.04(B) and 5321.05(C)).

However, the remedies provided tenants in R.C. Chapter 5321 are intended to supplement other remedial measures. *Shroades v. Rental Homes, Inc.*, 68 Ohio St.2d 20, 427 N.E.2d 774 (1981). Other remedial measures include the authority to grant injunctive relief that is conferred upon courts by R.C. 2727.03 (courts of common pleas) and 1901.18 (municipal courts). Courts have the right and the responsibility to exercise that authority in any appropriate case. *Ex parte Cattell*, 146 Ohio St. 112, 64 N.E.2d 416 (1945).

C. R.C. 5321.03 Exceptions

R.C. 5321.03 provides that, in certain specified circumstances, “[n]otwithstanding section 5321.02 of the Revised Code, a landlord may bring an action under Chapter 1923 of the Revised Code for possession of the premises.” Those circumstances are discussed in Section II.T.3, above.

By the plain meaning of the above-quoted provision, R.C. 5321.03 only concerns a landlord’s right to bring an eviction action even though it constitutes retaliation under R.C. 5321.02(A). Therefore, the R.C. 5321.03 exceptions are inapplicable altogether to any rent increase or reduction in service that is retaliation under R.C. 5321.02(A).

As to a retaliatory eviction, while R.C. 5321.03 clearly bars a tenant’s R.C. 5321.02(B) retaliation defense, the case law is split on whether it also bars a tenant’s R.C. 5321.02(B) retaliation claim for actual damages and reasonable attorney’s fees. *Compare Maurer v. Gabriel*, No. 17310, 1996 WL 1740 (Ohio App., 9th Dist., Jan. 3, 1996) (not a bar to the claim), *Harris v. Winston*, No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005), and *Belvoir Cliffs Apts. v. Bembry*, 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978) with *Fay Gardens Mobile Home Park v. Newman*, 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983) (bars the claim; construing R.C. 3733.09,.091 (now R.C. 4781.36,.37) – the manufactured home park provisions that prohibit retaliation and are essentially the same as R.C.

5321.02,.03).

D. Common Law Remedies

When a landlord violates R.C. 5321.02(A), the tenant may assert common law claims against the landlord, in addition to the R.C. 5321.02(B) claim. See Section V.C, above.

For example, in these cases, the tenant has a common law claim against the landlord for punitive damages, if the landlord's conduct is malicious, intentional, and wanton. *Davis v. Reed*, Nos. 68699,68700, 1996 WL 347814, at *5 (Ohio App., 8th Dist., June 20, 1996); *Burroughs v. Douglas*, No. 46030, 1983 WL 2865, at *3-4 (Ohio App., 8th Dist., Dec. 8, 1983).

If the tenant has suffered serious emotional distress as a result of the retaliation, the tenant may have a common law claim against the landlord for intentional or negligent infliction of serious emotional distress. *Burroughs*, 1983 WL 2865, at *6. See generally *Yeager v. Local Union 20, Etc.*, 6 Ohio St.3d 369, 453 N.E.2d 666 (1983) (intentional); *Schultz v. Barberton Glass Co.*, 4 Ohio St.3d 131, 447 N.E.2d 109 (1983) (negligent).

XII. Tenant Claims for Lockout or Utility Termination, R.C. 5321.15

A. Type of Conduct Prohibited

R.C. 5321.15(A) prohibits a landlord from recovering, or attempting to recover, possession of the premises by terminating the utilities or changing the locks. It also prohibits a landlord from engaging in “any [other] act ... against a tenant ... for the purpose of recovering possession of residential premises, other than as provided in Chapters 1923., 5303., and 5321. of the Revised Code.”

These prohibitions apply even if the tenant’s right to possession has terminated. R.C. 5321.15(A). They also apply even if the tenant has vacated the premises but continues to store personal property at the premises. *See Stark v. Weimer*, No. H-98-031, 1999 WL 253451 (Ohio App., 6th Dist., Apr. 30, 1999) (R.C. 5321.15(B) violation); *Mounts v. Foerg*, No. R90-CVG-0375 (Ohio Mun., Portage Cty., Dec. 5, 1990) (same).

If the utility service termination is due to the landlord’s nonpayment, and if the landlord’s failure to make the payments is not for the purpose of recovering possession of the property, the landlord’s action is not a violation of R.C. 5321.15(A). *Brown v. Williams*, No. 2012-CVG-17491, slip op. at 2-3 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 2014, and May 2, 2014). However, the termination of the utility service still constitutes a violation of R.C. 5321.04(A) and the rental agreement (*id.*), for which the landlord is liable (see Sections IX.A,B, above).

R.C. 5321.15(A) does not prohibit a landlord from recovering possession of the premises upon a tenant’s surrender of the premises. *Burkholder v. Straughn*, No. 97-T-0146, 1998 WL 553623 (Ohio App., 11th Dist., June 26, 1998). “In order to achieve a valid surrender, both the landlord and tenant must consent to the termination [of the rental agreement].” *Id.*, 1998 WL 553623, at *3. “Such mutual consent distinguishes surrender from abandonment, in which the tenant acts unilaterally without the consent of the landlord.” *Id.*

“In the absence of an express written agreement, ... a surrender may ... be implied from the conduct of the parties.” *Id.* *Accord Tecumseh Landing, LLC v. Bonetzky*, 38 N.E.3d 1149, 2015-Ohio-2741, ¶¶ 27,28 (Ohio App., 3rd Dist., July 6, 2015); *Pietrykowski v. Hamblin*, No. WD-84-86, 1985 WL 7092, at *2 (Ohio App., 6th Dist.,

Apr. 12, 1985). “An example of this would be an oral agreement to surrender coupled with the actual physical delivery of the premises by the tenant to the landlord.” *Burkholder*, 1998 WL 553623, at *3.

R.C. 5321.15(A) also does not prohibit a landlord from recovering possession of the premises upon a tenant’s abandonment of the premises. “Abandoned property ... is property over which the owner has relinquished all right, title, claim, and possession with the intention of not reclaiming it or resuming its ownership, possession or enjoyment.” *Doughman v. Long*, 42 Ohio App.3d 17, 21, 536 N.E.2d 394 (12th Dist. 1987). *Accord McCain v. Brewer*, No. 2014-CA-8, 2015 WL 302829, ¶ 17 (Ohio App., 2nd Dist., Jan. 23, 2015); *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797, at *4 (Ohio App., 2nd Dist., Feb. 2, 2001). “In order to prove that property has been abandoned, it must be shown that the owner intended to abandon the property, and engaged in acts or omissions implementing that intent.” *Gordon*, 2001 WL 85797, at *4. *Accord McCain*, 2015 WL 302829, ¶ 17; *Barnes v. Welborn*, No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005). *Cf. Hayes v. Hayes*, No. 4892, 1985 WL 7948 (Ohio App., 8th Dist., Apr. 11, 1985) (personal property).

Therefore, “[i]n order to establish an abandonment of a leasehold, actual acts of relinquishment accompanied by intention to abandon must be shown. The primary elements are the intention to abandon and the external act by which that intention is carried into effect.” Gavin L. Phillips, Annotation, What Constitutes Abandonment of Residential or Commercial Lease – Modern Cases, 84 A.L.R. 4th 183, 192 (1991). *Cf. Hamilton v. Harville*, 63 Ohio App.3d 27, 30, 577 N.E.2d 1125 (12th Dist. 1989) (underground storage tank). “[O]ccasional, infrequent or even complete non-use is not sufficient in itself to establish the existence of an ‘abandonment,’ absent other evidence tending to prove the *intent* to abandon.” *Hamilton v. Harville*, 63 Ohio App.3d 27, 30, 577 N.E.2d 1125 (12th Dist. 1989). *Accord McCain v. Brewer*, No. 2014-CA-8, 2015 WL 302829, ¶ 17 (Ohio App., 2nd Dist., Jan. 23, 2015).

B. R.C. 5321.15(C) Remedies

1. Monetary Relief

When a landlord violates R.C. 5321.15(A), under R.C. 5321.15(C), the tenant may bring an action against the landlord for “all damages.”

All damages under R.C. 5321.15(C) include general damages, which are the tenant’s damages that necessarily result from the R.C. 5321.15(A) violation. *Gordon*

v. *Morris*, No. 2000-CA-69, 2001 WL 85797, at *4-5 (Ohio App., 2nd Dist., Feb. 2, 2001). In the tenant's pleading, the tenant is not required to allege specifically the general damages. *Id.*

All damages under R.C. 5321.15(C) also include special damages, which are the tenant's damages that result from the R.C. 5321.15(A) violation but were not a necessary consequence of it. *Id.* In the tenant's pleading, the tenant is required to allege specifically any special damages. *Id.* See also Ohio R. Civ. P. 9(G).

General damages or special damages under R.C. 5321.15(C) may include, for example:

- (1) loss of the rental value of the premises, *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797, at *4-5 (Ohio App., 2nd Dist., Feb. 2, 2001);
- (2) lost wages, *Germadnik v. Auld*, No. 2017-T-0113, 2018 WL 3533259 (Ohio App., 11th Dist., July 23, 2018); *Craft v. Oney*, No. 8766, 1984 WL 4060 (Ohio App., 2nd Dist., Oct. 17, 1984); *Meacham v. Miller*, No. 90-CIV-56 (Ohio C.P., Jackson Cty., Dec. 24, 1990), *aff'd on other grounds*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1991);
- (3) cost of a hotel room, *Cupp v. Olp*, No. 2020-CVG-001317 (Ohio Mun., Wayne Cty., Mar. 29, 2021); *Meacham v. Miller*, No. 90-CIV-56 (Ohio C.P., Jackson Cty., Dec. 24, 1990), *aff'd on other grounds*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1991);
- (4) lost or damaged personal property,³¹⁵ *Foster v. Benson*, No. 107366, 2019 WL 1858391 (Ohio App., 8th Dist., Apr. 25, 2019); *Germadnik v. Auld*, No. 2017-T-0113, 2018 WL 3533259 (Ohio App., 11th Dist., July 23, 2018); *Craft v. Oney*, No. 8766, 1984 WL 4060 (Ohio App., 2nd Dist., Oct. 17, 1984); *Sanchez v. Tompkins*, No. 2021-CVI-006506 (Ohio Mun., Cleveland, Hous. Div., Sept. 13, 2021); *Gaitawe v. Mays*, No. 11-CVG-891 (Ohio Mun., Dayton, Aug. 15, 2011);³¹⁶ *Smith v. Akarui Enters., LLC*, No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011); *Walker v. Tomi Enters.*, No. 2006-CVH-4305 (Ohio Mun., Cleveland, Hous. Div., Oct. 12, 2006); *Stolzenburg v. Frush*, No. 92-CVC10-8217 (Ohio C.P., Franklin Cty., Dec. 8, 1994);

³¹⁵ For a discussion on the measure of damages for damage to personal property, see Section XVIII.C.2, below.

³¹⁶ The tenant prevailed in her appeal from this decision on the trial court's denial of her attorney fee request. See *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012).

- (5) cost of storage of personal property, *Barnes v. Welborn*, No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005);
- (6) cost of moving truck rental, *Barnes v. Welborn*, No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005);
- (7) cost and inconvenience of using neighbor's water, *Turner v. Rose*, No. 2010-CVH-374 (Ohio County Ct., Meigs Cty., Feb. 21, 2012); and
- (8) discomfort and disruption of normal living routine, *Foster v. Benson*, No. 107366, 2019 WL 1858391 (Ohio App., 8th Dist., Apr. 25, 2019); *Germadnik v. Auld*, No. 2017-T-0113, 2018 WL 3533259 (Ohio App., 11th Dist., July 23, 2018); *Hogan v. Mozik*, No. 91-CVG-27438 (Ohio Mun., Cleveland, Hous. Div., Mar. 19, 1992).

All damages under R.C. 5321.15(C) include damages for emotional distress, if the landlord's conduct is malicious. *Dirnberg v. Hack*, No. S-86-39, 1987 WL 8012 (Ohio App., 6th Dist., Mar. 20, 1987); *Matthes v. Crow*, No. 43270, 1981 WL 5033 (Ohio App., 8th Dist., Aug. 6, 1981). *E.g.*, *Smith v. Akarui Enters., LLC*, No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011).

Likewise, all damages under R.C. 5321.15(C) include punitive damages, if the landlord's conduct is malicious.³¹⁷ *Dirnberg v. Hack*, No. S-86-39, 1987 WL 8012 (Ohio App., 6th Dist., Mar. 20, 1987); *Melvin v. Bryant*, No. CA-7259, 1981 Ohio App. LEXIS 13073 (Ohio App., 2nd Dist., Nov. 13, 1981); *Matthes v. Crow*, No. 43270, 1981 WL 5033 (Ohio App., 8th Dist., Aug. 6, 1981); *O'Neil v. Walburg*, 70 Ohio App.2d 30, 433 N.E.2d 1286 (10th Dist. 1980). *See also Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Burroughs v. Douglas*, No. 46030, 1983 WL 2865 (Ohio App., 8th Dist., Dec. 8, 1983). *But see Lockhart v. Leach*, No. 7880, 1983 WL 4815 (Ohio App., 2nd Dist., Feb. 15, 1983) (without ultimately reaching the question, stating an inclination to find that the absence of any express reference to punitive damages in R.C. 5321.15 precludes the award of such damages).

³¹⁷ A comparison between R.C. 5321.15(C) and R.C. 5321.02(B) provides a reasonable basis for the conclusion that R.C. 5321.15 authorizes an award of punitive damages even without a finding of malice. R.C. 5321.02(B) provides that, when a landlord violates R.C. 5321.02(A), the tenant may recover "actual damages." R.C. 5321.15(C) provides that, when a landlord violates R.C. 5321.15(A), the tenant may recover "all damages." By using the term "all damages" instead of "actual damages" in R.C. 5321.15(C), the legislature seems to authorize an award of actual damages and all other types of damages, which includes punitive damages, when a landlord violates R.C. 5321.15(A).

If the requisite malice exists, the tenant is entitled to punitive damages even if the actual damage award is nominal damages. *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797, at *6 (Ohio App., 2nd Dist., Feb. 2, 2001). *E.g., Blausey v. Frase*, No. 06-CVG-00748 (Ohio Mun., Licking Cty., Feb. 28, 2007) (\$25 nominal damages and \$2,500 punitive damages); *Milburn v. Henness*, No. 03-CVH-208 (Ohio Mun., Chillicothe, Jan. 29, 2004) (\$100 nominal damages and \$750 punitive damages).

“The determination of the amount of punitive damages is within the discretion of the trier of fact as long as the award is not based upon passion and prejudice.” *Meacham v. Miller*, 79 Ohio App.3d 35, 40, 606 N.E.2d 996 (4th Dist. 1992).

Factors that courts consider in determining the amount of the punitive damage award include: “the relationship between the parties, the probability of recurrence unless the conduct is deterred, the harm that is likely to occur from similar conduct, the harm that actually occurred, the reprehensibility of the conduct, the nature of the wrong, the removal of any financial profit so that future conduct results in a loss, the financial status of the parties, the deterrence value, a reasonable relationship between compensatory damages and punitive damages, and whether the wrong is a single occurrence or a pattern of wrong conduct.” *Brown v. Ray*, No. 08-CVG-25314, ¶ 81 (Ohio Mun., Cleveland, Hous. Div., Feb. 18, 2009). *Accord Smith v. Akarui Enters., LLC*, No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011).

The amount of the punitive damage award “must be an amount that fairly punishes the [landlord] for his malicious or malevolent acts and that will deter others from similar conduct.” *Babcock v. Milligan*, No. 01-CA-013, 2002 WL 924297, at *1 (Ohio App., 5th Dist., May 3, 2002). When a landlord, acting with malice, executes a “self-help eviction” of the tenant in violation in R.C. 5321.15(A), a punitive damage award of \$50 is inadequate. *Id.*

“The punitive damages should bear a reasonable relationship to Plaintiff’s [tenant’s] damages ... but need not be limited to any particular multiple of this amount.” *Smith v. Akarui Enters., LLC*, No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011) (punitive damage award in amount 30 times other damages). *See, e.g., Fisher v. Barker*, 159 Ohio App.3d 745, 825 N.E.2d 244 (2nd Dist. 2005) (unlawful entry and conversion claims – compensatory damages reduced from \$2,000 to \$600 and, thereupon, punitive damages reduced from \$20,000 to \$5,000); *Gaston v. Seals*, No. CV-03-505578 (Ohio C.P., Cuyahoga Cty., May 4, 2004) (punitive damage award, \$5,347.60, equal to the compensatory damages, \$668.45, multiplied by eight, the number of tenants harmed by the landlord).

As to due process limitations, “[t]he U.S. Supreme Court did not lay down a 4-to-1 or single-digit-ratio rule – it merely said that ‘there is a presumption against an award that has a 145-to-1 ratio’ ... – and it would be unreasonable to do so.” *Mathias v. Accor Econ. Lodging, Inc.*, 347 F.3d 672, 676 (7th Cir. 2003) (upheld 37.2 to 1 ratio, where injury from bed bugs in a hotel room that was not to be assigned until treated).

But query whether these claims are tort claims subject to the R.C. 2315.21 punitive damages limitation (2 to 1 ratio). See *Sivit v. Vill. Green of Beachwood, L.P.*, 143 Ohio St.3d 168, 35 N.E.3d 508, ¶ 5 (2015) (R.C. 5321.04 negligence per se claim is a tort action within the purview of R.C. 2315.21).

Numerous trial court decisions have awarded punitive damages in an R.C. 5321.15 action. E.g., *Smith v. Akarui Enters., LLC*, No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011) (\$468,660 – 30 times other damages – because landlord continued these practices despite prior escalating punitive damage awards up to \$185,804); *Brown v. Ray*, No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Feb. 18, 2009) (\$10,000); *Collins v. Loretz*, No. 637836 (Ohio C.P., Cuyahoga Cty., Aug. 6, 2008) (\$11,040); *Blausey v. Frase*, No. 06-CVG-00748 (Ohio Mun., Licking Cty., Feb. 28, 2007) (\$2,500); *Gaston v. Seals*, No. CV-03-505578 (Ohio C.P., Cuyahoga Cty., May 4, 2004) (\$5,347.60); *Babcock v. Milligan*, No. 99-CI-420 (Ohio C.P., Coshocton Cty., July 19, 2002) (\$250);³¹⁸ *Proctor v. Frame*, 90 Ohio Misc.2d 11, 695 N.E.2d 357 (Ohio Mun., Akron, 1998) (\$5,000); *Runyan v. Irwin*, No. 94-CVF-200 (Ohio Mun., Washington Court House, July 13, 1995) (\$1,000); *Stolzenburg v. Frush*, No. 92-CVC10-8217 (Ohio C.P., Franklin Cty., Dec. 8, 1994) (\$2,500); *Bowman v. Helm*, No. 89-CVH-384 (Ohio Mun., Jackson Cty., Jan. 4, 1991) (\$1,010); *Pittman v. Vaughn*, No. 87-CVG-06464 (Ohio Mun., Cleveland, Hous. Div., Aug. 4, 1987) (\$2,500); *Cover v. Hensley*, No. 84-CVH-608 (Ohio Mun., Port Clinton, Mar. 13, 1985) (\$1,000), *aff’d on other grounds*, No. OT-85-10, 1985 WL 4804 (Ohio App., 6th Dist., Dec. 31, 1985); *Moore v. Ress*, No. R80-CVG-0120 (Ohio Mun., Portage Cty., Sept. 18, 1980) (\$3,000); *Lewis v. Romans*, No. 78-CIF-4818 (Ohio Mun., Shaker Heights, Sept. 13, 1979) (\$200); *Tarkowski v. Gaye*, No. CVF-291 (Ohio Mun.,

³¹⁸ The trial court initially awarded the tenant punitive damages in the amount of \$50. *Babcock v. Milligan*, No. 99-CI-420 (Ohio C.P., Coshocton Cty., Apr. 27, 2001). The court of appeals held that the amount of the punitive damage award was inadequate and remanded the case for “a specific just determination on the amount of punitive damages.” *Babcock v. Milligan*, No. 01-CA-013, 2002 WL 924297, at *1 (Ohio App., 5th Dist., May 3, 2002). On remand, the trial court awarded the tenant punitive damages in the amount of \$250.

Cleveland, Mar. 1, 1977) (\$1,000). *See also Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992) (\$2,500 punitive damage award under related tort claims); *Shaw v. Mays Mobile Home Court*, No. 87-CVE-233 (Ohio Mun., Chillicothe, Dec. 10, 1987) (\$500 punitive damage award under R.C. 3733.17(C) (now R.C. 4781.49(C)) – the manufactured home park provision that prohibits certain acts to recover residential premises and is essentially the same as R.C. 5321.15(C)).

2. Attorney's Fees

When a tenant prevails on an R.C. 5321.15(A) claim, under R.C. 5321.15(C), the tenant is entitled to recover reasonable attorney's fees.

The attorney fee award is mandatory, if the tenant prevails on the R.C. 5321.15 claim. *Risch v. Samuel*, No. C-190159, 2020 WL 1488724 (Ohio App., 1st Dist., Mar. 25, 2020); *Conner v. Conner*, 114 N.E.3d 281, 2018-Ohio-2698 (Ohio App., 4th Dist., 2018); *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012); *Crenshaw v. Rowland*, 196 Ohio App.3d 717, 965 N.E.2d 341 (6th Dist. 2011); *Filyo v. Cannon*, No. 95-CA-1, 1995 WL 776946 (Ohio App., 5th Dist., Dec. 21, 1995); *Lewis v. Romans*, 70 Ohio App.2d 7, 433 N.E.2d 622 (8th Dist. 1980).

The amount of the attorney fee award is a matter within the discretion of the trial court. *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012); *Crenshaw v. Rowland*, 196 Ohio App.3d 717, 965 N.E.2d 341 (6th Dist. 2011); *Thomas v. Papadelis*, 16 Ohio App.3d 359, 476 N.E.2d 726 (9th Dist. 1984); *Lewis v. Romans*, 70 Ohio App.2d 7, 433 N.E.2d 622 (8th Dist. 1980).

When an action includes an R.C. 5321.15 claim and one or more other claims, the computation of the R.C. 5321.15(C) attorney's fees is based only on the time spent on the R.C. 5321.15 claim or on claims interrelated to the R.C. 5321.15 claim. *See, e.g., Crawford v. Tivener*, No. 15-CA-22, 2016 WL 5638379, ¶ 59 (Ohio App., 5th Dist., Sept. 22, 2016). The interrelated claims include a common law trespass claim arising from the unlawful exclusion of the tenant from the premises. *Cf. Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537, ¶ 73 (Ohio App., 5th Dist., June 27, 2007) (R.C. 5321.04(B) claim). The interrelated claims do not include the landlord's claim for unpaid rent. *Crawford v. Tivener*, No. 15-CA-22, 2016 WL 5638379, ¶ 59 (Ohio App., 5th Dist., Sept. 22, 2016).

3. Injunctive Relief

In an R.C. 5321.15(A),(C) action, the tenant may request injunctive relief, in addition to monetary relief and reasonable attorney's fees. For a discussion on the jurisdiction of municipal courts to grant injunctive relief in these cases, see Section XX.C.2, below.

Due to the emergency nature of a utility termination or a lockout, the request for injunctive relief often includes a request for a temporary restraining order. In a utility termination case, the utility company may be an appropriate additional defendant to ensure that the tenant receives full and timely relief (*i.e.*, immediate restoration of the utility service).

When requesting this injunctive relief, the tenant may face arguments concerning: (1) the equity requirement of clean hands, (2) the bond requirement for the issuance of a temporary restraining order, and (3) the absence of any express authorization in R.C. 5321.15 for granting injunctive relief.

Since the request for injunctive relief (including a temporary restraining order) is a request for equitable relief, it is appropriate for the court to consider whether the tenant comes into court with clean hands. However, courts typically do not deny the request for a temporary restraining order on this basis, especially when the landlord's conduct is egregious and constitutes a clear violation of R.C. 5321.15(A). Nonetheless, when the tenant is far behind in rent payments, some courts are reluctant to issue a temporary restraining order.

Civil Rule 65(C) establishes the bond requirement for the issuance of a temporary restraining order. Under Civil Rule 65(C), the discretion committed to the court for determining the size of the bond includes the discretionary authority to require no bond at all. *Vanguard Transp. Sys., Inc. v. Edwards Transfer & Storage Co.*, 109 Ohio App.3d 786, 793, 673 N.E.2d 182 (10th Dist. 1996); *Colquett v. Byrd*, 59 Ohio Misc. 45, 49-50, 392 N.E.2d 1328 (Ohio Mun., Mansfield, 1979).

Among the reasons for which a court may exercise its discretion to require no bond (or a minimal bond) is the moving party's lack of financial means to post a bond. *Colquett v. Byrd*, 59 Ohio Misc. 45, 49-50, 392 N.E.2d 1328 (Ohio Mun., Mansfield, 1979). See also *Wayne Chemical, Inc. v. Columbus Agency Serv. Corp.*, 562 F.2d 692, 701 (7th Cir. 1977); *Doe by Doe v. Perales*, 782 F. Supp. 201, 206 (W.D.N.Y. 1991);

Walker v. Pierce, 665 F. Supp. 831, 843-44 (N.D. Cal. 1987).³¹⁹

In utility termination cases, another reason on which courts have relied for not requiring a bond is that the landlord “will sustain no damages if it is finally decided that the injunction should not have been granted.” *Brown v. Ray*, No. 08-CVG-25314, ¶ 41 (Ohio Mun., Cleveland, Hous. Div., Nov. 26, 2008).

As a result, Ohio courts have issued injunctions in R.C. 5321.15 actions without a bond requirement or with a minimal bond requirement. *E.g.*, *Brown v. Ray*, No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Nov. 26, 2008); *Colquett v. Byrd*, 59 Ohio Misc. 45, 392 N.E.2d 1328 (Ohio Mun., Mansfield, 1979).

R.C. 5321.15 does not expressly authorize injunctive relief. This omission contrasts with other sections of R.C. Chapter 5321 that do expressly authorize injunctive relief (*i.e.*, R.C. 5321.04(B) and 5321.05(C)).

But the remedies provided tenants in R.C. Chapter 5321 are intended to supplement other remedial measures. See Section V.C., above. Other remedial measures include the authority to grant injunctive relief that is conferred upon courts by R.C. 2727.03 (courts of common pleas), 1901.18 (municipal courts), R.C. 1901.13(B) (municipal courts, Cuyahoga County), and R.C. 1901.131 (municipal courts, housing divisions). Courts have the right and the responsibility to exercise that authority in any appropriate case. *Ex Parte Cattell*, 146 Ohio St. 112, 64 N.E.2d 416 (1945).

When a tenant files an R.C. 5321.15 action for injunctive relief, an eviction action by the landlord is a compulsory counterclaim to the R.C. 5321.15 action. *Trimble v. Jones*, No. 89-CVGT-589 (Ohio Mun., Miami Cty., June 13, 1989).

When a court grants injunctive relief in an R.C. 5321.15 action, a landlord’s noncompliance is typically grounds for a contempt order, which may mandate compliance and award the tenant compensatory damages and attorney’s fees. *E.g.*, *Brown v. Ray*, No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Dec. 17, 2008). For a discussion on compensatory damages and attorney’s fees in civil contempt proceedings, see Section IX.A.7, above.

³¹⁹ Civil Rule 65 is modeled after Rule 65 of the Federal Rules of Civil Procedure. Staff Notes, Ohio R. Civ. P. 65. Consequently, in construing Civil Rule 65(C), Ohio courts have relied on federal court decisions construing Rule 65(c) of the Federal Rules of Civil Procedure. *E.g.*, *Vanguard Transp. Sys., Inc. v. Edwards Transfer & Storage Co.*, 109 Ohio App.3d 786, 793, 673 N.E.2d 182, 186 (10th Dist. 1996); *Colquett v. Byrd*, 59 Ohio Misc. 45, 49, 392 N.E.2d 1328, 1331 (Ohio Mun., Mansfield, 1979).

C. Additional Remedies

When a landlord violates R.C. 5321.15(A), the tenant may assert common law claims against the landlord, in addition to the R.C. 5321.15(C) claim. See Section V.C., above. For example, the tenant may have a claim for:

- (1) trespass, *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Babcock v. Milligan*, No. 99-CI-420 (Ohio C.P., Coshocton Cty., Apr. 27, 2001);
- (2) invasion of privacy, *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Hall v. Lacheta*, No. 92AP-020013, 1992 WL 362546 (Ohio App., 5th Dist., Nov. 18, 1992); *Babcock v. Milligan*, No. 99-CI-420 (Ohio C.P., Coshocton Cty., Apr. 27, 2001);
- (3) conversion, *Foster v. Benson*, No. 107366, 2019 WL 1858391 (Ohio App., 8th Dist., Apr. 25, 2019); *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797 (Ohio App., 2nd Dist., Feb. 2, 2001); *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Sanchez v. Tompkins*, No. 2021-CVI-006506 (Ohio Mun., Cleveland, Hous. Div., Sept. 13, 2021); *Malcom v. Tate*, No. 99-CVH-21689 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001); and/or
- (4) intentional or negligent infliction of serious emotional distress, *Stolzenburg v. Frush*, No. 92-CVC10-8217 (Ohio C.P., Franklin Cty., Dec. 8, 1994).

When the R.C. 5321.15(A) violation concerns a utility termination, the utility company may be a participant in the landlord's unlawful activity. A typical situation is where: (1) the landlord is the customer for the utility service to the rental unit, (2) the landlord is obligated under the rental agreement to pay for the utility service, (3) the landlord instructs the utility company to terminate the utility service to the rental unit, and (4) the utility company then terminates the utility service. For a discussion on potential tenant claims against the utility company in these circumstances, see National Consumer Law Center, Access to Utility Service (5th ed. 2011).

XIII. Tenant Claims for Seizure of Personal Property, R.C. 5321.15

A. Type of Conduct Prohibited

R.C. 5321.15(B) prohibits a landlord from seizing a tenant's personal property for the purpose of recovering unpaid rent, unless the seizure is pursuant to a court order. This prohibition applies even if the tenant's right to possession has terminated. R.C. 5321.15(B).

If a tenant vacates the premises but leaves some (or all) of the tenant's personal property at the premises, common law governs: (1) as to whether the tenant has abandoned the property,³²⁰ and (2) the landlord's obligations regarding removal of the property. See *Edwards v. C.N. Inv. Co.*, 27 Ohio Misc. 57, 272 N.E.2d 652 (Ohio Mun., Shaker Heights, 1971).

In these circumstances, if the tenant has not abandoned the personal property, the R.C. 5321.15(B) prohibition applies. E.g., *Stark v. Weimer*, No. H-98-031, 1999 WL 253451 (Ohio App., 6th Dist., Apr. 30, 1999); *Mounts v. Foerg*, No. R90-CVG-0375 (Ohio Mun., Portage Cty., Dec. 5, 1990).

A lease provision that purports to establish a conclusive presumption of abandonment, relative to personal property on the premises upon the expiration of the lease, violates R.C. 5321.15(B) and is thus unenforceable. *Rand v. Washington*, No. 7822, 1983 WL 2448 (Ohio App., 2nd Dist., May 26, 1983).

B. R.C. 5321.15(C) Remedies

When a landlord seizes a tenant's personal property in violation of R.C. 5321.15(B), under R.C. 5321.15(C), the tenant may bring an action against the landlord for "all damages" and reasonable attorney's fees.

R.C. 5321.15(C) does not authorize an action by a third party, whose personal property has been unlawfully seized by the landlord, because the third party is not a tenant. *O'Neil v. Walburg*, 70 Ohio App.2d 30, 433 N.E.2d 1286 (10th Dist. 1980).

For a discussion on "all damages" and reasonable attorney's fees under R.C. 5321.15(C), see Sections XII.B.1,2, above.

³²⁰ For a discussion on abandonment of property under common law, see Section XII.A., above.

Examples of court decisions awarding R.C. 5321.15(C) damages for R.C. 5321.15(B) violations include: *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797 (Ohio App., 2nd Dist., Feb. 2, 2001) (\$1,000 punitive damages); *Stark v. Weimer*, No. H-98-031, 1999 WL 253451 (Ohio App., 6th Dist., Apr. 30, 1999) (\$18,000 compensatory damages reversed and remanded because evidence supported, at most, \$13,877 compensatory damages); *Milburn v. Henness*, No. 03-CVH-208 (Ohio Mun., Chillicothe, Jan. 29, 2004) (\$100 nominal damages and \$750 punitive damages); *Hornikel v. Watkins*, No. 00-CVF-00401 (Ohio Mun., Bellefontaine, Nov. 29, 2000) (\$10,000 compensatory damages).

In an R.C. 5321.15(B),(C) action, the tenant may request injunctive relief, in addition to monetary relief and reasonable attorney's fees. For a discussion on injunctive relief in an R.C. 5321.15(C) action, see Section XII.B.3, above.

C. Additional Remedies

When a landlord violates R.C. 5321.15(B), the tenant may assert common law claims against the landlord, in addition to the R.C. 5321.15(C) claim. See Section V.C, above. For example, the tenant may have a claim for:

- (1) bailment, *Edwards v. C.N. Inv. Co.*, 27 Ohio Misc. 57, 272 N.E.2d 652 (Ohio Mun., Shaker Heights, 1971); cf. *Kayanda v. Kamenir*, 16 Ohio Misc.2d 1, 475 N.E.2d 519 (Ohio Mun., Akron, 1984); and/or
- (2) conversion, *Fisher v. Barker*, 159 Ohio App.3d 745, 825 N.E.2d 244 (2nd Dist. 2005); *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797 (Ohio App., 2nd Dist., Feb. 2, 2001); *Milburn v. Henness*, No. 03-CVH-208 (Ohio Mun., Chillicothe, Jan. 29, 2004).

The tenant also may have an R.C. 5321.04(B) claim (and related common law claims) against the landlord if the landlord entered the premises in violation of R.C. 5321.04(A)(8) or 5321.04(B), when the landlord seized the tenant's personal property. For a discussion on the R.C. 5321.04(B) claim (and the related common law claims), see Chapter X, above.

Also, instead of requesting injunctive relief in an R.C. 5321.15(C) action, the tenant may file a replevin action for the return of the property.

Two court decisions address tenant conversion claims against landlords arising from the execution of a writ of restitution in an eviction action: *Castle Apts., Inc. v. Allgood*, 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988), and *Keesey v. Superior Mobile Homes, Inc.*, No. 2000-AP-080057, 2001 WL 293253 (Ohio App.,

5th Dist., Mar. 20, 2001).

In *Allgood*, the court held the landlord liable. The tenant's personal property had been seized pursuant to the writ of restitution and, thereafter, the return of the regular mail service disclosed that the eviction complaint had not been served in accordance with the applicable law.

In *Keesey*, the court held the landlord not liable. The tenant's mobile home had been removed from the mobile home park pursuant to the writ of restitution and, thereafter, the court granted the tenant's motion to vacate the eviction judgment based upon the landlord's acceptance of certain rent. "Because appellee [landlord] proceeded under a lawfully issued writ of restitution, the municipal court's subsequent decision to vacate the judgment does not operate to retroactively transform a lawful act into a unlawful one." 2001 WL 293253, at *2. *Cf. Sacksteder v. Gisslen*, 197 Ohio App.3d 484, 968 N.E.2d 11 (2nd Dist. 2011) (denial of R.C. 5321.15(B) claim arising from executed writ of restitution followed by sustained objection to eviction judgment); *Jansen v. Barclay Square*, 34 Ohio Misc. 14, 295 N.E.2d 443 (Ohio Mun., Franklin Cty., 1973) (denial of tenant's trespass claim arising from properly executed writ of restitution).

XIV. Tenant Claims for Wrongful Eviction, Common Law

A. Introduction

A tenant's right to continued occupancy of the premises can be defined by: (1) the terms of a tenancy (*e.g.*, month-to-month tenancy), (2) the terms of a lease, or (3) a statutory requirement (*e.g.*, good cause requirement for nonrenewal of an assisted housing lease under federal statute and regulations, see Section III.A, above).

If a landlord actually or constructively evicts a tenant in violation of the tenant's right to continued occupancy, the tenant may have a wrongful eviction claim under common law. Four of those common law claims are discussed in Sections XIV.B-E, below.

B. Contract Claim, Landlord Removal of Tenant Forcibly or by Demand

A claim on the contract for wrongful eviction has three elements. First, the tenant was occupying the premises under a lease whose term had not expired. Second, the tenant was not in default of any lease term. Third, the landlord pursued a course of conduct that was intended to and did cause the tenant to vacate the premises.

Examples of wrongful evictions under this claim are summarized below.

- (1) The landlord forcibly took possession of the premises. *Ketcham v. Miller*, 104 Ohio St. 372, 136 N.E. 145 (1922).
- (2) The landlord verbally ordered the tenant to vacate the premises and the tenant vacated. *Butterfield v. Snively*, 60 Ohio App. 14, 19 N.E.2d 284 (5th Dist. 1934); *Wharton v. Pollock*, 49 Ohio App. 443, 197 N.E. 379 (5th Dist. 1934).
- (3) The landlord served the tenant with a written notice to leave the premises and the tenant vacated. *Wehrley v. Sunchase Am., Ltd.*, No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001); *Roberts v. GMS Mgmt. Co.*, No. 75419, 1999 WL 1068370 (Ohio App., 8th Dist.,

Nov. 24, 1999);³²¹ *Weintraub v. Hurley*, No. 93-APG10-1473, 1994 WL 171138 (Ohio App., 10th Dist., May 3, 1994); *Armstrong Stationary Co. v. FGM Props., Inc.*, No. C-830914, 1984 WL 7016 (Ohio App., 1st Dist., Oct. 24, 1984); *Teicher Theaters, Inc. v. Thompson*, No. 83-CA-29, 1983 WL 2530 (Ohio App., 2nd Dist., Oct. 28, 1983).

As these examples demonstrate, an action on the contract for wrongful eviction may be based on a constructive eviction (*i.e.*, a tenant's vacation of the premises in response to the landlord's order to vacate). *Armstrong Stationary Co. v. FGM Props., Inc.*, No. C-830914, 1984 WL 7016, at *2 (Ohio App., 1st Dist., Oct. 24, 1984). The tenant does not forfeit this claim for money damages in electing in such circumstances to vacate the premises, rather than remain on the premises in anticipation of asserting defenses in an eviction action. *Id.*

In an action on the contract for wrongful eviction, the tenant may recover general damages in an amount equal to the market value of the unexpired lease term and special damages to the extent they are permitted under contract law. *Butterfield v. Snively*, 60 Ohio App. 14, 19 N.E.2d 284 (5th Dist. 1934).

If the tenant leases another rental unit at a higher monthly rent as a result of the wrongful eviction, the tenant may recover the amount of the rent increase for the period of the unexpired lease term. *E.g.*, *Wehrley v. Sunchase Am., Ltd.*, No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001). However, the tenant is required to make reasonable efforts to mitigate these damages. *Id.*

The tenant may not recover punitive damages. *Ketcham v. Miller*, 104 Ohio St. 372, 136 N.E. 145 (1922). *See also* R.C. 2315.21(A)(1).

C. Contract Claim, Constructive Eviction

Under common law, constructive eviction is "surrender of possession [of the premises] by the tenant on justifiable grounds." *Liberal Sav. & Loan Co. v. Frankel Realty Co.*, 137 Ohio St. 489, 498, 30 N.E.2d 1012 (1940). Justifiable grounds exist when there "is such a failure or interference on the part of the landlord with the intended enjoyment of the leased premises as to be of a substantial nature and so injurious to the tenant as to deprive him of the beneficial enjoyment of the leased

³²¹ The *Roberts* decision seems to establish a fourth element for this claim, which does not exist in any of the other court decisions. It seems to require the tenant, before leaving the premises, to register a protest with landlord against the notice to leave the premises.

premises.” *Nye v. Schuler*, 110 Ohio App. 443, 445-46, 165 N.E.2d 16 (4th Dist. 1959).

There cannot be a constructive eviction if the tenant has not relinquished possession of the premises. *Lexford Props., Inc. v. Schiltz*, No. 2003-CA-00025, 2003 WL 22128788 (Ohio App., 5th Dist., Sept. 8, 2003); *Burnside v. Ickes*, No. 02-COA-015, 2003 WL 42455 (Ohio App., 5th Dist., Jan. 3, 2003); *Manifold v. Schuster*, 67 Ohio App.3d 251, 586 N.E.2d 1142 (4th Dist. 1990).

There also cannot be a constructive eviction before the tenant’s lease term and occupancy begins. *Harpel v. Pierce*, Nos. 17163, 17168, 1999 WL 55700 (Ohio App., 2nd Dist., Feb. 5, 1999).

A constructive eviction may arise from a landlord’s failure to remedy a defective condition at the premises. *E.g.*, *Stiffler v. Canterbury Runn Apts.*, No. 19308, 2002 WL 31243541, at *3 (Ohio App., 2nd Dist., Oct. 4, 2002) (“apartment was infiltrated with leaking water, sewage, growing mold, soaked carpets, and a sagging ceiling”); *Harpel v. Pierce*, Nos. 17163, 17168, 1999 WL 55700 (Ohio App., 2nd Dist., Feb. 5, 1999) (severe infestation of roaches, leaking pipes, exposed electrical wiring, and gas leaks in stove and furnace); *Schutte v. Nicholson*, No. C-910261, 1992 WL 19396 (Ohio App., 1st Dist., Feb. 5, 1992) (lack of heat for five days); *Katzin v. Murad*, No. 46553, 1984 WL 7150 (Ohio App., 8th Dist., Jan. 5, 1984) (broken locks, broken glass in windows, sink pulling out from the walls, failure to clean up garbage, and inoperative refrigerator); *Keener v. Ewert*, 67 Ohio App.2d 17, 425 N.E.2d 914 (6th Dist. 1979) (lack of hot water, failure of bathtub to drain, basement flooded with water and debris, and a lockout); *Katz v. Comisar*, 28 Ohio N.P. (n.s.) 10 (Ohio C.P., Hamilton Cty., 1930) (infestation of vermin).

A constructive eviction also may arise from a landlord’s refusal to provide the tenant with a copy of the lease, if it prevents the tenant from securing utility services for the premises. *E.g.*, *Proctor v. Frame*, 90 Ohio Misc.2d 11, 695 N.E.2d 357 (Ohio Mun., Akron, 1998) (deprived of electrical service and, consequently, heat).

A constructive eviction cannot arise from the criminal activity of a third party, if the landlord provides reasonable security measures in the common areas (see Section VII.C.8, above) and the lease does not require the landlord to provide any additional security measures. *Hawk v. Fairmeadows Apts.*, No. CA86-12-180, 1987 WL 13707 (Ohio App., 12th Dist., June 29, 1987).

A tenant’s constructive eviction claim against a landlord is a contract claim. *Ma Chere Hair Style Acad. v. Rolo Co.*, No. L-85-287, 1986 WL 7111, at *3 (Ohio App., 6th Dist., June 20, 1986). “A constructive eviction is a breach of the landlord’s duty

imposed by the covenants of possession and quiet enjoyment.” *Id.*

Therefore, in a constructive eviction claim, a tenant may recover compensatory damages but not punitive damages. *Id.*, 1986 WL 7111, at *3,7.

D. Tort Claim, Fraud and Deceit

A tort claim, predicated upon fraud and deceit, may be a claim for wrongful eviction. The claim arises in the context of an eviction action where the landlord’s right to possession concerns the landlord’s intended use or renovation of the premises after the eviction action.

For example, under the Housing Choice Voucher program, “other good cause” for a termination of the tenancy includes a landlord’s decision to use the dwelling unit for personal or family use or for a purpose other than as a residential rental unit. 24 C.F.R. § 982.310(d)(1)(iii).

Similarly, under the Housing and Rent Act of 1949, a landlord was permitted to bring an eviction action only if the landlord was seeking in good faith: (1) to use the premises for personal or family use, or (2) to alter, remodel, or repair the premises, and the alteration, remodeling, or repair could not be done with the tenant in possession. *Calvin v. Martin*, 64 Ohio Law Abs. 265, 268, 111 N.E.2d 786 (8th Dist. 1952).

As a general rule, common law requires that the intent of the landlord, in seeking to evict the tenant, be determined in the original eviction action. *Id.* at 273-74. However, when the eviction action concerns a landlord’s future use or renovation of the premises, the landlord’s intent cannot ultimately be ascertained until after the eviction action. *Id.* at 274. *Contra Harrison v. Webb*, 62 Ohio Law Abs. 273, 100 N.E.2d 728 (Ohio C.P., Cuyahoga Cty., 1951).

In response to this dilemma, the courts created a claim for wrongful eviction that is an exception to the general rule. *Calvin*, 64 Ohio Law Abs. at 274-75. *Contra Harrison v. Webb*, 62 Ohio Law Abs. 273, 100 N.E.2d 728 (Ohio C.P., Cuyahoga Cty., 1951). The elements of this wrongful eviction claim are an eviction of a tenant, during the term of the tenant’s right of occupancy, procured by fraud and deceit. *Calvin*, 64 Ohio Law Abs. at 268-75.

The fraud and deceit in this wrongful eviction claim concern whether the landlord has misrepresented the reason for seeking possession of the premises. All of the elements necessary to maintain a fraud and deceit action at common law must be present. *Id.* at 272-75.

A tenant’s vacation of the premises without protest, upon receipt of a notice to

leave the premises, constitutes a waiver of this wrongful eviction claim. *Id.* at 273.

The general rules on tort damages govern this wrongful eviction claim. The tenant is permitted to recover all damages sustained as a proximate result of the wrongful eviction. If the landlord acted with malice, the tenant is permitted to recover punitive damages under R.C. 2315.21.

And, if the tenant is awarded punitive damages, the tenant may also be entitled to an award of attorney's fees under Ohio common law. See Section XIX.B, below.

E. Tort Claim, Malicious Prosecution

Generally, the tort claim of malicious civil prosecution is no longer a viable claim for wrongful eviction due to the Supreme Court's decision in *Robb v. Chagrin Lagoons Yacht Club, Inc.*, 75 Ohio St.3d 264, 662 N.E.2d 9 (1996). In *Robb*, the Supreme Court clarified that an element of a malicious civil prosecution claim is seizure of the plaintiff's person or property during the course of the prior proceeding. *Id.* at 269-70.

Since a judgment entered in favor of a tenant in an eviction action will prevent any seizure of the tenant's property during the course of that proceeding, the tenant (potential plaintiff) generally cannot meet the seizure requirement for a malicious civil prosecution claim. *E.g., Deli Table, Inc. v. Great Lakes Mall*, No. 95-L-012, 1996 WL 761984, at *7 (Ohio App., 11th Dist., Dec. 31, 1996) (applies *Robb*).

The *Robb* decision implicitly overrules the decision in *Reenan v. Klein*, 3 Ohio App.3d 142, 444 N.E.2d 63 (1st Dist. 1981), which upheld a malicious civil prosecution judgment in favor of a tenant without considering the seizure element. The basis for the judgment in *Reenan* was four-fold: (1) the landlord, a recent purchaser of the property, knew of the valid lease executed by the prior owner and the tenant, (2) before filing the eviction action, the landlord had received the timely tendered rent check for the month for which the landlord alleged nonpayment of rent, (3) the landlord nonetheless filed the eviction action because he wanted possession of the premises, and, (4) in the eviction action, the court entered judgment for the tenant.

XV. Tenant Claims for Wrongful Eviction, 42 U.S.C. § 1983

A. Police Assisting Landlord

A tenant may be wrongfully evicted by a person who is acting under color of state law. This typically occurs when a private landlord unlawfully removes a tenant from the premises by force, with the assistance of a police officer. *E.g.*, *Soldal v. Cook County, Ill.*, 506 U.S. 56 (1992); *Thomas v. Cohen*, 304 F.3d 563 (6th Cir. 2002); *Howerton v. Gabica*, 708 F.2d 380 (9th Cir. 1983); *Pellowski v. Burke*, 686 F.2d 631 (8th Cir. 1982). *See also Jones v. Gutschenritter*, 909 F.2d 1208 (8th Cir. 1990) (termination of the electrical service to the premises). *Cf. Revis v. Meldrum*, 489 F.3d 273 (6th Cir. 2007) (seizure of judgment debtor's residential property under a writ).

In these circumstances, the tenant may have one or two constitutional claims. One is a claim for a violation of the tenant's procedural due process rights under the Fourteenth Amendment. The tenant's right to possession of the premises under the tenancy is a "property interest" for Fourteenth Amendment purposes. *Thomas v. Cohen*, 304 F.3d 563 (6th Cir. 2002). *See also Revis v. Meldrum*, 489 F.3d 273, 284 (6th Cir. 2007). Likewise, a tenant's right under state law not to be evicted by force, except through a court proceeding, is a "property interest" for Fourteenth Amendment purposes. *Pellowski v. Burke*, 686 F.2d 631 (8th Cir. 1982).

The second is a claim for a violation of the tenant's rights under the Fourth Amendment's protection against unreasonable seizure. *Soldal v. Cook County, Ill.*, 506 U.S. 56 (1992); *Tinney v. Shores*, 77 F.3d 378 (11th Cir. 1996). *See also Thomas v. Cohen*, 304 F.3d 563 (6th Cir. 2002) (defendants granted qualified immunity, 2-1 decision); *Kernats v. O'Sullivan*, 35 F.3d 1171 (7th Cir. 1994) (defendants granted qualified immunity). *Cf. Harvey v. Plains Twp. Police Dep't*, 421 F.3d 185 (3d Cir. 2005) (police officer assisted former joint tenant recover property from tenant's apartment).

The tenant may bring these claims under 42 U.S.C. § 1983. The "under color of state law" element of the § 1983 claim is met if the police officer actively assisted in the forcible removal of the tenant, or if the police officer so intimidated the tenant as to cause the tenant to refrain from exercising the tenant's legal right to resist the removal. *Jones v. Gutschenritter*, 909 F.2d 1208, 1211-13 (8th Cir. 1990); *Howerton*

v. *Gabica*, 708 F.2d 380, 382 (9th Cir. 1983). Cf. *Harvey v. Plains Twp. Police Dep't*, 421 F.3d 185 (3d Cir. 2005) (a police officer directed the landlord to open the door to enable a former joint tenant to enter the apartment).

The “under color of state law” element of the § 1983 claim is not met if the police officer is simply standing by in case of trouble. *Id.* See also *Mann v. Hillsborough County Sheriff's Office*, 946 F. Supp. 962 (M.D. Fla. 1996). Similarly, it is not met if the police officer appears at the scene for a short time, and does not participate in the landlord's attempt to forcibly remove the tenant from the premises. *Corbin v. Stevens*, No. 91-Civ-1054, 1992 WL 96684 (S.D.N.Y. Apr. 30, 1992).

When the wrongful eviction of the tenant is the result of random and unauthorized acts of a subordinate police officer, under the *Parratt* doctrine,³²² a procedural due process claim might not exist if there is an adequate state law remedy. *E.g.*, *Tinney v. Shores*, 77 F.3d 378 (11th Cir. 1996) (random acts, *Parratt* applicable); *Scott v. O'Grady*, 760 F. Supp. 1288 (N.D. Ill. 1991) (not random acts, *Parratt* inapplicable), *aff'd on other grounds*, 975 F.2d 366 (7th Cir. 1992).

Under the joint participation doctrine, these § 1983 claims may be asserted against the police officer and the private landlord. *Howerton v. Gabica*, 708 F.2d 380 (9th Cir. 1983).

In these § 1983 claims, the tenant may recover compensatory damages and, for malicious, willful, or wanton misconduct, punitive damages. *Pellowski v. Burke*, 686 F.2d 631 (8th Cir. 1982).

If the facts available to the sheriff made the existence of a tenancy questionable, the sheriff may have a qualified immunity defense, based on the ground that the sheriff could not objectively, reasonably know that the sheriff's action violated the Fourth or Fourteenth Amendment. See, e.g., *Higgins v. Penobscot County Sheriff's Dep't*, 446 F.3d 11 (1st Cir. 2006).

B. City Code Enforcement

“Under Ohio law, tenants holding leasehold estates have a recognized property interest.” *Jones v. City of Norwood*, No. C-120237, 2013 WL 454909, ¶ 58 (Ohio App., 1st Dist., Feb. 6, 2013). “This property interest invokes the protection of procedural due process.” *Id.*, ¶ 59.

³²² *Parratt v. Taylor*, 451 U.S. 527 (1981). See also *Zinerman v. Burch*, 494 U.S. 113 (1990); *Hudson v. Palmer*, 468 U.S. 517 (1984); *Logan v. Zimmerman*, 455 U.S. 422 (1982).

Generally, due process requires notice and a hearing opportunity before a tenant may be evicted under a city's code enforcement. *Gardner v. Evans*, 920 F.3d 1038, 1057-59 (6th Cir. 2019); *Flatford v. City of Monroe*, 17 F.3d 162, 167 (6th Cir. 1994); *Jones v. City of Norwood*, No. C-120237, 2013 WL 454909, ¶ 59 (Ohio App., 1st Dist., Feb. 6, 2013).

“There are, however, ‘extraordinary circumstances where some valid governmental interest is at stake that justifies postponing the hearing until after [eviction].’” *Flatford*, 17 F.3d at 167 (quoting *Fuentes v. Shevin*, 407 U.S. 67, 82 (1972)). Accord *Gardner v. Evans*, 920 F.3d 1038, 1057-59 (6th Cir. 2019); *Grayden v. Rhodes*, 345 F.3d 1225, 1227 (11th Cir. 2003); *Jones v. City of Norwood*, No. C-120237, 2013 WL 454909, ¶ 60 (Ohio App., 1st Dist., Feb. 6, 2013). “Protecting citizens from an immediate risk of serious bodily harm falls squarely within those ‘extraordinary circumstances’ contemplated by *Fuentes*.” *Flatford*, 17 F.3d at 167. But these exceptions to the general rule are rare. *Jones*, 2013 WL 454909, ¶ 60.

In *Jones*, the alleged overcrowding – the occupancy of two individuals in a one-bedroom apartment – did not pose an immediate threat to the safety of its occupants and thus did not fall within the exception to the general rule.

In *Flatford*, the Sixth Circuit granted city officials qualified immunity, on the due process prior hearing claim, because they had a reasonable basis to believe that the disrepair and dilapidation of the wooden-frame structure as a whole posed an immediate danger to its occupants and the public.

In *Gardner*, the Sixth Circuit applied its holding in *Flatford* that, absent code violations that pose an immediate danger, due process requires a pre-deprivation hearing before a tenant may be evicted under the city's code enforcement. It thereupon held that, under the summary judgment record, the requisite immediate danger did not exist and therefore the inspectors were “neither immune from suit nor entitled to summary judgment on the pre-deprivation [hearing] claims. *Gardner*, 920 F.3d at 1059.

A tenant may enforce these due process rights under 42 U.S.C. § 1983. *E.g.*, *Gardner v. Evans*, 920 F.3d 1038 (6th Cir. 2019); *Flatford v. City of Monroe*, 17 F.3d 162 (6th Cir. 1994); *Jones v. City of Norwood*, No. C-120237, 2013 WL 454909 (Ohio App., 1st Dist., Feb. 6, 2013).

XVI. Security Deposit

A. Definition and Legal Status of Security Deposits

R.C. 5321.01(E) defines a security deposit as “any deposit of money or property to secure performance by the tenant under a rental agreement.” *See also Small v. Williams*, No. 44418, 1982 WL 5247, at *3 (Ohio App., 8th Dist., Mar. 25, 1982) (“a security deposit is held by a lessor to insure performance of all the lessee’s duties under the lease”).

“A security deposit, although it is in the possession and under the control of the landlord, is the property of the tenant.” *Dovi Interests, Ltd. v. Somerset Point Ltd. P’ship*, No. 82788, 2004 WL 254211, ¶ 11 (Ohio App., 8th Dist., Feb. 12, 2004). The tenant possesses title to the security deposit. *Id.* A tenant retains title to the security deposit, subject to the rights and duties established in R.C. 5321.16. *In re Ctr. Apts., Ltd.*, 277 B.R. 747 (Bankr. S.D. Ohio 2001) (applying Ohio law).

Security deposits “are a personal obligation between the landlord and the tenant in the form of a pledge.” *Dovi Interests, Ltd. v. Somerset Point Ltd. P’ship*, No. 82788, 2004 WL 254211, ¶ 12 (Ohio App., 8th Dist., Feb. 12, 2004). *Accord Castlebrook, Ltd. v. Dayton Props. Ltd. P’ship*, 78 Ohio App.3d 340, 604 N.E.2d 808 (2nd Dist. 1992); *Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d 122, 255 N.E.2d 284 (8th Dist. 1970).

B. Distinction Between a Security Deposit and Other Deposits/Fees

1. Pet Deposits and Pet Fees

A refundable pet deposit, given to secure performance by the tenant under the lease, is a security deposit. *Zeallear v. F & W Props.*, No. 99AP-1215, 2000 WL 1015345 (Ohio App., 10th Dist., July 25, 2000); *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 736 N.E.2d 507 (1st Dist. 1999).

Generally, a non-refundable, one-time pet fee is not a security deposit. *Kopp v. Associated Estates Realty Corp.*, No. 09AP-719, 2010 WL 1510196 (Ohio App., 10th Dist., Apr. 15, 2010); *Stauffer v. TGM Camelot, Inc.*, No. CA2005-12-508, 2006 WL

1974612 (Ohio App., 12th Dist., July 17, 2006); *Ritter v. Fairway Park Props., L.L.C.*, No. 21509, 2004 WL 1104015 (Ohio App., 9th Dist., May 19, 2004); *Zeallear v. F & W Props.*, No. 99AP-1215, 2000 WL 1015345 (Ohio App., 10th Dist., July 25, 2000). Because the deposit is non-refundable, its purpose is not to secure performance under the lease. *Id.* Rather, “the fee’s purpose [is] for the contractual right to keep pets in the apartment.” *Kopp*, 2010 WL 1510196, ¶ 21. *Accord Stauffer*, 2006 WL 1974612, ¶ 27.

But three court decisions have held that, if the landlord’s purpose for imposing the non-refundable, one-time pet fee is to recoup the cost of property damage that pets cause, it is a security deposit. *Leszczynski v. Brewer*, No. 12523, 1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991); *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 736 N.E.2d 507 (1st Dist. 1999); *Moore v. CM Props.*, No. 01-CV-4475, 2002 WL 34170615 (Ohio C.P., Montgomery Cty., Mar. 6, 2002).³²³

A non-refundable addition to the monthly rent payment, for the right to keep a pet in the rental premises, is not a security deposit. *Pool v. Insignia Residential Group*, 136 Ohio App.3d 266, 736 N.E.2d 507 (1st Dist. 1999).

2. Advance Payment of Last Month’s Rent

When a rental agreement requires a tenant to pay (and the tenant pays) the last month’s rent at the commencement of the tenancy, the advance payment of the last month’s rent is a security deposit. *Hart v. Pervan*, No. 79915, 2002 WL 31528735 (Ohio App., 8th Dist., Nov. 14, 2002); *Yancey v. Haehn*, No. 99-G-2210, 2000 WL 263757 (Ohio App., 11th Dist., Mar. 3, 2000).

3. Application Payments

A fee paid to a landlord to hold a dwelling unit for a prospective tenant until a subsequent specified date, on which the tenant’s rental agreement (if any) will commence, is not a security deposit. *Kimmie v. Tillman*, 66 Ohio App.3d 478, 585 N.E.2d 559 (6th Dist. 1990); *Spurgeon v. Sanders*, No. 1362, 1988 WL 35794 (Ohio App., 4th Dist., Mar. 28, 1988); *Walker v. Redd*, No. 91-CVG-15960 (Ohio Mun., Cleveland, Hous. Div., Jan. 28, 1992).

³²³ In the tenant’s appeal from this decision, the court of appeals reversed the trial court’s denial of the tenant’s motion for class certification. *Moore v. CM Props.*, No. 19388, 2003 WL 1424168 (Ohio App., 2nd Dist., Mar. 21, 2003). On remand, the parties settled the class claim. *Moore v. CM Props.*, No. 01-CV-4475 (Ohio C.P., Montgomery Cty., Dec. 14, 2004).

A deposit designated in a rental application as a “full security deposit on the above premises pending execution of a lease agreement” was not a security deposit, where the prospective tenant elected not to sign the lease. *Turetsky v. Miller*, No. CA96-03-005, 1996 WL 468758 (Ohio App., 12th Dist., Aug. 19, 1996). As a result, the owner was not entitled to retain the deposit. *Id.*

“Earnest money” paid to a landlord is not a security deposit. *Hartman v. Garden Woods Apts.*, No. 15228, 1995 WL 628021 (Ohio App., 2nd Dist., Oct. 25, 1995). In this context, earnest money means a payment to the landlord that is: (1) refundable if the landlord rejects the tenant’s application, (2) forfeited as liquidated damages if the landlord approves the tenant’s application and the tenant refuses to execute a lease for the premises, and (3) converted to a security deposit if the landlord approves the tenant’s application and the tenant executes a lease for the premises. *Id.* See also *Gough v. 1031 Props., LLC*, No. CA2014-09-196, 2015 WL 4207115 (Ohio App., 12th Dist., July 13, 2015).

These liquidated damage provisions are enforceable only if the amount of the deposit bears a reasonable relationship to the landlord’s actual damages. *Robertson v. Rossing*, No. CA98-02-035, 1999 WL 59698 (Ohio App., 12th Dist., Feb. 8, 1999); *Williams v. Mark IV Apts.*, No. 65915, 1994 WL 521136 (Ohio App., 8th Dist., Sept. 22, 1994).

Court decisions upholding the forfeiture of the deposit include: *Hartman v. Garden Woods Apts.*, No. 15228, 1995 WL 628021 (Ohio App., 2nd Dist., Oct. 25, 1995) (\$280 deposit – one-half of one month’s rent); *Williams v. Mark IV Apts.*, No. 65915, 1994 WL 521136 (Ohio App., 8th Dist., Sept. 22, 1994) (\$595 deposit – one month’s rent).

Court decisions rejecting the forfeiture of the deposit include: *Robertson v. Rossing*, No. CA98-02-035, 1999 WL 59698, at *3 (Ohio App., 12th Dist., Feb. 8, 1999) (“the \$200 amount bears no reasonable relation to actual damage suffered by appellee [landlord]”); *Supinski v. Gold Coast Props.*, No. 95-CVI-3026 (Ohio Mun., Lakewood, July 15, 1996) (prospective tenant withdrew application one day after signing it and before landlord had accepted it, and landlord did not suffer any damage as a result of prospective tenant’s actions).

4. Non-Refundable Redecorating or General Maintenance Fee

A non-refundable, one-time fee for the initial preparation of the premises, which the tenant pays at the commencement of the tenancy, is not a security deposit. *Kopp v. Associated Estates Realty Corp.*, No. 09AP-719, 2010 WL 1510196 (Ohio App., 10th Dist., Apr. 15, 2010); *Sokol v. Sine*, No. 98-T-0155, 1999 WL 959872 (Ohio App., 11th Dist., Sept. 30, 1999).

A non-refundable, one-time fee for general maintenance during the tenancy, which the tenant pays at the commencement of the tenancy, is not a security deposit. *Sokol v. Sine*, No. 98-T-0155, 1999 WL 959872 (Ohio App., 11th Dist., Sept. 30, 1999).

5. Non-Refundable Premium for Surety Bond

Some landlords offer tenants an option to purchase a surety bond, from a designated third party (“bond company”), in lieu of a security deposit payment to the landlord (“deposit payment”). *E.g.*, *Kopp v. Associated Estates Realty Corp.*, No. 09AP-719, 2010 WL 1510196 (Ohio App., 10th Dist., Apr. 15, 2010).

To obtain the surety bond, the tenant pays a non-refundable premium to the bond company. The bond premium is less than the deposit payment. For example, in *Kopp*, the bond premium was \$437.50 and the deposit payment was \$850.00 (one month’s rent).

Under the surety bond, at the end of the tenancy, the landlord is reimbursed by the bond company (instead of from a security deposit) for the landlord’s unpaid rent and/or property damage claims against the tenant. The amount of the reimbursement cannot exceed the bond’s coverage (*e.g.*, in *Kopp*, \$2,500.00). The tenant is then liable to the bond company for the amount of the reimbursement payment to the landlord. The tenant does not receive an opportunity to dispute the landlord’s claim before the bond company pays it.³²⁴

In *Kopp*, the court held that the bond premium is not a security deposit for two reasons. First, the tenant elects to purchase the surety bond (at a lower cost) in lieu of a refundable deposit payment (at a higher cost). Second, the premium is not paid to or

³²⁴ In *Kopp*, the court held that this surety bond system is not unconscionable under R.C. 5321.14 because the tenant has the option to pay a security deposit.

held by the landlord.³²⁵

It also held that the R.C. 5321.16(B) itemization requirement does not apply because “the parties *chose* to contract for something other than a security deposit.” *Kopp*, 2010 WL 1510196, ¶ 9.

6. Deposit for Option to Purchase

When a purchase agreement between a landlord and tenant establishes the right of the tenant to purchase the premises on a future date at an agreed upon price, and requires the tenant to pay a deposit on the purchase agreement in order to preserve this option to purchase, the deposit is not a security deposit. *Knoppe v. Applegate*, No. 08CAG-08-0051, 2009 WL 1145073 (Ohio App., 5th Dist., Apr. 27, 2009) (\$5,000 deposit); *Delker v. Kerr*, No. L-96-110, 1996 WL 532319 (Ohio App., 6th Dist., Sept. 20, 1996) (\$2,000 deposit); *Stacy v. Zupp*, No. CA-9566, 1994 WL 369899 (Ohio App., 5th Dist., June 20, 1994) (\$1,500 deposit). *Cf. Dye v. Ley*, No. 1-88-60, 1990 WL 11444 (Ohio App., 3rd Dist., Feb. 7, 1990) (\$20,000 deposit – denied tenant’s unconscionability claim); *Powell v. Castner*, No. 11763, 1984 WL 7651 (Ohio App., 9th Dist., Dec. 19, 1984) (\$2,000 deposit – denied tenant’s penalty and unjust enrichment claims).

C. Tenant Cancels Agreement Before Occupancy, Security Deposit Rights

When a prospective tenant cancels the rental agreement before the tenant has commenced occupancy of the premises, and the reason for the cancellation is the landlord’s failure to make necessary or agreed repairs to the premises, the R.C. 5321.16(B) requirements apply to the tenant’s security deposit. *Gladden v. Mitchell*, No. C-040359, 2005 WL 323685 (Ohio App., 1st Dist., Feb. 11, 2005); *Mayer v. McGreevy*, No. 99AP-707, 2000 WL 329043 (Ohio App., 10th Dist., Mar. 30, 2000). *See also Riegel v. Huber Inv. Corp.*, No. 87AP-368, 1987 WL 18205 (Ohio App., 10th Dist., Oct. 6, 1987).

A landlord’s failure to make such repairs can be a valid basis for terminating the

³²⁵ This prerequisite for a security deposit is consistent with Ohio common law on the legal status of security deposits. See Section XVI.A, above. But the R.C. 5321.01(D) definition of security deposit, on its face, does not include it. Query whether R.C. 5321.01(D) supplants Ohio common law on this issue.

tenancy on or before its commencement date. *Mayer v. McGreevy*, No. 99AP-707, 2000 WL 329043 (Ohio App., 10th Dist., Mar. 30, 2000) (R.C. 5321.04 violation made the premises uninhabitable and, therefore, voided the tenant's contractual obligations under the lease); *Harpel v. Pierce*, Nos. 17163, 17168, 1999 WL 55700 (Ohio App., 2nd Dist., Feb. 5, 1999) (defective conditions may constitute an anticipatory repudiation of the lease by the landlord); *Shoemaker v. Whitt*, 129 Ohio App.3d 591, 718 N.E.2d 932 (2nd Dist. 1998) (a termination of the lease under R.C. 5321.07(B)(3) may be effective the first day of the lease term); *Riegel v. Huber Inv. Corp.*, No. 87AP-368, 1987 WL 18205 (Ohio App., 10th Dist., Oct. 6, 1987) (tenant's agreement to lease the house was contingent on the landlord's completion of specified repairs and replacements by the lease's commencement date).

When a prospective tenant cancels the rental agreement before the tenant has commenced occupancy of the premises, and the landlord has complied with all of the landlord's relevant duties, generally the R.C. 5321.16(B) requirements are still applicable to the tenant's security deposit. *Christe v. GMS Mgmt. Co.*, 124 Ohio App.3d 84, 705 N.E.2d 691 (9th Dist. 1997); *Simone v. Hill'n Dale Homes*, No. 89-B-9, 1989 WL 158232 (Ohio App., 7th Dist., Dec. 29, 1989); *Dearwester v. Lagos*, 33 Ohio App.3d 199, 514 N.E.2d 1136 (3rd Dist. 1986).

However, in these circumstances, the case law is split on whether the R.C. 5321.16(B) requirements apply to the tenant's security deposit if the prospective tenant never received possession (*e.g.*, keys) of the premises. *Compare Christe v. GMS Mgmt. Co.*, 124 Ohio App.3d 84, 705 N.E.2d 691 (9th Dist. 1997) (applicable without possession), and *Simone v. Hill'n Dale Homes*, No. 89-B-9, 1989 WL 158232 (Ohio App., 7th Dist., Dec. 29, 1989) with *Kanistros v. Holean*, No. 20528, 2005 WL 388178 (Ohio App., 2nd Dist., Feb. 18, 2005) (not applicable without possession), *Cox v. Parish*, 66 Ohio App.3d 138, 583 N.E.2d 1039 (8th Dist. 1990), *Sand v. Prokos*, No. 95-CA-1664, 1996 WL 159687 (Ohio App., 4th Dist., Mar. 27, 1996), and *Geis v. Zylka*, 70 Ohio Misc.2d 28, 650 N.E.2d 211 (Ohio Mun., Toledo, Hous. Div., 1995).

In *Cox*, *Sand*, and *Geis*, the inapplicability of R.C. 5321.16(B) to the tenant's security deposit deprived the tenants of the right to recover statutory damages and reasonable attorney's fees under R.C. 5321.16(C). The courts still awarded the tenants judgments for the amount of their security deposits. In *Kanistos*, the court construed the deposit as earnest money that the owner was entitled to retain.

D. Amount of the Security Deposit

Ohio law does not impose any limit on the amount of the security deposit that a landlord may require a tenant to pay.³²⁶

However, the amount of the security deposit determines whether the deposit must bear interest payable to the tenant. See Section XVI.E, below.

E. Interest on the Security Deposit Payable to the Tenant

A landlord is obligated to make interest payments to the tenant if the amount of the security deposit exceeds one month's rent or fifty dollars, whichever is greater, and the deposit is held at least six months. R.C. 5321.16(A). *See, e.g., Leak v. Hale*, No. 2006-CVG-33367 (Ohio Mun., Cleveland, Hous. Div., Jan. 10, 2008) (\$63.60 interest, for 24 months).

In such cases, the landlord must pay annually to the tenant interest at the rate of five percent per year on the amount of the security deposit that exceeds one month's rent (or fifty dollars). R.C. 5321.16(A). *See also Hart v. Pervan*, No. 79915, 2002 WL 31528735 (Ohio App., 8th Dist., Nov. 14, 2002); *Williams v. Glaser III*, No. C-000539, 2001 WL 395165 (Ohio App., 1st Dist., Apr. 20, 2001); *Yancey v. Haehn*, No. 99-G-2210, 2000 WL 263757 (Ohio App., 11th Dist., Mar. 3, 2000); *Mentor Lagoons, Inc. v. Mayor*, No. 10-180, 1985 WL 7807 (Ohio App., 11th Dist., Mar. 1, 1985); *Malcom v. Tate*, No. 99-CVH-21689 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001).

If the amount of a security deposit exceeds fifty dollars but not one month's rent, the tenant is not entitled to receive interest on the security deposit. *Bonesteel v. Nash*, 65 N.E.3d 326, 2016-Ohio-3114 (Ohio App., 5th Dist., 2016); *Murry v. Heather Hill Apts.*, No. L-91-155, 1991 WL 280128 (Ohio App., 6th Dist., Dec. 27, 1991).

For assisted housing tenants,³²⁷ the R.C. 5321.16(A) term "one month's periodic rent" means the monthly contract rent, not the tenant's portion of the contract rent.

³²⁶ In some of the assisted housing programs, federal law limits the amount of the security deposit. For a discussion on those limitations, see National Housing Law Project, HUD Housing Programs: Tenants' Rights § 6.2 (5th ed. 2018).

³²⁷ For the definition of "assisted housing," see note 163, above.

Harris v. Hardnick, No. 07-CVI-00705 (Ohio Mun., East Cleveland, July 23, 2007); *H-1 Mgmt. LLC v. Perryman*, No. 2006-CVG-28200 (Ohio Mun., Cleveland, Hous. Div., July 10, 2007).

F. Maintenance/Use of the Security Deposit, During the Tenancy

R.C. Chapter 5321 does not impose any restrictions or requirements on a landlord's maintenance or use of a security deposit during the tenancy. *Mustic v. Mustic*, No. 87AP-318, 1987 WL 32174 (Ohio App., 10th Dist., Dec. 29, 1987).

For example, it does not require a landlord to maintain a separate account for the security deposit. *Shoregate Towers Partners L.L.C. v. Antebi*, No. 109817, 2021 WL 3416980, ¶ 128 (Ohio App., 8th Dist., Aug. 5, 2021) (“We therefore agree with appellants that there is no legal duty to segregate tenants’ security deposits by themselves in a separate account”); *Mustic v. Mustic*, No. 87AP-318, 1987 WL 32174 (Ohio App., 10th Dist., Dec. 29, 1987). And it does not require a landlord to use a tenant’s security deposit to pay the tenant’s rent arrearage so as to avoid the tenant’s default on the lease. *Small v. Williams*, No. 44418, 1982 WL 5247 (Ohio App., 8th Dist., Mar. 25, 1982).

G. Use/Return of the Security Deposit, After the Tenancy

1. General Rule

At the end of the tenancy, the landlord may apply the security deposit “to the payment of any past due rent and to the payment of the amount of damages that the landlord has suffered by reason of the tenant’s noncompliance with Section 5321.05 of the Revised Code or the rental agreement.”³²⁸ R.C. 5321.16(B).

“[W]ithin thirty days after termination of the rental agreement and delivery of possession,” the landlord is required to return the security deposit to the tenant and/or provide the tenant with a written itemization of any portion of the security deposit that

³²⁸ For a discussion on landlord claims for past due rent, see Chapter XVII, below. For a discussion on landlord claims under R.C. 5321.05(C) for property damage, see Chapter XVIII, below.

the landlord retains. *Id.*

The tenant is required to provide the landlord with a forwarding address to which the security deposit and/or written itemization may be sent. *Id.*

2. Landlord Option on Applying the Deposit

R.C. 5321.16(B) provides a landlord with the right to apply the security deposit (in whole or in part) to the payment of past due rent and to the payment of damages caused by the tenant's violation of R.C. 5321.05 or the rental agreement. *See Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 476 N.E.2d 1038 (1985).

The election to exercise this right is a discretionary decision of the landlord. R.C. 5321.16(B) permits a landlord, but does not require a landlord, to apply the tenant's security deposit to the tenant's rent or damage liability. *Papadakes v. Woodall*, No. 47848, 1984 WL 195552 (Ohio App., 8th Dist., Nov. 29, 1984); *Small v. Williams*, No. 44418, 1982 WL 5247 (Ohio App., 8th Dist., Mar. 25, 1982).

For example, even though the amount of a tenant's security deposit is larger than the amount of the tenant's unpaid rent, the landlord may bring an action for a money judgment for the unpaid rent.³²⁹ *Papadakes*, 1984 WL 195552, at *1-2. In such cases, the burden is on the tenant to assert the security deposit as a set-off against the rent claim. *See Salem v. Roberts*, No. 94-CA-28, 1996 WL 131160 (Ohio App., 4th Dist., Mar. 18, 1996).

However, in these circumstances, the landlord is still required under R.C. 5321.16(B) to deliver to the tenant the security deposit (less any permissible deductions) and the requisite written itemization (if applicable) within thirty days after the termination of the rental agreement and delivery of possession. *See Campus Vill. Toledo Univ. Park, LLC v. Mowrer*, 68 N.E.3d 219, 2016-Ohio-4754 (Ohio App., 6th Dist., 2016); *Papadakes*, 1984 WL 195552, at *2.

3. Written Itemization

"[A]ny security deposit deduction must be itemized." *Nolan v. Sutton*, 97 Ohio App.3d 616, 619, 647 N.E.2d 218 (1st Dist. 1994).

³²⁹ However, if the amount of the landlord's R.C. 5321.05(C) damage claim is less than the amount of the tenant's security deposit, and the tenant has forfeited the security deposit, the landlord has not suffered any "actual damages" under R.C. 5321.05(C) (see Section XVIII.E.4, below) and, therefore, is not entitled to recover R.C. 5321.05(C) attorney's fees (see Section XVIII.D, below).

The purpose of the itemization requirement “is to make landlords give reasons to tenants why their security deposit is being withheld so that tenants may decide whether to pursue an action for recovery of that security deposit.” *McNeill v. Wasserbauer*, No. 72846, 1998 WL 323592, at *3 (Ohio App., 8th Dist., June 18, 1998). *Accord Senz v. Onstott*, 71 Ohio Misc.2d 67, 69, 654 N.E.2d 460 (Ohio Mun., Wadsworth, 1994). *See also Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 28, 476 N.E.2d 1038 (1985).

However, “there is nothing in the R.C. Chapter 5321 that states that the landlord upon the request of the former tenant must let the tenant re-enter the premises to verify the damages claimed by the landlord.” *Scott v. Rice*, No. 9-92-48, 1993 WL 46480, at *3 (Ohio App., 3rd Dist., Feb. 11, 1993).

Three court decisions, which are discussed below, illustrate the accuracy and specificity required for the itemization.

One court held that, in preparing an R.C. 5321.16(B) itemization of the cost to repair the premises, a landlord may rely on estimates from local advertisements, provided such advertisements are used in good faith. *Senz v. Onstott*, 71 Ohio Misc.2d 67, 69, 654 N.E.2d 460 (Ohio Mun., Wadsworth, 1994).

A second court held that the statement “\$40-cleaning” does not meet the itemization requirement under R.C. 5321.16(B) because it fails to specify the reason for the cleaning charge. *Nolan v. Sutton*, 97 Ohio App.3d 616, 619, 647 N.E.2d 218 (1st Dist. 1994).

A third court held that the required specificity was not met by a notice that stated:

2-Times Mowing Yard	\$ 40.00
Wal Mart	112.59
Rug Shampooer	29.66
Cleaning Lady	75.00
	257.25

Schaedler v. Shinkle, No. CA99-09-025, 2000 WL 1283776, at *1 (Ohio App., 12th Dist., Sept. 11, 2000). This notice was deficient because it “did not explain what he [landlord] had bought or why the items were necessary.” *Id.*

A landlord’s failure to comply with the R.C. 5321.16(B) written itemization requirement does not preclude the landlord from bringing an action against the tenant under R.C. 5321.05. See Section XVII.C.8, below.

Likewise, it is irrelevant to the wrongful withholding determination under R.C. 5321.16(C). See Section XVI.H.2, below.

4. Thirty-Day Period

A landlord's thirty-day period to return the security deposit and/or provide notice and an itemization of deductions from the security deposit is not relieved or suspended merely because the landlord has a pending monetary claim against the tenant. *Davis v. Wesolowski*, 146 N.E.3d 633, 2020-Ohio-677, ¶ 22 (Ohio App., 8th Dist., 2020). The requirement to abide by R.C. 5321.16(B) is "separate and distinct from a landlord's claim for any unpaid rent or premises damaged." *Sherwin v. Cabana Club Apts.*, 70 Ohio App.2d 11, 18, 433 N.E.2d 932 (8th Dist. 1980). *Accord Davis v. Wesolowski*, 146 N.E.3d 633, ¶ 22.

When the date on which the tenant returns the keys to the landlord is subsequent to the date on which the tenant vacates the premises, "delivery of possession" occurs when the keys are returned. *Katzin v. Murad*, No. 46553, 1984 WL 7150 (Ohio App., 8th Dist., Jan. 5, 1984). *Cf. Griffin v. Currie*, No. 4065, 1988 WL 126385 (Ohio App., 11th Dist., Nov. 25, 1988) (tenant liable to landlord for rent for the month after tenant had vacated because tenant returned the keys on the second day of that month).

When a month-to-month tenant vacates the premises without serving the landlord with an R.C. 5321.17(B) thirty-day notice of termination, the R.C. 5321.16(B) thirty-day period begins to run on the date that the tenant's obligation to pay rent ends. *Hashemi v. Jim Owen & Co.*, No. 76AP-879, 1977 Ohio App. LEXIS 8510 (Ohio App., 10th Dist., Apr. 21, 1977).

A landlord satisfies the R.C. 5321.16(B) thirty-day requirement if, on or before the thirtieth day, the landlord mails the security deposit and/or written itemization to the tenant's forwarding address with proper postage. *Goldstein v. Spitz*, 30 Ohio App.3d 246, 507 N.E.2d 433 (1st Dist. 1986); *Paxton v. McGranahan*, No. 49645, 1985 WL 6444 (Ohio App., 8th Dist., 1985). When a landlord timely mails the security deposit and/or written itemization, R.C. 5321.16(B) does not require that the tenant actually receive them within the thirty-day period. *Id.*

5. Forwarding Address

R.C. 5321.16(B) states that the tenant shall provide the landlord with the forwarding address "in writing."

"Although the statute requires a tenant to provide the landlord in writing a forwarding address, for equity's sake, the courts have avoided a hypertechnical application of the statute." *Jensen v. Boulevard Invs., Ltd.*, No. 103 658, 2016 WL 4242244, ¶ 19 (Ohio App., 8th Dist., Aug. 11, 2016).

“Under the existing liberal construction of the statute, the courts have held that the forwarding address requirement is met and the court must give effect to the penalties section of R.C. 5321.16(C) where the landlord has actual knowledge of the tenant’s new address such that compliance with the landlord’s duties pursuant to R.C. 5321.16(B) is possible.”³³⁰ *Jensen v. Boulevard Invs., Ltd.*, No. 103 658, 2016 WL 4242244, ¶ 20 (Ohio App., 8th Dist., Aug. 11, 2016).

In these circumstances, the courts have not required a written notice of the forwarding address. *E.g.*, *K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382 (Ohio App., 8th Dist., Dec. 9, 2021); *Amon v. Keagy*, No. 2008-T-0033, 2009 WL 2356831 (Ohio App., 11th Dist., July 31, 2009); *Adams v. Davenport*, No. 2005-CA-108, 2006 WL 2578852 (Ohio App., 2nd Dist., Sept. 8, 2006); *Brown v. Dobbins*, No. C-050089 (Ohio App., 1st Dist., Nov. 30, 2005); *Smitson v. Zeches*, No. 92AP-1773, 1993 WL 317243 (Ohio App., 10th Dist., Aug. 17, 1993);³³¹ *Mahoney v. Abood*, No. L-92-230, 1992 WL 337589 (Ohio App., 6th Dist., Nov. 20, 1992); *Cristal v. DRC Int’l, Inc.*, 74 Ohio App.3d 493, 599 N.E.2d 706 (8th Dist. 1991); *Baron v. Buckner*, No. CA90-10-071, 1991 WL 69355 (Ohio App., 12th Dist., Apr. 29, 1991); *Prescott v. Makowski*, 9 Ohio App.3d 155, 458 N.E.2d 1281 (8th Dist. 1983). *But see Fowler v. Hellman*, No. 1-85-45, 1986 WL 15048 (Ohio App., 3rd Dist., Dec. 30, 1986); *Carr v. Ed Stein Realtors*, 10 Ohio App.3d 242, 461 N.E.2d 930 (9th Dist. 1983).

Courts have also held that the forwarding address requirement is met and the R.C. 5321.16(C) penalties are applicable if the landlord has contact information for the tenant’s lawyer or other reasonable avenues to contact the former tenant. *Clarke v. Royal*, No. 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021); *Jensen v. Boulevard Invs., Ltd.*, No. 103 658, 2016 WL 4242244 (Ohio App., 8th Dist.,

³³⁰ One appellate court was unwilling to extend this rule beyond the circumstances in which the landlord has actual knowledge of the tenant’s forwarding address. *Waldenmyer Enters. v. Bolek*, No. 86AP-100070, 1987 WL 11872 (Ohio App., 5th Dist., May 28, 1987). In *Bolek*, the landlord had reasonable grounds to believe, but not actual knowledge, that the tenant could be contacted through a local business.

Another appellate court held that the landlord did not have the requisite knowledge of the forwarding address via the tenant “simply leaving behind, on the kitchen counter [in the premises], a piece of cardboard with an address scrawled upon it.” *Seymour v. Ernsthausen*, No. F-85-7, 1986 WL 1887, at *2 (Ohio App., 6th Dist., Feb. 14, 1986).

³³¹ On this issue, *Smitson* implicitly overrules the decision in *Green v. Northwood Terrace Apts.*, No. 78AP-580, 1979 Ohio App. LEXIS 12352 (Ohio App., 10th Dist., Mar. 20, 1979).

Aug. 11, 2016); *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Wehrley v. Sunchase Am., Ltd.*, No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001).

Court decisions that illustrate some of those acceptable methods are summarized below.

- (1) Two weeks before the tenant's delivery of possession to the landlord, the tenant's counsel had filed with the trial court and had served on the landlord a written notice of appearance with his mailing address. *Clarke v. Royal*, No. 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021).
- (2) The landlord knew that the tenant was represented by counsel, the landlord knew the counsel's contact information, and the landlord had utilized that contact information with respect to that representation. *Jensen v. Boulevard Invs., Ltd.*, No. 103658, 2006 WL 4242244 (Ohio App., 8th Dist., Aug. 11, 2016).
- (3) The tenant's counsel, in a letter to the landlord, directed the landlord to send the security deposit to the tenant in care of her attorney. *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016).
- (4) Providing the landlord with written notice that states the name and address of the tenant's lawyer and that future communications from the landlord to the tenant should be directed to the tenant's lawyer. *Wehrley v. Sunchase Am., Ltd.*, No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001).
- (5) Mailing the forwarding address to the landlord by certified mail, notwithstanding the landlord's failure to claim the certified mail. *Ely v. Schroder*, No. C-990426, 2000 WL 145334 (Ohio App., 1st Dist., Feb. 11, 2000).
- (6) Providing a written notice from the tenant's lawyer to the landlord's lawyer that states that the tenant may be contacted in care of the lawyer's office. *Begue v. Henson*, No. 16975, 1995 WL 338427 (Ohio App., 9th Dist., June 7, 1995).
- (7) Providing written notice of the forwarding address to the landlord's roommate, who had apparent authority to act for the landlord for purposes of receiving tenant notices. *Ridenour v. Neufer*, 64 Ohio App.3d 453, 581 N.E.2d 1152 (9th Dist. 1989).
- (8) Recording the tenant's address in the initial written lease, when it is not

the address of the rental unit because the tenant entered into the lease to enable another person (e.g., the tenant's relative) to occupy the rental unit. *Pietrykowski v. Hamblin*, No. WD-84-86, 1985 WL 7092 (Ohio App., 6th Dist., Apr. 12, 1985).

- (9) Providing the landlord with the tenant's business card. *Pearson v. Huber Inv. Corp.*, No. 84AP-526, 1985 WL 9913 (Ohio App., 10th Dist., Mar. 21, 1985).
- (10) Providing the manager with an oral statement of the tenant's forwarding address, which the manager then writes on the landlord's office rolodex. *Bennett v. Huber Inv. Corp.*, No. 84AP-268, 1984 WL 5990 (Ohio App., 10th Dist., Nov. 15, 1984), *rev'd on other grounds*, 17 Ohio St.3d 33, 476 N.E.2d 1045 (1985).
- (11) Recording the address of the tenant's guarantor in the initial written lease, if the tenant does or would receive mail sent to that address after the tenant's vacation of the premises. *Boldan v. Suburban Apt. Mgmt. Co.*, No. 47089, 1984 WL 4503 (Ohio App., 8th Dist., Mar. 2, 1984).
- (12) Providing the landlord with a notice of the address of the tenant's attorney as a result of ongoing litigation between the tenant and the landlord. *Peake v. Thrower*, No. 88-CVG-2325 (Ohio Mun., Akron, Mar. 2, 1989).

R.C. 5321.16(B) does not specify a time period within which the tenant must provide the landlord with the forwarding address.

One appellate court has held that the time period is a reasonable time and, under this standard, the landlord must be given adequate time to deliver the security deposit and/or written itemization within the R.C. 5321.16(B) thirty-day period. *Janos v. Justice*, No. 80AP-31, 1980 Ohio App. LEXIS 10870 (Ohio App., 10th Dist., June 19, 1980). *See also Grove v. Turman*, No. 96-CA-1728, 1997 WL 173874 (Ohio App., 4th Dist., Mar. 28, 1997) (untimely where served eight months after tenant had vacated); *McGlaughlin v. Wallace F. Ackley Co.*, No. 79AP-817, 1980 Ohio App. LEXIS 13428 (Ohio App., 10th Dist., Nov. 13, 1980) (untimely where served after the R.C. 5321.16(B) thirty-day period had expired).

The tenant's compliance (or noncompliance) with the R.C. 5321.16(B) requirement to provide a forwarding address determines whether the tenant may recover statutory damages and reasonable attorney's fees under R.C. 5321.16(C), but not whether the tenant may recover the security deposit. See Section XVI.H.1, below.

H. Tenant Claim for the Security Deposit and Related Relief

1. Overview

“R.C. 5321.16 is a remedial statute intended to compensate the tenant for a wrongfully withheld deposit at no expense to the tenant.” *Klein v. Moutz*, 118 Ohio St.3d 256, 888 N.E.2d 404, ¶ 13 (2008). “[A]n important objective of the statute” is “to ensure that the tenant incurs no expense when seeking return of the deposit wrongfully withheld.” *Id.*, ¶ 17. *Accord Christie v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 378, 726 N.E.2d 497 (2000).

If the landlord retains the tenant’s security deposit (in whole or in part) in violation of R.C. 5321.16(B) and the tenant has provided the landlord with a forwarding address in compliance with R.C. 5321.16(B), the tenant may bring an action against the landlord for: (1) the portion of the security deposit that has been wrongfully withheld, (2) statutory damages in an amount equal to the portion of the security deposit that has been wrongfully withheld, and (3) reasonable attorney’s fees. R.C. 5321.16(C).

If the landlord retains the tenant’s security deposit (in whole or in part) in violation of R.C. 5321.16(B) and the tenant has not provided the landlord with a forwarding address in compliance with R.C. 5321.16(B), the tenant may bring an action against the landlord for the portion of the security deposit that has been wrongfully withheld, but not for statutory damages or reasonable attorney’s fees under R.C. 5321.16(C). *Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 27, 476 N.E.2d 1038 (1985).³³²

³³² See also *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Burnside v. Ickes*, No. 02-COA-015, 2003 WL 42455 (Ohio App., 5th Dist., Jan. 3, 2003); *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243 (Ohio App., 4th Dist., Nov. 14, 2001); *Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999); *Boice v. Emshoff*, No. 13-98-23, 1998 WL 833686 (Ohio App., 3rd Dist., Dec. 3, 1998); *Grove v. Turman*, No. 96-CA-1728, 1997 WL 173874 (Ohio App., 4th Dist., Mar. 28, 1997); *Lewis v. Urquhart*, No. CA95-07-118, 1996 WL 103770 (Ohio App., 12th Dist., Mar. 11, 1996); *Josselyn v. Arthur*, No. 12175, 1991 WL 60637 (Ohio App., 2nd Dist., Apr. 10, 1991); *Fowler v. Hellman*, No. 1-85-45, 1986 WL 15048 (Ohio App., 3rd Dist., Dec. 30, 1986); *McGlaughlin v. Wallace F. Ackley Co.*, No. 79AP-817, 1980 Ohio App. LEXIS 13428 (Ohio App., 10th Dist., Nov. 13, 1980).

2. Wrongful Withholding

In an R.C. 5321.16(C) claim, the determination on whether the withheld portion of the security deposit is wrongfully withheld is based solely on whether the landlord has a substantive right to retain it (*i.e.*, whether the tenant owes the landlord for unpaid rent and/or damages in an amount equal to or greater than the withheld portion of the security deposit).

By virtue of the rulings in *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987), and *Vardeman v. Llewellyn*, 17 Ohio St.3d 24, 476 N.E.2d 1038 (1985), whether the landlord has complied with the R.C. 5321.16(B) written itemization requirement is irrelevant to the R.C. 5321.16(C) wrongful withholding determination.

In *Padgett*, the court held that, when a landlord has provided a tenant with a written itemization of the withheld portion of the security deposit and has provided the itemization timely and in good faith, it is still a wrongful withholding if the court ultimately finds that the landlord did not have a substantive right to retain it.³³³

In *Vardeman*, the court held that, when a landlord has a substantive right to retain the withheld portion of the security deposit, the landlord's failure to provide the tenant with a written itemization does not cause the withholding to be a wrongful withholding.³³⁴

³³³ See also *Warner v. Evans*, No. 27536, 2015 WL 3398400 (Ohio App., 9th Dist., May 27, 2015); *Spring Hill Townhomes v. Pounds*, No. 25887, 2014 WL 1887690 (Ohio App., 2nd Dist., May 9, 2014); *Budler v. Empire Mgmt. Group*, No. 22376, 2005 WL 1026697 (Ohio App., 9th Dist., May 4, 2005); *Williams v. Glaser III*, No. C-000539, 2001 WL 395165 (Ohio App., 1st Dist., Apr. 20, 2001); *Christe v. GMS Mgmt. Co.*, 124 Ohio App.3d 84, 705 N.E.2d 691 (9th Dist. 1997); *Gainer v. Hunker*, No. 17153, 1995 WL 553199 (Ohio App., 9th Dist., Sept. 20, 1995); *Feldmann v. Ponziani*, No. 14857, 1995 WL 232476 (Ohio App., 2nd Dist., Apr. 21, 1995); *Fitz v. Dienes*, No. 56172, 1989 WL 139572 (Ohio App., 8th Dist., Nov. 16, 1989).

³³⁴ See also *Amba Invs., LLC v. Clark*, No. CA2021-02-016, 2022 WL 94540 (Ohio App., 12th Dist., Jan. 10, 2022); *Williams v. McMillian*, No. 107570, 2019 WL 3855356 (Ohio App., 8th Dist., Aug. 15, 2019); *Nieto v. Marcellino*, No. 2017-G-0146, 2018 WL 6445474 (Ohio App., 11th Dist., Dec. 10, 2018); *DePaz v. Bahramian*, Nos. C-130128, 130317, 2013 WL 6672913 (Ohio App., 1st Dist., Dec. 18, 2013); *Moore-El v. Petrella*, No. 94749, 2011 WL 553877 (Ohio App., 8th Dist., Feb. 17, 2011); *Knipp v. Sadler*, No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009); *Schaedler v. Shinkle*, No. CA99-09-025, 2000 WL 1283776 (Ohio App., 12th Dist., Sept. 11, 2000); *Korom v. Pesek*, No. 57559, 1990 WL 130909 (Ohio App., 8th Dist., Sept. 13, 1990).

3. Statutory Damages

If any portion of the security deposit is wrongfully withheld, the landlord's liability for statutory damages under R.C. 5321.16(C) is mandatory. *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987).³³⁵

A tenant's failure to demand the statutory damages in the pleadings does not waive the tenant's right to recover them. Ohio R. Civ. P. 54(C).³³⁶ *E.g.*, *Leszczynski v. Brewer*, No. 12523, 1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991). *Cf.* *Morales v. Windsor Realty & Mgmt., Inc.*, No. 2000-CVH-002037 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2000) (R.C. 5321.16(C) attorney's fees).

The landlord's good faith in withholding the security deposit is not a defense to the tenant's claim for statutory damages. *Smith v. Padgett*, 32 Ohio St.3d 344, 513

³³⁵ See also *Klemas v. Flynn*, 66 Ohio St.3d 249, 611 N.E.2d 810 (1993); *Clarke v. Royal*, No. 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021); *Alcoroso v. Correll*, 159 N.E.3d 924, 2020-Ohio-4752 (Ohio App., 8th Dist., 2020); *Filby v. Stocker Dev., LLC*, No. 2017-AP06-0020, 2017 WL 6371312 (Ohio App., 5th Dist., Dec. 11, 2017); *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Spring Hill Townhomes v. Pounds*, No. 25887, 2014 WL 1887690 (Ohio App., 2nd Dist., May 9, 2014); *Manninen v. Alvarez*, No. CA2013-06-106, 2014 WL 107852 (Ohio App., 12th Dist., Jan. 13, 2014); *Bacon v. Atlas Home Corp.*, No. 22471, 2005 WL 3557129 (Ohio App., 9th Dist., Dec. 30, 2005); *Budler v. Empire Mgmt.*, No. 22376, 2005 WL 1026697 (Ohio App., 9th Dist., May 4, 2005); *Compton v. Spinks*, No. CA2003-08-019, 2004 WL 1543201 (Ohio App., 12th Dist., July 12, 2004); *Munsie v. Welkener*, No. CA96-08-080, 1997 WL 374739 (Ohio App., 12th Dist., July 7, 1997); *Buck v. Georgian Manor Invs.*, No. 67170, 1995 WL 143813 (Ohio App., 8th Dist., Mar. 30, 1995); *Ulle-Mance v. Berardinelli*, No. 92-L-210, 1993 WL 407262 (Ohio App., 11th Dist., Sept. 30, 1993); *Trepka v. Blake*, No. 61633, 1993 WL 12255 (Ohio App., 8th Dist., Jan. 21, 1993); *Chaney v. Dominique*, No. 91-WD-099, 1992 WL 163903 (Ohio App., 6th Dist., July 17, 1992); *Calhoun v. Yeager*, No. 91-CA-12, 1992 WL 56793 (Ohio App., 4th Dist., Mar. 26, 1992); *Simone v. Hill'n Dale Homes*, No. 89-B-9, 1989 WL 158232 (Ohio App., 7th Dist., Dec. 29, 1989); *Pappenhagen v. Payne*, 48 Ohio App.3d 176, 549 N.E.2d 208 (8th Dist. 1988).

³³⁶ The 1994 amendment to Civil Rule 54(C) renders obsolete the contrary decisions in *Simon v. Durham*, 98 Ohio App.3d 828, 649 N.E.2d 1240 (8th Dist. 1994), and *Pietrykowski v. Hamblin*, No. WD-84-86, 1985 WL 7092 (Ohio App., 6th Dist., Apr. 12, 1985). Both decisions relied on pre-1994 Civil Rule 54(C), which limited money judgment awards to the amount demanded in the pleadings.

N.E.2d 737 (1987).³³⁷

The duration of the landlord's wrongful withholding, beyond the R.C. 5321.16(B) thirty-day period, is immaterial. *Munsie v. Welkener*, No. CA96-08-080, 1997 WL 374739 (Ohio App., 12th Dist., July 7, 1997) (one day after the thirty-day period). See also *Forquer v. Colony Club*, 26 Ohio App.3d 178, 499 N.E.2d 7 (10th Dist. 1985).

"[The statutory] damages recoverable pursuant to R.C. 5321.16(C) are not 'punitive damages' under former R.C. 1925.02(A)(2)(c) and [thus] are not excluded from the jurisdiction of small claims divisions of municipal and county courts." *Klemas v. Flynn*, 66 Ohio St.3d 249, 253, 611 N.E.2d 810 (1993). This rule remains good law for purposes of modern R.C. 1925.02(A)(2)(a)(iii). *Bonesteel v. Nash*, 65 N.E.3d 326, 2016-Ohio-3144 (Ohio App., 5th Dist., 2016).

4. Reasonable Attorney's Fees

If any portion of the security deposit is wrongfully withheld, the landlord's liability for reasonable attorney's fees under R.C. 5321.16(C) is mandatory. *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987).³³⁸

A tenant's failure to demand the attorney's fees in the pleadings does not waive the tenant's right to recover them.³³⁹ Ohio R. Civ. P. 54(C) ("Except as to a party against whom a judgment is entered by default, every final judgment should grant the relief to which the party in whose favor it is rendered is entitled, even if the party has not demanded the relief in the pleadings").³⁴⁰ E.g., *Leszczynski v. Brewer*, No. 12523,

³³⁷ See also *Alcoroso v. Correll*, 159 N.E.3d 924, 2020-Ohio-4752 (Ohio App., 8th Dist., 2020); *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Spring Hill Townhomes v. Pounds*, No. 25887, 2014 WL 1887690 (Ohio App., 2nd Dist., May 9, 2014); *Compton v. Spinks*, No. CA2003-08-019, 2004 WL 1543201 (Ohio App., 12th Dist., July 12, 2004); *Williams v. Glaser III*, No. C-000539, 2001 WL 395165 (Ohio App., 1st Dist., Apr. 20, 2001); *Munsie v. Welkener*, No. CA96-08-080, 1997 WL 374739 (Ohio App., 12th Dist., July 7, 1997); *Buck v. Georgian Manor Invs.*, No. 67170, 1995 WL 143813 (Ohio App., 8th Dist., Mar. 30, 1995); *Ulle-Mance v. Berardinelli*, No. 92-L-210, 1993 WL 407262 (Ohio App., 11th Dist., Sept. 30, 1993); *Calhoun v. Yeager*, No. 91-CA-12, 1992 WL 56793 (Ohio App., 4th Dist., Mar. 26, 1992); *Perry v. Guttman*, Nos. C-870530, 870568, 1988 WL 101216 (Ohio App., 1st Dist., Sept. 28, 1988); *Pappenhagen v. Payne*, 48 Ohio App.3d 176, 549 N.E.2d 208 (8th Dist. 1988).

³³⁸ The court decisions cited in note 335, above, support this proposition as well.

³³⁹ These attorney's fees are costs, not damages. See Section XIX.C, below.

³⁴⁰ See note 355, below.

1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991); *Morales v. Windsor Realty & Mgmt., Inc.*, No. 2000-CVH-002037 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2000). Cf. *Zimmerman v. Elmore*, No. 47724, 1984 WL 5119 (Ohio App., 8th Dist., June 28, 1984) (R.C. 5321.05(C) attorney's fees). But see *Biasella v. Costakis*, No. 71281, 1997 WL 253157 (Ohio App., 8th Dist., May 15, 1997).

The landlord's good faith in withholding the security deposit is not a defense to the tenant's claim for reasonable attorney's fees. *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987).³⁴¹

The determination on the amount of attorney's fees to be awarded lies within the sound discretion of the trial court. *Clarke v. Royal*, 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021); *Christen v. Cont'l Enters., Ltd.*, 154 N.E.3d 1192, 2020-Ohio-3665 (Ohio App., 8th Dist., 2020); *Mandzuch v. Affordable Reasonable Rental, LLC*, 2018-G-0179, 2019 WL 2269297 (Ohio App., 11th Dist., May 28, 2019); *Timoneri v. Northsteppe Realty*, 71 N.E.3d 630, 2016-Ohio-5901 (Ohio App., 10th Dist., 2016); *LaCare v. Dearing*, 73 Ohio App.3d 238, 596 N.E.2d 1097 (11th Dist. 1991); *McGregor v. Armeni*, No. 89AP-1500, 1990 WL 179981 (Ohio App., 10th Dist., Nov. 20, 1990); *Heath v. Burgess*, No. CA86-12-019, 1987 WL 12730 (Ohio App., 12th Dist., June 15, 1987); *Forquer v. Colony Club*, 26 Ohio App.3d 178, 499 N.E.2d 7 (10th Dist. 1985).

The computation of the amount of attorney's fees to be awarded is based solely on the time spent on the R.C. 5321.16(C) claim. *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987).³⁴²

This time includes any time spent in defending against a landlord's objections to a magistrate's decision in favor of the tenant. *Alexander v. LJF Mgmt. Inc.*, No. C-100618, 2011 WL 2112623 (Ohio App., 1st Dist., May 27, 2011).

This time also includes any time spent in defending against a counterclaim to the R.C. 5321.16(C) claim, if the security deposit claim and the counterclaim are virtually indivisible. *Alcorso v. Correll*, No. 110218, 2021 WL 4317396, (Ohio App., 8th Dist.,

³⁴¹ The court decisions cited in note 337, above, support this proposition as well.

³⁴² See also *Congdon v. Senters*, No. 99-CA-43, 1999 WL 1071768 (Ohio App., 5th Dist., Nov. 16, 1999); *Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999); *Buck v. Georgian Manor Invs.*, No. 67170, 1995 WL 143813 (Ohio App., 8th Dist., Mar. 30, 1995); *Oakwood Mgmt. Co. v. Young*, No. 92AP-207, 1992 WL 324338 (Ohio App., 10th Dist., Oct. 27, 1992).

Sept. 23, 2021); *Christen v. Cont'l Enters., Ltd.*, 154 N.E.3d 1192, 2020-Ohio-3665 (Ohio App., 8th Dist., 2020); *Jerels v. Begue*, No. 24700, 2010 WL 1780140 (Ohio App., 9th Dist., May 5, 2010); *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299 (Ohio App., 10th Dist., Jan. 23, 2007); *Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999); *LaCare v. Dearing*, 73 Ohio App.3d 238, 596 N.E.2d 1097 (11th Dist. 1991); *Opsomer v. Gray*, No. 7-84-20, 1986 WL 6434 (Ohio App., 3rd Dist., May 29, 1986).

The typical counterclaim that meets this standard is a counterclaim for unpaid rent or damage to the premises. *E.g.*, *Clarke v. Royal*, 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021); *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299 (Ohio App., 10th Dist., Jan. 23, 2007); *Congdon v. Senters*, No. 99-CA-43, 1999 WL 1071768 (Ohio App., 5th Dist., Nov. 16, 1999); *LaCare v. Dearing*, 73 Ohio App.3d 238, 596 N.E.2d 1097 (11th Dist. 1991); *Cook v. Downey*, No. 87AP-1075, 1988 WL 70446 (Ohio App., 10th Dist., June 30, 1988); *Opsomer v. Gray*, No. 7-84-20, 1986 WL 6434 (Ohio App., 3rd Dist., May 29, 1986). *See also Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999).

The court may consider the amount awarded on the security deposit claim in determining the reasonable amount of attorney's fees. *Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999); *Cook v. Downey*, No. 87AP-1075, 1988 WL 70446 (Ohio App., 10th Dist., June 30, 1988); *Fant v. DiSabato*, No. 87AP-265, 1987 WL 32190 (Ohio App., 10th Dist., Dec. 29, 1987).

However, the attorney fee award is not limited to the amount of the security deposit. *Congdon v. Senters*, No. 98-CA-55, 1999 WL 4058 (Ohio App., 5th Dist., Dec. 23, 1998).

"Simply because the attorney fees incurred in this case were greatly disproportionate to the damages recovered on [tenant's] security deposit claim does not mean they were unreasonable. As stated above, R.C. 5321.16 is a remedial statute intended to ensure that a tenant incurs no expense when seeking a refund of a wrongfully withheld security deposit. Consistent with that purpose, [the tenant] was entitled to recover reasonable attorney fees [the landlord's] actions forced her to incur to enforce her statutory rights." *Alcorso v. Correll*, No. 110218, 2021 WL 4317396, ¶ 49 (Ohio App., 8th Dist., Sept. 23, 2021) (\$26,825 fee award, \$1,200 judgment).

When the attorney fee award exceeds the security deposit award, a clear statement of the method by which the trial court arrived at the attorney fee award is helpful to avoid a remand. *See Clarke v. Royal*, 20AP-366, 2021 WL 2443751 (Ohio App., 10th

Dist., June 15, 2021) (award of \$950 security deposit, \$950 statutory damages, \$200 refund, and \$5,415 attorney's fees); *Christen v. Cont'l Enters., Ltd.*, 154 N.E.3d 1192, 2020-Ohio-3665 (Ohio App., 8th Dist., 2020) (award of \$850 for portion of security deposit wrongfully withheld, \$850 statutory damages, and \$23,500 attorney's fees); *Schultz v. Wurdlow*, No. 11AP-62, 2012 WL 2859914, ¶¶ 1,25,26 (Ohio App., 10th Dist., July 12, 2012) (award of \$350 security deposit, \$350 statutory damages, \$14,782.50 attorney's fees);³⁴³ *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299, ¶ 62 (Ohio App., 10th Dist., Jan. 23, 2007) (award of \$700 security deposit, \$700 statutory damages, \$5,989.76 attorney's fees); *Ridenour v. Dunn*, No. 03AP-611, 2004 WL 1445270, ¶¶ 11,12 (Ohio App., 10th Dist., June 29, 2004) (award of \$225 security deposit, \$225 statutory damages, \$1,000 attorney's fees). In these circumstances, appellate courts have invoked the rule: "where the amount recovered is small compared to the attorney fees assessed, the court must give adequate reasoning as to how it arrived at the specific amount of the award." *Dunn*, 2004 WL 1445270, ¶ 10.

Any downward adjustment of the attorney fee award, based on the amount of the security deposit judgment, may not reduce the attorney fee award to an amount that is unreasonable and inconsistent with the purposes of such fees. *Congdon v. Senter*, No. 99-CA-43, 1999 WL 1071768 (Ohio App., 5th Dist., Nov. 16, 1999).

The *Congdon* trial court awarded the tenant a judgment of \$550 for the security deposit, \$550 for R.C. 5321.16(C) statutory damages, and \$600 for attorney's fees. With respect to the attorney fee award, it found that the attorney's time (36.7 hours) and rate (\$140 per hour) were reasonable but made a downward adjustment to take into account the amount of the security deposit judgment.

The *Congdon* appellate court reversed the trial court on the attorney fee award, on the ground that the amount was too low:

For the trial court to concede that the amount of time expended was reasonable in light of the case presented and then to award a fee tantamount to a charge of \$16.35 per hour for trial counsel's endeavor, is to in fact condone an abuse of the court system by litigants. It sends a clear message that condones the action of withholding a security

³⁴³ An example of the type of reasoning that is adequate is contained in *Schultz v. Wurdlow*, No. 2008-CVI-031737, slip op. at 5 (Ohio Mun., Franklin Cty., Dec. 30, 2010), *aff'd*, No. 11AP-62, 2012 WL 2859914, ¶¶ 25,26 (Ohio App., 10th Dist., July 12, 2012).

deposit because the cost of recovery is too great. It invites an abuse of the legal process and punishes litigants from seeking their day in court. It telegraphs a clear message that the prosecution of small claims is too expensive.

Congdon, 1999 WL 1071768, at *2.

A pro se tenant who is an attorney may recover attorney's fees under R.C. 5321.16(C). *Lytle v. K & D Group, Inc.*, No. 84889, 2005 WL 1994938 (Ohio App., 8th Dist., Aug. 18, 2005).

For further discussion on issues related to calculating and moving for R.C. Chapter 5321 attorney's fees, see Chapter XIX, below.

5. Practice Issues

a. Compulsory Counterclaims

A landlord's claim for unpaid rent, or for damage caused by the tenant's violation of R.C. 5321.05 or the rental agreement, is a compulsory counterclaim (as well as a defense) to the tenant's security deposit claim. *Cochran v. Larson*, No. 7311, 1982 WL 3656 (Ohio App., 2nd Dist., Jan. 8, 1982); *Thirion v. Tutoki*, 94 Ohio Misc.2d 77, 703 N.E.2d 378 (Ohio Mun., Warren, 1998). Cf. *Pruitt v. Mauger Mgmt. Co.*, No. 77AP-367, 1977 Ohio App. LEXIS 7605 (Ohio App., 10th Dist., Sept. 29, 1977) (R.C. 5321.09 release of rent deposit action and R.C. 5321.16 security deposit action arose out of the same transaction for Civil Rule 13(A) purposes).

Since Civil Rule 13(A) applies to proceedings in a municipal court, small claims division, these landlord claims are compulsory counterclaims even if the tenant files the security deposit claim in a small claims court. *Thirion v. Tutoki*, 94 Ohio Misc.2d 77, 703 N.E.2d 378 (Ohio Mun., Warren, 1998).

A landlord's right to file these counterclaims is not waived by the landlord's noncompliance with the R.C. 5321.16(B) written itemization requirement. See Section XVII.C.8, below.

A tenant's claim for refund of a security deposit likewise may be a compulsory counterclaim to a landlord's claim for unpaid rent. *GMS Mgmt. Co. v. Seminaro*, No. 63007, 1993 WL 277073 (Ohio App., 8th Dist., July 22, 1993).

b. Burden of Proof

The tenant bears the burden of proving the existence and then termination of the rental agreement, the amount of the security deposit, and the amount of the security

deposit not returned. *Schultz v. Wurdlow*, No. 2008-CVI-031737 (Ohio Mun., Franklin Cty., Dec. 30, 2010), *aff'd on other grounds*, No. 11AP-62, 2012 WL 2859914 (Ohio App., 10th Dist., July 12, 2012).

“The burden falls upon the landlord to establish the lawfulness of any deductions from the security deposit.” *Zeallear v. F & W Props.*, No. 99AP-1215, 2000 WL 1015345, at *3 (Ohio App., 10th Dist., July 25, 2000). *Accord Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Paxton v. McGranahan*, No. 49645, 1985 WL 6444 (Ohio App., 8th Dist., Oct. 31, 1985); *Schultz v. Wurdlow*, No. 2008-CVI-031737 (Ohio Mun., Franklin Cty., Dec. 30, 2010).

Two court decisions conflict on whether the landlord (or tenant) bears the burden of proving noncompliance (or compliance) with the forwarding address requirement. *Compare Dowell v. Krebs*, No. 54517, 1988 WL 112857, at *3 (Ohio App., 8th Dist., Oct. 20, 1988) (landlord’s burden) *with Schultz v. Wurdlow*, No. 2008-CVI-031737 (Ohio Mun., Franklin Cty., Dec. 30, 2010) (tenant’s burden), *aff'd on other grounds*, No. 11AP-62, 2012 WL 2859914 (Ohio App., 10th Dist., July 12, 2012).

c. Accord and Satisfaction

When a landlord withholds a portion of the security deposit and provides the tenant with a check for the remainder of the deposit, and the tenant cashes the check, it does not necessarily create an accord and satisfaction. *Tourville v. Terzuoli*, No. 22802, 2009 WL 1636605 (Ohio App., 2nd Dist., June 5, 2009).

In *Tourville*, the landlord “returned a check for the amount of the security deposit that he believed was due.” *Id.*, ¶ 13. “[T]here was no evidence that the check was the product of a negotiation between the [landlord and tenant] regarding the amount of the security deposit that should be refunded.” *Id.* The court thereupon held that “there is no evidence that an accord was reached.” *Id.*

d. Improper Parties, R.C. 5321.16(C)

An R.C. 5321.16(C) claim may not be brought against persons who are landlords of the premises under the R.C. 5321.01(B) definition of landlord, but who neither received nor retain the security deposit (*e.g.*, a clerk in the rental office who physically receives the rent checks on behalf of the clerk’s employer). *Ford v. Club S. Inv. Co.*, No. 86AP-559, 1986 WL 14482 (Ohio App., 10th Dist., Dec. 16, 1986).

An R.C. 5321.16(C) claim may not be brought by a non-tenant, such as a guarantor under a lease to whom the tenant has assigned the security deposit rights. *Beatley v.*

Schwartz, No. 03AP-911, 2004 WL 1244360 (Ohio App., 10th Dist., June 8, 2004). However, such guarantors may recover the assigned deposit under common law. *Id.*

e. R.C. 5321.07 Deposits Constitute Rent Paid

Any “rent money deposited with the clerk of court pursuant to R.C. 5321.07 constitutes rent.” *Davis v. Wesolowski*, 146 N.E.3d 633, 2020-Ohio-677, ¶ 15 (Ohio App., 8th Dist., 2020). Therefore, a landlord may not consider these deposits unpaid rent for R.C. 5321.16 purposes. *Id.*, ¶¶ 17-20.

f. Agreement Between Tenants Cannot Waive Landlord’s Duty

“No agreement can relieve a landlord of the mandatory duties imposed by R.C. 5321.16(B).” *Timoneri v. Northsteppe Realty*, 71 N.E.3d 630, 2016-Ohio-5901, ¶ 32 (Ohio App., 10th Dist., 2016). Consequently, an agreement between replacement tenants (*i.e.*, one tenant is replacing another tenant under a lease) cannot relieve the landlord of the mandatory R.C. 5321.16(B) obligations relative to the replaced tenant. *Id.* For example, if the new tenant fails to pay to the replaced tenant a specified security deposit amount in violation of the replacement agreement, the landlord is still obligated to return the replaced tenant’s security deposit to the replaced tenant in accordance with R.C. 5321.16(B). *Id.*, ¶¶ 32-35.

6. Third-Party Purchaser of the Premises

When a third party purchases the premises during the tenancy, an issue may arise as to whether the original landlord or the new landlord is liable to the tenant for the security deposit.

Because a security deposit is a pledge (see Section XVI.A, above), the original landlord, as pledgee, always remains liable to the tenant for returning the security deposit in accordance with the terms of the rental agreement. *Dovi Interests, Ltd. v. Somerset Point Ltd. P’ship*, No. 82788, 2004 WL 254211 (Ohio App., 8th Dist., Feb. 12, 2004); *Castlebrook, Ltd. v. Dayton Props. Ltd. P’ship*, 78 Ohio App.3d 340, 604 N.E.2d 808 (2nd Dist. 1992); *UNF Corp. v. Deffet Rentals, Inc.*, No. 81AP-337, 1981 WL 3661 (Ohio App., 10th Dist., Dec. 10, 1981); *Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d 122, 255 N.E.2d 284 (8th Dist. 1970).

The new landlord is liable only if, in the purchase of the premises, the new landlord agreed to assume such liability or received a credit for the security deposit against the sale price. *Castlebrook, Ltd.*, 78 Ohio App.3d at 348; *UNF Corp.*, 1981 WL 3661, at

*1,2; *Tuteur*, 21 Ohio App.2d at 133. *E.g.*, *Jordan v. McShan*, No. 91-CVG-20057 (Ohio Mun., Cleveland, Hous. Div., Apr. 9, 1992) (purchase agreement provision providing for the transfer of the tenant's security deposit made the new landlord liable for the deposit).

The new landlord's agreement to assume such liability may be established by the lease between the tenant and the original landlord, if the lease contains a provision imposing such liability on any purchaser of the premises. *Smith v. Applegate Prop. Mgmt.*, No. 2012-CVF-2488 (Ohio Mun., Massillon, July 31, 2013). This conclusion is based, in part, on the common law rule that, when a third-party purchases rental property, generally the third-party purchases the property subject to the existing leases. *Id.* For a discussion on that common law, see Section XXII.B, below.

7. Conflict Between R.C. 5321.16 and the Rental Agreement

Any liquidated damage provision in a rental agreement that conflicts with R.C. 5321.16(C) is unenforceable. R.C. 5321.13(A). *E.g.*, *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *KGM Capital, LLC v. Jackson*, No. C-130438, 2014 WL 2566286 (Ohio App., 1st Dist., June 6, 2014); *Albregt v. Chen*, 17 Ohio App.3d 79, 477 N.E.2d 1150 (6th Dist. 1983); *Riding Club Apts. v. Sargent*, 2 Ohio App.3d 146, 440 N.E.2d 1368 (10th Dist. 1981); *Ankney v. Dame*, No. L-76-307, 1977 Ohio App. LEXIS 10154 (Ohio App., 6th Dist., Apr. 29, 1977). *See also Chaney v. Breton Builder Co.*, 130 Ohio App.3d 602, 720 N.E.2d 941 (6th Dist. 1998); *Cook v. Heritage Glen Apts.*, No. CA96-03-055, 1996 WL 535238 (Ohio App., 12th Dist., Sept. 23, 1996).

Likewise, any provision in a rental agreement that provides for an automatic forfeiture of the security deposit is a violation of R.C. 5321.16 and, therefore, unenforceable. R.C. 5321.13(A). *E.g.*, *KGM Capital, LLC v. Jackson*, No. C-130438, 2014 WL 2566286 (Ohio App., 1st Dist., June 6, 2014) (lease provided for an automatic forfeiture of the security deposit, plus the amount of one-month's rent, if tenant vacated the premises before the expiration of the lease term); *C & L Ventures, LLC v. Heistand*, No. 00-CVG-01995 (Ohio Mun., Fairfield Cty., Nov. 14, 2001) (lease designated the security deposit a "non-refundable security deposit"); *Littlejohn v. Dehostos*, No. 91-CVG-14377 (Ohio Mun., Cleveland, Hous. Div., Mar. 9, 1992) (lease provided for an automatic forfeiture of the security deposit if tenant vacated the premises within a specified time period).

XVII. Landlord Claim for Rent

A. End Date of Rental Obligation

1. Month-to-Month Tenant

Generally, three factors determine the end date of the time period for which a month-to-month tenant is obligated to pay rent: (1) the date on which the tenancy is terminated; (2) the date on which the tenant delivers possession of the premises to the landlord; and (3) any time period the landlord does not lease the premises as a result of the tenant's violation of the rental agreement.

As to the third factor, the tenant's obligation to pay rent for that period is subject to the landlord's duty to mitigate damages. See Section XVII.B, below.

When a month-to-month tenant vacates the premises without giving the landlord a notice of termination, and the landlord has neither terminated the tenancy nor requested the tenant to leave, the tenant generally is obligated to pay rent for the month in which the tenant vacated ("vacation month") and for the month after the vacation month. *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775, ¶¶ 25,26 (Ohio App., 4th Dist., July 26, 2013) (citing this book, 3d edition, section XVII.A.1). The tenancy is not terminated until the end of the month after the vacation month because the tenant's vacation of the premises is, in effect, the tenant's R.C. 5321.17(B) 30-day notice of termination. The tenant's obligation to pay rent for the month after the vacation month is based on the tenant's obligation to pay rent during the term of the tenancy.

When a month-to-month tenant gives the landlord a notice of termination that specifies a termination date that is less than 30 days before the periodic rental date, and the tenant vacates the premises pursuant to that notice, the tenant is generally obligated to pay rent for the vacation month and for the month after the vacation month. *E.g., Bowman v. Cmty. Mgmt. Corp.*, 14 Ohio App.3d 31, 469 N.E.2d 1038 (1st Dist. 1984) (notice Sept. 21, vacated Sept. 30, security deposit awarded for Oct. rent). *See also Adams v. Relmax*, 111 N.E.3d 758, 2018-Ohio-1751 (Ohio App., 8th Dist., 2018); *Barran v. Kinas*, No. 85085, 2005 WL 991690 (Ohio App., 8th Dist., Apr. 28, 2005); *Fenell v. Mayflower Manor Apts.*, No. 17224, 1995 WL 699919 (Ohio App., 9th Dist., Nov. 29, 1995); *Wilson v. Thomas*, No. L-87-405, 1988 WL 69153 (Ohio App., 6th Dist., June 30, 1988).

When a month-to-month tenant properly terminates the tenancy and timely vacates

the premises, but returns the keys post-vacation, the tenant is generally obligated to pay rent for a post-vacation period: either up to the date the keys are returned or for an entire month post-vacation. *McGreevy v. Bassler*, No. 09AP-381, 2010 WL 177255 (Ohio App., 10th Dist., Jan. 19, 2010) (liability up to the date the keys are returned); *Knipp v. Sadler*, No. 609-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009) (liability for an entire month post-vacation).

When a month-to-month tenant gives the landlord a 30-day notice of termination, and before the expiration of the 30-day period the landlord locks the tenant out of the premises, the tenant is not liable for any rent that accrues subsequent to the lockout. *Gordon v. Morris*, No. 2000-CA-69, 2001 WL 85797 (Ohio App., 2nd Dist., Feb. 2, 2001). For a discussion on the tenant's claim for the lockout, see Chapter XII, above.

When a month-to-month tenant vacates the premises in response to the landlord's notice to vacate, and the reason for the notice is not a tenant violation of the rental agreement, the tenant is obligated to pay rent only for the period up to the date on which the tenant delivers possession of the premises to the landlord. *E.g.*, *VanHoose v. McGee*, No. CA97-04-008, 1997 WL 598127 (Ohio App., 12th Dist., Sept. 29, 1997). The landlord has terminated the tenancy with the service of the notice to vacate. For the period between the termination of the tenancy and the tenant's delivery of possession, the tenant is a holdover tenant and thus liable for the rent. See Section XVII.A.4, below. For the period after the tenant's delivery of possession, there is neither a tenancy nor any other basis on which to hold the tenant liable for rent.

When a month-to-month tenant vacates the premises in response to the landlord's notice to vacate, and the reason for the notice is the tenant's violation of the rental agreement, the tenant is generally obligated to pay rent for the vacation month, but not for the month after the vacation month. *E.g.*, *Simoudis v. Diehl*, 116 Ohio App.3d 296, 688 N.E.2d 16 (11th Dist. 1996) (notice to vacate for nonpayment of rent; tenant vacates eleventh day of the month); *Raymond v. Blanchard Inv. Co.*, No. 84AP-1000, 1985 WL 9931 (Ohio App., 10th Dist., Mar. 28, 1985) (notice to vacate for causing damage to the premises; tenant vacates twenty-seventh day of the month); *Hashemi v. Jim Owen & Co.*, No. 76AP-879, 1977 Ohio App. LEXIS 8510 (Ohio App., 10th Dist., Apr. 21, 1977) (notice to vacate for nonpayment of rent; tenant vacates third day of the month); *Moran v. Foster*, No. 97-CVG-300 (Ohio Mun., Lakewood, Dec. 30, 1997) (notice to vacate for nonpayment of rent; tenant vacates third day of the month).

However, in these circumstances, if the tenant returns the keys for the premises in the month after the vacation month, the tenant is generally obligated to pay rent for the

vacation month and for all or part of the month after the vacation month. *E.g.*, *Griffin v. Currie*, No. 4065, 1988 WL 126385 (Ohio App., 11th Dist., Nov. 25, 1988) (liable for the entire month after the vacation month); *Jordan v. McShan*, No. 91-CVG-20057 (Ohio Mun., Cleveland, Hous. Div., Apr. 9, 1992) (liable up to the date the keys are returned in the month after the vacation month). *See also Peters v. Durroh*, 28 Ohio App.2d 245, 277 N.E.2d 69 (10th Dist. 1971).

When a landlord's notice (under R.C. 1923.04 or R.C. 5321.11) terminates a month-to-month tenancy for a tenant's violation of the rental agreement, the tenant's rental obligation post-termination is an element of the damages that the landlord has suffered as a result of the tenant's violation.

2. Remainder of Lease Term, Post-Service of the Notice to Vacate

"[T]he issuance of a three-day notice to vacate pursuant to R.C. 1923.04 does not terminate the obligation of the tenant to the landlord to pay rent for the remainder of the term or until a new tenant is secured in the exercise of reasonable diligence." *Dennis v. Morgan*, 89 Ohio St.3d 417, 418, 732 N.E.2d 391 (2000).

"If the lessor has acted reasonably in attempting to secure a new tenant, the lessee is liable for the rent up to the point of the lessor's finding a new tenant or the expiration of the lease, whichever is earlier." *Id.* at 419. *See also Pinnacle Mgmt. v. Bell*, No. CA2011-08-145, 2012 WL 1202678 (Ohio App., 12th Dist., Apr. 9, 2012); *Budler v. Empire Mgmt. Group*, No. 22376, 2005 WL 1026697 (Ohio App., 9th Dist., May 4, 2005).

The *Dennis* decision resolved a conflict among the lower courts on whether, in the absence of a continuing liability provision in the lease, the landlord's service of a notice to vacate relieved the tenant of future rental obligations under the lease.

Notwithstanding *Dennis*, if a tenant vacates the premises in response to the landlord's notice to vacate, and the landlord served the notice to vacate in violation of the tenant's rights under the lease and applicable law, the tenant is not liable for any rent that accrues subsequent to the tenant's vacation of the premises. *Wehrley v. Sunchase Am., Ltd.*, No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001). In these circumstances, the tenant also has a claim against the landlord for wrongful eviction. See Section XIV.B, above.

3. Remainder of Lease Term, Post-Death of the Tenant

“As a general rule, a lease for a term of years does not terminate by operation of law upon the death of the lessee but passes to his personal representative, who becomes bound as assignee for the remaining term.” *Sherman v. Carlin*, 46 Ohio App.3d 149, 150, 546 N.E.2d 433 (8th Dist. 1988).

“However, a lease may be so personal in its terms as to manifest the parties’ intention that the lease terminates upon the tenant’s death.” *Id.*

The assisted housing lease³⁴⁴ is sufficiently personal in its terms that the courts should find that the lease terminates upon the tenant’s death, absent a remaining household member. The tenant’s initial eligibility to lease the dwelling unit is based, in part, on the tenant’s low income. See Section XXIV.B.2, below. The amount of the tenant’s rental obligation under the lease is primarily based on the tenant’s income. See Section XXIV.B.4, below. The project-based subsidized housing lease,³⁴⁵ ¶ 13, prohibits altogether any assignment of the lease, and the lease does not include a provision stating that the lease is binding on the tenant’s heirs, successors, representatives, or assigns.

4. Holdover Tenant

A tenant who remains in occupancy of the premises after a lease expires is a tenant at sufferance (“holdover tenant”). *K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382 (Ohio App., 8th Dist., Dec. 9, 2021); *Deutsche Bank Nat’l Trust Co. v. Lovette*, No. 106546, 2018 WL 6266863 (Ohio App., 8th Dist., Nov. 29, 2018); *Adams v. Relmax*, 111 N.E.3d 758, 2018-Ohio-1751 (Ohio App., 8th Dist., 2018); *3637 Green Road Co., Ltd. v. Specialized Component Sales Co., Inc.*, 69 N.E.3d 1083, 2016-Ohio-5324 (Ohio App., 8th Dist., 2016); *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930 (Ohio App., 2nd Dist., Sept. 27, 2013); *Capella III, L.L.C. v. Wilcox*, 190 Ohio App.3d 133, 940 N.E.2d 1026 (10th Dist. 2010); *Wengerd v. Martin*, No. 99-CA-0004, 2000 WL 354148 (Ohio App., 9th Dist., Apr. 5, 2000); *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993); *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991); *Craig Wrecking Co. v. Loewendick*

³⁴⁴ For the definition of “assisted housing,” see note 163, above.

³⁴⁵ For the definition of “subsidized housing lease,” see note 174, above.

& Sons, Inc., 38 Ohio App.3d 79, 526 N.E.2d 321 (10th Dist. 1987).

“[T]he law construes the tenant’s continued occupancy as a proposal to lease the premises for another term.” *Capella III, L.L.C. v. Wilcox*, 190 Ohio App.3d 133, 940 N.E.2d 1026, ¶ 18 (10th Dist. 2010). *Accord Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.*, 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998).

In response to a holdover tenancy, the landlord may create a new tenancy or treat the tenant as a trespasser and evict the tenant. *K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382 (Ohio App., 8th Dist., Dec. 9, 2021); *3637 Green Road Co., Ltd. v. Specialized Component Sales Co., Inc.*, 69 N.E.3d 1083, 2016-Ohio-5324 (Ohio App., 8th Dist., 2016); *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930 (Ohio App., 2nd Dist., Sept. 27, 2013); *Capella III, L.L.C. v. Wilcox*, 190 Ohio App.3d 133, 940 N.E.2d 1026 (10th Dist. 2010); *Wengerd v. Martin*, No. 99-CA-0004, 2000 WL 354148 (Ohio App., 9th Dist., Apr. 5, 2000); *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993); *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991); *Craig Wrecking Co. v. Loewendick & Sons, Inc.*, 38 Ohio App.3d 79, 526 N.E.2d 321 (10th Dist. 1987).

“In such circumstances, the conduct of the parties determines whether an implied contract arises.” *Steiner v. Minkowski*, 72 Ohio App.3d 754, 762, 596 N.E.2d 492 (6th Dist. 1991). *Accord K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382 ¶ 18 (Ohio App., 8th Dist., Dec. 9, 2021).

For example, where a tenant notified the landlord of the tenant’s intent to vacate at the end of the lease term and, approximately seven to ten days after the lease term ended, the landlord gave the tenant a demand notice to vacate, an implied contract did not arise. *K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382 ¶ 18 (Ohio App., 8th Dist., Dec. 9, 2021).

A new tenancy is not created if the landlord proposes a rent increase for the new tenancy and the tenant expresses dissent to the rent increase.³⁴⁶ *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991); *Fredricks v. Stromberg*, No. 42601 (Ohio App., 8th Dist., Apr. 2, 1981); *Lane v. Green*, 21 Ohio App. 62, 152 N.E.2d 790 (4th Dist. 1926).

A new tenancy is not created if the landlord does not accept rent payments from

³⁴⁶ The landlord may unilaterally increase the rent for the new tenancy only if the tenant fails to express dissent to the rent increase. *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991).

the tenant and does not otherwise create the new tenancy. *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993).

“The landlord may consent to the proposed tenancy through the acceptance of rent or other conduct signaling acquiescence.” *Capella III, L.L.C. v. Wilcox*, 190 Ohio App.3d 133, 940 N.E.2d 1026, ¶ 18 (10th Dist. 2010). *Accord Wengerd v. Martin*, No. 99-CA-0004, 2000 WL 354148 (Ohio App., 9th Dist., Apr. 5, 2000); *Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.*, 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998); *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991).

After the expiration of a fixed term (e.g., one-year) lease, absent an agreement of the parties on a new lease term, the landlord’s continued acceptance of monthly rent converts the holdover tenancy to a month-to-month tenancy. *Adams v. Relmax*, 111 N.E.3d 758, 2018-Ohio-1751, ¶¶ 10,11 (Ohio App., 8th Dist., 2018); *McCain v. Brewer*, No. 2014-CA-8, 2015 WL 302829, ¶ 13 (Ohio App., 2nd Dist., Jan. 23, 2015); *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930, ¶ 42 (Ohio App., 2nd Dist., Sept. 27, 2013); *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775, ¶ 18 (Ohio App., 4th Dist., July 26, 2013); *Capella III, L.L.C. v. Wilcox*, 190 Ohio App.3d 133, 940 N.E.2d 1026, ¶ 18 (10th Dist. 2010).

Under this month-to-month tenancy, the tenant “subjects himself or herself to a renewal or continuance of the liability to pay rent as fixed by the terms and conditions of the prior lease.” *Fennell v. DeMichiei*, No. 106966, 2019 WL 350874, ¶ 19 (Ohio App., 8th Dist., Jan. 24, 2019).

Also, “generally the [other] terms and conditions of the original lease govern the holdover lease term.” *Capella III, L.L.C.*, 190 Ohio App.3d 133, ¶ 18. *Accord Wengerd v. Martin*, No. 99-CA-0004, 2000 WL 354148 (Ohio App., 9th Dist., Apr. 5, 2000); *Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.*, 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998); *Craig Wrecking Co. v. Loewendick & Sons, Inc.*, 38 Ohio App.3d 79, 526 N.E.2d 321 (10th Dist. 1987).

When the parties do not enter into a new tenancy, the holdover tenant is liable for the reasonable value of the use and occupation of the premises during the period of the

holdover.³⁴⁷ *Steiner v. Minkowski*, 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991); *Fredricks v. Stromberg*, No. 42601, 1981 Ohio App. LEXIS 10469 (Ohio App., 8th Dist., Apr. 2, 1981); *Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d 122, 255 N.E.2d 284 (8th Dist. 1970); *Lane v. Green*, 21 Ohio App. 62, 152 N.E.2d 790 (4th Dist. 1926).

This means that a holdover tenant is generally required to pay rent only for the number of days that the tenant has held over. *K&D Mgmt., L.L.C. v. Jones*, No. 110262, 2021 WL 5834382, ¶¶ 30,31 (Ohio App., 8th Dist., Dec. 9, 2021); *Ozdemir v. Boldt*, No. L-18-1022, 2018 WL 6601185, ¶ 20 (Ohio App., 6th Dist., Dec. 14, 2018); *Vill. Station Assocs. v. Geauga Co.*, 84 Ohio App.3d 448, 451, 616 N.E.2d 1201 (11th Dist. 1992). *But see Johnson v. Brown*, No. 2000-CA-76, 2003 WL 1193795, at *4 (Ohio App., 2nd Dist., Mar. 14, 2003).

A liquidated damage provision for a holdover tenant is enforceable only if it is reasonably related to actual damages. *Ozdemir v. Boldt*, No. L-18-1022, 2018 WL 6601185, ¶ 22 (Ohio App., 6th Dist., Dec. 14, 2018) (for a month-to-month tenant who held over five days, if the landlord's position that the tenant is "liable for the entire month ... been accepted, the cost would become an illegal penalty in violation of R.C. 5321.06"); *Brunswick Ltd. P'ship v. Feudo*, 171 Ohio App.3d 369, 870 N.E.2d 804 (11th Dist. 2007) (liquidated damage provision of double the pro-rated portion of the rent for the holdover period is reasonably related and thus enforceable); *Vill. Station Assocs. v. Geauga Co.*, 84 Ohio App.3d 448, 616 N.E.2d 1201 (11th Dist. 1992) (liquidated damage provision of double the entire monthly rent, where tenant held over for nine days, is not reasonably related and thus unenforceable).

5. Rent Accrual During an Eviction Action

While a landlord may not accept future rent after serving a notice to vacate (see Section II.C, above), "a tenant in occupancy during an eviction action remains liable for rent [that accrues] during the pendency of the action." *Julian Invs., Inc. v. Dudley*, No. 98-CA-85, 1999 WL 64227, at *3 (Ohio App., 2nd Dist., Feb. 12, 1999). *Accord Four Stars Serv., Inc. v. City of Akron*, No. 19124, 1999 WL 980558 (Ohio App., 9th

³⁴⁷ The holdover tenant is also liable "for damages caused by the delay in returning possession of the premises to the landlord." *Steiner v. Minkowski*, 72 Ohio App.3d 754, 762-63, 596 N.E.2d 492 (6th Dist. 1991). *Accord Tuteur v. P. & F. Enters., Inc.*, 21 Ohio App.2d 122, 130, 255 N.E.2d 284 (8th Dist. 1970). "However, those damages do not include the loss of profits." *Tuteur*, 21 Ohio App.2d at 128.

Dist., Oct. 27, 1999); *Fin. Land Corp. v. Visible Difference, Inc.*, No. 93AP-1044, 1994 WL 195024 (Ohio App., 10th Dist., May 19, 1994); *Sheridan Manor Apts. v. Carter*, No. 92-CA-4, 1992 WL 388539 (Ohio App., 4th Dist., Dec. 22, 1992); *Graham v. Pavarini*, 9 Ohio App.3d 89, 458 N.E.2d 421 (8th Dist. 1983); *Presidential Park Apts. v. Colston*, 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980).

However, a tenant is entitled to a reasonable period of time, after the conclusion of the eviction action, to pay that rent. See Section II.M, above.

6. Landlord Divested of Ownership

The tenant's rental obligation to a landlord ends on the date that the landlord is divested of ownership of the premises. *Tillimon v. Moore*, Nos. L-18-1040,1041, 2018 WL 3814842 (Ohio App., 6th Dist., Aug. 10, 2018). For example, when a sheriff's sale in a foreclosure action divests a landlord of ownership of the premises, the tenant's rental obligation to the landlord ends as of the date of that sale. *Id.*

B. Landlord Duty to Mitigate

"[L]andlords have a duty, as all parties to contracts do, to mitigate their damages caused by a breach." *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000). *Accord Frenchtown Square P'ship v. Lemstone*, 99 Ohio St.3d 254, 791 N.E.2d 417 (2003).

The duty to mitigate exists where, in response to a notice to vacate, a tenant vacates the premises before the lease or tenancy has expired. *E.g.*, *Dennis v. Morgan*, 89 Ohio St.3d 417, 732 N.E.2d 391 (2000) (notice to vacate for disturbances); *Gerber v. Lewis*, No. 70955, 1996 WL 715504 (Ohio App., 8th Dist., Dec. 12, 1996) (notice to vacate for nonpayment of rent); *Hashemi v. Jim Owen & Co.*, No. 76AP-879, 1977 Ohio App. LEXIS 8510 (Ohio App., 10th Dist., Apr. 21, 1977) (notice to vacate for nonpayment of rent).

The duty to mitigate also exists where, absent any notice to vacate, a tenant vacates the premises before the lease or tenancy has expired. *E.g.*, *Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775 (Ohio App., 4th Dist., July 26, 2013); *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000); *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998); *Angelo v. Parker*, No. 13140, 1987 WL 25776 (Ohio App., 9th Dist., Nov. 25, 1987); *Lyon v. Howard*, No. 5-86-22, 1987 WL 20290 (Ohio App., 3rd Dist., Nov. 10, 1987);

Shenk v. Green, No. C-860415, 1987 WL 11204 (Ohio App., 1st Dist., May 13, 1987).

When a tenant vacates the premises before the lease or tenancy has expired, the “[l]andlord[] mitigate[s] by attempting to rerent the property.” *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000).

The duty to mitigate requires a landlord to make reasonable efforts to obtain a new tenant for the property. *Frenchtown Square P’ship v. Lemstone*, 99 Ohio St.3d 254, 791 N.E.2d 417, ¶ 19 (2003); *Dennis v. Morgan*, 89 Ohio St. 3d 417, 419, 732 N.E.2d 391 (2000).³⁴⁸

“What constitutes ‘reasonable efforts’ is a fact-specific determination....There is no bright-line test for determining reasonableness.” *Tillimon v. Myles*, No. L-17-1032, 2018 WL 679455, ¶ 10 (Ohio App., 6th Dist., Feb. 2, 2018).

“Whether a landlord made reasonable efforts to mitigate damages is a question of fact to be resolved by the trier of fact.” *Beatley v. Schwartz*, No. 03AP-911, 2004 WL 1244360, ¶ 12 (Ohio App., 10th Dist., June 8, 2004). *Accord Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621, ¶ 62 (Ohio App., 8th Dist., 2016).

The duty to mitigate “does not require a landlord to make extraordinary efforts to find a new tenant or attempt the unreasonable or impracticable.” *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008, at *5 (Ohio App., 10th Dist., Mar. 30, 2000). *Accord Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016); *Beatley v. Schwartz*, No. 03AP-911, 2004 WL 1244360 (Ohio App., 10th Dist., June 8, 2004); *Applecrest Vill. Ltd. P’ship v. Yaple*, No. 01-CA-185, 2003 WL 346301 (Ohio App., 7th Dist., Feb. 11, 2003); *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998); *Gerber v. Lewis*, No. 70955, 1996 WL 715504 (Ohio App., 8th Dist., Dec. 12, 1996); *Lyon v. Howard*, No. 5-86-22, 1987 WL 20290 (Ohio App., 3rd Dist., Nov. 10, 1987).

It also does not require a landlord to “unquestionably accept any and all potential

³⁴⁸ See also *May v. Petrick*, No. 2009-CA-00031, 2010 WL 1452604 (Ohio App., 5th Dist., Apr. 8, 2010); *Applecrest Vill. Ltd. P’ship v. Yaple*, No. 01-CA-185, 2003 WL 346301 (Ohio App., 7th Dist., Feb. 11, 2003); *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000); *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998); *Gerber v. Lewis*, No. 70955, 1996 WL 715504 (Ohio App., 8th Dist., Dec. 12, 1996); *Bella Vista Apts. v. Arthon*, No. CA90-10-106, 1991 WL 274313 (Ohio App., 12th Dist., Dec. 23, 1991); *Lyon v. Howard*, No. 5-86-22, 1987 WL 20290 (Ohio App., 3rd Dist., Nov. 10, 1987); *Briggs v. MacSwain*, 31 Ohio App.3d 85, 508 N.E.2d 1028 (10th Dist. 1986).

tenants who present themselves in order to reduce his damages.” *Cuzzort v. Rose*, No. CA-9791, 1986 WL 12632, at *3 (Ohio App., 2nd Dist., Nov. 6, 1986). The landlord “must be mindful of the nature of a possible tenant and the impact on other existing tenants.” *Id.*

It also does not require a landlord to modify its policy of leasing available units in the order in which they become available. See *Applecrest Vill. Ltd. P’ship v. Yaple*, No. 01-CA-185, 2003 WL 346301, ¶¶ 22,23 (Ohio App., 7th Dist., Feb. 11, 2003); *Mentor Lagoons, Inc. v. Chalker*, No. 86-CVF-195 (Ohio Mun., Mentor, June 25, 1986).

“The failure to mitigate damages is an affirmative defense.” *Hines v. Riley*, 129 Ohio App.3d 379, 383, 717 N.E.2d 1133 (4th Dist. 1998). *Accord Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621, ¶ 62 (Ohio App., 8th Dist., 2016); *Beatley v. Schwartz*, No. 03AP-911, 2004 WL 1244360, ¶ 12 (Ohio App., 10th Dist., June 8, 2004); *Applecrest Vill. Ltd. P’ship v. Yaple*, No. 01-CA-185, 2003 WL 346301, ¶¶ 20,21 (Ohio App., 7th Dist., Feb. 11, 2003); *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008, at *5 (Ohio App., 10th Dist., Mar. 30, 2000). “Thus, the burden is on the tenant to prove that the landlord failed to mitigate damages.” *Hines v. Riley*, 129 Ohio App.3d at 383. *Accord Oldendick v. Crocker*, 70 N.E.3d 1033, 2016-Ohio-5621, ¶ 62 (Ohio App., 8th Dist., 2016); *Tecumseh Landing LLC v. Bonetzky*, 38 N.E.3d 1149, 2015-Ohio-2741, ¶ 35 (Ohio App., 3rd Dist., July 6, 2015).

When a landlord mitigates damages, the tenant is liable for the rent under the lease until the end of the lease term or until the premises are relet, whichever occurs first. *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000).

If a landlord relets the premises before the end of the lease term for a higher rent than the rent under the first lease, an issue exists as to whether this difference in rent amounts may reduce the first tenant’s rental obligation under the first lease. *Compare Strip Delaware, LLC v. Landry’s Rest., Inc.*, No. 2010-CA-00316, 2011 WL 3587455, ¶¶ 22-29 (Ohio App., 5th Dist., Aug. 15, 2011) (not reduced) *with Way Int’l v. Ohio Ctr.*, 3 Ohio App.3d 451, 452, 445 N.E.2d 1158 (10th Dist. 1982) (reduced).

When the landlord mitigates damages, the tenant is also liable for the costs of the landlord’s reasonable efforts to re-rent the property. For example, the landlord may recover the reasonable cost of newspaper advertisements that announce the availability of the rental unit. *Carr v. Ed Stein Realtors*, 10 Ohio App.3d 242, 461 N.E.2d 930 (9th Dist. 1983); *Alba v. Lockhart*, No. 94-CVI-140 (Ohio County Ct., Jefferson Cty., Mar. 15, 1995).

A lease provision stipulating the amount of these re-renting expenses is an unenforceable penalty. *Beatley v. Schwartz*, No. 03AP-911, 2004 WL 1244360 (Ohio App., 10th Dist., June 8, 2004); *Crest Mgmt., Inc. v. Kanonju*, No. 15848, 1993 WL 107839 (Ohio App., 9th Dist., Apr. 14, 1993). “[I]n order to be a valid liquidated damage clause rather than an invalid penalty, the damages for breach need to be ‘uncertain as to amount and difficult of proof.’” *Kanonju*, 1993 WL 107839, at *1. These re-renting expenses are neither uncertain as to amount nor difficult of proof. *Beatley*, 2004 WL 1244360, ¶ 26; *Kanonju*, 1993 WL 107839, at *1,2.

One appellate court has held that the landlord’s duty to mitigate damages also applies where a tenant remains in occupancy of the rental premises without making rent payments for an extended period. *May v. Petrick*, No. 2009-CA-00031, 2010 WL 1452604 (Ohio App., 5th Dist., Apr. 8, 2010). In *May*, the tenant failed to make rent payments for 30 months. The court held that the landlord had a duty to commence an eviction action to mitigate damages. It thereupon upheld the trial court’s decision that awarded the landlord a money judgment for unpaid rent for only six of those months, based on the landlord’s breach of the duty to mitigate damages.

C. Defense Issues

1. Collateral Estoppel

Because the doctrine of collateral estoppel applies to an eviction action (see Section I.M.8, above), if a court finds nonpayment of rent when ruling on an eviction claim, this finding is binding on the parties when the court later rules on the landlord’s monetary claim for nonpayment of rent. *Great Lakes Mall, Inc. v. Deli Table, Inc.*, No. 93-L-154, 1994 WL 587559 (Ohio App., 11th Dist., Sept. 16, 1994); *Chan v. Birch*, No. 15249, 1992 WL 64190 (Ohio App., 9th Dist., Mar. 25, 1992).

2. Compulsory Counterclaim/Res Judicata

When a tenant brings a security deposit claim, the landlord’s claim for unpaid rent due at that time is a compulsory counterclaim to the tenant’s claim. See Section XVI.H.5.a, above.

Likewise, when a tenant brings a claim under R.C. 5321.04 or 5321.15, the landlord’s claim for unpaid rent due at that time is a compulsory counterclaim to the tenant’s claim. *E.g., Lujan v. Smith*, No. L-83-197, 1983 WL 6990 (Ohio App., 6th Dist., Nov. 11, 1983).

Therefore, if a tenant brings and prevails on one of these claims, and the landlord does not file a counterclaim for unpaid rent due at that time, under the doctrine of res judicata, the landlord may not thereafter bring an action against the tenant for the unpaid rent. *Lujan v. Smith*, No. L-83-197, 1983 WL 6990 (Ohio App., 6th Dist., Nov. 11, 1983) (R.C. 5321.04 claim and R.C. 5321.15 claim); *Thirion v. Tutoki*, 94 Ohio Misc.2d 77, 703 N.E.2d 378 (Ohio Mun., Warren, 1998) (security deposit claim).

3. Security Deposit as Set-Off

One court has held that a tenant must file a counterclaim for the return of the security deposit in order to use the security deposit as a set-off against the landlord's unpaid rent claim. *Salem v. Roberts*, No. 94-CA-28, 1996 WL 131160 (Ohio App., 4th Dist., Mar. 18, 1996). But this holding seems to conflict with Ohio common law. See Section II.Q, above.

4. Untimely Rent Refused

A landlord's prior refusal to accept an untimely tender of rent does not waive the landlord's right to assert a claim for that rent. *Korom v. Pesek*, No. 57559, 1990 WL 130909 (Ohio App., 8th Dist., Sept. 13, 1990); *Real Prop. Servs. Corp. v. Bonen*, No. 93-CVG-7804 (Ohio Mun., Marion Cty., May 26, 1993).

5. Unaccrued Rent

"Generally, a landlord may not recover unaccrued rent because such recovery ignores the possibility that the landlord could recover rent from a new tenant." *Schulz v. Grimes*, No. 91-CA-3, 1992 WL 24883, at *7 (Ohio App., 2nd Dist., Feb. 11, 1992). *Accord Gen. Dev. Corp. v. Wilbur-Rogers Atlanta Corp.*, 28 Ohio App.2d 35, 38, 273 N.E.2d 908 (1st Dist. 1971).

In addition, "termination [of the lease or tenancy] does not operate as a windfall for the landlord – the remaining rents under the agreement do not come due all at once." *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000).

This rule does not deprive landlords of an adequate remedy to recover the rents that accrue after an eviction judgment ("future rent"). An eviction judgment in favor of the landlord does not bar the landlord from bringing a separate action against the tenant for the future rent, if and when it becomes due and owing. *Dennis v. Morgan*, 89 Ohio St.3d 417, 419, 732 N.E.2d 391 (2000); *Gen. Dev. Corp. v. Wilbur-Rogers Atlanta Corp.*, 28 Ohio App.2d 35, 37, 273 N.E.2d 908 (1st Dist. 1971). For additional

discussion on issues related to a separate action for future rent, see Sections I.E.2.e and I.M.8, above.

6. Preclusion of Additional Claim for Unpaid Security Deposit

When a tenant has violated an obligation to pay a security deposit, at the end of the tenancy, the landlord may not recover both the unpaid security deposit and the full amount of any unpaid rent (or property damage) claim. *Wayne Mgmt. Co. v. McGill*, No. 81-CA-57, 1982 WL 3741 (Ohio App., 2nd Dist., June 2, 1982); *Hall v. Leonard*, No. 94-CG-667 (Ohio Mun., Marietta, Mar. 7, 1995).

7. Preclusion of Additional Claim for Late Payment Fee

When a landlord is awarded a judgment for unpaid rent for a month, the landlord cannot be awarded a judgment for a late payment fee for that month. *200 W. Apts. v. Foreman*, No. 66107, 1994 WL 505271 (Ohio App., 8th Dist., Sept. 15, 1994); *Siara Mgmt. v. Nedley*, No. 61433, 1992 WL 292248 (Ohio App., 8th Dist., Oct. 15, 1992); *Luca v. Volunteers of Am., Cleveland, Ohio Post*, No. 3756, 1985 WL 10731 (Ohio App., 9th Dist., June 19, 1985); *Carr v. Ed Stein Realtors*, 10 Ohio App.3d 242, 461 N.E.2d 930 (9th Dist. 1983).

In these circumstances the late payment fee is a penalty and thus unenforceable. *Id.*

One trial court decision, which denied a late payment fee award in these circumstances, opted not to decide whether the late fee was an unenforceable penalty. *Allman v. Thorne*, No. 2006-CVI-000629 (Ohio Mun., Franklin Cty., Aug. 10, 2006). Instead, it concluded:

Late fees are designed to compensate the landlord for the loss of use of the rent they were due for whatever period they were deprived of it. In this case, however, the recovery of the full amount due, plus interest from the date it was due, will adequately accomplish those ends. The court does not, therefore, separately award a judgment for late fees.

A second trial court decision used similar reasoning in its denial of a late payment fee award in these circumstances. *Jordan v. McShan*, No. 91-CVG-20057 (Ohio Mun., Cleveland, Hous. Div., Apr. 9, 1992). It concluded:

Late charges, however, are, as the name implies, charges assessed when a landlord chooses to accept late rent, presumably to compensate the landlord for the inconvenience of processing late payments. In this case, however, rent was simply unpaid. To assess a late charge of Thirty-Five Dollars (\$35.00) for each of those months that rent was unpaid would be tantamount to granting plaintiff a rent increase of Thirty-Five Dollars (\$35.00) for each of those months. The court is unwilling to do so. Accordingly, plaintiff's claim for unpaid late charges is denied.

A third trial court decision denied a late payment fee award in these circumstances because the landlord failed to prove his actual damages or foreseeable losses arising from the nonpayment. *Sloan v. Greathouse*, No. 11-CVG-04935 (Ohio Mun., Cleveland, Hous. Div., Jan. 17, 2012). The court denied the late fee award on two independent grounds. First, absent proof of these losses, the court could "not conclude that the fee was in reasonable proportion to the loss which might be sustained." *Id.*, ¶ 16. Second, absent proof of these damages, the court could not "find that the actual damages plaintiff likely would suffer would be uncertain as to amount or difficult to prove." *Id.*, ¶ 17.

8. Noncompliance with R.C. 5321.16(B) Itemization Rule

A landlord's failure to comply with the R.C. 5321.16(B) written itemization requirement does not waive a landlord's right to bring a monetary claim (or counterclaim) for unpaid rent or property damage. *Trimble v. Rossi*, No. 108683, 2020 WL 4218808 (Ohio App., 8th Dist., July 23, 2020) (property damage); *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930 (Ohio App., 2nd Dist., Sept. 27, 2013) (property damage); *Knipp v. Sadler*, No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009) (rent and property damage); *Adams v. Davenport*, No. 2005-CA-108, 2006 WL 2578852 (Ohio App., 2nd Dist., Sept. 8, 2006) (rent and property damage); *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243 (Ohio App., 4th Dist., Nov. 14, 2001) (property damage); *Quinn v. Humphrey*, No. 92-L-141, 1993 WL 262582 (Ohio App., 11th Dist., June 30, 1993) (property damage); *Scott v. Rice*, No. 9-92-48, 1993 WL 46480 (Ohio App., 3rd Dist., Feb. 11, 1993) (property damage); *Sherwin v. Cabana Club Apts.*, 70 Ohio App.2d 11, 433 N.E.2d 932 (8th Dist. 1980) (property damage).

9. Preclusion of Award of Both Liquidated and Actual Damages

When a lease contains a liquidated damages provision for a breach of the lease, a court may not award both liquidated damages and actual damages. *Mentor Lagoons, Inc. v. Laity*, No. 10-184, 1985 WL 9999 (Ohio App., 11th Dist., May 24, 1985). “If a valid stipulation is made in the contract for payment of liquidated damages, the amount stipulated becomes the measure of damages. No further recovery may be had by the complaining party.” *Id.*, 1985 WL 9999, at *1. *Accord Carr v. Ed Stein Realtors*, 10 Ohio App.3d 242, 243, 461 N.E.2d 930 (9th Dist. 1983) (“the forfeiture of the deposit ... imposed in addition to the actual damage suffered is clearly an unlawful penalty”).

10. Fictitious Name (Landlord)

If the name of the landlord in a lease is a fictitious name, and if the landlord failed to register the fictitious name with the Secretary of State under R.C. 1329.01, the landlord may not bring an action under the lease for unpaid rent. *Ebner v. Caudill*, 93 Ohio App.3d 785, 639 N.E.2d 1231 (10th Dist. 1994); *Frate v. Al-Sol, Inc.*, 131 Ohio App.3d 283, 722 N.E.2d 185 (8th Dist. 1999).

The case law is split on whether, in these circumstances, the landlord may maintain the action in the fictitious name if the landlord has registered the fictitious name after the filing of the action but before the entry of the final judgment. See Section II.D, below.

D. Practice and Procedure Issues

1. Default Judgment, Complaint for Eviction Claim and Monetary Claim

a. Application of Civil Rule 55

When a landlord’s complaint includes an eviction claim and a monetary claim for unpaid rent (or property damage), the tenant’s presence at the eviction hearing constitutes an appearance in the action for Civil Rule 55(A) purposes. *Koob v. Rue*, 73 Ohio App.3d 418, 597 N.E.2d 550 (2nd Dist. 1992); *Newlon v. Tallman*, No. CA-2520, 1988 WL 17835 (Ohio App., 5th Dist., Jan. 22, 1988); *Rader v. Swanson*, No. 80AP-954, 1981 WL 3191 (Ohio App., 10th Dist., May 14, 1981); *Harris v. Hampton*,

No. 2005-CVG-43533 (Ohio Mun., Franklin Cty., Mar. 24, 2006).

Therefore, in such cases, if the landlord files an application for default judgment on the monetary claim, the tenant must be served with written notice of the application at least seven days prior to the hearing on the application. Ohio R. Civ. P. 55(A). See *Koob*, 73 Ohio App.3d at 420-21; *Newlon*, 1988 WL 17835, at *1; *Rader*, 1981 WL 3191, at *1-2.

“Without the requisite notice and hearing under Civ.R. 55(A), a default judgment is void and shall be vacated upon appeal.” *Hartmann v. Ohio Crime Victims Reparations Fund*, 138 Ohio App.3d 235, 238, 741 N.E.2d 149 (10th Dist. 2000). *Accord AMCA Int’l Corp. v. Carlton*, 10 Ohio St.3d 88, 461 N.E.2d 1282 (1984). See also *Rader v. Swanson*, No. 80AP-954, 1981 WL 3191 (Ohio App., 10th Dist., May 14, 1981) (reversed denial of Civil Rule 60(B) motion).

b. Application of Civil Rule 54(C)

When a landlord’s complaint includes an eviction claim and a monetary claim for unpaid rent (or property damage), Civil Rule 54(C) applies to the monetary claim. *Masny v. Vallo*, No. 84983, 2005 WL 1048237 (Ohio App., 8th Dist., May 5, 2005); *Buckley v. Lucas*, No. 98-CA-14, 1999 WL 436838 (Ohio App., 5th Dist., June 8, 1999); *Borges v. Everdry Waterproofing of Wapakoneta, Inc.*, 95 Ohio App.3d 175, 642 N.E.2d 16 (3rd Dist. 1994); *Glazier v. Hall*, No. 1076, 1994 WL 477994 (Ohio App., 5th Dist., Aug. 18, 1994);³⁴⁹ *Wright v. Miller*, No. 752, 1991 WL 37926 (Ohio App., 4th Dist., Mar. 11, 1991); *Tribby v. Gudzinias*, No. 90-T-4403, 1991 WL 18673 (Ohio App., 11th Dist., Feb. 15, 1991); *Tolle v. Morris*, 90AP-040034, 1990 WL 163807 (Ohio App., 5th Dist., Oct 18, 1990); *Doan Gardens, Ltd. v. Beverly*, No. 56551, 1989 WL 65646 (Ohio App., 8th Dist., June 15, 1989); *Cuyahoga Metro. Hous. Auth. v. Coley*, No. 2001-CVG-19335 (Ohio Mun., Cleveland, Hous. Div., May 2, 2003, and Jan. 29, 2004); *Forte v. Bellan*, No. 91-CVG-18631 (Ohio Mun., Cleveland, Hous. Div., Oct. 28, 1991).

When the complaint demands both a specified amount for past due rent and “further rental amounts that may accrue during the pendency of this action,” the amount of the default judgment for the landlord may include the past due rent specified plus the “rent pro-rated to the date of restitution.” *Buckley v. Lucas*, No. 98-CA-14,

³⁴⁹ The *Glazier* decision expressly overrules the court’s prior holding on this issue in *Pietro v. Hershberger*, No. 90AP-110065, 1991 WL 76473 (Ohio App., 5th Dist., May 2, 1991).

1999 WL 436838, at *2 (Ohio App., 5th Dist., June 8, 1999).

When the complaint demands both a specified amount for past due rent and a specified amount per month for ongoing rent, the amount of the default judgment for the landlord may include the respective amounts specified for past due rent and ongoing rent up to the date of restitution. *Cuyahoga Metro. Hous. Auth. v. Coley*, No. 2001-CVG-19335 (Ohio Mun., Cleveland, Hous. Div., May 2, 2003, and Jan. 29, 2004). It may not include, for any month during the pendency of the action, a rental amount more than the specified ongoing rent. *Id.*

When the complaint demands only a specified amount for past due rent and late payment fees and the filing fee, the amount of the default judgment for the landlord may not include any rent that accrues during the pendency of the action. *Masny v. Vallo*, No. 84983, 2005 WL 1048237 (Ohio App., 8th Dist., May 5, 2005).

A tenant may file a Civil Rule 60(B)(5) motion to enforce these Civil Rule 54(C) limits. *Masny v. Vallo*, No. 84983, 2005 WL 1048237, ¶ 20 (Ohio App., 8th Dist., May 5, 2005). A “trial court’s failure to comply with Civ.R. 54(C) constitutes a sufficient ground under Civ.R. 60(B)(5) justifying relief from judgment.” *Id.*

2. Joinder of Parties, Civil Rule 19(A)

a. Co-Tenant Owners

If the premises are owned by two or more tenants in common, under Civil Rule 19(A), all of the owners are necessary parties in an action against a tenant for unpaid rent. *Peters v. Durroh*, 28 Ohio App.2d 245, 277 N.E.2d 69 (10th Dist. 1971). *Cf. Oda v. Davis*, 81 Ohio App.3d 555, 611 N.E.2d 933 (2nd Dist. 1992) (managing partner and partnership are co-owners of unpaid rent claim; under Civil Rules 17(A) and 19(A), managing partner may not bring the claim without joinder of the partnership or all other partners).

A failure to join a co-tenant owner (“absent owner”) creates a risk that the absent owner will later assert the absent owner’s own claim against the tenant for unpaid rent. *Peters v. Durroh*, 28 Ohio App.2d 245, 277 N.E.2d 69 (10th Dist. 1971). *Cf. Carter v. Davis*, No. 87-CVG-1420-29 (Ohio Mun., East Cleveland, Aug. 22, 1987) (right of a co-tenant to demand the rent when another co-tenant fails to demand and collect the rent).

b. Guarantor of Lease

A guarantor of a tenant’s lease obligation to pay rent is not an indispensable party,

under Civil Rule 19(A), to the landlord's claim for rent against the tenant. *Fed. Knitting Mills Ltd. v. Harper*, 157 Ohio Misc.2d 42, 930 N.E.2d 879 (Ohio Mun., Cleveland, 2010).

The tenant and the guarantor are jointly and severally liable. *Id.* A landlord's judgment against a tenant on a rent claim is not res judicata against a guarantor, when the landlord has not made the guarantor a party to the action. *Id.*

However, the guarantor has a due process right to notice and hearing on the underlying unpaid rent claim, before being held liable for any unpaid rent. *Id.* A lease provision that waives the guarantor's right to notice of the tenant's rent delinquency does not waive this due process notice and hearing right. *Id.*

3. Interest Award on Judgments

The appellate districts are split on whether a residential lease may establish a contractual interest rate for judgments that is higher than the statutory interest rate under R.C. 1343.03. *Compare Meadowbrook Dev. Corp. v. Roberts*, No. 79747, 2001 WL 1654540 (Ohio App., 8th Dist., Dec. 27, 2001) (rejects an 18% interest rate and applies the statutory rate) *with Buchenroth v. Adkins*, 7 N.E.3d 621, 2014-Ohio-257 (Ohio App., 3rd Dist., 2014) (upholds an 18% interest rate).

R.C. Chapter 5321 does not expressly address the permissible interest rate for judgments or whether a residential lease may establish a specific interest rate for judgments. *See Meadowbrook Dev. Corp. v. Roberts*, No. 79747, 2001 WL 1654540, at *4 (Ohio App., 8th Dist., Dec. 27, 2001).

XVIII. Landlord Claim for Property Damage, R.C. 5321.05(C)

A. Introduction

When a tenant fails to maintain or use the premises in compliance with the tenant's R.C. 5321.05 obligations,³⁵⁰ the landlord may bring an action against the tenant under R.C. 5321.05(C) for actual damages, reasonable attorney's fees, and, where applicable, injunctive relief to access the premises.

The landlord has “the burden to prove [tenant's] negligent or intentional conduct by a preponderance of the evidence....[The tenant does] not have to prove that she did *not* violate the statute or the terms of the lease.” *Douglas v. Campost Props., LLC*, No. 2016-CV-102094, slip op. at 2 (Ohio Mun., Elyria, July 21, 2020).

B. Normal Wear and Tear

In an R.C. 5321.05(C) claim, the tenant is not liable for normal wear and tear to the premises. *Hensel v. Childress*, 145 N.E.3d 1159, 2019-Ohio-3934 (Ohio App., 1st Dist., 2019); *Warner v. Evans*, No. 27536, 2015 WL 3398400 (Ohio App., 9th Dist., May 27, 2015); *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775 (Ohio App., 4th Dist., July 26, 2013); *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299 (Ohio App., 10th Dist., Jan. 23, 2007); *Bibler v. Nash*, No. 5-05-09, 2005 WL 2335191 (Ohio App., 3rd Dist., Sept. 26, 2005); *Johnson v. Brown*, No. 2002-CA-76, 2003 WL 1193795 (Ohio App., 2nd Dist., Mar. 14, 2003); *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243 (Ohio App., 4th Dist., Nov. 14, 2001); *Cuzzort v. Rose*, No. CA-9791, 1986 WL 12632 (Ohio App., 2nd Dist., Nov. 6, 1986); *Mentor Lagoons, Inc. v. Mayor*, No. 10-180, 1985 WL 7807 (Ohio App., 11th Dist., Mar. 1, 1985); *Konig v. Bella Dora Mgmt., Inc.*, 9 Ohio Misc.2d 7, 458 N.E.2d 477 (Ohio Mun., Akron, 1983).

For example, “[w]hen a tenant vacates a property after a tenancy of eleven (11) years, normal wear and tear typically requires the carpeting to be replaced and the interior walls to be painted.” *Elsayed v. Miamisburg by the Mall*, No. 28918, 2021 WL 2028661, ¶ 23 (Ohio App., 2nd Dist., May 21, 2021) (adopting trial court's statement).

³⁵⁰ For a discussion on the tenant's R.C. 5321.05(A) obligations, see Section VII.D, above. For a discussion on the tenant's R.C. 5321.05(B) obligations, see Section VII.E, above.

And “[g]eneral cleaning costs may not be recovered as damages unless they are over and above ordinary wear and tear.” *Schaedler v. Shinkle*, No. CA99-09-025, 2000 WL 1283776, at *3 (Ohio App., 12th Dist., Sept. 11, 2000). *Accord May v. Metcalf*, No. 11-CA-8, 2011 WL 5625805, ¶ 33 (Ohio App., 5th Dist., Nov. 15, 2011); *McNeill v. Wasserbauer*, No. 72846, 1998 WL 323592, at *3 (Ohio App., 8th Dist., June 18, 1998). Also, “[i]t is doubtful that any court would permit a landlord to impose a standard of ‘professional’ cleaning on a tenant in a residential rental property.” *Douglas v. Campost Props., LLC*, No. 2016-CV-102094, slip op. at 4 (Ohio Mun., Elyria, July 21, 2020).

Normal wear and tear includes “injuries to the building due to the gradual deterioration which results from use, lapse of time, and the operation of the elements” and excludes “injuries from the tenant’s improper or negligent use of the premises.” 49 Am. Jur. 2d Landlord and Tenant § 973 at 946 (1970).

“[O]ne of the critical questions when determining if items are in need of repair due to normal wear and tear, or due to tenant conduct, is whether the items were originally installed or repaired in a workmanlike way.” *Brown v. Williams*, No. 2012-CVG-17491, slip op. at 4 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 2014, and May 2, 2014). In *Brown*, the court held that “Plaintiff [landlord] had not met her burden of proving that it was Defendant’s [tenant’s] conduct, and not the poor quality of repairs, that caused the problem.” *Id.*

Some courts have used the following guideline: “If damage is not of the type specified in R.C. 5321.05 or the lease, it will normally be considered ordinary wear and tear.” *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243, at *3 (Ohio App., 4th Dist., Nov. 14, 2001). *Accord Elsayed v. Miamisburg by the Mall*, No. 28918, 2021 WL 2028661, ¶ 33 (Ohio App., 2nd Dist., May 21, 2021); *Levine v. Kellogg*, 153 N.E.3d 663, 2020-Ohio-1246, ¶ 40 (Ohio App., 10th Dist., 2020); *Estie Inv. Co. v. Braff*, No. 2017-L-172, 2018 WL 5433223, ¶ 25 (Ohio App., 11th Dist., Oct. 29, 2018).

But no general rule categorically defines the limits of normal wear and tear. “When determining ordinary wear and tear, the court must look to the circumstances of each case.” *Hensel v. Childress*, 145 N.E.3d 1159, 2019-Ohio-3934, ¶ 26 (Ohio App., 1st Dist., 2019).

The court decisions summarized below provide some guidance on the scope of normal wear and tear.

Elsayed v. Miamisburg by the Mall, No. 28918, 2021 WL 2028661 (Ohio App., 2nd Dist., May 21, 2021)

Condition/repair: sealing concrete beneath carpet due to pet stain, flea treatments, and extra painting due to cat urine and scratches. Court decision (affirms): each of these items constituted damage to the premises beyond normal wear and tear.

Tillimon v. Tate, No. L-18-1237, 2019 WL 3383890 (Ohio App., 6th Dist., July 12, 2019)

Condition/repair: changing and re-keying the locks. Court decision (affirms): the cost for these items is part of the normal cost of doing business and do not constitute damage beyond normal wear and tear.

Wead v. Wade, No. 27204, 2017 WL 1806820 (Ohio App., 2nd Dist., May 5, 2017)

Condition/repair: dogs and cats urinated on the carpet, requiring replacement of the carpet and pad. Court decision (reverses): the carpet was only two years old and in good condition at the start of the tenancy, and thus would not normally be replaced at the end of this one-month tenancy.

Tillimon v. Richardson-Long, No. L-16-1055, 2017 WL 169267 (Ohio App., 6th Dist., Jan. 13, 2017)

Condition/repair: cleaned carpet and trash removal. Court decision: affirms denial of carpet cleaning cost, since no abnormal dirt or stains and need for carpet cleaning after two years was result of normal wear and tear; reverses denial of trash removal cost, since two truckloads of garbage does not constitute normal wear and tear.

Riggle v. McFadden, No. 08-CA-0007, 2008 WL 4766737 (Ohio App., 9th Dist., Nov. 3, 2008)

Condition/repair: cleaned the apartment and replaced the carpet due to extensive damage by cigarette smoke, including a pervasive odor, yellow stains on the walls and registers, and burn marks on the carpet. Court decision (affirms): these items constituted damage to the premises beyond normal wear and tear.

Schaedler v. Shinkle, No. CA99-09-025, 2000 WL 1283776 (Ohio App., 12th Dist., Sept. 11, 2000)

Condition/repair: cleaned trailer, shampooed carpet, and replaced torn paper window shade. Court decision (affirms): condition of the trailer, including the carpet, did not constitute damage to the premises beyond normal wear and tear.

VanHoose v. McGee, No. CA97-04-008, 1997 WL 598127 (Ohio App., 12th Dist., Sept. 29, 1997)

Condition/repair: replaced toilet paper holder, shampooed carpet, and tested gas

fixtures. Court decision (affirms): only the need to replace the toilet paper holder constituted damage to the premises beyond normal wear and tear.

Fornof-Lippencott v. Powell, No. 94-CA-11, 1995 WL 19127 (Ohio App., 2nd Dist., Jan. 18, 1995)

Condition/repair: (1) damage to the carpet, woodwork, and doors caused by the tenant's dogs, (2) clogged drain in the dishwasher, (3) damaged toilet seat, and (4) some missing ductwork that served as a vent for the dryer in the basement. Court decision (reverses in part): damage to the carpet, woodwork, and doors constituted damage to the premises beyond normal wear and tear; damage to the dishwasher, toilet seat, and ductwork did not constitute damage to the premises beyond normal wear and tear.

Quinn v. Humphrey, No. 92-L-141, 1993 WL 262582 (Ohio App., 11th Dist., June 30, 1993)

Condition/repair: trash throughout unit, filthy stove, hole in plaster wall and screen door, torn wallpaper, and broken water faucet. Court decision (reverses): each of these items constituted damage to the premises beyond normal wear and tear.

Wilhelm v. Ison, No. 92-CA-97, 1993 WL 76961 (Ohio App., 2nd Dist., Mar. 15, 1993)

Condition/repair: cleaned carpet. Court decision (reverses): condition of the carpet did not constitute damage to the premises beyond normal wear and tear.

Scott v. Rice, No. 9-92-48, 1993 WL 46480 (Ohio App., 3rd Dist., Feb. 11, 1993)

Condition/repair: painted two walls due to crayon marks on the walls. Court decision (affirms): crayon marks on the walls constituted damage to the premises beyond normal wear and tear.

Swartz v. Luker, No. CA91-07-051, 1991 WL 278243 (Ohio App., 12th Dist., Dec. 30, 1991)

Condition/repair: cleaned and painted walls and baseboards. Court decision (affirms): none of these items constituted damage to the premises beyond normal wear and tear.

Saam v. Mosser, No. S-86-25, 1986 WL 15255 (Ohio App., 6th Dist., Dec. 24, 1986)

Condition/repair: defrosted refrigerator, painted the apartment, and replaced three light bulbs. Court decision (affirms): none of these items constituted damage to the premises beyond normal wear and tear.

Brown v. Williams, No. 2012-CVG-17491, slip op. at 4 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 2014, and May 2, 2014)

Condition/repair: painted interior walls and hardwood floors in high traffic areas where paint had come off the floor, secured ceiling tiles that were sagging due to age, resealed

two toilets that had come loose over time, and re-attached ceramic soap dish that had come loose over time. Court decision: none of these items constituted damage to the premises beyond normal wear and tear.

Gonzalez v. Gonzalez, No. 2010-CVG-9940 (Ohio Mun., Cleveland, Hous. Div., Aug. 22, 2011)

Condition/repair: carpet dirty, stove dirty and burners replaced. Court decision: none of these items constituted damage to the premises beyond normal wear and tear.

Johnson v. Morelli Props. LLC, No. 2008-CVF-023275 (Ohio Mun., Franklin Cty., Oct. 7, 2009)

Condition/repair: burned out light bulbs and broken steps. Court decision: both items constituted damage to the premises beyond normal wear and tear.

Williams v. Wright, No. 2000-CVG-01040 (Ohio Mun., Marietta, Aug. 15, 2001)

Condition/repair: removed trash, painted and wallpapered due to marks on the walls, and replaced carpet due to “burning holes” in the carpet. Court decision: all of these items constituted damage to the premises beyond normal wear and tear.

C. Measure of Damages

1. Real Property

In a landlord’s claim against a tenant for damage to the premises, the measure of damages, where restoration is feasible, is the reasonable cost of restoration, plus reasonable compensation for the loss of the use of the property. *Martin v. Design Constr. Servs., Inc.*, 121 Ohio St.3d 66, 902 N.E.2d 10 (2009). See also *Booth v. Duffy Homes, Inc.*, 185 Ohio App.3d 260, 923 N.E.2d 1175 (10th Dist. 2009) (applies *Martin*).

The landlord “need not prove a diminution in the market value of the property in order to recover the reasonable cost of restoration, but either party may offer evidence of diminution of market value of the property as a factor bearing on the reasonableness of the cost of restoration.”³⁵¹ *Martin*, 121 Ohio St.3d 66, ¶ 24.

Under this rule, “restoration costs and loss of use of the property are separate and distinct types of damages ... and the absence of one does not preclude recovery for the

³⁵¹ Under the owner opinion rule, the owner (see Section XVIII.F.3, below) and possibly the tenant (see Section IX.A.11.b, above) may give opinion testimony on the market value of the premises pre-damage and post-damage.

other.” *Henderson v. Spring Run Allotment*, 99 Ohio App.3d 633, 641, 651 N.E.2d 489 (9th Dist. 1994).

If an owner elects not to restore the real property, the owner can “still show entitlement to damages based on proof that the property damage (beyond normal wear and tear) resulted in a reduction in the market value of the property.” *Levine v. Kellogg*, 153 N.E.3d 663, 2020-Ohio-1246, ¶ 49 (Ohio App., 10th Dist., 2020). *Accord Cubbedge-Parker v. Dillard*, No. L-15-1245, 2016 WL 3219274, ¶ 10 (Ohio App., 6th Dist., June 10, 2016).

2. Personal Property

As a general rule, the measure of damages for damage to personal property is the difference between its market value immediately before and immediately after the damage. *Falter v. City of Toledo*, 169 Ohio St. 238, 158 N.E.2d 893 (1959); *Gibson v. Shephard*, 87 N.E.3d 846, 2017-Ohio-1157 (Ohio App., 8th Dist., 2017) (tenant claim against landlord); *Warner v. Zuccola*, No. 53070, 1987 WL 30379 (Ohio App., 8th Dist., Dec. 24, 1987) (landlord claim against tenant); *Cuzzort v. Rose*, No. CA-9791, 1986 WL 12632 (Ohio App., 2nd Dist., Nov. 6, 1986) (landlord claim against tenant); *Cooper v. Feeney*, 34 Ohio App.3d 282, 518 N.E.2d 46 (12th Dist. 1986) (tenant claim against landlord); *Woodard v. Walker*, No. 78AP-495, 1979 Ohio App. LEXIS 12212 (Ohio App., 10th Dist., Feb. 27, 1979) (tenant claim against landlord).

If the party who asserts the claim does not prove the difference between the value of the personal property pre-damage and post-damage, the party has failed to prove damages under the general rule.³⁵² *E.g.*, *Warner*, 1987 WL 30379, at *2; *Cuzzort*, 1986 WL 12632, at *2-3; *Woodard*, 1979 Ohio App. LEXIS, at *7.

When personal property is totally destroyed, the measure of damages is the reasonable market value of the property immediately before its destruction, less any salvage value. *Falter v. City of Toledo*, 169 Ohio St. 238, 158 N.E.2d 893 (1959); *Oak Hill Inv. Co. v. Jablonski*, 78 Ohio App.3d 643, 605 N.E.2d 998 (6th Dist. 1992) (landlord claim against tenant); *Cooper v. Feeney*, 34 Ohio App.3d 282, 518 N.E.2d 46 (12th Dist. 1986) (tenant claim against landlord).

³⁵² A landlord may give opinion testimony on the value of the landlord’s personal property pre-damage and post-damage under the owner opinion rule. See Section XVIII.F.3, below. Likewise, a tenant may give opinion testimony on the value of the tenant’s personal property pre-damage and post-damage under the owner opinion rule. See Section IX.A.11.b, above.

When personal property does not have a market value or its market value clearly does not reflect the injury suffered by the owner, the court may use a standard of value to the owner. *Bishop v. East Ohio Gas Co.*, 143 Ohio St. 541, 56 N.E.2d 164 (1944); *Cooper v. Feeney*, 34 Ohio App.3d 282, 518 N.E.2d 46 (12th Dist. 1986) (tenant claim against landlord); *Craft v. Oney*, No. 8766, 1984 WL 4060 (Ohio App., 2nd Dist., Oct. 17, 1984) (tenant claim against landlord). “This value [to the owner] is determined via consideration of a number of factors including value to the owner, original cost, replacement cost, salvage value, if any, and fair market value at the time of loss.” *Cooper*, 34 Ohio App.3d at 284.

Also, in some circumstances, the measure of damages for damage to personal property may be the cost of restoring the property to its condition before the damage occurred. *Adcock v. Rollins Protective Servs. Co.*, 1 Ohio App.3d 160, 440 N.E.2d 548 (1st Dist. 1981). *E.g.*, *Kenwood Courts Apts. v. Williams*, No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991) (tenant claim against landlord).

D. Reasonable Attorney’s Fees

In an R.C. 5321.05(C) claim, a landlord generally may recover reasonable attorney’s fees if the tenant violated an R.C. 5321.05 obligation. *E.g.*, *Hensel v. Childress*, 145 N.E.3d 1159, 2019-Ohio-3934 (Ohio App., 1st Dist., 2019). *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775 (Ohio App., 4th Dist., July 26, 2013); *Zimmerman v. Elmore*, No. 47724, 1984 WL 5119 (Ohio App., 8th Dist., June 28, 1984); *Katchmer v. Bishop*, No. 90-CVG-34263 (Ohio Mun., Cleveland, Hous. Div., Oct. 3, 1991).

But the case law is split on whether the tenant’s liability for attorney’s fees under R.C. 5321.05(C) is mandatory or lies within the discretion of the trial court. *Compare Kinn v. Showe Mgmt. Corp.*, No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002) (mandatory) with *Fiffick v. Showe Mgmt.*, No. 2005-P-0011, 2005 WL 3610442 (Ohio App., 11th Dist., Dec. 29, 2005) (discretionary).

For post-judgment work, the landlord’s entitlement to attorney’s fees under R.C. 5321.05(C) lies within the sound discretion of the trial court. *Chapman v. Smith*, No. L-81-344, 1982 WL 6883 (Ohio App., 6th Dist., Apr. 16, 1982).

Also, in two circumstances, the landlord cannot recover attorney’s fees under R.C. 5321.05(C), notwithstanding the tenant’s R.C. 5321.05 violation.

One is where: (1) an action includes the landlord’s R.C. 5321.05(C) claim and the tenant’s R.C. 5321.16(C) security deposit claim, (2) the amount of the R.C. 5321.05(C)

judgment for the landlord is less than the portion of the security deposit that the landlord retained, and (3) the tenant is thus awarded an R.C. 5321.16(C) judgment. *Danello v. Holyko*, No. 50339, 1986 WL 3471 (Ohio App., 8th Dist., Mar. 20, 1986).

The second is where: (1) the amount of the landlord's R.C. 5321.05(C) claim (and judgment) is less than the tenant's security deposit, and (2) the tenant forfeited the security deposit without dispute. *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998); *Snapp v. Rossiter*, No. 14-CVF-00579 (Ohio Mun., Cambridge, Aug. 27, 2015) (applying *Hines*).

The determination on the amount of the attorney's fees to be awarded under R.C. 5321.05(C) lies within the sound discretion of the trial court. *Kinn v. Showe Mgmt. Corp.*, No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002).

When an action includes an R.C. 5321.05(C) claim along with other landlord claims (e.g., unpaid rent claim), the computation of the R.C. 5321.05(C) attorney fee award is based solely on the time spent on the R.C. 5321.05(C) claim. *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998); *Svoboda v. Hayes*, No. 90-CVG-35237 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991); *Schuab v. Roper*, No. 90-CVG-26859 (Ohio Mun., Cleveland, Hous. Div., Nov. 6, 1991).

For a discussion on issues relative to calculating and moving for R.C. Chapter 5321 attorney's fees, see Chapter XIX, below.

E. Defense Issues

1. Collateral Estoppel

Because the doctrine of collateral estoppel applies to an eviction action (see Section I.M.8, above), if a court finds an R.C. 5321.05 violation when ruling on an eviction claim,³⁵³ this finding is binding on the parties when the court later rules on the landlord's monetary claim under R.C. 5321.05(C). Cf. *Great Lakes Mall, Inc. v. Deli Table, Inc.*, No. 93-L-154, 1994 WL 587559 (Ohio App., 11th Dist., Sept. 16, 1994) (nonpayment of rent); *Chan v. Birch*, No. 15249, 1992 WL 64190 (Ohio App., 9th Dist., Mar. 25, 1992) (nonpayment of rent).

³⁵³ Under R.C. 5321.11 and 1923.02(A)(8), a tenant's R.C. 5321.05 violation may be grounds to terminate the tenancy and evict the tenant. See Section I.D, above.

2. Required Link Between the Damage and an R.C. 5321.05(A) Violation

“A landlord bears the burden of submitting sufficient evidence linking any alleged damage to the tenant’s failure to fulfill obligations under R.C. 5321.05 or a lease agreement.” *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 2334795, ¶ 26 (Ohio App., 10th Dist., Jan. 23, 2007). *Accord Levine v. Kellogg*, 153 N.E.3d 663, 2020-Ohio-1246, ¶ 40 (Ohio App., 10th Dist., 2020); *Hensel v. Childress*, 145 N.E.3d 1159, 2019-Ohio-3934, ¶ 28 (Ohio App., 1st Dist., 2019); *Warner v. Evans*, No. 27536, 2015 WL 3398400, ¶ 8 (Ohio App., 9th Dist., May 27, 2015); *Snyder v. Waldron*, No. 12-CA-9, 2013 WL 3988775, ¶ 28 (Ohio App., 4th Dist., July 26, 2013); *Cincinnati Ins. Co. v. Evans*, No. WD-09-012, 2010 WL 2334795, ¶ 46 (Ohio App., 6th Dist., June 11, 2010); *Dupal v. Reindle*, No. 79413, 2002 WL 450128, at *2 (Ohio App., 8th Dist., Mar. 14, 2002); *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243, at *3 (Ohio App., 4th Dist., Nov. 14, 2001).

“To establish the necessary link, the landlord must generally present evidence regarding the condition of the premises both before the tenant moved in and after he moves out.” *Estie Inv. Co. v. Braff*, No. 2017-L-172, 2018 WL 5433223, ¶ 26 (Ohio App., 11th Dist., Oct. 29, 2018). *Accord Dupal v. Reindle*, No. 79413, 2002 WL 450128, at *2 (Ohio App., 8th Dist., Mar. 14, 2002).

Also, if a landlord fails to prove that the damage occurred during the tenancy, the landlord has not met this burden of proof. *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930, ¶¶ 47,48 (Ohio App., 2nd Dist., Sept. 27, 2013); *Kelley v. Johnston*, No. 01-CA-5, 2001 WL 1479243, at *4 (Ohio App., 4th Dist., Nov. 14, 2001). *See also Dupal v. Reindle*, No. 79413, 2002 WL 450128, at *2 (Ohio App., 8th Dist., Mar. 14, 2002).

And, if the tenant did not violate R.C. 5321.05(A), it necessarily follows that the need to clean the premises is not the result of an R.C. 5321.05(A) violation. *Kovac v. Whay Corp.*, No. 65469, 1994 WL 581528, at *6 (Ohio App., 8th Dist., Oct. 20, 1994). In these circumstances, the cost of cleaning is simply part of the landlord’s “normal cost of doing business.” *Id.*

In addition, if a landlord’s general practice is to make certain improvements to the dwelling unit for each new tenant, whether or not the underlying condition constitutes damage to the premises beyond normal wear and tear, the improvement is not a cost incurred as a result of an R.C. 5321.05(A) violation. *E.g., Cuzzort v. Rose*, No. CA-9791, 1986 WL 12632 (Ohio App., 2nd Dist., Nov. 6, 1986) (replaces toilet seats);

Snapp v. Rossiter, No. 14-CVF-00579 (Ohio Mun., Cambridge, Aug. 27, 2015) (replaces throw rugs); *Johnson v. Morelli Props. LLC*, No. 2008-CVF-023275 (Ohio Mun., Franklin Cty., Oct. 7, 2009) (thoroughly cleans; re-keys locks); *Berkeley Park, LLC v. Pile*, No. 2005-CVG-046214 (Ohio Mun., Franklin Cty., Apr. 11, 2007) (“tune[s]” units, with painters and cleaners); *Cliffview Manor Apts. v. Jefferson*, No. 91-CVG-11203 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 1992) (cleans carpets).

Two other examples of a landlord not meeting this burden of proof are: *Jones v. Simondis*, No. 97-T-0073, 1998 WL 156871 (Ohio App., 11th Dist., Mar. 27, 1998) (door blown off hinges by wind, an act of God); *Gonzalez v. Gonzalez*, No. 2010-CVG-9940 (Ohio Mun., Cleveland, Hous. Div., Aug. 22, 2011) (broken windows – no evidence on causation).

3. Proof of Damage Amount

When a landlord claims damages to the premises, the landlord must prove the damages or cost of restoration with reasonable certainty. *Estie Inv. Co. v. Braff*, No. 2017-L-172, 2018 WL 5433223 (Ohio App., 11th Dist., Oct. 29, 2018); *Gibson v. Shephard*, 87 N.E.3d 846, 2017-Ohio-1157 (Ohio App., 8th Dist., 2017); *Baker v. Wade*, No. 2002-CVG-15892 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2002). See generally *James H. Washington Ins. Agency v. Nationwide Mut. Ins. Co.*, 95 Ohio App.3d 577, 643 N.E.2d 143 (8th Dist. 1993). This standard is not met where the landlord’s evidence is conjecture and speculation. *Id.*

This standard is illustrated by the following four cases in which the landlord failed to meet it.

In one case, this standard was not met where a landlord testified, relative to the cost of repairing broken windows, that he “thinks the cost will be around \$1,000.00,” but he “failed to produce estimates, receipts or testimony to justify how he arrived at the above amount.” *Baker v. Wade*, No. 2002-CVG-15892, slip op. at 2 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2002).

In a second case, this standard was not met where the landlord introduced only photographs of the premises. *Moore-El v. Petrella*, No. 94749, 2011 WL 553877 (Ohio App., 8th Dist., Feb. 17, 2011). The court held that “those photographs alone cannot supplant evidence of the actual costs in the form of bills or invoices for the alleged repairs, taking into consideration normal wear and tear during Moore-El’s tenancy.” *Id.*, ¶ 11.

In a third case, this standard was not met where the landlord’s estimate to repair

and replace damaged drywall was not limited to the area of the hole that the tenant had made. *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930, ¶ 53 (Ohio App., 2nd Dist., Sept. 27, 2013). Rather, it was an estimate to repair and replace the drywall throughout the entire house. *Id.*, ¶ 52.

In a fourth case, this standard was not met where: (1) the landlord produced evidence of the total cost of repairing eleven damage items, without a breakdown of the cost of each item; and (2) the court upheld the landlord's damage claim for only seven of those items. *Estie Inv. Co. v. Braff*, No. 2017-L-172, 2018 WL 5433223, ¶ 44 (Ohio App., 11th Dist., Oct. 29, 2018).

4. Damage Claim Less Than the Security Deposit

When the amount of the landlord's R.C. 5321.05(C) damage claim is less than the amount of the tenant's security deposit, and the tenant has forfeited the security deposit, the landlord has not suffered any "actual damages" as a result of the tenant's R.C. 5321.05(A) violation. *Hines v. Riley*, 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998).

5. Preclusion of Additional Claim for Unpaid Security Deposit

When a tenant has violated an obligation to pay a security deposit, at the end of the tenancy, the landlord may not recover both the unpaid security deposit and the full amount of any property damage (or unpaid rent) claim. *Wayne Mgmt. Co. v. McGill*, No. 81-CA-57, 1982 WL 3741 (Ohio App., 2nd Dist., June 2, 1982); *Hall v. Leonard*, No. 94-CG-667 (Ohio Mun., Marietta, Mar. 7, 1995).

6. Noncompliance with R.C. 5321.16(B) Itemization Rule

A landlord's failure to comply with the R.C. 5321.16(B) written itemization requirement does not waive a landlord's right to bring a monetary claim for property damage (or unpaid rent). For a discussion on this issue, see Section XVII.C.8, above.

7. Joint and Several Liability

A joint and several liability provision in a residential lease is enforceable. *Vlcek v. Brogee*, No. 25499, 2013 WL 5436930, ¶ 56 (Ohio App., 2nd Dist., Sept. 27, 2013); *Wayne Mut. Ins. Co. v. Parks*, No. 20945, 2002 WL 1800377, ¶¶ 15-17 (Ohio App.,

9th Dist., Aug. 7, 2002). R.C. Chapter 5321 does not prohibit these provisions. *Id.*

When a lease contains a joint and several liability provision, a tenant is liable for any breach of the lease by any of the tenants. *Id.*

For a discussion on the effect of a joint and several liability provision, in the context of an alleged violation of R.C. 5321.05(A)(6) by a co-tenant or guest, see Section VII.D.3.b, above.

F. Practice and Procedure Issues

1. Default Judgment, Complaint for Eviction Claim and Monetary Claim

a. Application of Civil Rule 55

When a landlord's complaint includes an eviction claim and a monetary claim for property damage (or unpaid rent), the tenant's presence at the eviction hearing constitutes an appearance in the action for Civil Rule 55(A) purposes. For a discussion on this issue, see Section XVII.D.1.a, above.

b. Application of Civil Rule 54(C)

When a landlord's complaint includes an eviction claim and a monetary claim for property damage (or unpaid rent), Civil Rule 54(C) applies to the monetary claim. For a discussion on this issue, see Section XVII.D.1.b, above.

2. Joinder of Parties, Civil Rule 19(A)

If the premises are owned by two or more tenants in common, under Civil Rule 19(A), all of the owners are necessary parties in an action against a tenant for property damage (or unpaid rent). For a discussion on this issue, see Section XVII.D.2.a, above.

3. Owner Opinion Rule

Under the owner opinion rule, a landlord may give opinion testimony on the value of the premises pre-damage and post-damage and on the cost of repairing the premises. *Rowe v. Sylvester*, Nos. 65014,65022, 1994 WL 118371 (Ohio App., 8th Dist., Apr. 7, 1994); *Kearney v. Crown*, No. 93-T-4945, 1994 WL 587382 (Ohio App., 11th Dist., Aug. 12, 1994). See generally *Tokles & Son, Inc. v. Midwestern Indem. Co.*, 65 Ohio St.3d 621, 605 N.E.2d 936 (1992); *Bishop v. East Ohio Gas Co.*, 143 Ohio St. 541, 56 N.E.2d 164 (1944).

Likewise, when a landlord's personal property has been damaged, the landlord may give opinion testimony on the value of the property pre-damage and post-damage. *See generally Tokles & Son, Inc. v. Midwestern Indem. Co.*, 65 Ohio St.3d 621, 605 N.E.2d 936 (1992); *Bishop v. East Ohio Gas Co.*, 143 Ohio St. 541, 56 N.E.2d 164 (1944).

4. Admissibility of Estimates

An estimate of the cost of repairing the premises is not admissible as a business record under Evidence Rule 803(6) without the testimony of the person who actually prepared the estimate. *Amjoy Co. v. Braggs*, No. 64708, 1994 WL 43886 (Ohio App., 8th Dist., Feb. 10, 1994); *Mong v. Dotson*, No. 1173CA, 1987 WL 8029 (Ohio App., 2nd Dist., May 17, 1987).

As a result, a landlord's written repair estimates from specified stores – Home Depot and Lowe's – for replacing a carpet were not admissible because the "source of that information is wholly unidentified. In order to be credible, evidence must be elicited from a competent source." *Bailey v. Fairchild*, No. 10-CA-10, 2010 WL 4867532, ¶¶ 26,27 (Ohio App., 2nd Dist., Nov. 24, 2010).

5. Admissibility of Photographs

In an R.C. 5321.05(C) claim, the landlord may introduce into evidence relevant photographs. *Hensel v. Childress*, 145 N.E.3d 1159, 2019-Ohio-3934 (Ohio App., 1st Dist., 2019). "Authentication of photographs simply requires that a witness, based on his familiarity with the subject matter of the photographs, establish that the photographs depict what the proponent claims they represent." *Id.*, ¶ 7. For a discussion on the tenant's analogous right to introduce into evidence relevant photographs in support of an R.C. 5321.04 claim, see Section IX.A.11.e, above.

XIX. Attorney's Fees

A. Authority Under R.C. Chapter 5321

The R.C. Chapter 5321 provisions that authorize a tenant to recover attorney's fees are:

- (1) R.C. 5321.02(B) (retaliation, see Chapter XI, above);
- (2) R.C. 5321.04(B) (entry upon the premises, see Chapter X, above);
- (3) R.C. 5321.15(C) (utility termination, lockout, seizure of personal property, see Chapters XII and XIII, above); and
- (4) R.C. 5321.16(C) (security deposit, see Chapter XVI, above).

These provisions “serve[] as encouragement to the private bar to provide representation to tenants who normally could not afford to hire an attorney.” *Drake v. Menczer*, 67 Ohio App.2d 122, 123, 425 N.E.2d 961 (8th Dist. 1980). They permit tenants to enforce their statutory rights without incurring attorney fee expenses that such enforcement requires and that exists solely because of their landlord's action. See *Alcorso v. Correll*, No. 110218, 2021 WL 4317396, ¶ 49 (Ohio App., 8th Dist., Sept. 23, 2021).

The R.C. Chapter 5321 provisions that authorize a landlord to recover attorney's fees are:

- (1) R.C. 5321.05(C) (maintenance/use of the premises, see Chapter XVIII, above); and
- (2) R.C. 5321.09(D) (bad faith rent depositing, see Section VIII.E, above).

B. Authority Under Common Law

The general rule in Ohio is that, absent statutory authorization, a prevailing party may not recover attorney's fees. *Wilborn v. Bank One Corp.*, 121 Ohio St.3d 546, 906 N.E.2d 396, ¶ 7 (2009); *Sorin v. Bd. of Educ., Etc.*, 46 Ohio St.2d 177, 179, 347 N.E.2d 527 (1976); *State ex rel. Grosser v. Boy*, 46 Ohio St.2d 184, 185, 347 N.E.2d 539 (1976). See generally *Alyeska Pipeline Serv. Co. v. Wilderness Soc'y*, 421 U.S. 240 (1975) (discussion of American rule on attorney's fees); *Fleischman Distilling Corp. v. Maier Brewing Co.*, 386 U.S. 714 (1967) (same).

However, there are numerous exceptions to this general rule.

One exception is that attorney's fees are allowed when the defendant acted "in bad faith, vexatiously, wantonly, or for oppressive reasons." *Sorin v. Bd. of Educ., Etc.*, 46 Ohio St.2d 177, 181, 347 N.E.2d 527 (1976). *Accord Wilborn v. Bank One Corp.*, 121 Ohio St.3d 546, 906 N.E.2d 396, ¶ 7 (2009); *Taylor v. McCullough-Hyde Mem'l Hosp.*, 116 Ohio App.3d 595, 600, 688 N.E.2d 1078 (12th Dist. 1996); *Sutherland v. Nationwide Gen. Ins. Co.*, 102 Ohio App.3d 297, 301, 657 N.E.2d 281 (10th Dist. 1995); *Sladoje v. Slettebak*, 44 Ohio App.3d 206, 207, 542 N.E.2d 701 (10th Dist. 1988).

A second exception is that attorney's fees are allowed when punitive damages are awarded. *Villella v. Waikem Motors, Inc.*, 45 Ohio St.3d 36, 41, 543 N.E.2d 464 (1989); *Columbus Fins. Inc. v. Howard*, 42 Ohio St.2d 178, 183, 327 N.E.2d 654 (1975); *Davis v. Tunison*, 168 Ohio St. 471, 477, 155 N.E.2d 904 (1959); *Roberts v. Mason*, 10 Ohio St. 277, 282 (1859) (the seminal opinion); *Sutherland v. Nationwide Gen. Ins. Co.*, 102 Ohio App.3d 297, 301, 657 N.E.2d 281 (10th Dist. 1995).

Under this second exception, attorney's fees are also allowed when punitive damages properly could have been awarded but were not awarded. *Atram v. Star Tool & Die Co.*, 64 Ohio App.3d 388, 581 N.E.2d 1110 (8th Dist. 1989).

However, when attorney's fees are awarded in connection with punitive damages, the prevailing party might not be entitled to attorney's fees for time spent defending the judgment on appeal. See *LaFarciola v. Elbert*, No. 08-CA-009471, 2009 WL 2858059 (Ohio App., 9th Dist., Sept. 8, 2009).

A third exception is that attorney's fees are allowed when an enforceable contract specifically provides that the losing party shall pay the prevailing party's attorney's fees. *Wilborn v. Bank One Corp.*, 121 Ohio St.3d 546, 906 N.E.2d 396, ¶ 7 (2009); *Nottingdale Homeowners' Ass'n, Inc. v. Darby*, 33 Ohio St.3d 32, 34, 514 N.E.2d 702 (1987). These provisions are not allowed in residential leases. R.C. 5321.13(C).

A fourth exception is that attorney's fees are allowed in an action on the breach of a settlement agreement. *Scott v. Reedy*, 5 Ohio Dec. Reprint 388 (1876).

A fifth exception is that attorney's fees are allowed in a civil contempt proceeding, if the defendant is found guilty of civil contempt. *State ex rel. Fraternal Order of Police v. City of Dayton*, 49 Ohio St.2d 219, 230, 361 N.E.2d 428 (1977).

A sixth exception is that attorney's fees are allowed "when the litigation has created or protected a common fund." *Rocca v. Wilke*, 53 Ohio App.2d 8, 18, 371 N.E.2d 223 (1st Dist. 1977). *Accord Sutherland v. Nationwide Gen. Ins. Co.*, 102 Ohio App.3d 297, 300-01, 657 N.E.2d 281 (10th Dist. 1995); *City of Seven Hills v. City of*

Cleveland, 47 Ohio App.3d 159, 163-64, 547 N.E.2d 1024 (8th Dist. 1988). See generally *Trs. of Internal Improvement Fund v. Greenough*, 105 U.S. 527 (1881) (announcing the “common fund” doctrine).

Equity alone is not a basis for awarding attorney’s fees. In *Sorin v. Bd. of Educ., Etc.*, 46 Ohio St.2d 177, 182 n.4, 347 N.E.2d 527 (1976), the Supreme Court reversed an equitable award of attorney’s fees and stated that it was “unpersuaded by the ‘reasoning’ of the Court of Appeals in *Channell*” The *Channell* decision awarded attorney’s fees on purely equitable grounds. *Channell v. N.C.R. Employee’s Indep. Union*, 28 Ohio App.2d 260, 263-64, 277 N.E.2d 85 (2nd Dist. 1971).

C. Attorney’s Fees Taxed as Costs

Attorney’s fees under R.C. Chapter 5321 are taxed as costs; they are not awarded as damages. *Christe v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 726 N.E.2d 497 (2000) (R.C. 5321.16(C)); *Alcoroso v. Correll*, 159 N.E.3d 924, 2020-Ohio-4752 (Ohio App., 8th Dist., 2020) (R.C. 5321.16(C)); *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012) (R.C. 5321.15(C)); *Schultz v. Wurdlow*, No. 11AP-62, 2012 WL 2859914 (Ohio App., 10th Dist., July 12, 2012) (R.C. 5321.16(C)); *Jerels v. Begue*, No. 24700, 2010 WL 1780140 (Ohio App., 9th Dist., May 5, 2010) (R.C. 5321.16(C)); *Kinn v. Showe Mgmt. Corp.*, No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002) (R.C. 5321.05(C)); *Croxford v. Litchfield*, No. 1491, 1992 WL 20818 (Ohio App., 4th Dist., Jan. 27, 1992) (R.C. 5321.02(B)); *Yarber v. Cooper*, No. H-87-36, 1988 WL 61003 (Ohio App., 6th Dist., June 10, 1988) (R.C. 5321.02(B) and 5321.04(B)); *Rand v. Washington*, No. 7822, 1983 WL 2448 (Ohio App., 2nd Dist., May 26, 1983) (R.C. 5321.15(C)); *Drake v. Menczer*, 67 Ohio App.2d 122, 425 N.E.2d 961 (8th Dist. 1980) (R.C. 5321.02(B)). But see *Chaney v. Davis*, No. 17593, 1996 WL 525851 (Ohio App., 9th Dist., Sept. 18, 1996) (R.C. 5321.02(B)); *Fay Gardens Mobile Home Park v. Newman*, 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983) (construing R.C. 3733.10(B) (now R.C. 4781.38(B)) – the manufactured home park provision that is essentially the same as R.C. 5321.04(B)).

Christe v. GMS Mgmt. Co., 88 Ohio St.3d 376, 726 N.E.2d 497 (2000), only holds that attorney’s fees under R.C. 5321.16(C) are to be taxed as costs. The Supreme Court declined the opportunity in *Christe* to extend its ruling to the other provisions for attorney’s fees in R.C. Chapter 5321.

Nonetheless, the Supreme Court’s reasoning in *Christe* compels the conclusion that attorney’s fees under any section of R.C. Chapter 5321 are to be taxed as costs.

See *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073, ¶ 15 (Ohio App., 2nd Dist., Oct. 12, 2012) (“We see no logical reason for attorney fees awarded in actions under R.C. 5321.15 to be handled differently than those awarded under R.C. 5321.16”); *Staffilino Chevrolet, Inc. v. Balk*, 158 Ohio App.3d 1, 813 N.E.2d 940, ¶ 14 (7th Dist. 2004) (“Although the court limited its analysis to that statutory section [R.C. 5321.16(C)], the rationale can reasonably be extended to all similar statutes”).

The reasoning in *Christe* is four-fold. First, “[u]nder common law, attorney fees are in the nature of costs.” 88 Ohio St. 3d at 378. Second, “we [Supreme Court] have repeatedly held that when a statute authorizes the awarding of attorney fees, it does so by allowing the fees to be taxed as costs rather than awarded as damages.” *Id.* Third, “the legislature could have expressly stated in R.C. 5321.16(C) that attorney fees are recoverable damages.” *Id.* Fourth, “in the absence of such express language, we are unwilling to depart from our long-standing practice of treating statutorily authorized attorney fees as costs.” *Id.*

Likewise, the legislature could have expressly stated in the other R.C. Chapter 5321 provisions for attorney’s fees that the fees are recoverable damages, but it failed to do so. Therefore, for these other provisions as well, the *Christe* reasoning dictates adherence to the longstanding practice of courts of treating statutorily authorized attorney’s fees as costs. *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073, ¶ 15 (Ohio App., 2nd Dist., Oct. 12, 2012); *Drake v. Menczer*, 67 Ohio App.2d 122, 425 N.E.2d 961 (8th Dist. 1980). See also *Yarber v. Cooper*, No. H-87-36, 1988 WL 61003 (Ohio App., 6th Dist., June 10, 1988) (follows *Drake*); *Fant v. DiSabato*, No. 87AP-265, 1987 WL 32190 (Ohio App., 10th Dist., Dec. 29, 1987) (follows *Drake*).³⁵⁴

D. Absence of Attorney Fee Demand in the Pleadings

In an R.C. Chapter 5321 claim for attorney’s fees, a tenant’s (or landlord’s) failure

³⁵⁴ The *Drake* holding concerns R.C. 5321.02(B), but the decision addressed this issue for all of the R.C. Chapter 5321 attorney fee provisions. The reasoning in *Drake* is similar to the reasoning in *Christe*. It noted and applied the traditional view that, “when a statute authorizes the award of attorneys’ fees, it does so by allowing the fees to be taxed as costs.” 67 Ohio App.2d at 124. It found that the legislature did not express an intent to deviate from the traditional view because, if it had intended to do so, the relevant provision in R.C. 5321.02(B) would have stated “actual damages, including reasonable attorneys’ fees.” *Id.*

to demand the fees in the pleadings does not waive the tenant's (or landlord's) right to recover them. *Leszczynski v. Brewer*, No. 12523, 1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991) (R.C. 5321.16(C)); *Zimmerman v. Elmore*, No. 47724, 1984 WL 5119 (Ohio App., 8th Dist., June 28, 1984) (R.C. 5321.05(C)); *Morales v. Windsor Realty & Mgmt., Inc.*, No. 2000-CVH-002037 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2000) (R.C. 5321.16(C)); *Zemaitis v. Waugh*, No. 91-CVG-5137 (Ohio Mun., Cleveland, Hous. Div., Oct. 11, 1991) (R.C. 5321.05(C)). See generally Ohio R. Civ. P. 54(C) ("Except as to a party against whom a judgment is entered by default, every final judgment shall grant the relief to which the party in whose favor it is rendered is entitled, even if the party has not demanded the relief in the pleadings").³⁵⁵ But see *Biasella v. Costakis*, No. 71281, 1997 WL 253157 (Ohio App., 8th Dist., May 15, 1997) (R.C. 5321.16(C)).

E. Time Period for Filing a Motion for Attorney's Fees

Since attorney's fees under R.C. Chapter 5321 are taxed as costs (see Section XIX.C, above), the time period for filing a motion for attorney's fees should be the time period for filing a Civil Rule 54(D) motion to tax costs.

Civil Rule 54(D) does not provide a specific time period for filing a motion to tax costs. *Bookatz v. Kupps*, 39 Ohio App.3d 36, 528 N.E.2d 961 (8th Dist. 1987). Therefore, a motion to tax costs must be filed within a reasonable period of time. *Id.*

In *Bookatz*, the court held that a motion to tax costs had been filed within the requisite reasonable time, even though it had been filed two months after the final judgment and one month after the time to perfect an appeal had expired.

Other court decisions have provided different time periods for filing a motion for attorney's fees. See, e.g., *McGinnis v. Donatelli*, 36 Ohio App.3d 120, 521 N.E.2d 513 (8th Dist. 1987) (a motion for attorney's fees under R.C. 5321.16(C) must be filed

³⁵⁵ The 1994 amendment to Civil Rule 54(C) "makes the division identical to Fed. R. Civ. P. 54(c)." Staff Notes, Ohio R. Civ. P. 54. Under Fed. R. Civ. P. 54(c), the failure to demand attorney's fees in the pleadings does not waive the right of a party to recover attorney's fees. *Capital Asset Research Corp. v. Finnegan*, 210 F.3d 1268 (11th Cir. 2000).

before the time to perfect an appeal has expired).³⁵⁶ *Cf. Fair Hous. Advocates Ass'n, Inc. v. James*, 114 Ohio App.3d 104, 682 N.E.2d 1045 (9th Dist. 1996) (time for filing a motion for attorney's fees under 42 U.S.C. § 3613(c)(2) is governed by state law, which is before the entry of the final judgment).

Given these conflicting holdings, if the tenant (or landlord) has requested attorney's fees in a pleading, and if the court has not established a time period for filing the motion for attorney's fees, the tenant (or landlord) should file the motion shortly after the entry of the court's order that finds that the tenant (or landlord) is entitled to an attorney fee award.

F. Standards for Computing the Amount of an Attorney Fee Award

1. General Standard

In an R.C. Chapter 5321 claim for attorney's fees, the court determines the amount of the attorney fee award based on the guidelines set forth now in Rule 1.5(a) of the Ohio Rules of Professional Conduct (and pre-2007 in DR 2-106(B) of the Code of Professional Responsibility). *Christe v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 726 N.E.2d 497 (2000); *Alcorso v. Correll*, No. 110218, 2021 WL 4317396 (Ohio App., 8th Dist., Sept. 23, 2021); *Clarke v. Royal*, No. 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021); *Timoneri v. Northsteppe Realty*, 71 N.E.3d 630, 2016-Ohio-5901 (Ohio App., 10th Dist., 2016); *Whitestone Co. v. Stittsworth*, No. 06AP-371, 2007 WL 155299 (Ohio App., 10th Dist., Jan. 23, 2007); *Ridenour v. Dunn*, No. 03AP-611, 2004 WL 1445270 (Ohio App., 10th Dist., June 29, 2004); *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Yarber v. Cooper*, 61 Ohio App.3d 609, 573 N.E.2d 713 (6th Dist. 1988); *Nobis v. E.A. Zicka Co.*, 31 Ohio App.3d 104, 508 N.E.2d 980 (1st Dist. 1986); *Drake v. Menczer*, 67 Ohio App.2d 122,

³⁵⁶ When a motion for attorney's fees under R.C. Chapter 5321 is pending in the trial court, the judgment on the underlying claim is not a final appealable order. *Ingram v. Glaser*, No. CA-11511, 1989 WL 130801 (Ohio App., 2nd Dist., Nov. 1, 1989); *Peterson v. Supinger*, No. 90-CV-H-T-279 (Ohio Mun., Miami Cty., Sept. 11, 1991).

425 N.E.2d 961 (8th Dist. 1980).³⁵⁷ See generally *Bittner v. Tri-County Toyota, Inc.*, 58 Ohio St.3d 143, 569 N.E.2d 464 (1991). The Rule 1.5(a) guidelines are:

- (1) The time and labor required, the novelty and difficulty of the questions involved, and the skill requisite to perform the legal services properly;
- (2) The likelihood, if apparent to the client, that the acceptance of the employment will preclude other employment by the lawyer;
- (3) The fee customarily charged in the locality for similar legal services;
- (4) The amount involved and the results obtained;
- (5) The time limitations imposed by the client or by the circumstances;
- (6) The nature and length of the professional relationship with the client;
- (7) The experience, reputation, and ability of the lawyer or lawyers performing the services; and
- (8) Whether the fee is fixed or contingent.

“The factors specified in divisions (a)(1) through (8) are not exclusive. Nor will each factor be relevant in each instance.” Official Comment, Rule 1.5, Ohio Rules of Professional Conduct. See also *Bittner v. Tri-County Toyota, Inc.*, 58 Ohio St.3d 143, 146, 569 N.E.2d 464 (1991) (“All factors may not be applicable in all cases and the trial court has the discretion to determine which factors to apply, and in what manner that application will affect the initial calculation”).

“[T]he trial court should first calculate the ‘lodestar amount,’ which is the number of hours reasonably expended on the case multiplied by an hourly fee. Then the court may modify that calculation by application of the factors listed in DR 2-106(B) [now Rule 1.5(a)].” *Latio v. Rapien*, No. C-970887, 1998 WL 655482, at *1 (Ohio App., 1st Dist., Sept. 25, 1998). Accord *Nolan v. Sutton*, 97 Ohio App.3d 616, 647 N.E.2d 218 (1st Dist. 1994). See generally *Bittner v. Tri-County Toyota, Inc.*, 58 Ohio St.3d 143, 569 N.E.2d 464 (1991).

³⁵⁷ See also *Stark v. Weimer*, No. H-98-031, 1999 WL 253451 (Ohio App., 6th Dist., Apr. 30, 1999); *Davis v. Reed*, Nos. 68699,68700, 1996 WL 347814 (Ohio App., 8th Dist., June 20, 1996); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986); *Hoerner v. GMS Mgmt. Co.*, No. 46736, 1983 WL 2892 (Ohio App., 8th Dist., Dec. 15, 1983); *Lewis v. Romans*, No. 43594, 1981 WL 4713 (Ohio App., 8th Dist., Dec. 24, 1981); *Blue v. Castlerock Props., Inc.*, 77 Ohio Misc.2d 3, 665 N.E.2d 296 (Ohio Mun., Hamilton Cty., 1996).

If the court modifies the lodestar amount, it is required to state the reasons for the modification, based on the evidence presented. *Parks v. Kunani*, No. 02AP-916, 2003 WL 1701499 (Ohio App., 10th Dist., Mar. 31, 2003).

2. Inclusion of Time Spent Litigating the Attorney Fee Award

In an R.C. Chapter 5321 claim for attorney's fees, the moving party may recover attorney's fees for the time spent litigating the fee request, as well as for time spent litigating and enforcing the underlying judgment. *Hall v. Lacheta*, No. 92AP-020013, 1992 WL 362546 (Ohio App., 5th Dist., Nov. 18, 1992). *Cf. Westbourne Dev. Co. v. Sigma Sys. Health Mgmt. Specialists, Inc.*, No. 91AP-856, 1992 WL 11197 (Ohio App., 10th Dist., Jan. 16, 1992) (attorney's fees under commercial lease). *But see Alexander v. LJF Mgmt. Inc.*, No. C-100618, 2011 WL 2112623 (Ohio App., 1st Dist., May 27, 2011) (R.C. 5321.16(C)).

3. Inclusion of Time of Legal Intern

"[T]he efforts of a legal intern on behalf of a client is properly compensable as part of an award of attorney fees." *Jackson v. Brown*, 83 Ohio App.3d 230, 232, 614 N.E.2d 847 (8th Dist. 1992). *Accord Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd.*, Nos. 2004-CA-19,20, 2004 WL 1587234, ¶ 33 (Ohio App., 2nd Dist., July 9, 2004).

4. Exclusion of Time Spent on Other Claims

When an action includes one or more claims for which attorney's fees may be awarded under R.C. Chapter 5321, and one or more other claims for which attorney's fees cannot be awarded under R.C. Chapter 5321, the computation of the attorney fee award under R.C. Chapter 5321 is based solely on the time spent on the R.C. Chapter 5321 claims for which attorney's fees may be awarded. See Section X.B, above (R.C. 5321.04(B) claim); Section XII.B.2, above (R.C. 5321.15(C) claim); Section XVI.H.4, above (R.C. 5321.16(C) claim); Section XVIII.D, above (R.C. 5321.05(C) claim).

5. Limitation Based on the Amount of the Underlying Judgment

In an R.C. Chapter 5321 action, because the amount of the money judgment is often relatively small, the amount of the attorney fee award may be limited by Rule

1.5(a)(4) of the Ohio Rules of Professional Conduct, which requires that attorney's fees be reasonable in relation to the amount involved and the results obtained. *E.g.*, *Nolan v. Sutton*, 97 Ohio App.3d 616, 647 N.E.2d 218 (1st Dist. 1994) (\$4,170 fee requested, \$500 fee awarded); *Cook v. Downey*, No. 87AP-1075, 1988 WL 70446 (Ohio App., 10th Dist., June 30, 1988) (\$4,322.76 fee requested, \$650 fee awarded); *Lewis v. Romans*, No. 43594, 1981 WL 4713 (Ohio App., 8th Dist., Dec. 24, 1981) (\$8,800 fee requested, \$350 fee awarded). *See also Smith v. Padgett*, 32 Ohio St.3d 344, 350, 513 N.E.2d 737 (1987) (Wright, J., concurring).

However, as one court observed, in applying this factor, it is important to be mindful that “limiting the attorney fees available might discourage attorneys from taking these cases”³⁵⁸ and thereby undermine an important purpose of R.C. Chapter 5321 – to discourage violations of the Act. *Johnson v. Morelli Props. LLC*, No. 2008-CVF-023275, slip op. at 5 (Ohio Mun., Franklin Cty., Oct. 7, 2009) (\$3,350 fee award, \$960 judgment). *E.g.*, *Timoneri v. Northsteppe Realty*, 71 N.E.3d 630, 2016-Ohio-5901 (Ohio App., 10th Dist., 2016) (affirms \$10,505 fee award, \$695 judgment); *Spring Hill Townhomes v. Pounds*, No. 25887, 2014 WL 1887690 (Ohio App., 2nd Dist., May 9, 2014) (affirms \$4,637.50 fee award, \$539 judgment); *Liston v. Jurek*, No. 59758, 1992 WL 41858 (Ohio App., 8th Dist., Mar. 5, 1992) (affirms \$3,972 fee award, \$313.70 judgment).

Another court similarly observed: “Simply because the attorney fees incurred in this case were greatly disproportionate to the damages recovered on [the tenant’s] security deposit claim does not mean they were unreasonable. As stated above, R.C. 5321.16 is a remedial statute intended to ensure that a tenant incurs no expense when seeking a refund of a wrongfully withheld security deposit. Consistent with that purpose, [the tenant] was entitled to recover reasonable attorney fees [the landlord’s] actions forced her to incur to enforce her statutory rights.” *Alcorso v. Correll*, No. 110218, 2021 WL 4317396, ¶ 49 (Ohio App., 8th Dist., Sept. 23, 2021) (\$26,825 fee award, \$1,200 judgment).

Appellate court decisions that found an abuse of discretion and reversed the trial court’s attorney fee award because the fee award was significantly less than the lodestar amount include: *Congdon v. Senters*, No. 99-CA-43, 1999 WL 1071768 (Ohio App., 5th Dist., Nov. 16, 1999); *Hall v. Lacheta*, No. 92AP-020013, 1992 WL 362546

³⁵⁸ For a statement on the purpose of these fees, see Section XIX.A, above.

(Ohio App., 5th Dist., Nov. 18, 1992).

Congdon concerned a tenant's R.C. 5321.16(C) claim for attorney's fees. The trial court awarded the tenant a judgment of \$550 for the security deposit, \$550 for statutory damages, and \$600 for attorney's fees. Based on the trial court's findings on reasonable hours (36.7) and reasonable rate (\$140 per hour), the lodestar amount was \$5,138.³⁵⁹

Hall concerned a tenant's R.C. 5321.15(C) claim for attorney's fees. The trial court awarded the tenant a judgment of \$500 for the R.C. 5321.15 claim, \$2,500 for an invasion of privacy claim, and \$3,632 for attorney's fees. The trial court's finding on reasonable hours (86.8) was not disputed. But despite the uncontested testimony on reasonable rate (\$75 per hour), the trial court used hourly rates of \$50 (in-court) and \$40 (out-of-court).

Conversely, appellate court decisions that found an abuse of discretion and reversed the trial court's attorney fee award because the amount of the fee award was too high in relation to the amount of the judgment include: *Nelson v. Tipton*, No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999) (\$26,472.39 fee award, \$3,200 judgment); *McGregor v. Armeni*, No. 89AP-1500, 1990 WL 179981 (Ohio App., 10th Dist., Nov. 20, 1990) (\$5,809.76 fee award, \$465 judgment); *Fant v. DiSabato*, No. 87AP-265, 1987 WL 32190 (Ohio App., 10th Dist., Dec. 29, 1987) (\$3,712.50 fee award, \$255 net judgment); *Burroughs v. Douglas*, No. 46030, 1983 WL 2865 (Ohio App., 8th Dist., Dec. 8, 1983) (\$11,727.50 fee award, \$6,500 judgment)..

This Rule 1.5(a)(4) issue often arises in security deposit cases and, within that context, it is discussed in Section XVI.H.4, above.

6. Limitation Based on the Absence of Difficulty

In some R.C. Chapter 5321 actions, courts have found that, because the case was neither difficult nor novel, the amount of the attorney fee award should be limited under Rule 1.5(a)(1). *E.g.*, *Latiao v. Rapien*, No. C-970887, 1998 WL 655482 (Ohio App., 1st Dist., Sept. 25, 1998) (\$2,478.75 fee requested, \$750 fee awarded); *Liston v. Jurek*, No. 59758, 1992 WL 41858 (Ohio App., 8th Dist., Mar. 5, 1992) (\$11,750 fee requested, \$3,972 fee awarded); *Posey v. Mentor Lagoons*, No. 58868, 1991 WL 117972 (Ohio App., 8th Dist., June 20, 1991) (\$2,870 fee requested, \$750 fee

³⁵⁹ For further discussion on the attorney fee ruling in *Congdon*, see Section XVI.H.4, above.

awarded); *Lewis v. Romans*, No. 43594, 1981 WL 4713 (Ohio App., 8th Dist., Dec. 24, 1981) (\$8,800 fee requested, \$350 fee awarded).

7. No Limitation Based on Contingency Agreement

When a contingency agreement exists, the amount of the attorney fee award under R.C. Chapter 5321 is not limited to the amount specified in the contingency agreement. *Bynum v. Huffman*, No. 57730, 1990 WL 210225 (Ohio App., 8th Dist., Dec. 20, 1990). The reasonable attorney's fees that the court awards may exceed the contingency amount. *Id.*

8. No Limitation Based on Free Legal Services

Attorneys who provide clients with legal services at minimal or no cost may recover attorney's fees under R.C. Chapter 5321 to the same extent as other attorneys. *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012); *Chaney v. Breton Builder Co.*, 130 Ohio App.3d 602, 720 N.E.2d 941 (6th Dist. 1998); *Lewis v. Romans*, 70 Ohio App.2d 7, 433 N.E.2d 622 (8th Dist. 1980).

As stated in *Lewis*, 70 Ohio App.2d at 9, the reason for this conclusion is:

The Landlord and Tenant Act enunciates a clear policy of awarding attorney's fees to a tenant who must seek legal redress in the courts because of acts committed by a landlord in violation of the act. No exceptions are made by the language of R.C. 5321.15(C) for individuals represented at no charge.

A similar reason is stated in *Chaney*, 130 Ohio App.3d at 607-08:

[T]he language of R.C. 5321.16 does not restrict the trial court's ability to award attorney fees in cases where tenants have obtained legal representation at little or no cost. Such a limitation would allow landlords to arbitrarily benefit from the "fortuitous circumstance" of a tenant's inability to afford a private attorney.

"When a tenant has actually incurred no out-of-pocket attorney fees, the amount of fees determined to be proper should be awarded directly to the attorney or organization that provided the legal services." *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073, ¶ 10 (Ohio App., 2nd Dist., Oct. 12, 2012). *Accord Lewis v. Romans*, 70 Ohio App.2d 7, 9, 433 N.E.2d 622 (8th Dist. 1980).

G. Evidence in Support of the Motion for Attorney's Fees

1. Time for Presenting the Evidence

Attorney's fees under R.C. Chapter 5321 are taxed as costs. See Section XIX.C, above.

"Because attorney fees [under R.C. Chapter 5321] are assessed as costs rather than as damages, a tenant is not required to offer evidence of the amount of those attorney fees at trial." *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073, ¶ 16 (Ohio App., 2nd Dist., Oct. 12, 2012). *Accord Croxford v. Litchfield*, No. 1491, 1992 WL 20818, at *1 (Ohio App., 4th Dist., Jan. 27, 1992); *Fant v. DiSabato*, No. 87AP-265, 1987 WL 32190, at *3 (Ohio App., 10th Dist., Dec. 29, 1987); *Motz v. Liptak*, No. CA-10310, 1987 WL 14269, at *3 (Ohio App., 2nd Dist., July 9, 1987); *Berlinger v. Suburban Apt. Mgmt. Co.*, 7 Ohio App.3d 122, 126, 454 N.E.2d 1367 (8th Dist. 1982). See generally *Int'l Bd. of Elec. Workers, Local Union No. 8 v. Vaughn Indus., L.L.C.*, 116 Ohio St.3d 335, 879 N.E.2d 187, ¶¶ 14,15 (2007).

"An evidentiary hearing may be held to determine the reasonable amount of attorney fees to be awarded following a judgment finding that the tenant is entitled to attorney fees." *Gaitawe v. Mays*, No. 25083, 2012 WL 4859073, ¶ 16 (Ohio App., 2nd Dist., Oct. 12, 2012).

2. Presentation of the Evidence Via Affidavits or a Hearing

In an R.C. Chapter 5321 claim for attorney's fees, evidence in support of (or in opposition to) the fee request may initially be presented to the court through affidavits. *Manninen v. Alvarez*, No. CA2016-01-017, 2016 WL 4426451, ¶ 9 (Ohio App., 12th Dist., Aug. 22, 2016); *Manninen v. Alvarez*, No. CA2013-CA-106, 2014 WL 107852, ¶ 19 (Ohio App., 12th Dist., Jan. 13, 2014); *Oakwood Mgmt. Co. v. Young*, No. 92AP-207, 1992 WL 324338, at *4 (Ohio App., 10th Dist., Oct. 27, 1992); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169, at *2 (Ohio App., 6th Dist., Nov. 21, 1986); *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 25, 491 N.E.2d 701 (8th Dist. 1984); *Drake v. Menczer*, 67 Ohio App.2d 122, 126, 425 N.E.2d 961 (8th Dist. 1980) (Krenzler, J., concurring). Cf. *Westbourne Dev. Co. v. Sigma Sys. Health Mgmt. Specialists, Inc.*, No. 91AP-856, 1992 WL 11197, at *3 (Ohio App., 10th

Dist., Jan. 16, 1992) (attorney's fees under commercial lease; "if the parties to an action agree that attorney's fees should be determined via a non-oral hearing based upon affidavits, the trial court could proceed in that fashion").

However, if there is conflicting evidence or the non-moving party otherwise challenges the fee request, the court must hold an evidentiary hearing to resolve the issue. *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Oakwood Mgmt. Co. v. Young*, No. 92AP207, 1992 WL 324338 (Ohio App., 10th Dist., Oct. 27, 1992); *Mazer v. Fish*, No. C-890345, 1990 WL 88752 (Ohio App., 1st Dist., June 27, 1990). See also *Davis v. Reed*, Nos. 68699,68700, 1996 WL 347814 (Ohio App., 8th Dist., June 20, 1996). Cf. *Westbourne Dev. Co. v. Sigma Sys. Health Mgmt. Specialists, Inc.*, No. 91AP-856, 1992 WL 11197 (Ohio App., 10th Dist., Jan. 16, 1992) (commercial lease).

The moving party's lawyer has a right to testify to the court with respect to the amount of attorney services provided. *Nobis v. E.A. Zicka Co.*, 31 Ohio App.3d 104, 508 N.E.2d 980 (1st Dist. 1986). This right becomes a requirement if a timely objection is made to the attorney's affidavit of attorney hours, since the affidavit evidence is hearsay. See *Fay Gardens Mobile Home Park v. Newman*, 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983).

The non-moving party has a right to confront and cross-examine the moving party's attorney with respect to the amount of attorney services provided and to the other factors relevant to the reasonableness of the fee request. *Meacham v. Miller*, 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992); *Mazer v. Fish*, No. C-890345, 1990 WL 88752 (Ohio App., 1st Dist., June 27, 1990). See, e.g., *Hoerner v. GMS Mgmt. Co.*, No. 46736, 1983 WL 2892 (Ohio App., 8th Dist., Dec. 15, 1983).

Evidence of the reasonableness of the attorney's hours and hourly rate is usually presented through the testimony of an attorney who is familiar with the type of case involved and the hourly rate customarily charged in the locality for similar legal services. See, e.g., *Hall v. Lacheta*, No. 92AP-020013, 1992 WL 362546 (Ohio App., 5th Dist., Nov. 18, 1992); *Budac v. Nahmi*, No. 14901, 1991 WL 115908 (Ohio App., 9th Dist., June 19, 1991); *Schuab v. Roper*, No. 90-CVG-26859 (Ohio Mun., Cleveland, Hous. Div., Nov. 6, 1991).

3. Burden of Proof

In an R.C. Chapter 5321 claim for attorney's fees, the moving party has the burden of proving the attorney services rendered, the reasonableness of the attorney's hours,

the attorney's hourly rate, and the attorney fee requested. *Alcorso v. Correll*, No. 110218, 2021 WL 4317396 (Ohio App., 8th Dist., Sept. 23, 2021); *Helfrich v. Mellon*, No. 06-CA-69, 2007 WL 1881537 (Ohio App., 5th Dist., June 27, 2007); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986); *Choi v. Katz*, No. 44819, 1982 WL 2607 (Ohio App., 8th Dist., Dec. 18, 1982); *Myers v. Loudy*, No. 80-CA-8, 1980 Ohio App. LEXIS 11895 (Ohio App., 2nd Dist., Oct. 21, 1980). *Cf. Enyart v. Columbus Metro. Area Cmty. Action Org.*, 115 Ohio App.3d 348, 685 N.E.2d 550 (10th Dist. 1996) (R.C. 4123.90 claim).

The moving party must present "evidence going to the factors set forth in DR 2-106(B) [now Rule 1.5(a)]." *Davis v. Reed*, Nos. 68699, 68700, 1996 WL 347814, at *7 (Ohio App., 8th Dist., June 20, 1996). Most importantly, the moving party must present evidence of the number of attorney hours spent on the case, the type of services performed, and the fees customarily charged in the locality for similar services. *Zamos v. Dunn*, No. 2000-P-0120, 2001 WL 1149844 (Ohio App., 11th Dist., Sept. 28, 2001); *Myers v. Loudy*, No. 80-CA-8, 1980 Ohio App. LEXIS 11895 (Ohio App., 2nd Dist., Oct. 21, 1980). *See also Drake v. Menczer*, 67 Ohio App.2d 122, 126, 425 N.E.2d 961 (8th Dist. 1980) (Krenzler, J., concurring).

A moving party's failure to present evidence of the amount and nature of the attorney services provided and the reasonable value of that service is grounds for denying an attorney fee request. *Myers v. Loudy*, No. 80-CA-8, 1980 Ohio App. LEXIS 11895 (Ohio App., 2nd Dist., Oct. 21, 1980). *See also Warner v. Zuccola*, No. 53070, 1987 WL 30379 (Ohio App., 8th Dist., Dec. 24, 1987).

It is also grounds for reversing an attorney fee award.³⁶⁰ *Choi v. Katz*, No. 44819, 1982 WL 2607 (Ohio App., 8th Dist., Dec. 18, 1982). *See also Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984).

The moving party may not rely on the trial judge's presence in the case, experience, and knowledge of prevailing fees in the locality. *Myers v. Loudy*, No. 80-CA-8, 1980 Ohio App. LEXIS 11895 (Ohio App., 2nd Dist., Oct. 21, 1980). *See also Nobis v. E.A. Zicka Co.*, 31 Ohio App.3d 104, 508 N.E.2d 980 (1st Dist. 1986). *But cf. Enyart v. Columbus Metro. Area Cmty. Action Org.*, 115 Ohio App.3d 348, 358, 685 N.E.2d 550 (10th Dist. 1996) (R.C. 4123.90 claim; "[w]hile the better practice is to receive

³⁶⁰ In an appeal of an attorney's fees award under R.C. Chapter 5321, the standard of review is abuse of discretion. *Smith v. Padgett*, 32 Ohio St.3d 344, 513 N.E.2d 737 (1987). *See generally Bittner v. Tri-County Toyota, Inc.*, 58 Ohio St.3d 143, 569 N.E.2d 464 (1991).

testimony regarding the reasonableness of fees, a trial court under some circumstances is permitted to use its own knowledge in reviewing the record to determine the reasonableness and necessity of the services rendered”).

Likewise, the moving party may not rely solely on the amount of attorney’s fees paid. *Warner v. Zuccola*, No. 53070, 1987 WL 30379 (Ohio App., 8th Dist., Dec. 24, 1987).

H. Attorney’s Fees for Time Spent Litigating an Appeal

In an R.C. 5321 claim for attorney’s fees, if a party is awarded fees and then successfully defends an appeal of the judgment, the party is entitled to recover reasonable attorney’s fees for the time spent on the appeal (“appellate attorney’s fees”). *Klein v. Moutz*, 118 Ohio St.3d 256, 888 N.E.2d 404 (2008); *Cristal v. DRC Int’l, Inc.*, 74 Ohio App.3d 493, 599 N.E.2d 706 (8th Dist. 1991); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986). See also *Christe v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 379, 726 N.E.2d 497 (2000) (Lundberg Stratton, J., concurring in judgment only). Cf. *Parker v. I & F Insulation Co.*, No. C-980502, 1999 WL 420066 (Ohio App., 1st Dist., June 25, 1999) (R.C. 1345.09(F) claim, relies in part on *Breault*). But see *Zeallear v. F & W Props.*, No. 99AP-1215, 2000 WL 1015345 (Ohio App., 10th Dist., July 25, 2000) (declines to award appellate attorney’s fees because the appeal is not frivolous under Appellate Rule 23); *Nolan v. Sutton*, 97 Ohio App.3d 616, 647 N.E.2d 218 (1st Dist. 1994) (same).

Either the appellate court or the trial court may determine and award the appellate attorney’s fees. *Klein v. Moutz*, 118 Ohio St.3d 256, 888 N.E.2d 404 (2008).

The appellate court may determine and award the appellate attorney’s fees under Appellate Rule 24. *Kreps v. Pesina*, No. L-95-377, 1996 WL 430846 (Ohio App., 6th Dist., Aug. 2, 1996); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986). See also *Christe v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 379, 726 N.E.2d 497 (2000) (Lundberg Stratton, J., concurring in judgment only).

The trial court may determine and award the appellate attorney’s fees on a remand to determine and award costs. *Alcorso v. Correll*, No. 110218, 2021 WL 4317396, (Ohio App., 8th Dist., Sept. 23, 2021); *Cristal v. DRC Int’l, Inc.*, 74 Ohio App.3d 493,

599 N.E.2d 706 (8th Dist. 1991); *Breault v. Williamsburg Estates*, No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986). A party may request the appellate attorney's fees in the trial court via a motion for supplemental attorney's fees. *E.g.*, *Breault*, 1986 WL 13169, at *3-4.

Whether a remand of the fee issue is cost effective and promotes judicial efficiency may depend on whether, aside from the fee issue, the appellate court is remanding the case for further proceedings. *Klein v. Moutz*, 118 Ohio St.3d 256, 888 N.E.2d 404, ¶ 17 (2008).

Another reason for appellate courts to remand the fee issue is: ““The trial court is in a better position to determine a fee award, for it may hold a hearing, take testimony, create a record, and otherwise evaluate the numerous factors associated with calculating an attorney fee award.”” *Klein v. Moutz*, No. 23473, 2008 WL 2745960, ¶ 6 (Ohio App., 9th Dist., July 16, 2008) (quoting *Klein v. Moutz*, 118 Ohio St.3d 256, 888 N.E.2d 404, ¶ 13 (2008)).

I. Jury Trial

Since attorney's fees under R.C. Chapter 5321 are taxed as costs (see Section XIX.C, above), in a trial by jury, the award of attorney's fees is a matter for the court, not the jury. *Christe v. GMS Mgmt. Co.*, 88 Ohio St.3d 376, 726 N.E.2d 497 (2000); *Fant v. DiSabato*, No. 87AP-265, 1987 WL 32190 (Ohio App., 10th Dist., Dec. 29, 1987); *Drake v. Menczer*, 67 Ohio App.2d 122, 425 N.E.2d 961 (8th Dist. 1980).

XX. Jurisdiction

A. Introduction

This chapter briefly reviews the jurisdiction of county courts, municipal courts, and courts of common pleas, relative to the landlord-tenant claims that are discussed in Chapters I-XIX, above. For a discussion on jurisdictional issues in eviction actions, see Section I.L, above.

B. Monetary Jurisdiction

1. County Court

County courts have exclusive original jurisdiction in civil actions for the recovery of sums not exceeding five hundred dollars, and original jurisdiction in civil actions for the recovery of sums not exceeding fifteen thousand dollars. R.C. 1907.03.

“[I]t is the amount sought to be recovered as set forth in the complaint that determines jurisdiction, not the amount the court decides to award after the case has gone to trial.” *Staffilino Chevrolet, Inc. v. Balk*, 158 Ohio App.3d 1, 813 N.E.2d 940, ¶ 11 (7th Dist. 2004). Also, a party may reduce the amount of the recovery to stay within the court’s monetary jurisdiction. *Id.*, ¶ 24.

The monetary jurisdictional limit is exclusive of costs. *Staffilino Chevrolet, Inc. v. Balk*, 158 Ohio App.3d 1, 813 N.E.2d 940 (7th Dist. 2004); *Fay Gardens Mobile Home Park v. Newman*, 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983).

Therefore, it does not apply to attorney’s fees under R.C. Chapter 5321, since they are taxed as costs (see Section XIX.C, above). *Cf. Staffilino Chevrolet, Inc. v. Balk*, 158 Ohio App.3d 1, 813 N.E.2d 940, ¶ 22 (7th Dist. 2004) (attorney’s fees under Ohio’s bad faith exception).

2. Municipal Court

Municipal courts (exclusive of housing and environmental divisions) have original jurisdiction in civil actions in which the amount claimed by any party, or the appraised value of the personal property sought to be recovered, does not exceed fifteen thousand

dollars.³⁶¹ R.C. 1901.17.

The monetary jurisdictional limit is exclusive of costs. R.C. 1901.17. Therefore, it does not apply to attorney's fees under R.C. Chapter 5321, since they are taxed as costs (see Section XIX.C, above).

When a municipal court is enforcing the equitable rights of a party to a contract, the value of the contract may exceed the fifteen-thousand-dollar limit. *Behrle v. Beam*, 6 Ohio St.3d 41, 451 N.E.2d 237 (1983). For example, a municipal court has jurisdiction to order specific performance of a lease or land contract whose value exceeds fifteen thousand dollars, so long as none of the parties asserts a monetary claim for more than fifteen thousand dollars. *Id.*

Likewise, a municipal court has jurisdiction to hear an eviction action that concerns a land installment contract, even though the value of the property exceeds fifteen thousand dollars. *Shaw v. Kadey*, No. CA-7048, 1981 WL 2839 (Ohio App., 2nd Dist., June 29, 1981).

3. Court of Common Pleas

Courts of common pleas have original jurisdiction in civil actions in which the sums or matter in dispute exceed the exclusive original jurisdiction of county courts, currently five hundred dollars. R.C. 2305.01.

A court of common pleas may transfer to a municipal court any civil action in which the amount sought by the plaintiff does not exceed one thousand dollars, provided the municipal court has jurisdiction over the subject-matter and the parties, and provided the municipal court concurs in the transfer. *Id.*

C. Equity Jurisdiction

1. County Court

County courts do not have equity jurisdiction. *Gallagher v. Billmaier*, 79 Ohio Law Abs. 417, 154 N.E.2d 472 (Ohio App., 6th Dist., 1958).

³⁶¹ Two municipal courts have a housing division, Cleveland Municipal Court and Toledo Municipal Court. R.C. 1901.011. One municipal court has an environmental division, Franklin County Municipal Court. *Id.* The housing and environmental divisions are not subject to the R.C. 1901.17 monetary jurisdictional limit. See Section XX.E, below.

2. Municipal Court

Municipal courts (exclusive of municipal courts within Cuyahoga County and exclusive of housing and environmental divisions³⁶²) have equity jurisdiction in landlord-tenant actions only when it is an action at law based on contract. In such actions, under R.C. 1901.18(A)(3), a municipal court may enforce the equitable rights of a party to the contract and may grant any equitable relief necessary or proper for a complete determination of the rights of the parties.

Municipal courts have equity jurisdiction in eviction actions because an eviction action is an action at law upon a contract. See Sections I.A.4 and II.BB, above.

An action that seeks only equitable relief generally is not an action at law and, as a result, does not fall within the purview of R.C. 1901.18(A)(3). *E.g.*, *Dudkeiwicz v. United Mobile Homes*, No. 9-95-23, 1995 WL 577817 (Ohio App., 3rd Dist., Sept. 19, 1995) (complaint sought only to enjoin defendant from unlawfully removing plaintiff and her trailer from the premises); *Johnson v. Middleton*, 66 Ohio App.3d 783, 586 N.E.2d 1093 (3rd Dist. 1989) (action for specific performance of a land installment contract).

In any action brought in a municipal court within Cuyahoga County, and in any action brought in a housing or an environmental division of a municipal court: the court or division “has jurisdiction to ... hear and determine all legal and equitable remedies necessary or proper for a complete determination of the rights of the parties.” R.C. 1901.13(B) (municipal courts within Cuyahoga County); R.C. 1901.131 (housing and environmental divisions). For further discussion on the equity jurisdiction of housing divisions, see Section XX.E, below.

Excluding cases in Cuyahoga County or in a housing or an environmental division, the equity jurisdiction of municipal courts is often an issue in R.C. 5321.15 actions. See Chapters XII and XIII, above. The tenant typically seeks monetary and injunctive relief in response to a lockout, a utility termination, or a seizure of the tenant’s personal property. *Id.* The resulting issue is whether municipal courts have equity jurisdiction under R.C. 1901.18(A)(3) to grant the injunctive relief. The better reasoned conclusion is that municipal courts have this equity jurisdiction because the R.C. 5321.15(C) claim

³⁶² See note 361, above.

for monetary relief is an action at law based on contract (*i.e.*, the rental agreement).³⁶³ *Spaulding v. Sign of the Cross*, No. 01-CV-19578 (Ohio Mun., Hamilton Cty., Sept. 4, 2001); *Colquett v. Byrd*, 59 Ohio Misc. 45, 392 N.E.2d 1328 (Ohio Mun., Mansfield, 1979). *E.g.*, *Parker v. Hiles*, No. 02-CVH-362 (Ohio Mun., Chillicothe, Jan. 6, 2003) (enjoined landlord's termination of water service).

Under the same reasoning, in a tenant's R.C. 5321.04 contract claim for monetary and injunctive relief (see Sections IX.A.7,8, above), a municipal court has equity jurisdiction to enjoin the landlord from failing to remedy the R.C. 5321.04(A) violations. *E.g.*, *Woods v. Coleman*, No. 01-CVG-444 (Ohio Mun., Jackson Cty., Apr. 26, 2001) (preliminary injunction).

3. Court of Common Pleas

Courts of common pleas have general equity jurisdiction. *Beechler v. Winkel*, 59 Ohio App.2d 65, 392 N.E.2d 889 (6th Dist. 1978); *Carter v. Birnbaum*, 68 Ohio Law Abs. 97, 113 N.E.2d 102 (Ohio App., 8th Dist., 1953).

D. Subject-Matter Jurisdiction

1. County Court

County courts have limited subject-matter jurisdiction in civil actions. *See Gallagher v. Billmaier*, 79 Ohio Law Abs. 417, 154 N.E.2d 472 (Ohio App., 6th Dist., 1958). Its scope is defined principally by R.C. Chapter 1907.

Relevant to the landlord-tenant claims that are discussed in Chapters I-XIX, above, the subject-matter jurisdiction of county courts includes:

- (1) civil actions for the recovery of sums not exceeding fifteen thousand dollars, R.C. 1907.03, 1907.031;
- (2) actions for trespass on real estate in which the damages demanded do not exceed fifteen thousand dollars, R.C. 1907.05(A);
- (3) replevin actions in which the value of the personal property that is sought to be recovered does not exceed fifteen thousand dollars, R.C. 1907.06; and

³⁶³ A tenant may avoid this jurisdictional issue by filing the R.C. 5321.15 action in the court of common pleas. See Section XX.C.3., below.

(4) forcible entry and detainer actions, R.C. 1923.01(A), 1907.031(A)(6).

A county court has subject-matter jurisdiction in an eviction action that concerns a land installment contract. *Shelton v. Smith*, No. CA-323, 1984 WL 7469 (Ohio App., 5th Dist., Apr. 30, 1984).

A county court has subject-matter jurisdiction to enter a judgment that declares a cancellation and forfeiture of a land installment contract. *Williams v. Bjork*, 112 Ohio Misc.2d 57, 753 N.E.2d 995 (Ohio County Ct., Ashtabula Cty., 2001).

A county court has subject-matter jurisdiction in an eviction action that concerns whether the occupant exercised an option to purchase and thereby has an equitable interest in the title to the property. *Sears v. Fechuck*, No. 1999AP-080048, 2000 WL 874727 (Ohio App., 5th Dist., June 6, 2000).

A county court does not have subject-matter jurisdiction in an eviction action if a dispute exists as to which party holds present record title. See Section I.L.3, above.

2. Municipal Court

Municipal courts have limited subject-matter jurisdiction in civil actions, but it encompasses virtually all of the landlord-tenant claims that are discussed in Chapters I-XIX, above. The scope of municipal court subject-matter jurisdiction is defined principally by R.C. 1901.18.

One court held that, under R.C. 1901.18(A)(2),(3), it had subject-matter jurisdiction over the tenant's 42 U.S.C. § 1983 monetary counterclaim against a public housing authority. *Lorain Metro. Hous. Auth. v. Payne*, No. 2021-CVG-02216 (Ohio Mun., Lorain, Feb. 8, 2022). *But cf. White v. Chambers*, Nos. 1-01-114,115,116, 2002 WL 1299781 (Ohio App., 3rd Dist., May 29, 2002) (lack of subject-matter jurisdiction over plaintiff's 42 U.S.C. § 1983 claims alleged in a complaint).

Municipal courts do not have subject-matter jurisdiction in an eviction action if a dispute exists as to which party holds present record title. See Section I.L.3, above.

3. Court of Common Pleas

Courts of common pleas are courts of general jurisdiction. *State ex rel. Shoop v. Mitrovich*, 4 Ohio St.3d 220, 448 N.E.2d 800 (1983). This means that they have jurisdiction in all actions except those excluded specifically by statute. *State ex rel. Mastracci v. Rose*, 79 Ohio App. 556, 72 N.E.2d 582 (10th Dist. 1947); *Fellers v. Belau*, 87 Ohio Law Abs. 54, 178 N.E.2d 530 (Ohio C.P., Paulding Cty., 1961).

With one exception, and subject to the exclusive jurisdiction of housing divisions

(see Section XX.E, below), the landlord-tenant claims that are discussed in Chapters I-XIX, above, fall within the subject-matter jurisdiction of courts of common pleas. The one exception is an R.C. 5321.07(B) claim, which must be filed in the applicable municipal or county court. See Chapter VIII, above.

Generally, courts of common pleas have subject-matter jurisdiction in eviction actions, and it is concurrent with the jurisdiction of the applicable municipal or county court. *Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.*, 67 Ohio St.2d 19, 24, 423 N.E.2d 1070 (1981). See R.C. 1923.01(A), 2305.01.

However, a court of common pleas does not have subject-matter jurisdiction in any eviction action that falls within the jurisdiction of a housing division.³⁶⁴ *Maduka v. Parries*, 14 Ohio App.3d 191, 192 n.3, 470 N.E.2d 464 (8th Dist. 1984). A housing division has exclusive jurisdiction, within the territory of the municipal court, in eviction actions. R.C. 1901.181. See also *Maduka*, 14 Ohio App.3d at 192 n.3.

E. Housing Division, Cleveland and Toledo Municipal Courts

Two municipal courts in Ohio have a housing division, Cleveland Municipal Court and Toledo Municipal Court. R.C. 1901.011.

A housing division has exclusive jurisdiction, within the territory of the municipal court, in civil actions commenced under R.C. Chapter 1923 or R.C. Chapter 5321. R.C. 1901.181(A). See also *State ex rel. J.K. & E. Auto Wrecking v. Trumbo*, 64 Ohio St.3d 73, 591 N.E.2d 1238 (1992); *Edmunds v. Little*, 103 Ohio App.3d 488, 659 N.E.2d 1291 (6th Dist. 1995); *Higginbottom v. Rehoboth Temple Church, Etc.*, No. 67909, 1995 WL 546935 (Ohio App., 8th Dist., Sept. 14, 1995); *Maduka v. Parries*, 14 Ohio App. 3d 191, 470 N.E.2d 464 (8th Dist. 1984).

A housing division also has exclusive jurisdiction, within the territory of the municipal court, in civil actions commenced under R.C. Chapter 4781 (former R.C. Chapter 3733). *Anderle v. Ideal Mobile Home Park, Inc.*, 101 Ohio App.3d 122, 655 N.E.2d 203 (8th Dist. 1995).

The R.C. 1901.17 monetary jurisdictional limit does not apply to a complaint,

³⁶⁴ See note 361, above.

counterclaim, or cross-claim filed in a housing division.³⁶⁵ R.C. 1901.17.

Whenever an action is properly brought in a housing division, the housing division has jurisdiction:

to determine, preserve, and enforce all rights involved in the action or proceeding, to hear and determine all legal and equitable remedies necessary or proper for a complete determination of the rights of the parties, including, but not limited to, the granting of temporary restraining orders and temporary and permanent injunctions, to render personal judgment irrespective of amount in favor of any party, and to render any judgments and make any findings and orders in the same manner and to the same extent that the court of common pleas can render a judgment or make a finding or order in a similar action or proceeding.

R.C. 1901.131.

“Thus, subject matter jurisdiction [under R.C. 1901.131] is a two-part test. First, the case must be ‘properly brought’ in the housing division. Second, the Housing Court’s jurisdiction cannot be greater than that of common pleas court.” *Cuyahoga Metro. Hous. Auth. v. Jenkins*, No. 2005-CVG-22841, slip op. at 1 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006).

“Once the housing division has jurisdiction over a claim, its incidental jurisdiction [under R.C. 1901.131] over related claims is broadly defined.” *Skerl v. Sheet Metal Prods. Co.*, No. 43743, 1982 WL 2453, at *2 (Ohio App., 8th Dist., July 1, 1982).

The R.C. 1901.131 incidental jurisdiction permits a plaintiff to include related claims in the complaint. *E.g., Cleveland Hous. Renewal Project v. Wells Fargo Bank, N.A.*, 188 Ohio App.3d 36, 934 N.E.2d 372 (8th Dist. 2010) (complaint for R.C. 3767.41 claims under R.C. 1901.181 jurisdiction, and for a related common law nuisance claim under R.C. 1901.131 jurisdiction).

The R.C. 1901.131 incidental jurisdiction also permits a defendant to assert counterclaims related to the complaint. *Cuyahoga Metro. Hous. Auth. v. Jenkins*, No.

³⁶⁵ Before January 27, 1997, under R.C. 1901.17 and 1901.181, the R.C. 1901.17 monetary jurisdictional limit applied to a complaint filed in a housing division, but not to a counterclaim or cross-claim filed in a housing division. See 1996 Ohio Legis. Serv. L-3373 to L-3376 (Baldwin) (H 350 § 1). See also *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993); *City of Cleveland v. Sundorph Aeronautical Corp.*, No. 59739, 1991 WL 34719 (Ohio App., 8th Dist., Mar. 14, 1991); *Davis v. Freeman*, No. 57245, 1990 WL 130919 (Ohio App., 8th Dist., Sept. 13, 1990).

2005-CVG-22841 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006) (complaint for eviction claim; 42 U.S.C. § 1983 counterclaim, related to the eviction claim, permitted under the court's R.C. 1901.131 jurisdiction).

Under R.C. 1901.131, a housing division has subject-matter jurisdiction over related counterclaims brought under 42 U.S.C. § 1983, provided the complaint was properly brought in the housing division. *Cuyahoga Metro. Hous. Auth. v. Jenkins*, No. 2005-CVG-22841 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006). *See also Cuyahoga Metro. Hous. Auth. v. Humphries*, No. 93-CVG-06480 (Ohio Mun., Cleveland, Hous. Div., Jan. 3, 1996). Since courts of common pleas have jurisdiction to hear § 1983 claims (*State ex rel. Carter v. Schotten*, 70 Ohio St.3d 89, 92 n.2, 637 N.E.2d 306 (1994)), § 1983 counterclaims fall within the purview of R.C. 1901.131. *Cuyahoga Metro. Hous. Auth. v. Jenkins*, No. 2005-CVG-22841 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006).

One appellate court erroneously stated that “[t]here is no authority for maintaining a 1983 action or an aviation case, as proposed, in the [housing division of] municipal courts because they are not courts of general jurisdiction.” *City of Cleveland v. A.J. Rose Mfg. Co.*, 89 Ohio App.3d 267, 273, 624 N.E.2d 245 (8th Dist. 1991). The court's statement is erroneous because, as discussed above, R.C. 1901.131 confers upon housing divisions incidental subject-matter jurisdiction that is the same as the subject-matter jurisdiction of courts of common pleas. *Cuyahoga Metro. Hous. Auth. v. Jenkins*, No. 2005-CVG-22841, slip op. at 2 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006).³⁶⁶

³⁶⁶ *A.J. Rose Mfg. Co.* is also distinguishable from *Jenkins* and *Humphreys* in that the § 1983 claim in *A.J. Rose Mfg. Co.* was a permissive counterclaim, whereas the § 1983 claims in *Jenkins* and *Humphreys* were compulsory counterclaims. *See Cuyahoga Metro. Hous. Auth. v. Humphries*, No. 93-CVG-06480 (Ohio Mun., Cleveland, Hous. Div., Jan. 3, 1996).

XXI. Landlord-Tenant Law for Manufactured Home Parks

A. Introduction

The Ohio landlord-tenant law for manufactured home parks (“mh parks”) is set forth in R.C. 4781.01, 4781.36-.52 (former R.C. 3733.01, 3733.09-.20). The legislature relocated the Ohio landlord-tenant law for mh parks, from R.C. Chapter 3733 to R.C. Chapter 4781, effective September 10, 2012. Am. Sub. H.B. No. 487, 129th General Assembly.

In 2017, the legislature dissolved the Manufactured Homes Commission and transferred the state regulation of manufactured home parks to the Department of Commerce, effective January 21, 2018. Am. Sub. H.B. No. 49, 132nd General Assembly. The Director of Commerce promulgates rules, in Ohio Administrative Code Chapter 4781-12, that supplement R.C. Chapter 4781. The Department of Commerce investigates complaints concerning violations of Ohio’s Manufactured Homes Law. *Id.*

The Ohio landlord-tenant law for mh parks is remedial legislation and, therefore, must be liberally construed in order to promote its object and assist the parties in attaining justice. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 488 N.E.2d 479 (1986).

The Ohio landlord-tenant law for mh parks establishes, in the mh park context, virtually all of the rights and obligations that are established in R.C. Chapter 5321 for residential landlords and tenants. *Schwartz v. McAtee*, 22 Ohio St.3d 14, 17-18, 488 N.E.2d 479 (1986). “The two chapters are essentially identical but for the omission of a parallel statute in R.C. Chapter 3733 [now R.C. Chapter 4781] providing for termination of periodic tenancies as embodied in R.C. 5321.17.”³⁶⁷ *Courts v. Buckeye Lake Estates Mobile Home Park*, No. 01-CA-00121, 2002 WL 1299838, ¶ 16 (Ohio

³⁶⁷ “The reason for this omission is the recognition by the legislature that today’s ‘mobile’ homes have, by nature, become ‘immobile.’” *Courts v. Buckeye Lake Estates Mobile Home Park*, No. 01-CA-00121, 2002 WL 1299838, ¶ 16 (Ohio App., 5th Dist., June 4, 2002). For further discussion on the immobility of mobile homes, see *Pojman v. Columbia-Brookpark Mgmt., LLC*, No. 88666, 2007 WL 2269682, ¶ 3 (Ohio App., 8th Dist., Aug. 9, 2007). For a discussion on the resulting good cause requirement for terminating a MH park tenancy, see Section IV.C.1, above.

App., 5th Dist., June 4, 2002).

Therefore, with respect to Chapters I-XX, above, each discussion of an R.C. Chapter 5321 provision is generally applicable to the corresponding R.C. Chapter 4781 (former R.C. Chapter 3733) provision.

B. Parallel Provisions – R.C. Chapters 4781, Former 3733, and 5321

The corresponding provisions between R.C. Chapter 4781, former R.C. Chapter 3733, and R.C. Chapter 5321 are set forth below.

<u>Subject</u>	<u>Chapter 4781</u>	<u>Chapter 3733</u>	<u>Chapter 5321</u>
Retaliation	4781.36,.37	3733.09,.091	5321.02,.03
Obligations of park operator or landlord	4781.38	3733.10	5321.04
Obligations of resident	4781.39	3733.101	5321.05
Rental agreement provisions	4781.40(L)	3733.11(L)	5321.06
Rent deposit and related remedies	4781.41-4781.44	3733.12-3733.123	5321.07-5321.10
Termination notice for resident's statutory violation	4781.45	3733.13 ³⁶⁸	5321.11
Action for damages	4781.46	3733.14	5321.12
Unlawful rental agreement provisions	4781.47	3733.15	5321.13
Unconscionability	4781.48	3733.16	5321.14

³⁶⁸ While R.C. 4781.45 (former R.C. 3733.13) is similar to R.C. 5321.11, it includes more substantive and procedural requirements than R.C. 5321.11.

Self-help evictions and seizure of resident's property	4781.49	3733.17	5321.15
Security deposits	4781.50	3733.18	5321.16
Notice of name and address of owner	4781.51	3733.19	5321.18
Conflicts with ordinances	4781.52	3733.20	5321.19

C. Additional Rights and Obligations, and Court Decisions, R.C. Chapter 4781

1. Introduction

The Ohio landlord-tenant law for mh parks also creates rights and obligations for which there are no corresponding R.C. Chapter 5321 provisions. They are discussed in Chapter IV, above, with regard to eviction actions, and in Section XXI.C.3, below, with regard to R.C. 4781.40. Summaries of R.C. Chapter 4781 court decisions are set forth in Section XXI.C.4, below. Definitions of the relevant parties in Ohio's landlord law for mh parks are set forth in Section XXI.C.2, below.

2. Definitions of Relevant Parties

The relevant parties in Ohio's landlord-tenant law for mh parks are defined in R.C. 4781.01. A "manufactured home park operator" or "park operator" is "the person who has responsible charge of a manufactured home park and who is licensed under sections 4781.26 to 4781.35 of the Revised Code." R.C. 4781.01(M). A "tenant" is "a person who is entitled under a rental agreement with a manufactured home park operator to occupy a manufactured home park lot and who does not own the home occupying the lot." R.C. 4781.01(T). An "owner" is "a person who is entitled under a rental agreement with a manufactured home park operator to occupy a manufactured home park lot and who owns the home occupying the lot." R.C. 4781.01(U). A "resident" is "a person entitled under a rental agreement to the use and occupancy of residential premises to the exclusion of others." R.C. 4781.01(V). Resident includes both tenants and owners. *Id.* For further discussion on these definitions, see Section IV.A., above.

3. Summary of R.C. 4781.40 Rights and Obligations

Before the installation of an owner's manufactured or mobile home in a mh park, the park operator must offer the owner a written rental agreement for a term of one year or more. R.C. 4781.40(A)(1). The park operator must deliver this offer to the owner in person or by certified mail, return receipt requested. R.C. 4781.40(A)(2).

At the end of each successive rental agreement, the park operator must offer the owner another rental agreement "for a term that is mutually agreed upon, and that contains terms essentially the same as the alternative month-to-month agreement." *Id.* The park operator must deliver subsequent rental offers by ordinary mail or personal delivery. *Id.*

Before a resident executes a rental agreement and assumes occupancy in a mh park, the park operator must disclose in writing all fees, charges, and assessments, including rental fees. R.C. 4781.40(B). Those fees, charges, and assessments may include a fee for moving a manufactured or mobile home into or out of the mh park, but only for the actual costs and expenses that are incurred by the park operator in the move. R.C. 4781.40(H)(5).

If a park operator fails to disclose a fee, charge, or assessment: (1) the park operator may not collect the fee, charge, or assessment, and (2) the park operator may not evict the resident for nonpayment of the fee, charge, or assessment. R.C. 4781.40(B), 4781.40(H)(4).

A park operator may not increase a disclosed fee, charge, or assessment during the term of the resident's rental agreement. R.C. 4781.40(B). In addition, a park operator may not increase a disclosed fee, charge, or assessment without providing the resident with at least 30 days advance written notice of the increase and its effective date. R.C. 4781.40(B).

Before a resident executes a rental agreement and assumes occupancy in a mh park, the park operator must disclose in writing the park rules and must provide a copy of the park rules to the resident. R.C. 4781.40(B),(C). The park operator may not change those rules without providing the resident with at least 30 days advance written notice of the change and its effective date. R.C. 4781.40(B).

The park operator may not adopt any park rule that is unreasonable, arbitrary, or capricious. R.C. 4781.40(C). And the park operator may not adopt any rule (or include any provision in a rental agreement) that restricts a resident's right to display the flag of the United States or certain other specified flags, provided the flag is displayed in

accordance with certain specified requirements. R.C. 4781.40.

A park operator may not require an owner: (1) to purchase from the park operator any personal property, (2) to purchase a manufactured or mobile home from the park operator or any other specific person as a prerequisite to entering into a rental agreement, or (3) to use the services of the park operator or any other specific person for the performance of any service. R.C. 4781.40(D),(F),(G).

A park operator may not assess a fee for the installation of an owner's electric or gas appliance, unless the installation is performed by the park operator at the owner's request. R.C. 4781.40(E).

R.C. 4781.40 establishes various rights and obligations regarding the sale of a manufactured or mobile home within a mh park. The park operator may not deny the owner the right to sell the home within the park, if the owner gives the park operator ten days advance notice of the owner's intent to sell the home. R.C. 4781.40(H)(1). The park operator may not require the owner to remove the home from the park solely because of the sale. R.C. 4781.40(H)(2). The park operator may not unreasonably refuse to enter into a rental agreement with the purchaser of the home. R.C. 4781.40(H)(3). The park operator may not assess the owner a fee because of the transfer of ownership. R.C. 4781.40(H)(5). A rental agreement may not require the owner to sell the home to any specific person or through any specific agent. R.C. 4781.40(J). A rental agreement may not require the owner to pay a fee to the park operator if the owner does not use the park operator or some other designated person as the owner's agent in the sale of the home. R.C. 4781.40(K).

4. Summary of Court Decisions, R.C. 4781.36-.52 (Former R.C. 3733.09-.17)

a. R.C. 4781.36 (Former R.C. 3733.09)

Webb v. C & J Props., LLC, No. CA2010-01-016, 2010 WL 3213020 (Ohio App., 12th Dist., Aug. 16, 2010)

“While there is a temporal proximity between the complaint and the termination, ‘such a circumstance does not create a presumption of retaliation under Ohio law.’ Without any other evidence regarding C & J’s termination of the rental agreement, Webb failed to show by a preponderance of the evidence that C & J retaliated against him.”

Euclid Beach Ltd. v. Brockett, No. 75047, 1999 WL 1129086 (Ohio App., 8th Dist., Dec. 9, 1999)

The park operator violated R.C. 3733.09 when it terminated the water service to the home and thereby forced the resident to vacate the home.

Pierce v. Derickson, No. CA-3105, 1985 Ohio App LEXIS 8010 (Ohio App., 5th Dist., June 10, 1985)

A court may award attorney's fees under R.C. 3733.09 only if the resident has suffered actual damages as a result of an R.C. 3733.09 violation.

Braff Mobile Home Park Co. v. McFarland, No. 8-265, 1982 WL 5815 (Ohio App., 11th Dist., July 23, 1982)

The court upheld the denial of a retaliation defense. No direct evidence showed that: (1) the resident complained to the park operator regarding the water problem, (2) the park operator knew that the resident had taken water samples to a governmental agency, or (3) the governmental agency found anything wrong with the water.

Voyager Vill., Ltd. v. Sudduth, No. 81-CA-63, 1982 Ohio App. LEXIS 15638 (Ohio App., 2nd Dist., Apr. 15, 1982)

The court upheld the denial of a retaliation defense. The alleged retaliation was based on the resident's complaint to the park operator regarding standing water. The complaint could not be the basis for a retaliation defense because the standing water was not a violation of R.C. 3733.10.

Troy v. Casale, No. 2976, 1982 WL 5894 (Ohio App., 11th Dist., Mar. 31, 1982)

The court upheld the denial of a retaliation defense. The resident's complaints to the park operator involved a personal conflict between the resident and the park operator, and not any of the grounds set forth in R.C. 3733.09.

Country Club Vill. Mobile Home Park v. Gall, No. 958, 1980 WL 154220 (Ohio App., 11th Dist., Oct. 20, 1980)

The court upheld the award of retaliation damages to the resident. The park operator filed an eviction action in response to the resident's complaints to the park operator, which concerned low water pressure and an inoperative outdoor light.

b. R.C. 4781.37 (Former R.C. 3733.091)

Fay Gardens Mobile Home Park v. Newman, 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983)

A resident who is in default in the payment of rent may not assert a retaliation defense under R.C. 3733.09 and may not recover damages for the park operator's retaliation.

Voyager Vill., Ltd. v. Williams, 3 Ohio App.3d 288, 444 N.E.2d 1337 (2nd Dist. 1982)

R.C. 3733.091(A)(3) does not apply when a park operator serves a month-to-month resident with a notice of termination because of the resident's R.C. 3733.09(A) activities.

c. R.C. 4781.38 (Former R.C. 3733.10)

General Issues

Wood v. Crestwood Assocs., LLC, No. 1-09-37, 2010 WL 1175208 (Ohio App., 3rd Dist., Mar. 29, 2010)

"While acknowledging that claims against park operators are governed under R.C. Chapter 3733 and not R.C. Chapter 5321 (governing landlords), the Court of Appeals has, nonetheless, applied analogous landlord-tenant case law when analyzing claims of negligence arising under R.C. 3733.10(A)."

Lewis v. Wall, No. 2007-A-0048, 2008 WL 2633473 (Ohio App., 11th Dist., July 3, 2008)

A violation of R.C. 3733.10, like a violation of R.C. 5321.04, constitutes negligence per se.³⁶⁹ The R.C. 3733.10(A)(1),(2),(3) standards are virtually identical to the R.C. 5321.04(A)(1),(2),(3) standards.

Arndt v. P & M Ltd., 163 Ohio App.3d 179, 837 N.E.2d 398 (11th Dist. 2005)

Use (*i.e.*, exhaustion) of the R.C. 3733.12 rent deposit remedy is not a prerequisite for filing an R.C. 3733.10(B) claim for injunctive relief and compensatory damages.

Sterling v. Stevens, No. 02-JE-47, 2003 WL 22232008 (Ohio App., 7th Dist., Sept. 25, 2003)

The R.C. 3733.10(A)(2),(3) standards are virtually identical to the R.C. 5321.04(A)(2),(3) standards.

Eastgate Mobile Home, Etc. v. Klekamp, No. CA92-05-060, 1994 WL 29876 (Ohio App., 12th Dist., Jan. 31, 1994)

If an occupant of a home is not a tenant, owner, or resident of the home, as those terms are defined in R.C. 3733.01, the occupant does not have standing to commence an action against the park operator for alleged

³⁶⁹ For a discussion on the R.C. 5321.04 negligence per se claim, see Section IX.B, above.

violations of R.C. 3733.10.

Water or sewer service

Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd., No. 2006-CA-25, 2007 WL 196467 (Ohio App., 2nd Dist., Jan. 26, 2007)

Court of appeals upheld trial court's schedule for testing the water filtration system, which had been installed under previous orders in this case.

Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd., 162 Ohio App.3d 453, 833 N.E.2d 1259 (2nd Dist. 2005)

Court of appeals upheld trial court's remedies for park operator's violations of its R.C. 3733.10(A)(4) obligation to maintain the water system in good and safe working order. The water contained elevated levels of iron and arsenic. The remedy upheld included immediate relief (\$13 per person per month reduction in rent to purchase bottled water), intermediate relief (periodic testing of the water quality and flushing of the water system), and permanent relief (installation of a filtration system to remove the iron and arsenic from the water).

Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd., No. 2002-CA-68, 2003 WL 21121992 (Ohio App., 2nd Dist., May 16, 2003)

Court of appeals upheld trial court's holding that the park operator violated its R.C. 3733.10(A)(4) obligation to maintain the water system in good and safe working order. The water contained elevated levels of iron and arsenic. Court of appeals remanded the remedy issue for the trial court to enter an order "specifying the terms for testing the water, for remedying the underlying problem, and for providing short-term, immediate relief to the residents."

Anderle v. Ideal Mobile Home Park, Inc., 114 Ohio App.3d 385, 683 N.E.2d 348 (8th Dist. 1996)

"[T]he duty R.C. 3733.10(A)(4) places on park operators to maintain water systems in good and safe working order and condition does not place the responsibility for paying for meter reading and billing expenses on the park operator."

Wickham v. Woodlyn Acres, No. H-96-015, 1996 WL 612314 (Ohio App., 6th Dist., Oct. 25, 1996)

The park operator violated R.C. 3733.10(A)(4) in furnishing water to the home that was not drinkable because of its iron content.

Menges v. Superior Mobile Homes, Inc., No. 94AP-100068, 1995 WL 498820 (Ohio App., 5th Dist., July 12, 1995)

The park operator violated R.C. 3733.10 in failing to provide a water service connection and thereby failing to provide water service. The park operator also violated R.C. 3733.10 in failing to remedy a backup from the main sewer line, which caused sewage to overflow into the home.

Rex Hill, Inc. v. Cherry, No. 2588, 1991 WL 95243 (Ohio App., 9th Dist., May 29, 1991)

The park rule required residents to maintain lateral sewer lines. The park rule was “an improper abdication of a park operator’s legal obligation to maintain good and safe septic systems pursuant to R.C. 3733.10(A)(4).” “R.C. 3733.10(B) permits reasonable attorney fees to a tenant for an action involving a park operator’s failure to comply with its statutory obligations.”

Benson v. Oaks Mobile Home Park, No. 1156, 1983 WL 6313 (Ohio App., 11th Dist., Mar. 15, 1983)

The park operator violated R.C. 3733.10 in failing to repair a sewer system, which backed up and discharged over the resident’s lot whenever the toilet was flushed.

Miller v. Hamm, No. 15-CV-0580 (Ohio C.P., Marion Cty., June 22, 2016)

Park operator violated R.C. 4781.38(A)(4) when the water service to the park was shut-off because of the park operator’s failure to pay the water bill. Under R.C. 4781.38(B), actual damages may include emotional distress injury.

Shouhayib v. Yarger, No. E-9700004, 1998 WL 911706 (Ohio Mun., Perrysburg, Jan. 28, 1998)

The park operator violated R.C. 3733.10(A)(4) in furnishing water to the home that was not drinkable, had iron levels as high as forty-one times the EPA’s Secondary Maximum Contaminant Level for iron, had a heavy chlorine odor, stained clothing during the laundry process, stained fixtures, destroyed heating elements, and damaged small appliances.

Electrical service

Eastgate Mobile Home, Etc. v. Klekamp, No. 87-CV-000280, 1988 WL 583172 (Ohio C.P., Clermont Cty., Apr. 6, 1988)

R.C. 3733.10 does not require the park operator to repair the electrical line that connects the home to the electrical box of the park.

Nichols v. Malone, No. 00-CVG-1022 (Ohio Mun., Marietta, Nov. 14, 2001)

The park operator was liable for the defective electrical wiring from the electric meter to the home and for the defective supply line from the electric pole to the electric meter.

Concrete pad

Jones v. Superior Mobile Homes, Inc., No. 93-CVH-1-R, 1994 WL 906706 (Ohio County Ct., Trumbull Cty., Jan. 24, 1994)

The park operator is responsible for maintaining the concrete pad that it rents to an owner, unless there is a written agreement to the contrary between the park operator and the owner.

Flooding

Arndt v. P & M Ltd., Nos. 2007-P-0038,0039, 2008 WL 2042831 (Ohio App., 11th Dist., May 9, 2008)

“[P]ursuant to R.C. 3733.10(A)(1) and Ohio Adm. Code 3701-27-07(A), a manufactured home park operator has a duty to ‘ensure that a manufactured home park ... is well drained and not subject to recurrent flooding.’ Under this duty, a park operator is required ‘to do what is reasonably necessary to prevent recurrent flooding.’ The park operator must ‘use ‘reasonable diligence and care’ to comply with the statutory obligation and that, if compliance is impossible despite such diligence and care, the actor [park operator] is relieved of liability.... Conversely, where an actor [park operator] fails to exercise reasonable diligence and care to comply with the statutory duty, they may be found liable.’ ‘Thus, holding defendants [park operators] liable for failing to prevent recurrent flooding does not impose strict liability on park operators for any or all flooding that may occur.’ A claim also exists for violations of R.C. 3733.10(A)(2) and 3733.10(A)(3) where flood waters render homes and common areas

unfit for habitation for weeks at a time.³⁷⁰

Willow Rest Trailer Park, Inc. v. Willow Rest Tenants' Ass'n, Inc., No. 17338, 1996 WL 137402 (Ohio App., 9th Dist., Mar. 27, 1996)

The park owner violated R.C. 3733.10 in failing to prevent or correct the periodic flooding from a ditch, which runs through the park.

Outside Grounds

Lewis v. Wall, No. 2007-A-0048, 2008 WL 2633473 (Ohio App., 11th Dist., July 3, 2008)

The defective condition was erosion around a retaining wall, which was located on the resident's property. It did not violate any code and thus did not violate R.C. 3733.10(A)(1). While it may have made mowing and yard work more difficult to perform, it did not violate the R.C. 3733.10(A)(2) fit and habitable standard. It was not located in a common area and thus did not violate the R.C. 3733.10(A)(3) safe and sanitary standard.

Sterling v. Stevens, No. 02-JE-47, 2003 WL 22232008 (Ohio App., 7th Dist., Sept. 25, 2003)

The defective condition was an indentation in the grounds of the resident's property. It did not violate the R.C. 3733.10(A)(2) fit and habitable standard. It was not located in a common area and thus did not violate the R.C. 3733.10(A)(3) safe and sanitary standard.

Pets

Thompson v. Irwin, No. CA97-05-101, 1997 WL 666079 (Ohio App., 12th Dist., Oct. 27, 1997)

R.C. 3733.10(A)(3) does not require a park operator to police the animals or pets of the residents. Therefore, if a resident's dog breaks its chain and escapes in violation of a park rule, the park operator has not violated R.C. 3733.10(A)(3).

Bundy v. Sky Meadows Trailer Park, No. CA89-01-002, 1989 WL 125379 (Ohio App., 12th Dist., Oct. 23, 1989)

R.C. 3733.10(A)(3) does not require a park operator to police the animals or pets of the residents. Therefore, if a resident's dog is roaming the

³⁷⁰ The Court reiterated and applied this reasonable diligence standard in a subsequent appeal in the case. *Arndt v. P & M Ltd.*, No. 2013-P-0027, 2014 WL 3420450, ¶ 117 (Ohio App., 11th Dist., July 14, 2014).

common area in violation of a park rule, the park operator has not violated R.C. 3733.10(A)(3).

Entry upon premises

Easley v. Thompson, No. 96-P-0105, 1996 WL 648734 (Ohio App., 11th Dist., Oct. 18, 1996)

The park operator's entries upon the property, without prior notice to the owner, did not violate R.C. 3733.10. The owner did not have a telephone, the entries were not into the home, and the entries were for valid purposes (e.g., reading the water meter).

d. R.C. 4781.40 (Former R.C. 3733.11)

General issues

LeMay v. Seckler, No. OT-04-032, 2005 WL 1414449 (Ohio App., 6th Dist., June 17, 2005)

R.C. 3733.11(I) attorney's fees may be awarded based on the issuance of a declaratory judgment. An award of damages is not a prerequisite to an award of attorney's fees under R.C. 3733.11(I).

Sale of home

Kantner v. Gibson, No. 2-07-17, 2007 WL 414177 (Ohio App., 3rd Dist., Nov. 26, 2007)

A "potential tenant's credit history, rental history, and income are reasonable factors for a landlord to consider when deciding whether a lease should be extended" to such purchasers. Court of appeals upheld the trial court's finding that the park operator's application of these criteria was unreasonable for four reasons. First, the park operator failed to inform the resident of its reasons for denying the rental application and thus denied the resident an opportunity to cure. Second, the park operator failed to give the resident a copy of the park guidelines that were allegedly violated. Third, the resident had remedied many of the violations and was making a good faith effort to comply with the park operator's requests. Fourth, the park operator initially requested the resident to vacate even before giving the resident a rental application to complete.

Bennington v. Austin Square, Inc., No. 2005-CA-00095, 2005 WL 52245 (Ohio App., 5th Dist., Jan. 9, 2006)

The enforcement of an upgrade rule, at the time of sale, violated R.C. 3733.11(H)(1),(2). Because it was a selective enforcement of the upgrade

rule, it also violated R.C. 3733.11(C).

Euclid Beach Ltd. v. Brockett, No. 75047, 1999 WL 1129086 (Ohio App., 8th Dist., Dec. 9, 1999)

The park operator violated R.C. 3733.11(H) because it “effectively prevented Brockett [resident] from selling her home by refusing to accept prospective buyers, as evidenced by the two real estate contracts that never resulted in the sale of the home.”

Anderle v. Ideal Mobile Home Park, Inc., 101 Ohio App.3d 122, 655 N.E.2d 203 (8th Dist. 1995)

The park operator violated R.C. 3733.11(H)(5) in charging a \$300 transfer fee to any resident who sold a home to a person wishing to remain in the park.

Santilla v. Sahara Mobile Home Park & Sales, No. 93-L-028, 1993 WL 407233 (Ohio App., 11th Dist., Sept. 30, 1993)

The park operator did not violate R.C. 3733.11(H)(3) when it refused to enter into a rental agreement with a purchaser of a home. The refusal “was based on concerns over lack of employment and lack of established credit.”

Trailer Mart, Inc. v. Semenach, No. 42629, 1981 WL 169157 (Ohio App., 8th Dist., Mar. 26, 1981)

When a park operator violates R.C. 3733.11(H)(3), the resident may recover actual damages under R.C. 3733.11(C) and the resident may recover damages (including nominal damages) under R.C. 3733.14.

White v. Leichtman, No. 838, 1980 Ohio App. LEXIS 13362 (Ohio App., 11th Dist., Mar. 31, 1980)

The court upheld a park rule that required new owners (and not current owners) to install a cement pad under their home. A current owner challenged the park rule under R.C. 3733.11(H)(1),(2),(3). She claimed that she had lost a prospective sale of her home because of the park rule. The court held that R.C. 3733.11(H)(3) did not support the claim because it confers rights on the purchaser, not the seller. The court held that R.C. 3733.11(H)(1),(2) are irrelevant to the claim.

Jameson v. Sommer's Mobile Home Sales, Inc., No. 83769 (Ohio C.P., Lorain Cty., May 13, 1980)

R.C. 3733.11(F),(K) prohibit a park operator from requiring the purchaser of a home to move the home from the park, if the requirement is imposed

because the park operator was not the agent for the sale.

Cnty. Gardens Park & Sales, Inc. v. Roe, No. M8109-CVG-027176 (Ohio Mun., Franklin Cty., Nov. 6, 1981)

“O.R.C. 3733.11(H) prohibits a park operator from denying [a] sale of the trailer on the site and requires a one year lease to the new occupant if reasonable.”

Mentor Trailer Park, Inc. v. Clark, No. 79-CVG-492 (Ohio Mun., Mentor, June 7, 1979)

A park operator may not require all purchasers of homes within the park to move, without regard to the age and condition of the home. However, R.C. 3733.11(H) does not prohibit the eviction of an owner for noncompliance with park rules merely because, after a writ of restitution had been granted, the owner sought to sell the home.

Age of home

LeMay v. Seckler, No. OT-04-032, 2005 WL 1414449 (Ohio App., 6th Dist., June 17, 2005)

A park rule that requires pre-1977 mobile homes to be moved from the park upon sale is unreasonable, arbitrary, or capricious in violation of R.C. 3733.11(C).

Czerwonko v. Sahara Mobile Home Park & Sales, Inc., 137 Ohio App.3d 266, 738 N.E.2d 461 (11th Dist. 2000)

The park rule concerned homes that were twenty-one years old or older. It required the removal of such homes from the park if the owner moved out of the home or sold the home. The park rule violated R.C. 3733.11(C) because it was unreasonable. The park rule violated R.C. 3733.11(H)(3) because it was an unreasonable refusal to enter into a rental agreement with the purchaser of the home.

Freyermuth v. Navarre Vill. Homes Austin Square, Inc., No. 1999-CA-00187 (Ohio App., 5th Dist., Jan. 24, 2000)

The park rule concerned homes that were over twelve years old. It did not permit such homes to remain in the park without the written consent of management. The park rule violated R.C. 3733.11(C) because it was unreasonably enforced. The park rule violated R.C. 3733.11(A)(2) because it deprived an owner of the right to renew a tenancy. In this case, the park rule also violated R.C. 3733.11(H)(1) and 3733.11(H)(2) because it denied the owner the right to sell the home and required removal of the

home on the basis of the sale.

White v. Superior Mobile Homes, Inc., No. 98-T-0011, 1999 WL 1320188 (Ohio App., 11th Dist., Dec. 10, 1999)

The park rule concerned homes that were over twenty years old at the time of a change in ownership. Under the rule, the park operator would not enter into a rental agreement with any new owner of such homes. The park rule violated R.C. 3733.11(C) because it was unreasonable. The park rule violated R.C. 3733.11(H)(3) because it was an unreasonable refusal to enter into a rental agreement with the purchaser of the home.

Disclosure of fee/rent

May v. Petrick, No. 2009-CA-00031, 2010 WL 1452604 (Ohio App., 5th Dist., Apr. 8, 2010)

Court of appeals upheld trial court's finding that the park operator failed to offer the resident a written lease and, therefore, failed to provide the resident with written disclosure of a late fee and moving fee. Therefore, R.C. 3733.11(B) and 3733.11(H)(4) barred a damage award for the fees.

Simco Mgmt. Corp. v. Snyder, No. 98-CA-210, 2000 WL 309396 (Ohio App., 7th Dist., Mar. 20, 2000)

R.C. 3733.11(B) does not protect a resident from liability or eviction for nonpayment of a rental fee, if the rental fee was disclosed orally to the resident and the resident agreed to pay the disclosed amount. The R.C. 3733.11(H)(4) requirement for written disclosure of the rental fee was met by a rental slip stating the amount of the rent, even though the resident filled in the amount.

Dearwester's Gem City Estates v. Nelson, No. 14320, 1994 WL 681104 (Ohio App., 2nd Dist., Dec. 7, 1994)

In an eviction action for nonpayment of rent, the R.C. 3733.11(B) requirement to disclose the rental fee is not an element of the park operator's claim. Any failure to meet the disclosure requirement is a defense for which the resident has the burden of proof.

Callahan v. Croxford, No. 2006-CVF-00621, 2007 WL 4359907 (Ohio Mun., Athens Cty., July 31, 2007)

\$200 per month rent under verbal agreement, but no written agreement or written disclosure. During a 17-month occupancy, the resident paid the lot rent only for three months. "R.C. 3733.11(H)(4) prohibits a park operator from charging 'any fee, charge, or assessment, including a rental

fee’ unless the terms are set forth in writing.” Therefore, the court granted judgment to the resident on the park operator’s counterclaim for lot rent.

Reck v. Lucas, No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006)

Because the park operator failed to offer the residents a written lease, the park operator’s attempt to raise the rent, due to late payment of rent, was not permitted.

Bennett v. Croxford, No. 96-CVH-000488, 1997 WL 810044 (Ohio Mun., Athens Cty., Apr. 18, 1997)

The park operator violated R.C. 3733.11(B) in failing “to disclose fully the rates, charges and assessments for water prior to the commencement of the Plaintiff’s [resident’s] occupancy.” The court awarded the resident a judgment in the amount of the resident’s water payments and held that the resident was not liable for the unpaid or unbilled water charges.

Apel v. Wolf, No. CVG-960027, 1996 WL 740085 (Ohio Mun., Newton Falls, Sept. 10, 1996)

The park operator violated R.C. 3733.11(B) in assessing a \$15 per month surcharge for taxes and insurance without the required disclosure. The court awarded the resident a judgment in the amount of the resident’s surcharge payments.

Estep v. Tisdale, No. 93-CVG-700, 1993 WL 837913 (Ohio Mun., Chillicothe, Nov. 29, 1993)

The park operator failed to provide the resident with a written disclosure of the rental fee or the electric service fee before the execution of the rental agreement. Therefore, R.C. 3733.11(H)(4) barred the park operator from evicting the resident for nonpayment of either of these fees.

Props. Ltd. v. Coffee, No. 93-CVG-8597 (Ohio Mun., Marion Cty., Nov. 16, 1993)

R.C. 3733.11(B) barred the park operator’s claim for a \$15 per month surcharge for water service because the park operator had not disclosed the fee in writing before the execution of the rental agreement.

Miller Mobile Homes, Inc. v. Reeves, No. 92-CVG-15700, 1993 WL 837914 (Ohio Mun., Cleveland, Hous. Div., Sept. 23, 1992)

R.C. 3733.11(B) and 3733.11(H)(4) barred the park operator’s claim for various fees (cost of moving resident’s home, storing the home, and cleaning the lot) because the fees had not been disclosed in writing before

the execution of the rental agreement. A \$200 entrance fee violated R.C. 3733.11(H)(5) because it was a transfer of ownership fee. The court granted the resident credit for the entrance fee.

Pets

Jowers v. Eastgate Vill., Ltd., No. CA98-10-095, 1999 WL 374131 (Ohio App., 12th Dist., June 7, 1999)

The park rule required registration of dogs and prohibited dogs over twenty pounds. The park operator was evicting a third-party resident for violating this park rule. Pending the eviction, the third-party's dog bit the daughter of a resident (plaintiff) in the third-party's home. The park operator was not liable under R.C. 955 (strict liability) or common law because they limit a landlord's liability to cases in which the landlord permits the dog in the common area and the dog bite here did not occur in the common area. The court found its decision to be consistent with *Bundy* (below) and *Heitman* (below) because, in those cases, the dog bite occurred in the common area and the landlord permitted the dogs in common area by not enforcing the relevant park rules.

Burgess v. Tackas, 125 Ohio App.3d 294, 708 N.E.2d 285 (8th Dist. 1998)

The park rule limited residents to one dog. A resident had two dogs and, at the resident's door, one of the two dogs bit a visitor. The park operator was not liable under R.C. 955 (strict liability) or common law because they limit a landlord's liability to cases in which the landlord permits the dog in the common area and the dog bite here did not occur in the common area.

Thompson v. Irwin, No. CA97-05-101, 1997 WL 666079 (Ohio App., 12th Dist., Oct. 27, 1997)

The park rule required that pets be on a leash at all times. A resident's dog broke a chain and escaped in violation of the park rule. The dog then bit a third-party in the common area. The park operator was not liable under R.C. 955 (strict liability) or common law because they limit a landlord's liability to cases in which the landlord permits the dog in the common area and here the landlord neither permitted nor acquiesced in the dog being kept in the common area.

W. Ridge Green Co. v. Ortiz, No. 94CA-005819, 1994 WL 432162 (Ohio App., 9th Dist., Aug. 10, 1994)

The park rule prohibited residents from permitting their dogs to run at large and from tying their dogs outside their homes for more than thirty

minutes at a time. The park rule was reasonable under R.C. 3733.11(D).

Bundy v. Sky Meadows Trailer Park, No. CA89-01-002, 1989 WL 125379 (Ohio App., 12th Dist., Oct. 23, 1989)

A park operator is under a duty to enforce the rules and regulations of the park that have been established under R.C. 3733.11(C). If a park operator is on notice of a third-party resident's noncompliance with a park rule that prohibits residents from allowing dogs to run at large and if the park operator is on notice of the propensity of the dog to attack children, the park operator may be liable to a resident in a negligence claim for injuries resulting from the park operator's failure to require the third-party resident to comply with the park rule.

Heitman v. Sky Meadows Trailer Park, No. CA89-05-067, 1989 WL 125381 (Ohio App., 12th Dist., Oct. 23, 1989)

A park operator is under a duty to enforce the rules and regulations of the park that have been established under R.C. 3733.11(C). If a park operator is on notice of a third-party resident's noncompliance with a park rule that prohibits residents from allowing dogs to run at large and if the park operator is on notice of the propensity of the dog to attack children, the park operator may be liable to a resident in a negligence claim for injuries resulting from the park operator's failure to require the third-party resident to comply with the park rule.

Leichtman v. Fike, No. 1106, 1984 WL 7338 (Ohio App., 11th Dist., Apr. 27, 1984)

The park rule that prohibited pets was unreasonable and arbitrary [and thus prohibited by R.C. 3733.11(C)].

Hamlet Mobile Home Park v. Rose, No. R93-CV-1786 (Ohio Mun., Portage Cty., Mar. 14, 1994)

The park rule allowed one small dog in the home, if the resident obtained written permission from the park operator. The park rule was reasonable under R.C. 3733.11(D), provided noncompliance constituted a violation only if it affected the health and safety of the park residents.

Miller Mobile Homes Inc. v. Denardy, No. 92-CVG-15699 (Ohio Mun., Cleveland, Hous. Div., Oct. 23, 1992)

The park rule prohibited pets. The park rule was unreasonable under R.C. 3733.11(C), when applied to indoor cats.

Visit of family member

MHC5, LLC v. Martin, No. 2011-CVG-0318 (Ohio Mun., Clermont Cty., Oct. 26, 2011)

The park operator commenced an eviction against a resident for permitting his son's family to stay with him. Court found that the park operator failed to prove that the family's stay violated any park rule and, therefore, granted summary judgment for the resident.

Buckeye Lake Estates Mobile Home Park v. Abel, No. 01-CVG-0177, 2002 WL 32001271 (Ohio Mun., Licking Cty., 2002)

Resident permitted his daughter and granddaughter to remain in his manufactured home for more than 14 consecutive days, in violation of a park rule. The park operator had knowledge of this stay. Court held that the violation was not a material violation and, therefore, not grounds to evict.

Term of rental agreement

Gitler v. Gerity, No. L-94-260, 1995 WL 458690 (Ohio App., 6th Dist., Aug. 4, 1995)

R.C. 3733.11(A) requires a one-year term only for the first year of the tenancy.

Reck v. Lucas, No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006)

Because the park operator failed to offer the residents a written lease with a one-year term, "the Court finds that the defendants have been under a series of one year leases."

Ramm v. Shreves, No. 2005-CVG-0028, 2005 WL 5314591 (Ohio Mun., Athens Cty., May 4, 2005)

Until the park operator offers a tenant a one-year lease in accordance with R.C. 3733.11, the tenancy remains a month-to-month tenancy, the park operator remains obligated to offer a one-year lease, and the required one-year lease period does not commence until the park operator offers a one-year lease in accordance with R.C. 3733.11.

Superior Mobile Homes, Inc. v. Russell, No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Jan. 12, 1990)

If a park operator fails to offer an owner a written rental agreement with a term of at least one year, the owner's rental agreement is deemed to be for

a term of one year.

Exterior alteration or addition to the home

Troy Oaks Homes & Residential Club, Inc. v. Sokolowski, 78 N.E.3d 365, 2016-Ohio-8427 (Ohio App., 11th Dist., 2016)

The park rule required prior approval of any alterations or changes to the exterior of the home. The purpose of the rule is to insure compliance with the park's requirements. The court held that the rule is reasonable and that the residents violated the rule when they installed a metal roof.

Friendly Vill. v. Duty, 75 Ohio App.3d 555, 599 N.E.2d 878 (6th Dist. 1992)

The park rule required prior approval of the park operator for exterior home additions, so as to insure that the additions met the park's requirements. R.C. 3733.11(C) does not require that park rules be related to matters of health and safety. Therefore, the park rule did not violate R.C. 3733.11(C).

Water and sewer service

Rex Hill, Inc. v. Cherry, No. 2588, 1991 WL 95243 (Ohio App., 9th Dist., May 29, 1991)

The park rule required residents to maintain lateral sewer lines. The park rule violated R.C. 3733.10(A)(4) and, therefore, was unreasonable, arbitrary, and capricious under R.C. 3733.11(C).

Utility fee

Huntsberry v. Countryside Assocs., No. CA85-08-088, 1986 WL 7105 (Ohio App., 12th Dist., June 23, 1986)

A rental agreement provided for a utility fee of a specific amount. The park operator's attempt to assess a surcharge on a 30-day notice to cover unexpectedly high utility costs was unlawful for two reasons. First, the surcharge was not an increase in an existing fee because it was not intended to be permanent in nature but rather was a one-time event. Therefore, the surcharge was not an increase in an existing fee that could be effected under R.C. 3733.11(B). Second, the surcharge violated R.C. 3733.11(C). It was unreasonable and arbitrary because it would result in major increases in utility charges upon just 45 days advance notice.

e. R.C. 4781.41-.43 (Former R.C. 3733.12-.122)

Superior Mobile Homes, Inc. v. White, Nos. 98-T-0072,0081, 1999 WL 974136 (Ohio

App., 11th Dist., July 23, 1999)

The resident attempted to deposit rent with the court of common pleas. R.C. 3733.12 required the resident, if opting to rent deposit, to deposit the rent with the county court. As a result, the court upheld an eviction for nonpayment of rent.

Wickham v. Woodlyn Acres, No. H-96-015, 1996 WL 612314 (Ohio App., 6th Dist., Oct. 25, 1996)

The court permitted the resident to continue rent depositing until the park operator furnished the home with drinkable water and thereby remedied the R.C. 3733.10(A)(4) violation. The park operator was furnishing water to the home that was undrinkable due to its iron content.

Gettysburg Homeowners Ass'n v. Ellenburg Capital Corp., 80 Ohio App.3d 555, 609 N.E.2d 1315 (12th Dist. 1992)

The R.C. 3733.12 notice must be “sufficiently specific to enable the park operator to discern the nature of the alleged problem and to remedy the problem within a reasonable period of time.” A notice fails to meet this standard if it merely cites to sections of the Ohio Administrative Code as asserted violations and contains no specific instances of acts or omissions that allegedly constitute violations.

Rex Hill, Inc. v. Cherry, No. 2588, 1991 WL 95243 (Ohio App., 9th Dist., May 29, 1991)

R.C. 3733.12 does not permit a resident to rent deposit when the resident remedies the park operator’s violation of R.C. 3733.10 and the park operator refuses to reimburse the resident for the resident’s costs in remedying the violation.

Woodlake Assocs. v. Heringhausen, No. WD-89-27, 1991 WL 3810 (Ohio App., 6th Dist., Jan. 18, 1991)

The R.C. 3733.12 notice must contain specific instances of violations of the park operator’s obligations under the statute or the rental agreement. Under R.C. 3733.122, the court shall order the release of the rent to the park operator if there is no violation of the park operator’s obligations under R.C. 3733.10, the rental agreement, or the applicable codes. The park operator’s refusal to pay certain expenses related to utilities, and its refusal to permit the residents to choose their own supplier for propane gas, did not constitute a violation of the park operator’s obligations under R.C. 3733.10, the rental agreement, or the applicable codes.

Woodside Terrace Mobile Home Owners Ass'n v. Woodside Terrace Co. Ltd., 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988)

When a park operator files an action for release of rent deposits under R.C. 3733.122, the park operator must file a complaint, naming the resident as a defendant, and the complaint must be served in accordance with Civil Rule 4.1. In such actions, the tenant must be given 28 days to file an answer in accordance with Civil Rule 12(A)(1). The court must conduct a trial on the rent release claim to determine whether grounds exist for releasing the rent deposit under R.C. 3733.122. In R.C. 3733.122 actions, the court may not assess costs against the resident unless the R.C. 3733.122(D) requirements are met.

Smith v. Vilks, No. 46759, 1983 WL 2902 (Ohio App., 8th Dist., Dec. 15, 1983)

In an action for release of rent deposits under R.C. 3733.12, the court may award the park operator costs under Civil Rule 54. Such costs are not limited to the amount (one percent of rent deposit) that the clerk of court retains under R.C. 3733.121 for processing and maintaining the rent deposit account. With respect to whether costs may be assessed against the resident only if the requirements of R.C. 3733.12(D) are met, the court found that “from the record before us, we are unable to determine how costs were computed” and thus it presumed regularity.

Stoots v. Huber Mobile Home Park, No. 1180, 1981 WL 2863 (Ohio App., 2nd Dist., July 27, 1981)

A resident does not lose the right to rent deposit under R.C. 3733.12 simply because the resident, in completing a printed form at the time of the rent deposit, states the code section as R.C. 5321.07 instead of R.C. 3733.12. To commence an action under R.C. 3733.122, the park operator must file a complaint and the complaint must be served upon the resident in accordance with Civil Rule 4.1.

Shouhayib v. Yarger, No. E-9700004, 1998 WL 911706 (Ohio Mun., Perrysburg, Jan. 28, 1998)

The court denied the park operator’s request for release of the rent deposit. The park operator was still furnishing the home with defective water and, therefore, was still violating R.C. 3733.10(A)(4). The water was not drinkable, had iron levels as high as 41 times the EPA’s Secondary Maximum Contaminant Level for iron, had a heavy chlorine odor, stained clothing during the laundry process, stained fixtures, destroyed heating elements, and damaged small appliances.

Quinlan v. Mobile Manor Mobile Home Park, No. 40, 1983 WL 191087 (Ohio Mun., Cuyahoga Falls, Jan. 11, 1983)

The park operator’s violations included contaminated well water, inadequate water pressure, drainage problems on certain lots, and an unsafe playground area. As of the hearing date, except for the unsafe playground area, the park operator had corrected the violations. The court denied the park operator’s claim of bad faith rent depositing, released part of the rent deposit, and ordered the release of the remainder of the rent

deposit upon the park operator's installation of a playground fence.

Jakacki v. Raineri, No. 179-193, 1981 WL 167768 (Ohio Mun., Portage Cty., Sept. 9, 1981)

The park operator's violations included unsafe road surface conditions in the park, non-existent or non-functional street lighting on several streets in the park, and lack of maintenance and mowing of common areas in the park. The court held that the rent deposit shall not be released until the park operator remedies these violations.

Swogger v. Merkel, No. 4139, 1989 WL 572092 (Ohio County Ct., Carroll Cty., Nov. 14, 1989)

The resident's R.C. 3733.12(A) notice to the park operator is not required to state that the rent may be deposited.

f. R.C. 4781.45 (Former R.C. 3733.13)³⁷¹

Schwartz v. McAtee, 22 Ohio St.3d 14, 488 N.E.2d 479 (1986)

A park operator may terminate a tenancy under R.C. 3733.13 only if: (1) the resident fails to fulfill an obligation imposed by R.C. 3733.101 that materially affects health and safety, (2) the park operator gives the resident a notice of noncompliance in accordance with R.C. 3733.13, and (3) the resident fails to remedy the noncompliance by the date specified in the notice, which shall not be less than 30 days from the date of service of the notice.

Thompson v. KMV II, Ltd., No. 2001-P-0125, 2003 WL 943871 (Ohio App., 11th Dist., Mar. 7, 2003)

A park operator may evict a resident for one material violation of a park rule, if the park operator serves the resident with an R.C. 3733.11 notice and the resident fails to remedy the violation within the required 30-day time period.

Hamlet Mobile Home Park v. Sigmund, 118 Ohio App.3d 29, 691 N.E.2d 1081 (11th Dist. 1997)

A park operator may evict a resident for two material violations of the park rules within a six-month period. As a result of the 1987 revision to R.C. 3733.17, it is immaterial whether the violations materially affect the health and safety of other residents.³⁷²

All Seasons Mobile Home Park v. Tymico, No. 96-P-0201, 1996 WL 761225 (Ohio

³⁷¹ The legislature revised R.C. 3733.13 [now R.C. 4781.45], effective February 25, 1987. See note 252, above.

³⁷² See note 252, above.

App., 11th Dist., Dec. 31, 1996)

“There is no requirement under R.C. 3733.13 that the notice specifically cite which rule was violated. Instead, the rule simply requires ‘a description of the violation.’” This requirement is met if the notice provides a sufficient description of the objectionable conduct to put the tenant on notice as to which park rule has been violated. The objectionable conduct was not cured because it recurred twice after the service of the notice.

Moonlight Mobile Home Parks, Inc. v. Eichner, No. L-93-028, 1993 WL 434584 (Ohio App., 6th Dist., Oct. 29, 1993)

The resident’s use of aluminum skirting instead of vinyl skirting violated a park rule but was not a material violation. Therefore, it was not grounds to evict under R.C. 3733.13.

M.L.R. Props., Inc. v. Baer, No. L-85-330, 1986 WL 6703 (Ohio App., 6th Dist., June 13, 1986)

R.C. 3733.13 applies when a park operator seeks to evict a resident for violation of the park rules. R.C. 3733.13 provides that, when a resident violates R.C. 3733.101 and the violation materially affects health and safety, the park operator may serve the resident with an R.C. 3733.13 notice of termination. If the resident fails to remedy the condition specified in the notice within the time specified in the notice, the rental agreement will be terminated. The R.C. 3733.13 notice must state the date on which the rental agreement will be terminated.

Leichtman v. Fike, No. 1106, 1984 WL 7338 (Ohio App., 11th Dist., Apr. 27, 1984)

If a resident cures the breach of the park rule within the relevant 30-day period, the resident cannot be evicted for the rule violation.

Cont’l Inv. P’ship v. Hukill, No. 06-CV-131 (Ohio Mun., Delaware, Mar. 8, 2006)

For a termination of a rental agreement for an alleged material violation of park rules, R.C. 3733.11 requires a notice of termination that includes: a description of the violation(s); a statement of the specific termination date, if the resident does not timely cure; and a statement that, if a second material violation of park rules occurs within six months, the rental agreement will terminate immediately. This means that R.C. 3733.11 requires two notices, each with a description of the violation(s). The park operator served three notices and only one contained a description of the violation(s). None of the notices specified a termination date. Their statements that the rental agreement “shall terminate within 30 days after receipt by you of this notice” does not meet the specified date requirement. Based on these violations, court held it lacked jurisdiction over the eviction action and granted judgment for the resident.

Stites Enters., Inc. v. Dixon, No. 04-CVG-1659 (Ohio Mun., Chillicothe, Jan. 4, 2005)

Before any termination of a tenancy for park rule violations, R.C. 1923.02(A)(1) and 3733.13 require a 30-day notice and opportunity to cure. A park operator may not circumvent this “jurisdictional requirement ... by claiming a lease violation and proceeding under O.R.C. 1923.02(A)(10), by merely incorporating the rules and regulations by reference into the lease.”

Buckeye Lake Estates Mobile Home Park v. Abel, No. 01-CVG-01777, 2002 WL 32001271 (Ohio Mun., Licking Cty., 2002)

The park rule prohibited additional residents for more than 14 consecutive days, without management approval. The resident violated this rule when she permitted her daughter and granddaughter to reside in her home for more than 14 consecutive days. The violation constituted a de minimis violation (not a material violation) of the park rules. Therefore, it was not a basis for terminating the tenancy.

Summit Mobile Home Park v. Brode, No. R97-CVG-1046 (Ohio Mun., Portage Cty., June 27, 1997), *aff'd on other grounds*, No. 97-P-0080, 1998 WL 34002598 (Ohio App., 11th Dist., Oct. 16, 1998)

The court entered an eviction judgment in favor of the resident because the resident's violation of the park rule, regarding the style of the required utility shed, was neither willful nor committed in bad faith.

United Mobile Home v. Scruggs, No. 93-CVG-3-8 (Ohio Mun., Athens Cty., Apr. 16, 1993)

The park operator served the resident with an R.C. 3733.13 notice of termination but failed to provide the resident with the requisite 30 days to remedy the alleged violations. The park operator served the resident with an R.C. 1923.04 notice to vacate before the 30-day period had expired. As a result, the court entered an eviction judgment in favor of the resident.

Highland Estates Mobile Home Park v. Miller, No. 92-CVG-1054, 1993 WL 837917 (Ohio Mun., Findlay, Jan. 22, 1993)

The resident's failure to install new skirting violated a park rule, but the violation was neither willful nor committed in bad faith. Therefore, it was not grounds to evict under R.C. 3733.13. The resident's failure to remove or conceal a hitch violated a park rule, but the violation was not grounds to evict under R.C. 3733.13 because the park operator had not been enforcing the rule uniformly against other residents.

Martin v. Woods, No. 92-CVG-714 (Ohio Mun., Chillicothe, Sept. 10, 1992)

The purported notice of termination did not terminate the tenancy because it failed to describe the resident's violations and it failed to include other provisions that R.C. 3733.13 requires.

Props. Ltd. v. Paquette, No. M8908-CVG-29204 (Ohio Mun., Franklin Cty., Sept. 8, 1989)

A park operator must comply strictly with the R.C. 3733.13 notice requirement. This standard was not met where: (1) the R.C. 3733.13 notice contained the phrase “the two material violations were unreasonable” instead of the phrase “that the park rule is unreasonable” and (2) the notice did not contain a reference to any provision of a statute, code, or rule that the resident allegedly violated.

Peterson v. Woods, No. 08028 (Ohio County Ct., Adams Cty., June 1, 1988)

The court dismissed the eviction complaint because the park operator sought to evict the resident for violating a park rule without serving the resident with an R.C. 3733.13 notice.

Tea v. Wilhelm, No. 86-CVG-42 (Ohio County Ct., Sandusky Cty., July 18, 1986)

The court dismissed the eviction complaint because the park operator sought to evict the resident for violating a park rule without serving the resident with an R.C. 3733.13 notice.

g. R.C. 4781.46 (Former R.C. 3733.14)

Trailer Mart, Inc. v. Semenach, No. 42629, 1981 WL 169157 (Ohio App., 8th Dist., Mar. 26, 1981)

If a park operator violates R.C. 3733.11(H), the resident may recover damages under R.C. 3733.14.

h. R.C. 4781.47 (Former R.C. 3733.15)

Arndt v. P & M Ltd., Nos. 2007-P-0038,0039 2008 WL 2042831 (Ohio App., 11th Dist., May 9, 2008)

“[A] manufactured home park operator may not avoid the statutory duties imposed by R.C. 3733.10(A) by the inclusion of an ‘as is’ in the lease agreement. ‘No provision of sections 3733.09 to 3733.20 of the Revised Code may be modified or waived by any oral or written agreement,’ except that the ‘[t]he park operator may agree to assume responsibility for fulfilling any duty or obligation imposed on a resident by section 3733.101 [3733.10.1] of the Revised Code.’”

i. R.C. 4781.48 (Former R.C. 3733.16)

Pojman v. Columbia-Brookpark Mgmt., LLC, No. 88666, 2007 WL 2269682 (Ohio App., 8th Dist., Aug. 9, 2007)

The court sets forth a two-part test – procedural (e.g., bargaining power) and substantive (e.g., unfairness) – for determining whether a rental agreement provision

is unconscionable in violation of R.C. 3733.16. For rent increases, the relevant issue is whether the new rent charged (not the amount of the increase) is unconscionable. The R.C. 3733.16 clause “a reasonable opportunity to present evidence” does not preclude a summary judgment ruling without a hearing.

Props. Ltd. v. Coffee, No. 93-CVG-8597 (Ohio Mun., Marion Cty., Nov. 16, 1993)

The rental agreement imposed a fee for late payment of rent that permitted fees up to 61% of the basic rent charge. The late payment fee was unconscionable and thus violated R.C. 3733.16. The court limited the fee to a maximum of 25% of the \$115 per month basic rent (\$28.75 per month).

j. R.C. 4781.49 (Former R.C. 3733.17)

Eller v. Cont'l Inv. P'ship, 151 Ohio App.3d 729, 785 N.E.2d 802 (6th Dist. 2003)

The park operator removed the resident's home from the park after the court had entered an eviction judgment against the resident, but before it had issued a writ of restitution. The court of appeals reversed the summary judgment for the park operator, held that the park operator violated R.C. 3733.17, and remanded the case for a determination of damages.

Keesey v. Superior Mobile Homes, Inc., No. 2000-AP-080057, 2001 WL 293253 (Ohio App., 5th Dist., Mar. 20, 2001)

The court entered an eviction judgment against the resident and, under the writ of restitution, the resident's home was removed from the park. Thereafter, the court granted the resident's Civil Rule 60(B) motion. The resident then filed an R.C. 3733.17 action against the park operator. “Because appellee [park operator] proceeded under a lawfully issued writ of restitution, the municipal court's subsequent decision to vacate the judgment does not operate to retroactively transform a lawful act into a[n] unlawful one.” Therefore, on the R.C. 3733.17 claim, the court upheld the judgment for the park operator.

Childers v. Russell, Nos. 01-4142,4145, 2002 WL 31950741 (Ohio C.P., Montgomery Cty., Feb. 7, 2002)

The park operator terminated water service to two manufactured homes, after providing a 30-day notice of the park's closing. The court held that the park operator violated R.C. 3733.17(A) and awarded damages to the residents.

Stein v. Fairview Cmty. Park, Co., No. 33061, 1981 WL 167766 (Ohio C.P., Cuyahoga Cty., Sept. 23, 1981)

The park operator threatened to move a resident's home from the park. The court enjoined the park operator from moving or otherwise transporting the home and from seizing the resident's personal possessions.

Callahan v. Croxford, No. 2006-CVF-00621, 2007 WL 4359907 (Ohio Mun., Athens Cty., July 31, 2007)

The park operator removed the water meter (and thereby terminated the water service) for the resident's manufactured home for two weeks. The court awarded the resident \$100 compensatory damages and \$500 punitive damages.

Shaw v. Mays Mobile Home Court, No. 87-CVE-233, 1987 WL 419803 (Ohio Mun., Chillicothe, Dec. 10, 1987)

The court found that the park operator padlocked the resident's home and seized the resident's personal property in violation of R.C. 3733.17(A),(B) and 3733.10(A)(6). The court found that the park operator's actions were wilful, wanton, and malicious.

XXII. Miscellaneous Landlord-Tenant Issues

A. Statute of Conveyances, Statute of Frauds, and Related Matters

1. Statute of Conveyances – Defectively Executed Leases

The statute of conveyances generally requires all leases to be in writing, signed by the landlord, and acknowledged before a notary public (or other designated official). R.C. 5301.01.³⁷³

Certain leases are exempt from these formal requirements, the most noteworthy being leases that are for a term of three years or less. R.C. 5301.08.

However, a perpetual lease is subject to the statute of conveyances, even if its initial term is less than three years. *Cont'l Enters., Ltd. v. Hunt*, No. 102200, 2015 WL 9460300 (Ohio App., 8th Dist., Dec. 24, 2015); *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000); *Friedrich v. Matrka*, No. 37178, 1978 Ohio App. LEXIS 9975 (Ohio App., 8th Dist., Mar. 23, 1978); *Frank v. Flynn*, 120 Ohio App. 361, 197 N.E.2d 657 (8th Dist. 1964); *Morales v. Windsor Realty & Mgmt., Inc.*, No. 2000-CVH-002037 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2000). See also Note, Residential Renewal Leases and the Ohio Statute of Conveyances: Invalidation and Subsequent Treatment, 27 Clev. St. L. Rev. 231 (1978).

A lease is a perpetual lease if its term automatically renews unless and until the tenant provides the landlord with a timely notice of nonrenewal. *Id.*; *Verhovsek v. Mut. Props.*, No. 51600, 1987 WL 7435 (Ohio App., 8th Dist., Mar. 5, 1987); *Hoffman v. Foster & Kleiser, Inc.*, No. 44134, 1982 WL 5385 (Ohio App., 8th Dist., May 27, 1982); *President & Trs. of Ohio Univ. v. Athens Livestock Sales, Inc.*, 115 Ohio App. 21, 179 N.E.2d 382 (4th Dist. 1961).

³⁷³ The revision of R.C. 5301.01, effective February 1, 2002, eliminated the requirement for two witnesses. It also creates a presumption of validity for leases that were executed prior to February 1, 2001, without the signature of two witnesses.

A perpetual lease may permit the landlord as well to discontinue the automatic renewals via a timely notice of nonrenewal or a timely notice of a change in the rent (or a lease provision). *Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000) (landlord notice of nonrenewal); *Friedrich v. Matrka*, No. 37178, 1978 Ohio App. LEXIS 9975 (Ohio App., 8th Dist., Mar. 23, 1978) (landlord notice of rent/lease change); *Frank v. Flynn*, 120 Ohio App. 361, 197 N.E.2d 657 (8th Dist. 1964) (landlord notice of rent/lease change).

“‘[W]here a purported lessee takes possession under a defectively executed lease and pays rent, a tenancy will be implied and is subject to all of the terms of the purported lease except duration.’” *Ruben v. S.M. & N. Corp.*, 83 Ohio App.3d 80, 83, 613 N.E.2d 1101 (8th Dist. 1993). *Accord Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000); *Schultz v. Wurdlow*, No. 94-APG07-1033, 1995 WL 41648 (Ohio App., 10th Dist., Jan. 31, 1995); *Manifold v. Schuster*, 67 Ohio App.3d 251, 586 N.E.2d 1142 (4th Dist. 1990).

“‘The duration of the term [of the implied tenancy] is determinable by the provisions for payment of rent, so a lease providing for annual rent creates a tenancy from year to year, whereas a lease providing for monthly rent creates a tenancy from month to month.’” *Ruben v. S.M. & N. Corp.*, 83 Ohio App.3d 80, 83, 613 N.E.2d 1101 (8th Dist. 1993). *Accord Zunshine v. Wallace F. Ackley Co.*, No. 99AP-531, 2000 WL 329008, at *3-4 (Ohio App., 10th Dist., Mar. 30, 2000). *E.g., Delfino v. Paul Davies Chevrolet, Inc.*, 2 Ohio St.2d 282, 209 N.E.2d 194, syllabus no. 1 (1965) (“A defectively executed lease for a term of five years upon monthly rental creates a tenancy in the lessee from month to month”); *9900 Timbers Dr. Inv. LLC v. Li*, No. C-190224, 2020 WL 1870257 (Ohio App., 1st Dist., Apr. 15, 2020) (a defectively executed lease with a five-year term and monthly rent payments created a month-to-month tenancy); *Tower Realty v. Zalenski*, No. 07-JE-24, 2008 WL 2583131, ¶ 16 (Ohio App., 7th Dist., June 23, 2008) (“a defective [three-year] lease that provides for monthly rent creates a tenancy from month-to-month”); *R & S Props. v. Weiszner*, No. 68637, 1995 WL 628342 (Ohio App., 8th Dist., Oct. 26, 1995) (month-to-month tenancy created where a defectively executed lease had a term of five years, with a five year renewal option, and specified a rent amount to be paid monthly); *Yelanosky v. White*, No. 67479, 1995 WL 32869, at *2 (Ohio App., 8th Dist., Jan. 26, 1995) (“A month-to-month tenancy is created where a [defectively executed] lease provides for monthly payments”); *Katzin v. Murad*, No. 46553, 1984 WL 7150, at *2 (Ohio App., 8th Dist., Jan. 5, 1984) (“When the lease is ... defectively executed, a month-to-month

tenancy is created, where there is a monthly rental payment”); *Friedrich v. Matrka*, No. 37178, 1978 Ohio App. LEXIS 9975 (Ohio App., 8th Dist., Mar. 23, 1978) (when the invalid lease has an initial term of one year and an automatic renewal provision, and specifies a rent amount to be paid monthly, the implied tenancy is month-to-month). *But see Ruben v. S.M. & N. Corp.*, 83 Ohio App.3d 80, 83, 613 N.E.2d 1101 (8th Dist. 1993) (“year to year tenancy will be implied where the rent is reserved annually, although payable in monthly installments”).

For a discussion on the equitable doctrine of partial performance taking an oral rental agreement out of the statute of conveyances, see Section XXII.A.3, below.

2. Statute of Frauds – Oral Rental Agreements

R.C. 1335.04 and 1335.05 are the statute of frauds for real estate transactions, including rental agreements. *Schloss v. Sachs*, 63 Ohio Misc.2d 457, 459, 631 N.E.2d 212 (Ohio Mun., Hamilton Cty., 1993).

R.C. 1335.04,.05 provide that, in order to create a valid rental agreement or to bring an action upon a rental agreement, the rental agreement must be in writing and signed by the “party ... granting it” (R.C. 1335.04) and by “the party to be charged therewith” (R.C. 1335.05). Therefore, the rental agreement must be signed by the landlord (*i.e.*, the grantor) and, when the tenant is “to be charged therewith,” by the tenant.

R.C. 1335.04,.05 require a rental agreement to be in writing even if it is for a term of less than three years and thus not subject to the statute of conveyances (see Section XXII.A.1, above). *Findlay v. Baker Rental Co.*, No. 77AP-874, 1978 Ohio App. LEXIS 10554, at *5 (Ohio App., 10th Dist., May 9, 1978); *Schloss v. Sachs*, 63 Ohio Misc.2d 457, 460, 631 N.E.2d 212 (Ohio Mun., Hamilton Cty., 1993).

When a party takes possession of premises under an oral rental agreement that is invalid under the statute of frauds, a tenancy at will is created. *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,446, 2010 WL 3610931, ¶ 33 (Ohio App., 10th Dist., Sept. 16, 2010); *Peoples v. Holley*, 181 Ohio App.3d 203, 908 N.E.2d 517, ¶ 22 (2nd Dist. 2009); *Mark v. Long*, 180 Ohio App.3d 832, 907 N.E.2d 759, ¶¶ 9,10 (4th Dist. 2009); *Weishaar v. Strimbu*, 76 Ohio App.3d 276, 284, 601 N.E.2d 587 (8th Dist. 1991); *Manifold v. Schuster*, 67 Ohio App.3d 251, 255, 586 N.E.2d 1142 (4th Dist. 1990).

The tenancy at will converts to a periodic tenancy upon the payment and acceptance of rent. *Id.* The period of the periodic tenancy depends on the rental agreement’s provision for payment of rent. *Id.* If it provides for monthly rent

payments, the periodic tenancy is a month-to-month tenancy. *Id.*

In addition, a landlord and tenant may create a month-to-month tenancy under an express oral agreement (or by implication from monthly rent payments). *May v. Petrick*, No. 2009-CA-00031, 2010 WL 1452604, ¶ 22 (Ohio App., 5th Dist., Apr. 8, 2010); *Amick v. Sickles*, 177 Ohio App.3d 337, 894 N.E.2d 733, ¶ 19 (4th Dist. 2008); *Swartz v. Schutte*, No. 14717, 1991 WL 2022, at *2 (Ohio App., 9th Dist., Jan. 9, 1991). See also *Reid v. Plainsboro Partners, III*, Nos. 09AP-442,456, 2010 WL 3610931, ¶ 33 (Ohio App., 10th Dist., Sept. 16, 2010).

However, a landlord and tenant may not establish the terms or conditions of their tenancy in an oral agreement. “[A]n oral lease can create nothing more than a periodic tenancy.”³⁷⁴ *Neubauer v. Patzkowsky*, No. 91AP-1236, 1992 WL 125269, at *2 (Ohio App., 10th Dist., June 2, 1992).

For a discussion on the equitable doctrine of partial performance taking an oral rental agreement out of the statute of frauds, see Section XXII.A.3, below.

3. Partial Performance Exception

The equitable doctrine of partial performance applies to the statute of frauds and to the statute of conveyances. *Delfino v. Paul Davies Chevrolet, Inc.*, 2 Ohio St.2d 282, 286, 209 N.E.2d 194 (1965); *Cuvier Press Club v. Fourth & Race St. Assocs., Ltd.*, 1 Ohio App.3d 30, 35-36, 439 N.E.2d 443 (1st Dist. 1981); *Schloss v. Sachs*, 63 Ohio Misc.2d 457, 463, 631 N.E.2d 212 (Ohio Mun., Hamilton Cty., 1993).

Therefore, this doctrine may take an oral rental agreement out of the statute of frauds, and out of the statute of conveyances, and thereby render the agreement valid and enforceable.

The standard for determining whether this doctrine applies in a particular case is the same for both statutes. *Delfino v. Paul Davies Chevrolet, Inc.*, 2 Ohio St.2d 282, 286, 209 N.E.2d 194 (1965).

The standard is essentially comprised of three elements. See *Delfino v. Paul Davies Chevrolet, Inc.*, 2 Ohio St.2d 282, 287, 209 N.E.2d 194 (1965); *Weishaar v. Strimbu*, 76 Ohio App.3d 276, 283-84, 601 N.E.2d 587 (8th Dist. 1991); *Manifold v.*

³⁷⁴ For example, an oral agreement may not establish a fee for late payment of rent. *Neubauer v. Patzkowsky*, No. 91AP-1236, 1992 WL 125269, at *2 (Ohio App., 10th Dist., June 2, 1992). When an oral agreement establishes a periodic tenancy, the terms and conditions of the tenancy are those established in R.C. Chapter 5321 (see Section VII.B, above) and in any other relevant laws.

Schuster, 67 Ohio App.3d 251, 254-55, 586 N.E.2d 1142 (4th Dist. 1990); *Loveland Props. v. Ten Jays, Inc.*, 57 Ohio App.3d 79, 82-83, 567 N.E.2d 270 (1st Dist. 1988); *Schloss v. Sachs*, 63 Ohio Misc.2d 457, 463-64, 631 N.E.2d 212 (Ohio Mun., Hamilton Cty., 1993). See also *Clements v. Mayhew*, No. 2006-CA-126, 2007 WL 2070362 (Ohio App., 2nd Dist., July 20, 2007) (99-year lease); *Brown v. Brown*, 04-CA-000018, 2005 WL 914490 (Ohio App., 5th Dist., Apr. 14, 2005) (life estate); *Kaiser v. Caskey*, No. L-01-1487, 2002 WL 1823007 (Ohio App., 6th Dist., Aug. 9, 2002) (life estate).

The first and second elements are taking possession of the premises and payment of rent, where the possession and rent payments are referable to the oral rental agreement and not to any other source.³⁷⁵ *Id.* The third element is one of two alternative circumstances. *Id.*

The third element may be detrimental reliance by the party arguing partial performance, where the detrimental reliance makes it impossible or impractical to place the parties in status quo.³⁷⁶ *Id.* See also *Brannan v. Fowler*, 100 Ohio App.3d 577, 584, 654 N.E.2d 434 (4th Dist. 1995).

Alternatively, the third element may be an unconscionable advantage obtained by the party raising the statute of frauds (or statute of conveyances). *Brannan v. Fowler*, 100 Ohio App.3d 577, 584, 654 N.E.2d 434 (4th Dist. 1995); *Manifold v. Schuster*, 67 Ohio App.3d 251, 254-55, 586 N.E.2d 1142 (4th Dist. 1990).

When the equitable doctrine of partial performance takes an oral rental agreement out of the statute of frauds (and the statute of conveyances), the permissible actions under the rental agreement include actions at law and actions in equity. *Hughes v. Oberholtzer*, 162 Ohio St. 330, 123 N.E.2d 393, syllabus no. 3 (1954); *Aircraft Specialty Co. v. Ctr. Woodland Realty Co.*, 40 Ohio App. 125, 178 N.E.2d 213 (8th Dist. 1931). But see *Beggin v. Ft. Worth Mortgage Corp.*, 93 Ohio App.3d 333, 638 N.E.2d 604 (3rd Dist. 1994) (misconstrues *Hughes*).

³⁷⁵ For example, the first element was not met where the possession of the premises began under a prior month-to-month tenancy. *Roos v. John Shillito Co.*, 52 Ohio App. 262, 3 N.E.2d 666 (1st Dist. 1935).

³⁷⁶ For example, this alternative of the third element was met where a tenant had conveyed title of the property to a third party (her son). *Egner v. Egner*, 24 Ohio App.3d 171, 173, 493 N.E.2d 999 (11th Dist. 1985).

4. Oral Condition Precedent, Written Rental Agreement

Ohio courts have long recognized the exception to the parole evidence rule that permits oral evidence to prove a condition precedent to the existence of a contract. *Beatley v. Knisley*, 183 Ohio App.3d 356, 917 N.E.2d 280, ¶ 15 (10th Dist. 2009). “Courts admit extrinsic evidence of a condition precedent because satisfaction of such a condition must occur before a contract comes into existence.” *Id.*, ¶ 16.

The only exception to this rule is that “a party may not introduce extrinsic evidence of an oral condition precedent when the written contract addresses the subject matter of the condition and the contractual terms are inconsistent with the condition precedent.” *Id.*, ¶ 19.

5. Oral Modification, Written Rental Agreement

The statute of frauds (see Section XXII.A.2, above), as a general rule, prohibits an oral modification of a written rental agreement. *Miami Valley United Methodist Mission Soc’y v. White-Dawson*, No. 17873, 2000 WL 234712 (Ohio App., 2nd Dist., Mar. 3, 2000); *200 W. Apts. v. Foreman*, No. 66107, 1994 WL 505271 (Ohio App., 8th Dist., Sept. 15, 1994).

However, there is an exception to this general rule “when the parties to the written agreement act upon the terms of the oral agreement.” *200 W. Apts. v. Foreman*, No. 66107, 1994 WL 505271, at *2 (Ohio App., 8th Dist., Sept. 15, 1994). “[W]hen an agreement [in writing] as orally modified has been acted upon, as in the instant case, the rights of the parties are to be determined by the modified agreement.”³⁷⁷ *Id. Accord 3637 Green Road Co., Ltd. v. Specialized Component Sales Co., Inc.*, 69 N.E.3d 1083, 2016-Ohio-5342 (Ohio App., 8th Dist., 2016) (commercial lease).

³⁷⁷ In *Foreman*, the written lease contained a thirteen-month term and specified a \$450 per month rent. Concurrent with its execution, the tenant and landlord orally agreed that the tenant’s rental obligation would be only \$225 per month because he would soon become the property manager and, in the interim, he would perform certain computer consulting work. For the initial seven months, the tenant paid and the landlord accepted \$225 per month rent. The landlord then notified the tenant that the property manager position was no longer available and the tenant must begin paying \$450 per month rent. However, the landlord’s claim requested \$450 per month rent for the entire thirteen-month term of the written lease. The court held that, in these circumstances, the oral modification of the rental obligation established the rights of the parties for the initial seven months of the lease.

B. Purchase of Premises Subject to Existing Tenancy

A purchaser of real estate, which is in the actual possession of a tenant, is charged with knowledge of, and acquires title subject to, the tenant's rights under the existing tenancy. *Four Howards, Ltd. v. J & F Wenz Rd. Inv., L.L.C.*, 179 Ohio App.3d 399, 902 N.E.2d 63 (6th Dist. 2008); *Endersby v. Schneppe*, 73 Ohio App.3d 212, 596 N.E.2d 1081 (3rd Dist. 1991); *Kemp v. Feldman*, 84 Ohio App. 154, 81 N.E.2d 319 (2nd Dist. 1948); *Dunkel v. Hedges*, 15 Ohio App. 259 (4th Dist. 1921); *Smith v. Gallagher*, No. M9109-CVG-034190 (Ohio Mun., Franklin Cty., Dec. 4, 1991); *Cassidy v. Vaccariello*, No. M8907-CVG-026434 (Ohio Mun., Franklin Cty., Aug. 28, 1989).

For a discussion on the application of this law to tenancies under the Housing Choice Voucher program, see Section III.H.4, above.

Under this law, the purchaser acquires title subject to, among other things, the tenant's right to pay rent in accordance with the established course of dealings between the tenant and the previous owner (see Section II.H, above). *Smith v. Gallagher*, No. M9109-CVG-034190 (Ohio Mun., Franklin Cty., Dec. 4, 1991); *Cassidy v. Vaccariello*, No. M8907-CVG-026434 (Ohio Mun., Franklin Cty., Aug. 28, 1989); *Classic Real Estate v. Bowen*, No. M79-CVG-01404 (Ohio Mun., Franklin Cty., Mar. 12, 1979).

When a third party purchases a tenant-occupied property, three other issues that may arise, among the seller, buyer, and tenant, concern: the tenant's rental payment obligations (see Section VII.F.10, above); negligence per se liability for defective conditions that existed at the property at the time of the sale (see Section IX.B.6, above); and security deposit liability for deposits paid to the seller (see Section XVI.H.6, above).

C. Foreclosure of a Mortgage on Tenant-Occupied Property

1. Introduction

When a foreclosure action concerns tenant-occupied property and the tenancy was created after the mortgage was executed, three issues often arise. The first is whether,

pending the foreclosure action (*i.e.*, after commencement of the action and before confirmation of the foreclosure sale), the landlord-tenant relationship continues and, if so, are the rights and duties of the landlord or tenant modified in any respect. The second is whether the confirmation of the foreclosure sale terminates the tenancy. The third is whether, in the foreclosure action, the court may issue an order (*i.e.*, writ of possession) for the forcible removal of the tenant from the premises.

Ohio common law on these issues is discussed in Section XXII.C.2, below. The Protecting Tenants at Foreclosure Act (“PTFA”)³⁷⁸ – a federal law that preempts Ohio common law on these issues – is discussed in Section XXII.C.3, below. Rules governing FHA-insured mortgages on these issues are discussed in Section XXII.C.4, below.

2. Ohio Common Law

a. Pending Foreclosure Action, Effect on Tenancy

During the pendency of a foreclosure action (*i.e.*, after commencement of the action and before confirmation of the foreclosure sale), generally the landlord-tenant relationship remains unchanged. The tenancy (*e.g.*, one-year lease, month-to-month tenancy) continues. The landlord and tenant have the same rights and duties as before the filing of the foreclosure action.

The tenant still has a legal duty to pay the rent to the landlord. A tenant’s failure to pay the rent may permit the landlord to terminate the tenancy and file an eviction action.

Likewise, the landlord is still required to maintain the property and, if the rental agreement requires the landlord to pay for a utility service, the landlord is still required to make those utility payments. If the landlord fails to maintain the property or pay for those utility services, the tenant may exercise the remedies that are discussed in

³⁷⁸ The PTFA was enacted in 2009. Pub. L. No. 111-12, tit. VII, §§ 701-704, 123 Stat. 1632, 1660-62 (2010). On December 31, 2014, the PTFA expired under the sunset provision of § 704 of the PTFA. In 2018, Congress enacted a permanent extension of the PTFA, which, effective June 23, 2018, restored and revived §§ 701-703 of the PTFA, and repealed the sunset provision in § 704 of the PTFA. Pub. L. No. 115-174, tit. III, § 304, 132 Stat. 1339 (2018). The PTFA is not codified (except for § 703), but it is contained in the U.S.C.A. notes of various sections: § 701 – 12 U.S.C.A. § 5201 notes; § 702 – 12 U.S.C.A. § 5220 notes; § 703 – 42 U.S.C.A. §§ 1437(o)(7)(C) and (F); § 704 – 12 U.S.C.A. § 5201 notes and § 5220 notes, and 42 U.S.C. § 1437f notes.

Chapters VIII and IX, above.

Generally, a foreclosure filing, alone, may not be a basis for rent depositing (see Chapter VIII, above). However, it may be a basis for rent depositing if the foreclosure filing and related facts support a claim for breach of the implied covenant of quiet enjoyment (see Section VII.C.9, above).

Three exceptions to these general rules, which (when applicable) modify the landlord-tenant relationship pending the foreclosure action, are: (1) the court's appointment of a receiver; (2) the court's approval of a mortgagee-in-possession; and (3) the mortgagee's exercise of an assignment of rent provision. Generally, a receiver has whatever powers the court delegates, a mortgagee-in-possession has the general duties of a landlord, and an assignee of rent does not have the general duties of a landlord.

b. Foreclosure Sale, Effect on Tenancy

When the tenant is a party in the foreclosure action, the confirmation of the foreclosure sale terminates the tenancy. *See Prudential Ins. Co. of Am. v. Bull Market, Inc.*, 66 Ohio Misc. 9, 420 N.E.2d 140 (C.P., Montgomery Cty., 1979); *Davis v. Boyajian*, 11 Ohio Misc. 97, 229 N.E.2d 116 (C.P., Stark Cty., 1967).

In these circumstances, the foreclosure court may issue an order for the forcible removal of the tenant from the premises. *See Ohio Att'y Gen. Op. No. 78-015* (Apr. 14, 1978).

When the tenant is not a party in the foreclosure action, recent appellate court decisions hold that the confirmation of the foreclosure sale still terminates the tenancy.³⁷⁹ *Victoria Mortgage Corp. v. Williams*, No. 68012, 1996 WL 200160 (Ohio App., 8th Dist., Apr. 25, 1996); *Hembree v. Mid-Am. Fed. Sav. & Loan Ass'n*, 64 Ohio App.3d 144, 580 N.E.2d 1103 (2nd Dist. 1989). *See also Prudential Ins. Co. of Am. v. Bull Market, Inc.*, 66 Ohio Misc. 9, 420 N.E.2d 140 (C.P., Montgomery Cty., 1979). These decisions rely on *New York Life Ins. Co. v. Simplex Prods. Corp.*, 135 Ohio St. 501, 21 N.E.2d 585 (1939).

³⁷⁹ In these circumstances, even absent the PTFA (see note 378, above), the foreclosure sale arguably would not terminate a Housing Choice Voucher program ("HCVP") lease. The federal law that prohibits an owner from terminating a HCVP lease without good cause arguably preempts any state law under which a foreclosure sale would terminate the HCVP lease. For a discussion on this issue, see Section III.H.5, above.

Before the enactment of the PTFA,³⁸⁰ the *Williams* and *Hembree* rule seemed to be followed in most municipal courts. Therefore, in practice, those decisions overruled an earlier appellate court decision and an earlier common pleas court decision – *First Fed. Sav. & Loan, Etc. v. Rig Oil Co.*, No. CA83-11, 1983 WL 7013 (Ohio App., 5th Dist., Aug. 2, 1983) (foreclosure sale does not terminate the tenancy, if tenant seeks to affirm it); *Davis v. Boyajian*, 11 Ohio Misc. 97, 229 N.E.2d 116 (C.P., Stark Cty., 1967).

However, when the tenant is not a party in the foreclosure action, the foreclosure court may not issue an order for the forcible removal of the tenant from the premises. Ohio Att’y Gen. Op. No. 78-015 (Apr. 14, 1978); *Norman v. McFaul*, No. C78-1698 (N.D. Ohio Dec. 20, 1978, and Apr. 25, 1979); *Scott v. O’Grady*, 760 F. Supp. 1288 (N.D. Ill. 1991), *aff’d on other grounds*, 975 F.2d 366 (7th Cir. 1992); *Hite v. Field*, 38 Conn. Supp. 70, 462 A.2d 393 (1982). *See, e.g., NRG-Nevada Note Servs., Inc. v. Barrett*, No. 04-CV-0839 (Ohio C.P., Clark Cty., June 4, 2008) (vacates writ of possession because the tenant had not been served in the foreclosure action).

In these circumstances, the purchaser of the property at the foreclosure sale may forcibly remove the tenant – more precisely, the former tenant but continued occupant under Ohio common law – in a separate eviction action, on a three-day notice under R.C. 1923.04.

A common foreclosure practice is to name a John Doe tenant in the complaint. The John Doe tenant is not a party in the foreclosure action, unless and until the relevant Civil Rule 15(D) requirements are met. *See LaNeve v. Atlas Recycling, Inc.*, 119 Ohio St.2d 324, 894 N.E.2d 25 (2008); *Ludwigsen v. Lakeside Plaza, LLC*, No. CA2014-03-008, 2014 WL 7014717 (Ohio App., 12th Dist., Dec. 15, 2014).

3. Protecting Tenants at Foreclosure Act

a. Preemption of Ohio Common Law

The PTFA³⁸¹ preempts any state or local law that provides tenants with less protection than the PTFA. Therefore, the PTFA, when it applies, preempts Ohio common law on the effect of a foreclosure sale on residential tenancies (see Section XXII.C.2, above).

³⁸⁰ See note 378, above.

³⁸¹ See note 378, above.

b. Applicable Tenancies

The PTFA applies to bona fide residential rental agreements – both written leases and oral periodic tenancies – that exist at a property when “complete title” of the property is transferred by foreclosure.

In Ohio, “complete title” is transferred upon the confirmation of the foreclosure sale. See *Hausman v. City of Dayton*, 73 Ohio St.3d 671, 653 N.E.2d 1190 (1995); *Bates v. Postulate Invs.*, 176 Ohio App.3d 523, 892 N.E.2d 937 (8th Dist. 2008). Therefore, the PTFA applies to any bona fide residential rental agreement that has been entered into before the confirmation of the foreclosure sale, even if it was entered into after the commencement of the foreclosure action.

A bona fide residential rental agreement means: (1) the tenant is not the child, spouse, or parent of the mortgagor (former landlord); (2) the lease or tenancy was the result of an arms-length transaction; and (3) the rent is not substantially less than the fair market rent (or the rent is reduced or subsidized due to a federal, state, or local subsidy).

The owner to which the PTFA applies is the immediate successor in interest to the property pursuant to the foreclosure (“new owner”). In Ohio, this means the purchaser of the property at the foreclosure sale.

c. PTFA – General Requirements

When the PTFA applies, the new owner acquires title subject to the rights of any bona fide tenants under their respective rental agreements. The new owner becomes the landlord under the rental agreements, like a purchaser of tenant-occupied real property under Ohio common law. See Section XXII.B, above.

However, the new owner’s right to terminate the rental agreement is subject to certain PTFA requirements.

With respect to written leases, absent a lease violation, the lease continues until the end of the lease term, with two exceptions. First, the new owner may, with a 90-day notice of termination, terminate the lease in order to use the property as the new owner’s personal residence. Second, if the lease has less than 90 days remaining when the new owner acquires title, the lease continues until either: (1) the new owner provides the tenant with a 90-day notice of termination, or (2) the tenant vacates the property at the end of the lease term or thereafter.

With respect to month-to-month tenancies, absent cause for termination, the tenancy continues until either: (1) the new owner provides the tenant with a 90-day

notice of termination and the notice period expires, or (2) the tenant provides the new owner with a 30-day notice of termination under R.C. 5321.17(B) and the notice period expires.

With respect to Housing Choice Voucher program (“HCVP”) tenancies, the HCVP lease is treated the same as other written leases. In addition, the Housing Assistance Payments (“HAP”) contract continues, with the new owner subject to the terms of the HAP contract. The PTFA also bars the new owner from terminating the HCVP lease on the “other good cause” business ground that it will assist in the sale of the property.

The new owner (or the new owner’s agent) is the only party who may serve the 90-day notice of termination. *See* HUD Notice, 74 Fed. Reg. 30106, 30107 (June 24, 2009).

The service of the 90-day notice of termination may not precede the confirmation of the foreclosure sale because, before the confirmation: (1) the determination as to which entity (or person) will be the new owner has not been made; (2) none of the potential new owners (such as the mortgagee) is the new owner at that time; and (3) since none of the potential new owners (aside from the mortgagor) possess title to the property, the potential new owners are without standing to serve a notice of termination.

Since the 90-day notice of termination is analogous to the R.C. 5321.17(B) notice of termination, two conclusions reasonably follow. First, generally the tenant is obligated to pay rent during the 90-day notice period. *See* Section I.D.4, above. Second, the bar against serving the R.C. 1923.04 notice to vacate prior to the expiration of the tenancy should apply to the 90-day notice period. *See* Section I.C.3.e., above.

d. PTFA – Rent Payment Issues

The rent payment issues arising from the confirmation of the foreclosure sale are the same as those arising from any other sale of occupied rental premises. Those issues are discussed in Section VII.F.10, above.

e. PTFA – Eviction Issues

The PTFA makes eviction actions the exclusive remedy for evicting bona fide tenants. The foreclosure court is without grounds to enter an eviction order against the tenant because the tenancy survives the foreclosure sale.

Noncompliance with the PTFA is an eviction action defense.³⁸² “The PTFA was intended to allow tenants who are victims of the foreclosure crisis a protection that can be used in the state courts to combat unlawful evictions. *Nativi v. Deutsche Bank Nat’l Trust Co.*, No. 09-06090, 2010 WL 2179885, at *3 (N.D. Cal. May 26, 2010). Moreover, in Ohio, a landlord’s noncompliance with a federal notice of termination requirement is a legal defense to an eviction action. See Sections III.A-E, above

A trial court may raise, sua sponte, any noncompliance with the PTFA 90-day notice requirement because it constitutes a jurisdictional issue. Proper service of the R.C. 1923.04 notice to vacate is a jurisdictional requirement for commencement of an eviction action. See Section I.C.1.b, above. An R.C. 1923.04 notice to vacate may not be served before the expiration of the tenancy. See Section I.C.3.e, above. Therefore, if the new owner violates the PTFA 90-day notice requirement, the R.C. 1923.04 notice to vacate has been served prematurely (*i.e.*, before the expiration of the tenancy) and, therefore, the court is without subject-matter jurisdiction to hear the eviction action.

If the eviction action is for nonpayment of rent, the PTFA 90-day notice of termination requirement does not apply. Like the analogous R.C. 5321.17(B) notice, it is a notice for nonrenewal (or to enable the new owner to reside in the property), not for a tenant’s breach of the rental agreement.

f. PTFA – Deed in Lieu of Foreclosure

The PTFA does not apply to a deed in lieu of foreclosure because the title has not been transferred by foreclosure. However, a deed in lieu of foreclosure is governed by Ohio common law on the sale of tenant-occupied real property. See Section XXII.B, above.

g. PTFA – Sale by Initial Successor in Interest to Third Party

When the initial successor in interest sells the property to a third party, the sale is

³⁸² *E.g.*, *Fed. Nat’l Mortgage Assoc. v. Moore*, No. 11-CVG-15320 (Ohio Mun., Cleveland, Hous. Div., Jan. 4, 2012) (lack of 90-day notice); *Fed. Nat’l Mortgage Assoc. v. Norman*, No. 10-CVG-02142 (Ohio Mun., Cleveland, Hous. Div., Mar. 8, 2010) (lack of 90-day notice; plaintiff’s burden to prove not bona fide tenant); *Fed. Nat’l Mortgage Assoc. v. Taylor*, No. 10-CVG-02141 (Ohio Mun., Cleveland, Hous. Div., Mar. 2, 2010) (same); *Fed. Nat’l Mortgage Assoc. v. Dobson*, No. 10-CVG-02140 (Ohio Mun., Cleveland, Hous. Div., Mar. 2, 2010) (same).

governed by Ohio common law on the sale of tenant-occupied real property. See Section XXII.B, above. The third-party purchaser thus acquires title subject to the existing tenancy. *Id.* Since the PTFA tenant protections become a part of the tenancy between the tenant and the initial successor in interest, the third-party purchases the property subject to the PTFA tenant protections.

4. FHA-Insured Mortgages – PTFA and the Occupied Conveyance Rule

When an FHA-insured mortgage on a single-family (*i.e.*, one to four unit) residential property is foreclosed, the mortgagee “conveys the property to HUD in exchange for an FHA mortgage insurance claim.” HUD Notice, 75 Fed. Reg. 66385, 66386 (Oct. 28, 2010). “HUD generally requires the mortgagee to convey the property unoccupied, but in certain circumstances, as described in HUD’s occupied conveyance regulations at 24 CFR 203.670-203.681, HUD will accept the property occupied.” *Id.*

When HUD requires an unoccupied conveyance, the mortgagee is still required to comply with PTFA (see Section XXII.C.3, above), for any bona fide rental agreement at the property. *Id.*; HUD Notice, 77 Fed. Reg. 15379 (Mar. 15, 2012).

In addition, pending HUD’s review of a tenant’s request for continued occupancy under 24 C.F.R. §§ 203.670-203.681, any eviction action against the tenant should be stayed on preemption and/or ripeness grounds. *Bank United v. Vogel*, No. 99-SP-2369 (Mass. Hous. Ct., Hampden Div., Nov. 5, 1999).

If the mortgagee fails to serve the tenant with the required notice of these continued occupancy rights (*see* 24 C.F.R. § 203.675), it should be a defense to any eviction action against the tenant, at least until the tenant is provided with the notice and an opportunity to exercise these continued occupancy rights. *See BancPlus Mortgage Corp. v. Smith*, No. 57641, 1990 WL 15294 (Ohio App., 8th Dist., Feb. 22, 1990) (under Appellate Rule 18(C), court finds that “appellant’s brief reasonably appears to sustain a reversal of the judgment upon the facts and issues presented”).

D. Utility Termination for Landlord Nonpayment, Tenant Rights

1. PUCO Regulated Utility Company

When a tenant’s utility services are included in the rental payments and are

furnished by a PUCO regulated utility company, PUCO rules provide the tenant with certain safeguards in any termination of service for the landlord's nonpayment.³⁸³ Ohio Admin. Code § 4901:1-18-08.

The safeguards include the utility company's duty to provide the tenant with ten days advance notice of the proposed termination of service. *Id.* In the notice, the company must "summarize the remedies tenants may choose to prevent disconnection or to have service reconnected." *Id.*

The safeguards also include the tenant's right to maintain (or reinstate) the utility service by paying the amount due for the current month's service for the building (plus any reconnection charge). *Id.*

The safeguards also include, for mastermeters premises, the tenant's right to maintain (or reinstate) the utility service by timely invoking the R.C. 5321.07 rent deposit procedures, provided at least fifty percent of the tenants of the occupied dwelling units in the building participate. *Id.* Under this remedy, after rent depositing, the tenants apply to the court for an order to use the rent deposit to maintain or reinstate the utility service. *Id.*

2. Governmental Utility Supplier – Equal Protection and Due Process

When a utility supplier is a governmental entity (*e.g.*, municipal water or electric company), its procedures for termination of service are subject to the requirements of equal protection and due process. *See Memphis Light, Gas & Water Div. v. Craft*, 436 U.S. 1 (1978); *Myers v. City of Alcoa*, 752 F.2d 196 (6th Cir. 1985); *Davis v. Weir*, 497 F.2d 139 (5th Cir. 1974).

Therefore, when a tenant's utility services are included in the rental payments and are furnished by a governmental entity, equal protection and due process requirements may provide the tenant with certain safeguards in any termination of service for the landlord's nonpayment.³⁸⁴ *E.g.*, *Turpen v. City of Corvallis*, 26 F.3d 978 (9th Cir. 1994); *DiMassimo v. City of Clearwater*, 805 F.2d 1536 (11th Cir. 1986); *Sterling v. Vill. of Maywood*, 579 F.2d 1350 (7th Cir. 1978); *Koger v. Guarino*, 412 F. Supp. 1375

³⁸³ For a discussion on tenant claims against a landlord where a landlord proposes to terminate or terminates utility services in order to recover possession of the premises, see Chapter XII, above.

³⁸⁴ See note 383, above.

(E.D. Pa. 1976), *aff'd*, 549 F.2d 795 (3d Cir. 1977); *Davis v. Weir*, 497 F.2d 139 (5th Cir. 1974); *Pilchen v. City of Auburn, New York*, 728 F. Supp.2d 192 (N.D.N.Y. 2010).

With respect to these terminations, court decisions have held that equal protection provides the tenant with the right to become the utility customer for the premises without paying the landlord's delinquent utility bill, which enables the tenant to maintain or reinstate the utility service. *Golden v. City of Columbus*, 404 F.3d 950 (6th Cir. 2005); *Sterling v. Vill. of Maywood*, 579 F.2d 1350 (7th Cir. 1978); *Craft v. Memphis Light, Gas & Water Div.*, 534 F.2d 684 (6th Cir. 1976), *aff'd on other grounds*, 436 U.S. 1 (1978); *Davis v. Weir*, 497 F.2d 139 (5th Cir. 1974); *Pilchen v. City of Auburn, New York*, 728 F. Supp. 2d 192 (N.D.N.Y. 2010). *Cf. O'Neal v. City of Seattle*, 66 F.3d 1064 (9th Cir. 1995) (prior customer's delinquency); *Lake v. City of Youngstown*, No. 4:93CV2559 (N.D. Ohio July 14, 1994) (prior customer's delinquency). *But cf. Ransom v. Marrazzo*, 848 F.2d 398 (3d Cir. 1988) (non-tenant occupant and prior customer's delinquency; declined to address the constitutional rights of non-delinquent tenants).

With respect to these terminations, court decisions also have held that due process requires the utility company to provide the tenant with an adequate pre-termination notice. *Turpen v. City of Corvallis*, 26 F.3d 978 (9th Cir. 1994); *DiMassimo v. City of Clearwater*, 805 F.2d 1536 (11th Cir. 1986); *Davis v. Weir*, 497 F.2d 139 (5th Cir. 1974); *Pilchen v. City of Auburn, New York*, 728 F. Supp.2d 192 (N.D.N.Y. 2010). *But see Sterling v. Vill. of Maywood*, 579 F.2d 1350 (7th Cir. 1978). *But cf. James v. City of St. Petersburg*, 33 F.3d 1304 (11th Cir. 1994) (en banc) (tenant without property interest if neither landlord nor tenant has contractual relationship with the utility company).

The case law is split on whether, for these terminations, due process requires the utility company to provide the tenant with a pre-termination hearing opportunity. *Compare Turpen v. City of Corvallis*, 26 F.3d 978 (9th Cir. 1994) (not required), and *DiMassimo v. City of Clearwater*, 805 F.2d 1536 (11th Cir. 1986) with *Davis v. Weir*, 497 F.2d 139 (5th Cir. 1974) (required), and *Pilchen v. City of Auburn, New York*, 728 F. Supp.2d 192 (N.D.N.Y. 2010).

The Sixth Circuit has held, in two cases, that the tenants failed to demonstrate a due process property interest for these terminations: *Golden v. City of Columbus*, 404 F.3d 950 (6th Cir. 2005), and *Midkiff v. Adams County Reg'l Water Dist.*, 409 F.3d 758 (6th Cir. 2005).

In *Golden*, the tenant's due process property interest argument was "the bare

assertion that because water is ‘an absolute necessity of life,’ the City’s termination of her service was unconstitutional.” 404 F.3d at 958. Because the tenant did not rely upon any provision of the Ohio landlord-tenant law, the court opted not to express any opinion on whether that law creates a due process property interest for these terminations. *Id.*

In *Midkiff*, the tenant’s due process property interest argument was based on R.C. 5321.04(A)(6) and 5321.15. The court rejected this argument on the ground that neither of these sections provides tenants with a right to continued water service. The court’s analysis of R.C. 5321.04(A)(6) is correct. The court’s analysis of R.C. 5321.15 is incorrect because, for the reasons discussed in Section XII.B.3, above, a tenant may secure injunctive relief to maintain or restore water service, in response to a landlord’s violation of R.C. 5321.15. More importantly, these analyses are irrelevant because the tenant’s due process property interest, for these terminations, does not arise from R.C. 5321.04(A)(6) or R.C. 5321.15.

In Ohio, the tenant’s due process property interest for these terminations arises from R.C. 5321.04(A)(2) and, in many cases, R.C. 5321.04(A)(1) as well. The R.C. 5321.04(A)(2) requirement “to put and keep the premises in a fit and habitable condition” necessarily includes a requirement to furnish water service, if the rental agreement requires the landlord to pay for the water service. Absent the water service, the premises are not habitable. Similarly, where a local code requires water service for rental premises, and where the rental agreement requires the landlord to pay for the water service, the R.C. 5321.04(A)(1) requirement “to comply with the requirements of all applicable building, housing, health, and safety codes that materially affect health and safety” necessarily includes a requirement to furnish water service.

If the due process property interest depends on whether a tenant may obtain injunctive relief to enforce these R.C. 5321.04(A)(1),(2) rights to continued water service, as *Midkiff* suggests, R.C. 5321.07(B)(2) expressly provides tenants with that injunctive remedy. R.C. 3767.41 likewise provides tenants with an injunctive remedy if their rental premises are “no longer fit and habitable” (*e.g.*, without water service). See Section IX.G.1, above.

For further discussion on these constitutional rights, see National Consumer Law Center, Access to Utility Service (5th ed. 2011).

The following court decisions and consent orders establish due process notice and hearing procedures for municipal water suppliers in Ohio.

- (1) *Canter v. Vill. of Smithfield*, No. C2-01-0138 (S.D. Ohio June 15, 2001) (consent decree, Civil Rule 71 relief)
- (2) *Ferguson v. City of Circleville*, No. C-2-00-1336 (S.D. Ohio May 11, 2001) (consent decree, Civil Rule 71 relief)
- (3) *Bookman v. Vill. of New Straitsville*, No. C-2-000536 (S.D. Ohio Feb. 7, 2001) (consent decree, Civil Rule 71 relief)
- (4) *Schwaben v. Vill. of Woodsfield*, No. C2-98-1089 (S.D. Ohio June 18, 1999) (agreed order, Civil Rule 71 relief)
- (5) *Stanley v. City of Waverly*, No. C-2-98-122 (S.D. Ohio June 4, 1998) (agreed order, implicit Civil Rule 71 relief)
- (6) *Lewis v. Vill. of Barnesville*, No. C-2-95-0105 (S.D. Ohio Mar. 4, 1997, and Jan. 30, 1998) (class relief)
- (7) *King v. Zickefoose*, No. 3-96-CV7519 (N.D. Ohio Oct. 17, 1997) (City of Fostoria, stipulation of settlement, Civil Rule 71 relief)
- (8) *Frahn v. City of Cambridge Utils. Dep't*, No. C2-94-1203 (S.D. Ohio Mar. 1, 1996, and Mar. 29, 1996) (stipulation of settlement, Civil Rule 71 relief)
- (9) *Rose v. Guernsey County Water & Sewer Dep't*, No. C2-92-1114 (S.D. Ohio Nov. 18, 1993) (stipulation of settlement, class relief)
- (10) *Hewison v. City of Coshocton Water Dep't*, No. C2-92-131 (S.D. Ohio Dec. 30, 1992) (class relief)
- (11) *McKee v. City of Zanesville*, No. C-2-92-444 (S.D. Ohio Nov. 25, 1992) (corrected stipulation of settlement, class relief)
- (12) *Morrow v. City of Steubenville*, No. C2-91-1003 (S.D. Ohio July 30, 1992) (stipulation of settlement, class relief)
- (13) *McDowell v. City of Toledo*, No. 89-1709 (Ohio C.P., Lucas Cty., Feb. 18, 1992) (judgment entry by consent, implicit Civil Rule 71 relief), *enforced*, No. 89-1709 (Ohio C.P., Lucas Cty., June 28, 2010) (Civil Rule 71 proceeding), *aff'd*, No. L-10-1229, 2011 WL 1457153 (Ohio App., Lucas Cty., Apr. 15, 2011)
- (14) *Crisp v. City of Portsmouth*, No. 88-416 (S.D. Ohio Jan. 17, 1989) (consent decree, class relief)
- (15) *Colegrove v. City of Cleveland*, No. 74-1007 (N.D. Ohio June 25, 1987) (amended consent order, class relief)

- (16) *Cox v. City of Lorain*, No. C84-2987 (N.D. Ohio Nov. 14, 1984) (consent and order, class relief)
- (17) *Von Uehm v. Vill. of Cleves*, No. C-1-80-583 (S.D. Ohio Aug. 13, 1981) (consent decree, class relief)
- (18) *Hahn v. City of Cincinnati*, No. C-1-79-308 (S.D. Ohio Sept. 5, 1980) (consent decree, class relief)
- (19) *Carns v. City of Mansfield*, No. C80-629-A (N.D. Ohio June 16, 1980) (consent order, class relief)

The following court decisions and consent orders establish due process notice and hearing procedures for municipal electric suppliers in Ohio.

- (1) *Osmun v. Vill. of Montpelier*, No. 3:96CV-7542 (N.D. Ohio May 5, 1997) (Civil Rule 41(a)(2) voluntary dismissal with attached settlement agreement, Civil Rule 71 relief)
- (2) *Reed v. Jackson*, No. C-2-87-1303 (S.D. Ohio Jan. 3, 1989) (class relief)

E. Utility Submeter Issues

Some residential landlords and manufactured home park operators (“mh park operators”) install a utility submeter system for each of their rental units or lots and then charge the tenant or manufactured home park owner (“mh park owner”) for the service, at the public utility rate (or higher) plus an administrative fee. *See Wingo v. Nationwide Energy Partners*, 163 Ohio St.3d 208, 169 N.E.3d 617 (2020); *Pledger v. Pub. Utils. Comm’n of Ohio*, 109 Ohio St.3d 463, 849 N.E.2d 14 (2006); *Anderle v. Ideal Mobile Home Park, Inc.*, 114 Ohio App.3d 385, 683 N.E.2d 348 (8th Dist. 1996); *Sliwinski v. Capital Props. Mgmt. Ltd.*, No. CV2006-02-0884, 2007 WL 5843246 (Ohio C.P., Summit Cty., Dec. 11, 2007).

In these circumstances, the landlord or mh park operator often uses a submeter company to manage the billing system.

A potential issue, relative to these submeter systems, is whether the landlord, mh park operator, or submeter company is operating as a public utility (and then subject to a determination on whether it is doing so unlawfully). PUCO makes this determination under the R.C. 4905.05 definitions of a public utility, as implemented in

the PUCO-established *Shroyer* test for submeter systems.³⁸⁵ *Wingo v. Nationwide Energy Partners*, 163 Ohio St.3d 208, 169 N.E.3d 617 (2020); *Pledger v. Pub. Utils. Comm’n of Ohio*, 109 Ohio St.3d 463, 849 N.E.2d 14 (2006). In *Pledger*, the court upheld the *Shroyer* test. In *Wingo*, the court reaffirmed its support of the original *Shroyer* test but held unlawful PUCO’s 2016 and 2017 modifications of the *Shroyer* test.³⁸⁶

Another potential issue, relative to these submeter systems, is whether, under R.C. Chapter 1327, these meters are subject to inspection and certification by the Weights and Measures Division of the Ohio Department of Agriculture (“ODA”). The ODA has stated that these meters are not subject to such inspection and certification because they are used for residential (and not commercial) purposes. Letter from William A. Hopper, Jr., Chief Legal Counsel, ODA, to John Wood, Esq. (July 27, 2006). However, in *Sliwinski v. Capital Props. Mgmt. Ltd.*, No. CV2006-020884, 2007 WL 5843246 (Ohio C.P., Summit Cty., Dec. 11, 2007), the court denied the landlord’s motion to dismiss the tenant’s claim that was premised on this inspection and certification requirement.³⁸⁷

Another potential issue, relative to these submeter companies, is whether the Ohio Consumer Sales Practices Act applies to their third-party billing system. For a discussion on this issue, see Section XXII.F, below.

³⁸⁵ PUCO adopted the *Shroyer* test in *Matter of the Complaints of Inscho, Etc. v. Shroyer’s Mobile Homes*, Pub. Utils. Comm’n of Ohio, Nos. 90-182-WS-CSS, Etc., 1992 WL 937210 (Opinion and Order, filed Feb. 27, 1992). It is the following three-part test: (1) Has the landlord manifested an intent to be a public utility by availing itself of special benefits available to public utilities such as accepting a grant of a franchised territory, a certificate of public convenience and necessity, or use of the public right of way for utility purposes? (2) Is the utility service available to the general public rather than just to tenants? (3) Is the provision of utility service ancillary to the landlord’s primary business?

³⁸⁶ PUCO adopted these modifications of the *Shroyer* test in *Matter of the Comm’n’s Investigation of Submetering in the State of Ohio*, Pub. Utils. Comm’n of Ohio, No. 15-1594-AU-COI (Finding and Order, filed Dec. 7, 2016, and Second Entry on Rehearing, filed June 21, 2017). The modifications focused the test on whether the utility charges exceeded the amount that the tenant or manufactured home park owner would have been charged through the local public utility’s default service tariffs.

³⁸⁷ The tenant thereafter dismissed the action with prejudice as to all defendants. *Sliwinski v. Hunt Club*, No. CV2006-02-0884 (Ohio C.P., Summit Cty., Nov. 13, 2012).

F. Ohio Consumer Sales Practices Act

The Ohio Consumer Sales Practices Act (“CSPA”), R.C. Chapter 1345, does not apply to residential lease transactions. *Heritage Hills, Ltd. v. Deacon*, 49 Ohio St.3d 80, 551 N.E.2d 125 (1990). See also *Mesnick v. De Ville Apts.*, No. 71517, 1997 WL 599376 (Ohio App., 8th Dist., Sept. 25, 1997); *Hartman v. Garden Woods Apts.*, No. 15228, 1995 WL 628021 (Ohio App., 2nd Dist., Oct. 25, 1995).

However, the CSPA may apply to the service, between a submeter company and a tenant, for furnishing a rental unit with utility service under a submeter system. See *Sliwinski v. Capital Props. Mgmt. Ltd.*, No. CV2006-02-0884, 2007 WL 5843246 (Ohio C.P., Summit Cty., Dec. 11, 2007) (in denying motion to dismiss CSPA claim, “Court finds first that the sale of water and sewage may be an action unrelated to the landlord-tenant relationship, and therefore is not necessarily preempted by the landlord-tenant act”).³⁸⁸ Cf. *Nelson v. Am. Power & Light*, No. 2:08-cv-549, 2010 WL 3219498 (S.D. Ohio Aug. 12, 2010) (motion to dismiss CSPA claims denied; per lease, tenant maintained electric service with utility company, which had agreement with landlord for commencing eviction upon any tenant delinquency of 60 days on the utility account).

Under these third-party billing systems, typically, the submeter company installs and maintains the submeter, reads the submeter, and bills and collects payments from the tenant for the utility service. The tenant remits payments for the utility service for the rental unit to the submeter company, not the landlord or utility company.

The tenant’s residential lease incorporates the service – the delivery/payment system between the submeter company and the tenant – and permits the landlord to evict the tenant for any nonpayment of the tenant’s payment obligation to the submeter company. A separate contract is executed between the submeter company and the landlord.

While the CSPA does not apply to “pure” real estate transactions, it applies to “mixed” transactions, which involve a transfer of both real property and either a service or personal property. *Brown v. Liberty Clubs, Inc.*, 45 Ohio St.3d 191, 543 N.E.2d 783 (1989). While the *Heritage Hills* decision was issued after the *Brown* decision, Ohio appellate courts have continued to follow the holding in *Brown*, often in cases closer to a pure real estate transaction than the incorporation of the third-party billing system

³⁸⁸ See note 387, above.

into the residential lease.

For example, courts consistently have held that the construction of a new home constitutes a “service” within the meaning of the CSPA, even though the CSPA does not apply to the accompanying purchase of real property. *See, e.g., Fine v. U.S. Erie Islands Co.*, No. OT-07-048, 2009 WL 826526 (Ohio App., 6th Dist., Mar. 31, 2009); *Morrison v. Skestos*, No. 04AP-244, 2004 WL 2944159 (Ohio App., 10th Dist., Dec. 21, 2004); *Kieber v. Spicer Constr. Co.*, 85 Ohio App.3d 391, 619 N.E.2d 1105 (2nd Dist. 1993).

A residential lease that incorporates a third-party billing system for a utility service is arguably a “mixed” transaction, similar to those discussed in *Kieber* and *Fine*, and not a pure real estate transaction similar to the one discussed in *Heritage Hills*. The relationship between the submeter company and the tenant is reasonably classified as a service agreement for a utility service.

This service is separate and distinct from the real estate transaction between the landlord and tenant, *i.e.*, the transfer of the landlord’s interest in the real property to the tenant for the lease period, which includes the landlord’s obligation to maintain the property and the tenant’s obligation to pay rent. In *Heritage Hills*, the dispute arose solely from the terms of the lease that concern the transfer of the landlord’s interest in the real property to the tenant – the amount due to the landlord for repairs made to the real property.

G. Statute of Limitations, R.C. Chapter 5321 Claims

The statute of limitations for a statutory claim, under a remedial statute that does not contain a statute of limitations, is six years under R.C. 2305.07. *Cleveland Mobile Radio Sales, Inc. v. Verizon Wireless*, 113 Ohio St.3d 394, 865 N.E.2d 1275, ¶ 7 (2007). R.C. Chapter 5321 is a remedial statute. See Section V.A, above.

The test for determining whether a claim is a statutory claim, for R.C. 2305.07 purposes, is set forth in *McAlliffe v. W. States Import Co.*, 72 Ohio St.3d 534, 651 N.E.2d 957, syllabus no. 1 (1995):

In order for a statutory cause of action to be “an action ... upon a liability created by statute” under R.C. 2305.07, that cause of action must be one that would not exist but for the statute. Any statutory “modification, alteration or conditioning” of a common-law cause of

action which falls short of creating a previously unavailable cause of action is not “an action ... upon a liability created by statute.”

Applying *McAllife*, courts have held that the statute of limitations for a tenant’s claim for bodily injury or injury to personal property, arising from a landlord’s R.C. 5321.04(A) violation, is two years under R.C. 2305.10 (and not six years under R.C. 2305.07). *E.g.*, *Shorter v. Neapolitan*, 179 Ohio App.3d 608, 902 N.E.2d 1061 (7th Dist. 2008); *Segal v. Zehman-Wolf Mgmt., Inc.*, 139 Ohio App.3d 146, 743 N.E.2d 425 (8th Dist. 2000); *Daniels v. Thompson*, No. 49015, 1985 WL 7992 (Ohio App., 8th Dist., Apr. 25, 1985); *Craver v. Doogan*, No. 2003-CVC-00982, 2005 WL 4985282 (Ohio C.P., Clermont Cty., May 27, 2005). *Cf. Pummill v. Carnes*, No. 02-CA-2659, 2003 WL 896349 (Ohio App., 4th Dist., Feb. 4, 2003) (R.C. 3733.10 (now R.C. 4781.38) violation, although court refers to R.C. 5321.04).

The R.C. 2305.10 statute of limitation applies to these claims “regardless of whether it is framed as a tort claim, a contract claim, or a warranty-of-habitability claim.” *Shorter v. Neapolitan*, 179 Ohio App.3d 608, 902 N.E.2d 1061, ¶ 18 (7th Dist. 2008).

The statute of limitations for a tenant’s R.C. 5321.04 contract claim for other damages (such as general damages) is eight years under R.C. 2305.06 for written rental agreements, and six years under R.C. 2305.07 for oral rental agreements.³⁸⁹ Rental agreements are treated as contracts. See Section VII.A, above.

For written rental agreements, the statute of limitations for a landlord’s claim for damage to the rental premises is governed by R.C. 2305.06. *Young v. McCleese*, No. 97-CA-2351, 1998 WL 399861 (Ohio App., 4th Dist., July 13, 1998).

The statute of limitations for each of the remaining claims under R.C. Chapter 5321 is still to be determined. The remaining claims are those under R.C. 5321.02(B), 5321.05(C), 5321.07(B)(2), 5321.12, 5321.15(C), and 5321.16(C).

When an R.C. Chapter 5321 claim is ongoing, in month-to-month tenancies, each month constitutes a new contract from which the statute of limitations period runs. *Mozingo v. 2007 Gaslight Ohio, LLC*, No. 27759, 2016 WL 3608751, ¶ 22 (Ohio App., 9th Dist., July 6, 2016).

³⁸⁹ Generally, an oral rental agreement will be valid and enforceable only if it is taken out of the statute of frauds under the equitable doctrine of partial performance. See Section XXII.A.3, above.

H. Recoupment, R.C. Chapter 5321 Claims

The “supreme court has held that a claim that would be barred by the statute of limitations if brought in an action for affirmative relief is nonetheless available as a defense or under a common law theory of recoupment when it arises out of the same transaction as the plaintiff’s claim for relief and is offered to reduce the plaintiff’s right to relief. *Riley v. Montgomery* (1984), 11 Ohio St.3d 75, 78, 463 N.E.2d 1246.” *Johnson v. Brown*, No. 2002-CA-76, 2003 WL 1193795, ¶ 27 (Ohio App., 2nd Dist., Mar. 14, 2003).

In *Johnson*, the landlord asserted a claim for tenant damage to the rental property. The court held that the tenant’s claim for sewer repair costs, incurred as a result of the landlord’s failure to remedy a sewage backup problem, arose from the same transaction for recoupment purposes.

I. PHA Sovereign Immunity, R.C. Chapter 2744

1. Overview

In *Moore v. Lorain Metro. Hous. Auth.*, 121 Ohio St.3d 455, 905 N.E.2d 606 (2009), the Supreme Court clarifies the R.C. Chapter 2744 sovereign immunity of public housing authorities (“PHAs”) relative to tenant claims.

The *Moore* decision contains two significant conclusions of law.

First, it holds that “the operation of a public housing authority is a governmental function under R.C. 2744.01(C)(2).” *Moore*, 121 Ohio St.3d 455, ¶ 19. Therefore, as to tenant claims, PHAs are not liable under the R.C. 2744.02(B)(2) exception “for injury, death, or loss to person or property caused by the negligent performance of acts by their employees with respect to proprietary functions.” *Id.*, ¶ 20 n.5.

Second, it holds that “a unit of public housing is a building ‘used in connection with the performance of a governmental function’ within the meaning of R.C. 2744.01(C)(2).” *Id.*, ¶ 24. Therefore, as to tenant claims, PHAs are liable under the R.C. 2744.02(B)(4) exception for injury, death, or loss to person or property that: (1) is caused by the negligence of a PHA employee, (2) occurs within or on the rental premises, and (3) is due to a physical defect within or on the rental premises. *Id.*

But if the tenant’s claim arises from a physical defect in Housing Choice Voucher program rental premises, the PHA does have immunity from liability under R.C.

2744.02. *Holimon v. Cincinnati Metro. Hous. Auth.*, 180 N.E.3d 1226, 2021-Ohio-3840 (Ohio App., 1st Dist., 2021). The R.C. 2744.02(B)(4) exception is inapplicable in these cases because, unlike the Public Housing program, the rental premises are privately owned (not governmentally owned) buildings. *Id.*

R.C. Chapter 2744 does not define the term “physical defect” for R.C. 2744.01(C)(2) purposes. However, the appellate courts have adopted a definition, namely: “if the instrumentality that caused the plaintiff’s injury did not operate as intended due to a perceivable condition – or, to put it in the words of the *Hamrick* court, if the instrumentality contained a perceivable imperfection that impaired its worth or utility.” *Leasure v. Adena Local Sch. Dist.*, 973 N.E.2d 810, 2012-Ohio-3071, ¶ 20 (Ohio App., 4th Dist., 2012) (improperly set up bleachers – physical defect). *Accord Johnson v. Cincinnati Metro. Hous. Auth.*, No. C-210240, 2022 WL 68345 (Ohio App., 1st Dist., Jan. 7, 2022) (loose floor mat on top step of stairs – genuine issue on whether it was physical defect and thus summary judgment denied); *Moncrief v. Bohn*, 9 N.E.3d 508, 2014-Ohio-837, ¶ 15 (Ohio App., 8th Dist., 2014) (lack of adequate security services – no physical defect); *Jones v. Delaware City Sch. Dist. Bd. of Educ.*, 995 N.E.2d 1252, 2013-Ohio-3907, ¶ 22 (Ohio App., 5th Dist., 2013) (orchestra pit without reflective tape and lights – physical defect); *Gibbs v. Columbus Metro. Hous. Auth.*, No. 11AP-711, 2012 WL 1852086, ¶¶ 13-16 (Ohio App., 10th Dist., May 22, 2012) (trash chute in which body found – no physical defect); *Duncan v. Cuyahoga Cmty. Coll.*, 970 N.E.2d 1092, 2012-Ohio-1949, ¶¶ 26,27 (Ohio App., 8th Dist., 2012) (lack of floor mats in self-defense class – no physical defect); *Hamrick v. Bryan City School Dist.*, No. WM-10-014, 2011 WL 2090038, ¶¶ 27,28 (Ohio App., 6th Dist., May 27, 2011) (unmarked service pit in bus garage – no physical defect).

PHA employees, as employees of a political subdivision, may rely on their R.C. 2744.03(A)(6) immunity from liability “for injury, death, or loss to person or property allegedly caused by an act or omission in connection with a governmental or proprietary function.” However, this immunity is subject to three exceptions. It does not apply if the “employee’s acts or omissions were manifestly outside the scope of the employee’s employment or official responsibilities.” R.C. 2744.03(A)(6)(a). It does not apply if the “employee’s acts or omissions were with malicious purpose, in

bad faith, or in a wanton or reckless manner.”³⁹⁰ R.C. 2744.03(A)(6)(b). And it does not apply if the “[c]ivil liability is expressly imposed upon the employee by a section of the Revised Code.” R.C. 2744.03(A)(6)(c).

The *Moore* decision does not address the R.C. Chapter 2744 sovereign immunity of PHAs with respect to intentional tort claims. But “courts have generally held that because R.C. 2744.02(B) includes no specific exemption for intentional torts, political subdivisions are immune from intentional tort claims.” *Griffits v. Vill. of Newburgh Heights*, No. 91428, 2009 WL 280376, ¶ 26 (Ohio App., 8th Dist., Feb. 5, 2009). *Accord Zieber v. Heffelfinger*, No. 08-CA-0042, 2009 WL 695533, ¶ 27 (Ohio App., 5th Dist., Mar. 17, 2009) (“Ohio courts have consistently held that political subdivisions are immune under R.C. 2744.02 from intentional tort claims”). *E.g., Rid-All Exterminating Co. v. Cuyahoga Metro. Hous. Auth.*, No. 98174, 2012 WL 5370978, ¶ 9 (Ohio App., 8th Dist., Nov. 1, 2012) (contractor’s fraud claim barred); *Kelly v. Chillicothe Metro. Hous. Auth.*, No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011) (tenant’s trespass and conversion claims barred under R.C. 2744.02,.05 immunity).

The R.C. Chapter 2744 sovereign immunity of PHAs does not apply to contract claims. R.C. 2744.09(A). *See also Bozeman v. Cleveland Metro. Hous. Auth.*, Nos. 92435,92436, 2009 WL 3321402, ¶ 11 (Ohio App., 8th Dist., Oct. 15, 2009); *Carter v. Complete Gen. Constr. Co.*, No. 08AP-309, 2008 WL 5104787, ¶ 16 (Ohio App., 10th Dist., Dec. 4, 2008).

The R.C. Chapter 2744 sovereign immunity of PHAs also does not apply to federal claims (statutory or constitutional). R.C. 2744.09(E).

2. Negligence Per Se Claims

An R.C. 5321.04(A) violation may give rise to a tenant’s negligence per se claim against a landlord. *See* Section IX.B, above. The claim often arises from a defective condition at the rental premises.

Under *Moore*, tenants may assert these claims against PHAs under the R.C. 2744.02(B)(4) exception. Appellate court decisions on these tenant claims against PHAs are summarized below.

³⁹⁰ For a discussion on the meaning of the terms willful, wanton, and reckless, including their differences, see *Anderson v. City of Massillon*, 134 Ohio St.3d 380, 983 N.E.2d 266 (2012). For a discussion directly on the elements of this exception, see *Spears v. Akron Police Dep’t*, No. 24847, 2010 WL 625822, ¶ 15 (Ohio App., 9th Dist., Feb. 24, 2010).

Three courts upheld denials of the PHA's motion for judgment on the pleadings, with remands for a determination on whether the defective condition was a "physical defect" under R.C. 2744.02(B)(4): *Diaz v. Cuyahoga Metro. Hous. Auth.*, No. 92907, 2010 WL 27868 (Ohio App., 8th Dist., Jan. 7, 2010) (defective window); *Williams v. Cuyahoga Metro. Hous. Auth.*, No. 92964, 2009 WL 4857623 (Ohio App., 8th Dist., Dec. 17, 2009) (defective pool table); *Bozeman v. Cleveland Metro. Hous. Auth.*, Nos. 92435, 92436, 2009 WL 3321402 (Ohio App., 8th Dist., Oct. 15, 2009) (lead paint).

One court denied the tenant's claim against the PHA on the ground that the defective physical condition did not cause the injury. *Canidate v. Cuyahoga Metro. Hous. Auth.*, No. 101753, 2015 WL 1121444 (Ohio App., 8th Dist., Mar. 12, 2015) (2-1 decision). The tenant slipped as a result of water on the floor of the first-floor common area. The water came from an overflowing sink in a third-floor apartment. The defective condition was a missing ceiling tile in the first-floor common area.

One court held that an alleged lack of adequate security service did not constitute a physical defect under R.C. 2744.02(B)(4). *Moncrief v. Bohn*, 9 N.E.3d 508, 2014-Ohio-837, ¶ 15 (Ohio App., 8th Dist., 2014).

One court held that the laundry chute, in which the tenant's body was found, was not defective and thus not a physical defect under R.C. 2744.02(B)(4). *Gibbs v. Columbus Metro. Hous. Auth.*, No. 11AP-711, 2012 WL 1852086 (Ohio App., 10th Dist., May 22, 2012).

One court upheld a denial of summary judgment because a material issue of fact existed on whether the PHA had notice – actual or constructive – of the defective laundry pole. *Dickerson v. Cuyahoga Metro. Hous. Auth.*, Nos. 100650, 100943, 2014 WL 5408456 (Ohio App., 8th Dist., Oct. 23, 2014).

3. Contract Claims

An R.C. 5321.04 violation may give rise to a tenant's contract claim against a landlord. See Section IX.A, above. Similarly, a rental agreement violation may give rise to a tenant's contract claim against a landlord. "The breach of a contract for the lease of property may give rise to ordinary contract remedies for the injured party." *U.S.A. Parking Sys., Inc. v. Penn-Lillis Corp.*, No. 66936, 1995 WL 601186, at *4 (Ohio App., 8th Dist., Oct. 12, 1995).

The tenant may assert these contract claims against a PHA because the R.C. Chapter 2744 sovereign immunity does not apply to contract claims (see Section XXII.I.1., above). *E.g.*, *Bozeman v. Cleveland Metro. Hous. Auth.*, Nos. 92435, 92436,

2009 WL 3321402, ¶ 11 (Ohio App., 8th Dist., Oct. 15, 2009); *Kelly v. Chillicothe Metro. Hous. Auth.*, No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011).

In addition to its express terms, a residential rental agreement incorporates by operation of law the rights and duties that are established in R.C. Chapter 5321. See Section VII.B, above. Therefore, a tenant may assert a rental agreement contract claim against a PHA for any PHA violation of R.C. Chapter 5321.³⁹¹ *E.g.*, *Kelly v. Chillicothe Metro. Hous. Auth.*, No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011) (R.C. 5321.15 contractual liability). This contract claim includes any attorney's fees provision in the relevant section of R.C. Chapter 5321. *Id.* See also *Lewis v. Romans*, No. 43594, 1982 WL 4713, at *2 n.6 (Ohio App., 8th Dist., Dec. 24, 1981).

Since punitive damages are not available in contract claims (see Section IX.A.8.e, above), they are not available in these contract claims against a PHA. See *Kelly v. Chillicothe Metro. Hous. Auth.*, No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011).

4. Practice Issues

A tenant is not required to plead with specificity the basis on which the PHA lacks sovereign immunity. *Diaz v. Cuyahoga Metro. Hous. Auth.*, No. 92907, 2010 WL 27868, ¶¶ 14,15 (Ohio App., 8th Dist., Jan. 7, 2010); *Williams v. Cuyahoga Metro. Hous. Auth.*, No. 92964, 2009 WL 4857623, ¶¶ 10-12 (Ohio App., 8th Dist., Dec. 17, 2009).

A sovereign immunity defense under R.C. Chapter 2744 is an affirmative defense. *Maddox v. City of East Cleveland*, No. 96390, 2012 WL 20134, ¶ 17 (Ohio App., 8th Dist., Jan. 5, 2012). Consequently, "if it is not raised in a timely fashion, it is waived." *Turner v. Cent. Local Sch. Dist.*, 85 Ohio St.3d 95, 97, 706 N.E.2d 1261 (1999).

³⁹¹ A residential rental agreement also contains an implied covenant of quiet enjoyment (see Section VII.C.9, above) and incorporates any other relevant Ohio law. "It is an elementary principle that any law relating to a contract which is in existence at the time of the relevant execution of the contract becomes a part of such contract." *E. Mach. Co. v. Peck*, 161 Ohio St. 1, 6-7, 117 N.E.2d 593 (1954).

J. Municipal Ordinances and Court Rules: Six Examples of Local Tenant-Rights

1. Introduction

Ohio municipalities have enacted ordinances, and Ohio courts have adopted court rules, that provide tenants with rights that supplement their state law rights. Six examples of those ordinances and rules are discussed in Sections XXII.J.2.-7, below. The areas of tenant rights that they address are: a pay to stay defense in eviction actions, a limit on late payment fees, a right to counsel in eviction actions, sealing records of an eviction action, a source of income protection, and lead safe rental housing.

2. Pay to Stay Defense in Eviction Actions

At least eight Ohio municipalities have enacted ordinances that establish a pay to stay affirmative legal defense in eviction actions for nonpayment of rent (“pay to stay defense”). Those ordinances (and municipalities) are: Akron OH Municipal Code tit. 15, ch. 150, § 150.5; Cincinnati Municipal Code tit. 8, ch. 871, § 871-9(c); Dayton Code of Ordinances tit. 9, ch. 93, §§ 93.71-.74; Codified Ordinances of Maple Heights pt. 14, tit. 6, ch. 1488; Codified Ordinances of Newburgh Heights pt. 7, ch. 727; South Euclid OH Code of Ordinances pt. 14, ch. 1415; Toledo Municipal Code pt. 17, tit. 3, ch. 1770; Yellow Springs OH Code of Ordinances pt. 8, tit. 2, ch. 868.³⁹²

The basic elements of the pay to stay defense under these ordinances are: (1) the tenant or a third-party has tendered all past due rent and reasonable late payment fees before the filing of the eviction action and the landlord has refused to accept it; or (2) the tenant or a third party has tendered all past due rent, reasonable late payment fees, and court costs prior to the entry of the eviction judgment and the landlord has refused to accept it.

One significant difference among these ordinances is whether the pay to stay defense is subject to the court’s discretion in each case. The ordinances under which the defense is subject to the court’s discretion are the Akron, Cincinnati, and Dayton

³⁹² In addition, at least three Ohio municipalities enacted emergency ordinances for the Covid-19 pandemic that establish, until their respective sunset dates, the pay to stay defense. Those ordinances (and municipalities) are: Cleveland Heights Council Ordinance 79-2021 (expires Dec. 31, 2022); Euclid Code of Ordinances ch. 1765 (expires Dec. 31, 2022); Lakewood City Council Ordinance 12-2021 (expires Dec. 31, 2022).

ordinances. The ordinances under which the defense is not subject to the court's discretion, but rather is a tenant's right as a matter of law, are the Maple Heights, Newburgh Heights, South Euclid, Toledo, and Yellow Springs ordinances.

The following provisions, per city, illustrate other variations among these ordinances.

Akron

Late payment fees are limited to the larger of twenty-five dollars or eight percent of the monthly rent amount. A tenant may assert the pay to stay defense only one time per calendar year.

Cincinnati

The tenant may meet the tender requirements with the tender of a voucher issued by a social service, nonprofit, or governmental agency that guarantees the payment of these amounts to the landlord. When the tenant invokes the pay to stay defense based on a tender of funds during the eviction hearing, the amount of that tender must also include reasonable attorney's fees (not to exceed \$125).

Dayton

The tenant may place the tender of past due rent, late payment fees, and court costs in escrow with the court. Under the pay to stay defense, the tenant cannot be liable for the landlord's attorney's fees. A tenant may assert the pay to stay defense only one time per calendar year.

Maple Heights, Newburgh Heights, South Euclid, and Yellow Springs

If a tenant tenders all past due rent, reasonable late payment fees, court costs, and the cost of the writ of restitution before the writ of restitution is executed (and after the entry of the eviction judgment), the landlord is required to accept the tender of these amounts and either dismiss the eviction action or notify the court to vacate the eviction judgment and dismiss the eviction action.

Toledo

Late payment fees are limited to the larger of twenty-five dollars or five percent of the monthly rent amount.

These ordinances codify, as an affirmative defense, a longstanding equity defense in eviction actions for nonpayment of rent. For a discussion of that equity defense, see Section II.EE, above.

Court decisions ruling in favor of the tenant based on the pay to stay defense include: *Century Pacific Hous. P'ship v. Jeffries*, No. 21-CVG-4124 (Ohio Mun., Dayton, Oct.19, 2021) (tenant tendered the rent and late fees for two months, during the second month, and landlord refused it); *Buckeye Northwest Realty for Tahoe Blue, LLC v. Stigall*, No. CVG-21-05045 (Ohio Mun., Toledo, Hous. Div., June 22, 2021) (tenant tendered the requisite amount during the eviction hearing); *Smith v. Cade*, No. 21-CVG-2160 (Ohio Mun., Akron, May 12, 2021) (tenant made the requisite tender via a rental assistance program and landlord refused it).

3. Limit on Late Payment Fees

At least three municipalities have enacted ordinances that establish a limit on the amount of the fee that a landlord may assess a tenant for late payment of the monthly rent (“late payment fee”). Those ordinances (and municipalities) are: Akron OH Municipal Code tit. 15, ch. 150, § 150.52; Cleveland Codified Ordinances pt. III.C, tit. IX, ch. 375, § 375.02(c); Toledo Municipal Code pt. 17, tit. 3, ch. 1770, § 1770.06.

The Akron ordinance limits late payment fees to the larger of twenty-five dollars or eight percent of the monthly rent amount.

The Cleveland ordinance limits late payment fees to the larger of twenty-five dollars or five percent of the monthly rent amount. It also contains a second limit on late payment fees that applies when the tenant is not obligated to pay the entire contract rent (*e.g.*, the tenant receives a rent subsidy). In these circumstances, late payment fees also may not exceed twenty-five percent of the portion of the monthly contract rent that the tenant is obligated to pay under the rental agreement.

The Toledo ordinance limits late payment fees to the larger of twenty-five dollars or five percent of the monthly rent amount.

These ordinances supplement the Ohio common law and R.C. 5321.14 limitations on the amount of late payment fees. Those limitations are discussed in Section VII.F.9, above.

4. Right to Counsel in Eviction Actions

Generally, Ohio law does not provide parties in a civil action (including eviction actions) with a right to counsel. *Robinson v. Mays*, No. L-19-1065, 2020 WL 1528012

(Ohio App., 6th Dist., Mar. 31, 2020) (no constitutional right to counsel in eviction actions; upheld trial court’s ruling that required tenant to proceed pro se when tenant’s attorney could not appear at the eviction hearing due to illness).

Two Ohio municipalities have enacted ordinances that establish a tenant’s right to counsel in eviction actions. Those ordinances (and municipalities) are Cleveland Codified Ordinances pt. III.C, tit. IX, ch. 375, § 375.12, and Toledo Municipal Code pt. 17, tit. 3, ch. 1768.

The Cleveland ordinance, implemented July 2020, entitles covered individuals to full legal representation in eviction actions filed in the Cleveland Municipal Court, Housing Division. Covered individuals are tenants who have at least one child in the household and whose income does not exceed one hundred percent of the federal poverty guidelines.

The Toledo ordinance, implemented January 2022, entitles covered individuals to full legal representation in eviction actions filed in the Toledo Municipal Court, Housing Division. Covered individuals are tenants whose annual gross income does not exceed two hundred percent of the federal poverty guidelines.

5. Sealing Records of an Eviction Action

a. Introduction

In certain circumstances, courts will enter an order that seals the records of an eviction action. Courts have entered those orders under Rule 45(E) of the Rules of Superintendence for the Courts of Ohio, under local court rules, and under the court’s inherent authority. These bases for sealing the records of an eviction action are discussed in Sections XXII.J.5.b-d, below.

b. Rule 45(E) of the Rules of Superintendence for the Courts of Ohio

The records of an eviction action may be sealed under Rule 45(E) of the Rules of Superintendence for the Courts of Ohio (“Rule 45(E)”).

Under Rule 45(E), there is a presumption in favor of allowing public access to court records. In determining whether to seal the records of an eviction action, the court determines whether clear and convincing evidence of a higher public interest outweighs this presumption. Rule 45(E).

The court considers three factors for these purposes, namely: “(a) whether public policy is served by restricting public access; (b) whether any state, federal, or common

law exempts the document or information from public access; (c) whether factors that support restriction of public access exist, including risk of injury to persons, individual privacy rights and interests, proprietary business information, public safety, and fairness of the adjudicatory process.” Rule 45(E).

Three court decisions in which the court granted a tenant’s Rule 45(E) motion to seal the records of an eviction action are: (1) *Wayne Metro. Hous. Auth. v. L.F.*, No. CVG-12-02-0021 (Ohio Mun., Wayne Cty., Oct. 28, 2020) (where the landlord voluntarily dismissed the eviction action, motion granted because the records of the eviction action adversely affected the tenant with one potential landlord and two employers); (2) *Evans v. B.S.*, No. 19-CVG-02190 (Ohio Mun., Akron, June 11, 2019) (where the eviction action was mistakenly filed against the tenant and then dismissed, motion granted because the records of the eviction action will adversely affect the tenant’s future ability to secure housing and public access to these records does not serve any lawful, meaningful public purpose); and (3) *Real Solutions Realty Grove City, LLC v. D.G.*, No. 2018-CVG-29089 (Ohio Mun., Franklin Cty, Feb. 7, 2019) (where the tenant vacated more than two months before the eviction action filing per a mutual rescission agreement, motion granted because the records of the eviction action adversely affect the tenant’s future ability to secure housing, are misleading and prejudicial to the tenant, and violate public policy by promulgating inaccurate information).

Also, in *S.C. v. T.H.*, 154 N.E.3d 345, 2020-Ohio-2698 (Ohio App., 9th Dist., 2020), the trial court summarily denied the tenant’s Rule 45(E) motion to seal the records of the eviction action and, as a result, the court of appeals remanded the case for the trial court to explain its reasoning for denying the motion.

c. Local Court Rules

Some courts have adopted a local court rule on the sealing of records of an eviction action. Two examples are Cleveland Municipal Court, Housing Division, Local Rule 6.13 and Marion Municipal Court, Local Rule 209.1.

Both of these local rules provide that the records of an eviction action may be sealed, pursuant to the tenant’s motion, when the interests of justice in sealing the records outweighs the interests of the government and the public in maintaining a public record of the action. They also contain examples of circumstances that weigh in favor of sealing the records, which include: the dismissal of the eviction action either by the court or by the landlord; the landlord’s stipulation in support of sealing the

records; and, notwithstanding the eviction judgment for the landlord, extenuating circumstances led to the eviction action, five years have elapsed since the entry of the eviction judgment, and during that five-year period no other eviction judgment has been entered against the tenant.

Marion Municipal Court, Local Rule 209 also permits the court, on its own motion, to seal the records of an eviction action if the eviction judgment was for the tenant or the landlord dismissed the eviction action.

The Franklin County Municipal Court has addressed this issue with a procedure not for sealing the records but, instead, for removing the records from the Court's electronic records. The Court's website does not allow electronic access to the records of an eviction action when the action is more than three years old. These records are still available to the public at the Clerk's office. The Court also has adopted and placed on its website a standard form for a tenant's motion to seal the records of an eviction action, which may be filed at any appropriate time.

d. Court's Inherent Authority

A court has inherent authority to enter an order that seals the records of an eviction action. *Lokal Real Estate v. G.R.*, No. 2017-CVG-004609 (Ohio Mun., Cleveland, Hous. Div., Aug. 20, 2018) (relying on *Schussheim v. Schussheim*, 137 Ohio St.3d 133, 998 N.E.2d 446 (2013)).

In exercising this inherent authority, the court weighs its legitimate need to maintain public records against the tenant's interest in not being denied housing based on the past filing of an eviction action. *Id.*

Courts consider a variety of factors in this weighing process. *Id.* Those factors include whether the landlord dismissed the eviction action, whether the landlord agrees to the sealing of the records or does not oppose it, and whether the tenant has been denied housing because of the unsealed records. *Id.*

Courts also consider whether unusual and exceptional circumstances exist. *Id.* Those circumstances may be the tenant's age, physical disability, low income, or limited English proficiency, or the disability of the tenant's child. *Id.*

6. Source of Income Protection

Municipalities across Ohio have broadened their fair housing ordinances to include source of income ("SOI") as a protected class. Those ordinances (and municipalities) include: Akron OH Municipal Code tit. 3, ch. 38; Athens City Code tit. 3, § 3.07.61;

Bexley Codified Ordinances pt. 6, ch. 637; Cincinnati Codified Ordinances tit. 7, ch. 740; Cleveland Heights Codified Ordinances pt. 7, ch. 749; Columbus Code of Ordinances tit. 45, ch. 4551, § 4551.03; Linndale Codified Ordinances pt. 5, ch. 515; Reynoldsburg Codified Ordinances pt. 5, ch. 503; South Euclid Codified Ordinances pt. 14, ch. 1408; Toledo Municipal Code pt. 5, ch. 554; University Heights Codified Ordinances pt. 8, tit. 2, ch. 820; Warrensville Heights Codified Ordinances pt. 1, tit. 1, ch. 113; Westerville Codified Ordinances pt. 5, ch. 511; Wickliffe Codified Ordinances pt. 11, ch. 1103; Worthington Codified Ordinances pt. 5, ch. 539; Yellow Springs OH Codified Ordinances pt. 6, ch. 626.

These SOI ordinances generally prohibit landlords from discriminating against tenants based on the tenant's source of lawful income. Examples of those protected sources of income include: welfare assistance, child support, financial aid from any person or from any federal, state, or local government program, and social security disability payments.

Most of these SOI ordinances explicitly include rental assistance in their examples of protected sources of income. They are the ordinances enacted in Akron ("housing assistance, housing vouchers, emergency rental assistance"), Athens ("rent vouchers"), Bexley ("rent vouchers"), Cleveland Heights ("housing vouchers, emergency rental assistance"), Columbus ("rent vouchers"), Reynoldsburg ("rent vouchers"), Toledo ("Section 8 housing assistance payments or any other rent subsidy or rent assistance program"), University Heights ("rent vouchers"), Westerville ("emergency rental assistance"), Worthington ("emergency rental assistance"), Yellow Springs ("rental assistance").

The other SOI ordinances implicitly include rental assistance in their protected sources of income. Rental assistance falls within the general examples of protected sources of income that most of these ordinances use, such as all forms of federal, state, or local government assistance payments or subsidies. Also, rental assistance is, in effect, a source of income.

These SOI ordinances vary in their procedures for asserting a claim for an alleged violation of this prohibition. Some permit the claim to be filed only in their administrative complaint procedure. *E.g.*, Akron, Athens, Bexley, Cleveland Heights, Columbus, Linndale, Reynoldsburg, Warrensville Heights, Westerville, Wickliffe, and Worthington ordinances. Some establish a private right of action. *E.g.*, Cincinnati ordinance. And some authorize both an administrative complaint and a private right of action. *E.g.*, University Heights and Yellow Springs ordinances.

These SOI ordinances also vary in the penalties that they impose for a violation of this prohibition. The penalties range among injunctive relief, damages, civil penalties, and/or attorney's fees.

For a nationwide list of the states, counties, and cities that have enacted SOI laws, see the National Multifamily Housing Council website, at www.nmhc.org/research-insight/analysis-and-guidance/source-of-income-laws-by-state-county-and-city.

7. Lead Safe Rental Housing

Ohio's state lead abatement law does not require inspections of rental units until after a child has been poisoned by lead. R.C. Chapter 3742; Ohio Admin. Code Chapter 3701-32.

Two Ohio municipalities have enacted ordinances that require the owners of rental units that were built before 1978 ("pre-1978 rental units") to certify that their rental units are lead safe. Those ordinances (and municipalities) are Cleveland Codified Ordinances pt. III.C, tit. IX, ch. 365, enacted in 2019, and Toledo Municipal Code pt. 17, tit. 3, ch. 1760, enacted in 2020.

Both of these ordinances set forth a presumption that pre-1978 rental units contain lead paint.

Under the Cleveland ordinance, implementation of its inspection and certification process is phased in by zip code, with full implementation by March 1, 2023. It requires all pre-1978 rental units to pass an inspection by a certified lead clearance inspector and the owner of those rental unit to then apply for a Lead Safe Certificate.

Under the Toledo ordinance, implementation of its inspection and certification process is phased in over five years. It requires the owners of pre-1978 rental units in properties that have four or fewer units, and the owners of family child-care homes that were built before 1978, to submit a Lead Safe Report and then apply for a Lead Safe Certificate. The Lead Safe Certificate expires in five years. *See Mack v. City of Toledo*, 151 N.E.3d 151, 2019-Ohio-5427 (Ohio App., 6th Dist., 2019) (upholds the four or fewer unit scope of the ordinance).

XXIII. Land Installment Contracts, R.C. Chapter 5313

A. Introduction

1. Definition of Land Installment Contract

The definition of a land installment contract is set forth in R.C. 5313.01(A). *Shrock v. Spognardi*, 46 N.E.3d 1115, 2015-Ohio-4555, ¶ 16 (Ohio App., 5th Dist., 2015). The definition is comprised of three elements: (1) an executory contract that is not required to be fully performed by one or more of the parties within one year; (2) the vendor's agreement to convey title to real property and the vendee's agreement to purchase the property and to pay the purchase price in installments; and (3) the vendor's retention of the title as security for performance. See *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶ 28 (Ohio App., 3rd Dist., 2014).

"[A] land installment contract conveys a present ownership interest in realty." *A & J Homes, Inc. v. Green*, No. 101416, 2015 WL 1511020, ¶ 11 (Ohio App., 8th Dist., Apr. 2, 2015). *Accord Shrock v. Spognardi*, 46 N.E.3d 1115, 2015-Ohio-4555, ¶ 15 (Ohio App., 5th Dist., 2015).

"A land installment contract is an executory agreement whereby the purchaser (vendee) agrees to pay the purchase price and is vested with equitable ownership, while the seller (vendor) retains bare legal title in the property to secure payment of the purchase price." *Baraby v. Swords*, 166 Ohio App.3d 527, 851 N.E.2d 559, ¶ 14 (3rd Dist. 2006). *Accord Voska v. Coffman*, No. S-13-008, 2013 WL 6579576, ¶ 9 (Ohio App., 6th Dist., Dec. 13, 2013); *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 8 (Ohio App., 10th Dist., Mar. 21, 2013).

2. Purpose and Scope of R.C. Chapter 5313

"R.C. Chapter 5313 is essentially a 'consumer protection law' designed to 'prevent a windfall to a vendor who has previously collected substantial sums under a land contract and/or has actually recovered the property.'" *Voska v. Coffman*, No. S-13-008, 2013 WL 6579576, ¶ 9 (Ohio App., 6th Dist., Dec. 13, 2013) (quoting *Howard v. Temple*, 172 Ohio App.3d 21, 872 N.E.2d 1260, ¶ 9 (4th Dist. 2007)).

R.C. Chapter 5313 regulates land installment contracts for the purchase of residential dwellings only. R.C. 5313.01(B). See *Shepard's Mobile Home Park, Ltd.*

v. Sigmon, No. 14-CA-61, 2014 WL 4923972 (Ohio App., 5th Dist., Sept. 29, 2014); *P.M.D. Land Co. v. Warner Realty, Inc.*, No. 2009-T-0021, 2009 WL 489554 (Ohio App., 11th Dist., Dec. 18, 2009); *Smith v. Jewett*, No. 04-CA-96, 2005 WL 1840025 (Ohio App., 5th Dist., Aug. 2, 2005); *Johnson v. Maxwell*, 51 Ohio App.3d 137, 554 N.E.2d 1370 (9th Dist. 1988); *DiYorio v. Porter*, No. 81-CA-5, 1981 WL 4734 (Ohio App., 7th Dist., June 24, 1981).

R.C. Chapter 5313 applies irrespective of whether the residential dwelling is a single-family dwelling or a multifamily dwelling. *Akron First Seventh Day Adventist Church v. Smith*, No. 11577, 1984 WL 3956 (Ohio App., 9th Dist., Sept. 27, 1984).

R.C. Chapter 5313 applies to real property on which a house trailer or mobile home is parked at the time of contracting. Ohio Att’y Gen. Op. No. 73-042 (May 4, 1973). But it does not apply to an agreement to purchase only a mobile home because the purchase fails to convey title to real property. *Army v. Dunlap*, 101 N.E.3d 1085, 2017-Ohio-9084, ¶ 29 (Ohio App., 3rd Dist., 2017); *Shepard’s Mobile Home Park, Ltd. v. Sigmon*, No. 14-CA-61, 2014 WL 4923972, ¶ 12 (Ohio App., 5th Dist., Sept. 29, 2014).

R.C. Chapter 5313 does not apply to real property on which a recreational vehicle is parked at the time of contracting because the vehicle is not a dwelling. *Simes v. Beaver Valley Resorts, Inc.*, No. 2925, 1992 WL 274656 (Ohio App., 2nd Dist., Oct. 6, 1992).

R.C. Chapter 5313 does not apply to commercial real property. *Retirement Mgmt. Co. v. Nsong*, 94 N.E.3d 1077, 2017-Ohio-5869, ¶ 17 (Ohio App., 10th Dist., 2017).

3. Distinction Between a Land Installment Contract and a Lease with an Option to Purchase

“A lease is a conveyance of an estate in real property for a limited term, with conditions attached, in consideration of rent.” *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 9 (Ohio App., 10th Dist., Mar. 21, 2013). *Accord Shrock v. Spognardi*, 46 N.E.3d 1115, 2015-Ohio-4555, ¶ 15 (Ohio App., 5th Dist., 2015); *Fadelsak v. Hagley*, No. 02-CA-41, 2003 WL 21489613, ¶ 11 (Ohio App., 4th Dist., June 25, 2003); *Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 23, 491 N.E.2d 701 (8th Dist. 1984)

“An option contract for the purchase of real property is an agreement wherein the legal titleholder of the property grants another person the privilege, without the obligation, to purchase the real property at a set price within a set time.” *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 10 (Ohio App., 10th Dist., Mar. 21,

2013). *Accord Shrock v. Spognardi*, 46 N.E.3d 1115, 2015-Ohio-4555, ¶ 18 (Ohio App., 5th Dist., 2015); *A & J Homes, Inc. v. Green*, No. 101416, 2015 WL 1511020, ¶ 14 (Ohio App., 8th Dist., Apr. 2, 2015).

A lease with an option to purchase is not a land installment contract. R.C. 5313.01(A). *See Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 23, 491 N.E.2d 701 (8th Dist. 1984) (“the statutory definition of land installment contract expressly excludes option contracts for the purchase of real property”).

“To determine whether an agreement is a land installment contract or a lease with an option to purchase, a court must analyze the intent of the parties at the time they executed the agreement.” *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 12 (Ohio App., 10th Dist., Mar. 21, 2013). *Accord Shrock v. Spognardi*, 46 N.E.3d 1115, 2015-Ohio-4555, ¶ 19 (Ohio App., 5th Dist., 2015); *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶ 16 (Ohio App., 3rd Dist., 2014); *Vorhees v. Jovingo*, Nos. 04-CA-16,17,18, 2005 WL 2292796, ¶ 24 (Ohio App., 4th Dist., Sept. 19, 2005); *Fadelsak v. Hagley*, No. 02-CA-41, 2003 WL 21489613, ¶ 10 (Ohio App., 4th Dist., June 25, 2003).

When the language of a written contract is unambiguous, a court is required to determine the intent of the parties from the plain language of the contract. *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 12 (Ohio App., 10th Dist., Mar. 21, 2013). *See also Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶¶ 25,26,31 (Ohio App., 3rd Dist., 2014). When the language of a written contract is ambiguous, “a court may consider extrinsic evidence to ascertain the parties’ intent.” *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 12 (Ohio App., 10th Dist., Mar. 21, 2013).

If the plain language of the contract establishes that the three elements of the R.C. 5313.01(A) definition are met, the contract is a land installment contract. *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶¶ 28-30 (Ohio App., 3rd Dist., 2014). If the plain language of the contract establishes that one of these elements is not met, the contract is not a land installment contract. *Lovejoy v. Diel*, No. 2020CA-06-067, 2021 WL 1246295, ¶¶ 23-26 (Ohio App., 12th Dist., Apr. 5, 2021) (contract did not contain any of the three elements of the R.C. 5313.01(A) definition); *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 12 (Ohio App., 10th Dist., Mar. 21, 2013) (contract lacked requirement to purchase).

In this determination, the title of the contract is not dispositive. *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶ 27 (Ohio App., 3rd Dist.,

2014). “The fact that an agreement is titled ‘Option to Purchase,’ however, does not necessarily make it so.” *Anderson v. Ballard*, No. L-10-1007, 2010 WL 3292685, ¶ 42 (Ohio App., 6th Dist., Aug. 20, 2010).

The determination is based primarily on the language employed in the body of the contract, not its title. *See, e.g. Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶¶ 27,28 (Ohio App., 3rd Dist., 2014) (contract titled “Lease Agreement with Option to Purchase;” based on body of contract, it is land installment contract); *Fadelsak v. Hagley*, No. 02-CA-41, 2003 WL 21489613, ¶ 12 (Ohio App., 4th Dist., June 25, 2003) (same).

A split among the appellate districts exists on when extrinsic evidence of the intent of the parties may be considered in these determinations. “[S]ome courts apply a six-factor test supplied by the Fourth District to ascertain the intent of the parties” in all cases. *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶ 25 (Ohio App., 3rd Dist., 2014).

Those courts hold that, “[i]n determining intent, the court should consider factors such as: (1) the characterization of the document; (2) the lessee’s rights at the end of the lease term; (3) the application of rent to the purchase price; (4) the responsibility for payments for repairs, utilities, and taxes; (5) the nonexistence of a financing statement; and (6) whether an option to purchase existed. If necessary, the court may also consider the factual circumstances surrounding the parties’ agreement.” *Fadelsak v. Hagley*, No. 02-CA-41, 2003 WL 21489613, ¶ 10 (Ohio App., 4th Dist., June 25, 2003) (citations omitted). *Accord; Vorhees v. Jovingo*, Nos. 04-CA-16,17,18, 2005 WL 2292796, ¶ 24 (Ohio App., 4th Dist., Sept. 19, 2005).

The Third District, in *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶¶ 25,31 (Ohio App., 3rd Dist., 2014), expressly rejected the Fourth District’s approach. With its statement of contract law and analysis based solely on the unambiguous language of the contract, the Tenth District, in *Judson v. Lyendecker*, No. 12AP-615, 2013 WL 1187618, ¶ 9 (Ohio App., 10th Dist., Mar. 21, 2013), implicitly rejected the Fourth District’s approach. Likewise, the Eighth District, in *A & J Homes, Inc. v. Green*, No. 101416, 2015 WL 1511020, ¶¶ 10,15,16 (Ohio App., 8th Dist., Apr. 2, 2015) (follows *Judson*), implicitly rejected the Fourth District’s approach.

B. Contract Requirements and Related Matters

1. Statutory Requirements

R.C. 5313.02(A) specifies sixteen provisions that must be included in a land installment contract. They are:

- (1) The full names and current mailing addresses of all parties to the contract;
- (2) The date when the contract was signed by each party;
- (3) A legal description of the property conveyed;
- (4) The contract price of the property conveyed;
- (5) Any charges or fees for services that are includable in the contract separate from the contract price;
- (6) The amount of the vendee's down payment;
- (7) The principal balance owed, *i.e.*, sum of items (4) and (5) less item (6);
- (8) The amount and due date of each installment payment;
- (9) The interest rate on the unpaid balance and the method of computing the rate;
- (10) A statement of any encumbrances against the property;
- (11) A statement requiring the vendor to deliver a general warranty deed on completion of the contract, or another deed that is available when the vendor is legally unable to deliver a general warranty deed;
- (12) A provision that the vendor shall provide evidence of title in accordance with the prevailing custom in the area in which the property is located;
- (13) A provision that, if the vendor defaults on any mortgage on the property, the vendee can pay on that mortgage and receive credit on the land installment contract;
- (14) A provision that the vendor shall cause a copy of the contract to be recorded;
- (15) A requirement that the vendee shall be responsible for the payment of taxes, assessments, and other charges against the property from the date of the contract, unless agreed to the contrary;

- (16) A statement of any pending order of any public agency against the property.

2. Substantial Compliance

A contract for the sale of a residential dwelling may be a land installment contract even if it fails to include all of the provisions required by R.C. 5313.02(A). *Elkins v. Colburn*, No. 18-CA-893, 2019 WL 2754096 (Ohio App., 4th Dist., June 21, 2019); *Phillips v. May*, No. 2003-G-2520, 2004 WL 2526409 (Ohio App., 11th Dist., Nov. 9, 2004); *Gollihue v. Russo*, 152 Ohio App.3d 710, 789 N.E.2d 1151 (10th Dist. 2003); *Real Flo Props. v. Kelly*, No. L-99-1099, 1999 WL 1203751 (Ohio App., 6th Dist., Dec. 17, 1999); *Shimko v. Marks*, 91 Ohio App.3d 458, 632 N.E.2d 990 (5th Dist. 1993); *Young v. Hodapp*, No. CA85-08-094, 1986 WL 14965 (Ohio App., 12th Dist., Dec. 29, 1986). *But see Lovejoy v. Diel*, No. 2020CA-06-067, 2021 WL 1246295 (Ohio App., 12th Dist., Apr. 5, 2021) (an agreement does not constitute a land installment contract if it omits an R.C. 5313.02(A) provision); *Standard Fed. v. Asencio*, No. 98-CA-007011, 1999 WL 61425 (Ohio App., 9th Dist., Feb. 9, 1999) (omission of an R.C. 5313.02(A) element renders the contract voidable by the parties).

“The purpose of R.C. Chapter 5313.02 is to protect the buyer by making specific information available in a land installment contract.” *Real Flo Props. v. Kelly*, No. L-99-1099, 1999 WL 1203751, at *2 (Ohio App., 6th Dist., Dec. 17, 1999). *Accord Elkins v. Colburn*, No. 18-CA-893, 2019 WL 2754096 (Ohio App., 4th Dist., June 21, 2019); *Phillips v. May*, No. 2003-G-2520, 2004 WL 2526409 (Ohio App., 11th Dist., Nov. 9, 2004); *Young v. Hodapp*, No. CA-85-08-094, 1986 WL 14965 (Ohio App., 12th Dist., Dec. 29, 1986); *Akron First Seventh Day Adventist Church v. Smith*, No. 11577, 1984 WL 3956 (Ohio App., 9th Dist., Sept. 27, 1984).

“The statute was not designed as a way for sellers to escape from contracts they wished to void.” *Young v. Hodapp*, No. CA85-08-094, 1986 WL 14965, at *3 (Ohio App., 12th Dist., Dec. 29, 1986). *Accord Elkins v. Colburn*, No. 18-CA-893, 2019 WL 2754096 (Ohio App., 4th Dist., June 21, 2019); *Phillips v. May*, No. 2003-G-2520, 2004 WL 2526409 (Ohio App., 11th Dist., Nov. 9, 2004); *Real Flo Props. v. Kelly*, No. L-99-1099, 1999 WL 1203751 (Ohio App., 6th Dist., Dec. 17, 1999).

Therefore, a contract may be a land installment contract if it substantially complies with the R.C. 5313.02(A) requirements. *Elkins v. Colburn*, No. 18-CA-893, 2019 WL 2754096 (Ohio App., 4th Dist., June 21, 2019); *Phillips v. May*, No. 2003-G-2520, 2004 WL 2526409 (Ohio App., 11th Dist., Nov. 9, 2004); *Gollihue v. Russo*, 152 Ohio

App.3d 710, 789 N.E.2d 1151 (10th Dist. 2003); *Real Flo Props. v. Kelly*, No. L-99-1099, 1999 WL 1203751 (Ohio App., 6th Dist., Dec. 17, 1999); *Whitacre v. Starks*, No. 1998-CA-0307, 1999 WL 547943 (Ohio App., 5th Dist., June 29, 1999); *Shimko v. Marks*, 91 Ohio App.3d 458, 632 N.E.2d 990 (5th Dist. 1993).

“[T]he proper inquiry for determining whether the land installment contract [is] valid is to determine if all the essential elements of a contract [are] present.” *Young v. Hodapp*, No. CA85-08-094, 1986 WL 14965, at *3 (Ohio App., 12th Dist., Dec. 29, 1986). See, e.g., *Hudson v. Bates*, No. 93-CVG-7406 (Ohio Mun., Marion Cty., Jan. 26, 1993) (“the ‘Land Contract’ does contain sufficient elements to fit within the [R.C. 5313.01] definition of a land installment contract”).

“Ohio law does not require a metes and bounds legal description of property in order to create a binding agreement to sell that property.” *Phillips v. May*, No. 2003-G-2520, 2004 WL 2526409, ¶ 36 (Ohio App., 11th Dist., Nov. 9, 2004). But the contract must contain a description of the particular land to be conveyed or must furnish the means of identifying it with reasonable certainty and specificity. *Id.* See also *Nofzinger v. Blood*, No. H-02-014, 2003 WL 1464519 (Ohio App., 6th Dist., Mar. 14, 2003).

Also, if a contract provision declares that the contract is a statement of intent to enter into a formal land installment contract in the future, the declaration can be a factor for finding that the contract is not a land installment contract, even though the contract contains some of the R.C. 5313.02 elements. E.g., *Grexa v. Hollenbaugh*, No. 2014-T-0039, 2014 WL 5421222 (Ohio App., 11th Dist., Oct. 27, 2014).

3. Recording of the Contract

R.C. 5313.02(C) requires the vendor to record the land installment contract, as provided in R.C. 5301.25, within twenty days after the contract has been signed by both the vendor and the vendee. “[T]he purpose of R.C. 5313.02(C) is to protect subsequent bona fide purchasers of property.” *Bradford v. B & P Wrecking Co.*, 171 Ohio App.3d 616, 872 N.E.2d 331, ¶ 32 (6th Dist. 2007). *Accord McGinnis v. Fuller*, No. 3-04-29, 2005 WL 1205117, ¶ 20 (Ohio App., 3rd Dist., May 23, 2005).

Therefore, a vendor’s failure to record the contract does not render it unenforceable as between the vendee and the vendor. *Bradford v. B & P Wrecking Co.*, 171 Ohio App.3d 616, 872 N.E.2d 331, ¶ 32 (6th Dist. 2007); *Burkett v. Strickland*, No. 02-CV-7400, (Ohio C.P., Montgomery Cty., Sept. 29, 2003). See also *Merivale Invs. v. Tuggle*, No. L-08-1439, 2009 WL 4727760, ¶¶ 23-31 (Ohio App., 6th Dist., Dec. 11,

2009).

The failure to record a land installment contract also does not prevent a vendee from enforcing the vendee's equitable interest against the vendor's judgment creditors. *McGinnis v. Fuller*, No. 3-04-29, 2005 WL 1205117 (Ohio App., 3rd Dist., May 23, 2005); *State Fid. Fed. Sav. & Loan Ass'n v. Wehrby*, 25 Ohio Misc. 221, 263 N.E.2d 801 (C.P., Montgomery Cty., 1970). "The law is clear that judgment creditors are not bona fide purchasers for value." *McGinnis*, 2005 WL 1205117, ¶ 20.

4. Oral Agreement, Partial Performance

"[P]art performance of an oral land installment contract for the sale of real estate can be sufficient to remove the contract from the operation of the statute [of frauds, R.C. 1335.05]." *Shimko v. Marks*, 91 Ohio App.3d 458, 461, 632 N.E.2d 990 (5th Dist. 1993). *E.g.*, *Gay v. Parr*, No. CVG-00-141 (Ohio County Ct., Harrison Cty., Dec. 21, 2000) (substantial repairs to the premises and installment payments on the down payment). *See also Monea v. Lanci*, No. 2009-CA-0083, 2009 WL 4690214 (Ohio App., 5th Dist., Dec. 7, 2009) (summary judgment reversed due to genuine issue of material facts; occupant alleges payment of two-thirds of purchase price and substantial improvements to the property).

"Ohio courts generally consider the following factors to be relevant in determining the applicability of the part performance doctrine: (1) evidence of a change in possession; (2) payment of all or part of the consideration for the land; and (3) improvements, alterations or repairs upon the land by the possessor." *Monea v. Lanci*, No. 2009-CA-0083, 2009 WL 4690214, ¶ 21 (Ohio App., 5th Dist., Dec. 7, 2009).

For a discussion on the statute of conveyances, the statute of frauds, and the partial performance exception, see Section XXII.A, above.

5. Enforcement of R.C. 5313.02(A) Requirements

If a vendor fails to comply with an R.C. 5313.02(A) requirement, the vendee may file an action to enforce it. R.C. 5313.04. Upon finding such noncompliance, "the court shall grant appropriate relief." *Id.* *E.g.*, *Labbe v. Smith*, No. 11078, 1983 WL 3899 (Ohio App., 9th Dist., Nov. 2, 1983) (in eviction for nonpayment, court enforced vendee's R.C. 5313.02(A)(13) rights by granting vendee credit for his payments to vendor's mortgagee).

However, "[t]here is no provision in the statute [R.C. Chapter 5313] for a remedy

in damages for noncompliance.”³⁹³ *Akron First Seventh Day Adventist Church v. Smith*, No. 11577, 1984 WL 3956, at *2 (Ohio App., 9th Dist., Sept. 27, 1984).

6. Prepayment of Contract

A vendee does not have a right to prepay the outstanding principal and accrued interest on a land installment contract, unless the contract so provides. *DiMarco v. Shay*, 154 Ohio App.3d 141, 796 N.E.2d 572 (10th Dist. 2003). *E.g.*, *Lowry v. Buroker*, No. 2017-CA-25, 2017 WL 6628496 (Ohio App., 2nd Dist., Dec. 29, 2017) (land installment contract expressly provided for prepayment, and based on that provision the court granted the vendee specific performance).

C. Vendee Rights Against Third-Party Purchaser

When a vendor sells the contracted real property to a third party, the third party purchases the property subject to the rights of the vendee. *Oberholtz v. Oberholtz*, 79 Ohio App. 540, 74 N.E.2d 574 (9th Dist. 1947); *State Fid. Fed. Sav. & Loan Ass’n v. Wehrby*, 25 Ohio Misc. 221, 263 N.E.2d 801 (C.P., Montgomery Cty., 1970).

The general rule in Ohio is that “the purchaser of land in the actual possession of a third person is chargeable with constructive notice of the occupant’s title and equities even though the fact of such possession is not known to the purchaser.” *Sinclair Ref. Co. v. Chaney*, 114 Ohio App. 538, 549, 184 N.E.2d 214 (3rd Dist. 1961). *See also State Fid. Fed. Sav. & Loan Ass’n v. Wehrby*, 25 Ohio Misc. 221, 263 N.E.2d 801 (C.P., Montgomery Cty., 1970).

But one appellate court has held that a vendee in possession under an oral (and thus unrecorded) land contract does not have any enforceable rights “as against a subsequent purchaser who buys the property from the vendor with knowledge of the vendee’s possession but without knowledge of the oral land contract.” *Bishop v. Rice*, No. 21247, 2006 WL 574396, ¶ 15 (Ohio App., 2nd Dist., Mar. 10, 2006).

³⁹³ In a fraud action arising out of an alleged noncompliance with R.C. 5313.02(A), proof of that noncompliance eliminates the need to prove reliance and materiality. *Akron First Seventh Day Adventist Church v. Smith*, No. 11577, 1984 WL 3956 (Ohio App., 9th Dist., Sept. 27, 1984). However, intent to defraud and damages resulting from the misrepresentation still must be proven. *Id.*

D. Vendor Breach of the Land Installment Contract

If a vendor defaults upon the land installment contract (*e.g.*, fails to convey title upon vendee's complete performance), the vendee may: (1) affirm the contract and bring an action for specific performance, (2) affirm the contract and bring an action for damages, or (3) disaffirm the contract and recover the payments that the vendee has made. *Tyler v. Martin*, 11 Ohio Law Abs. 660 (Ohio App., 9th Dist., 1932).

If the vendee affirms the contract and brings an action for damages, "the measure of damages is the difference between the value of the real estate at the time when conveyance should have been made and the balance due upon the contract of sale" *Id.* at 661.

When a vendor's breach of the land installment contract results in a foreclosure sale, the vendee may have an additional claim for unjust enrichment. In these circumstances, the vendee's improvements to the real property "that added value to the property are compensable under the doctrine of unjust enrichment." *Zumbrink v. Hercules*, No. 1392, 1996 WL 339947, at *8 (Ohio App., 2nd Dist., June 21, 1996).

E. Vendee Breach of the Land Installment Contract

1. Introduction

If a vendee breaches the land installment contract, generally the vendor may bring an action for possession (see Section XXIII.E.2, below) and certain damages (see Section XXIII.E.3, below) or the vendor may bring an action for specific performance (see Section XXIII.E.4, below).

2. Vendor Action for Possession

a. Standard for Selection Between Eviction and Foreclosure

R.C. 5313.07 and 5313.08 govern the action for possession that a vendor may bring if a vendee breaches the contract. While R.C. 5313.07 and 5321.08 limit the remedies available to the trial court in an action for breach of a land installment contract, they are not jurisdictional statutes. *Davis v. Johnson*, No. L-19-1268, 2021 WL 141504,

¶ 42 (Ohio App., 6th Dist., Jan. 15, 2021) (“Initially, we note that R.C. 5313.07 is not a jurisdictional statute, but rather is a limit on the remedies available to the trial court”).

R.C. 5313.07 and 5313.08 divide land installment contracts into two groups relative to a vendor’s action for possession.

The first group is comprised of land installment contracts that have been in effect for less than five years and upon which less than twenty percent of the purchase price has been paid.

The second group is comprised of land installment contracts that have been in effect for five or more years or upon which twenty percent or more of the purchase price has been paid.

The determination on whether twenty percent of the purchase price has been paid is based on the face amount of the contract price, which excludes payments for insurance premiums, real estate taxes, or interest on unpaid principal, unless the contract stipulates otherwise. *Stiffler v. F.I.O.P. Assocs., LLC*, No. 28501, 2020 WL 1082366 (Ohio App., 2nd Dist., Mar. 6, 2020); *Lindhorst v. Elkadi*, No. 80162, 2002 WL 999315 (Ohio App., 8th Dist., May 16, 2002); *Whitacre v. Starks*, No. 1998-CA-0307, 1999 WL 547943 (Ohio App., 5th Dist., June 29, 1999); *Ramsey v. Farris*, No. 64179, 1993 WL 497059 (Ohio App., 8th Dist., Dec. 2, 1993); *Smith v. Blackburn*, 31 Ohio App.3d 251, 511 N.E.2d 132 (4th Dist. 1987); *Burdge v. Welsh*, No. 82AP-846, 1983 WL 3367 (Ohio App., 10th Dist., Feb. 22, 1983).

When a vendor loans money to the vendee subsequent to the execution of the land installment contract, and the parties agree to add the loan amount to the principal of the land installment contract, the loan amount is nonetheless excluded from the purchase price for the determination on whether twenty percent of the purchase price has been paid. *Waters v. Williams*, No. 06-CA-88, 2007 WL 172032 (Ohio App., 5th Dist., Jan. 22, 2007) (five years after execution of the contract, \$20,000 loan).

When a land installment contract is renegotiated and the final contract declares that the earlier contract(s) are null and void, the five-year period for R.C. 5321.07,.08 purposes begins to run as of the execution date of the final contract. *Smith v. Williams*, No. 2012-CA-00117, 2013 WL 1282002 (Ohio App., 5th Dist., Mar. 28, 2013). *Cf. Mohn v. Ousley*, No. 2015-CA-00073, 2015 WL 9393954 (Ohio App., 5th Dist., Dec. 21, 2015) (termination agreement for first contract waived application of its time and payments in computation of time and payments under second contract).

With respect to land installment contracts in the second group, the vendor may recover possession of the property only through a foreclosure action and a judicial sale.

R.C. 5313.07,.08. *See also Cuyahoga Metro. Hous. Auth. v. Watkins*, 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984); *Hudson v. Bates*, No. 93-CVG-7406 (Ohio Mun., Marion Cty., Jan. 26, 1993).

With respect to land installment contracts in the first group, the vendor may recover possession of the property either through an eviction action or through a foreclosure action and a judicial sale. R.C. 5313.07,.08. *See also Casto v. Prokop*, No. 93-T-4853, 1995 WL 407217 (Ohio App., 11th Dist., June 9, 1995).

Two appellate districts are split on whether, in the eviction action, the burden of proof, relative to the twenty-percent standard, is on the vendor or the vendee. The Second District has held that this burden of proof is on the vendor.³⁹⁴ *White v. Daniel*, No. 12319, 1991 WL 262675 (Ohio App., 2nd Dist., Dec. 10, 1991). The Fifth District has held that the twenty-percent standard is an affirmative defense and, therefore, the burden of proof is on the vendee. *Sanders v. Crawford*, No. 2006-CA-00194, 2007 WL 1413218 (Ohio App., 5th Dist., May 14, 2007).

If the burden of proof is on the vendor, “[w]hen [the vendor] cannot state the balance due on the contract, he cannot meet his burden of proving that less than twenty per cent has been paid on the contract.” *White*, 1991 WL 262675, at *4.

b. Eviction Action – Notices, Right to Cure, and Equity

When the vendee’s default is nonpayment, a forfeiture of the vendee’s interest under the land installment contract “may be enforced only after the expiration of thirty days from the date of the default.” R.C. 5313.05. If the land installment contract provides a thirty-day grace period and does not specify when the R.C. 5313.05 thirty-day notice commences relative to the grace period, the R.C. 5313.05 thirty-day notice does not commence until the expiration of the thirty-day grace period. *Garee v. Wolfe*, Nos. 2020-CA-00009,00038, 2021-WL 628622 (Ohio App., 5th Dist., Feb. 16, 2021).

If the vendee cures the default (*i.e.*, makes all payments currently due under the contract) within this thirty-day period, the vendor may not evict the vendee. R.C. 5313.05. *See Garee v. Wolfe*, Nos. 2020-CA-00009,00038, 2021-WL 628622 (Ohio App., 5th Dist., Feb. 16, 2021); *Addair v. Mitchell*, No. 03-CA-19, 2003 WL 22951899

³⁹⁴ Placing the burden of proof on the vendor is consistent with the vendor’s R.C. 5313.03 obligation. R.C. 5313.03 requires a vendor, at least once a year, to furnish a statement to the vendee showing the amount credited to principal and interest and the balance due. It thus requires the vendor to keep accurate records of the elements of the twenty-percent standard.

(Ohio App., 5th Dist., Dec. 15, 2003); *Keene v. Schnetz*, 13 Ohio App.3d 87, 468 N.E.2d 125 (9th Dist. 1983).

Before filing any eviction action against the vendee, the vendor must serve the vendee with a written notice that:

- (1) Reasonably identifies the contract and describes the property covered by it;
- (2) Specifies the terms and conditions of the contract with which the vendee has not complied;
- (3) Notifies the vendee that the contract will stand forfeited unless the vendee performs the terms and conditions of the contract within ten days of the completed service of notice; and
- (4) Notifies the vendee to leave the premises.

R.C. 5313.06.³⁹⁵

In these eviction actions, the R.C. 5313.06 notice supplants the R.C. 1923.04(A) notice (see Section I.C.1, above). R.C. 1923.04(B).

The permissible methods of service for an R.C. 5313.06 notice are: (1) certified mail, (2) registered mail, (3) personal service, (4) leaving it at the vendee's usual place of abode, or (5) leaving it at the property that is the subject of the contract. R.C. 5313.06. *E.g.*, *Estate of Chasteen v. Cartee*, No. 1993, 1992 WL 238918 (Ohio App., 4th Dist., Sept. 25, 1992) (upheld service by registered mail).

For R.C. 5313.06 purposes, a vendee "performs the terms and conditions of the contract" so as to avoid forfeiture only if the vendee makes full payment of the entire contract price before the end of the ten-day period. *Addair v. Mitchell*, No. 03-CA-19, 2003 WL 22951899 (Ohio App., 5th Dist., Dec. 15, 2003); *Keene v. Schnetz*, 13 Ohio App.3d 87, 468 N.E.2d 125 (9th Dist. 1983). A vendee's oral offer to make full payment does not meet this requirement, if the vendee fails to tender the payment. *Ramsey v. Farris*, No. 64179, 1993 WL 497059 (Ohio App., 8th Dist., Dec. 2, 1993).

A vendor's failure to comply with the R.C. 5313.06 notice requirement is a defense to the eviction action. Examples of court decisions finding the content of an R.C. 5313.06 notice defective, and thereupon entering an eviction judgment for the vendee,

³⁹⁵ The R.C. 5313.06 notice does not apply when the vendor files a foreclosure action instead of an eviction action. *Chemical Bank v. Sullivan*, 121 Ohio App.3d 111, 699 N.E.2d 105 (6th Dist. 1997).

are set forth below.

- (1) *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984 (Ohio App., 3rd Dist., 2014) (notice failed to notify the vendee of the ten-day period for performing the terms of the contract to avoid forfeiture).
- (2) *Austin v. Sullivan*, No. 93-CA-43, 1994 WL 650228 (Ohio App., 7th Dist., Nov. 17, 1994) (notice failed to identify the property and failed to notify the vendee of the ten-day period for performing the terms of the contract to avoid forfeiture).
- (3) *Northrop v. Mangus*, No. CA-81-07, 1981 WL 6607 (Ohio App., 5th Dist., Dec. 28, 1981) (notice failed to describe the property and failed to notify the vendee of the ten-day period for performing the terms of the contract to avoid forfeiture).
- (4) *Krivins v. Smyers*, No. 9935, 1981 WL 3945 (Ohio App., 9th Dist., Apr. 22, 1981) (notice misstated the amount due and unpaid).

One appellate district has held that “R.C. 5313.06, like R.C. 1923.04, is jurisdictional in nature and a prerequisite to land contract forfeiture proceedings.” *Austin v. Sullivan*, No. 93-CA-43, 1994 WL 650228, at *2 (Ohio App., 7th Dist., Nov. 17, 1994). It thereupon held that a vendor’s “failure to comply with the provisions of R.C. 5313.06, as it sets forth notice requirements, deprive[s] the trial court of jurisdiction over the subject matter of the land contract.” *Id.*

Two other appellate districts have stated that the jurisdictional issue is not settled, since only the Seventh District has ruled on it. *Am. Servicing Corp. v. Wannemacher*, 19 N.E.3d 566, 2014-Ohio-3984, ¶ 44 (Ohio App., 3rd Dist., 2014); *State ex rel. Invesco Mgmt. Co. LLC v. Geauga County Court of Common Pleas*, No. 2012-G-3085, 2012 WL 4788965, ¶ 19 (Ohio App., 11th Dist., Oct. 9, 2012). But neither court ruled on the issue. In *Wannemacher*, the court did not need to (and opted not to) decide the jurisdictional issue “because the trial court ultimately dismissed the complaint, which was the proper disposition of the case in light of the trial court’s conclusion that Amerian Servicing failed to satisfy R.C. 5313.06.” *Wannemacher*, 2014-Ohio-3984, ¶ 44. In *Invesco*, the court did not decide the jurisdictional issue because the trial court had not yet determined (and would determine on remand) whether the notice complied with R.C. 5313.06. *Invesco*, 2012 WL 4788965, ¶ 19

In three cases, where the R.C. 5313.06 notice instructed the vendee to vacate before the required ten days and the vendor commenced the eviction action after the required

ten days, the trial courts refused to dismiss the eviction actions and the appellate courts found error but not prejudicial error. *Goble v. Grosswiler*, No. 2018-CA-0102, 2019 WL 5595795 (Ohio App., 5th Dist., Oct. 29, 2019) (notice specified three days and eviction complaint filed 48 days after service of the notice); *Estate of Chasteen v. Cartee*, No. 1993, 1992 WL 238918 (Ohio App., 4th Dist., Sept. 25, 1992) (notice specified seven days and eviction complaint filed four months after service of the notice); *Caltrider v. Reitler*, No. CA-2208, 1984 WL 7506 (Ohio App., 5th Dist., May 21, 1984) (notice specified three days and eviction complaint filed thirteen days after service of the notice).

When a vendee cannot avoid forfeiture via the rights to cure under the R.C. 5313.05 and 5313.06, the vendee still has a right to assert an equity defense. Because “forfeitures are highly disfavored by the law ..., the forfeiture clause of a land contract will be disregarded upon the vendee’s failure to perform on time, unless the failure is intentional or it results in a loss to the vendor which cannot be compensated by interest.” *Krivins v. Smyers*, No. 9935, 1981 WL 3945, at *2 (Ohio App., 9th Dist., Apr. 22, 1981). “Accordingly, courts have declined to enforce forfeitures of land contracts when the buyer later made an adequate tender of the amounts due.” *Id.* See also *Blenheim Homes, Inc. v. Mathews*, 119 Ohio App. 44, 196 N.E.2d 612 (10th Dist. 1963).

c. Vendee Claim for Payments in Excess of Fair Rental Value

When a vendor declares the land installment contract void because of the vendee’s nonpayment, the vendee is generally entitled to recover any sums paid on the purchase price in excess of the fair rental value of the property, during the period of the vendee’s possession. *Brown v. Johnston*, 95 Ohio App. 136, 108 N.E.2d 298 (2nd Dist. 1952). But cf. *Doty v. Potteiger*, No. 2017-T-0029, 2017 WL 5998569 (Ohio App., 11th Dist., Dec. 4, 2017) (vendor in a land installment contract which had been forfeited is entitled to keep the initial deposit that is in excess of the statutory damages allowed by R.C. 5313.10). For a discussion on fair rental value, see Section XXIII.E.3.b, below.

3. Vendor Action for Damages

a. Overview

The termination of a land installment contract under R.C. 5313.07 or 5313.08 is an exclusive remedy, which generally bars further action on the contract. R.C. 5313.10.

“Following foreclosure and judicial sale, R.C. 5313.07 allows a vendor to recover the proceeds from the judicial sale ‘up to and including the unpaid balance due on the land installment contract.’” *Casto v. Prokop*, No. 93-T-4853, 1995 WL 407217, at *2 (Ohio App., 11th Dist., June 9, 1995). *Accord Castro v. Prokop*, No. 89-T-4238, 1991 WL 35640 (Ohio App., 11th Dist., Mar. 15, 1991); *Dalton v. Acker*, 5 Ohio App.3d 150, 450 N.E.2d 288 (5th Dist. 1981).

The vendor may not recover a deficiency judgment against the vendee.³⁹⁶ R.C. 5313.10. *See Howard v. Temple*, 172 Ohio App.3d 21, 872 N.E.2d 1260 (4th Dist. 2007); *Castro v. Prokop*, No. 89-T-4238, 1991 WL 35640 (Ohio App., 11th Dist., Mar. 15, 1991); *Good Shepherd Baptist Church v. City of Columbus*, 20 Ohio App.3d 228, 485 N.E.2d 725 (10th Dist. 1984); *Shone v. Griffis*, No. 8252, 1984 WL 4376 (Ohio App., 2nd Dist., Feb. 2, 1984); *Dalton v. Acker*, 5 Ohio App.3d 150, 450 N.E.2d 288 (5th Dist. 1981).

But the vendor may recover damages: (1) for the difference, if any, between the amount paid by the vendee on the contract and the fair rental value of the property, and (2) for any deterioration or destruction of the property caused by the vendee. R.C. 5313.10. *See Anna Holdings, LLC v. McClanahan*, No. 148 N.E.3d 1255, 2019-Ohio-4697 (Ohio App., 2nd Dist., 2019); *Voska v. Coffman*, No. S-13-008, 2013 WL 6579576 (Ohio App., 6th Dist., Dec. 13, 2013); *Howard v. Temple*, 172 Ohio App.3d 21, 872 N.E.2d 1260 (4th Dist. 2007); *Casto v. Prokop*, No. 93-T-4853, 1995 WL 407217 (Ohio App., 11th Dist., June 9, 1995); *White v. Daniel*, No. 12319, 1991 WL 262675 (Ohio App., 2nd Dist., Dec. 10, 1991); *Castro v. Prokop*, No. 89-T-4238, 1991 WL 35640 (Ohio App., 11th Dist., Mar. 15, 1991); *Frey v. Hibbard*, 62 Ohio App.3d 781, 577 N.E.2d 669 (1st Dist. 1989); *Tanner v. Fulk*, No. CA-2297, 1985 WL 6462 (Ohio App., 5th Dist., Aug. 1, 1985); *Good Shepherd Baptist Church v. City of Columbus*, 20 Ohio App.3d 228, 485 N.E.2d 725 (10th Dist. 1984); *Butler v. Michel*, 14 Ohio App.3d 116, 470 N.E.2d 217 (9th Dist. 1984).

For these purposes, the amount paid by the vendee includes the amount of the vendee’s initial deposit (if any). *Doty v. Potteiger*, No. 2017-T-0029, 2017 WL 5998569 (Ohio App., 11th Dist., Dec. 4, 2017).

³⁹⁶ If a court does order a deficiency judgment, it is void *ab initio* and subject to collateral attack. *Shone v. Griffis*, No. 8252, 1984 WL 4376, at *4 (Ohio App., 2nd Dist., Feb. 2, 1984).

b. Fair Rental Value Claim

The recovery for fair rental value plus deterioration or destruction is an exception to the otherwise exclusive remedy of filing an action under R.C. 5313.07 or R.C. 5313.08. *Kennedy v. Kunze*, No. 28978, 2019 WL 469767, ¶ 21 (Ohio App., 9th Dist., Feb. 6, 2019).

“[A] ‘fair rental value claim’ is intended to compensate the vendor for any additional amount he could have earned *during the period in which he was receiving payments under the contract*.” *Belknap v. Shears*, No. 2012-P-0007, 2012 WL 5995095, ¶ 29 (Ohio App., 11th Dist., Dec. 3, 2012).

“Accordingly, it follows that the vendor must establish the fair rental value of the property during the period in which the payments were made. Generally, evidence only on the fair rental value of the property for a subsequent period will not meet this standard.” *Id.*

“The fair rental value is the amount a willing landlord rents the property for and what a reasonable tenant is willing to pay.” *Voska v. Coffman*, No. S-13-008, 2013 WL 6579576, ¶ 13 (Ohio App., 6th Dist., Dec. 13, 2013). *Accord Taylor v. Nickston Invs.*, No. 94-APE02-259, 1995 WL 41638, at *2 (Ohio App., 10th Dist., Jan. 26, 1995).

“The installment amount set forth in a land installment contract is evidence of its fair rental value.” *Id.* “Fair rental value may also include unpaid taxes, insurance, and water charges.” *Id.*

c. Practice Issues

When the vendor asserts these damage claims in a foreclosure action, the court should conduct an evidentiary hearing on the claim after the judicial sale. *Flora v. Pullins*, No. 96-CA-13, 1996 WL 648353 (Ohio App., 2nd Dist., Nov. 8, 1996).

When the vendor brings an eviction action, the vendor may assert the damage claim in the eviction action or in a separate and subsequent action. *Marvin v. Stemen*, 68 Ohio App.2d 26, 426 N.E.2d 205 (6th Dist. 1980). Res judicata is not a defense to the subsequent action. *Id.*

d. Bar on a Deficiency Judgment – Applicability Issues

When a vendor serves the vendee with an R.C. 5313.06 notice and, thereupon, the vendee vacates the property, the R.C. 5313.10 bar against a deficiency judgment applies, even though the vendor did not file an action for forfeiture. *Koehler v.*

Panizgua, No. 5-02-64, 2003 WL 1903737 (Ohio App., 3rd Dist., Apr. 18, 2003).

When a vendor has a note and mortgage with the vendee, in addition to the land installment contract, and the vendor commences a foreclosure action under the note and mortgage (and not under R.C. 5313.07), the R.C. 5313.10 bar against a deficiency judgment does not apply. *Bradford v. B & P Wrecking Co.*, 171 Ohio App.3d 616, 872 N.E.2d 331 (6th Dist. 2007).

When a vendor is seeking to collect payment under a guarantee agreement, the R.C. 5313.10 bar against a deficiency judgment does not apply to the guarantor. *O'Brien v. Ravenswood Apts., Ltd.*, 169 Ohio App.3d 233, 862 N.E.2d 549 (1st Dist. 2006).

4. Vendor Action for Specific Performance for the Purchase Price

When a vendee breaches a land installment contract, the vendor may elect “to exercise the option of accelerating the payments under the Land Contract and bringing a suit against [the vendee] to compel the performance of the contract.” *Arnett v. Bardonaro*, No. 25371, 2013 WL 1189009, ¶ 37 (Ohio App., 2nd Dist., Mar. 22, 2013). In the action for specific performance, the vendor is electing to receive the purchase price in exchange for the property. *Id.*

The action for specific performance is an alternative option to the vendor’s right to bring an action for possession under R.C. 5313.07, .08. *Id.*, ¶ 35.

XXIV. HUD-Assisted Rental Housing Programs

A. Introduction

Section XXIV.B, below, is an index of HUD regulations that govern the primary HUD-assisted rental housing programs. The index identifies, per program, the HUD regulations on: (1) overall program rules, (2) selection of tenants, (3) leases, (4) rent formula, (5) interim rent reduction, and (6) termination of tenancy and eviction.

Section XXIV.C, below, discusses R.C. Chapter 2506 appeals of a public housing authority's decision to terminate a family's participation in the Housing Choice Voucher program ("HCVP").

For a discussion on eviction actions, relative to the HUD-assisted rental housing programs, see Chapter III, above. For a detailed outline of the HUD regulations on terminating a tenancy for the criminal activity of a tenant, household member, or guest, see Section III.G.8, above.

For a comprehensive discussion on the HUD-assisted rental housing programs, see National Housing Law Project, HUD Housing Programs: Tenants' Rights (5th ed. 2018).

B. Index of HUD Regulations

1. Overall Program Rules

Public Housing: 24 C.F.R. ch. IX.

HCVP: 24 C.F.R. part 982.

Project-Based Voucher: 24 C.F.R. part 983.

Section 8 New Construction: 24 C.F.R. part 880.

Section 8 Substantial Rehabilitation: 24 C.F.R. part 881.

Section 8 Moderate Rehabilitation: 24 C.F.R. part 882.

Section 8 Set-Aside: 24 C.F.R. part 886, subpart A.

Section 8 for Disposition of HUD-Owned: 24 C.F.R. part 886, subpart C.

Section 202 and Section 811: 24 C.F.R. part 891.

Section 236: 24 C.F.R. part 236.

HOME: 24 C.F.R. part 92.

Shelter Plus Care: 24 C.F.R. part 582.

HUD-Owned: 24 C.F.R. part 290.

2. Selection of Tenants

Most Programs:³⁹⁷ 24 C.F.R. part 5, subpart E (non-citizen rule).

Most Programs:³⁹⁸ 24 C.F.R. part 5, subpart I (criminal activity).

Public Housing: 24 C.F.R. part 960, subpart B.

HCVP: 24 C.F.R. § 982.307.

Project-Based Voucher: 24 C.F.R. §§ 983.251-983.255.

Section 8 Project-Based:³⁹⁹ 24 C.F.R. §§ 5.653-5.661.

Section 8 New Construction: 24 C.F.R. §§ 880.603, 880.612a.

Section 8 Substantial Rehabilitation: 24 C.F.R. § 881.601 (incorporating §§ 880.603, 880.612a).

Section 8 Moderate Rehabilitation: 24 C.F.R. §§ 882.514, 882.518.

Section 8 Set-Aside: 24 C.F.R. §§ 886.129, 886.132.

Section 8 for Disposition of HUD-Owned: 24 C.F.R. §§ 886.329, 886.329a.

Section 202 and Section 811: 24 C.F.R. § 891.410.

Section 236: 24 C.F.R. § 236.1(c) (incorporating §§ 236.70, 236.72 (1995)).

³⁹⁷ The programs to which these regulations apply include the Public Housing, HCVP, Project-Based Voucher, Section 8, and Section 236 programs.

³⁹⁸ These regulations apply to federally assisted housing programs, as defined in 24 C.F.R. § 5.100, which excludes the Public Housing, HCVP, and Project-Based Voucher programs.

³⁹⁹ These regulations apply to all Section 8 programs, except the Section 8 Moderate Rehabilitation program.

HOME: 24 C.F.R. §§ 92.252, 92.253.

Shelter Plus Care: 24 C.F.R. §§ 582.1, 582.5, 582.325.

HUD-Owned: 24 C.F.R. § 290.7.

3. Leases

Most Programs:⁴⁰⁰ Subsidized housing lease.⁴⁰¹

Public Housing: 24 C.F.R. part 966, subpart A.

HCVP: 24 C.F.R. §§ 982.308, 982.309; HUD Tenancy Addendum, form HUD-52641-A (July 2019).

Project-Based Voucher: 24 C.F.R. § 983.256.

Section 8 New Construction: 24 C.F.R. § 880.606.

Section 8 Substantial Rehabilitation: 24 C.F.R. § 881.601 (incorporating § 880.606).

Section 8 Moderate Rehabilitation: 24 C.F.R. §§ 882.403(d), 882.511(f).

Section 8 Set-Aside: 24 C.F.R. § 886.127.

Section 8 for Disposition of HUD-Owned: 24 C.F.R. § 886.327.

Section 202 and Section 811: 24 C.F.R. § 891.425.

Section 236: 24 C.F.R. § 236.1(c) (incorporating § 236.75 (1995)).

HOME: 24 C.F.R. § 92.253.

Shelter Plus Care: 24 C.F.R. § 582.315.

4. Rent Formula

Public Housing: 24 C.F.R. part 5, subpart F and part 960, subpart C.

HCVP: 24 C.F.R. § 5.615 and part 982, subpart K.

⁴⁰⁰ The programs to which this lease applies include the Section 236 and all Section 8 programs, except the Section 8 Moderate Rehabilitation program.

⁴⁰¹ For the definition of “subsidized housing lease,” see note 174, above.

Project-Based Voucher: 24 C.F.R. § 983.353.

Section 8 Programs: 24 C.F.R. part 5, subpart F.

Section 202 and Section 811: 24 C.F.R. §§ 891.410(g)(1), 891.105 (total tenant payment, incorporating part 5, subpart F).

Section 236: 24 C.F.R. §§ 236.3, 236.1(c) (incorporating §§ 236.2, 236.55 (1995)).

HOME: 24 C.F.R. § 92.252.

Shelter Plus Care: 24 C.F.R. § 582.310.

HUD-Owned: 24 C.F.R. § 290.9.

5. Interim Rent Reduction

Most Programs:⁴⁰² HUD Handbook 4350.3 REV-1,⁴⁰³ ¶¶ 7-12, 7-13.

Public Housing: 24 C.F.R. § 960.257(b).

HCVP: 24 C.F.R. § 982.516.

Project-Based Voucher: 24 C.F.R. § 982.516 (via § 983.2(c)(6)(ii)).

Section 8 New Construction: 24 C.F.R. § 880.603(c).

Section 8 Substantial Rehabilitation: 24 C.F.R. § 881.601 (incorporating § 880.603(c)).

Section 8 Moderate Rehabilitation: 24 C.F.R. § 882.515.

Section 8 Set-Aside: 24 C.F.R. § 886.124.

Section 8 for Disposition of HUD-Owned: 24 C.F.R. § 886.324.

Section 202 and Section 811: 24 C.F.R. § 891.410(g)(2).

Section 236: 24 C.F.R. § 236.1(c) (incorporating § 236.80 (1995)).

⁴⁰² The programs to which this handbook applies include the Section 236 and all Section 8 programs, except the Section 8 Moderate Rehabilitation program.

⁴⁰³ For the full citation for this handbook, see note 143, above.

Shelter Plus Care: 24 C.F.R. § 582.310.

6. Termination of Tenancy and Eviction

Public Housing: 24 C.F.R. § 966.4(l).

HCVP: 24 C.F.R. § 982.310.

Project-Based Voucher: 24 C.F.R. § 983.257.

Section 8 New Construction: 24 C.F.R. § 880.607.

Section 8 Substantial Rehabilitation: 24 C.F.R. § 881.601 (incorporating § 880.607).

Section 8 Moderate Rehabilitation: 24 C.F.R. § 882.511.

Section 8 Set-Aside: 24 C.F.R. § 886.128 and part 247, subpart A.

Section 8 for Disposition of HUD-Owned: 24 C.F.R. § 886.328 and part 247, subpart A.

Section 202 and Section 811: 24 C.F.R. § 891.770 and part 247, subpart A.

Section 236: 24 C.F.R. part 247, subpart A.

HOME: 24 C.F.R. § 92.253.

Shelter Plus Care: 24 C.F.R. § 582.315.

HUD-Owned: 24 C.F.R. § 290.7(b) and part 247, subpart B.

For Public Housing, Section 8 New Construction, Section 8 Substantial Rehabilitation, Section 8 Set-Aside, Section 8 for Disposition of HUD-Owned, Section 202, and Section 811, see 86 Fed. Reg. 55693 (Oct. 7, 2021) (HUD interim final rule).

For all assisted housing programs, for nonpayment of rent cases, a thirty-day notice of termination requirement was established in the CARES Act, Pub. L. 116-136, 134 Stat. 281, enacted Mar. 27, 2020, at § 4024(c) (“CARES Act provision”). For a discussion on the terms and status of the CARES Act provision, see note 183, above.

C. Appeal from PHA Decision Terminating HCVP Participation, R.C. Chapter 2506

1. Jurisdiction

R.C. 2506.01 authorizes an appeal to the court of common pleas from “every final order, adjudication, or decision of any officer, tribunal, authority, board, bureau, commission, department, or other division of any political subdivision of the state.”

“In order for a decision of an administrative agency to be appealable pursuant to R.C. Chapter 2506, it must be a final resolution rendered in a quasi-judicial proceeding.”⁴⁰⁴ *Lakota Local Sch. Dist. Bd. of Educ. v. Brickner*, 108 Ohio App.3d 637, 644, 671 N.E.2d 578 (6th Dist. 1996). *Accord Milhoan v. E. Local Sch. Dist. Bd. of Educ.*, 157 Ohio App.3d 716, 813 N.E.2d 692, ¶ 13 (4th Dist. 2004); *Sebest v. Campbell City Sch. Dist. Bd. of Educ.*, No. 00-CA-272, 2002 WL 1483917, ¶ 6 (Ohio App., 7th Dist., June 28, 2002); *State ex rel. Barno v. Crestwood Bd. of Educ.*, 134 Ohio App.3d 494, 500, 731 N.E.2d 701 (11th Dist. 1998).

However, “[w]here the administrative agency should have given notice, conducted a hearing, and afforded the parties an opportunity to be heard and to introduce evidence, the order is the result of an adjudication even if the agency fails to afford such notice and hearing.” *In re Howard*, 73 Ohio App.3d 717, 719, 598 N.E.2d 165 (10th Dist. 1991). *Accord Milhoan v. E. Local Sch. Dist. Bd. of Educ.*, 157 Ohio App.3d 716, 813 N.E.2d 692, ¶ 13 (4th Dist. 2004); *Sebest v. Campbell City Sch. Dist. Bd. of Educ.*, No. 00-CA-272, 2002 WL 1483917, ¶¶ 6,7 (Ohio App., 7th Dist., June 28, 2002); *State ex rel. Barno v. Crestwood Bd. of Educ.*, 134 Ohio App.3d 494, 500, 731 N.E.2d 701 (11th Dist. 1998); *Lakota Local Sch. Dist. Bd. of Educ. v. Brickner*, 108 Ohio App.3d 637, 644-45, 671 N.E.2d 578 (6th Dist. 1996).

Under Ohio law, a public housing authority (“PHA”) is a political subdivision of the State. *Moore v. Lorain Metro. Hous. Auth.*, 121 Ohio St.3d 455, 457, 905 N.E.2d 606 (2009); *Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St. 2d 202, 203 n.2,

⁴⁰⁴ “The earmarks of a quasi-judicial proceeding include a requirement, imposed by law, of notice, a hearing and an opportunity to introduce evidence.” *Lakota Local Sch. Dist. Bd. of Educ. v. Brickner*, 108 Ohio App.3d 637, 644, 671 N.E.2d 578 (6th Dist. 1996). *Accord Milhoan v. E. Local Sch. Dist. Bd. of Educ.*, 157 Ohio App.3d 716, 813 N.E.2d 692, ¶ 13 (4th Dist. 2004); *Sebest v. Campbell City Sch. Dist. Bd. of Educ.*, No. 00-CA-272, 2002 WL 1483917, ¶ 6 (Ohio App., 7th Dist., June 28, 2002).

389 N.E.2d 1113 (1979).

Therefore, final PHA administrative hearing decisions may be appealed under R.C. Chapter 2506 to the court of common pleas. *Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St.2d 202, 389 N.E.2d 1113 (1979).

Those decisions include final PHA administrative hearing decisions that terminate a family's participation in the HCVP.⁴⁰⁵ *Downie v. Lake Metro. Hous. Auth.*, No. 2014-L-060, 2015 WL 1000211, ¶ 18 (Ohio App., 11th Dist., Mar. 9, 2015). For a summary of court decisions in R.C. Chapter 2506 appeals from PHA HCVP hearing decisions, see Section XXIV.C.8, below.

2. Notice of Appeal

a. Method for Perfecting the Appeal

An R.C. Chapter 2506 appeal is perfected with the filing of a notice of appeal. R.C. 2505.04 (incorporated by R.C. 2506.01). See *Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 15 (Ohio App., 8th Dist., June 11, 2015).

The notice of appeal must be filed with the court and the PHA, with one receiving the original of the notice and the other receiving a copy of the notice. *Welsh Dev. Co. v. Warren County Reg'l Planning Comm'n*, 128 Ohio St.3d 471, 946 N.E.2d 215 (2011); *Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St.2d 202, 389 N.E.2d 1112 (1979). The original of the notice may be filed with either the court or the PHA. *Id.*

"R.C. 2505.04 is silent as to the permissible method for filing and serving the notice of appeal." *Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 17 (Ohio App., 8th Dist., June 11, 2015).

However, the Supreme Court has held that the "appellant may use any method reasonably certain to accomplish delivery to the agency within the required 30 days, which is filing that satisfies the jurisdictional requirement for an administrative appeal." *Welsh Dev. Co. v. Warren County Reg'l Planning Comm'n*, 128 Ohio St.3d 471, 946 N.E.2d 215, ¶ 40 (2011).

⁴⁰⁵ Other final PHA administrative hearing decisions that may be appealed under R.C. Chapter 2506 include: (1) decisions denying HCVP admission, e.g., *Peters v. Lake Metro. Hous.*, No. 94-CV-000481 (Ohio C.P., Lake Cty., Oct. 12, 1994); (2) decisions terminating a public housing tenancy, e.g., *Perry v. Akron Metro. Hous. Auth.*, No. CV-05-01-0290 (Ohio C.P., Summit Cty., Feb. 28, 2005); and (3) decisions denying public housing admission, e.g., *Riley v. Cuyahoga Metro. Hous. Auth.*, No. CV-06-602405 (Ohio C.P., Cuyahoga Cty., Mar. 12, 2007).

The permissible methods of service include those that are enumerated in *Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 27 (Ohio App., 8th Dist., June 11, 2015):

the Ohio Supreme Court as well as this court has consistently recognized that a notice of appeal in an R.C. Chapter 2506 appeal may be served by hand-delivery, certified mail, regular U.S. mail, facsimile, or by the clerk of courts. *Dudukovich*, 28 Ohio St.2d at 204, 389 N.E.2d 1113 (no particular method of delivery is prescribed by the statute and therefore ‘any method productive of certainty of accomplishment’ is acceptable, including certified mail); *In re Jones-Smith*, 8th Dist. Cuyahoga No. 93276, 2009-Ohio-6470, at ¶ 12, 14 (service via regular U.S. mail); *Berea Music v. Berea*, 8th Dist. Cuyahoga No. 80897, 2002-Ohio-6639, ¶ 14 (service via hand-delivery of copy with the administrative agency); *Hanson v. Shaker Heights*, 152 Ohio App.3d 1, 2003-Ohio-749, 786 N.E.2d 487, ¶ 12 (8th Dist.) (service via facsimile).

If the appellant uses regular U.S. mail service, there is a presumption “that the service was effective when the certificate of service was entered on the record and the envelope was not returned for failure of delivery.” *In re Jones-Smith*, No. 93276, 2009 WL 4695438, ¶ 14 (Ohio App., 8th Dist., Dec. 10, 2009). *Accord Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 19 (Ohio App., 8th Dist., June 11, 2015). Also, the burden of proving the deficiency in this service is on the administrative agency – the party moving to dismiss the appeal. *Jacobs*, 2015 WL 3647561, ¶ 20.

Civil Rules 4 to 4.6 do not apply to R.C. Chapter 2506 appeals. *Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 26 (Ohio App., 8th Dist., June 11, 2015). Therefore, “service through the clerk of court is not required; instead, it is simply one method to accomplish the filing requirement of R.C. 2505.04....” *Id.*, ¶ 27.

b. Time Period for Perfecting the Appeal

The time period for perfecting the appeal is thirty days from the date of the PHA’s final decision. R.C. 2505.07 (incorporated by R.C. 2506.01). *See Jacobs v. Cuyahoga Metro. Hous. Auth.*, No. 102248, 2015 WL 3647561, ¶ 16 (Ohio App., 8th Dist., June 11, 2015).

The thirty-day period begins to run on the date that the PHA mails the final, written

decision to the HCVP participant (or the HCVP participant's lawyer).⁴⁰⁶ *Cornacchione v. Akron Bd. of Zoning Appeals*, 118 Ohio App.3d 388, 692 N.E.2d 1083 (9th Dist. 1997); *New Haven Missionary Baptist Church v. City of Norwood*, No. C-961046, 1997 WL 602867 (Ohio App., 1st Dist., Aug. 22, 1997); *Am. Aggregates Corp. v. Clayton Twp., Ohio Appeals Bd.*, No. 16311, 1997 WL 282334 (Ohio App., 2nd Dist., May 30, 1997).

If the PHA uses certified mail for this service, the thirty-day period does not begin to run until the date of the participant's receipt of the decision. *Sturdivant v. Toledo Bd. of Educ.*, 157 Ohio App.3d 401, 811 N.E.2d 581 (6th Dist. 2004).

The PHA must actually receive the notice of appeal within this thirty-day period. *Welsh Dev. Co. v. Warren County Reg'l Planning Comm'n*, 128 Ohio St.3d 471, 946 N.E.2d 215 (2011); *Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St.2d 202, 389 N.E.2d 1112 (1979).

Therefore, an appeal is not perfected timely when: (1) a HCVP participant, before the expiration of the thirty-day period, files the notice of appeal only with the clerk of court; and (2) the PHA receives the clerk of court's service of the notice of appeal after the expiration of the thirty-day period. *Henson v. Cuyahoga Metro. Hous. Auth.*, No. 104274, 2016 WL 7296572 (Ohio App., 8th Dist., Dec. 15, 2016).

3. Bond and Stay Issues

a. R.C. 2505.06 Bond to Perfect Appeal, Inapplicable

In an appeal from a PHA decision that terminates a family's participation in the HCVP, an issue that may arise is whether the family is required to post a bond, under R.C. 2505.06, to perfect the appeal. The proper resolution of this issue is that the family is not required to post the bond.

An R.C. 2505.06 bond is not required when there is neither a monetary judgment against the appellant nor any appellee interest that needs to be secured by a bond pending the appeal. *Cleavinger v. Bd. of County Comm'rs of Hamilton County*, 72

⁴⁰⁶ Inconsistent with this general rule, one appellate court held that the thirty-day period begins to run on the effective date of the termination of the family's participation in the HCVP. *Downie v. Lake Metro. Hous. Auth.*, No. 2014-L-060, 2015 WL 1000211, ¶ 19 (Ohio App., 11th Dist., Mar. 9, 2015). The effective date of termination is often subsequent to the date on which the notice of the hearing decision is issued and mailed. For example, in *Downie*, the PHA issued and mailed the hearing decision on August 22, 2013, and the effective date of the termination was September 30, 2014.

Ohio App.3d 187, 594 N.E.2d 135 (1st Dist. 1991). *See also Houghtaling v. City of Medina Bd. of Zoning Appeals*, 134 Ohio App.3d 541, 731 N.E.2d 733 (9th Dist. 1999) (bond not required absent monetary damage award); *Mahoney v. City of Berea*, 33 Ohio App.3d 94, 514 N.E.2d 889 (8th Dist. 1986) (bond not required absent monetary damage award).

In an appeal from a PHA decision that terminates a family's participation in the HCVP, the PHA does not have a monetary judgment (or claim) against the family or any interest that needs to be secured by a bond pending the appeal. If the PHA continues to make HCVP payments on behalf of the family pending the appeal, the PHA incurs no damages because: (1) those HCVP payments will be made in accordance with the program's rent subsidy requirements, and (2) if the termination decision is upheld on appeal, federal law does not require the HCVP landlord or the HCVP tenant to refund those HCVP payments.

The circumstances are analogous to a landlord's eviction action against a HCVP tenant. In those actions, the PHA is required to make HCVP payments on behalf of the tenant during the pendency of the eviction action, including any appeal. 24 C.F.R. § 982.311(b).

b. Stay Without R.C. 2505.09 Bond

In an appeal from a PHA decision that terminates a family's participation in the HCVP, an issue that may arise is whether the family is required to post a bond, under R.C. 2505.09, to secure a stay pending the appeal.

When an appellant seeks a stay pending an R.C. Chapter 2506 appeal, R.C. 2505.09 requires the appellant to post a bond "in such sum, not less than, if applicable, the amount of the final order, judgment, or decree and interest involved." Under R.C. 2505.09, "the trial court or appellate court may direct that sufficient sureties in certain cases means no sureties." *Lomas & Nettleton Co. v. Warren*, No. 89-G-1519, 1990 WL 93138 (Ohio App., 11th Dist., June 29, 1990).

As discussed in Section XXIV.C.3.a, above, when the appeal is from a PHA decision that terminates a family's participation in the HCVP, the PHA does not have a monetary judgment (or claim) against the family, and it does not incur any damages in continuing to make HCVP payments on behalf of the family during the appeal.

Therefore, in these appeals, courts have granted stays of the termination decision without a requirement to post bond under R.C. 2505.09. *E.g., Comston v. Licking Metro. Hous. Auth.*, No. 11-CV-0246 (Ohio C.P., Licking Cty., Feb. 28, 2011);

Huffman v. Coshocton Metro. Hous. Auth., No. 10-CI-0380 (Ohio C.P., Coshocton Cty., June 16, 2010); *Osman v. Columbus Metro. Hous. Auth.*, No. 08-CVF-07-10542 (Ohio C.P., Franklin Cty., Aug. 26, 2008); *Owens v. Parma Pub. Hous. Agency*, No. CV-08-656626 (Ohio C.P., Cuyahoga Cty., Apr. 29, 2008); *Hammond v. Cleveland Metro. Hous. Auth.*, No. CV-07-616036 (Ohio C.P., Cuyahoga Cty., Feb. 28, 2007); *Boone v. Cuyahoga Metro. Hous. Auth.*, No. CV-06-587744 (Ohio C.P., Cuyahoga Cty., May 25, 2006); *Mays v. Cuyahoga Metro. Hous. Auth.*, No. CV-02-466090 (Ohio C.P., Cuyahoga Cty., May 2, 2002); *Taylor v. Cuyahoga Metro. Hous. Auth.*, No. 353992 (Ohio C.P., Cuyahoga Cty., July 2, 1998); *Smith v. Akron Metro. Hous. Auth.*, No. CV93-11-3893 (Ohio C.P., Summit Cty., Dec. 1, 1993); *Gray v. Akron Metro. Hous. Auth.*, No. CV93-11-3889 (Ohio C.P., Summit Cty., Nov. 30, 1993); *Yarborough v. Cuyahoga Metro. Hous. Auth.*, No. 259548 (Ohio C.P., Cuyahoga Cty., Nov. 26, 1993). See also *Smith v. Akron Metro. Hous. Auth.*, No. CV94-09-3277 (Ohio C.P., Summit Cty., Sept. 30, 1994) (nominal bond of \$50).

If the family does not secure a stay pending the appeal, the family may consider filing a separate complaint for monetary relief against the PHA. In an R.C. Chapter 2506 appeal, the court may order the family's reinstatement to the HCVP, but it cannot award monetary relief.

Typically, the family's claim for monetary relief, brought under 42 U.S.C. § 1983, would assert that the PHA violated the family's rights under federal statutes and regulations. The family's monetary damages would include, but not be limited to, the amount of the HCVP payments that the PHA failed to make on behalf of the family during the appeal.

4. Appeal Record

a. Administrative Hearing Record

The HCVP participant is obligated to file a praecipe requesting the PHA to prepare and file with the court the requisite transcript of the administrative hearing. *Woerner v. Mentor Exempted Vill. Sch. Dist. Bd. of Educ.*, 84 Ohio App.3d 844, 619 N.E.2d 34 (11th Dist. 1993).

The PHA is then obligated "to prepare and file in the court ... a complete transcript of all the original papers, testimony, and evidence offered, heard, and taken into consideration in issuing the final order." R.C. 2506.02. The PHA is required to file the administrative record within forty days of the filing of the notice of appeal. *Id.*

“The failure to timely file a transcript pursuant to R.C. 2506.02 does not, on that basis alone, entitle a party to a judgment against the agency, unlike an appeal under R.C. 119.12.” *Martin v. City of Cleveland Bd. of Bldg. Standards & Bldg. Appeals*, No. 86039, 2005 WL 3120211, ¶ 10 (Ohio App., 8th Dist., Nov. 23, 2005). In order to enforce compliance with R.C. 2506.02, a trial court may invoke its contempt powers. *Id.* Alternatively, a trial court may reverse the PHA’s decision based on its failure to present to the court any reason for its late filing. *E.g., Crim v. Cuyahoga Metro. Hous. Auth.*, No. CV-17-875960 (Ohio C.P., Cuyahoga Cty., Apr. 20, 2017). “[T]he trial court may exercise discretion in determining the appropriate sanction when a party fails to comply with R.C. 2506.02.” *Martin v. City of Cleveland Bd. of Bldg. Standards & Bldg. Appeals*, No. 86039, 2005 WL 3120211, ¶ 10 (Ohio App., 8th Dist., Nov. 23, 2005).

b. Additional Evidentiary Hearing, R.C. 2506.03

The HCVP participant may supplement the evidentiary record via a hearing in the court of common pleas, if one or more of the criteria under R.C. 2506.03(A)(1)-(5) apply. R.C. 2506.03. An R.C. 2506.03 hearing is mandatory, if the appellant shows that one or more of those criteria apply. *City of Cleveland v. Posner*, 193 Ohio App.3d 211, 951 N.E.2d 476, ¶¶ 37-39 (8th Dist. 2011).

While R.C. 2506.03(A)(1) expressly refers to an incomplete transcript, it also applies to cases in which the administrative agency fails to file any transcript. *Woerner v. Mentor Exempted Vill. Sch. Dist. Bd. of Educ.*, 84 Ohio App.3d 844, 619 N.E.2d 34 (11th Dist. 1993); *Powell v. Meigs Local Sch. Dist.*, No. 502, 1993 WL 379085 (Ohio App., 4th Dist., Sept. 8, 1993); *Xetron Corp. v. Butler County Bd. of Zoning Appeals*, No. 87-12-163, 1988 WL 76814 (Ohio App., 12th Dist., July 25, 1988). In these cases, the court must hold an R.C. 2506.03 hearing in order to establish a record on which it may render a decision.⁴⁰⁷ *Id.*

In appeals from PHA decisions that terminate a family’s participation in the HCVP, the basis for the R.C. 2506.03 hearing is often:

⁴⁰⁷ Alternatively, if the appellant does not request an R.C. 2506.03 hearing, the court may reverse the administrative decision and remand the case to the administrative agency for a new hearing and determination. *See State ex rel. Vill. of Chagrin Falls v. Geauga County Bd. of Comm’rs*, 96 Ohio St.3d 400, 775 N.E.2d 512, ¶¶ 8-13 (2002); *In re Rocky Point Plaza Corp.*, 86 Ohio App.3d 486, 496, 621 N.E.2d 566 (10th Dist. 1993).

- (1) R.C. 2506.03(A)(1) (PHA failed to file transcript, or complete transcript, of administrative hearing): *E.g.*, *Daughery v. Cuyahoga Metro. Hous. Auth.*, No. CV-07-625529 (Ohio C.P., Cuyahoga Cty., Aug. 11, 2010); *Hammond v. Cleveland Metro. Hous. Auth.*, No. CV-07-616036 (Ohio C.P., Cuyahoga Cty., June 26, 2008); *Holman v. Cuyahoga Metro. Hous. Auth.*, No. CV-01-449663 (Ohio C.P., Cuyahoga Cty., May 30, 2002); *Godfrey v. Miami Metro. Hous. Auth.*, No. 96-202 (Ohio C.P., Miami Cty., Oct. 24, 1996); *Tapley v. Akron Metro. Hous. Auth.*, No. CV88-4-1215 (Ohio C.P., Summit Cty., Sept. 30, 1988). *Cf.* *Conner v. Cuyahoga Metro. Hous. Auth.*, No. 254421 (Ohio C.P., Cuyahoga Cty., Nov. 19, 1993) (reversed HCVP termination because PHA failed to prepare and file a complete transcript of the administrative proceeding).
- (2) R.C. 2506.03(A)(3) (administrative hearing testimony not adduced under oath): *E.g.*, *Daughery v. Cuyahoga Metro. Hous. Auth.*, No. CV-07-625529 (Ohio C.P., Cuyahoga Cty., Aug. 11, 2010).

5. Standard of Review

In an R.C. Chapter 2506 appeal, “the function of the Court of Common Pleas ... differs substantially from that of appellate courts in other contexts.” *Cincinnati Bell, Inc. v. Vill. of Glendale*, 42 Ohio St.2d 368, 370, 328 N.E.2d 808 (1975). *Accord Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St.2d 202, 207, 389 N.E.2d 1113 (1979).

It is a “hybrid form of review.” *Harvey v. Civil Serv. Comm’n of Cincinnati*, 27 Ohio App.3d 304, 306, 501 N.E.2d 39 (1st Dist. 1985). “[A]lthough a hearing before the Court of Common Pleas pursuant to R.C. 2506.01 is not *de novo*, it often in fact resembles a *de novo* proceeding.” *Cincinnati Bell, Inc.*, 42 Ohio St.2d at 370. *Accord Dudukovich*, 58 Ohio St.2d at 206-07.

The court of common pleas “proceed[s] as in the trial of a civil action.” R.C. 2506.03(A). “[T]he court of common pleas must give ‘due deference’ to the administrative agency’s resolution of evidentiary conflicts.” *Harvey*, 27 Ohio App.3d at 306. But the court “acts as a finder of fact in regard to the new evidence” under R.C. 2506.03. *Id.* The R.C. 2506.03 hearing is “a hearing *de novo*.” *Woerner v. Mentor Exempted Vill. Sch. Dist. Bd. of Educ.*, 84 Ohio App.3d 844, 847, 619 N.E.2d 34 (11th Dist. 1993).

The court applies the law to the evidence that was submitted to the administrative agency and to the court’s factual findings on the new evidence. *Henley v. City of Youngstown Bd. of Zoning Appeals*, 90 Ohio St.3d 142, 147, 735 N.E.2d 433 (2000);

Harvey, 27 Ohio App.3d at 306. The court “determines whether the administrative order is unconstitutional, illegal, arbitrary, capricious, unreasonable, or unsupported by the preponderance of substantial, reliable, and probative evidence.” *Henley*, 90 Ohio St.3d at 147.

“The standard of review to be applied by the court of appeals in an R.C. 2506.04 appeal is ‘*more limited in scope.*’” *Henley*, 90 Ohio St.3d at 147. The court of appeals “review[s] the judgment of the common pleas court only on ‘questions of law,’ which does not include the same extensive power to weigh ‘the preponderance of substantial, reliable and probative evidence,’ as is granted to the common pleas court.” *Kisil v. City of Sandusky*, 12 Ohio St 3d 30, 34 n.4, 465 N.E.2d 848 (1984). *Accord Henley v. City of Youngstown Bd. of Zoning Appeals*, 90 Ohio St.3d 142, 147, 735 N.E.2d 433 (2000).

“On evidentiary matters, appellate courts are limited to reviewing to determine whether the trial court’s decision is unsupported by a preponderance of reliable, probative, and substantial evidence. In this context, a reversal ‘as a matter of law’ can occur only when, having viewed the evidence most favorably to the decision, there are no facts to support the trial court’s decision. However, if the trial court considers evidence outside the administrative record by allowing additional evidence under the statutory scheme, the review of those determinations fall under the abuse of discretion standard of review.” *Austin v. Cuyahoga Metro. Hous. Auth.*, No. 107247, 2019 WL 856776, ¶ 23 (Ohio App., 8th Dist., Feb. 21, 2019).

6. Evidentiary Issues

a. Burden of Proof

The PHA has the burden of proof on its alleged grounds for terminating the family’s participation in the HCVP. *Gooden v. Cincinnati Metro. Hous. Auth.*, No. A-0710779, slip op. at 7 (Ohio C.P., Hamilton Cty., July 25, 2008, and Aug. 29, 2008). *See also Williams v. Hous. Auth. of City of Raleigh*, 595 F. Supp.2d 627, 633 (E.D.N.C. 2008); *Hassan v. Dakota County Cmty. Dev. Agency*, No. A08-0373, 2009 WL 437775, at *1 (Minn. App. Feb. 24, 2009); *Meyer v. Dakota County Cmty. Dev. Agency*, No. A06-1290, 2007 WL 2703005, at *3 (Minn. App. Sept. 18, 2007).

Generally, the PHA must prove the allegations against the HCVP participant by a preponderance of the evidence. 24 C.F.R. § 982.555(e)(6); R.C. 2506.04. *See also Edgecomb v. Hous. Auth. of Town of Vernon*, 824 F. Supp. 312, 315 (D. Conn. 1993).

b. Hearsay Evidence

In an administrative hearing on the termination of a family's participation in the HCVP, "evidence may be considered without regard to admissibility under the rules of evidence applicable to judicial proceedings." 24 C.F.R. § 982.555(e)(5). Therefore, the hearing officer may consider hearsay evidence.

However, there are limits under Ohio law on the type of hearsay evidence that is admissible in these hearings.

R.C. 2506.04 requires substantial, reliable, and probative evidence. "(1) 'Substantial' evidence is evidence with some weight; it must have importance and value. (2) 'Reliable' evidence is dependable; that is, it can be confidently trusted. In order to be reliable, there must be a reasonable probability that the evidence is true. (3) 'Probative' evidence is evidence that tends to prove the issue in question; it must be relevant in determining the issue." *Our Place, Inc. v. Ohio Liquor Control Comm'n*, 63 Ohio St.3d 570, 571, 589 N.E.2d 1303 (1992). *Accord City of Cleveland v. Posner*, 193 Ohio App.3d 211, 951 N.E.2d 476, ¶ 27 (8th Dist. 2011).

For example, Ohio law permits reliance on hearsay evidence where it has an indicia of reliability and other evidence supports it. *E.g., Doersam v. City of Gahanna*, No. 96-APF12-1766, 1997 WL 607473, at *9,10 (Ohio App., 10th Dist., Sept. 30, 1997); *Habe v. S. Euclid Civil Serv. Comm'n*, No. 61786, 1993 WL 27682, at *3 (Ohio App., 8th Dist., Feb. 4, 1993). *See generally Consol. Edison Co. v. NLRB*, 305 U.S. 197, 230 (1938) ("Mere uncorroborated hearsay or rumor does not constitute substantial evidence").

Evidence is inherently unreliable where it "consists of subjective judgments of third parties, not present at the hearing." *Dudukovich v. Lorain Metro. Hous. Auth.*, 58 Ohio St.2d 202, 208, 389 N.E.2d 1113 (1979).

Two Ohio court decisions that reversed PHA HCVP termination decisions (concerning alleged unauthorized occupants) because the PHA decisions relied on unreliable hearsay evidence are: *Gooden v. Cincinnati Metro. Hous. Auth.*, No. A-0710779 (Ohio C.P., Hamilton Cty., July 25, 2008, and Aug. 29, 2008) (court documents in domestic violence criminal proceeding), and *Rodriguez v. Lorain Metro. Hous. Auth.*, No. 05-CV-140942 (Ohio C.P., Lorain Cty., Oct. 23, 2006) (newspaper articles).

A related issue is whether, under due process, a PHA may rely solely on hearsay evidence, when contrary, non-hearsay evidence raises issues of credibility.

Some court decisions hold that, in these circumstances, due process bars the PHA from relying solely on hearsay evidence. *E.g.*, *Stevenson v. Willis*, 579 F. Supp.2d 913, 919-20 (N.D. Ohio 2008); *Edgecomb v. Hous. Auth. of Town of Vernon*, 824 F. Supp. 312, 316 (D. Conn. 1993); *Young v. Maryville Hous. Auth.*, No. 3:09-cv-37, 2009 WL 2043891, at *8 (E.D. Tenn. July 2, 2009) (preliminary injunction). *See also Davis v. Mansfield Metro. Hous. Auth.*, 751 F.2d 180, 185 (6th Cir. 1984) (due process requires the right to confront and cross-examine all witnesses upon whose testimony or information the PHA relies and a written decision based solely on the evidence presented at the hearing).

In *Woods v. Willis*, 515 F. App'x 471, 282-83, 2013 WL 611141 (6th Cir. 2013), the court reviews the split in the court decisions on this issue. The court does not need to (and elects not to) render a decision on the issue. “We need not decide whether Defendant may rely solely on reliable hearsay testimony, or if such reliance violates due process or the regulations absent the right to question the declarant, because the evidence here fails under either rule.” *Id.*, 515 F. App'x at 483.

c. Criminal Conviction or Arrest Evidence

“A record of a criminal conviction is only some evidence, not conclusive evidence, of the facts attempted to be proved in a subsequent civil proceeding.” *Vancamp v. Austintown Twp.*, No. 01-CA-17, 2002 WL 925197, ¶ 60 (Ohio App., 7th Dist., Mar. 19, 2002) (R.C. Chapter 2506 appeal). *Accord McAlister v. Akron Metro. Hous. Auth.*, No. CV-2007-08-5813 (Ohio C.P., Summit Cty., Apr. 14, 2008) (R.C. Chapter 2506 appeal, HCVP).

“[A] guilty plea is not an admission in the technical sense of Civ.R. 36, but rather, is an admission in the sense of a confession or a statement against interest.” *Vancamp*, 2002 WL 925197, ¶ 64. *Accord Swigart v. Swigart*, 65 Ohio Law Abs. 582, 591, 115 N.E.2d 871 (Ohio App., 2nd Dist., 1953); *McAlister v. Akron Metro. Hous. Auth.*, No. CV-2007-08-5813 (Ohio C.P., Summit Cty., Apr. 14, 2008) (R.C. Chapter 2506 appeal, HCVP).

“One of the primary reasons for allowing a party in a civil case to rebut the facts underlying a prior guilty plea is that ‘in many cases a plea of guilty may, in fact, amount to a compromise by the defendant to avoid an expensive or undesirable trial.’” *Vancamp*, 2002 WL 925197, ¶ 65. *See also Costa v. Fall River Hous. Auth.*, 71 Mass. App. Ct. 269, 283, 881 N.E.2d 800 (2008) (“a plea may result from extrinsic considerations ... by the accused (elimination of the risk of a more serious conviction

and greater punishment)"). *E.g.*, *McAlister v. Akron Metro. Hous. Auth.*, No. CV-2007-08-5813 (Ohio C.P., Summit Cty., Apr. 14, 2008) ("Appellant asserts that she pled guilty to the charges in order to enter into the felony drug court program and that she understood that by entering into the Drug Court Program that the charges would be dismissed if she successfully completed the program").

A party in a civil case "may explain the prior conviction and may offer any evidence rebutting the fact sought to be proved by the opponent." *Phillips v. Rayburn*, 113 Ohio App.3d 374, 381, 680 N.E.2d 1279 (4th Dist. 1996) (quoting *Hickman v. Kraft*, No. 84-CA-2, 1985 WL 11160 (Ohio App., 4th Dist., Sept. 26, 1985)).

"Thus, the conviction may be admitted into evidence and accorded whatever weight the factfinder deems appropriate. It does not, however, preclude additional litigation involving the facts and legal issues underlying the conviction." *Id.* at 381.

Also, an arrest, by itself, does not meet the PHA's burden of proof in the termination of a family's participation in the HCVP program. The PHA must prove the underlying allegations against the HCVP participant by a preponderance of the evidence. See Section XXIV.C.6.a., above. "The standard for effecting a valid arrest is probable cause to believe that the person arrested has committed a criminal offense." *State v. Swonger*, No. 09AP-1166, 2010 WL 4011201, ¶ 12 (Ohio App., 10th Dist., Oct. 14, 2010). "Probable cause is a lesser standard of proof than that required ... by a preponderance of the evidence." *State v. Smith*, No. 09-CA-29, 2010 WL 3722257, ¶ 84 (Ohio App., 4th Dist., Sept. 20, 2010). See also *Nashua Hous. Auth. v. Wilson*, 162 N.H. 358, 33 A.3d 1163 (2011) (Public Housing eviction).

d. Evidence Outside the Hearing

In the administrative hearing decision on whether to terminate a family's participation in the HCVP, the factual determinations must be based on the evidence presented at the hearing. 24 C.F.R. § 982.555(e)(6).

For example, the hearing officer may not investigate and secure evidence after the hearing, and then rely on that evidence in the hearing decision. *Lyons v. Tuscarawas Metro. Hous. Auth.*, No. 2007-AP-080051, 2009 WL 2781802 (Ohio App., 5th Dist., June 24, 2008).⁴⁰⁸ *Cf. Jackson v. Greene Metro Hous. Auth.*, No. 2000-CV-0544 (Ohio C.P., Greene Cty., Jan. 25, 2001) (reversed denial of HCVP admission; hearing officer

⁴⁰⁸ The Westlaw publication of this decision incorrectly states the date of the decision as June 24, 2009.

secured information after the hearing and relied on it, in violation of due process).

7. Ohio Rules of Civil Procedure, Applicability

An R.C. Chapter 2506 appeal is a special statutory proceeding under Civil Rule 1(C)(7). *Quick v. Wolfe*, No. 81AP-561, 1981 WL 3422 (Ohio App., 10th Dist., Aug. 20, 1981). Therefore, “each rule must be considered independently to determine its applicability. *Id.*, 1981 WL 3422, at *1.

Court decisions on the applicability of a Civil Rule to R.C. Chapter 2506 proceedings include the following decisions.

Civil Rules 4 to 4.6: Not Applicable

Jacobs v. Cuyahoga Metro. Hous. Auth., No. 102248, 2015 WL 3647561 (Ohio App., 8th Dist., June 11, 2015).

Civil Rule 41(B)(1): Applicable

Parker v. Lake Metro. Hous. Auth., No. 2012-L-054, 2012 WL 5995062 (Ohio App., 11th Dist., Dec. 3, 2012).

Civil Rule 52: Applicable, with limitation per *Jandecka*

Jandecka v. Petre, No. 46623, 1983 WL 2695 (Ohio App., 8th Dist., Oct. 27, 1983) (applicable, if the court takes new evidence, or makes new findings from the administrative record, or accepts the administrative findings; not applicable, “if the court simply reviews the administrative record, and bases its decision on the legal conclusions”).

Civil Rule 59: Applicable

Quick v. Wolfe, No. 81AP-561, 1981 WL 3422 (Ohio App., 10th Dist., Aug. 20, 1981)

8. Summary of HCVP Court Decisions, R.C. Chapter 2506 Appeals

a. PHA Termination Decision Reversed, Substantive Grounds

Austin v. Cuyahoga Metro. Hous. Auth., No. 107247, 2019 WL 856776 (Ohio App., 8th Dist., Feb. 21, 2019)

PHA termination for failing to report timely (reported fifty days late) a change in household composition (move-out of two adult children). “At the time in question, Austin was a single mother in the late stages of pregnancy, who then gave birth by

cesarean section. She had two other minor children residing with her and two older children that she was trying to remove from the lease because they were not following household rules. Austin was in and out of the hospital and the birth of the baby left her medically incapacitated during the time CMHA alleged she failed to report the change in household circumstances.” *Austin*, ¶ 39. The trial court reversed the PHA termination decision on the ground that it was unreasonable, and the court of appeals affirmed the trial court judgment.

McClarty v. Greene Metro. Hous. Auth., No. 2011-CA-30, 2011 WL 3890295 (Ohio App., 2nd Dist., Sept. 2, 2011)

PHA termination for failing to report child-support income. Court of appeals held fraud is a required element of this ground. It found participant did not commit fraud, because her failure to report the start of child-support income was an unintentional mistake – she thought that she or ODJFS had reported it.

Smith v. Hamilton County, Ohio, No. C-060315, 2007 WL 1095680 (Ohio App., 1st Dist., Apr. 13, 2007)

PHA termination for continuing to list sons as household members, after temporarily losing custody of them. Court of appeals held fraud is an element of this ground. It found participant did not commit fraud, because her continued listing of her sons as household members was an unintentional mistake – she thought that she was required to list them because of their visits.

Holman v. Cuyahoga Metro. Hous. Auth., No. 81475, 2002 WL 31771307 (Ohio App., 8th Dist., Dec. 12, 2002)

PHA termination for absence of HAP payments for six months, applying 24 C.F.R. § 982.455. Court reversed PHA decision because evidence showed HAP payments made, not absence of HAP payments, during the relevant six months.

Chalk v. Stark Metro. Hous. Auth., No. 2018-CV-00693 (Ohio C.P., Stark Cty., Jan. 31, 2019)

PHA termination for unauthorized occupant. Court found that the PHA did not establish that the alleged unauthorized occupant stayed at the premises for more than fifteen consecutive days or for more than ninety cumulative days in a twelve-month period. Therefore, under the relevant PHA definition, the PHA did not establish an unauthorized occupancy. In reaching its findings, the court found unpersuasive the PHA’s reliance on the delivery of mail to the premises to the alleged unauthorized occupant, given the participant’s testimony on her unsuccessful efforts to stop those deliveries.

Coleman v. Mansfield Metro. Hous. Auth., No. 2011-CV-1071H (Ohio C.P., Richland Cty., July 10, 2012)

PHA termination for drug-related criminal activity. Court reversed the PHA decision on two grounds. First, the participant's conduct – one-time use of marijuana – did not rise to the level of criminal activity because, under Ohio law, it could have led only to a minor misdemeanor charge, for which a conviction would not constitute a criminal record. Second, the termination decision is unreasonable – which is an R.C. 2506.04 ground for reversing the decision – based on five mitigating factors: one-time drug-use; occurred off the premises; no evidence of ongoing drug-use; model tenant and neighbor; and termination would deny the family the ability to secure safe, reliable housing.

Johnson v. Akron Metro. Hous. Auth., No. 2010-08-5472 (Ohio C.P., Summit Cty., Feb. 23, 2011)

PHA termination for unauthorized occupant. Court held residency means a permanent, fixed location with specific intent to stay, and not mere physical presence in the unit for any period of time during the day (as PHA argued). Even under PHA's mere physical presence standard, PHA failed to prove violation of PHA's guest limitation, four consecutive days or 15 days per 12 months.

Robertson v. Cuyahoga Metro. Hous. Auth., No. CV-07-635765 (Ohio C.P., Cuyahoga Cty., Aug. 31, 2010)

PHA termination for listing children, who did not reside in the unit but visited, as household members. According to participant's brief: she did not commit fraud; she listed her children as household members because the larger accommodation was required by the terms of her reunification plan with the County; and PHA knew or should have known of her children's residency via recertification information. Court decision simply states that the PHA decision was illegal, arbitrary, and unsupported by the preponderance of the evidence.

Gooden v. Cincinnati Metro. Hous. Auth., No. A-0710779 (Ohio C.P., Hamilton Cty., July 25, 2008, and Aug. 29, 2008)

PHA termination for unauthorized occupant. Court held PHA failed to meet its burden of proof. PHA's evidence was unreliable and not credible hearsay – court documents in a criminal domestic violence proceeding. Participant presented competent, credible evidence that the guest did not reside there.

Hammond v. Cleveland Metro. Hous. Auth., No. CV-07-616036 (Ohio C.P., Cuyahoga Cty., June 26, 2008)

PHA termination for unauthorized occupant and side rental payments. Court held the PHA decision was unsupported by a preponderance of substantial, reliable, and

probative evidence. Evidence on unauthorized occupant claim: (1) “mailings consist of junk mail addressed to [ex-husband], and not important mail such as utility statements, bank statements, or credit card statements;” and (2) participant’s direct testimony that her ex-husband, and other men (uncles, brothers, boyfriend), spent time at the unit, but none stayed overnight. Evidence on side rental payments claim: (1) three months of rent receipts that do not show participant was responsible for making the payments; (2) evidence of hostility between former landlord and participant; and (3) absence of testimony by former landlord.

Jones v. Cincinnati Metro. Hous. Auth., No. A-0709492 (Ohio C.P., Hamilton Cty., Apr. 15, 2008)

PHA termination for violent criminal activity (robbery). Court held the PHA decision violated HUD regulations because, under 24 C.F.R. § 982.551(l), violent criminal activity is grounds to terminate participation only if it occurs in the immediate vicinity of the rental unit. Court found that 2/3 of a mile – distance between the unit and the site of the criminal activity – did not meet the immediate vicinity test.

May v. Cuyahoga Metro. Hous. Auth., No. CV-07-632536 (Ohio C.P., Cuyahoga Cty., Nov. 2, 2007)

PHA termination for listing children, who did not reside in the unit but visited, as household members. Court held the PHA decision was arbitrary, unreasonable and capricious, because PHA failed to demonstrate participant committed fraud and PHA failed to consider relevant mitigating circumstances.

Young v. Cuyahoga Metro. Hous. Auth., No. CV-06-593687 (Ohio C.P., Cuyahoga Cty., Mar. 7, 2007)

PHA termination for two-fold reason: for vacating the rental unit for an extended period (two months), and for vacating the rental unit without notifying the PHA. Participant vacated the rental unit due to a threat of domestic violence. Upon returning to the unit after two months, she found the locks changed and her belongings missing. She then informed the PHA of her two-month absence and the reason for it. Court rejected the PHA’s argument that the termination was not due to the threat of domestic violence, but rather the extended absence without notifying PHA. Court held that “Ms. Young submitted sufficient evidence to show that she was a victim of domestic violence and subject to the protections provided under the Violence Against Women’s Act.”

Boone v. Cuyahoga Metro. Hous. Auth., No. CV-06-587744 (Ohio C.P., Cuyahoga Cty., Feb. 2, 2007)

PHA termination for causing injury to PHA employee. According to Appellant’s Proposed Journal Entry: after a PHA inspector left the rental unit, participant closed the door to the unit; unknown to participant, the inspector was also closing the door

from the outside; this caused the inspector's finger to be scraped; and participant apologized. Court held this incident did not warrant a termination of the family's participation in the HCVP.

Mihaly v. Akron Metro. Hous. Auth., No. CV-2005-11-6946 (Ohio C.P., Summit Cty., Dec. 14, 2006)

PHA termination for drug-related criminal activity. Participant arrested for drug-related activity, when on the HCVP waiting list. She pled guilty to the drug-related criminal activity after she had been issued a voucher, but before commencement of her initial HCVP tenancy. Applying HUD regulations, court held that, at the time of her arrest and conviction, she was not a HCVP participant and, therefore, the PHA cannot terminate her participation in the HCVP for those activities.

Rodriguez v. Lorain Metro. Hous. Auth., No. 05-CV-140942 (Ohio C.P., Lorain Cty., Oct. 23, 2006)

PHA termination for violent criminal activity that occurred in front of participant's rental unit. Issue whether perpetrator of the crime was a member of participant's household. PHA's evidence: two newspaper articles; a police report; and a court docket in an old criminal proceeding. Participant's evidence: family's direct testimony and perpetrator's parole release address. Court found the newspaper articles unreliable hearsay, the police report established only the site of the crime, and the court docket not probative. Court held the PHA decision was unreasonable and not supported by reliable, substantial and probative evidence.

Blackmond v. Cuyahoga Metro. Hous. Auth., No. CV-541895 (Ohio C.P., Cuyahoga Cty., Oct. 21, 2004)

PHA termination for serious lease violation. PHA terminated the HAP contract for landlord's HQS violations and thereafter landlord secured eviction judgment against participant. PHA relied solely on the eviction judgment, which did not contain any factual findings. Court held the eviction judgment alone did not establish a serious lease violation and, therefore, the PHA decision was capricious, arbitrary, and unreasonable.

Chambers v. Stark Metro. Hous. Auth., No. 1997-CV-02490 (Ohio C.P., Stark Cty., Aug. 3, 1998)

PHA termination for violent criminal activity. Court held PHA's evidence of violent criminal activity – arrest for which grand jury issued “no-bill” – was insufficient.

Robertson v. Mansfield Metro. Hous. Auth., No. 87-426-C (Ohio C.P., Richland Cty., Mar. 28, 1989)

PHA termination for failing to report a change in household composition. Court found family reported the change in household composition at its next annual recertification,

and PHA failed to present any evidence that the PHA required or requested an earlier reporting of it.

Tapley v. Akron Metro. Hous. Auth., No. CV88-4-1215 (Ohio C.P., Summit Cty., Sept. 30, 1988)

PHA termination for unauthorized occupant. Court found PHA did not present any evidence of an unauthorized occupant.

b. PHA Termination Decision Reversed, Procedural Grounds

Lyons v. Tuscarawas Metro. Hous. Auth., No. 2007-AP-080051, 2009 WL 2781802 (Ohio App., 5th Dist., June 24, 2008)⁴⁰⁹

PHA hearing officer secured evidence after the hearing and relied on the post-hearing evidence in the hearing decision. In addition, the PHA failed to make available to the participant exculpatory evidence.

McAlister v. Akron Metro. Hous. Auth., No. CV-2007-08-5813 (Ohio C.P., Summit Cty., Apr. 14, 2008)

PHA termination for illegal drug activity, based on participant's guilty plea to charges of cocaine, marijuana and obstructing justice. Participant contends she pled guilty in order to enter a felony drug court program. Court held the guilty plea is not dispositive of the issue, and participant is "entitled to present evidence of the circumstances surrounding the guilty plea and then the Hearing Officer can determine as to whether there is a preponderance of the evidence that the household member engaged in the activity." Court remanded the case for these purposes.

Skipper v. Akron Metro. Hous. Auth., No. CV-2007-07-5114 (Ohio C.P., Summit Cty., Dec. 27, 2007)

The ground for termination in the PHA notice was participant's failure to appear (and furnish requested information) at 2007 annual re-exam. The ground for termination in the PHA decision was the failure to appear at the 2007 annual re-examination "is a repeat pattern from the 2006 reexamination appointment." Court held that, in relying on the failure to attend 2006 re-exam and "the repeat pattern," the PHA decision was based on grounds not stated in the PHA notice and, therefore, violated due process.

⁴⁰⁹ See note 408, above.

c. PHA Termination Decision Upheld, Substantive Grounds

King v. Akron Metro. Hous. Auth., No. 25664, 2011 WL 2420232 (Ohio App., 9th Dist., June 15, 2011)

Court of appeals affirmed trial court's decision that upheld PHA termination for unauthorized occupant, based on evidence that included: admission of guest at the hearing that he stayed two nights per week; and admission of guest to the police that he "lived at her apartment, kept clothing there, and received his mail there."

Hammond v. Akron Metro. Hous. Auth., No. 25425, 2011 WL 2175801 (Ohio App., 9th Dist., June 1, 2011)

Court of appeals affirmed trial court's decision that upheld PHA termination for unauthorized occupant, based on evidence that included: complaint of guest's mother that he lived there; admission of participant that guest stayed overnight one or two nights per week, for several months; and guest's receipt of mail there.

Miller v. Lake Metro. Hous. Auth., No. 11-CV-000613 (Ohio C.P., Lake Cty., Nov. 17, 2011)

Court upheld PHA termination for unauthorized occupant, based on the admission of guest that he stayed up to three nights per week, which resulted in violation of PHA's guest limitation, 90 days per 12 months.

9. Federal Court Action

A HCVP participant may be entitled to contest the PHA termination decision by filing an action in federal court, under 42 U.S.C. § 1983, alleging a violation of applicable federal statutes and regulations (and, if applicable, due process).

The participant may elect to file the federal court action instead of, or in addition to, the R.C. Chapter 2506 appeal.

However, if the participant files an R.C. Chapter 2506 appeal in state court and a § 1983 action in federal court, under the doctrine of collateral estoppel, the state court may decide the federal court's liability issue. If entered first, the state court's R.C. Chapter 2506 decision, relative to the PHA's alleged noncompliance with federal law, may be binding on the federal court action. *See Osborn v. Ashland County Bd. of Alcohol, Etc.*, 979 F.2d 1131 (6th Cir. 1992) (state court ruling on due process claims in R.C. Chapter 2506 appeal precluded federal court action on those claims). *See also Copeland v. Hous. Auth. of Hollywood*, 300 Fed. App'x 843, 2008 WL 4997184 (11th Cir. 2008) (res judicata effect of state court judgment).

If the participant failed to perfect timely (*i.e.*, within the 30-day period)⁴¹⁰ an R.C. Chapter 2506 appeal, the federal court action may be the participant's only avenue for appeal. In Ohio, the statute of limitations for the § 1983 action is two years. *Browning v. Pendleton*, 869 F.2d 989, 992 (6th Cir. 1989) (en banc).

In the federal court action, "[t]he level of deference shown to the factfindings of a hearing officer is not absolute but it is significant." *Clark v. Alexander*, 85 F.3d 146, 151 (4th Cir. 1996). *Accord Gammons v. Mass. Dep't of Hous. & Com. Dev.*, 502 F. Supp.2d 161 (D. Mass. 2007); *Litsey v. Hous. Auth. of Bardstown*, No. 3:99CV-114-H, 1999 WL 33604017 (W.D. Ky. Apr. 1, 1999). "[T]he reviewing court must be satisfied that the hearing officer's conclusions are supported by substantial evidence." *Clark*, 85 F.3d at 152. *See also Ellis v. Ritchie*, 803 F. Supp. 1097, 1101 (E.D. Va. 1992) (court determines whether "a rational basis exists for the agency's decision").

⁴¹⁰ For a discussion on the 30-day period for perfecting an R.C. Chapter 2506 appeal, see Section XXIV.C.2.b, above.

Table of Cases

<i>16 Apts. Assocs., Inc. v. Lewis</i> , 24 Misc.3d 127A, 889 N.Y.S.2d 884 (N.Y. App. Div. 2009)	16
<i>28 Mott St. Co. v. Summit Import Corp.</i> , 64 Misc.2d 860, 316 N.Y.S.2d 259 (Civ. Ct. 1970)	12
<i>128 Fleek Newark LLC v. Hassett</i> , No. 20-CVG-02022 (Ohio Mun., Licking Cty., Oct. 21, 2020)	13
<i>200 W. Apts. v. Foreman</i> , No. 66107, 1994 WL 505271 (Ohio App., 8th Dist., Sept. 15, 1994)	356,523,599
<i>217 Williams, LLC v. Worthen</i> , No. C-180101, 2019 WL 2613331 (Ohio App., 1st Dist., June 26, 2019)	107
<i>1994-N1 Ohio Assocs., L.P. v. Planet Earth Entm't, Inc.</i> , No. 15338, 1995 WL 738416 (Ohio App., 2nd Dist., Dec. 15, 1995)	20,126,127
<i>3637 Green Road Co., Ltd. v. Specialized Component Sales Co., Inc.</i> , 69 N.E.3d 1083, 2016-Ohio-5342 (Ohio App., 8th Dist., 2016)	514,515,599
<i>9900 Timbers Dr. Inv. LLC v. Li</i> , No. C-190224, 2020 WL 1870257 (Ohio App., 1st Dist., Apr. 15, 2020)	595

A

<i>A & J Homes, Inc. v. Green</i> , No. 101416, 2015 WL 1511020 (Ohio App., 8th Dist., Apr. 2, 2015)	630,632,633
<i>ABC Mgmt. Co. v. Gamble</i> , No. 83AP-788, 1983 Ohio App. LEXIS 16070 (Ohio App., 10th Dist., Dec. 15, 1983)	23,214,254
<i>ABC Mgmt. Co. v. Vinson</i> , No. M8901-CVG-000935 (Ohio Mun., Franklin Cty., Mar. 8, 1989)	204
<i>ABC Mgmt. Co. v. Williams</i> , No. M86-CVG-34323 (Ohio Mun., Franklin Cty., Nov. 19, 1986)	233,257
<i>ABC Mgmt. Co. v. Young</i> , No. M9410-CVG-030140 (Ohio Mun., Franklin Cty., Nov. 9, 1994)	184,358
<i>ACME Precision Bldg., Ltd. v. Dayton Forging & Heat Treating, Inc.</i> , 23 B.R. 79 (Bankr. S.D. Ohio 1982)	175
<i>A.C.S. Realty & Inv. Corp. v. Smith</i> , No. 48664, 1985 WL 9025 (Ohio App., 8th Dist., May 23, 1985)	402
<i>AKP Props., LLC v. Rutledge</i> , No. 2018-CA-00058, 2018 WL 6822573 (Ohio App., 5th Dist., Dec. 21, 2018)	114,117

<i>AMCA Int'l Corp. v. Carlton</i> , 10 Ohio St.3d 88, 461 N.E.2d 1282 (1984)	526
<i>ATKM Mgmt. Group LLC v. Talley</i> , No. 2018-CVG-018737 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 2019)	264,357,409
<i>AVB Props., LLC v. Chesler</i> , No. 05-CA-008702, 2006 WL 2390243 (Ohio App., 9th Dist., Aug. 21, 2006)	113,115
<i>Aban v. Schaeffer</i> , 185 Ohio App.3d 250, 923 N.E.2d 1168 (5th Dist. 2009)	92
<i>Abbott v. Haight Props., Inc.</i> , No. L-98-1413, 2000 WL 491731 (Ohio App., 6th Dist., Apr. 28, 2000)	437
<i>Abner v. Day</i> , No. CA92-09-173, 1993 WL 172347 (Ohio App., 12th Dist., May 24, 1993)	430
<i>Acad. Spires, Inc. v. Brown</i> , 111 N.J. Super. 477, 268 A.2d 556 (1970)	156
<i>Ackerman v. Tri-City Geriatric & Health Care, Inc.</i> , 55 Ohio St.2d 51, 378 N.E.2d 145 (1978)	457
<i>Adair v. Landis Props., Inc.</i> , No. 08AP-139, 2008 WL 4174130 (Ohio App., 10th Dist., Sept. 11, 2008)	370,371,374
<i>Adams v. Davenport</i> , No. 2005-CA-108, 2006 WL 2578852 (Ohio App., 2nd Dist., Sept. 8, 2006)	497,524
<i>Adams v. Relmax</i> , 111 N.E.3d 758, 2018-Ohio-1751 (Ohio App., 8th Dist., 2018)	511,514,516
<i>Adams Robinson Enters. v. Envirologix Corp.</i> , 111 Ohio App.3d 426, 676 N.E.2d 560 (2nd Dist. 1996)	70,72
<i>Adams v. Romine</i> , 130 N.E.3d 1050, 2019-Ohio-482 (Ohio App., 5th Dist., 2019)	53,55
<i>Adcock v. Rollins Protective Servs. Co.</i> , 1 Ohio App.3d 160, 440 N.E.2d 548 (1st Dist. 1981)	535
<i>Addair v. Mitchell</i> , No. 03-CA-19, 2003 WL 22951899 (Ohio App., 5th Dist., Dec. 15, 2003)	641,642
<i>Adedapo v. Brown</i> , No. 2020-CVG-22643 (Ohio Mun., Franklin Cty., Oct. 2, 2020)	216,218
<i>Adlaka v. Quaranta</i> , No. 09-MA-134, 2010 WL 5550656 (Ohio App., 7th Dist., Dec. 16, 2010)	186,187
<i>Adm'r of Veterans Affairs v. Jackson</i> , 41 Ohio App.3d 274, 535 N.E.2d 369 (9th Dist. 1987)	15,16,19,58,63, 296
<i>Aetna Cas. & Surety Co. v. Neff</i> , 30 F. Supp.2d 990 (S.D. Ohio 1998)	340,343

<i>Agler Green Coop. v. Frost</i> , No. M88-CVG-13272 (Ohio Mun., Franklin Cty., May 20, 1988)	229
<i>Agler Green Coop. v. Rivers</i> , No. 87AP-915, 1988 WL 37063 (Ohio App., 10th Dist., Mar. 29, 1988)	101,102,238
<i>Agler Green Coop. v. Rivers</i> , No. 87AP-915, 1987 WL 31282 (Ohio App., 10th Dist., Dec. 23, 1987)	116
<i>Aircraft Specialty Co. v. Ctr. Woodland Realty Co.</i> , 40 Ohio App. 125, 178 N.E.2d 213 (8th Dist. 1931)	598
<i>Akron First Seventh Day Adventist Church v. Smith</i> , No. 11577 1984 WL 3956 (Ohio App., 9th Dist., Sept. 27, 1984)	631,635,638
<i>Akron Metro. Hous. Auth. v. Ellis</i> , No. 92-CVG-1392 (Ohio Mun., Akron, Mar. 3, 1992)	205
<i>Akron Metro. Hous. Auth. v. Hammonds</i> , No. 92-CVG-803 (Ohio Mun., Akron, Oct. 20, 1992)	205
<i>Akron Metro. Hous. Auth. v. Harris</i> , No. 92-CVG-3133 (Ohio Mun., Cuyahoga Falls, May 12, 1993)	238
<i>Akron Metro. Hous. Auth. v. Jacobs</i> , No. 20671, 2002 WL 432035 (Ohio App., 9th Dist., Mar. 20, 2002)	90
<i>Akron Metro. Hous. Auth. v. Jones</i> , No. 94-CVG-10415 (Ohio Mun., Akron, Jan. 19, 1995)	243
<i>Akron Metro. Hous. Auth. v. Konich</i> , No. 17177, 1995 WL 553250 (Ohio App., 9th Dist., Sept. 20, 1995)	87
<i>Akron Metro. Hous. Auth. v. Mayson</i> , No. 97-CVG-1293 (Ohio Mun., Cuyahoga Falls, May 5, 1998)	30,184
<i>Akron Metro. Hous. Auth. v. Mayson</i> , No. 97-CVG-1293 (Ohio Mun., Cuyahoga Falls, Sept. 8 and 29, 1997, and Mar. 19, 1998)	30
<i>Akron Metro. Hous. Auth. v. Mitchell</i> , No. 91-CVG-840 (Ohio Mun., Cuyahoga Falls, June 4, 1991)	103
<i>Akron Metro. Hous. Auth. v. Myers</i> , 30 Ohio App.3d 100, 506 N.E.2d 933 (9th Dist. 1986)	216
<i>Akron Metro. Hous. Auth. v. Rice</i> , No. 88-CV-04013 (Ohio Mun., Akron, June 22, 1988)	245
<i>Akron Metro. Hous. Auth. v. Sanders</i> , No. 02-CVG-2692 (Ohio Mun., Akron, July 12, 2002)	197

<i>Akron Metro. Hous. Auth. v. Sistrunk</i> , No. 12253, 1986 WL 2214 (Ohio App., 9th Dist., Feb. 12, 1986)	32,340
<i>Akron Metro. Hous. Auth. v. Thompson</i> , No. 14428, 1990 WL 106217 (Ohio App., 9th Dist., July 25, 1990)	8,46,48
<i>Akron Metro. Hous. Auth. v. Wheeler</i> , No. 16973, 1995 WL 338538 (Ohio App., 9th Dist., June 7, 1995)	243
<i>Akron Metro. Hous. Auth. v. Wilkinson</i> , No. 2001-CVG-110 (Ohio Mun., Akron, April 25, 2001)	225
<i>Alba v. Lockhart</i> , No. 94-CVI-140 (Ohio County Ct., Jefferson Cty., Mar. 15, 1995)	520
<i>Albert v. Showe Mgmt. Corp.</i> , Nos. 99-CA-00016,00007, 1999 WL 547883 (Ohio App., 5th Dist., July 22, 1999)	430
<i>Albregt v. Chen</i> , 17 Ohio App.3d 79, 477 N.E.2d 1150 (6th Dist. 1983)	510
<i>Alcoroso v. Correll</i> , 159 N.E.3d 924, 2020-Ohio-4752 (Ohio App., 8th Dist., 2020)	502,503,544
<i>Alcorso v. Correll</i> , No. 110218, 2021 WL 4317396 (Ohio App., 8th Dist., Sept. 23, 2021)	504,505,542, 547,550,555,556
<i>Aldridge v. Englewood Vill., Ltd.</i> , No. 10251, 1987 WL 15015 (Ohio App., 2nd Dist., July 22, 1987)	317,319
<i>Alex-Bell Oxford Ltd. P'ship v. Woods</i> , No. 16038, 1998 WL 289028 (Ohio App., 2nd Dist., June 5, 1998)	6,67,115,187
<i>Alexander v. Buckeye Pipe Line Co.</i> , 53 Ohio St.2d 241, 374 N.E.2d 146 (1997)	310
<i>Alexander v. LJF Mgmt. Inc.</i> , No. C-100618, 2011 WL 2112623 (Ohio App., 1st Dist., May 27, 2011)	504,549
<i>Alicia Holding LLC v. Cutri</i> , No. 08-CVG-00531 (Ohio Mun., Steubenville, July 24, 2008)	252
<i>All Seasons Mobile Home Park v. Tymico</i> , No. 96-P-0201, 1996 WL 761225 (Ohio App., 11th Dist., Dec. 31, 1996)	589
<i>Allegheny County Hous. Auth. v. Hibbler</i> , 748 A.2d 786 (Pa. Commw. 2000)	244
<i>Allegheny County Hous. Auth. v. Liddell</i> , 722 A.2d 750 (Pa. Commw. 1998).	244
<i>Allen v. Lee</i> , 43 Ohio App.3d 31, 538 N.E.2d 1073 (8th Dist. 1987)	418,419,440, 441,450,451

<i>Allen v. R.G. Indus. Supply</i> , 66 Ohio St.3d 229, 611 N.E.2d 794 (1993)	148
<i>Alliance Group, Inc. v. Rosenfield</i> , 115 Ohio App.3d 380, 685 N.E.2d 570 (1st Dist. 1996)	192
<i>Allman v. Simmers</i> , No. 1999-AP-030014, 1999 WL 1072200 (Ohio App., 5th Dist., Nov. 16, 1999)	108
<i>Allman v. Thorne</i> , No. 2006-CVI-000629 (Ohio Mun., Franklin Cty., Aug. 10, 2006)	360,523
<i>Allstate Ins. Co. v. Dorsey</i> , 46 Ohio App.3d 66, N.E.2d 920 (9th Dist. 1988)	239,338,343,380
<i>Allstate Ins. Co. v. Henry</i> , No. CA2006-07-168, 2007 WL 1531494 (Ohio App., 12th Dist., May 29, 2007)	427
<i>Alpha Phi Alpha Home, Inc. v. Marshall</i> , No. 96-CA-200, 1999 WL 148365 (Ohio App., 7th Dist., Mar. 4, 1999)	110
<i>Alpha Phi Alpha Homes, Inc. v. Smith</i> , No. 2001-CVG- 2773 (Ohio Mun., Akron, June 12, 2001)	202,203
<i>Alter v. Tucker Lake of the Woods of Farmersville, Inc.</i> , No. 04-CV-00259, 2004 WL 5255401 (Ohio C.P., Montgomery Cty., Oct. 8, 2004)	303
<i>Altman v. Kardous Bayard Props.</i> , No. C-200406, 2021 WL 4269933 (Ohio App., 1st Dist., Sept. 15, 2021)	310
<i>Alwood Enters. v. Vance</i> , No. 87-CVG-32 (Ohio Mun., Hillsboro, Oct. 21, 1987)	189
<i>Alyeska Pipeline Serv. Co. v. Wilderness Soc'y</i> , 421 U.S. 240 (1975)	542
<i>Amba Invs., LLC v. Clark</i> , No. CA2021-02-016, 2022 WL 94540 (Ohio App., 12th Dist., Jan. 10, 2022)	501
<i>Ambrosia Coal & Constr. Co. v. C.B.G., Inc.</i> , No. 94-CA-199, 64 WL 242915 (Ohio App., 7th Dist., May 9, 1996)	67,176
<i>Am. Aggregates Corp. v. Clayton Twp., Ohio Appeals Bd.</i> , No. 16311, WL 282334 (Ohio App., 2nd Dist., May 30, 1997)	656
<i>Am. Hous. Foundation v. Bridge</i> , No. 02-CVG-01157 (Ohio Mun., Middletown, June 20, 2002)	261
<i>Am. Nat'l Bank & Trust Co. v. Dominick</i> , 154 Ill. App.3d 275, 507 N.E.2d 512 (1987)	231
<i>Am. Prop. Servs. v. Henshaw</i> , No. 03-CVG-02766 (Ohio Mun., Fairfield Cty., Dec. 22, 2003)	128

<i>Am. Servicing Corp. v. Wannemacher</i> , 19 N.E.3d 566, 2014-Ohio-3984 (Ohio App., 3d Dist., 2014)	630,632,633,643
<i>Amherst Vill. Mgmt. v. Bock</i> , No. 99-CVG-00259 (Ohio Mun., Bowling Green, Mar. 30, 1999)	228
<i>Amherst Vill. Mgmt. v. Vestal</i> , No. WD-99-075, 2000 WL 1595719 (Ohio App., 6th Dist., Oct. 27, 2000)	47,50,228
<i>Amherst Vill. Mgmt. v. Vestal</i> , No. 99-CVG-00936 (Ohio Mun., Bowling Green, Oct. 19, 1999)	50
<i>Amherst Vill. Mgmt. v. Vestal</i> , No. 99-CVG-00936 (Ohio Mun., Bowling Green, Sept. 29, 1999)	50
<i>Amherst Vill. Mgmt. Co. v. Martinez</i> , No. 97-CVG-00620 (Ohio Mun., Bowling Green, July 15, 1997)	231
<i>Amick v. Sickles</i> , 177 Ohio App.3d 337, 894 N.E.2d 733 (4th Dist. 2008)	21,76,297,346, 347,597
<i>Amick v. Sickels</i> , No. 2006-CVG-01277 (Ohio Mun., Athens Cty., Feb. 12, 2007)	76
<i>Amjoy Co. v. Braggs</i> , No. 64708, 1994 WL 43886 (Ohio App., 8th Dist., Feb. 10, 1994)	541
<i>Amon v. Keagy</i> , No. 2008-T-0033, 2009 WL 2356831 (Ohio App., 11th Dist., July 31, 2009)	497
<i>Anast v. Commonwealth Apts.</i> , 956 F. Supp. 792 (N.D. Ill 1997)	170
<i>Anderle v. Ideal Mobile Home Park, Inc.</i> , 114 Ohio App.3d 385, 683 N.E.2d 348 (8th Dist. 1996)	573,612
<i>Anderle v. Ideal Mobile Home Park, Inc.</i> , 101 Ohio App.3d 122, 655 N.E.2d 203 (8th Dist. 1995)	563,578
<i>Anderson v. Ballard</i> , No. L-10-1007, 2010 WL 3292685 (Ohio App., 6th Dist., Aug. 20, 2010)	291,292,313, 359,373,379,633
<i>Anderson v. Ceccardi</i> , 6 Ohio St.3d 110, 451 N.E.2d 780 (1983)	440,444
<i>Anderson v. Champer</i> , No. 99-CVG-00424 (Ohio Mun., Marion, May 13, 1999)	47
<i>Anderson v. City of Massillon</i> , 134 Ohio St.3d 380, 983 N.E.2d 266 (2012)	619
<i>Anderson v. MRW II Prop.</i> , No. RE 541 (Ohio Mun., Hamilton Cty., Jan. 9, 1990)	387

<i>Andrews Place Assoc. v. Loeb sack</i> , No. 84-CVG-1222 (Ohio Mun., Mentor, Jan. 3, 1985)	365
<i>Andrews Sch. v. Brown</i> , No. 11-040, 1986 WL 3204 (Ohio App., 11th Dist., Mar. 14, 1986)	123,351
<i>Andrews Sch. v. Brown</i> , No. 10-109, 1984 WL 7259 (Ohio App., 11th Dist., Sept. 21, 1984)	17
<i>Andrus v. Dunbar</i> , 178 Vt. 554, 878 A.2d 245 (2005)	12
<i>Angelo v. Parker</i> , No. 13140, 1987 WL 25776 (Ohio App., 9th Dist., Nov. 25, 1987)	370,375,518
<i>Ankney v. Dame</i> , No. L-76-307, 1977 Ohio App. LEXIS 10154 (Ohio App., 6th Dist., Apr. 29, 1977)	510
<i>Anna Holdings, LLC v. McClanahan</i> , No. 148 N.E.3d 1255, 2019-Ohio-4697 (Ohio App., 2nd Dist., 2019)	645
<i>Apt. Mgmt., Inc. v. Woods</i> , No. 05-CVG-650 (Ohio Mun., Lorain, June 1, 2005)	13,37,220
<i>Apel v. Wolf</i> , No. CVG-960027, 1996 WL 740085 (Ohio Mun., Newton Falls, Sept. 10, 1996)	581
<i>Applecrest Vill. Ltd. P'ship v. Yaple</i> , No. 01-CA-185, 2003 WL 346301 (Ohio App., 7th Dist., Feb. 11, 2003)	519,520
<i>Arlington Natural Gas Co. v. Martens</i> , 173 Ohio App.3d 450, 878 N.E.2d 1088 (3rd Dist. 2007)	64
<i>Arlington Square ABC Mgmt. v. Clevenger</i> , No. 88-CA-004447, 1989 WL 52620 (Ohio App., 9th Dist., May 17, 1989)	22,214
<i>Armstrong Stationary Co. v. FGM Props., Inc.</i> , No. C-830914 1984 WL 7016 (Ohio App., 1st Dist., Oct. 24, 1984)	479
<i>Army v. Dunlap</i> , 101 N.E.3d 1085, 2017-Ohio-9084 (Ohio App., 3rd Dist., 2017)	631
<i>Arndt v. P & M Ltd.</i> , No. 2013-P-0027, 2014 WL 3420450 (Ohio App., 11th Dist., July 14, 2014)	576
<i>Arndt v. P & M Ltd.</i> , Nos. 2007-P-0038,0039, 2008 WL 2042831 (Ohio App., 11th Dist., May 9, 2008)	575,591
<i>Arndt v. P & M Ltd.</i> , 163 Ohio App.3d 179, 837 N.E.2d 398 (11th Dist. 2005)	422,572
<i>Arnett v. Bardono</i> , No. 25371, 2013 WL 1189009 (Ohio App., 2nd Dist., Mar. 22, 2013)	647

<i>Arnett v. Mong</i> , 65 N.E.3d 72, 2016-Ohio-2893 (Ohio App., 12th Dist., 2016)	318,439,444
<i>Arrieta v. Mahon</i> , 31 Cal.3d 381, 182 Cal. Rptr. 770 (1982)	96
<i>Art Paradise, Inc. v. Washington</i> , No. 29230, 2021 WL 6136347 (Ohio App., 2nd Dist., Dec. 29, 2021)	113
<i>Asbury Apts. v. Hibbler</i> , No. 13932, 1994 WL 579845 (Ohio App., 2nd Dist., Oct. 19, 1994)	261
<i>Ash v. City of Clarksville</i> , No. 3:03-0380, 2004 WL 5913273 (M.D. Tenn. Sept. 3, 2004)	367
<i>Ashley Court Enters. v. Whittaker</i> , 249 N.J. Super. 552, 592 A.2d 1228 (1991)	365
<i>Ashmore v. Eversole</i> , No. 15672, 1996 WL 685568 (Ohio App., 2nd Dist., Nov. 29, 1996)	185
<i>Aspen Green/WODA v. Howard</i> , No. 04-CVG-00467 (Ohio Mun., Cambridge, Sept. 30, 2004)	220
<i>Asset Acquisitions Group, L.L.C. v. Gettis</i> , 186 Ohio App.3d 586, 929 N.E.2d 506 (2nd Dist. 2010)	39
<i>Associated Estates Corp. v. Bartell</i> , 24 Ohio App.3d 6, 492 N.E.2d 841 (8th Dist. 1985)	10,12,81,122, 126,132,202, 206,207,210, 213,254,350,353
<i>Associated Estates Corp. v. Lockhart</i> , No. 87-G-2605 (Ohio Mun., Cuyahoga Falls, Mar. 4, 1988)	213
<i>Associated Estates Corp. v. Smith</i> , No. 46054, 1984 WL 5227 (Ohio App., 8th Dist., Oct. 4, 1984)	142,350
<i>Associated Estates Realty Corp. v. Samsa</i> , No. 84297, 2004 WL 2847838 (Ohio App., 8th Dist., Dec. 9, 2004)	165
<i>Atlantic Mortgage & Inv. Corp. v. Pervis</i> , No. SPNH-970651076, 1997 WL 866672 (Conn. Super. Dec. 3, 1997)	268
<i>Atram v. Star Tool & Die Co.</i> , 64 Ohio App.3d 388, 581 N.E.2d 1110 (8th Dist. 1989)	543
<i>Atwood v. Bare</i> , No. 1854, 1988 WL 117999 (Ohio App., 11th Dist., Oct. 28, 1988)	75,91
<i>Au v. Waldman</i> , No. 2010-CA-112, 2011 WL 1832719 (Ohio App., 5th Dist., May 9, 2011)	323

<i>Auburn v. Amoco Oil Co.</i> , 106 Ill. App.3d 60, 435 N.E.2d 780 (1982)	420
<i>Aujero v. CDA TODCO, Inc.</i> , 756 F.2d 1374 (9th Cir. 1985)	346
<i>Aultman Home for Aged Women v. Ott</i> , No. CA-7688, 1989 WL 64055 (Ohio App., 5th Dist., June 5, 1989)	24,82
<i>Aultman Home for Aged Women v. Ott</i> , No. CA-7688 (Ohio App., 5th Dist., Nov. 21, 1988)	112
<i>Austin v. Cuyahoga Metro. Hous. Auth.</i> , No. 107247, 2019 WL 856776 (Ohio App., 8th Dist., Feb. 21, 2019)	661,665
<i>Austin v. Sullivan</i> , No. 93-CA-43, 1994 WL 650228 (Ohio App., 7th Dist., Nov. 17, 1994)	643
<i>Auto Owners Ins. Co. v. Hansford</i> , No. 1-86-38, 1987 WL 17881 (Ohio App., 3rd Dist., Sept. 29, 1987)	338
<i>Avila v. Gerdenich Realty Co.</i> , No. L-07-1098, 2007 WL 4216972 (Ohio App., 6th Dist., Nov. 30, 2007)	331,428,431
<i>Avondale Cmty. Council v. Lentine</i> , No. C-110221, 2012 WL 171892 (Ohio App., 1st Dist., Jan. 20, 2012)	455
<i>Avondale Hous. Action Program v. Butler</i> , No. 88-CV-42805 (Ohio Mun., Hamilton Cty., Mar. 23, 1989)	21,22,29,212
<i>Ayers v. Philadelphia Hous. Auth.</i> , 908 F.2d 1184 (3d Cir. 1990)	277
<i>Ayres v. Simmons</i> , No. 93-CA-827, 1993 WL 405489 (Ohio App., 4th Dist., Sept. 30, 1993)	293,333,334,343
B	
<i>BWS Props. v. LaSalle, Inc.</i> , No. 51119, 1986 WL 9110 (Ohio App., 8th Dist., Aug. 21, 1986)	141,179,181
<i>Babcock v. Milligan</i> , No. 99-CI-420 (Ohio C.P., Coshocton Cty., July 19, 2002)	470
<i>Babcock v. Milligan</i> , No. 01-CA-013, 2002 WL 924297 (Ohio App., 5th Dist., May 3, 2002)	469,470
<i>Babcock v. Milligan</i> , No. 99-CI-420 (Ohio C.P., Coshocton Cty., Apr. 27, 2001)	470,474
<i>Bacon v. Atlas Home Corp.</i> , No. 22471, 2005 WL 3557129 (Ohio App., 9th Dist., Dec. 30, 2005)	502
<i>Baer v. Maynard</i> , No. LLT-18-5 (Ohio Mun., Marion Cty., Apr. 29, 2019)	409

<i>Bailey v. Fairchild</i> , No. 10-CA-10, 2010 WL 4867532 (Ohio App., 2nd Dist., Nov. 24, 2010)	337,541
<i>Bailey v. Ward</i> , No. 8-16-03, 2016 WL 5873893 (Ohio App., 3rd Dist., Oct. 3, 2016)	439
<i>Baker v. Doubletree, Inc.</i> , No. 81-CA-38, 1982 WL 4867 (Ohio App., 2nd Dist., Feb. 19, 1982)	305
<i>Baker v. Loudermilk</i> , No. 76AP-770, 1977 Ohio App. LEXIS 7427 (Ohio App., 10th Dist., Mar. 29, 1977)	459
<i>Baker v. Revels</i> , No. 03AP-410, 2004 WL 453273 (Ohio App., 10th Dist., Mar. 11, 2004)	76
<i>Baker v. Wade</i> , No. 2002-CVG-15892 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2002)	128,538
<i>Ballard v. KMG Investors, Ltd. P'ship</i> , No. 14-93-5, 1993 WL 293944 (Ohio App., 3rd Dist., Aug. 3, 1993)	33,371,375
<i>BancPlus Mortgage Corp. v. Smith</i> , No. 57641, 1990 WL 15294 (Ohio App., 8th Dist., Feb. 22, 1990)	607
<i>BancPlus Mortgage Corp. v. Smith</i> , No. 57641 (Ohio App., 8th Dist., May 9, 1989)	112
<i>Bank United v. Vogel</i> , No. 99-SP-2369 (Mass. Hous. Ct., Hampden Div., Nov. 5, 1999)	607
<i>Bankers Life & Cas. Co. v. Crenshaw</i> , 486 U.S. 71 (1988)	113
<i>Bar Hotel Co. v. Lloyd MacKeown Buick Co.</i> , 104 Ohio App. 69, 146 N.E.2d 879 (3rd Dist. 1957)	65
<i>Baraby v. Swords</i> , 166 Ohio App.3d 527, 851 N.E.2d 559 (3rd Dist. 2006)	299,630
<i>Barber v. Am. Sec. Bank</i> , 655 F. Supp. 775 (D.D.C. 1987)	162
<i>Barber v. Mid-Towne Assoc.</i> , 62 Ohio App.3d 384, 575 N.E.2d 879 (1st Dist. 1990)	327
<i>Bard Props. LLC v. Dalton</i> , No. 24521, 2009 WL 2033078 (Ohio App., 9th Dist., July 15, 2009)	40
<i>Barkacs v. Perkins</i> , 165 Ohio App.3d 576, 847 N.E.2d 481 (6th Dist. 2006)	174
<i>Barnebey v. Oliver</i> , No. 99-CVG-00026 (Ohio Mun., Lancaster, Jan. 27, 1999)	12
<i>Barner v. Continent Apt. Homes</i> , No. 04AP-774, 2005 WL 1022909 (Ohio App., 10th Dist., May 3, 2005)	324

<i>Barnes v. Welborn</i> , No. 04-6855, 2005 WL 5533987 (Ohio C.P., Montgomery Cty., July 5, 2005)	176,459,466, 468
<i>Baron v. Buckner</i> , No. CA90-10-071, 1991 WL 69355 (Ohio App., 12th Dist., Apr. 29, 1991)	497
<i>Barran v. Kinas</i> , No. 85085, 2005 WL 991690 (Ohio App., 8th Dist., Apr. 28, 2005)	511
<i>Base-Smith v. Lautrec, Ltd.</i> , No. CA2013-07-115, 2014 WL 408041 (Ohio App., 12th Dist., Feb. 3, 2014)	444,497
<i>Batavia Woods LLC v. Wainwright</i> , No. 2013-CVG-0218 (Ohio Mun., Clermont Cty., Aug. 7, 2013)	69
<i>Bates v. Postulate Invs.</i> , 176 Ohio App.3d 523, 892 N.E.2d 937 (8th Dist. 2008)	604
<i>Bates & Springer, Inc. v. Nay</i> , 91 Ohio Law Abs. 425, 187 N.E.2d 415 (Ohio App., 8th Dist., 1963)	139,141,142
<i>Batt v. Nairebout</i> , No. L-03-1001, 2003 WL 21489414 (Ohio App., 6th Dist., June 30, 2003)	195
<i>Baughman v. Semaan</i> , 29 Ohio App.3d 365, 505 N.E.2d 643 (9th Dist. 1986)	96
<i>Beard v. Smith</i> , No. 91-CVG-34340 (Ohio Mun., Cleveland, Hous. Div., Apr. 24, 1991)	420
<i>Beatley v. Knisley</i> , 183 Ohio App.3d 356, 917 N.E.2d 280 (10th Dist. 2009)	599
<i>Beatley v. Schwartz</i> , No. 03AP-911, 2004 WL 1244360 (Ohio App., 10th Dist., June 8, 2004)	356,508,519-521
<i>Beavers v. Patawaran</i> , No. 2020-CVG-009066 (Ohio Mun., Cleveland, Hous. Div., Dec. 23, 2020)	216,218
<i>Beechler v. Winkel</i> , 59 Ohio App.2d 65, 392 N.E.2d 889 (6th Dist. 1978)	561
<i>Beere v. Timber Top Apts.</i> , No. 20843, 2002 WL 971896 (Ohio App., 9th Dist., May 1, 2002)	437
<i>Beggin v. Ft. Worth Mortgage Corp.</i> , 93 Ohio App. 3d 333, 638 N.E.2d 604 (3rd Dist. 1994)	598
<i>Begue v. Calloway</i> , No. 03-CVG-00286 (Ohio Mun., Akron, Feb. 4, 2003)	195
<i>Begue v. Henson</i> , No. 16975, 1995 WL 338427 (Ohio App., 9th Dist., June 7, 1995)	498

<i>Behrle v. Beam</i> , 6 Ohio St.3d 41, 451 N.E.2d 237 (1983)	2,4,56,75,77,559
<i>Belch v. Witts</i> , No. 96-CVG-5839 (Ohio Mun., Canton, Dec. 31, 1996)	147
<i>Belding v. State ex rel. Heifner</i> , 121 Ohio St. 393, 169 N.E. 301 (1929)	57
<i>Belknap v. Shears</i> , No. 2012-P-0007, 2012 WL 5995095 (Ohio App., 11th Dist., Dec. 3, 2012)	646
<i>Bell v. Goldsmith</i> , No. 67893, 1995 WL 396352 (Ohio App., 8th Dist., July 6, 1995)	429,435
<i>Bell v. Tsintolas Realty Co.</i> , 430 F.2d 474 (D.C. Cir. 1970)	62,67
<i>Bella Vista Apts. v. Arthon</i> , No. CA90-10-106, 1991 WL 274313 (Ohio App., 12th Dist., Dec. 23, 1991)	519
<i>Bella Vista Apts. v. Herzner</i> , 125 Ohio Misc.2d 1, 796 N.E.2d 593 (Ohio Mun., Clermont Cty., 2003)	23,184
<i>Bella Vista Apts. v. Ragland</i> , No. 91-CVG-54-471 (Ohio County Ct., Clermont Cty., May 31, 1991)	130
<i>Belvoir Cliffs Apts. v. Bembry</i> , 56 Ohio Misc. 37, 383 N.E.2d 1170 (Ohio Mun., Cleveland, 1978)	163,227,268, 269,463
<i>Bennett v. Croxford</i> , No. 96-CVH-000488, 1997 WL 810044 (Ohio Mun., Athens Cty., Apr. 18, 1997)	289,581
<i>Bennett v. Reynolds</i> , No. CVG-2100164 (Ohio Mun., Perry Cty., May 19, 2021)	39
<i>Bennett v. Huber Inv. Corp.</i> , 17 Ohio St.3d 33, 476 N.E.2d 1045 (1985)	499
<i>Bennett v. Huber Inv. Corp.</i> , No. 84AP-268, 1984 WL 5990 (Ohio App., 10th Dist., Nov. 15, 1984)	499
<i>Bennington v. Austin Square, Inc.</i> , No. 2005-CA-00095, 2005 WL 52245 (Ohio App., 5th Dist., Jan. 9, 2006)	577
<i>Bennington v. Robinson</i> , No. 1999-CA-00212, 2000 WL 222156 (Ohio App., 5th Dist., Feb. 7, 2000)	57,64,90
<i>Bennington Hous. Auth. v. Bush</i> , 182 Vt. 133, 933 A.2d 207 (2007)	252
<i>Benson v. Oaks Mobile Home Park</i> , No. 1156, 1983 WL 6313 (Ohio App., 11th Dist., Mar. 15, 1983)	419,574
<i>Berkacs v. Perkins</i> , 165 Ohio App.3d 576, 847 N.E.2d 481 (6th Dist. 2006)	174
<i>Berkeley Park, LLC v. Pile</i> , No. 2005-CVG-046214 (Ohio Mun., Franklin Cty., Apr. 11, 2007)	27,378,538

<i>Berlinger v. Suburban Apt. Mgmt. Co.</i> , 7 Ohio App.3d 122, 454 N.E.2d 1367 (8th Dist. 1982)	360,376,553
<i>Berman & Sons, Inc. v. Jefferson</i> , 379 Mass. 196, 396 N.E.2d 981 (1979)	400,402
<i>Bernard Group v. New Hope Alternative Therapy Research</i> , 153 Ohio App.3d 393, 794 N.E.2d 141 (8th Dist. 2003)	106
<i>Bess v. McBride</i> , No. 96-CVH-1586 (Ohio Mun., Cleveland, Hous. Div., May 6, 1997)	328,330
<i>Bester v. Owens</i> , No. 17388, 1999 WL 179261 (Ohio App., 2nd Dist., Mar. 31, 1999)	67,150,153
<i>Bevy's Dry Cleaners & Shirt Laundry, Inc. v. Streble</i> , 2 Ohio St.2d 250, 208 N.E.2d 528 (1965)	175
<i>Bezon v. James</i> , No. 89-CV-G&F-1957 (Ohio Mun., Alliance, Feb. 5, 1990)	18
<i>Biasella v. Costakis</i> , No. 71281, 1997 WL 253157 (Ohio App., 8th Dist., May 15, 1997)	504,546
<i>Bibb v. Home Sav. & Loan Co.</i> , 63 Ohio App.3d 751, 580 N.E.2d 52 (6th Dist. 1989)	109,110
<i>Bibler v. Nash</i> , No. 5-05-09, 2005 WL 2335191 (Ohio App., 3rd Dist., Sept. 26, 2005)	529
<i>Bierl v. BGZ Assocs. II, LLC</i> , No. 9-12-42, 2013 WL 684707 (Ohio App., 3rd Dist., Feb. 25, 2013)	313,326,447
<i>Bierman v. Maharidge</i> , No. CVG-920275 (Ohio Mun., Vermilion, Mar. 31, 1993)	414
<i>Biggs v. Hous. Auth. of City of Pittsburgh</i> , No. 07-CV-0007, 2007 WL 654247 (W.D. Pa. Feb. 28, 2007)	270
<i>Bill Swad Chevrolet, Inc. v. Ricart Jeep Eagle, Inc.</i> , 129 Ohio App.3d 501, 718 N.E.2d 470 (10th Dist. 1998)	104,132,515,516
<i>Billington v. Underwood</i> , 613 F.2d 91 (5th Cir. 1980)	206
<i>Biltmore Apts. v. Birdsong</i> , No. 11-CVG-5315 (Ohio Mun., Dayton, Oct. 5, 2011)	219
<i>Bio Energy (Ohio), LLC v. Phoenix Golf Links, Ltd.</i> , No. 12AP-171, 2012 WL 4470638 (Ohio App., 10th Dist., Sept. 27, 2012)	2
<i>Birkenhead v. Coombs</i> , 465 A.2d 244 (Vt. 1983)	450
<i>Bishop v. East Ohio Gas Co.</i> , 143 Ohio St. 541, 56 N.E.2d 164 (1944)	423,535,540,541

<i>Bishop v. Rice</i> , No. 21247, 2006 WL 574396 (Ohio App., 2nd Dist., Mar. 10, 2006)	638
<i>Bishop Kandel Realty v. Decker</i> , No. 89-CVG-1406 (Ohio Mun., Findlay, Apr. 2, 1990)	194
<i>Bishop Park Towers v. Sefcik</i> , No. 2001-L-137, 2002 WL 1173498 (Ohio App., 11th Dist., May 31, 2002)	147
<i>Bittner v. Tri-County Toyota, Inc.</i> , 58 Ohio St.3d 143, 569 N.E.2d 464 (1991)	548,555
<i>Blackmond v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-541895 (Ohio C.P., Cuyahoga Cty., Oct. 21, 2004)	669
<i>Blair v. Prop. Mgmt. Consultants</i> , 40 Ohio App.3d 103, 531 N.E.2d 752 (1st Dist. 1987)	332,448
<i>Blakley v. Riley</i> , No. 91AP-597, 1992 WL 1163 (Ohio App., 10th Dist., Jan. 7, 1992)	433
<i>Bland v. Kovein</i> , No. 16179, 1993 WL 473837 (Ohio App., 9th Dist., Nov. 10, 1993)	349,462
<i>Blausey v. Frase</i> , No. 06-CVG-00748 (Ohio Mun., Licking Cty., Feb. 28, 2007)	458,469,470
<i>Blenheim Homes, Inc. v. Mathews</i> , 119 Ohio App. 44, 196 N.E.2d 612 (10th Dist. 1963)	644
<i>Blevins v. Gosa</i> , No. 2003-CVG-4465 (Ohio Mun., Cleveland, Hous. Div., Sept. 22, 2003)	76
<i>Blosser v. Bowman</i> , No. 00AP-1140, 2001 WL 436088 (Ohio App., 10th Dist., May 1, 2001)	108,113,115
<i>Blue v. Castlerock Props., Inc.</i> , 77 Ohio Misc.2d 1, 665 N.E.2d 295 (Ohio Mun., Hamilton Cty., 1996)	161
<i>Blue v. Castlerock Props., Inc.</i> , 77 Ohio Misc.2d 3, 665 N.E.2d 296 (Ohio Mun., Hamilton Cty., 1996)	548
<i>Blue Water Manor v. Reynolds</i> , No. CVG-2100003 (Ohio Mun., Newton Falls, Mar. 11, 2021)	286,288
<i>Blum v. Pennington</i> , No. 42422, 1981 WL 10409 (Ohio App., 8th Dist., Feb. 5, 1981)	389
<i>Bd. of Educ. of Worthington City Sch. Dist. v. Bd. of Revision of Franklin County</i> , 85 Ohio St.3d 156, 707 N.E.2d 499 (1999)	191

<i>Boardwalk Glenville Apts. v. Cage</i> , No. 2007-CVG-3065 (Ohio Mun., Cleveland, Hous. Div., July 13, 2007)	38,208,213,229, 234,235
<i>Bogner v. Titleist Club, LLC</i> , No. WD-06-039, 2006 WL 3825228 (Ohio App., 6th Dist., Dec. 29, 2006)	439
<i>Bohinc v. Stafford</i> , No. 52335, 1987 WL 8138 (Ohio App. 8th Dist., Mar. 19, 1987)	69
<i>Bohl v. Hauke</i> , 180 Ohio App.3d 526, 906 N.E.2d 450 (4th Dist. 2009)	177
<i>Bohlmann v. Cox</i> , No. 17166, 1995 WL 641128 (Ohio App., 9th Dist., Nov. 1, 1995)	372
<i>Boice v. Emshoff</i> , No. 13-98-23, 1998 WL 833686 (Ohio App., 3rd Dist., Dec. 3, 1998)	400,422,500
<i>Boldan v. Suburban Apt. Mgmt. Co.</i> , No. 47089, 1984 WL 4503 (Ohio App., 8th Dist., Mar. 2, 1984)	499
<i>Bond v. Sharrock</i> , No. 07-CA-65, 2008 WL 3132929 (Ohio App., 5th Dist., Aug. 6, 2008)	299
<i>Bonesteel v. Nash</i> , 65 N.E.3d 326, 2016-Ohio-3114 (Ohio App., 5th Dist., 2016)	492,503
<i>Bonham v. Mills</i> , 39 Ohio St. 534 (1883)	58
<i>Bookatz v. Kupps</i> , 39 Ohio App.3d 36, 528 N.E.2d 961 (8th Dist. 1987)	546
<i>Bookman v. Vill. of New Straitsville</i> , No. C-2-000536 (S.D. Ohio Feb. 7, 2001)	611
<i>Boone v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-06-587744 (Ohio C.P., Cuyahoga Cty., Feb. 2, 2007)	668
<i>Boone v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-06-587744 (Ohio C.P., Cuyahoga Cty., May 25, 2006)	658
<i>Booth v. Duffy Homes, Inc.</i> , 185 Ohio App.3d 260, 923 N.E.2d 1175 (10th Dist. 2009)	533
<i>Borges v. Everdry Waterproofing of Wapakoneta, Inc.</i> , 95 Ohio App.3d 175, 642 N.E.2d 16 (3rd Dist. 1994)	5,526
<i>Boston Hous. Auth. v. Bell</i> , 428 Mass. 108, 697 N.E.2d 130 (1998)	249
<i>Boston Hous. Auth. v. Bridgewater</i> , 452 Mass. 833, 898 N.E.2d 848 (2009)	170,171
<i>Boston Hous. Auth. v. Garcia</i> , 449 Mass. 727, 871 N.E.2d 1073 (2007)	247
<i>Boston Hous. Auth. v. Hemingway</i> , 363 Mass. 184, 293 N.E.2d 831 (1973)	316,404

<i>Botnick Realty Co. v. Brown</i> , No. 91-CVG-5445 (Ohio Mun., Akron, Aug. 13, 1991)	187
<i>Botnick Realty Co. v. Brown</i> , No. 91-CVG-5445 (Ohio Mun., Akron, July 10, 1991)	205
<i>Boudreau v. Gen. Elec. Co.</i> , 2 Haw. App. 10, 625 P.2d 384 (1981)	420
<i>Bowers v. Starcher</i> , No. 87-CL-254686 (Ohio Mun., Springfield, July 11, 1987)	18
<i>Bowling Green Manor Ltd. P'ship v. Kirk</i> , No. WD-94-125, 1995 WL 386476 (Ohio App., 6th Dist., June 30, 1995)	281,283
<i>Bowling Green Manor Ltd. P'ship v. Kirk</i> , No. 94-WD-125 (Ohio App., 6th Dist., Jan. 12, 1995)	109,110,112
<i>Bowling Green Manor Ltd. P'ship v. LaChance</i> , No. WD-94-117, 1995 WL 386496 (Ohio App., 6th Dist., June 30, 1995)	118,119,281,283
<i>Bowling Green Manor Ltd. P'ship v. LaChance</i> , No. 94-WD-117 (Ohio App., 6th Dist., Dec. 7, 1994)	110
<i>Bowman v. Cmty. Mgmt. Corp.</i> , 14 Ohio App.3d 31, 469 N.E.2d 1038 (1st Dist. 1984)	511
<i>Bowman v. Helm</i> , No. 89-CV-H-384 (Ohio Mun., Jackson Cty., Jan. 4, 1991)	470
<i>Bowshier v. Bowshier</i> , No. 2013-CA-33, 2013 WL 5314565 (Ohio App., 2nd Dist., Sept. 20, 2013)	70,75
<i>Bowshier v. Bowshier</i> , No. 2012-CA-40, 2013 WL 425813 (Ohio App., 2nd Dist., Feb. 1, 2013)	92
<i>Boyd v. Hariani</i> , No. 22500, 2005 WL 2087824 (Ohio App., 9th Dist., Aug. 31, 2005)	331,428
<i>Boyd v. Williams</i> , Nos. 07-CVG-11772,14908 (Ohio Mun., Akron, Jan. 18, 2008)	85
<i>Boyle v. Hernandez</i> , No. CVG-99-11252 (Ohio Mun., Toledo, Hous. Div., Sept. 3, 1999)	47
<i>Bozeman v. Cleveland Metro. Hous. Auth.</i> , Nos. 92435,92436, 2009 WL 3321402 (Ohio App., 8th Dist., Oct. 15, 2009)	398,406,619,620
<i>Bradford v. B & P Wrecking Co.</i> , 171 Ohio App.3d 616, 872 N.E.2d 331 (6th Dist. 2007)	636,647
<i>Brady v. Koehnke</i> , No. C-930240, 1994 WL 481758 (Ohio App., 1st Dist., Sept. 7, 1994)	292,322,440

<i>Braff Mobile Home Co. v. McFarland</i> , No. 8-265, 1982 WL 5815 (Ohio App., 11th Dist., July 23, 1982)	162,571
<i>Brainard v. Cardwell</i> , Nos. 75870,75896, 2000 WL 897793 (Ohio App., 8th Dist., July 6, 2000)	2,75
<i>Brandy v. Fontroy</i> , No. 77-CVG-9209 (Ohio Mun., Dayton, Dec. 14, 1977)	17
<i>Branham v. Fordyce</i> , 103 Ohio App. 379, 145 N.E.2d 471 (2nd Dist. 1957)	297
<i>Branish v. NHP Prop. Mgmt.</i> , 694 A.2d 1106 (Pa. Super. 1997)	363
<i>Brannan v. Fowler</i> , 100 Ohio App.3d 577, 654 N.E.2d 434 (4th Dist. 1995)	598
<i>Brazen v. Brazzon</i> , No. 50293, 1986 WL 3233 (Ohio App., 8th Dist., Mar. 13, 1986)	444
<i>Breault v. Williamsburg Estates</i> , No. L-86-116, 1986 WL 13169 (Ohio App., 6th Dist., Nov. 21, 1986)	548,553,555-557
<i>Brewton v. Monnette</i> , No. L-13-1068, 2013 WL 5210514 (Ohio App., 6th Dist., Sept. 13, 2013)	325
<i>Briggs v. MacSwain</i> , 31 Ohio App.3d 85, 508 N.E.2d 1028 (10th Dist. 1986)	519
<i>Bright Roads Assocs. v. Homoelle</i> , No. 95-APE10-1361, 1996 WL 125551 (Ohio App., 10th Dist., Mar. 19, 1996)	388
<i>Brinson v. Jenkins</i> , No. C-960120, 1996 WL 626726 (Ohio App., 1st Dist., Oct. 30, 1996)	432
<i>Bristol Court v. Jones</i> , No. 93-CA-520, 1994 WL 534920 (Ohio App., 4th Dist., Sept. 29, 1994)	123,127
<i>Bristol Sav. Bank v. Savinelli</i> , No. CV-950377478S, 1996 WL 166396 (Conn. Super. Mar. 21, 1996)	268
<i>Brokamp v. Linneman</i> , 20 Ohio App. 199, 153 N.E. 130 (1st Dist. 1923)	133,134
<i>Brooks v. Lee</i> , No. 96-CS-02424 (Cal. Super., Sacramento Cty., Jan. 12, 1999)	244
<i>Brooks v. Lee</i> , No. CA95-05-091, 1995 WL 708227 (Ohio App., 12th Dist., Dec. 4, 1995)	325
<i>Brown v. August</i> , No. 01-CA-0024, 2002 WL 22877 (Ohio App., 9th Dist., Jan. 9, 2002)	407,421
<i>Brown v. Balliett Group</i> , No. 98-RE-6 (Ohio Mun., Mansfield, July 13, 1998)	391

<i>Brown v. Brown</i> , No. 04-CA-000018, 2005 WL 914490 (Ohio App., 5th Dist., Apr. 14, 2005)	4,77,598
<i>Brown v. Campbell</i> , Nos. 85698,85702, 2005 WL 1793519 (Ohio App., 8th Dist., July 28, 2005)	331,332,448-450
<i>Brown v. Dayton Metro. Hous. Auth.</i> , No. C-3-93-037, 1993 WL 1367433 (S.D. Ohio Aug. 26, 1993)	367
<i>Brown v. Dobbins</i> , No. C-050089 (Ohio App., 1st Dist., Nov. 30, 2005)	497
<i>Brown v. Fay Apts.</i> , 62 Ohio Misc.2d 188, 594 N.E.2d 190 (Ohio Mun., Hamilton Cty., 1991)	66,111
<i>Brown v. Johnston</i> , 95 Ohio App. 136, 108 N.E.2d 298 (2nd Dist. 1952)	644
<i>Brown v. Liberty Clubs, Inc.</i> , 45 Ohio St.3d 191, 543 N.E.2d 783 (1989)	614
<i>Brown v. Ray</i> , No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Feb. 18, 2009)	469,470
<i>Brown v. Ray</i> , No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Dec. 17, 2008)	473
<i>Brown v. Ray</i> , No. 08-CVG-25314 (Ohio Mun., Cleveland, Hous. Div., Nov. 26, 2008)	473
<i>Brown v. Spitzer Chevrolet Co.</i> , 181 Ohio App.3d 642, 910 N.E.2d 490 (5th Dist. 2009)	309,418
<i>Brown v. Terrell</i> , 114 N.E.3d 783, 2018-Ohio-2503 (Ohio App., 9th Dist., 2018)	299
<i>Brown v. Williams</i> , No. 2012-CVG-17491 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 2014, and May 2, 2014)	409,465,530,532
<i>Browning v. Pendleton</i> , 869 F.2d 989 (6th Cir. 1989)	
<i>Brumbaugh v. Epperley</i> , No. 95-CVGT-728 (Ohio Mun., Miami Cty., May 19, 1995)	352
<i>Brunswick Ltd. P'ship v. Feudo</i> , 171 Ohio App.3d 369, 870 N.E.2d 804 (11th Dist. 2007)	517
<i>Bryant v. Dale</i> , No. 98-CA-36, 1999 WL 731824 (Ohio App., 4th Dist., Sept. 10, 1999)	108,123
<i>Buchenroth v. Adkins</i> , 7 N.E.3d 621, 2014-Ohio-257 (Ohio App., 3rd Dist., 2014)	528
<i>Buck v. Georgian Manor Invs.</i> , No. 67170, 1995 WL 143813 (Ohio App., 8th Dist., Mar. 30, 1995)	502-504

<i>Buckeye Foods v. Cuyahoga County Bd. of Revision</i> , 78 Ohio St.3d 459, 678 N.E.2d 917 (1997)	189
<i>Buckeye Lake Estates Mobile Home Park v. Abel</i> , No. 01-CVG-01777, 2002 WL 32001271 (Ohio Mun., Licking Cty., 2002)	287,584,590
<i>Buckeye Mgmt. Co. v. Mason</i> , No. 2002-CO-68, 2003 WL 22120673 (Ohio App., 7th Dist., Sept. 11, 2003)	25
<i>Buckeye Northwest Realty for Tahoe Blue, LLC v. Stigall</i> , No. CVG-21-05045 (Ohio Mun., Toledo, Hous. Div., June 22, 2021)	624
<i>Buckeye Union Ins. Co. v. Consol. Stores Corp.</i> , 68 Ohio App.3d 19, 587 N.E.2d 391 (10th Dist. 1990)	309
<i>Buckley v. Lucas</i> , No. 98-CA-14, 1999 WL 436838 (Ohio App., 5th Dist., June 8, 1999)	526
<i>Buckman-Pierson v. Brannon</i> , 159 Ohio App.3d 12, 822 N.E.2d 830 (2nd Dist. 2004)	451
<i>Budac v. Nahmi</i> , No. 14901, 1991 WL 115908 (Ohio App., 9th Dist., June 19, 1991)	406,554
<i>Budler v. Empire Mgmt. Group</i> , No. 22376, 2005 WL 1026697 (Ohio App., 9th Dist., May 4, 2005)	501,502,513
<i>Buncy v. Daniels</i> , No. CA-6059, 1983 WL 6486 (Ohio App., 5th Dist., June 13, 1983)	332,448
<i>Bundy v. Sky Meadows Trailer Park</i> , No. CA89-01-002, 1989 WL 125379 (Ohio App., 12th Dist., Oct. 23, 1989)	576,583
<i>Burdge v. Welsh</i> , No. 82AP-846, 1983 WL 3367 (Ohio App., 10th Dist., Feb. 22, 1983)	10,640
<i>Burdick v. Nevel</i> , No. 98AP-697, 1999 WL 235435 (Ohio App., 10th Dist., Apr. 20, 1999)	314,438,444
<i>Burfitt v. Stewart</i> , Nos. 55530,55531, 1989 WL 113079 (Ohio App., 8th Dist., Sept. 28, 1989)	64,423
<i>Burgess v. Tackas</i> , 125 Ohio App.3d 294, 708 N.E.2d 285 (8th Dist. 1998)	582
<i>Burke v. Wilson</i> , No. CVG-0300781 (Ohio Mun., Washington Court House, Jan. 20, 2004)	128
<i>Burkett v. Strickland</i> , No. 02-CV-7400, 2003 WL 25510886 (Ohio C.P., Montgomery Cty., Sept. 29, 2003)	636
<i>Burkholder v. Straughn</i> , No. 97-T-0146, 1998 WL 553623 (Ohio App., 11th Dist., June 26, 1998)	465

<i>Burney View Apts. v. Zeisler</i> , No. 87-CV-17778 (Ohio Mun., Hamilton Cty., Feb. 3, 1988)	29,213
<i>Burns v. Barrington Group, Inc.</i> , No. 2-CA-92, 1992 WL 319152 (Ohio App., 5th Dist., Nov. 2, 1992)	324
<i>Burnside v. Ickes</i> , No. 02-COA-015, 2003 WL 42455 (Ohio App., 5th Dist., Jan. 3, 2003)	480,500
<i>Burnworth v. Harper</i> , 109 Ohio App.3d 401, 667 N.E.2d 987 (4th Dist. 1996)	431,435
<i>Burpo v. Burpo</i> , No. 2009-CVG-7976 (Ohio Mun., Cleveland, Hous. Div., July 2, 2009)	196
<i>Burrell v. Iwenofu</i> , No. 81230, 2003 WL 1090635 (Ohio App., 8th Dist., Mar. 13, 2003)	300
<i>Burress v. Associated Land Group</i> , No. 2008-10-096, 2009 WL 1459699 (Ohio App., 12th Dist., May 26, 2009)	323,324
<i>Burroughs v. Douglas</i> , No. 46030, 1983 WL 2865 (Ohio App., 8th Dist., Dec. 8, 1983)	464,468,551
<i>Burton v. Murry</i> , 8 Ohio Op.3d 179 (Ohio App., 8th Dist., 1973)	8,48
<i>Burton v. Murry</i> , No. 33011 (Ohio App., 8th Dist., Sept. 5, 1973)	112
<i>Burton Carol Mgmt., LLC v. Tessmer</i> , No. 2015-L-035, 2015 WL 6126186 (Ohio App., 11th Dist., Oct. 19, 2015)	64
<i>Butler v. Michel</i> , 14 Ohio App.3d 116, 470 N.E.2d 217 (9th Dist. 1984)	645
<i>Butler v. Wyndtree Hous. Ltd. P'ship</i> , No. CA2011-03-056, 2012 WL 37535 (Ohio App., 12th Dist., Jan. 9, 2012)	331
<i>Butterfield v. Snively</i> , 60 Ohio App. 14, 19 N.E.2d 284 (5th Dist. 1934)	478,479
<i>Bynum v. Cotterman</i> , No. 26222, 2015 WL 751720 (Ohio App., 2nd Dist., Feb. 20, 2015)	319,320,408
<i>Bynum v. Huffman</i> , No. 57730, 1990 WL 210225 (Ohio App., 8th Dist., Dec. 20, 1990)	423,552
<i>Byrneport Apts. II v. Williams</i> , No. L-19-1277, 2020 WL 3485726 (Ohio App., 6th Dist., June 26, 2020)	139

<i>C & C Invs. v. Mackie</i> , No. 87AP-183, 1987 WL 31262 (Ohio App., 10th Dist., Dec. 21, 1987)	72
<i>C & L Ventures, LLC v. Heistand</i> , No. 00-CVG-01995 (Ohio Mun., Fairfield Cty., Nov. 14, 2001)	510
<i>C & W Inv. Co. v. Midwest Vending, Inc.</i> , No. 03AP-40, 2003 WL 22054062 (Ohio App., 10th Dist., Sept. 4, 2003)	51
<i>CMB P'ship v. Baker</i> , No. 18159, 2000 WL 706824 (Ohio App., 2nd Dist., June 2, 2000)	327,385,396
<i>CMJ Mgmt. Co. v. Wilkerson</i> , 91 Mass. App. Ct. 276, 75 N.E.3d 605 (2017)	250
<i>CS/RW Westlake Indoor Storage, L.L.C. v. Kesi, L.L.C.</i> , No. 102535, 2015 WL 6819281 (Ohio App., 8th Dist., Nov. 5, 2015)	1,2,74
<i>Calabria v. Greene</i> , No. 95-T-5181, 1995 WL 787360 (Ohio App., 11th Dist., Sept. 8, 1995)	357
<i>Calhoun v. Ivey</i> , No. 2006-CVG-27001 (Ohio Mun., Cleveland, Hous. Div., Mar. 28, 2007)	93
<i>Calhoun v. Yeager</i> , No. 91-CA-12, 1992 WL 56793 (Ohio App., 4th Dist., Mar. 26, 1992)	502,503
<i>Callahan v. Croxford</i> , No. 2006-CVF-00621, 2007 WL 4359907 (Ohio Mun., Athens Cty., July 31, 2007)	289,580,593
<i>Callentine v. Mill Invs., LLC</i> , No. 2017-AP-06, 2017 WL 5565502 (Ohio App., 5th Dist., Nov. 17, 2017)	447
<i>Caltrider v. Reitler</i> , No. CA-2208, 1984 WL 7506 (Ohio App., 5th Dist., May 21, 1984)	644
<i>Calvin v. Martin</i> , 64 Ohio Law Abs. 265, 111 N.E.2d 786 (8th Dist. 1952)	481
<i>Camco, Inc. v. Lowery</i> , 362 Ill. App.3d 421, 839 N.E.2d 655 (2005)	81
<i>Camp v. Thomas</i> , No. 06-CVF-9711 (Ohio Mun., Dayton, June 21, 2007)	265
<i>Campus Vill. Toledo Univ. Park, LLC v. Mowrer</i> , 68 N.E.3d 219, 2016-Ohio-4754 (Ohio App., 6th Dist., 2016)	359,494
<i>Canady v. Cen. Benefits Mut. Ins. Co.</i> , 71 Ohio App.3d 363, 594 N.E.2d 37 (10th Dist. 1991)	175
<i>Canal Park Tower v. Brown</i> , No. 91-CVG-3327 (Ohio Mun., Akron, May 31, 1991)	202,205

<i>Canidate v. Cuyahoga Metro. Hous. Auth.</i> , No. 101753, 2015 WL 1121444 (Ohio App., 8th Dist., Mar. 12, 2015)	447,620
<i>Canter v. Vill. of Smithfield</i> , No. C2-01-0138 (S.D. Ohio June 15, 2001)	611
<i>Canterbury Way Apts. v. Barnes</i> , No. 87AP-1106, 1988 WL 44529 (Ohio App., 10th Dist., May 5, 1988)	259
<i>Canterbury Way Apts. v. Rogers</i> , No. M9004-CVG-012282 (Ohio Mun., Franklin Cty., June 5, 1990)	212
<i>Capella III, L.L.C. v. Wilcox</i> , 190 Ohio App.3d 133, 940 N.E.2d 1026 (10th Dist. 2010)	514-516
<i>Capital Asset Research Corp. v. Finnegan</i> , 210 F.3d 1268 (11th Cir. 2000)	546
<i>Capital Park Apts. v. Funderburke</i> , No. M90-CVG-18599 (Ohio Mun., Franklin Cty., July 20, 1990)	184
<i>Capital Park, Inc. v. Robinson</i> , No. M79-CVG-34117 (Ohio Mun., Franklin Cty., Jan. 30, 1980)	205
<i>Caraballo v. Moreno</i> , No. 2005-CVG-00330 (Ohio Mun., Cleveland, Hous. Div., Sept. 7, 2005)	411
<i>Cardwell v. Carmichael</i> , No. 51293, 1986 WL 13694 (Ohio App., 8th Dist., Dec. 4, 1986)	416
<i>Cardwell v. Carmichael</i> , No. 84-CVG-21049 (Ohio Mun., Cleveland, Hous. Div., Nov. 18, 1985)	416
<i>Caringi v. 2819 Harvard, Inc.</i> , No. 42834, 1981 Ohio App. LEXIS 13998 (Ohio App., 8th Dist., Mar. 12, 1981)	143
<i>Carkhuff v. Corpening</i> , No. 2017-A-0090, 2018 WL 4693341 (Ohio App., 11th Dist., Sept. 28, 2018)	32
<i>Carl Edward Miller Trust v. Jones</i> , No. 2018-CVG-15385 (Ohio Mun., Franklin Cty., June 13, 2018)	80
<i>Carl Sectional Home, Inc. v. Key Corp.</i> , 1 Ohio App.3d 101, 439 N.E.2d 915 (10th Dist. 1981)	64
<i>Carlton v. Williams</i> , No. 77853, 2000 WL 1807230 (Ohio App., 8th Dist., Dec. 7, 2000)	312
<i>Carmichael v. Colonial Square Apts.</i> , 38 Ohio App.3d 131, 528 N.E.2d 585 (10th Dist. 1987)	331
<i>Carns v. City of Mansfield</i> , No. C80-629-A (N.D. Ohio June 16, 1980)	612
<i>Carol Rickert & Assocs. v. Law</i> , 54 P.3d 91 (N.M. App. 2002)	200

<i>Carr v. Ed Stein Realtors</i> , 10 Ohio App.3d 242, 461 N.E.2d 930 (9th Dist. 1983)	497,520,523,525
<i>Carriage Hill Tenants' Union v. Wallick Props., Inc.</i> , No. CI-82-7-44 (Ohio Mun., Athens Cty., Sept. 29, 1983)	268
<i>Carson v. Metro. Life Ins. Co.</i> , 156 Ohio St. 104, 100 N.E.2d 197 (1951)	426
<i>Carter v. Bayes</i> , No. 1889, 1990 WL 71862 (Ohio App., 4th Dist., May 1, 1990)	69
<i>Carter v. Bernard</i> , No. 06-MA-54, 2006 WL 3849855 (Ohio App., 7th Dist., Dec. 28, 2006)	49
<i>Carter v. Birnbaum</i> , 68 Ohio Law Abs. 97, 113 N.E.2d 102 (Ohio App., 8th Dist., 1953)	561
<i>Carter v. Complete Gen. Constr. Co.</i> , No. 08AP-309, 2008 WL 5104787 (Ohio App., 10th Dist., Dec. 4, 2008)	619
<i>Carter v. Davis</i> , No. 87-CVG-1420-29 (Ohio Mun., East Cleveland, Aug. 22, 1987)	527
<i>Carter v. Lynn Hous. Auth.</i> , 450 Mass. 626, 880 N.E.2d 778 (2008)	244
<i>Carter v. Maryland Mgmt. Co.</i> , 377 Md. 596, 835 A.2d 158 (2003)	282
<i>Carter v. Russo Realtors</i> , No. 00AP-797, 2001 WL 537019 (Ohio App., 10th Dist., May 22, 2001)	169
<i>Carter v. Russo Realtors</i> , No. 99AP-585, 2000 WL 249137 (Ohio App., 10th Dist., Mar. 7, 2000)	53
<i>Cary v. Galbraith</i> , No. L-94-002, 1994 WL 476146 (Ohio App., 6th Dist., Sept. 2, 1994)	371,382
<i>Caserta v. Caserta</i> , No. CA-4550, 1977 WL 200955 (Ohio App., 5th Dist., May 18, 1977)	10
<i>Cassidy v. Vaccariello</i> , No. M8907-CVG-026434 (Ohio Mun., Franklin Cty., Aug. 28, 1989)	20,600
<i>Castle Apts., Inc. v. Allgood</i> , 43 Ohio App.3d 163, 539 N.E.2d 1154 (9th Dist. 1988)	48,95,97,122, 476
<i>Castlebrook Apts. v. Ballard</i> , No. 22421, 2008 WL 4183980 (Ohio App., 2nd Dist., Sept. 12, 2008)	138
<i>Castlebrook, Ltd. v. Dayton Props. Ltd. P'ship</i> , 78 Ohio App.3d 340, 604 N.E.2d 808 (2nd Dist. 1992)	486,509

<i>Casto v. Prokop</i> , No. 93-T-4853, 1995 WL 407217 (Ohio App., 11th Dist., June 9, 1995)	641,645
<i>Castro v. Prokop</i> , No. 89-T-4238, 1991 WL 35640 (Ohio App., 11th Dist., Mar. 15, 1991)	645
<i>Causey v. Causey</i> , No. 599, 1990 WL 138564 (Ohio App., 4th Dist., Sept. 25, 1990)	197
<i>Cavucci v. Simco Mgmt. Corp.</i> , No. 77-CA-40, 1978 Ohio App. LEXIS 9669 (Ohio App., 7th Dist., Apr. 4, 1978)	35
<i>Cazares v. Ortiz</i> , 109 Cal. App.3d Supp. 23, 168 Cal. Rptr. 108 (1980)	420
<i>Cent. Brooklyn Urban Dev. Corp. v. Copeland</i> , 122 Misc.2d 726, 471 N.Y.S.2d 989 (Dist. Ct. 1984)	130
<i>Cent. Mut. Ins. Co. v. Faller</i> , 71 Ohio Misc.2d 58, 654 N.E.2d 213 (Ohio C.P., Licking Cty., 1995)	293,337,339
<i>Cent. Park Place v. McDowell</i> , 38 Ohio App.2d 29, 311 N.E.2d 533 (8th Dist. 1974)	1,4
<i>Cent. Park Place v. McDowell</i> , No. 33242 (Ohio App., 8th Dist., Nov. 29, 1973)	112
<i>Cent. Residents Council v. Lucas Metro. Hous. Auth.</i> , No. L-09-1137, 2010 WL 497340 (Ohio App., 6th Dist., Feb. 12, 2010)	454
<i>Cent. Residents Council v. Lucas Metro. Hous. Auth.</i> , No. CI-200902483 (Ohio C.P., Lucas Cty., Apr. 27, 2009)	454
<i>Cent. W. Cas. Co. v. W.E. Wright Co.</i> , 21 Ohio Law Abs. 355 (Ohio App., 9th Dist., 1936)	354
<i>Century Pacific Hous. P'ship v. Jeffries</i> , No. 21-CVG-4124 (Ohio Mun., Dayton, Oct.19, 2021)	145,624
<i>Chalk v. Stark Metro. Hous. Auth.</i> , No. 2018-CV-00693 (Ohio C.P., Stark Cty., Jan. 31, 2019)	666
<i>Chambers v. Cuyahoga Metro. Hous. Auth.</i> , No. 78354, 2001 WL 1034661 (Ohio App., 8th Dist., Sept. 6, 2001)	436
<i>Chambers v. St. Mary's Sch.</i> , 82 Ohio St.3d 563, 697 N.E.2d 198 (1998)	428
<i>Chambers v. Stark Metro. Hous. Auth.</i> , No. 1997-CV-02490 (Ohio C.P., Stark Cty., Aug. 3, 1998)	669
<i>Chan v. Birch</i> , No. 15249, 1992 WL 64190 (Ohio App., 9th Dist., Mar. 25, 1992)	84,85,521,536

<i>Chancellor Manor v. Thibodeaux</i> , 628 N.W.2d 193 (Minn. App. 2001)	234
<i>Chaney v. Breton Builder Co.</i> , 130 Ohio App.3d 602, 720 N.E.2d 941 (6th Dist. 1998)	510,552
<i>Chaney v. Davis</i> , No. 17593, 1996 WL 525851 (Ohio App., 9th Dist., Sept. 18, 1996)	544
<i>Chaney v. Dominique</i> , No. 91-WD-099, 1992 WL 163903 (Ohio App., 6th Dist., July 17, 1992)	502
<i>Channell v. N.C.R. Employee's Indep. Union</i> , 28 Ohio App.2d 260, 277 N.E.2d 85 (2nd Dist. 1971)	544
<i>Chapman v. Smith</i> , No. L-81-344, 1982 WL 6883 (Ohio App., 6th Dist., Apr. 16, 1982)	535
<i>Charlotte Hous. Auth. v. Fleming</i> , 123 N.C. App. 511, 473 S.E.2d 373 (1996)	237,255
<i>Chasteen v. Dix Road Prop. Mgmt. LLC</i> , Nos. CA2020-04-055,056, 2021 WL 669061 (Ohio App., 12th Dist., Feb. 22, 2021)	385,390
<i>Chateau Foghorn LP v. Hosford</i> , 455 Md. 462, 168 A.2d 824 (2017)	247
<i>Chautauqua Park Apts. v. McMullen</i> , No. 791, 1992 WL 303139 (Ohio App., 4th Dist., Oct. 14, 1992)	108,225
<i>Chavez v. Hous. Auth. of City of El Paso</i> , 973 F.2d 1245 (5th Cir. 1992)	237,238,240
<i>Cheap Escape Co., Inc. v. Haddox, L.L.C.</i> , 120 Ohio St.3d 493, 900 N.E.2d 601 (2008)	49,120,341
<i>Chef Italiano Corp. v. Crucible Dev. Corp.</i> , No. CV-2003-12-7277, 2004 WL 5491217 (Ohio C.P., Summit Cty., Oct. 28, 2004)	53,54,86
<i>Chemical Bank v. Sullivan</i> , 121 Ohio App.3d 111, 699 N.E.2d 105 (6th Dist. 1997)	642
<i>Cheney v. Mitchell</i> , No. 09-CVG-01707 (Ohio Mun., Shaker Heights, Nov. 25, 2009)	128,131
<i>Cherkiss v. Thomas</i> , No. L-83-416, 1984 WL 7829 (Ohio App., 6th Dist., Apr. 13, 1984)	331,449
<i>Chernin v. Welchans</i> , 844 F.2d 322 (6th Cir. 1988)	386,388,393
<i>Chernin v. Welchans</i> , 641 F. Supp. 1349 (N.D. Ohio 1986)	386
<i>Cherry v. Morgan</i> , Nos. 2012-CA-11,21, 2012 WL 3253220 (Ohio App., 2nd Dist., Aug. 10, 2012)	115

<i>Cherry Lee Apts. v. Walcott</i> , No. 03-CVG-00510 (Ohio Mun., Licking Cty., Apr. 25, 2003)	15,203,205
<i>Chesser v. Chesser</i> , No. 01-CA-00009, 2001 WL 403162 (Ohio App., 5th Dist., Apr. 12, 2001)	382
<i>Chesterfield LLC v. Mackow</i> , No. 08-CVG-16093 (Ohio Mun., Cleveland, Hous. Div., Mar. 5, 2009)	321
<i>Chicago Hous. Auth. v. Rose</i> , 203 Ill. App.3d 208, 560 N.E.2d 1131 (1990)	81,238
<i>Childers v. Russell</i> , Nos. 01-4142,4145, 2002 WL 31950741 (Ohio C.P., Montgomery Cty., Feb. 7, 2002)	451,592
<i>Chillicothe Metro. Hous. Auth. v. Anderson</i> , No. 1406, 1988 WL 69118 (Ohio App., 4th Dist., June 28, 1988)	11,12,23,24,33, 120,132,136,180
<i>Chillicothe Metro. Hous. Auth. v. Anderson</i> , No. 1406 (Ohio App., 4th Dist., July 18, 1987)	116
<i>Chillicothe Metro. Hous. Auth. v. Lynch</i> , No. CVG-13-00642 (Ohio Mun., Chillicothe, Sept. 4, 2013)	202,207,208,210
<i>Chinnock v. Kokinda</i> , No. 10-CA-009863, 2011 WL 860417 (Ohio App., 9th Dist., Mar. 14, 2011)	11,15
<i>Choi v. Katz</i> , No. 44819, 1982 WL 2607 (Ohio App., 8th Dist., Dec. 18, 1982)	555
<i>Chorpenning v. Carmack</i> , No. 23933, 2008 WL 726553 (Ohio App., 9th Dist. Mar. 19, 2008)	372
<i>Christe v. GMS Mgmt. Co.</i> , 88 Ohio St.3d 376, 726 N.E.2d 497 (2000)	500,544,545, 547,556,557
<i>Christe v. GMS Mgmt. Co.</i> , 124 Ohio App.3d 84, 705 N.E.2d 691 (Summit Cty. 1997)	309,491,501
<i>Christen v. Cont'l Enters., Ltd.</i> , 154 N.E.3d 1192, 2020-Ohio-3665 (Ohio App., 8th Dist., 2020)	504-506
<i>Chubb v. Bueno-Crespo</i> , No. 99-CVG-01635 (Ohio Mun., Marion, Dec. 13, 1999)	47
<i>Cimarron Vill. v. Washington</i> , 659 N.W.2d 811 (Minn. App. 2003)	282
<i>Cincinnati Bell, Inc. v. Vill. of Glendale</i> , 42 Ohio St.2d 368, 328 N.E.2d 808 (1975)	660
<i>Cincinnati Ins. Co. v. Evans</i> , No. WD-09-012, 2010 WL 2334795 (Ohio App., 6th Dist., June 11, 2010)	332,333,335,537

<i>Cincinnati Metro. Hous. Auth. v. Brown</i> , No. C-120580, 2013 WL 5432087 (Ohio App., 1st Dist., Sept. 25, 2013)	170-172
<i>Cincinnati Metro. Hous. Auth. v. Brown</i> , No. C-010459 (Ohio App., 1st Dist., Feb. 27, 2002)	183
<i>Cincinnati Metro. Hous. Auth. v. Browning</i> , No. C-010055, 2002 WL 63491 (Ohio App., 1st Dist., Jan. 18, 2002)	250
<i>Cincinnati Metro. Hous. Auth. v. Cockrell</i> , No. C-070647 (Ohio App., 1st Dist., Dec. 17, 2008)	228
<i>Cincinnati Metro. Hous. Auth. v. Cox</i> , No. 01-CV-24085 (Ohio Mun., Hamilton Cty., June 4, 2002)	233,258
<i>Cincinnati Metro. Hous. Auth. v. Edwards</i> , 174 Ohio App.3d 174, 881 N.E.2d 325 (1st Dist. 2007)	228,229
<i>Cincinnati Metro. Hous. Auth. v. Fambro</i> , No. C-790556, 1980 Ohio App. LEXIS 10243 (Ohio App., 1st Dist., Oct. 22, 1980)	141,142
<i>Cincinnati Metro. Hous. Auth. v. Foster</i> , No. 97-CV-06298 (Ohio Mun., Hamilton Cty., Nov. 18, 1997)	245
<i>Cincinnati Metro. Hous. Auth. v. Foster</i> , No. 88-CV-05432 (Ohio Mun., Hamilton Cty., Aug. 31, 1988)	94,186
<i>Cincinnati Metro. Hous. Auth. v. Green</i> , 41 Ohio App.3d 365, 536 N.E.2d 1 (1st Dist. 1987)	227
<i>Cincinnati Metro. Hous. Auth. v. Harris</i> , Nos. C-820540,820541, 1983 WL 8893 (Ohio App., 1st Dist., June 15, 1983)	178,182,245
<i>Cincinnati Metro. Hous. Auth. v. McCollum</i> , 45 Ohio App.2d 197, 341 N.E.2d 857 (1st Dist. 1975)	11,27,175,202
<i>Cincinnati Metro. Hous. Auth. v. Morgan</i> , 104 Ohio St.3d 445, 820 N.E.2d 315 (2004)	23,38,84
<i>Cincinnati Metro. Hous. Auth. v. Morgan</i> , 155 Ohio App.3d 189, 800 N.E.2d 64 (1st Dist. 2003)	38,84
<i>Cincinnati Metro. Hous. Auth. v. Patterson</i> , No. C-130161, 2013 WL 6409302 (Ohio App., 1st Dist., Dec. 6, 2013)	213,252
<i>Cipolla v. McCloskey</i> , No. 97-CA-006866, 1998 WL 852810 (Ohio App., 9th Dist., Dec. 9, 1998)	112,351
<i>Cipollone v. Hoffmeier</i> , No. C-060482, 2007 WL 2141578 (Ohio App., 1st Dist., July 27, 2007)	318,448

<i>Citizens Sav. Corp. v. Bukoffsky</i> , No. 90-CVG-1851 (Ohio Mun., Massillon, Aug. 30, 1990)	131
<i>City of Cincinnati v. PE Alms Realty LLC</i> , No. 1500883 (Ohio C.P., Hamilton Cty., Feb. 1, 2018)	455
<i>City of Cleveland v. A.J. Rose Mfg. Co.</i> , 89 Ohio App.3d 267, 624 N.E.2d 245 (8th Dist. 1993)	70,402,514-516, 564,565
<i>City of Cleveland v. Posner</i> , 193 Ohio App.3d 211, 951 N.E.2d 476 (8th Dist. 2011)	659,662
<i>City of Cleveland v. State</i> , 138 Ohio St.3d 232, 5 N.E.3d 644 (2014)	293
<i>City of Cleveland v. Sundorph Aeronautical Corp.</i> , No. 59739, 1991 WL 34719 (Ohio App., 8th Dist., Mar. 14, 1991)	89,564
<i>City of Columbus v. Parks</i> , No. 10AP-574, 2011 WL 1781911 (Ohio App., 10th Dist., May 5, 2011)	367
<i>City of Evanston v. O'Leary</i> , 244 Ill. App.3d 190, 614 N.E.2d 114 (1993)	304
<i>City of Jacksonville v. Byrd</i> , No. 95-0025-AP, 4 Fla. L. Weekly 497a (Cir. Ct. Nov. 21, 1995)	244
<i>City of Kent v. Hermann</i> , No. 95-P-0042, 1996 WL 210780 (Ohio App., 11th Dist., Mar. 8, 1996)	363,366
<i>City of Lakewood v. Novak</i> , 111 Ohio Misc.2d 1, 746 N.E.2d 719 (Ohio Mun., Lakewood, 2000)	384,395
<i>City of Seven Hills v. City of Cleveland</i> , 47 Ohio App.3d 159, 547 N.E.2d 1024 (8th Dist. 1988)	543
<i>Clark v. Alexander</i> , 85 F.3d 146 (4th Cir. 1996)	
<i>Clark v. Mills</i> , No. 20-CVG-01530 (Ohio Mun., Akron, June 10, 2020)	361
<i>Clark v. Reynolds</i> , No. 77749, 2000 WL 1714927 (Ohio App., 8th Dist., Nov. 16, 2000)	74
<i>Clark v. Schiff</i> , No. 05-CVG-1103 (Ohio Mun., Chillicothe, July 24, 2006)	410
<i>Clark Props. v. Hawk</i> , No. 76AP-490, 1976 Ohio App. LEXIS 8193 (Ohio App., 10th Dist., Dec. 21, 1976)	56,68,155
<i>Clarke v. Royal</i> , No. 20AP-366, 2021 WL 2443751 (Ohio App., 10th Dist., June 15, 2021)	497,498,502, 504,505,547
<i>Classic A Props. v. Brown</i> , No. 02-CA-2868, 2003 WL 22461816 (Ohio App., 4th Dist., Sept. 30, 2003)	10,11,130

<i>Classic A Props. v. Brown</i> , No. 02-CA-2868 (Ohio App., 4th Dist., Dec. 18, 2002)	112
<i>Classic Real Estate v. Bowen</i> , No. M79-CVG-01404 (Ohio Mun., Franklin Cty., Mar. 12, 1979)	142,600
<i>Claypool v. Dews</i> , No. 18-CA-0925, 2018 WL 6930496 (Ohio App., 7th Dist., Dec. 31, 2018)	33,35
<i>Clayton Jaycee Hous. v. Salmon</i> , No. 2006AP-060032 (Ohio App., 5th Dist., June 26, 2006)	109
<i>Cleavinger v. Bd. of County Comm'rs of Hamilton County</i> , 72 Ohio App.3d 187, 594 N.E.2d 135 (1st Dist. 1991)	656
<i>Clements v. Mayhew</i> , No. 2006-CA-126, 2007 WL 2070362 (Ohio App., 2nd Dist., July 20, 2007)	598
<i>Cleveland Bar Ass'n v. Picklo</i> , 96 Ohio St.3d 195, 772 N.E.2d 1187 (2002)	195
<i>Cleveland Hous. Network Ltd. P'ship X v. Salgado</i> , No. 96-CVG-10871 (Ohio Mun., Cleveland, Hous. Div., July 16, 1996)	140,141,351
<i>Cleveland Hous. Renewal Project v. Wells Fargo Bank, N.A.</i> , 188 Ohio App.3d 36, 934 N.E.2d 372 (8th Dist. 2010)	564
<i>Cleveland Metro. Hous. Auth. v. Crowder</i> , No. 79355, 2002 WL 192083 (Ohio App., 8th Dist., Feb. 7, 2002)	108
<i>Cleveland Mobile Radio Sales, Inc. v. Verizon Wireless</i> , 113 Ohio St.3d 394, 865 N.E.2d 1275 (2007)	615
<i>Cliffview Manor Apts. v. Jefferson</i> , No. 91-CVG-11203 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 1992)	538
<i>Clinton Metro. Hous. Auth. v. Arrington</i> , No. 88-CVG-139 (Ohio Mun., Wilmington, May 19, 1988)	183
<i>Cochran v. Larson</i> , No. 7311, 1982 WL 3656 (Ohio App., 2nd Dist., Jan. 8, 1982)	507
<i>Cochran v. Widra</i> , 35 Ohio Law Abs. 608, 41 N.E.2d 875 (9th Dist. 1931)	405,420
<i>Cody v. Bettinger</i> , No. 96-CVG-00965 (Ohio Mun., Marietta, Jan. 3, 1997)	15
<i>Coeurvie v. McGonigal</i> , No. 27095, 2014 WL 4824449 (Ohio App., 9th Dist., Sept. 30, 2014)	430-432
<i>Cohen v. Werner</i> , 82 Misc.2d 295, 368 N.Y.S.2d 1005 (Civ. Ct. 1975)	335
<i>Colbert v. McLemore</i> , No. 81961, 2003 WL 21434169 (Ohio App., 8th Dist., June 19, 2003)	10,11,108, 123-126

<i>Colegrove v. City of Cleveland</i> , No. 74-1007 (N.D. Ohio June 25, 1987)	611
<i>Coleman v. Faith Mission</i> , No. 01-CVH-10988 (Ohio C.P., Franklin Cty., June 17, 2002)	298
<i>Coleman v. Hernandez</i> , 490 F. Supp. 2d 278 (D. Conn. 2007)	266
<i>Coleman v. Mansfield Metro. Hous. Auth.</i> , No. 2011-CV-1071H (Ohio C.P., Richland Cty., July 10, 2012)	667
<i>College Hills Apts. v. McLaughlin</i> , No. 2010-CVG-04025 (Ohio Mun., Clermont Cty., Mar. 10, 2011)	340
<i>Collins v. Jackson</i> , 34 Ohio App.3d 101, 517 N.E.2d 269 (8th Dist. 1986)	196
<i>Collins v. Loretz</i> , No. 637836 (Ohio C.P., Cuyahoga Cty., Aug. 6, 2008)	470
<i>Colombo Enters., Inc. v. Fegan</i> , 142 Ohio App.3d 551, 756 N.E.2d 211 (8th Dist. 2001)	70
<i>Colonial Am. Dev. v. Morey</i> , No. M88-CVG-42042 (Ohio Mun., Franklin Cty., Feb. 15, 1989)	259
<i>Colonial Am. Dev. Co. v. Griffith</i> , 48 Ohio St.3d 72, 549 N.E.2d 513 (1990)	7,92
<i>Colonial Am. Dev. Corp., Etc. v. Walters</i> , No. CA-87-8, 1987 WL 25252 (Ohio App., 5th Dist., Nov. 17, 1987)	32
<i>Colonial Oaks Props. LLC v. Hurst</i> , No. 2021-CVG-00455 (Ohio Mun., Elyria, Dec. 9, 2020)	21
<i>Colonial Oaks Prop., LLC v. Kilby</i> , No. 2018-CVG-03281 (Ohio Mun., Elyria, Dec. 9, 2020)	97
<i>Colquett v. Byrd</i> , 59 Ohio Misc. 45, 392 N.E.2d 1328 (Ohio Mun., Mansfield, 1979)	472,473,561
<i>Columbia-Athens, Ltd. v. Bagley</i> , No. CIG-87-2-23 (Ohio Mun., Athens Cty., July 1, 1987)	183
<i>Columbia-Brook Park Mgmt., LLC v. Schindler</i> , No. 01-CVJ-02061 (Ohio Mun., Berea, Mar. 1, 2002)	349
<i>Columbiana Metro. Hous. Auth. v. Parker</i> , No. 03-CO-46, 2004 WL 1533250 (Ohio App., 7th Dist., June 28, 2004)	30,31
<i>Columbus Fins. Inc. v. Howard</i> , 42 Ohio St.2d 178, 327 N.E.2d 654 (1975)	543
<i>Columbus Metro. Hous. v. Wagner</i> , No. M9410-CVG-31661 (Ohio Mun., Franklin Cty., Dec. 5, 1994)	183

<i>Columbus Metro. Hous. Auth. v. Baker</i> , No. 91-CVG-010490 (Ohio Mun., Franklin Cty., Apr. 19, 1991)	231,257
<i>Columbus Metro. Hous. Auth. v. Curry</i> , No. M1999-CVG-035067 (Ohio Mun., Franklin Cty., Jan. 21, 2000)	47
<i>Columbus Metro. Hous. Auth. v. Horsley</i> , No. M9510-CVG-028670 (Ohio Mun., Franklin Cty., Feb. 2, 1996)	205,206
<i>Columbus Metro. Hous. Auth. v. Jackson</i> , No. 81AP-802, 1982 WL 4010 (Ohio App., 10th Dist., Mar. 4, 1982)	144,355
<i>Columbus Metro. Hous. Auth. v. Johnson</i> , No. M9201-CVG-00579 (Ohio Mun., Franklin Cty., Feb. 13, 1992)	184
<i>Columbus Metro. Hous. Corp. v. Crawley</i> , No. M9305-CVG-015704 (Ohio Mun., Franklin Cty., Aug. 2, 1993)	183
<i>Commercial Bank & Sav. Co. v. Woodville Sav. Bank Co.</i> , 126 Ohio St. 587, 186 N.E. 444 (1933)	361
<i>Committed Cmty. Assocs. v. Crosswell</i> , 250 A.D.2d 845, 673 N.Y.S.2d 708 (1998)	407
<i>Commonwealth of Virginia v. Hicks</i> , 267 Va. 573, 596 S.E.2d 74 (2004)	367
<i>Cmty. Dev. Props. Cleveland, Inc. v. Griffin</i> , No. 87954, 2007 WL 613956 (Ohio App., 8th Dist., Mar. 1, 2007)	106,327
<i>Cmty. Gardens Park & Sales, Inc. v. Roe</i> , No. M8109-CVG-027176 (Ohio Mun., Franklin Cty., Nov. 6, 1981)	38,290,579
<i>Cmty. Props. of Ohio Mgmt. Servs. v. Taylor</i> , No. 2009-CVG-001131 (Ohio Mun., Franklin Cty., May 11, 2009)	211,255,256
<i>Compton v. Spinks</i> , No. CA2003-08-019, 2004 WL 1543201 (Ohio App., 12th Dist., July 12, 2004)	502,503
<i>Comston v. Licking Metro. Hous. Auth.</i> , No. 11-CV-0246 (Ohio C.P., Licking Cty., Feb. 28, 2011)	657
<i>Congdon v. Senters</i> , No. 99-CA-43, 1999 WL 1071768 (Ohio App., 5th Dist., Nov. 16, 1999)	504-507,550
<i>Congdon v. Senters</i> , No. 98-CA-55, 1999 WL 4058 (Ohio App., 5th Dist., Dec. 23, 1998)	505
<i>Conifers Ltd. P'ship v. McWilliams</i> , No. 13721, 1993 WL 224755 (Ohio App., 2nd Dist., June 23, 1993)	87
<i>Conner v. Conner</i> , 114 N.E.3d 281, 2018-Ohio-2698 (Ohio App., 4th Dist., 2018)	292,471

<i>Conner v. Cuyahoga Metro. Hous. Auth.</i> , No. 254421 (Ohio C.P., Cuyahoga Cty., Nov. 19, 1993)	660
<i>Consol. Edison Co. v. NLRB</i> , 305 U.S. 197 (1938)	662
<i>Consol. Mgmt., Inc. v. R.C.T., Inc.</i> , Nos. 2001-L-153,156 2002 WL 31862650 (Ohio App., 11th Dist., Dec. 20, 2002)	102,103
<i>Cont'l Enters., Ltd. v. Franklin</i> , No. 102899, 2016 WL 2941209 (Ohio App., 8th Dist., May 19, 2016)	162,291,396
<i>Cont'l Enters., Ltd. v. Hunt</i> , No. 102200, 2015 WL 9460300 (Ohio App., 8th Dist., Dec. 24, 2015)	374,396,594
<i>Cont'l Inv. P'ship v. Hukill</i> , No. 06-CV-131 (Ohio Mun., Delaware, Mar. 8, 2006)	363,589
<i>Conway v. Liddell</i> , No. 79799, 2002 WL 398687 (Ohio App., 8th Dist., Mar. 14, 2002)	328,401
<i>Conway v. Nissley</i> , No. 68536, 1995 WL 723298 (Ohio App., 8th Dist., Dec. 7, 1995)	147,150,155
<i>Cook v. Criminger</i> , No. 22313, 2005 WL 957023 (Ohio App., 9th Dist., Apr. 27, 2005)	83
<i>Cook v. Crossings, LLC</i> , No. 13-CA-010463, 2015 WL 1137860 (Ohio App., 9th Dist., Mar. 16, 2015)	330
<i>Cook v. Downey</i> , No. 87AP-1075, 1988 WL 70446 (Ohio App., 10th Dist., June 30, 1988)	505,550
<i>Cook v. Heritage Glen Apts.</i> , No. CA96-03-055, 1996 WL 535238 (Ohio App., 12th Dist., Sept. 23, 1996)	510
<i>Cooper v. Aberts</i> , No. 98-CVG-384 (Ohio Mun., Mansfield, Feb. 25, 1998)	17
<i>Cooper v. Curtis</i> , No. CA-8378, 1991 WL 147797 (Ohio App., 5th Dist., July 22, 1991)	284,288
<i>Cooper v. Feeney</i> , 34 Ohio App.3d 282, 518 N.E.2d 46 (12th Dist. 1986)	440,534,535
<i>Cooper v. Roose</i> , 151 Ohio St. 316, 85 N.E.2d 545 (1949)	363,420
<i>Copeland v. Hous. Auth. of Hollywood</i> , 300 Fed. Appx. 843, 2008 WL 4997184 (11th Cir. 2008)	671
<i>Corbin v. Stevens</i> , No. 91-Civ-1054, 1992 WL 96684 (S.D.N.Y. Apr. 30, 1992)	484
<i>Corley v. Sullivan-Busman</i> , No. 99420, 2013 WL 4976381 (Ohio App., 8th Dist., Sept. 12, 2013)	105

<i>Cornacchione v. Akron Bd. of Zoning Appeals</i> , 118 Ohio App.3d 388, 692 N.E.2d 1083 (9th Dist. 1997)	656
<i>Cornerstone Cos. v. Zipkin</i> , 60 Ohio Misc.2d 14, 573 N.E.2d 228 (Ohio Mun., Akron, 1989)	123,124
<i>Cornerstone of Kettering v. Hood</i> , No. 05-CVG-2546 (Ohio Mun., Kettering, June 24, 2005)	142
<i>Cornwell & Taylor LLP v. Moore</i> , No. C8-00-1000, 2000 WL 1887528 (Minn. App. Dec. 22, 2000)	171
<i>Corrin v. Gamboa</i> , No. 91-CVG-7366 (Ohio Mun., Canton, June 17, 1992)	414
<i>Coshocton Metro. Hous. Auth. v. Dockery</i> , No. 99-CA-24, 2000 WL 968691 (Ohio App., 5th Dist., July 5, 2000)	109,112,114
<i>Costa v. Fall River Hous. Auth.</i> , 71 Mass. App. Ct. 269, 881 N.E.2d 800 (2008)	663
<i>Costantino v. Lyons</i> , No. 3774, 1987 WL 31096 (Ohio App., 11th Dist., Dec. 18, 1987)	43,285
<i>Costanzo v. Gross</i> , No. 2008-CVG-4234 (Ohio Mun., Cuyahoga Falls, Nov. 21, 2008)	355
<i>Cotofan v. Cully</i> , No. 58285, 1991 WL 76028 (Ohio App., 8th Dist., May 9, 1991)	64
<i>Cotrell v. City of Piqua</i> , No. 2000-CA-44, 2001 WL 62811 (Ohio App., 2nd Dist., Jan. 26, 2001)	294
<i>Cotterman v. Fahrig</i> , 55 Ohio App.2d 15, 378 N.E.2d 742 (2nd Dist. 1972)	8,48
<i>Cotton v. McQueen</i> , No. CVG-0700796 (Ohio Mun., Cleveland Heights, July 10, 2007)	261
<i>Country Club Vill. Mobile Home Park v. Gall</i> , No. 958, 1980 WL 154220 (Ohio App., 11th Dist., Oct. 20, 1980)	571
<i>Countrybrook Apts. v. Forsythe</i> , No. M86-CVG-20896 (Ohio Mun., Franklin Cty., Aug. 28, 1986)	203,204,254,365
<i>Courts v. Buckeye Lake Estates Mobile Home Park</i> , No. 01-CA-00121, 2002 WL 1299838 (Ohio App., 5th Dist., June 4, 2002)	566
<i>Couture v. Burlington Hous. Auth.</i> , 225 B.R. 58 (D. Vt. 1998)	270,274
<i>Cover v. Hensley</i> , No. OT-85-10, 1985 WL 4804 (Ohio App., 6th Dist., Dec. 31, 1985)	470

<i>Cover v. Hensley</i> , No. 84-CVH-608 (Ohio Mun., Port Clinton, Mar. 13, 1985)	470
<i>Cowan v. Hidden Lake</i> , No. 17053, 1995 WL 523349 (Ohio App., 9th Dist., Sept. 6, 1995)	449
<i>Cox v. City of Lorain</i> , No. C84-2987 (N.D. Ohio Nov. 14, 1984)	612
<i>Cox v. Parish</i> , 66 Ohio App.3d 138, 583 N.E.2d 1039 (8th Dist. 1990)	491
<i>Coyne v. YWCA of Greater Toledo</i> , No. CVG-06-15975 (Ohio Mun., Toledo, Hous. Div., Nov. 7, 2006)	297,301
<i>Crabtree Invs., Inc. v. Clevinger</i> , No. 99-CVG-289 (Ohio Mun., Hocking, Aug. 26, 1999)	191
<i>Craft v. Memphis Light, Gas & Water Div.</i> , 534 F.2d 684 (6th Cir. 1976)	609
<i>Craft v. Oney</i> , No. 8766, 1984 WL 4060 (Ohio App., 2nd Dist., Oct. 17, 1984)	467,535
<i>Craig Wrecking Co. v. Loewendick & Sons, Inc.</i> , 38 Ohio App.3d 79, 526 N.E.2d 321 (10th Dist. 1987)	104,132,514-516
<i>Craver v. Doogan</i> , No. 2003-CVC-00982, 2005 WL 4985282 (Ohio C.P., Clermont Cty., May 27, 2005)	310,431,616
<i>Crawford v. Norman</i> , 46 Ohio Law Abs. 404, 66 N.E.2d 559 (Ohio App., 2nd Dist., 1946)	19,20
<i>Crawford v. Tivener</i> , No. 15-CA-22, 2016 WL 5638379 (Ohio App., 5th Dist., Sept. 22, 2016)	471
<i>Crawford v. Wolfe</i> , No. 01-CA-2811, 2002 WL 31521593 (Ohio App., 4th Dist., Sept. 26, 2002)	444
<i>Crawley v. Brown</i> , No. 2005-CVG-16627 (Ohio Mun., Cleveland, Hous. Div., Oct. 6, 2005)	128,131,263, 399,407,411
<i>Crease v. Woods of Centerville</i> , No. 14819, 1995 WL 632085 (Ohio App., 2nd Dist., Oct. 25, 1995)	386
<i>Crenshaw v. Rowland</i> , 196 Ohio App.3d 717, 965 N.E.2d 341 (6th Dist. 2011)	471
<i>Crest Mgmt., Inc. v. Kanonju</i> , No. 15848, 1993 WL 107839 (Ohio App., 9th Dist., Apr. 14, 1993)	521
<i>Cresthaven Dev., Inc. v. Franklin</i> , No. 76079, 2000 WL 336525 (Ohio App., 8th Dist., Mar. 30, 2000)	88

<i>Crigger v. Shaw</i> , No. E-93-62, 1994 WL 68499 (Ohio App., 6th Dist., Feb. 25, 1994)	12,20,22
<i>Crim v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-17-875960 (Ohio C.P., Cuyahoga Cty., Apr. 20, 2017)	659
<i>Crisalli v. Mearini</i> , No. 84245, 2004 WL 2578868 (Ohio App., 8th Dist., Nov. 10, 2004)	70,71
<i>Crisp v. City of Portsmouth</i> , No. 88-416 (S.D. Ohio Jan. 17, 1989)	611
<i>Cristal v. DRC Int'l, Inc.</i> , 74 Ohio App.3d 493, 599 N.E.2d 706 (8th Dist. 1991)	497,556
<i>Crooks v. Kingery</i> , No. 94-CVG-495 (Ohio Mun., Chillicothe, June 14, 1995)	413
<i>Crossings Dev. Ltd. P'ship v. H.O.T., Inc.</i> , 96 Ohio App.3d 475, 645 N.E.2d 159 (9th Dist. 1994)	69,108,109
<i>Crossings, LLC v. Coinmach Corp.</i> , No. 2008-CVG-01528 (Ohio Mun., Elyria, June 12, 2008)	353,355
<i>Crossroads Somerset Ltd. v. Newland</i> , 40 Ohio App.3d 20, 531 N.E.2d 327 (10th Dist. 1987)	139,142,215, 221,224,225
<i>Croxford v. Litchfield</i> , No. 1491, 1992 WL 20818 (Ohio App., 4th Dist., Jan. 27, 1992)	544,553
<i>Croxton v. Freisner</i> , 62 Ohio Misc.2d 513, 603 N.E.2d 1162 (Ohio Mun., Canton, 1992)	187,194
<i>Crutchley v. Costa</i> , No. SP5270/01, 2002 WL 452200 (N.Y. Dist. Ct. Feb. 13, 2002)	265
<i>Crutchley v. Costa</i> , No. SP5270/01, 2001 WL 1666007 (N.Y. Dist. Ct. Dec. 6, 2001)	265
<i>Cruz Mgmt. Co. v. Wideman</i> , 417 Mass. 771, 633 N.E.2d 384 (1994)	407
<i>Crystal Tower Apts. v. Adkins</i> , No. 83-CVG-223 (Ohio Mun., East Cleveland, Feb. 25, 1983)	191
<i>Cubbedge-Parker v. Dillard</i> , No. L-15-1245, 2016 WL 3219274 (Ohio App., 6th Dist., June 10, 2016)	534
<i>Cummings v. Cortese</i> , No. R88-CVE-2278 (Ohio Mun., Portage Cty., Dec. 4, 1989)	390,415
<i>Cummings v. Getz</i> , No. CA84-09-105, 1985 WL 8164 (Ohio App., 12th Dist., Feb. 11, 1985)	370,371,375

<i>Cummings v. Hale</i> , No. 15-cv-04723-JCS, 2017 WL 3669622 (N.D. Cal. May 17, 2017)	266
<i>Cunningham v. Phoenix Mgmt., Inc.</i> , 540 A.2d 1099 (D.C. App. 1988)	62,67
<i>Cupp v. Olp</i> , No. 2020-CVG-001317 (Ohio Mun., Wayne Cty., Mar. 29, 2021)	467
<i>Curtis v. Surrette</i> , 49 Mass. App. Ct. 99, 726 N.E.2d 967 (2000)	154,156,264
<i>Cuvier Press Club v. Fourth & Race St. Assocs., Ltd.</i> , 1 Ohio App. 3d 30, 439 N.E.2d 443 (1st Dist. 1981)	297,597
<i>Cuyahoga Metro. Hous. Auth. v. Bederman</i> , No. 96-CVG-02208 (Ohio Mun., Cleveland, Hous. Div., Feb. 28, 1996)	216,221
<i>Cuyahoga Metro. Hous. Auth. v. Binion</i> , No. 2002-CVG-5589 (Ohio Mun., Cleveland, Hous. Div., Aug. 29, 2002)	228,229
<i>Cuyahoga Metro. Hous. Auth. v. Blake</i> , No. 98-CVG-05998 (Ohio Mun., Cleveland, Hous. Div., Aug. 19, 1999)	251
<i>Cuyahoga Metro. Hous. Auth. v. Brown</i> , No. 43566, 1981 WL 4963 (Ohio App., 8th Dist., May 21, 1981)	202,219
<i>Cuyahoga Metro. Hous. Auth. v. Coley</i> , No. 2001-CVG-19335 (Ohio Mun., Cleveland, Hous. Div., May 2, 2003, and Jan. 29, 2004)	217,526,527
<i>Cuyahoga Metro. Hous. Auth. v. Davis</i> , 197 Ohio App.3d 411, 967 N.E.2d 1244 (8th Dist. 2011)	246
<i>CMHA v. Gauntt</i> , No. 2014-CVG-001938 (Ohio Mun., Cleveland, Hous. Div., Dec. 4, 2014)	252
<i>Cuyahoga Metro. Hous. Auth. v. Hairston</i> , 124 Ohio Misc.2d 1, 790 N.E.2d 828 (Ohio Mun., Cleveland, Hous. Div., 2003)	134,135,247
<i>Cuyahoga Metro. Hous. Auth. v. Harris</i> , 139 Ohio Misc.2d 96, 861 N.E.2d 179 (Ohio Mun., Cleveland, Hous. Div., 2006)	245-247
<i>CMHA v. Hawthorne</i> , No. 2012-CVG-007158 (Ohio Mun., Cleveland, Hous. Div., July 30, 2012, and Nov. 30, 2012)	19,131,132,134, 135
<i>CMHA v. Holliman</i> , No. 2003-CVG-019864 (Ohio Mun., Cleveland, Hous. Div., Nov. 12, 2003)	102
<i>Cuyahoga Metro. Hous. Auth. v. Humphries</i> , No. 93-CVG-06480 (Ohio Mun., Cleveland, Hous. Div., Jan. 3, 1996)	565
<i>Cuyahoga Metro. Hous. Auth. v. Humphries</i> , No. 93-CVG-6480 (Ohio Mun., Cleveland, Hous. Div., June 29, 1993)	172

<i>Cuyahoga Metro. Hous. Auth. v. Jackson</i> , 67 Ohio St.2d 129, 423 N.E.2d 177 (1981)	1,7,9,40,91,108
<i>Cuyahoga Metro. Hous. Auth. v. Jenkins</i> , No. 2005-CVG-22841 (Ohio Mun., Cleveland, Hous. Div., Feb. 7, 2006)	564,565
<i>CMHA v. Johnson</i> , No. 2004-CVG-10962 (Ohio Mun., Cleveland, Hous. Div., Aug. 11, 2004)	81
<i>Cuyahoga Metro. Hous. Auth. v. Mallett</i> , No. 93-CVG-09659 (Ohio Mun., Cleveland, Hous. Div., Jan. 7, 1994)	12,206
<i>CMHA v. Manns</i> , No. 107156, 2019 WL 1755414 (Ohio App., 8th Dist., Apr. 18, 2019)	228
<i>CMHA v. Matthew</i> , No. 2007-CVG-16146 (Ohio Mun., Cleveland, Hous. Div., Apr. 30, 2008)	106
<i>CMHA v. Miller</i> , No. 2003-CVG-09190 (Ohio Mun., Cleveland, Hous. Div., Dec. 3, 2003)	82
<i>Cuyahoga Metro. Hous. Auth. v. Moon</i> , No. 2006-CVG-10893 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2006)	88
<i>Cuyahoga Metro. Hous. Auth. v. Mundy</i> , No. 2007-CVG-25841 (Ohio Mun., Cleveland, Hous. Div., Dec. 17, 2007)	245,247
<i>Cuyahoga Metro. Hous. Auth. v. Owens</i> , No. 92-CVG-5159 (Ohio Mun., Cleveland, Hous. Div., Apr. 21, 1992)	20,22
<i>CMHA v. Ramsey</i> , No. 2018-CVG-01334 (Ohio Mun., Cleveland, Hous. Div., Oct. 12, 2018)	245
<i>CMHA v. Stewart</i> , No. 12-CVG-20068 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 2013)	252
<i>CMHA v. Stewart</i> , No. 06-3698 (Ohio Mun., Cleveland, Hous. Div., Mar. 1, 2006)	252
<i>CMHA v. Taylor</i> , No. 2007-CVG-3787 (Ohio Mun., Cleveland, Hous. Div., July 5, 2007)	245
<i>Cuyahoga Metro. Hous. Auth. v. Watkins</i> , 23 Ohio App.3d 20, 491 N.E.2d 701 (8th Dist. 1984)	164,277,346, 462,463,553, 555,631,632,641
<i>Cuyahoga Metro. Hous. Auth. v. Younger</i> , 93 Ohio App.3d 819, 639 N.E.2d 1253 (8th Dist. 1994)	201,206-208,210
<i>Cuyahoga River Assocs. Ltd. P'ship v. MJK Corp.</i> , No. 68673, 1996 WL 17292 (Ohio App., 8th Dist., Jan. 18, 1996)	8,59,60,62,63, 65,66,144

Cuzzort v. Rose, No. CA-9791, 1986 WL 12632 (Ohio App., 2nd Dist., Nov. 6, 1986) 520,529,534,537

Czerwonko v. Sahara Mobile Home Park & Sales, Inc., 137 Ohio App.3d 266, 738 N.E.2d 461 (11th Dist. 2000) 290,579

D

D.A.B.E., Inc. v. Toledo-Lucas County Bd. of Health, 96 Ohio St.3d 250, 773 N.E.2d 536 (2002) 191

DAK, PLL v. Borgerding, No. 02AP-1051, 2003 WL 21469136 (Ohio App., 10th Dist., June 26, 2003) 239,337,339

D.C. Hughes Mgmt. Co. v. Webster, No. B101,837 (Ohio Mun., Cleveland, Dec. 20, 1974) 340

DDM LLC v. Fiorentini, No. 97-CVG-06455 (Ohio Mun., Cleveland, Hous. Div., Apr. 15, 1997) 193

DPS Trust v. Sherman, No. 2001-L-133, 2002 WL 1750868 (Ohio App., 11th Dist., July 26, 2002) 189

Dabydeen v. Ortiz, No. 2013-CVG-011770 (Ohio Mun., Cleveland, Hous. Div., Oct. 29, 2013) 196

Dadian v. Vill. of Wilmette, 291 F.3d 831 (7th Cir. 2001) 171

Dakota County HRA v. Blackwell, 602 N.W.2d 243 (Minn. 1999) 255

Dalton v. Acker, 5 Ohio App.3d 150, 450 N.E.2d 288 (5th Dist. 1981) 645

Damko v. Ryncarz, No. 1906, 1988 WL 81291 (Ohio App., 11th Dist., July 29, 1988) 124

Damron v. McKnight, No. 03-CVG-524 (Ohio Mun., Chillicothe, Dec. 12, 2003) 411

Danello v. Holyko, No. 50339, 1986 WL 3471 (Ohio App., 8th Dist., Mar. 20, 1986) 536

Daniels v. Decker, No. 08-CVG-00042, 2008 WL 5537151 (Ohio County Ct., Harrison Cty., June 10, 2008) 286

Daniels v. Thompson, No. 49015, 1985 WL 7992 (Ohio App., 8th Dist., Apr. 25, 1985) 616

Dardy v. Thompson, No. 2013-G-3157, 2014 WL 2883278 (Ohio App., 11th Dist., June 23, 2014) 439

Darmetko v. Boston Hous. Auth., 378 Mass. 758, 393 N.E.2d 395 (1979) 418

<i>Daughery v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-07-625529 (Ohio C.P., Cuyahoga Cty., Aug. 11, 2010)	660
<i>David v. Edwood Dev. Co.</i> , No. 19252, 2000 WL 46107 (Ohio App., 9th Dist., Jan. 12, 2000)	179
<i>Davis v. Boyajian</i> , 11 Ohio Misc. 97, 229 N.E.2d 116 (C.P., Stark Cty., 1967)	602,603
<i>Davis v. Burns</i> , No. 9-97-39, 1997 WL 638276 (Ohio App., 3rd Dist., Oct. 10, 1997)	433,434,446
<i>Davis v. Freeman</i> , No. 57245, 1990 WL 130919 (Ohio App., 8th Dist., Sept. 13, 1990)	564
<i>Davis v. Johnson</i> , No. L-19-1268, 2021 WL 141504 (Ohio App., 6th Dist., Jan. 15, 2021)	639
<i>Davis v. Mansfield Metro. Hous. Auth.</i> , 751 F.2d 180 (6th Cir. 1984)	663
<i>Davis v. Reed</i> , Nos. 68699,68700, 1996 WL 347814 (Ohio App., 8th Dist., June 20, 1996)	89,162,462,464, 548,554,555
<i>Davis v. Risten</i> , No. 2010-CVG-951 (Ohio Mun., Canton, Mar. 1, 2010)	39
<i>Davis v. Scullark</i> , No. 57456, 1990 WL 145642 (Ohio App., 8th Dist., Oct. 4, 1990)	146,349,362
<i>Davis v. Sean M. Holley Agency, Inc.</i> , No. 23891, 2010 WL 4311683 (Ohio App., 2nd Dist., Oct. 29, 2010)	333
<i>Davis v. Tunison</i> , 168 Ohio St. 471, 155 N.E.2d 904 (1959)	543
<i>Davis v. Vill. Park II Realty</i> , 578 F.2d 461 (2d Cir. 1978)	268
<i>Davis v. Weir</i> , 497 F.2d 139 (5th Cir. 1974)	608,609
<i>Davis v. Wesolowski</i> , 146 N.E.3d 633, 2020-Ohio-677 (Ohio App., 8th Dist., 2020)	496,509
<i>Davis-Blunt v. Myatt</i> , 134 Ohio App.3d 213, 730 N.E.2d 1003 (1st Dist. 1999)	445,448
<i>Day v. Baker</i> , No. CA2003-06-140, 2004 WL 2340656 (Ohio App., 12th Dist., Oct. 18, 2004)	124
<i>Dayton Inv. Group-7 v. Lathern</i> , No. 15866, 1996 WL 741822 (Ohio App., 2nd Dist., Dec. 13, 1996)	108,135,232,257
<i>Dayton Metro. Hous. Auth. v. Cantrell</i> , No. 85-CVG-7589 (Ohio Mun., Dayton, Oct. 10, 1985)	227,260

<i>Dayton Metro. Hous. Auth. v. Jeffrey</i> , No. 09-CVG-7378 (Ohio Mun., Dayton, Jan. 4, 2010)	140-142
<i>Dayton Metro. Hous. Auth. v. Kilgore</i> , 194 Ohio App.3d 767, 958 N.E.2d 187 (2nd Dist. 2011)	180,246
<i>Dayton Metro. Hous. Auth. v. Lawson</i> , No. 85-CVG-9998 (Ohio Mun., Dayton, Nov. 20, 1985)	227
<i>Dayton Metro. Hous. Auth. v. McKee</i> , 37 Ohio App.3d 102, 524 N.E.2d 180 (2nd Dist. 1987)	129,216,345,346
<i>Dayton Metro. Hous. Auth. v. Pitsinger</i> , No. 21126, 2006 WL 1132378 (Ohio App., 2nd Dist., Apr. 28, 2006)	260
<i>Dayton Metro. Hous. Auth. v. Russell</i> , 16 Ohio Op.3d 94 (Ohio App., 2nd Dist., 1980)	10,15
<i>DMHA v. Sacksteder</i> , No. 19253, 2005 WL 78547 (Ohio App., 2nd Dist., Jan. 14, 2005)	90
<i>Dayton Metro. Hous. Auth. v. Thompson</i> , No. 80-CVG-9597 (Ohio Mun., Dayton, Dec. 3, 1980)	227
<i>DMHA v. Walker</i> , No. 07-CVG-8591 (Ohio Mun., Dayton, Nov. 30, 2007)	40
<i>Dayton Metro. Hous. Auth. v. Westfall</i> , No. 79-CVG-7932 (Ohio Mun., Dayton, Oct. 15, 1979)	15,38,226,257
<i>Dayton Metro. Hous. Auth. v. Williams</i> , No. 88-CVG-1268 (Ohio Mun., Dayton, July 8, 1988)	213,257,258
<i>Dayton Sec. Assocs. v. Avuta</i> , 105 Ohio App.3d 559, 664 N.E.2d 954 (2nd Dist. 1995)	189
<i>Dayton Tool Rental v. Ealy</i> , No. 21849, 2007 WL 2897807 (Ohio App., 2nd Dist., Oct. 5, 2007)	150
<i>Dearwester v. Lagos</i> , 33 Ohio App.3d 199, 514 N.E.2d 1136 (3rd Dist. 1986)	491
<i>Dearwester's Gem City Estates v. Nelson</i> , No. 14320, 1994 WL 681104 (Ohio App., 2nd Dist., Dec. 7, 1994)	289,580
<i>DeBenedictus v. Gialamas</i> , No. 96-L-006, 1997 WL 51453 (Ohio App., 11th Dist., Jan. 24, 1997)	34,36,371,382
<i>Deegan Mgmt. Inc. v. Moss</i> , No. 14-CVG-00417 (Ohio Mun., Euclid, Mar. 4, 2014)	128
<i>Deerwood Mgmt. Co. v. Bernsdorf</i> , No. 78AP-470, 1978 Ohio App. LEXIS 10021 (Ohio App., 10th Dist., Nov. 28, 1978)	103,150

<i>Deerwood Mgmt. Co. v. Flint</i> , No. M85-CVG-24397 (Ohio Mun., Franklin Cty., Oct. 15, 1985)	226
<i>Dees v. Abrams</i> , No. 91-CVG-24751 (Ohio Mun., Cleveland, Hous. Div., Dec. 4, 1991)	152
<i>DeFreeze v. Lynch</i> , No. 107090, 2019 WL 993334 (Ohio App., 8th Dist., Feb. 28, 2019)	428,443,445
<i>Deutsch v. Music Co.</i> , 6 Ohio Misc.2d 6, 453 N.E.2d 1302 (Ohio Mun., Hamilton Cty., 1983)	420
<i>Del Manor v. Peterson</i> , No. 93-P-0039, 1994 WL 45269 (Ohio App., 11th Dist., Feb. 11, 1994)	94
<i>Delfino v. Paul Davies Chevrolet, Inc.</i> , 2 Ohio St.2d 282, 209 N.E.2d 194 (1965)	595,597
<i>Deli Table, Inc. v. Great Lakes Mall</i> , No. 95-L-012, 1996 WL 761984 (Ohio App., 11th Dist., Dec. 31, 1996)	482
<i>Delker v. Kerr</i> , No. L-96-110, 1996 WL 532319 (Ohio App., 6th Dist., Sept. 20, 1996)	296,309,310,490
<i>Delli-Gatti v. Kokolari</i> , No. 23469, 2007 WL 3356900 (Ohio App., 9th Dist., Nov. 14, 2007)	74
<i>DeLuca v. Bowden</i> , 42 Ohio St.2d 392, 329 N.E.2d 109 (1975)	337
<i>Denhart v. Cooper</i> , No. 78-CV-35878 (Ohio Mun., Hamilton Cty., Jan. 10, 1979)	32
<i>Denhart v. Whaley</i> , No. 88-CV-16092 (Ohio Mun., Hamilton Cty., Nov. 2, 1988)	32,250,257
<i>Denison W. Twenty-Fifth St. Improvement Co. v. Great Atl. & Pac. Tea Co.</i> , 46 Ohio Law Abs. 246, 69 N.E.2d 79 (Ohio App., 8th Dist., 1946)	175
<i>Denney v. Carroll</i> , No. 15-14-10, 2015 WL 1966227 (Ohio App., 3rd Dist., May 4, 2015)	26,32
<i>Denning v. Swanstrom</i> , No. A-97-761, 1998 WL 867250 (Neb. App. Nov. 3, 1998)	262
<i>Dennis v. Coble</i> , 18 Ohio App. 62 (6th Dist. 1923)	18
<i>Dennis v. Dudley</i> , No. 2002-CVG-12760 (Ohio Mun., Cleveland, Hous. Div., Jan. 28, 2003)	265
<i>Dennis v. Morgan</i> , 89 Ohio St.3d 417, 732 N.E.2d 391 (2000)	41,49,174,513, 518-520,522

<i>DePalmo v. George</i> , No. 88-CVG-0572 (Ohio Mun., Licking Cty., Aug. 23, 1988)	13,16,34
<i>Dep't of Hous. & Urban Dev. v. Rucker</i> , 535 U.S. 125 (2002)	240,244
<i>DePaz v. Bahramian</i> , Nos. C-130128,130317, 2013 WL 6672913 (Ohio App., 1st Dist., Dec. 18, 2013)	501
<i>Derrera v. Hamlin</i> , No. 02-CV-4851, 2003 WL 25500203 (Ohio C.P., Montgomery Cty., July 11, 2003)	55
<i>Detling v. Edelbrock</i> , 671 S.W.2d 265 (Mo. 1984)	316,400,418
<i>Detroit Hous. Ltd. P'ship v. Spurlock</i> , No. 03-CVG-08908 (Ohio Mun., Cleveland, Hous. Div., Sept. 23, 2003)	16
<i>Detroit Terrace Ltd. v. Bender</i> , No. 11-CVG-19350 (Ohio Mun., Cleveland, Hous. Div., Dec. 5, 2011)	81,202,210,242
<i>Detweiler v. Galt</i> , No. 01-CA-34, 2001 WL 1682822 (Ohio App., 4th Dist., Dec. 26, 2001)	34,36,371,381
<i>Deutsche Bank Nat'l Trust Co. v. Lovette</i> , No. 106546, 2018 WL 6266863 (Ohio App., 8th Dist., Nov. 29, 2018)	3,11,514
<i>DeVore v. Franklin Manor Apts.</i> , No. 98AP-779, 1999 WL 236040 (Ohio App., 10th Dist., Apr. 22, 1999)	429,430
<i>DeVore v. Higgins</i> , No. 99-CVG-06094 (Ohio Mun., Akron, Aug. 24, 1999)	181
<i>Diaz v. Cuyahoga Metro. Hous. Auth.</i> , No. 92907, 2010 WL 27868 (Ohio App., 8th Dist., Jan. 7, 2010)	620,621
<i>Dickerson v. Cuyahoga Metro. Hous. Auth.</i> , Nos. 100650,100943, 2014 WL 5408456 (Ohio App., 8th Dist., Oct. 23, 2014)	620
<i>Dickhut v. Norton</i> , 45 Wis.2d 389, 173 N.W.2d 297 (1970)	167
<i>Dicks v. Schmelzer</i> , Rent Escrow No. 14 (Ohio County Ct., Muskingum Cty., Aug. 15, 1986)	390
<i>Dickson v. Lancaster</i> , No. 06-CVG-288 (Ohio Mun., Jackson Cty., May 18, 2006)	410
<i>Di Fiore v. Booker</i> , No. 108946, 2020 WL 2992105 (Ohio App., 8th Dist., June 4, 2020)	83,164
<i>Diggs v. Hous. Auth. of City of Frederick</i> , 67 F. Supp. 2d 522 (D. Md. 1999)	367
<i>DiMarco v. Shay</i> , 154 Ohio App.3d 141, 796 N.E.2d 572 (10th Dist. 2003)	638

<i>DiMassimo v. City of Clearwater</i> , 805 F.2d 1536 (11th Cir. 1986)	608,609
<i>Dirnberg v. Hack</i> , No. S-86-39, 1987 WL 8012 (Ohio App., 6th Dist., Mar. 20, 1987)	468
<i>Disher v. Bannick</i> , No. 28903, 2021 WL 1499975 (Ohio App., 2nd Dist., Apr. 16, 2021)	73
<i>Dist. of Columbia v. Suydam</i> , 591 A.2d 856 (D.C. App. 1991)	137
<i>Diversified Realty Group, Inc. v. Davis</i> , 257 Ill. App.3d 417, 628 N.E.2d 1081 (1993)	249
<i>DiYorio v. Porter</i> , No. 81-CA-5, 1981 WL 4734 (Ohio App., 7th Dist., June 24, 1981)	631
<i>Doan Gardens, Ltd. v. Beverly</i> , No. 56551, 1989 WL 65646 (Ohio App., 8th Dist., June 15, 1989)	526
<i>Dobbins v. Kalson</i> , No. 07AP-831, 2008 WL 307724 (Ohio App., 10th Dist., Feb. 5, 2008)	47
<i>Dodd v. Keybank</i> , No. 85949, 2006 WL 62432 (Ohio App., 8th Dist., Jan. 12, 2006)	190
<i>Doe v. Beach House Dev. Co.</i> , 136 Ohio App.3d 573, 737 N.E.2d 141 (8th Dist. 2000)	331,450
<i>Doe v. Flair Corp.</i> , 129 Ohio App.3d 739, 719 N.E.2d 34 (8th Dist. 1998)	331
<i>Doe v. New Bedford Hous. Auth.</i> , 417 Mass. 273, 630 N.E.2d 248 (1994)	332
<i>Doe by Doe v. Perales</i> , 782 F. Supp. 201 (W.D.N.Y. 1991)	472
<i>Doersam v. City of Gahanna</i> , No. 96-APF12-1766, 1997 WL 607473 (Ohio App., 10th Dist., Sept. 30, 1997)	662
<i>Doganiero v. Cox</i> , No. 9-292, 1984 WL 6297 (Ohio App., 11th Dist., Apr. 2, 1984)	399
<i>Don Ash Props. v. Dunno</i> , No. 03AP-375, 2003 WL 22480323 (Ohio App., 10th Dist., Nov. 4, 2003)	45
<i>Dondorfer v. Wolf</i> , No. 13-010, 1988 WL 105568 (Ohio App., 11th Dist., Oct. 7, 1988)	60,64,96
<i>Donegal Cos. v. White</i> , No. 98-CO-1, 1999 WL 159222 (Ohio App., 7th Dist., Mar. 18, 1999)	342
<i>Donley v. Davis</i> , No. 80-LT-20 (Ohio Mun., Youngstown, June 10, 1981)	416
<i>Dorgan v. Loukas</i> , 19 Mass. App. Ct. 959, 473 N.E.2d 1151 (1985)	450

<i>Doty v. Potteiger</i> , No. 2017-T-0029, 2017 WL 5998569 (Ohio App., 11th Dist., Dec. 4, 2017)	644,645
<i>Doughman v. Long</i> , 42 Ohio App.3d 17, 536 N.E.2d 394 (12th Dist. 1987)	466
<i>Douglas v. Campost Props., LLC</i> , No. 2016-CV-102094 (Ohio Mun., Elyria, July 21, 2020)	341,342,529,530
<i>Douglas v. Kriegsfeld Corp.</i> , 849 A.2d 951 (D.C. App. 2004)	171
<i>Douglas v. Lewis</i> , No. C-180201, 2019 WL 1474214 (Ohio App., 1st Dist., Apr. 3, 2019)	54
<i>Douglas v. Talley</i> , No. 91-CVG-19274 (Ohio Mun., Cleveland, Hous. Div., Sept. 19, 1991)	146
<i>Dovi Interests, Ltd. v. Somerset Point Ltd. P'ship</i> , No. 82788, 2004 WL 254211 (Ohio App., 8th Dist., Feb. 12, 2004)	486,509
<i>Dowell v. Krebs</i> , No. 54517, 1988 WL 112857 (Ohio App., 8th Dist., Oct. 20, 1988)	508
<i>Downie v. Lake Metro. Hous. Auth.</i> , No. 2014-L-060, 2015 WL 1000211 (Ohio App., 11th Dist., Mar. 9, 2015)	654,656
<i>Drake v. Menczer</i> , 67 Ohio App.2d 122, 425 N.E.2d 961 (8th Dist. 1980)	542,544,545, 547,553,555,557
<i>Drake Townhouses, LLC v. Woodberry</i> , No. C-160632, 2017 WL 3168981 (Ohio App., 1st Dist., July 26, 2017)	26,357,359
<i>Driver v. Hous. Auth. of Racine County</i> , Nos. 2005-AP-410,411, 2006 WL 288152 (Wis. App. Feb. 8, 2006)	209
<i>Dte/Earthscape Land & Constr. LLC v. Marbury</i> , Ohio Mun., Garfield Heights, July 14, 2020)	12
<i>Dudkeiwicz v. United Mobile Homes</i> , No. 9-95-23, 1995 WL 577817 (Ohio App., 3rd Dist., Sept. 19, 1995)	560
<i>Dudukovich v. Lorain Metro. Hous. Auth.</i> , 58 Ohio St.2d 202, 389 N.E.2d 1113 (1979)	653,654,656, 660,662
<i>DuJardin v. Owens</i> , No. 87-B-19, 1988 WL 109086 (Ohio App., 7th Dist., Sept. 22, 1988)	458
<i>Duncan v. Cuyahoga Cmty. Coll.</i> , 970 N.E.2d 1092, 2012-Ohio-1949 (Ohio App., 8th Dist., 2012)	618
<i>Dundon v. Balluck</i> , No. 93-CA-123, 1994 WL 55755 (Ohio App., 7th Dist., Feb. 23, 1994)	123,351

<i>Dunkel v. Hedges</i> , 15 Ohio App. 259 (4th Dist. 1921)	600
<i>Dunning v. Green</i> , No. F-82-12, 1983 WL 13825 (Ohio App., 6th Dist., Feb. 4, 1983)	34
<i>Dupal v. Reindle</i> , No. 79413, 2002 WL 450128 (Ohio App., 8th Dist., Mar. 14, 2002)	537
<i>Dvorak v. Habeeb</i> , No. 60971, 1991 WL 106059 (Ohio App., 8th Dist., June 13, 1991)	74
<i>Dworkin v. Paley</i> , 93 Ohio App.3d 383, 638 N.E.2d 636 (8th Dist. 1994)	332-335
<i>Dyche Real Estate Fund v. Graves</i> , 55 Ohio App.2d 153, 380 N.E.2d 767 (10th Dist. 1978)	458
<i>Dye v. Ley</i> , No. 1-88-60, 1990 WL 11444 (Ohio App., 3rd Dist., Feb. 7, 1990)	490
E	
<i>EMC Mortgage Corp. v. Smith</i> , No. 95-04794 (Mass. Hous. Ct., Boston Div., Jan. 5, 1996)	266,268
<i>Eagle View Apts. v. Pride</i> , No. CT06-0050 (Ohio App., 5th Dist., Aug. 10, 2006)	109
<i>Easely v. Thompson</i> , No. 96-P-0105, 1996 WL 648734 (Ohio App., 11th Dist., Oct. 18, 1996)	577
<i>E. Carolina Reg'l Hous. Auth. v. Lofton</i> , 369 N.C. 8, 789 S.E.2d 449 (2016)	244
<i>E. Lake Mgmt. & Dev. Corp. v. Irvin</i> , 195 Ill. App.3d 196, 551 N.E.2d 272 (1990)	131
<i>E. Mach. Co. v. Peck</i> , 161 Ohio St. 1, 117 N.E.2d 593 (1954)	621
<i>Eastcare III v. Shockley</i> , No. 2009-CV-5424 (Ohio C.P., Montgomery Cty., Oct. 28, 2009, and Dec. 7, 2009)	141
<i>Eastgate Mobile Home, Etc. v. Klekamp</i> , No. CA92-05-060, 1994 WL 29876 (Ohio App., 12th Dist., Jan. 31, 1994)	572
<i>Eastgate Mobile Home, Etc. v. Klekamp</i> , No. 87-CV-000280, 1988 WL 583172 (Ohio C.P., Clermont Cty., Apr. 6, 1988)	575
<i>Eatondale Apts. v. Brown</i> , No. 85-CV-26859 (Ohio Mun., Hamilton Cty., Dec. 11, 1985)	204
<i>Ebbing v. Bobbitt</i> , No. CA2012-03-061, 2012 WL 4862548 (Ohio App., 12th Dist., Oct. 15, 2012)	195

<i>Ebbing v. Lawhorn</i> , No. CA2011-07-125, 2012 WL 2877434 (Ohio App., 12th Dist., July 16, 2012)	188,195
<i>Ebbing v. Mathis</i> , No. CA2013-01-014, 2013 WL 4806940 (Ohio App., 12th Dist., Sept. 9, 2013)	125,352
<i>Ebbing v. Mathis</i> , No. CA2012-10-201, 2013 WL 2423702 (Ohio App., 12th Dist., June 3, 2013)	10,11,18
<i>Eberly v. Irons</i> , No. 2006AP-01-0004, 2007 WL 2351644 (Ohio App., 5th Dist., Aug. 9, 2007)	10,26
<i>Ebner v. Caudill</i> , 93 Ohio App.3d 785, 639 N.E.2d 1231 (10th Dist. 1994)	189,525
<i>Ecco Manor, Ltd. v. Pass</i> , No. M88-CVG-42788 (Ohio Mun., Franklin Cty., Feb. 8, 1989)	183
<i>Eckart v. Newman</i> , No. WM-18-006, 2019 WL 3765412 (Ohio App., 6th Dist., Aug. 9, 2019)	74,83
<i>Edgbarton Inv., Inc. v. Target Expediting, Inc.</i> , No. L-99-1410, 2000 WL 1713816 (Ohio App., 6th Dist., Nov. 17, 2000)	36
<i>Edgecomb v. Hous. Auth. of Town of Vernon</i> , 824 F. Supp. 312 (D. Conn. 1993)	206,207,661,663
<i>Edmunds v. Little</i> , 103 Ohio App.3d 488, 659 N.E.2d 1291 (6th Dist. 1995)	563
<i>Edwards v. C.N. Inv. Co.</i> , 27 Ohio Misc. 57, 272 N.E.2d 652 (Ohio Mun., Shaker Heights, 1971)	475,476
<i>Edwards v. Christian</i> , 61 A.D.2d 1045, 403 N.Y.S.2d 119 (1978)	237,255
<i>Edwards v. Smith</i> , No. M'8711-CVG-37183 (Ohio Mun., Franklin Cty., Dec. 8, 1987)	353
<i>Egner v. Egner</i> , 24 Ohio App.3d 171, 493 N.E.2d 999 (11th Dist. 1985)	1,598
<i>Eisler v. Rudy</i> , No. 1466, 1989 WL 70066 (Ohio App., 11th Dist., June 23, 1989)	76,296
<i>Elder v. Elder</i> , No. 06-CV-G-00752 (Ohio Mun., Bowling Green, June 15, 2006)	347
<i>Elk Creek Mgmt. Co. v. Gilbert</i> , 353 Or. 565, 303 P.3d 929 (2013)	168
<i>Elkins v. Colburn</i> , No. 18-CA-893, 2019 WL 2754096 (Ohio App., 4th Dist., June 21, 2019)	635
<i>Eller v. Cont'l Inv. P'ship</i> , 151 Ohio App.3d 729, 785 N.E.2d 802 (6th Dist. 2003)	592
<i>Ellis v. Ritchie</i> , 803 F. Supp. 1097 (E.D. Va. 1992)	235,672

<i>Elsayed v. Miamisburg by the Mall</i> , No. 28918, 2021 WL 2028661 (Ohio App., 2nd Dist., May 21, 2021)	529-531
<i>Ely v. Schroder</i> , No. C-990426, 2000 WL 145334 (Ohio App., 1st Dist., Feb. 11, 2000)	498
<i>Emerald Dev. & Economic Network, Inc. v. Foster</i> , No. 2014-CVG-003506 (Ohio Mun., Cleveland, Hous. Div., June 30, 2014)	207,210
<i>Emm v. Sheskey</i> , No. 79AP-632, 1980 WL 353284 (Ohio App., 10th Dist., Feb. 14, 1980)	449
<i>Endersby v. Schneppe</i> , 73 Ohio App.3d 212, 596 N.E.2d 1081 (3rd Dist. 1991)	600
<i>Envtl. Defense v. Duke Energy Corp.</i> , 549 U.S. 561 (2007)	302
<i>Enyart v. Columbus Metro. Area Cmty. Action Org.</i> , 115 Ohio App.3d 348, 685 N.E.2d 550 (10th Dist. 1996)	555
<i>Erie Metroparks Bd. of Comm'rs v. Key Trust Co. of Ohio, N.A.</i> , 145 Ohio App.3d 782, 764 N.E.2d 509 (6th Dist. 2001)	178
<i>Escalera v. New York City Hous. Auth.</i> , 425 F.2d 853 (2d Cir. 1970)	200
<i>Esho v. Shamoon, Inc.</i> , No. L-06-1189, 2007 WL 949756 (Ohio App., 6th Dist., Mar. 30, 2007)	179
<i>Espurvoa v. Calhoun Inv. Co.</i> , No. 91AP-406, 1992 WL 15260 (Ohio App., 10th Dist., Jan. 23, 1992)	325
<i>Estate of Allen v. Allen</i> , No. 91-T-4580, 1992 WL 188346 (Ohio App., 11th Dist., June 12, 1992)	74
<i>Estate of Chasteen v. Cartee</i> , No. 1993, 1992 WL 238918 (Ohio App., 4th Dist., Sept. 25, 1992)	642,644
<i>Estate of Wos v. Wos</i> , No. L-05-1408, 2006 WL 2383966 (Ohio App., 6th Dist., Aug. 18, 2006)	3,77
<i>Estep v. Tisdale</i> , No. 93-CVG-700, 1993 WL 837913 (Ohio Mun., Chillicothe, Nov. 29, 1993)	581
<i>Estie Inv. Co. v. Braff</i> , No. 2017-L-172, 2018 WL 5433223 (Ohio App., 11th Dist., Oct. 29, 2018)	530,537-539
<i>Euclid Beach Ltd. v. Brockett</i> , No. 75047, 1999 WL 1129086 (Ohio App., 8th Dist., Dec. 9, 1999)	571,578
<i>Eureka Multifamily Group v. Terrell</i> , No. L-14-1152, 2015 WL 2329168 (Ohio App., 6th Dist., May 15, 2015)	10,11,105,123, 124,134,135,350

<i>Evangelinos v. Nixon</i> , No. 95-CVG-00076, 1997 WL 810049 (Ohio County Ct., Belmont Cty., Jan. 11, 1997)	289
<i>Evans v. B.S.</i> , No. 19-CVG-02190 (Ohio Mun., Akron, June 11, 2019)	625
<i>Evans v. Washington</i> , No. 98-CVI-4274 (Ohio Mun., Akron, Aug. 20, 1998)	265
<i>Evans v. Willis</i> , No. 13-CA-120, 2014 WL 1759190 (Ohio App., 5th Dist., Apr. 22, 2014)	296
<i>Evergreen Terrace Props. v. Stephenson</i> , No. 011775 (Ohio Mun., Franklin Cty., Apr. 22, 1988)	141,142
<i>Ewert v. Basinger</i> , 59 Ohio Misc. 43, 392 N.E.2d 911 (Ohio Mun., Toledo, 1978)	21
<i>Ex Parte Cattell</i> , 146 Ohio St. 112, 64 N.E.2d 416 (1945)	463,473
<i>Executive Bus. Ctrs., Inc. v. TransPacific Mfg., Ltd.</i> , No. L-08-1060, 2009 WL 282383 (Ohio App., 6th Dist., Feb. 6, 2009)	3
<i>Ezzard Charles Apts. v. Collins</i> , No. 12-CV-22452 (Ohio Mun., Hamilton Cty., Dec. 5, 2013)	235
<i>Ezzard Charles Apts. v. Washington</i> , No. 98-CV-28786 (Ohio Mun., Hamilton Cty., June 22, 1999)	198
F	
<i>F. Enters., Inc. v. Kentucky Fried Chicken</i> , 47 Ohio St.2d 154, 351 N.E.2d 121 (1976)	418
<i>FCC v. NextWave Personal Commc'ns, Inc.</i> , 537 U.S. 293 (2003)	272
<i>FDA Peachtree, LLC v. Crowder</i> , No. 18-CVG-03298, (Ohio Mun., Licking Cty., Aug. 5, 2019)	377
<i>FMJ Props. v. Hinton</i> , No. 50314, 1986 WL 4396 (Ohio App., 8th Dist., Apr. 10, 1986)	20,104,133,143
<i>Fadelsak v. Hagley</i> , No. 02-CA-41, 2003 WL 21489613 (Ohio App., 4th Dist., June 25, 2003)	346,631-633
<i>Fair v. Negley</i> , 257 Pa. Super. 50, 390 A.2d 240 (1978)	419
<i>Fair Acres MHC LLC v. Arrington</i> , No. 2020-CVG-0003R (Ohio Mun., Portage Cty., Jan. 28, 2020)	66
<i>Fair Hous. Advocates Ass'n, Inc. v. James</i> , 114 Ohio App.3d 104, 682 N.E.2d 1045 (9th Dist. 1996)	547

<i>Fairborn Apts. v. Herman</i> , No. 90-CA-28, 1991 WL 10962 (Ohio App., 2nd Dist., Jan. 31, 1991)	134,139-143, 201,219,227
<i>Fairborn Apts. v. Walker</i> , No. 91-CVG-356 (Ohio Mun., Fairborn, July 24, 1991)	237
<i>Falter v. City of Toledo</i> , 169 Ohio St. 238, 158 N.E.2d 893 (1959)	534
<i>Fant v. DiSabato</i> , No. 87AP-265, 1987 WL 32190 (Ohio App., 10th Dist., Dec. 29, 1987)	505,534,545, 551,553,557
<i>Faqi v. Patti</i> , Nos. L-19-1038,1107, 2020 WL 6375793 (Ohio App., 6th Dist., Oct. 30, 2020)	18
<i>Farla LLC v. Pretlow</i> , No. 21-CA-011731, 2021 WL 6050713 (Ohio App., 9th Dist., Dec. 20, 2021)	114
<i>Farrell v. Deuble</i> , 175 Ohio App.3d 646, 888 N.E.2d 514 (9th Dist. 2008)	175
<i>Faunce v. Miller</i> , No. 80-CVI-1271 (Ohio Mun., Fremont, Apr. 2, 1981)	417
<i>Fay Gardens Mobile Home Park v. Newman</i> , 14 Ohio App.3d 144, 470 N.E.2d 164 (12th Dist. 1983)	463,544,554, 558,571
<i>Fed. Home Loan Mortgage Corp. v. Surzhukov</i> , No. 95-SP1487 (Mass. Hous. Ct., Hampden Div., Aug. 9, 1995)	268
<i>Fed. Knitting Mills Ltd. v. Harper</i> , 157 Ohio Misc.2d 42, 930 N.E.2d 879 (Ohio Mun., Cleveland, 2010)	528
<i>Fed. Nat'l Mortgage Assoc. v. Dobson</i> , No. 10-CVG-02140 (Ohio Mun., Cleveland, Hous. Div., Mar. 2, 2010)	606
<i>Fed. Nat'l Mortgage Assoc. v. Moore</i> , No. 11-CVG-15320 (Ohio Mun., Cleveland, Hous. Div., Jan. 4, 2012)	606
<i>Fed. Nat'l Mortgage Assoc. v. Norman</i> , No. 10-CVG-02142 (Ohio Mun., Cleveland, Hous. Div., Mar. 8, 2010)	606
<i>Fed. Nat'l Mortgage Assoc. v. Taylor</i> , No. 10-CVG-02141 (Ohio Mun., Cleveland, Hous. Div., Mar. 2, 2010)	606
<i>Fed. Prop. Mgmt. v. Brown</i> , No. 17424, 1999 WL 961275 (Ohio App., 2nd Dist., June 25, 1999)	31,90,222,224
<i>Fed. Prop. Mgmt. v. Daugherty</i> , No. 12591, 1991 WL 116640 (Ohio App., 2nd Dist., June 28, 1991)	18
<i>Fed. Prop. Mgmt. Corp. v. Jackson</i> , No. 79-CVG-8820 (Ohio Mun., Dayton, Nov. 1, 1979)	40,204

<i>Feldmann v. Ponziani</i> , No. 14857, 1995 WL 232476 (Ohio App., 2nd Dist., Apr. 21, 1995)	33,35,501
<i>Fellers v. Belau</i> , 87 Ohio Law Abs. 54, 178 N.E.2d 530 (Ohio C.P., Paulding Cty., 1961)	562
<i>Felman v. Coleman</i> , No. 15686, 1996 WL 325501 (Ohio App., 2nd Dist., June 14, 1996)	162
<i>Fenell v. Mayflower Manor Apts.</i> , No. 17224, 1995 WL 699919 (Ohio App., 9th Dist., Nov. 29, 1995)	511
<i>Fenelon v. Jones</i> , No. LT-000174/11, 2011 WL 2022631 (N.Y. Dist. Ct. May 24, 2011)	261
<i>Fennell v. DeMichiei</i> , No. 106966, 2019 WL 350874 (Ohio App., 8th Dist., Jan. 24, 2019)	516
<i>Fennelly v. Kimball Court Apts. Ltd P'ship</i> , No. 004904J, 2001 WL 1524452 (Mass. Super. Sept. 25, 2001)	282
<i>Fenner v. Parkinson</i> , 69 Ohio App.3d 210, 590 N.E.2d 339 (10th Dist. 1990)	1,75
<i>Ferguson v. City of Circleville</i> , No. C-2-00-1336 (S.D. Ohio May 11, 2001)	611
<i>Ferrato v. Maurer Realty</i> , No. WD-86-28, 1986 WL 13815 (Ohio App., 6th Dist., Dec. 5, 1986)	388
<i>Ficker v. Diefenbach</i> , 34 Or. App. 241, 578 P.2d 467 (1978)	462
<i>Fields v. Travis</i> , No. 87AP-578, 1987 WL 873892 (Ohio App., 10th Dist., Oct. 22, 1987)	82
<i>Fiffick v. Showe Mgmt.</i> , No. 2005-P-0011, 2005 WL 3610442 (Ohio App., 11th Dist., Dec. 29, 2005)	535
<i>Filby v. Stocker Dev., LLC</i> , No. 2017-AP06-0020, 2017 WL 6371312 (Ohio App., 5th Dist., Dec. 11, 2017)	502
<i>Filinger v. Harris</i> , No. 07-CVG-01188 (Ohio Mun., Shaker Heights, Aug. 10, 2007)	33
<i>Filyo v. Cannon</i> , No. 95-CA-1, 1995 WL 776946 (Ohio App., 5th Dist., Dec. 21, 1995)	471
<i>Fin. Land Corp. v. Visible Difference, Inc.</i> , No. 93AP-1044, 1994 WL 195024 (Ohio App., 10th Dist., May 19, 1994)	518
<i>Findlay v. Baker Rental Co.</i> , No. 77AP-874, 1978 Ohio App. LEXIS 10554 (Ohio App., 10th Dist., May 9, 1978)	596

<i>Fine v. U.S. Erie Islands Co.</i> , No. OT-07-048, 2009 WL 826526 (Ohio App., 6th Dist., Mar. 31, 2009)	615
<i>Finkbeiner v. Lutz</i> , 44 Ohio App.2d 223, 337 N.E.2d 655 (1st Dist. 1975)	139-141
<i>First Bank Nat'l Ass'n v. Willis</i> , Nos. 56263,56763, 1989 WL 69409 (Ohio App., 8th Dist., June 22, 1989)	74,109
<i>First Bank of Marietta v. Mascrete, Inc.</i> , 125 Ohio App.3d 257, 708 N.E.2d 262 (4th Dist. 1998)	404
<i>First Fed. Sav. & Loan, Etc. v. Rig Oil Co.</i> , No. CA83-11, 1983 WL 7013 (Ohio App., 5th Dist., Aug. 2, 1983)	603
<i>First Merit Venture v. Stringer</i> , No. C-050238 (Ohio App., 1st Dist., Dec. 14, 2005)	81,242
<i>First Nat'l Bank & Trust Co. v. Fireproof Warehouse & Storage</i> , 8 Ohio App.3d 253, 456 N.E.2d 1336 (10th Dist. 1983)	148,350
<i>Fisco v. Chisholm</i> , Nos. 52111,52112, 1987 WL 11193 (Ohio App., 8th Dist., May 7, 1987)	189
<i>Fisher v. Barker</i> , 159 Ohio App.3d 745, 825 N.E.2d 244 (2nd Dist. 2005)	458,469,476
<i>Fisher v. Bly</i> , No. 03-CVG-19705 (Ohio Mun., Cleveland, Hous. Div., Nov. 14, 2003)	100
<i>Fitz v. Dienes</i> , No. 56172, 1989 WL 139572 (Ohio App., 8th Dist., Nov. 16, 1989)	501
<i>Fitzpatrick v. Wallick Props., Inc.</i> , No. L-83-036, 1983 WL 6817 (Ohio App., 6th Dist., June 3, 1983)	225
<i>Fitzpatrick Realty v. Wilkey</i> , No. 78-CVG-8102 (Ohio Mun., Dayton, Nov. 17, 1978)	32,175,176,378
<i>Flatford v. City of Monroe</i> , 17 F.3d 162 (6th 1994)	485
<i>Fleischman Distilling Corp. v. Maier Brewing Co.</i> , 386 U.S. 714 (1967)	542
<i>Fletcher v. Shell</i> , No. 1998-CVG-23988 (Ohio Mun., Cleveland, Hous. Div., Oct. 2, 2000)	265
<i>Fletcher v. Univ. Hosp. of Cleveland</i> , 120 Ohio St.2d 167, 897 N.E.2d 147 (2008)	39
<i>Flipping Lake County, Ltd. v. Egan</i> , No. 21-CVG-0305 (Ohio Mun., Euclid, May 12, 2021)	13
<i>Flora v. Pullins</i> , No. 96-CA-13, 1996 WL 648353 (Ohio App., 2nd Dist., Nov. 8, 1996)	646

<i>Flowers v. City of Cincinnati</i> , No. C-880809, 1990 WL 27176 (Ohio App., 1st Dist., Mar. 14, 1990)	331,332
<i>Foard v. Severcool</i> , 22 Ohio Law Abs. 650, 1 Ohio Op. 492 (Ohio C.P., Lucas Cty., 1933)	418
<i>Fodor v. First Nat'l Supermarkets, Inc.</i> , 63 Ohio St.3d 489, 589 N.E.2d 17 (1992)	1,56
<i>Fone-X, Inc. v. Strohm</i> , No. CA-3653, 1991 WL 261824 (Ohio App., 5th Dist., Nov. 12, 1991)	191,192
<i>Ford v. Club S. Inv. Co.</i> , No. 86AP-559, 1986 WL 14482 (Ohio App., 10th Dist., Dec. 16, 1986)	508
<i>Forest City Mgmt., Inc. v. Lauderback</i> , No. 91-CA-1972 (Ohio App., 4th Dist., Mar. 15, 1991)	110-112
<i>Forest City Mgmt., Inc. v. McDonald</i> , No. 01-CVG-5026 (Ohio Mun., Akron, Sept. 5, 2001)	202
<i>Forest City Mgmt., Inc. v. McDonald</i> , No. 2001-CVG-2806 (Ohio Mun., Akron, May 24, 2001)	20
<i>Forest City Mgmt., Inc. v. Tackett</i> , 148 Ohio App.3d 667, 775 N.E.2d 555 (11th Dist. 2002)	209,210
<i>Forman v. Macias</i> , No. 79AP-122, 1979 Ohio App. LEXIS 11693 (Ohio App., 10th Dist., June 26, 1979)	82
<i>Forney v. Climbing Higher Enters., Inc.</i> , 158 Ohio App.3d 338, 815 N.E.2d 722 (9th Dist. 2004)	53,54,77
<i>Fornof-Lippencott v. Powell</i> , No. 94-CA-11, 1995 WL 19127 (Ohio App., 2nd Dist., Jan. 18, 1995)	532
<i>Forquer v. Colony Club</i> , 26 Ohio App.3d 178, 499 N.E.2d 7 (10th Dist. 1985)	503,504
<i>Forte v. Bellan</i> , No. 91-CVG-18631 (Ohio Mun., Cleveland, Hous. Div., Oct. 28, 1991)	526
<i>Foss v. Reddy</i> , No. 68836, 1995 WL 643811 (Ohio App., 8th Dist., Nov. 2, 1995)	398,406
<i>Foster v. Benson</i> , No. 107366, 2019 WL 1858391 (Ohio App., 8th Dist., Apr. 25, 2019)	467,468,474
<i>Foster v. Jones</i> , No. 93-CV-G&F-185 (Ohio Mun., Alliance, Mar. 9, 1993)	146
<i>Foster v. McDevitt</i> , 31 Ohio App.3d 237, 511 N.E.2d 403 (2nd Dist. 1986)	451

<i>Four Howards, Ltd. v. J & F Wenz Rd. Inv., L.L.C.</i> , 179 Ohio App.3d 399, 902 N.E.2d 63 (6th Dist. 2008)	600
<i>Four Stars Serv., Inc. v. City of Akron</i> , No. 19124, 1999 WL 980558 (Ohio App., 9th Dist., Oct. 27, 1999)	517
<i>Fourth & Plum Apts. v. Tuzzolino</i> , No. C-990568, 2000 WL 799379 (Ohio App., 1st Dist., June 23, 2000)	122
<i>Fowler v. Hellman</i> , No. 1-85-45, 1986 WL 15048 (Ohio App., 3rd Dist., Dec. 30, 1986)	497,500
<i>Fox v. Eaton</i> , 48 Ohio St.2d 236, 358 N.E.2d 536 (1976)	106
<i>Frahn v. City of Cambridge Utils. Dep't</i> , No. C2-94-1203 (S.D. Ohio Mar. 1, 1996, and Mar. 29, 1996)	611
<i>Franchise Developers, Inc. v. City of Cincinnati</i> , 30 Ohio St.3d 28, 505 N.E.2d 966 (1987)	119
<i>Francis v. Kirk Manor, Inc.</i> , 992 F.3d 67 (2nd Cir. 2021) (en banc)	334
<i>Francis v. Peters</i> , No. 05-CVG-1116 (Ohio Mun., Chillicothe, Sept. 21, 2006)	410
<i>Frank v. Flynn</i> , 120 Ohio App. 361, 197 N.E.2d 657 (8th Dist. 1964)	173,370,595
<i>Franklinton Coalition v. Open-Shelter, Inc.</i> , 13 Ohio App.3d 399, 469 N.E.2d 861 (10th Dist. 1983)	304
<i>Frate v. Al-Sol, Inc.</i> , 131 Ohio App.3d 283, 722 N.E.2d 185 (8th Dist. 1999)	190,525
<i>Fredricks v. Stromberg</i> , No. 42601, 1981 Ohio App. LEXIS 10469 (Ohio App., 8th Dist., Apr. 2, 1981)	74,348,515,517
<i>Frenchtown Square P'ship v. Lemstone</i> , 99 Ohio St.3d 254, 791 N.E.2d 417 (2003)	518,519
<i>Frew v. Frew</i> , No. 2007-CA-17, 2008 WL 3856300 (Ohio App., 5th Dist., Aug. 19, 2008)	83
<i>Frey v. Hibbard</i> , 62 Ohio App.3d 781, 577 N.E.2d 669 (1st Dist. 1989)	645
<i>Freyermuth v. Navarre Vill. Homes Austin Square, Inc.</i> , No. 1999- CA-00187, 2000 WL 94048 (Ohio App., 5th Dist., Jan. 24, 2000)	288,290,579
<i>Friedman v. Krupp Corp.</i> , 282 Ill. App.3d 436, 668 N.E.2d 142 (1996)	360
<i>Friedrich v. Matrka</i> , No. 37178, 1978 Ohio App. LEXIS 9975 (Ohio App., 8th Dist., Mar. 23, 1978)	594-596

<i>Friendly Vill. v. Duty</i> , 75 Ohio App.3d 555, 599 N.E.2d 878 (6th Dist. 1992)	585
<i>Furr v. Patterson</i> , No. 2021-CVG-004661 (Ohio Mun., Cleveland, Hous. Div., June 22, 2021)	13,194
G	
<i>GF Props., LLC v. Adams</i> , No. 2005-CVG-12616 (Ohio Mun., Cleveland, Hous. Div., July 18, 2005)	193
<i>G.F. Props., LLC v. Shean</i> , No. 2004-CVG-29619 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 2004)	193
<i>G.K.G. Builders, Inc. v. Burgess</i> , 13 N.E.3d 745, 2014-Ohio-2431 (Ohio App., 6th Dist., June 6, 2014)	45,47,51,105
<i>GMS Mgmt. v. Axe</i> , 5 Ohio Misc.2d 1, 449 N.E.2d 43 (Ohio Mun., Cleveland Heights, 1982)	8
<i>GMS Mgmt. Co., Inc. v. Alnazer</i> , No. 11-CVG-02425 (Ohio Mun., Berea, Nov. 4, 2011)	18
<i>GMS Mgmt. Co. v. Ostrow</i> , No. 88-L-13-138, 1989 WL 140157 (Ohio App., 11th Dist., Nov. 17, 1989)	383
<i>GMS Mgmt. Co. v. Seminaro</i> , No. 63007, 1993 WL 277073 (Ohio App., 8th Dist., July 22, 1993)	175,507
<i>GMS Mgmt. Co., Inc. v. Skowroski</i> , No. CVG-2001087 (Ohio Mun., Barberton, Aug. 26, 2020)	140-142
<i>GS Holdings Brookside Ltd. v. Rutherford</i> , No. 13-CVG-1535 (Ohio Mun., Clark Cty., July 10, 2013)	286
<i>Gabriel v. Lakeside Tavern of Dayton, Inc.</i> , No. 6578, 1980 Ohio App. LEXIS (Ohio App., 2nd Dist., May 22, 1980)	13
<i>Gainer v. Hunker</i> , No. 17153, 1995 WL 553199 (Ohio App., 9th Dist., Sept. 20, 1995)	501
<i>Gaitawe v. Mays</i> , No. 25083, 2012 WL 4859073 (Ohio App., 2nd Dist., Oct. 12, 2012)	467,471,544, 545,552,553
<i>Gaitawe v. Mays</i> , No. 11-CVG-891 (Ohio Mun., Dayton, Aug. 15, 2011)	467
<i>Galbraith Pointe Apts. v. Humphrey</i> , No. 03-CV-29876 (Ohio Mun., Hamilton Cty., Aug. 20, 2004)	282
<i>Galier v. Feder Pontiac, Inc.</i> , No. 56233, 1989 WL 142397 (Ohio App., 8th Dist., Nov. 22, 1989)	178-181

<i>Galilee Missionary Baptist Church v. Bibby</i> , No. 25746, 2011 WL 4059951 (Ohio App., 9th Dist., Sept. 14, 2011)	67
<i>Gallagher v. Billmaier</i> , 79 Ohio Law Abs. 417, 154 N.E.2d 472 (Ohio App., 6th Dist., 1958)	559,561
<i>Gallagher v. Borden, Inc.</i> , 84 Ohio App.3d 185, 616 N.E.2d 577 (10th Dist. 1992)	28,173
<i>Gallatin Hous. Auth. v. Gifford</i> , No. 89-25-II, 1989 WL 100268 (Tenn. App. Aug. 30, 1989)	365
<i>Gallatin Hous. Auth. v. Montesillo</i> , No. M2001-02260-COA-R3-CV, 2002 WL 1800968 (Tenn. App. Aug. 7, 2002)	136
<i>Gallia Metro. Hous. Auth. v. Fry</i> , No. 93-CA-22, 1994 WL 412403 (Ohio App., 4th Dist., Aug. 2, 1994)	11
<i>Gammarino v. Smith</i> , No. C-060636, 2007 WL 2284573 (Ohio App., 1st Dist., Aug. 10, 2007)	394,422,424
<i>Gammons v. Mass. Dep't of Hous. & Com. Dev.</i> , 502 F. Supp. 2d 161 (D. Mass. 2007)	672
<i>Ganios v. Ferrick</i> , No. 2005-CA-00239, 2006 WL 751508 (Ohio App., 5th Dist., Mar. 20, 2006)	372
<i>Gara v. Gara</i> , No. 26671, 2015 WL 6410285 (Ohio App., 2nd Dist., Oct. 23, 2015)	114
<i>Garden Woods Apts. v. Gee</i> , No. 13962, 1993 WL 385818 (Ohio App., 2nd Dist., Sept. 27, 1993)	324,325
<i>Gardner v. Evans</i> , 920 F.3d 1038 (6th Cir. 2019)	485
<i>Garee v. Wolfe</i> , Nos. 2020-CA-00009,00038, 2021-WL 628622 (Ohio App., 5th Dist., Feb. 16, 2021)	4,641
<i>Gary Crim, Inc. v. Rios</i> , 114 Ohio App.3d 433, 683 N.E.2d 378 (7th Dist. 1996)	176,177
<i>Gaston v. CHAC, Inc.</i> , 375 Ill. App.3d 16, 872 N.E.2d 38 (2007)	244
<i>Gaston v. Seals</i> , No. CV-03-505578 (Ohio C.P., Cuyahoga Cty., May 4, 2004)	469,470
<i>Gateway Apts. v. Darrah</i> , Nos. 76-CVG-725,928 (Ohio Mun., Lyndhurst, Aug. 22, 1977)	167,462
<i>Gay v. Parr</i> , No. CVG-00-141 (Ohio County Ct., Harrison Cty., Dec. 21, 2000)	637

<i>Geauga Metro. Hous. Auth. v. Biggs</i> , No. 98-G-2207, 2000 WL 665567 (Ohio App., 11th Dist., May 19, 2000)	81,201
<i>Geis v. Zylka</i> , 70 Ohio Misc.2d 28, 650 N.E.2d 211 (Ohio Mun., Toledo, Hous. Div., 1995)	491
<i>Gem Mgmt. Co. v. Walker</i> , No. 60139, 1991 WL 26635 (Ohio App., 8th Dist., Feb. 28, 1991)	62,64,66
<i>Gen. Dev. Corp. v. Wilbur-Rogers Atlanta Corp.</i> , 28 Ohio App.2d 35, 273 N.E.2d 908 (1st Dist. 1971)	522
<i>Gen. Dynamics Land Sys., Inc. v. Cline</i> , 540 U.S. 581 (2004)	302
<i>Gen. Motors Acceptance Corp. v. Kehnert</i> , 30 Ohio Law Abs. 270, 72 N.E.2d 793 (Ohio App., 8th Dist., 1939)	305
<i>Gentil v. Williams</i> , No. 96-CVG-1095 (Ohio Mun., Chillicothe, Nov. 12, 1996)	359
<i>George Shima Buick, Inc. v. Ferencak</i> , No. 98-L-202, 1999 WL 1313675 (Ohio App., 11th Dist., Dec. 17, 1999)	6
<i>George Washington Univ. v. Weintraub</i> , 458 A.2d 43 (D.C. App. 1983)	402
<i>Georgetown Park Apts. v. Woernley</i> , 112 Ohio App.3d 428, 679 N.E.2d 16 (8th Dist. 1996)	26,32
<i>Gerber v. Bistor</i> , No. 1795, 1982 WL 2806 (Ohio App., 9th Dist., Oct. 27, 1982)	16,26,164
<i>Gerber v. Lewis</i> , No. 70955, 1996 WL 715504 (Ohio App., 8th Dist., Dec. 12, 1996)	518,519
<i>German v. Fed. Home Loan Mortgage Corp.</i> , 899 F. Supp. 1155 (S.D.N.Y. 1995)	267
<i>Germadnik v. Auld</i> , No. 2017-T-0113, 2018 WL 3533259 (Ohio App., 11th Dist., July 23, 2018)	467,468
<i>Gersten Cos. v. Deloney</i> , 212 Cal. App.3d 1119, 261 Cal. Rptr. 431 (1989)	231
<i>Gettysburg Homeowners Ass'n v. Ellenburg Capital Corp.</i> , 80 Ohio App.3d 555, 609 N.E.2d 1315 (12th Dist. 1992)	586
<i>Geyer v. Frank</i> , No. CA84-06-074, 1985 WL 8144 (Ohio App., 12th Dist., Jan. 14, 1985)	458
<i>Geyer v. Wilcots</i> , No. CVG-0200482 (Ohio County Ct., Butler Cty., Area II, Nov. 22, 2002)	351

<i>Gibbes v. Freeman</i> , No. 52745, 1987 WL 16530 (Ohio App., 8th Dist., Sept. 3, 1987)	12,21
<i>Gibbes v. Hous. Auth. of New Haven</i> , 76 B.R. 257 (D. Conn. 1983)	270
<i>Gibbes v. Hous. Auth. of New Haven</i> , 12 B.R. 737 (D. Conn. 1981)	270
<i>Gibbes v. Hous. Auth. of New Haven</i> , 9 B.R. 758 (Bankr. D. Conn. 1981)	270
<i>Gibbs v. Columbus Metro. Hous. Auth.</i> , No. 11AP-711, 2012 WL 1852086 (Ohio App., 10th Dist., May 22, 2012)	618,620
<i>Gibraltar Constr. Corp. v. Fortune</i> , No. 396, 1979 Ohio App. LEXIS 9223 (Ohio App., 12th Dist., Nov. 28, 1979)	78
<i>Gibson v. Shephard</i> , 87 N.E.3d 846, 2017-Ohio-1157 (Ohio App., 8th Dist., 2017)	344,529,534, 537,538
<i>Gibson v. Suiter</i> , No. 88-CVH-2, 1989 WL 572089 (Ohio Mun., Lawrence Cty., July 18, 1989)	415
<i>Gill v. Lewis Zipkin & Assocs.</i> , No. 78-LLT-88 (Ohio Mun., Cleveland Heights, Oct. 31, 1979)	390,392,417
<i>Ginsberg v. Austin</i> , 968 F.2d 1198 (Fed. Cir. 1992)	361
<i>Gitler v. Gerity</i> , No. L-94-260, 1995 WL 458690 (Ohio App., 6th Dist., Aug. 4, 1995)	288,584
<i>Gladden v. Mitchell</i> , No. C-040359, 2005 WL 323685 (Ohio App., 1st Dist., Feb. 11, 2005)	490
<i>Gladden v. Walker</i> , No. 12-CV-29809 (Ohio Mun., Hamilton Cty., Aug. 15, 2014)	172
<i>Gladwell v. Holcomb</i> , 60 Ohio St. 427, 54 N.E. 473 (1899)	174
<i>Glasoe v. Trinkle</i> , 107 Ill.2d 1, 479 N.E.2d 915 (1985)	316,400,404
<i>Glazier v. Hall</i> , No. CA-1076, 1994 WL 477994 (Ohio App., 5th Dist., Aug. 18, 1994)	5,526
<i>GlioZZo v. Univ. Urologists of Cleveland</i> , 114 Ohio St.3d 141, 870 N.E.2d 714 (2007)	122
<i>Glover v. Massey</i> , Nos. 56351,56802, 1990 WL 1328 (Ohio App., 8th Dist., Jan. 11, 1990)	319,425,445
<i>Glyco v. Schultz</i> , 35 Ohio Misc. 25, 289 N.E.2d 919 (Ohio Mun., Sylvania, 1972)	157,406,418
<i>Goble v. Grosswiler</i> , No. 2018-CA-0102, 2019 WL 5595795 (Ohio App., 5th Dist., Oct. 29, 2019)	644

<i>Godbelt v. McClain</i> , No. 94-CA-0066, 1995 WL 768531 (Ohio App., 5th Dist., Nov. 20, 1995)	11
<i>Godfrey v. Miami Metro. Hous. Auth.</i> , No. 96-202 (Ohio C.P., Miami Cty., Oct. 24, 1996)	660
<i>Goff v. Brown</i> , 715 N.W.2d 769, 2006 WL 779904 (Iowa App. 2006)	116
<i>Gold Key Realty v. Collins</i> , No. 2013-CA-57, 2014 WL 5409159 (Ohio App., 2nd Dist. Oct. 24, 2014)	90,93
<i>Gold Key Realty v. Collins</i> , No. 2013-CA-12, 2013 WL 4041173 (Ohio App., 2nd Dist. Aug. 9, 2013)	110,112
<i>Gold Key Realty v. Harris</i> , No. 03-CVG-00475 (Ohio Mun., Fairborn, Apr. 22, 2003)	228
<i>Gold Key Realty/Senior Vill. Apts. v. Phillips</i> , No. 26450, 2015 WL 3932449 (Ohio App., 2nd Dist., June 26, 2015)	213
<i>Golden v. City of Columbus</i> , 404 F.3d 950 (6th Cir. 2005)	609,610
<i>Goldstein v. Patel</i> , Nos. 02-CA-008183,008199, 2003 WL 21976103 (Ohio App., 9th Dist., Aug. 20, 2003)	115
<i>Goldstein v. Spitz</i> , 30 Ohio App.3d 246, 507 N.E.2d 433 (1st Dist. 1986)	496
<i>Gollihue v. Russo</i> , 152 Ohio App.3d 710, 789 N.E.2d 1151 (10th Dist. 2003)	635
<i>Gonzalez v. Gonzalez</i> , No. 2010-CVG-9940 (Ohio Mun., Cleveland, Hous. Div., Aug. 22, 2011)	265,533,538
<i>Good v. Murd</i> , No. L-13-1235, 2014 WL 2170302 (Ohio App., 6th Dist., May 23, 2014)	299,341
<i>Good Knight Props., LLC v. Adam</i> , No. L-13-1231, 2014 WL 4656870 (Ohio App., 6th Dist., Sept. 19, 2014)	360
<i>Good Shepherd Baptist Church v. City of Columbus</i> , 20 Ohio App.3d 228, 485 N.E.2d 725 (10th Dist. 1984)	645
<i>Gooden v. Cincinnati Metro. Hous. Auth.</i> , No. A-0710779 (Ohio C.P., Hamilton Cty., July 25, 2008, and Aug. 29, 2008)	661,662,667
<i>Goodman v. Dan Rich, LLC</i> , No. 109581, 2021 WL 927001 (Ohio App., 8th Dist., Mar. 11, 2021)	317
<i>Gordon v. Morris</i> , No. 2000-CA-69, 2001 WL 85797 (Ohio App., 2nd Dist., Feb. 2, 2001)	34,458,466,467, 469,474,476,512

<i>Gorsuch Homes Inc. v. LeMaster</i> , No. 10-15-18, 2016 WL 3057971 (Ohio App., 3rd Dist., May 31, 2016)	252
<i>Gorsuch Homes, Inc. v. Wooten</i> , 73 Ohio App.3d 426, 597 N.E.2d 554 (2nd Dist. 1992)	179,182,184, 200,215,221, 224,233
<i>Gorsuch Homes v. Wooten</i> , No. 2856 (Ohio App., 2nd Dist., Nov. 14, 1991)	110,112
<i>Gorsuch Mgmt. v. Cole</i> , No. 94-CVG-511 (Ohio Mun., Lancaster, Sept. 22, 1994)	198
<i>Gorsuch Mgmt. v. Shaver</i> , No. 97-CA-1, 1997 WL 33471179 (Ohio App., 5th Dist., Oct. 31, 1997)	257
<i>Goudreau Mgmt. Co. v. Lancaster</i> , No. 65015, 1994 WL 97697 (Ohio App., 8th Dist., Mar. 24, 1994)	371
<i>Gough v. 1031 Props., LLC</i> , No. CA2014-09-196, 2015 WL 4207115 (Ohio App., 12th Dist., July 13, 2015)	488
<i>Graham v. Pavarini</i> , 9 Ohio App.3d 89, 458 N.E.2d 421 (8th Dist. 1983)	9,123,124,518
<i>Grant v. Detroit Ass'n of Women's Clubs</i> , 443 Mich. 596, 505 N.W.2d 254 (1993)	307
<i>Grant-Ross v. Dunsmore</i> , No. L-20-1203, 2021 WL 4480900 (Ohio App., 6th Dist., Sept. 30, 2021)	92
<i>Gravill v. Parkhurst</i> , 27 Ohio App.3d 100, 499 N.E.2d 913 (8th Dist. 1985)	71
<i>Gray v. Akron Metro. Hous. Auth.</i> , No. CV93-11-3889 (Ohio C.P., Summit City., Nov. 30, 1993)	658
<i>Grayden v. Rhodes</i> , 345 F.3d 1225, 1227 (11th Cir. 2003)	485
<i>Grayson v. Farmer</i> , No. 2002-CVG-14619 (Ohio Mun., Cleveland, Hous. Div., Feb. 12, 2002)	423
<i>Great Lakes Mall, Inc. v. Deli Table, Inc.</i> , No. 93-L-154, 1994 WL 587559 (Ohio App., 11th Dist., Sept. 16, 1994)	84-86,521,536
<i>Greater Dayton Premier Mgmt. v. Phillips</i> , No. 12-CVG-1549 (Ohio Mun., Dayton, May 16, 2012)	210
<i>Green v. Brown</i> , No. 86-CV-00466 (Ohio Mun., Hamilton Cty., Mar. 25, 1986)	203
<i>Green v. Northwood Terrace Apts.</i> , No. 78AP-580, 1979 Ohio App. LEXIS 12352 (Ohio App., 10th Dist., Mar. 20, 1979)	497

<i>Green v. Sephus</i> , No. 90-CVG-1768-38 (Ohio Mun., East Cleveland, Jan. 8, 1991)	29,129,135,261
<i>Green v. Smith</i> , No. 2014-CVG-025805 (Ohio Mun., Franklin Cty., Nov. 12, 2014)	38
<i>Green v. Superior Court of City & County of San Francisco</i> , 10 Cal.3d 616, 517 P.2d 1168 (1974)	156,406
<i>Greenbriar Estates v. Eberle</i> , 130 Ohio Misc.2d 11, 824 N.E.2d 172 (Ohio Mun., Clermont Cty., 2005)	145,176
<i>Greenbriar, Inc. v. Chadwick</i> , No. WD-00-057, 2001 WL 127301 (Ohio App., 6th Dist., Feb. 16, 2001)	139
<i>Greene v. Edwards</i> , No. CVG-0301061 (Ohio Mun., Cleveland Heights, Mar. 18, 2004)	265
<i>Greene v. Edwards</i> , No. CVG-0301061 (Ohio Mun., Cleveland Heights, Sept. 10, 2003)	265
<i>Greene v. Lindsey</i> , 456 U.S. 444 (1982)	47
<i>Greene Metro. Hous. Auth. v. Manning</i> , No. 98-CA-55, 1999 WL 76456 (Ohio App., 2nd Dist., Feb. 19, 1999)	11,15,16,179, 180,184
<i>Greenfield Meadows v. Malone</i> , No. M9111-CVG-040019 (Ohio Mun., Franklin Cty., Apr. 17, 1992)	101
<i>Greenspan v. Third Fed. Sav. & Loan Ass'n</i> , 122 Ohio St.3d 455, 912 N.E.2d 567 (2009)	192
<i>Greenwich Gardens Assocs. v. Pitt</i> , 126 Misc.2d 947, 484 N.Y.S.2d 439 (Civ. Ct. 1984)	130
<i>Gress v. Wechter</i> , No. H-12-023, 2013 WL 1092731 (Ohio App., 6th Dist., Mar. 15, 2013)	317,318
<i>Grexa v. Hollenbaugh</i> , No. 2014-T-0039, 2014 WL 5421222 (Ohio App., 11th Dist., Oct. 27, 2014)	636
<i>Griffin v. Currie</i> , No. 4065, 1988 WL 126385 (Ohio App., 11th Dist., Nov. 25, 1988)	496,513
<i>Griffin v. Holston</i> , No. L-83-261, 1983 WL 2328 (Ohio App., 6th Dist., Dec. 16, 1983)	328
<i>Griffits v. Vill. of Newburgh Heights</i> , No. 91428, 2009 WL 280376 (Ohio App., 8th Dist., Feb. 5, 2009)	619
<i>Gromek v. Lepisto</i> , No. 2015-L-099, 2015 WL 5781653 (Ohio App., 11th Dist., Oct. 5, 2015)	114

<i>Gross v. FBL Fin. Servs., Inc.</i> , 557 U.S. 167 (2009)	168
<i>Grove v. Turman</i> , No. 96-CA-1728, 1997 WL 173874 (Ohio App., 4th Dist., Mar. 28, 1997)	499,500
<i>Guaranteed Mgmt. Co. v. DeMaio</i> , No. 88-CVG-01120 (Ohio Mun., Willoughby, Nov. 1, 1989)	415
<i>Guthrie v. Jamison</i> , No. 94-APE10-1560, 1995 WL 238425 (Ohio App., 10th Dist., Apr. 20, 1995)	444
<i>Gvozdanovic v. Woodford Corp.</i> , 139 Ohio App.3d 11, 742 N.E.2d 1145 (1st Dist. 2000)	4,10,11,26

H

<i>H-1 Mgmt. LLC v. Perryman</i> , No. 2006-CVG-28200 (Ohio Mun., Cleveland, Hous. Div., July 10, 2007)	264,410,493
<i>Haas v. Gerski</i> , 175 Ohio St. 327, 194 N.E.2d 765 (1963)	73,74,197
<i>Habe v. S. Euclid Civil Serv. Comm'n</i> , No. 61786, 1993 WL 27682 (Ohio App., 8th Dist., Feb. 4, 1993)	662
<i>Hackman v. Szczygiel</i> , No. 06AP-187, 2006 WL 3199278 (Ohio App., 10th Dist., Nov. 7, 2006)	370,374
<i>Haddox v. Moreland</i> , No. 95-CA-20, 1996 WL 451361 (Ohio App., 4th Dist., Aug. 5, 1996)	383
<i>Hahn v. City of Cincinnati</i> , No. C-1-79-308 (S.D. Ohio Sept. 5, 1980)	612
<i>Hald v. Beatley</i> , No. 87AP-43, 1988 WL 37456 (Ohio App., 10th Dist., Mar. 29, 1988)	396
<i>Hale v. Pease</i> , No. 84-CIV-G-1128 (Ohio Mun., Painesville, Sept. 13, 1984)	416
<i>Hall v. Kottha</i> , No. 64965, 1994 WL 110963 (Ohio App., 8th Dist., Mar. 31, 1994)	23
<i>Hall v. Lacheta</i> , No. 92AP-020013, 1992 WL 362546 (Ohio App., 5th Dist., Nov. 18, 1992)	474,549,550,554
<i>Hall v. Leonard</i> , No. 94-CG-667 (Ohio Mun., Marietta, Mar. 7, 1995)	357,523,539
<i>Hall v. Myers</i> , 49 Ohio Law Abs. 345, 77 N.E.2d 81 (Ohio Mun., Piqua, 1947)	418
<i>Hallmark Mgmt. v. Tartt</i> , No. 49014, 1985 WL 9036 (Ohio App., 8th Dist., May 23, 1985)	73,74

<i>Hamdan v. Traish</i> , No. 14-MA-14, 2015 WL 6697330 (Ohio App., 7th Dist., Oct. 26, 2015)	78,84
<i>Hamilton v. Dickerson</i> , No. 2016-CVG-4233 (Ohio Mun., Franklin Cty., Jan. 2, 2018)	409
<i>Hamilton v. Harville</i> , 63 Ohio App.3d 27, 577 N.E.2d 1125 (12th Dist. 1989)	466
<i>Hamilton Brownfields Redevelopment, LLC v. Duro Tire & Wheel</i> , 156 Ohio App.3d 525, 806 N.E.2d 1039 (12th Dist. 2004)	86,333,363
<i>Hamilton Place Assocs. LP v. Love</i> , No. 2012-CVG-016117 (Ohio Mun., Cleveland, Hous. Div., Feb. 22, 2013)	210
<i>Hamlet Mobile Home Park v. Rose</i> , No. R93-CV-1786 (Ohio Mun., Portage Cty., Mar. 14, 1994)	583
<i>Hamlet Mobile Home Park v. Sigmund</i> , 118 Ohio App.3d 29, 691 N.E.2d 1081 (11th Dist. 1997)	287,583
<i>Hammaker v. Maxson</i> , No. 2003-CA-38, 2004 WL 869381 (Ohio App., 2nd Dist., Apr. 23, 2004)	436
<i>Hammond v. Akron Metro. Hous. Auth.</i> , No. 25425, 2011 WL 2175801 (Ohio App., 9th Dist., June 1, 2011)	671
<i>Hammond v. Cleveland Metro. Hous. Auth.</i> , No. CV-07-616036 (Ohio C.P., Cuyahoga Cty., June 26, 2008)	660,667
<i>Hammond v. Cleveland Metro. Hous. Auth.</i> , No. CV-07-616036 (Ohio C.P., Cuyahoga Cty., Feb. 28, 2007)	658
<i>Hammond v. Moon</i> , 8 Ohio App.3d 66, 455 N.E.2d 1301 (10th Dist. 1982)	325
<i>Hampshire Heights, Inc. v. Van Wormer</i> , 17 Ohio Op.3d 287 (Ohio App., 6th Dist., 1980)	82,83,102
<i>Hampshire House Apts. v. Henderson</i> , No. 3791, 1987 WL 31705 (Ohio App., 11th Dist., Dec. 24, 1987)	30
<i>Hamrick v. Bryan City School Dist.</i> , No. WM-10-014, 2011 WL 2090038 (Ohio App., 6th Dist., May 27, 2011)	618
<i>Haney v. Roberts</i> , 130 Ohio App.3d 293, 720 N.E.2d 101 (4th Dist. 1998)	53,86
<i>Hansgen v. Seigel</i> , No. 00-CVR-40822 (Ohio Mun., Franklin Cty., May 29, 2001)	390,405,413
<i>Hanson v. Knoppe</i> , No. 2019CAE-08-0046, 2019 WL 7290524 (Ohio App., 5th Dist., Dec. 26, 2019)	447

<i>Harbour Portfolio VII, LP v. Pulley</i> , Nos. C-150080,150090, 2015 WL 6438920 (Ohio App., 1st Dist., Oct. 23, 2015)	373
<i>Hardin v. Hardin</i> , No. E-18-001, 2019 WL 259092 (Ohio App., 6th Dist., Jan. 18, 2019)	2,186,187
<i>Hardin v. Meyer</i> , No. L-97-1060, 1998 WL 636774 (Ohio App., 6th Dist., Sept. 18, 1998)	404
<i>Hardin v. Meyer</i> , No. CVJ-94-00160 (Ohio Mun., Toledo, Hous. Div., Feb. 14, 1997)	403
<i>Hardy v. Hardy</i> , No. 89905, 2008 WL 1822394 (Ohio App., 8th Dist., Apr. 24, 2008)	75
<i>Hardy v. Miller</i> , No. 98-CA-13, 1999 WL 1256347 (Ohio App., 4th Dist., Dec. 9, 1999)	424,425
<i>Harmon v. Schroeder</i> , No. 4-85-17, 1986 WL 14411 (Ohio App., 3rd Dist., Dec. 17, 1986)	440
<i>Harpel v. Pierce</i> , Nos. 17163,17168, 1999 WL 55700 (Ohio App., 2nd Dist., Feb. 5, 1999)	396,480,491
<i>Harrington v. Harrington</i> , 269 A.2d 310 (Me. 1970)	113
<i>Harris v. Hampton</i> , No. 2005-CVG-43533 (Ohio Mun., Franklin Cty., Mar. 24, 2006)	47,51,525
<i>Harris v. Hardnick</i> , No. 07-CVI-00705 (Ohio Mun., East Cleveland, July 23, 2007)	493
<i>Harris v. Tigner</i> , 108 Ohio App.3d 152, 670 N.E.2d 304 (8th Dist. 1995)	435
<i>Harris v. Winston</i> , No. 2004-CVG-28660 (Ohio Mun., Cleveland, Hous. Div., Mar. 16, 2005)	407,411,419, 420,463
<i>Harrison v. Webb</i> , 62 Ohio Law Abs. 273, 100 N.E.2d 728 (Ohio C.P., Cuyahoga Cty., 1951)	84,481
<i>Harrison Parks, Inc. v. Bozarth</i> , No. 20147, 2004 WL 917333 (Ohio App., 2nd Dist., Apr. 30, 2004)	289
<i>Hart v. Pervan</i> , No. 79915, 2002 WL 31528735 (Ohio App., 8th Dist., Nov. 14, 2002)	487,492
<i>Hartman v. Garden Woods Apts.</i> , No. 15228, 1995 WL 628021 (Ohio App., 2nd Dist., Oct. 25, 1995)	488,614
<i>Hartmann v. Ohio Crime Victims Reparations Fund</i> , 138 Ohio App.3d 235, 741 N.E.2d 149 (10th Dist. 2000)	526

<i>Harvey v. Civil Serv. Comm'n of Cincinnati</i> , 27 Ohio App.3d 304, 501 N.E.2d 39 (1st Dist. 1985)	660,661
<i>Harvey v. Plains Twp. Police Dep't</i> , 421 F.3d 185 (3d Cir. 2005)	483,484
<i>Hashemi v. Jim Owen & Co.</i> , No. 76AP-879, 1977 Ohio App. LEXIS 8510 (Ohio App., 10th Dist., Apr. 21, 1977)	496,512,518
<i>Hassan v. Dakota County Cmty. Dev. Agency</i> , No. A08-0373, 2009 WL 437775 (Minn. App. Feb. 24, 2009)	244,661
<i>Hatto v. McLaughlin</i> , No. 109307, 2020 WL 3283624 (Ohio App., 8th Dist., June 18, 2020)	447
<i>Hau v. Gill</i> , No. 98-CA-007061, 1999 WL 492633 (Ohio App., 9th Dist., July 14, 1999)	300
<i>Hauke v. Harris</i> , No. 2005-CA-000003, 2005 WL 3316338 (Ohio App., 5th Dist., Dec. 8, 2005)	23
<i>Hausman v. City of Dayton</i> , 73 Ohio St.3d 671, 653 N.E.2d 1190 (1995)	604
<i>Hawk v. Fairmeadows Apts.</i> , No. CA86-12-180, 1987 WL 13707 (Ohio App., 12th Dist., June 29, 1987)	331,480
<i>Hawkins v. Collier</i> , No. 87-CVG-884 (Ohio Mun., Portsmouth, Sept. 10, 1987)	16,159
<i>Hawkins v. Hawkins</i> , 11 Ohio Misc.2d 18, 464 N.E.2d 199 (Ohio C.P., Clermont Cty., 1984)	423
<i>Hayes v. Hayes</i> , No. 4892, 1985 WL 7948 (Ohio App., 8th Dist., Apr. 11, 1985)	466
<i>Hayes v. Kelly</i> , No. L-14-1153, 2015 WL 995446 (Ohio App., 6th Dist., Mar. 6, 2015)	275
<i>Hayes v. Murtha</i> , No. 96-APE04-512, 1996 WL 589268 (Ohio App., 10th Dist., Oct. 10, 1996)	323
<i>Hayes Colony, Ltd. v. Woods</i> , No. 08-CV-2030 (Ohio Mun., Delaware, Sept. 3, 2008)	21
<i>Heath v. Burgess</i> , No. CA86-12-019, 1987 WL 12730 (Ohio App., 12th Dist., June 15, 1987)	504
<i>Heck v. Whitehurst Co.</i> , No. L-03-1134, 2004 WL 1857131 (Ohio App., 6th Dist., Aug. 20, 2004)	318,405,408,424
<i>Hedco, Ltd. v. Blanchette</i> , 763 A.2d 639 (R.I. 2000)	203,221

<i>Heifner v. Heifner</i> , No. 1-88-32, 1989 WL 145162 (Ohio App., 3rd Dist., Nov. 28, 1989)	361
<i>Heitman v. Sky Meadows Trailer Park</i> , No. CA89-05-067, 1989 WL 125381 (Ohio App., 12th Dist., Oct. 23, 1989)	583
<i>Helfrich v. Mellon</i> , No. 06-CA-69, 2007 WL 1881537 (Ohio App., 5th Dist., June 27, 2007)	457,459,471,555
<i>Heller v. Murphy Hotel Corp.</i> , 5 Ohio Law Abs. 54 (Ohio App., 8th Dist., 1926)	134
<i>Helm v. Peoples</i> , No. 94-CVG-144 (Ohio Mun., Jackson Cty., Apr. 17, 1996)	413
<i>Helvich v. George A. Rutherford Co.</i> , 96 Ohio App. 367, 114 N.E.2d 514 (8th Dist. 1953)	344
<i>Hembree v. Mid-Am. Fed. Sav. & Loan Ass'n</i> , 64 Ohio App.3d 144, 580 N.E.2d 1103 (2nd Dist. 1989)	602
<i>Henderson v. Spring Run Allotment</i> , 99 Ohio App.3d 633, 651 N.E.2d 489 (9th Dist. 1994)	534
<i>Hendrix v. Eighth & Walnut Corp.</i> , 1 Ohio St.3d 205, 438 N.E.2d 1149 (1982)	295
<i>Henley v. City of Youngstown Bd. of Zoning Appeals</i> , 90 Ohio St.3d 142, 735 N.E.2d 433 (2000)	660,661
<i>Henning v. Steiner</i> , No. 2725, 1992 WL 281326 (Ohio App., 9th Dist., Oct. 7, 1992)	64
<i>Henry v. Richardson</i> , 193 Ohio App.3d 375, 951 N.E.2d 1123 (12th Dist. 2011)	84
<i>Henry v. Trs. of Perry Twp.</i> , 48 Ohio St. 671, 30 N.E.2d 1122 (1891)	301,302
<i>Henry v. Wild Pines Apts.</i> , 183 Ga. App. 491, 359 S.E.2d 237 (1987)	238,248
<i>Hensel v. Childress</i> , 145 N.E.3d 1159, 2019-Ohio-3934 (Ohio App., 1st Dist., 2019)	529,530,535, 537,541
<i>Henson v. Cuyahoga Metro. Hous. Auth.</i> , No. 104274, 2016 WL 7296572 (Ohio App., 8th Dist., Dec. 15, 2016)	656
<i>Heritage Court, L.L.C. v. Merritt</i> , 187 Ohio App.3d 117, 931 N.E.2d 194 (3rd Dist. 2010)	200,309,310,366
<i>Heritage Hills, Ltd. v. Bragg</i> , No. 1379, 1987 WL 16079 (Ohio App., 4th Dist., Aug. 27, 1987)	149,151,155,416

<i>Heritage Hills, Ltd. v. Bragg</i> , No. 86-CVG-169 (Ohio Mun., Chillicothe, Sept. 11, 1986)	416
<i>Heritage Hills, Ltd. v. Deacon</i> , 49 Ohio St.3d 80, 551 N.E.2d 125 (1990)	614
<i>Heritage Hills, Ltd. v. Nusser</i> , No. 1183, 1986 WL 7882 (Ohio App., 4th Dist., July 3, 1986)	179-183
<i>Heritage Hills, Ltd. v. Smith</i> , No. 78-CVG-268 (Ohio Mun., Chillicothe, May 8, 1978)	176,364,377
<i>Heritage Hills, Ltd. v. Tyler</i> , No. 89-CVG-85 (Ohio Mun., Chillicothe, Mar. 17, 1989)	183
<i>Heritage Place Apts. v. Ely</i> , No. 08-CVG-791 (Ohio Mun., Steubenville, Aug. 29, 2008)	243
<i>Herman and Kettle Props., Inc. v. Klenk</i> , No. 18-CVG-02895 (Ohio Mun., Hamilton, Mar. 15, 2019)	62
<i>Herring v. Chicago Hous. Auth.</i> , No. 90-C-3797, 1993 WL 489767 (N.D. Ill. Apr. 22, 1993)	268
<i>Hersch v. Debreczeni</i> , 33 Ohio App.2d 235, 294 N.E.2d 918 (8th Dist. 1973)	70,71
<i>Hessenhauer Corp. v. Drinks</i> , No. 2002-CVG-39464 (Ohio Mun., Franklin Cty., Nov. 7, 2002)	376
<i>Hewison v. City of Coshocton Water Dep't</i> , No. C2-92-131 (S.D. Ohio Dec. 30, 1992)	611
<i>Hiatt v. S. Health Facilities, Inc.</i> , 68 Ohio St.3d 236, 626 N.E.2d 71 (1994)	6,46,48
<i>Hicks v. Dakota County Cmty. Dev. Agency</i> , No. A06-1302, 2007 WL 2416872 (Minn. App. Aug. 28, 2007)	244
<i>Hicks v. Holland</i> , No. 53363, 1987 WL 17217 (Ohio App., 8th Dist., Sept. 17, 1987)	73
<i>Hicks v. Hubert</i> , No. 96-CVG-34 (Ohio County Ct., Sandusky Cty., June 4, 1996)	366
<i>Hicks Roofing Co. v. Shah, Shah & Patel Inv. Co.</i> , Nos. 88AP-100085,020025, 1989 WL 63323 (Ohio App., 5th Dist., May 16, 1989)	193,194
<i>Hidden Meadows Townhomes v. Ross</i> , No. C-120045, 2012 WL 6674412 (Ohio App., 1st Dist., Dec. 21, 2012)	202,234
<i>Higbee v. Starr</i> , 698 F.2d 945 (8th Cir. 1983)	162

<i>Higdon v. Sign of the Cross Housing, Inc.</i> , 126 Ohio Misc.2d 84, 803 N.E.2d 876 (Ohio Mun., Hamilton Cty., 2003)	302,303
<i>Higginbottom v. Rehoboth Temple Church, Etc.</i> , No. 67909, 1995 WL 546935 (Ohio App., 8th Dist., Sept. 14, 1995)	563
<i>Higgins v. Penobscot County Sheriff's Dep't</i> , 446 F.3d 11 (1st Cir. 2006)	484
<i>Higgins v. Roe</i> , No. 73-CA-3 (Ohio App., 5th Dist., Apr. 2, 1979)	399
<i>Highgate Assocs., Ltd. v. Merryfield</i> , 597 A.2d 1280 (Vt. 1991)	357
<i>Highland Estates Mobile Home Park v. Miller</i> , No. 92-CVG-1054, 1993 WL 837917 (Ohio Mun., Findlay, Jan. 22, 1993)	590
<i>Highland House Co. v. Gedos</i> , No. 47064, 1984 WL 14194 (Ohio App., 8th Dist., Feb. 16, 1984)	385
<i>Hi-Land Terrace v. Bartley</i> , No. 90-CVG-222 (Ohio Mun., Hillsboro, Nov. 14, 1990)	229
<i>Hi-Land Terrace, Inc. v. Dinwiddie</i> , No. 546, 1985 WL 6560 (Ohio App., 4th Dist., Mar. 1, 1985)	176,364,377
<i>Hilder v. St. Peter</i> , 144 Vt. 150, 478 A.2d 202 (1984)	316,404,420
<i>Hildreth v. Mims</i> , 70 Ohio App.3d 282, 590 N.E.2d 1353 (8th Dist. 1990)	107
<i>Hile v. Besecker</i> , 82 Ohio App. 301, 79 N.E.2d 582 (2nd Dist. 1947)	20,127
<i>Hill v. Hollister</i> , 8 Ohio Dec. Reprint 116, 1880 WL 5818 (Ohio C.P., Huron Cty., Nov. 1880)	58
<i>Hill v. Monday Villas Prop. Owners Ass'n</i> , No. 24714, 2012 WL 690316 (Ohio App., 2nd Dist., Mar. 2, 2012)	325
<i>Hillman v. Mareta</i> , 569 U.S. 483 (2013)	239
<i>Hillsborough County, Fla. v. Automated Med. Labs., Inc.</i> , 471 U.S. 707 (1985)	239
<i>Hilltop Vill. v. West</i> , No. L-88-120, 1989 WL 10277 (Ohio App., 6th Dist., Feb. 10, 1989)	66,180,183,185
<i>Hilltop Vill. v. West</i> , No. CVG-85-16250 (Ohio Mun., Toledo, Hous. Div., Jan. 27, 1986)	229
<i>Hines v. Riley</i> , 129 Ohio App.3d 379, 717 N.E.2d 1133 (4th Dist. 1998)	518-520,536,539
<i>Hite v. Field</i> , 38 Conn. Supp. 70, 462 A.2d 393 (1982)	603
<i>Hiznay v. Boardman Twp.</i> No. 2015-MA-0122, 2017 WL 1193839 (Ohio App., 7th Dist., Mar. 29, 2017)	293

<i>Hocking Metro. Hous. Auth. v. Martin</i> , No. 97-CA-9, 1998 WL 100416 (Ohio App., 4th Dist., Mar. 5, 1998)	57-60,64, 117-119
<i>Hodess v. Bonefont</i> , 401 Mass. 693, 519 N.E.2d 258 (1988)	248
<i>Hodge v. Lackey</i> , No. 93-T-4947, 1995 WL 378700 (Ohio App., 11th Dist., May 12, 1995)	442
<i>Hodges v. Gates Mills Towers Apt. Co.</i> , No. 77278, 2000 WL 1429421 (Ohio App., 8th Dist., Sept. 28, 2000)	313
<i>Hodgson v. Hodgson</i> , No. 89-L-14-074, 1990 WL 128267 (Ohio App., 11th Dist., Sept. 7, 1990)	328
<i>Hoerner v. GMS Mgmt. Co.</i> , No. 46736, 1983 WL 2892 (Ohio App., 8th Dist., Dec. 15, 1983)	548,554
<i>Hofer v. Cooper</i> , No. 1909, 1989 Ohio App. LEXIS 870 (Ohio App., 11th Dist., Mar. 17, 1989)	399
<i>Hoffman v. Foster & Kleiser, Inc.</i> , No. 44134, 1982 WL 5385 (Ohio App., 8th Dist., May 27, 1982)	594
<i>Hoffman Arabians, LLC v. Estep</i> , No. 01-CVG-869 (Ohio Mun., Circleville, Nov. 9, 2001)	193
<i>Hogan v. Mozik</i> , No. 91-CVG-27438 (Ohio Mun., Cleveland, Hous. Div., Mar. 19, 1992)	468
<i>Hoiles v. Watkins</i> , 117 Ohio St. 165, 157 N.E. 557 (1927)	456
<i>Holder v. Farmakis</i> , 66 Ohio Law Abs. 279, 117 N.E.2d 491 (Ohio App., 3rd Dist., 1951)	157
<i>Holimon v. Cincinnati Metro. Hous. Auth.</i> , 180 N.E.3d 1226, 2021-Ohio-3840 (Ohio App., 1st Dist., 2021)	618
<i>Holloway v. McDaniel</i> , No. 91599, 2009 WL 2263608 (Ohio App., 8th Dist., July 30, 2009)	428
<i>Holloway v. Wilson</i> , No. 99-CA-76, 2000 WL 1062327 (Ohio App., 2nd Dist., Aug. 4, 2000)	189
<i>Hollowell v. Aplis</i> , No. 100275, 2014 WL 1327957 (Ohio App., 8th Dist., Mar. 20, 2014)	330
<i>Holman v. Cuyahoga Metro. Hous. Auth.</i> , No. 81475, 2002 WL 31771307 (Ohio App., 8th Dist., Dec. 12, 2002)	666
<i>Holman v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-01-449663 (Ohio C.P., Cuyahoga Cty., May 30, 2002)	660

<i>Holman v. Keegan</i> , 139 Ohio App.3d 911, 746 N.E.2d 209 (6th Dist. 2000)	83
<i>Holmes v. Cobblestone Grove</i> , No. CA2016-04-075, 2017 WL 74986 (Ohio App., 12th Dist., Jan. 9, 2017)	83,317,396
<i>Holmes v. Convenient Food Mart, Inc.</i> , No. 98-L-272, 2000 WL 263736 (Ohio App., 11th Dist., Mar. 3, 2000)	173,203
<i>Homeowners Ass'n at Arrow-Head Bay v. Fidoe</i> , No. 12-MA-136, 2014 WL 1384577 (Ohio App., 7th Dist., Mar. 31, 2014)	3
<i>Homestead Equities, Inc. v. Washington</i> , 176 Misc.2d 459, 672 N.Y.S.2d 980 (Civ. Ct. 1998)	261,262
<i>Hood v. Kusior</i> , No. 97-CVG-3823 (Ohio Mun., Akron, July 23, 1997)	28,29,32
<i>Hooper v. Seventh Urban, Inc.</i> , 70 Ohio App.2d 101, 434 N.E.2d 1367 (8th Dist. 1980)	96
<i>Hoops v. United Tel. Co. of Ohio</i> , 50 Ohio St.3d 97, 553 N.E.2d 252 (1990)	57
<i>Hoover v. Elliott</i> , No. CA-9160, 1985 WL 4927 (Ohio App., 2nd Dist., Dec. 30, 1985)	448
<i>Hornikel v. Watkins</i> , No. 00-CVF-00401 (Ohio Mun., Bellefontaine, Nov. 29, 2000)	476
<i>Houghtaling v. City of Medina Bd. of Zoning Appeals</i> , 134 Ohio App.3d 541, 731 N.E.2d 733 (9th Dist. 1999)	657
<i>Householder v. Edgar</i> , No. 06-CVG-687 (Ohio County Ct., Tuscarawas, Mar. 6, 2007)	419
<i>Houshour v. Pfisterer</i> , No. 2021-CVG-350 (Ohio Mun., Canton, June 10, 2021)	409
<i>Hous. & Redevelopment Auth. of Duluth v. Lee</i> , 852 N.W.2d 683 (Minn. 2014)	357
<i>Hous. Auth. for Prince George's County v. Williams</i> , 784 A.2d 621 (Md. App. 2001)	244,250
<i>Hous. Auth. of City of Atlanta v. Hudson</i> , 250 Ga. 109, 296 S.E.2d 558 (1982)	51
<i>Hous. Auth. of City of Atlantic City v. Taylor</i> , 171 N.J. 580, 796 A.2d 193 (2002)	233
<i>Hous. Auth. of City of Everett v. Terry</i> , 114 Wash.2d 558, 789 P.2d 745 (1990)	240,248

<i>Hous. Auth. of City of Jersey City v. Thomas</i> , 318 N.J. Super. 191, 723 A.2d 119 (1999)	237,255
<i>Hous. Auth. of City of Pittsburgh v. Smith</i> , No. 2:14-cv-00976 (W.D. Pa. 2014)	270
<i>Hous. Auth. of City of Spartanburg v. Elmore</i> , No. 94-CP- 42-832 (S.C.C.P., Spartanburg Cty., Nov. 30, 1994)	277
<i>Hous. Auth. of City of Stamford v. Lamothe</i> , 225 Conn. 757, 627 A.2d 367 (1993)	116
<i>Hous. Auth. of City of York v. Dickerson</i> , 715 A.2d 525 (Pa. Commw. 1998)	244
<i>Hous. Auth. of Covington v. Turner</i> , 295 S.W.3d 123 (Ky. App. 2009)	247
<i>Hous. Auth. of Decatur v. Brown</i> , 180 Ga. App. 483, 349 S.E.2d 501 (1986)	250
<i>Hous. Auth. of Jersey City v. Myers</i> , 295 N.J. Super. 544, 685 A.2d 532 (1996)	217
<i>Hous. Auth. of New Orleans v. Eason</i> , 12 So.3d 970 (La. 2009)	270
<i>Hous. Auth. of Portland v. Asana</i> , 165 Or. App. 531, 1 P.3d 1025 (2000)	255
<i>Hous. Opportunities Comm'n of Montgomery County v. Lacey</i> , 322 Md. 56, 585 A.2d 219 (1991)	248
<i>Hous. Resource Group v. Price</i> , No. 38962-9-I, 1998 WL 251768 (Wash. App. May 18, 1998)	137
<i>Houtsinger v. Renzelli</i> , No. RE 123 (Ohio Mun., Athens Cty., July 31, 1987)	392
<i>Howard v. Reeves</i> , No. 05-CVG-1910 (Ohio Mun., Chillicothe, Jan. 26, 2006)	411
<i>Howard v. Shangri-La Inn</i> , No. 48219, 1984 WL 195551 (Ohio App., 8th Dist., Nov. 29, 1984)	305
<i>Howard v. Simon</i> , 18 Ohio App.3d 14, 480 N.E.2d 99 (8th Dist. 1984)	162,163,291, 292,327,333, 406,416
<i>Howard v. Simon</i> , No. 82-CIG-10516 (Ohio Mun., Shaker Heights, Sept. 10, 1983)	416
<i>Howard v. Temple</i> , 172 Ohio App.3d 21, 872 N.E.2d 1260 (4th Dist. 2007)	645
<i>Howerton v. Gabica</i> , 708 F.2d 380 (9th Cir. 1983)	483,484

<i>Howson v. Amorose</i> , No. 00AP-8, 2000 WL 1753112 (Ohio App., 10th Dist., Nov. 30, 2000)	322,323,446
<i>Hubbard v. Crutchfield</i> , No. CA96-06-050, 1997 WL 162397 (Ohio App., 12th Dist., Apr. 7, 1997)	444
<i>Huber Inv. Corp. v. Chapman</i> , No. 14593, 1995 WL 127896 (Ohio App., 2nd Dist., Mar. 22, 1995)	115
<i>Hudgins v. Campbell</i> , No. 2013-CVG-00086 (Ohio Mun., Elyria, Mar. 11, 2013)	18
<i>Hudson v. Bates</i> , No. 93-CVG-7406 (Ohio Mun., Marion Cty., Jan. 26, 1993)	636,641
<i>Hudson v. Palmer</i> , 468 U.S. 517 (1984)	484
<i>Huffman v. Coshocton Metro. Hous. Auth.</i> , No. 10-CI-0380 (Ohio C.P., Coshocton Cty., June 16, 2010)	658
<i>Hughes v. Oberholtzer</i> , 162 Ohio St. 330, 123 N.E.2d 393 (1954)	598
<i>Humphrey v. Heine</i> , No. M9201-CVG-004176 (Ohio Mun., Franklin Cty., Mar. 3, 1992)	76
<i>Huntsberry v. Countryside Assocs.</i> , No. CA85-08-088, 1986 WL 7105 (Ohio App., 12th Dist., June 23, 1986)	585
<i>Husein v. Payne</i> , No. 2020-CVG-005042 (Ohio Mun., Cleveland, Hous. Div., July 28, 2020)	140,141
<i>Hussain v. Sheppard</i> , No. 14AP-686, 2015 WL 915467 (Ohio App., 10th Dist., Feb. 24, 2015)	1,113,114
<i>Hyle v. Porter</i> , 117 Ohio St.3d 165, 882 N.E.2d 899 (2008)	383
I	
<i>IDC Brunswick Crossroads, LLC v. Gack, Inc.</i> , No. 10CA-0088-M, 2012 WL 177997 (Ohio App., 9th Dist., Jan. 23, 2012)	123-125
<i>Iberia Cabinet Mfg. Co. v. Walston</i> , 121 Ohio Misc.2d 121, 782 N.E.2d 1259 (Ohio Mun., Marion, 2002)	192
<i>In re Aikens</i> , 503 B.R. 603 (Bankr. S.D.N.Y. 2014)	270,272
<i>In re Alberts</i> , 381 B.R. 171 (Bankr., W.D. Pa. 2008)	276
<i>In re Bacon</i> , 212 B.R. 66 (Bankr. E.D. Pa. 1997)	270,273,274
<i>In re Bain</i> , No. 10-11316-RAM (Bankr., S.D. Fla. Apr. 20, 2010)	270,271

<i>In re Batista</i> , No. 05-11033-BKC-RAM, 2005 WL 2451736 (Bankr. S.D. Fla. June 2, 2005)	270
<i>In re Bennett</i> , 165 F.3d 31 (table), 1998 WL 756838 (7th Cir. 1998)	275
<i>In re Burch</i> , 401 B.R. 153 (Bankr. E.D. Pa. 2008)	270
<i>In re Carol Janet, Inc.</i> , 49 B.R. 847 (Bankr. E.D. Wis. 1985)	346
<i>In re Ctr. Apts., Ltd.</i> , 277 B.R. 747 (Bankr. S.D. Ohio 2001)	486
<i>In re Collier</i> , 163 B.R. 118 (Bankr. S.D. Ohio 1993)	275
<i>In re Collins</i> , 199 B.R. 561 (Bankr. W.D. Pa. 1996)	271,273
<i>In re Curry</i> , 148 B.R. 966 (S.D. Fla. 1992)	270
<i>In re Day</i> , 208 B.R. 358 (Bankr. E.D. Pa. 1997)	274
<i>In re DiCamillo</i> , 206 B.R. 64 (Bankr. D.N.J. 1997)	274,275
<i>In re Estate of Ault</i> , 80 Ohio App.3d 399, 609 N.E.2d 568 (12th Dist. 1992)	73
<i>In re Foreclosure of Liens for Delinquent Land Taxes v. Parcels of Land, Etc.</i> , No. 96-APE02-160, 1996 WL 421862 (Ohio App., 10th Dist., July 25, 1996)	6
<i>In re Harris</i> , 424 B.R. 44 (Bankr., E.D.N.Y. 2010)	276
<i>In re Hobbs</i> , 221 B.R. 892 (Bankr. M.D. Fla. 1997)	270,273
<i>In re Howard</i> , 73 Ohio App.3d 717, 598 N.E.2d 165 (10th Dist. 1991)	653
<i>In re ICLNDS Notes Acquisition, LLC</i> , 259 B.R. 289 (Bankr. N.D. Ohio 2001)	192-194
<i>In re Jackson</i> , No. 94-18512 DWS (Bankr. E.D. Pa. May 4, 1995)	270
<i>In re James</i> , 198 B.R. 885 (Bankr. W.D. Pa. 1996)	271,273
<i>In re Jones-Smith</i> , No. 93276, 2009 WL 4695438 (Ohio App., 8th Dist., Dec. 10, 2009)	655
<i>In re Kelly</i> , 356 B.R. 899 (Bankr. S.D. Fla. 2006)	270,276
<i>In re Kindinger</i> , 219 B.R. 214 (Bankr. N.D. Ohio 1998)	173,370,371
<i>In re Liggins</i> , 145 B.R. 227 (Bankr. E.D. Va. 1992)	275
<i>In re Lutz</i> , 82 B.R. 699 (Bankr. M.D. Pa. 1988)	271
<i>In re Marcano</i> , 288 B.R. 324 (Bankr. S.D.N.Y. 2003)	271,274
<i>In re Moore</i> , 290 B.R. 851 (Bankr. N.D. Ala. 2003)	275
<i>In re Okentowicz</i> , 314 B.R. 638 (Bankr. E.D. Mich. 2004)	271

<i>In re Parker</i> , 269 B.R. 522 (D. Vt. 2001)	274
<i>In re Rocky Point Plaza Corp.</i> , 86 Ohio App.3d 486, 621 N.E.2d 566 (10th Dist. 1993)	659
<i>In re Rosemond</i> , 105 B.R. 8 (Bankr. W.D. Pa. 1989)	271
<i>In re Ross</i> , 142 B.R. 1013 (S.D. Fla. 1992)	275
<i>In re Szymeck</i> , 87 B.R. 14 (Bankr. W.D. Pa. 1988)	270
<i>In re Talley</i> , 69 B.R. 219 (Bankr. M.D. Tenn. 1986)	274
<i>In re Valentin</i> , 309 B.R. 715 (Bankr. E.D. Pa. 2004)	270,273
<i>In re Whitsett</i> , 163 B.R. 752 (Bankr. E.D. Pa. 1994)	274,275
<i>In re Williams</i> , 144 F.3d 544 (7th Cir. 1998)	274,275
<i>In re Wines</i> , 997 F.2d 852 (11th Cir. 1993)	354
<i>In re Yokley</i> , 99 B.R. 394 (Bankr. M.D. Tenn. 1989)	275
<i>Independent Mgmt. Servs. of Ohio, Inc. v. Davis</i> , No. 2014-CVG-01244 (Ohio Mun., Elyria, July 18, 2014)	204,208,221, 225,234
<i>Indian Hills Senior Cmty., Inc. v. Sanders</i> , No. 78780, 2001 WL 958055 (Ohio App., 8th Dist., Aug. 23, 2001)	164
<i>Indian Valley Apts. v. Kamerer</i> , No. R88-CVG-0978 (Ohio Mun., Portage Cty., Sept. 26, 1988)	183
<i>Inger Interiors v. Peralta</i> , 30 Ohio App.3d 94, 506 N.E.2d 1199 (8th Dist. 1986)	148
<i>Ingram v. Glaser</i> , No. CA-11511, 1989 WL 130801 (Ohio App., 2nd Dist., Nov. 1, 1989)	547
<i>Inner City Hous. v. Sebastian</i> , No. 81-CV-15029 (Ohio Mun., Hamilton Cty., June 29, 1981)	38,204,207
<i>Insignia Mgmt. Group v. McCrae</i> , No. 94-CVG-4696 (Ohio Mun., Stark Cty., Oct. 20, 1994)	255
<i>Insignia Mgmt. Group v. Tate</i> , No. 94-CVG-6277 (Ohio Mun., Canton, Jan. 20, 1995)	140,183
<i>Intermountain Fair Hous. Counsel v. Boise Rescue Mission Ministries</i> , 717 F. Supp.2d 1101 (D. Idaho 2010)	304
<i>Int'l Bd. of Elec. Workers, Local Union No. 8 v. Vaughn Indus., L.L.C.</i> , 116 Ohio St.3d 335, 879 N.E.2d 187 (2007)	553

<i>Investors Diversified Prop. Mgmt., Inc. v. Brown</i> , No. 87-360-II, 1988 WL 102781 (Tenn. App. Oct. 7, 1988)	237
<i>Irvin v. Carson</i> , No. 79-CV-471 (Ohio Mun., Akron, Feb. 21, 1979)	100
<i>Isaiah's Wings, LLC v. McCourt</i> , No. 2005-CA-39, 2006 WL 1901015 (Ohio App., 5th Dist., July 7, 2006)	69
<i>Ivywood Apts. v. Bennett</i> , 51 Ohio App.2d 209, 367 N.E.2d 1205 (10th Dist. 1976)	202
<i>Iwenofu v. Consol. Mgmt., Inc.</i> , 49 Ohio App.3d 33, 550 N.E.2d 505 (8th Dist. 1988)	421,458,459
J	
<i>J & E Mgmt., Inc. v. Wolf</i> , No. 35563, 1977 Ohio App. LEXIS 7324 (Ohio App., 8th Dist., Feb. 10, 1977)	69,187,188
<i>J & M Trailer Court v. Dissette</i> , No. 1556, 1987 WL 16917 (Ohio App., 9th Dist., Sept. 9, 1987)	12,139
<i>J&V Props. Mgmt. v. Link</i> , No. 19-CA-6, 2019 WL 5173790 (Ohio App., 5th Dist., Oct. 11, 2019)	112
<i>J.C. Penney Co. v. Teddam Realty Corp.</i> , 33 A.D.2d 1006, 307 N.Y.S.2d 750 (1970)	400
<i>Jack Spring, Inc. v. Little</i> , 50 Ill.2d 351, 280 N.E.2d 208 (1972)	113
<i>Jackson v. Brown</i> , 83 Ohio App.3d 230, 614 N.E.2d 847 (8th Dist. 1992)	549
<i>Jackson v. George</i> , No. 05-CVF-01761 (Ohio Mun., East Cleveland, Feb. 16, 2006)	411
<i>Jackson v. Greene Metro. Hous. Auth.</i> , No. 2000-CV-0544 (Ohio C.P., Greene Cty., Jan. 25, 2001)	664
<i>Jackson v. Hammond</i> , No. 2006-CVG-31171 (Ohio Mun., Cleveland, Hous. Div., Feb. 15, 2007)	38,213,265
<i>Jackson View Ltd. v. Sturgill</i> , No. 91-CVG-110 (Ohio Mun., Jackson Cty., Mar. 21, 1991)	121
<i>Jacobs v. Cuyahoga Metro. Hous. Auth.</i> , No. 102248, 2015 WL 3647561 (Ohio App., 8th Dist., June 11, 2015)	654,655,665
<i>Jakacki v. Raineri</i> , No. 179-193, 1981 WL 167768 (Ohio Mun., Portage Cty., Sept. 9, 1981)	588
<i>James v. Campbell</i> , No. 87-SC-I-2 (Ohio Mun., Ironton, July 13, 1987)	446
<i>James v. City of St. Petersburg</i> , 33 F.3d 1304 (11th Cir. 1994)	609

<i>James H. Washington Ins. Agency v. Nationwide Mut. Ins. Co.</i> , 95 Ohio App.3d 577, 643 N.E.2d 143 (8th Dist. 1993)	538
<i>Jameson v. Sommer's Mobile Home Sales, Inc.</i> , No. 83769 (Ohio C.P., Lorain Cty., May 13, 1980)	290,578
<i>Jamieson v. Harris</i> , No. 85-CV-39131 (Ohio Mun., Hamilton Cty., Apr. 14, 1986)	297
<i>Jandecka v. Petre</i> , No. 46623, 1983 WL 2695 (Ohio App., 8th Dist., Oct. 27, 1983)	665
<i>Janos v. Justice</i> , No. 80AP-31, 1980 Ohio App. LEXIS 10870 (Ohio App., 10th Dist., June 19, 1980)	499
<i>Jansen v. Barclay Square</i> , 34 Ohio Misc. 14, 295 N.E.2d 443 (Ohio Mun., Franklin Cty., 1973)	477
<i>January Invs., LLC v. Ingram</i> , No. CA2009-09-127, 2010 WL 1757940 (Ohio App., 12th Dist., May 3, 2010)	318
<i>Javins v. First Nat'l Realty Corp.</i> , 428 F.2d 1071 (D.C. Cir. 1970)	156
<i>Jeffries v. Ga. Res. Fin. Auth.</i> , 678 F.2d 919 (11th Cir. 1982)	200
<i>Jeffries v. Ga. Res. Fin. Auth.</i> , 503 F. Supp. 610 (N.D. Ga. 1980)	200
<i>Jemo Assocs. v. Garman</i> , 70 Ohio St.2d 267, 436 N.E.2d 1353 (1982)	53,462
<i>Jenkins v. Boyce</i> , 94 Ohio Misc.2d 98, 703 N.E.2d 392 (Ohio Mun., Akron, 1998)	339
<i>Jenkins v. Roger C. Perry & Co.</i> , 83 Ohio App.3d 234, 614 N.E.2d 850 (10th Dist. 1992)	328
<i>Jenkins v. Rung</i> , No. 93-CVGT-601 (Ohio Mun., Miami Cty., July 5, 1993)	183,231,257
<i>Jensen v. Boulevard Invs., Ltd.</i> , No. 103 658, 2016 WL 4242244 (Ohio App., 8th Dist., Aug. 11, 2016)	496-498
<i>Jerels v. Begue</i> , No. 24700, 2010 WL 1780140 (Ohio App., 9th Dist., May 5, 2010)	505,544
<i>Jersey City Hous. Auth. v. Ford</i> , No. A-5657-08T3, 2010 WL 5395806 (N.J. Super. Dec. 28, 2010)	244
<i>Johnson v. Akron Metro. Hous. Auth.</i> , No. 2010-08-5472 (Ohio C.P., Summit Cty., Feb. 23, 2011)	667
<i>Johnson v. Brown</i> , No. 2002-CA-76, 2003 WL 1193795 (Ohio App., 2nd Dist., Mar. 14, 2003)	517,529,617
<i>Johnson v. Chester Hous. Auth.</i> , 250 B.R. 521 (Bankr. E.D. Pa. 2000)	270

<i>Johnson v. Cincinnati Metro. Hous. Auth.</i> , No. C-210240, 2022 WL 68345 (Ohio App., 1st Dist., Jan. 7, 2022)	618
<i>Johnson v. City of Cincinnati</i> , 310 F.3d 484 (6th Cir. 2002)	367
<i>Johnson v. Maxwell</i> , 51 Ohio App.3d 137, 554 N.E.2d 1370 (9th Dist. 1988)	631
<i>Johnson v. Middleton</i> , 66 Ohio App.3d 783, 586 N.E.2d 1093 (3rd Dist. 1989)	560
<i>Johnson v. Monroe Realty Co.</i> , No. 67964, 1995 WL 322278 (Ohio App., 8th Dist., May 25, 1995)	449
<i>Johnson v. Morelli Props. LLC</i> , No. 2008-CVF-023275 (Ohio Mun., Franklin Cty., Oct. 7, 2009)	533,538,550
<i>Johnson v. Rahim</i> , No. 2019-CVG-008127 (Ohio Mun., Cleveland, Hous. Div., Jan. 21, 2020)	409,418,419,441
<i>Johnson v. Spectrum of Supportive Servs.</i> , No. 82267, 2003 WL 21982915 (Ohio App., 8th Dist., Aug. 21, 2003)	331,449
<i>Johnson Props. v. Leasure</i> , No. R96-CVG-2566 (Ohio Mun., Portage Cty., Jan. 3, 1997)	194
<i>Johnston v. Filson</i> , No. CA2014-04-007, 2014 WL 5422214 (Ohio App., 12th Dist., Oct. 27, 2014)	430
<i>Jones v. Burns</i> , No. R90-CVG-2776 (Ohio Mun., Portage Cty., Nov. 29, 1990)	232,257
<i>Jones v. Burns</i> , No. R90-CVG-2008 (Ohio Mun., Portage Cty., Oct. 10, 1990)	27
<i>Jones v. Cincinnati Metro. Hous. Auth.</i> , No. A-0709492 (Ohio C.P., Hamilton Cty., Apr. 15, 2008)	242,668
<i>Jones v. City of Norwood</i> , No. C-120237, 2013 WL 454909 (Ohio App., 1st Dist., Feb. 6, 2013)	484,485
<i>Jones v. Delaware City Sch. Dist. Bd. of Educ.</i> , 995 N.E.2d 1252, 2013-Ohio-3907 (Ohio App., 5th Dist., 2013)	618
<i>Jones v. Flowers</i> , 547 U.S. 220 (2006)	45
<i>Jones v. Greene Countrie Apts.</i> , No. 94-APE01-105, 1994 WL 265656 (Ohio App., 10th Dist., June 14, 1994)	430
<i>Jones v. Gutschenritter</i> , 909 F.2d 1208 (8th Cir. 1990)	463

<i>Jones v. Ranzy</i> , No. 93-CVG-00904 (Ohio Mun., Shaker Heights, June 16, 1993)	143
<i>Jones v. Simondis</i> , No. 97-T-0073, 1998 WL 156871 (Ohio App., 11th Dist., Mar. 27, 1998)	538
<i>Jones v. Superior Mobile Homes, Inc.</i> , No. 93-CVH-1-R, 1994 WL 906706 (Ohio County Ct., Trumbull Cty., Jan. 24, 1994)	575
<i>Jordan v. McShan</i> , No. 91-CVG-20057 (Ohio Mun., Cleveland, Hous. Div., Apr. 9, 1992)	510,513,523
<i>Joseph v. Beaumont Hous. Auth.</i> , 99 S.W.3d 765 (Tex. App. 2003)	135
<i>Josselyn v. Arthur</i> , No. 12175, 1991 WL 60637 (Ohio App., 2nd Dist., Apr. 10, 1991)	500
<i>Jowers v. Eastgate Vill., Ltd.</i> , No. CA98-10-095, 1999 WL 374131 (Ohio App., 12th Dist., June 7, 1999)	582
<i>Joy v. Daniels</i> , 479 F.2d 1236 (4th Cir. 1973)	200
<i>Juarovisech v. Portage Metro. Hous. Auth.</i> , No. C83-4961 (N.D. Ohio Jan. 12, 1984)	365
<i>Judson v. Lyendecker</i> , No. 12AP-615, 2013 WL 1187618 (Ohio App., 10th Dist., Mar. 21, 2013)	346,630-633
<i>Juergens v. Strileckyj</i> , No. 2010-CA-36, 2010 WL 4158508 (Ohio App., 2nd Dist., Oct. 22, 2010)	351
<i>Julian Invs., Inc. v. Dudley</i> , No. 98-CA-85, 1999 WL 64227 (Ohio App., 2nd Dist., Feb. 12, 1999)	112,144,147,517
<i>Juresa v. Radan</i> , No. 64951, 1994 WL 173654 (Ohio App., 8th Dist., May 5, 1994)	440
K	
<i>K&D Mgmt., L.L.C. v. Jones</i> , No. 110262, 2021 WL 5834382 (Ohio App., 8th Dist., Dec. 9, 2021)	497,514,515,517
<i>K&D Mgmt., L.L.C. v. Masten</i> , No. 98894, 2013 WL 3422890 (Ohio App., 8th Dist., July 3, 2013)	169,172
<i>KDI Mgmt. Servs., Inc. v. Enerchem, Inc.</i> , No. C-960587, 1997 WL 119898 (Ohio App., 1st Dist., Mar. 19, 1997)	2,187
<i>KGM Capital, LLC v. Jackson</i> , No. C-130438, 2014 WL 2566286 (Ohio App., 1st Dist., June 6, 2014)	382,510

<i>KMW III Ltd. v. Falacienski</i> , No. 2020-CVG-01333R (Ohio Mun., Portage Cty., Sept. 14, 2020)	14
<i>Kachelmacher v. Laird</i> , 92 Ohio St. 324, 110 N.E. 933 (1915)	352
<i>Kaiser v. Caskey</i> , No. L-01-1487, 2002 WL 1823007 (Ohio App., 6th Dist., Aug. 9, 2002)	598
<i>Kaleda v. Whitehurst Co.</i> , No. L-00-1048, 2000 WL 1205420 (Ohio App., 6th Dist., Aug. 25, 2000)	164
<i>Kamvouris v. Banks</i> , No. 00-CVG-1586 (Ohio Mun., Cuyahoga Falls, July 24, 2000)	181,352
<i>Kanistros v. Holeman</i> , No. 20528, 2005 WL 388178 (Ohio App., 2nd Dist., Feb. 18, 2005)	491
<i>Kantner v. Gibson</i> , No. 2-07-17, 2007 WL 414177 (Ohio App., 3rd Dist., Nov. 26, 2007)	290,577
<i>Karas v. Floyd</i> , 2 Ohio App.3d 4, 440 N.E.2d 563 (2nd Dist. 1980)	162,163
<i>Kargman v. Dustin</i> , 5 Mass. App. Ct. 101, 359 N.E.2d 971 (1977)	62
<i>Kasapis v. Burnett</i> , No. 2011-CVG-330 (Ohio Mun., Stark Cty., Feb. 10, 2011, and Feb. 16, 2011)	192
<i>Kaseman v. Maddux</i> , No. 21-CVG-02194 (Ohio Mun., Licking Cty., Nov. 1, 2021)	12,21
<i>Kason Manor Mobile Home Park v. Payne</i> , No. 09-CVG-01602 (Ohio Mun., Licking Cty., Aug. 18, 2009)	186
<i>Kassem v. Barnes</i> , No. C-190539, 2020 WL 4673121 (Ohio App., 1st Dist., Aug. 12, 2020)	161
<i>Katchmer v. Bishop</i> , No. 90-CVG-34263 (Ohio Mun., Cleveland, Hous. Div., Oct. 3, 1991)	187,535
<i>Katz v. Comisar</i> , 28 Ohio N.P. (n.s.) 10 (Ohio C.P., Hamilton Cty. 1930)	480
<i>Katzin v. Murad</i> , No. 46553, 1984 WL 7150 (Ohio App., 8th Dist., Jan. 5, 1984)	397,480,496,595
<i>Kayanda v. Kamenir</i> , 16 Ohio Misc.2d 1, 475 N.E.2d 519 (Ohio Mun., Akron, 1984)	476
<i>Kaylor v. Cunningham</i> , No. M85-CVG-26535 (Ohio Mun., Franklin Cty., Oct. 25, 1985)	146
<i>Kearney v. Crown</i> , No. 93-T-4945, 1994 WL 587382 (Ohio App., 11th Dist., Aug. 12, 1994)	380,540

<i>Kearny Court Assocs. v. Spence</i> , 262 N.J. Super. 241, 620 A.2d 1056 (1993)	306
<i>Keene v. Schnetz</i> , 13 Ohio App.3d 87, 468 N.E.2d 125 (9th Dist. 1983)	642
<i>Keener v. Ewert</i> , 67 Ohio App.2d 17, 425 N.E.2d 914 (6th Dist. 1979)	397,480
<i>Keesey v. Superior Mobile Homes, Inc.</i> , No. 2000-AP-080057, 2001 WL 293253 (Ohio App., 5th Dist., Mar. 20, 2001)	476,592
<i>Kell v. Little</i> , No. 2018-CA-00064, 2019 WL 192788 (Ohio App., 5th Dist., Jan. 14, 2019)	113
<i>Kelley v. Johnston</i> , No. 01-CA-5, 2001 WL 1479243 (Ohio App., 4th Dist., Nov. 14, 2001)	500,524,529, 530,537
<i>Kelly v. Abu-Aun</i> , No. 64869, 1994 WL 86215 (Ohio App., 8th Dist., Mar. 17, 1994)	59,60
<i>Kelly v. Bear Creek Inv. Co.</i> , No. 58011, 1991 WL 19152 (Ohio App., 8th Dist., Feb. 14, 1991)	331
<i>Kelly v. Chillicothe Metro. Hous. Auth.</i> , No. 10-00430 (Ohio Mun., Chillicothe, Apr. 5, 2011)	311,619,621
<i>Kelly v. Denault</i> , 374 F. Supp.3d 884 (N.D. Cal. 2018)	266
<i>Kelly Midway Supply, Inc. v. Cotter</i> , No. 91-L-001, 1991 WL 233823 (Ohio App., 11th Dist., Nov. 8, 1991)	91
<i>Kemp v. Feldman</i> , 84 Ohio App. 154, 81 N.E.2d 319 (2nd Dist. 1948)	600
<i>Kenko Corp. v. Singer</i> , No. 81-03-0023, 1982 WL 3141 (Ohio App., 12th Dist., May 26, 1982)	372,376,382
<i>Kennedy v. Andover Place Apts.</i> , 203 S.W.3d. 495 (Tex. App. 2006)	22
<i>Kennedy v. Kunze</i> , No. 28978, 2019 WL 469767 (Ohio App., 9th Dist., Feb. 6, 2019)	646
<i>Kenwood Courts Apts. v. Williams</i> , No. K90-CVG-1043 (Ohio Mun., Portage Cty., Oct. 25, 1991)	263,264,407, 414,418,419, 450,535
<i>Kenwood Gardens Ass'n, LLC v. Shorter</i> , No. L-10-1315, 2011 WL 3654493 (Ohio App., 6th Dist., Aug. 19, 2011)	320,403
<i>Kernats v. O'Sullivan</i> , 35 F.3d 1171 (7th Cir. 1994)	483
<i>Kerr v. Lakewood Shore Towers, Inc.</i> , No. 93462, 2010 WL 323424 (Ohio App., 8th Dist., Jan. 28, 2010)	55

<i>Kerrigan v. Campbell</i> , No. 21-CVH-01039 (Ohio Mun., Akron, May 18, 2021)	100,101
<i>Kersh v. Montgomery Developmental Ctr., Etc.</i> , 35 Ohio App.3d 61, 519 N.E.2d 665 (10th Dist. 1987)	175
<i>Ketcham v. Miller</i> , 104 Ohio St. 372, 136 N.E. 145 (1922)	421,478,479
<i>Kettering Square Apts. v. Crawford</i> , Nos. 27504,27545,27548, 2017 WL 6398837 (Ohio App., 2nd Dist., Dec. 15, 2017)	90,112,209
<i>Kidd v. Cincinnati Transit Co.</i> , 24 Ohio App.2d 101, 265 N.E.2d 297 (1st Dist. 1970)	65
<i>Kieber v. Spicer Constr. Co.</i> , 85 Ohio App.3d 391, 619 N.E.2d 1105 (2nd Dist. 1993)	615
<i>Kilroy v. B.H. Lakeshore Co.</i> , 111 Ohio App.3d 357, 676 N.E.2d 171 (8th Dist. 1996)	83
<i>Kimball Hill Mgmt. Co. v. Roper</i> , 314 Ill. App.3d 975, 733 N.E.2d 458 (2000)	248,249
<i>Kimberly W. Co. v. Smith</i> , No. M8710-CVG-33507 (Ohio Mun., Franklin Cty., Dec. 1, 1987)	204,207
<i>Kimmie v. Tillman</i> , 66 Ohio App.3d 478, 585 N.E.2d 559 (6th Dist. 1990)	487
<i>King v. Akron Metro. Hous. Auth.</i> , No. 25664, 2011 WL 2420232 (Ohio App., 9th Dist., June 15, 2011)	671
<i>King v. Dolton</i> , No. 02-CA-0041, 2003 WL 21078088 (Ohio App., 9th Dist., May 14, 2003)	123,350,351
<i>King v. Neufeld</i> , No. WD-85-14, 1986 WL 1296 (Ohio App., 6th Dist., Jan. 31, 1986)	291,292
<i>King v. Zickefoose</i> , No. 3-96-CV7519 (N.D. Ohio Oct. 17, 1997)	611
<i>Kinn v. Showe Mgmt. Corp.</i> , No. 5-01-46, 2002 WL 462859 (Ohio App., 3rd Dist., Mar. 27, 2002)	339,379,535, 536,544
<i>Kipsborough Realty Corp. v. Goldbetter</i> , 81 Misc.2d 1054, 367 N.Y.S.2d 916 (Civ. Ct. 1975)	418
<i>Kiser v. Stevens</i> , No. 92-CA-54, 1993 WL 35668 (Ohio App., 5th Dist., Feb. 1, 1993)	421
<i>Kishman v. Lakeside Six Cottages</i> , No. E-83-24, 1983 WL 2339 (Ohio App., 6th Dist., Dec. 30, 1983)	429,432
<i>Kisil v. City of Sandusky</i> , 12 Ohio St.3d 30, 465 N.E.2d 848 (1984)	661

<i>Klein v. Moutz</i> , 118 Ohio St.3d 256, 888 N.E.2d 404 (2008)	291,500,556,557
<i>Klein v. Moutz</i> , No. 23473, 2008 WL 2745960 (Ohio App., 9th Dist., July 16, 2008)	557
<i>Klein v. Ryan's Family Steak House</i> , No. 20683, 2002 WL 1022974 (Ohio App., 9th Dist., May 15, 2002)	324
<i>Klemas v. Flynn</i> , 66 Ohio St.3d 249, 611 N.E.2d 810 (1993)	502,503
<i>Klepetko v. Bettis</i> , No. 06-CVG-09092 (Ohio Mun., Cleveland, Hous. Div., May 11, 2006)	27
<i>Klump v. Douglas</i> , No. C-910060, 1991 WL 278262 (Ohio App., 1st Dist., Dec. 31, 1991)	429,432
<i>Knight v. Hallsthammer</i> , 29 Cal.3d 46, 171 Cal. Rptr. 707 (1981)	400
<i>Knights Ctr. Corp. v. Thomas</i> , No. 49636, 1985 WL 9039 (Ohio App., 8th Dist., May 23, 1985)	21,123,125
<i>Knipp v. Sadler</i> , No. 6-09-04, 2009 WL 2710053 (Ohio App., 3rd Dist., Aug. 31, 2009)	33,370,501,512, 524
<i>Knoll Group Mgmt. v. Brown</i> , No. 83-CVG-9624 (Ohio Mun., Dayton, Feb. 8, 1984)	22
<i>Knoll Group Mgmt. Co. v. Wolfe</i> , Nos. 93-CA-553,554, 1994 WL 326347 (Ohio App., 4th Dist., June 28, 1994)	23,63
<i>Knop v. Davet</i> , No. 2016-G-0074, 2017 WL 1404477 (Ohio App., 11th Dist., Apr. 17, 2017)	108
<i>Knoppe v. Applegate</i> , No. 08CAG-08-0051, 2009 WL 1145073 (Ohio App., 5th Dist., Apr. 27, 2009)	490
<i>Knox v. Clark</i> , No. 03-CA-95, 2004 WL 1888283 (Ohio App., 5th Dist., Aug. 23, 2004)	432,435
<i>Koehler v. Paniagua</i> , No. 5-02-64, 2003 WL 1903737 (Ohio App., 3rd Dist., Apr. 18, 2003)	646
<i>Koger v. Guarino</i> , 579 F.2d 795 (3d Cir. 1977)	608
<i>Koger v. Guarino</i> , 412 F. Supp. 1375 (E.D. Pa. 1976)	608
<i>Kohler v. Snow Vill., Inc.</i> , 16 Ohio App.3d 350, 475 N.E.2d 1298 (8th Dist. 1984)	4,295
<i>Kohner Props., Inc. v. Johnson</i> , 553 S.W.3d 280 (Mo. 2018) (en banc)	152
<i>Kolb v. DeVille I Props., LLC</i> , 326 S.W.3d 896 (Mo. App. 2010)	320

<i>Konig v. Bella Dora Mgmt., Inc.</i> , 9 Ohio Misc.2d 7, 458 N.E.2d 477 (Ohio Mun., Akron, 1983)	529
<i>Koob v. Rue</i> , 73 Ohio App.3d 418, 597 N.E.2d 550 (2nd Dist. 1992)	525,526
<i>Kopanuk v. AVCP Reg'l Hous. Auth.</i> , 902 P.2d 813 (Alaska 1995)	278
<i>Kopp v. Associated Estates Realty Corp.</i> , No. 09AP-719, 2010 WL 1510196 (Ohio App., 10th Dist., Apr. 15, 2010)	486,489,490
<i>Korb v. Doering</i> , No. 91-CVG-4948 (Ohio Mun., Cleveland, Hous. Div., Apr. 10, 1991)	462
<i>Korom v. Pesek</i> , No. 57559, 1990 WL 130909 (Ohio App., 8th Dist., Sept. 13, 1990)	501,522
<i>Kosak v. Sadler</i> , No. 04-CVG-5145 (Ohio Mun., Dayton, Sept. 18, 2004)	261
<i>Kostoglou v. Midkiff Enters., Inc.</i> , No. 01-CA-23, 2001 WL 1469161 (Ohio App., 7th Dist., Nov. 6, 2001)	399
<i>Kott Enters., Ltd. v. McClain</i> , No. L-15-1086, 2016 WL 530886 (Ohio App., 6th Dist., Jan. 29, 2016)	296
<i>Kovac v. Whay Corp.</i> , No. 65469, 1994 WL 581528 (Ohio App., 8th Dist., Oct. 20, 1994)	537
<i>Kramanak v. Myers</i> , No. 2013-CA-00010, 2013 WL 3477269 (Ohio App., 5th Dist., July 8, 2013)	91
<i>Krantz v. Pahnke</i> , No. 2021-CA-0043, 2022 WL 39486 (Ohio App., 5th Dist., Jan. 5, 2022)	65,164,176,309
<i>Kreps v. Pesina</i> , No. L-95-377, 1996 WL 430846 (Ohio App., 6th Dist., Aug. 2, 1996)	556
<i>Krivins v. Smyers</i> , No. 9935, 1981 WL 3945 (Ohio App., 9th Dist., Apr. 22, 1981)	643,644
<i>Kroeger v. East End Constr. Co.</i> , No. 14080, 1994 WL 100698 (Ohio App., 2nd Dist., Mar. 2, 1994)	442
<i>Kueber v. Haas</i> , 47 Ohio App.3d 62, 546 N.E.2d 1351 (1st Dist. 1988)	300,326
<i>Kuhn v. Griffin</i> , 3 Ohio App.2d 195, 209 N.E.2d 824 (6th Dist. 1964)	158,398
L	
<i>L & H Realty Co. v. Oberholtz</i> , 65 Ohio App.2d 279, 418 N.E.2d 401 (9th Dist. 1979)	174,371
<i>L & T East 22 Realty Co. v. Earle</i> , 192 Misc.2d 75, 745 N.Y.S.2d 369 (App. Term 2002)	354

<i>LAMMB Mgmt. v. Perkins</i> , No. 2006-CVG-27727 (Ohio Mun., Cleveland, Hous. Div., Dec. 13, 2006)	190
<i>L.D.L. v. State of Florida</i> , 569 So.2d 1310 (Fla. App. 1990)	363
<i>Labaki v. Carter</i> , No. 96-CVG-00558 (Ohio Mun., Zanesville, July 1, 1996)	12,18
<i>Labbe v. Smith</i> , No. 11078, 1983 WL 3899 (Ohio App., 9th Dist., Nov. 2, 1983)	706
<i>Label & Co. v. Hyde</i> , No. 85-C-63, 1986 WL 9120 (Ohio App., 7th Dist., Aug. 20, 1986)	22
<i>Label & Co. v. Taylor</i> , No. 86-C-26, 1987 WL 12887 (Ohio App., 7th Dist., June 17, 1987)	87,256
<i>Lable & Co. v. Brooks</i> , Nos. B-89207,89208 (Ohio Mun., Cleveland, Aug. 16, 1974)	157
<i>Lable & Co. v. Flowers</i> , 104 Ohio App.3d 227, 661 N.E.2d 782 (9th Dist. 1995)	54,55,172
<i>Lable & Co. v. Francis</i> , No. 89-J-39, 1991 WL 24982 (Ohio App., 7th Dist., Feb. 22, 1991)	57,61,207
<i>LaCare v. Dearing</i> , 73 Ohio App.3d 238, 596 N.E.2d 1097 (11th Dist. 1991)	504,505
<i>Lacheta v. Hall</i> , No. 8-90-CVG-494 (Ohio Mun., New Philadelphia, Oct. 22, 1990)	72
<i>LaCourse v. Fleitz</i> , 28 Ohio St.3d 209, 503 N.E.2d 159 (1986)	291,293, 322-324,379
<i>LaFarciola v. Elbert</i> , No. 08-CA-009471, 2009 WL 2858059 (Ohio App., 9th Dist., Sept. 8, 2009)	543
<i>Lake v. City of Youngstown</i> , No. 4:93CV2559 (N.D. Ohio July 14, 1994)	609
<i>Lake Metro. Hous. Auth. v. Journigan</i> , No. CVG-940539 (Ohio Mun., Painesville, June 21, 1994)	242
<i>Lake Metro. Hous. Auth. v. McFadden</i> , No. 2016-L-105, 2017 WL 1683178 (Ohio App., 11th Dist., May 1, 2017)	114
<i>Lake Ridge Acad. v. Carney</i> , 66 Ohio St.3d 376, 613 N.E.2d 183 (1993)	356
<i>Lakeside Ave. Ltd. P'ship v. Cuyahoga County Bd. of Revision</i> , 85 Ohio St.3d 125, 707 N.E.2d 472 (1999)	193,194

<i>Lakeview Terrace v. Smith</i> , No. 92-CVG-8034 (Ohio Mun., Cleveland, Hous. Div., May 21, 1992)	22,205,206,212
<i>Lakeview Terrace, Etc. v. Overton</i> , No. 91-CVG-25457 (Ohio Mun., Cleveland, Hous. Div., Nov. 18, 1991)	254
<i>Lakota v. McElrath</i> , No. 2014-CVG-003743 (Ohio Mun., Cleveland, Hous. Div., Dec. 9, 2014)	403
<i>Lakota Local Sch. Dist. Bd. of Educ. v. Brickner</i> , 108 Ohio App.3d 637, 671 N.E.2d 578 (6th Dist. 1996)	653
<i>Lamlon Dev. Corp. v. Owens</i> , 141 Misc.2d 287, 533 N.Y.S.2d 186 (Dist. Ct. 1988)	261
<i>Lancor v. Lebanon Hous. Auth.</i> , 760 F.2d 361 (1st Cir. 1985)	364
<i>Landings at Beckett Ridge v. Holmes</i> , No. CA2020-04-050, 2020 WL 7690283 (Ohio App., 12th Dist., Dec. 28, 2020)	83,117
<i>Landskroner v. Landskroner</i> , 154 Ohio App.3d 471, 797 N.E.2d 1002 (8th Dist. 2003)	39
<i>Lane v. Green</i> , 21 Ohio App. 62, 152 N.E.2d 790 (4th Dist. 1926)	515,517
<i>LaNeve v. Atlas Recycling, Inc.</i> , 119 Ohio St.3d 324, 894 N.E.2d 25 (2008)	122,603
<i>Lang v. Holly Hill Motel, Inc.</i> , 122 Ohio St.3d 120, 909 N.E.2d 120 (2009)	322,443,446,447
<i>Langfan v. Carlton Gardens Co.</i> , 183 Ohio App.3d 260, 916 N.E.2d 1079 (3rd Dist. 2009)	309,378
<i>Langford v. Danolfo</i> , No. 43917, 1982 WL 5265 (Ohio App., 8th Dist., Apr. 1, 1982)	110
<i>Lanier v. Ramsey</i> , No. 93-CVG-13802 (Ohio Mun., Cleveland, Hous. Div., Mar. 21, 1994)	158
<i>Lansdale v. Dursch</i> , No. 16858, 1998 WL 769852 (Ohio App., 2nd Dist., Nov. 6, 1998)	436
<i>Larson v. Umoh</i> , 33 Ohio App.3d 14, 514 N.E.2d 145 (8th Dist. 1986)	102,103
<i>Laster v. Bowman</i> , 52 Ohio App.2d 379, 370 N.E.2d 767 (8th Dist. 1977)	157,310,398,461
<i>Latio v. Rapien</i> , No. C-970887, 1998 WL 655482 (Ohio App., 1st Dist., Sept. 25, 1998)	548,551
<i>Lauch v. Monning</i> , 15 Ohio App.2d 112, 239 N.E.2d 675 (1st Dist. 1968)	4,139
<i>Lawami Corp. v. Briggs</i> , No. 2001-CVG-9454 (Ohio Mun., Akron, Dec. 5, 2001)	211

<i>Lawrence v. Triangle Capital Corp.</i> , 90 Ohio App.3d 105, 628 N.E.2d 74 (2nd Dist. 1993)	401
<i>Leak v. Hale</i> , No. 2006-CVG-33367 (Ohio Mun., Cleveland, Hous. Div., Jan. 10, 2008)	418,461,492
<i>Leasure v. Adena Local Sch. Dist.</i> , 973 N.E.2d 810, 2012-Ohio-3071 (Ohio App., 4th Dist., 2012)	618
<i>Lebanon County Hous. Auth. v. Landeck</i> , 967 A.2d 1009 (Pa. Super. 2009)	171
<i>Lecates v. Justice of Peace Court No. 4, Etc.</i> , 637 F.2d 898 (3d Cir. 1980)	61
<i>Lee v. Babeli</i> , No. 2000-CA-00371, 2001 WL 705558 (Ohio App., 5th Dist., May 29, 2001)	442
<i>Lee v. Douglas</i> , No. 80-CA-29, 1981 WL 6083 (Ohio App., 4th Dist., Nov. 24, 1981)	156
<i>Lee v. Handel</i> , No. 85-CVG-6674 (Ohio Mun., Akron, Aug. 30, 1985)	205,261
<i>Lee v. Wallace</i> , 186 Ohio App.3d 18, 926 N.E.2d 328 (8th Dist. 2010)	3,297,298,347
<i>LeGare v. Cypress Point, LLC</i> , No. 3:08-cv-01591-JGC (N.D. Ohio Oct. 22, 2008)	172
<i>Leichtman v. Fike</i> , No. 1106, 1984 WL 7338 (Ohio App., 11th Dist., Apr. 27, 1984)	30,583,589
<i>LeMay v. Seckler</i> , No. OT-04-032, 2005 WL 1414449 (Ohio App., 6th Dist., June 17, 2005)	577,579
<i>Lend Lease Apt Mgmt. v. Stribling</i> , No. HWA-30495, 2004 WL 2595805 (Conn. Super. Sept. 8, 2004)	282
<i>Lessem v. Wellman</i> , No. 91-CVG-11375 (Ohio Mun., Akron, Oct. 31, 1991)	262
<i>Leszczynski v. Brewer</i> , No. 12523, 1991 WL 285435 (Ohio App., 2nd Dist., Dec. 27, 1991)	396,487,502, 503,546
<i>Letendre v. Fugate</i> , 701 F.2d 1093 (4th Cir. 1983)	113
<i>Leutzey v. Hershelrode</i> , 20 Ohio St. 334 (1870)	20
<i>Levine v. Kellogg</i> , 153 N.E.3d 663, 2020-Ohio-1246 (Ohio App., 10th Dist., 2020)	530,534,537
<i>Levy v. Huener</i> , No. L-17-1081, 2018 WL 388406 (Ohio App., 6th Dist., Jan. 12, 2018)	447
<i>Lewallen v. Mentor Lagoons, Inc.</i> , 85 Ohio App.3d 91, 619 N.E.2d 98 (8th Dist. 1993)	71

<i>Lewis v. Byram</i> , No. L-92-286, 1993 WL 57293 (Ohio App., 6th Dist., Mar. 5, 1993)	325
<i>Lewis v. Harding</i> , 182 Ohio App.3d 588, 913 N.E.2d 1048 (8th Dist. 2009)	71
<i>Lewis v. Powers</i> , No. 15461, 1997 WL 335563 (Ohio App., 2nd Dist., June 13, 1997)	89,93,102
<i>Lewis v. Romans</i> , No. 43594, 1981 WL 4713 (Ohio App., 8th Dist., Dec. 24, 1981)	548,550,621
<i>Lewis v. Romans</i> , 70 Ohio App.2d 7, 433 N.E.2d 622 (8th Dist. 1980)	471,552
<i>Lewis v. Romans</i> , No. 78-CIF-4818 (Ohio Mun., Shaker Heights, Sept. 13, 1979)	470
<i>Lewis v. Urquhart</i> , No. CA95-07-118, 1996 WL 103770 (Ohio App., 12th Dist., Mar. 11, 1996)	500
<i>Lewis v. Vill. of Barnesville</i> , No. C-2-95-0105 (S.D. Ohio Mar. 4, 1997, and Jan. 30, 1998)	611
<i>Lewis v. Wall</i> , No. 2007-A-0048, 2008 WL 2633473 (Ohio App., 11th Dist., July 3, 2008)	427,572,576
<i>Lewis Furniture Co. v. Dunkin</i> , No. 1175, 1979 Ohio App. LEXIS 12447 (Ohio App., 4th Dist., Mar. 26, 1979)	61
<i>Lexford Props., Inc. v. Schiltz</i> , No. 2003-CA-00025, 2003 WL 22128788 (Ohio App., 5th Dist., Sept. 8, 2003)	480
<i>Liberal Sav. & Loan Co. v. Frankel Realty Co.</i> , 137 Ohio St. 489, 30 N.E.2d 1012 (1940)	479
<i>Liberty Rental Props. LLC v. Rohr</i> , No. 21-CVG-00705 (Ohio Mun., Akron, May 3, 2021)	182
<i>Liggett v. Shitaker Props.</i> , No. 23425, 2010 WL 1410758 (Ohio App., 2nd Dist., Apr. 9, 2010)	92,385,405,408
<i>Liggins v. Westminster Arms, Inc.</i> , Nos. 98AP-377,378, 1998 WL 894613 (Ohio App., 10th Dist., Dec. 22, 1998)	83,198,332,334
<i>Lightbody v. Rust</i> , No. 80927, 2003 WL 21710601 (Ohio App., 8th Dist., July 24, 2003)	148
<i>Lilly v. Bradford Inv. Co.</i> , No. 06AP-1227, 2007 WL 1640850 (Ohio App., 10th Dist., June 7, 2007)	331,428
<i>Lilly v. Yee</i> , No. 94-APE06-830, 1995 WL 127886 (Ohio App., 10th Dist., Mar. 23, 1995)	440

<i>Lima Towers v. Franklin</i> , No. 96-CVG-00191 (Ohio Mun., Lima, Apr. 8, 1996)	227
<i>Limage v. Citiscene Props.</i> , No. 92AP-190, 1992 WL 131840 (Ohio App., 10th Dist., June 9, 1992)	344,457
<i>Lincoln Mgmt. Co. v. Ashiegbu</i> , No. M9312-CVG-037858 (Ohio Mun., Franklin Cty., Jan. 26, 1994)	20,21,35
<i>Lincoln Tavern, Inc. v. Snader</i> , 165 Ohio St. 61, 133 N.E.2d 606 (1956)	121
<i>Lindhorst v. Elkadi</i> , No. 80162, 2002 WL 999315 (Ohio App., 8th Dist., May 16, 2002)	640
<i>Lindsey v. Normet</i> , 405 U.S. 56 (1972)	113
<i>Linwood Park Co. v. Van Dusen</i> , 63 Ohio St. 183, 58 N.E. 576 (1900)	297
<i>Lipford v. Ward</i> , No. 92-CVG-0727 (Ohio Mun., Canton, Mar. 24, 1992)	128
<i>Liston v. Jurek</i> , No. 59758, 1992 WL 41858 (Ohio App., 8th Dist., Mar. 5, 1992)	550,551
<i>Litoff v. D. H. Overmyer Co., Inc.</i> , No. 32989 (Ohio App., 8th Dist., Mar. 21, 1974)	58
<i>Litsey v. Hous. Auth. of Bardstown</i> , No. 3:99CV-114-H, 1999 WL 33604017 (W.D. Ky. Apr. 1, 1999)	672
<i>Littlejohn v. Dehostos</i> , No. 91-CVG-14377 (Ohio Mun., Cleveland, Hous. Div., Mar. 9, 1992)	510
<i>Livecchi v. Pyatt</i> , No. 2002-CV-9073, 2003 WL 21246096 (N.Y. City Ct. May 15, 2003)	154,264
<i>Lloyd v. Roosevelt Props.</i> , No. 105721, 2018 WL 3814972 (Ohio App., 8th Dist., Aug. 9, 2018)	316,317,396
<i>Lobo v. Hoelscher</i> , 44 Ohio Misc. 46, 336 N.E.2d 475 (Ohio Mun., Dayton, 1975)	68,155,399
<i>Local Marketing Corp. v. Prudential Ins. Co. of Am.</i> , 159 Ohio App.3d 410, 824 N.E.2d 122 (1st Dist. 2004)	309
<i>Lockhart v. Leach</i> , No. 7880, 1983 WL 4815 (Ohio App., 2nd Dist., Feb. 15, 1983)	468
<i>Lockhart v. Mayfield</i> , No. 14990, 1991 WL 184833 (Ohio App., 9th Dist., Sept. 18, 1991)	435
<i>Logan v. Zimmerman</i> , 455 U.S. 422 (1982)	484

<i>Lokal Real Estate v. G.R.</i> , No. 2017-CVG-004609 (Ohio Mun., Cleveland, Hous. Div., Aug. 20, 2018)	627
<i>Lomas & Nettleton Co. v. Warren</i> , No. 89-G-1519, 1990 WL 93138 (Ohio App., 11th Dist., June 29, 1990)	657
<i>Long v. Abele</i> , No. CT98-0018, 1998 WL 752040 (Ohio App., 5th Dist., Oct. 9, 1998)	57,63
<i>Long v. MacDonald</i> , No. 3-02-10, 2002 WL 31007937 (Ohio App., 3rd Dist., Sept. 9, 2002)	1,114,115
<i>Lorain Metro. Hous. Auth. v. Cajka</i> , No. 88-CVG-1065 (Ohio Mun., Lorain, Feb. 6, 1989)	229
<i>Lorain Metro. Hous. Auth. v. Fonseca</i> , 110 Ohio App.3d 292, 673 N.E.2d 1019 (9th Dist. 1996)	32,340
<i>Lorain Metro Hous. Auth. v. Jennings</i> , No. 05-CVG-01669 (Ohio Mun., Lorain, Oct. 18, 2006)	178
<i>Lorain Metro. Hous. Auth. v. Johnson</i> , No. 2021-CVG-01447 (Ohio Mun., Elyria, Aug. 13, 2021)	232
<i>Lorain Metro. Hous. Auth. v. Lawson</i> , 40 Ohio Misc.2d 25, 532 N.E.2d 1323 (Ohio Mun., Elyria, 1987)	226
<i>Lorain Metro. Hous. Auth. v. Lewis</i> , No. 06-CVG-01137 (Ohio Mun., Elyria, June 27, 2006)	57,58
<i>Lorain Metro. Hous. Auth. v. Manago</i> , No. 96-CA-006628, 1998 WL 46743 (Ohio App., 9th Dist., Jan. 21, 1998)	136
<i>Lorain Metro. Hous. Auth. v. Noel</i> , No. 06-CA-009006, 2007 WL 1661854 (Ohio App., 9th Dist., June 11, 2007)	134,230
<i>Lovejoy v. Diel</i> , No. 2020CA-06-067, 2021 WL 1246295 (Ohio App., 12th Dist., Apr. 5, 2021)	635
<i>Lovejoy v. Intervest Corp.</i> , 794 So.2d 1205 (Ala. App. 2001)	111
<i>Loveland Props. v. Ten Jays, Inc.</i> , 57 Ohio App.3d 79, 567 N.E.2d 270 (1st Dist. 1988)	598
<i>Loveless v. Erie R.R.</i> , 2 Ohio App. 404 (11th Dist. 1914)	345,362
<i>Lovett v. Brown</i> , No. 97-CVG-5586 (Ohio Mun., Akron, Aug. 20, 1997)	29,184
<i>Lower E. Side I Assocs. LLC v. Estevez</i> , 6 Misc.3d 632, 787 N.Y.S.2d 636 (Civ. Ct. 2004)	234

<i>Lowery v. Ondrus</i> , No. L-08-1100, 2009 WL 50125 (Ohio App., 6th Dist., Jan. 9, 2009)	435
<i>Lowry v. Buroker</i> , No. 2017-CA-25, 2017 WL 6628496 (Ohio App., 2nd Dist., Dec. 29, 2017)	638
<i>Luca v. Volunteers of Am., Cleveland, Ohio Post</i> , No. 3756, 1985 WL 10731 (Ohio App., 9th Dist., June 19, 1985)	523
<i>Lucas Metro. Hous. Auth. v. Carmony</i> , No. L-00-1296, 2001 WL 672150 (Ohio App., 6th Dist., June 15, 2001)	135,253
<i>Lucas Metro. Hous. Auth. v. Correa</i> , No. CVG-0501010 (Ohio Mun., Sylvania, Nov. 9, 2005)	244,249
<i>Lucas Metro. Hous. Auth. v. Kincade</i> , No. L-94-211, 1995 WL 112963, (Ohio App., 6th Dist., Mar. 17, 1995)	206,207
<i>Lucas Metro. Hous. Auth. v. M. Shouman Supermarkets, Inc.</i> , No. L-93-244, 1994 WL 110844 (Ohio App., 6th Dist., Mar. 31, 1994)	11,21
<i>Lucas Metro. Hous. Auth. v. Wood</i> , No. CVG-0900329 (Ohio Mun., Sylvania, June 23, 2009)	364
<i>Ludlow Props., LLC v. Young</i> , 4 Misc.3d 515, 780 N.Y.S.2d 853 (Civ. Ct. 2004)	320
<i>Ludwigsen v. Lakeside Plaza, LLC</i> , No. CA2014-03-008, 2014 WL 7014717 (Ohio App., 12th Dist., Dec. 15, 2014)	603
<i>Lujan v. Smith</i> , No. L-83-197, 1983 WL 6990 (Ohio App., 6th Dist., Nov. 11, 1983)	521,522
<i>Lukehart v. W. Ninth St. Partners</i> , 137 Ohio App.3d 361, 738 N.E.2d 839 (8th Dist. 2000)	300
<i>Lunsford v. Hurt</i> , No CVG-0500914 (Ohio Mun., Jackson Cty., May 26, 2005)	285
<i>Lyle v. PK Mgmt., LLC</i> , No. 5-09-38, 2010 WL 1948360 (Ohio App., 3rd Dist., May 17, 2010)	439,445
<i>Lyon v. Howard</i> , No. 5-86-22, 1987 WL 20290 (Ohio App., 3rd Dist., Nov. 10, 1987)	518,519
<i>Lyon v. Wymer</i> , No. 81-CVG-10 (Ohio Mun., Findlay, Feb. 9, 1981)	48
<i>Lyons v. Kamhoot</i> , 281 Or. 615, 575 P.2d 1389 (1978)	304
<i>Lyons v. Link</i> , No. 03-CA-000006, 2003 WL 21213656 (Ohio App., 5th Dist., May 27, 2003)	69

<i>Lyons v. Tuscarawas Metro. Hous. Auth.</i> , No. 2007AP-080051, 2009 WL 2781802 (Ohio App., 5th Dist., June 24, 2008)	664,670
<i>Lyle v. K & D Group, Inc.</i> , No. 84889, 2005 WL 1994938 (Ohio App., 8th Dist., Aug. 18, 2005)	507
M	
<i>M. Friedman Mgmt. Co. v. Malek</i> , No. 93-L-022, 1993 WL 548091 (Ohio App., 11th Dist., Dec. 3, 1993)	34,35
<i>MBA Realty v. Little G, Inc.</i> , 116 Ohio App.3d 334, 688 N.E.2d 39 (8th Dist. 1996)	190
<i>M.E. Blatt Co. v. United States</i> , 305 U.S. 267 (1938)	346
<i>MHC5, LLC v. Martin</i> , No. 2011-CVG-03184 (Ohio Mun., Clermont Cty., Oct. 26, 2011)	287,584
<i>M.L. Gabriel Commons v. King</i> , No. 13159, 1992 WL 288781 (Ohio App., 2nd Dist., Oct. 14, 1992)	30,31,220
<i>M.L.B. v. S.L.J.</i> , 519 U.S. 102 (1996)	113
<i>M.L.R. Props., Inc. v. Baer</i> , No. L-85-330, 1986 WL 6703 (Ohio App., 6th Dist., June 13, 1986)	17,29,38,287, 589
<i>MLR Props., Inc. v. Hemmelgarn</i> , No. L-94-349, 1995 WL 504629 (Ohio App., 6th Dist., Aug. 25, 1995)	11,105,123
<i>M.T.I. Mgmt. v. Bell</i> , No. 89-CV-05464 (Ohio Mun., Hamilton Cty., July 18, 1991)	183
<i>Ma Chere Hair Style Acad. v. Rolo Co.</i> , No. L-85-287, 1986 WL 7111 (Ohio App., 6th Dist., June 20, 1986)	480
<i>Machshonba v. Cleveland Metro. Hous. Auth.</i> , No. 96811, 2011 WL 6920728 (Ohio App., 8th Dist., Dec. 29, 2011)	47,86
<i>Mack v. Eckerlin</i> , 75 Ohio St. 627 (1907)	19
<i>Mack v. Eckerlin</i> , 2 Ohio L.R. 441 (Ohio App., 1st Dist., 1905)	19
<i>Macleay Woods Hous. Co. v. Franks</i> , 16 Misc.3d 1136(A), 2007 WL 2597918 (N.Y. City Ct. 2007)	129
<i>Maddox v. City of East Cleveland</i> , No. 96390, 2012 WL 20134 (Ohio App., 8th Dist., Jan. 5, 2012)	621
<i>Madston Corp. v. Ahrens</i> , No. 87-CVG-815 (Ohio Mun., Port Clinton, Feb. 5, 1988)	258

<i>Madtson v. Flick</i> , No. 94-CVG-224 (Ohio County Ct., Sandusky Cty., Jan. 17, 1995)	221
<i>Maduka v. Parries</i> , 14 Ohio App.3d 191, 470 N.E.2d 464 (8th Dist. 1984)	40,54,563
<i>Maggiore v. Kovach</i> , 101 Ohio St.3d 184, 803 N.E.2d 790 (2004)	14,295
<i>Mahmoud v. Dennis</i> , No. L-04-1183, 2005 WL 1661966 (Ohio App., 6th Dist., June 30, 2005)	439
<i>Mahoney v. Abood</i> , No. L-92-230, 1992 WL 337589 (Ohio App., 6th Dist., Nov. 20, 1992)	497
<i>Mahoney v. City of Berea</i> , 33 Ohio App.3d 94, 514 N.E.2d 889 (8th Dist. 1986)	657
<i>Malagisi v. Marble Cliff Crossing Apts.</i> , No. 19AP-475, 2020 WL 1320712 (Ohio App., 10th Dist., Mar. 19, 2020)	430,431
<i>Malcom v. Tate</i> , No. 99-CVH-21689 (Ohio Mun., Cleveland, Hous. Div., June 29, 2001)	406,407,412, 474,492
<i>Maliga Props. v. Williams</i> , No. 92-CVG-2998 (Ohio Mun., Cleveland, Hous. Div., Mar. 3, 1992)	198
<i>Mandat v. Reinecker's Bakery</i> , No. 16241, 1993 WL 526653 (Ohio App., 9th Dist., Dec. 15, 1993)	175
<i>Mandelbaum v. Smith</i> , No. 101888, 2015 WL 1276573 (Ohio App., 8th Dist., Mar. 19, 2015)	330
<i>Mandzuch v. Affordable Reasonable Rental, LLC</i> , 2018-G-0179, 2019 WL 2269297 (Ohio App., 11th Dist., May 28, 2019)	504
<i>Manifold v. Schuster</i> , 67 Ohio App.3d 251, 586 N.E.2d 1142 (4th Dist. 1990)	24,480,595-598
<i>Mann v. Hillsborough County Sheriff's Office</i> , 946 F. Supp. 962 (M.D. Fla. 1996)	484
<i>Mann v. Northgate Investors, L.L.C.</i> , 138 Ohio St.3d 175, 5 N.E.3d 594 (2014)	291,295,311, 312,322,427,443
<i>Mann v. Northgate Investors LLC</i> , No. 11AP-684, 2012 WL 2393945 (Ohio App., 10th Dist., June 26, 2012)	312
<i>Manninen v. Alvarez</i> , No. CA2016-01-017, 2016 WL 4426451 (Ohio App., 12th Dist., Aug. 22, 2016)	553
<i>Manninen v. Alvarez</i> , No. CA2013-06-106, 2014 WL 107852 (Ohio App., 12th Dist., Jan. 13, 2014)	502,553

<i>Manning v. Ohio State Library Bd.</i> , 62 Ohio St.3d 24, 577 N.E.2d 650 (1991)	106
<i>Manor Park Apts., LLC v. Garrison</i> , No. 2004-L-029, 2005 WL 940871 (Ohio App., 11th Dist., Apr. 22, 2005)	173
<i>Marble Builder Direct Int'l, Inc. v. Hauxhurst</i> , No. 2011-L-040, 2012 WL 1288722 (Ohio App., 11th Dist., Apr. 16, 2012)	91
<i>Marchetta v. Wolfe</i> , No. 92-CVG-12931 (Ohio Mun., Akron, Mar. 4, 1993)	212
<i>Marchioni v. Wilson</i> , 20 Ohio Misc.2d 10, 485 N.E.2d 1073 (Ohio Mun., Hamilton Cty., 1984)	123,351
<i>Marcum v. Young</i> , No. CA90-04-037, 1990 WL 160371 (Ohio App., 12th Dist., Oct. 22, 1990)	313
<i>Mariemont Apt. Ass'n v. Vill. of Mariemont</i> , No. C-050986, 2007 WL 120727 (Ohio App., 1st Dist., Jan. 19, 2007)	294
<i>Marino v. Grewell</i> , No. 93AP-020012, 1993 WL 364937 (Ohio App., 5th Dist., Aug. 5, 1993)	68
<i>Marino v. Smart</i> , No. 7-88-CVG-510 (Ohio Mun., New Philadelphia, Dec. 13, 1988)	100
<i>Mark v. Long</i> , 180 Ohio App.3d 832, 907 N.E.2d 759 (4th Dist. 2009)	596
<i>Markin Props. v. Gray</i> , No. 01-CVG-04904 (Ohio Mun., Clark Cty., Mar. 7, 2002)	193
<i>Mark-It Place Foods, Inc. v. New Plan Excel Realty Trust, Inc.</i> , 156 Ohio App.3d 65, 804 N.E.2d 979 (4th Dist. 2004)	356,402
<i>Markowitz & Co. v. Toledo Metro. Hous. Auth.</i> , 608 F.2d 699 (6th Cir. 1979)	418
<i>Marks v. Young</i> , No. 2456-M, 1996 WL 63033 (Ohio App., 9th Dist., Feb. 14, 1996)	124,354
<i>Mar-Lis Props. v. Ratliff</i> , No. M8502-CVG-04841 (Ohio Mun., Franklin Cty., May 2, 1985)	96
<i>Marous/Church, LLC v. Stanich</i> , No. 2000-L-188, 2001 WL 1561107 (Ohio App., 11th Dist., Dec. 7, 2001)	86
<i>Marsh v. Lansing Gardens Apts.</i> , No. 07-BE-32, 2008 WL 2633467 (Ohio App., 7th Dist., July 2, 2008)	418,419
<i>Marshall Plaza v. Watkins</i> , No. 4161, 1987 WL 12113 (Ohio App., 9th Dist., June 3, 1987)	183,219,232

<i>Martin v. City of Cleveland Bd. of Bldg. Standards & Bldg. Appeals</i> , No. 86039, 2005 WL 3120211 (Ohio App., 8th Dist., Nov. 23, 2005)	659
<i>Martin v. Design Constr. Servs., Inc.</i> , 121 Ohio St.3d 66, 902 N.E.2d 10 (2009)	533
<i>Martin v. Edgewater Props.</i> , No. 92-CA-005307, 1992 WL 357321 (Ohio App., 9th Dist., Nov. 25, 1992)	323,324,437,444
<i>Martin v. Grandview Apts.</i> , No. 91-CV-1215 (Ohio C.P., Clermont Cty., Mar. 9, 1992)	260
<i>Martin v. Mohler</i> , No. 89-CA-1859, 1991 WL 28306 (Ohio App., 4th Dist., Feb. 12, 1991)	109
<i>Martin v. Rogers</i> , 42 Ohio App.3d 110, 536 N.E.2d 665 (8th Dist. 1987)	56,62,64
<i>Martin v. Woods</i> , No. 92-CVG-714 (Ohio Mun., Chillicothe, Sept. 10, 1992)	591
<i>Martins Ferry Jaycee Hous., Inc. v. Pawlaczyk</i> , 4 Ohio App.3d 302, 448 N.E.2d 512 (7th Dist. 1982)	150
<i>Marvin v. Stemen</i> , 68 Ohio App.2d 26, 426 N.E.2d 205 (6th Dist. 1980)	9,40,41,646
<i>Maryland Apts. v. Crump</i> , No. 96-CVG-38691 (Ohio Mun., Franklin Cty., Jan. 14, 1997)	392
<i>Maryland Park Apts. v. Robinson</i> , No. CX-02-4044 (Minn. Dist. Ct., Ramsey Cty., June 17, 2002)	247
<i>Marysville Estates v. Bruce</i> , No. 14-13-12, 2013 WL 5347438 (Ohio App., 3rd Dist., Sept. 23, 2013)	37,52,99
<i>Masny v. Vallo</i> , No. 84983, 2005 WL 1048237 (Ohio App., 8th Dist., May 5, 2005)	526,527
<i>Mason v. Douglas</i> , No. 12-CA-000011, 2012 WL 5984906 (Ohio App., 5th Dist., Nov. 26, 2012)	55
<i>Mathews v. Cooper</i> , No. 109974, 2021 WL 3560200 (Ohio App., 8th Dist., Aug. 12, 2021)	40,41,78,109
<i>Mathias v. Accor Econ. Lodging, Inc.</i> , 347 F.3d 672 (7th Cir. 2003)	470
<i>Matthes v. Crow</i> , No. 43270, 1981 WL 5033 (Ohio App., 8th Dist., Aug. 6, 1981)	468
<i>Maurer v. Gabriel</i> , No. 17310, 1996 WL 1740 (Ohio App., 9th Dist., Jan. 3, 1996)	463

<i>Maxwell v. Parker</i> , No. CVG-951631 (Ohio Mun., Cleveland Heights, Jan. 23, 1996)	142
<i>May v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-07-632536 (Ohio C.P., Cuyahoga Cty., Nov. 2, 2007)	668
<i>May v. Metcalf</i> , No. 11-CA-8, 2011 WL 5625805 (Ohio App., 5th Dist., Nov. 15, 2011)	530
<i>May v. Petrick</i> , No. 2009-CA-00031, 2010 WL 1452604 (Ohio App., 5th Dist., Apr. 8, 2010)	289,519,521, 580,597
<i>May v. Sampsel</i> , No. 06-CA-000034, 2007 WL 1651851 (Ohio App., 5th Dist., June 4, 2007)	285,286
<i>Mayer v. McGreevy</i> , No. 99AP-707, 2000 WL 329043 (Ohio App., 10th Dist., Mar. 30, 2000)	490,491
<i>Mayer v. Norton</i> , 62 Misc.2d 887, 310 N.Y.S.2d 576 (Civ. Ct. 1970)	306
<i>Mayes v. Grandview Apts.</i> , No. 91-CV-000871 (Ohio C.P., Clermont Cty., Sept. 25, 1991)	260
<i>Mayhew v. Massey</i> , 86 N.E.3d 758, 2017-Ohio-1016 (Ohio App., 7th Dist., 2017)	325,447
<i>Maynard v. Winters</i> , No. 2012AP-05-0035, 2012 WL 6765613 (Ohio App., 5th Dist., Dec. 26, 2012)	446
<i>Mays v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-02-466090 (Ohio C.P., Cuyahoga Cty., May 2, 2002)	658
<i>Mazer v. Fish</i> , No. C-890345, 1990 WL 88752 (Ohio App., 1st Dist., June 27, 1990)	554
<i>Mazzarella v. McGinnes</i> , No. 91-CVG-30291 (Ohio Mun., Cleveland, Hous. Div., Dec. 30, 1991)	146,147
<i>McAlister v. Akron Metro. Hous. Auth.</i> , No. CV-2007-08-5813 (Ohio C.P., Summit Cty., Apr. 14, 2008)	663,664,670
<i>McAlliffé v. W. States Import Co.</i> , 72 Ohio St.3d 534, 651 N.E.2d 957 (1995)	615
<i>McAlpine v. Patrick</i> , No. 86453, 2006 WL 562191 (Ohio App., 8th Dist., Mar. 9, 2006)	54,85,86
<i>McCain v. Brewer</i> , No. 2014-CA-8, 2015 WL 302829 (Ohio App., 2nd Dist., Jan. 23, 2015)	423,466,516
<i>McCallister v. Pickrel</i> , No. 02-CVG-00268 (Ohio Mun., Licking Cty., Mar. 12, 2002)	18

<i>McCarthy v. Caplan</i> , No. 79721, 2001 WL 1671422 (Ohio App., 8th Dist., Dec. 6, 2001)	164
<i>McCarty v. Evans</i> , No. 02-CA-17, 2003 WL 1563771 (Ohio App., 4th Dist., Mar. 19, 2003)	61
<i>McClarty v. Greene Metro. Hous. Auth.</i> , No. 2011-CA-30, 2011 WL 3890295 (Ohio App., 2nd Dist., Sept. 2, 2011)	235,666
<i>McClellan v. Hagerty</i> , No. 04-CV-008 (Ohio C.P., Meigs Cty., May 27, 2004)	419
<i>McClore v. Hamilton County Bd. of Elections</i> , 130 Ohio App.3d 621, 720 N.E.2d 954 (1st Dist. 1998)	175,176
<i>McConnelsville Assocs. v. Gladden</i> , No. 92-CVG-56 (Ohio County Ct., Morgan Cty., Sept. 28, 1992)	22,212,353
<i>McCord v. Costy</i> , No. CA87-05-036, 1987 WL 27190 (Ohio App., 12th Dist., Dec. 7, 1987)	54,55
<i>McCornell v. Bridges</i> , 124 Ohio App.3d 610, 707 N.E.2d 8 (8th Dist. 1997)	324
<i>McCuller v. Taylor</i> , No. 00-CVG-13529 (Ohio Mun., Cleveland, Hous. Div., July 28, 2000)	265
<i>McDaniels v. Petrosky</i> , No. 97-APE08-1027, 1998 WL 54363 (Ohio App., 10th Dist., Feb. 5, 1998)	314,319,322, 323,326
<i>McDowell v. City of Toledo</i> , No. L-10-1229, 2011 WL 1457153 (Ohio App., 6th Dist., Apr. 15, 2011)	611
<i>McDowell v. City of Toledo</i> , No. 89-1709 (Ohio C.P., Lucas Cty., Feb. 18, 1992, and June 28, 2010)	611
<i>McGinnis v. Donatelli</i> , 36 Ohio App.3d 120, 521 N.E.2d 513 (8th Dist. 1987)	546
<i>McGinnis v. Fuller</i> , No. 3-04-29, 2005 WL 1205117 (Ohio App., 3rd Dist., May 23, 2005)	636,637
<i>McGlaughlin v. Wallace F. Ackley Co.</i> , No. 79AP-817, 1980 Ohio App. LEXIS 13428 (Ohio App., 10th Dist., Nov. 13, 1980)	499,500
<i>McGowan v. DM Group IX</i> , 7 Ohio App.3d 349, 455 N.E.2d 1052 (10th Dist. 1982)	33,370,371,375
<i>McGreevy v. Bassler</i> , No. 09AP-381, 2010 WL 177255 (Ohio App., 10th Dist., Jan. 19, 2010)	412
<i>McGregor v. Armeni</i> , No. 89AP-1500, 1990 WL 179981 (Ohio App., 10th Dist., Nov. 20, 1990)	504,551

<i>McGuire v. K & G Mgmt. Co.</i> , No. 98-CA-35, 1998 WL 666756 (Ohio App., 5th Dist., Aug. 27, 1998)	318
<i>McHugh v. Zataar</i> , No. 14-CA-010591, 2015 WL 7273177 (Ohio App., 9th Dist., Jan. 20, 2015)	314,444
<i>McIntyre v. Silver</i> , No. 52116, 1987 WL 11397 (Ohio App., 8th Dist., May 21, 1987)	376
<i>McKee v. City of Zanesville</i> , No. C-2-92-444 (S.D. Ohio Nov. 25, 1992)	611
<i>McKenna v. Begin</i> , 3 Mass. App. Ct. 168, 325 N.E.2d 587 (1975)	406
<i>McKenna v. Peekskill Hous. Auth.</i> , 647 F.2d 332 (2d Cir. 1981)	364
<i>McKenzie v. FSF Beacon Hill Assocs., LLC</i> , No. 15AP-1194, 2006 WL 3775857, ¶ 11 (Ohio App., 10th Dist., Dec. 26, 2006)	427
<i>McKenzie v. Marlowe</i> , No. 70714, 1996 WL 715502 (Ohio App., 8th Dist., Dec. 12, 1996)	319,429,433
<i>McKibben v. Rosselot</i> , 4 Ohio App. 331 (12th Dist. 1915)	307
<i>McKinney v. Hartz & Restle Realtors, Inc.</i> , 31 Ohio St.3d 244, 510 N.E.2d 386 (1987)	317
<i>McKown v. Johnson</i> , No. 99-CVG-7561 (Ohio Mun., Akron, Nov. 1, 1999)	47
<i>McKoy v. Bell</i> , No. 2021-CVG-008782 (Ohio Mun., Cleveland, Hous. Div., Nov. 9, 2021)	12,16,17,21,140
<i>McMahon v. Warner</i> , No. 1711, 1984 WL 5695 (Ohio App., 4th Dist., Dec. 17, 1984)	348
<i>McNeill v. Wasserbauer</i> , No. 72846, 1998 WL 323592 (Ohio App., 8th Dist., June 18, 1998)	495,530
<i>McNelly v. Conde</i> , 166 N.E.3d 697, 2021-Ohio-146 (Ohio App., 2nd Dist., 2021)	317
<i>McQueen v. Druker</i> , 438 F.2d 781 (1st Cir. 1971)	268
<i>McQueen v. Druker</i> , 317 F. Supp. 1122 (D. Mass. 1970)	268
<i>Meacham v. Knolls Atomic Power Lab.</i> , 554 U.S. 84 (2008)	163
<i>Meacham v. Miller</i> , 79 Ohio App.3d 35, 606 N.E.2d 996 (4th Dist. 1992)	293,458,459, 467-469,471, 474,547,554
<i>Meacham v. Miller</i> , No. 90-CIV-56 (Ohio C.P., Jackson Cty., Dec. 24, 1990)	467

<i>Meadowbrook Dev. Corp. v. Roberts</i> , No. 79747, 2001 WL 1654540 (Ohio App., 8th Dist., Dec. 27, 2001)	33,370,371,374, 528
<i>Mease v. Fox</i> , 200 N.W.2d 791 (Iowa 1972)	316,404,420
<i>Mecca Mgmt., Inc. v. Gouse</i> , No. L-97-1185, 1997 WL 728635 (Ohio App., 6th Dist., Nov. 21, 1997)	180,185
<i>Medi Invs. LLC v. Mitchell</i> , No. 2020-CVG-009347 (Ohio Mun., Cleveland, Hous. Div., Dec. 11, 2020)	403
<i>Meier v. Vistula Heritage Vill.</i> , 62 Ohio Misc.2d 632, 609 N.E.2d 1360 (Ohio C.P., Lucas Cty., 1992)	331,449
<i>Melvin v. Bryant</i> , No. CA-7259, 1981 Ohio App. LEXIS 13073 (Ohio App., 2nd Dist., Nov. 13, 1981)	468
<i>Memphis Light, Gas & Water Div. v. Craft</i> , 436 U.S. 1 (1978)	608,609
<i>Menges v. Superior Mobile Homes, Inc.</i> , No. 94AP-100068, 1995 WL 498820 (Ohio App., 5th Dist., July 12, 1995)	451,574
<i>Mentor Green Mobile Estates v. Shopak</i> , No. 15-CVG-761 (Ohio Mun., Mentor, Oct. 6, 2015)	191
<i>Mentor Lagoons, Inc. v. Chalker</i> , No. 86-CVF-195 (Ohio Mun., Mentor, June 25, 1986)	520
<i>Mentor Lagoons, Inc. v. Geldart</i> , No. 6-265, 1979 WL 208017 (Ohio App., 11th Dist., Jan. 29, 1979)	63,377
<i>Mentor Lagoons, Inc. v. Laity</i> , No. 10-184, 1985 WL 9999 (Ohio App., 11th Dist., May 24, 1985)	525
<i>Mentor Lagoons, Inc. v. Mayor</i> , No. 10-180, 1985 WL 7807 (Ohio App., 11th Dist., Mar. 1, 1985)	63,377,492,529
<i>Mentor Lagoons, Inc. v. Velbeck</i> , No. 10-056, 1984 WL 6285 (Ohio App., 11th Dist., Mar. 23, 1984)	371
<i>Mentor Lagoons, Inc. v. Ventra</i> , No. 89-L-14-026, 1990 WL 128270 (Ohio App., 11th Dist., Sept. 7, 1990)	371,416
<i>Mentor Lagoons, Inc. v. Ventra</i> , No. 88-CVF-875 (Ohio Mun., Mentor, Nov. 23, 1988)	416
<i>Mentor Trailer Park, Inc. v. Clark</i> , No. 79-CVG-492 (Ohio Mun., Mentor, June 7, 1979)	290,579
<i>Mercer v. Halmbacher</i> , 44 N.E.3d 1011, 2015-Ohio-4167 (Ohio App., 9th Dist., 2015)	347

<i>Mercer Island Partners II v. Simakis</i> , No. 81AP-91, 1981 WL 3316 (Ohio App., 10th Dist., June 30, 1981)	360
<i>Meredith v. Nash</i> , No. 93-CVG-2334 (Ohio Mun., Massillon, Oct. 20, 1993)	138
<i>Merivale Invs. v. Tuggle</i> , No. L-08-1439, 2009 WL 4727760 (Ohio App., 6th Dist., Dec. 11, 2009)	636
<i>Merrill Lynch, Pierce, Fenner & Smith v. Dabit</i> , 547 U.S. 71 (2006)	301
<i>Merriweather v. Wilcox</i> , No. 2021-CVG-011765 (Ohio Mun., Cleveland, Hous. Div., Jan. 26, 2022)	17
<i>Mesnick v. De Ville Apts.</i> , No. 71517, 1997 WL 599376 (Ohio App., 8th Dist., Sept. 25, 1997)	348,369,614
<i>Messiah Baptist Hous. Dev. Fund Co. v. Rosser</i> , 92 Misc.2d 383, 400 N.Y.S.2d 306 (City Ct. 1977)	365
<i>Meyer v. Carmichael</i> , 29 Ohio App.2d 183, 279 N.E.2d 622 (1st Dist. 1971)	181
<i>Meyer v. Chieffo</i> , 193 Ohio App.3d 51, 950 N.E.2d 1027 (10th Dist. 2011)	149
<i>Meyer v. Chieffo</i> , Nos. 08AP-867,877, 2009 WL 1653561 (Ohio App., 10th Dist., June 11, 2009)	62,67
<i>Meyer v. Dakota County Cmty. Dev. Agency</i> , No. A06-1290, 2007 WL 2703005 (Minn. App. Sept. 18, 2007)	661
<i>Meyers v. First Nat'l Bank of Cincinnati</i> , 3 Ohio App.3d 209, 444 N.E.2d 412 (1st Dist. 1981)	83,84
<i>Miami Inv. Corp. v. Baker</i> , 109 Ohio App. 334, 165 N.E.2d 690 (2nd Dist. 1959)	108,109
<i>Miami Valley Hous. v. Jackson</i> , No. 25020, 2012 WL 5382834 (Ohio App., 2nd Dist., Nov. 2, 2012)	1,113,115
<i>Miami Valley Hous. v. Williams</i> , No. 06-CVG-9358 (Ohio Mun., Dayton, Nov. 17, 2006)	378
<i>Miami Valley United Methodist Mission Soc'y v. White-Dawson</i> , No. 17873, 2000 WL 234712 (Ohio App., 2nd Dist., Mar. 3, 2000)	350,599
<i>Midkiff v. Adams County Reg'l Water Dist.</i> , 409 F.3d 758 (6th Cir. 2005)	609
<i>Midland Mgmt. Co. v. Helgason</i> , 158 Ill.2d 98, 630 N.E.2d 836 (1994)	131
<i>Mid-Northern Mgmt., Inc. v. Heinzeroth</i> , 234 Ill. App.3d 240, 599 N.E.2d 568 (1992)	237,256

<i>Midtown Apts. v. Davis</i> , 20 Ohio B. 128, 1985 WL 6044 (Ohio App., 10th Dist., 1985)	18
<i>Miele v. Ribovich</i> , 90 Ohio St.3d 439, 739 N.E.2d 333 (2000)	7,88,89,91-93
<i>Mihaly v. Akron Metro. Hous. Auth.</i> , No. CV-2005-11-6946 (Ohio C.P., Summit Cty., Dec. 14, 2006)	669
<i>Mihil Co. v. Paradiso</i> , 107 Misc.2d 867, 436 N.Y.S.2d 115 (Civ. Ct. 1980)	365
<i>Milano v. Jones</i> , No. M8906-CVG-20458 (Ohio Mun., Franklin Cty., July 10, 1989)	84,96
<i>Milbourn v. Aska</i> , 81 Ohio App. 79, 77 N.E.2d 619 (3rd Dist. 1946)	17,139,159
<i>Milburn v. Henness</i> , No. 03-CVH-208 (Ohio Mun., Chillicothe, Jan. 29, 2004)	358,469,476
<i>Milhoan v. E. Local Sch. Dist. Bd. of Educ.</i> , 157 Ohio App.3d 716, 813 N.E.2d 692 (4th Dist. 2004)	653
<i>Millennia Hous. Mgmt. Ltd. v. Mitchell</i> , No. 2013-CVG-008410 (Ohio Mun., Cleveland, Hous. Div., Nov. 19, 2013)	251
<i>Millennia Hous. Mgmt., Ltd. v. Williams</i> , No. 101627, 2015 WL 1276464 (Ohio App., 8th Dist., Mar. 19, 2015)	133,136,137
<i>Millennia Hous. Mgmt. Ltd. v. Williams</i> , No. 2018-CVG-015007 (Ohio Mun., Cleveland, Hous. Div., May 6, 2019)	204
<i>Millennia Hous. Mgmt., Ltd. v. Withrow</i> , No. 12-CA-2, 2013 WL 398944 (Ohio App., 4th Dist., Jan. 28, 2013)	113,115-118
<i>Miller v. Christian</i> , 958 F.2d 1234 (3d Cir 1992)	418
<i>Miller v. Eagle</i> , 96 Ohio St. 106, 117 N.E. 23 (1917)	60
<i>Miller v. Gage</i> , No. 90-CVG-31902 (Ohio Mun., Cleveland, Hous. Div., Apr. 24, 1991)	415
<i>Miller v. Hamm</i> , No. 15-CV-0580 (Ohio C.P., Marion Cty., June 22, 2016)	359,574
<i>Miller v. Johnson</i> , No. 109453, 2021 WL 631242 (Ohio App., 8th Dist., Feb. 18, 2021)	114
<i>Miller v. Lake Metro. Hous. Auth.</i> , No. 11-CV-000613 (Ohio C.P., Lake Cty., Nov. 17, 2011)	671
<i>Miller v. McCormick</i> , 605 F. Supp.2d 296 (D. Me. 2009)	252
<i>Miller v. Miller</i> , No. CVH-971763R (Ohio Mun., Portsmouth, May 23, 1998)	391

<i>Miller v. Piqua Transfer & Storage Co.</i> , 57 Ohio Law Abs. 325, 92 N.E.2d 452 (Ohio C.P., Butler Cty., 1950)	426
<i>Miller v. Ritchie</i> , 45 Ohio St.3d 222, 543 N.E.2d 1265 (1989)	292,313,317, 395,398,399, 404-406,421, 422,424
<i>Miller v. Schmidt</i> , 5 Ohio Dec. 4, 1894 WL 687 (Ohio C.P., Hamilton Cty., 1894)	58
<i>Miller v. Strausbaugh</i> , No. 4-2000-28, 2001 WL 475332 (Ohio App., 3rd Dist., May 4, 2001)	7
<i>Miller Mobile Homes Inc. v. Denardy</i> , No. 92-CVG-15699 (Ohio Mun., Cleveland, Hous. Div., Oct. 23, 1992)	583
<i>Miller Mobile Homes, Inc. v. Reeves</i> , No. 92-CVG-15700, 1993 WL 837914 (Ohio Mun., Cleveland, Hous. Div., Sept. 23, 1992)	581
<i>Milwaukee City Hous. Auth. v. Cobb</i> , 361 Wis.2d 359, 860 N.W.2d 267 (2015)	247
<i>Mims v. DuBose</i> , No. 04-CVG-0779 (Ohio Mun., Akron, Sept. 8, 2004)	76
<i>Mintz v. Tannous</i> , 74 Ohio App.3d 636, 600 N.E.2d 269 (8th Dist. 1991)	361
<i>Mitchell v. Walker</i> , No. C-050546 (Ohio App., 1st Dist., Dec. 6, 2006)	102,103,126
<i>Mixon v. K&D Apt. Cmty. Owners and Managers</i> , No. 104338, 2017 WL 121770 (Ohio App., 8th Dist., Jan. 12, 2017)	431
<i>Mlynek v. Mlynek</i> , No. WD-07-056, 2008 WL 307449 (Ohio App., 6th Dist., Feb. 1, 2008)	368
<i>Mockensturm v. Razeq</i> , No. L-85-149, 1986 WL 1692 (Ohio App., 6th Dist., Feb. 7, 1986)	21,35,121
<i>Mohn v. Ousley</i> , No. 2015-CA-00073, 2015 WL 9393954 (Ohio App., 5th Dist., Dec. 21, 2015)	640
<i>Monaco v. Schultz</i> , No. 1998-CV-100425, 2001 WL 1677087 (Ohio C.P., Tuscarawas Cty., Jan. 30, 2001)	441
<i>Moncrief v. Bohn</i> , 9 N.E.3d 508, 2014-Ohio-837 (Ohio App., 8th Dist., 2014)	618,620
<i>Monea v. Lanci</i> , No. 2009-CA-0083, 2009 WL 4690214 (Ohio App., 5th Dist., Dec. 7, 2009)	637
<i>Mong v. Dotson</i> , No. 1173CA, 1987 WL 8029 (Ohio App., 2nd Dist., May 17, 1987)	541

<i>Montgomery Gateway East I v. Herrera</i> , 261 N.J. Super. 235, 618 A.2d 865 (1992)	135
<i>Moody v. Brady</i> , No. 92-CVF-549 (Ohio Mun., Clinton Cty., Mar. 8, 1993)	405,414
<i>Moonlight Mobile Home Parks, Inc. v. Eichner</i> , No. L-93-028, 1993 WL 434584 (Ohio App., 6th Dist., Oct. 29, 1993)	174,175,287,589
<i>Moore v. CM Props.</i> , No. 01-CV-4475 (Ohio C.P., Montgomery Cty., Dec. 14, 2004)	487
<i>Moore v. CM Props.</i> , No. 19388, 2003 WL 1424168 (Ohio App., 2nd Dist., Mar. 21, 2003)	487
<i>Moore v. CM Props.</i> , No. 01-CV-4475, 2002 WL 34170615 (Ohio C.P., Montgomery Cty., Mar. 6, 2002)	487
<i>Moore v. Lorain Metro. Hous. Auth.</i> , 121 Ohio St.3d 455, 905 N.E.2d 606 (2009)	617,653
<i>Moore v. Lupica Towers</i> , No. 71551, 1997 WL 711295 (Ohio App., 8th Dist., Nov. 13, 1997)	324
<i>Moore v. Ress</i> , No. R80-CVG-0120 (Ohio Mun., Portage Cty., Sept. 18, 1980)	470
<i>Moore v. Shumaker</i> , No. 91-CVG-1659 (Ohio Mun., Lancaster, Jan. 2, 1992)	143
<i>Moore-El v. Petrella</i> , No. 94749, 2011 WL 553877 (Ohio App., 8th Dist., Feb. 17, 2011)	501,538
<i>Morales v. Windsor Realty & Mgmt., Inc.</i> , No. 2000-CVH-002037 (Ohio Mun., Cleveland, Hous. Div., Nov. 21, 2000)	502,504,546,594
<i>Moran v. Foster</i> , No. 97-CVG-300 (Ohio Mun., Lakewood, Dec. 30, 1997)	355,512
<i>Morel v. Marks Group, LLC</i> , Nos. HCH-598, H-1532, 2011 WL 2712996 (Conn. Super. June 21, 2011)	320
<i>Morgan v. Mamone</i> , No. 87612, 2006 WL 3804527 (Ohio App., 8th Dist., Dec. 21, 2006)	324,427,439
<i>Morning Star Towers v. Robinson</i> , No. 06-CVG-26743 (Ohio Mun., Cleveland, Hous. Div., Jan. 11, 2007)	183
<i>Morris Inv. v. Kettman</i> , No. 80-CV-10735 (Ohio Mun., Hamilton Cty., Mar. 20, 1981)	394
<i>Morrison v. Lipscomb</i> , 877 F.2d 463 (6th Cir. 1989)	94

<i>Morrison v. Skestos</i> , No. 04AP-244, 2004 WL 2944159 (Ohio App., 10th Dist., Dec. 21, 2004)	615
<i>Morrow v. City of Steubenville</i> , No. C2-91-1003 (S.D. Ohio July 30, 1992)	611
<i>Morrow v. Gates</i> , No. CA91-11-021, 1992 WL 156116 (Ohio App., 12th Dist., June 29, 1992)	13,14,69
<i>Mortgage Network, Inc. v. AmeriBanc Mortgage Lending, L.L.C.</i> , 177 Ohio App.3d 733, 895 N.E.2d 917 (10th Dist. 2008)	176
<i>Mosley & Mosley Props. Ltd. v. Graham</i> , No. 99-G-3616 (Ohio Mun., Akron, May 24, 1999)	206
<i>Motz v. Liptak</i> , No. CA-10310, 1987 WL 14269 (Ohio App., 2nd Dist., July 9, 1987)	553
<i>Mt. Moriah Dev. Corp. v. Smith</i> , No. 83-CV-36104 (Ohio Mun., Hamilton Cty., Sept. 17, 1984)	259
<i>Mt. Olive-Metro Hous., Inc. v. Craft</i> , No. 93-G-2858 (Ohio Mun., Cuyahoga Falls, Feb. 28, 1994)	101,103,134, 207,208,212
<i>Mounts v. Foerg</i> , No. R90-CVG-0375 (Ohio Mun., Portage Cty., Dec. 5, 1990)	465,475
<i>Mounts v. Ravotti</i> , No. 07-MA-182, 2008 WL 4415819 (Ohio App., 7th Dist., Sept. 26, 2008)	318,438,444
<i>Mowery v. Shoaf</i> , 148 Ohio App.3d 403, 773 N.E.2d 1053 (7th Dist. 2002)	313,323,326
<i>Mozingo v. 2007 Gaslight Ohio, LLC</i> , No. 27759, 2016 WL 3608751 (Ohio App., 9th Dist., July 6, 2016)	616
<i>Mularcik v. Adams</i> , No. 03-JE-17, 2004 WL 549489 (Ohio App., 7th Dist., Mar. 18, 2004)	11,14
<i>Mullins v. Grosz</i> , No. 10AP-23, 2010 WL 3244139 (Ohio App., 10th Dist., Aug. 17, 2010)	292,318
<i>Mullins v. Vonderhaar</i> , No. 87-CV-07154 (Ohio Mun., Hamilton Cty., May 27, 1987)	403
<i>Munsie v. Welkener</i> , No. CA96-08-080, 1997 WL 374739 (Ohio App., 12th Dist., July 7, 1997)	502,503
<i>Murphy v. Brooklyn Acres Mut. Homes, Inc.</i> , No. 68593, 1996 WL 284856 (Ohio App., 8th Dist., May 30, 1996)	4
<i>Murphy v. Leo Baur Realty, Inc.</i> , No. 63756, 1993 WL 425353 (Ohio App., 8th Dist., Oct. 21, 1993)	435

<i>Murray v. Bargo</i> , No. CA86-11-080, 1987 WL 15440 (Ohio App., 12th Dist., Aug. 10, 1987)	311,399,435
<i>Murry v. Heather Hill Apts.</i> , No. L-91-155, 1991 WL 280128 (Ohio App., 6th Dist., Dec. 27, 1991)	492
<i>Mushi v. Dietz Prop. Group</i> , No. 18-AP-774, 2019 WL 4450155 (Ohio App., 10th Dist., Sept. 17, 2019)	164
<i>Mustic v. Mustic</i> , No. 87AP-318, 1987 WL 32174 (Ohio App., 10th Dist., Dec. 29, 1987)	493
<i>Myers v. City of Alcoa</i> , 752 F.2d 196 (6th Cir. 1985)	608
<i>Myers v. Clinebell</i> , No. S-98-048, 1999 WL 300620 (Ohio App., 6th Dist., May 14, 1999)	106
<i>Myers v. Loudy</i> , No. 80-CA-8, 1980 Ohio App. LEXIS 11895 (Ohio App., 2nd Dist., Oct. 21, 1980)	555
<i>Myricks v. Reed</i> , No. 93-CVG-05580 (Ohio Mun., Cleveland, Hous. Div., Apr. 14, 1994)	414
<i>Myszka v. Bledsoe</i> , No. 00-CVG-08398 (Ohio Mun., Akron, Nov. 9, 2000)	21,141,142,355
N	
<i>NRG-Nevada Note Servs., Inc. v. Barrett</i> , No. 04-CV-0839 (Ohio C.P., Clark Cty., June 4, 2008)	603
<i>N.T.I. Enters., Ltd. v. Dental Prods. & Servs., Inc.</i> No. 2018-T-0018, 2019 WL 117829 (Ohio App., 11th Dist., Jan. 7, 2019)	86
<i>N.W. Ohio Food Marts, Inc. v. Mugg</i> , No. L-86-115, 1987 WL 7791 (Ohio App., 6th Dist., Mar. 13, 1987)	16,40
<i>Namenyi v. Tomasello</i> , No. 2013-CA-75, 2014 WL 5089113 (Ohio App., 2nd Dist., Oct. 10, 2014)	85
<i>Napolski v. Champney</i> , 295 Or. 408, 667 P.2d 1013 (1983)	150-153,156
<i>Nashua Hous. Auth. v. Wilson</i> , 162 N.H. 358, 33 A.3d 1163 (2011)	664
<i>Nason v. Mike</i> , No. HDSP-123262, 2003 WL 21213707 (Conn. Super. May 19, 2003)	200
<i>Nat'l Church Publ'ns v. Hiser</i> , No. CA-2388, 1986 WL 6988 (Ohio App., 5th Dist., June 12, 1986)	192
<i>Nat'l Church Residences v. Neal</i> , No. 04-CVG-1264 (Ohio Mun., Euclid, Sept. 1, 2004)	128

<i>Nat'l Church Residences of Worthington v. Timson</i> , 78 Ohio App.3d 798, 605 N.E.2d 1346 (10th Dist. 1992)	87
<i>Nat'l Corp. for Housing P'ships v. Chapman</i> , 18 Ohio App.3d 104, 481 N.E.2d 654 (9th Dist. 1984)	122,130
<i>Nat'l Crime Reporting, Inc. v. McCord & Akamine, L.L.P.</i> , 177 Ohio App.3d 551, 895 N.E.2d 255 (10th Dist. 2008)	190,191
<i>Nativi v. Deutsche Bank Nat'l Trust Co.</i> , No. 09-06090, 2010 WL 2179885 (N.D. Cal. May 26, 2010)	605
<i>Navicky v. Copas</i> , No. 97-CVG-00295 (Ohio Mun., Cambridge, July 3, 1997)	134
<i>Neal v. Manor</i> , No. L-07-1055, 2008 WL 203648 (Ohio App., 6th Dist., Jan. 25, 2008)	259
<i>Neff v. Knisely</i> , No. 87AP-666, 1988 WL 125687 (Ohio App., 10th Dist., Nov. 22, 1988)	429
<i>Neff v. Manashian</i> , 104 Ohio App.3d 528, 662 N.E.2d 856 (8th Dist. 1995)	463
<i>Neighborhood Dev. Corp. v. Cook</i> , No. M79-CVG-30481 (Ohio Mun., Franklin Cty., Jan. 2, 1980)	204
<i>Neighbors Organized for Action in Hous. v. Smith</i> , No. 62219, 1992 WL 25305 (Ohio App., 8th Dist., Feb. 13, 1992)	15
<i>Neighbors Organized for Action in Hous. v. Smith</i> , No. 91-CVG-1983 (Ohio Mun., Cleveland, Hous. Div., July 26, 1991)	15
<i>Neilan Park Apts. 2, LLC v. Carr</i> , Nos. 21-CVG-01273,01276,01278, 01293 (Ohio Mun., Hamilton Cty., Nov. 4, 2021)	216,218
<i>Nelson v. Am. Power & Light</i> , No. 2:08-cv-549, 2010 WL 3219498 (S.D. Ohio Aug. 12, 2010)	614
<i>Nelson v. Tipton</i> , No. 99AP-277, 1999 WL 1041154 (Ohio App., 10th Dist., Nov. 18, 1999)	500,504,505,551
<i>Nenadal v. Landerwood Co.</i> , No. 65428, 1994 WL 189375 (Ohio App., 8th Dist., May 12, 1994)	57,64
<i>Neubauer v. Patzkowsky</i> , No. 91AP-1236, 1992 WL 125269 (Ohio App., 10th Dist., June 2, 1992)	355,358,597
<i>New Asian Super Market v. Weng</i> , 110 N.E.3d 131, 2018-Ohio-1248 (Ohio App., 10th Dist., 2018)	69
<i>New Boston Kiwanis Hous., Etc. v. Sparks</i> , No. 1957, 1992 WL 79561 (Ohio App., 4th Dist., Apr. 14, 1992)	23,88

<i>New Haven Missionary Baptist Church v. City of Norwood</i> , No. C-961046, 1997 WL 602867 (Ohio App., 1st Dist., Aug. 22, 1997)	656
<i>New Hempstead Terrace LLC v. Reeves</i> , 18 Misc.3d 1113(A), 856 N.Y.S.2d 500 (Dist. Ct. 2008)	264
<i>New Longwood Assocs. v. Perry</i> , No. 09-CVG-12567 (Ohio Mun., Cleveland, Hous. Div., Apr. 22, 2010)	236,237,251
<i>New Longwood Assocs. v. Robertson</i> , No. 02-CVG-8420 (Ohio Mun., Cleveland, Hous. Div., May 24, 2002)	211
<i>New Longwood Assocs. v. Smith</i> , No. 2006-CVG-7635 (Ohio Mun., Cleveland, Hous. Div., May 1, 2006)	228,229
<i>New Longwood Assocs. v. Wells</i> , No. 09-CVG-12569 (Ohio Mun., Cleveland, Hous. Div., Sept. 16, 2009)	254
<i>New Longwood Assocs. v. Williams</i> , No. 02-CVG-1431 (Ohio Mun., Cleveland, Hous. Div., Mar. 12, 2002)	211
<i>New Method Textiles, Inc. v. TGI Friday's, Inc.</i> , No. 93-APG10-1360, 1994 WL 312915 (Ohio App., 10th Dist., June 28, 1994)	191
<i>New Prince Hall Hous. Auth. v. Thornton</i> , No. 91-CVG-1754 (Ohio Mun., Clark Cty., July 9, 1991)	227
<i>New S. Hotel Co. v. Kingston</i> , 23 Ohio Law Abs. 115, 72 N.E.2d 782 (Ohio App., 10th Dist., 1936)	305
<i>New York City Hous. Auth. etc. v. Sullivan</i> , 4 Misc.3d 131(A), 791 N.Y.S.2d 871 (Sup. App. Term 2004)	116
<i>New York County Dist. Attorney's Office v. Oquendo</i> , 147 Misc.2d 125, 553 N.Y.S.2d 973 (Civ. Ct. 1990)	96
<i>New York Life Ins. Co. v. Simplex Prods. Corp.</i> , 135 Ohio St. 501, 21 N.E.2d 585 (1939)	602
<i>Newark Green v. Hull</i> , No. CA-3532, 1990 WL 125477 (Ohio App., 5th Dist., Aug. 24, 1990)	234
<i>Newlon v. Tallman</i> , No. CA-2520, 1988 WL 17835 (Ohio App., 5th Dist., Jan. 22, 1988)	525,526
<i>Newman Club of Columbus v. Higgy</i> , 13 Ohio App. 227 (10th Dist. 1920)	181
<i>Newport Hous. Auth. v. Reynolds</i> , No. ND2002-0290 (R.I. Super., Newport Cty., Aug. 26, 2002)	247
<i>Nichols v. Malone</i> , No. 00-CVG-1022 (Ohio Mun., Marietta, Nov. 14, 2001)	575

<i>Nieto v. Marcellino</i> , No. 2017-G-0146, 2018 WL 6445474 (Ohio App., 11th Dist., Dec. 10, 2018)	501
<i>Nijhawan v. Holder</i> , 557 U.S. 29 (2009)	301
<i>Niskanen v. Giant Eagle, Inc.</i> , 122 Ohio St.3d 486, 912 N.E.2d 595 (2009)	441
<i>Nittskoff v. Sanford</i> , No. 2010-CVG-183 (Ohio Mun., South Euclid, May 12, 2010)	261
<i>Nobis v. E.A. Zicka Co.</i> , 31 Ohio App.3d 104, 508 N.E.2d 980 (1st Dist. 1986)	547,554,555
<i>Nobles v. Johns</i> , No. 91-CVG-28244 (Ohio Mun., Cleveland, Hous. Div., Mar. 25, 1992)	441
<i>Nofzinger v. Blood</i> , No. H-02-014, 2003 WL 1464519 (Ohio App., 6th Dist., Mar. 14, 2003)	636
<i>Nolan v. Sutton</i> , 97 Ohio App.3d 616, 647 N.E.2d 218 (1st Dist. 1994)	494,495,548, 550,556
<i>Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd.</i> , No. 2006-CA-25, 2007 WL 196467 (Ohio App., 2nd Dist., Jan 26, 2007)	573
<i>Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd.</i> , 162 Ohio App.3d 453, 833 N.E.2d 1259 (2nd Dist. 2005)	573
<i>Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd.</i> , Nos. 2004-CA-19,20, 2004 WL 1587234 (Ohio App., 2nd Dist., July 9, 2004)	549
<i>Non-Employees of Chateau Estates Resident Ass'n v. Chateau Estates, Ltd.</i> , No. 2002-CA-68, 2003 WL 21121992 (Ohio App., 2nd Dist., May 16, 2003)	573
<i>Norman v. McFaul</i> , No. C78-1698 (N.D. Ohio Dec. 20, 1978, and Apr. 25, 1979)	603
<i>Normar Corp. v. Richardson</i> , No. 93-CVG-9922 (Ohio Mun., Dayton, Mar. 3, 1994)	87
<i>Norris v. Red Barn Rests., Inc.</i> , No. 13652, 1989 WL 1655 (Ohio App., 9th Dist., Jan. 11, 1989)	102
<i>Norskog v. Atha</i> , 61 Ohio Law Abs. 604, 102 N.E.2d 907 (Ohio Mun., Dayton, 1951)	353
<i>North v. Golden Leaf Baptist Church</i> , No. C-860310, 1987 WL 10038 (Ohio App., 1st Dist., Apr. 22, 1987)	430

<i>N. Face Props., Inc. v. Lin</i> , No. CA2012-09-083, 2013 WL 2423802 (Ohio App., 12th Dist., June 3, 2013)	13,123,124,350, 353
<i>N. River Place Apts. v. Hucks</i> , No. CVG-01-00240 (Ohio Mun., Chillicothe, Nov. 20, 2001)	359
<i>N. Shore Plaza Assocs. v. Guida</i> , 117 Misc.2d 778, 459 N.Y.S.2d 685 (Civ. Ct. 1983)	256
<i>Northeast Shores Dev. Corp. v. Euclid Beach L.P.</i> , No. 05-CVH-03844, 2005 WL 1131729 (Ohio Mun., Cleveland, Hous. Div., Mar. 25, 2005)	452
<i>Northfield Park Assocs. v. Northeast Ohio Harness</i> , 36 Ohio App.3d 14, 521 N.E.2d 466 (8th Dist. 1987)	3,133
<i>Northgate Apts. v. Gonzalez</i> , No. CA80-34, 1981 WL 6340 (Ohio App., 5th Dist., June 26, 1981)	55,155
<i>Northlake Hills Coop., Inc. v. Barrett</i> , No. 9699, 1987 WL 14238 (Ohio App., 2nd Dist., Dec. 8, 1986)	227
<i>Northland Vill. Apts. v. Hamp</i> , No. 12407, 1991 WL 108717 (Ohio App., 2nd Dist., June 20, 1991)	122,209
<i>Northland Vill. Apts. v. Harris</i> , No. 10156, 1987 WL 14276 (Ohio App., 2nd Dist., July 6, 1987)	31
<i>Northpointe Apts. v. Dooley</i> , No. M85-CVG-3909 (Ohio Mun., Franklin Cty., Apr. 8, 1985)	18
<i>Northrop v. Mangus</i> , No. CA-81-07, 1981 WL 6607 (Ohio App., 5th Dist., Dec. 28, 1981)	643
<i>Norwalk N. Apts. v. Holiday</i> , No. H-93-37, 1994 WL 262509 (Ohio App., 6th Dist., June 10, 1994)	81
<i>Norwalk N. Apts. v. Mackey</i> , No. H-93-38, 1994 WL 262508 (Ohio App., 6th Dist., June 10, 1994)	81
<i>Norwich Apts. II v. Ingram</i> , No. L-19-1239, 2020 WL 3032860 (Ohio App., 6th Dist., June 5, 2020)	254
<i>Norwich Apts. II v. Sanders</i> , 159 N.E.3d 340, 2020-Ohio-4540 (Ohio App., 6th Dist., 2020)	170
<i>Norwich Hous. Auth. v. Majewski</i> , No. CV-219883, 2000 WL 73034 (Conn. Super. Jan. 13, 2000)	366
<i>Nottingdale Homeowners' Ass'n, Inc. v. Darby</i> , 33 Ohio St.3d 32, 514 N.E.2d 702 (1987)	543
<i>Novak v. Jackson</i> , No. 38654 (Ohio App., 8th Dist., Nov. 1, 1977)	112

<i>Nutter v. Rhoades</i> , No. 07-CVG-02622 (Ohio Mun., Licking Cty., Oct. 15, 2007)	143
<i>Nyack Plaza v. Parker</i> , 18 Misc.3d 126(A), 2007 WL 4355300 (N.Y. Sup. App. Term 2007)	135
<i>Nye v. Schuler</i> , 110 Ohio App. 443, 165 N.E.2d 16 (4th Dist. 1959)	480
O	
<i>O.B. Corp. v. Cordell</i> , 47 Ohio App.3d 170, 547 N.E.2d 1201 (10th Dist. 1988)	122
<i>OH Seven LLC v. Lee</i> , No. 2020-CA-00057, 2021 WL 286534 (Ohio App., 5th Dist., Jan. 28, 2021)	83
<i>OIG Homes, LLC v. Stricklen</i> , No. L-21-1029, 2021 WL 4935720 (Ohio App., 6th Dist., Oct. 22, 2021)	114
<i>Oak Hill Banks v. Ison</i> , No. 03-CA-5, 2003 WL 22386806 (Ohio App., 4th Dist., Oct. 15, 2003)	404
<i>Oak Hill Inv. Co. v. Jablonski</i> , 78 Ohio App.3d 643, 605 N.E.2d 998 (6th Dist. 1992)	534
<i>Oak Park Estates, LLC v. Burnley</i> , No. 2015-CVG-001007 (Ohio Mun., Wayne Cty., June 29, 2015)	286
<i>Oak Park Mgmt. Corp. v. Via</i> , No. 07-CA-0022, 2008 WL 2168505 (Ohio App., 9th Dist., May 27, 2008)	47,97
<i>Oakbrook Realty Corp. v. Blout</i> , 48 Ohio App.3d 69, 548 N.E.2d 305 (10th Dist. 1988)	80
<i>Oakbrook Realty Corp. v. Harris</i> , No. 89AP-819, 1991 WL 70146 (Ohio App., 10th Dist., Apr. 30, 1991)	187
<i>Oakes v. Buffalohead</i> , No. 87-CVG-01011 (Ohio Mun., Medina, Feb. 9, 1988)	159
<i>Oakwood Mgmt. Co. v. Bryant</i> , No. 04-CVG-00057 (Ohio Mun., Licking Cty., Mar. 17, 2004)	23
<i>Oakwood Mgmt. Co. v. Richards</i> , No. 99AP-627, 1999 WL 1124692 (Ohio App., 10th Dist., Dec. 9, 1999)	57,63,65,78,108
<i>Oakwood Mgmt. Co. v. Young</i> , No. 92AP-207, 1992 WL 324338 (Ohio App., 10th Dist., Oct. 27, 1992)	504,553,554
<i>Oakwood Plaza Apts. v. Smith</i> , 352 N.J. Super. 467, 800 A.2d 265 (2002)	244
<i>Oberholtz v. Oberholtz</i> , 79 Ohio App. 540, 74 N.E.2d 574 (9th Dist. 1947)	638

<i>Obermiller v. Tahya</i> , No. 91-CA-005092, 1992 WL 41275 (Ohio App., 9th Dist., Mar. 4, 1992)	433
<i>O'Brien v. Ravenswood Apts., Ltd.</i> , 169 Ohio App.3d 233, 862 N.E.2d 549 (1st Dist. 2006)	647
<i>Obrin v. Hicks</i> , No. 96-CVG-22876 (Ohio Mun., Cleveland, Hous. Div., Aug. 13, 1997)	358
<i>O'Connor v. Maynard</i> , No. 00-CVG-01 (Ohio Mun., Jackson Cty., Apr. 17, 2001)	390,413
<i>Oda v. Davis</i> , No. 13985, 1994 WL 444758 (Ohio App., 2nd Dist., Aug. 17, 1994)	105
<i>Oda v. Davis</i> , 81 Ohio App.3d 555, 611 N.E.2d 933 (2nd Dist. 1992)	189,527
<i>Odneal v. Wolfe</i> , No. L-79-346, 1980 Ohio App. LEXIS 9841 (Ohio App., 6th Dist., June 13, 1980)	32
<i>Odom v. Davis</i> , No. 02-CA-43, 2003 WL 21458704 (Ohio App., 4th Dist., June 20, 2003)	446
<i>Office of Disciplinary Counsel v. Coleman</i> , 88 Ohio St.3d 155, 724 N.E.2d 402 (2000)	196
<i>Ogden v. Avery</i> , No. 91-CVG-18 (Ohio Mun., Mansfield, May 16, 1991)	194
<i>O'Hara Realty v. Lloyd</i> , 116 Ohio App.3d 439, 688 N.E.2d 544 (7th Dist. 1996)	68
<i>Ohio Cas. Ins. Co. v. Wills</i> , 29 Ohio App.3d 219, 504 N.E.2d 1164 (3rd Dist. 1985)	239,338
<i>Ohio Civil Rights Comm'n v. Akron Metro. Hous. Auth.</i> , 119 Ohio St.3d 77, 892 N.E.2d 415 (2008)	334
<i>Ohio Civil Rights Comm'n v. Myers</i> , No. 25752, 2014 WL 201674 (Ohio App., 2nd Dist., Jan. 17, 2014)	334
<i>Ohio Farmers Ins. Co. v. Cochran</i> , 104 Ohio St. 427, 135 N.E. 537 (1922)	174
<i>Ohio Specialized Invs., Ltd. v. Campbell</i> , No. 2016-CA-00176, 2017 WL 1231727 (Ohio App., 5th Dist., Mar. 31, 2017)	440
<i>Ohio State Bar Ass'n v. Ross</i> , 154 Ohio St.3d 328, 114 N.E.3d 179 (2018)	192,195
<i>Oldaker v. Warsaw Park Place, LLC</i> , No. 2020-CI-0289 (Ohio C.P., Coshocton Cty., Feb. 26, 2021)	286

<i>Oldendick v. Crocker</i> , 70 N.E.3d 1033, 2016-Ohio-5621 (Ohio App., 8th Dist., 2016)	373,381,498, 500,502,503,508 510,518-520,525
<i>Oliver v. Montgomery</i> , No. 94-CVG-0049 (Ohio Mun., Cleveland Heights, Feb. 24, 1994)	12
<i>Olympic Realty v. Zaleski</i> , No. 11AP-971, 2013 WL 1303777 (Ohio App., 10th Dist., Mar. 29, 2013)	172
<i>Olympic Realty v. Zaleski</i> , No. 11AP-668 (Ohio App., 10th Dist., June 29, 2012)	116,117
<i>Ondrick v. Courim</i> , No. 98-CVG-00063 (Ohio County Ct., Belmont Cty., July 8, 1998)	125
<i>O'Neal v. City of Seattle</i> , 66 F.3d 1064 (9th Cir. 1995)	609
<i>Oneida Props., Inc. v. Pickett</i> , No. 24626, 2009 WL 3119647 (Ohio App., 9th Dist., Sept. 30, 2009)	89,93,108
<i>O'Neil v. Walburg</i> , 70 Ohio App.2d 30, 433 N.E.2d 1286 (10th Dist. 1980)	468,475
<i>Oppmann Props. v. Jackson</i> , No. 90-CVG-9118 (Ohio Mun., Cleveland, Hous. Div., May 29, 1990)	22
<i>Opsomer v. Gray</i> , No. 7-84-20, 1986 WL 6434 (Ohio App., 3rd Dist., May 29, 1986)	505
<i>Orlosky v. Adams</i> , No. 95-CVG-981 (Ohio Mun., Painesville, Sept. 21, 1995)	128
<i>Osborn v. Ashland County Bd. of Alcohol, Etc.</i> , 979 F.2d 1131 (6th Cir. 1992)	671
<i>Osman v. Columbus Metro. Hous. Auth.</i> , No. 08-CVF-07-10542 (Ohio C.P., Franklin Cty., Aug. 26, 2008)	658
<i>Osmun v. Vill. of Montpelier</i> , No. 3:96CV-7542 (N.D. Ohio May 5, 1997)	612
<i>Oswald v. Jeraj</i> , 146 Ohio St. 676, 67 N.E.2d 779 (1946)	325
<i>Ottawa Cove Apts. II v. Butts</i> , No. CVG-09-22798 (Ohio Mun., Toledo, Hous. Div., Feb. 11, 2010)	183
<i>Otto v. Patterson</i> , 173 Ohio St. 174, 180 N.E.2d 575 (1962)	194
<i>Our Place, Inc. v. Ohio Liquor Control Comm'n</i> , 63 Ohio St.3d 570, 589 N.E.2d 1303 (1992)	662
<i>Owens v. French Vill. Co.</i> , No. 99-CA-0058, 2000 WL 1026690 (Ohio App., 9th Dist., July 26, 2000)	313

<i>Owens v. Parma Pub. Hous. Agency</i> , No. CV-08-656626 (Ohio C.P., Cuyahoga Cty., Apr. 29, 2008)	658
<i>Owner's Mgmt. v. Weems</i> , No. 97-CVG-07486 (Ohio Mun., Cleveland, Hous. Div., July 28, 1997)	22
<i>Owner's Mgmt. Co. v. Brent</i> , No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, Aug. 1, 2001)	21,30,32
<i>Owner's Mgmt. Co. v. Brent</i> , No. 01-CVG-1693 (Ohio Mun., Cuyahoga Falls, July 24, 2001)	47
<i>Owners Mgmt. Co. v. Eslinger</i> , No. 01-CVG-1136 (Ohio Mun., Cuyahoga Falls, June 19, 2001)	122
<i>Owner's Mgmt. Co. v. Johnson</i> , No. 61691, 1992 WL 309362 (Ohio App., 8th Dist., Oct. 22, 1992)	19,124
<i>Owner's Mgmt. Co. v. Madden</i> , No. L-98-1371, 1999 WL 375526 (Ohio App., 6th Dist., June 11, 1999)	137
<i>Owners Mgmt. Co. v. Moore</i> , 111 Ohio App.3d 820, 677 N.E.2d 400 (6th Dist. 1996)	213,248
<i>Owner's Mgmt. Co. v. Osborne</i> , No. 16208 (Ohio App., 9th Dist., Aug. 20, 1993)	89
<i>Owner's Mgmt. Co. v. Osborne</i> , No. 91-CVG-774 (Ohio Mun., Barberton, Mar. 2, 1993)	134
<i>Owners Mgmt. Co. v. Osborne</i> , No. 15398, 1992 WL 174640 (Ohio App., 9th Dist., July 22, 1992)	102,103
<i>Owner's Mgmt. Co. v. Stern</i> , No. 67445, 1995 WL 23152 (Ohio App., 8th Dist., Jan. 19, 1995)	206,207,209
<i>Owner's Mgmt. Co. v. Willis</i> , No. WD-87-59, 1988 WL 13214 (Ohio App., 6th Dist., Feb. 12, 1988)	15
<i>Oxford Square Apts. v. Nicholson</i> , No. 07-CVG-657 (Ohio County Ct., Tuscarawas Cty., Dec. 19, 2007)	189
<i>Ozdemir v. Boldt</i> , No. L-18-1022, 2018 WL 6601185 (Ohio App., 6th Dist., Dec. 14, 2018)	517

P

<i>PGS Rentals, Inc. v. Hileman</i> , No. CVG91-0528 (Ohio Mun., Portsmouth, June 24, 1991)	191
<i>PK Mgmt. LLC v. Hayes</i> , No. 2011-CVG-008188 (Ohio Mun., Cleveland, Hous. Div., July 7, 2011)	62,67,362

<i>PK Mgmt., LLC v. McGee</i> , No. 2014-CVG-282 (Ohio County Ct., Jefferson Cty., Dist. No. 1, Jan. 27, 2015)	249
<i>P.M.D. Land Co. v. Warner Realty, Inc.</i> , No. 2009-T-0021, 2009 WL 4895542 (Ohio App., 11th Dist., Dec. 18, 2009)	631
<i>Pabst v. Fischer</i> , 13 Ohio App. 302 (12th Dist. 1920)	134
<i>Pace v. Buck</i> , 86 Ohio App. 25, 85 N.E.2d 401 (10th Dist. 1949)	350
<i>Packman v. Barton</i> , No. CA2009-03-009, 2009 WL 3165605 (Ohio App., 12th Dist., Oct. 5, 2009)	447
<i>Pagoda Co. v. Smith</i> , No. 37936, 1979 Ohio App. LEXIS 11691 (Ohio App., 8th Dist., Feb. 8, 1979)	315,316,406,417
<i>Pagoda Co. v. Smith</i> , No. 76-CVG-1548 (Ohio Mun., Cleveland Heights, Feb. 25, 1977)	316,417
<i>Palazzi v. Donohue</i> , No. 92-CA-005319, 1992 WL 368874 (Ohio App., 9th Dist., Dec. 2, 1992)	433
<i>Palmer v. O'Leary</i> , No. 7745, 1975 Ohio App. LEXIS 7945 (Ohio App., 9th Dist., Dec. 3, 1975)	196
<i>Palmer Gardens v. Rodgers</i> , No. L-20-1003, 2020 WL 6256858 (Ohio App., 6th Dist., Oct. 23, 2020)	213
<i>Palombo v. Hayes</i> , Nos. 65781,66714, 1995 WL 229120 (Ohio App., 8th Dist., Apr. 13, 1995)	78,84,85,172
<i>Pamer v. Pritchard Bros.</i> , 61 Ohio Misc.2d 150, 575 N.E.2d 900 (Ohio C.P., Clermont Cty., 1990)	331,332,449
<i>Papadakes v. Woodall</i> , No. 47848, 1984 WL 195552 (Ohio App., 8th Dist., Nov. 29, 1984)	494
<i>Papadelis v. French</i> , No. 89-CVG-3932 (Ohio Mun., Canton, Sept. 11, 1989)	101
<i>Pappenhagen v. Payne</i> , 48 Ohio App.3d 176, 549 N.E.2d 208 (8th Dist. 1988)	91,92,502,503
<i>Park Forest of Blackman v. Smith</i> , 112 Mich. App. 421, 316 N.W.2d 442 (1982)	231,232
<i>Park Lane Apts. v. Rogers</i> , No. C-830006, 1983 WL 5322 (Ohio App., 1st Dist., Nov. 23, 1983)	202,203
<i>Park W. Mgmt. Corp. v. Mitchell</i> , 47 N.Y.2d 316, 418 N.Y.S.2d 310 (1979)	316,402
<i>Park W. Mgmt. Corp. v. Mitchell</i> , 62 A.D. 291, 404 N.Y.S.2d 115 (1978)	402

<i>Parker v. Fisher</i> , 17 Ohio App.3d 103, 477 N.E.2d 654 (9th Dist. 1984)	31,32,342
<i>Parker v. Hiles</i> , No. 02-CVH-362 (Ohio Mun., Chillicothe, Jan. 6, 2003)	412,423,561
<i>Parker v. I & F Insulation Co.</i> , No. C-980502, 1999 WL 420066 (Ohio App., 1st Dist., June 25, 1999)	556
<i>Parker v. Lake Metro. Hous. Auth.</i> , No. 2012-L-054, 2012 WL 5995062 (Ohio App., 11th Dist., Dec. 3, 2012)	665
<i>Parker v. Salvation Army</i> , 971 N.E.2d 995, 2012-Ohio-2069 (Ohio App., 8th Dist., 2012)	297,302,305
<i>Parker v. Vaughn</i> , No. 16939, 1998 WL 639305 (Ohio App., 2nd Dist., Aug. 7, 1998)	444
<i>Parks v. Kunani</i> , No. 02AP-916, 2003 WL 1701499 (Ohio App., 10th Dist., Mar. 31, 2003)	549
<i>Parks v. Menyhart Plumbing & Heating Supply Co.</i> , No. 75424, 1999 WL 1129591 (Ohio App., 8th Dist., Dec. 9, 1999)	326,431
<i>Park Lane Apts. v. Parks</i> , No. L-20-1208, 2021 WL 4480879 (Ohio App., 6th Dist., Sept. 30, 2021)	114
<i>Parma Pub. Hous. v. Hoag</i> , No. 07-CVG-00695 (Ohio Mun., Parma, May 2, 2007)	171
<i>Parma Pub. Hous. Agency v. Smiley</i> , No. 05-CVG-00759 (Ohio Mun., Parma, May 5, 2005)	207,208,211
<i>Parratt v. Taylor</i> , 451 U.S. 527 (1981)	484
<i>Parrish v. Fisco</i> , No. 58524, 1991 WL 81484 (Ohio App., 8th Dist., May 16, 1991)	429
<i>Pataskala Green II v. Strickler</i> , No. CA-3581, 1991 WL 122358 (Ohio App., 5th Dist., June 25, 1991)	22,214
<i>Patterson v. Ahmed</i> , No. L-09-1222, 2010 WL 3449257 (Ohio App., 6th Dist., Sept. 3, 2010)	435
<i>Patterson v. Tegge</i> , No. 2019-CVG-025075 (Ohio Mun., Franklin Cty., Mar. 3, 2020)	195
<i>Patton v. Diemer</i> , 35 Ohio St.3d 68, 518 N.E.2d 941 (1988)	105,120
<i>Patton v. Harper</i> , No. 95-CA-20, 1996 WL 96007 (Ohio App., 4th Dist., Mar. 4, 1996)	435,438
<i>Paugh v. Hanks</i> , 6 Ohio St.3d 72, 451 N.E.2d 759 (1983)	451

<i>Paul v. Pulskamp</i> , No. CA96-06-049, 1996 WL 707132 (Ohio App., 12th Dist., Dec. 9, 1996)	319
<i>Paul v. Semirale</i> , No. 70438, 1996 WL 502143 (Ohio App., 8th Dist., Sept. 5, 1996)	328,402
<i>Pauley v. Columbus Metro. Hous. Auth.</i> , No. 07-CVF-12-17104 (Ohio C.P., Franklin Cty., Nov. 5, 2008)	229
<i>Paxton v. McGranahan</i> , No. 49645, 1985 WL 6444 (Ohio App., 8th Dist., Oct. 31, 1985)	496,508
<i>Peabody Props., Inc. v. Donnelly</i> , 22 Mass. App. Ct. 1101, 490 N.E.2d 817 (1986)	238
<i>Peabody Props., Inc. v. Donnelly</i> , No. 18066 (Mass. Super., Bristol Cty., Apr. 26, 1985)	238
<i>Peake v. Thrower</i> , No. 88-CVG-2325 (Ohio Mun., Akron, Mar. 2, 1989)	499
<i>Pearson v. Huber Inv. Corp.</i> , No. 84AP-526, 1985 WL 9913 (Ohio App., 10th Dist., Mar. 21, 1985)	396,499
<i>Pease v. Croxton Realty</i> , No. CA-8779, 1992 WL 362463 (Ohio App., 5th Dist., Dec. 7, 1992)	319
<i>Pedra Props., L.L.C. v. Justmann</i> , No. 102909, 2015 WL 9438446 (Ohio App., 8th Dist., Dec. 24, 2015)	314,386
<i>Pedraza v. Oster Invs., Inc.</i> , No. 7-87-10, 1989 WL 29215 (Ohio App., 3rd Dist., Mar. 21, 1989)	400
<i>Peed v. Moore</i> , No. 857, 1981 WL 5165 (Ohio App., 12th Dist., July 22, 1981)	49
<i>Pellowski v. Burke</i> , 686 F.2d 631 (8th Cir. 1982)	483,484
<i>Pendergrass v. Kelly</i> , No. M9110-CVG-036723 (Ohio Mun., Franklin Cty., Feb. 3, 1992)	229
<i>Penny Point Park Apts. v. Barnes</i> , 2007 WL 3289133 (N.J. Super. Nov. 8, 2007)	407
<i>Peoples v. Holley</i> , 181 Ohio App.3d 203, 908 N.E.2d 517 (2nd Dist. 2009)	596
<i>Peppe v. Knoepp</i> , 103 Ohio App. 223, 140 N.E.2d 26 (10th Dist. 1956)	181
<i>Perez v. Campbell</i> , 402 U.S. 637 (1971)	271
<i>Perkins-Bey v. Hous. Auth. of St. Louis County</i> , No. 4:11CV310 JCH, 2011 WL 939292 (E.D. Mo. Mar. 14, 2011)	252
<i>Pernell v. Southall Realty</i> , 416 U.S. 363 (1974)	57

<i>Perry v. Akron Metro. Hous. Auth.</i> , No. CV-05-01-0290 (Ohio C.P., Summit Cty., Mar. 1, 2005)	223
<i>Perry v. Akron Metro. Hous. Auth.</i> , No. CV-05-01-0290 (Ohio C.P., Summit Cty., Feb. 28, 2005)	223,654
<i>Perry v. Guttman</i> , Nos. C-870530,870568, 1988 WL 101216 (Ohio App., 1st Dist., Sept. 28, 1988)	503
<i>Perry v. Royal Arms Apts.</i> , 729 F.2d 1081 (6th Cir. 1984)	223
<i>Perrysburg Ecumenical Hous. v. Leu</i> , No. 87-CVG-977 (Ohio Mun., Perrysburg, Feb. 17, 1988)	365
<i>Person-Thomas v. Quilliams-Noble Apts., L.L.C.</i> , 45 N.E.3d 654, 2015-Ohio-4277 (Ohio App., 8th Dist., 2015)	330,430
<i>Peters v. Durroh</i> , 28 Ohio App. 2d 245, 277 N.E.2d 69 (10th Dist. 1971)	513,527
<i>Peters v. Lake Metro. Hous.</i> , No. 94-CV-000481 (Ohio C.P., Lake Cty., Oct. 12, 1994)	654
<i>Peterson v. Supinger</i> , No. 90-CV-H-T-279 (Ohio Mun., Miami Cty., Sept. 11, 1991)	547
<i>Peterson v. Walker</i> , No. 89-CVG-27148 (Ohio Mun., Cleveland, Hous. Div., July 23, 1990)	415
<i>Peterson v. Washington County Hous. & Redevelopment Auth.</i> , No. A10-2053, 2011 WL 3557818 (Minn. App. Aug. 15, 2011)	244
<i>Peterson v. Woods</i> , No. 08028 (Ohio County Ct., Adams Cty., June 1, 1988)	591
<i>Pete's Grill, Inc. v. Entercorp</i> , No. 61547, 1992 WL 369301 (Ohio App., 8th Dist., Dec. 10, 1992)	68,69
<i>Petropoulos v. Clinical Pathology Facility, Inc.</i> , No. 87AP-685, 1988 WL 24397 (Ohio App., 10th Dist., Feb. 18, 1988)	133,135
<i>Philadelphia Hous. Auth. v. Barbour</i> , 592 A.2d 47 (Pa. Super. 1991)	277
<i>Phillips v. Derringer</i> , No. 05-CVG-000657 (Ohio Mun., Licking Cty., Apr. 12, 2005)	18
<i>Phillips v. May</i> , No. 2003-G-2520, 2004 WL 2526409 (Ohio App., 11th Dist., Nov. 9, 2004)	635,636
<i>Phillips v. Rayburn</i> , 113 Ohio App.3d 374, 680 N.E.2d 1279 (4th Dist. 1996)	664

<i>Philnat Corp. v. McCune</i> , No. R79-CVG-0725 (Ohio Mun., Portage Cty., June 28, 1979)	191
<i>Phipps v. Cable</i> , No. CVG-91-0099 (Ohio Mun., Portsmouth, Mar. 14, 1991)	20,143
<i>Pieper v. Williams</i> , No. L-05-1065, 2006 WL 964725 (Ohio App., 6th Dist., Apr. 14, 2006)	331,449
<i>Pierce v. Derickson</i> , No. CA-3105, 1985 Ohio App. LEXIS 8010 (Ohio App., 5th Dist., June 10, 1985)	571
<i>Pierson-Kalabins v. Shaw</i> , No. CV2003-12-3449, 2003 WL 25780617 (Ohio C.P., Butler Cty., Feb. 11, 2003)	412,421
<i>Pietro v. Hershberger</i> , No. 90AP-110065, 1991 WL 76473 (Ohio App., 5th Dist., May 2, 1991)	526
<i>Pietrykowski v. Hamblin</i> , No. WD-84-86, 1985 WL 7092 (Ohio App., 6th Dist., Apr. 12, 1985)	465,499,502
<i>Pikewood Manor v. Bellamy</i> , No. 02-CVG-03259 (Ohio Mun., Elyria, Sept. 11, 2003)	186
<i>Pilchen v. City of Auburn, New York</i> , 728 F. Supp.2d 192 (N.D.N.Y 2010)	609
<i>Pine v. Hall</i> , No. C-040653, 2005 WL 1593929 (Ohio App., 1st Dist., July 8, 2005)	326
<i>Pinewood Gardens Apts. v. Whiteside</i> , No. 25989, 2014 WL 2169720 (Ohio App., 2nd Dist., May 23, 2014)	143-145
<i>Pinkney v. Strahorn</i> , No. 2006-CV-08394 (Ohio C.P., Montgomery Cty., Apr. 23, 2008)	265
<i>Pinnacle Mgmt. v. Bell</i> , No. CA2011-08-145, 2012 WL 1202678 (Ohio App., 12th Dist., Apr. 9, 2012)	513
<i>Pisani v. Wright</i> , No. 2005-CVG-1233 (Ohio Mun., Marietta, Apr. 7, 2008)	50
<i>Pittman v. Vaughn</i> , No. 87-CVG-06464 (Ohio Mun., Cleveland, Hous. Div., Aug. 4, 1987)	470
<i>Plains Plaza, Ltd. v. McKinley</i> , No. CIG-90-5-34 (Ohio Mun., Athens Cty., Feb. 8, 1991)	203,226
<i>Plains Plaza Ltd. v. Rupe</i> , No. 90-CVG-11-43 (Ohio Mun., Athens Cty., Mar. 11, 1991)	226
<i>Player v. Martin</i> , No. 75-CVH-16844 (Ohio Mun., Cleveland, Oct. 3, 1975)	394

<i>Pleasant v. Greenfield Station Apts.</i> , No. 15282, 1995 WL 614359 (Ohio App., 2nd Dist., Oct. 20, 1995)	405,409,422,424
<i>Pleasant View Mobile Home Court, Inc. v. Prichard</i> , No. 82-CVG-188 (Ohio Mun., Canton, May 28, 1982)	18
<i>Pledger v. Pub. Utils. Comm'n of Ohio</i> , 109 Ohio St.3d 463, 849 N.E.2d 14 (2006)	612,613
<i>Plush v. Nat'l Church Residences</i> , No. L-89-293, 1990 WL 106437 (Ohio App., 6th Dist., July 27, 1990)	293,327
<i>Point Rental Co. v. Posani</i> , 52 Ohio App.2d 183, 368 N.E.2d 1267 (10th Dist. 1976)	38,39
<i>Pojman v. Columbia-Brookpark Mgmt., LLC</i> , No. 88666, 2007 WL 2269682 (Ohio App., 8th Dist., Aug. 9, 2007)	349,373,566,592
<i>Polk v. Gray</i> , No. 36896, 1978 Ohio App. LEXIS 9771 (Ohio App., 8th Dist., Feb. 9, 1978)	424,426
<i>Polson v. Peterson</i> , No. 91-CVG-55 (Ohio Mun., Newton Falls, Mar. 19, 1991)	163
<i>Polster v. Lewis</i> , No. 91-CVG-29002 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991)	20,22,205
<i>Pool v. Insignia Residential Group</i> , 136 Ohio App.3d 266, 736 N.E.2d 507 (1st Dist. 1999)	291,292,309, 310,486,487
<i>Portage Metro. Hous. Auth. v. Brown</i> , 66 Ohio App.3d 737, 586 N.E.2d 168 (11th Dist. 1990)	31,32,119
<i>Portage Metro. Hous. Auth. v. Brumley</i> , No. 2008-P-0019, 2008 WL 4693200 (Ohio App., 11th Dist., Oct. 24, 2008)	179,185,243,246
<i>Portage Metro. Hous. Auth. v. Brumley</i> , No. 2008-P-0019 (Ohio App., 11th Dist., Mar. 11, 2008)	110
<i>Porter v. Gibbs</i> , No. 88-CVG-205 (Ohio Mun., Jackson Cty., May 31, 1988)	194
<i>Porter v. Mosher</i> , No. 01-CVG-3616 (Ohio Mun., Akron, June 13, 2001)	195
<i>Porter v. Myles</i> , No. 01-CVG-3344 (Ohio Mun., Akron, June 7, 2001)	195
<i>Posey v. Mentor Lagoons</i> , No. 58868, 1991 WL 117972 (Ohio App., 8th Dist., June 20, 1991)	551
<i>Powell v. Castner</i> , No. 11763, 1984 WL 7651 (Ohio App., 9th Dist., Dec. 19, 1984)	490

<i>Powell v. D.C. Hous. Auth.</i> , 818 A.2d 188 (D.C. App. 2003)	234
<i>Powell v. Hous. Auth. of City of Pittsburgh</i> , 812 A.2d 1201 (Pa. 2002)	242
<i>Powell v. Hous. Auth. of City of Pittsburgh</i> , 760 A.2d 473 (Pa. Commw. 2000)	242
<i>Powell v. Meigs Local Sch. Dist.</i> , No. 502, 1993 WL 379085 (Ohio App., 4th Dist., Sept. 8, 1993)	659
<i>Powells v. Radey</i> , No. 96898, 2012 WL 170891 (Ohio App., 8th Dist., Jan. 19, 2012)	265
<i>Phillips v. Thompson</i> , No. 29803, 2021 WL 6068489 (Ohio App., 9th Dist., Dec. 22, 2021)	56
<i>Powers v. Arnold</i> , No. 03-CVG-01890 (Ohio Mun., Fairfield, Aug. 26, 2003)	12,18
<i>Pratt v. Dykema</i> , Nos. 44624,44625,44626, 1981 WL 4724 (Ohio App., 8th Dist., Dec. 31, 1981)	389
<i>Prebcor, Inc. v. Fogel</i> , No. CA86-04-009, 1986 WL 12099 (Ohio App., 12th Dist., Oct. 27, 1986)	187
<i>Premier Mgmt., LLC v. Nutt</i> , No. 6-09-15, 2010 WL 1175201 (Ohio App., 3rd Dist., Mar. 29, 2010)	129
<i>Prescott v. Makowski</i> , 9 Ohio App.3d 155, 458 N.E.2d 1281 (8th Dist. 1983)	497
<i>President & Trs. of Ohio Univ. v. Athens Livestock Sales, Inc.</i> , 115 Ohio App. 21, 179 N.E.2d 382 (4th Dist. 1961)	594
<i>Presidential Park Apts. v. Colston</i> , 17 Ohio Op.3d 220 (Ohio App., 10th Dist., 1980)	123,124,126,518
<i>Preston v. Thornton</i> , No. 29771, 2021 WL 1293724 (Ohio App., 9th Dist., Apr. 7, 2021)	63
<i>Price v. Westinghouse Elec. Corp.</i> , 70 Ohio St.2d 131, 435 N.E.2d 1114 (1982)	6,7
<i>Primes v. Milbry</i> , No. 18236, 1997 WL 760698 (Ohio App., 9th Dist., Nov. 19, 1997)	314,438
<i>Proctor v. Frame</i> , 90 Ohio Misc.2d 11, 695 N.E.2d 357 (Ohio Mun., Akron, 1998)	405,470,480
<i>Proctor v. Proctor</i> , 48 Ohio App.3d 55, 548 N.E.2d 287 (3rd Dist. 1988)	90

<i>Prof'l Invs. of Am. v. McCormick</i> , 14 Ohio Misc.2d 1, 469 N.E.2d 1357 (Ohio C.P., Cuyahoga Cty., 1984)	294
<i>Prof'l Invs. of Am., Inc. v. Ross</i> , No. 44540, 1982 WL 2579 (Ohio App., 8th Dist., Dec. 9, 1982)	143,176,362
<i>Props. Ltd. v. Coffee</i> , No. 93-CVG-8597 (Ohio Mun., Marion Cty., Nov. 16, 1993)	581,592
<i>Props. Ltd. v. Paquette</i> , No. M8908-CVG-29204 (Ohio Mun., Franklin Cty., Sept. 8, 1989)	591
<i>Pros Corporate Mgmt. Servs., Inc. v. Ashley S. Rose, Ltd.</i> , 228 Ill. App.3d 573, 592 N.E.2d 609 (1992)	134,143
<i>Prudential Ins. Co. of Am. v. Bull Market, Inc.</i> , 66 Ohio Misc. 9, 420 N.E.2d 140 (C.P., Montgomery Cty., 1979)	602
<i>Pruitt v. Mauger Mgmt. Co.</i> , No. 77AP-367, 1977 Ohio App. LEXIS 7605 (Ohio App., 10th Dist., Sept. 29, 1977)	507
<i>Pugh v. Holmes</i> , 486 Pa. 272, 405 A.2d 897 (1979)	153,156,406
<i>Pummill v. Carnes</i> , No. 02-CA-2659, 2003 WL 896349 (Ohio App., 4th Dist., Feb. 4, 2003)	616
<i>Pyle v. Pyle</i> , 11 Ohio App.3d 31, 463 N.E.2d 98 (8th Dist. 1983)	451
Q	
<i>Queen v. Blakeman</i> , No. 07-CVG-00808 (Ohio Mun., Gallipolis, Dec. 13, 2007)	15
<i>Quevedo v. Braga</i> , 72 Cal. App.3d Supp. 1, 140 Cal. Rptr. 143 (1977)	420
<i>Quick v. Wolfe</i> , No. 81AP-561, 1981 WL 3422 (Ohio App., 10th Dist., Aug. 20, 1981)	665
<i>Quigg v. Mullins</i> , No. L-89-314, 1991 WL 59886 (Ohio App., 6th Dist., Apr. 19, 1991)	347,348
<i>Quinlan v. Lienesch</i> , No. C-120716, 2013 WL 2456347 (Ohio App., 1st Dist., June 5, 2013)	382
<i>Quinlan v. Mobile Manor Mobile Home Park</i> , No. 40, 1983 WL 191087 (Ohio Mun., Cuyahoga Falls, Jan. 11, 1983)	587
<i>Quinn v. Cardinal Foods, Inc.</i> , 20 Ohio App.3d 194, 485 N.E.2d 741 (3rd Dist. 1984)	132-134
<i>Quinn v. Humphrey</i> , No. 92-L-141, 1993 WL 262582 (Ohio App., 11th Dist., June 30, 1993)	524,532

R

<i>R & H Trucking, Inc. v. Occidental Fire & Cas. Co.</i> , 2 Ohio App.3d 269, 441 N.E.2d 816 (10th Dist. 1981)	418,421
<i>RLJ Mgmt. Co. Inc. v. Lewis</i> , No. 2020-CVG-33669 (Ohio Mun., Franklin Cty., June 2, 2021)	13
<i>R & S Props. v. Weiszner</i> , No. 68637, 1995 WL 628342 (Ohio App., 8th Dist., Oct. 26, 1995)	595
<i>Rababy v. City of Cleveland</i> , No. 93-CVG-11745 (Ohio Mun., Cleveland, Hous. Div., June 16, 1993)	131,132
<i>Radecki v. Joura</i> , 114 F.3d 115 (8th Cir. 1997)	170
<i>Rader v. Swanson</i> , No. 80AP-954, 1981 WL 3191 (Ohio App., 10th Dist., May 14, 1981)	525,526
<i>Ragan v. Sitzler</i> , No. 92-CVG-7027 (Ohio Mun., Akron, Aug. 13, 1992)	144
<i>Rainbow Group Apts. v. Eatmon</i> , No. 2006-CVG-19273 (Ohio Mun., Cleveland, Hous. Div., Nov. 7, 2006)	207
<i>Rains v. Temple</i> , No. 88-CVG-74 (Ohio Mun., Hillsboro, May 22, 1988)	156,406
<i>Rallie Co. v. Pastor</i> , No. M76-CVG-463763 (Ohio Mun., Franklin Cty., Apr. 11, 1977)	394
<i>Ramm v. Shreves</i> , No. 2005-CVG-00283, 2005 WL 5314591 (Ohio Mun., Athens Cty., May 4, 2005)	584
<i>Rampersaud v. Madison Dev. Co.</i> , No. 97-CA-006768, 1998 WL 332956 (Ohio App., 6th Dist., June 24, 1998)	323
<i>Ramsdell v. Ohio Civil Rights Comm'n</i> , 56 Ohio St.3d 24, 563 N.E.2d 285 (1990)	6
<i>Ramsdell v. Ramsdell</i> , No. L-12-1113, 2013 WL 494019 (Ohio App., 6th Dist., Feb. 8, 2013)	347
<i>Ramsey v. Farris</i> , No. 64179, 1993 WL 497059 (Ohio App., 8th Dist., Dec. 2, 1993)	640
<i>Rand v. Washington</i> , No. 7822, 1983 WL 2448 (Ohio App., 2nd Dist., May 26, 1983)	310,475,544
<i>Ransom v. Marrazzo</i> , 848 F.2d 398 (3d Cir. 1988)	609
<i>Rapid Response W. Real Estate P'ship v. Rapid Response W., Inc.</i> , No. 13212, 1988 WL 21287 (Ohio App., 9th Dist., Feb. 17, 1988)	351

<i>Rasberry v. Taylor</i> , No. 26510, 2013 WL 2327020 (Ohio App., 9th Dist., May 29, 2013)	83,193,195
<i>Raskow v. Fortner</i> , No. 18399, 1998 WL 178570 (Ohio App., 9th Dist., Apr. 15, 1998)	49
<i>Rawlings v. Springwoods Apts. of Columbus, Ltd.</i> 125 N.E.3d 312, 2008-Ohio-4845 (Ohio App., 10th Dist., 2018)	443,447
<i>Ray v. Thirty LLC</i> , No. A-08-1020, 2009 WL 1819288 (Neb. App. June 23, 2009)	265
<i>Raymond v. Blanchard Inv. Co.</i> , No. 84AP-1000, 1985 WL 9931 (Ohio App., 10th Dist., Mar. 28, 1985)	512
<i>Real Estate Servs., Inc. v. Leigh</i> , No. 77AP-130, 1977 Ohio App. LEXIS 8899 (Ohio App., 10th Dist., June 2, 1977)	8,48
<i>Real Flo Props. v. Kelly</i> , No. L-99-1099, 1999 WL 1203751 (Ohio App., 6th Dist., Dec. 17, 1999)	635,636
<i>Real Prop. Servs. Corp. v. Bonen</i> , No. 93-CVG-7804 (Ohio Mun., Marion Cty., May 26, 1993)	144,522
<i>Real Props. Servs. Mgmt. v. Anatra</i> , No. 3-96-22, 1997 WL 430778 (Ohio App., 3rd Dist., July 30, 1997)	230,393
<i>Real Props. Servs. Mgmt. v. Harigle</i> , No. 3-96-21, 1997 WL 430773 (Ohio App., 3rd Dist., July 30, 1997)	203,230,393
<i>Real Solutions Realty Grove City, LLC v. D.G.</i> , No. 2018-CVG-29089 (Ohio Mun., Franklin Cty, Feb. 7, 2019)	626
<i>Reck v. Lucas</i> , No. 2006-CVG-00235, 2006 WL 4399761 (Ohio Mun., Auglaize Cty., Aug. 25, 2006)	288,289,581,584
<i>Reck v. Whalen</i> , 114 Ohio App.3d 16, 682 N.E.2d 721 (2nd Dist. 1996)	86,114,161
<i>Reck v. Whalen</i> , No. 95-CA-66 (Ohio App., 2nd Dist., Nov. 17, 1995)	112
<i>Reed v. BDS Holdings</i> , No. 14-92-41, 1993 WL 195072 (Ohio App., 3rd Dist., June 4, 1993)	189,193
<i>Reed v. Jackson</i> , No. C-2-87-1303 (S.D. Ohio Jan. 3, 1989)	612
<i>Reenan v. Klein</i> , 3 Ohio App.3d 142, 444 N.E.2d 63 (1st Dist. 1981)	482
<i>Reese v. Webb</i> , No. L-04-1257, 2005 WL 1009889 (Ohio App., 6th Dist., Apr. 29, 2005)	19,20,25,196
<i>Reese Invs. v. Tucker</i> , No. 89AP-1181, 1990 WL 26119 (Ohio App., 10th Dist., Mar. 13, 1990)	109,112,114

<i>Regency Hosp. of Columbus v. Thomas</i> , No. 2016-CVG-004483 (Ohio Mun., Franklin Cty., Mar. 8, 2016)	3
<i>Reid v. Plainsboro Partners, III</i> , Nos. 09AP-442,446, 2010 WL 3610931 (Ohio App., 10th Dist., Sept. 16, 2010)	160,162,165, 169,173,347, 596,597
<i>Reinhard v. Lorek</i> , No. 95-L-028, 1995 WL 787378 (Ohio App., 11th Dist., Sept. 8, 1995)	21
<i>Reiter v. Fultz</i> , No. 92-CA-1555, 1993 WL 235522 (Ohio App., 4th Dist., June 30, 1993)	422
<i>Reith v. Skruck</i> , 71 Ohio Misc.2d 1, 653 N.E.2d 755 (Ohio Mun., Wadsworth, 1995)	34,291
<i>Rental Mgmt. v. Au</i> , No. 92-C-66, 1993 WL 307614 (Ohio App., 7th Dist., Aug. 10, 1993)	192,397
<i>Renzi v. Hillyer</i> , No. 2012-L-041, 2012 WL 5995055 (Ohio App., 11th Dist., Dec. 3, 2012)	330
<i>Rescue Temple Church of God v. Jones</i> , No. 1509, 1993 WL 175538 (Ohio App., 9th Dist., May 26, 1993)	91
<i>Respiratory & Clinical Supply Corp. v. Freshour</i> , No. 88-CV-F-128 (Ohio Mun., Hillsboro, Dec. 23, 1988)	358,359
<i>Retiree Hous. Mgmt. Inc. v. Lynch</i> , No. 12-CVG-02402 (Ohio Mun., Miamisburg, July 30, 2013)	136,250
<i>Retiree Hous. Mgmt., Inc. v. Myers</i> , No. 09-CVG-00091 (Ohio Mun., Miamisburg, Feb. 17, 2009)	204
<i>Retirement Mgmt. Co. v. Nsong</i> , 94 N.E.3d 1077, 2017-Ohio-5869 (Ohio App., 10th Dist., 2017)	631
<i>Rettig Enters. v. Koehler</i> , 68 Ohio St.3d 274, 626 N.E.2d 99 (1994)	54
<i>Revis v. Meldrum</i> , 489 F.3d 273 (6th Cir. 2007)	483
<i>Rex Hill, Inc. v. Cherry</i> , No. 2588, 1991 WL 95243 (Ohio App., 9th Dist., May 29, 1991)	574,585,586
<i>Ricciardo v. Weber</i> , No. CA-3452, 1989 WL 155719 (Ohio App., 5th Dist., Dec. 22, 1989)	291,292
<i>Rice v. Reid</i> , No. 3-91-34, 1992 WL 81424 (Ohio App., 3rd Dist., Apr. 23, 1992)	429,435
<i>Richardson v. Boes</i> , 179 Ohio App.3d 418, 902 N.E.2d 77 (6th Dist. 2008)	435

<i>Richmond Homes, Inc. v. Brown</i> , 3 Ohio App.3d 204, 444 N.E.2d 463 (10th Dist. 1981)	69
<i>Richmond's Enter., Inc. v. Anderson</i> , No. 26674, 2016 WL 685398 (Ohio App., 2nd Dist., Feb. 19, 2016)	116,138
<i>Rickard v. Solley</i> , 188 Ohio App.3d 205, 935 N.E.2d 64 (7th Dist. 2010)	70
<i>Rid-All Exterminating Corp. v. Cuyahoga Metro. Hous. Auth.</i> , No. 98174, 2012 WL 5370978 (Ohio App., 8th Dist., Nov. 1, 2012)	619
<i>Ridenour v. Dunn</i> , No. 03AP-611, 2004 WL 1445270 (Ohio App., 10th Dist., June 29, 2004)	506,547
<i>Ridenour v. Neufer</i> , 64 Ohio App.3d 453, 581 N.E.2d 1152 (9th Dist. 1989)	498
<i>Riding Club Apts. v. Sargent</i> , 2 Ohio App.3d 146, 440 N.E.2d 1368 (10th Dist. 1981)	510
<i>Riegel v. Huber Inv. Corp.</i> , No. 87AP-368, 1987 WL 18205 (Ohio App., 10th Dist., Oct. 6, 1987)	490,491
<i>Riggle v. McFadden</i> , No. 08-CA-0007, 2008 WL 4766737 (Ohio App., 9th Dist., Nov. 3, 2008)	531
<i>Riley v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-06-602405 (Ohio C.P., Cuyahoga Cty., Mar. 12, 2007)	654
<i>Riley v. FDMA Props.</i> , No. 92-CA-22, 1992 WL 316356 (Ohio App., 5th Dist., Oct. 7, 1992)	326,327,440
<i>Riley v. Parker</i> , No. 109600, 2021 WL 2012263 (Ohio App., 8th Dist., May 20, 2021)	11,13
<i>Ringler v. Sias</i> , 68 Ohio App.2d 230, 428 N.E.2d 869 (10th Dist. 1980)	95
<i>Riolo v. Navin</i> , No. 79809, 2002 WL 502408 (Ohio App., 8th Dist., Apr. 4, 2002)	95,114,115
<i>Rios v. Shauck</i> , No. 97-CA-006753, 1998 WL 289692 (Ohio App., 9th Dist., June 3, 1998)	313
<i>Risch v. Samuel</i> , No. C-190159, 2020 WL 1488724 (Ohio App., 1st Dist., Mar. 25, 2020)	34,471
<i>Rithy Props., Inc. v. Cheeseman</i> , 63 N.E.3d 752, 2016-Ohio-1602 (Ohio App., 10th Dist., 2016)	114,117
<i>Rittenberg v. Donohoe Constr. Co. Inc.</i> , 426 A.2d 338 (D.C. App. 1981)	400
<i>Ritter v. Cecil County Office of Hous. & Cmty. Dev.</i> , 33 F.3d 323 (4th Cir. 1994)	365

<i>Ritter v. Fairway Park Props., L.L.C.</i> , No. 21509, 2004 WL 1104015 (Ohio App., 9th Dist., May 19, 2004)	487
<i>Ritter Co. v. Clark</i> , No. 1999-CVG-30891 (Ohio Mun., Franklin Cty., Feb. 2, 2000)	193
<i>Rivera v. Associated Estates Corp.</i> , No. 53502, 1987 WL 13044 (Ohio App., 8th Dist., June 18, 1987)	324
<i>Robb v. Chagrin Lagoons Yacht Club, Inc.</i> , 75 Ohio St.3d 264, 662 N.E.2d 9 (1996)	482
<i>Roberson v. Insignia Mgmt. Group, L.P.</i> , No. C-940968, 1995 WL 757831 (Ohio App., 1st Dist., Dec. 20, 1995)	319
<i>Roberts v. GMS Mgmt. Co.</i> , No. 75419, 1999 WL 1068370 (Ohio App., 8th Dist., Nov. 24, 1999)	478
<i>Roberts v. Mason</i> , 10 Ohio St. 277 (1859)	543
<i>Robertson v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-07-635765 (Ohio C.P., Cuyahoga Cty., Aug. 31, 2010)	667
<i>Robertson v. Mansfield Metro. Hous. Auth.</i> , No. 87-426-C (Ohio C.P., Richland Cty., Mar. 28, 1989)	669
<i>Robertson v. Rossing</i> , No. CA98-02-035, 1999 WL 59698 (Ohio App., 12th Dist., Feb. 8, 1999)	488
<i>Robinson v. Akron Metro. Hous. Auth.</i> , No. 20405, 2001 WL 866275 (Ohio App., 9th Dist., Aug. 1, 2001)	437
<i>Robinson v. B.O.C. Group, Gen. Motors Corp.</i> , 81 Ohio St.3d 361, 691 N.E.2d 667 (1998)	6,7
<i>Robinson v. Bates</i> , 112 Ohio St.3d 17, 857 N.E.2d 1195 (2006)	322,427,443, 446,447
<i>Robinson v. C & L Assocs., L.L.C.</i> , 188 Ohio App.3d 649, 936 N.E.2d 546 (2nd Dist. 2010)	4443
<i>Robinson v. Dist. of Columbia Hous. Auth.</i> , 606 F. Supp.2d 6 (D.D.C. 2009)	244
<i>Robinson v. Larchmont E. Apts., Inc.</i> , No. L-12-1323, 2014 WL 4049874 (Ohio App., 6th Dist., Aug. 15, 2014)	433,437
<i>Robinson v. Mays</i> , No. L-19-1065, 2020 WL 1528012 (Ohio App., 6th Dist., Mar. 31, 2020)	624
<i>Robinson v. Meyer</i> , No. CA-7735, 1989 WL 94378 (Ohio App., 5th Dist., Aug. 14, 1989)	390

<i>Rocca v. Wilke</i> , 53 Ohio App.2d 8, 371 N.E.2d 223 (1st Dist. 1977)	543
<i>Rockefeller Park Towers, Ltd. v. White</i> , No. 05-CVG-24239 (Ohio Mun., Cleveland, Hous. Div., Jan. 6, 2006)	204
<i>Rockville Ctr. Hous. Auth. v. Boggen</i> , 20 Misc.3d 1126(A), 2008 WL 2927834 (N.Y. Dist. Ct. July 31, 2008)	222
<i>Rodriguez v. Lorain Metro. Hous. Auth.</i> , No. 05-CV-140942 (Ohio C.P., Lorain Cty., Oct. 23, 2006)	662,669
<i>Rodriguez v. Westhab, Inc.</i> , 833 F. Supp. 425 (S.D.N.Y. 1993)	172
<i>Roe v. Hous. Auth. of City of Boulder</i> , 909 F. Supp. 814 (D. Colo. 1995)	170,171
<i>Roe v. Sugar River Mills Assocs.</i> , 820 F. Supp. 636 (D.N.H. 1993)	170,171
<i>Rogers v. Ayjay Dev., Inc.</i> , No. 2-91-1, 1991 WL 240046 (Ohio App., 3rd Dist., Nov. 14, 1991)	325
<i>Rogers v. Jones</i> , No. 2014-CVG-028113 (Ohio Mun., Franklin Cty., Oct. 30, 2014)	124,128,351,353
<i>Romine v. Winters</i> , No. 98-CVG-00907 (Ohio Mun., Licking Cty., Sept. 3, 1998)	146
<i>Romp v. Jean-Pierre</i> , No. L-15-1123, 2016 WL 4035605 (Ohio App., 6th Dist., July 22, 2016)	51
<i>Ronny v. Bowman</i> , No. 2007-CVG-24072 (Ohio Mun., Cleveland, Hous. Div., June 27, 2008, and Mar. 9, 2010)	407,408,410
<i>Roos v. John Shillito Co.</i> , 52 Ohio App. 262, 3 N.E.2d 666 (1st Dist. 1935)	598
<i>Rosace v. Hancock</i> , No. 95-CVG-516 (Ohio Mun., Girard, Dec. 19, 1995)	378
<i>Rose v. Guernsey County Water & Sewer Dep't</i> , No. C2-92-1114 (S.D. Ohio Nov. 18, 1993)	611
<i>Rosier v. Brown</i> , 158 Misc.2d 748, 601 N.Y.S.2d 554 (City Ct. 1993)	264
<i>Rosier v. Newman</i> , No. CVE-0500771 (Ohio Mun., Washington Court House, Mar. 5, 2007)	407,410
<i>Roundtree v. Valentine</i> , No. 98-CVR-23790 (Ohio Mun., Franklin Cty., Jan. 28, 1999)	390,405,413
<i>Rowe v. Sylvester</i> , Nos. 65014,65022, 1994 WL 118371 (Ohio App., 8th Dist., Apr. 7, 1994)	540
<i>Royal Am. Mgmt., Inc. v. Godfrey</i> , 14 Fla. Supp.2d 56 (County Ct. 1985)	130

<i>Royer, Kohr & Griffith v. Hobbs</i> , No. M88-CVG-24901 (Ohio Mun., Franklin Cty., Aug. 24, 1988)	351
<i>Ruben v. S.M. & N. Corp.</i> , 83 Ohio App.3d 80, 613 N.E.2d 1101 (8th Dist. 1993)	595,596
<i>Ruble v. M & L Props., Ltd.</i> , No. 10-COA-006, 2010 WL 5452110 (Ohio App., 5th Dist., Dec. 20, 2010)	165
<i>Ruddock v. Cunningham</i> , 43 Ohio App.3d 146, 539 N.E.2d 1141 (6th Dist. 1987)	176
<i>Rufo v. Inmates of Suffolk County Jail</i> , 502 U.S. 367 (1992)	106
<i>Ruminski v. Matulis</i> , No. 1219, 1985 WL 4235 (Ohio App., 11th Dist., Dec. 6, 1985)	79
<i>Runge v. Rosewater</i> , Nos. 47650,47651, 1984 WL 5072 (Ohio App., 8th Dist., June 14, 1984)	449
<i>Runyan v. Irwin</i> , No. 94-CVF-200 (Ohio Mun., Washington Court House, July 13, 1995)	470
<i>Russell Realty Co. v. Feghali</i> , 121 Ohio App.3d 291, 699 N.E.2d 976 (8th Dist. 1997)	309,310
<i>Ryan v. Kenley</i> , No. 19534, 2003 WL 1949795 (Ohio App., 2nd Dist., Apr. 25, 2003)	75
<i>Ryder v. McGlone's Rentals</i> , No. 3-09-02, 2009 WL 1664777 (Ohio App., 3rd Dist., June 15, 2009)	300
S	
<i>S.C. v. T.H.</i> , 154 N.E.3d 345, 2020-Ohio-2698 (Ohio App., 9th Dist., 2020)	626
<i>S&F Mgmt. v. Horvath</i> , No. 98-CVG-25253 (Ohio Mun., Cleveland, Hous. Div., May 6, 1999)	211
<i>SMJ Growth Corp. v. Norman</i> , No. 96-CVG-02843 (Ohio Mun., Cleveland, Hous. Div., Aug. 29, 1996)	373
<i>Saam v. Mosser</i> , No. S-86-25, 1986 WL 15255 (Ohio App., 6th Dist., Dec. 24, 1986)	532
<i>Sabik v. Drake</i> , No. 53588, 1988 WL 32111 (Ohio App., 8th Dist., Mar. 17, 1988)	396
<i>Sabolik v. HGG Chestnut Lake Ltd. P'ship</i> , 180 Ohio App.3d 576, 906 N.E.2d 488 (8th Dist. 2009)	427,438,439,445

<i>Sacksteder v. Gisslen</i> , 197 Ohio App.3d 484, 968 N.E.2d 11 (2nd Dist. 2011)	477
<i>Saddoris v. Sterling</i> , No. L-89-062, 1989 WL 135301 (Ohio App., 6th Dist., Nov. 9, 1989)	100,101
<i>Sahara Apts. v. Brown-Austin</i> , No. CA-9028, 1993 WL 221253 (Ohio App., 5th Dist., June 7, 1993)	15,16
<i>St. Germain v. Newell</i> , No. 9-15-14, 2015 WL 5319833 (Ohio App., 3rd Dist., Sept. 14, 2015)	317,318
<i>Salem v. Roberts</i> , No. 94-CA-28, 1996 WL 131160 (Ohio App., 4th Dist., Mar. 18, 1996)	494,522
<i>Salyer v. Chapman</i> , No. 1771, 1986 WL 11594 (Ohio App., 4th Dist., Oct. 21, 1986)	54
<i>Samson Sales, Inc. v. Honeywell, Inc.</i> , 12 Ohio St.3d 27, 465 N.E.2d 392 (1984)	356
<i>Sanchez v. Tompkins</i> , No. 2021-CVI-006506 (Ohio Mun., Cleveland, Hous. Div., Sept. 13, 2021)	467,474
<i>Sand v. Prokos</i> , No. 95-CA-1664, 1996 WL 159687 (Ohio App., 4th Dist., Mar. 27, 1996)	491
<i>Sandefur Co. v. Jones</i> , 9 Ohio App.3d 85, 458 N.E.2d 390 (10th Dist. 1982)	23,173,202,214
<i>Sandefur Mgmt. Co. v. Minor</i> , No. 84AP-220, 1985 WL 10250 (Ohio App., 10th Dist., Apr. 18, 1985)	116,118,119
<i>Sandefur Mgmt. Co. v. Smith</i> , 21 Ohio App.3d 145, 486 N.E.2d 1234 (10th Dist. 1985)	79,149-151,155
<i>Sandefur Mgmt. Co. v. Wilson</i> , 21 Ohio App.3d 160, 486 N.E.2d 1267 (10th Dist. 1985)	32,120
<i>Sanders v. Bellevue Manor Apts.</i> , No. 95-CA-006067, 1996 WL 1768 (Ohio App., 9th Dist., Jan. 3, 1996)	313
<i>Sanders v. Crawford</i> , No. 2006-CA-00194, 2007 WL 1413218 (Ohio App., 5th Dist., May 14, 2007)	641
<i>Sanders v. Favors</i> , No. C-950304, 1995 WL 763681 (Ohio App., 1st Dist., Dec. 29, 1995)	3,24
<i>Sanders v. Hairston</i> , 51 Ohio App.3d 63, 554 N.E.2d 951 (8th Dist. 1988)	427
<i>Sanders v. McGee</i> , No. 13-CV-003983 (Ohio C.P., Franklin Cty., Apr. 3, 2014)	320,440,450

<i>Sandusky Metro. Hous. Auth. v. Jackson</i> , No. S-19-046, 2020 WL 6377003 (Ohio App., 6th Dist., Oct. 30, 2020)	252
<i>Sanfilippo v. Vill. Green Mgmt. Co.</i> , No. CA2010-04-027 (Ohio App., 12th Dist., Sept. 7, 2010)	325
<i>Santilla v. Sahara Mobile Home Park & Sales</i> , No. 93-L-028, 1993 WL 407233 (Ohio App., 11th Dist., Sept. 30, 1993)	290,578
<i>Santouse v. Scott</i> , No. HDSP-137470, 2006 WL 1600385 (Conn. Super. May 31, 2006)	261
<i>Saunders v. Greenwood Colony</i> , No. 14-2000-40, 2001 WL 196498 (Ohio App., 3rd Dist., Feb. 28, 2001)	323
<i>Sauter v. One Lytle Place</i> , No. C-040266, 2005 WL 627794 (Ohio App., 1st Dist., Mar. 18, 2005)	446,447
<i>Savage v. Wright</i> , No. L-75-123, 1975 Ohio App. LEXIS 8370 (Ohio App., 6th Dist., Nov. 21, 1975)	58,59
<i>Sawburg Apts. v. Magee</i> , No. 87-CV-GF-707 (Ohio Mun., Alliance, June 26, 1987)	194
<i>Sayles v. SB-92 Ltd. P'ship</i> , 138 Ohio App.3d 476, 741 N.E.2d 613 (8th Dist. 2000)	331,450
<i>Scarborough v. Winn Residential L.L.P.</i> , 890 A.2d 249 (D.C. App. 2006)	247
<i>Scarnati v. Owners of Georgetown of Columbus</i> , 96-APE01-52, 1996 WL 339963 (Ohio App., 10th Dist., June 18, 1996)	334,335
<i>Schaedler v. Shinkle</i> , No. CA99-09-025, 2000 WL 1283776 (Ohio App., 12th Dist., Sept. 11, 2000)	82,495,501,530, 531
<i>Schaefer v. Robertson</i> , No. K86-CVG-1104 (Ohio Mun., Portage Cty., Nov. 10, 1986)	128
<i>Schell v. Kaiser-Frazer Sales Corp.</i> , 28 Ohio App.2d 16, 274 N.E.2d 315 (2nd Dist. 1971)	421
<i>Schlenk v. Cornette</i> , No. 12416, 1991 WL 108703 (Ohio App., 2nd Dist., June 21, 1991)	12
<i>Schloss v. Sachs</i> , 63 Ohio Misc.2d 457, 631 N.E.2d 212 (Ohio Mun., Hamilton Cty., 1993)	596-598
<i>Schmidt v. Hummell</i> , 81 Ohio App. 167, 73 N.E.2d 806 (10th Dist. 1947)	52,53,127
<i>Schoefield v. Beulah Road, Inc.</i> , No. 98AP-1475, 1999 WL 645273 (Ohio App., 10th Dist., Aug. 26, 1999)	444

<i>Schroeder Co. v. Coates</i> , 172 Ohio App.3d 254, 874 N.E.2d 832 (6th Dist. 2007)	140,185
<i>Schroeder Co. v. Oviedo</i> , No. CVG-93-01124 (Ohio Mun., Toledo, Hous. Div., Feb. 11, 1993)	248
<i>Schuab v. Roper</i> , No. 90-CVG-26859 (Ohio Mun., Cleveland, Hous. Div., Nov. 6, 1991)	536,554
<i>Schultz v. Barberton Glass Co.</i> , 4 Ohio St.3d 131, 447 N.E.2d 109 (1983)	450,464
<i>Schultz v. Wurdlow</i> , No. 11AP-62, 2012 WL 2859914 (Ohio App., 10th Dist., July 12, 2012)	506,508,544,595
<i>Schultz v. Wurdlow</i> , No. 2008-CVI-031737 (Ohio Mun., Franklin Cty., Dec. 30, 2010)	506,508
<i>Schultz v. Wurdlow</i> , No. 94-APG07-1033, 1995 WL 41648 (Ohio App., 10th Dist., Jan. 31, 1995)	595
<i>Schulz v. Grimes</i> , No. 91-CA-3, 1992 WL 24883 (Ohio App., 2nd Dist., Feb. 11, 1992)	522
<i>Schutte v. Nicholson</i> , No. C-910261, 1992 WL 19396 (Ohio App., 1st Dist., Feb. 5, 1992)	397,480
<i>Schwab v. Lattimore</i> , 166 Ohio App.3d 12, 848 N.E.2d 912 (1st Dist. 2006)	115,117,118,149
<i>Schwaben v. Vill. of Woodsfield</i> , No. C2-98-1089 (S.D. Ohio June 18, 1999)	611
<i>Schwartz v. McAtee</i> , 22 Ohio St.3d 14, 488 N.E.2d 479 (1986)	284-287,395, 566,588
<i>Schwenkel v. Daley</i> , No. 92-CVG-2825 (Ohio Mun., Lakewood, Jan. 19, 1993)	348,358-360
<i>Sciascia v. Riverpark Apts.</i> , 3 Ohio App.3d 164, 444 N.E.2d 40 (10th Dist. 1981)	331,332
<i>Scioto Woods Apts. v. Ferko</i> , No. 08-CVG-1860 (Ohio Mun., Chillicothe, Oct. 21, 2008)	16
<i>Scott v. Dohse</i> , 194 Ohio App.3d 364, 956 N.E.2d 363 (2nd Dist. 2011)	72
<i>Scott v. Kirby</i> , No. L-05-1287, 2006 WL 1047480 (Ohio App., 6th Dist., Apr. 21, 2006)	433,438,439,444
<i>Scott v. O'Grady</i> , 975 F.2d 366 (7th Cir. 1992)	484,603
<i>Scott v. O'Grady</i> , 760 F. Supp. 1288 (N.D. Ill. 1991)	484,603
<i>Scott v. Reedy</i> , 5 Ohio Dec. Reprint 388 (1876)	543

<i>Scott v. Rice</i> , No. 9-92-48, 1993 WL 46480 (Ohio App., 3rd Dist., Feb. 11, 1993)	495,524,532
<i>Scott v. Schuster</i> , No. 29253, 2019 WL 5607918 (Ohio App., 9th Dist., Oct. 30, 2019)	347
<i>Scott v. Scott</i> , ___ N.E.3d ___, 2022-Ohio-1052 (Ohio App., 7th Dist., 2022)	68
<i>Sears v. Fechuck</i> , No. 1999AP-080048, 2000 WL 874727 (Ohio App., 5th Dist., June 6, 2000)	75,89,562
<i>Sebest v. Campbell City Sch. Dist. Bd. of Educ.</i> , No. 00-CA-272, 2002 WL 1483917 (Ohio App., 7th Dist., June 28, 2002)	653
<i>Sec'y of HUD v. Winchester</i> , No. 82-CV-10191 (Ohio Mun., Hamilton Cty., June 3, 1982)	203
<i>See v. Sabau</i> , No. 62047, 1992 WL 30951 (Ohio App., 8th Dist., Feb. 20, 1992)	65
<i>Seeds, Grain & Hay Co. v. Conger</i> , 83 Ohio St. 169, 93 N.E. 892 (1910)	148
<i>Segal v. Zehman-Wolf Mgmt., Inc.</i> , 139 Ohio App.3d 146, 743 N.E.2d 425 (8th Dist. 2000)	616
<i>Seginak v. ABC Mgmt. Co.</i> , No. 3816, 1987 WL 17258 (Ohio App., 11th Dist., Sept. 18, 1987)	33,370,371,375
<i>Seldin Co. v. Calabro</i> , 702 N.W.2d 504 (Iowa App. 2005)	230-232
<i>Selnick v. Baker</i> , No. 86-CV-21282 (Ohio Mun., Hamilton Cty., Nov. 30, 1987)	140,142
<i>Senz v. Onstott</i> , 71 Ohio Misc.2d 67, 654 N.E.2d 460 (Ohio Mun., Wadsworth, 1994)	495
<i>Sertich v. Jackson</i> , No. CVG-1801089 (Ohio Mun., Cleveland Heights, Dec. 30, 2019)	406
<i>Seventh Urban, Inc. v. Univ. Circle Prop. Dev., Inc.</i> , 67 Ohio St.2d 19, 423 N.E.2d 1070 (1981)	1,50,66,68,563
<i>Seymour v. Ernsthause</i> , No. F-85-7, 1986 WL 1887 (Ohio App., 6th Dist., Feb. 14, 1986)	497
<i>Shaffer v. Mease</i> , 66 Ohio App.3d 400, 584 N.E.2d 77 (4th Dist. 1991)	53
<i>Shannon Way Apts. v. Jackson</i> , No. 92AP-254, 1992 WL 225567 (Ohio App., 10th Dist., Sept. 15, 1992)	396

<i>Sharrock v. Bond</i> , No. 2003-CA-0102, 2004 WL 2035242 (Ohio App., 5th Dist., Sept. 9, 2004)	12
<i>Shaw v. Kadey</i> , No. CA-7048, 1981 WL 2839 (Ohio App., 2nd Dist., June 29, 1981)	559
<i>Shaw v. Mays Mobile Home Court</i> , No. 87-CVE-233 (Ohio Mun., Chillicothe, Dec. 10, 1987)	471,593
<i>Sheaffer v. Terrace Assocs.</i> , No. 12483, 1991 WL 227701 (Ohio App., 2nd Dist., July 18, 1991)	325
<i>Shelter Mgmt. Group, Inc. v. Fawcett</i> , No. 91-CA-000009, 1991 WL 160829 (Ohio App., 5th Dist., Aug. 14, 1991)	123
<i>Shelton v. Huff</i> , No. 2012-T-0101, 2014 WL 1352663 (Ohio App., 11th Dist., Mar. 31, 2014)	150
<i>Shelton v. Smith</i> , No. CA-323, 1984 WL 7469 (Ohio App., 5th Dist., Apr. 30, 1984)	562
<i>Shenk v. Green</i> , No. C-860415, 1987 WL 11204 (Ohio App., 1st Dist., May 13, 1987)	519
<i>Shepard's Mobile Home Park, Ltd. v. Sigmon</i> , No. 14-CA-61, 2014 WL 4923972 (Ohio App., 5th Dist., Sept. 29, 2014)	630,631
<i>Sheridan Manor Apts. v. Carter</i> , No. 92-CA-4, 1992 WL 388539 (Ohio App., 4th Dist., Dec. 22, 1992)	11,123,125,518
<i>Sheridan Mobile Vill., Inc. v. Larsen</i> , 78 Ohio App.3d 203, 604 N.E.2d 217 (4th Dist. 1992)	191
<i>Sherman v. Carlin</i> , 46 Ohio App.3d 149, 546 N.E.2d 433 (8th Dist. 1988)	514
<i>Sherman v. Pearson</i> , 110 Ohio App.3d 70, 673 N.E.2d 643 (1st Dist. 1996)	53,54,55,452
<i>Sherwin v. Cabana Club Apts.</i> , 70 Ohio App.2d 11, 433 N.E.2d 932 (8th Dist. 1980)	49,496,524
<i>Shetina v. Ohio Univ.</i> , 9 Ohio App.3d 240, 459 N.E.2d 587 (10th Dist. 1983)	429
<i>Shewman v. Coons</i> , No. 89-CA-46, 1990 WL 34814 (Ohio App., 2nd Dist., Mar. 29, 1990)	15,33,42
<i>Shields v. Barner-Mead Lumber Co.</i> , 7 Ohio Law Abs. 638 (Ohio App., 8th Dist., 1929)	354
<i>Shiloh Grove Ltd. P'ship v. Odom</i> , No. M9404-CVG-010436 (Ohio Mun., Franklin Cty., June 2, 1994)	254

<i>Shiloh Grove Ltd. P'ship v. Ransom</i> , No. M9408-CVG-025818 (Ohio Mun., Franklin Cty., Oct. 12, 1994)	172,183
<i>Shimko v. Marks</i> , 91 Ohio App.3d 458, 632 N.E.2d 990 (5th Dist. 1993)	10,123,635-637
<i>Shoemaker v. Whitt</i> , 129 Ohio App.3d 591, 718 N.E.2d 932 (2nd Dist. 1998)	310,385,396, 397,491
<i>Sholiton Indus., Inc. v. Royal Arms, Ltd.</i> , No. 17480, 1999 WL 355898 (Ohio App., 2nd Dist., June 4, 1999)	1,11,78,88,108, 123-125,175
<i>Shone v. Griffiths</i> , No. 8252, 1984 WL 4376 (Ohio App., 2nd Dist., Feb. 2, 1984)	
<i>Shoregate Towers Partners L.L.C. v. Antebi</i> , No. 109817, 2021 WL 3416980 (Ohio App., 8th Dist., Aug. 5, 2021)	204,493
<i>Shorter v. Neapolitan</i> , 179 Ohio App.3d 608, 902 N.E.2d 1061 (7th Dist. 2008)	616
<i>Shouhayib v. Yarger</i> , No. E-9700004, 1998 WL 911706 (Ohio Mun., Perrysburg, Jan. 28, 1998)	574,587
<i>Showe Mgmt. v. Malone</i> , No. 07-CVG-02191 (Ohio Mun., Licking Cty., Oct. 23, 2007)	104,105
<i>Showe Mgmt. Corp. v. Bickmeyer</i> , No. 06-CVG-00631 (Ohio Mun., Licking Cty., Apr. 19, 2006)	227
<i>Showe Mgmt. Corp. v. Cunningham</i> , 191 Ohio App.3d 123, 944 N.E.2d 1234 (10th Dist. 2011)	45
<i>Showe Mgmt. Corp. v. Hazelbaker</i> , No. CA2006-01-004, 2006 WL 3479856 (Ohio App., 12th Dist., Dec. 4, 2006)	86,112,114,117, 118
<i>Showe Mgmt. Corp. v. Hazelbaker</i> , No. CA2005-11-031, 2006 WL 1976760 (Ohio App., 12th Dist., July 17, 2006)	179,200,229
<i>Showe Mgmt Corp. v. Moore</i> , No. 2007-CA-00102, 2009 WL 1372988 (Ohio App., 5th Dist., May 14, 2009)	113
<i>Showe Mgmt Corp. v. Moore</i> , No. 08-CA-10, 2009 WL 1372986 (Ohio App., 5th Dist., May 14, 2009)	115,116,144,355
<i>Showe Mgmt. Corp. v. Mountjoy</i> , 154 N.E.3d 141, 2020-Ohio-2772 (Ohio App., 12th Dist., 2020)	56,58,291,320
<i>Showe Mgmt. Corp. v. Sendykar</i> , No. 07-CVG-02733 (Ohio Mun., Licking Cty., Nov. 1, 2007)	128
<i>Showe Mgmt. Corp. v. Stover</i> , No. M9306-CVG-17876 (Ohio Mun., Franklin Cty., Aug. 23, 1993)	172,214

<i>Showe Mgmt. Corp. v. Wright</i> , No. 12-CVG-00724 (Ohio Mun., Clinton Cty., Oct. 26, 2012)	320
<i>Shreve Ltd. v. Seevers</i> , No. 2026, 1987 WL 10766 (Ohio App., 9th Dist., May 22, 1985)	31
<i>Shroades v. Rental Homes, Inc.</i> , 68 Ohio St.2d 20, 427 N.E.2d 774 (1981)	157,291,292, 295,317,399, 427,428,438,463
<i>Shrock v. Spognardi</i> , 46 N.E.3d 1115, 2015-Ohio-4555 (Ohio App., 5th Dist., 2015)	
<i>Shumaker v. Park Lane Manor of Akron</i> , No. 25212, 2011 WL 809492 (Ohio App., 9th Dist., Mar. 9, 2011)	313
<i>Shump v. First Cont'l-Robinwood Assoc., Ltd.</i> , 71 Ohio St.3d 414, 644 N.E.2d 291 (1994)	312,445,446,448
<i>Shurtz Mgmt., Inc. v. Meyers</i> , No. 85-CVG-0703 (Ohio Mun., Licking Cty., Jan. 6, 1986)	205
<i>Shurtz Mgmt., Inc. v. Perry</i> , No. 93-CA-04, 1993 WL 290001 (Ohio App., 5th Dist., July 26, 1993)	14,187
<i>Siara Mgmt. v. Nedley</i> , No. 61433, 1992 WL 292248 (Ohio App., 8th Dist., Oct. 15, 1992)	356,523
<i>Siegler v. Batdorff</i> , 63 Ohio App.2d 76, 408 N.E.2d 1383 (8th Dist. 1979)	8-10,21,34,78, 82,164
<i>Sikora v. Wenzel</i> , 88 Ohio St.3d 493, 727 N.E.2d 1277 (2000)	399,427-429,437
<i>Silberg v. Lipscomb</i> , 117 N.J. 491, 285 A.2d 86 (1971)	168
<i>Simco Mgmt. Corp. v. Snyder</i> , No. 98-CA-210, 2000 WL 309396 (Ohio App., 7th Dist., Mar. 20, 2000)	11,141,144,351, 352,580
<i>Simes v. Beaver Valley Resorts, Inc.</i> , No. 2925, 1992 WL 274656 (Ohio App., 2nd Dist., Oct. 6, 1992)	631
<i>Simon v. Durham</i> , 98 Ohio App.3d 828, 649 N.E.2d 1240 (8th Dist. 1994)	502
<i>Simon v. Solomon</i> , 385 Mass. 91, 431 N.E.2d 556 (1982)	462
<i>Simone v. Hill'n Dale Homes</i> , No. 89-B-9, 1989 WL 158232 (Ohio App., 7th Dist., Dec. 29, 1989)	491,502
<i>Simoudis v. Diehl</i> , 116 Ohio App.3d 296, 688 N.E.2d 16 (11th Dist. 1996)	141,512
<i>Simpson v. Delta Prop. Mgmt., Inc.</i> , Nos. C-850562,850575, 1986 WL 7136 (Ohio App., 1st Dist., June 25, 1986)	319,442

<i>Sinclair Ref. Co. v. Chaney</i> , 114 Ohio App. 538, 184 N.E.2d 214 (3rd Dist. 1961)	
<i>Sivit v. Village Green of Beachwood, L.P.</i> , 143 Ohio St.3d 168, 35 N.E.3d 508 (2015)	441,470
<i>Skerl v. Sheet Metal Prods. Co.</i> , No. 43743, 1982 WL 2453 (Ohio App., 8th Dist., July 1, 1982)	564
<i>Skiles v. Dearth</i> , No. 2000-CA-30, 2000 WL 1838747 (Ohio App., 2nd Dist., Dec. 15, 2000)	7
<i>Skillman v. Browne</i> , 68 Ohio App.3d 615, 589 N.E.2d 407 (6th Dist. 1990)	107
<i>Skipper v. Akron Metro. Hous. Auth.</i> , No. CV-2007-07-5114 (Ohio C.P., Summit Cty., Dec. 27, 2007)	670
<i>Skyline Terrace Apts. v. Brunner</i> , No. 97-CVG-6830 (Ohio Mun., Canton, Mar. 3, 1998)	228
<i>Skyline Terrace Apts. v. Pease</i> , No. 95-CVG-2392 (Ohio Mun., Canton, July 17, 1995)	231
<i>Skyline Terrace Apts. v. White</i> , No. 2015-CVG-5930 (Ohio Mun., Stark Cty., Jan. 13, 2016)	204
<i>Skyline Terrace Apts. v. Woodson</i> , No. 1996-CA-00107, 1996 WL 753199 (Ohio App., 5th Dist., Dec. 9, 1996)	253
<i>Sladoje v. Slettebak</i> , 44 Ohio App.3d 206, 542 N.E.2d 701 (10th Dist. 1988)	543
<i>Slansky v. Slansky</i> , 33 Ohio App.2d 127, 293 N.E.2d 302 (8th Dist. 1973)	76
<i>Sliwinski v. Capital Props. Mgmt. Ltd.</i> , No. CV2006-02-0884, 2007 WL 5843246 (Ohio C.P., Summit Cty., Dec. 11, 2007)	612-614
<i>Sliwinski v. Hunt Club</i> , No. CV2006-02-0884 (Ohio C.P., Summit Cty., Nov. 13, 2012)	613
<i>Sloan v. Greathouse</i> , No. 11-CVG-04935 (Ohio Mun., Cleveland, Hous. Div., Jan. 17, 2012)	524
<i>Slothower v. Lally</i> , 74 N.E.2d 654 (Ohio Mun., Dayton, 1947)	146,349
<i>Slovak v. Univ. Off-Campus Hous.</i> , No. 99-CA-50, 2000 WL 680479 (Ohio App., 4th Dist., May 19, 2000)	390
<i>Small v. Williams</i> , No. 44418, 1982 WL 5247 (Ohio App., 8th Dist., Mar. 25, 1982)	38,486,493,494

<i>Smalley v. Pauly</i> , No. L-04-1106, 2004 WL 3200933 (Ohio App., 6th Dist., Dec. 17, 2004)	440
<i>Smith v. Akarui Enters., LLC</i> , No. 2010-CVH-18860 (Ohio Mun., Cleveland, Hous. Div., June 30, 2011)	467-470
<i>Smith v. Akron Metro. Hous. Auth.</i> , No. CV94-09-3277 (Ohio C.P., Summit Cty., Sept. 30, 1994)	658
<i>Smith v. Akron Metro. Hous. Auth.</i> , No. CV93-11-3893 (Ohio C.P., Summit Cty., Dec. 1, 1993)	658
<i>Smith v. Applegate Prop. Mgmt.</i> , No. 2012-CVF-2488 (Ohio Mun., Massillon, July 31, 2013)	510
<i>Smith v. Blackburn</i> , 31 Ohio App.3d 251, 511 N.E.2d 132 (4th Dist. 1987)	640
<i>Smith v. Cade</i> , No. 21-CVG-2160 (Ohio Mun., Akron, May 12, 2021)	624
<i>Smith v. CBert Props., LLC</i> , No. 28058, 2019 WL 102081 (Ohio App., 2nd Dist., Jan. 4, 2019)	344
<i>Smith v. Donaldson</i> , No. CVG-0800217 (Ohio Mun., Hocking Cty., Apr. 4, 2008)	35
<i>Smith v. Finn</i> , No. L-04-1244, 2005 WL 736669 (Ohio App., 6th Dist., Mar. 31, 2005)	313,428,446
<i>Smith v. Gallagher</i> , No. M9109-CVG-034190 (Ohio Mun., Franklin Cty., Dec. 4, 1991)	600
<i>Smith v. Hamilton County, Ohio</i> , No. C-060315, 2007 WL 1095680 (Ohio App., 1st Dist., Apr. 13, 2007)	235,666
<i>Smith v. Heslop, Inc.</i> , No. 27465, 2015 WL 5043864 (Ohio App., 9th Dist., Aug. 26, 2015)	428
<i>Smith v. Jewett</i> , No. 04-CA-96, 2005 WL 1840025 (Ohio App., 5th Dist., Aug. 2, 2005)	631
<i>Smith v. Johnson</i> , No. 85-CVG-6928 (Ohio Mun., Dayton, Sept. 23, 1985)	136
<i>Smith v. Lewis</i> , Nos. B93544-47 (Ohio Mun., Cleveland, Sept. 30, 1974)	157
<i>Smith v. Mallory</i> , No. 52982, 1987 WL 20215 (Ohio App., 8th Dist., Nov. 19, 1987)	36
<i>Smith v. McCain</i> , 66 Ohio Law Abs. 561, 118 N.E.2d 238 (Ohio App., 2nd Dist., 1952)	368
<i>Smith v. Ohio Edison, Inc.</i> , No. 98-CA-37, 1999 WL 6444 (Ohio App., 2nd Dist., Jan. 8, 1999)	380,436

<i>Smith v. Padgett</i> , 32 Ohio St.3d 344, 513 N.E.2d 737 (1987)	158,398,404, 422,501-504, 550,555
<i>Smith v. Seitz</i> , No. 97-CA-515, 1998 WL 393880 (Ohio App., 4th Dist., July 9, 1998)	423
<i>Smith v. Vilk</i> , No. 46759, 1983 WL 2902 (Ohio App., 8th Dist., Dec. 15, 1983)	391,392,587
<i>Smith v. W. Terrace</i> , No. 50938, 1986 WL 11033 (Ohio App., 8th Dist., Sept. 18, 1986)	380
<i>Smith v. Whitaker</i> , No. 10448, 1987 WL 17615 (Ohio App., 2nd Dist., Sept. 23, 1987)	326
<i>Smith v. Williams</i> , No. 2012-CA-00117, 2013 WL 1282002 (Ohio App., 5th Dist., Mar. 28, 2013)	640
<i>Smith v. Wright</i> , 65 Ohio App.2d 101, 416 N.E.2d 655 (8th Dist. 1979)	50,53,56,77-79, 150
<i>Smitson v. Zeches</i> , No. 92AP-1773, 1993 WL 317243 (Ohio App., 10th Dist., Aug. 17, 1993)	497
<i>Snapp v. Rossiter</i> , No. 14-CVF-00579 (Ohio Mun., Cambridge, Aug. 27, 2015)	536,538
<i>Snyder v. Waldron</i> , No. 12-CA-9, 2013 WL 3988775 (Ohio App., 4th Dist., July 26, 2013)	511,516,518, 529,535,537
<i>Snyder v. Wylie</i> , No. L-17-1019, 2017 WL 4334189 (Ohio App., 6th Dist., Sept. 29, 2017)	16
<i>Sokol v. Sine</i> , No. 98-T-0155, 1999 WL 959872 (Ohio App., 11th Dist., Sept. 30, 1999)	499
<i>Soldal v. Cook County, Ill.</i> , 506 U.S. 56 (1992)	483
<i>Soliel Tans, L.L.C. v. Timber Bentley Coe, L.L.C.</i> , No. 108125, 2019 WL 6358476 (Ohio App., 8th Dist., Nov. 27, 2019)	53,54
<i>Soliman v. Cepeda</i> , 269 N.J. Super. 151, 634 A.2d 1057 (1993)	262
<i>Solomon v. Mote</i> , 38 Ohio Law Abs. 169, 49 N.E.2d 703 (Ohio App., 2nd Dist., 1942)	425
<i>Somerset Homes v. Woodard</i> , 2014 WL 2574037 (N.J. Super.A.D. 2014)	234,235
<i>Sommer v. Mount Carmel Health</i> , No. 94APE07-1087, 1995 WL 141354 (Ohio App., 10th Dist., Mar. 28, 1995)	49

<i>Sorin v. Bd. of Educ., Etc.</i> , 46 Ohio St.2d 177, 347 N.E.2d 527 (1976)	542-544
<i>Sotir v. United States</i> , 978 F.2d 29 (1st Cir. 1992)	354
<i>S. Heights Apts. v. Davis</i> , No. 3737, 1985 WL 10685 (Ohio App., 9th Dist., Apr. 17, 1985)	134
<i>S. Hotel Co. v. Miscott</i> , 44 Ohio App.2d 217, 337 N.E.2d 660 (10th Dist. 1975)	178
<i>Southgate Woods Apts. v. Lanier</i> , No. L-83-189, 1983 WL 7006 (Ohio App., 6th Dist., Nov. 25, 1983)	139,180,183
<i>Spaulding v. Sign of the Cross</i> , No. 01-CV-19578 (Ohio Mun., Hamilton Cty., Sept. 4, 2001)	561
<i>Spears v. Akron Police Dep't</i> , No. 24847, 2010 WL 625822 (Ohio App., 9th Dist., Feb. 24, 2010)	619
<i>Spence v. Gormley</i> , 387 Mass. 258, 439 N.E.2d 741 (1982)	240,249
<i>Spencer v. Blackmon</i> , 22 Ohio Misc.2d 52, 490 N.E.2d 943 (Ohio Mun., Hamilton Cty., 1985)	343-345
<i>Spero v. Killeen</i> , No. 7-89-CVG-302 (Ohio Mun., New Philadelphia, Aug. 31, 1989)	18
<i>Spreading Oaks Vill. v. Scruggs</i> , No. 93-CVG-4-22 (Ohio Mun., Athens Cty., May 21, 1993)	147
<i>Spring Hill Town Homes v. Pounds</i> , 972 N.E.2d 1121, 2012-Ohio-2800 (Ohio App., 2nd Dist., 2012)	320
<i>Spring Hill Townhomes v. Pounds</i> , No. 25887, 2014 WL 1887690 (Ohio App., 2nd Dist., May 9, 2014)	501-503,550
<i>Springboro Commons Ret. Villa, Inc. v. Feltner</i> , 168 N.E.3d 573, 2021-Ohio-544 (Ohio App., 12th Dist., 2021)	131
<i>Spurgeon v. Sanders</i> , No. 1362, 1988 WL 35794 (Ohio App., 4th Dist., Mar. 28, 1988)	487
<i>Sroufe v. Guttman</i> , 65 Ohio App. 556, 32 N.E.2d 444 (1st Dist. 1940)	424
<i>Stacy v. Carr</i> , No. CA-519, 1992 WL 37783 (Ohio App., 4th Dist., Feb. 20, 1992)	57,115,118,123, 351,352
<i>Stacy v. Zupp</i> , No. CA-9566, 1994 WL 369899 (Ohio App., 5th Dist., June 20, 1994)	296,373,490
<i>Staffilino Chevrolet, Inc. v. Balk</i> , 158 Ohio App.3d 1, 813 N.E.2d 940 (7th Dist. 2004)	545,558

<i>Stancil v. K.S.B. Inv. & Mgmt. Co.</i> , 62 Ohio App.3d 765, 577 N.E.2d 452 (8th Dist. 1991)	437
<i>Standard Fed. v. Asencio</i> , No. 98-CA-007011, 1999 WL 61425 (Ohio App., 9th Dist., Feb. 9, 1999)	635
<i>Stanley v. City of Waverly</i> , No. C-2-98-122 (S.D. Ohio June 4, 1998)	611
<i>Stark v. Weimer</i> , No. H-98-031, 1999 WL 253451 (Ohio App., 6th Dist., Apr. 30, 1999)	465,475,476,548
<i>Stark Metro. Hous. v. Short</i> , No. 96-CVG-1298 (Ohio Mun., Canton, July 9, 1996)	227
<i>Stark Metro. Hous. Auth. v. Allen</i> , No. 2016-CVG-2468 (Ohio Mun., Canton, June 21, 2016)	183
<i>Stark Metro. Hous. Auth. v. Curtis</i> , No. CA-9462, 1994 WL 45875 (Ohio App., 5th Dist., Feb. 14, 1994)	254
<i>Stark Metro. Hous. Auth. v. Dorsey</i> , No. 2001-CA-00057, 2001 WL 1699 (Ohio App., 5th Dist., Aug. 20, 2001)	254
<i>Stark Metro. Hous. Auth. v. Gwin</i> , No. 91-CVG-5767 (Ohio Mun., Canton, Nov. 15, 1991)	138
<i>Stark Metro. Hous. Auth. v. Harris</i> , No. CA-8687, 1992 WL 90131 (Ohio App., 5th Dist., Apr. 20, 1992)	87
<i>Stark Metro. Hous. Auth. v. Hawkins</i> , No. 2002-CVG0039 (Ohio Mun., Alliance, Mar. 18, 2002)	134
<i>Stark Metro. Hous. Auth. v. Kirksey</i> , No. CA-9116, 1993 WL 135735 (Ohio App., 5th Dist., Apr. 19, 1993)	88,338
<i>Stark Metro. Hous. Auth. v. Marshall</i> , No. 95-CVG-0676 (Ohio Mun., Canton, May 15, 1995)	237,254
<i>Stark Metro. Hous. Auth. v. McQueen</i> , No. CA-8422, 1991 WL 136099 (Ohio App., 5th Dist., July 15, 1991)	228
<i>Stark Metro. Hous. Auth. v. Minocchi</i> , No. 2021-CVG-3485 (Ohio Mun., Stark Cty., Aug. 26, 2021)	249
<i>Stark Metro. Hous. Auth. v. Moore</i> , No. 89-CVG-9248 (Ohio Mun., Canton, Feb. 9, 1990)	138
<i>Stark Metro. Hous. Auth. v. Ruffin</i> , No. CA-8751, 1992 WL 147443 (Ohio App., 5th Dist., June 15, 1992)	227
<i>Stark Metro. Hous. Auth. v. Sanders</i> , No. 2015-CVG-2490 (Ohio Mun., Massillon, Jan. 22, 2016)	250

<i>Stark Metro. Hous. Auth. v. Wheaton</i> , No. 1998-CA-00128, 1999 WL 34696 (Ohio App., 5th Dist., Jan. 25, 1999)	242,253
<i>Starr v. Kaderly</i> , No. 96-APG03-293, 1996 WL 465256 (Ohio App., 10th Dist., Aug. 15, 1996)	27
<i>State v. Blackford</i> , No. 2012-CA-00146, 2013 WL 1737858 (Ohio App., 5th Dist., Apr. 22, 2013)	367
<i>State v. Clelland</i> , 83 Ohio App.3d 474, 615 N.E.2d 276 (4th Dist. 1992)	366
<i>State v. DeCoster</i> , 653 A.2d 891 (Me. 1995)	363
<i>State v. Fisher</i> , No. 203-2033 (Ohio C.P., Noble Cty., May 24, 2004)	456
<i>State v. Hayes</i> , 188 S.W.2d 505 (Tenn. 2006)	368
<i>State v. Hites</i> , No. 1-2000-22, 2000 WL 1114809 (Ohio App., 3rd Dist., Aug. 8, 2000)	363,367
<i>State v. Lilly</i> , 87 Ohio St.3d 97, 717 N.E.2d 322 (1999)	369
<i>State v. O'Neal</i> , No. C-980247, 1999 WL 162158 (Ohio App., 1st Dist., Mar. 26, 1999)	368
<i>State v. Scott</i> , No. 19902, 2004 WL 103175 (Ohio App., 2nd Dist., Jan. 23, 2004)	367
<i>State v. Smith</i> , No. 09-CA-29, 2010 WL 3722257 (Ohio App., 4th Dist., Sept. 20, 2010)	664
<i>State v. Swonger</i> , No. 09AP-1166, 2010 WL 4011201 (Ohio App., 10th Dist., Oct. 14, 2010)	664
<i>State v. Wood</i> , No. 03-CA-2901, 2004 WL 1631468 (Ohio App., 4th Dist., July 15, 2004)	366
<i>State ex rel. Ballard v. O'Donnell</i> , 50 Ohio St.3d 182, 553 N.E.2d 650 (1990)	105,121,122
<i>State ex rel. Balson v. Harnishfeger</i> , 55 Ohio St.2d 38, 377 N.E.2d 750 (1978)	72
<i>State ex rel. Barno v. Crestwood Bd. of Educ.</i> , 134 Ohio App.3d 494, 731 N.E.2d 701 (11th Dist. 1998)	653
<i>State ex rel. Brady v. Pianka</i> , 106 Ohio St.3d 147, 832 N.E.2d 1202 (2005)	71,73
<i>State ex rel. Brady v. Youngstown Mun. Court</i> , No. 88-CA-162, 1990 WL 18139 (Ohio App., 7th Dist., Feb. 26, 1990)	80
<i>State ex rel. Buck v. McCabe</i> , 140 Ohio St. 535, 45 N.E.2d 763 (1942)	65

<i>State ex rel. Carpenter v. Warren Mun. Court</i> , 61 Ohio St.2d 208, 400 N.E.2d 391 (1980)	73,74
<i>State ex rel. Carter v. Schotten</i> , 70 Ohio St.3d 89, 637 N.E.2d 309 (1994)	565
<i>State ex rel. Charron-Kofta v. Corrigan</i> , No. 69434, 1995 WL 603157 (Ohio App., 8th Dist., Oct. 12, 1995)	72
<i>State ex rel. Cook v. Court of Common Pleas of Marion County</i> , 28 Ohio App.3d 82, 502 N.E.2d 245 (3rd Dist. 1986)	72
<i>State ex rel. Cully v. Flanagan</i> , 50 Ohio St.3d 180, 553 N.E.2d 655 (1990)	95
<i>State ex rel. Dooley v. Riley</i> , No. 14447, 1994 WL 53838 (Ohio App., 2nd Dist., Feb. 24, 1994)	61,66
<i>State ex rel. Dunbar v. Ham</i> , 45 Ohio St.2d 112, 341 N.E.2d 594 (1976)	49
<i>State ex rel. Dunlap v. Sarko</i> , 135 Ohio St.3d 171, 985 N.E.2d 450 (2013)	71
<i>State ex rel. Fowler v. Smith</i> , 68 Ohio St.3d 357, 626 N.E.2d 950 (1993)	6
<i>State ex rel. Fraternal Order of Police v. City of Dayton</i> , 49 Ohio St.2d 219, 361 N.E.2d 428 (1977)	543
<i>State ex rel. Fuller v. Mengel</i> , 100 Ohio St.3d 352, 800 N.E.2d 2003 (2003)	83
<i>State ex rel. GMS Mgmt. Co., Inc. v. Callahan</i> , 45 Ohio St.3d 51, 543 N.E.2d 483 (1989)	1,7,88
<i>State ex rel. GMS Mgmt. Co., Inc. v. Callahan</i> , 65 Ohio App.3d 335, 583 N.E.2d 1339 (11th Dist. 1989)	62,66
<i>State ex rel. GMS Mgmt. Co., Inc. v. Lazzaro</i> , No. 97875, 2012 WL 3765055 (Ohio App., 8th Dist., Aug. 24, 2012)	18
<i>State ex rel. GMS Mgmt Co., Inc. v. Wellington</i> , No. 03-MA-232, 2004 WL 47164 (Ohio App., 7th Dist., Jan. 7, 2004)	95
<i>State ex rel. Grosser v. Boy</i> , 46 Ohio St.2d 184, 347 N.E.2d 539 (1976)	542
<i>State ex rel. Gudzinis v. Constantino</i> , 43 Ohio App.3d 52, 539 N.E.2d 173 (11th Dist. 1988)	386,391
<i>State ex rel. Invesco Mgmt. Co. LLC v. Geauga County Court of Common Pleas</i> , No. 2012-G-3085, 2012 WL 4788965 (Ohio App., 11th Dist., Oct. 9, 2012)	643
<i>State ex rel. J.K. & E. Auto Wrecking v. Trumbo</i> , 64 Ohio St.3d 73, 591 N.E.2d 1238 (1992)	563
<i>State ex rel. Judson v. Spahr</i> , 33 Ohio St.3d 111, 515 N.E.2d 911 (1987)	71

<i>State ex rel. Marsol Apt. Co. v. Vannuci</i> , 68 Ohio App.2d 181, 428 N.E.2d 468 (8th Dist. 1980)	94,95
<i>State ex rel. Mastracci v. Rose</i> , 79 Ohio App. 556, 72 N.E.2d 582 (10th Dist. 1947)	562
<i>State ex rel. Millington v. Weir</i> , 60 Ohio App.2d 348, 397 N.E.2d 770 (10th Dist. 1978)	6
<i>State ex rel. Morrison v. Beck Energy Corp.</i> , 143 Ohio St.3d 271, 37 N.E.3d 128 (2015)	293
<i>State ex rel. Nat'l Employee Benefit Servs., Inc. v. Court of Common Pleas of Cuyahoga County</i> , 49 Ohio St.3d 49, 550 N.E.2d 941 (1990)	70
<i>State ex rel. Ocasek v. Riley</i> , 54 Ohio St.2d 488, 377 N.E.2d 792 (1978)	109
<i>State ex rel. Penn v. Swain</i> , 21 Ohio App.3d 119, 486 N.E.2d 1187 (11th Dist. 1984)	69
<i>State ex rel. Phillips v. Polcar</i> , 50 Ohio St.2d 279, 364 N.E.2d 33 (1977)	71
<i>State ex rel. Richard v. Cuyahoga County Bd. of Comm'rs</i> , 100 Ohio App.3d 592, 654 N.E.2d 443 (8th Dist. 1995)	106
<i>State ex rel. Sellers v. Gerken</i> , 72 Ohio St.3d 115, 647 N.E.2d 807 (1995)	71
<i>State ex rel. Shoop v. Mitrovich</i> , 4 Ohio St.3d 220, 448 N.E.2d 800 (1983)	562
<i>State ex rel. Taynor v. Hysell</i> , 19 Ohio App.3d 120, 483 N.E.2d 156 (10th Dist. 1984)	386
<i>State ex rel. Vill. of Chagrin Falls v. Geauga County Bd. of Comm'rs</i> , 96 Ohio St.3d 400, 775 N.E.2d 512 (2002)	659
<i>State ex rel. Weiss v. Hoover</i> , 84 Ohio St.3d 530, 705 N.E.2d 1227 (1999)	1,74
<i>State ex rel. Wilson-Simmons v. Lake County Sheriff's Dep't</i> , 82 Ohio St.3d 37, 693 N.E.2d 789 (1998)	105
<i>State ex rel. Yeagley v. Harris</i> , 68 Ohio St.3d 136, 624 N.E.2d 702 (1993)	6
<i>State Fid. Fed. Sav. & Loan Ass'n v. Wehrby</i> , 25 Ohio Misc. 221, 263 N.E.2d 801 (C.P., Montgomery Cty., 1970)	637,638
<i>State Nat'l Bank of El Paso v. United States</i> , 509 F.2d 832 (5th Cir. 1975)	346
<i>Stauffer v. TGM Camelot, Inc.</i> , No. CA2005-12-508, 2006 WL 1974612 (Ohio App., 12th Dist., July 17, 2006)	309,486,487
<i>Stechler v. Homyk</i> , 127 Ohio App.3d 396, 713 N.E.2d 44 (8th Dist. 1998)	452
<i>Steele v. McNatt</i> , 102 Ohio App.3d 558, 657 N.E.2d 575 (8th Dist. 1995)	442

<i>Steiger v. Mack</i> , No. 1-81-25, 1981 WL 6743 (Ohio App., 3rd Dist., Dec. 17, 1981)	76,296
<i>Stein v. Fairview Cmty. Park, Co.</i> , No. 33061, 1981 WL 167766 (Ohio C.P., Cuyahoga Cty., Sept. 23, 1981)	593
<i>Steiner v. Minkowski</i> , 72 Ohio App.3d 754, 596 N.E.2d 492 (6th Dist. 1991)	37,104,132,348, 514-517
<i>Steiner v. Nadal</i> , No. 91-CVG-8356 (Ohio Mun., Canton, Apr. 2, 1992)	188,194
<i>Stepping Stones Assoc. v. Seymour</i> , 48 A.D.3d 581, 853 N.Y.S.2d 562 (2008)	136
<i>Sterling v. Stevens</i> , No. 02-JE-47, 2003 WL 22232008 (Ohio App., 7th Dist., Sept. 25, 2003)	427,572,576
<i>Sterling v. Vill. of Maywood</i> , 579 F.2d 1350 (7th Cir. 1978)	608,609
<i>Sterling Health Care Group, Inc. v. Laughlin</i> , No. 92-WD-051, 1993 WL 179509 (Ohio App., 6th Dist., May 28, 1993)	21,123
<i>Stern Enters. v. Plaza Theaters I & II, Inc.</i> , 105 Ohio App.3d 601, 664 N.E.2d 981 (11th Dist. 1995)	421
<i>Sternberg v. Washington</i> , 113 Ohio App. 216, 177 N.E.2d 525 (9th Dist. 1960)	10,12,120
<i>Sterns v. Lane</i> , No. 2:08-cv-175, 2010 U.S. Dist. LEXIS 96981 (D. Vt. Sept. 15, 2010)	266
<i>Stevens v. Aaron Rental Props., Inc.</i> , No. 2009-CA-131, 2010 WL 3639339 (Ohio App., 5th Dist., Sept. 15, 2010)	438,439
<i>Stevens v. Hous. Auth. of S. Bend</i> , 663 F.3d 300 (7th Cir. 2011)	244
<i>Stevens v. Hous. Auth. of S. Bend</i> , 720 F. Supp.2d 1013 (N.D. Ind. 2010)	244
<i>Stevenson v. Willis</i> , 579 F. Supp. 2d 913 (N.D. Ohio 2008)	663
<i>Stewart v. Hickory Hills Apts.</i> , 52 N.E.3d 259, 2015-Ohio-5046 (Ohio App., 9th Dist., 2015)	92
<i>Stewart v. Hughes</i> , No. 88-CVG-265 (Ohio Mun., Jackson Cty., July 20, 1988)	8
<i>Stewart v. Kalman</i> , No. 1109, 1982 WL 3509 (Ohio App., 4th Dist., Aug. 13, 1982)	328,389,394,402
<i>Stewart v. Kalman</i> , Nos. 43-57 (Ohio Mun., Athens Cty., Aug. 12, 1981)	389,394
<i>Stewart v. McWilliams</i> , No. 34694, 1975 WL 183103 (Ohio App., 8th Dist., Nov. 20, 1975)	41

<i>Stiffler v. Canterbury Runn Apts.</i> , No. 19308, 2002 WL 31243541 (Ohio App., 2nd Dist., Oct. 4, 2002)	385,396,400, 418,419,480
<i>Stiffler v. F.I.O.P. Assocs., LLC</i> , No. 28501, 2020 WL 1082366 (Ohio App., 2nd Dist., Mar. 6, 2020)	640
<i>Stillberger v. Springman</i> , No. 90-CVG-1644, 1990 WL 692200 (Ohio Mun., Findlay, Oct. 23, 1990)	286
<i>Stites Enters., Inc. v. Dixon</i> , No. 04-CVG-1659 (Ohio Mun., Chillicothe, Jan. 4, 2005)	590
<i>Stoltz v. Brattleboro Hous. Auth.</i> , 315 F.3d 80 (2d Cir. 2002)	270-274
<i>Stolzenburg v. Frush</i> , No. 92-CVC10-8217 (Ohio C.P., Franklin Cty., Dec. 8, 1994)	467,470,474
<i>Stone v. Cazeau</i> , No. 07-CA-009164, 2007 WL 4146777 (Ohio App., 9th Dist., Nov. 26, 2007)	297,348
<i>Stool v. J.C. Penney Co.</i> , 404 F.2d 562 (5th Cir. 1968)	400
<i>Stoots v. Huber Mobile Home Park</i> , No. 1180, 1981 WL 2863 (Ohio App., 2nd Dist., July 27, 1981)	387,388,587
<i>Story v. Jamison</i> , No. 92-CVG-22935 (Ohio Mun., Cleveland, Hous. Div., Mar. 11, 1993)	158
<i>Stout v. Duvall</i> , No. 95-CA-0077, 1996 WL 409217 (Ohio App., 2nd Dist., June 28, 1996)	187
<i>Stoyer v. Fogelman</i> , No. 11AP-737, 2012 WL 1059677 (Ohio App., 10th Dist., Mar. 27, 2012)	387,388,402
<i>Strader v. Johnson</i> , No. 98AP-202, 1998 WL 894602 (Ohio App., 10th Dist., Dec. 22, 1998)	169
<i>Stratton v. Robey</i> , 70 Ohio App.2d 4, 433 N.E.2d 938 (10th Dist. 1980)	72
<i>Straughter v. Stark Metro. Hous. Auth.</i> , No. CA-8696, 1992 WL 127098 (Ohio App., 5th Dist., June 1, 1992)	429,435
<i>Strayer v. Lindeman</i> , 68 Ohio St.2d 32, 427 N.E.2d 781 (1981)	159,314,442
<i>Strazinsky v. Tri-County Props., Inc.</i> , No. 71015, 1997 WL 253169 (Ohio App., 8th Dist., May 15, 1997)	325
<i>Streetsboro Green Apts. v. Rundo</i> , No. 90-P-2145, 1990 WL 174140 (Ohio App., 11th Dist., Nov. 9, 1990)	236
<i>Strip Delaware, LLC v. Landry's Rest., Inc.</i> , No. 2010-CA-00316, 2011 WL 3587455 (Ohio App., 5th Dist., Aug. 15, 2011)	520

<i>Strip Delaware, L.L.C. v. Landry's Rest., Inc.</i> , 191 Ohio App.3d 822, 947 N.E.2d 1233 (5th Dist. 2010)	346
<i>Stuckey v. Vistula Mgmt. Co.</i> , No. L-00-1257, 2001 WL 477133 (Ohio App., 6th Dist., May 4, 2001)	461
<i>Studer v. Roark</i> , No. 94-CA-38, 1995 WL 347963 (Ohio App., 5th Dist., Mar. 21, 1995)	79,96,149
<i>Sturdivant v. Toledo Bd. of Educ.</i> , 157 Ohio App.3d 401, 811 N.E.2d 581 (6th Dist. 2004)	656
<i>Sudler v. Chester Hous. Auth.</i> , 71 B.R. 780 (Bankr. E.D. Pa. 1987)	270,274
<i>Sugarcreek L.T.D. v. Tedrick</i> , No. 9900554 (Ohio Mun., New Philadelphia, Feb. 4, 2000)	136
<i>Sultanik v. Byrd</i> , 15 Misc.3d 1141(A), 841 N.Y.S.2d 823 (Just. Ct. 2007)	261
<i>Sumac Real Estate Holding, LLC v. Mitchell</i> , No. 2014-CVG-00670 (Ohio Mun., Euclid, Apr. 18, 2014)	231,232,257,364
<i>Summertree Terrace v. Thatcher</i> , No. CVG-0600419 (Ohio Mun., Washington Court House, July 13, 2006)	220
<i>Summit Mgmt. Servs. v. Gough</i> , No. 19714, 2000 WL 1226605 (Ohio App., 9th Dist., Aug. 30, 2000)	20,89,101,127
<i>Summit Mgmt. Servs., Inc. v. Martin</i> , No. 90-CVI-12598 (Ohio Mun., Akron, Jan. 23, 1991)	205
<i>Summit Mgmt. Servs., Inc. v. Sprinkle</i> , No. 91-CVG-1451 (Ohio Mun., Barberton, Jan. 2, 1992)	205
<i>Summit Mobile Home Park v. Brode</i> , No. 97-P-0080, 1998 WL 34002598 (Ohio App., 11th Dist., Oct. 16, 1998)	91
<i>Summit Mobile Home Park v. Brode</i> , No. R97-CVG-1046 (Ohio Mun., Portage Cty., June 27, 1997)	590
<i>Sumner v. Ayers</i> , No. M89-CVG-18789 (Ohio Mun., Franklin Cty., June 29, 1989)	205
<i>Sumner v. McKinley</i> , No. M9306-CVG-17388 (Ohio Mun., Franklin Cty., July 30, 1993)	184,233
<i>Sunbury Gardens v. Pizza</i> , No. M85-CVG-36063 (Ohio Mun., Franklin Cty., Feb. 6, 1986)	351
<i>Sunflower Park Apts. v. Johnson</i> , 23 Kan. App.2d 862, 937 P.2d 21 (1997)	262

<i>Superior Hous. Auth. v. Foote</i> , No. 90-1121, 1990 WL 198173 (Wis. App. Oct. 9, 1990)	136
<i>Superior Mobile Homes, Inc. v. Russell</i> , No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Jan. 12, 1990)	288,584
<i>Superior Mobile Homes, Inc. v. Russell</i> , No. 7-89-CVG-336, 1989 WL 572090 (Ohio Mun., New Philadelphia, Sept. 6, 1989)	286
<i>Superior Mobile Homes, Inc. v. Russell</i> , No. 7-89-CVG-336 (Ohio Mun., New Philadelphia, Aug. 18, 1989)	100
<i>Superior Mobile Homes, Inc. v. Russell</i> , No. 7-89-CVG-100 (Ohio Mun., New Philadelphia, Apr. 5, 1989)	35
<i>Superior Mobile Homes, Inc. v. White</i> , Nos. 98-T-0072,0081, 1999 WL 974136 (Ohio App., 11th Dist., July 23, 1999)	586
<i>Supinski v. Gold Coast Props.</i> , No. 95-CVI-3026 (Ohio Mun., Lakewood, July 15, 1996)	488
<i>Surrey Park Assocs. v. Kuhner</i> , No. 89-L-14-120, 1990 WL 222990 (Ohio App., 11th Dist., Dec. 28, 1990)	424,425
<i>Sutherland v. Nationwide Gen. Ins. Co.</i> , 102 Ohio App.3d 297, 657 N.E.2d 281 (10th Dist. 1995)	543
<i>Svoboda v. Hayes</i> , No. 90-CVG-35237 (Ohio Mun., Cleveland, Hous. Div., Dec. 26, 1991)	536
<i>Swader v. Paramount Prop. Mgmt.</i> , No. CA2011-05-084, 2012 WL 1107722 (Ohio App., 12th Dist., Apr. 2, 2012)	430
<i>Swaney v. Syndicate Mgmt., Inc.</i> , No. 71422, 1997 WL 209223 (Ohio App., 8th Dist., Apr. 24, 1997)	53,108
<i>Swartz v. Luker</i> , No. CA91-07-051, 1991 WL 278243 (Ohio App., 12th Dist., Dec. 30, 1991)	532
<i>Swartz v. Schutte</i> , No. 14717, 1991 WL 2022 (Ohio App., 9th Dist., Jan. 9, 1991)	65,201,597
<i>Sweeney v. Hous. Auth. of Chester County</i> , 215 B.R. 97 (Bankr. E.D. Pa. 1997)	235
<i>Swenson's Ice Cream v. Swenson's, Inc.</i> , 1 Ohio B. 324 (Ohio C.P., Cuyahoga Cty., 1982)	9,69,71
<i>Swigart v. Swigart</i> , 65 Ohio Law Abs. 582, 115 N.E.2d 871 (Ohio App., 2nd Dist., 1953)	663

<i>Swogger v. Merkel</i> , No. 4139, 1989 WL 572092 (Ohio County Ct., Carroll Cty., Nov. 14, 1989)	384,588
<i>Syracuse Hous. Auth. v. Boule</i> , 265 A.D.2d 832, 701 N.Y.S.2d 541 (1999)	244
<i>Szabo v. Humphrey</i> , 66 Ohio Misc.2d 55, 642 N.E.2d 1173 (Ohio Mun., Wadsworth, 1993)	48,121,122
T	
<i>T.K.D. Enters. v. Zimmermann</i> , No. 97-CA-44, 1998 WL 380496 (Ohio App., 4th Dist., July 2, 1998)	343,345,457
<i>T&R Props., Inc. v. Wimberly</i> , 158 N.E.3d 137, 2020-Ohio-4279 (Ohio App., 10th Dist., 2020)	7,9,80-82,117, 119
<i>T&R Props. Inc. v. Wimberly</i> , No. 2019-CVG-029217 (Ohio Mun., Franklin Cty., May 4, 2021)	111,113
<i>Takis, L.L.C. v. C.D. Moreland Props., Inc.</i> , 180 Ohio App.3d 243, 905 N.E.2d 204 (10th Dist. 2008)	179,185
<i>Talbot v. Resler</i> , 64 Ohio Law Abs. 461, 113 N.E.2d 21 (Ohio App., 2nd Dist., 1952)	66,67
<i>Talbott v. Talbott</i> , Nos. 86AP-248,342,370, 1986 WL 13924 (Ohio App., 10th Dist., Nov. 13, 1986)	76
<i>Talley v. Warner</i> , 99 Ohio Misc.2d 42, 715 N.E.2d 635 (Ohio Mun., Cleveland, Hous. Div., 1999)	6,47
<i>Tanner v. Fulk</i> , No. CA-2297, 1985 WL 6462 (Ohio App., 5th Dist., Aug. 1, 1985)	645
<i>Tapley v. Akron Metro. Hous. Auth.</i> , No. CV88-4-1215 (Ohio C.P., Summit Cty., Sept. 30, 1988)	660,670
<i>Tarkowski v. Gaye</i> , No. CVF-291 (Ohio Mun., Cleveland, Mar. 1, 1977)	470
<i>Taylor v. Alexander</i> , No. 3550, 1986 WL 7800 (Ohio App., 11th Dist., July 11, 1986)	314,319
<i>Taylor v. Cuyahoga Metro. Hous. Auth.</i> , No. 353992 (Ohio C.P., Cuyahoga Cty., July 2, 1998)	658
<i>Taylor v. Marshall Plaza II</i> , No. 88-CA-004372, 1989 WL 10309 (Ohio App., 9th Dist., Feb. 8, 1989)	258
<i>Taylor v. McCullough-Hyde Mem'l Hosp.</i> , 116 Ohio App.3d 595, 688 N.E.2d 1078 (12th Dist. 1996)	543

<i>Taylor v. Nickston Invs.</i> , No. 94-APE02-259, 1995 WL 41638 (Ohio App., 10th Dist., Jan. 26, 1995)	646
<i>Taylor Bldg. Corp. of Am. v. Benfield</i> , 117 Ohio St.3d 352, 884 N.E.2d 12 (2008)	177,373
<i>Tea v. Wilhelm</i> , No. 86-CVG-42 (Ohio County Ct., Sandusky Cty., July 18, 1986)	591
<i>Tecumseh Landing, LLC v. Bonetzky</i> , 38 N.E.3d 1149, 2015-Ohio-2741 (Ohio App., 3rd Dist., July 6, 2015)	465,520
<i>Teicher Theaters, Inc. v. Thompson</i> , No. 83-CA-29, 1983 WL 2530 (Ohio App., 2nd Dist., Oct. 28, 1983)	479
<i>Tellema v. Liette</i> , No. 92-CA-14, 1993 WL 79270 (Ohio App., 2nd Dist., Mar. 11, 1993)	315
<i>Teller v. McCoy</i> , 162 W. Va. 367, 253 S.E.2d 114 (1978)	152,153,156, 316,420
<i>Terra Mgmt. Co. v. Bishop</i> , No. CA-9919, 1987 WL 5312 (Ohio App., 2nd Dist., Jan. 2, 1987)	4
<i>Terrell v. Randall</i> , No. 38341 (Ohio App., 8th Dist., Aug. 11, 1977)	112
<i>Thatcher v. Lauffer Ravines, LLC</i> , No. 11AP-851, 2013 WL 816428 (Ohio App., 10th Dist., Mar. 5, 2013)	325,445
<i>Thirion v. Tutoki</i> , 94 Ohio Misc.2d 77, 703 N.E.2d 378 (Ohio Mun., Warren, 1998)	507,522
<i>Thomas v. Cohen</i> , 304 F.3d 563 (6th Cir. 2002)	483
<i>Thomas v. Corrigan</i> , 135 Ohio App.3d 340, 733 N.E.2d 1213 (11th Dist. 1999)	121,122
<i>Thomas v. Hart Realty, Inc.</i> , 17 Ohio App.3d 83, 477 N.E.2d 668 (1st Dist. 1984)	449
<i>Thomas v. Papadelis</i> , 16 Ohio App.3d 359, 476 N.E.2d 726 (9th Dist. 1984)	471
<i>Thompson v. Ashe</i> , 250 F.3d 399 (6th Cir. 2001)	368
<i>Thompson v. Irwin</i> , No. CA97-05-101, 1997 WL 666079 (Ohio App., 12th Dist., Oct. 27, 1997)	576,582
<i>Thompson v. KMV II, Ltd.</i> , No. 2001-P-0125, 2003 WL 943871 (Ohio App., 11th Dist., Mar. 7, 2003)	287,588

<i>Thompson v. U.S. Dep't of Hous. & Urban Dev.</i> , 404 F.3d 821 (4th Cir. 2005)	106
<i>Thompson v. Womack</i> , No. 2007-CVG-26006 (Ohio Mun., Cleveland, Hous. Div., Mar. 27, 2008, revised Apr. 24, 2008)	265
<i>Thornton v. Dist. of Columbia</i> , 647 A.2d 385 (D.C. App. 1994)	137
<i>Thorpe v. Hous. Auth. of City of Durham</i> , 393 U.S. 268 (1969)	268
<i>Tiefenbacher v. Shorter</i> , No. L-20-1186, 2021 WL 3239856, ¶ 22 (Ohio App., 6th Dist., July 30, 2021)	113
<i>Tillimon v. Dukes</i> , No. L-91-343, 1992 WL 206878 (Ohio App., 6th Dist., Aug. 28, 1992)	376
<i>Tillimon v. Moore</i> , Nos. L-18-1040,1041, 2018 WL 3814842 (Ohio App., 6th Dist., Feb. 2, 2018)	518
<i>Tillimon v. Myles</i> , No. L-17-1032, 2018 WL 679455 (Ohio App., 6th Dist., Feb. 2, 2018)	519
<i>Tillimon v. Richardson-Long</i> , No. L-16-1055, 2017 WL 169267 (Ohio App., 6th Dist., Jan. 13, 2017)	318,531
<i>Tillimon v. Rideout</i> , No. L-00-1388, 2001 WL 1518111 (Ohio App., 6th Dist., Nov. 30, 2001)	86,86
<i>Tillimon v. Tate</i> , No. L-18-1237, 2019 WL 3383890 (Ohio App., 6th Dist., July 12, 2019)	531
<i>Tillimon v. Timmons</i> , 72 N.E.3d 1153, 2016-Ohio-7424 (Ohio App., 6th Dist., Oct. 21, 2016)	298
<i>Timber Top Apts. v. Klinkiewicz</i> , No. 28860, 2018 WL 1957849 (Ohio App., 9th Dist., Apr. 25, 2018)	44
<i>Timbercreek Vill. Apts. v. Myles</i> , No. 17422, 1999 WL 335307 (Ohio App., 2nd Dist., May 28, 1999)	90,162-164,393
<i>Timoneri v. Northsteppe Realty</i> , 71 N.E.3d 630, 2016-Ohio-5901 (Ohio App., 10th Dist., 2016)	504,509,547,550
<i>Tinney v. Shores</i> , 77 F.3d 378 (11th Cir. 1996)	483,484
<i>Tipper v. Recklaw</i> , No. 2001-CVG-11482 (Ohio Mun., Akron, Feb. 1, 2002)	35
<i>Tishman Midwest Mgmt. Corp. of Ohio v. Hunt</i> , No. CA-10519, 1987 WL 28181 (Ohio App., 2nd Dist., Dec. 10, 1987)	188

<i>Tokles & Son, Inc. v. Midwestern Indem. Co.</i> , 65 Ohio St.3d 621, 605 N.E.2d 936 (1992)	423,540,541
<i>Tolle v. Cross</i> , No. CVG-1400181 (Ohio Mun., New Philadelphia, Dec. 12, 2014)	162,165
<i>Tolle v. Foote</i> , No. 5-84-CVG-30 (Ohio Mun., New Philadelphia, Apr. 26, 1984)	416
<i>Tolle v. Hill</i> , No. CVG-9600580 (Ohio Mun., New Philadelphia, Mar. 13, 1997)	128
<i>Tolle v. Hostetler</i> , No. CVG-930632 (Ohio Mun., New Philadelphia, Jan. 18, 1994)	143
<i>Tolle v. Morris</i> , No. 90AP-040034, 1990 WL 163807 (Ohio App., 5th Dist., Oct. 18, 1990)	50,526
<i>Tolliver v. Warren</i> , No. 99-CVG-13123 (Ohio Mun., Cleveland, Hous. Div., Dec. 28, 1999)	140,390,413,423
<i>Tomasko v. Sohnly</i> , No. 15CAE-10-0078, 2016 WL 1643036 (Ohio App., 5th Dist., Apr. 21, 2016)	300
<i>Tompkins v. Goins</i> , No. 93-CVG-01097 (Ohio Mun., Zanesville, Dec. 13, 1993)	12,24,48
<i>Torbeck v. Chamberlain</i> , 138 Or. App. 446, 910 P.2d 389 (1996)	298
<i>Tourville v. Terzuoli</i> , No. 22802, 2009 WL 1636605 (Ohio App., 2nd Dist., June 5, 2009)	508
<i>Tower City Props. v. Cuyahoga County Bd. of Revisions</i> , 49 Ohio St.3d 67, 551 N.E.2d 122 (1990)	6,7
<i>Tower Realty v. Zalenski</i> , No. 07-JE-24, 2008 WL 2583131 (Ohio App., 7th Dist., June 23, 2008)	595
<i>Towne Realty Co. v. Henson</i> , No. 4696, 1977 Ohio App. LEXIS 10248 (Ohio App., 5th Dist., Dec. 14, 1977)	380
<i>Townhomes Mgmt. v. Carter</i> , No. 84AP-851, 1985 WL 9874 (Ohio App., 10th Dist., Feb. 19, 1985)	353
<i>Twp. of W. Orange v. Whitman</i> , 8 F. Supp.2d 408 (D.N.J. 1998)	171
<i>Trabuco Homes, L.L.C. v. Brewer</i> , No. 109595, 2021 WL 2375962 (Ohio App., 8th Dist., June 10, 2021)	39
<i>Trail W. Apts. v. Zigan</i> , No. 05-CVG-01267 (Ohio Mun., Licking Cty., June 23, 2005)	81

<i>Trailer Mart, Inc. v. Semenach</i> , No. 42629, 1981 WL 169157 (Ohio App., 8th Dist., Mar. 26, 1981)	578,591
<i>Trammell v. McDonald</i> , No. 4-04-15, 2004 WL 2026414 (Ohio App., 3rd Dist., Sept. 13, 2004)	427,437
<i>Trepka v. Blake</i> , No. 61633, 1993 WL 12255 (Ohio App., 8th Dist., Jan. 21, 1993)	502
<i>Trepka v. Schultz</i> , No. 75338, 2000 WL 263734 (Ohio App., 8th Dist., Mar. 9, 2000)	395,396
<i>Tribby v. Gudzinias</i> , No. 90-T-4403, 1991 WL 18673 (Ohio App., 11th Dist., Feb. 15, 1991)	526
<i>Trimble v. Jones</i> , No. 89-CVGT-589 (Ohio Mun., Miami Cty., June 13, 1989)	473
<i>Trimble v. Rossi</i> , No. 108683, 2020 WL 4218808 (Ohio App., 8th Dist., July 23, 2020)	524
<i>Tripp v. French</i> , No. 02CA-0004-M, 2002 WL 31828886 (Ohio App., 9th Dist., Dec. 18, 2002)	115
<i>Troy v. Casale</i> , No. 2976, 1982 WL 5894 (Ohio App., 11th Dist., Mar. 31, 1982)	161,571
<i>Troy Oaks Homes & Residential Club, Inc. v. Sokolowski</i> , 78 N.E.3d 365, 2016-Ohio-8427 (Ohio App., 11th Dist., 2016)	585
<i>Trumbull Metro. Hous. Auth. v. Edmonds</i> , No. 00-CVG-0030801 (Ohio Mun., Warren, Aug. 10, 2000)	245
<i>Trumbull Metro. Hous. Auth. v. Redd</i> , No. 00-CVG-614 (Ohio Mun., Warren, July 19, 2000)	245
<i>Trumbull Metro. Hous. Auth. v. Reid</i> , No. 3673, 1987 WL 18019 (Ohio App., 11th Dist., Sept. 30, 1987)	222,225,233
<i>Tr. of Kokosing Valley Trust v. Myers</i> , No. 13-CVG-00428 (Ohio Mun., Mt. Vernon, Aug. 19, 2013)	14,192,195
<i>Trs. of Internal Improvement Fund v. Greenough</i> , 105 U.S. 527 (1881)	544
<i>Tucker v. Grigsby</i> , No. CA-3154, 1985 WL 4492 (Ohio App., 5th Dist., Dec. 13, 1985)	8,48
<i>Tucker v. Kanzios</i> , No. 08-CA-009429, 2009 WL 1655029 (Ohio App., 9th Dist., June 15, 2009)	347
<i>Tucker v. Pfirsch</i> , No. 2014-CA-0036, 2014 WL 3540883 (Ohio App., 5th Dist., July 16, 2014)	2,187

<i>Tullahoma Vill. Apts. v. Cyree</i> , No. 85-206-II, 1986 WL 1664 (Tenn. App. Feb. 7, 1986)	111
<i>Turetsky v. Miller</i> , No. CA96-03-005, 1996 WL 468758 (Ohio App., 12th Dist., Aug. 19, 1996)	488
<i>Turner v. Cent. Local Sch. Dist.</i> , 85 Ohio St.3d 95, 706 N.E.2d 1261 (1999)	621
<i>Turner v. Crawford Square Apts. III, L.P.</i> , 449 F.3d 542 (3d Cir. 2006)	55
<i>Turner v. Rose</i> , No. 2010-CVH-374 (Ohio County Ct., Meigs Cty., Feb. 21, 2012)	468
<i>Turner v. Tiemeyer</i> , No. CA95-08-053, 1996 WL 56040 (Ohio App., 12th Dist., Feb. 12, 1996)	440
<i>Turpen v. City of Corvallis</i> , 26 F.3d 978 (9th Cir. 1994)	608,609
<i>Turski v. Loesch</i> , No. L-05-1273, 2006 WL 3378415 (Ohio App., 6th Dist., Nov. 22, 2006)	322,396
<i>Tuteur v. P. & F. Enters., Inc.</i> , 21 Ohio App.2d 122, 255 N.E.2d 284 (8th Dist. 1970)	111,486,509, 510,517
<i>Tuttle v. Smith</i> , No. 93AP-1078, 1993 WL 538309 (Ohio App., 10th Dist., Dec. 23, 1993)	36
<i>Twin Lawn Props., Ltd. v. Adams</i> , No. CVG-970506 (Ohio Mun., Fostoria, Mar. 16, 1998)	267
<i>Two-32 Enters., Inc. v. Taylor</i> , No. 91-CA-2917, 1992 WL 274731 (Ohio App., 5th Dist., Sept. 9, 1992)	192
<i>Tyler v. Martin</i> , 11 Ohio Law Abs. 660 (Ohio App., 9th Dist., 1932)	639
<i>Tyson v. New York City Hous. Auth.</i> , 369 F. Supp. 513 (S.D.N.Y. 1974)	255
U	
<i>UMH OH Buckeye II, L.L.C. v. DeCarlo</i> , No. 108912, 2019 WL 6606376 (Ohio App., 8th Dist., Dec. 5, 2019)	11,13
<i>UNF Corp. v. Deffet Rentals, Inc.</i> , No. 81AP-337, 1981 WL 3661 (Ohio App., 10th Dist., Dec. 10, 1981)	509
<i>U.S. Corrections Corp. v. Ohio Dep't of Indus. Relations</i> , 73 Ohio St.3d 210, 652 N.E.2d 766 (1995)	309
<i>U.S. ex rel. Smith v. Gilbert Realty Co.</i> , 840 F. Supp. 71 (E.D. Mich. 1993)	266
<i>U.S. ex rel. Sutton v. Reynolds</i> , 564 F. Supp.2d 1183 (D. Ore. 2007)	266

<i>U.S. Sec'y of Hous. & Urban Dev. v. Chancellor</i> , No. 73970, 1999 WL 126170 (Ohio App., 8th Dist., Feb. 25, 1999)	90,114,115
<i>U.S.A. Parking Sys., Inc. v. Penn-Lillis Corp.</i> , No. 66936, 1995 WL 601186 (Ohio App., 8th Dist., Oct. 12, 1995)	399,620
<i>Ucker v. HER Realtors</i> , No. 89AP-520, 1989 WL 110993 (Ohio App., 10th Dist., Sept. 26, 1989)	361
<i>Uebelacker v. Cincom Sys., Inc.</i> , 48 Ohio App.3d 268, 549 N.E.2d 1210 (1st Dist. 1988)	451
<i>Ulle-Mance v. Berardinelli</i> , No. 92-L-210, 1993 WL 407262 (Ohio App., 11th Dist., Sept. 30, 1993)	502,503
<i>Union Sav. Ass'n v. Home Owners Aid, Inc.</i> , 23 Ohio St.2d 60, 262 N.E.2d 558 (1970)	191
<i>United Mobile Home v. Scruggs</i> , No. 93-CVG-3-8 (Ohio Mun., Athens Cty., Apr. 16, 1993)	590
<i>United Prop. Mgmt. Co. v. Mundell</i> , No. R86-CVG-0850 (Ohio Mun., Portage Cty., Oct. 22, 1986)	207,213
<i>United States v. Baran</i> , No. CV 14-02639 RGK (AJWx), 2015 WL 5446833 (C.D. Cal. Aug. 28, 2015)	266
<i>United States, ex rel. Carmichael v. Gregory</i> , 270 F. Supp.3d 67 (D.D.C. 2017)	266
<i>United States ex rel. Holmes v. Win Win Real Estate, Inc.</i> No. 2:13-cv-02149-APG-GWF, 2015 WL 6150594 (D. Nev. Oct. 19, 2015)	266
<i>Univ. of Texas Southwestern Med. Ctr. v. Nassar</i> , 133 S.Ct. 2517 (2013)	168
<i>Uptown Cmty. Partners, L.P. v. Killings</i> , No. C-110012, 2011 WL 5438652 (Ohio App., 1st Dist., Nov. 10, 2011)	239,240,338
<i>Uptown Vill. Apts. v. Stephens</i> , No. M8907-CVG-25518 (Ohio Mun., Franklin Cty., Aug. 4, 1989)	212
<i>Uptown Vill. Apts. Ltd. v. White</i> , No. M9203-CVG-008281 (Ohio Mun., Franklin Cty., May 22, 1992)	203
<i>Uptown Vill. Apts. Ltd. v. White</i> , No. M9112-CVG-043446 (Ohio Mun., Franklin Cty., Jan. 31, 1992)	212
<i>Urban Hollow Apts. v. Dunning</i> , No. 93AP-830, 1994 WL 55522 (Ohio App., 10th Dist., Feb. 22, 1994)	102,103
<i>Urban Hollow Apts. v. Johnson</i> , No. 93-APG10-1495, 1994 WL 232274 (Ohio App., 10th Dist., May 26, 1994)	179,180,182,184

<i>Urban Hollow Apts. v. Lewis</i> , No. M9403-CVG-007533 (Ohio Mun., Franklin Cty., May 25, 1994)	254,365
<i>Urban P'ship Bank v. Mosezit Acad., Inc.</i> , No. 100712, 2014 WL 4244346 (Ohio App., 8th Dist., Aug. 28, 2014)	123,125,350,352
<i>Usher v. Waters Ins. & Realty Co., Inc.</i> , 438 F. Supp. 1215 (W.D.N.C. 1977)	113
V	
<i>V.R. v. Cincinnati-Hamilton County Cmty. Action Agency</i> , No. C-140230, 2014 WL 6090396 (Ohio App., 1st Dist., Nov. 14, 2014)	315
<i>Valente v. Johnson</i> , Nos. 06-CA-31,38, 2007 WL 1574769 (Ohio App., 4th Dist., May 29, 2007)	114,115
<i>Vancamp v. Austintown Twp.</i> , No. 01-CA-17, 2002 WL 925197 (Ohio App., 7th Dist., Mar. 19, 2002)	663
<i>Vandalia Apts., Ltd. v. Leonard</i> , No. 10277, 1987 WL 15725 (Ohio App., 2nd Dist., Aug. 13, 1987)	31
<i>Vanderpool v. Waddell</i> , No. 1822, 1987 WL 19853 (Ohio App., 4th Dist., Nov. 12, 1987)	418
<i>Vanguard Transp. Sys., Inc. v. Edwards Transfer & Storage Co.</i> , 109 Ohio App.3d 786, 673 N.E.2d 182 (10th Dist. 1996)	472,473
<i>VanHoose v. McGee</i> , No. CA97-04-008, 1997 WL 598127 (Ohio App., 12th Dist., Sept. 29, 1997)	512,531
<i>Vardeman v. Llewellyn</i> , 17 Ohio St.3d 24, 476 N.E.2d 1038 (1985)	291,295,494, 495,500,501
<i>Vargyas v. Brasher</i> , No. L-14-1193, 2015 WL 502854 (Ohio App., 6th Dist., Feb. 6, 2015)	47,51
<i>Varnau v. Scanlon</i> , 17 Ohio Law Abs. 246 (Ohio App., 1st Dist., 1934)	361
<i>Velez v. Cuyahoga Metro. Hous. Auth.</i> , 795 F.3d 578 (6th Cir. 2015)	346
<i>Venetta v. Battle</i> , No. 88AP-1044, 1990 WL 157344 (Ohio App., 10th Dist., Oct. 18, 1990)	16
<i>Venetta v. Staples</i> , No. M88-CVG-12477 (Ohio Mun., Franklin Cty., May 13, 1988)	17
<i>Verhovsek v. Mut. Props.</i> , No. 51600, 1987 WL 7435 (Ohio App., 8th Dist., Mar. 5, 1987)	594

<i>Vesta Cleveland LLC v. Swann</i> , No. 2003-CVG-5468 (Ohio Mun., Cleveland, Hous. Div., May 20, 2003)	138,221,337
<i>Vesta Corp. v. Harris</i> , No. 2021-CVG-004702 (Ohio Mun., Cleveland, Hous. Div., Jan. 20, 2022)	338,381
<i>Vesta Corp. v. Jones</i> , No. 2017-CVG-01908 (Ohio Mun., Elyria, Jan. 2, 2019)	234
<i>Victoria Mortgage Corp. v. Williams</i> , No. 68012, 1996 WL 200160 (Ohio App., 8th Dist., Apr. 25, 1996)	602
<i>Vienna Forest Apts. v. Passmore</i> , No. CA2004-05-104, 2005 WL 1131742 (Ohio App., 12th Dist., May 16, 2005)	129,283
<i>Vill. S. Apts. v. Jensen</i> , No. CA96-10-018, 1997 WL 148067 (Ohio App., 12th Dist., Mar. 31, 1997)	222,224
<i>Vill. Station Assocs. v. Geauga Co.</i> , 84 Ohio App.3d 448, 616 N.E.2d 1201 (11th Dist. 1992)	517
<i>Villella v. Waikem Motors, Inc.</i> , 45 Ohio St.3d 36, 543 N.E.2d 464 (1989)	543
<i>Vistula Mgmt. Co. v. Armstrong</i> , No. L-93-168, 1994 WL 262571 (Ohio App., 6th Dist., June 10, 1994)	22,214,222,224, 232
<i>Vistula Mgmt. Co. v. Newson</i> , 120 Ohio App.3d 500, 698 N.E.2d 467 (6th Dist. 1997)	132
<i>Vistula Mgmt. Co. v. Riley</i> , No. L-94-069, 1994 WL 590503 (Ohio App., 6th Dist., Oct. 28, 1994)	353
<i>Vistula Mgmt. Co. v. Riley</i> , No. CVG-93-19379 (Ohio Mun., Toledo, Hous. Div., Jan. 20, 1994)	353
<i>Vistula Mgmt. Co. v. Scott</i> , No. 92-CVG-76 (Ohio Mun., Fremont, May 6, 1992)	237,365
<i>Vistula Mgmt. Co. v. Scott</i> , No. 91-CVG-205 (Ohio Mun., Fremont, May 23, 1991)	140,141
<i>Vistula Mgmt. Co. v. Singleton</i> , No. CVG-94-12643 (Ohio Mun., Toledo, Hous. Div., Nov. 29, 1994)	211,214,254
<i>Vistula Mgmt. Co. v. Stuckey</i> , No. L-92-102, 1993 WL 315626 (Ohio App., 6th Dist., Aug. 13, 1993)	87,105,122
<i>Vistula Mgmt. Co. v. Wells</i> , No. L-00-1224, 2001 WL 279773 (Ohio App., 6th Dist., Mar. 23, 2001)	198
<i>Vlcek v. Brogee</i> , No. 25499, 2013 WL 5436930 (Ohio App., 2nd Dist., Sept. 27, 2013)	514-516,524, 537,539

<i>Vogt v. Riley</i> , No. 04-CVG-00829 (Ohio Mun., Athens Cty., Nov. 17, 2004)	18
<i>Von Uehm v. Vill. of Cleves</i> , No. C-1-80-583 (S.D. Ohio Aug. 13, 1981)	612
<i>Vorhees v. Jovingo</i> , Nos. 04-CA-16,17,18, 2005 WL 2292796 (Ohio App., 4th Dist., Sept. 19, 2005)	430,632,633
<i>Voska v. Coffman</i> , No. S-13-008, 2013 WL 6579576 (Ohio App., 6th Dist., Dec. 13, 2013)	630,645,646
<i>Voyager Vill., Ltd. v. Sudduth</i> , No. 81-CA-63, 1982 Ohio App. LEXIS 15638 (Ohio App., 2nd Dist., Apr. 15, 1982)	161,571
<i>Voyager Vill. Ltd. v. Williams</i> , 3 Ohio App.3d 288, 444 N.E.2d 1337 (2nd Dist. 1982)	10,21,37,162, 165-167,220,572

W

<i>W.K. v. Farrell</i> , 167 Ohio App.3d 14, 853 N.E.2d 728 (2nd Dist. 2006)	177
<i>Wade v. Smith</i> , No. 3-87-24, 1989 WL 36578 (Ohio App., 3rd Dist., Apr. 18, 1989)	160
<i>Wadsworth v. Starcher</i> , No. 97-A-0054, 1998 WL 553160 (Ohio App., 11th Dist., June 26, 1998)	357,358
<i>Wagar v. Hatnavy</i> , No. 1433, 1985 WL 4734 (Ohio App., 9th Dist., Dec. 26, 1985)	164,259
<i>Waldenmyer Enters. v. Bolek</i> , No. 86AP-100070, 1987 WL 11872 (Ohio App., 5th Dist., May 28, 1987)	497
<i>Walker v. 24570 Lakeshore Prop. L.L.C.</i> , No.105017, 2017 WL 1055294 (Ohio App., 8th Dist., May 11, 2017)	324
<i>Walker v. Barnett Mgmt., Inc.</i> , Nos. 84188,84210, 2004 WL 2847810 (Ohio App., 8th Dist., Dec. 9, 2004)	428,431,435
<i>Walker v. Boston Hous. Auth.</i> , No. 00-H84-CV-000149 (Mass. Hous. Ct., Boston Div., June 9, 2009)	408
<i>Walker v. Cincinnati Metro. Hous. Auth.</i> , No. C-840007, 1984 WL 7128 (Ohio App., 1st Dist., Dec. 19, 1984)	326
<i>Walker v. Pierce</i> , 665 F. Supp. 831 (N.D. Cal. 1987)	473
<i>Walker v. RLI Enters., Inc.</i> , No. 89325, 2007 WL 4442725 (Ohio App., 8th Dist., Dec. 20, 2007)	326,433,444
<i>Walker v. Redd</i> , No. 91-CVG-15960 (Ohio Mun., Cleveland, Hous. Div., Jan. 28, 1992)	487

<i>Walker v. Tomi Enter.</i> , No. 2006-CVH-4305 (Ohio Mun., Cleveland, Hous. Div., Oct. 12, 2006)	467
<i>Wallace v. Golden Comb, Inc.</i> , 4 N.E.3d 445, 2013-Ohio-5320 (Ohio App., 8th Dist., 2013)	442
<i>Wallenstein v. Marsol Towers</i> , No. 58822, 1991 WL 378192 (Ohio App., 8th Dist., Aug. 8, 1991)	429,442
<i>Wallick Props. Midwest, LLC v. Jama</i> , No. 20AP-299, 2021 WL 362996 (Ohio App., 10th Dist., Aug. 17, 2021)	106
<i>Walling v. Holman</i> , 858 F.2d 79 (2d Cir. 1988)	315
<i>Wallpe v. McCurdy</i> , No. 84-CV-36081 (Ohio Mun., Hamilton Cty., Oct. 15, 1985)	264,407
<i>Walnut Hills Apts. v. Costner</i> , 108 Ohio Misc.2d 43, 739 N.E.2d 416 (Ohio Mun., Hamilton Cty., 1999)	33,340
<i>Walter v. Savanich</i> , No. 93-AP-120086, 1994 WL 369483 (Ohio App., 5th Dist., June 24, 1994)	123
<i>Walters v. Griffith</i> , 38 Ohio St.2d 132, 311 N.E.2d 14 (1974)	59,60,64
<i>Walton v. Darby Town Houses, Inc.</i> , 395 F. Supp. 553 (E.D. Pa. 1975)	268
<i>Walton v. Gooden</i> , No. 2008-CVG-7298 (Ohio Mun., Cleveland, Hous. Div., Aug. 26, 2008)	128
<i>Walton v. Washington</i> , No. 93-CVG-07401 (Ohio Mun., Cleveland, Hous. Div., Dec. 7, 1993)	390,414
<i>Wanamaker v. Davis</i> , No. 2005-CA-151, 2007 WL 2405708 (Ohio App., 2nd Dist., Aug. 24, 2007)	190
<i>War Eagle Vill. Apts. v. Plummer</i> , 775 N.W.2d 714 (Iowa 2009)	45
<i>Ward v. Washington Distribs., Inc.</i> , 67 Ohio App.2d 49, 425 N.E.2d 420 (6th Dist. 1980)	180,181,371
<i>Warner v. Evans</i> , No. 27536, 2015 WL 3398400 (Ohio App., 9th Dist., May 27, 2015)	501,529,537
<i>Warner v. Zuccola</i> , No. 53070, 1987 WL 30379 (Ohio App., 8th Dist., Dec. 24, 1987)	534,555,556
<i>Warren Heights Apts. v. Bristol</i> , No. 96-CVG-19 (Ohio Mun., Warren, Jan. 10, 1996)	242
<i>Warren Metro. Hous. Auth. v. Sizemore</i> , No. 2002-CVG-00593 (Ohio County Ct., Warren Cty., Nov. 6, 2002)	214

<i>Warrick v. Gaudynski</i> , No. L-86-358, 1987 WL 18442 (Ohio App., 6th Dist., Oct. 16, 1987)	64
<i>Washington v. Arbor Crest Land Co.</i> , No. 66307, 1994 WL 245640 (Ohio App., 8th Dist., June 2, 1994)	326
<i>Washington County Dep't of Human Servs. v. Rutter</i> , 100 Ohio App.3d 32, 651 N.E.2d 1360 (4th Dist. 1995)	195
<i>Waterford Glen LLC v. Dowell</i> , No. 05-CVG-1055 (Ohio Mun., Crawford Cty., Apr. 7, 2006)	145,419
<i>Waters v. Williams</i> , No. 06-CA-88, 2007 WL 172032 (Ohio App., 5th Dist., Jan. 22, 2007)	640
<i>Waterside Estate Apts., Etc. v. Keen</i> , No. 94-CVG-2296 (Ohio Mun., Massillon, Dec. 13, 1994)	147,232
<i>Watertown Hous. Auth. v. Kirkland</i> , 2 Misc.3d 280, 766 N.Y.S.2d 790 (City Ct. 2003)	230
<i>Watson v. Chapman-Bowen</i> , No. 101295, 2014 WL 6679591 (Ohio App., 8th Dist., Nov. 26, 2014)	263
<i>Waugh v. Lynch</i> , No. 100432, 2014 WL 1340263 (Ohio App., 8th Dist., Mar. 20, 2014)	446
<i>Wauseon Plaza Ltd. P'ship v. Wauseon Hardware Co.</i> , 156 Ohio App.3d 575, 807 N.E.2d 953 (6th Dist. 2004)	309
<i>Way Int'l v. Ohio Ctr.</i> , 3 Ohio App.3d 451, 445 N.E.2d 1158 (10th Dist. 1982)	420
<i>Wayland v. Plymire</i> , No. 03-CVG-987 (Ohio Mun., Barberton, July 9, 2003)	18,128
<i>Wayne Bldg. & Loan Co. of Wooster v. Yarborough</i> , 11 Ohio St.2d 195, 228 N.E.2d 841 (1967)	73
<i>Wayne Chemical, Inc. v. Columbus Agency Serv. Corp.</i> , 562 F.2d 692 (7th Cir. 1977)	472
<i>Wayne Mgmt. Co. v. McGill</i> , No. 81-CA-57, 1982 WL 3741 (Ohio App., 2nd Dist., June 2, 1982)	523,539
<i>Wayne Metro. Hous. Auth. v. Jackson</i> , Nos. 2369,2403, 1988 WL 107026 (Ohio App., 9th Dist., Oct. 12, 1988)	344
<i>Wayne Metro. Hous. Auth. v. L.F.</i> , No. CVG-12-02-0021 (Ohio Mun., Wayne Cty., Oct. 28, 2020)	626

<i>Wayne Mut. Ins. Co. v. Parks</i> , No. 20945, 2002 WL 1800377 (Ohio App., 9th Dist., Aug. 7, 2002)	339,539
<i>Wead v. Wade</i> , No. 27204, 2017 WL 1806820 (Ohio App., 2nd Dist., May 5, 2017)	531
<i>Webb v. C & J Props., LLC</i> , No. CA2010-01-016, 2010 WL 3213020 (Ohio App., 12th Dist., Aug. 16, 2010)	570
<i>Webster v. Shaw</i> , 63 N.E.3d 677, 2016 WL 1484 (Ohio App., 3rd Dist., 2016)	429,435
<i>Webster Bank v. Occhipinti</i> , No. CV-970059147S, 1998 WL 846105 (Conn. Super. Nov. 20, 1998)	267,268
<i>Wee v. Lawrence</i> , No. 01-CV-15817 (Ohio Mun., Hamilton Cty., Oct. 1, 2001)	189,193
<i>Wehrley v. Sunchase Am., Ltd.</i> , No. CA99-11-191, 2001 WL 88202 (Ohio App., 12th Dist., Jan. 29, 2001)	478,479,498,513
<i>Weibling v. Rine</i> , No. 77AP-355, 1977 Ohio App. LEXIS 7537 (Ohio App., 10th Dist., Aug. 30, 1977)	390
<i>Weikart v. Abbe</i> , No. 02-CO-32, 2003 WL 21377489 (Ohio App., 7th Dist., June 5, 2003)	114
<i>Weingarden v. Eagle Ridge Condos.</i> , 71 Ohio Misc.2d 7, 653 N.E.2d 759 (Ohio Mun., Toledo, Hous. Div., 1995)	316,381,413,422
<i>Weintraub v. Hurley</i> , No. 93-APG10-1473, 1994 WL 171138 (Ohio App., 10th Dist., May 3, 1994)	479
<i>Weintraub v. Moore</i> , No. 00G-9521 (Ohio Mun., Akron, Dec. 5, 2000)	262
<i>Weir v. Miller</i> , No. 82-04-0044, 1983 WL 4336 (Ohio App., 12th Dist., Apr. 13, 1983)	423
<i>Weishaar v. Strimbu</i> , 76 Ohio App.3d 276, 601 N.E.2d 587 (8th Dist. 1991)	163,596,597
<i>Weiss v. Roberts</i> , No. 38363, 1978 Ohio App. LEXIS 9956 (Ohio App., 8th Dist., Mar. 16, 1978)	67,68
<i>Weldon Square Apts. v. Lyons</i> , No. 84AP-06, 1985 WL 9901 (Ohio App., 10th Dist., Mar. 19, 1985)	164,229
<i>Wells v. Cunningham</i> , 56 Ohio Misc.2d 9, 564 N.E.2d 758 (Ohio Mun., Lakewood, 1990)	70
<i>Wells v. Hous. Auth. of City of Wheeling</i> , No. 90-0131-W(S) (N.D. W. Va. Jan. 27, 1993)	364

<i>Wellstone Hous. Auth. v. Murphy</i> , 131 S.W.3d 378 (Mo. App. 2004)	252
<i>Welsh Dev. Co. v. Warren County Reg'l Planning Comm'n</i> , 128 Ohio St.3d 471, 946 N.E.2d 215 (2011)	654,656
<i>Wengerd v. Martin</i> , No. 99-CA-0004, 2000 WL 354148 (Ohio App., 9th Dist., Apr. 5, 2000)	514-516
<i>Wenzke v. Baird</i> , No. L-13-1244, 2014 WL 3408590 (Ohio App., 6th Dist., July 11, 2014)	315,318,392
<i>W. Alex Vill. v. Goodwin</i> , No. 88-CVG-179 (Ohio Mun., Eaton, Oct. 19, 1988)	352
<i>W. Ridge Green Co. v. Ortiz</i> , No. 94CA-005819, 1994 WL 432162 (Ohio App., 9th Dist., Aug. 10, 1994)	287,582
<i>Westbourne Dev. Co. v. Sigma Sys. Health Mgmt. Specialists, Inc.</i> , No. 91AP-856, 1992 WL 11197 (Ohio App., 10th Dist., Jan. 16, 1992)	549,553,554
<i>Westgate Vill. Mobile Home Park v. Fetro</i> , No. CVG-950312, 1995 WL 907587 (Ohio Mun., Fostoria, Sept. 27, 1995)	186,354
<i>Westover Vill. v. Dawson</i> , No. 85-CV-8331 (Ohio Mun., Hamilton Cty., Oct. 27, 1985)	204
<i>Wetzel v. Glen St. Andrew Living Cmty., LLC</i> , 901 F.3d 856 (7th Cir. 2018)	334
<i>Wharton v. Pollock</i> , 49 Ohio App. 443, 197 N.E. 379 (5th Dist. 1934)	478
<i>Wheeler v. Write</i> , No. 2020-CVG-082W (Ohio County Ct., Ashtabula, W. Div., Apr. 28, 2020)	194
<i>Whitacre v. Starks</i> , No. 1998-CA-0307, 1999 WL 547943 (Ohio App., 5th Dist., June 29, 1999)	636,640
<i>White v. Bergman</i> , No. 15-COA-010, 2015 WL 5783088 (Ohio App., 5th Dist., Oct. 2, 2015)	3
<i>White v. Chambers</i> , Nos. 1-01-114,115,116, 2002 WL 1299781 (Ohio App., 3rd Dist., May 29, 2002)	562
<i>White v. Daniel</i> , No. 12319, 1991 WL 262675 (Ohio App., 2nd Dist., Dec. 10, 1991)	641,645
<i>White v. Fuller</i> , No. CA-84-15, 1984 WL 7584 (Ohio App., 5th Dist., Nov. 27, 1984)	433,435
<i>White v. Leichtman</i> , No. 838, 1980 Ohio App. LEXIS 13362 (Ohio App., 11th Dist., Mar. 31, 1980)	578

<i>White v. Superior Mobile Homes, Inc.</i> , No. 98-T-0011, 1999 WL 1320188 (Ohio App., 11th Dist., Dec. 10, 1999)	290,580
<i>White Rose Props. v. Babb</i> , No. 00-CVF-1355 (Ohio Mun., Marietta, Jan. 23, 2001)	130
<i>Whitehead v. Gen. Tel. Co. of Ohio</i> , 20 Ohio St.2d 108, 254 N.E.2d 10 (1969)	85
<i>Whitehouse Estates, Inc. v. Thompson</i> , 87 Misc.2d 813, 386 N.Y.S.2d 733 (Civ. Ct. 1976)	405
<i>Whitestone Co. v. Stittsworth</i> , No. 06AP-371, 2007 WL 155299 (Ohio App., 10th Dist., Jan. 23, 2007)	337,505,506, 529,537,547
<i>Whitmore v. Meenach</i> , 33 Ohio Law Abs. 95, 33 N.E.2d 408 (Ohio App., 2nd Dist., 1940)	178
<i>Wickham v. Woodlyn Acres</i> , No. H-96-015, 1996 WL 612314 (Ohio App., 6th Dist., Oct. 25, 1996)	574,586
<i>Widder & Widder v. Kutnick</i> , 113 Ohio App.3d 616, 681 N.E.2d 977 (8th Dist. 1996)	68,70
<i>Wiesman v. Hill</i> , 620 F. Supp.2d 106 (D. Mass. 2009)	335
<i>Wiggans v. Glock</i> , No. 15967, 1997 WL 111745 (Ohio App., 2nd Dist., Mar. 14, 1997)	322,323
<i>Wilborn v. Bank One Corp.</i> , 121 Ohio St.3d 546, 906 N.E.2d 396 (2009)	542,543
<i>Wilburn v. Watson</i> , No. 81-CVG-64993 (Ohio Mun., Cleveland, Hous. Div., Sept. 15, 1981)	100
<i>Wilcox v. Tabler</i> , No. 26530, 2013 WL 1324937 (Ohio App., 9th Dist., Apr. 3, 2013)	425
<i>Wildwood Vill. Apts. v. Eckard</i> , No. M84-CVG-28561 (Ohio Mun., Franklin Cty., Dec. 13, 1984)	203,204
<i>Wiles v. Miller</i> , 3 N.E.3d 226, 2013-Ohio-3625 (Ohio App., 10th Dist., 2013)	313,428,429,442
<i>Wilhelm v. Heritage Mgmt. Co.</i> , No. CA97-07-144, 1998 WL 24342 (Ohio App., 12th Dist., Jan. 26, 1998)	433,434
<i>Wilhelm v. Ison</i> , No. 92-CA-97, 1993 WL 76961 (Ohio App., 2nd Dist., Mar. 15, 1993)	339,532
<i>Will v. Siller</i> , No. 90-CVG-1248 (Ohio Mun., Painesville, Sept. 19, 1990)	18

<i>Williams v. Associated Estates Corp.</i> , 119 Ohio App.3d 558, 695 N.E.2d 1172 (8th Dist. 1997)	326
<i>Williams v. Bjork</i> , 112 Ohio Misc.2d 57, 753 N.E.2d 995 (Ohio County Ct., Ashtabula Cty., 2001)	75,562
<i>Williams v. Cotton</i> , No. 66312, 1994 WL 236219 (Ohio App., 8th Dist., May 26, 1994)	399
<i>Williams v. Cuyahoga Metro. Hous. Auth.</i> , No. 92964, 2009 WL 4857623 (Ohio App., 8th Dist., Dec. 17, 2009)	620,621
<i>Williams v. Glaser III</i> , No. C-000539, 2001 WL 395165 (Ohio App., 1st Dist., Apr. 20, 2001)	492,501,503
<i>Williams v. Global Constr. Co.</i> , 26 Ohio App.3d 119, 498 N.E.2d 500 (10th Dist. 1985)	195
<i>Williams v. Hous. Auth. of City of Raleigh</i> , 595 F. Supp.2d 627 (E.D.N.C. 2008)	661
<i>Williams v. Mark IV Apts.</i> , No. 65915, 1994 WL 521136 (Ohio App., 8th Dist., Sept. 22, 1994)	488
<i>Williams v. Martin</i> , 83 Ohio App. 130, 82 N.E.2d 547 (1st Dist. 1948)	361
<i>Williams v. McMillian</i> , No. 107570, 2019 WL 3855356 (Ohio App., 8th Dist., Aug. 15, 2019)	501
<i>Williams v. Mentzer</i> , No. 94-CVG-238 (Ohio Mun., Marietta, May 17, 1994)	12,21
<i>Williams v. Nagel</i> , 162 Ill. App.2d 542, 643 N.E.2d 816 (1994)	367
<i>Williams v. Terry</i> , No. 78-CVG-24893 (Ohio Mun., Cleveland, Oct. 20, 1978)	143
<i>Williams v. Wilson</i> , No. 89-CVG-2173 (Ohio Mun., Dayton, Apr. 10, 1989)	32
<i>Williams v. Wright</i> , No. 2000-CVG-01040 (Ohio Mun., Marietta, Aug. 15, 2001)	401,412,418,533
<i>Willis v. Thibault</i> , No. 9-87-47, 1989 WL 83816 (Ohio App., 3rd Dist., July 31, 1989)	18
<i>Willow Rest Trailer Park, Inc. v. Willow Rest Tenants' Ass'n, Inc.</i> , No. 17338, 1996 WL 137402 (Ohio App., 9th Dist., Mar. 27, 1996)	576
<i>Willowood Apts. v. Page</i> , No. 96-L-003, 1996 WL 535235 (Ohio App., 11th Dist., Sept. 6, 1996)	29

<i>Wills Creek Valley Apts. v. Marlatt</i> , No. 93-CVG-00066 (Ohio Mun., Cambridge, Apr. 27, 1993)	22
<i>Wilmington Green III v. Rickman</i> , No. CA90-07-013, 1991 WL 81850 (Ohio App., 12th Dist., May 13, 1991)	230,380
<i>Wilmington Green Apts. v. Estep</i> , No. 88-CVG-64 (Ohio Mun., Wilmington, Apr. 7, 1988)	233,365
<i>Wilmoth v. Akron Metro. Hous. Auth.</i> , No. 27746, 2016 WL 3322551 (Ohio App., 9th Dist., June 15, 2016)	316,317
<i>Wilson v. Thomas</i> , No. L-87-405, 1988 WL 69153 (Ohio App., 6th Dist., June 30, 1988)	511
<i>Wiltsie v. Teamor</i> , 89 Ohio App.3d 380, 624 N.E.2d 772 (8th Dist. 1993)	35
<i>Winchester Gardens v. Swickheimer</i> , No. M9410-CVG-031135 (Ohio Mun., Franklin Cty., Nov. 14, 1994)	202,211
<i>Winchester Station Coop., Inc. v. Walters</i> , No. 96-APG02-204, 1996 WL 465240 (Ohio App., 10th Dist., Aug. 13, 1996)	181,182
<i>Wingate at Belle Meadows v. Higgenbotham</i> , 179 Ohio App.3d 645, 903 N.E.2d 349 (2nd Dist. 2008)	350,351
<i>Wingo v. Nationwide Energy Partners</i> , 163 Ohio St.3d 208, 169 N.E.3d 617 (2020)	612,613
<i>Winns v. Rosado</i> , 440 N.J. Super. 98, 111 A.3d 155 (2014)	261
<i>Winston v. Wolery</i> , No. 96-CA-2442, 1997 WL 28535 (Ohio App., 4th Dist., Jan. 14, 1997)	292,446,448
<i>Winston Props. v. Sanders</i> , 57 Ohio App.3d 28, 565 N.E.2d 1280 (1st Dist. 1989)	435
<i>Winters v. Valley Homes Mut. Hous. Corp.</i> , No. A0601318 (Ohio C.P., Hamilton Cty., Feb. 10, 2006)	453
<i>Winton Sav. & Loan Co. v. Eastfork Trace, Inc.</i> , 119 Ohio Misc.2d 83, 774 N.E.2d 355 (Ohio C.P., Clermont Cty., 2001)	108
<i>Wintrow v. Smith</i> , 32 Ohio Misc.2d 12, 513 N.E.2d 363 (Ohio Mun., Akron, 1987)	18
<i>Wiseman v. Turner</i> , No. M9112-CVG-042342 (Ohio Mun., Franklin Cty., Jan. 3, 1992)	202
<i>Witkowski v. Arditi</i> , 123 Ohio App.3d 26, 702 N.E.2d 1231 (7th Dist. 1997)	101,107,114,164

<i>Woda Mgmt. & Real Estate v. Grant</i> , No. 15-16-43, 2017 WL 3382166 (Ohio App., 3rd Dist., Aug. 7, 2017)	139
<i>Wodzisz v. Bayes</i> , No. 96-APE07-891, 1997 WL 142715 (Ohio App., 10th Dist., Mar. 25, 1997)	18,19,53,79
<i>Woerner v. Mentor Exempted Vill. Sch. Dist. Bd. of Educ.</i> , 84 Ohio App.3d 844, 619 N.E.2d 34 (11th Dist. 1993)	658-660
<i>Wood v. Crestwood Assocs., LLC</i> , No. 1-09-37, 2010 WL 1175208 (Ohio App., 3rd Dist., Mar. 29, 2010)	572
<i>Woodard v. Walker</i> , No. 78AP-495, 1979 Ohio App. LEXIS 12212 (Ohio App., 10th Dist., Feb. 27, 1979)	534
<i>Woodbridge Homes Ltd. P'ship v. Gregory</i> , 697 S.E.2d 370 (N.C. App. 2010)	129,130
<i>Woodlake Assocs. v. Heringhausen</i> , No. WD-89-27, 1991 WL 3810 (Ohio App., 6th Dist., Jan. 18, 1991)	586
<i>Woodman v. Tubbs Jones</i> , 103 Ohio App.3d 577, 660 N.E.2d 520 (8th Dist. 1995)	6
<i>Woodrose Ltd. Belmont Dev. Co. v. Debolt</i> , No. CA-403, 1991 WL 115990 (Ohio App., 5th Dist., June 20, 1991)	30-32
<i>Woodrow v. McGuire</i> , No. 1740, 1989 WL 72799 (Ohio App., 4th Dist., June 27, 1989)	328,458,459
<i>Woodruff Vill. v. Bowers</i> , No. L-95-248, 1996 WL 339912 (Ohio App., 6th Dist., June 21, 1996)	251,253
<i>Woodruff Vill. Apts. v. Jones</i> , No. L-90-145, 1991 WL 35165 (Ohio App., 6th Dist., Mar. 15, 1991)	89,234
<i>Woods v. Berry</i> , No. 76-CVH-21607 (Ohio Mun., Cleveland, Sept. 1, 1976)	394
<i>Woods v. Coleman</i> , No. 01-CVG-444 (Ohio Mun., Jackson Cty., Aug. 6, 2001)	412,419,450
<i>Woods v. Coleman</i> , No. 01-CVG-444 (Ohio Mun., Jackson Cty., Apr. 26, 2001)	403,561
<i>Woods v. Foster</i> , 884 F. Supp. 1169 (N.D. Ill. 1995)	304
<i>Woods v. Marciano</i> , 122 N.E.3d 633, 2018-Ohio-4324 (Ohio App., 8th Dist., 2018)	189
<i>Woods v. Willis</i> , 515 F. App'x 471, 2013 WL 611141 (6th Cir. 2013)	663

<i>Woodside Terrace Mobile Home Owners Ass'n v. Woodside Terrace Co. Ltd.</i> , 53 Ohio App.3d 20, 557 N.E.2d 804 (6th Dist. 1988)	387-389,587
<i>Woodside Vill. v. Hertzmark</i> , 36 Conn. App. 73, 647 A.2d 759 (1994)	171
<i>Woodside Vill. v. Hertzmark</i> , No. SPH9204-65092, 1993 WL 268293 (Conn. Super. June 22, 1993)	171
<i>Woodson v. Howard</i> , No. 2008-CVG-9709 (Ohio Mun., Cleveland, Hous. Div., June 30, 2008)	350,351,353
<i>Woolworth Co. v. Russo</i> , 16 Ohio Law Abs. 307 (Ohio App., 2nd Dist., 1933)	406
<i>Worldwide Asset Purchasing, L.L.C. v. Easterling</i> , 186 Ohio App.3d 478, 928 N.E.2d 1148 (10th Dist. 2009)	177
<i>Worthan v. Bryan Hous. Ltd.</i> , No. WM-97-028, 1998 WL 230583 (Ohio App., 6th Dist., May 1, 1998)	324
<i>Wright v. Miller</i> , No. 752, 1991 WL 37926 (Ohio App., 4th Dist., Mar. 11, 1991)	84,526
<i>Wright v. Phelps</i> , No. 89-CVGT-1086 (Ohio Mun., Miami Cty., Sept. 18, 1989)	194
<i>Wright v. Rash</i> , No. 93-CVG-10748 (Ohio Mun., Cleveland, Hous. Div., June 29, 1993)	128
<i>Wurzelbacher v. Johnson</i> , No. CA92-03-048, 1993 WL 19538 (Ohio App., 12th Dist., Feb. 1, 1993)	123,126
<i>Wymer v. Kimbaugh</i> , No. 74AP-547, 1975 Ohio App. LEXIS 7359 (Ohio App., 10th Dist., Mar. 13, 1975)	157,406
X	
<i>Xenia Co. v. Cline</i> , No. M9005-CVG-015839 (Ohio Mun., Franklin Cty., June 25, 1990)	358
<i>Xetron Corp. v. Butler County Bd. of Zoning Appeals</i> , No. 87-12-163, 1988 WL 76814 (Ohio App., 12th Dist., July 25, 1988)	659
Y	
<i>YWCA of Canton, Inc. v. Hager</i> , No. CA-7351, 1988 WL 29658 (Ohio App., 5th Dist., Mar. 7, 1988)	191
<i>Yancey v. Haehn</i> , No. 99-G-2210, 2000 WL 263757 (Ohio App., 11th Dist., Mar. 3, 2000)	487,492

<i>Yanda v. Consol. Mgmt. Inc.</i> , No. 57268, 1990 WL 118703 (Ohio App., 8th Dist., Aug. 16, 1990)	325
<i>Yarber v. Cooper</i> , 61 Ohio App.3d 609, 573 N.E.2d 713 (6th Dist. 1988)	547
<i>Yarber v. Cooper</i> , No. H-87-36, 1988 WL 61003 (Ohio App., 6th Dist., June 10, 1988)	544,545
<i>Yarborough v. Cuyahoga Metro. Hous. Auth.</i> , No. 259548 (Ohio C.P., Cuyahoga Cty., Nov. 26, 1993)	658
<i>Yeager v. Local Union 20, Etc.</i> , 6 Ohio St.3d 369, 453 N.E.2d 666 (1983)	450,464
<i>Yelanosky v. White</i> , No. 67479, 1995 WL 32869 (Ohio App., 8th Dist., Jan. 26, 1995)	595
<i>Yergan v. Yergan</i> , No. 2901-M, 1999 WL 493942 (Ohio App., 9th Dist., July 14, 1999)	76
<i>Young v. Cuyahoga Metro. Hous. Auth.</i> , No. CV-06-593687 (Ohio C.P., Cuyahoga Cty., Mar. 7, 2007)	668
<i>Young v. Hodapp</i> , No. CA85-08-094, 1986 WL 14965 (Ohio App., 12th Dist., Dec. 29, 1986)	635,636
<i>Young v. Maryville Hous. Auth.</i> , No. 3:09-cv-37, 2009 WL 2043891 (E.D. Tenn. July 2, 2009)	663
<i>Young v. McCleese</i> , No. 97-CA-2351, 1998 WL 399861 (Ohio App., 4th Dist., July 13, 1998)	339,616
<i>Youngstown Metro. Hous. Auth. v. Barry</i> , No. 94-CA-147, 1996 WL 734017 (Ohio App., 7th Dist., Dec. 16, 1996)	65
<i>Youngstown Metro. Hous. Auth. v. Higgins</i> , No. 99-CA-81, 2000 WL 1159418 (Ohio App., 7th Dist., Aug. 4, 2000)	11,24,120
<i>Youngstown Metro. Hous. Auth. v. Scott</i> , No. 99-CA-238, 2001 WL 744496 (Ohio App., 7th Dist., June 26, 2001)	252,255
<i>Yozwiak v. McCabe</i> , No. 87-CVG-630 (Ohio Mun., Girard, Aug. 19, 1987)	8
<i>Yuin v. Hilton</i> , 165 Ohio St. 164, 134 N.E.2d 719 (1956)	426,427
<i>Yutzy v. Huebner</i> , 14 Ohio Op.3d 440 (Ohio Mun., Franklin Cty., 1979)	32,33
Z	
<i>Zamos v. Dunn</i> , No. 2000-P-0120, 2001 WL 1149844 (Ohio App., 11th Dist., Sept. 28, 2001)	463,555
<i>Zane Vill. Mobile Home Park v. Hedrick</i> , No. 95-CVG-536 (Ohio Mun., Chillicothe, Sept. 21, 1995)	186

<i>Zanesville Metro. Hous. Auth. v. Callipare</i> , No. CA-81-13, 1981 WL 6582 (Ohio App., 5th Dist., Dec. 10, 1981)	202,213
<i>Zanetos v. Sparks</i> , 13 Ohio App.3d 242, 468 N.E.2d 938 (10th Dist. 1984)	178,181,182,361
<i>Zeallear v. F & W Props.</i> , No. 99AP-1215, 2000 WL 1015345 (Ohio App., 10th Dist., July 25, 2000)	486,487,508,556
<i>Zeid v. Brown</i> , No. 12-259, 1988 WL 59831 (Ohio App., 11th Dist., June 3, 1988)	94
<i>Zeidman v. McCarty</i> , No. R92-CVG-1036 (Ohio Mun., Portage Cty., June 16, 1992)	414
<i>Zellner v. Turner</i> , No. 92-CA-41, 1993 WL 15640 (Ohio App., 2nd Dist., Jan. 26, 1993)	102
<i>Zemaitis v. Waugh</i> , No. 91-CVG-5137 (Ohio Mun., Cleveland, Hous. Div., Oct. 11, 1991)	546
<i>Zeoli v. Vargas</i> , No. CV-040287703S, 2004 WL 2361544 (Conn. Super. Aug. 19, 2004)	261
<i>Zieber v. Heffelfinger</i> , No. 08-CA-0042, 2009 WL 695533, (Ohio App., 5th Dist., Mar. 17, 2009)	619
<i>Zimmerman v. Elmore</i> , No. 47724, 1984 WL 5119 (Ohio App., 8th Dist., June 28, 1984)	504,535,546
<i>Zinerman v. Burch</i> , 494 U.S. 113 (1990)	484
<i>Zipfel v. Reimonenque</i> , No. L-19-1083, 2019 WL 6817411 (Ohio App., 6th Dist., Dec. 13, 2019)	77
<i>Zonner v. Heritage Hills, Ltd.</i> , 44 Ohio App.3d 214, 542 N.E.2d 697 (4th Dist. 1988)	258
<i>Zumbrink v. Hercules</i> , No. 1392, 1996 WL 339947 (Ohio App., 2nd Dist., June 21, 1996)	639
<i>Zunshine v. Wallace F. Ackley Co.</i> , No. 99AP-531, 2000 WL 329008 (Ohio App., 10th Dist., Mar. 30, 2000)	518-520,594,595

Index

Abandonment of property – 466,475**Abatement of rent**

See index heading contract claim (tenant), R.C. 5321.04

See index heading rent abatement, R.C. 1923.061(B)

See index heading rent abatement, R.C. 5321.07(B)(2)

Abatement of subsidy (HCVP), HQS violation – 262-265**Acceptance of rent**

See index heading rent, acceptance

Accord and satisfaction, FED – 148**Actual damages**

Entry upon premises, R.C. 5321.04(B) – 457-459

Maintenance/use of premises, R.C. 5321.05(C) – 529

Retaliation, R.C. 5321.02(B) – 461-462

Administrative hearing, assisted housing – 223-227**Advance rent payment, security deposit – 487****Agriculture labor camp, residential premises exclusion – 300****Air conditioning, landlord duty**

Implied covenant of quiet enjoyment – 333

R.C. 5321.04(A) – 327,409,416

All damages

Lockout, R.C. 5321.15(C) – 466-468

Seizure of personal property, R.C. 5321.15(C) – 475,476

Utility termination, R.C. 5321.15(C) – 466-468

Ambiguous forfeiture provision – 168-170**Americans with Disabilities Act, FED – 163-165****Answer, FED Complaint**

FED claim, oral and/or written answer – 52,53

Non-FED claim, written answer – 52,53

Appeal, FED

Bad faith, seeking time – 107
Civil Rule 54(B) – 107,108
Civil Rules, generally – 107
Equity, standard of review – 179,180
Final appealable order – 107,108
Mootness
 Exceptions – 115-119
 General rule – 113,115
Notice of appeal, tolling (motions/objections) – 119
Stay, motion and bond – 108-113

Appliances

Maintenance/use
 Landlord duty, R.C. 5321.04(A)(4) – 327
 Tenant duty, R.C. 5321.05(A)(7) – 336
Project rules, assisted housing – 258,259

Application payments – 487,488**Assisted housing**

See index heading Housing Choice Voucher
See index heading Public Housing
See index heading subsidized housing project-based

Attorney's fees

Appeal of underlying claim
 Fees, appeal time – 556,557
 Pending fees motion – 547
Authority
 Common law – 542-544
 R.C. 5321.02(B), retaliation – 445,446,542
 R.C. 5321.04(B), entry upon premises – 457-459,542
 R.C. 5321.05(C), use of premises – 529,535,536,542
 R.C. 5321.09(D), bad faith rent depositing – 392,542
 R.C. 5321.15(C), seizure of personal property – 475,476,542
 R.C. 5321.15(C), utility termination/lockout – 471,542
 R.C. 5321.16(C), security deposit – 500,503-507,542
Computation standards – 547-552
Costs, taxed as – 544,545
Evidentiary issues
 Affidavits and/or evidentiary hearing – 553,554
 Burden of proof – 554-556
 Time of presentation – 553
Free representation – 552
Jury trial – 557

Monetary jurisdictional limits, exclusion of fees – 559

Motion for fees, time – 546,547

Pleading requirements – 545,546

Purpose, R.C. Chapter 5321 fees – 542

Automatic renewal, rental agreement – 173,174,369-372,594,595

Bad faith

Appeal, FED – 107

Rent deposit, R.C. 5321.09(D) – 392

Bailment, landlord seizure of personal property – 476

Ban list, tenant guests – 366-368

Bank deposit, acceptance of rent – 352,353

Bankruptcy, assisted housing tenant – 269-277

Bed bugs, duty and liability issues – 319-321

Bench trial, FED – 79,80

Bond, FED

See index heading deposits with court (court order), FED

Breach of rental agreement

See index heading rental agreement

Certification (Civil Rule 13(J)), FED – 68-71

Charges

Manufactured home park – see index heading manufactured home park

Nonpayment, FED (assisted housing) – 232,233

Unconscionability, R.C. 5321.14 – 376-377

Check/money order, acceptance of rent – 350-352

Child's conduct, FED (assisted housing) – 236,237,240-243,250

Cigarette smoke

Implied covenant of quiet enjoyment – 333,334

R.C. 5321.04(A)(2) – 317,318,408,409

Civil procedure rules, FED

See index heading Ohio Rules of Civil Procedure, FED

Civil protection order, effect on FED – 76,77**Clerk of court, rent deposit duty – 386****Code requirements (housing, building, health, or safety)**

Landlord duties – 312,314,315

Tenant duties – 336

Collateral estoppel, FED – 84,85,521,536**Collection of rent, location**

See index heading rent, place for payment

Combination of notices, FED

See index heading consolidation of notices, FED

Commercial tenancy, R.C. Chapter 5321 inapplicability – 295**Common area, landlord duty**

Common law, negligence – 445-446

Definition of common area – 300

Reasonable security measures – 331,332

Safe and sanitary condition, R.C. 5321.04(A)(3) – 321-327

Common law, effect of R.C. Chapter 5321 – 292,293,447,448**Common law claims**

Bailment, landlord seizure of personal property – 476

Constructive eviction – 479-481

Conversion, landlord seizure of personal property – 474,476

Implied covenant of quiet enjoyment – see index heading quiet enjoyment, implied covenant

Implied warranty of habitability – 157,158

Intentional, reckless, or negligent infliction of serious emotional distress – see index heading emotional distress damages, tenant

Invasion of privacy – see index heading invasion of privacy claim (tenant)

Negligence, common area – 445-446

Negligence, criminal activity of third party – 448-450

Punitive damages – see index heading punitive damage claims (tenant)

Trespass – see index heading trespass claim (tenant)

Wrongful eviction – see index heading wrongful eviction

Comparative negligence, R.C. 5321.04 negligence per se claim – 444**Complaint, FED**

Allegations

Limitation of grounds – 38

R.C. 1923.05 requirement – 37

Specificity requirement, Civil Rule 12(E) – 39,40

Amendment, new ground – 40

Joinder of monetary claims, Civil Rule 18(A) – 40,41,646 ____

Non-defendant, enforcement – 95-97

Rental agreement, attachment (Civil Rule 10(D)) – 38,39

Service – see index heading service of process, FED

Compulsory counterclaims

See index heading counterclaims, compulsory

Conclusions of law and findings of fact, FED – 88,89**Condominium, residential premises exclusion – 300****Conflict with R.C. Chapter 5321**

Municipal ordinance – 293,294

Preemption – see index heading preemption, federal law

Rental agreement – see index heading rental agreement

Consolidation of claims, FED trial – 77-79**Consolidation of notices, FED**

Notice to vacate (R.C. 1923.04) and notice of termination

Assisted housing – 22,23

R.C. 5321.11 – 21,22

R.C. 5321.17(B) – 20,21

Constitutionality, rent deposit procedure (R.C. 5321.07-.10) – 393,394**Constructive eviction, common law – 397,479-481****Contempt – 403,404****Continuance, FED**

Authority – 65

Bond

Inherent authority – 62

R.C. 1923.08 – 66,67

Discretion of court – 65,66

Drug-related FED, R.C. 1923.02(A)(6) – 65
Jury demand – 62
Landlord request, R.C. 1923.08 – 65,67,68
Quiet title pending – 74
R.C. 1923.081 – 67,68

Contract claim (tenant), R.C. 5321.04

Attorney's fees – 421
Breach of rental agreement – 398,399
Contract remedies – 398,399
Cooperation of tenant, element – 402,403
Date of liability, upon notice – 400,401
Elements of claim – 398
Fault of landlord, relevancy – 401,402
General damages
 Court decisions, amounts awarded – 408-417
 Measure of damages, general rule – 404-406
 Measure of damages, assisted housing – 406-408
Injunctive relief – 403,404
Notice requirement – 399,400
Proof of claim
 Inspector testimony – 425-427
 Owner opinion rule – 422,423
 Rental value testimony, absence – 424
 Tenant testimony – 422-425
Punitive damages – 420,421
Special damages
 Consequential damages – 418,419
 General rule – 418
 Incidental damages – 419,420
 Inconvenience/discomfort damages – 420
 Personal injury damages – 420
Subtenant – 402
Waiver issues – 421,422

Contract of adhesion, repayment agreement – 177,178

Contract law, rental agreements

Ambiguous forfeiture provision – 175,176
Contract remedies – 398,399
Rental agreements, generally – 309-310

Conversion, landlord seizure of personal property – 474,476

Cooperative housing

Ejectment, cooperative member – 4

FED, cooperative member – 4

Occupancy agreement, rental agreement exclusion – 295

Co-ownership of premises, necessary parties – 527,540**Corporation, attorney requirement (FED) – 191,192****Costs**

Attorney's fees, taxed as – 544,545

Release of rent deposit, R.C. 5321.09 claim (landlord) – 388,389,391

Rent deposit, R.C. 5321.08(D) – 391

Counterclaims, compulsory

FED claim – 53-55

R.C. 5321.04 claim, rent counterclaim – 521,522

R.C. 5321.15 claim

 FED counterclaim – 473

 Rent counterclaim – 521,522

Rent/damage claim, security deposit counterclaim – 507

Security deposit claim, rent/damage counterclaim – 507,521,522

Counterclaims, FED

Certification, Civil Rule 13(J) – 68-71

Child's claims, when non-party – 55

Compulsory counterclaims – 53-55

Jurisdictional limitations

 See index heading jurisdiction of courts

 See index heading jurisdictional issues, FED

Oral counterclaims, prohibition – 55,56,155

Permissive counterclaims – 53

R.C. 1923.061(B) counterclaims – 79,149-156

Counterclaims, R.C. 5321.09(C) – 388**Course of conduct of late rent payments, FED – 138-142****Court reporter, FED – 80****Criminal Activity**

FED, assisted housing – 240-254

Negligence claim (tenant), criminal activity of third party – 448-450

Reasonable security measures, landlord duty – 331-332

Self-defense – 251

Violence Against Women Act – 253,254

Cure of Breach, Opportunity

Notice of termination, assisted housing – 220-222

Notice of termination, R.C. 5313.05 – 641,642

Notice of termination, R.C. 5321.11 – 29-31

Notice to vacate, R.C. 5313.06 – 642-644

Damage to personal property

See index heading personal property, damage

Damage to premises

See index heading maintenance of premises, tenant claims/remedies

See index heading maintenance/use of premises, R.C. 5321.05(C) claim (landlord)

See index heading notice of termination, R.C. 5321.11

See index heading real property, damage

Death of tenant, rental agreement – 514

Defenses, FED (all tenancies)

Accord and satisfaction – 148

Active duty tenant, rent adjustment – 160

Co-tenant, against co-tenant – 196

Course of conduct of late rent payments – 138-142

Cure of breach – see index heading cure of breach, opportunity

Discrimination – 168-173

Drug-related FED, R.C. 1923.02(A)(6) – 197,198

Equity – 178-186

Fictitious or trade name, registration – 189-191

Implied warranty of habitability, common law – 157,158

Late payment fee, rent – 355-361

Manufactured home

 See index heading manufactured home

 See index heading manufactured home park

Notice to vacate, R.C. 1923.04

 Deficient content/service – 120

 Waiver, future rent – 122-131

Notices of termination, R.C. 5321.11,.17(B)

 Deficient content/service – 120,121

 Waiver, future rent or new rental agreement – 131,133

Pattern of late rent payments – 138-142

Real party in interest – 186-189

Reasonable accommodation, disability – 170-173

Renewal of periodic tenancy, partial rent payment – 143

Rent, tender excused

- Landlord's instructions – 145
- Vain act – 140,145
- Rent abatement, R.C. 1923.061(B) – see index heading rent abatement, R.C. 1923.061(B)
- Rent accrued during FED, due date – 146,147
- Rent collection at premises, timely demand – 146
- Rent deposit, R.C. 5321.07 – 392,393,509
- Rent refused, timely tender – 143,144
- Rental agreement
 - Ambiguous forfeiture provision – 175,176
 - Non-material breach – 174,175
 - Performance prevented by landlord – 176,177
 - Renewal provision – 173,174,369-372,594-595
 - Termination procedure provision – 173,174
 - Unconscionable provision – 176,358-372-378
- Repairs (tenant) in lieu of rent, agreement – 159,160
- Retaliation, R.C. 5321.02,.03 – 160-168
- Repayment agreement, contract of adhesion – 177,178
- Service of process, deficient – 121,122
- Set-off against rent, common law – 158,159
- Statute of limitations, R.C. 1923.01(B) – 196,197
- Summons, deficient content – 121,122
- Surrender of possession, timely – 138
- Unauthorized practice of law – 191-196
- Waiver of breach, future rent or new rental agreement – 133-137

Defenses, FED (assisted housing)

- Abatement of subsidy (HCVP), HQS violation – 262-265
- Administrative hearing – 223-227
- Bankruptcy – 269-277
- Criminal activity – 240-253
- Cure of breach – 220-222
- Equity – 182-186
- Excess tenant rent (HCVP), landlord demand – 265,266
- Foreclosure during term, HCVP – 267,268
- Good cause grounds – see index heading good cause, FED (assisted housing)
- Ground not specified, notice of termination – 213,214
- Late payment fee, subsidized housing project-based – 361
- Market rent, improper – 228,229,233-235
- Notice of termination, deficient content/service – 203-220
- Notice to vacate
 - Service on PHA, HCVP – 261,262
 - Waiver, future rent subsidy – 127-131
- Public Housing homeownership (Turnkey III) – 277,278

Retaliation

First and Fourteenth Amendments – 268,269

HUD regulations – 269

Sale of premises, HCVP – 266,267

Subsidy termination

HQS violation, HCVP – 262-265

Improper termination, project-based – 228,229,233-235

Defenses, FED (LIHTC program)

Good cause – 282,283

Notice of termination – 280,281

Defenses, FED (manufactured home park) – see index heading manufactured home park**De minimus breach, FED – 174,175,,256-258****Deposits with court (court order), FED**

Appeal stay – 106-113

Civil Rule 60(B) – 103

Continuance – see index heading continuance, FED

Jury trial – see index heading jury trial, FED

R.C. 1923.061(B) – 150-154

Discrimination, FED – 168-173**Disturbance of neighbors, tenant duty (R.C. 5321.05(A)(8)) – 340,341****Drug-related FED, R.C. 1923.02(A)(6)**

Continuance – 65

Defenses – 197,198

Notice to vacate, R.C. 1923.04(B) – 24-26

Service of process – 52

Due date, rent payment

See index heading rent, payment

Due process

Notice of termination and good cause, assisted housing – 199-201

Utility termination, governmental entity – 608-612

Wrongful eviction

City code enforceent – 484,485

Police assisting landlord – 483,484

Dwelling unit, definition of residential premises – 299-301

Dwelling unit entry, landlord

See index heading entry upon premises, landlord

Elevators, landlord duty (R.C. 5321.04(A)(4)) – 327**Emergency shelters, residential premises exclusion – 300-306****Emotional distress damages, tenant**

Intentional, reckless, or negligent infliction of serious emotional distress claim

Lockout – 474

Maintenance of premises – 450-452

Retaliation – 462,464

Utility termination – 474

R.C. 5321.04 negligence per se claim – 441

R.C. 5321.15(C) all damages claim, utility termination/lockout – 468

Employee tenant, R.C. Chapter 5321 applicability – 306-308**Enforcement of FED judgment**

See index heading judgment, FED

See index heading writ of restitution, FED

Entry upon premises, landlord

Common law claims (tenant), improper entry

Implied covenant of quiet enjoyment – 459

Invasion of privacy – 459

Punitive damages – 459

Trespass – 459

Emergency entry – 344

Harassment, repeated demands – 345

Manner of entry, unreasonable – 345

Notice requirement – 343,344

Purposes for entry, permissible – 343

R.C. 5321.04(B) claim/remedy (tenant), improper entry

Actual damages – 457,458

Attorney's fees – 457-459

Injunctive relief – 457-459

Termination of rental agreement – 457

R.C. 5321.05(C) claim (landlord), right of entry – 529

Repeated demands, harassment – 345

Tenant duty – 343

Waiver prohibition – 345

Equal protection, utility termination (governmental entity) – 608-612

Equity, FED

Appellate review – 179,180

Defense

 All tenancies – 178-182

 Assisted housing – 182-186

 Manufactured home park – 186

Jurisdiction, municipal court – 4

Eviction action

See index headings with FED

Eviction of non-defendant, FED – 95-97**Evidentiary and proof issues, FED**

See index heading trial, FED

Fair Housing Act, FED – 168-173**Fair rental value, land installment contract – 646****False Claim Act, excess HCVP rent – 265,266****Farm residence, residential premises exclusion – 300****FED, background**

Action at law – 4

Purpose – 1,2

Scope of permissible plaintiffs and defendants – 2,3

Statutory remedy – 1

FED, defenses

See index heading defenses, FED (all tenancies)

See index heading defenses, FED (assisted housing)

See index heading defenses, FED (LIHTC program)

See index heading manufactured home park

FED, evidentiary and proof issues

See index heading trial, FED

FED, judgment

See index heading judgment, FED

FED, jurisdictional issues

See index heading jurisdictional issues, FED

FED, land installment contract

See index heading land installment contract

FED, non-defendant occupant – 95-97**FED, trial**

See index heading trial, FED

FED, writ of restitution

See index heading writ of restitution, FED

Federal notice of termination

See index heading notice of termination, assisted housing

Federal regulations

See index heading HUD regulations

Federally-assisted housing

See index heading Housing Choice Voucher

See index heading Public Housing

See index heading subsidized housing project-based

Fee for late payment, rent

See index heading late payment fee, rent

Fees, manufactured home park

See index heading manufactured home park

Fictitious or trade name, registration

FED – 189-191

Monetary claim (landlord), rent – 525

Fighting, FED (assisted housing) – 260**Final appealable order**

Attorney's fees motion pending – 547

FED judgment – 107,108

Rent deposit, partial release – 389

Findings of fact and conclusions of law, FED – 88,89,119**Fire, FED (assisted housing) – 259,260**

Fixed-term rental agreement

See index heading rental agreement

Fixtures, maintenance/use

Landlord duty, R.C. 5321.04(A)(4) – 327

Tenant duty, R.C. 5321.05(A) – 336-340

Foreclosure

Land installment contract – 639-641,644-647

Mortgagor (former), rental agreement exclusion – 295,296

Tenancy, effect

Common law – 601-603

FHA-insured mortgage, single family – 607

Housing Choice Voucher – 267,268

Protecting Tenants at Foreclosure Act – 601,603-607

Forwarding address, security deposit – 494,496-499**Good cause, FED (assisted housing)**

Background – 199-201

Particular cases

Appliances, project rules – 258,259

Child's conduct, non-criminal – 236,237

Criminal conduct, tenant, child, or guest – 240-253

Fighting – 260

Fire – 259,260

Forebearance agreement to vacate, breach – 255,256

Guest's conduct, non-criminal – 238-240

Housekeeping deficiencies – 258

Late tender of rent – 231,232

Market rent, improper – 228,229,233-235

Minor violation – 256-258

Nonpayment of a charge – 232,233

Nonpayment of rent, beyond tenant's control – 228,229

Nonpayment of rent, improper rent calculation – 228,229

Nonpayment of rent, improper rent deposit – 229,230

Nonpayment of rent, improper subsidy termination – 228,229,233-235

"Other good cause" – 258-260

Recertification, failure to furnish – 228,229,233-235

Rent refused, unpaid charge – 230,231

Repair of premises – 259

Transfer, mandatory – 260

Unauthorized occupant – 236

Uninvited person's conduct – 254,255

Violence or stalking, VAWA – 253,254

Good cause, FED (LIHTC program) – 282,283

Good cause, FED (manufactured home park) – 286-288

Grace Period – 21,144,145

Guarantor of lease – 527,528

Guest of landlord, R.C. 5321.04(A) inapplicability – 312

Guest of tenant

See index heading visitor

HCVP termination, R.C. Chapter 2506 appeal – 653-672

Habitability of premises, landlord duty

Implied covenant of quiet enjoyment, common law – see index heading quiet enjoyment,
implied covenant

Implied warranty of habitability, common law – 157,158

R.C. 5321.04(A)(2) – 315-321

Hearing, FED

See index heading trial, FED

Heat, landlord duty (R.C. 5321.04(A)(4),(6)) – 327-329

Holdover tenant – 514-517

Hotel occupancy, residential premises exclusion – 301-306

Housekeeping deficiencies, FED (assisted housing) – 258

Housing Choice Voucher

Abatement of subsidy, HQS violation – 262-265

Excess tenant rent, landlord demand – 265,266

FED defenses – see index heading defenses, FED (assisted housing)

Foreclosure, during term – 267,268

Good cause, during term – see index heading good cause, FED (assisted housing)

HUD regulations, index – 648-652

Notice of termination – see index heading notice of termination, assisted housing

Notice to vacate (R.C. 1923.04), service on PHA – 261,262

Sale of premises – 266,267

Termination of participation, R.C. Chapter 2506 appeal – 653-672

Termination of subsidy, HQS violation – 262-265

Housing code

See index heading code requirements (housing, building, health, or safety)

Housing cooperative

See index heading cooperative housing

Housing court, jurisdiction

See index heading jurisdiction of courts

HUD housing

See index heading Housing Choice Voucher

See index heading Public Housing

See index heading subsidized housing project-based

HUD regulations

Index of regulations – 648-652

Landlord compliance, FED – 201-203

Immunity, PHA – 617-621**Implied assumption of risk, R.C. 5321.04 negligence per se claim – 444****Implied covenant of quiet enjoyment**

See index heading quiet enjoyment, implied covenant

Implied rental agreement provisions, R.C. Chapter 5321 – 310,311**Implied warranty of habitability, common law – 157,158****Increase in rent**

See index heading rent, amount

Injunction remedy, landlord

Access to premises, R.C. 5321.05(C) – 529

Injunction remedy, tenant

Entry upon premises, R.C. 5321.04(B) – 457-459

Lockout, R.C. 5321.15 – 472-474

Maintenance of premises

 R.C. 3767.41 public nuisance – 452-455

 R.C. 5321.04 contract claim – 403,404

 R.C. 5321.07(B)(2) – 394-395

Seizure of personal property, R.C. 5321.15 – 476

Utility termination, R.C. 5321.15 – 472-474

Inspection of premises (R.C. 1923.15), FED

Authority and scope – 100,101

Orders and enforcement – 100,101

Interest award, landlord rent claim – 528**Interest payment, security deposit – 492,493****Invasion of privacy claim (tenant)**

Entry upon premises – 459

Lockout – 474

Utility termination – 474

Itemization, security deposit withheld – 494,495**Joinder of FED and monetary claims, permissive**

Landlord – 40,41

Vendor, land installment contract – 646

Joinder of party issues

FED judgment, non-party occupant – 95-97

Foreclosure, non-party tenant – 602,603

Tenants in common ownership, necessary parties – 527,540

Joint and several liability provision – 339,539**Judgment, FED**

Content – 88,89,93-95,100,101

Enforcement, non-defendant

Child of defendant – 96,97

Spouse of defendant – 96

Subtenant – 95,96

Enforcement prevention, non-defendant – 97

Judicial sale option, manufactured home park – 97-100

Magistrate's decision – see index heading Magistrate, FED

R.C. 1923.15 orders – 100,101

Removal of property – see index heading writ of restitution, FED

Jurisdiction of courts

Equity jurisdiction

County court – 559

Court of common pleas – 561

Municipal court, general division – 560,561

Municipal court, housing division – 564

Monetary jurisdiction

- County court – 558
- Court of common pleas – 559
- Municipal court, general division – 558,559
- Municipal court, housing division – 563,564

Subject-matter jurisdiction

- County court – 74,75,561,562
- Court of common pleas – 562,563
- Municipal court, general division – 74,75,562
- Municipal court, housing division – 563-565

Jurisdictional issues, FED

- Certification to court of common pleas, Civil Rule 13(J) – 68-71
- Concurrent jurisdiction – 68,563
- Counterclaim, absence of subject-matter jurisdiction – 70
- Deed defective on its face, FED defense – 74
- Deed executed, not recorded – 73,74
- Domestic relations court
 - Civil protection order – 76,77
 - Marital residence – 75,76
- Equitable title, equity defense – 75
- Jurisdictional-priority rule
 - FED and injunction possession claim (tenant) – 72,73
 - FED and quiet title – 73
 - FED and second FED (or forfeiture) – 72
 - General rule – 71,72
- Personal jurisdiction, service of process – 121,122
- Probate court – 77
- Quiet title pending, FED stay request – 74
- Record title disputed – 74,75
- Record title undisputed – 74
- Subject-matter jurisdiction
 - Lacking, judgment void ab initio – 105
 - Notice of termination, assisted housing – 201
 - Notice of termination, R.C. 5321.11,.17(B) – 120,121
 - Notice to vacate, R.C. 1923.04 – 11,12,120

Jury trial, FED**Authority**

- Ohio Constitution – 57
- R.C. 1923.10 – 56,57
- Deposit, R.C. 1901.26(A)(3)
 - Constitutional limitations – 60,61
 - General rule – 59-61
 - Waiver, indigency – 61

Deposit, rent

- Inherent authority – 61,62

- R.C. 1923.08 – 62

Jury demand, filing time – 57-59**Waiver of right to jury trial, noncompliance**

- Deposit, R.C. 1901.26(A)(3) – 63,64

- Deposit, rent – 64

- Jury demand – 63

- Jury instruction – 64

- Objection to denial – 64

Waiver of right to jury trial, rental agreement – 62,63**Withdrawal of jury demand – 65****Keys****Delivery of possession**

- Rental obligation – 511,512

- Security deposit – 491,496

Landlord copy – 334**Land installment contract****Contract provisions, R.C. 5313.02(A)**

- Enforcement – 637

- Provisions mandated – 634,635

- Purpose and scope – 630,631

- Substantial compliance – 635,636

Deficiency judgment, bar – 644-647**Definition of land installment contract – 630****Fair rental value – 646****Joinder of claims/trials – 646****Oral contract, partial performance – 637****Prepayment of contract – 638****Recording of contract – 636,637****Sale of property, pending contract – 638****Specific performance action – 647****Vendee claims**

- Breach of contract – 639

- Enforcement of R.C. 5313.02(A) requirements – 637

- Payments above fair rental value, if forfeiture – 644

Vendor claim, FED

- Eligible contracts – 639-641

- Equity defense – 644

- Notice of termination, cure (default amount) – 642

- Notice of termination, time – 641,642

- Notice to vacate, content/service – 641-644

- Notice to vacate, cure (contract amount) – 642

Vendor claim, foreclosure – 639-641,644-647

Vendor claims, monetary

Exclusions – 644-647

Payments below fair rental value, if forfeiture – 644-646

Property damage – 645

Landlord, definition (R.C. 5321.01(B)) – 299

Landlord, entry upon premises

See index heading entry upon premises, landlord

Landlord, failure to maintain premises

See index heading maintenance of premises, tenant claims/remedies

Landlord, maintenance of premises duties

See index heading maintenance of premises, landlord duties

Landlord, property damage claim

See index heading maintenance/use of premises, 5321.05(C) claim (landlord)

Landlord, rent claim

See index heading rent, landlord claim

Landlord, retaliation

See index heading retaliation

Landlord, security deposit retained

See index heading security deposit

Landlord, seizure of personal property

See index heading personal property (tenant), seized by landlord

Landlord, termination of tenancy procedure

See index heading termination of tenancy procedure, landlord

Landlord, utility termination or lockout

See index heading utility termination/lockout, landlord repossession

Landlord, wrongful eviction

See index heading wrongful eviction

Late payment fee, rent

Actual damage claim (landlord), absent late payment fee – 360

Discount rent – 360

Nonpayment of fee, FED

General rule – 360

Subsidized housing project-based – 361

Restrictions

Liquidated damages/penalty – 355-358

Unconscionability, R.C. 5321.14 – 358-360

Written rental agreement provision, prerequisite – 355

Late payment of rent, course of conduct – 138-142

Late tender of rent, FED (assisted housing) – 231,232

Latent defects, R.C. 5321.04 negligence per se claim – 435-437

Lead paint, R.C. 5321.04 negligence per se claim – 434,435

Leaf removal, landlord duty – 327

Lease

See index heading rental agreement

Lease with option to purchase

See index heading option to purchase

Legislative intent, R.C. Chapter 5321 – 291,292

Limited liability company, unauthorized practice of law (FED) – 192,193

Liquidated damages

Late payment fee – 355-358

Security deposit – 510

Local ordinance, conflict with R.C. Chapter 5321 – 293,294

Lockout, landlord repossession

See index heading utility termination/lockout, landlord repossession

Low Income Housing Tax Credit program

Good cause, owner nonrenewal – 282,283

Low income units, set-aside – 278,279

Notice of termination – 280,281

Rent – 279,280

Magistrate, FED

Appointment of magistrate – 79

Content of magistrate's decision – 88,89

Court review, absent objections – 89

Objections

 Applicability and requirements – 89-92

 Mootness – 92,93

 Prerequisite to appeal – 90,91

Stay, pending objections – 92,93

Trial – see index heading trial, FED

Mail, acceptance of rent – 353**Maintenance of premises, landlord duties**

Bed bugs – 319-321

Guests of landlord – 312

Guests of tenant – 312,313

Implied covenant of quiet enjoyment, common law – 332-335

Implied warranty of habitability, common law – 157,158

Mastermetered utility, PUCO rule – 329,330

Open and obvious doctrine inapplicable, R.C. 5321.04(A)(3) – 322,323

R.C. 5321.04(A), overview – 311,312

R.C. 5321.04(A), particular duties

 Air conditioning – 327

 Codes (housing, building, health, or safety) – 314,315

 Common areas – 321-327

 Elevators – 327

 Fixtures/appliances (electrical, plumbing, sanitary, ventilating) – 327

 Habitable and fit condition – 315-321

 Heat – 328,329

 Latent defects – 435-437

 Water – 328-330

Rental agreement, express provisions – 341,342

Security measures against criminal activity, common areas – 331,332

Snow and ice removal – 323-325

Waiver of duties – 313,314

Maintenance of premises, tenant claims/remedies

Constructive eviction, termination of rental agreement – 397,479-481

Contract claim, R.C. 5321.04 – see index heading contract claim (tenant), R.C. 5321.04

Negligence, common law

 Premises liability – 445-448

 Criminal activity of third party – 448-450

Negligence per se claim, R.C. 5321.04 – See index heading negligence per se claim (tenant), R.C. 5321.04.

Punitive damages claims – see index heading punitive damages claims (tenant)

R.C. 3767.41 claim (public nuisance), injunction and receiver – 452-455
R.C. 5321.07(B) claims and remedies
 See index heading R.C. 5321.07(B) claims and remedies, tenant
 See index heading rent, deposit with court (R.C. 5321.07-.10)
Serious emotional distress claim (intentional, reckless, or negligent) – 450-452

Maintenance/use of premises, R.C. 5321.05(C) claim (landlord)

Actual damages – 529
Attorney's fees – 529,535,536
Burden of proof, landlord
 Amount of damages – 538,539
 Damage caused by tenant, R.C. 5321.05(A) violation – 537,538
Collateral estoppel, FED finding – 536
Default judgment, FED appearance (tenant) – 540
Estimates, Evidence Rule 803(6) – 541
Injunctive relief, access – 529
Itemization, not prerequisite – 539
Measure of damages
 Damage to personal property – 534,535
 Damage to premises – 533,534
Necessary parties, two or more owners – 540
Normal wear and tear – 529-533
Owner opinion rule – 540,541
Relief
 Actual damages – 529
 Attorney's fees – 529,535,536
 Injunctive relief, access – 529
Security deposit, effect – 539
Speculative damages – 538
Unpaid security deposit – 539

Maintenance/use of premises, tenant duties

R.C. 5321.05(A), overview – 336
R.C. 5321.05(A), particular duties
 Damage to premises – 337-340
 Dwelling unit, safe and sanitary – 337
 Neighbors' peaceful enjoyment – 340,341
Rental agreement, express provisions – 341,343

Manufactured home

Manufactured home park – see index heading manufactured home park
Non-manufactured home park
 Tenant of manufactured home – 284
 Tenant of lot – 285
R.C. Chapter 5321 applicability – 284,285

Manufactured home park

Comparison: R.C. Chapters 4781, former 3733, and 5321 – 567,568

Damage claim, R.C. 4781.46 (former R.C. 3733.14) – 591

Deceased resident, FED service of process – 52

Defenses (owner), FED

Equity – 186

Good cause – 286-288

Installment contract nonpayment – 285

Park rule violation, R.C. 4781.45 (former R.C. 3733.13) – 286-288,588-591

Rent increase during first year – 288,289,580-582

Sale of home, basis for eviction – 289,290,577-579

Defenses (owner or tenant), FED

Conventional FED defenses – 285,286

Fee, non-disclosure – 289,580-582

Entry upon premises, R.C. 4781.38 (former R.C. 3733.10) – 577

Fees/charges, R.C. 4781.40 (former R.C. 3733.11)

Disclosure – 289,580-582

Increase in amount, procedure – 289,569

Move-in/move-out fee, restrictions – 570

Utility fee – 585

Judicial sale option, FED – 97-100

Maintenance of park by park operator, R.C. 4781.38 (former R.C. 3733.10)

Concrete pad – 575

Electrical service – 575

Flooding – 575,576

General issues – 572,573

Outside grounds – 576

Pets – 576,577

Water and sewer services – 573,574

Mandatory purchases, R.C. 4781.40 (former R.C. 3733.10)

Manufactured or mobile home – 570

Personal property – 570

Services – 570

Park rules, R.C. 4781.40 (former R.C. 3733.11)

Age of home – 579,580

Change in rules, procedure – 570

Disclosure – 569,580-582

Home additions – 585

Pets – 582,583

Reasonableness requirement – 569

Rental agreement, term – 584,585

Sale of home – 577-579

Utility fee – 585

Visits, family members – 584

Water and sewer services – 585

R.C. Chapter 5321 applicability – 285,286
Remedial legislation, R.C. 4781.36-.52 (former R.C. 3733.09-.20) – 566
Rent deposit, R.C. 4781.41-.43 (former R.C. 3733.12-.122) – 586-588
Rental agreement, R.C. 4781.40 (former R.C. 3733.11)
 Initial term – 584,585
 Written – 584,585
Retaliation, R.C. 4781.36,37 (former R.C. 3733.09,.091) – 570-572
Sale of home, R.C. 4781.40 (former R.C. 3733.11) – 577-579
Unconscionability, R.C. 4781.48 (former R.C. 3733.16) – 592
Unlawful removal of home/property, R.C. 4781.49 (former R.C. 3733.17) – 592,593

Marital residence

R.C. Chapter 1923 applicability – 75,76,296
R.C. Chapter 5321 applicability – 75,76,296

Market rent, assisted housing – 228,229,233-235**Measure of damages**

Damage to personal property – 534,535
Damage to real property – 533,534

Minor violation, FED (assisted housing) – 256-258**Mitigation of damages, landlord duty – 518-521****Mobile Home**

See index heading manufactured home
See index heading manufactured home park

Monetary jurisdiction, courts

See index heading jurisdiction of courts

Month-to-month tenancy

Rental obligation
 End date – 511-513
 Increase – 348,349
Termination of tenancy – see index heading notice of termination, R.C. 5321.17(B)

Mootness, appeal of FED judgment

See index heading appeal, FED

Mortgagor (former), rental agreement exclusion – 295,296

Motions, FED

Amend agreed judgment – 106,107
Continuance – see index heading continuance, FED
Findings of fact and conclusions of law, Civil Rule 52 – 88,89,119
More definite statement, Civil Rule 12(E) – 39,40
New trial, Civil Rule 59 – 101,102
Relief from judgment, Civil Rule 60 – 102-105
Stay
 Pending appeal – 108-113
 Pending objections – 92,93
Summary judgment, Civil Rule 56 – 10
Vacate judgment – 105,106

Natural/wild land, residential premises exclusion – 300**Negligence claims (tenant), common law**

Criminal activity of third party – 448-450
Premises liability – 445-448

Negligence per se claim (tenant), R.C. 5321.04

Assumption of risk, implied and primary – 444
Common law negligence, supplement – 447,448
Comparative negligence – 444
Damages – 440-442
Elements of claim – 427,428
Independent contractor, landlord liability – 442
Lead-based paint – 434,435
Notice requirement
 Constructive notice – 429-432
 General rule – 428,429
 Guest of tenant – 438
 R.C. 5321.04(A)(1) duty – 437,438
 R.C. 5321.04(A)(4) duty, latent defects – 435-437
 Specificity of notice – 433-435
Open and obvious doctrine – 443,444
Proximate cause – 438-440
Punitive damages – 441,442
Sale of property, seller's continuing liability – 442,443
Sovereign immunity, PHA – 619,620
Statute of limitations – 615,616

Neighbors' peaceful enjoyment, tenant duty (R.C. 5321.05(A)(8)) – 340,341**New trial motion, FED – 101,102****Non-defendant occupant, FED – 95-97**

Non-material breach, FED – 174,175,256,258**Normal wear and tear – 529-533****Notice of termination, assisted housing**

Background – 199-201

Consolidation with notice to vacate (R.C. 1923.04) – 214,215

Cure of breach, opportunity – 220-222

Defenses, FED – see index heading defenses, FED (assisted housing)

HUD regulations, index – 652

Misstatement of required element – 203-206

Omission of required element – 203-206

Second notice – 220

Service

 Method – 219,220

 Time – 215-219

Statement of reason(s)

 Limit of reason(s) for FED – 213,214

 Specificity requirement – 206-213

Strict compliance – 201-203

Notice of termination, LIHTC program – 280,281**Notice of termination, R.C. 5313.05**

See index heading land installment contract

Notice of termination, R.C. 5321.11

Applicability

 General rule – 26

 Written rental agreement – 31,32

Consolidation with notice to vacate (R.C. 1923.04) – 21,22

Content

 Date of proposed termination – 29

 Description of violation – 28,29

 Statement of proposed termination – 29

Cure of violation – 29-31

Defenses, FED – see index heading defenses, FED (all tenancies)

Element of FED claim, absence of timely cure – 137,138

Health/safety violation, prerequisite – 27,28

Purpose – 26

Rent payment

 After thirty-day period – 36,131-133

 During thirty-day period – 36,131

Service of notice, time – 29

Specificity of description – 28,29

Subject-matter jurisdiction, FED – 32,33,120,121

Thirty-day rule – 29

Waiver of notice, future rent – 131-133

Written notice – 28

Notice of termination, R.C. 5321.17(B)

Applicability – 26

Consolidation with notice to vacate (R.C. 1923.04) – 20,21

Content – 34

Defenses, FED – see index heading defenses, FED (all tenancies)

Oral or written notice – 33,34

Purpose – 26

Rent payment

 After thirty-day period – 36,131-133

 During thirty-day period – 36,131

Service of notice

 Method – 33,34

 Time – 34,35

Subject-matter jurisdiction, FED – 121

Thirty-day rule – 34-36

Voluntary dismissal of FED, effect – 37

Waiver of notice, future rent – 131-133

Notice of termination, rental agreement provision – 173,174

Notice to vacate, R.C. 1923.04(A)

Commencement of FED, prerequisite – 10,11

Consolidation with notice of termination

 Assisted housing – 22,23

 R.C. 5321.11 – 21,22

 R.C. 5321.17(B) – 20,21

Content

 Date – 17

 Demand to leave premises – 14-16

 Name of prospective FED plaintiff – 13,14

 Reason for eviction – 16,17

 Statutory language, conspicuous – 14-16

Defenses, FED

 See index heading defenses, FED (all tenancies)

 See index heading defenses, FED (assisted housing)

Drug-related FED, R.C. 1923.02(A)(6) – 24-26

Rent obligation, after service – 513

Rent payment, after service

 General rule – 122-127

 Assisted housing – 127-131

- Second notice to vacate – 12,13
- Service of notice, method
 - General rule – 23,24
 - Deceased resident, manufactured home park – 24
- Service of notice, time
 - Additional time, landlord delay – 19,20
 - Additional time, specified in notice – 19
 - Civil Rule 6(A) – 17-19
 - Expiration of tenancy – 20-23
 - Grace period – 21
 - Three-day rule – 17-19
- Service on PHA, HCVP – 261,262
- Subject-matter jurisdiction, FED – 11,12
- Waiver of notice, future rent
 - General rule – 122-127
 - Assisted housing – 127-131
- Written notice – 13

Notice to vacate, R.C. 5313.06

See index heading land installment contract

Objections, magistrate's decision (FED)

See index heading magistrate, FED

Ohio Civil Rights Act, FED – 168-170**Ohio Consumer Sales Practices Act, residential rental agreement – 614,615****Ohio Landlord-Tenant Act (R.C. Chapter 5321), background**

- Applicable properties and occupancies, overview – 295
- Common law, effect – 292,293
- Employee tenant – 306-308
- Implied rental agreement provisions – 310,311
- Landlord – 299
- Municipal ordinances, effect – 293,294
- Purpose – 291,292
- Remedial statute – 291
- Rental agreement – 295,296
- Residential premises – 299-301
- Tenant – 296-299
- Uniform Residential Landlord and Tenant Act, adaptation – 291

Ohio Rules of Civil Procedure, FED

- Applicability, general rule – 5-7
- Rule 1(C) – 5-8,39,43,45-51
- Rule 3(A) – 121

Rule 4(A) – 121
Rule 4(B) – 42,43
Rules 4.1,4.6 – 7,45-51,96
Rule 6(A) – 8,17-19
Rule 8(A) – 38
Rule 9(A) – 8
Rule 10(C) – 8
Rule 10(D) – 8,38,100
Rule 11 – 39
Rule 12(A) – 78,79
Rule 12(E) – 39
Rule 12(F) – 71
Rule 13(A) – 8,53,54
Rule 13(B) – 8,53
Rule 13(J) – 9,69,70
Rule 15(B) – 40
Rule 17(A) – 9,187,188
Rule 18(A) – 9,40
Rule 19(A) – 9,527,540
Rule 38(B) – 9,58
Rule 38(D) – 65,80
Rule 41(A) – 9
Rule 42 – 9,41,77,78
Rule 52 – 9,89,119
Rule 53(C) – 80
Rule 53(D) – 9,88-93,102,119
Rule 54 – 10,108,392,502,526,527,540,546
Rule 55 – 10,82,525,526,540
Rule 56 – 10
Rule 59 – 10,101,102,119
Rule 60(B) – 10,94,102-105
Rule 62(B) – 108

Open and obvious doctrine

Common law negligence premises liability – 446,447
R.C. 5321.04 negligence per se claim (tenant) – 443,444
R.C. 5321.04(A)(3) duty – 322,323

Option to purchase

Deposit – 490
Jurisdiction, county court – 562
Land installment contract, distinguished – 631-633
Public housing homeownership (Turnkey III) – 277
R.C. 5321.14, inapplicability – 373
Rental agreement, distinguished – 296
Repair agreement, limitations – 314

Tenant, distinguished – 299

Option to renew, rental agreement – 173,174,369-372

Oral condition precedent, written rental agreement – 599

Oral modification, written rental agreement – 599

Oral rental agreement – 596-598

Ordinance, conflict with R.C. Chapter 5321 – 293,294

Other good cause, FED (assisted housing) – 200,201,217,218

Overnight guest rule

See index heading visitor

Owner opinion rule, landlord

Damage to personal property – 541

Damage to premises – 540

Owner opinion rule, tenant

Damage to personal property – 423

Damage to premises – 422,423

Park rules, manufactured home park

See index heading manufactured home park

Partial performance

Land installment contract – 637

Rental agreement, statute of conveyances – 597,598

Rental agreement, statute of frauds – 597,598

Partial rent payment, renewal of periodic tenancy – 143

Partnership

Fictitious or trade name, registration – 189,191

Real party in interest, FED – 188,189

Unauthorized practice of law, FED – 193,194

Pattern of late rent payments, FED – 138-142

Personal property, abandonment – 475

Personal property, damage

Measure of damages – 534,535

Owner opinion rule, landlord – 541

Owner opinion rule, tenant – 423

Personal property (tenant), seized by landlord

Abandoned property (common law), R.C. 5321.15 inapplicability – 475

Claim (tenant), R.C. 5321.15(C)

 All damages – 475,476

 Attorney's fees – 475

 Injunctive relief – 476

 Punitive damages – 475,476

Claim (tenant), replevin – 476

Claims (tenant), common law

 Bailment – 476

 Conversion – 476

Prohibition, R.C. 5321.15 – 475

Pets

Pet deposit, security deposit – 486,487

Project rule, unconscionability (R.C. 5321.14) – 378

PHA termination of HCVP participation, R.C. Chapter 2506 appeal – 653-672

Post-judgment motions, FED

See index heading motions, FED

Primary assumption of risk, R.C. 5321.04 negligence per se claim – 444,445

Preemption, federal law

Foreclosure, HCVP tenancy – 267,268

Foreclosure, Public Housing homeownership (Turnkey III) – 277,278

Foreclosure, Protecting Tenants at Foreclosure Act – 601,603

Foreclosure, tenancy in FHA-insured single-family – 607

Guest, non-criminal conduct – 239,240

Guest, innocent tenant and equity – 246-248

Pro se party, FED – 83,84

Probate proceeding, effect on FED – 77

Proof and evidentiary issues, FED

See index heading trial, FED

Property removed from premises, writ of restitution

See index heading writ of restitution, FED

Protecting Tenants at Foreclosure Act – 601,603-607**Public Housing**

Administrative hearing, termination of tenancy – 223-227

Bankruptcy, rent arrears – 269-277

FED defenses – see index heading defenses, FED (assisted housing)

Good cause – see index heading good cause, FED (assisted housing)

Homeownership (Turnkey III), FED – 277,278

HUD regulations, index – 648-652

Notice of termination – see index heading notice of termination, assisted housing

Public nuisance, injunction/receiver (R.C. 3767.41) – 452-455**PUCO rules (landlord-tenant), utility termination – 607,608****Punitive damage claims (tenant)**

Entry upon premises, common law

 Invasion of privacy – 459

 Trespass – 459

Lockout – 468-471

Negligence per se claim – 441,442

Retaliation – 462,464

Seizure of personal property – 475,476

Utility termination – 468-471

Wrongful eviction

 Section 1983 of 42 U.S.C. – 484

 Tort, fraud and deceit – 482

Purpose

FED action – 1,2

Ohio Landlord-Tenant Act – 291,292

Quiet enjoyment, implied covenant

Air conditioning – 333

Cigarette smoke – 333,334

Criminal activity, reasonable security measures – 331,332,335

General standard – 332-333

Landlord entry – 459

Measure of damages – 335

Third-party conduct – 334,335

Water services – 330

Quiet title action

See index heading jurisdictional issues, FED

R.C. 5321.07(B) claims and remedies, tenant

Claims, R.C. 5321.07(B)(2)

Injunction – 394,395

Release of rent deposit, tenant repair – 394,395

Rent reduction – 394,395

Procedures – 384-386,394-397

Rent deposit – see index heading rent, deposit with court (R.C. 5321.07-.10)

Termination of rental agreement, R.C. 5321.07(B)(3) – 396,397

R.C. Chapter 1923, background

See index heading FED, background

R.C. Chapter 2506, PHA termination of HCVP participation – 653-672**R.C. Chapter 5321, background**

See index heading Ohio Landlord-Tenant Act (R.C. Chapter 5321), background

Real party in interest, FED – 186-189**Real property, damage**

Measure of damages – 533,534

Owner opinion rule, landlord – 540

Owner opinion rule, tenant – 422,423

Receiver

R.C. 2735.01 claim (tenant), noncompliance with court order – 455,456

R.C. 3767.41 claim (tenant), public nuisance – 452-455

Recertification of income, FED (assisted housing)

HCVP – 235

Project-based – 233-235

Recoupment, R.C. Chapter 5321 claims – 617**Release of rent deposit (R.C. 5321.07-.10)**

See index heading rent, deposit with court (R.C. 5321.07-.10)

Relief from judgment motion, FED – 102-105**Remedial statute**

R.C. 4781.36-.52 (former R.C. 3733.09-.20) – 566

R.C. Chapter 5321 – 291

Renewal of periodic tenancy, partial rent payment – 143**Renewal provision, rental agreement – 173,174,369-372****Rent**

Definition – 345-347

Form of payment – 347

Landlord-tenant relationship, prerequisite – 347,348

Rent, acceptance

Bank deposit – 352,353

Check/money order – 350-352

Mail – 353

Third-party payment – 352

Rent, accrued during FED

Due date – 146,147,355

Tenant obligation – 517,518

Rent, amount

General rule – 348,349

Rent increase

Month-to-month tenancy – 348,349

Retaliation – 349

Unconscionability – 349

Repairs (tenant) in lieu of rent – 159,160

Rent, claim (landlord)

Civil Rule 54(C), FED and monetary claim – 526,527

Collateral estoppel, FED finding – 521

Compulsory counterclaims – see index heading counterclaims, compulsory

Default judgment, FED appearance (tenant) – 525,526

Fictitious name, registration – 525

Guarantor – 527,528

Holdover tenant – 514-517

Interest on judgment – 528

Itemization, not prerequisite – 524

Mitigation, landlord duty – 518-521

Month-to-month tenant – 511-513

Necessary parties, two or more owners – 527

Preclusion of additional claims

Late payment fee – 523,524

Liquidated damages, if actual damages – 525

Unpaid security deposit – 523

Remainder of term, post-death of tenant – 514
Remainder of term, post-notice to vacate – 513
Rent accrued during FED – 146,147,355,517,518
Rent refused, untimely – 522
Security deposit, set-off – 522
Unaccrued rent – 522,523

Rent, deposit with court (court order)

See index heading deposits with court (court order), FED

Rent, deposit with court (R.C. 5321.07-.10)

Bad faith claim, landlord – 392
Clerk of court, duties – 386,391
Constitutionality – 393,394
Costs
 R.C. 5321.09 action – 388,389
 Rent deposit fee, clerk of court – 391
Eviction, nonpayment of rent – 392,393,509
Exempt landlords, rent deposit remedy – 384
Final appealable order, partial release – 389
Pleadings, landlord release claim
 Answer – 388
 Complaint – 387,388
 Counterclaim – 388
Procedures, rent deposit – 384-386
Related claims and remedies (tenant), R.C. 5321.07(B) – see index heading R.C. 5321.07(B)
 claims and remedies, tenant
Release of rent deposit to landlord
 Full release – 387-389
 Partial release – 389
Release of rent deposit to tenant – 390,391

Rent, end date of obligation

Holdover tenant – 514-517
Mitigation, landlord duty – 518-521
Month-to-month tenant – 511-513
Remainder of term, post-death of tenant – 514
Remainder of term, post-notice to vacate – 513
Rent accrual during FED – 517,518

Rent, late payment fee

See index heading late payment fee, rent

Rent, payment

Arrears, month to which payment applies – 353,354
Due date

- Course of conduct of late payments – 138-142,355
- Rent accrued during FED – 146,147,355,517,518
- Rental agreement – 354,355
- Partial payment, renewal of periodic tenancy – 143
- Place for payment – 146,349,350
- Sale of premises – 361,362
- Waiver of breach – 133-135
- Waiver of notice of termination – 131-133
- Waiver of notice to vacate
 - Assisted housing – 127-131
 - General rule – 122-127

Rent, place for payment

- General rule – 146,349,350
- Premises, absent agreement – 146,349,350

Rent, refused

- Partial tender – 144
- Timely tender – 143,144
- Untimely tender – 144

Rent abatement, R.C. 1923.061(B)

- Consolidation of trial, FED and counterclaim – 79
- General rule – 149,150
- Net judgment, requirement – 154,155
- Notice – 155
- Payment of deficiency, post-net judgment – 155,156
- Rent deposit with court – 150-154
- Written counterclaim – 155

Rent abatement, R.C. 5321.07(B)(2) – 394-396**Rent nonpayment, FED (assisted housing)**

- Circumstances beyond tenant's control – 227,228
- Improper rent calculation – 228,229
- Improper rent deposit – 229,230
- Market rent, improper – 233-235
- Rent refused, unpaid charge – 230,231
- Subsidy payment, HCVP – see index heading Housing Choice Voucher

Rent voucher, Section 8

- See index heading Housing Choice Voucher

Rental agreement

- Ambiguous forfeiture provision, FED – 175,176

Breach of rental agreement

See index heading maintenance of premises, tenant claims/remedies

See index heading maintenance/use of premises, R.C. 5321.05(C) claim (landlord)

See index heading rent, claim (landlord)

Contract law, applicability – 175,309,310

Definition, R.C. 5321.01(D) – 76,295,296

Employment contract/rental agreement – 306-308

Fixed-term rental agreement

Nonrenewal – 174,369,370

Retaliation exception – 164

Termination notices – 174

Implied provisions

Quiet enjoyment – see index heading quiet enjoyment, implied covenant

R.C. Chapter 5321 provisions – 310,311

Joint and several liability provision – 339,539,540

Maintenance of premises (landlord), express provisions – 335,336

Maintenance of premises (tenant), express provisions – 341,342

Minor violation, FED (assisted housing) – 256,257

Non-material breach, FED – 174,175,256,257

Procedures for termination, lease – 173,174

Prohibited provisions, R.C. 5321.06,.13,.14

Attorney's fees – 378,379,382,383

Confession of judgment – 378,379

Inconsistent with R.C. Chapter 5321 – 378-383

Indemnification or limitation of landlord liability – 378-381

Rent independent of R.C. Chapter 5321 – 378,379

Unconscionable provision – 176,372-378

Waiver of R.C. Chapter 5321 – 345,378-383

Renewal provision

Automatic renewal – 173,174,369-372

Option to renew – 173,174,369,370

Termination procedures, lease – 173,174

Rental agreement, manufactured home park

See index heading manufactured home park

Repair of premises, FED (assisted housing) – 259**Repairs (tenant) in lieu of rent, FED**

Agreement – 159,160

Set-off, common law – 158,159

Res judicata

FED and then non-FED – 85,86

FED and then second FED – 86

Residential premises

Abandonment of premises – 466

Definition, R.C. 5321.01(C) – 299-306

Surrender of premises – 465,466

Transient occupancy, exclusions – 301-306

Residential tenancy, R.C. Chapter 5321 applicability – 295**Restitution, criminal housing code proceeding – 456****Retaliation**

Claim (tenant), R.C. 5321.02(B)

Actual damages – 461,462

Attorney's fees – 461,462

Injunctive relief – 462,463

Claims (tenant), common law

Punitive damages – 464

Serious emotional distress (intentional, reckless, or negligent) – 464

Defenses, FED

See index heading defenses, FED (all tenancies)

See index heading defenses, FED (assisted housing)

Dual motive issue – 167,168

Exclusions, R.C. 5321.03 – 164-167,463,464

Prohibition, R.C. 5321.02(A) – 160,161,461

Proof of retaliation – 161-163

Sale of premises, existing tenancy

Foreclosure sale

Common law – 602,603

FHA-insured mortgage, single family – 607

Housing Choice Voucher – 267,268

Protecting Tenants at Foreclosure Act – 603-607

Housing Choice Voucher – 266,267

Purchase subject to tenancy – 600

R.C. 5321.04 negligence per se liability, seller – 442,443

Rent payments – 361,362

Security deposit, effect – 509,510

Sale of premises, pending land installment contract – 638**Section 8 project-based**

See index heading subsidized housing project-based

Section 8 voucher

See index heading Housing Choice Voucher

Section 504 of Rehabilitation Act, FED – 168-170**Section 1982 of 42 U.S.C., FED – 168-170****Security deposit**

Accord and satisfaction – 508

Advance payment, last month's rent – 487

Amount, limitations – 492

Application payment – 487

Automatic forfeiture of deposit provision – 510

Burden of proof – 507,508

Cancellation of agreement pre-occupancy, deposit return – 490,491

Claim (tenant), deposit only – 500

Claim (tenant), R.C. 5321.16(C)

Attorney's fees – 500,503-507

Statutory damages – 500,502,503

Wrongfully withheld deposit – 500,501

Compulsory counterclaims – see index heading counterclaims, compulsory

Definition, R.C. 5321.01(E) – 486

Forwarding address (tenant) – 496-499

Good faith, landlord – 501

Guarantor, improper party – 508,509

Interest payment – 492,493

Itemization, withheld portion – 494,495

Keys, delivery of possession – 496

Legal status of deposit – 486

Liquidated damage provision – 510

Maintenance fee – 489

Maintenance of deposit, during tenancy – 493

Nonpayment of deposit, effect – 522,523,539

Option to purchase deposit – 490

Pet deposit – 486,487

Pre-occupancy cancellation of agreement, deposit return – 490,491

Redecorating fee – 489

Retention of deposit, permissible grounds – 494

Return of deposit, landlord duty – 493,494

Sale of premises, during tenancy – 509,510

Set-off, rent claim (landlord) – 522

Small claims court, jurisdiction – 503

Surety bond premium – 489,490

Thirty-day rule, deposit/itemization – 493,494,496

Use of deposit

During tenancy – 493

After tenancy – 493,494
Wrongful withholding, standard – 501

Security measures, common area – 331-332

Seizure of tenant’s personal property, landlord

See index heading personal property (tenant), seized by landlord

Serious emotional distress claim (intentional, reckless, or negligent)

See index heading emotional distress damages, tenant

Service of process, FED

Method

All FED actions, R.C. 1923.06 – 44-52
Deceased resident, manufactured home park – 52
Drug-related FED action, R.C. 1923.02(A)(6) – 52
Ordinary mail/posting issues – 46-51

Time

All FED actions, R.C. 1923.06(A) – 43
Drug-related FED action, R.C. 1923.02(A)(6) – 52

Set-off against rent (common law), FED – 158,159

Sex offenders, residency and occupancy restrictions – 383

Snow/ice removal, landlord duty – 323-325

Sovereign immunity, PHA – 617-621

Specificity

Complaint, FED – 37,39,40
Itemization, security deposit withheld – 495
Notice of R.C. 5321.04 violation, negligence per se claim (tenant) – 433-438
Notice of termination
Assisted housing – 206-213
R.C. 5321.11 – 28,29

S.R.O. facility, residential premises exclusion – 300,301

Statute of conveyances – 594-598

Statute of frauds

Land installment contract – 637
Rental agreement – 596-598

Statute of limitations

Contract claim, R.C. 5321.04 or 5321.05(C) – 616

FED – 196,197

R.C. 5321.04 negligence per se claim – 616

R.C. Chapter 5321 statutory claims – 615,616

Stay

Pending appeal, FED – 108-113

Pending objections, FED – 92,93

Storage fee (personal property), FED – 95**Strict liability, guest conduct – 338-340****Students, residential premises exclusion**

Colleges and universities – 300

Elementary and secondary boarding schools – 300

Subject-matter jurisdiction, courts

See index heading jurisdiction of courts

Subject-matter jurisdiction, FED

See index heading jurisdictional issues, FED

Submeters, utilities – 612,613**Subsidized housing**

See index heading Housing Choice Voucher

See index heading Public Housing

See index heading subsidized housing project-based

Subsidized housing project-based

Administrative hearing, termination of tenancy – 223-227

Bankruptcy, rent arrears – 269-277

FED defenses – see index heading defenses, FED (assisted housing)

Good cause – see index heading good cause, FED (assisted housing)

HUD regulations, index – 648-652

Late payment fee, rent – 361

Notice of termination – see index heading notice of termination, assisted housing

Subtenant – 96,298,402**Summons, FED**

Content

Date/time of trial, Civil Rule 4(B) – 42,43

- Statutory language, conspicuous – 42
- Deficient content/service
 - Judgment void ab initio – 122
 - Participation in case without waiver – 122
 - Quash service – 121
- Service – see index heading service of process, FED

Supersedeas bond, FED – 108-113**Surrender of premises – 465,466****Tenant**

- Definition, R.C. 5321.01(A) – 296-299
- Employee tenant – 306-308

Tenant, maintenance of premises claims/remedies

- See index heading maintenance of premises, tenant claims/remedies

Tenant, maintenance/use of premises duties

- See index heading maintenance/use of premises, tenant duties

Tenant, maintenance/use of premises improperly

- See index heading maintenance/use of premises, R.C. 5321.05(C) claim (landlord)

Tenant, personal property seized by landlord

- See index heading personal property (tenant), seized by landlord

Tenant, repairs in lieu of rent

- See index heading repairs (tenant) in lieu of rent, FED

Tenant, retaliation claim

- See index heading retaliation

Tenant, security deposit claim

- See index heading security deposit

Tenant, termination of tenancy procedure

- See index heading termination of tenancy procedure, tenant

Tenant, unlawful entry claim

- See index heading entry upon premises, landlord

Tenant, utility termination/lockout claim

- See index heading utility termination/lockout, landlord repossession

Tenant, wrongful eviction claim

See index heading wrongful eviction

Tenants in common ownership, necessary parties – 527,540**Termination of subsidy, FED**

HQS violation, HCVP – 262-265

Improper termination, recertification issue

HCVP – 235

Project-based – 233-235

Termination of tenancy procedure, landlord

Fixed-term rental agreement – 174

Month-to-month tenancy – see index heading notice of termination, R.C. 5321.17(B)

R.C. 5321.05 violation – see index heading notice of termination, R.C. 5321.11

Termination of tenancy procedure, tenant

Constructive eviction – 397,479-481

Month-to-month tenancy – see index heading notice of termination, R.C. 5321.17(B)

R.C. 5321.07(B)(3) – 396,397

Third-party conduct

Criminal activity, landlord duty and liability – 331,332,448-450

Guest conduct, tenant duty (R.C. 5321.05(A)(6)) – 338-340

Implied covenant of quiet enjoyment – 332,335

Independent contractor, R.C. 5321.04(A) duties – 442

Third-party purchase, rental property

See index heading sale of premises, existing tenancy

Timely tender of rent, refused – 143,144**Title issues, FED**

See index heading jurisdictional issues, FED

Tolling rules, notice of appeal (FED)

See index heading appeal, FED

Trade or fictitious name, registration

See index heading fictitious or trade name, registration

Transient occupancy, residential premises exclusions – 301-306**Transitional housing, R.C. Chapter 5321 applicability – 301-306**

Trespass claim (landlord)

Banned tenant – 366-368

Holdover tenant – 514-517

Trespass claim (tenant)

Entry upon premises – 459

Lockout – 474

Utility termination – 474

Trial, FED

Bench trial – 79,80

Collateral estoppel – 84,85

Consolidation of claims, trial – 77-79

Court reporter – 80

Grounds for eviction, limitations

Complaint allegations – 38

Notice of termination, assisted housing – 213,214

Notice of termination, R.C. 5321.11 – 28,29

Hearsay

General rule – 80-82

Statement to police officer – 81,82

Statement or report to manager – 81

Jury trial – see index heading jury trial, FED

Magistrate trial – See index heading magistrate, FED

Proof and evidentiary issues

Disturbance of neighbors, method of proof – 87

Nonpayment beyond tenant's control, burden of proof – 87

Notice of termination, burden of proof – 87

Repeated damage, evidence of prior incidents – 88

Unauthorized occupant, question of fact – 88

Res judicata – 85,86

Tenant not present

Appearance discretionary, absent subpoena – 82

Attorney representation – 82

Trial as if tenant present, R.C. 1923.07 – 82,83

Unrepresented party – 83,84

Unsworn testimony – 82,83

Witness list, local rule – 88

Unaccrued rent, landlord claim – 522,523**Unauthorized occupant, FED – 236,364-366****Unauthorized practice of law, FED**

Corporation – 191,192

Limited liability company – 192,193

Partnership – 193,194
Persons, R.C. 4705.01
 General rule – 194,195
 Picklo rule – 195
 Power of attorney – 196

Unconscionable provision, R.C. 5321.14 – 176,364-366

Uniform Residential Landlord and Tenant Act, adaptation – 291

Use and occupancy bond, FED – 111,113

Utility payment, landlord obligation

Implied covenant of quiet enjoyment – 330
PUCO rule, mastermeters premises – 329,330
R.C. 5321.04(A)(1), duty to supply – 330
R.C. 5321.04(A)(6), duty to supply – 328,329

Utility termination, landlord nonpayment

Governmental utility, equal protection/due process (tenant) – 608-612
PUCO utility, tenant rights – 607,608

Utility termination/lockout, landlord repossession

Abandoned premises, R.C. 5321.15 inapplicability – 466
Claim (tenant), R.C. 5321.15(C)
 All damages – 466-471
 Attorney's fees – 471
 Injunctive relief – 472-474,560,561
 Punitive damages – 468-471
Claims (tenant), common law
 Conversion – 474
 Emotional distress – 468,474
 Invasion of privacy – 474
 Trespass – 474
Compulsory counterclaim – 473
Prohibitions, R.C. 5321.15
 Lockout – 465,466
 Utility termination – 465,466
Surrender of premises, R.C. 5321.15 inapplicability – 465,466
Utility company liability – 474

Vacate judgment motion, FED

See index heading motions, FED

Violence Against Women Act – 253,454**Visitor**

Guest of tenant

Ban list – 366-368

Guest conduct, tenant duty (R.C. 5321.04(A)(6)) – 338-340

Overnight guest rule, First Amendment – 364

Overnight guest rule, HUD regulations – 364

Overnight guest rule, unconscionability (R.C. 5321.14) – 364,377

Right to invite guest – 363,364

Trespass policy – 366-368

Unauthorized occupancy – 236,364-366

Landlord duties under R.C. 5321.04(A), applicability

Guest of landlord – 312

Guest of tenant – 312,313

Uninvited person – 254,255,339,340

Voucher, Section 8

See index heading Housing Choice Voucher

Waiver of breach

Landlord's breach of rental agreement or R.C. 5321.04 – 421,422

Tenant's breach of rental agreement or R.C. 5321.05, FED – 133-137

Wrongful eviction claim (tenant), tort (fraud and deceit) – 481,482

Waiver of notice

Notice of termination (R.C. 5321.11,.17) – 131-133

Notice to vacate (R.C. 1923.04(A))

Assisted housing – 127-131

General rule – 122-127

Waiver of R.C. Chapter 5321 provision

See index heading rental agreement

Water

Landlord duty, R.C. 5321.04(A)(4),(6) – 327-329

Submeters – 612,613

Wild/natural land, residential premises exclusion – 300**Writ of restitution, FED**

Content – 94

Enforcement, non-defendant – see index heading judgment, FED

Execution of writ

Time – 94,95

Writ of mandamus, compel execution – 94

Writ of prohibition, prevent execution – 95

Issuance of writ

Deposit requirement – 94,95

Time – 94

Judicial sale option, manufactured home park – 97-100

Removal of property from premises

Landlord's absence of duty – 95

Placement of property – 95

Wrongful eviction

Common law

Contract claim, constructive eviction – 397,479-481

Contract claim, removal forcibly or by demand – 478,479

Tort claim, fraud and deceit – 481,482

Tort claim, malicious prosecution – 482

Section 1983 of 42 U.S.C., due process

City code enforcement – 484,485

Police assisting landlord – 483,4484

Utility termination/lockout – see index heading utility termination/lockout, landlord repossession

